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House of Representatives

The House met at 9 a.m. and was called to order by the Speaker pro tempore (Mr. KINGSTON).

DESIGNATION OF THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
December 11, 2014.

I hereby appoint the Honorable JACK KINGSTON to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
Speaker of the House of Representatives.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

God of the universe, we give You thanks for giving us another day.

As the Members of the people's House gather on this final day of the 113th Congress, we ask Your blessing upon them.

May our Nation's citizens be grateful for their service rendered these past 2 years but also justified in their hope that those returning for the new Congress and those joining them will move toward ever greater accomplishments to benefit our great Nation.

For the failures of the past 2 years, whatever their cause, we ask Your forgiveness and seek Your assurance that it is Your love that calls us to correcting all failures, not fear of Your anger.

Bless as well those who leave Congress this day. May they be successful and productive in whatever are their future endeavors.

May all that is done this day be for Your greater honor and glory.

Amen.

NOTICE

If the 113th Congress, 2nd Session, adjourns sine die on or before December 24, 2014, a final issue of the *Congressional Record* for the 113th Congress, 2nd Session, will be published on Wednesday, December 31, 2014, to permit Members to insert statements.

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By order of the Joint Committee on Printing.

CHARLES E. SCHUMER, *Chairman.*

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THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

Mr. WILSON of South Carolina. Mr. Speaker, pursuant to clause 1, rule I, I demand a vote on agreeing to the Speaker's approval of the Journal.

The SPEAKER pro tempore. The question is on the Speaker's approval of the Journal.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. WILSON of South Carolina. Mr. Speaker, I object to the vote on the ground that a quorum is not present and make the point of order that a quorum is not present.

The SPEAKER pro tempore. Pursuant to clause 8, rule XX, further proceedings on this question will be postponed.

The point of no quorum is considered withdrawn.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentleman from Ohio (Mr. JOHNSON) come forward and lead the House in the Pledge of Allegiance.

Mr. JOHNSON of Ohio led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will entertain up to five requests for 1-minute speeches on each side of the aisle.

THANK YOU, CAROLINE DELLENEY

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, for over 6 years, the constituents of the Second Congressional District of South Carolina have been extremely fortunate to have Caroline Delleney working for them. Caroline began as scheduler in the office in 2008 and, over the last 3 years, has served tirelessly as communications director. When tasked with this challenge, Caroline not only succeeded, but excelled. She established and fulfilled the goal of being accessible and accountable.

At the end of the year, Caroline will be returning to South Carolina to coordinate communications for the incoming speaker of the State house, Jay Lucas of Hartsville. While I will miss Caroline's dedication to the job and ever-cheerful personality, I know she will do a great job for Speaker Lucas and the people of South Carolina.

Caroline is truly a credit to her dedicated parents, Becky and Greg Delleney of Chester, South Carolina.

As she moves to the capital city of Columbia, home of her alma mater, the University of South Carolina, I wish her the absolute best. I know she will do a great job, and I look forward to serving her, as she will now be a constituent of the Second District.

In conclusion, God bless our troops, and the President by his actions should never forget September the 11th in the global war on terrorism.

TRAGEDIES IN BANGLADESH

(Mr. GEORGE MILLER of California asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GEORGE MILLER of California. Mr. Speaker, on April 24, 2013, the world witnessed the deadliest disaster in the history of the garment industry. That morning Rana Plaza, an eight-story building housing five garment factories just outside Bangladesh's capital of Dhaka, collapsed. 1,138 people were killed and over 2,500 more were injured.

Just 5 months earlier, at least 112 people were killed, and scores more were injured when they leapt from a burning building at the Tazreen Fashions factory.

These tragedies laid bare the broken system, ineffective government oversight, and failed corporate responsibility and the powerlessness of the garment workers.

They also left nearly 4,000 survivors, families of the victims in need of long-term compensation. Many of the survivors are unable to find work, struggling with physical disabilities and mental trauma that could last for a lifetime. The injured workers and their families who lost loved ones—for many of them, their only income earner—are now trying to survive economic impoverishment in addition to the painful memories.

In the wake of these disasters, the International Labor Organization helped set up compensation funds for victims and families. Labor groups, the Bangladeshi Government, and several prominent retailers and brands who sourced from Bangladesh have committed funds to the survivors of Rana Plaza. Two years after the Tazreen fire, an agreement has also been reached on compensation for these survivors.

The Rana Plaza Donors Trust Fund needs an estimated $40 million to provide for Rana Plaza survivors and victims' families, but as of last month the fund only had collected $22 million, barely half the amount.

Injured workers and victims' families are being shortchanged. Nearly 40 global garment brands had recent or current orders in the five garment factories in Rana Plaza when it collapsed. They owe better compensation to the victims of their carelessness.

RECOGNIZING WILL CROCKER

(Mr. HOLDING asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HOLDING. Mr. Speaker, I rise today in recognition of Will Crocker, long-time Johnston County clerk of superior court, who is retiring this month after decades of public service.

For over 36 years, Will helped thousands of people, judges, and attorneys navigate the court system in Johnston County. He first began his job in 1959 as clerk of Selma recorder court, then later as assistant clerk of court in 1967. Will served with professionalism since winning his first election in 1978 and is the longest serving clerk in the State of North Carolina.

Mr. Speaker, Will is truly the ''Will of the people.'' His knowledge of Johnston County history and politics is second to none, and when Will isn't eating at the Coffee Pot in Smithfield, he is enjoying his favorite pastime at night—watching C–SPAN.

Mr. Speaker, Will is one of a kind and leaves a lasting legacy in the history of Johnston County. I wish him good health and happiness in his retirement.

SECOND ANNIVERSARY OF NEWTOWN TRAGEDY

(Ms. ESTY asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. ESTY. Mr. Speaker, I rise today with a heavy heart, to honor and remember the 20 innocent children and six brave educators gunned down at Sandy Hook Elementary School in Newtown in my district 2 years ago.

The community of Newtown has asked us all to honor their memory with acts of kindness. They have asked us to honor with action. So I urge you to take a moment out of this busy holiday season and to volunteer at a local soup kitchen or to buy holiday gifts for needy families.

Let's honor with action, with acts of kindness this week, and with action in Congress that makes our world safer for all our children. Our hearts are broken, but our spirit is not.

A STORY FROM OHIO

(Mr. JOHNSON of Ohio asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. JOHNSON of Ohio. Mr. Speaker, I rise today on behalf of the hard-working people of eastern and southeastern Ohio to share their stories since they began experiencing President Obama's health care law.

I have heard from many of those I represent who have seen an increase in their health care premiums, lost their doctors, and were forced out of the plans that they liked, even after they were told by President Obama that if

they liked their health plan they could keep it.

Alice of Dennison, Ohio, contacted my office and let me know that her insurance premium went from $235 to $520 a month, more than doubling. Alice told me that she goes to bed at night wondering how she will pay for the increased premiums. But Alice isn't alone. Her story is just one of the many stories from Ohio I have received.

We must continue to fight this misguided law and work to return control and choice of health care to the American people. Hardworking Americans deserve better than ObamaCare.

RECOGNIZING THE SERVICE OF DR. PAMELA TRANSUE

(Mr. KILMER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. KILMER. Mr. Speaker, I rise today to recognize the outstanding service of Dr. Pamela Transue, who has served as Tacoma Community College's president for 17 years.

President Transue has established an effective and successful learning environment that has opened doors of opportunity for its students. Under her tenure, Tacoma Community College has become a more vibrant and modern place, and her efforts have brought the college national recognition. As a former board member of Tacoma Community College, I saw firsthand how she helped shape the lives of countless students.

Alongside her service as president, she has also been actively engaged in the community, whether giving a speech at the Metropolitan Development Council breakfast or participating in a local economic development association. Dr. Transue has long recognized that education and job growth and self-sufficiency all go hand in hand.

Dr. Transue will retire at the close of this year, and with her retirement, she will be one of the longest serving presidents in higher education in Washington State's history, serving as Tacoma Community College's president for almost one-third of the college's existence.

Her nearly two decades as president of Tacoma Community College have impacted our region's economy and generations of students young and old. I am pleased to recognize her service today in the United States Congress.

RECOGNIZING PHIL HOGAN, JOSH ALLEN, JAMES WESTON ABBOTT, AND SHEA LASSETER

(Mr. WESTMORELAND asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WESTMORELAND. Mr. Speaker, today I would like to recognize Phil Hogan, Josh Allen, James Weston Abbott, and Shea Lasseter for their work for Coweta-Fayette electric cooperative, located in my district, and Habersham electric cooperative.

Coweta-Fayette initiated a partnership with Habersham for these gentlemen to travel to Costa Rica as volunteers for the National Rural Electric Cooperative Association International Foundation. They helped construct an electric distribution system and worked alongside employees at Coopeguanacaste, the electric co-op in the town of Guanacaste.

Their volunteer efforts included extending access to electricity for families in this community. Electricity is a critical element in improving the quality of life. It enables better health care, education, clean water, and other vital services. These men also shared safety and best construction practices with the Costa Rican cooperative employees.

NRECA International has been active in rural electrification development in Costa Rica since 1963. The four electric cooperatives in Costa Rica serve approximately 750,000 folks. Thanks to these volunteers, more families in the world now have a chance for a better life.

Thank you, Phil Hogan, Josh Allen, James Weston Abbott, and Shea Lasseter for your hard work and dedication.

□ 0915

SOUTH SUDAN CONFLICT

(Ms. LEE of California asked and was given permission to address the House for 1 minute.)

Ms. LEE of California. Mr. Speaker, December 15 will mark the 1-year anniversary of the conflict in South Sudan. Since fighting broke out last December, a humanitarian crisis has plagued this young nation. Almost 2 million people have been displaced, and an estimated 50,000 civilian deaths have occurred. And the situation is only likely to get worse in the coming months.

The United States has played a vital role in supporting an independent South Sudan, and we have a vital role moving forward to ensure that the conflict does not deteriorate.

As we have seen in protracted crises around the world, such as in Sudan and the Democratic Republic of Congo, the longer that a conflict continues and tears at the social fabric of a country, the more difficult reconciliation becomes.

As cochairs of the bipartisan Caucus on Sudan and South Sudan, Mr. MCCAUL of Texas, Mr. CAPUANO of Massachusetts, and myself are urging Members to sign a letter with us to the administration requesting the President to increase his political and diplomatic efforts to help bring this conflict to an end and to prevent further bloodshed.

With 1.5 million people experiencing food insecurity in South Sudan, now is the time to ensure that we use diplomacy to bring this crisis to an end. So we are asking you to join us in this effort because we must continue to work in a bipartisan way with the administration to increase our political and diplomatic efforts.

THE PRESIDENT'S LAWLESS IMMIGRATION OVERREACH

(Mrs. BLACK asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. BLACK. Mr. Speaker, on Tuesday, President Obama came to Nashville to defend his unconstitutional immigration overreaches, but Tennesseans aren't buying it.

I asked my constituents what questions they would ask the President during his visit to the Volunteer State, and the response was overwhelming. Penny in Springfield asked, ''Why has he chosen to ignore the voice of the people on the immigration issue?''

Janice in Gordonsville asked, ''What does he say to the legal immigrants who obeyed the law to become citizens?''

And Kimberly in White House simply says, ''I want to know why our laws are no longer valid.''

My constituents said it best. We are a Nation of laws, and this lawless immigration overreach must not stand.

WHERE IS OUR AUTHORIZATION FOR USE OF MILITARY FORCE?

(Ms. FRANKEL of Florida asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. FRANKEL of Florida. Mr. Speaker, on August 8 of this year, we went to war with ISIL. Since that day, we have launched over 1,700 airstrikes, we have put thousands of men and women in harm's way, we have committed billions of dollars, and the President has said this effort will take years.

Many of my colleagues and I have waited patiently for Congress to deliberate on the Authorization for Use of Military Force; yet all of these months later, we have not had a single debate. We recessed this summer without debate. We passed a defense bill last week without debate. And now, once again, we are leaving town without debate.

Mr. Speaker, it is the duty of this Congress to make determinations of war and peace, and we are shamefully ducking this responsibility. America deserves better.

AUTHORITY TO FILE REPORTS

Mr. HASTINGS of Washington. Mr. Speaker, I ask unanimous consent that all committees may have until 5 p.m. on December 30, 2014, to file reports to accompany measures.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Washington?

There was no objection.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which a recorded vote or the yeas and nays are ordered, or on which the vote incurs objection under clause 6 of rule XX.

Record votes on postponed questions will be taken later.

SOLEDAD CANYON SETTLEMENT ACT

Mr. HASTINGS of Washington. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 5742) to provide to the Secretary of the Interior a mechanism to cancel contracts for the sale of materials CA–20139 and CA–22901, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5742

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Soledad Canyon Settlement Act''.

SEC. 2. DEFINITIONS.

In this Act:

(1) CITY OF SANTA CLARITA.—The term ''City of Santa Clarita'' means the City of Santa Clarita, California.

(2) CITY OF VICTORVILLE.—The term ''City of Victorville'' means the City of Victorville, California.

(3) CONTRACTS.—The term ''contracts'' means the Bureau of Land Management mineral contracts numbered CA–20139 and CA–22901.

(4) CONTRACT HOLDER.—The term ''contract holder'' means the private party to the contracts, and any successors that hold legal interests in the contracts.

(5) COUNTY OF SAN BERNARDINO.—The term ''County of San Bernardino'' means the County of San Bernardino, California.

(6) MAP.—The term ''Map'' means the map entitled ''Victorville disposal area, California'' and dated March 2011.

(7) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(8) VICTORVILLE DISPOSAL AREA.—The term ''Victorville disposal area'' means the 10,206.05 acres of land identified for disposal in the West Mojave Land Management Plan (2006) of the Bureau of Land Management and depicted on the Map.

SEC. 3. APPRAISAL; COMPENSATION TO CONTRACT HOLDER.

(a) APPRAISALS.—

(1) CONTRACT APPRAISAL.—

(A) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Secretary shall determine by mineral appraisal, using the discounted cash flow method of appraisal (in accordance with the appraisal guidelines for appraisals of large quantities of mineral materials contained in section IV(E) of BLM Mineral Material Appraisal Handbook H–3630)—

(i) the fair market value of the contracts; and

(ii) the amount of royalties the Federal Government would receive under the contracts over the 10-year period beginning on the date of enactment of this Act.

(B) CONSIDERATIONS.—In making the determination under subparagraph (A), the Secretary shall assume that—

(i) the contract holder has obtained all the permits and entitlements necessary to mine, produce, and sell sand and gravel under the contract; and

(ii) mining operations under the contract have commenced at the time of the determination, with maximum annual production volumes that—

(I) are based on the projected supply and demand outlook at the time of determination; and

(II) reflect depletion of the reserves that are subject to the contract within the effective periods of the contract.

(C) DONATION.—The Secretary shall provide to the contract holder and the City of Santa Clarita a list of approved appraisers from which the parties shall select and provide the funding to cover the costs of the appraisal under subparagraph (A).

(2) LAND APPRAISAL.—

(A) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Secretary shall determine by appraisal standards under existing laws and regulations, the fair market value of the Victorville disposal area on a net present value basis.

(B) DONATION.—The Secretary shall provide to the contract holder and the City of Santa Clarita a list of approved appraisers from which the parties shall select and provide the funding to cover the costs of the appraisal under subparagraph (A).

(b) COMPENSATION.—

(1) IN GENERAL.—Subject to paragraph (2), not later than 30 days after completion of the appraisals under subsection (a), the Secretary shall offer the contract holder compensation for the cancellation of the contracts.

(2) CONDITIONS ON OFFER.—An offer made by the Secretary under paragraph (1) shall be subject to the following conditions:

(A) The cancellation of the contracts and the provision of compensation shall be contingent on the availability of funds from the sale of the Victorville disposal area under section 4, and any additional compensation provided under subparagraph (D), as determined necessary by the Secretary.

(B) The amount of compensation offered by the Secretary under this subsection shall be equal to or less than the fair market value of the contracts, as determined under subsection (a)(1)(A)(i).

(C) The amount of compensation offered by the Secretary under this subsection shall be equal to or less than the projected revenues generated by the sale of the Victorville disposal area under section 4, less the projected lost royalties to the Federal Government over the 10-year period beginning on the date of enactment of this Act, as determined under subsection (a)(1)(A)(ii).

(D) If the amount of projected revenues described in subparagraph (C) is less than the fair market value determined under subsection (a)(1)(A)(i), the Secretary shall, not later than 60 days after the date on which the Director of the Bureau of Land Management determines the projected revenues under subparagraph (C), negotiate an agreement with the contract holder and the City of Santa Clarita to provide to the Secretary amounts equal to the difference, in the form of—

(i) compensation to be received by the contract holder; and

(ii) compensation in a form acceptable to the Secretary to be provided by the City of Santa Clarita.

(3) ACCEPTANCE OF OFFER.—

(A) IN GENERAL.—The contract holder shall have 60 days from the later of the date on which the Secretary makes the offer under paragraph (1) or an agreement is negotiated under paragraph (2)(D) to accept the offer or agreement.

(B) FAILURE TO ACCEPT OFFER.—If the contract holder does not accept the offer under paragraph (1) or if an agreement is not negotiated under paragraph (2)(D) within the time period described in subparagraph (A), the contracts shall remain in effect and no further actions shall taken be taken pursuant to this Act.

SEC. 4. SALE OF LAND NEAR VICTORVILLE, CALIFORNIA.

(a) IN GENERAL.—Notwithstanding sections 202 and 203 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1712, 1713) and subject to subsections (b) through (f), not later than 2 years after the date of enactment of this Act, the Secretary shall place on the market and offer for sale by competitive bidding and in a manner designed to obtain the highest price possible, all right, title, and interest of the United States in and to the Victorville disposal area.

(b) AVAILABILITY OF MAP.—The Secretary shall keep the Map on file and available for public inspection in—

(1) the office of the Director of the Bureau of Land Management; and

(2) the district office of the Bureau of Land Management located in Barstow, California.

(c) RIGHT OF LOCAL LAND USE AUTHORITY TO PURCHASE CERTAIN LAND.—

(1) IN GENERAL.—Before a sale of land under subsection (a), the Secretary shall provide to the applicable local land use authority an exclusive preemptive right, as determined under State law, to purchase any right, title, or interest of the United States in and to any portion of the parcels of land identified as ''Area A'' and ''Area B'' on the Map that is located within the jurisdiction of the local land use authority.

(2) TIMING.—A preemptive right under paragraph (1) shall be in effect for a period of 30 days before the land is sold under subsection (a).

(3) AUTHORITY.—During the period described in paragraph (2), the local land use authority may purchase some or all of the right, title, and interest of the United States, as provided in subsection (a), in and to the land to be offered for sale at fair market value, as determined by an appraisal conducted by the Secretary.

(4) EXERCISING RIGHT.—If the local land use authority exercises the preemptive right under paragraph (1), the Secretary shall convey the land to the local land use authority immediately on payment by the local land use authority of the entire purchase price of the applicable parcel of land.

(5) FAILURE TO PAY.—Failure by the local land use authority to purchase and pay for the right, title, and interest of the United States in and to the land described in paragraph (1) within the time period described in paragraph (2) and to comply with any other terms and conditions as the Secretary may require shall terminate the preemptive right of the local land use authority with respect to the right, title, and interest offered for sale.

(d) WITHDRAWAL AND RESERVATION.—

(1) WITHDRAWAL.—Subject to valid existing rights, the land described in subsection (a) is withdrawn from—

(A) entry, appropriation, or disposal under the public land laws;

(B) location, entry, and patent under the mining laws; and

(C) operation of the mineral leasing, mineral materials, and geothermal leasing laws.

(2) RESERVATION.—In any sale or other disposal of land under this section, there shall be reserved by the United States the right of

the United States to prospect for, mine, and remove minerals from the conveyed land.

(e) CONSULTATION.—In addition to any consultation otherwise required by law, before initiating efforts to dispose of land under this section, the Secretary shall consult with the City of Victorville, the County of San Bernardino, and surface owners in the jurisdiction in which the land is located regarding the potential impact of the disposal and other appropriate aspects of the disposal.

(f) ACCOUNT.—The gross proceeds of a sale of land under subsection (a) shall be deposited in an account acceptable to the Secretary and available only for the purposes of carrying out this Act.

SEC. 5. CANCELLATION OF CONTRACTS.

(a) IN GENERAL.—On completion of the compensation to the contract holder for the value of each contract in accordance with subsection (b), the Secretary shall cancel the contracts and withdraw those areas that were subject to the contracts from further mineral entry under all mineral leasing and sales authorities available to the Secretary.

(b) COMPENSATION; CANCELLATION; RETENTION OF FUNDS.—

(1) IN GENERAL.—Subject to paragraph (3), the Secretary shall provide to the contract holder the compensation agreed to under section 3(b) by disbursement of amounts from the account, in 4 equal payments, as funds are available;

(2) CANCELLATION.—

(A) CONTRACT CA–20139.—On completion of the first 2 payments to the contract holder under paragraph (1), the Secretary shall cancel contract CA–20139.

(B) CONTRACT CA–22901.—On completion of the remaining 2 payments to the contract holder under paragraph (1), the Secretary shall cancel contract CA–22901.

(3) RETENTION OF FUNDS.—The Secretary shall retain sufficient funds to cover the projected lost royalties determined under section 3(a)(1)(A)(ii).

(c) RELEASE AND WAIVER.—Upon acceptance and receipt of compensation under subsection (b), the contract holder shall waive all claims against the United States arising out of, or relating to, the cancellation of the contracts.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Washington (Mr. HASTINGS) and the gentleman from California (Mr. SHERMAN) each will control 20 minutes.

The Chair recognizes the gentleman from Washington.

GENERAL LEAVE

Mr. HASTINGS of Washington. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous materials on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Washington?

There was no objection.

Mr. HASTINGS of Washington. I yield myself as much time as I may consume.

Mr. Speaker, we are here today to address the Soledad Canyon Settlement Act, H.R. 5742, as introduced by our colleague from California (Mr. MCKEON). This bipartisan bill will solve a longstanding controversy surrounding a pair of sand and gravel leases located near the community of Santa Clarita, California.

In 1990, the Bureau of Land Management, or BLM, issued two leases for sand and gravel mines to CEMEX. At the time, this area was much more remote than it is today. As CEMEX was preparing a plan of operation, it became clear to all parties involved that local community development had made the project incompatible with the local community. Local community leaders, the region's congressional delegation, and the company have all worked for more than a decade to find a legislative solution to make the company and Federal Government whole while returning the lease to the Federal Government.

As a result, we are here today to move forward with a plan to cancel these leases while at the same time making both the contract holder and the Federal Government whole. This legislation has the strong support of State and local communities, the contract holder, and the regional congressional delegation.

Now while this bill has just recently been introduced, it is the product of years of hard work and careful communication and review by the committee. The gentleman from California (Mr. MCKEON) has been a tireless advocate on behalf of his local communities. He has demonstrated patience and diligence in pursuing a workable solution that the Congress can successfully act upon. I am confident that the community of Santa Clarita already knows just how fortunate they have been to have had Mr. MCKEON as their Congressman for 11 terms.

Now, it is also my understanding, Mr. Speaker, that the gentlewoman from California, Senator BOXER, shares Mr. MCKEON's commitment to this legislation, and I hope that she will be able to follow his lead before the end of this Congress by shepherding this bill through the Senate. This bill deserves the support of both the House and the Senate.

With that, I reserve the balance of my time.

Mr. SHERMAN. Mr. Speaker, I rise in support of the bill and would like to hear from the gentleman from California (Mr. MCKEON), so I will reserve the balance of my time.

Mr. HASTINGS of Washington. Mr. Speaker, I am very pleased to yield such time as he may consume to the gentleman from California (Mr. MCKEON), the author of this legislation, the chairman of the Armed Services Committee.

Mr. MCKEON. I thank Chairman HASTINGS for yielding.

Mr. Speaker, it is a great privilege to speak on my bill, H.R. 5742, the Soledad Canyon Settlement Act. I appreciate the opportunity to appear before the House, and I want to thank Speaker BOEHNER, Majority Leader MCCARTHY, and Chairman HASTINGS for their steadfast support of this legislation. Without their support, we wouldn't be standing here today on the floor with this bill.

I would also like to thank the gentlewoman from California, Senator BOXER, for her efforts in finding an agreeable solution for the inclusion of language that brought the score of the bill to zero. And I second the remarks of Chairman HASTINGS and hope that she will be able to bring this to a conclusion in the final days that the Senate is in session. One of the things that Senator BOXER added to this bill was introducing legislation that brought the cost of this bill to zero. Crossing that hurdle has moved us to this point now in solving this intractable issue.

Finally, I would like to thank the gentleman from California, Congressman SHERMAN, for his support of my legislation. I continue to believe in bipartisanship as the way to address critical issues for our constituents, and we have shown time and again that we can find common ground if we try.

Mr. Speaker, the Soledad Canyon mine, operated by CEMEX, is located just outside the city of Santa Clarita, California, in the 25th Congressional District that I have had the opportunity to represent now for the last 22 years. Under two current contracts held by CEMEX, they are authorized to extract approximately 56 million tons of sand and gravel over a 20-year period, with two 10-year contracts.

Residents of my congressional district and city leaders have been expressing their concerns for the past 24 years about a large mine operating in close proximity to where they live. And, as the chairman mentioned, this has become much closer over the years. They fear the effects of pollution, increased truck traffic, and environmental health issues on their families and the community. Throughout my 22 years in Congress, I have worked endlessly to find a solution. I have engaged with civic leaders, residents of my district, environmental leaders, the county of Los Angeles, CEMEX, BLM, the Department of the Interior, Chairman HASTINGS, and the leadership of our conference.

Mr. Speaker, allow me to give just a bit of background on the situation that has arisen in my district. In 1990, two privately held valid Federal contracts were awarded to Transit Mixed Concrete. Southdown, the parent company of Transit Mixed Concrete, was acquired by CEMEX in 2000, resulting in CEMEX holding the Federal contracts.

The Bureau of Land Management approved a mining plan of operations and prepared a draft environmental impact statement with respect to the Soledad Canyon mine, which was released on May 6, 1999. The environmental impact statement was subsequently modified to address the growing concerns among Santa Clarita residents about the impact that mining operations in Soledad Canyon have on air quality and health, truck traffic, and declining property values in Santa Clarita. The final environmental impact statement was released to the public on June 2, 2000, with a list of eight alternatives for mining the Soledad Canyon site.

Under the California Environmental Quality Act, the county of Los Angeles

completed the environmental impact report in 2001 and subsequently voted in 2002 to deny the permit, citing the right and responsibility of the county to impose reasonable environmental and resource protection and regulation on mining in Soledad Canyon.

Numerous lawsuits were filed between 2002 and 2004 involving the city of Santa Clarita, the county of Los Angeles, the Center for Biological Diversity, and CEMEX. A consent degree resulted from the settlement of CEMEX, Inc. v. County of Los Angeles in 2004. The consent decree contains the mitigation agreement between CEMEX and the county of Los Angeles, which lists 40 conditions that CEMEX is required to meet in order to mitigate the environmental, health, traffic, endangered species, and safety concerns raised by the county, local residents, and the city of Santa Clarita.

Mr. Speaker, as I mentioned before, I have worked throughout my entire congressional career to bring all parties together to work out a deal that is mutually beneficial. I have introduced eight bills on this issue over the years, each of which took a different approach to dealing with the mine as new issues arose.

In the 106th Congress, I introduced H.R. 3060, which would have withdrawn specified lands from the operation of Federal mining and mineral leasing laws and would have nullified any existing permits issued on those lands. The same bill was introduced as H.R. 679 in the 107th Congress. In the 108th Congress, I introduced H.R. 3529, the Soledad Canyon Mine Lease Cancellation Act. This legislation would have canceled the two mining permits for the Soledad Canyon mine and would have prohibited the Secretary of the Interior from issuing permits for mining above historical levels in Soledad Canyon.

In the 109th Congress, I introduced H.R. 5471, the Soledad Canyon Mine Leases Adjustment Act. This legislation would have canceled the two mining permits for the Soledad Canyon mine, directed the Secretary of the Interior to provide additional financial and mineral production opportunities in exchange for the economic value invested to that date on the two permits, and would have prohibited the Secretary of the Interior from issuing permits for mining above historical levels in Soledad Canyon.

In the 110th Congress, I introduced H.R. 5887, the Soledad Canyon Mine Act. This legislation would have authorized the Secretary of the Interior to cancel the two mining contracts, prohibited future mining in Soledad Canyon, provided a means for CEMEX to recover just compensation for the cancelation of the contracts, provided the Bureau of Land Management with the necessary tools to verify the expenses incurred by CEMEX, provided relief to CEMEX for such expenses, and provided for a dispute resolution process.

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In the 111th Congress, I introduced H.R. 4332, the Soledad Canyon High Desert, California Public Lands Conservation and Management Act of 2009. This legislation had a similar set of actions as H.R. 5887, but added two notable ones: it provided a mechanism to offer for sale, by competitive bidding, lands identified for disposition near Victorville, California; and to acquire environmentally-sensitive land and collect the proceeds of the sale of lands near Victorville, California.

Finally, in the 112th Congress, I introduced H.R. 6469, the Soledad Canyon Mine Mitigation and Relocation Act of 2012. This legislation would have begun a study of the legal and administrative steps—including obtaining sufficient funding—necessary to carry out the goals of the Soledad Canyon High Desert, California Public Lands Conservation and Management Act of 2009, H.R. 4332.

I mention each of these in order to illustrate how the tug and pull of all parties influenced the legislative process. Each party gave ideas to further perfect legislation that would finally solve this vexing issue that affects the residents of my district.

I believe because of all our joint efforts, we have reached a critical mass on this issue. It is time for a solution once and for all. I am looking forward to the full House acting on H.R. 5742 today, a solution that would take the mine out of commission and lift this two decades' long burden off the backs of my constituents.

This is a solution borne from the great compromise between the city of Santa Clarita and CEMEX, who each offered to put up the difference in cost to bring the cost of the bill to zero. This zero score is critical to the bill's success and couldn't have been achieved without the partnership that has developed over the many years of action on this matter.

The bill achieves all the aims of my previous legislation, particularly H.R. 4332, with the solution to the vexing issue of how to ensure there is no cost to the Federal Government.

Mr. Speaker, I urge my colleagues to support this legislation. I thank the gentleman again for allowing me the time to explain this critical issue in my district and thanks again to our House leadership and Chairman HASTINGS for bringing this legislation to the floor.

Mr. SHERMAN. Mr. Speaker, I yield myself as much time as I may consume.

Mr. Speaker, I rise in support of the Soledad Canyon Settlement Act. This act is a testament to bipartisanship, fiscal responsibility, environmental stewardship, local consensus building, and tireless tenacity for the public good.

Bipartisanship: Here in this House, the bill is introduced, carried, and written by our colleague, BUCK MCKEON. In the Senate, the same language has been introduced by Senator BARBARA BOXER and is supported by Senator FEINSTEIN. You can't get any more bipartisan than that.

Fiscal responsibility: CBO says this bill costs the government zero dollars and zero cents. You can't get a lower cost estimate on a bill than that.

Environmental stewardship: this bill is supported by the Sierra Club, and this land will become the gateway to the new San Gabriel Mountains National Monument.

Local consensus building: this bill has the support of local leaders and legislators, Governor Jerry Brown, CEMEX, the local lease owner, and virtually everyone involved in public life in Santa Clarita, which is Los Angeles County's third largest city.

Tireless tenacity: Mr. Speaker, tireless tenacity for the public good is exemplified by our friend, BUCK MCKEON, 22 years in Congress and I believe 22 years focused on this problem, and now, on what may very well be his last legislative day, we have a chance to solve this problem in a way that I think exemplifies what we should be trying to do here in Congress.

In addition to Buck's tireless tenacity, I want to commend the city leaders of Santa Clarita, many-time Mayor Laurene Weste, who I believe is now a city council member and has been mayor of that city so often; Bob Keller, now the mayor pro tem; Ken Striplin, the city manager; and hundreds and thousands of people in Santa Clarita and the immediate area.

Mr. Speaker, this is a bill that is needed because it will stop the mining of 56 million tons of sand and gravel, which is now incompatible with a city that has grown to more than double its size when the project was originally planned, and now constitutes an area of well more than a quarter million people.

This sand and gravel mining operation is incompatible with the new population of the area, and it is also incompatible with the roads and traffic which is busy not only at rush hour, but throughout the day.

I want to commend the gentleman from Santa Clarita for his decades of work for his district, and all the people of California.

Mr. Speaker, I urge an ''aye'' vote on the Soledad Canyon Settlement Act, and I yield back the balance of my time.

Mr. HASTINGS of Washington. Mr. Speaker, I yield myself the balance of the time.

Mr. Speaker, as Mr. MCKEON pointed out, this has been a long process for a vexing problem in Santa Clarita, and Mr. SHERMAN pointed out very well that Mr. MCKEON is to be commended for this, and this would be kind of the capstone on the career that he has.

All that is left if this House adopts this measure is very simply for the other body to take it up, and with the interests that Senator BOXER has shown on this issue, I hope that she can

move this legislation through the Senate.

With that, Mr. Speaker, I urge adoption, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Washington (Mr. HASTINGS) that the House suspend the rules and pass the bill, H.R. 5742.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

CHEMICAL FACILITY ANTI-TERRORISM STANDARDS PROGRAM AUTHORIZATION AND ACCOUNTABILITY ACT OF 2014

Mr. MEEHAN. Mr. Speaker, I move to suspend the rules and concur in the Senate amendment to the bill (H.R. 4007) to recodify and reauthorize the Chemical Facility Anti-Terrorism Standards Program.

The Clerk read the title of the bill.

The text of the Senate amendment is as follows:

Senate amendment:

In lieu of the matter proposed to be inserted, insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014''.

SEC. 2. CHEMICAL FACILITY ANTI-TERRORISM STANDARDS PROGRAM.

(a) IN GENERAL.—The Homeland Security Act of 2002 (6 U.S.C. 101 et seq.) is amended by adding at the end the following:

''TITLE XXI—CHEMICAL FACILITY ANTI–TERRORISM STANDARDS

''SEC. 2101. DEFINITIONS.

''In this title—

''(1) the term 'CFATS regulation' means—

''(A) an existing CFATS regulation; and

''(B) any regulation or amendment to an existing CFATS regulation issued pursuant to the authority under section 2107;

''(2) the term 'chemical facility of interest' means a facility that—

''(A) holds, or that the Secretary has a reasonable basis to believe holds, a chemical of interest, as designated under Appendix A to part 27 of title 6, Code of Federal Regulations, or any successor thereto, at a threshold quantity set pursuant to relevant risk-related security principles; and

''(B) is not an excluded facility;

''(3) the term 'covered chemical facility' means a facility that—

''(A) the Secretary—

''(i) identifies as a chemical facility of interest; and

''(ii) based upon review of the facility's Top-Screen, determines meets the risk criteria developed under section 2102(e)(2)(B); and

''(B) is not an excluded facility;

''(4) the term 'excluded facility' means—

''(A) a facility regulated under the Maritime Transportation Security Act of 2002 (Public Law 107–295; 116 Stat. 2064);

''(B) a public water system, as that term is defined in section 1401 of the Safe Drinking Water Act (42 U.S.C. 300f);

''(C) a Treatment Works, as that term is defined in section 212 of the Federal Water Pollution Control Act (33 U.S.C. 1292);

''(D) a facility owned or operated by the Department of Defense or the Department of Energy; or

''(E) a facility subject to regulation by the Nuclear Regulatory Commission, or by a State that has entered into an agreement with the Nuclear Regulatory Commission under section 274 b. of the Atomic Energy Act of 1954 (42 U.S.C. 2021(b)) to protect against unauthorized access of any material, activity, or structure licensed by the Nuclear Regulatory Commission;

''(5) the term 'existing CFATS regulation' means—

''(A) a regulation promulgated under section 550 of the Department of Homeland Security Appropriations Act, 2007 (Public Law 109–295; 6 U.S.C. 121 note) that is in effect on the day before the date of enactment of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014; and

''(B) a Federal Register notice or other published guidance relating to section 550 of the Department of Homeland Security Appropriations Act, 2007 that is in effect on the day before the date of enactment of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014;

''(6) the term 'expedited approval facility' means a covered chemical facility for which the owner or operator elects to submit a site security plan in accordance with section 2102(c)(4);

''(7) the term 'facially deficient', relating to a site security plan, means a site security plan that does not support a certification that the security measures in the plan address the security vulnerability assessment and the risk-based performance standards for security for the facility, based on a review of—

''(A) the facility's site security plan;

''(B) the facility's Top-Screen;

''(C) the facility's security vulnerability assessment; or

''(D) any other information that—

''(i) the facility submits to the Department; or

''(ii) the Department obtains from a public source or other source;

''(8) the term 'guidance for expedited approval facilities' means the guidance issued under section 2102(c)(4)(B)(i);

''(9) the term 'risk assessment' means the Secretary's application of relevant risk criteria identified in section 2102(e)(2)(B);

''(10) the term 'terrorist screening database' means the terrorist screening database maintained by the Federal Government Terrorist Screening Center or its successor;

''(11) the term 'tier' has the meaning given the term in section 27.105 of title 6, Code of Federal Regulations, or any successor thereto;

''(12) the terms 'tiering' and 'tiering methodology' mean the procedure by which the Secretary assigns a tier to each covered chemical facility based on the risk assessment for that covered chemical facility;

''(13) the term 'Top-Screen' has the meaning given the term in section 27.105 of title 6, Code of Federal Regulations, or any successor thereto; and

''(14) the term 'vulnerability assessment' means the identification of weaknesses in the security of a chemical facility of interest.

''SEC. 2102. CHEMICAL FACILITY ANTI-TERRORISM STANDARDS PROGRAM.

''(a) PROGRAM ESTABLISHED.—

''(1) IN GENERAL.—There is in the Department a Chemical Facility Anti-Terrorism Standards Program.

''(2) REQUIREMENTS.—In carrying out the Chemical Facility Anti-Terrorism Standards Program, the Secretary shall—

''(A) identify—

''(i) chemical facilities of interest; and

''(ii) covered chemical facilities;

''(B) require each chemical facility of interest to submit a Top-Screen and any other information the Secretary determines necessary to enable the Department to assess the security risks associated with the facility;

''(C) establish risk-based performance standards designed to address high levels of security risk at covered chemical facilities; and

''(D) require each covered chemical facility to—

''(i) submit a security vulnerability assessment; and

''(ii) develop, submit, and implement a site security plan.

''(b) SECURITY MEASURES.—

''(1) IN GENERAL.—A facility, in developing a site security plan as required under subsection (a), shall include security measures that, in combination, appropriately address the security vulnerability assessment and the risk-based performance standards for security for the facility.

''(2) EMPLOYEE INPUT.—To the greatest extent practicable, a facility's security vulnerability assessment and site security plan shall include input from at least 1 facility employee and, where applicable, 1 employee representative from the bargaining agent at that facility, each of whom possesses, in the determination of the facility's security officer, relevant knowledge, experience, training, or education as pertains to matters of site security.

''(c) APPROVAL OR DISAPPROVAL OF SITE SECURITY PLANS.—

''(1) IN GENERAL.—

''(A) REVIEW.—Except as provided in paragraph (4), the Secretary shall review and approve or disapprove each site security plan submitted pursuant to subsection (a).

''(B) BASES FOR DISAPPROVAL.—The Secretary—

''(i) may not disapprove a site security plan based on the presence or absence of a particular security measure; and

''(ii) shall disapprove a site security plan if the plan fails to satisfy the risk-based performance standards established pursuant to subsection (a)(2)(C).

''(2) ALTERNATIVE SECURITY PROGRAMS.—

''(A) AUTHORITY TO APPROVE.—

''(i) IN GENERAL.—The Secretary may approve an alternative security program established by a private sector entity or a Federal, State, or local authority or under other applicable laws, if the Secretary determines that the requirements of the program meet the requirements under this section.

''(ii) ADDITIONAL SECURITY MEASURES.—If the requirements of an alternative security program do not meet the requirements under this section, the Secretary may recommend additional security measures to the program that will enable the Secretary to approve the program.

''(B) SATISFACTION OF SITE SECURITY PLAN REQUIREMENT.—A covered chemical facility may satisfy the site security plan requirement under subsection (a) by adopting an alternative security program that the Secretary has—

''(i) reviewed and approved under subparagraph (A); and

''(ii) determined to be appropriate for the operations and security concerns of the covered chemical facility.

''(3) SITE SECURITY PLAN ASSESSMENTS.—

''(A) RISK ASSESSMENT POLICIES AND PROCEDURES.—In approving or disapproving a site security plan under this subsection, the Secretary shall employ the risk assessment policies and procedures developed under this title.

''(B) PREVIOUSLY APPROVED PLANS.—In the case of a covered chemical facility for which the Secretary approved a site security plan before the date of enactment of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014, the Secretary may not require the facility to resubmit the site security plan solely by reason of the enactment of this title.

''(4) EXPEDITED APPROVAL PROGRAM.—

''(A) IN GENERAL.—A covered chemical facility assigned to tier 3 or 4 may meet the requirement to develop and submit a site security plan under subsection (a)(2)(D) by developing and submitting to the Secretary—

''(i) a site security plan and the certification described in subparagraph (C); or

''(ii) a site security plan in conformance with a template authorized under subparagraph (H).

''(B) GUIDANCE FOR EXPEDITED APPROVAL FACILITIES.—

''(i) IN GENERAL.—Not later than 180 days after the date of enactment of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014, the Secretary shall issue guidance for expedited approval facilities that identifies specific security measures that are sufficient to meet the risk-based performance standards.

''(ii) MATERIAL DEVIATION FROM GUIDANCE.—If a security measure in the site security plan of an expedited approval facility materially deviates from a security measure in the guidance for expedited approval facilities, the site security plan shall include an explanation of how such security measure meets the risk-based performance standards.

''(iii) APPLICABILITY OF OTHER LAWS TO DEVELOPMENT AND ISSUANCE OF INITIAL GUIDANCE.—During the period before the Secretary has met the deadline under clause (i), in developing and issuing, or amending, the guidance for expedited approval facilities under this subparagraph and in collecting information from expedited approval facilities, the Secretary shall not be subject to—

''(I) section 553 of title 5, United States Code;

''(II) subchapter I of chapter 35 of title 44, United States Code; or

''(III) section 2107(b) of this title.

''(C) CERTIFICATION.—The owner or operator of an expedited approval facility shall submit to the Secretary a certification, signed under penalty of perjury, that—

''(i) the owner or operator is familiar with the requirements of this title and part 27 of title 6, Code of Federal Regulations, or any successor thereto, and the site security plan being submitted;

''(ii) the site security plan includes the security measures required by subsection (b);

''(iii)(I) the security measures in the site security plan do not materially deviate from the guidance for expedited approval facilities except where indicated in the site security plan;

''(II) any deviations from the guidance for expedited approval facilities in the site security plan meet the risk-based performance standards for the tier to which the facility is assigned; and

''(III) the owner or operator has provided an explanation of how the site security plan meets the risk-based performance standards for any material deviation;

''(iv) the owner or operator has visited, examined, documented, and verified that the expedited approval facility meets the criteria set forth in the site security plan;

''(v) the expedited approval facility has implemented all of the required performance measures outlined in the site security plan or set out planned measures that will be implemented within a reasonable time period stated in the site security plan;

''(vi) each individual responsible for implementing the site security plan has been made aware of the requirements relevant to the individual's responsibility contained in the site security plan and has demonstrated competency to carry out those requirements;

''(vii) the owner or operator has committed, or, in the case of planned measures will commit, the necessary resources to fully implement the site security plan; and

''(viii) the planned measures include an adequate procedure for addressing events beyond the control of the owner or operator in implementing any planned measures.

''(D) DEADLINE.—

''(i) IN GENERAL.—Not later than 120 days after the date described in clause (ii), the owner or operator of an expedited approval facility shall submit to the Secretary the site security plan and the certification described in subparagraph (C).

''(ii) DATE.—The date described in this clause is—

''(I) for an expedited approval facility that was assigned to tier 3 or 4 under existing CFATS regulations before the date of enactment of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014, the date that is 210 days after the date of enactment of that Act; and

''(II) for any expedited approval facility not described in subclause (I), the later of—

''(aa) the date on which the expedited approval facility is assigned to tier 3 or 4 under subsection (e)(2)(A); or

''(bb) the date that is 210 days after the date of enactment of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014.

''(iii) NOTICE.—An owner or operator of an expedited approval facility shall notify the Secretary of the intent of the owner or operator to certify the site security plan for the expedited approval facility not later than 30 days before the date on which the owner or operator submits the site security plan and certification described in subparagraph (C).

''(E) COMPLIANCE.—

''(i) IN GENERAL.—For an expedited approval facility submitting a site security plan and certification in accordance with subparagraphs (A), (B), (C), and (D)—

''(I) the expedited approval facility shall comply with all of the requirements of its site security plan; and

''(II) the Secretary—

''(aa) except as provided in subparagraph (G), may not disapprove the site security plan; and

''(bb) may audit and inspect the expedited approval facility under subsection (d) to verify compliance with its site security plan.

''(ii) NONCOMPLIANCE.—If the Secretary determines an expedited approval facility is not in compliance with the requirements of the site security plan or is otherwise in violation of this title, the Secretary may enforce compliance in accordance with section 2104.

''(F) AMENDMENTS TO SITE SECURITY PLAN.—

''(i) REQUIREMENT.—

''(I) IN GENERAL.—If the owner or operator of an expedited approval facility amends a site security plan submitted under subparagraph (A), the owner or operator shall submit the amended site security plan and a certification relating to the amended site security plan that contains the information described in subparagraph (C).

''(II) TECHNICAL AMENDMENTS.—For purposes of this clause, an amendment to a site security plan includes any technical amendment to the site security plan.

''(ii) AMENDMENT REQUIRED.—The owner or operator of an expedited approval facility shall amend the site security plan if—

''(I) there is a change in the design, construction, operation, or maintenance of the expedited approval facility that affects the site security plan;

''(II) the Secretary requires additional security measures or suspends a certification and recommends additional security measures under subparagraph (G); or

''(III) the owner or operator receives notice from the Secretary of a change in tiering under subsection (e)(3).

''(iii) DEADLINE.—An amended site security plan and certification shall be submitted under clause (i)—

''(I) in the case of a change in design, construction, operation, or maintenance of the expedited approval facility that affects the security plan, not later than 120 days after the date on which the change in design, construction, operation, or maintenance occurred;

''(II) in the case of the Secretary requiring additional security measures or suspending a certification and recommending additional security measures under subparagraph (G), not later than 120 days after the date on which the owner or operator receives notice of the requirement for additional security measures or suspension of the certification and recommendation of additional security measures; and

''(III) in the case of a change in tiering, not later than 120 days after the date on which the owner or operator receives notice under subsection (e)(3).

''(G) FACIALLY DEFICIENT SITE SECURITY PLANS.—

''(i) PROHIBITION.—Notwithstanding subparagraph (A) or (E), the Secretary may suspend the authority of a covered chemical facility to certify a site security plan if the Secretary—

''(I) determines the certified site security plan or an amended site security plan is facially deficient; and

''(II) not later than 100 days after the date on which the Secretary receives the site security plan and certification, provides the covered chemical facility with written notification that the site security plan is facially deficient, including a clear explanation of each deficiency in the site security plan.

''(ii) ADDITIONAL SECURITY MEASURES.—

''(I) IN GENERAL.—If, during or after a compliance inspection of an expedited approval facility, the Secretary determines that planned or implemented security measures in the site security plan of the facility are insufficient to meet the risk-based performance standards based on misrepresentation, omission, or an inadequate description of the site, the Secretary may—

''(aa) require additional security measures; or

''(bb) suspend the certification of the facility.

''(II) RECOMMENDATION OF ADDITIONAL SECURITY MEASURES.—If the Secretary suspends the certification of an expedited approval facility under subclause (I), the Secretary shall—

''(aa) recommend specific additional security measures that, if made part of the site security plan by the facility, would enable the Secretary to approve the site security plan; and

''(bb) provide the facility an opportunity to submit a new or modified site security plan and certification under subparagraph (A).

''(III) SUBMISSION; REVIEW.—If an expedited approval facility determines to submit a new or modified site security plan and certification as authorized under subclause (II)(bb)—

''(aa) not later than 90 days after the date on which the facility receives recommendations under subclause (II)(aa), the facility shall submit the new or modified plan and certification; and

''(bb) not later than 45 days after the date on which the Secretary receives the new or modified plan under item (aa), the Secretary shall review the plan and determine whether the plan is facially deficient.

''(IV) DETERMINATION NOT TO INCLUDE ADDITIONAL SECURITY MEASURES.—

''(aa) REVOCATION OF CERTIFICATION.—If an expedited approval facility does not agree to include in its site security plan specific additional security measures recommended by the Secretary under subclause (II)(aa), or does not submit a new or modified site security plan in accordance with subclause (III), the Secretary may revoke the certification of the facility by issuing an order under section 2104(a)(1)(B).

''(bb) EFFECT OF REVOCATION.—If the Secretary revokes the certification of an expedited approval facility under item (aa) by issuing an order under section 2104(a)(1)(B)—

''(AA) the order shall require the owner or operator of the facility to submit a site security plan or alternative security program for review by the Secretary review under subsection (c)(1); and

''(BB) the facility shall no longer be eligible to certify a site security plan under this paragraph.

''(V) FACIAL DEFICIENCY.—If the Secretary determines that a new or modified site security plan submitted by an expedited approval facility under subclause (III) is facially deficient—

''(aa) not later than 120 days after the date of the determination, the owner or operator of the facility shall submit a site security plan or alternative security program for review by the Secretary under subsection (c)(1); and

''(bb) the facility shall no longer be eligible to certify a site security plan under this paragraph.

''(H) TEMPLATES.—

''(i) IN GENERAL.—The Secretary may develop prescriptive site security plan templates with specific security measures to meet the risk-based performance standards under subsection (a)(2)(C) for adoption and certification by a covered chemical facility assigned to tier 3 or 4 in lieu of developing and certifying its own plan.

''(ii) APPLICABILITY OF OTHER LAWS TO DEVELOPMENT AND ISSUANCE OF INITIAL SITE SECURITY PLAN TEMPLATES AND RELATED GUIDANCE.—During the period before the Secretary has met the deadline under subparagraph (B)(i), in developing and issuing, or amending, the site security plan templates under this subparagraph, in issuing guidance for implementation of the templates, and in collecting information from expedited approval facilities, the Secretary shall not be subject to—

''(I) section 553 of title 5, United States Code;

''(II) subchapter I of chapter 35 of title 44, United States Code; or

''(III) section 2107(b) of this title.

''(iii) RULE OF CONSTRUCTION.—Nothing in this subparagraph shall be construed to prevent a covered chemical facility from developing and certifying its own security plan in accordance with subparagraph (A).

''(I) EVALUATION.—

''(i) IN GENERAL.—Not later than 18 months after the date of enactment of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014, the Secretary shall take any appropriate action necessary for a full evaluation of the expedited approval program authorized under this paragraph, including conducting an appropriate number of inspections, as authorized under subsection (d), of expedited approval facilities.

''(ii) REPORT.—Not later than 18 months after the date of enactment of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014, the Secretary shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Homeland Security and the Committee on Energy and Commerce of the House of Representatives a report that contains—

''(I)(aa) the number of eligible facilities using the expedited approval program authorized under this paragraph; and

''(bb) the number of facilities that are eligible for the expedited approval program but are using the standard process for developing and submitting a site security plan under subsection (a)(2)(D);

''(II) any costs and efficiencies associated with the expedited approval program;

''(III) the impact of the expedited approval program on the backlog for site security plan approval and authorization inspections;

''(IV) an assessment of the ability of expedited approval facilities to submit facially sufficient site security plans;

''(V) an assessment of any impact of the expedited approval program on the security of chemical facilities; and

''(VI) a recommendation by the Secretary on the frequency of compliance inspections that may be required for expedited approval facilities.

''(d) COMPLIANCE.—

''(1) AUDITS AND INSPECTIONS.—

''(A) DEFINITIONS.—In this paragraph—

''(i) the term 'nondepartmental'—

''(I) with respect to personnel, means personnel that is not employed by the Department; and

''(II) with respect to an entity, means an entity that is not a component or other authority of the Department; and

''(ii) the term 'nongovernmental'—

''(I) with respect to personnel, means personnel that is not employed by the Federal Government; and

''(II) with respect to an entity, means an entity that is not an agency, department, or other authority of the Federal Government.

''(B) AUTHORITY TO CONDUCT AUDITS AND INSPECTIONS.—The Secretary shall conduct audits or inspections under this title using—

''(i) employees of the Department;

''(ii) nondepartmental or nongovernmental personnel approved by the Secretary; or

''(iii) a combination of individuals described in clauses (i) and (ii).

''(C) SUPPORT PERSONNEL.—The Secretary may use nongovernmental personnel to provide administrative and logistical services in support of audits and inspections under this title.

''(D) REPORTING STRUCTURE.—

''(i) NONDEPARTMENTAL AND NONGOVERNMENTAL AUDITS AND INSPECTIONS.—Any audit or inspection conducted by an individual employed by a nondepartmental or nongovernmental entity shall be assigned in coordination with a regional supervisor with responsibility for supervising inspectors within the Infrastructure Security Compliance Division of the Department for the region in which the audit or inspection is to be conducted.

''(ii) REQUIREMENT TO REPORT.—While an individual employed by a nondepartmental or nongovernmental entity is in the field conducting an audit or inspection under this subsection, the individual shall report to the regional supervisor with responsibility for supervising inspectors within the Infrastructure Security Compliance Division of the Department for the region in which the individual is operating.

''(iii) APPROVAL.—The authority to approve a site security plan under subsection (c) or determine if a covered chemical facility is in compliance with an approved site security plan shall be exercised solely by the Secretary or a designee of the Secretary within the Department.

''(E) STANDARDS FOR AUDITORS AND INSPECTORS.—The Secretary shall prescribe standards for the training and retraining of each individual used by the Department as an auditor or inspector, including each individual employed by the Department and all nondepartmental or nongovernmental personnel, including—

''(i) minimum training requirements for new auditors and inspectors;

''(ii) retraining requirements;

''(iii) minimum education and experience levels;

''(iv) the submission of information as required by the Secretary to enable determination of whether the auditor or inspector has a conflict of interest;

''(v) the proper certification or certifications necessary to handle chemical-terrorism vulnerability information (as defined in section 27.105 of title 6, Code of Federal Regulations, or any successor thereto);

''(vi) the reporting of any issue of non-compliance with this section to the Secretary within 24 hours; and

''(vii) any additional qualifications for fitness of duty as the Secretary may require.

''(F) CONDITIONS FOR NONGOVERNMENTAL AUDITORS AND INSPECTORS.—If the Secretary arranges for an audit or inspection under subparagraph (B) to be carried out by a nongovernmental entity, the Secretary shall—

''(i) prescribe standards for the qualification of the individuals who carry out such audits and inspections that are commensurate with the standards for similar Government auditors or inspectors; and

''(ii) ensure that any duties carried out by a nongovernmental entity are not inherently governmental functions.

''(2) PERSONNEL SURETY.—

''(A) PERSONNEL SURETY PROGRAM.—For purposes of this title, the Secretary shall establish and carry out a Personnel Surety Program that—

''(i) does not require an owner or operator of a covered chemical facility that voluntarily participates in the program to submit information about an individual more than 1 time;

''(ii) provides a participating owner or operator of a covered chemical facility with relevant information about an individual based on vetting the individual against the terrorist screening database, to the extent that such feedback is necessary for the facility to be in compliance with regulations promulgated under this title; and

''(iii) provides redress to an individual—

''(I) whose information was vetted against the terrorist screening database under the program; and

''(II) who believes that the personally identifiable information submitted to the Department for such vetting by a covered chemical facility, or its designated representative, was inaccurate.

''(B) PERSONNEL SURETY PROGRAM IMPLEMENTATION.—To the extent that a risk-based performance standard established under subsection (a) requires identifying individuals with ties to terrorism—

''(i) a covered chemical facility—

''(I) may satisfy its obligation under the standard by using any Federal screening program that periodically vets individuals against the terrorist screening database, or any successor program, including the Personnel Surety Program established under subparagraph (A); and

''(II) shall—

''(aa) accept a credential from a Federal screening program described in subclause (I) if an individual who is required to be screened presents such a credential; and

''(bb) address in its site security plan or alternative security program the measures it will take to verify that a credential or documentation from a Federal screening program described in subclause (I) is current;

''(ii) visual inspection shall be sufficient to meet the requirement under clause (i)(II)(bb), but the facility should consider other means of verification, consistent with the facility's assessment of the threat posed by acceptance of such credentials; and

''(iii) the Secretary may not require a covered chemical facility to submit any information about an individual unless the individual—

''(I) is to be vetted under the Personnel Surety Program; or

''(II) has been identified as presenting a terrorism security risk.

''(C) RIGHTS UNAFFECTED.—Nothing in this section shall supersede the ability—

''(i) of a facility to maintain its own policies regarding the access of individuals to restricted areas or critical assets; or

''(ii) of an employing facility and a bargaining agent, where applicable, to negotiate as to how the results of a background check may be used by the facility with respect to employment status.

''(3) AVAILABILITY OF INFORMATION.—The Secretary shall share with the owner or operator of a covered chemical facility any information that the owner or operator needs to comply with this section.

''(e) RESPONSIBILITIES OF THE SECRETARY.—

''(1) IDENTIFICATION OF CHEMICAL FACILITIES OF INTEREST.—In carrying out this title, the Secretary shall consult with the heads of other Federal agencies, States and political subdivisions thereof, relevant business associations, and public and private labor organizations to identify all chemical facilities of interest.

''(2) RISK ASSESSMENT.—

''(A) IN GENERAL.—For purposes of this title, the Secretary shall develop a security risk assessment approach and corresponding tiering methodology for covered chemical facilities that incorporates the relevant elements of risk, including threat, vulnerability, and consequence.

''(B) CRITERIA FOR DETERMINING SECURITY RISK.—The criteria for determining the security risk of terrorism associated with a covered chemical facility shall take into account—

''(i) relevant threat information;

''(ii) potential severe economic consequences and the potential loss of human life in the event of the facility being subject to attack, compromise, infiltration, or exploitation by terrorists; and

''(iii) vulnerability of the facility to attack, compromise, infiltration, or exploitation by terrorists.

''(3) CHANGES IN TIERING.—

''(A) MAINTENANCE OF RECORDS.—The Secretary shall document the basis for each instance in which—

''(i) tiering for a covered chemical facility is changed; or

''(ii) a covered chemical facility is determined to no longer be subject to the requirements under this title.

''(B) REQUIRED INFORMATION.—The records maintained under subparagraph (A) shall include information on whether and how the Secretary confirmed the information that was the basis for the change or determination described in subparagraph (A).

''(4) SEMIANNUAL PERFORMANCE REPORTING.—Not later than 6 months after the date of enactment of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014, and not less frequently than once every 6 months thereafter, the Secretary shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Homeland Security and the Committee on Energy and Commerce of the House of Representatives a report that includes, for the period covered by the report—

''(A) the number of covered chemical facilities in the United States;

''(B) information—

''(i) describing—

''(I) the number of instances in which the Secretary—

''(aa) placed a covered chemical facility in a lower risk tier; or

''(bb) determined that a facility that had previously met the criteria for a covered chemical facility under section 2101(3) no longer met the criteria; and

''(II) the basis, in summary form, for each action or determination under subclause (I); and

''(ii) that is provided in a sufficiently anonymized form to ensure that the information does not identify any specific facility or company as the source of the information when viewed alone or in combination with other public information;

''(C) the average number of days spent reviewing site security or an alternative security program for a covered chemical facility prior to approval;

''(D) the number of covered chemical facilities inspected;

''(E) the average number of covered chemical facilities inspected per inspector; and

''(F) any other information that the Secretary determines will be helpful to Congress in evaluating the performance of the Chemical Facility Anti-Terrorism Standards Program.

''SEC. 2103. PROTECTION AND SHARING OF INFORMATION.

''(a) IN GENERAL.—Notwithstanding any other provision of law, information developed under this title, including vulnerability assessments, site security plans, and other security related information, records, and documents shall be given protections from public disclosure consistent with the protection of similar information under section 70103(d) of title 46, United States Code.

''(b) SHARING OF INFORMATION WITH STATES AND LOCAL GOVERNMENTS.—Nothing in this section shall be construed to prohibit the sharing of information developed under this title, as the Secretary determines appropriate, with State and local government officials possessing a need to know and the necessary security clearances, including law enforcement officials and first responders, for the purpose of carrying out this title, provided that such information may not be disclosed pursuant to any State or local law.

''(c) SHARING OF INFORMATION WITH FIRST RESPONDERS.—

''(1) REQUIREMENT.—The Secretary shall provide to State, local, and regional fusion centers (as that term is defined in section 210A(j)(1)) and State and local government officials, as the Secretary determines appropriate, such information as is necessary to help ensure that first responders are properly prepared and provided with the situational awareness needed to respond to security incidents at covered chemical facilities.

''(2) DISSEMINATION.—The Secretary shall disseminate information under paragraph (1) through a medium or system determined by the Secretary to be appropriate to ensure the secure and expeditious dissemination of such information to necessary selected individuals.

''(d) ENFORCEMENT PROCEEDINGS.—In any proceeding to enforce this section, vulnerability assessments, site security plans, and other information submitted to or obtained by the Secretary under this title, and related vulnerability or security information, shall be treated as if the information were classified information.

''(e) AVAILABILITY OF INFORMATION.—Notwithstanding any other provision of law (including section 552(b)(3) of title 5, United States Code), section 552 of title 5, United States Code (commonly known as the 'Freedom of Information Act') shall not apply to information protected from public disclosure pursuant to subsection (a) of this section.

''(f) SHARING OF INFORMATION WITH MEMBERS OF CONGRESS.—Nothing in this section shall prohibit the Secretary from disclosing information developed under this title to a Member of Congress in response to a request by a Member of Congress.

''SEC. 2104. CIVIL ENFORCEMENT.

''(a) NOTICE OF NONCOMPLIANCE.—

''(1) NOTICE.—If the Secretary determines that a covered chemical facility is not in compliance with this title, the Secretary shall—

''(A) provide the owner or operator of the facility with—

''(i) not later than 14 days after date on which the Secretary makes the determination, a written notification of noncompliance that includes a clear explanation of any deficiency in the security vulnerability assessment or site security plan; and

''(ii) an opportunity for consultation with the Secretary or the Secretary's designee; and

''(B) issue to the owner or operator of the facility an order to comply with this title by a date specified by the Secretary in the order, which date shall be not later than 180 days after the date on which the Secretary issues the order.

''(2) CONTINUED NONCOMPLIANCE.—If an owner or operator remains noncompliant after the procedures outlined in paragraph (1) have been executed, or demonstrates repeated violations of this title, the Secretary may enter an order in accordance with this section assessing a civil penalty, an order to cease operations, or both.

''(b) CIVIL PENALTIES.—

''(1) VIOLATIONS OF ORDERS.—Any person who violates an order issued under this title shall be liable for a civil penalty under section 70119(a) of title 46, United States Code.

''(2) NON-REPORTING CHEMICAL FACILITIES OF INTEREST.—Any owner of a chemical facility of interest who fails to comply with, or knowingly submits false information under, this title or the CFATS regulations shall be liable for a civil penalty under section 70119(a) of title 46, United States Code.

''(c) EMERGENCY ORDERS.—

''(1) IN GENERAL.—Notwithstanding subsection (a) or any site security plan or alternative security program approved under this title, if the Secretary determines that there is an imminent threat of death, serious illness, or severe personal injury, due to a violation of this title or the risk of a terrorist incident that may affect a chemical facility of interest, the Secretary—

''(A) shall consult with the facility, if practicable, on steps to mitigate the risk; and

''(B) may order the facility, without notice or opportunity for a hearing, effective immediately or as soon as practicable, to—

''(i) implement appropriate emergency security measures; or

''(ii) cease or reduce some or all operations, in accordance with safe shutdown procedures, if the Secretary determines that such a cessation or reduction of operations is the most appropriate means to address the risk.

''(2) LIMITATION ON DELEGATION.—The Secretary may not delegate the authority under paragraph (1) to any official other than the Under Secretary responsible for overseeing critical infrastructure protection, cybersecurity, and other related programs of the Department appointed under section 103(a)(1)(H).

''(3) LIMITATION ON AUTHORITY.—The Secretary may exercise the authority under this subsection only to the extent necessary to abate the imminent threat determination under paragraph (1).

''(4) DUE PROCESS FOR FACILITY OWNER OR OPERATOR.—

''(A) WRITTEN ORDERS.—An order issued by the Secretary under paragraph (1) shall be in the form of a written emergency order that—

''(i) describes the violation or risk that creates the imminent threat;

''(ii) states the security measures or order issued or imposed; and

''(iii) describes the standards and procedures for obtaining relief from the order.

''(B) OPPORTUNITY FOR REVIEW.—After issuing an order under paragraph (1) with respect to a chemical facility of interest, the Secretary shall provide for review of the order under section 554 of title 5 if a petition for review is filed not later than 20 days after the date on which the Secretary issues the order.

''(C) EXPIRATION OF EFFECTIVENESS OF ORDER.—If a petition for review of an order is filed under subparagraph (B) and the review under that paragraph is not completed by the last day of the 30-day period beginning on the date on which the petition is filed, the order shall vacate automatically at the end of that period unless the Secretary determines, in writing, that the imminent threat providing a basis for the order continues to exist.

''(d) RIGHT OF ACTION.—Nothing in this title confers upon any person except the Secretary or his or her designee a right of action against an owner or operator of a covered chemical facility to enforce any provision of this title.

''SEC. 2105. WHISTLEBLOWER PROTECTIONS.

''(a) PROCEDURE FOR REPORTING PROBLEMS.—

''(1) ESTABLISHMENT OF A REPORTING PROCEDURE.—Not later than 180 days after the date of enactment of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014, the Secretary shall establish, and provide information to the public regarding, a procedure under which any employee or contractor of a chemical facility of interest may submit a report to the Secretary regarding a violation of a requirement under this title.

''(2) CONFIDENTIALITY.—The Secretary shall keep confidential the identity of an individual who submits a report under paragraph (1) and any such report shall be treated as a record containing protected information to the extent that the report does not consist of publicly available information.

''(3) ACKNOWLEDGMENT OF RECEIPT.—If a report submitted under paragraph (1) identifies the individual making the report, the Secretary shall promptly respond to the individual directly and shall promptly acknowledge receipt of the report.

''(4) STEPS TO ADDRESS PROBLEMS.—The Secretary—

''(A) shall review and consider the information provided in any report submitted under paragraph (1); and

''(B) may take action under section 2104 of this title if necessary to address any substantiated violation of a requirement under this title identified in the report.

''(5) DUE PROCESS FOR FACILITY OWNER OR OPERATOR.—

''(A) IN GENERAL.—If, upon the review described in paragraph (4), the Secretary determines that a violation of a provision of this title, or a regulation prescribed under this title, has occurred, the Secretary may—

''(i) institute a civil enforcement under section 2104(a) of this title; or

''(ii) if the Secretary makes the determination under section 2104(c), issue an emergency order.

''(B) WRITTEN ORDERS.—The action of the Secretary under paragraph (4) shall be in a written form that—

''(i) describes the violation;

''(ii) states the authority under which the Secretary is proceeding; and

''(iii) describes the standards and procedures for obtaining relief from the order.

''(C) OPPORTUNITY FOR REVIEW.—After taking action under paragraph (4), the Secretary shall provide for review of the action if a petition for review is filed within 20 calendar days of the date of issuance of the order for the action.

''(D) EXPIRATION OF EFFECTIVENESS OF ORDER.—If a petition for review of an action is filed under subparagraph (C) and the review under that subparagraph is not completed by the end of the 30-day period beginning on the date the petition is filed, the action shall cease to be effective at the end of such period unless the Secretary determines, in writing, that the violation providing a basis for the action continues to exist.

''(6) RETALIATION PROHIBITED.—

''(A) IN GENERAL.—An owner or operator of a chemical facility of interest or agent thereof may not discharge an employee or otherwise discriminate against an employee with respect to the compensation provided to, or terms, conditions, or privileges of the employment of, the employee because the employee (or an individual acting pursuant to a request of the employee) submitted a report under paragraph (1).

''(B) EXCEPTION.—An employee shall not be entitled to the protections under this section if the employee—

''(i) knowingly and willfully makes any false, fictitious, or fraudulent statement or representation; or

''(ii) uses any false writing or document knowing the writing or document contains any false, fictitious, or fraudulent statement or entry.

''(b) PROTECTED DISCLOSURES.—Nothing in this title shall be construed to limit the right of an individual to make any disclosure—

''(1) protected or authorized under section 2302(b)(8) or 7211 of title 5, United States Code;

''(2) protected under any other Federal or State law that shields the disclosing individual against retaliation or discrimination for having made the disclosure in the public interest; or

''(3) to the Special Counsel of an agency, the inspector general of an agency, or any other employee designated by the head of an agency to receive disclosures similar to the disclosures described in paragraphs (1) and (2).

''(c) PUBLICATION OF RIGHTS.—The Secretary, in partnership with industry associations and labor organizations, shall make publicly available both physically and online the rights that an individual who discloses information, including security-sensitive information, regarding problems, deficiencies, or vulnerabilities at a covered chemical facility would have under Federal whistleblower protection laws or this title.

''(d) PROTECTED INFORMATION.—All information contained in a report made under this subsection (a) shall be protected in accordance with section 2103.

''SEC. 2106. RELATIONSHIP TO OTHER LAWS.

''(a) OTHER FEDERAL LAWS.—Nothing in this title shall be construed to supersede, amend, alter, or affect any Federal law that—

''(1) regulates (including by requiring information to be submitted or made available) the manufacture, distribution in commerce, use, handling, sale, other treatment, or disposal of chemical substances or mixtures; or

''(2) authorizes or requires the disclosure of any record or information obtained from a chemical facility under any law other than this title.

''(b) STATES AND POLITICAL SUBDIVISIONS.—This title shall not preclude or deny any right of any State or political subdivision thereof to adopt or enforce any regulation, requirement, or standard of performance with respect to chemical facility security that is more stringent than a regulation, requirement, or standard of performance issued under this section, or otherwise impair any right or jurisdiction of any State with respect to chemical facilities within that State, unless there is an actual conflict between this section and the law of that State.

''SEC. 2107. CFATS REGULATIONS.

''(a) GENERAL AUTHORITY.—The Secretary may, in accordance with chapter 5 of title 5, United States Code, promulgate regulations or amend existing CFATS regulations to implement the provisions under this title.

''(b) EXISTING CFATS REGULATIONS.—

''(1) IN GENERAL.—Notwithstanding section 4(b) of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014, each existing CFATS regulation shall remain in effect unless the Secretary amends, consolidates, or repeals the regulation.

''(2) REPEAL.—Not later than 30 days after the date of enactment of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014, the Secretary shall repeal any existing CFATS regulation that the Secretary determines is duplicative of, or conflicts with, this title.

''(c) AUTHORITY.—The Secretary shall exclusively rely upon authority provided under this title in—

''(1) determining compliance with this title;

''(2) identifying chemicals of interest; and

''(3) determining security risk associated with a chemical facility.

''SEC. 2108. SMALL COVERED CHEMICAL FACILITIES.

''(a) DEFINITION.—In this section, the term 'small covered chemical facility' means a covered chemical facility that—

''(1) has fewer than 100 employees employed at the covered chemical facility; and

''(2) is owned and operated by a small business concern (as defined in section 3 of the Small Business Act (15 U.S.C. 632)).

''(b) ASSISTANCE TO FACILITIES.—The Secretary may provide guidance and, as appropriate, tools, methodologies, or computer software, to assist small covered chemical facilities in developing the physical security, cybersecurity, recordkeeping, and reporting procedures required under this title.

''(c) REPORT.—The Secretary shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Homeland Security and the Committee on Energy and Commerce of the House of Representatives a report on best practices that may assist small covered chemical facilities in development of physical security best practices.

''SEC. 2109. OUTREACH TO CHEMICAL FACILITIES OF INTEREST.

''Not later than 90 days after the date of enactment of the Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014, the Secretary shall establish an outreach implementation plan, in coordination with the heads of other appropriate Federal and State agencies, relevant business associations, and public and private labor organizations, to—

''(1) identify chemical facilities of interest; and

''(2) make available compliance assistance materials and information on education and training.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1(b) of the Homeland Security Act of 2002 (Public Law 107–196; 116 Stat. 2135) is amended by adding at the end the following:

''TITLE XXI—CHEMICAL FACILITY ANTI–TERRORISM STANDARDS

''Sec. 2101. Definitions.
''Sec. 2102. Chemical Facility Anti-Terrorism Standards Program.
''Sec. 2103. Protection and sharing of information.–
''Sec. 2104. Civil enforcement.
''Sec. 2105. Whistleblower protections.
''Sec. 2106. Relationship to other laws.
''Sec. 2107. CFATS regulations.
''Sec. 2108. Small covered chemical facilities.
''Sec. 2109. Outreach to chemical facilities of interest.''.

SEC. 3. ASSESSMENT; REPORTS.

(a) DEFINITIONS.—In this section—

(1) the term ''Chemical Facility Anti-Terrorism Standards Program'' means—

(A) the Chemical Facility Anti-Terrorism Standards program initially authorized under section 550 of the Department of Homeland Security Appropriations Act, 2007 (Public Law 109–295; 6 U.S.C. 121 note); and

(B) the Chemical Facility Anti-Terrorism Standards Program subsequently authorized under section 2102(a) of the Homeland Security Act of 2002, as added by section 2;

(2) the term ''Department'' means the Department of Homeland Security; and

(3) the term ''Secretary'' means the Secretary of Homeland Security.

(b) THIRD-PARTY ASSESSMENT.—Using amounts appropriated to the Department before the date of enactment of this Act, the Secretary shall commission a third-party study to assess vulnerabilities of covered chemical facilities, as defined in section 2101 of the Homeland Security Act of 2002 (as added by section 2), to acts of terrorism.

(c) REPORTS.—

(1) REPORT TO CONGRESS.—Not later than 18 months after the date of enactment of this Act, the Secretary shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Homeland Security and the Committee on Energy and Commerce of the House of Representatives a report on the Chemical Facility Anti-Terrorism Standards Program that includes—

(A) a certification by the Secretary that the Secretary has made significant progress in the identification of all chemical facilities of interest under section 2102(e)(1) of the Homeland Security Act of 2002, as added by section 2, including—

(i) a description of the steps taken to achieve that progress and the metrics used to measure the progress;

(ii) information on whether facilities that submitted Top-Screens as a result of the identification of chemical facilities of interest were tiered and in what tiers those facilities were placed; and

(iii) an action plan to better identify chemical facilities of interest and bring those facilities into compliance with title XXI of the Homeland Security Act of 2002, as added by section 2;

(B) a certification by the Secretary that the Secretary has developed a risk assessment approach and corresponding tiering methodology under section 2102(e)(2) of the Homeland Security Act of 2002, as added by section 2;

(C) an assessment by the Secretary of the implementation by the Department of the recommendations made by the Homeland Security Studies and Analysis Institute as outlined in the Institute's Tiering Methodology Peer Review (Publication Number: RP12–22–02); and

(D) a description of best practices that may assist small covered chemical facilities, as defined in section 2108(a) of the Homeland Security Act of 2002, as added by section 2, in the development of physical security best practices.

(2) ANNUAL GAO REPORT.—

(A) IN GENERAL.—During the 3-year period beginning on the date of enactment of this Act,

the Comptroller General of the United States shall submit to Congress an annual report that assesses the implementation of this Act and the amendments made by this Act.

(B) INITIAL REPORT.—Not later than 180 days after the date of enactment of this Act, the Comptroller General shall submit to Congress the first report under subparagraph (A).

(C) SECOND ANNUAL REPORT.—Not later than 1 year after the date of the initial report required under subparagraph (B), the Comptroller General shall submit to Congress the second report under subparagraph (A), which shall include an assessment of the whistleblower protections provided under section 2105 of the Homeland Security Act of 2002, as added by section 2, and—

(i) describes the number and type of problems, deficiencies, and vulnerabilities with respect to which reports have been submitted under such section 2105;

(ii) evaluates the efforts of the Secretary in addressing the problems, deficiencies, and vulnerabilities described in subsection (a)(1) of such section 2105; and

(iii) evaluates the efforts of the Secretary to inform individuals of their rights, as required under subsection (c) of such section 2105.

(D) THIRD ANNUAL REPORT.—Not later than 1 year after the date on which the Comptroller General submits the second report required under subparagraph (A), the Comptroller General shall submit to Congress the third report under subparagraph (A), which shall include an assessment of—

(i) the expedited approval program authorized under section 2102(c)(4) of the Homeland Security Act of 2002, as added by section 2; and

(ii) the report on the expedited approval program submitted by the Secretary under subparagraph (I)(ii) of such section 2102(c)(4).

SEC. 4. EFFECTIVE DATE; CONFORMING REPEAL.

(a) EFFECTIVE DATE.—This Act, and the amendments made by this Act, shall take effect on the date that is 30 days after the date of enactment of this Act.

(b) CONFORMING REPEAL.—Section 550 of the Department of Homeland Security Appropriations Act, 2007 (Public Law 109–295; 120 Stat. 1388), is repealed as of the effective date of this Act.

SEC. 5. TERMINATION.

The authority provided under title XXI of the Homeland Security Act of 2002, as added by section 2(a), shall terminate on the date that is 4 years after the effective date of this Act.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Pennsylvania (Mr. MEEHAN) and the gentleman from Mississippi (Mr. THOMPSON) each will control 20 minutes.

The Chair recognizes the gentleman from Pennsylvania.

GENERAL LEAVE

Mr. MEEHAN. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days within which to revise and extend their remarks and insert any extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

Mr. MEEHAN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 4007, which is the Protecting and Securing Chemical Facilities From Terrorist Attacks Act of 2014. This bipartisan legislation went through regular order, and it passed the House in July by voice vote.

It now returns to us from the Senate where, yesterday, it passed by unanimous consent. H.R. 4007 is enthusiastically supported by the industry stakeholders it most directly impacts, as well as the Department of Homeland Security which is responsible for its implementation.

While it was in the Senate, the Homeland Security and Governmental Affairs Committee of the Senate made improvements to the House-passed version of the bill that take into account the interests of the labor unions who staff many facilities while, at the same time, strengthening the program overall and making it more workable and more effective for all parties involved. These changes were thoroughly vetted with industry, labor, and the Department itself, and they are widely endorsed.

As a result, Mr. Speaker, H.R. 4007 represents the culmination of a productive collaboration between my colleagues on the other side of the aisle and those in my conference, the House and the Senate, industry, labor, and the Federal Government.

Over the course of the past year, through multiple hearings and countless meetings, all of us have worked in partnership to take an honest look at the CFATS program to look at its strengths and shortcomings and to develop a straightforward, practically-minded piece of legislation to improve the program overall.

Mr. Speaker, prior to the attacks of September 11, Congress had established an array of laws aimed at preventing environmental disasters at facilities that produce or store potentially dangerous chemicals.

While those laws remain, Congress and the Department of Homeland Security developed CFATS specifically to prevent an intentional attack on chemical facilities. The CFATS program requires DHS to develop a set of vulnerability assessment standards for chemical plants and to implement a corresponding set of regulations to protect the highest-risk facilities from a physical attack.

Despite what we would all agree are the best intentions, it is no secret that CFATS struggled in its earlier years from implementation problems to management flaws to insufficient feedback from the facilities. These were highlighted in the aftermath of the devastating explosion at a chemical facility in West, Texas. CFATS had a rocky start.

To make matters worse, for the past 4 years, CFATS has relied on appropriations for its existence with no authorization from Congress and no official guidance. This bill is a major breakthrough; CFATS will be reauthorized for the very first time.

With that authorization, both Chambers of Congress are finally able to provide smart, binding guidelines to improve the operation of the program, measure progress, and enhance security.

Mr. Speaker, I am proud of this legislation. I am particularly grateful for the bipartisan support. I know that there have been moments of disagreement, and there may continue to be points in which there are some modicum of issues of disagreement, but the overall collective bipartisan work on this issue, taking into account the efforts of management, labor, government, and industry, has resulted in what I believe to be a very substantial and important piece of legislation.

I urge my colleagues on both sides of the aisle to send H.R. 4007 to the President's desk so we can ensure that proper measures are in place to secure the Nation's vast network of chemical facilities and to keep our facilities safe from harm.

With that, Mr. Speaker, I reserve the balance of my time.

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise in very reluctant support of the Senate amendment to H.R. 4007 and yield myself such time as I may consume.

Mr. Speaker, H.R. 4007 authorizes the Chemical Facility Anti-Terrorism Standards, or CFATS, program through 2017 and came through regular order.

As a lead author of the original legislation to establish DHS' chemical security program, I have consistently supported efforts for this committee to advance freestanding authorizing legislation to ensure that the program, which was stood up pursuant to a paragraph in the 2007 appropriations bill, was fully authorized.

Until today, the closest Congress has come to replacing that appropriations language with a more detailed and comprehensive bill was in 2010, when the House unanimously approved legislation I authored with then-Energy and Commerce Chairman HENRY WAXMAN.

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H.R. 4007 bears little resemblance to that measure. However, there are a few provisions that are in the spirit of the prior bill, such as worker participation in the development of security plans and the provision of basic whistleblower protections to workers who risk their jobs to come forward to report security issues.

I appreciate the contributions made to the legislation by the chairman of the Senate Homeland Security Committee, particularly with respect to whistleblower rights and the personnel surety program, two areas championed by subcommittee Ranking Member CLARKE and committee Democrats.

I am pleased that Democratic efforts to prevent regulatory overreach by DHS with respect to personnel surety ultimately prevailed so that under this bill facilities would have a range of options for how to ensure that individuals accessing their facilities are vetted.

The bill also grants DHS new authorities to identify and bring into compliance facilities that willfully ignore this Federal regulatory program,

putting their workers and surrounding communities at risk. This so-called outlier provision is in direct response to Chemical Safety Board findings regarding the deadly fire and damaging explosions at the West Fertilizer Company in Texas in April 2013. The board determined that they were preventable and that it was due in part to the ''inability of Federal, State, and local regulatory agencies to identify a serious hazard and correct it.''

Though I support a multiyear authorization for CFATS and there are a number of provisions in the bill that I fully support, there is one in the bill, as considered today, that could very well undermine the effectiveness of the entire program. I am, of course, speaking of the language authored by the ranking member of the Senate Homeland Security Committee that directs DHS to establish a so-called expedited approval program, or, as I have come to see it, a self-certification program.

Yes, you heard me right. Under this bill, some facilities would be able to self-certify that they are in compliance with the risk-based performance standards under the program. The population of facilities that would be eligible for this scheme represents about 70 percent of all facilities subject to this regulatory program.

The inclusion of this provision which requires DHS within 180 days to issue guidance to facilities on how to access self-certification has not gone through the rigor of intensive and balanced bicameral legislative debate or discussions. It lacks a legislative history. Allowing certain CFATS-covered facilities to independently certify that the security plans they developed meet statutory requirements is an inherently risky approach that leaves DHS with few options.

Given the resource challenges and chronic backlog challenges in the CFATS program, I have trouble believing that self-certified facilities would receive timely inspections where misrepresentations, omissions, and inadequacies with the plan could be identified. Defenders of this provision have argued that my concerns about turning back the clock on security are misplaced. I certainly hope so.

If this measure is enacted into law, as I expect will occur, we will know within a very short period of time if the CFATS office can effectively design and launch a new program within its program that is consistent with risk-based and performance-based standards.

H.R. 4007 certainly has the potential to be an oversight gold mine, giving the Committee on Homeland Security plenty to dig into during the next Congress. Despite my deep concerns with the self-certification program, I will be voting in favor of H.R. 4007. I will be casting an ''aye'' vote to get the CFATS program off the erratic appropriations cycle and give some predictability to the facilities that are regulated under the program and the men and women that look to DHS to partner effectively with the facilities to help keep them secure.

Mr. Speaker, as I mentioned before, I plan to vote in favor of H.R. 4007, but will do so with deep reservations. By including the self-certification program, I am troubled by the message that this measure may send to the American public about how serious we are about ensuring that facilities comply with the CFATS security program. If a company misrepresents its size in a self-certification to the Small Business Administration to improperly access small business set asides, truly eligible small businesses could be harmed.

If a company misrepresents its chemical holdings and how it is protecting them against sabotage in a self-certification to the Department of Homeland Security to secure CFATS compliance certification, the results could be dangerous, even deadly. I certainly hope that DHS runs all the traps to reduce the likelihood that the program will be exploited.

I plan to vote for this bill to put the CFATS program on a more stable and secure footing, to ensure that chemical workers have whistleblower rights, and to stop DHS from putting in place onerous and unnecessarily burdensome personnel surety vetting requirements. Again, Mr. Speaker, I plan to vote for this bill even with my reservations. It is a good start, and I compliment the chairman of the subcommittee for his work on it. It has been a labor of love. I wish we could have done more, but in the interest of getting us moving, I will support this bill.

I yield back the balance of my time.

Mr. MEEHAN. Mr. Speaker, I yield myself such time as I may consume.

I want to express my deep appreciation to my colleagues on the other side of the aisle, the gentleman from Mississippi (Mr. THOMPSON) and the gentlewoman from New York, whom I had the good privilege to serve with on the subcommittee which originally authored this important legislation.

I appreciate the leadership that the ranking member had initiated in this area prior to my tenure on the committee. It was during the bipartisan effort to look at this when both sides of our committee realized that we would not write the perfect bill, but it was critically important that collectively we could get to a very good bill which would do the most important thing, which is to authorize the capacity for DHS to have this meaningful role in this very, very important area.

I do appreciate the issue with respect to self-certification. We recognized as we were dealing with this issue, as well, that one of the real problems in the beginning was the heightened expectations that were created, particularly with those smaller facilities, about responsiveness from DHS. And so responsible entities would go through the work and the steps of creating site security plans, awaiting and awaiting and awaiting DHS to get there to help approve the work that they were doing. By creating that unrealistic expectation, we also created not just the appearance but the reality of looking like an underperforming Department of Homeland Security in this critical area.

I think that the work that has been done has been focused on trying to get this right. This will require that any self-certification be done with templates that are being put together by Homeland Security, and there will be strict deadlines for conformance, and the failure to conform will put them right back into oversight. But I respect and genuinely appreciate the points made by the gentleman from Mississippi (Mr. THOMPSON).

This is significant because passage of this bill will allow us to know where these chemicals are, and that, in and of itself, is significant. To be a firefighter and to not know what might be in the building that you are responding to is inexcusable. That was the circumstance in which those brave firefighters found themselves in West, Texas. This begins to create the kinds of protections to avoid that kind of uncertainty. We owe it to our brave firefighters and others on the front lines.

Most significantly, this has been a program in which there have been a number of responsible companies that have taken it upon themselves to ensure that they are doing the right thing in terms of identifying the chemicals they have and securing them appropriately to protect against any kind of misapplication.

Without this kind of legislation, what it does is rewards the outliers who are not taking those responsible steps. This will give DHS the authority to ensure that there is oversight over the entirety of the chemical stock. It is important, it is timely, and it will allow us to have appropriate oversight over DHS as well, who I have confidence can step up to the job.

So in light of all of those points, I urge all Members to join me in supporting this bipartisan bill, H.R. 4007.

I yield back the balance of my time.

Mr. GENE GREEN of Texas. Mr. Speaker, I rise in support of the Senate amendments to H.R. 4007, the Protecting and Securing Chemical Facilities from Terrorist Attacks Act.

I am an original co-sponsor of this important legislation which will finally authorize the CFATS program in federal code and not through the appropriations process.

Last October, during the government shutdown, the American people saw that without authorization of the CFATS program, there were no legally binding regulations in place to protect our nation's chemical facilities from criminal and terrorist attacks once appropriations expired.

I have the honor of representing north and east Harris County and the Houston Ship Channel, at the heart of our nation's petrochemical industry. The expiration of the CFATS program puts the safety my constituents who work in and live in the communities that surround these facilities in danger and it

is obligation, as the people's elected representatives, to do everything we can to protect them from harm's way.

This measure passed the House in July by voice vote.

I backed the House-version of this measure because the bill will solve the personnel surety issue by allowing workers who have TWIC or HME cards to have access to chemical facilities without having to get another federal credential.

This is important to my constituents who already have TWIC cards and work in our petrochemical plants and drive the trucks to deliver raw materials and products they produce.

I am supportive of some of the changes the Senate made to this legislation. In particular, I am supportive of measures that will add greater worker participation into plant security plans and provide greater whistleblower protections for plant employees who want to report unsafe conditions at a plant.

I do have some concerns with allowing smaller facilities to self-certify, as added in by the Senate, because even smaller facilities, as we have unfortunately seen in Texas in recent years, can be dangerous and the American people deserve full assurance that facilities near them are safe.

Nonetheless, the underlining legislation is still sound and needs to be enacted. I urge my colleagues to join DHS Secretary Jeh Johnson, and impacted stakeholders and vote in support of the Senate amendments to H.R. 4007.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Pennsylvania (Mr. MEEHAN) that the House suspend the rules and concur in the Senate amendment to the bill, H.R. 4007.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the Senate amendment was concurred in.

A motion to reconsider was laid on the table.

CRITICAL INFRASTRUCTURE RESEARCH AND DEVELOPMENT ADVANCEMENT ACT OF 2014

Mr. MEEHAN. Mr. Speaker, I move to suspend the rules and concur in the Senate amendments to the bill (H.R. 2952) to amend the Homeland Security Act of 2002 to make certain improvements in the laws relating to the advancement of security technologies for critical infrastructure protection, and for other purposes.

The Clerk read the title of the bill.

The text of the Senate amendments is as follows:

Senate amendments:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Cybersecurity Workforce Assessment Act''.

SEC. 2. DEFINITIONS.

In this Act—

(1) the term ''Cybersecurity Category'' means a position's or incumbent's primary work function involving cybersecurity, which is further defined by Specialty Area;

(2) the term ''Department'' means the Department of Homeland Security;

(3) the term ''Secretary'' means the Secretary of Homeland Security; and

(4) the term ''Specialty Area'' means any of the common types of cybersecurity work as recognized by the National Initiative for Cybersecurity Education's National Cybersecurity Workforce Framework report.

SEC. 3. CYBERSECURITY WORKFORCE ASSESSMENT AND STRATEGY.

(a) WORKFORCE ASSESSMENT.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, and annually thereafter for 3 years, the Secretary shall assess the cybersecurity workforce of the Department.

(2) CONTENTS.—The assessment required under paragraph (1) shall include, at a minimum—

(A) an assessment of the readiness and capacity of the workforce of the Department to meet its cybersecurity mission;

(B) information on where cybersecurity workforce positions are located within the Department;

(C) information on which cybersecurity workforce positions are—

(i) performed by—

(I) permanent full-time equivalent employees of the Department, including, to the greatest extent practicable, demographic information about such employees;

(II) independent contractors; and

(III) individuals employed by other Federal agencies, including the National Security Agency; or

(ii) vacant; and

(D) information on—

(i) the percentage of individuals within each Cybersecurity Category and Specialty Area who received essential training to perform their jobs; and

(ii) in cases in which such essential training was not received, what challenges, if any, were encountered with respect to the provision of such essential training.

(b) WORKFORCE STRATEGY.—

(1) IN GENERAL.—The Secretary shall—

(A) not later than 1 year after the date of enactment of this Act, develop a comprehensive workforce strategy to enhance the readiness, capacity, training, recruitment, and retention of the cybersecurity workforce of the Department; and

(B) maintain and, as necessary, update the comprehensive workforce strategy developed under subparagraph (A).

(2) CONTENTS.—The comprehensive workforce strategy developed under paragraph (1) shall include a description of—

(A) a multi-phased recruitment plan, including with respect to experienced professionals, members of disadvantaged or underserved communities, the unemployed, and veterans;

(B) a 5-year implementation plan;

(C) a 10-year projection of the cybersecurity workforce needs of the Department;

(D) any obstacle impeding the hiring and development of a cybersecurity workforce in the Department; and

(E) any gap in the existing cybersecurity workforce of the Department and a plan to fill any such gap.

(c) UPDATES.—The Secretary submit to the appropriate congressional committees annual updates on—

(1) the cybersecurity workforce assessment required under subsection (a); and

(2) the progress of the Secretary in carrying out the comprehensive workforce strategy required to be developed under subsection (b).

SEC. 4. CYBERSECURITY FELLOWSHIP PROGRAM.

Not later than 120 days after the date of enactment of this Act, the Secretary shall submit to the appropriate congressional committees a report on the feasibility, cost, and benefits of establishing a Cybersecurity Fellowship Program to offer a tuition payment plan for individuals pursuing undergraduate and doctoral degrees who agree to work for the Department for an agreed-upon period of time.

Amend the title so as to read: ''An Act to require the Secretary of Homeland Security to assess the cybersecurity workforce of the Department of Homeland Security and develop a comprehensive workforce strategy, and for other purposes.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Pennsylvania (Mr. MEEHAN) and the gentleman from Mississippi (Mr. THOMPSON) each will control 20 minutes.

The Chair recognizes the gentleman from Pennsylvania.

GENERAL LEAVE

Mr. MEEHAN. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

Mr. MEEHAN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 2952, the Cybersecurity Workforce Assessment Act. H.R. 2952 was originally passed by the House as the Critical Infrastructure Research and Development Act of 2014. The updated legislation passed this week by our Senate colleagues adds important cybersecurity workforce provisions to the bill from what is known as McCaul-Meehan, H.R. 3696.

As cyber attacks by hackers from around the world grow increasingly sophisticated, it is more urgent than ever to improve our ability to stop them. Currently, the Department of Homeland Security's National Cybersecurity Communications and Integration Center, NCCIC, must compete with big technology companies and cybersecurity firms for cybersecurity workforce, while DHS is limited in its ability to attract talented and well-trained cyber warriors.

H.R. 2952 will require the Secretary to assess the cybersecurity workforce currently in DHS and develop a strategy to enhance it. The assessment would look at cyber positions, readiness, training, types of positions, and its ability to carry out its cyber mission, with the ultimate goal of enhancing these capabilities and produce a recruitment and implementation plan. Finally, the bill also requires the Secretary to submit a report on the feasibility of establishing a cybersecurity fellowship program.

This legislation along with the others we have brought up today are important pieces in improving the overall capabilities of the Department of Homeland Security and its ability to carry out its cybersecurity mission. This is a critically important piece of legislation which enables the Department of Homeland Security to compete for what are very, very in-demand individuals with talent in the area of cybersecurity and protections.

Most significantly, it allows us to have the kinds of quality of individuals who can work in an equal capacity

with the best of those who are in our other governmental institutions, and particularly those who are now working in the private sector. I believe that the capacity for DHS to attract these workers is critical to its mission. I continue to encourage the growth and development of that expertise.

I reserve the balance of my time.

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Mr. THOMPSON of Mississippi. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in strong support of the Senate amendment to H.R. 2952 that attaches the Cybersecurity Workforce Assessment Act.

For the Department of Homeland Security to be effective in its cybersecurity mission, it must have a workforce in place to meet this challenge. Yesterday, the House considered legislation to grant DHS special hiring authority to secure talent in the competitive cybersecurity employment marketplace.

The measure before you today includes language, authored by the gentlewoman from New York (Ms. CLARKE), that requires DHS to develop and issue a comprehensive workforce strategy for the Department's cybersecurity missions, and includes a 5-year implementation plan and a 10-year projection of the cybersecurity workforce needs of the Department.

Cybersecurity is a complex mission for the Department and requires a wide range of talent at all levels. Given the urgent nature of DHS' recruitment efforts, it is essential that the Department have this strategy in place.

Secondly, the bill requires the Department to assess the readiness and capacity of its workforce to meet its cybersecurity missions.

Lastly, the urgent need to fill critical national security positions often leads to an overreliance on contractors.

To encourage students to come to work for the government in this vital arena, this legislation also directs DHS to develop a plan to create a cybersecurity fellowship program. Under such a program, DHS would pay a promising student's tuition in exchange for a commitment to serve for a fixed period of time at the Department in a cybersecurity position.

For all these reasons, I urge my colleagues to vote for H.R. 2952, and I reserve the balance of my time.

Mr. MEEHAN. Mr. Speaker, I have no more speakers, and I am prepared to close once the gentleman does.

I reserve the balance of my time.

Mr. THOMPSON of Mississippi. Mr. Speaker, I yield 3 minutes to the gentlewoman from New York (Ms. CLARKE), the ranking member of the Subcommittee on Cybersecurity, Infrastructure Protection, and Security Technologies, who actually—this legislation is what she has been about.

Ms. CLARKE of New York. Mr. Speaker, I thank the gentleman for yielding time.

Mr. Speaker, I rise in support of the Senate amendment to H.R. 2952.

As my ranking member, Mr. THOMPSON, has said, for the Department of Homeland Security to be effective in its cybersecurity mission, it must have a workforce in place to meet this challenge. A longstanding interest of mine has been how best to help DHS meet its cyber workforce needs.

To that end, I have authored legislation that the committee unanimously approved in October to help ensure that DHS has the ''boots on the ground'' it needs to meet its diverse cybersecurity mission.

I would like to thank Chairman MEEHAN for the support you have shown for my efforts and the spirit of collaboration that you have shown.

This legislation requires DHS to develop and issue a comprehensive workforce strategy for the Department's cybersecurity missions. The Department is required to develop a 5-year implementation plan for that strategy and a 10-year projection of the cybersecurity workforce needs of the Department.

Before developing a strategy and implementation plan, it is important that DHS conduct a workforce assessment to get a sense of the readiness and capacity of the Department's cyber workforce.

It is also important that the Department determine where these positions are located within the Department and whether these positions are filled by permanent employees, independent contractors, detailees from other Federal agencies, or are vacant.

The workforce assessment required under this bill requires DHS to do just that.

Finally, I am glad that it directs DHS to develop a plan to establish a cybersecurity fellowship program under which talented undergraduates and doctoral candidates who sign on to work for the Department for an agreed-upon period would be provided tuition assistance.

Establishment of just such a program could help encourage students to come to work for the government in this vital arena.

I urge all of my colleagues to vote for the Senate amendment to H.R. 2952.

Mr. THOMPSON of Mississippi. Mr. Speaker, I yield myself such time as I may consume.

In closing, the legislation under consideration today is a product of bipartisan, bicameral negotiations. It has two parts: the core bill, which addresses the overall direction of Federal physical security and cybersecurity technology research and development efforts for protecting critical infrastructure; and the Clarke cybersecurity workforce amendment.

The language in both parts went through regular order and was approved by the House.

Therefore, I urge passage of H.R. 2952.

Before I yield back, in case Ms. CLARKE leaves, our committee has the unfortunate task next year of losing the chair and ranking member of this fine subcommittee, and I want to personally say that I really appreciate the manner in which they worked together on not just hearings but bringing forth good legislation to the full committee and, ultimately, this legislation we are dealing with today. So, I compliment both of them and we will miss them.

I yield back the balance of my time.

Mr. MEEHAN. Mr. Speaker, I yield myself such time as I may consume.

I want to thank the gentleman for his kind words and for his cooperation. The ranking member helped to set a tone for the collaboration on the committee, along with the leadership of our chairman of the committee, the gentleman from Texas. From the beginning, our focus was on working together to find solutions to the important issues which don't have a Democrat or a Republican unique perspective. It is an American perspective for us to put the priority on protecting our homeland.

I want to particularly express my appreciation to the ranking member of our subcommittee, the gentlewoman from New York, for all of her collaboration and the delightful manner in which we had to work through difficult issues together but, ultimately, got to compromise into important resolutions on these issues and matters of importance.

I appreciate her foresight on this particular provision, which I am pleased to strongly endorse. The reason for that is we are facing a very challenging time globally with the issue of cybersecurity. We not only have to worry about the impacts that can happen with cyber issues for the kinds of materials that we have got in the private sector, that they can be impacted, but we are also dealing in a very unsafe world in which threats are not only the theft of information or interference with systems, but the ability now for those who want to do us harm to use the cyber network to carry out that harm. Therefore, it is more critical than ever that we are able to attract to the Department of Homeland Security, in fact into government, the kinds of people who are prepared to be on the front lines of this battle.

This is exactly what this provision will enable us to do—first, to attract people, and I am always inspired by them, because they have the same sense and focus of dedication to their country that so many brave men and women who sign up and serve us in uniform. While they are serving in a different capacity, their service to our Nation is every bit as real in the sense of the personal sacrifice that they make to help us attract the best and the brightest to protect our assets. You have to appreciate that many of them, once they get that expertise, are very, very desirable to corporations and others in the business world who will pay them significantly more to come to work for them.

So this idea of beginning to create the bullpen, so to speak, of the next

generation of cyber-prepared warriors for our country is at the heart of what the gentlewoman is trying to do, to enable universities and others to develop these kinds of programs that support students who, in return for some support for their education, will come to work for us. That will get us the next level of individuals, and it will begin the process of training those individuals, which we will need.

So this is, again, another important piece of our overall successful approach to trying to create cybersecurity.

I urge all of the Members to join me in supporting this bill, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Pennsylvania (Mr. MEEHAN) that the House suspend the rules and concur in the Senate amendment to the bill, H.R. 2952.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the Senate amendment was concurred in.

A motion to reconsider was laid on the table.

NATIONAL CYBERSECURITY PROTECTION ACT OF 2014

Mr. MCCAUL. Mr. Speaker, I move to suspend the rules and pass the bill (S. 2519) to codify an existing operations center for cybersecurity.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 2519

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''National Cybersecurity Protection Act of 2014''.

SEC. 2. DEFINITIONS.

In this Act—

(1) the term ''Center'' means the national cybersecurity and communications integration center under section 226 of the Homeland Security Act of 2002, as added by section 3;

(2) the term ''critical infrastructure'' has the meaning given that term in section 2 of the Homeland Security Act of 2002 (6 U.S.C. 101);

(3) the term ''cybersecurity risk'' has the meaning given that term in section 226 of the Homeland Security Act of 2002, as added by section 3;

(4) the term ''information sharing and analysis organization'' has the meaning given that term in section 212(5) of the Homeland Security Act of 2002 (6 U.S.C. 131(5));

(5) the term ''information system'' has the meaning given that term in section 3502(8) of title 44, United States Code; and

(6) the term ''Secretary'' means the Secretary of Homeland Security.

SEC. 3. NATIONAL CYBERSECURITY AND COMMUNICATIONS INTEGRATION CENTER.

(a) IN GENERAL.—Subtitle C of title II of the Homeland Security Act of 2002 (6 U.S.C. 141 et seq.) is amended by adding at the end the following:

''SEC. 226. NATIONAL CYBERSECURITY AND COMMUNICATIONS INTEGRATION CENTER.

''(a) DEFINITIONS.—In this section—

''(1) the term 'cybersecurity risk' means threats to and vulnerabilities of information or information systems and any related consequences caused by or resulting from unauthorized access, use, disclosure, degradation, disruption, modification, or destruction of information or information systems, including such related consequences caused by an act of terrorism;

''(2) the term 'incident' means an occurrence that—

''(A) actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information on an information system; or

''(B) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies;

''(3) the term 'information sharing and analysis organization' has the meaning given that term in section 212(5); and

''(4) the term 'information system' has the meaning given that term in section 3502(8) of title 44, United States Code.

''(b) CENTER.—There is in the Department a national cybersecurity and communications integration center (referred to in this section as the 'Center') to carry out certain responsibilities of the Under Secretary appointed under section 103(a)(1)(H).

''(c) FUNCTIONS.—The cybersecurity functions of the Center shall include—

''(1) being a Federal civilian interface for the multi-directional and cross-sector sharing of information related to cybersecurity risks, incidents, analysis, and warnings for Federal and non-Federal entities;

''(2) providing shared situational awareness to enable real-time, integrated, and operational actions across the Federal Government and non-Federal entities to address cybersecurity risks and incidents to Federal and non-Federal entities;

''(3) coordinating the sharing of information related to cybersecurity risks and incidents across the Federal Government;

''(4) facilitating cross-sector coordination to address cybersecurity risks and incidents, including cybersecurity risks and incidents that may be related or could have consequential impacts across multiple sectors;

''(5)(A) conducting integration and analysis, including cross-sector integration and analysis, of cybersecurity risks and incidents; and

''(B) sharing the analysis conducted under subparagraph (A) with Federal and non-Federal entities;

''(6) upon request, providing timely technical assistance, risk management support, and incident response capabilities to Federal and non-Federal entities with respect to cybersecurity risks and incidents, which may include attribution, mitigation, and remediation; and

''(7) providing information and recommendations on security and resilience measures to Federal and non-Federal entities, including information and recommendations to—

''(A) facilitate information security; and

''(B) strengthen information systems against cybersecurity risks and incidents.

''(d) COMPOSITION.—

''(1) IN GENERAL.—The Center shall be composed of—

''(A) appropriate representatives of Federal entities, such as—

''(i) sector-specific agencies;

''(ii) civilian and law enforcement agencies; and

''(iii) elements of the intelligence community, as that term is defined under section 3(4) of the National Security Act of 1947 (50 U.S.C. 3003(4));

''(B) appropriate representatives of non-Federal entities, such as—

''(i) State and local governments;

''(ii) information sharing and analysis organizations; and

''(iii) owners and operators of critical information systems;

''(C) components within the Center that carry out cybersecurity and communications activities;

''(D) a designated Federal official for operational coordination with and across each sector; and

''(E) other appropriate representatives or entities, as determined by the Secretary.

''(2) INCIDENTS.—In the event of an incident, during exigent circumstances the Secretary may grant a Federal or non-Federal entity immediate temporary access to the Center.

''(e) PRINCIPLES.—In carrying out the functions under subsection (c), the Center shall ensure—

''(1) to the extent practicable, that—

''(A) timely, actionable, and relevant information related to cybersecurity risks, incidents, and analysis is shared;

''(B) when appropriate, information related to cybersecurity risks, incidents, and analysis is integrated with other relevant information and tailored to the specific characteristics of a sector;

''(C) activities are prioritized and conducted based on the level of risk;

''(D) industry sector-specific, academic, and national laboratory expertise is sought and receives appropriate consideration;

''(E) continuous, collaborative, and inclusive coordination occurs—

''(i) across sectors; and

''(ii) with—

''(I) sector coordinating councils;

''(II) information sharing and analysis organizations; and

''(III) other appropriate non-Federal partners;

''(F) as appropriate, the Center works to develop and use mechanisms for sharing information related to cybersecurity risks and incidents that are technology-neutral, interoperable, real-time, cost-effective, and resilient; and

''(G) the Center works with other agencies to reduce unnecessarily duplicative sharing of information related to cybersecurity risks and incidents;

''(2) that information related to cybersecurity risks and incidents is appropriately safeguarded against unauthorized access; and

''(3) that activities conducted by the Center comply with all policies, regulations, and laws that protect the privacy and civil liberties of United States persons.

''(f) NO RIGHT OR BENEFIT.—

''(1) IN GENERAL.—The provision of assistance or information to, and inclusion in the Center of, governmental or private entities under this section shall be at the sole and unreviewable discretion of the Under Secretary appointed under section 103(a)(1)(H).

''(2) CERTAIN ASSISTANCE OR INFORMATION.—The provision of certain assistance or information to, or inclusion in the Center of, one governmental or private entity pursuant to this section shall not create a right or benefit, substantive or procedural, to similar assistance or information for any other governmental or private entity.''.

(b) TECHNICAL AND CONFORMING AMENDMENT.—The table of contents in section 1(b) of the Homeland Security Act of 2002 (6 U.S.C. 101 note) is amended by inserting after the item relating to section 225 the following:

''Sec. 226. National cybersecurity and communications integration center.''.

SEC. 4. RECOMMENDATIONS REGARDING NEW AGREEMENTS.

(a) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Secretary shall submit recommendations on how to expedite the implementation of information-sharing agreements for cybersecurity purposes between the Center and non-Federal entities (referred to in this section as ''cybersecurity information-sharing agreements'') to—

(1) the Committee on Homeland Security and Governmental Affairs and the Committee on the Judiciary of the Senate; and

(2) the Committee on Homeland Security and the Committee on the Judiciary of the House of Representatives.

(b) CONTENTS.—In submitting recommendations under subsection (a), the Secretary shall—

(1) address the development and utilization of a scalable form that retains all privacy and other protections in cybersecurity information-sharing agreements that are in effect as of the date on which the Secretary submits the recommendations, including Cooperative Research and Development Agreements; and

(2) include in the recommendations any additional authorities or resources that may be needed to carry out the implementation of any new cybersecurity information-sharing agreements.

SEC. 5. ANNUAL REPORT.

Not later than 1 year after the date of enactment of this Act, and every year thereafter for 3 years, the Secretary shall submit to the Committee on Homeland Security and Governmental Affairs and the Committee on the Judiciary of the Senate, the Committee on Homeland Security and the Committee on the Judiciary of the House of Representatives, and the Comptroller General of the United States a report on the Center, which shall include—

(a) information on the Center, including—

(1) an assessment of the capability and capacity of the Center to carry out its cybersecurity mission under this Act;

(2) the number of representatives from non-Federal entities that are participating in the Center, including the number of representatives from States, nonprofit organizations, and private sector entities, respectively;

(3) the number of requests from non-Federal entities to participate in the Center and the response to such requests;

(4) the average length of time taken to resolve requests described in paragraph (3);

(5) the identification of—

(A) any delay in resolving requests described in paragraph (3) involving security clearance processing; and

(B) the agency involved with a delay described in subparagraph (A);

(6) a description of any other obstacles or challenges to resolving requests described in paragraph (3) and a summary of the reasons for denials of any such requests;

(7) the extent to which the Department is engaged in information sharing with each critical infrastructure sector, including—

(A) the extent to which each sector has representatives at the Center;

(B) the extent to which owners and operators of critical infrastructure in each critical infrastructure sector participate in information sharing at the Center; and

(C) the volume and range of activities with respect to which the Secretary has collaborated with the sector coordinating councils and the sector-specific agencies to promote greater engagement with the Center; and

(8) the policies and procedures established by the Center to safeguard privacy and civil liberties.

SEC. 6. GAO REPORT.

Not later than 2 years after the date of enactment of this Act, the Comptroller General of the United States shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Homeland Security of the House of Representatives a report on the effectiveness of the Center in carrying out its cybersecurity mission.

SEC. 7. CYBER INCIDENT RESPONSE PLAN; CLEARANCES; BREACHES.

(a) CYBER INCIDENT RESPONSE PLAN; CLEARANCES.—Subtitle C of title II of the Homeland Security Act of 2002 (6 U.S.C. 141 et seq.), as amended by section 3, is amended by adding at the end the following:

''SEC. 227. CYBER INCIDENT RESPONSE PLAN.

''The Under Secretary appointed under section 103(a)(1)(H) shall, in coordination with appropriate Federal departments and agencies, State and local governments, sector coordinating councils, information sharing and analysis organizations (as defined in section 212(5)), owners and operators of critical infrastructure, and other appropriate entities and individuals, develop, regularly update, maintain, and exercise adaptable cyber incident response plans to address cybersecurity risks (as defined in section 226) to critical infrastructure.

''SEC. 228. CLEARANCES.

''The Secretary shall make available the process of application for security clearances under Executive Order 13549 (75 Fed. Reg. 162; relating to a classified national security information program) or any successor Executive Order to appropriate representatives of sector coordinating councils, sector information sharing and analysis organizations (as defined in section 212(5)), owners and operators of critical infrastructure, and any other person that the Secretary determines appropriate.''.

(b) BREACHES.—

(1) REQUIREMENTS.—The Director of the Office of Management and Budget shall ensure that data breach notification policies and guidelines are updated periodically and require—

(A) except as provided in paragraph (4), notice by the affected agency to each committee of Congress described in section 3544(c)(1) of title 44, United States Code, the Committee on the Judiciary of the Senate, and the Committee on Homeland Security and the Committee on the Judiciary of the House of Representatives, which shall—

(i) be provided expeditiously and not later than 30 days after the date on which the agency discovered the unauthorized acquisition or access; and

(ii) include—

(I) information about the breach, including a summary of any information that the agency knows on the date on which notification is provided about how the breach occurred;

(II) an estimate of the number of individuals affected by the breach, based on information that the agency knows on the date on which notification is provided, including an assessment of the risk of harm to affected individuals;

(III) a description of any circumstances necessitating a delay in providing notice to affected individuals; and

(IV) an estimate of whether and when the agency will provide notice to affected individuals; and

(B) notice by the affected agency to affected individuals, pursuant to data breach notification policies and guidelines, which shall be provided as expeditiously as practicable and without unreasonable delay after the agency discovers the unauthorized acquisition or access.

(2) NATIONAL SECURITY; LAW ENFORCEMENT; REMEDIATION.—The Attorney General, the head of an element of the intelligence community (as such term is defined under section 3(4) of the National Security Act of 1947 (50 U.S.C. 3003(4)), or the Secretary may delay the notice to affected individuals under paragraph (1)(B) if the notice would disrupt a law enforcement investigation, endanger national security, or hamper security remediation actions.

(3) OMB REPORT.—During the first 2 years beginning after the date of enactment of this Act, the Director of the Office of Management and Budget shall, on an annual basis—

(A) assess agency implementation of data breach notification policies and guidelines in aggregate; and

(B) include the assessment described in clause (i) in the report required under section 3543(a)(8) of title 44, United States Code.

(4) EXCEPTION.—Any element of the intelligence community (as such term is defined under section 3(4) of the National Security Act of 1947 (50 U.S.C. 3003(4)) that is required to provide notice under paragraph (1)(A) shall only provide such notice to appropriate committees of Congress.

(c) RULE OF CONSTRUCTION.—Nothing in the amendment made by subsection (a) or in subsection (b)(1) shall be construed to alter any authority of a Federal agency or department.

(d) TECHNICAL AND CONFORMING AMENDMENT.—The table of contents in section 1(b) of the Homeland Security Act of 2002 (6 U.S.C. 101 note), as amended by section 3, is amended by inserting after the item relating to section 226 the following:

''Sec. 227. Cyber incident response plan.
''Sec. 228. Clearances.''.

SEC. 8. RULES OF CONSTRUCTION.

(a) PROHIBITION ON NEW REGULATORY AUTHORITY.—Nothing in this Act or the amendments made by this Act shall be construed to grant the Secretary any authority to promulgate regulations or set standards relating to the cybersecurity of private sector critical infrastructure that was not in effect on the day before the date of enactment of this Act.

(b) PRIVATE ENTITIES.—Nothing in this Act or the amendments made by this Act shall be construed to require any private entity—

(1) to request assistance from the Secretary; or

(2) that requested such assistance from the Secretary to implement any measure or recommendation suggested by the Secretary.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Texas (Mr. MCCAUL) and the gentleman from Mississippi (Mr. THOMPSON) each will control 20 minutes.

The Chair recognizes the gentleman from Texas.

GENERAL LEAVE

Mr. MCCAUL. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and to include any extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. MCCAUL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I would like to, first, start out by thanking—this was not one person. This was a huge team effort, both in a bipartisan way and bicameral way. I want to thank PAT

MEEHAN for his great leadership on this. I want to thank YVETTE CLARKE for her great work and BENNIE THOMPSON for being willing to come together in a bipartisan way on our committee to get something good done for the American people.

I want to thank Senators CARPER and COBURN for moving forward—not something that we see much this Congress, something actually coming out of the Senate back to the House to pass out of this Congress, something we haven't seen much these days.

I also want to thank the staff. I want to thank Alex Manning, who is the staff director, and Brett DeWitt for his great work, tireless hours, and on the Democrat side of the House as well, holding over 300 meetings with the private sector, working day in and day out to get to the point where we are today on the House floor.

Mr. Speaker, I consider this to be a historic moment on the House floor, as we pass the most significant cybersecurity legislation ever passed by the Congress. This issue 10 years ago, no one would understand it. Today, people are finally starting to wake up to the fact that the threats from a cyber attack are real.

As we look at threats from China, from Russia, from Iran, we look at the theft of IP—a lot of people have been hurt personally with Home Depot and Target—we look at the theft of intellectual property from Russia and China, we look at the espionage on a daily basis, every Federal agency being hacked into, including the Pentagon, to steal things out of this Federal Government, to hurt our national security, and then, finally, we look at the most malicious threat, and that is a threat to shut things down.

We saw recently, Mr. Speaker, an attack from Iran that shut down 30,000 hard drives of Aramco, the largest energy producer in Saudi Arabia, while simultaneously hitting our financial sector. They continue to hit our financial sector every day. They are hitting them as I speak right now. We look at power grids being brought down and water and energy. This threat is real. This threat must be dealt with.

I am pleased on the very last day of this Congress that we are going to pass legislation that is going to protect America and make it safer, that is going to protect our critical infrastructures from this daily attack by foreign enemies that we have, unfortunately, across the globe.

□ 1015

How will that work? This bill will codify what is called the NCCIC. The National Cybersecurity Protection Act will create and codify a cyber command structure within DHS, the Department of Homeland Security, that is a civilian interface to the private sector which has been supported by both business groups like the Chamber and privacy groups like the ACLU.

It is amazing how we can bring this coalition together, but that is how strong this bill is: privacy and business coming together, doing what is right.

This will create a safe harbor, Mr. Speaker, where the 16 critical infrastructures, the 16 sectors, can come together. The Federal Government can take our threat information, our malicious codes that they use to attack us, and share that with the private sector. It also allows the private sector to share the information that they have with the Federal Government in a safe harbor that is protected both businesswise and personally as well.

Eighty to 85 percent of this threat information lies in the private sector. This coalition, if you will, this partnership of information sharing will better protect our critical infrastructures, and most importantly, to have the 16 sectors on the floor at the Department of Homeland Security, at the cyber command, and at the NCCIC all on the floor together sharing information, not just public and private, but amongst the sectors themselves—which is not taking place today—will go a long way to protecting American people and our critical infrastructures.

We have great offensive capability in this country. Our military has great cyber offensive capability to shut things down; in the wrong hands, that makes us very vulnerable. Where our weakness, our vulnerability lies is our ability to defend the Nation against these cyber attacks, and they are getting worse and more malicious by countries and state actors that don't really like us and want to do us harm.

I am proud of the work that we have done. I am proud of the work we have done in a bipartisan way, the work this committee has done, and I am proud of what the Senate has finally achieved to bring this finally to the point where we can pass this bill out of the United States Congress and have it signed into law by the President of the United States.

At the end of the day, it is what we got elected here to do, and that is to do good things to govern and get good things done on behalf of the American people.

Mr. Speaker, I reserve the balance of my time.

Mr. THOMPSON of Mississippi. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in strong support of the Senate amendment to S. 2519, the National Cybersecurity Protection Act of 2014. This bipartisan measure is a product of extensive bicameral negotiations and, in many ways, the culmination of years of oversight work by this committee.

It not only sends a strong message of support for the Department of Homeland Security as the lead civilian agency for cybersecurity, but also pays special attention to the challenge of bolstering network security for critical infrastructure.

Over the past decade, Americans have come to understand the need for cybersecurity to be woven into everything that a company, government, or an individual does, from running the most intricate machinery to everyday participation in social media.

Americans used to depend on the two oceans to protect us from invasion. Interconnectedness resulting from advancement in technology has fostered great economic, scientific, social, and cultural rewards. At the same time, their interconnectedness allows our enemies to do harm without ever stepping foot on U.S. soil.

One of the strengths of S. 2519 is that it emphasizes voluntary information sharing and collaboration between the Department and critical infrastructure owners and operators to address this national threat. Importantly, it does so in a manner that is consistent with our constitutional values and principles.

Much like the House-passed version of this measure, H.R. 3696, that was heralded by the ACLU as ''pro-security and pro-privacy,'' the measure under consideration today effectively avoids the privacy and civil liberties pitfalls that have plagued other cyber information-sharing legislation.

S. 2519 leverages existing private-public partnerships such as information sharing and analysis centers and sector coordinating councils to foster better information sharing and does so without dangling the controversial liability protection ''carrot'' before companies. The opportunity to access timely threat information from a Federal civilian agency should be carrot enough to motivate companies to engage with DHS.

The legislation before us today represents an important moment for the committee and the 113th Congress. At the beginning of this Congress, expectations were high for some legislative action in the area of cybersecurity. It has taken some time to get here, but what we have before us is something solid that sets forth what DHS must do as a lead civilian agency for cybersecurity.

We have seen cybersecurity legislation fail to become law multiple times. While President Obama's executive order is making progress in attempts to shore up some cyber weaknesses in our Nation's fabric, more work needs to be done.

With this cybersecurity legislation, we will be doing our part as DHS authorizers to raise the level of cybersecurity, particularly within the Federal Government and protecting our Nation's critical infrastructure.

I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield such time as he may consume to the distinguished gentleman from Pennsylvania (Mr. MEEHAN).

Let me also, on a point of privilege, say what an honor it has been to serve with you, sir. We are going to miss you on this committee.

Mr. MEEHAN. Mr. Speaker, let me thank the gentleman again for his leadership not just on this particular issue, but his leadership of the committee and, as I had said before, working with my colleagues on the other

side in a bipartisan fashion for these important issues.

I will be brief on this, but I can tell you that it is not the brevity of my words that will instill the seriousness of this issue. When the chairman mentioned that this is some of the most important legislation we have ever done on cybersecurity, I echo that sentiment because the nature of the threat is real, growing, and constantly changing.

The ability for us to be able to be adaptive in real time to communicate with the private sector and the government facilities to protect our homeland is critical.

A second point—and that is significant as well—is very real attention was paid to the issue of privacy, recognizing the individual desire to be assured that private information is not inappropriately utilized or misapplied by anybody, let alone the government.

This bill was the product of work that was done in detail with over 300 different meetings working through the complexities of this particular issue. As has already been articulated, it is one of the few bills that I would imagine in this Congress—or any Congress—that has strong endorsement from the Chamber of Commerce and the ACLU simultaneously.

Lastly, by organizing by sector, this creates the framework. This is the important foundation. There is still so much more to be done, but this is the foundation of the house, of the structure that will allow us to create and continue to create the kind of edifice that will enable our private sector, our government sector, and indeed all of those who are engaged in this issue in the country to be better positioned to protect Americans, their information, and their safety.

I strongly endorse this, and I thank the gentleman for his leadership.

Mr. THOMPSON of Mississippi. Mr. Speaker, I yield such time as she may consume to the gentlewoman from New York (Ms. CLARKE), the ranking member of the Subcommittee on Cybersecurity, Infrastructure Protection, and Security Technologies.

Ms. CLARKE of New York. Mr. Speaker, again, I thank the ranking member for yielding me the time.

Mr. Speaker, I rise in support of S. 2519, the National Cybersecurity Protection Act of 2014. We have worked long and hard to develop and describe how DHS can best accomplish its complex cybersecurity mission. I am pleased that our bipartisan and bicameral negotiations have been fruitful and look forward to the progress that the Department can make next year.

In closing, I would like to express what an honor it has been to serve under the leadership of Ranking Member THOMPSON, Chairman MCCAUL, and alongside Chairman MEEHAN in service to the homeland security mission of our Nation.

I look forward to our continued collaboration as I move to my new assignment on the Energy and Commerce Committee in the 114th Congress.

Mr. MCCAUL. Mr. Speaker, I have no further speakers, and I reserve the balance of my time.

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise in strong support of this legislation and thank my principal partner in the House, Chairman MCCAUL, for his unwavering commitment to this issue and willingness to work across the aisle to get it done.

I also want to recognize the contributions of the chairman and ranking member of the Cybersecurity Subcommittee, Representatives MEEHAN and CLARKE, and our Senate partners.

Finally, I would like to acknowledge staff that helped us get this to this point, Rosaline Cohen and Chris Schepis on my staff and Brett DeWitt and Alex Manning on the majority staff.

Again, let me compliment the chair for not giving up and for staying the course. Even doing it on the last day gets it done.

Mr. Speaker, I urge a ''yea'' vote, and I yield back the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield myself such time as I may consume.

I too want to recognize all the Members involved, the Senate, and staff. To my ranking member, BENNIE THOMPSON, I guess, as Churchill said:

Never, ever give up.

Here we are on the last day of this Congress getting this done. What a gratifying experience it is. What a great moment it is not just for this Congress but, more importantly, for the American people and what it represents.

Seventy-three years ago this week, this Nation was attacked at Pearl Harbor. There are a lot of people that make analogies to what would be a cyber Pearl Harbor if we are caught unprepared. I believe this bill will go a long way to defending the Nation from what would be called a cyber Pearl Harbor event.

My father served as a B–17 bombardier in the European theater. He flew over 32 missions, including the air campaign in advance of the D-day invasion and the Battle of the Bulge. They dropped kinetic bombs.

In the cyber world that we live in, we have to worry about digital bombs and how we can stop that from hurting the United States, from impacting the United States, from bringing the United States to its knees. I believe this is the first step of many, and I look forward to working on more legislation next Congress, but this is the historic first step that we have taken in this Congress to move forward on this very important issue and get it done to protect the American people.

With that, let me again thank everyone for their efforts. This has been a great day for America.

Mr. Speaker, I yield back the balance of my time.

□ 1030

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. MCCAUL) that the House suspend the rules and pass the bill, S. 2519.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

PROVIDING FOR CONSIDERATION OF THE SENATE AMENDMENT TO H.R. 83, INSULAR AREAS AND FREELY ASSOCIATED STATES ENERGY DEVELOPMENT; WAIVING REQUIREMENT OF CLAUSE 6(A) OF RULE XIII WITH RESPECT TO CONSIDERATION OF CERTAIN RESOLUTIONS; AND FOR OTHER PURPOSES

Mr. COLE. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 776 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 776

Resolved, That upon adoption of this resolution it shall be in order to take from the Speaker's table the bill (H.R. 83) to require the Secretary of the Interior to assemble a team of technical, policy, and financial experts to address the energy needs of the insular areas of the United States and the Freely Associated States through the development of energy action plans aimed at promoting access to affordable, reliable energy, including increasing use of indigenous clean-energy resources, and for other purposes, with the Senate amendment thereto, and to consider in the House, without intervention of any point of order, a motion offered by the chair of the Committee on Appropriations or his designee that the House concur in the Senate amendment with an amendment consisting of the text of Rules Committee Print 113-59 modified by the amendment printed in the report of the Committee on Rules accompanying this resolution. The Senate amendment and the motion shall be considered as read. The motion shall be debatable for 80 minutes, with 60 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations and 20 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Education and the Workforce. The previous question shall be considered as ordered on the motion to its adoption without intervening motion.

SEC. 2. Upon adoption of the motion specified in the first section of this resolution, House Concurrent Resolution 122 shall be considered as adopted.

SEC. 3. The chair of the Committee on Appropriations may insert in the Congressional Record at any time during the remainder of the second session of the 113th Congress such material as he may deem explanatory of the Senate amendment and the motion specified in the first section of this resolution.

SEC. 4. The requirement of clause 6(a) of rule XIII for a two-thirds vote to consider a report from the Committee on Rules on the same day it is presented to the House is waived with respect to any resolution reported through the legislative day of December 12, 2014.

The SPEAKER pro tempore. The gentleman from Oklahoma is recognized for 1 hour.

Mr. COLE. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to my good friend,

the gentlewoman from New York (Ms. SLAUGHTER), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. COLE. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Oklahoma?

There was no objection.

Mr. COLE. Mr. Speaker, yesterday the Rules Committee met and reported a rule for consideration for the fiscal year 2015 omnibus appropriations bill. The resolution makes in order a motion offered by the chair of the Committee on Appropriations that the House concur in the Senate amendment of H.R. 83 with an amendment consisting of the text of the FY 2015 omnibus appropriations bill.

The rule provides 80 minutes of debate, 60 minutes equally divided and controlled by the chair and ranking member of the Committee on Appropriations, and 20 minutes equally divided and controlled by the chair and ranking member of the Committee on Education and the Workforce.

In addition, the rule provides the chair of the Committee on Appropriations the authority to insert any explanatory information.

Finally, the rule provides same-day authority through December 12, as is customary at the end of session.

Mr. Speaker, I am pleased to present to this House the culmination of the Appropriations Committee's work for the fiscal year 2015. In this legislation, 11 of the 13 appropriations bills are fully conferenced and fully funded through the end of the fiscal year. However, the Homeland Security bill is funded under a temporary continuing resolution until February 27, 2015.

Mr. Speaker, I carried the initial rule for consideration of the first two appropriations bills considered in the House back on April 30, 2014, and I believe the record of the House and the House Appropriations Committee has been good. We considered 7 out of 12 appropriations bills on the floor under an open process, considered 11 of 12 appropriations bills in committee. Contrast that to the Senate, which was unable to consider even a single appropriations bill on the floor.

So I am proud, Mr. Speaker, of the work we have been able to accomplish. The omnibus legislation abides by all the terms set in the Ryan-Murray budget agreement, providing a top line funding level of $1.013 trillion.

But at the same time, this legislation contains important policy provisions that prevent the government from reaching into the lives of ordinary American citizens, provisions like those which prevent the Army Corps of Engineers from regulating farm ponds and irrigation ditches, or provisions like those preventing the Federal Government from regulating the lead content in ammunition or fishing tackle.

This bill maintains historic pro-life provisions and includes new ones, like requiring ObamaCare plans to disclose whether they provide abortion services, and countless others.

At the same time, this omnibus enacts important commonsense priorities on the direction of this government. It cuts funding for the IRS by over $345 million. Indeed, the IRS has been cut by more than $1.2 billion since 2010. It prohibits the IRS from targeting groups for scrutiny based on their political beliefs. It cuts EPA funding for the fifth consecutive year, bringing staffing to the lowest level since 1989. It implements a government-wide prohibition on the painting of portraits. It makes commonsense decisions, like prohibiting funding for inappropriate videos or conferences that shouldn't be funded by taxpayers in times of surplus, much less in times of deficit.

But this legislation doesn't just cut funding from programs. It takes those cuts and reallocates them to programs that are truly in need. For example, it provides $30 billion for the National Institutes of Health, an increase over funding from FY14, enhancing funding for Alzheimer's, cancer, and brain research.

It funds the Gabriella Miller Kids First Research Act, a bill I authored with GREGG HARPER and Eric Cantor, at $12.6 million, shifting those dollars from funding political conventions to research into pediatric diseases.

It increases the health care and educational funding to some of our poorest and most needy constituents—Native Americans—and it provides funding to deal with crises like those associated with the outbreak of Ebola or the militant activity of ISIL, the Islamic State of Iraq and the Levant.

I could go on and on with all the good things included in this bill; however, I am sure others will speak to those items.

I believe it is important to take stock in where we have come over the last 4 years. We have taken an annual budget deficit of $1.4 trillion and lowered it to $468 billion, still too high, but one of the most rapid, if not the most rapid, declines of the deficit in American history. We prevented additional burdens and regulations from being foisted upon the American people.

Our work is certainly not done, however. One must always remember appropriations and appropriating is a process. The bureaucratic welfare state built by decades of Democratic control cannot be dismantled in a single blow; however, it can be reduced piece by piece, and this legislation does just that.

Some of my friends will raise objections to the process, where we are left with a frustrating choice between the passage of a large omnibus bill to fund all government or a government shutdown. To my friends, I say that I agree with you, as do my fellow members of the Appropriations Committee.

There are some things in this bill I disagree with and some, certainly, that I agree with; but I do believe that, under regular order, those with different points of views should be able to make their case to the entire House.

The House has led by example in this regard. We considered seven different appropriations bills on this floor in an open amendment process, all of which were passed by bipartisan majorities. The House would have considered even more appropriations bills had the Senate been willing to consider even a single appropriations bill on the floor. In fact, the last time the Senate passed an individual appropriations bill was November 1, 2011, more than 3 years ago.

Madam Speaker, this isn't the way to govern. I hope that in the next Congress the House will have a partner in the Senate, which is willing to consider individual appropriations bills in an open process so that we do not have to consider large omnibus packages without the opportunity for amendment. I believe we will, and I believe we will end up with a better product because of it.

I am encouraged by the work of my friend, Chairman ROGERS, and Ranking Member NITA LOWEY, and I look forward to working with them and a new Senate next year to build upon the work we have done this year.

Madam Speaker, I urge support for the rule and the underlying legislation, and I reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I want to take just a moment to say I know this will be the last time you will be presiding over the House, and I want to thank you for your friendship over all these years. Working together with you has been a pleasure.

I want to thank my friend from Oklahoma for yielding me the customary time, and I yield myself such time as I may consume. Let me say about him, he is someone I admire very greatly. But I don't admire this bill.

I have to rise to debate the rule for the final bill of the 113th Congress, which is the most closed Congress in history. The House majority has, over and over again, stifled debate, limited the ability of Members of this body to participate in the legislative process, and undermined the institution.

We have had 83 closed rules this term, the most in history, and this bill follows suit and has been, again, brought to us under a closed rule, which means that no Member will be able to offer an amendment; and the $1.1 trillion spending bill to keep the Federal Government funded will be rushed through the legislative process because the deadline to keep the government open is 11:59 this evening.

By the same circumstance, I was doing a rule the night of the last time the government shut down, still on the

floor at midnight and made the announcement that the great Government of the United States of America was closed.

We don't, obviously, none of us, want to see that again, but we do see dysfunction mirrored in the Rules Committee, because all of our meetings are now only declared emergency. That means it has not gone to any committee, has no public input, no hearing, no markups, and no time to fully consider the legislation.

The bill has been brought to us under an onerous, blatantly political process, and its contents are troubling as well. It seems to me that with every passing hour, a new alarming provision comes to light. Perhaps if the House majority had spent less time voting to undermine the health care law, taking health care away from people, or investigating a nonexistent scandal in Benghazi, we might have been able to do a budget.

While this may have averted another dangerous government shutdown, what we are doing now, this bill, is another example of the preferred method of governance—manufactured crises. We are pushed and pulled from the brink for their political games, and America suffers.

At 1,603 pages, this spending bill is a behemoth. It was submitted in the dark of night at the last minute in hopes that we wouldn't find out what is in it and serves as further proof that the majority has reneged on their pledge of transparency.

□ 1045

Speaker BOEHNER, himself, said in December of 2010, as reported by the New York Times:

I do not believe that having 2,000-page bills on the House floor serves anyone's best interest—not the House, not the Members, and certainly not the American people.

He was referring, of course, to the fact that we would have 72 hours to examine such legislation.

Madam Speaker, I submit for the RECORD the New York Times' article from December 17, 2010, entitled: ''Republicans Prepare for Looming Budget Battle''—even then.

[From the New York Times, Dec. 17, 2010]

REPUBLICANS PREPARE FOR LOOMING BUDGET BATTLE

(By Carl Hulse)

WASHINGTON.—The collapse of a government-wide spending package in the final days of this Congressional session sets up a politically charged fiscal showdown early next year, testing the determination of Republicans about to take over the House with promises to slash an array of domestic programs.

As Congress struggled to assemble a stopgap measure to finance the government at least into the first months of 2011, House and Senate Republicans on Friday hailed their ability to derail a $1.2 trillion spending measure put forward by Senate Democrats, and promised to use their new Congressional muscle to respond to public demands to shrink government.

''Beginning in January, the House is going to become the outpost in Washington for the American people and their desire for a smaller, less costly and more accountable government,'' said Representative John A. Boehner of Ohio, the incoming House speaker.

''I will tell you,'' he added, ''we are going to cut spending.''

With the lame-duck session entering its final days, there was an air of partisan chaos on Capitol Hill as both parties scored important legislative victories and events changed on an almost hour-to-hour basis as the end of Democratic control of the House approached.

Both President Obama and Congressional Republicans claimed credit for the package of tax cuts and unemployment pay the president signed into law Friday. Democrats also appeared poised to repeal the ban on gay and lesbian troops serving openly in the military, a long-sought goal of the party and its progressive constituency.

The House advanced a major Pentagon policy measure that had previously been tied up in the fight over the military's ''don't ask, don't tell'' policy. At the same time, a major immigration measure championed by Democrats and the White House seemed headed toward defeat as early as Saturday.

Republicans celebrated their blockade of the spending package, which Senator Harry Reid of Nevada, the majority leader, had to abandon after Republicans denied him the handful of votes from their side of the aisle that he was counting on to break a filibuster.

Republicans said their determination to kill the omnibus spending package even when top party lawmakers had inserted pet spending projects demonstrated that they were heeding the fervor of voters who were fed up with giant spending measures slipping through Congress in the final hours.

''The defeat of the omnibus should reassure every American that their voice is making a difference in Washington,'' said Senator Tom Coburn, an Oklahoma Republican and an outspoken foe of increased federal spending.

But the collapse of the Senate measure, which like its House counterpart would have financed government agencies through the end of the fiscal year on Sept. 30, means Republicans could begin the new Congress with an immediate need to resolve the spending stalemate.

With the Senate making slow progress toward a stopgap measure, the House on Friday approved a plan to keep the government open through Tuesday and the Senate later followed suit to prevent a government shutdown after Saturday.

Aides said that behind closed doors, White House officials and some Democratic lawmakers were still trying to strike a deal to finance the government through September. But the officials said it was much more likely that government financing would be extended only into February or March.

Republicans say that timeline will allow them to quickly put their stamp on the budget for the current fiscal year, and Mr. Boehner and his leadership team have vowed to eliminate about $100 billion in spending out of about $400 billion in domestic programs.

Both sides say reaching that goal will mean very difficult choices and Democrats, promising to resist Republican efforts, say Republicans may find it easier to talk about cutting than actually doing it.

''They have been really good about talking about the need to cut this and cut that, but they are never specific,'' said Representative James P. McGovern, Democrat of Massachusetts. ''I think it is going to be tough.''

The 2011 spending fight could be complicated by the need to raise the federal debt limit to avoid a federal default—a vote that many new Republican lawmakers have indicated they would not make.

Republicans say the debt limit vote could also present an opportunity, allowing them to tie a package of spending reductions to the debt increase to make it more palatable.

Another complicating factor is that since Democrats retain control of the Senate, House Republicans must reconcile their spending proposals with those crafted by the Senate Appropriations Committee under the leadership of Senator Daniel K. Inouye, Democrat of Hawaii. Senator Inouye is unlikely to agree easily to Republican spending cuts, creating a climate for gridlock as the two parties face off.

On Friday, Mr. Inouye chastised Congress for jettisoning the spending package crafted by his committee, saying that simply extending current funding levels left the government on autopilot and could lead to disruptions. He said it also left too much discretion for determining spending priorities to the executive branch.

''And in two months we will find ourselves having to pass another 2,000-page bill that will cost more than $1 trillion or once again abdicate our authority to the Obama administration to determine how our taxpayer funds should be spent,'' he said.

Mr. Boehner has made changing the culture of the Appropriations Committee a top interest of the new Republican majority, pressing new leaders of the panel to turn it into a center for budget cutting and stocking it with a few anti-spending advocates.

On Friday, he indicated that he would prefer that Republicans next year break up the enormous spending package that died in the Senate and pass a dozen spending bills individually to allow for better scrutiny—a process that could consume considerable time and subject the measures to multiple attacks on the floor.

''I do not believe that having 2,000-page bills on the House floor serves anyone's best interests, not the House, not for the members and certainly not for the American people,'' Mr. Boehner said.

Aides to Mr. Boehner later said the speaker-designate was referring to his desire to have an orderly appropriations process later in 2011 and was not referring to the spending package Republicans would have to quickly assemble in the opening weeks of the new Congress.

Lawmakers on both sides were running out of energy and patience as the session dragged on with no certain conclusion in sight. Even House Democrats who would be turning over control to Republicans seemed ready to call it quits.

''A lot of us just want to go home,'' said Representative John B. Larson of Connecticut, chairman of the House Democratic Caucus.

Ms. SLAUGHTER. Madam Speaker, this bill can cause grievous harm to the Department of Homeland Security by funding it until only February of next year, and it really does endanger the Nation's safety and security because they are the people who provide border security and the TSA. I have said this in the past—but it bears repeating—that funding the government in tranches weakens, destabilizes, and undermines our Nation.

The majority's insistence on punishing the President for his executive order on immigration by toying with the funding for the Department of Homeland Security, of all things, is troubling. This maneuver will hinder how we train new officers, how we guard the border, and it will endanger the Nation's airports; but the most

egregious provisions of this bill strike at the very soul of our democracy.

A last-minute, nongermane addition would fundamentally change our Republic. It gives away almost all power of the people to choose their leaders and to participate in their government by cementing the status of power donors. This provision changes campaign finance law to allow megadonors to give 10 times the amount currently allowed to political parties for housekeeping, and those of us in the political field know what it means to have the housekeeping accounts: that means it can go for absolutely anything. This change flies in the face of McCain-Feingold, and it completes the mission of the Supreme Court with their decision on Citizens United.

This tenet has been central to our democracy in that each person has equal power to influence their government by their voice and their vote. Not only has this Congress refused to reenact the Voting Rights Act, but this added provision will hasten the toxic influence of money and will further corrupt and unbalance our democracy.

Furthermore, the underlying bill includes a provision added only 2 days ago that would put our economy in danger and would roll back the gains made since the Great Recession. This most egregious provision would change the Dodd-Frank bill to give undue power back to the banks. The provision puts the taxpayers on the hook for risky behaviors by Wall Street banks, meaning, once again, that taxpayers will have to bail out the banks if they fail. It was a basic tenet of Dodd-Frank's that we would never do that again, and that will now be undone.

It has been only 5 years since the start of the Great Recession, and the economy has made great strides in adding 10.9 million private sector jobs in the last 57 months, but passing this bill would risk erasing those strides by steering us on a dangerous path toward another recession.

The former chair of the House Financial Services Committee, Barney Frank, released a statement this week, calling this inserted provision: ''a substantive mistake, a terrible violation of the procedure that should be followed on this complex and important subject, and a frightening precedent that provides a roadmap for further attacks on our protection against financial instability.''

He continues: ''Ironically, it was a similar unrelated rider put without debate into a larger bill that played a major role in allowing irresponsible, unregulated derivative transactions to contribute to the crisis.''

He is referring to the crisis of 2008.

He is warning us. He is imploring us: Don't make the same mistake twice. Our national economy cannot take this risk.

Madam Speaker, I would like to insert this article from The Wall Street Journal from December 10, 2014, entitled: ''Barney Frank Criticizes Planned Rollback of Namesake Financial Law,'' into the RECORD.

[From the Wall Street Journal, Dec. 10, 2014]

BARNEY FRANK CRITICIZES PLANNED ROLLBACK OF NAMESAKE FINANCIAL LAW

(By Andrew Ackerman)

WASHINGTON.—Retired House Democrat Barney Frank urged his former colleagues to vote against a nearly $1.1 trillion spending plan, saying it constitutes an attack on a Wall Street regulatory overhaul he co-authored in response to the financial crisis.

At issue is a provision included in the plan that would rollback a controversial part of the 2010 Dodd-Frank law requiring banks to ''push out'' some of their riskiest derivatives-trading activities into affiliates that aren't eligible for federal backstop programs. Mr. Frank is one of two namesakes of the law along with former Sen. Christopher Dodd (D., Conn.), who is also retired from Congress.

''The provision inserted into the appropriations bill is a substantive mistake, a terrible violation of the procedure that should be followed on this complex and important subject, and a frightening precedent that provides a road map for further attacks on our protection against financial instability,'' the Massachusetts Democrat said in a statement Wednesday.

The comments came hours after House and Senate lawmakers unveiled the plan, which would keep the federal government funded through September. The roll-back of the Dodd-Frank provision was included as part of an agreement to provide modest funding increases to the two agencies primarily responsible for implementing and policing Dodd-Frank—the Securities and Exchange Commission and the Commodity Futures Trading Commission.

Sen. Sherrod Brown (D., Ohio) and other congressional Democrats also warned against the move, saying it would ''open the door to future bailouts funded by American taxpayers.''

''This provision, originally written by lobbyists, has no place in a must-pass spending bill,'' he said in a statement.

Critics of the ''push out'' provision, including Federal Reserve officials as well as some Democrat and Republican lawmakers, say it doesn't strengthen the financial system and only moves potentially destabilizing activities to a different bank subsidiary. The provision could also increase costs for bank customers that use the derivatives.

Derivatives, which played a central role in the crisis, are used by firms to hedge or speculate on everything from moves in interest rates to the cost of fuel.

Mr. Frank said reasonable people can disagree on how to regulate derivatives. But he criticized the plan to change regulations through ''a non-germane amendment inserted with no hearings, no chance for further modification and no chance for debate into a mammoth bill in the last days of a lame-duck Congress.''

''Ironically it was a similar unrelated rider put without debate into a larger bill that played a major role in allowing irresponsible, unregulated derivative transactions to contribute to the crisis,'' Mr. Frank said, referring to 2000 Commodity Futures Modernization Act that essentially barred the regulation of derivatives and was signed into law as part of a larger appropriations bill.

Ms. SLAUGHTER. Madam Speaker, for these reasons and several others, Democrats should not support this bill, and I urge my colleagues to vote ''no'' against the rule.

I reserve the balance of my time.

Mr. COLE. Madam Speaker, I yield such time as she may consume to the gentlewoman from the State of Washington (Ms. HERRERA BEUTLER), my friend and distinguished colleague, for the purpose of a colloquy with the majority leader.

Ms. HERRERA BEUTLER. Madam Speaker, for over 100 years, the Federal Government has made a promise to our rural schools and counties to actively manage our forests. However, due to Federal regulations and litigation, forest management has been dramatically reduced, and our communities have suffered—thousands of people have lost jobs; counties lack the resources to pay for basic services whether it is school or fire or police; and our forest has become increasingly susceptible to forest fires, disease, and devastation. This situation is a crisis, and we in Congress must address it.

Mr. STEWART. Will the gentlewoman yield?

Ms. HERRERA BEUTLER. I yield to the gentleman from Utah.

Mr. STEWART. Madam Speaker, as my colleague from Washington has so ably noted, in areas where large tracts of land are part of the National Forest System, local school districts have relied in the past on timber harvesting receipts, shared with local governments, as an important source of revenue to support their school systems. This is a problem that was created by activists here in Washington, D.C.

When Federal policies dramatically reduced logging receipts from our national forests, those schools were hit very hard. That is why we created the Secure Rural Schools program. This is real. It affects real people. It affects real families. It has affected many people in my own State.

So I would like to ask my colleague: Are your local schools feeling the effects of a situation like mine?

Ms. HERRERA BEUTLER. Oh, yes. I have heard from many of my local districts already, and layoff notices are being prepared because of the uncertainty and the status of the funding of Secure Rural Schools. Congress must make getting this legislation through both Houses and signed into law by the President a priority in the next year.

I would, actually, like to ask the gentleman from California (Mr. MCCARTHY), the majority leader, if he can give me any assurances that extending the Secure Rural Schools program will be one of his priorities early in the next Congress.

I yield to the leader.

Mr. MCCARTHY of California. I thank my colleagues for yielding, and I share their concern on this important matter. I want to ensure my colleagues that enacting an extension of the Secure Rural Schools program is going to be an early priority for next year.

Madam Speaker, as the gentlewoman knows, in September of last year, the House passed H.R. 1526, the Restoring Healthy Forests for Healthy Communities Act, which would have allowed us to better manage our Federal forests for the benefit of our rural schools and

counties. Unfortunately, the Senate was unable to act on this bill or to find a way forward on this important issue.

I believe, in the next Congress, we should find a path forward to get this important matter across the finish line, and I will work with our colleagues and with incoming Chairman BISHOP to make sure that this happens. We need to get this done, and we need to get it done early next year.

Ms. HERRERA BEUTLER. I thank the leader for his comments and assurances.

Ms. SLAUGHTER. Madam Speaker, I am pleased to yield 2 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), a valued member of the Committee on Rules.

Mr. MCGOVERN. I thank the gentlewoman.

Madam Speaker, I oppose this closed rule, and I oppose the underlying bill, which is the product of a closed and deeply flawed process.

It contains policy riders that will do great damage to this country and that have no business whatsoever being in an omnibus spending bill. It contains an airdropped earmark for politicians that would allow wealthy couples to give as much as $3.1 million to political parties—three times as much as the current level. No hearings, no markup, no discussion—just snuck into the bill with the hope that no one would notice. We ought to be finding ways, Madam Speaker, to get money out of politics, not the reverse.

The bill would repeal, at the request of Wall Street special interests and lobbyists, important Dodd-Frank provisions. It would allow banks to engage in the same risky behavior that caused the financial crisis of 2008.

What in the world are my Republican colleagues thinking? I know they want to do a lot of favors for their pals on Wall Street, but, please, please, do not do it at the expense of our economy.

The bill contains a provision that the trucking industry wants to allow truck drivers to work up to 80 hours a week when we know that over-tired truck drivers put all of us at risk on the roads. Unbelievable.

Finally, the bill funds new wars that Congress has not authorized. We are dropping bombs every day in Iraq and Syria. We have 3,000 troops deployed in Iraq, and we hear more and more talk about having those troops engage in direct combat.

Yet, this Republican leadership has been content to do nothing. In fact, the majority has repeatedly and routinely denied Members the right to debate the issue of war on the floor of the House of Representatives. None of us will be asked to fight another pointless war, Madam Speaker—they are not our lives on the line—but we have a constitutional responsibility to debate and vote on whether to authorize it. But no. Instead, we are leaving town. Instead, we are ducking a vote. We are not doing our jobs. It is shameful and it is inexcusable, and it is a lousy way to end this session.

Mr. COLE. Madam Speaker, I yield myself such time as I may consume.

I just want to make a couple of points in response to my friend.

First of all, there is much of what my friend has to say that I agree with. This is not the preferred process of the Appropriations Committee on either side of the aisle in this Chamber. Indeed, we tried to bring—and did bring—bill after bill after bill to this floor to avoid this very end.

The responsibility here lies with the leadership of the United States Senate, which did not bring a single appropriations bill to the floor. When they won't pick up and pass a bill, we can't go to conference, and we are left to fund the government in the very final days.

Now, I don't think my friend meant to suggest this, but the idea that only Republicans were involved in drafting this is just simply not the case. This bill has to go through a Democratic Senate and go to a Democratic President. It cannot pass the Senate without Democratic support or even be taken up. It cannot go into law without the President's signing it into law.

The reality is that the Democratic Senate and the administration have been involved in these negotiations at every level, over and over. Indeed, my friends have been involved in this as well in their capacity as ranking members on the Appropriations Committee or in the leadership capacity. This bill, of which I do not particularly like the process, is, indeed, bicameral and bipartisan in its substance.

Again, I think my friend makes an excellent point in that this isn't the way to run the railroad, and we ought to work together; but I also will remind my friends that the last time they were in the majority they brought exactly two appropriations bills to the floor under closed rules. They never brought an appropriations bill here in their final year under an open process. We have done that seven times. We would have done it all 12 times, but we finally determined the United States Senate, under Democratic control, was never going to bring up an appropriations bill, at which point: Why waste the floor time, and why ask your Members to do the hard work and cast the votes?

That is something that shouldn't happen again. I pledge to work with my friend, who I know does not want to see that happen again, to make sure that we fulfill our part of the process on this side of the House; and I think the new Senate will very likely do the same thing. I am hoping our colleague who is leaving this Chamber and heading there will help us in that. She has been a wise and able Member here, and I am sure she will be equally distinguished in the United States Senate.

We look forward to improving the process—my friend is right about that—but the absence of passing this bill will shut down the government. I don't think that is something that either they or our friends in the Senate or in the administration want to do.

Madam Speaker, I reserve the balance of my time.

The SPEAKER pro tempore (Mrs. CAPITO). Without objection, the gentleman from Massachusetts (Mr. MCGOVERN) will control the time.

There was no objection.

Mr. MCGOVERN. Madam Speaker, I yield myself such time as I may consume.

Just to respond to my colleague, I should remind my colleagues here that there were five appropriations bills that never saw the light of day here on the House floor. Of the ones that we did deal with, none of them included the rollback of Dodd-Frank provisions or the rollback of campaign finance reform. We can blame the United States Senate all we want, but they have nothing to do with whether or not we bring up a resolution to authorize another war in Iraq or not.

Madam Speaker, I yield 3 minutes to the gentlewoman from California (Ms. WATERS), the distinguished ranking member of the Financial Services Committee.

Ms. WATERS. Madam Chair, I have come to the floor today to stop Republican efforts to give Wall Street banks a multibillion dollar gift this Christmas.

Under the cover of must-pass legislation, big bank lobbyists are hoping that Congress will allow Wall Street to once again gamble with taxpayer money by reversing a provision that prohibits banks from using taxpayer-insured funds—bank deposits—to engage in risky derivatives trading activity.

In fact, The New York Times reported that Citigroup, a bank that stands to directly benefit to the tune of billions of dollars, authored this provision. Big banks want to use their cheap funds provided by the taxpayer backstop to undercut their competition in a ''heads I win, tails the taxpayer loses'' scenario.

□ 1100

We know why Republicans want it. The spending bill also quietly allows individuals such as the big banks to contribute millions more to their own reelections. This provision must be stopped. Enough is enough.

This puts taxpayers at risk. This puts consumers at risk. This provision directly weakens a provision intended to prevent future bailouts of Wall Street. The Obama administration said this provision could be disruptive and harmful. Former FDIC Chairman Sheila Bair said the provision takes reform in the wrong direction.

It is also strongly opposed by consumer, labor, and civil rights groups, and former chairman Barney Frank, who puts the Frank in Dodd-Frank, called it a frightening precedent. So I agree, and I am urging a ''no'' vote.

I just heard the gentleman say this is bipartisan and this is bicameral. It is neither. As a matter of fact, Democrats are not going to join in putting this bill out.

We understand that our constituents, our workers, our people out there, our consumers know that we bailed out the big banks, and they know that we would be putting them at risk one more time to bail them out if we allowed them to do this risky derivatives trading.

Dodd-Frank said you need to push out your trading activities and put them in affiliates or subsidiaries. Don't try and use the people's backstop, FDIC protection, to do this risky trading with.

If you think the American public is going to stand for a bailout of the biggest banks in America one more time, you are wrong. This bill is going nowhere because we have enough people, I believe, that are going to stand up and fight on this issue and other issues in the bill.

As the ranking member of the Financial Services Committee, I am just focusing on this one bad part of the bill because it is so outrageous.

I ask for a ''no'' vote on the rule, I ask for a ''no'' vote on the bill.

Mr. COLE. Madam Speaker, I yield myself such time as I may consume.

I am going to disagree with my friend from California. This bill is bipartisan and bicameral. It was negotiated with the Democratic Senate, and both sides approved it before it was ever submitted to the Rules Committee for consideration.

It has been alleged that the swaps push-out language contained in the omni was snuck into the bill, that it allows for risky trading and puts taxpayer funds at risk. None of this, in my view, is true. The language included in this omnibus is identical to H.R. 992, which passed the House with broad bipartisan support by a vote of 292–122.

The language was added to the Financial Services appropriations bill as a full committee amendment. After a public debate on the language, it was adopted by voice vote. When the Financial Services appropriations bill was considered by the full House for 3 days under an open rule, where 51 amendments were considered, there were no amendments offered on the swaps push-out language.

The omni provides a commonsense fix for section 716 of the Dodd-Frank. Risky swaps like those that brought down AIG are still required to be pushed out. The omni allows low-risk trades to continue to be conducted by depository institutions, which are regulated by banking supervisors. Without this fix, farmers and manufacturers will experience increased costs and regulatory burdens without making our financial system any more stable.

Former Fed Chairmen Ben Bernanke and Paul Volcker and former FDIC Chair Sheila Bair have all expressed a need to fix section 716 of Dodd-Frank. CBO has scored this language as having no impact on the taxpayers. So we obviously see this differently than our friends on the other side.

With that, Madam Speaker, I reserve the balance of my time.

The SPEAKER pro tempore. Without objection, the gentlewoman from New York (Ms. SLAUGHTER) will control the time.

There was no objection.

Ms. SLAUGHTER. Madam Speaker, I yield 2 minutes to the gentleman from Mississippi (Mr. THOMPSON), the distinguished ranking member of the Committee on Homeland Security.

Mr. THOMPSON of Mississippi. Madam Speaker, I appreciate the time yielded by the gentlelady from New York.

Madam Speaker, I rise today to express my strong opposition to H.R. 83, the Consolidated and Further Continuing Appropriations Act of 2015.

Just over a year ago I stood here urging the Republican majority to allow us to vote on the legislation to reopen the government during a 16-day shutdown. At that time the majority's gimmick was called a minibus, essentially cherry-picked programs within Federal agencies to be funded one by one.

Today I am troubled to have to rise yet again to oppose another gimmicky bill that provides piecemeal funding and undermines national security. Once again, the Republican House leadership has laid before us a package that, by design, seems to promote partisan division and appeal to a faction of its party that is blindly determined to punish the Department of Homeland Security for its grievances against the President.

When we returned from Thanksgiving last week, House appropriators were hopeful that we could consider and pass a full omnibus bill. Unfortunately, today we are forced to vote on legislation that provides full-year funding for all Federal agencies except the Department of Homeland Security. In previous Congresses, such an approach would be considered absurd.

It is important that we appreciate the consequences of a short-term continuing resolution for DHS. Contracting for the final national security cutter will be delayed, potentially driving up the cost. Border security technology upgrades along the Rio Grande Valley will not happen as scheduled. This approach not only punishes Secretary Johnson and DHS headquarters, it undermines homeland security.

Madam Speaker, clearly the insertion of the financing for political parties undermines McCain-Feingold, and for that and other reasons I oppose the rule and the underlying bill.

Mr. COLE. Madam Speaker, I yield myself such time as I may consume.

I just want to make this point again. I agree with some of the points my good friend from Mississippi makes, but this could be avoided if the United States Senate had simply picked up appropriations bills and passed them.

This could have been long done. We could have come to an agreement many months ago. We tried on seven different occasions and did bring bills across this floor. They were under open amendment, something my friends did not do their last year in the majority, and we had multiple opportunities.

But at some point when the other body isn't moving and tells you it is not going to take up an appropriations bill, you just quit hitting your head against the wall and say, ''Well, I guess we are going to have to deal with this with a big omnibus at the end of the year.''

If my friends wanted a different process—and I am sure they did—they should have been talking to their colleagues in the United States Senate. That is why we are here, not because we wouldn't bring bills across but because the Senate wouldn't.

At some point, if one-half of the Congress won't work, the other half can't get its work done. That is just the process and the way it works. We are hoping the new Senate under new management will do something.

We all know in this Chamber the only reason why they did that was because they wanted to avoid tough votes. Quite frankly, that is the reason why my friends wouldn't allow an open amendment process the last time they were in the majority. It didn't work well for them in 2010; it didn't work well for their Democratic colleagues this time around in 2014.

I think the lesson both of us ought to draw from this is, let's do regular order. It actually is in the best interests of the country, the best interests of the institution. It is even in the best political interests of the two parties. Just let us go do our work.

But we can't now shut down the government because the Senate refused to do the process any other way but do it here. And, again, with all due respect to my friend's concerns on a variety of issues, some of which I share, quite frankly, there are even some parts of this bill that I like that I don't like to see passed this way. I don't think it is appropriate to be passed this way.

At the end of the day you have got to keep the government functioning. This is the last vehicle to do that.

To suggest, again, it wasn't bicameral or bipartisan—it has been. As my friends know, this has been negotiated at the top levels of leadership and on the Appropriations Committee between Democrats and Republicans in the House and the Senate.

There are some flaws in this process. There are certainly some things I don't like in this bill, but I recognize it is a gigantic compromise and one designed to allow government to continue to function, and it hasn't been the House of Representatives, either Democrat or Republican, that has gotten us to this point. This is the Democratic leadership in the Senate that has gotten us to this point.

But at the end of the day, everybody here will have a vote, both on the rule and on the bill, and the same thing will be true in the United States Senate. The President has a signature at his end of Pennsylvania Avenue, and if this process doesn't work or my friends

want to bring it down, that is up to them. We would prefer not to close the government, to continue to function.

With that, Madam Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I yield 1½ minutes to the gentlewoman from Maryland (Ms. EDWARDS).

Ms. EDWARDS. Madam Speaker, I thank the gentlelady from New York.

Madam Speaker, I rise in opposition to the rule that is providing for consideration of this so-called omnibus bill. Among the many troublesome eleventh-hour additions to the underlying 1,600-page spending bill is a provision that not only allows for another multibillion dollar bank bailout and for taxpayers to be on the hook for that, but it gives the keys to the bank to the moneyed special interests by allowing up to $800,000 to be contributed by one person to the Democratic and Republican Party committees.

Now, most Americans think there is already too much money in politics, but, oh, no, not House Republicans. They are just saying open up the spigots to the special interests.

Instead of passing a clean bill that funds the Federal Government and avoids another harmful shutdown, this Congress, these Republicans have chosen to bring the American people a bill that would allow for the negative opinions that they already hold of this Congress to go even further, to say the richer you are, the more access you have, the more influence that you have.

Madam Speaker, this provision has no business in a spending bill, no business in our democracy, and we can't allow the megaphones of moneyed special interests to take hold of our government.

I urge my colleagues to vote against this rule. There are a lot of reasons to oppose it, and I am just naming one. But let's not bail out the banks again, and let's not give them the keys to the bank in our pocket and let the special interests take control of this Congress.

Mr. COLE. Madam Speaker, I yield myself such time as I may consume.

Two quick points. As I think I pointed out earlier in the course of this debate, the language dealing with swaps was actually considered by this House in two separate pieces of language. One of those bills passed this House with a bipartisan majority. The other was the Financial Services bill, where there was no objection, no amendment, and no complaint.

Now we find at the very last minute concern and objections that were never raised earlier in the process when there were multiple opportunities to do that.

With respect to my friend's point about the political contribution issue, that is something I know a little bit about. I used to be chief of staff of the Republican National Committee. I was the executive director of the NRCC, our campaign committee, earlier in my life.

I have watched McCain-Feingold over the years, and I have seen that, frankly, it has been a failed piece of legislation. I agree with my friend's point this is not the way to do it. I would have much preferred to debate in an open process, but the idea there is not big money in politics I think is an idea that is very much out of date. There is lots of big money in politics.

We have diminished the importance of individual candidate campaigns and the party organizations, while we have enhanced them partly through a Supreme Court ruling. So there is plenty of extra money out there, and it pours into races. To marginalize the political parties, which are actually the most accountable, most transparent, and most responsible participants in the process, is something that we ought to rethink.

Frankly, to put candidates individually at the mercy of megadonors on each side—by the way, my friends are as much at risk of this as my colleagues on this side of the aisle—is something we need to think about. Again, I suspect that is what happened here.

I wouldn't suggest this was a Republican idea. I don't know, frankly, if it was a Republican or Democratic idea. I know Democrats in the Senate consented to it and I suspect participated in it. So let's not have a lot of show that we don't like this or that and somehow this was a Republican measure. In many cases it wasn't, or it was a negotiated compromise.

In this case, again, there will be ample opportunity to deal with this both later when we vote on the final product and eventually when the Senate takes it up. But, again, if the Senate would just do its job, we wouldn't be here in this process. We wouldn't have these opportunities for people to short-circuit the normal legislative procedures that I know my friends agree with, and I certainly agree with.

With that, Madam Speaker, I reserve the balance of my time.

□ 1115

Ms. SLAUGHTER. I am pleased to yield 3 minutes to the gentleman from Maryland (Mr. HOYER), the Democrat whip.

Mr. HOYER. Madam Speaker, I thank the gentlewoman for yielding. I thank her for her leadership on the Rules Committee. I thank Mr. COLE for his remarks.

Madam Speaker, I want to rise and support Mr. COLE. This is not the way to do it. It is what he said. The good news is we have time to not do it this way. We have time to return to the Rules Committee, pass out a rule which strikes these two provisions and pass the bill. In my opinion, if that is done, then an overwhelming number of Democrats will vote to support the bill. It will go to the Senate, and I predict without any doubt that the Senate will pass that bill.

It is clear that there is disagreement on both sides of the aisle about this bill, but it is also clear there could be a significant bipartisan majority to do what is a basic responsibility of this Congress to do, and that is fund government.

Now, very frankly, neither side did its job. We did seven-twelfths of our job, and the Senate did zero-twelfths of their job, and we can point fingers at one another which would not be very useful. What would be useful is if we give to the American people and to our economy the confidence that we can act together in a bipartisan way to pass legislation. I tell my friend, Mr. COLE, for whom I have great respect, Madam Speaker, that we can do that.

The two provisions which he has heard discussed are of great concern to my side of the aisle, there are things of great concern to his side of the aisle, and in the next 2 years, we are going to have to work together to try to accommodate, in hopefully a bipartisan fashion, having the majority in this body do reasonable things.

The gentleman is a member of the Appropriations Committee. I had the honor of serving on the Appropriations Committee for 23 years before I became the leader. The fact is that that committee has a responsibility that must be accomplished, and that is fund government enterprises, fund the dollars that we, through programs that this Congress and previous Congresses have adopted, fund those objectives we think are important for this country.

I would urge my friend, Mr. COLE, who I think is a very responsible Member of this body, to urge his side because we have agreement we think on 99.9 percent of this. These two provisions are very small provisions, but I will tell my friend they put this bill at risk.

I would urge him, therefore, to urge his side to strike these two provisions, and I will tell him in return that I am confident that the overwhelming majority of my side of the aisle will join with I think the overwhelming majority of his side of the aisle and pass this legislation which is so important.

Mr. COLE. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I want to thank my friend for his very generous and kind words and remarks. There is nobody seriously I enjoy listening to more on this floor. I very much appreciate his generous offer which I know he has made to people far above my pay grade on my side of the aisle to work together and find common ground not only here in the closing days of the session, but next year as well.

I appreciate the fact that he is willing to accept over 99 percent of this bill, and I agree with his political assessment. I think we could muster strong bipartisan majorities to pass that.

The issues he raised I suspect are being considered and are a little above my pay grade to comment on, so I am not going to do that, but I do want to tell my friend how much I respect him and how much I appreciate his contribution each and every day to how

this House operates. I think we would have been in a much better place here as Democrats and Republicans had the Senate done a better job of doing its job.

Madam Speaker, I will disagree with my friend a little bit or maybe express a different opinion on saying we did seven-twelfths of our job. My friend has been a distinguished majority leader in this institution, and I think he is a master at the legislative process and knows probably better than most how difficult it is to function on one side of the rotunda of this Capitol Building when they are not functioning on the other.

You do reach a point after you have put seven bills on the floor and the other body has made it obvious that they are not going to put a single appropriations measure on the floor, your own side begins to wonder: Why are we doing this? Why are we going through this process?

Now, we did go ahead and move through full committee 11 of the 12 bills which were again done in a bipartisan fashion with consultation with our friends on the Democratic side. You do reach a point where you say: Why are we wasting the floor time? Why are we exposing our Members?

I am hopeful when our friend in the chair arrives at the other side that we are going to have partners that work with us on both sides of the aisle and engage in that normal process that I know my friend is not only a master at, but a defender and advocate for.

Mr. HOYER. Will the gentleman yield?

Mr. COLE. Well, I have very little time and actually less time than my friend has, so I would prefer you to use your own time. If they are not willing to give you any time, then perhaps I will reconsider that.

With that, Madam Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I yield 20 seconds to the gentleman from Maryland (Mr. HOYER).

Mr. HOYER. Madam Speaker, I was simply going to observe to my friend from Oklahoma that that puts an awfully heavy burden on the presiding officer.

Ms. SLAUGHTER. Madam Speaker, I am pleased to yield 1½ minutes to the gentleman from Michigan (Mr. KILDEE).

Mr. KILDEE. I thank the gentlewoman.

Madam Speaker, I share the concern expressed by my friend, Mr. COLE, that if we don't act today, government will be shut down, so I agree that we need to act. The question that we have to ask ourselves in this body is: At what price do we keep government open?

There is a lot of good in this legislation, no question about it, but for me—and I have supported bipartisan efforts to keep government open in the past, I have only been here 2 years, and I had to do it already—but the notion that a price has to be paid in order to keep government open—and that price is to grant greater power to the wealthiest Americans to have more influence over our political process—is just too much for me to take.

Of all the problems that we could use this moment to try to solve, are we offering help to the unemployed who lost their benefits as a part of this package? No. Are we dealing with the massive problems we have with infrastructure? No. Are we trying to balance the playing field for people who happen to be born in a ZIP Code full of poverty? No.

But what we are doing as a condition of keeping government open is deciding that the one thing we have to do is to make sure that the wealthiest Americans can now spend 10 times more money on the political process than they did last year. Seriously? This is a problem that we have to solve in order to keep government open?

I just can't imagine that this is the price we have to pay.

Mr. COLE. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I want to thank my friend from Michigan because he is an exceptionally responsible Member in this body and an heir of a proud tradition in his family and somebody I enjoy working with and I think someone that makes a genuine contribution each and every day he has been here.

In terms of the bill itself, there is certainly nothing inappropriate about my friends on the other side of the aisle focusing on things they don't like, but there are some things we ought to think about that we do like. There are billions of dollars in here to fight Ebola, something that we sat down and worked with the administration and our friends on the other side and came to a common agreement.

We have disagreement sometimes and a difference of perspective. I am actually closer to Mr. MCGOVERN on this, at least in terms of process, than I am to the administration.

Look, ISIL is a clear and present danger to the United States of America. The President has asked for things in here; we have put the things he asked for in here and tried to work with him on that.

I don't think anybody in this Chamber thinks that the work done at the National Institutes of Health isn't exceptionally important. There is more money in here for that particular agency in a more difficult budgetary environment than we had last year.

I know how very much my friend and his family have always been concerned with Native Americans. Nobody did more than your uncle, our beloved colleague, Mr. KILDEE, Dale Kildee, in that area, and there is substantially more money in here than the administration requested for Indian health and for school construction on Indian reservations.

There are certainly some things in here that I share some of the concerns that my friends have, both from a process standpoint and an outcome standpoint, but I think you have to make a balance. I think you have to look at the overall bill. I think you have to look at the consequences of not passing the bill and the rule.

I think you also have to remember that this is a negotiated agreement with a Democratic Senate. I don't think we should have gotten to this point, and had they done their job in the appropriations process, we would not be at this point; but whenever either body doesn't do their job, you always get down to the end, and this is exactly the sort of thing that you end up with.

I don't know how we can avoid that in the next 24 hours, but I do know this: I hope we all from both sides of the aisle recommit ourselves to avoid being here next year. I don't blame my friends on the Democratic side for getting us here. I don't think they had anything to do with it.

They worked with us in the appropriations process in very good faith with Mrs. LOWEY. That is why we brought bills to the floor. That didn't happen in the Senate, and that is what has gotten us here. I think we should reserve our fire for the other Chamber, one thing that tends to unite us instead of divide us because that is where the problem has been.

Madam Speaker, again, under new management next year, I hope we won't see this problem.

With that, Madam Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I yield 1½ minutes to the gentleman from Maryland (Mr. SARBANES).

Mr. SARBANES. Madam Speaker, I rise in opposition to the underlying bill. There are two provisions in this bill that are deeply offensive to the American people and their sense of fairness.

Over here, you have a provision that would backstop with taxpayer money increased risky activity on the part of Wall Street. This would allow them to go out, make more money with less risk, and then if they run into a problem, the taxpayers of this country would be asked to come in and bail them out. So you have that provision for Wall Street.

Over here, you have a provision that would allow Wall Street, the wealthy, and the well-connected to pour 10 times more money into the political apparatus up here on Capitol Hill and buy influence. Over here, you have got a Wall Street giveaway, and over here, you have an opportunity for Wall Street to put more money into the political process.

These two provisions bumped into each other somewhere in the middle of the night in the corridors of Capitol Hill up here. They bumped into each other. Maybe they were introduced, and one said, ''I will be the quid,'' and the other one said, ''I will be the quo.''

Madam Speaker, I don't know which is which, but I know this is a quid pro quo, and it is the kind of quid pro quo

that is corrupting the machinery of our government and is offensive to the American people. We need to get rid of the quid, we need to eliminate the quo from this bill, and we need to bring it back in a way that we can actually support it. That is what we need to do for the American people.

Mr. COLE. Madam Speaker, I yield 30 seconds to the gentleman from Georgia (Mr. KINGSTON), my good friend, our distinguished parting Member and the chairman of the Labor, Health and Human Services, Education, and Related Agencies Subcommittee of our Appropriations Committee.

Mr. KINGSTON. Madam Speaker, I thank the distinguished incoming chair of the Labor, Health and Human Services, Education, and Related Agencies Subcommittee for the time.

Madam Speaker, I just want to say I do support this rule. I will revise and extend my remarks for the RECORD later on, but as someone who worked very long on appropriations bills, the problem has been historically that the Senate has blocked the passage of most of their bills.

This year, they did not pass a single one. This year, we passed seven before we had to shut down. None of us on appropriations want an omnibus bill. We all prefer individual, one-by-one bills, but in the absence of that, this is the aggregate of those bills added together, and I do support the rule.

Ms. SLAUGHTER. Madam Speaker, I am pleased to yield 1½ minutes to the gentleman from Florida (Mr. DEUTCH).

□ 1130

Mr. DEUTCH. Madam Speaker, I thank my friend, and I rise in opposition to the rule and in opposition to the underlying legislation.

Last night in the Rules Committee, I offered an amendment to strike a measure from page 1,599 of this 1,603-page spending bill that would have this Congress march hand in hand with the Supreme Court's Citizens United and McCutchen to allow America's wealthiest donors to give $5 million every election cycle to candidates, political parties, and their committees. We had no debate about this. The people's House did not vote to undermine campaign finances, and that this 1,600-page bill already cuts Pell grants and undermines Wall Street reform proves that wealthy donors hold enough sway in Washington.

A vote for this bill is a vote for the continued dismantlement of a broken campaign finance system. It is a vote to continue shutting out the voices of everyday Americans in our political process. Our constituents want us to fight money in politics. They do not want us to be complicit in putting our democracy up for sale.

Madam Speaker, in Washington for the special interests, they view every day as Christmas. Let's give the American people a present this holiday season: respect for our democracy and a place for them in it.

Mr. COLE. Madam Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I am pleased to yield 1½ minutes to the gentlewoman from California (Ms. LEE), a member of the Appropriations Committee.

Ms. LEE of California. Madam Speaker, I want to thank the gentlelady for yielding and for her tremendous hard work and support.

Madam Speaker, I rise in opposition to this rule and this bill for many reasons, even though the bill contains many provisions I support, such as Ebola funding; a critical $5.67 billion for the President's emergency plan for AIDS relief; PEPFAR, which I helped write, and the Global Fund; programs I have worked on for many years and have supported.

But it also includes provisions I cannot support, such as an additional $3.4 billion to fund an unauthorized war against ISIS in Iraq. More than 3 months after this war began, this is 3 months later, Congress has yet to have the constitutionally required mandated debate and vote on an Authorization for the Use of Military Force. We are now involved in another open-ended war in the Middle East without congressional authority.

This omnibus also includes $73.7 billion for the overseas contingency operations fund which, quite frankly, is a slush fund.

Congress must get serious about transparency and oversight of our Nation's bloated Pentagon spending, and we can do that by auditing the Pentagon, an initiative that has bipartisan support. At the same time that this bill provides billions in war funding, my Republican colleagues included a section that will roll back key provisions of the Dodd-Frank Wall Street reform bill, putting taxpayers on the hook for Wall Street gambling.

I urge a ''no'' vote on the rule and a ''no'' vote on the bill.

Mr. COLE. Madam Speaker, I continue to reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I am pleased to yield 1½ minutes to the gentlewoman from the District of Columbia (Ms. NORTON).

Ms. NORTON. Madam Speaker, I thank my good friend for all of her hard work on this bill.

District of Columbia voters passed the most restrictive marijuana legalization law in the country, Initiative 71, allowing possession of small amounts of marijuana for personal use only. Four States have legalized marijuana. The city was motivated by two independent studies revealing shameful racial disparities, disparities that are endemic, by the way, in the rest of the country as well in marijuana possession arrests. Ninety percent of marijuana arrests here are of African Americans, though Blacks and Whites use marijuana at the same rate in a city that is 50–50 Black and White.

Do not expect residents to tolerate unequal treatment of the District of Columbia, a jurisdiction of Federal tax-paying Americans, and, on top of that, discrimination against African Americans who live here.

I am trying to find a way around the antidemocratic language in the bill that bullies the District of Columbia. Congress must find its way out of the local affairs of the residents of the District, who pay the highest Federal taxes per capita in the United States, while the Member who represents them must stand by and watch every Member of this House vote on a matter affecting her district, except the Member who represents the District of Columbia.

Mr. COLE. I continue to reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I am pleased to yield 1½ minutes to the gentleman from Vermont (Mr. WELCH).

Mr. WELCH. Madam Speaker, I thank the gentlelady.

One of the big challenges that this institution faces is to restore its credibility with the American people. This process that we have gone through, where, at the end of the negotiations between our House and Senate negotiators, two provisions of great significance were inserted into the bill—one that would provide relief from Dodd-Frank provisions to Wall Street banks, the other which would allow individuals to increase donations to $2.5 million per cycle—had no hearings. They had no debate. No one has had any input on what the implications are of these actions that are very significant when it comes to campaign finance and when it comes to the integrity of Dodd-Frank.

We must legislate in the light of day and not use a piece of legislation that is of vital concern to the American people to attach provisions that have nothing to do with that particular bill. It is why so many people—Republicans, Democrats, and Independents—think that the political process is not on the level.

So why put these provisions in? We could pass these bills without it. These provisions would then be allowed to have hearings in committee, and then we would be responsible to vote ''yes'' or ''no'' on the campaign finance provision, on the Dodd-Frank provision, where our constituents would be able to hold each and every one of us accountable as to what our view was.

Mr. COLE. Madam Speaker, I continue to reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I yield myself the balance of my time to close.

Madam Speaker, this bill spends $1.1 trillion to fund the Federal Government. While we may yet avert another government shutdown, a lot of our trust in the legislative process has been destroyed. If a provision to allow the United States to be mined for uranium by a company with ties to Iran can be inserted into and passed with the National Defense Authorization

Act, taking away land sacred to an Indian tribe, what other deplorable and risk-ladened bills are in this House majority bill? Heaven only knows what other egregious actions we will find.

The House majority continues to govern via manufactured crises. Regular appropriations bills have been replaced with temporary stopgap measures. Cliffs and brinks and fits and starts continue. The majority has another opportunity in the new Congress to do the good work of government and to provide stability to the American people with the American people put ahead of banking interests and political party interests—and I pray they do.

Madam Speaker, I urge my colleagues to vote ''no'' on the rule and the bill underlying it.

And to end the 113th Congress, I yield back the balance of my time.

Mr. COLE. Madam Speaker, I yield myself the balance of my time.

As I reflect back on the debate today—and it is always a good exchange with my friend from New York—I want to reflect on some areas of agreement and disagreement.

The agreement is we think, like our Democratic colleagues, this is not a good way to legislate. We do not like the process. We do not like to pass bills with multiple hundreds of pages and well over $1 trillion in spending and lots of policy riders. We prefer to legislate as we began this Congress—that is with an individual appropriations bill.

I want to thank my chairman, the gentleman from Kentucky (Mr. ROGERS), and the ranking member, the gentlewoman from New York (Mrs. LOWEY), for the manner in which they got the process off and going this year, and I want to commend my friends on the other side of the aisle for participating.

This House was moving appropriations bills under open rules with multiple debates and passing them, usually with bipartisan votes, in the way that this system should operate. That was not true in the United States Senate.

That body, under Democratic leadership, never brought up a single appropriations bill. You simply can't operate the process if the other side of the Chamber, whose participation is constitutionally required, refuses to participate, refuses to bring bills to the floor. And that was done for political and, I would suggest, somewhat cynical calculations. It didn't work out very well in the end; it never does. Going through regular order, we all know, is the best way to operate. But we are here now because the Senate wouldn't do its job. The House did do its job and continued to do it until it was just painfully obvious that the Senate was never going to do anything at all.

I have also listened to my friends and their concerns about a multitude of issues that are dealt with in this bill. They know we can avoid this next year by following regular order and going through the process, but there are two in particular that I want to address quickly.

The first issue is campaign finance. I probably have a different view than most of my speakers in terms of what ought to be done, but they are absolutely right in terms of the process by which this has been arrived at. Now, I will point out this idea that there is not unlimited money in politics now is just simply not true. The people who have been penalized are the candidates and the political parties. There are plenty of third-party groups on both sides that spend enormous amounts of money, people who write substantially larger checks, and that is both liberals, conservatives, Democrats, and Republicans. This is actually a measure, I would argue, to try to allow the parties who are more transparent and more accountable and, frankly, usually more professional to have the resources to compete with some of the outside groups. Be that as it may, the substance of my friend's process objections are real.

The other area is the Dodd-Frank area. Let me just say, that language was brought up under the separate legislation and considered; it was in Financial Services. So the idea it is being dropped in at the last minute is just not true.

Let me finish with two points. First, there is a great deal of good in this bill. There are a great many parts of this bill where we have worked together, worked well together, ranging from Ebola to the National Institutes of Health, the Native American issues. Those things ought to be enacted.

Madam Speaker, in closing, the continuing resolution we are currently operating under is due to expire at midnight tonight. I believe it is important to keep this government open and support this bipartisan, bicameral piece of legislation. I urge my colleagues to support the rule and the underlying legislation.

Madam Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The previous question was ordered.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SLAUGHTER. Madam Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, this 15-minute vote on adoption of House Resolution 776 will be followed by 5-minute votes on the motion to suspend the rules on H.R. 5806, by the yeas and nays; and approval of the Journal, if ordered.

The vote was taken by electronic device, and there were—yeas 214, nays 212, not voting 9, as follows:

[Roll No. 561]

YEAS—214

Aderholt
Amodei
Bachus
Barletta
Barr
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Boehner
Boustany
Brady (TX)
Bridenstine
Brooks (IN)
Buchanan
Bucshon
Burgess
Byrne
Calvert
Camp
Capito
Carter
Cassidy
Chabot
Chaffetz
Clawson (FL)
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Goodlatte
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Herrera Beutler
Holding
Hudson
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Joyce
Kelly (PA)
King (NY)
Kingston
Kinzinger (IL)
Kline
LaMalfa
Lamborn
Lance
Lankford
Latham
Latta
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Perry
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Price (GA)
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NAYS—212

Adams
Amash
Bachmann
Barber
Barrow (GA)
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brat
Brooks (AL)
Broun (GA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)

Fudge
Gabbard
Gallego
Garamendi
Garcia
Gohmert
Gosar
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huelskamp
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Jordan
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
King (IA)
Kirkpatrick
Kuster
Labrador
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Massie
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pingree (ME)
Pocan
Polis
Posey
Price (NC)
Quigley
Rahall
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Speier
Stockman
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—9

Campbell
Capuano
Duckworth
Hall
Hensarling
Matheson
Miller, Gary
Negrete McLeod
Smith (WA)

□ 1215

Messrs. VEASEY, DINGELL, Ms. SEWELL of Alabama, Messrs. GALLEGO, LARSEN of Washington, Ms. SCHWARTZ, Ms. LINDA T. SÁNCHEZ of California, Ms. SINEMA, Messrs. NORCROSS and CARNEY changed their vote from ''yea'' to ''nay.''

Messrs. CAMP, CASSIDY, MCCLINTOCK, MCALLISTER, STUTZMAN and BENTIVOLIO changed their vote from ''nay'' to ''yea.''

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

SUPPORTING AMERICA'S CHARITIES ACT

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 5806) to amend the Internal Revenue Code of 1986 to modify and make permanent certain expiring provisions related to charitable contributions, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Michigan (Mr. CAMP) that the House suspend the rules and pass the bill.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 275, nays 149, not voting 10, as follows:

[Roll No. 562]

YEAS—275

Aderholt
Amash
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bera (CA)
Bilirakis
Bishop (GA)
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Brownley (CA)
Buchanan
Bucshon
Burgess
Bustos
Byrne
Calvert
Camp
Capito
Capps
Carter
Cassidy
Castro (TX)
Chabot
Chaffetz
Clawson (FL)
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Costa
Cotton
Courtney
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis, Rodney
Delaney
DelBene
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Enyart
Esty
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallego
Garamendi
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Gene
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Keating
Kelly (PA)
Kilmer
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kirkpatrick
Kline
Kuster
Labrador
LaMalfa
Lamborn
Lance
Lankford
Larson (CT)
Latham
Latta
Lipinski
LoBiondo
Loebsack
Long
Lucas
Luetkemeyer
Lujan Grisham (NM)
Lummis
Maffei
Maloney, Sean
Marchant
Marino
Massie
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Michaud
Miller (FL)
Miller (MI)
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Neal
Neugebauer
Noem
Nolan
Nugent
Nunes
Nunnelee
Olson
Owens
Palazzo
Paulsen
Pearce
Perry
Peters (CA)
Peters (MI)
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Quigley
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Runyan
Ryan (WI)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Scalise
Schneider
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shea-Porter
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Turner
Upton
Valadao
Vela
Wagner
Walberg
Walden
Walorski
Walz
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NAYS—149

Adams
Bass
Beatty
Becerra
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Butterfield
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Crowley
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
DeLauro
Deutch
Dingell
Doggett
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Grayson
Green, Al
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Kelly (IL)
Kennedy
Kildee
Kind
Langevin
Larsen (WA)
Lee (CA)
Levin
Lewis
Lofgren
Lowenthal
Lowey
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Miller, George
Moore
Moran
Nadler
Napolitano
Norcross
O'Rourke
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peterson
Pingree (ME)
Pocan
Polis
Price (NC)
Rahall
Rangel
Richmond
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Velázquez
Visclosky
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—10

Campbell
Capuano
Duckworth
Gohmert
Hall
Hensarling
Matheson
Miller, Gary
Negrete McLeod
Smith (WA)

□ 1226

So (two-thirds not being in the affirmative) the motion was rejected.

The result of the vote was announced as above recorded.

THE JOURNAL

The SPEAKER pro tempore. The unfinished business is the question on agreeing to the Speaker's approval of the Journal, which the Chair will put de novo.

The question is on the Speaker's approval of the Journal.

Pursuant to clause 1, rule I, the Journal stands approved.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Curtis, one of its clerks, announced that the Senate has passed without amendment bills of the House of the following titles:

H.R. 1447. An act to encourage States to report to the Attorney General certain information regarding the deaths of individuals in the custody of law enforcement agencies, and for other purposes.

H.R. 3374. An act to provide for the use of savings promotion raffle products by financial institutions to encourage savings, and for other purposes.

H.R. 4193. An act to amend title 5, United States Code, to change the default investment fund under the Thrift Savings Plan, and for other purposes.

H.R. 4926. An act to designate a segment of Interstate Route 35 in the State of Minnesota as the ''James L. Oberstar Memorial Highway''.

H.R. 5705. An act to modify certain provisions relating to the Propane Education and Research Council.

The message also announced that the Senate has passed a bill of the following title in which the concurrence of the House is requested:

S. 2822. An act to require the Secretary of Veterans Affairs to conduct a study on matters relating to the burial of unclaimed remains of veterans in national cemeteries, and for other purposes.

SUBMISSION OF MATERIAL EXPLANATORY OF THE AMENDMENT OF THE HOUSE OF REPRESENTATIVES TO THE AMENDMENT OF THE SENATE TO H.R. 83

Pursuant to section 3 of House Resolution 776, the chairman of the Committee on Appropriations submitted explanatory material relating to the amendment of the House of Representatives to the amendment of the Senate to H.R. 83. The contents of this submission will be published in Book II of this RECORD.

INSULAR AREAS AND FREELY ASSOCIATED STATES ENERGY DEVELOPMENT

Mr. ROGERS of Kentucky. Mr. Speaker, pursuant to House Resolution 776, I call up the bill (H.R. 83) to require the Secretary of the Interior to assemble a team of technical, policy, and financial experts to address the energy needs of the insular areas of the United States and the Freely Associated States through the development of energy action plans aimed at promoting access to affordable, reliable energy, including increasing use of indigenous clean-energy resources, and for other purposes, with the Senate amendment thereto, and ask for its immediate consideration.

The Clerk read the title of the bill.

The SPEAKER pro tempore (Mr. HASTINGS of Washington). The Clerk will designate the Senate amendment.

Senate amendment:

Strike all after the enacting clause and insert the following:

SECTION 1. STUDY OF ELECTRIC RATES IN THE INSULAR AREAS.

(a) DEFINITIONS.—In this section:

(1) COMPREHENSIVE ENERGY PLAN.—The term ''comprehensive energy plan'' means a comprehensive energy plan prepared and updated under subsections (c) and (e) of section 604 of the Act entitled ''An Act to authorize appropriations for certain insular areas of the United States, and for other purposes'', approved December 24, 1980 (48 U.S.C. 1492).

(2) ENERGY ACTION PLAN.—The term ''energy action plan'' means the plan required by subsection (d).

(3) FREELY ASSOCIATED STATES.—The term ''Freely Associated States'' means the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau.

(4) INSULAR AREAS.—The term ''insular areas'' means American Samoa, the Commonwealth of the Northern Mariana Islands, Puerto Rico, Guam, and the Virgin Islands.

(5) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(6) TEAM.—The term ''team'' means the team established by the Secretary under subsection (b).

(b) ESTABLISHMENT.—Not later than 180 days after the date of enactment of this Act, the Secretary shall, within the Empowering Insular Communities activity, establish a team of technical, policy, and financial experts—

(1) to develop an energy action plan addressing the energy needs of each of the insular areas and Freely Associated States; and

(2) to assist each of the insular areas and Freely Associated States in implementing such plan.

(c) PARTICIPATION OF REGIONAL UTILITY ORGANIZATIONS.—In establishing the team, the Secretary shall consider including regional utility organizations.

(d) ENERGY ACTION PLAN.—In accordance with subsection (b), the energy action plan shall include—

(1) recommendations, based on the comprehensive energy plan where applicable, to—

(A) reduce reliance and expenditures on fuel shipped to the insular areas and Freely Associated States from ports outside the United States;

(B) develop and utilize domestic fuel energy sources; and

(C) improve performance of energy infrastructure and overall energy efficiency;

(2) a schedule for implementation of such recommendations and identification and prioritization of specific projects;

(3) a financial and engineering plan for implementing and sustaining projects; and

(4) benchmarks for measuring progress toward implementation.

(e) REPORTS TO SECRETARY.—Not later than 1 year after the date on which the Secretary establishes the team and annually thereafter, the team shall submit to the Secretary a report detailing progress made in fulfilling its charge and in implementing the energy action plan.

(f) ANNUAL REPORTS TO CONGRESS.—Not later than 30 days after the date on which the Secretary receives a report submitted by the team under subsection (e), the Secretary shall submit to the appropriate committees of Congress a summary of the report of the team.

(g) APPROVAL OF SECRETARY REQUIRED.—The energy action plan shall not be implemented until the Secretary approves the energy action plan.

SEC. 2. AMENDMENTS TO THE CONSOLIDATED NATURAL RESOURCES ACT.

Section 6 of Public Law 94–241 (90 Stat. 263; 122 Stat. 854) is amended—

(1) in subsection (a)(2), by striking ''December 31, 2014, except as provided in subsections (b) and (d)'' and inserting ''December 31, 2019''; and

(2) in subsection (d)—

(A) in the third sentence of paragraph (2), by striking ''not to extend beyond December 31, 2014, unless extended pursuant to paragraph 5 of this subsection'' and inserting '' 'ending on December 31, 2019' '';

(B) by striking paragraph (5); and

(C) by redesignating paragraph (6) as paragraph (5).

MOTION OFFERED BY MR. ROGERS OF KENTUCKY

Mr. ROGERS of Kentucky. Mr. Speaker, I have a motion at the desk.

The SPEAKER pro tempore. The Clerk will designate the motion.

The text of the motion is as follows:

Mr. Rogers of Kentucky moves that the House concur in the Senate amendment to H.R. 83 with an amendment.

The text of the House amendment to the Senate amendment to the text is as follows:

In lieu of the matter proposed to be inserted by the Senate, insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Consolidated and Further Continuing Appropriations Act, 2015''.

SEC. 2. TABLE OF CONTENTS.

The table of contents of this Act is as follows:

Sec. 1. Short title.
Sec. 2. Table of contents.
Sec. 3. References.
Sec. 4. Explanatory statement.
Sec. 5. Statement of appropriations.
Sec. 6. Availability of funds.
Sec. 7. Technical allowance for estimating differences.
Sec. 8. Adjustments to compensation.
Sec. 9. Study of electric rates in the insular areas.
Sec. 10. Amendments to the Consolidated Natural Resources Act.
Sec. 11. Payments in lieu of taxes.

DIVISION A—AGRICULTURE, RURAL DEVELOPMENT, FOOD AND DRUG ADMINISTRATION, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015

Title I—Agricultural Programs
Title II—Conservation Programs
Title III—Rural Development Programs
Title IV—Domestic Food Programs
Title V—Foreign Assistance and Related Programs
Title VI—Related Agency and Food and Drug Administration
Title VII—General Provisions
Title VIII—Ebola Response and Preparedness

DIVISION B—COMMERCE, JUSTICE, SCIENCE, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015

Title I—Department of Commerce
Title II—Department of Justice
Title III—Science
Title IV—Related Agencies
Title V—General Provisions
Title VI—Travel Promotion, Enhancement, and Modernization Act of 2014
Title VII—Revitalize American Manufacturing and Innovation Act of 2014

DIVISION C—DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2015

Title I—Military Personnel
Title II—Operation and Maintenance
Title III—Procurement
Title IV—Research, Development, Test and Evaluation
Title V—Revolving and Management Funds
Title VI—Other Department of Defense Programs
Title VII—Related Agencies
Title VIII—General Provisions
Title IX—Overseas Contingency Operations
Title X—Ebola Response and Preparedness

DIVISION D—ENERGY AND WATER DEVELOPMENT AND RELATED AGENCIES APPROPRIATIONS ACT, 2015

Title I—Corps of Engineers—Civil
Title II—Department of the Interior
Title III—Department of Energy
Title IV—Independent Agencies
Title V—General Provisions

DIVISION E—FINANCIAL SERVICES AND GENERAL GOVERNMENT APPROPRIATIONS ACT, 2015

Title I—Department of the Treasury

Title II—Executive Office of the President and Funds Appropriated to the President
Title III—The Judiciary
Title IV—District of Columbia
Title V—Independent Agencies
Title VI—General Provisions—This Act
Title VII—General Provisions—Government-wide
Title VIII—General Provisions—District of Columbia
DIVISION F—DEPARTMENT OF THE INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015
Title I—Department of the Interior
Title II—Environmental Protection Agency
Title III—Related Agencies
Title IV—General Provisions
DIVISION G—DEPARTMENTS OF LABOR, HEALTH AND HUMAN SERVICES, AND EDUCATION, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015
Title I—Department of Labor
Title II—Department of Health and Human Services
Title III—Department of Education
Title IV—Related Agencies
Title V—General Provisions
Title VI—Ebola Response and Preparedness
DIVISION H—LEGISLATIVE BRANCH APPROPRIATIONS ACT, 2015
Title I—Legislative Branch
Title II—General Provisions
DIVISION I—MILITARY CONSTRUCTION AND VETERANS AFFAIRS, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015
Title I—Department of Defense
Title II—Department of Veterans Affairs
Title III—Related Agencies
Title IV—Overseas Contingency Operations
Title V—General Provisions
DIVISION J—DEPARTMENT OF STATE, FOREIGN OPERATIONS, AND RELATED PROGRAMS APPROPRIATIONS ACT, 2015
Title I—Department of State and Related Agency
Title II—United States Agency for International Development
Title III—Bilateral Economic Assistance
Title IV—International Security Assistance
Title V—Multilateral Assistance
Title VI—Export and Investment Assistance
Title VII—General Provisions
Title VIII—Overseas Contingency Operations
Title IX—Ebola Response and Preparedness
DIVISION K—TRANSPORTATION, HOUSING AND URBAN DEVELOPMENT, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015
Title I—Department of Transportation
Title II—Department of Housing and Urban Development
Title III—Related Agencies
Title IV—General Provisions—This Act
DIVISION L—FURTHER CONTINUING APPROPRIATIONS, 2015
DIVISION M—EXPATRIATE HEALTH COVERAGE CLARIFICATION ACT OF 2014
DIVISION N—OTHER MATTERS
DIVISION O—MULTIEMPLOYER PENSION REFORM
Title I—Modifications to Multiemployer Plan Rules
Title II—Remediation Measures for Deeply Troubled Plans

SEC. 3. REFERENCES.

Except as expressly provided otherwise, any reference to ''this Act'' contained in any division of this Act shall be treated as referring only to the provisions of that division.

SEC. 4. EXPLANATORY STATEMENT.

The explanatory statement regarding this Act, printed in the House of Representatives section of the Congressional Record on or about December 11, 2014 by the Chairman of the Committee on Appropriations of the House, shall have the same effect with respect to the allocation of funds and implementation of divisions A through K of this Act as if it were a joint explanatory statement of a committee of conference.

SEC. 5. STATEMENT OF APPROPRIATIONS.

The following sums in this Act are appropriated, out of any money in the Treasury not otherwise appropriated, for the fiscal year ending September 30, 2015.

SEC. 6. AVAILABILITY OF FUNDS.

(a) Each amount designated in this Act by the Congress as an emergency requirement pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985 shall be available only if the President subsequently so designates all such amounts and transmits such designations to the Congress.

(b) Each amount designated in this Act by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985 shall be available (or rescinded, if applicable) only if the President subsequently so designates all such amounts and transmits such designations to the Congress.

SEC. 7. TECHNICAL ALLOWANCE FOR ESTIMATING DIFFERENCES.

If, for fiscal year 2015, new budget authority provided in appropriations Acts exceeds the discretionary spending limit for any category set forth in section 251(c) of the Balanced Budget and Emergency Deficit Control Act of 1985 due to estimating differences with the Congressional Budget Office, an adjustment to the discretionary spending limit in such category for fiscal year 2015 shall be made by the Director of the Office of Management and Budget in the amount of the excess but the total of all such adjustments shall not exceed 0.2 percent of the sum of the adjusted discretionary spending limits for all categories for that fiscal year.

SEC. 8. ADJUSTMENTS TO COMPENSATION.

Notwithstanding any other provision of law, no adjustment shall be made under section 610(a) of the Legislative Reorganization Act of 1946 (2 U.S.C. 31) (relating to cost of living adjustments for Members of Congress) during fiscal year 2015.

SEC. 9. STUDY OF ELECTRIC RATES IN THE INSULAR AREAS.

(a) DEFINITIONS.—In this section:

(1) COMPREHENSIVE ENERGY PLAN.—The term ''comprehensive energy plan'' means a comprehensive energy plan prepared and updated under subsections (c) and (e) of section 604 of the Act entitled ''An Act to authorize appropriations for certain insular areas of the United States, and for other purposes'', approved December 24, 1980 (48 U.S.C. 1492).

(2) ENERGY ACTION PLAN.—The term ''energy action plan'' means the plan required by subsection (d).

(3) FREELY ASSOCIATED STATES.—The term ''Freely Associated States'' means the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau.

(4) INSULAR AREAS.—The term ''insular areas'' means American Samoa, the Commonwealth of the Northern Mariana Islands, Puerto Rico, Guam, and the Virgin Islands.

(5) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(6) TEAM.—The term ''team'' means the team established by the Secretary under subsection (b).

(b) ESTABLISHMENT.—Not later than 180 days after the date of enactment of this Act, the Secretary shall, within the Empowering Insular Communities activity, establish a team of technical, policy, and financial experts—

(1) to develop an energy action plan addressing the energy needs of each of the insular areas and Freely Associated States; and

(2) to assist each of the insular areas and Freely Associated States in implementing such plan.

(c) PARTICIPATION OF REGIONAL UTILITY ORGANIZATIONS.—In establishing the team, the Secretary shall consider including regional utility organizations.

(d) ENERGY ACTION PLAN.—In accordance with subsection (b), the energy action plan shall include—

(1) recommendations, based on the comprehensive energy plan where applicable, to—

(A) reduce reliance and expenditures on fuel shipped to the insular areas and Freely Associated States from ports outside the United States;

(B) develop and utilize domestic fuel energy sources; and

(C) improve performance of energy infrastructure and overall energy efficiency;

(2) a schedule for implementation of such recommendations and identification and prioritization of specific projects;

(3) a financial and engineering plan for implementing and sustaining projects; and

(4) benchmarks for measuring progress toward implementation.

(e) REPORTS TO SECRETARY.—Not later than 1 year after the date on which the Secretary establishes the team and annually thereafter, the team shall submit to the Secretary a report detailing progress made in fulfilling its charge and in implementing the energy action plan.

(f) ANNUAL REPORTS TO CONGRESS.—Not later than 30 days after the date on which the Secretary receives a report submitted by the team under subsection (e), the Secretary shall submit to the appropriate committees of Congress a summary of the report of the team.

(g) APPROVAL OF SECRETARY REQUIRED.—The energy action plan shall not be implemented until the Secretary approves the energy action plan.

SEC. 10. AMENDMENTS TO THE CONSOLIDATED NATURAL RESOURCES ACT.

Section 6 of Public Law 94–241 (90 Stat. 263; 122 Stat. 854) is amended—

(1) in subsection (a)(2), by striking ''December 31, 2014, except as provided in subsections (b) and (d)'' and inserting ''December 31, 2019''; and

(2) in subsection (d)—

(A) in the third sentence of paragraph (2), by striking ''not to extend beyond December 31, 2014, unless extended pursuant to paragraph 5 of this subsection'' and inserting '' 'ending on December 31, 2019' '';

(B) by striking paragraph (5); and

(C) by redesignating paragraph (6) as paragraph (5).

SEC. 11. PAYMENTS IN LIEU OF TAXES.

(a) For payments in lieu of taxes under chapter 69 of title 31, United States Code, for fiscal year 2015, $372,000,000 shall be available to the Secretary of the Interior.

(b) The amount made available in subsection (a) shall be in addition to amounts made available for payments in lieu of taxes by the Carl Levin and Howard P. ''Buck'' McKeon National Defense Authorization Act for Fiscal Year 2015.

DIVISION A—AGRICULTURE, RURAL DEVELOPMENT, FOOD AND DRUG ADMINISTRATION, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015

TITLE I

AGRICULTURAL PROGRAMS

PRODUCTION, PROCESSING AND MARKETING

OFFICE OF THE SECRETARY

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Office of the Secretary, $45,805,000, of which not to exceed $5,051,000 shall be available for the immediate Office of the Secretary; not to exceed $502,000 shall be available for the Office of Tribal Relations; not to exceed $1,496,000 shall be available for the Office of Homeland Security and Emergency Coordination; not to exceed $1,209,000 shall be available for the Office of Advocacy and Outreach; not to exceed $25,928,000 shall be available for the Office of the Assistant Secretary for Administration, of which $25,124,000 shall be available for Departmental Administration to provide for necessary expenses for management support services to offices of the Department and for general administration, security, repairs and alterations, and other miscellaneous supplies and expenses not otherwise provided for and necessary for the practical and efficient work of the Department; not to exceed $3,869,000 shall be available for the Office of Assistant Secretary for Congressional Relations to carry out the programs funded by this Act, including programs involving intergovernmental affairs and liaison within the executive branch; and not to exceed $7,750,000 shall be available for the Office of Communications: *Provided*, That the Secretary of Agriculture is authorized to transfer funds appropriated for any office of the Office of the Secretary to any other office of the Office of the Secretary: *Provided further*, That no appropriation for any office shall be increased or decreased by more than 5 percent: *Provided further*, That not to exceed $11,000 of the amount made available under this paragraph for the immediate Office of the Secretary shall be available for official reception and representation expenses, not otherwise provided for, as determined by the Secretary: *Provided further*, That the amount made available under this heading for Departmental Administration shall be reimbursed from applicable appropriations in this Act for travel expenses incident to the holding of hearings as required by 5 U.S.C. 551–558: *Provided further*, That funds made available under this heading for the Office of the Assistant Secretary for Congressional Relations may be transferred to agencies of the Department of Agriculture funded by this Act to maintain personnel at the agency level: *Provided further*, That no funds made available under this heading for the Office of Assistant Secretary for Congressional Relations may be obligated after 30 days from the date of enactment of this Act, unless the Secretary has notified the Committees on Appropriations of both Houses of Congress on the allocation of these funds by USDA agency.

EXECUTIVE OPERATIONS

OFFICE OF THE CHIEF ECONOMIST

For necessary expenses of the Office of the Chief Economist, $17,377,000, of which $4,000,000 shall be for grants or cooperative agreements for policy research under 7 U.S.C. 3155.

NATIONAL APPEALS DIVISION

For necessary expenses of the National Appeals Division, $13,317,000.

OFFICE OF BUDGET AND PROGRAM ANALYSIS

For necessary expenses of the Office of Budget and Program Analysis, $9,392,000.

OFFICE OF THE CHIEF INFORMATION OFFICER

For necessary expenses of the Office of the Chief Information Officer, $45,045,000, of which not less than $28,000,000 is for cybersecurity requirements of the Department.

OFFICE OF THE CHIEF FINANCIAL OFFICER

For necessary expenses of the Office of the Chief Financial Officer, $6,028,000.

OFFICE OF THE ASSISTANT SECRETARY FOR CIVIL RIGHTS

For necessary expenses of the Office of the Assistant Secretary for Civil Rights, $898,000.

OFFICE OF CIVIL RIGHTS

For necessary expenses of the Office of Civil Rights, $24,070,000.

AGRICULTURE BUILDINGS AND FACILITIES

(INCLUDING TRANSFERS OF FUNDS)

For payment of space rental and related costs pursuant to Public Law 92–313, including authorities pursuant to the 1984 delegation of authority from the Administrator of General Services to the Department of Agriculture under 40 U.S.C. 121, for programs and activities of the Department which are included in this Act, and for alterations and other actions needed for the Department and its agencies to consolidate unneeded space into configurations suitable for release to the Administrator of General Services, and for the operation, maintenance, improvement, and repair of Agriculture buildings and facilities, and for related costs, $55,866,000, to remain available until expended, for buildings operations and maintenance expenses: *Provided*, That the Secretary may use unobligated prior year balances of an agency or office that are no longer available for new obligation to cover shortfalls incurred in prior or current year rental payments for such agency or office.

HAZARDOUS MATERIALS MANAGEMENT

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Department of Agriculture, to comply with the Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. 9601 et seq.) and the Resource Conservation and Recovery Act (42 U.S.C. 6901 et seq.), $3,600,000, to remain available until expended: *Provided*, That appropriations and funds available herein to the Department for Hazardous Materials Management may be transferred to any agency of the Department for its use in meeting all requirements pursuant to the above Acts on Federal and non-Federal lands.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General, including employment pursuant to the Inspector General Act of 1978, $95,026,000, including such sums as may be necessary for contracting and other arrangements with public agencies and private persons pursuant to section 6(a)(9) of the Inspector General Act of 1978, and including not to exceed $125,000 for certain confidential operational expenses, including the payment of informants, to be expended under the direction of the Inspector General pursuant to Public Law 95–452 and section 1337 of Public Law 97–98.

OFFICE OF THE GENERAL COUNSEL

For necessary expenses of the Office of the General Counsel, $44,383,000.

OFFICE OF ETHICS

For necessary expenses of the Office of Ethics, $3,654,000.

OFFICE OF THE UNDER SECRETARY FOR RESEARCH, EDUCATION, AND ECONOMICS

For necessary expenses of the Office of the Under Secretary for Research, Education, and Economics, $898,000.

ECONOMIC RESEARCH SERVICE

For necessary expenses of the Economic Research Service, $85,373,000.

NATIONAL AGRICULTURAL STATISTICS SERVICE

For necessary expenses of the National Agricultural Statistics Service, $172,408,000, of which up to $47,842,000 shall be available until expended for the Census of Agriculture: *Provided*, That amounts made available for the Census of Agriculture may be used to conduct Current Industrial Report surveys subject to 7 U.S.C. 2204g(d) and (f).

AGRICULTURAL RESEARCH SERVICE

SALARIES AND EXPENSES

For necessary expenses of the Agricultural Research Service and for acquisition of lands by donation, exchange, or purchase at a nominal cost not to exceed $100, and for land exchanges where the lands exchanged shall be of equal value or shall be equalized by a payment of money to the grantor which shall not exceed 25 percent of the total value of the land or interests transferred out of Federal ownership, $1,132,625,000: *Provided*, That appropriations hereunder shall be available for the operation and maintenance of aircraft and the purchase of not to exceed one for replacement only: *Provided further*, That appropriations hereunder shall be available pursuant to 7 U.S.C. 2250 for the construction, alteration, and repair of buildings and improvements, but unless otherwise provided, the cost of constructing any one building shall not exceed $375,000, except for headhouses or greenhouses which shall each be limited to $1,200,000, and except for 10 buildings to be constructed or improved at a cost not to exceed $750,000 each, and the cost of altering any one building during the fiscal year shall not exceed 10 percent of the current replacement value of the building or $375,000, whichever is greater: *Provided further*, That the limitations on alterations contained in this Act shall not apply to modernization or replacement of existing facilities at Beltsville, Maryland: *Provided further*, That appropriations hereunder shall be available for granting easements at the Beltsville Agricultural Research Center: *Provided further*, That the foregoing limitations shall not apply to replacement of buildings needed to carry out the Act of April 24, 1948 (21 U.S.C. 113a): *Provided further*, That appropriations hereunder shall be available for granting easements at any Agricultural Research Service location for the construction of a research facility by a non-Federal entity for use by, and acceptable to, the Agricultural Research Service and a condition of the easements shall be that upon completion the facility shall be accepted by the Secretary, subject to the availability of funds herein, if the Secretary finds that acceptance of the facility is in the interest of the United States: *Provided further*, That funds may be received from any State, other political subdivision, organization, or individual for the purpose of establishing or operating any research facility or research project of the Agricultural Research Service, as authorized by law: *Provided further*, That subject to such terms and conditions as the Secretary of Agriculture considers appropriate to protect the interest of the United States, the Secretary may enter into a lease of Agricultural Research Service land in order to allow for the drilling of not more than three irrigation wells; the term of the lease may not exceed 20 years, but the Secretary may renew the lease for one or more additional 20-year periods.

BUILDINGS AND FACILITIES

For the acquisition of land, construction, repair, improvement, extension, alteration, and purchase of fixed equipment or facilities as necessary to carry out the agricultural research programs of the Department of Agriculture, where not otherwise provided,

$45,000,000 to remain available until expended.

NATIONAL INSTITUTE OF FOOD AND AGRICULTURE

RESEARCH AND EDUCATION ACTIVITIES

For payments to agricultural experiment stations, for cooperative forestry and other research, for facilities, and for other expenses, $786,874,000, which shall be for the purposes, and in the amounts, specified in the table titled ''National Institute of Food and Agriculture, Research and Education Activities'' in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act): *Provided*, That funds for research grants for 1994 institutions, education grants for 1890 institutions, capacity building for non-land-grant colleges of agriculture, the agriculture and food research initiative, veterinary medicine loan repayment, multicultural scholars, graduate fellowship and institution challenge grants, and grants management systems shall remain available until expended: *Provided further*, That each institution eligible to receive funds under the Evans-Allen program receives no less than $1,000,000: *Provided further*, That funds for education grants for Alaska Native and Native Hawaiian-serving institutions be made available to individual eligible institutions or consortia of eligible institutions with funds awarded equally to each of the States of Alaska and Hawaii: *Provided further*, That funds for education grants for 1890 institutions shall be made available to institutions eligible to receive funds under 7 U.S.C. 3221 and 3222: *Provided further*, That not more than 5 percent of the amounts made available by this or any other Act to carry out the Agriculture and Food Research Initiative under 7 U.S.C. 450i(b) may be retained by the Secretary of Agriculture to pay administrative costs incurred by the Secretary in carrying out that authority.

NATIVE AMERICAN INSTITUTIONS ENDOWMENT FUND

For the Native American Institutions Endowment Fund authorized by Public Law 103–382 (7 U.S.C. 301 note), $11,880,000, to remain available until expended.

EXTENSION ACTIVITIES

For payments to States, the District of Columbia, Puerto Rico, Guam, the Virgin Islands, Micronesia, the Northern Marianas, and American Samoa, $471,691,000, which shall be for the purposes, and in the amounts, specified in the table titled ''National Institute of Food and Agriculture, Extension Activities'' in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act): *Provided*, That funds for facility improvements at 1890 institutions shall remain available until expended: *Provided further*, That institutions eligible to receive funds under 7 U.S.C. 3221 for cooperative extension receive no less than $1,000,000: *Provided further*, That funds for cooperative extension under sections 3(b) and (c) of the Smith-Lever Act (7 U.S.C. 343(b) and (c)) and section 208(c) of Public Law 93–471 shall be available for retirement and employees' compensation costs for extension agents.

INTEGRATED ACTIVITIES

For the integrated research, education, and extension grants programs, including necessary administrative expenses, $30,900,000, which shall be for the purposes, and in the amounts, specified in the table titled ''National Institute of Food and Agriculture, Integrated Activities'' in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act): *Provided*, That funds for the Food and Agriculture Defense Initiative shall remain available until September 30, 2016.

OFFICE OF THE UNDER SECRETARY FOR MARKETING AND REGULATORY PROGRAMS

For necessary expenses of the Office of the Under Secretary for Marketing and Regulatory Programs, $898,000.

ANIMAL AND PLANT HEALTH INSPECTION SERVICE

SALARIES AND EXPENSES

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Animal and Plant Health Inspection Service, including up to $30,000 for representation allowances and for expenses pursuant to the Foreign Service Act of 1980 (22 U.S.C. 4085), $871,315,000, of which $470,000, to remain available until expended, shall be available for the control of outbreaks of insects, plant diseases, animal diseases and for control of pest animals and birds (''contingency fund'') to the extent necessary to meet emergency conditions; of which $11,520,000, to remain available until expended, shall be used for the cotton pests program for cost share purposes or for debt retirement for active eradication zones; of which $35,339,000, to remain available until expended, shall be for Animal Health Technical Services; of which $697,000 shall be for activities under the authority of the Horse Protection Act of 1970, as amended (15 U.S.C. 1831); of which $52,340,000, to remain available until expended, shall be used to support avian health; of which $4,251,000, to remain available until expended, shall be for information technology infrastructure; of which $156,000,000, to remain available until expended, shall be for specialty crop pests; of which, $8,826,000, to remain available until expended, shall be for field crop and rangeland ecosystem pests; of which $54,000,000, to remain available until expended, shall be for tree and wood pests; of which $3,973,000, to remain available until expended, shall be for the National Veterinary Stockpile; of which up to $1,500,000, to remain available until expended, shall be for the scrapie program for indemnities; of which $1,500,000, to remain available until expended, shall be for the wildlife damage management program for aviation safety: *Provided*, That of amounts available under this heading for wildlife services methods development, $1,000,000 shall remain available until expended: *Provided further*, That of amounts available under this heading for the screwworm program, $4,990,000 shall remain available until expended: *Provided further*, That no funds shall be used to formulate or administer a brucellosis eradication program for the current fiscal year that does not require minimum matching by the States of at least 40 percent: *Provided further*, That this appropriation shall be available for the operation and maintenance of aircraft and the purchase of not to exceed four, of which two shall be for replacement only: *Provided further*, That in addition, in emergencies which threaten any segment of the agricultural production industry of this country, the Secretary may transfer from other appropriations or funds available to the agencies or corporations of the Department such sums as may be deemed necessary, to be available only in such emergencies for the arrest and eradication of contagious or infectious disease or pests of animals, poultry, or plants, and for expenses in accordance with sections 10411 and 10417 of the Animal Health Protection Act (7 U.S.C. 8310 and 8316) and sections 431 and 442 of the Plant Protection Act (7 U.S.C. 7751 and 7772), and any unexpended balances of funds transferred for such emergency purposes in the preceding fiscal year shall be merged with such transferred amounts: *Provided further*, That appropriations hereunder shall be available pursuant to law (7 U.S.C. 2250) for the repair and alteration of leased buildings and improvements, but unless otherwise provided the cost of altering any one building during the fiscal year shall not exceed 10 percent of the current replacement value of the building.

In fiscal year 2015, the agency is authorized to collect fees to cover the total costs of providing technical assistance, goods, or services requested by States, other political subdivisions, domestic and international organizations, foreign governments, or individuals, provided that such fees are structured such that any entity's liability for such fees is reasonably based on the technical assistance, goods, or services provided to the entity by the agency, and such fees shall be reimbursed to this account, to remain available until expended, without further appropriation, for providing such assistance, goods, or services.

BUILDINGS AND FACILITIES

For plans, construction, repair, preventive maintenance, environmental support, improvement, extension, alteration, and purchase of fixed equipment or facilities, as authorized by 7 U.S.C. 2250, and acquisition of land as authorized by 7 U.S.C. 428a, $3,175,000, to remain available until expended.

AGRICULTURAL MARKETING SERVICE

MARKETING SERVICES

For necessary expenses of the Agricultural Marketing Service, $81,192,000: *Provided*, That this appropriation shall be available pursuant to law (7 U.S.C. 2250) for the alteration and repair of buildings and improvements, but the cost of altering any one building during the fiscal year shall not exceed 10 percent of the current replacement value of the building.

Fees may be collected for the cost of standardization activities, as established by regulation pursuant to law (31 U.S.C. 9701).

LIMITATION ON ADMINISTRATIVE EXPENSES

Not to exceed $60,709,000 (from fees collected) shall be obligated during the current fiscal year for administrative expenses: *Provided*, That if crop size is understated and/or other uncontrollable events occur, the agency may exceed this limitation by up to 10 percent with notification to the Committees on Appropriations of both Houses of Congress.

FUNDS FOR STRENGTHENING MARKETS, INCOME, AND SUPPLY (SECTION 32)

(INCLUDING TRANSFERS OF FUNDS)

Funds available under section 32 of the Act of August 24, 1935 (7 U.S.C. 612c), shall be used only for commodity program expenses as authorized therein, and other related operating expenses, except for: (1) transfers to the Department of Commerce as authorized by the Fish and Wildlife Act of August 8, 1956; (2) transfers otherwise provided in this Act; and (3) not more than $20,186,000 for formulation and administration of marketing agreements and orders pursuant to the Agricultural Marketing Agreement Act of 1937 and the Agricultural Act of 1961.

PAYMENTS TO STATES AND POSSESSIONS

For payments to departments of agriculture, bureaus and departments of markets, and similar agencies for marketing activities under section 204(b) of the Agricultural Marketing Act of 1946 (7 U.S.C. 1623(b)), $1,235,000.

GRAIN INSPECTION, PACKERS AND STOCKYARDS ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses of the Grain Inspection, Packers and Stockyards Administration, $43,048,000: *Provided*, That this appropriation shall be available pursuant to law (7

U.S.C. 2250) for the alteration and repair of buildings and improvements, but the cost of altering any one building during the fiscal year shall not exceed 10 percent of the current replacement value of the building.

LIMITATION ON INSPECTION AND WEIGHING SERVICES EXPENSES

Not to exceed $50,000,000 (from fees collected) shall be obligated during the current fiscal year for inspection and weighing services: *Provided*, That if grain export activities require additional supervision and oversight, or other uncontrollable factors occur, this limitation may be exceeded by up to 10 percent with notification to the Committees on Appropriations of both Houses of Congress.

OFFICE OF THE UNDER SECRETARY FOR FOOD SAFETY

For necessary expenses of the Office of the Under Secretary for Food Safety, $816,000.

FOOD SAFETY AND INSPECTION SERVICE

For necessary expenses to carry out services authorized by the Federal Meat Inspection Act, the Poultry Products Inspection Act, and the Egg Products Inspection Act, including not to exceed $50,000 for representation allowances and for expenses pursuant to section 8 of the Act approved August 3, 1956 (7 U.S.C. 1766), $1,016,474,000; and in addition, $1,000,000 may be credited to this account from fees collected for the cost of laboratory accreditation as authorized by section 1327 of the Food, Agriculture, Conservation and Trade Act of 1990 (7 U.S.C. 138f): *Provided*, That funds provided for the Public Health Data Communication Infrastructure system shall remain available until expended: *Provided further*, That no fewer than 148 full-time equivalent positions shall be employed during fiscal year 2015 for purposes dedicated solely to inspections and enforcement related to the Humane Methods of Slaughter Act: *Provided further*, That the Food Safety and Inspection Service shall continue implementation of section 11016 of Public Law 110–246 as further clarified by the amendments made in section 12106 of Public Law 113–79: *Provided further*, That this appropriation shall be available pursuant to law (7 U.S.C. 2250) for the alteration and repair of buildings and improvements, but the cost of altering any one building during the fiscal year shall not exceed 10 percent of the current replacement value of the building.

OFFICE OF THE UNDER SECRETARY FOR FARM AND FOREIGN AGRICULTURAL SERVICES

For necessary expenses of the Office of the Under Secretary for Farm and Foreign Agricultural Services, $898,000.

FARM SERVICE AGENCY

SALARIES AND EXPENSES

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Farm Service Agency, $1,200,180,000: *Provided*, That not more than 50 percent of the $132,364,000 made available under this heading for information technology related to farm program delivery, including the Modernize and Innovate the Delivery of Agricultural Systems (MIDAS) and other farm program delivery systems, may be obligated until the Secretary submits to the Committees on Appropriations a plan for expenditure that (1) identifies for each project/investment over $25,000 (a) the functional and performance capabilities to be delivered and the mission benefits to be realized, (b) the estimated lifecycle cost, including estimates for development as well as maintenance and operations, and (c) key milestones to be met; (2) demonstrates that each project/investment is, (a) consistent with the Farm Service Agency Information Technology Roadmap, (b) being managed in accordance with applicable lifecycle management policies and guidance, and (c) subject to the applicable Department's capital planning and investment control requirements; and (3) has been submitted to the Government Accountability Office: *Provided further*, That the agency shall submit a report by the end of the fourth quarter of fiscal year 2015 to the Committees on Appropriations and the Government Accountability Office, that identifies for each project/investment that is operational (a) current performance against key indicators of customer satisfaction, (b) current performance of service level agreements or other technical metrics, (c) current performance against a pre-established cost baseline, (d) a detailed breakdown of current and planned spending on operational enhancements or upgrades, and (e) an assessment of whether the investment continues to meet business needs as intended as well as alternatives to the investment: *Provided further*, That the Secretary is authorized to use the services, facilities, and authorities (but not the funds) of the Commodity Credit Corporation to make program payments for all programs administered by the Agency: *Provided further*, That other funds made available to the Agency for authorized activities may be advanced to and merged with this account: *Provided further*, That funds made available to county committees shall remain available until expended: *Provided further*, That none of the funds available to the Farm Service Agency shall be used to close Farm Service Agency county offices: *Provided further*, That none of the funds available to the Farm Service Agency shall be used to permanently relocate county based employees that would result in an office with two or fewer employees without prior notification and approval of the Committees on Appropriations.

STATE MEDIATION GRANTS

For grants pursuant to section 502(b) of the Agricultural Credit Act of 1987, as amended (7 U.S.C. 5101–5106), $3,404,000.

GRASSROOTS SOURCE WATER PROTECTION PROGRAM

For necessary expenses to carry out wellhead or groundwater protection activities under section 1240O of the Food Security Act of 1985 (16 U.S.C. 3839bb–2), $5,526,000, to remain available until expended.

DAIRY INDEMNITY PROGRAM

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses involved in making indemnity payments to dairy farmers and manufacturers of dairy products under a dairy indemnity program, such sums as may be necessary, to remain available until expended: *Provided*, That such program is carried out by the Secretary in the same manner as the dairy indemnity program described in the Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Act, 2001 (Public Law 106–387, 114 Stat. 1549A–12).

AGRICULTURAL CREDIT INSURANCE FUND PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For gross obligations for the principal amount of direct and guaranteed farm ownership (7 U.S.C. 1922 et seq.) and operating (7 U.S.C. 1941 et seq.) loans, emergency loans (7 U.S.C. 1961 et seq.), Indian tribe land acquisition loans (25 U.S.C. 488), boll weevil loans (7 U.S.C. 1989), guaranteed conservation loans (7 U.S.C. 1924 et seq.), and Indian highly fractionated land loans (25 U.S.C. 488) to be available from funds in the Agricultural Credit Insurance Fund, as follows: $2,000,000,000 for guaranteed farm ownership loans and $1,500,000,000 for farm ownership direct loans; $1,393,443,000 for unsubsidized guaranteed operating loans and $1,252,004,000 for direct operating loans; emergency loans, $34,667,000; Indian tribe land acquisition loans, $2,000,000; guaranteed conservation loans, $150,000,000; Indian highly fractionated land loans, $10,000,000; and for boll weevil eradication program loans, $60,000,000: *Provided*, That the Secretary shall deem the pink bollworm to be a boll weevil for the purpose of boll weevil eradication program loans.

For the cost of direct and guaranteed loans and grants, including the cost of modifying loans as defined in section 502 of the Congressional Budget Act of 1974, as follows: farm operating loans, $63,101,000 for direct operating loans, $14,770,000 for unsubsidized guaranteed operating loans, and emergency loans, $856,000, to remain available until expended.

In addition, for administrative expenses necessary to carry out the direct and guaranteed loan programs, $314,918,000, of which $306,998,000 shall be transferred to and merged with the appropriation for ''Farm Service Agency, Salaries and Expenses''.

Funds appropriated by this Act to the Agricultural Credit Insurance Program Account for farm ownership, operating and conservation direct loans and guaranteed loans may be transferred among these programs: *Provided*, That the Committees on Appropriations of both Houses of Congress are notified at least 15 days in advance of any transfer.

RISK MANAGEMENT AGENCY

SALARIES AND EXPENSES

For necessary expenses of the Risk Management Agency, $74,829,000: *Provided*, That not to exceed $1,000 shall be available for official reception and representation expenses, as authorized by 7 U.S.C. 1506(i).

CORPORATIONS

The following corporations and agencies are hereby authorized to make expenditures, within the limits of funds and borrowing authority available to each such corporation or agency and in accord with law, and to make contracts and commitments without regard to fiscal year limitations as provided by section 104 of the Government Corporation Control Act as may be necessary in carrying out the programs set forth in the budget for the current fiscal year for such corporation or agency, except as hereinafter provided.

FEDERAL CROP INSURANCE CORPORATION FUND

For payments as authorized by section 516 of the Federal Crop Insurance Act (7 U.S.C. 1516), such sums as may be necessary, to remain available until expended.

COMMODITY CREDIT CORPORATION FUND

REIMBURSEMENT FOR NET REALIZED LOSSES

(INCLUDING TRANSFERS OF FUNDS)

For the current fiscal year, such sums as may be necessary to reimburse the Commodity Credit Corporation for net realized losses sustained, but not previously reimbursed, pursuant to section 2 of the Act of August 17, 1961 (15 U.S.C. 713a–11): *Provided*, That of the funds available to the Commodity Credit Corporation under section 11 of the Commodity Credit Corporation Charter Act (15 U.S.C. 714i) for the conduct of its business with the Foreign Agricultural Service, up to $5,000,000 may be transferred to and used by the Foreign Agricultural Service for information resource management activities of the Foreign Agricultural Service that are not related to Commodity Credit Corporation business.

HAZARDOUS WASTE MANAGEMENT

(LIMITATION ON EXPENSES)

For the current fiscal year, the Commodity Credit Corporation shall not expend more than $5,000,000 for site investigation and cleanup expenses, and operations and maintenance expenses to comply with the requirement of section 107(g) of the Comprehensive

Environmental Response, Compensation, and Liability Act (42 U.S.C. 9607(g)), and section 6001 of the Resource Conservation and Recovery Act (42 U.S.C. 6961).

TITLE II

CONSERVATION PROGRAMS

OFFICE OF THE UNDER SECRETARY FOR NATURAL RESOURCES AND ENVIRONMENT

For necessary expenses of the Office of the Under Secretary for Natural Resources and Environment, $898,000.

NATURAL RESOURCES CONSERVATION SERVICE

CONSERVATION OPERATIONS

For necessary expenses for carrying out the provisions of the Act of April 27, 1935 (16 U.S.C. 590a–f), including preparation of conservation plans and establishment of measures to conserve soil and water (including farm irrigation and land drainage and such special measures for soil and water management as may be necessary to prevent floods and the siltation of reservoirs and to control agricultural related pollutants); operation of conservation plant materials centers; classification and mapping of soil; dissemination of information; acquisition of lands, water, and interests therein for use in the plant materials program by donation, exchange, or purchase at a nominal cost not to exceed $100 pursuant to the Act of August 3, 1956 (7 U.S.C. 428a); purchase and erection or alteration or improvement of permanent and temporary buildings; and operation and maintenance of aircraft, $846,428,000, to remain available until September 30, 2016: *Provided*, That appropriations hereunder shall be available pursuant to 7 U.S.C. 2250 for construction and improvement of buildings and public improvements at plant materials centers, except that the cost of alterations and improvements to other buildings and other public improvements shall not exceed $250,000: *Provided further*, That when buildings or other structures are erected on non-Federal land, that the right to use such land is obtained as provided in 7 U.S.C. 2250a: *Provided further*, That of the amounts made available under this heading, $5,600,000, shall remain available until expended for the authorities under 16 U.S.C. 1001–1005 and 1007–1009 for authorized ongoing watershed projects with a primary purpose of providing water to rural communities.

WATERSHED REHABILITATION PROGRAM

Under the authorities of section 14 of the Watershed Protection and Flood Prevention Act, $12,000,000 is provided.

TITLE III

RURAL DEVELOPMENT PROGRAMS

OFFICE OF THE UNDER SECRETARY FOR RURAL DEVELOPMENT

For necessary expenses of the Office of the Under Secretary for Rural Development, $898,000.

RURAL DEVELOPMENT SALARIES AND EXPENSES

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses for carrying out the administration and implementation of programs in the Rural Development mission area, including activities with institutions concerning the development and operation of agricultural cooperatives; and for cooperative agreements; $224,201,000: *Provided*, That no less than $15,000,000 shall be for the Comprehensive Loan Accounting System: *Provided further*, That notwithstanding any other provision of law, funds appropriated under this heading may be used for advertising and promotional activities that support the Rural Development mission area: *Provided further*, That any balances available from prior years for the Rural Utilities Service, Rural Housing Service, and the Rural Business–Cooperative Service salaries and expenses accounts shall be transferred to and merged with this appropriation.

RURAL HOUSING SERVICE

RURAL HOUSING INSURANCE FUND PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For gross obligations for the principal amount of direct and guaranteed loans as authorized by title V of the Housing Act of 1949, to be available from funds in the rural housing insurance fund, as follows: $900,000,000 shall be for direct loans and $24,000,000,000 shall be for unsubsidized guaranteed loans; $26,279,000 for section 504 housing repair loans; $28,398,000 for section 515 rental housing; $150,000,000 for section 538 guaranteed multi-family housing loans; $10,000,000 for credit sales of single family housing acquired property; $5,000,000 for section 523 self-help housing land development loans; and $5,000,000 for section 524 site development loans.

For the cost of direct and guaranteed loans, including the cost of modifying loans, as defined in section 502 of the Congressional Budget Act of 1974, as follows: section 502 loans, $66,420,000 shall be for direct loans; section 504 housing repair loans, $3,687,000; and repair, rehabilitation, and new construction of section 515 rental housing, $9,800,000: *Provided*, That to support the loan program level for section 538 guaranteed loans made available under this heading the Secretary may charge or adjust any fees to cover the projected cost of such loan guarantees pursuant to the provisions of the Credit Reform Act of 1990 (2 U.S.C. 661 et seq.), and the interest on such loans may not be subsidized: *Provided further*, That applicants in communities that have a current rural area waiver under section 541 of the Housing Act of 1949 (42 U.S.C. 1490q) shall be treated as living in a rural area for purposes of section 502 guaranteed loans provided under this heading: *Provided further*, That of the amounts available under this paragraph for section 502 direct loans, no less than $5,000,000 shall be available for direct loans for individuals whose homes will be built pursuant to a program funded with a mutual and self-help housing grant authorized by section 523 of the Housing Act of 1949 until June 1, 2015.

In addition, for the cost of direct loans, grants, and contracts, as authorized by 42 U.S.C. 1484 and 1486, $15,936,000, to remain available until expended, for direct farm labor housing loans and domestic farm labor housing grants and contracts: *Provided*, That any balances available for the Farm Labor Program Account shall be transferred to and merged with this account.

In addition, for administrative expenses necessary to carry out the direct and guaranteed loan programs, $415,100,000 shall be transferred to and merged with the appropriation for ''Rural Development, Salaries and Expenses''.

RENTAL ASSISTANCE PROGRAM

For rental assistance agreements entered into or renewed pursuant to the authority under section 521(a)(2) or agreements entered into in lieu of debt forgiveness or payments for eligible households as authorized by section 502(c)(5)(D) of the Housing Act of 1949, $1,088,500,000; and, in addition, such sums as may be necessary, as authorized by section 521(c) of the Act, to liquidate debt incurred prior to fiscal year 1992 to carry out the rental assistance program under section 521(a)(2) of the Act: *Provided*, That rental assistance agreements entered into or renewed during the current fiscal year shall be funded for a 1-year period: *Provided further*, That rental assistance contracts will not be renewed within the 12-month contract period: *Provided further*, That any unexpended balances remaining at the end of such 1-year agreements may be transferred and used for the purposes of any debt reduction; maintenance, repair, or rehabilitation of any existing projects; preservation; and rental assistance activities authorized under title V of the Act: *Provided further*, That rental assistance provided under agreements entered into prior to fiscal year 2015 for a farm labor multi-family housing project financed under section 514 or 516 of the Act may not be recaptured for use in another project until such assistance has remained unused for a period of 12 consecutive months, if such project has a waiting list of tenants seeking such assistance or the project has rental assistance eligible tenants who are not receiving such assistance: *Provided further*, That such recaptured rental assistance shall, to the extent practicable, be applied to another farm labor multi-family housing project financed under section 514 or 516 of the Act.

MULTI-FAMILY HOUSING REVITALIZATION PROGRAM ACCOUNT

For the rural housing voucher program as authorized under section 542 of the Housing Act of 1949, but notwithstanding subsection (b) of such section, and for additional costs to conduct a demonstration program for the preservation and revitalization of multi-family rental housing properties described in this paragraph, $24,000,000, to remain available until expended: *Provided*, That of the funds made available under this heading, $7,000,000, shall be available for rural housing vouchers to any low-income household (including those not receiving rental assistance) residing in a property financed with a section 515 loan which has been prepaid after September 30, 2005: *Provided further*, That the amount of such voucher shall be the difference between comparable market rent for the section 515 unit and the tenant paid rent for such unit: *Provided further*, That funds made available for such vouchers shall be subject to the availability of annual appropriations: *Provided further*, That the Secretary shall, to the maximum extent practicable, administer such vouchers with current regulations and administrative guidance applicable to section 8 housing vouchers administered by the Secretary of the Department of Housing and Urban Development: *Provided further*, That if the Secretary determines that the amount made available for vouchers in this or any other Act is not needed for vouchers, the Secretary may use such funds for the demonstration program for the preservation and revitalization of multi-family rental housing properties described in this paragraph: *Provided further*, That of the funds made available under this heading, $17,000,000 shall be available for a demonstration program for the preservation and revitalization of the sections 514, 515, and 516 multi-family rental housing properties to restructure existing USDA multi-family housing loans, as the Secretary deems appropriate, expressly for the purposes of ensuring the project has sufficient resources to preserve the project for the purpose of providing safe and affordable housing for low-income residents and farm laborers including reducing or eliminating interest; deferring loan payments, subordinating, reducing or reamortizing loan debt; and other financial assistance including advances, payments and incentives (including the ability of owners to obtain reasonable returns on investment) required by the Secretary: *Provided further*, That the Secretary shall as part of the preservation and revitalization agreement obtain a restrictive use agreement consistent with the terms of the restructuring: *Provided further*, That if the Secretary determines that additional funds for vouchers described in

this paragraph are needed, funds for the preservation and revitalization demonstration program may be used for such vouchers: *Provided further*, That if Congress enacts legislation to permanently authorize a multi-family rental housing loan restructuring program similar to the demonstration program described herein, the Secretary may use funds made available for the demonstration program under this heading to carry out such legislation with the prior approval of the Committees on Appropriations of both Houses of Congress: *Provided further*, That in addition to any other available funds, the Secretary may expend not more than $1,000,000 total, from the program funds made available under this heading, for administrative expenses for activities funded under this heading.

MUTUAL AND SELF-HELP HOUSING GRANTS

For grants and contracts pursuant to section 523(b)(1)(A) of the Housing Act of 1949 (42 U.S.C. 1490c), $27,500,000, to remain available until expended.

RURAL HOUSING ASSISTANCE GRANTS

For grants for very low-income housing repair and rural housing preservation made by the Rural Housing Service, as authorized by 42 U.S.C. 1474, and 1490m, $32,239,000, to remain available until expended.

RURAL COMMUNITY FACILITIES PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For gross obligations for the principal amount of direct and guaranteed loans as authorized by section 306 and described in section 381E(d)(1) of the Consolidated Farm and Rural Development Act, $2,200,000,000 for direct loans and $73,222,000 for guaranteed loans.

For the cost of guaranteed loans, including the cost of modifying loans, as defined in section 502 of the Congressional Budget Act of 1974, $3,500,000, to remain available until expended.

For the cost of grants for rural community facilities programs as authorized by section 306 and described in section 381E(d)(1) of the Consolidated Farm and Rural Development Act, $26,778,000, to remain available until expended: *Provided*, That $4,000,000 of the amount appropriated under this heading shall be available for a Rural Community Development Initiative: *Provided further*, That such funds shall be used solely to develop the capacity and ability of private, nonprofit community-based housing and community development organizations, low-income rural communities, and Federally Recognized Native American Tribes to undertake projects to improve housing, community facilities, community and economic development projects in rural areas: *Provided further*, That such funds shall be made available to qualified private, nonprofit and public intermediary organizations proposing to carry out a program of financial and technical assistance: *Provided further*, That such intermediary organizations shall provide matching funds from other sources, including Federal funds for related activities, in an amount not less than funds provided: *Provided further*, That $5,778,000 of the amount appropriated under this heading shall be to provide grants for facilities in rural communities with extreme unemployment and severe economic depression (Public Law 106–387), with up to 5 percent for administration and capacity building in the State rural development offices: *Provided further*, That $4,000,000 of the amount appropriated under this heading shall be available for community facilities grants to tribal colleges, as authorized by section 306(a)(19) of such Act: *Provided further*, That sections 381E–H and 381N of the Consolidated Farm and Rural Development Act are not applicable to the funds made available under this heading.

RURAL BUSINESS—COOPERATIVE SERVICE

RURAL BUSINESS PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For the cost of loan guarantees and grants, for the rural business development programs authorized by section 310B and described in subsections (a), (c), (f) and (g) of section 310B of the Consolidated Farm and Rural Development Act, $74,000,000, to remain available until expended: *Provided*, That of the amount appropriated under this heading, not to exceed $500,000 shall be made available for one grant to a qualified national organization to provide technical assistance for rural transportation in order to promote economic development and $3,000,000 shall be for grants to the Delta Regional Authority (7 U.S.C. 2009aa et seq.) for any Rural Community Advancement Program purpose as described in section 381E(d) of the Consolidated Farm and Rural Development Act, of which not more than 5 percent may be used for administrative expenses: *Provided further*, That $4,000,000 of the amount appropriated under this heading shall be for business grants to benefit Federally Recognized Native American Tribes, including $250,000 for a grant to a qualified national organization to provide technical assistance for rural transportation in order to promote economic development: *Provided further*, That for purposes of determining eligibility or level of program assistance the Secretary shall not include incarcerated prison populations: *Provided further*, That sections 381E–H and 381N of the Consolidated Farm and Rural Development Act are not applicable to funds made available under this heading.

INTERMEDIARY RELENDING PROGRAM FUND ACCOUNT

(INCLUDING TRANSFER OF FUNDS)

For the principal amount of direct loans, as authorized by the Intermediary Relending Program Fund Account (7 U.S.C. 1936b), $18,889,000.

For the cost of direct loans, $5,818,000, as authorized by the Intermediary Relending Program Fund Account (7 U.S.C 1936b), of which $531,000 shall be available through June 30, 2015, for Federally Recognized Native American Tribes; and of which $1,021,000 shall be available through June 30, 2015, for Mississippi Delta Region counties (as determined in accordance with Public Law 100–460): *Provided*, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974.

In addition, for administrative expenses to carry out the direct loan programs, $4,439,000 shall be transferred to and merged with the appropriation for ''Rural Development, Salaries and Expenses''.

RURAL ECONOMIC DEVELOPMENT LOANS PROGRAM ACCOUNT

(INCLUDING RESCISSION OF FUNDS)

For the principal amount of direct loans, as authorized under section 313 of the Rural Electrification Act, for the purpose of promoting rural economic development and job creation projects, $33,077,000.

Of the funds derived from interest on the cushion of credit payments, as authorized by section 313 of the Rural Electrification Act of 1936, $179,000,000 shall not be obligated and $179,000,000 are rescinded.

RURAL COOPERATIVE DEVELOPMENT GRANTS

For rural cooperative development grants authorized under section 310B(e) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1932), $22,050,000, of which $2,500,000 shall be for cooperative agreements for the appropriate technology transfer for rural areas program: *Provided*, That not to exceed $3,000,000 shall be for grants for cooperative development centers, individual cooperatives, or groups of cooperatives that serve socially disadvantaged groups and a majority of the boards of directors or governing boards of which are comprised of individuals who are members of socially disadvantaged groups; and of which $10,750,000, to remain available until expended, shall be for value-added agricultural product market development grants, as authorized by section 231 of the Agricultural Risk Protection Act of 2000 (7 U.S.C. 1632a).

RURAL ENERGY FOR AMERICA PROGRAM

For the cost of a program of loan guarantees, under the same terms and conditions as authorized by section 9007 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8107), $1,350,000: *Provided*, That the cost of loan guarantees, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974.

RURAL UTILITIES SERVICE

RURAL WATER AND WASTE DISPOSAL PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For the cost of direct loans, loan guarantees, and grants for the rural water, waste water, waste disposal, and solid waste management programs authorized by sections 306, 306A, 306C, 306D, 306E, and 310B and described in sections 306C(a)(2), 306D, 306E, and 381E(d)(2) of the Consolidated Farm and Rural Development Act, $464,857,000, to remain available until expended, of which not to exceed $1,000,000 shall be available for the rural utilities program described in section 306(a)(2)(B) of such Act, and of which not to exceed $993,000 shall be available for the rural utilities program described in section 306E of such Act: *Provided*, That $66,500,000 of the amount appropriated under this heading shall be for loans and grants including water and waste disposal systems grants authorized by 306C(a)(2)(B) and 306D of the Consolidated Farm and Rural Development Act, Federally Recognized Native American Tribes authorized by 306C(a)(1), and the Department of Hawaiian Home Lands (of the State of Hawaii): *Provided further*, That funding provided for section 306D of the Consolidated Farm and Rural Development Act may be provided to a consortium formed pursuant to section 325 of Public Law 105–83: *Provided further*, That not more than 2 percent of the funding provided for section 306D of the Consolidated Farm and Rural Development Act may be used by the State of Alaska for training and technical assistance programs and not more than 2 percent of the funding provided for section 306D of the Consolidated Farm and Rural Development Act may be used by a consortium formed pursuant to section 325 of Public Law 105–83 for training and technical assistance programs: *Provided further*, That not to exceed $19,000,000 of the amount appropriated under this heading shall be for technical assistance grants for rural water and waste systems pursuant to section 306(a)(14) of such Act, unless the Secretary makes a determination of extreme need, of which $6,000,000 shall be made available for a grant to a qualified nonprofit multi-State regional technical assistance organization, with experience in working with small communities on water and waste water problems, the principal purpose of such grant shall be to assist rural communities with populations of 3,300 or less, in improving the planning, financing, development, operation, and management of water and waste water systems, and of which not less than $800,000 shall be for a qualified national Native American organization to provide technical

assistance for rural water systems for tribal communities: *Provided further*, That not to exceed $15,919,000 of the amount appropriated under this heading shall be for contracting with qualified national organizations for a circuit rider program to provide technical assistance for rural water systems: *Provided further*, That not to exceed $4,000,000 shall be for solid waste management grants: *Provided further*, That $10,000,000 of the amount appropriated under this heading shall be transferred to, and merged with, the Rural Utilities Service, High Energy Cost Grants Account to provide grants authorized under section 19 of the Rural Electrification Act of 1936 (7 U.S.C. 918a): *Provided further*, That any prior year balances for high-energy cost grants authorized by section 19 of the Rural Electrification Act of 1936 (7 U.S.C. 918a) shall be transferred to and merged with the Rural Utilities Service, High Energy Cost Grants Account: *Provided further*, That sections 381E–H and 381N of the Consolidated Farm and Rural Development Act are not applicable to the funds made available under this heading.

RURAL ELECTRIFICATION AND TELECOMMUNICATIONS LOANS PROGRAM ACCOUNT

(INCLUDING TRANSFER OF FUNDS)

The principal amount of direct and guaranteed loans as authorized by sections 305 and 306 of the Rural Electrification Act of 1936 (7 U.S.C. 935 and 936) shall be made as follows: loans made pursuant to section 306 of that Act, rural electric, $5,000,000,000; guaranteed underwriting loans pursuant to section 313A, $500,000,000; 5 percent rural telecommunications loans, cost of money rural telecommunications loans, and for loans made pursuant to section 306 of that Act, rural telecommunications loans, $690,000,000: *Provided*, That up to $2,000,000,000 shall be used for the construction, acquisition, or improvement of fossil-fueled electric generating plants (whether new or existing) that utilize carbon sequestration systems.

In addition, for administrative expenses necessary to carry out the direct and guaranteed loan programs, $34,478,000, which shall be transferred to and merged with the appropriation for ''Rural Development, Salaries and Expenses''.

DISTANCE LEARNING, TELEMEDICINE, AND BROADBAND PROGRAM

For the principal amount of broadband telecommunication loans, $24,077,000.

For grants for telemedicine and distance learning services in rural areas, as authorized by 7 U.S.C. 950aaa et seq., $22,000,000, to remain available until expended: *Provided*, That $3,000,000 shall be made available for grants authorized by 379G of the Consolidated Farm and Rural Development Act: *Provided further*, That funding provided under this heading for grants under 379G of the Consolidated Farm and Rural Development Act may only be provided to entities that meet all of the eligibility criteria for a consortium as established by this section.

For the cost of broadband loans, as authorized by section 601 of the Rural Electrification Act, $4,500,000, to remain available until expended: *Provided*, That the cost of direct loans shall be as defined in section 502 of the Congressional Budget Act of 1974.

In addition, $10,372,000, to remain available until expended, for a grant program to finance broadband transmission in rural areas eligible for Distance Learning and Telemedicine Program benefits authorized by 7 U.S.C. 950aaa.

TITLE IV

DOMESTIC FOOD PROGRAMS

OFFICE OF THE UNDER SECRETARY FOR FOOD, NUTRITION, AND CONSUMER SERVICES

For necessary expenses of the Office of the Under Secretary for Food, Nutrition, and Consumer Services, $816,000.

FOOD AND NUTRITION SERVICE

CHILD NUTRITION PROGRAMS

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses to carry out the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.), except section 21, and the Child Nutrition Act of 1966 (42 U.S.C. 1771 et seq.), except sections 17 and 21; $21,300,170,000 to remain available through September 30, 2016, of which such sums as are made available under section 14222(b)(1) of the Food, Conservation, and Energy Act of 2008 (Public Law 110–246), as amended by this Act, shall be merged with and available for the same time period and purposes as provided herein: *Provided*, That of the total amount available, $17,004,000 shall be available to carry out section 19 of the Child Nutrition Act of 1966 (42 U.S.C. 1771 et seq.): *Provided further*, That of the total amount available, $25,000,000 shall be available to provide competitive grants to State agencies for subgrants to local educational agencies and schools to purchase the equipment needed to serve healthier meals, improve food safety, and to help support the establishment, maintenance, or expansion of the school breakfast program: *Provided further*, That of the total amount available, $16,000,000 shall remain available until expended to carry out section 749(g) of the Agriculture Appropriations Act of 2010 (Public Law 111–80).

SPECIAL SUPPLEMENTAL NUTRITION PROGRAM FOR WOMEN, INFANTS, AND CHILDREN (WIC)

For necessary expenses to carry out the special supplemental nutrition program as authorized by section 17 of the Child Nutrition Act of 1966 (42 U.S.C. 1786), $6,623,000,000, to remain available through September 30, 2016: *Provided*, That notwithstanding section 17(h)(10) of the Child Nutrition Act of 1966 (42 U.S.C. 1786(h)(10)), not less than $60,000,000 shall be used for breastfeeding peer counselors and other related activities, $14,000,000 shall be used for infrastructure, $30,000,000 shall be used for management information systems, and $25,000,000 shall be used for WIC electronic benefit transfer systems and activities: *Provided further*, That none of the funds provided in this account shall be available for the purchase of infant formula except in accordance with the cost containment and competitive bidding requirements specified in section 17 of such Act: *Provided further*, That none of the funds provided shall be available for activities that are not fully reimbursed by other Federal Government departments or agencies unless authorized by section 17 of such Act: *Provided further*, That upon termination of a federally mandated vendor moratorium and subject to terms and conditions established by the Secretary, the Secretary may waive the requirement at 7 CFR 246.12(g)(6) at the request of a State agency.

SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM

For necessary expenses to carry out the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.), $81,837,570,000, of which $3,000,000,000, to remain available through September 30, 2016, shall be placed in reserve for use only in such amounts and at such times as may become necessary to carry out program operations: *Provided*, That funds provided herein shall be expended in accordance with section 16 of the Food and Nutrition Act of 2008: *Provided further*, That of the funds made available under this heading, $998,000 may be used to provide nutrition education services to State agencies and Federally Recognized Tribes participating in the Food Distribution Program on Indian Reservations: *Provided further*, That this appropriation shall be subject to any work registration or workfare requirements as may be required by law: *Provided further*, That funds made available for Employment and Training under this heading shall remain available through September 30, 2016: *Provided further*, That funds made available under this heading for a study on Indian tribal administration of nutrition programs, as provided in title IV of the Agricultural Act of 2014 (Public Law 113–79), and a study of the removal of cash benefits in Puerto Rico, as provided in title IV of the Agricultural Act of 2014 (Public Law 113–79) shall be available until expended: *Provided further*, That funds made available under this heading for section 28(d)(1) and section 27(a) of the Food and Nutrition Act of 2008 shall remain available through September 30, 2016: *Provided further*, That funds made available under this heading for employment and training pilot projects, as provided in title IV of the Agricultural Act of 2014 (Public Law 113–79), shall remain available through September 30, 2018: *Provided further*, That funds made available under this heading may be used to enter into contracts and employ staff to conduct studies, evaluations, or to conduct activities related to program integrity provided that such activities are authorized by the Food and Nutrition Act of 2008.

COMMODITY ASSISTANCE PROGRAM

For necessary expenses to carry out disaster assistance and the Commodity Supplemental Food Program as authorized by section 4(a) of the Agriculture and Consumer Protection Act of 1973 (7 U.S.C. 612c note); the Emergency Food Assistance Act of 1983; special assistance for the nuclear affected islands, as authorized by section 103(f)(2) of the Compact of Free Association Amendments Act of 2003 (Public Law 108–188); and the Farmers' Market Nutrition Program, as authorized by section 17(m) of the Child Nutrition Act of 1966, $278,501,000, to remain available through September 30, 2016, of which $2,800,000 shall be to begin service in seven additional States that have plans approved by the Department for the commodity supplemental food program but are not currently participating: *Provided*, That none of these funds shall be available to reimburse the Commodity Credit Corporation for commodities donated to the program: *Provided further*, That notwithstanding any other provision of law, effective with funds made available in fiscal year 2015 to support the Seniors Farmers' Market Nutrition Program, as authorized by section 4402 of the Farm Security and Rural Investment Act of 2002, such funds shall remain available through September 30, 2016: *Provided further*, That of the funds made available under section 27(a) of the Food and Nutrition Act of 2008 (7 U.S.C. 2036(a)), the Secretary may use up to 10 percent for costs associated with the distribution of commodities.

NUTRITION PROGRAMS ADMINISTRATION

For necessary administrative expenses of the Food and Nutrition Service for carrying out any domestic nutrition assistance program, $150,824,000: *Provided*, That of the funds provided herein, $2,000,000 shall be used for the purposes of section 4404 of Public Law 107–171, as amended by section 4401 of Public Law 110–246.

TITLE V

FOREIGN ASSISTANCE AND RELATED PROGRAMS

FOREIGN AGRICULTURAL SERVICE

SALARIES AND EXPENSES

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Foreign Agricultural Service, including not to exceed $250,000 for representation allowances and for expenses pursuant to section 8 of the Act approved August 3, 1956 (7 U.S.C. 1766),

$181,423,000: *Provided*, That the Service may utilize advances of funds, or reimburse this appropriation for expenditures made on behalf of Federal agencies, public and private organizations and institutions under agreements executed pursuant to the agricultural food production assistance programs (7 U.S.C. 1737) and the foreign assistance programs of the United States Agency for International Development: *Provided further*, That funds made available for middle-income country training programs, funds made available for the Borlaug International Agricultural Science and Technology Fellowship program, and up to $2,000,000 of the Foreign Agricultural Service appropriation solely for the purpose of offsetting fluctuations in international currency exchange rates, subject to documentation by the Foreign Agricultural Service, shall remain available until expended.

FOOD FOR PEACE TITLE I DIRECT CREDIT AND FOOD FOR PROGRESS PROGRAM ACCOUNT

(INCLUDING RESCISSION AND TRANSFER OF FUNDS)

For administrative expenses to carry out the credit program of title I, Food for Peace Act (Public Law 83–480) and the Food for Progress Act of 1985, $2,528,000, shall be transferred to and merged with the appropriation for ''Farm Service Agency, Salaries and Expenses'': *Provided*, That of the unobligated balances provided pursuant to title I of the Food for Peace Act, $13,000,000 are rescinded: *Provided further*, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to the Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985, as amended.

FOOD FOR PEACE TITLE II GRANTS

For expenses during the current fiscal year, not otherwise recoverable, and unrecovered prior years' costs, including interest thereon, under the Food for Peace Act (Public Law 83–480), for commodities supplied in connection with dispositions abroad under title II of said Act, $1,466,000,000, to remain available until expended: *Provided*, That notwithstanding any other provision of law, amounts made available under this heading shall be used to provide not less than the minimum level of funding required by section 412(e)(2) of the Food for Peace Act (7 U.S.C. 1736f(e)(2)) to carry out nonemergency food assistance programs under title II of such Act.

MCGOVERN-DOLE INTERNATIONAL FOOD FOR EDUCATION AND CHILD NUTRITION PROGRAM GRANTS

For necessary expenses to carry out the provisions of section 3107 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 1736o–1), $191,626,000, to remain available until expended: *Provided*, That the Commodity Credit Corporation is authorized to provide the services, facilities, and authorities for the purpose of implementing such section, subject to reimbursement from amounts provided herein.

COMMODITY CREDIT CORPORATION EXPORT (LOANS) CREDIT GUARANTEE PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For administrative expenses to carry out the Commodity Credit Corporation's Export Guarantee Program, GSM 102 and GSM 103, $6,748,000; to cover common overhead expenses as permitted by section 11 of the Commodity Credit Corporation Charter Act and in conformity with the Federal Credit Reform Act of 1990, of which $6,394,000 shall be transferred to and merged with the appropriation for ''Foreign Agricultural Service, Salaries and Expenses'', and of which $354,000 shall be transferred to and merged with the appropriation for ''Farm Service Agency, Salaries and Expenses''.

TITLE VI

RELATED AGENCY AND FOOD AND DRUG ADMINISTRATION

DEPARTMENT OF HEALTH AND HUMAN SERVICES

FOOD AND DRUG ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses of the Food and Drug Administration, including hire and purchase of passenger motor vehicles; for payment of space rental and related costs pursuant to Public Law 92–313 for programs and activities of the Food and Drug Administration which are included in this Act; for rental of special purpose space in the District of Columbia or elsewhere; for miscellaneous and emergency expenses of enforcement activities, authorized and approved by the Secretary and to be accounted for solely on the Secretary's certificate, not to exceed $25,000; and notwithstanding section 521 of Public Law 107–188; $4,443,356,000: *Provided*, That of the amount provided under this heading, $798,000,000 shall be derived from prescription drug user fees authorized by 21 U.S.C. 379h, and shall be credited to this account and remain available until expended; $128,282,000 shall be derived from medical device user fees authorized by 21 U.S.C. 379j, and shall be credited to this account and remain available until expended; $312,116,000 shall be derived from human generic drug user fees authorized by 21 U.S.C. 379j–42, and shall be credited to this account and remain available until expended; $21,014,000 shall be derived from biosimilar biological product user fees authorized by 21 U.S.C. 379j–52, and shall be credited to this account and remain available until expended; $22,464,000 shall be derived from animal drug user fees authorized by 21 U.S.C. 379j–12, and shall be credited to this account and remain available until expended; $6,944,000 shall be derived from animal generic drug user fees authorized by 21 U.S.C. 379j–21, and shall be credited to this account and remain available until expended; $566,000,000 shall be derived from tobacco product user fees authorized by 21 U.S.C. 387s, and shall be credited to this account and remain available until expended: *Provided further*, That in addition and notwithstanding any other provision under this heading, amounts collected for prescription drug user fees, medical device user fees, human generic drug user fees, biosimilar biological product user fees, animal drug user fees, and animal generic drug user fees that exceed the respective fiscal year 2015 limitations are appropriated and shall be credited to this account and remain available until expended: *Provided further*, That fees derived from prescription drug, medical device, human generic drug, biosimilar biological product, animal drug, and animal generic drug assessments for fiscal year 2015, including any such fees collected prior to fiscal year 2015 but credited for fiscal year 2015, shall be subject to the fiscal year 2015 limitations: *Provided further*, That the Secretary may accept payment during fiscal year 2015 of user fees specified under this heading and authorized for fiscal year 2016, prior to the due date for such fees, and that amounts of such fees assessed for fiscal year 2016 for which the Secretary accepts payment in fiscal year 2015 shall not be included in amounts under this heading: *Provided further*, That none of these funds shall be used to develop, establish, or operate any program of user fees authorized by 31 U.S.C. 9701: *Provided further*, That of the total amount appropriated: (1) $903,403,000 shall be for the Center for Food Safety and Applied Nutrition and related field activities in the Office of Regulatory Affairs; (2) $1,337,948,000 shall be for the Center for Drug Evaluation and Research and related field activities in the Office of Regulatory Affairs; (3) $344,267,000 shall be for the Center for Biologics Evaluation and Research and for related field activities in the Office of Regulatory Affairs; (4) $173,976,000 shall be for the Center for Veterinary Medicine and for related field activities in the Office of Regulatory Affairs; (5) $420,548,000 shall be for the Center for Devices and Radiological Health and for related field activities in the Office of Regulatory Affairs; (6) $63,331,000 shall be for the National Center for Toxicological Research; (7) $531,527,000 shall be for the Center for Tobacco Products and for related field activities in the Office of Regulatory Affairs; (8) not to exceed $163,079,000 shall be for Rent and Related activities, of which $47,116,000 is for White Oak Consolidation, other than the amounts paid to the General Services Administration for rent; (9) not to exceed $227,674,000 shall be for payments to the General Services Administration for rent; and (10) $277,603,000 shall be for other activities, including the Office of the Commissioner of Food and Drugs, the Office of Foods and Veterinary Medicine, the Office of Medical and Tobacco Products, the Office of Global and Regulatory Policy, the Office of Operations, the Office of the Chief Scientist, and central services for these offices: *Provided further*, That not to exceed $25,000 of this amount shall be for official reception and representation expenses, not otherwise provided for, as determined by the Commissioner: *Provided further*, That any transfer of funds pursuant to section 770(n) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 379dd(n)) shall only be from amounts made available under this heading for other activities: *Provided further*, That of the amounts that are made available under this heading for ''other activities'', and that are not derived from user fees, $1,500,000 shall be transferred to and merged with the appropriation for ''Department of Health and Human Services—Office of Inspector General'' for oversight of the programs and operations of the Food and Drug Administration and shall be in addition to funds otherwise made available for oversight of the Food and Drug Administration: *Provided further*, That funds may be transferred from one specified activity to another with the prior approval of the Committees on Appropriations of both Houses of Congress.

In addition, mammography user fees authorized by 42 U.S.C. 263b, export certification user fees authorized by 21 U.S.C. 381, priority review user fees authorized by 21 U.S.C. 360n and 360ff, food and feed recall fees, food reinspection fees, and voluntary qualified importer program fees authorized by 21 U.S.C. 379j–31, outsourcing facility fees authorized by 21 U.S.C. 379j–62, prescription drug wholesale distributor licensing and inspection fees authorized by 21 U.S.C. 353(e)(3), and third-party logistics provider licensing and inspection fees authorized by 21 U.S.C. 360eee–3(c)(1), shall be credited to this account, to remain available until expended.

BUILDINGS AND FACILITIES

For plans, construction, repair, improvement, extension, alteration, and purchase of fixed equipment or facilities of or used by the Food and Drug Administration, where not otherwise provided, $8,788,000, to remain available until expended.

INDEPENDENT AGENCY

FARM CREDIT ADMINISTRATION

LIMITATION ON ADMINISTRATIVE EXPENSES

Not to exceed $60,500,000 (from assessments collected from farm credit institutions, including the Federal Agricultural Mortgage

Corporation) shall be obligated during the current fiscal year for administrative expenses as authorized under 12 U.S.C. 2249: *Provided*, That this limitation shall not apply to expenses associated with receiverships: *Provided further*, That the agency may exceed this limitation by up to 10 percent with notification to the Committees on Appropriations of both Houses of Congress.

TITLE VII

GENERAL PROVISIONS

(INCLUDING RESCISSIONS AND TRANSFERS OF FUNDS)

SEC. 701. Within the unit limit of cost fixed by law, appropriations and authorizations made for the Department of Agriculture for the current fiscal year under this Act shall be available for the purchase, in addition to those specifically provided for, of not to exceed 71 passenger motor vehicles of which 68 shall be for replacement only, and for the hire of such vehicles: *Provided*, That notwithstanding this section, the only purchase of new passenger vehicles shall be for those determined by the Secretary to be necessary for transportation safety, to reduce operational costs, and for the protection of life, property, and public safety.

SEC. 702. Notwithstanding any other provision of this Act, the Secretary of Agriculture may transfer unobligated balances of discretionary funds appropriated by this Act or any other available unobligated discretionary balances that are remaining available of the Department of Agriculture to the Working Capital Fund for the acquisition of plant and capital equipment necessary for the delivery of financial, administrative, and information technology services of primary benefit to the agencies of the Department of Agriculture, such transferred funds to remain available until expended: *Provided*, That none of the funds made available by this Act or any other Act shall be transferred to the Working Capital Fund without the prior approval of the agency administrator: *Provided further*, That none of the funds transferred to the Working Capital Fund pursuant to this section shall be available for obligation without written notification to and the prior approval of the Committees on Appropriations of both Houses of Congress: *Provided further*, That none of the funds appropriated by this Act or made available to the Department's Working Capital Fund shall be available for obligation or expenditure to make any changes to the Department's National Finance Center without written notification to and prior approval of the Committees on Appropriations of both Houses of Congress as required by section 719 of this Act: *Provided further*, That of annual income amounts in the Working Capital Fund of the Department of Agriculture allocated for the National Finance Center, the Secretary may reserve not more than 4 percent for the replacement or acquisition of capital equipment, including equipment for the improvement and implementation of a financial management plan, information technology, and other systems of the National Finance Center or to pay any unforeseen, extraordinary cost of the National Finance Center: *Provided further*, That none of the amounts reserved shall be available for obligation unless the Secretary submits written notification of the obligation to the Committees on Appropriations of the House of Representatives and the Senate: *Provided further*, That the limitation on the obligation of funds pending notification to Congressional Committees shall not apply to any obligation that, as determined by the Secretary, is necessary to respond to a declared state of emergency that significantly impacts the operations of the National Finance Center; or to evacuate employees of the National Finance Center to a safe haven to continue operations of the National Finance Center.

SEC. 703. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

SEC. 704. No funds appropriated by this Act may be used to pay negotiated indirect cost rates on cooperative agreements or similar arrangements between the United States Department of Agriculture and nonprofit institutions in excess of 10 percent of the total direct cost of the agreement when the purpose of such cooperative arrangements is to carry out programs of mutual interest between the two parties. This does not preclude appropriate payment of indirect costs on grants and contracts with such institutions when such indirect costs are computed on a similar basis for all agencies for which appropriations are provided in this Act.

SEC. 705. Appropriations to the Department of Agriculture for the cost of direct and guaranteed loans made available in the current fiscal year shall remain available until expended to disburse obligations made in the current fiscal year for the following accounts: the Rural Development Loan Fund program account, the Rural Electrification and Telecommunication Loans program account, and the Rural Housing Insurance Fund program account.

SEC. 706. None of the funds made available to the Department of Agriculture by this Act may be used to acquire new information technology systems or significant upgrades, as determined by the Office of the Chief Information Officer, without the approval of the Chief Information Officer and the concurrence of the Executive Information Technology Investment Review Board: *Provided*, That notwithstanding any other provision of law, none of the funds appropriated or otherwise made available by this Act may be transferred to the Office of the Chief Information Officer without written notification to and the prior approval of the Committees on Appropriations of both Houses of Congress: *Provided further*, That none of the funds available to the Department of Agriculture for information technology shall be obligated for projects over $25,000 prior to receipt of written approval by the Chief Information Officer: *Provided further*, That the Chief Information Officer may authorize an agency to obligate funds without written approval from the Chief Information Officer for projects up to $250,000 based upon the performance of an agency measured against the performance plan requirements described in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

SEC. 707. Funds made available under section 1240I and section 1241(a) of the Food Security Act of 1985 and section 524(b) of the Federal Crop Insurance Act (7 U.S.C. 1524(b)) in the current fiscal year shall remain available until expended to disburse obligations made in the current fiscal year.

SEC. 708. Notwithstanding any other provision of law, any former RUS borrower that has repaid or prepaid an insured, direct or guaranteed loan under the Rural Electrification Act of 1936, or any not-for-profit utility that is eligible to receive an insured or direct loan under such Act, shall be eligible for assistance under section 313(b)(2)(B) of such Act in the same manner as a borrower under such Act.

SEC. 709. Of the unobligated balances provided pursuant to section 12033 and section 15101 of the Food, Conservation, and Energy Act of 2008, $125,000,000 are rescinded.

SEC. 710. Except as otherwise specifically provided by law, not more than $20,000,000 in unobligated balances from appropriations made available for salaries and expenses in this Act for the Farm Service Agency shall remain available through September 30, 2016, for information technology expenses: *Provided*, That except as otherwise specifically provided by law, unobligated balances from appropriations made available for salaries and expenses in this Act for the Rural Development mission area shall remain available through September 30, 2016, for information technology expenses.

SEC. 711. The Secretary of Agriculture may authorize a State agency to use funds provided in this Act to exceed the maximum amount of liquid infant formula specified in 7 CFR 246.10 when issuing liquid infant formula to participants.

SEC. 712. None of the funds appropriated or otherwise made available by this Act may be used for first-class travel by the employees of agencies funded by this Act in contravention of sections 301–10.122 through 301–10.124 of title 41, Code of Federal Regulations.

SEC. 713. In the case of each program established or amended by the Agricultural Act of 2014 (Public Law 113–79), other than by title I or subtitle A of title III of such Act, or programs for which indefinite amounts were provided in that Act, that is authorized or required to be carried out using funds of the Commodity Credit Corporation—

(1) such funds shall be available for salaries and related administrative expenses, including technical assistance, associated with the implementation of the program, without regard to the limitation on the total amount of allotments and fund transfers contained in section 11 of the Commodity Credit Corporation Charter Act (15 U.S.C. 714i); and

(2) the use of such funds for such purpose shall not be considered to be a fund transfer or allotment for purposes of applying the limitation on the total amount of allotments and fund transfers contained in such section.

SEC. 714. Of the funds made available by this Act, not more than $2,000,000 shall be used to cover necessary expenses of activities related to all advisory committees, panels, commissions, and task forces of the Department of Agriculture, except for panels used to comply with negotiated rule makings and panels used to evaluate competitively awarded grants.

SEC. 715. None of the funds in this Act shall be available to pay indirect costs charged against any agricultural research, education, or extension grant awards issued by the National Institute of Food and Agriculture that exceed 30 percent of total Federal funds provided under each award: *Provided*, That notwithstanding section 1462 of the National Agricultural Research, Extension, and Teaching Policy Act of 1977 (7 U.S.C. 3310), funds provided by this Act for grants awarded competitively by the National Institute of Food and Agriculture shall be available to pay full allowable indirect costs for each grant awarded under section 9 of the Small Business Act (15 U.S.C. 638).

SEC. 716. None of the funds appropriated or otherwise made available by this or any other Act shall be used to pay the salaries and expenses of personnel to carry out the following:

(1) The Watershed Rehabilitation program authorized by section 14(h)(1) of the Watershed and Flood Protection Act (16 U.S.C. 1012(h)(1)) in excess of $73,000,000.

(2) The Environmental Quality Incentives Program as authorized by sections 1240–1240H of the Food Security Act of 1985 (16 U.S.C. 3839aa–3839aa–8) in excess of $1,347,000,000: *Provided*, That this limitation shall apply only to funds provided by section 1241(a)(5)(B) of the Food Security Act of 1985 (16 U.S.C. 3841(a)(5)(B)).

(3) The Conservation Stewardship Program as authorized by sections 1238D–1238G of the Food Security Act of 1985 (16 U.S.C. 3838d–3838g) in excess of 7,741,000 acres.

(4) The Biomass Crop Assistance Program authorized by section 9011 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8111) in excess of $23,000,000 in new obligational authority.

(5) The Biorefinery, Renewable Chemical and Biobased Product Manufacturing Assistance program as authorized by section 9003 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8103) in excess of $30,000,000.

SEC. 717. None of the funds appropriated or otherwise made available by this or any other Act shall be used to pay the salaries and expenses of personnel to carry out a program under subsection (b)(2)(A)(vii) of section 14222 of Public Law 110–246 in excess of $959,000,000, as follows: Child Nutrition Programs Entitlement Commodities—$465,000,000; State Option Contracts—$5,000,000; Removal of Defective Commodities—$2,500,000: *Provided*, That none of the funds made available in this Act or any other Act shall be used for salaries and expenses to carry out in this fiscal year section 19(i)(1)(E) of the Richard B. Russell National School Lunch Act, as amended, except in an amount that excludes the transfer of $122,000,000 of the funds to be transferred under subsection (c) of section 14222 of Public Law 110–246, until October 1, 2015: *Provided further*, That $122,000,000 made available on October 1, 2015, to carry out section 19(i)(1)(E) of the Richard B. Russell National School Lunch Act, as amended, shall be excluded from the limitation described in subsection (b)(2)(A)(viii) of section 14222 of Public Law 110–246: *Provided further*, That none of the funds appropriated or otherwise made available by this or any other Act shall be used to pay the salaries or expenses of any employee of the Department of Agriculture or officer of the Commodity Credit Corporation to carry out clause 3 of section 32 of the Agricultural Adjustment Act of 1935 (Public Law 74–320, 7 U.S.C. 612c, as amended), or for any surplus removal activities or price support activities under section 5 of the Commodity Credit Corporation Charter Act: *Provided further*, That of the available unobligated balances under (b)(2)(A)(vii) of section 14222 of Public Law 110–246, $203,000,000 are rescinded.

SEC. 718. None of the funds appropriated by this or any other Act shall be used to pay the salaries and expenses of personnel who prepare or submit appropriations language as part of the President's budget submission to the Congress for programs under the jurisdiction of the Appropriations Subcommittees on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies that assumes revenues or reflects a reduction from the previous year due to user fees proposals that have not been enacted into law prior to the submission of the budget unless such budget submission identifies which additional spending reductions should occur in the event the user fees proposals are not enacted prior to the date of the convening of a committee of conference for the fiscal year 2016 appropriations Act.

SEC. 719. (a) None of the funds provided by this Act, or provided by previous Appropriations Acts to the agencies funded by this Act that remain available for obligation or expenditure in the current fiscal year, or provided from any accounts in the Treasury derived by the collection of fees available to the agencies funded by this Act, shall be available for obligation or expenditure through a reprogramming, transfer of funds, or reimbursements as authorized by the Economy Act, or in the case of the Department of Agriculture, through use of the authority provided by section 702(b) of the Department of Agriculture Organic Act of 1944 (7 U.S.C. 2257) or section 8 of Public Law 89–106 (7 U.S.C. 2263), that—

(1) creates new programs;

(2) eliminates a program, project, or activity;

(3) increases funds or personnel by any means for any project or activity for which funds have been denied or restricted;

(4) relocates an office or employees;

(5) reorganizes offices, programs, or activities; or

(6) contracts out or privatizes any functions or activities presently performed by Federal employees;

unless the Secretary of Agriculture or the Secretary of Health and Human Services (as the case may be) notifies in writing and receives approval from the Committees on Appropriations of both Houses of Congress at least 30 days in advance of the reprogramming of such funds or the use of such authority.

(b) None of the funds provided by this Act, or provided by previous Appropriations Acts to the agencies funded by this Act that remain available for obligation or expenditure in the current fiscal year, or provided from any accounts in the Treasury derived by the collection of fees available to the agencies funded by this Act, shall be available for obligation or expenditure for activities, programs, or projects through a reprogramming or use of the authorities referred to in subsection (a) involving funds in excess of $500,000 or 10 percent, whichever is less, that—

(1) augments existing programs, projects, or activities;

(2) reduces by 10 percent funding for any existing program, project, or activity, or numbers of personnel by 10 percent as approved by Congress; or

(3) results from any general savings from a reduction in personnel which would result in a change in existing programs, activities, or projects as approved by Congress;

unless the Secretary of Agriculture or the Secretary of Health and Human Services (as the case may be) notifies in writing and receives approval from the Committees on Appropriations of both Houses of Congress at least 30 days in advance of the reprogramming or transfer of such funds or the use of such authority.

(c) The Secretary of Agriculture or the Secretary of Health and Human Services shall notify in writing and receive approval from the Committees on Appropriations of both Houses of Congress before implementing any program or activity not carried out during the previous fiscal year unless the program or activity is funded by this Act or specifically funded by any other Act.

(d) None of the funds provided by this Act, or provided by previous Appropriations Acts to the agencies funded by this Act that remain available for obligation or expenditure in the current fiscal year, or provided from any accounts in the Treasury derived by the collection of fees available to the agencies funded by this Act, shall be available for—

(1) modifying major capital investments funding levels, including information technology systems, that involves increasing or decreasing funds in the current fiscal year for the individual investment in excess of $500,000 or 10 percent of the total cost, whichever is less;

(2) realigning or reorganizing new, current, or vacant positions or agency activities or functions to establish a center, office, branch, or similar entity with five or more personnel; or

(3) carrying out activities or functions that were not described in the budget request;

unless the agencies funded by this Act notify, in writing, the Committees on Appropriations of both Houses of Congress at least 30 days in advance of using the funds for these purposes.

(e) As described in this section, no funds may be used for any activities unless the Secretary of Agriculture or the Secretary of Health and Human Services receives from the Committee on Appropriations of both Houses of Congress written or electronic mail confirmation of receipt of the notification as required in this section.

SEC. 720. Notwithstanding section 310B(g)(5) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1932(g)(5)), the Secretary may assess a one-time fee for any guaranteed business and industry loan in an amount that does not exceed 3 percent of the guaranteed principal portion of the loan.

SEC. 721. None of the funds appropriated or otherwise made available to the Department of Agriculture, the Food and Drug Administration, or the Farm Credit Administration shall be used to transmit or otherwise make available to any non-Department of Agriculture, non-Department of Health and Human Services, or non-Farm Credit Administration employee questions or responses to questions that are a result of information requested for the appropriations hearing process.

SEC. 722. Unless otherwise authorized by existing law, none of the funds provided in this Act, may be used by an executive branch agency to produce any prepackaged news story intended for broadcast or distribution in the United States unless the story includes a clear notification within the text or audio of the prepackaged news story that the prepackaged news story was prepared or funded by that executive branch agency.

SEC. 723. No employee of the Department of Agriculture may be detailed or assigned from an agency or office funded by this Act or any other Act to any other agency or office of the Department for more than 60 days in a fiscal year unless the individual's employing agency or office is fully reimbursed by the receiving agency or office for the salary and expenses of the employee for the period of assignment.

SEC. 724. None of the funds made available by this Act may be used to pay the salaries and expenses of personnel who provide nonrecourse marketing assistance loans for mohair under section 1201 of the Agricultural Act of 2014 (Public Law 113–79).

SEC. 725. There is hereby appropriated $1,996,000 to carry out section 1621 of Public Law 110–246.

SEC. 726. There is hereby appropriated $600,000 for the purposes of section 727 of division A of Public Law 112–55.

SEC. 727. Not later than 30 days after the date of enactment of this Act, the Secretary of Agriculture, the Commissioner of the Food and Drug Administration, and the Chairman of the Farm Credit Administration shall submit to the Committees on Appropriations of the House of Representatives and the Senate a detailed spending plan by program, project, and activity for all the funds made available under this Act including appropriated user fees, as defined in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

SEC. 728. Funds made available under title II of the Food for Peace Act (7 U.S.C. 1721 et seq.) may only be used to provide assistance to recipient nations if adequate monitoring and controls, as determined by the Administrator of the U.S. Agency for International Development, are in place to ensure that emergency food aid is received by the intended beneficiaries in areas affected by food shortages and not diverted for unauthorized or inappropriate purposes.

SEC. 729. The Secretary shall continue the pilot program in effect for fiscal year 2013 for packaging and reviewing section 502 single

family direct loans. The Secretary shall continue agreements with current intermediary organizations and not later than 90 days after enactment of this Act enter into additional agreements that increase the number of participating intermediary organizations to not less than 10. The Secretary shall work with these organizations to increase the effectiveness of the section 502 single family direct loan program in rural communities and shall set aside and make available from the national reserve section 502 loans an amount necessary to support the work of such intermediaries and provide a priority for review of such loans.

SEC. 730. For loans and loan guarantees that do not require budget authority and the program level has been established in this Act, the Secretary of Agriculture may increase the program level for such loans and loan guarantees by not more than 25 percent: *Provided*, That prior to the Secretary implementing such an increase, the Secretary notifies, in writing, the Committees on Appropriations of both Houses of Congress at least 15 days in advance.

SEC. 731. None of the funds made available by this or any other Act may be used to write, prepare, or publish a final rule or an interim final rule in furtherance of, or otherwise to implement or enforce the proposed rule entitled ''Implementation of Regulations Required Under Title XI, of the Food, Conservation and Energy Act of 2008; Conduct in Violation of the Act'' published by the Department of Agriculture in the Federal Register on June 22, 2010 (75 Fed. Reg. 35338 et seq.) unless the combined annual cost to the economy of such rules does not exceed $100,000,000: *Provided*, That none of the funds made available by this or any other Act may be used to publish a final or interim final rule in furtherance of, or otherwise to implement, sections 201.2(l), 201.2(t), 201.2(u), 201.3(c), 201.210, 201.211, 201.213, or 201.214, as proposed to be added to title 9 of the Code of Federal Regulations, by such proposed rule: *Provided further*, That none of the funds made available by this or any other Act may be used to implement, enforce, or to take regulatory action other than rescission or repeal based on, or in furtherance of, 201.2(o), 201.3(a), or 201.215(a), of title 9 of the Code of Federal Regulations (as in effect on the date of the enactment of this Act), or to write, prepare, or publish a final or interim final rule in furtherance of, or otherwise to implement, the definitions or criteria specified in such sections: *Provided further*, That sections 201.2(o), 201.3(a), and 201.215(a), of title 9 of the Code of Federal Regulations (as in effect on the date of enactment of this Act) are hereby indefinitely declared null and void and shall have no force under the laws, and the Secretary of Agriculture shall, within 60 days after the date of enactment of this Act, rescind sections 201.2(o), 201.3(a), and 201.215(a), of title 9 of the Code of Federal Regulations (as in effect on such date).

SEC. 732. None of the credit card refunds or rebates transferred to the Working Capital Fund pursuant to section 729 of the Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Act, 2002 (7 U.S.C. 2235a; Public Law 107–76) shall be available for obligation without written notification to, and the prior approval of, the Committees on Appropriations of both Houses of Congress: *Provided*, That the refunds or rebates so transferred shall be available for obligation only for the acquisition of plant and capital equipment necessary for the delivery of financial, administrative, and information technology services of primary benefit to the agencies of the Department of Agriculture.

SEC. 733. For the 2014 fiscal year and each fiscal year thereafter, losses under section 1501 of Public Law 113–79 shall not be considered the same loss for the purposes of 7 U.S.C. 7333(i)(3) and 7 U.S.C. 1508(n).

SEC. 734. Of the funds made available to the Food and Drug Administration, Salaries and Expenses, Office of the Commissioner, $20,000,000 shall not be available for obligation until the Food and Drug Administration finalizes the draft guidance of January 2013 entitled ''Guidance for Industry: Abuse-Deterrent Opioids- Evaluation and Labeling'': *Provided*, That if the Food and Drug Administration fails to finalize such guidance by June 30, 2015, such funds shall be made available for obligation to the Food and Drug Administration's Office of Criminal Investigation for the purpose of assisting Federal, state, and local agencies to combat the diversion and illegal sales of controlled substances.

SEC. 735. None of the funds appropriated or otherwise made available by this or any other Act shall be used to pay the salaries and expenses of personnel to carry out section 307(b) of division C of the Omnibus Consolidated and Emergency Supplemental Appropriations Act, 1999 (Public Law 105–277; 112 Stat. 2681–640) in excess of $4,000,000.

SEC. 736. None of the funds made available by this Act may be used to procure processed poultry products imported into the United States from the People's Republic of China for use in the school lunch program under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.), the Child and Adult Food Care Program under section 17 of such Act (42 U.S.C. 1766), the Summer Food Service Program for Children under section 13 of such Act (42 U.S.C. 1761), or the school breakfast program under the Child Nutrition Act of 1966 (42 U.S.C. 1771 et seq.).

SEC. 737. In addition to amounts otherwise made available by this Act and notwithstanding the last sentence of 16 U.S.C. 1310, there is appropriated $4,000,000, to remain available until expended, to implement nonrenewable agreements on eligible lands, including flooded agricultural lands, as determined by the Secretary, under the Water Bank Act (16 U.S.C. 1301–1311).

SEC. 738. (a) IN GENERAL.—The Secretary of Health and Human Services, on behalf of the United States may hereafter, whenever the Secretary deems desirable, relinquish to the State of Arkansas all or part of the jurisdiction of the United States over the lands and properties encompassing the Jefferson Labs campus in the State of Arkansas that are under the supervision or control of the Secretary.

(b) TERMS.—Relinquishment of jurisdiction under this section may be accomplished, under terms and conditions that the Secretary deems advisable—

(1) by filing with the Governor of the State of Arkansas a notice of relinquishment to take effect upon acceptance thereof; or

(2) as the laws of such State may otherwise provide.

(c) DEFINITION.—In this section, the term ''Jefferson Labs campus'' means the lands and properties of the National Center for Toxicological Research and the Arkansas Regional Laboratory.

(d) AGREEMENT REGARDING JEFFERSON COUNTY TECHNOLOGY RESEARCH AND COMMERCIALIZATION CENTER.—

(1) IN GENERAL.—The Secretary may hereafter enter into an agreement with the State of Arkansas or an agency of such State or a public or private entity with respect to the establishment or operation of a technology research and commercialization center in Jefferson County, Arkansas, proximate to the Jefferson Labs campus.

(2) RECEIPT AND EXPENDITURE OF FUNDS.—Pursuant to such agreement, the Secretary may hereafter receive and retain funds from such entity and use such funds, in addition to such other funds as are made available by this act or future acts for the operation of the National Center for Toxicological Research, for the purposes listed in paragraph (3). Funds received from such entity shall be deemed to be appropriated for such purposes and shall remain available until expended.

(3) PURPOSES.—

(A) IN GENERAL.—Funds described by paragraph (2) shall be available to defray—

(i) the costs of creating, upgrading, and maintaining connections between such center and roads, communications facilities, and utilities that are on the Jefferson Labs campus; and

(ii) the costs of upgrades, relocation, repair, and new constructions of roads, communications facilities, and utilities on such campus as may be necessary for such agreement.

(B) OTHER ACTS.—For purposes of this and any subsequent Act, the operation of the National Center for Toxicological Research shall be deemed to include the purposes listed in subparagraph (A).

SEC. 739. The Secretary shall set aside for Rural Economic Area Partnership (REAP) Zones, until August 15, 2015, an amount of funds made available in title III as follows: (a) with respect to funds under the headings of Rural Housing Insurance Fund Program Account, Mutual and Self-Help Housing Grants, Rural Community Facilities Program Account, Rural Development Loan Fund Program Account, and Rural Water and Waste Disposal Program Account the set aside shall equal the amount obligated in REAP Zones with respect to funds provided under such headings during the 2008 fiscal year; and (b) with respect to funds under the headings of Rural Business Program Account, and Rural Housing Assistance Grants the set aside shall equal the amount obligated in REAP Zones with respect to funds provided under such headings in the most recent fiscal year funds were obligated under the heading.

SEC. 740. In response to an eligible community where the drinking water supplies are inadequate due to a natural disaster, as determined by the Secretary, including drought or severe weather, the Secretary may provide potable water through the Emergency Community Water Assistance Grant Program for an additional period of time not to exceed 120 days beyond the established period provided under the Program in order to protect public health.

SEC. 741. Hereafter, none of the funds appropriated by this or any other Act may be used to carry out section 410 of the Federal Meat Inspection Act (21 U.S.C. 679a) or section 30 of the Poultry Products Inspection Act (21 U.S.C. 471).

SEC. 742. There is hereby established in the Treasury of the United States a fund to be known as the ''Nonrecurring expenses fund'' (the Fund): *Provided*, That unobligated balances of expired discretionary funds appropriated in this or any succeeding fiscal year from the General Fund of the Treasury to the Department of Agriculture (except the Forest Service) by this or any other Act may be transferred (not later than the end of the fifth fiscal year after the last fiscal year for which such funds are available for the purposes for which appropriated) into the Fund: *Provided further*, That amounts deposited in the Fund shall be available until expended, and in addition to such other funds as may be available for such purposes, for facilities infrastructure capital acquisition necessary for the operation of the Department of Agriculture, subject to approval by the Office of Management and Budget: *Provided further*, That amounts in the Fund may be obligated only after the Committees on Appropriations

of the House of Representatives and the Senate are notified at least 15 days in advance of the planned use of funds.

SEC. 743. There is hereby appropriated for the ''Emergency Watershed Protection Program'', $78,581,000, to remain available until expended; for the ''Emergency Forestry Restoration Program'', $3,203,000, to remain available until expended; and for the ''Emergency Conservation Program'', $9,216,000, to remain available until expended: *Provided*, That funds under this section are for necessary expenses resulting from a major disaster declared pursuant to the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5121 et seq.), and are designated by the Congress as being for disaster relief pursuant to section 251(b)(2)(D) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 744. Of the funding provided in section 743 of division A of Public Law 113–76, not more than $75,000 may be used for administrative purposes, including a modification to an existing contract to allow reimbursement for travel and other administrative purposes.

SEC. 745. Of the unobligated balances identified by Treasury Appropriation Fund Symbol 12X1401, $1,530,000 are rescinded.

SEC. 746. The unobligated balances identified by Treasury Appropriation Fund Symbol 12X2271 are rescinded.

SEC. 747. Section 501(f)(1)(C)(ii)(II) of the Federal Agriculture Improvement and Reform Act of 1996 (7 U.S.C. 7401(f)(1)(C)(ii)(II)) is amended by striking ''section 514'' and inserting ''a commodity promotion law''.

SEC. 748. Of the unobligated balances provided pursuant to section 9004(d)(1) of the Farm Security and Rural Investment Act of 2002, as amended, (7 U.S.C. 8104(d)(1)), $8,000,000 are hereby rescinded.

SEC. 749. Funds provided by this or any prior Appropriations Act for the Agriculture and Food Research Initiative under 7 U.S.C. 450i(b) shall be made available without regard to section 7128 of the Agricultural Act of 2014 (7 U.S.C. 3371 note), under the matching requirements in laws in effect on the date before the date of enactment of such section: *Provided*, That the requirements of 7 U.S.C. 450i(b)(9) shall continue to apply.

SEC. 750. None of the funds made available in this Act may be used to pay the salaries or expenses of personnel—

(1) to inspect horses under section 3 of the Federal Meat Inspection Act (21 U.S.C. 603);

(2) to inspect horses under section 903 of the Federal Agriculture Improvement and Reform Act of 1996 (7 U.S.C. 1901 note; Public Law 104–127); or

(3) to implement or enforce section 352.19 of title 9, Code of Federal Regulations (or a successor regulation).

SEC. 751. For the period beginning on the date of enactment of this Act through school year 2015–2016, with respect to the school lunch program established under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.) or the school breakfast program established under the Child Nutrition Act of 1966 (42 U.S.C. 1771 et seq.) and final regulations published by the Department of Agriculture in the Federal Register on January 26, 2012 (77 Fed. Reg. 4088 et seq.), the Secretary shall allow States to grant an exemption from the whole grain requirements that took effect on or after July 1, 2014, and the States shall establish a process for evaluating and responding, in a reasonable amount of time, to requests for an exemption: *Provided*, That school food authorities demonstrate hardship, including financial hardship, in procuring specific whole grain products which are acceptable to the students and compliant with the whole grain-rich requirements: *Provided further*, That school food authorities shall comply with the applicable grain component or standard with respect to the school lunch or school breakfast program that was in effect prior to July 1, 2014.

SEC. 752. None of the funds appropriated or otherwise made available by this or any other Act shall be used to pay the salaries and expenses of personnel to implement any regulations under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.), the Child Nutrition Act of 1966 (42 U.S.C. 1771 et seq.), the Healthy, Hunger-Free Kids Act of 2010 (Public Law 111–296), or any other law that would require a reduction in the quantity of sodium contained in federally reimbursed meals, foods, and snacks sold in schools below Target 1 (as described in section 220.8(f)(3) of title 7, Code of Federal Regulations (or successor regulations)) until the latest scientific research establishes the reduction is beneficial for children.

SEC. 753. (a) None of the funds made available by this Act or any other Act may be used to exclude or restrict, or to pay the salaries and expenses of personnel to exclude or restrict, the eligibility of any variety of fresh, whole, or cut vegetables (except for vegetables with added sugars, fats, or oils) from being provided under the Special Supplemental Nutrition Program for Women, Infants, and Children under section 17 of the Child Nutrition Act of 1966 (42 U.S.C. 1786) (in this section referred to as the ''program'').

(b) Not later than 15 days after the date of enactment of this Act, each State agency shall carry out the program in a manner consistent with subsection (a).

(c) Not later than 90 days after the date of enactment of this Act, the Secretary of Agriculture shall commence under section 17(f)(11)(C) of the Child Nutrition Act of 1966 (42 U.S.C. 1786(f)(11)(C)) the next regular review of the supplemental foods available under this program, including a review of the nutrient value of all vegetables.

(d) If, upon completing the review under subsection (c), the Secretary of Agriculture recommends that a vegetable be eligible for purchase under the program, none of the funds made available under this Act or any other Act may be used to exclude or restrict the eligibility of that variety of vegetable (except if that vegetable has added sugars, fats, or oils) from being purchased under the program, and subsection (a) shall continue to be effective.

(e) If the review in subsection (c) recommends that any vegetable shall not be available for purchase under the program, based upon the nutritional content of the vegetable and the nutrition needs of WIC participants, subsection (a) shall expire upon the publication of the regularly scheduled review.

(f) Not later than 90 days after completing the review under subsection (c), the Secretary of Agriculture shall make publicly available all scientific research and data used to make the final recommendations and explain the results of the review by submitting a report containing such information to the Committee on Agriculture, Nutrition, and Forestry of the Senate, the Committee on Education and Workforce of the House of Representatives, and the Committees on Appropriations of the Senate and the House of Representatives.

(g) Upon completion of the review under subsection (c) by the Secretary of Agriculture, the Comptroller General of the United States shall conduct an audit of the review which shall include an audit of the scientific research and data used to conduct the review.

TITLE VIII

EBOLA RESPONSE AND PREPAREDNESS

DEPARTMENT OF HEALTH AND HUMAN SERVICES

FOOD AND DRUG ADMINISTRATION

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', to prevent, prepare for, and respond to the Ebola virus domestically and internationally, and to develop necessary medical countermeasures and vaccines, including the review, regulations, post market surveillance of vaccines and therapies, and administrative activities, $25,000,000, to remain available until expended: *Provided*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985: *Provided further*, That of the amounts provided, $4,800,000 is for the Center for Biologics Evaluation and Research; $2,400,000 is for the Center for Devices and Radiological Health; $400,000 is for the Office of the Commissioner; $1,900,000 is for the Center for Drug Evaluation and Research; $500,000 is for the Office of Regulatory Affairs; and $15,000,000 is for the Medical Countermeasures Initiative.

This division may be cited as the ''Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Act, 2015''.

DIVISION B—COMMERCE, JUSTICE, SCIENCE, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015

TITLE I

DEPARTMENT OF COMMERCE

INTERNATIONAL TRADE ADMINISTRATION

OPERATIONS AND ADMINISTRATION

For necessary expenses for international trade activities of the Department of Commerce provided for by law, and for engaging in trade promotional activities abroad, including expenses of grants and cooperative agreements for the purpose of promoting exports of United States firms, without regard to sections 3702 and 3703 of title 44, United States Code; full medical coverage for dependent members of immediate families of employees stationed overseas and employees temporarily posted overseas; travel and transportation of employees of the International Trade Administration between two points abroad, without regard to section 40118 of title 49, United States Code; employment of citizens of the United States and aliens by contract for services; rental of space abroad for periods not exceeding 10 years, and expenses of alteration, repair, or improvement; purchase or construction of temporary demountable exhibition structures for use abroad; payment of tort claims, in the manner authorized in the first paragraph of section 2672 of title 28, United States Code, when such claims arise in foreign countries; not to exceed $294,300 for official representation expenses abroad; purchase of passenger motor vehicles for official use abroad, not to exceed $45,000 per vehicle; obtaining insurance on official motor vehicles; and rental of tie lines, $472,000,000, to remain available until September 30, 2016, of which $10,000,000 is to be derived from fees to be retained and used by the International Trade Administration, notwithstanding section 3302 of title 31, United States Code: *Provided*, That, of amounts provided under this heading, not less than $16,400,000 shall be for China antidumping and countervailing duty enforcement and compliance activities: *Provided further*, That the provisions of the first sentence of section 105(f) and all of section

108(c) of the Mutual Educational and Cultural Exchange Act of 1961 (22 U.S.C. 2455(f) and 2458(c)) shall apply in carrying out these activities; and that for the purpose of this Act, contributions under the provisions of the Mutual Educational and Cultural Exchange Act of 1961 shall include payment for assessments for services provided as part of these activities.

BUREAU OF INDUSTRY AND SECURITY

OPERATIONS AND ADMINISTRATION

For necessary expenses for export administration and national security activities of the Department of Commerce, including costs associated with the performance of export administration field activities both domestically and abroad; full medical coverage for dependent members of immediate families of employees stationed overseas; employment of citizens of the United States and aliens by contract for services abroad; payment of tort claims, in the manner authorized in the first paragraph of section 2672 of title 28, United States Code, when such claims arise in foreign countries; not to exceed $13,500 for official representation expenses abroad; awards of compensation to informers under the Export Administration Act of 1979, and as authorized by section 1(b) of the Act of June 15, 1917 (40 Stat. 223; 22 U.S.C. 401(b)); and purchase of passenger motor vehicles for official use and motor vehicles for law enforcement use with special requirement vehicles eligible for purchase without regard to any price limitation otherwise established by law, $102,500,000, to remain available until expended: *Provided*, That the provisions of the first sentence of section 105(f) and all of section 108(c) of the Mutual Educational and Cultural Exchange Act of 1961 (22 U.S.C. 2455(f) and 2458(c)) shall apply in carrying out these activities: *Provided further*, That payments and contributions collected and accepted for materials or services provided as part of such activities may be retained for use in covering the cost of such activities, and for providing information to the public with respect to the export administration and national security activities of the Department of Commerce and other export control programs of the United States and other governments.

ECONOMIC DEVELOPMENT ADMINISTRATION

ECONOMIC DEVELOPMENT ASSISTANCE PROGRAMS

For grants for economic development assistance as provided by the Public Works and Economic Development Act of 1965, for trade adjustment assistance, for the cost of loan guarantees authorized by section 26 of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3721), for grants authorized by section 27 (15 U.S.C. 3722) of such Act, and for grants, $213,000,000, to remain available until expended; of which $5,000,000 shall be for projects to facilitate the relocation, to the United States, of a source of employment located outside the United States; of which $4,000,000 shall be for loan guarantees under such section 26; and of which $10,000,000 shall be for grants under such section 27: *Provided*, That the costs for loan guarantees, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That these funds for loan guarantees under such section 26 are available to subsidize total loan principal, any part of which is to be guaranteed, not to exceed $70,000,000.

SALARIES AND EXPENSES

For necessary expenses of administering the economic development assistance programs as provided for by law, $37,000,000: *Provided*, That these funds may be used to monitor projects approved pursuant to title I of the Public Works Employment Act of 1976, title II of the Trade Act of 1974, and the Community Emergency Drought Relief Act of 1977.

MINORITY BUSINESS DEVELOPMENT AGENCY

MINORITY BUSINESS DEVELOPMENT

For necessary expenses of the Department of Commerce in fostering, promoting, and developing minority business enterprise, including expenses of grants, contracts, and other agreements with public or private organizations, $30,000,000.

ECONOMIC AND STATISTICAL ANALYSIS

SALARIES AND EXPENSES

For necessary expenses, as authorized by law, of economic and statistical analysis programs of the Department of Commerce, $100,000,000, to remain available until September 30, 2016.

BUREAU OF THE CENSUS

SALARIES AND EXPENSES

For necessary expenses for collecting, compiling, analyzing, preparing and publishing statistics, provided for by law, $248,000,000: *Provided*, That, from amounts provided herein, funds may be used for promotion, outreach, and marketing activities: *Provided further*, That the Bureau of the Census shall collect data for the Annual Social and Economic Supplement to the Current Population Survey using the same health insurance questions included in previous years, in addition to the revised questions implemented in the Current Population Survey beginning in February 2014.

PERIODIC CENSUSES AND PROGRAMS

For necessary expenses for collecting, compiling, analyzing, preparing and publishing statistics for periodic censuses and programs provided for by law, $840,000,000, to remain available until September 30, 2016: *Provided*, That, from amounts provided herein, funds may be used for promotion, outreach, and marketing activities: *Provided further*, That within the amounts appropriated, $1,551,000 shall be transferred to the ''Office of Inspector General'' account for activities associated with carrying out investigations and audits related to the Bureau of the Census.

NATIONAL TELECOMMUNICATIONS AND INFORMATION ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses, as provided for by law, of the National Telecommunications and Information Administration (NTIA), $38,200,000, to remain available until September 30, 2016: *Provided*, That, notwithstanding 31 U.S.C. 1535(d), the Secretary of Commerce shall charge Federal agencies for costs incurred in spectrum management, analysis, operations, and related services, and such fees shall be retained and used as offsetting collections for costs of such spectrum services, to remain available until expended: *Provided further*, That the Secretary of Commerce is authorized to retain and use as offsetting collections all funds transferred, or previously transferred, from other Government agencies for all costs incurred in telecommunications research, engineering, and related activities by the Institute for Telecommunication Sciences of NTIA, in furtherance of its assigned functions under this paragraph, and such funds received from other Government agencies shall remain available until expended.

PUBLIC TELECOMMUNICATIONS FACILITIES, PLANNING AND CONSTRUCTION

For the administration of prior-year grants, recoveries and unobligated balances of funds previously appropriated are available for the administration of all open grants until their expiration.

UNITED STATES PATENT AND TRADEMARK OFFICE

SALARIES AND EXPENSES

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the United States Patent and Trademark Office (USPTO) provided for by law, including defense of suits instituted against the Under Secretary of Commerce for Intellectual Property and Director of the USPTO, $3,458,000,000, to remain available until expended: *Provided*, That the sum herein appropriated from the general fund shall be reduced as offsetting collections of fees and surcharges assessed and collected by the USPTO under any law are received during fiscal year 2015, so as to result in a fiscal year 2015 appropriation from the general fund estimated at $0: *Provided further*, That during fiscal year 2015, should the total amount of such offsetting collections be less than $3,458,000,000 this amount shall be reduced accordingly: *Provided further*, That any amount received in excess of $3,458,000,000 in fiscal year 2015 and deposited in the Patent and Trademark Fee Reserve Fund shall remain available until expended: *Provided further*, That the Director of USPTO shall submit a spending plan to the Committees on Appropriations of the House of Representatives and the Senate for any amounts made available by the preceding proviso and such spending plan shall be treated as a reprogramming under section 505 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section: *Provided further*, That any amounts reprogrammed in accordance with the preceding proviso shall be transferred to the United States Patent and Trademark Office Salaries and Expenses account: *Provided further*, That from amounts provided herein, not to exceed $900 shall be made available in fiscal year 2015 for official reception and representation expenses: *Provided further*, That in fiscal year 2015 from the amounts made available for ''Salaries and Expenses'' for the USPTO, the amounts necessary to pay (1) the difference between the percentage of basic pay contributed by the USPTO and employees under section 8334(a) of title 5, United States Code, and the normal cost percentage (as defined by section 8331(17) of that title) as provided by the Office of Personnel Management (OPM) for USPTO's specific use, of basic pay, of employees subject to subchapter III of chapter 83 of that title, and (2) the present value of the otherwise unfunded accruing costs, as determined by OPM for USPTO's specific use of post-retirement life insurance and post-retirement health benefits coverage for all USPTO employees who are enrolled in Federal Employees Health Benefits (FEHB) and Federal Employees Group Life Insurance (FEGLI), shall be transferred to the Civil Service Retirement and Disability Fund, the FEGLI Fund, and the FEHB Fund, as appropriate, and shall be available for the authorized purposes of those accounts: *Provided further*, That any differences between the present value factors published in OPM's yearly 300 series benefit letters and the factors that OPM provides for USPTO's specific use shall be recognized as an imputed cost on USPTO's financial statements, where applicable: *Provided further*, That, notwithstanding any other provision of law, all fees and surcharges assessed and collected by USPTO are available for USPTO only pursuant to section 42(c) of title 35, United States Code, as amended by section 22 of the Leahy-Smith America Invents Act (Public Law 112–29): *Provided further*, That within the amounts appropriated, $2,000,000 shall be transferred to the ''Office of Inspector General'' account for activities associated with

carrying out investigations and audits related to the USPTO.

NATIONAL INSTITUTE OF STANDARDS AND TECHNOLOGY

SCIENTIFIC AND TECHNICAL RESEARCH AND SERVICES

For necessary expenses of the National Institute of Standards and Technology (NIST), $675,500,000, to remain available until expended, of which not to exceed $9,000,000 may be transferred to the ''Working Capital Fund'': *Provided*, That not to exceed $5,000 shall be for official reception and representation expenses: *Provided further*, That NIST may provide local transportation for summer undergraduate research fellowship program participants.

INDUSTRIAL TECHNOLOGY SERVICES

For necessary expenses for industrial technology services, $138,100,000, to remain available until expended, of which $130,000,000 shall be for the Hollings Manufacturing Extension Partnership, and of which $8,100,000 shall be for the Advanced Manufacturing Technology Consortia.

CONSTRUCTION OF RESEARCH FACILITIES

For construction of new research facilities, including architectural and engineering design, and for renovation and maintenance of existing facilities, not otherwise provided for the National Institute of Standards and Technology, as authorized by sections 13 through 15 of the National Institute of Standards and Technology Act (15 U.S.C. 278c–278e), $50,300,000, to remain available until expended: *Provided*, That the Secretary of Commerce shall include in the budget justification materials that the Secretary submits to Congress in support of the Department of Commerce budget (as submitted with the budget of the President under section 1105(a) of title 31, United States Code) an estimate for each National Institute of Standards and Technology construction project having a total multi-year program cost of more than $5,000,000, and simultaneously the budget justification materials shall include an estimate of the budgetary requirements for each such project for each of the 5 subsequent fiscal years.

NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION

OPERATIONS, RESEARCH, AND FACILITIES

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses of activities authorized by law for the National Oceanic and Atmospheric Administration, including maintenance, operation, and hire of aircraft and vessels; grants, contracts, or other payments to nonprofit organizations for the purposes of conducting activities pursuant to cooperative agreements; and relocation of facilities, $3,202,398,000, to remain available until September 30, 2016, except that funds provided for cooperative enforcement shall remain available until September 30, 2017: *Provided*, That fees and donations received by the National Ocean Service for the management of national marine sanctuaries may be retained and used for the salaries and expenses associated with those activities, notwithstanding section 3302 of title 31, United States Code: *Provided further*, That in addition, $116,000,000 shall be derived by transfer from the fund entitled ''Promote and Develop Fishery Products and Research Pertaining to American Fisheries'', which shall only be used for fishery activities related to the Saltonstall-Kennedy Grant Program, Cooperative Research, Annual Stock Assessments, Survey and Monitoring Projects, Interjurisdictional Fisheries Grants, and Fish Information Networks: *Provided further*, That of the $3,333,398,000 provided for in direct obligations under this heading $3,202,398,000 is appropriated from the general fund, $116,000,000 is provided by transfer, and $15,000,000 is derived from recoveries of prior year obligations: *Provided further*, That the total amount available for National Oceanic and Atmospheric Administration corporate services administrative support costs shall not exceed $220,300,000: *Provided further*, That any deviation from the amounts designated for specific activities in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act), or any use of deobligated balances of funds provided under this heading in previous years, shall be subject to the procedures set forth in section 505 of this Act: *Provided further*, That in addition, for necessary retired pay expenses under the Retired Serviceman's Family Protection and Survivor Benefits Plan, and for payments for the medical care of retired personnel and their dependents under the Dependents Medical Care Act (10 U.S.C. 55), such sums as may be necessary.

PROCUREMENT, ACQUISITION AND CONSTRUCTION

For procurement, acquisition and construction of capital assets, including alteration and modification costs, of the National Oceanic and Atmospheric Administration, $2,179,225,000, to remain available until September 30, 2017, except that funds provided for construction of facilities shall remain available until expended: *Provided*, That of the $2,192,225,000 provided for in direct obligations under this heading, $2,179,225,000 is appropriated from the general fund and $13,000,000 is provided from recoveries of prior year obligations: *Provided further*, That any deviation from the amounts designated for specific activities in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act), or any use of deobligated balances of funds provided under this heading in previous years, shall be subject to the procedures set forth in section 505 of this Act: *Provided further*, That the Secretary of Commerce shall include in budget justification materials that the Secretary submits to Congress in support of the Department of Commerce budget (as submitted with the budget of the President under section 1105(a) of title 31, United States Code) an estimate for each National Oceanic and Atmospheric Administration procurement, acquisition or construction project having a total of more than $5,000,000 and simultaneously the budget justification shall include an estimate of the budgetary requirements for each such project for each of the 5 subsequent fiscal years: *Provided further*, That, within the amounts appropriated, $1,302,000 shall be transferred to the ''Office of Inspector General'' account for activities associated with carrying out investigations and audits related to satellite procurement, acquisition and construction.

PACIFIC COASTAL SALMON RECOVERY

For necessary expenses associated with the restoration of Pacific salmon populations, $65,000,000, to remain available until September 30, 2016: *Provided*, That, of the funds provided herein, the Secretary of Commerce may issue grants to the States of Washington, Oregon, Idaho, Nevada, California, and Alaska, and to the Federally recognized tribes of the Columbia River and Pacific Coast (including Alaska), for projects necessary for conservation of salmon and steelhead populations that are listed as threatened or endangered, or that are identified by a State as at-risk to be so listed, for maintaining populations necessary for exercise of tribal treaty fishing rights or native subsistence fishing, or for conservation of Pacific coastal salmon and steelhead habitat, based on guidelines to be developed by the Secretary of Commerce: *Provided further*, That all funds shall be allocated based on scientific and other merit principles and shall not be available for marketing activities: *Provided further*, That funds disbursed to States shall be subject to a matching requirement of funds or documented in-kind contributions of at least 33 percent of the Federal funds.

FISHERMEN'S CONTINGENCY FUND

For carrying out the provisions of title IV of Public Law 95–372, not to exceed $350,000, to be derived from receipts collected pursuant to that Act, to remain available until expended.

FISHERIES FINANCE PROGRAM ACCOUNT

Subject to section 502 of the Congressional Budget Act of 1974, during fiscal year 2015, obligations of direct loans may not exceed $24,000,000 for Individual Fishing Quota loans and not to exceed $100,000,000 for traditional direct loans as authorized by the Merchant Marine Act of 1936.

DEPARTMENTAL MANAGEMENT

SALARIES AND EXPENSES

For necessary expenses for the management of the Department of Commerce provided for by law, including not to exceed $4,500 for official reception and representation, $56,000,000: *Provided*, That the Secretary of Commerce shall maintain a task force on job repatriation and manufacturing growth and shall produce an annual report on related incentive strategies, implementation plans and program results: *Provided further*, That within amounts provided, the Secretary of Commerce may use up to $2,500,000 to engage in activities to provide businesses and communities with information about and referrals to relevant Federal, State, and local government programs.

RENOVATION AND MODERNIZATION

For necessary expenses for the renovation and modernization of Department of Commerce facilities, $4,500,000, to remain available until expended.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978 (5 U.S.C. App.), $30,596,000.

GENERAL PROVISIONS—DEPARTMENT OF COMMERCE

SEC. 101. During the current fiscal year, applicable appropriations and funds made available to the Department of Commerce by this Act shall be available for the activities specified in the Act of October 26, 1949 (15 U.S.C. 1514), to the extent and in the manner prescribed by the Act, and, notwithstanding 31 U.S.C. 3324, may be used for advanced payments not otherwise authorized only upon the certification of officials designated by the Secretary of Commerce that such payments are in the public interest.

SEC. 102. During the current fiscal year, appropriations made available to the Department of Commerce by this Act for salaries and expenses shall be available for hire of passenger motor vehicles as authorized by 31 U.S.C. 1343 and 1344; services as authorized by 5 U.S.C. 3109; and uniforms or allowances therefor, as authorized by law (5 U.S.C. 5901–5902).

SEC. 103. Not to exceed 5 percent of any appropriation made available for the current fiscal year for the Department of Commerce in this Act may be transferred between such appropriations, but no such appropriation shall be increased by more than 10 percent by any such transfers: *Provided*, That any transfer pursuant to this section shall be treated as a reprogramming of funds under section 505 of this Act and shall not be available for obligation or expenditure except in

compliance with the procedures set forth in that section: *Provided further*, That the Secretary of Commerce shall notify the Committees on Appropriations at least 15 days in advance of the acquisition or disposal of any capital asset (including land, structures, and equipment) not specifically provided for in this Act or any other law appropriating funds for the Department of Commerce.

SEC. 104. The requirements set forth by section 105 of the Commerce, Justice, Science, and Related Agencies Appropriations Act, 2012 (Public Law 112–55), as amended by section 105 of title I of division B of Public Law 113–6, are hereby adopted by reference and made applicable with respect to fiscal year 2015: *Provided*, That the life cycle cost for the Joint Polar Satellite System is $11,323,400,000 and the life cycle cost for the Geostationary Operational Environmental Satellite R-Series Program is $10,829,500,000.

SEC. 105. Notwithstanding any other provision of law, the Secretary may furnish services (including but not limited to utilities, telecommunications, and security services) necessary to support the operation, maintenance, and improvement of space that persons, firms, or organizations are authorized, pursuant to the Public Buildings Cooperative Use Act of 1976 or other authority, to use or occupy in the Herbert C. Hoover Building, Washington, DC, or other buildings, the maintenance, operation, and protection of which has been delegated to the Secretary from the Administrator of General Services pursuant to the Federal Property and Administrative Services Act of 1949 on a reimbursable or non-reimbursable basis. Amounts received as reimbursement for services provided under this section or the authority under which the use or occupancy of the space is authorized, up to $200,000, shall be credited to the appropriation or fund which initially bears the costs of such services.

SEC. 106. Nothing in this title shall be construed to prevent a grant recipient from deterring child pornography, copyright infringement, or any other unlawful activity over its networks.

SEC. 107. The Administrator of the National Oceanic and Atmospheric Administration is authorized to use, with their consent, with reimbursement and subject to the limits of available appropriations, the land, services, equipment, personnel, and facilities of any department, agency, or instrumentality of the United States, or of any State, local government, Indian tribal government, Territory, or possession, or of any political subdivision thereof, or of any foreign government or international organization, for purposes related to carrying out the responsibilities of any statute administered by the National Oceanic and Atmospheric Administration.

SEC. 108. The Department of Commerce shall provide a monthly report to the Committees on Appropriations of the House of Representatives and the Senate on any official travel to China by any employee of the U.S. Department of Commerce, including the purpose of such travel.

SEC. 109. The National Technical Information Service shall not charge any customer for a copy of any report or document generated by the Legislative Branch unless the Service has provided information to the customer on how an electronic copy of such report or document may be accessed and downloaded for free online. Should a customer still require the Service to provide a printed or digital copy of the report or document, the charge shall be limited to recovering the Service's cost of processing, reproducing, and delivering such report or document.

SEC. 110. To carry out the responsibilities of the National Oceanic and Atmospheric Administration (NOAA), the Administrator of NOAA is authorized to: (1) enter into grants and cooperative agreements with; (2) use on a non-reimbursable basis land, services, equipment, personnel, and facilities provided by; and (3) receive and expend funds made available on a consensual basis from: a Federal agency, State or subdivision thereof, local government, tribal government, territory, or possession or any subdivisions thereof: *Provided*, That funds received for permitting and related regulatory activities pursuant to this section shall be deposited under the heading ''National Oceanic and Atmospheric Administration—Operations, Research, and Facilities'' and shall remain available until September 30, 2016 for such purposes: *Provided further*, That all funds within this section and their corresponding uses are subject to section 505 of this Act.

SEC. 111. The Secretary of Commerce may waive the requirement for bonds under 40 U.S.C. 3131 with respect to contracts for the construction, alteration, or repair of vessels, regardless of the terms of the contracts as to payment or title, when the contract is made under the Coast and Geodetic Survey Act of 1947 (33 U.S.C. 883a et seq.).

This title may be cited as the ''Department of Commerce Appropriations Act, 2015''.

TITLE II

DEPARTMENT OF JUSTICE

GENERAL ADMINISTRATION

SALARIES AND EXPENSES

For expenses necessary for the administration of the Department of Justice, $111,500,000, of which not to exceed $4,000,000 for security and construction of Department of Justice facilities shall remain available until expended.

JUSTICE INFORMATION SHARING TECHNOLOGY

For necessary expenses for information sharing technology, including planning, development, deployment and departmental direction, $25,842,000, to remain available until expended: *Provided*, That the Attorney General may transfer up to $35,400,000 to this account, from funds available to the Department of Justice for information technology, for enterprise-wide information technology initiatives: *Provided further*, That the transfer authority in the preceding proviso is in addition to any other transfer authority contained in this Act.

ADMINISTRATIVE REVIEW AND APPEALS

(INCLUDING TRANSFER OF FUNDS)

For expenses necessary for the administration of pardon and clemency petitions and immigration-related activities, $351,072,000, of which $4,000,000 shall be derived by transfer from the Executive Office for Immigration Review fees deposited in the ''Immigration Examinations Fee'' account.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General, $88,577,000, including not to exceed $10,000 to meet unforeseen emergencies of a confidential character.

UNITED STATES PAROLE COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the United States Parole Commission as authorized, $13,308,000.

LEGAL ACTIVITIES

SALARIES AND EXPENSES, GENERAL LEGAL ACTIVITIES

For expenses necessary for the legal activities of the Department of Justice, not otherwise provided for, including not to exceed $20,000 for expenses of collecting evidence, to be expended under the direction of, and to be accounted for solely under the certificate of, the Attorney General; and rent of private or Government-owned space in the District of Columbia, $885,000,000, of which not to exceed $15,000,000 for litigation support contracts shall remain available until expended: *Provided*, That of the amount provided for INTERPOL Washington dues payments, not to exceed $685,000 shall remain available until expended: *Provided further*, That of the total amount appropriated, not to exceed $9,000 shall be available to INTERPOL Washington for official reception and representation expenses: *Provided further*, That notwithstanding section 205 of this Act, upon a determination by the Attorney General that emergent circumstances require additional funding for litigation activities of the Civil Division, the Attorney General may transfer such amounts to ''Salaries and Expenses, General Legal Activities'' from available appropriations for the current fiscal year for the Department of Justice, as may be necessary to respond to such circumstances: *Provided further*, That any transfer pursuant to the preceding proviso shall be treated as a reprogramming under section 505 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section: *Provided further*, That of the amount appropriated, such sums as may be necessary shall be available to the Civil Rights Division for salaries and expenses associated with the election monitoring program under section 8 of the Voting Rights Act of 1965 (52 U.S.C. 10305) and to reimburse the Office of Personnel Management for such salaries and expenses: *Provided further*, That of the amounts provided under this heading for the election monitoring program, $3,390,000 shall remain available until expended.

In addition, for reimbursement of expenses of the Department of Justice associated with processing cases under the National Childhood Vaccine Injury Act of 1986, not to exceed $7,833,000, to be appropriated from the Vaccine Injury Compensation Trust Fund.

SALARIES AND EXPENSES, ANTITRUST DIVISION

For expenses necessary for the enforcement of antitrust and kindred laws, $162,246,000, to remain available until expended: *Provided*, That notwithstanding any other provision of law, fees collected for premerger notification filings under the Hart-Scott-Rodino Antitrust Improvements Act of 1976 (15 U.S.C. 18a), regardless of the year of collection (and estimated to be $100,000,000 in fiscal year 2015), shall be retained and used for necessary expenses in this appropriation, and shall remain available until expended: *Provided further*, That the sum herein appropriated from the general fund shall be reduced as such offsetting collections are received during fiscal year 2015, so as to result in a final fiscal year 2015 appropriation from the general fund estimated at $62,246,000.

SALARIES AND EXPENSES, UNITED STATES ATTORNEYS

For necessary expenses of the Offices of the United States Attorneys, including intergovernmental and cooperative agreements, $1,960,000,000: *Provided*, That of the total amount appropriated, not to exceed $7,200 shall be available for official reception and representation expenses: *Provided further*, That not to exceed $25,000,000 shall remain available until expended: *Provided further*, That each United States Attorney shall establish or participate in a United States Attorney-led task force on human trafficking.

UNITED STATES TRUSTEE SYSTEM FUND

For necessary expenses of the United States Trustee Program, as authorized, $225,908,000, to remain available until expended and to be derived from the United States Trustee System Fund: *Provided*, That,

notwithstanding any other provision of law, deposits to the Fund shall be available in such amounts as may be necessary to pay refunds due depositors: *Provided further*, That, notwithstanding any other provision of law, $225,908,000 of offsetting collections pursuant to section 589a(b) of title 28, United States Code, shall be retained and used for necessary expenses in this appropriation and shall remain available until expended: *Provided further*, That the sum herein appropriated from the Fund shall be reduced as such offsetting collections are received during fiscal year 2015, so as to result in a final fiscal year 2015 appropriation from the Fund estimated at $0.

SALARIES AND EXPENSES, FOREIGN CLAIMS SETTLEMENT COMMISSION

For expenses necessary to carry out the activities of the Foreign Claims Settlement Commission, including services as authorized by section 3109 of title 5, United States Code, $2,326,000.

FEES AND EXPENSES OF WITNESSES

For fees and expenses of witnesses, for expenses of contracts for the procurement and supervision of expert witnesses, for private counsel expenses, including advances, and for expenses of foreign counsel, $270,000,000, to remain available until expended, of which not to exceed $16,000,000 is for construction of buildings for protected witness safesites; not to exceed $3,000,000 is for the purchase and maintenance of armored and other vehicles for witness security caravans; and not to exceed $11,000,000 is for the purchase, installation, maintenance, and upgrade of secure telecommunications equipment and a secure automated information network to store and retrieve the identities and locations of protected witnesses.

SALARIES AND EXPENSES, COMMUNITY RELATIONS SERVICE

For necessary expenses of the Community Relations Service, $12,250,000: *Provided*, That notwithstanding section 205 of this Act, upon a determination by the Attorney General that emergent circumstances require additional funding for conflict resolution and violence prevention activities of the Community Relations Service, the Attorney General may transfer such amounts to the Community Relations Service, from available appropriations for the current fiscal year for the Department of Justice, as may be necessary to respond to such circumstances: *Provided further*, That any transfer pursuant to the preceding proviso shall be treated as a reprogramming under section 505 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section.

ASSETS FORFEITURE FUND

For expenses authorized by subparagraphs (B), (F), and (G) of section 524(c)(1) of title 28, United States Code, $20,514,000, to be derived from the Department of Justice Assets Forfeiture Fund.

UNITED STATES MARSHALS SERVICE

SALARIES AND EXPENSES

For necessary expenses of the United States Marshals Service, $1,195,000,000, of which not to exceed $6,000 shall be available for official reception and representation expenses, and not to exceed $15,000,000 shall remain available until expended.

CONSTRUCTION

For construction in space controlled, occupied or utilized by the United States Marshals Service for prisoner holding and related support, $9,800,000, to remain available until expended.

FEDERAL PRISONER DETENTION

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses related to United States prisoners in the custody of the United States Marshals Service as authorized by section 4013 of title 18, United States Code, $495,307,000, to remain available until expended: *Provided*, That section 524(c)(8)(E) of title 28, United States Code, shall be applied for fiscal year 2015 as if the following were inserted after the final period: ''The Attorney General shall use $1,100,000,000 of the excess unobligated balances available in fiscal year 2015 for necessary expenses related to United States prisoners in the custody of the United States Marshals Service as authorized by section 4013 of title 18, United States Code.'': *Provided further*, That any use of such unobligated balances shall be treated as a reprogramming of funds under section 505 of this Act: *Provided further*, That not to exceed $20,000,000 shall be considered ''funds appropriated for State and local law enforcement assistance'' pursuant to section 4013(b) of title 18, United States Code: *Provided further*, That the United States Marshals Service shall be responsible for managing the Justice Prisoner and Alien Transportation System: *Provided further*, That any unobligated balances available from funds appropriated under the heading ''General Administration, Detention Trustee'' shall be transferred to and merged with the appropriation under this heading.

NATIONAL SECURITY DIVISION

SALARIES AND EXPENSES

For expenses necessary to carry out the activities of the National Security Division, $93,000,000, of which not to exceed $5,000,000 for information technology systems shall remain available until expended: *Provided*, That notwithstanding section 205 of this Act, upon a determination by the Attorney General that emergent circumstances require additional funding for the activities of the National Security Division, the Attorney General may transfer such amounts to this heading from available appropriations for the current fiscal year for the Department of Justice, as may be necessary to respond to such circumstances: *Provided further*, That any transfer pursuant to the preceding proviso shall be treated as a reprogramming under section 505 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section.

INTERAGENCY LAW ENFORCEMENT

INTERAGENCY CRIME AND DRUG ENFORCEMENT

For necessary expenses for the identification, investigation, and prosecution of individuals associated with the most significant drug trafficking and affiliated money laundering organizations not otherwise provided for, to include inter-governmental agreements with State and local law enforcement agencies engaged in the investigation and prosecution of individuals involved in organized crime drug trafficking, $507,194,000, of which $50,000,000 shall remain available until expended: *Provided*, That any amounts obligated from appropriations under this heading may be used under authorities available to the organizations reimbursed from this appropriation.

FEDERAL BUREAU OF INVESTIGATION

SALARIES AND EXPENSES

For necessary expenses of the Federal Bureau of Investigation for detection, investigation, and prosecution of crimes against the United States, $8,326,569,000, of which not less than $8,500,000 shall be for the National Gang Intelligence Center, and of which not to exceed $216,900,000 shall remain available until expended: *Provided*, That not to exceed $184,500 shall be available for official reception and representation expenses: *Provided further*, That up to $1,000,000 shall be for a comprehensive review of the implementation of the recommendations related to the Federal Bureau of Investigation that were proposed in the report issued by the National Commission on Terrorist Attacks Upon the United States.

CONSTRUCTION

For necessary expenses, to include the cost of equipment, furniture, and information technology requirements, related to construction or acquisition of buildings, facilities and sites by purchase, or as otherwise authorized by law; conversion, modification and extension of Federally-owned buildings; preliminary planning and design of projects; and operation and maintenance of secure work environment facilities and secure networking capabilities; $110,000,000, to remain available until expended.

DRUG ENFORCEMENT ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses of the Drug Enforcement Administration, including not to exceed $70,000 to meet unforeseen emergencies of a confidential character pursuant to section 530C of title 28, United States Code; and expenses for conducting drug education and training programs, including travel and related expenses for participants in such programs and the distribution of items of token value that promote the goals of such programs, $2,033,320,000; of which not to exceed $75,000,000 shall remain available until expended and not to exceed $90,000 shall be available for official reception and representation expenses.

BUREAU OF ALCOHOL, TOBACCO, FIREARMS AND EXPLOSIVES

SALARIES AND EXPENSES

For necessary expenses of the Bureau of Alcohol, Tobacco, Firearms and Explosives, for training of State and local law enforcement agencies with or without reimbursement, including training in connection with the training and acquisition of canines for explosives and fire accelerants detection; and for provision of laboratory assistance to State and local law enforcement agencies, with or without reimbursement, $1,201,000,000, of which not to exceed $36,000 shall be for official reception and representation expenses, not to exceed $1,000,000 shall be available for the payment of attorneys' fees as provided by section 924(d)(2) of title 18, United States Code, and not to exceed $20,000,000 shall remain available until expended: *Provided*, That none of the funds appropriated herein shall be available to investigate or act upon applications for relief from Federal firearms disabilities under section 925(c) of title 18, United States Code: *Provided further*, That such funds shall be available to investigate and act upon applications filed by corporations for relief from Federal firearms disabilities under section 925(c) of title 18, United States Code: *Provided further*, That no funds made available by this or any other Act may be used to transfer the functions, missions, or activities of the Bureau of Alcohol, Tobacco, Firearms and Explosives to other agencies or Departments.

FEDERAL PRISON SYSTEM

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses of the Federal Prison System for the administration, operation, and maintenance of Federal penal and correctional institutions, and for the provision of technical assistance and advice on corrections related issues to foreign governments, $6,815,000,000: *Provided*, That the Attorney General may transfer to the Health Resources and Services Administration such amounts as may be necessary for direct expenditures by that Administration for medical relief for inmates of Federal penal and

correctional institutions: *Provided further*, That the Director of the Federal Prison System, where necessary, may enter into contracts with a fiscal agent or fiscal intermediary claims processor to determine the amounts payable to persons who, on behalf of the Federal Prison System, furnish health services to individuals committed to the custody of the Federal Prison System: *Provided further*, That not to exceed $5,400 shall be available for official reception and representation expenses: *Provided further*, That not to exceed $50,000,000 shall remain available for necessary operations until September 30, 2016: *Provided further*, That, of the amounts provided for contract confinement, not to exceed $20,000,000 shall remain available until expended to make payments in advance for grants, contracts and reimbursable agreements, and other expenses: *Provided further*, That the Director of the Federal Prison System may accept donated property and services relating to the operation of the prison card program from a not-for-profit entity which has operated such program in the past, notwithstanding the fact that such not-for-profit entity furnishes services under contracts to the Federal Prison System relating to the operation of pre-release services, halfway houses, or other custodial facilities.

BUILDINGS AND FACILITIES

For planning, acquisition of sites and construction of new facilities; purchase and acquisition of facilities and remodeling, and equipping of such facilities for penal and correctional use, including all necessary expenses incident thereto, by contract or force account; and constructing, remodeling, and equipping necessary buildings and facilities at existing penal and correctional institutions, including all necessary expenses incident thereto, by contract or force account, $106,000,000, to remain available until expended, of which $25,000,000 shall be available only for costs related to construction of new facilities, and of which not less than $81,000,000 shall be available only for modernization, maintenance and repair: *Provided*, That labor of United States prisoners may be used for work performed under this appropriation.

FEDERAL PRISON INDUSTRIES, INCORPORATED

The Federal Prison Industries, Incorporated, is hereby authorized to make such expenditures within the limits of funds and borrowing authority available, and in accord with the law, and to make such contracts and commitments without regard to fiscal year limitations as provided by section 9104 of title 31, United States Code, as may be necessary in carrying out the program set forth in the budget for the current fiscal year for such corporation.

LIMITATION ON ADMINISTRATIVE EXPENSES, FEDERAL PRISON INDUSTRIES, INCORPORATED

Not to exceed $2,700,000 of the funds of the Federal Prison Industries, Incorporated, shall be available for its administrative expenses, and for services as authorized by section 3109 of title 5, United States Code, to be computed on an accrual basis to be determined in accordance with the corporation's current prescribed accounting system, and such amounts shall be exclusive of depreciation, payment of claims, and expenditures which such accounting system requires to be capitalized or charged to cost of commodities acquired or produced, including selling and shipping expenses, and expenses in connection with acquisition, construction, operation, maintenance, improvement, protection, or disposition of facilities and other property belonging to the corporation or in which it has an interest.

STATE AND LOCAL LAW ENFORCEMENT ACTIVITIES

OFFICE ON VIOLENCE AGAINST WOMEN

VIOLENCE AGAINST WOMEN PREVENTION AND PROSECUTION PROGRAMS

For grants, contracts, cooperative agreements, and other assistance for the prevention and prosecution of violence against women, as authorized by the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3711 et seq.) (''the 1968 Act''); the Violent Crime Control and Law Enforcement Act of 1994 (Public Law 103–322) (''the 1994 Act''); the Victims of Child Abuse Act of 1990 (Public Law 101–647) (''the 1990 Act''); the Prosecutorial Remedies and Other Tools to end the Exploitation of Children Today Act of 2003 (Public Law 108–21); the Juvenile Justice and Delinquency Prevention Act of 1974 (42 U.S.C. 5601 et seq.) (''the 1974 Act''); the Victims of Trafficking and Violence Protection Act of 2000 (Public Law 106–386) (''the 2000 Act''); the Violence Against Women and Department of Justice Reauthorization Act of 2005 (Public Law 109–162) (''the 2005 Act''); and the Violence Against Women Reauthorization Act of 2013 (Public Law 113–4) (''the 2013 Act''); and for related victims services, $430,000,000, to remain available until expended: *Provided*, That except as otherwise provided by law, not to exceed 5 percent of funds made available under this heading may be used for expenses related to evaluation, training, and technical assistance: *Provided further*, That of the amount provided—

(1) $195,000,000 is for grants to combat violence against women, as authorized by part T of the 1968 Act;

(2) $26,000,000 is for transitional housing assistance grants for victims of domestic violence, dating violence, stalking, or sexual assault as authorized by section 40299 of the 1994 Act;

(3) $3,000,000 is for the National Institute of Justice for research and evaluation of violence against women and related issues addressed by grant programs of the Office on Violence Against Women, which shall be transferred to ''Research, Evaluation and Statistics'' for administration by the Office of Justice Programs;

(4) $10,000,000 is for a grant program to provide services to advocate for and respond to youth victims of domestic violence, dating violence, sexual assault, and stalking; assistance to children and youth exposed to such violence; programs to engage men and youth in preventing such violence; and assistance to middle and high school students through education and other services related to such violence: *Provided*, That unobligated balances available for the programs authorized by sections 41201, 41204, 41303 and 41305 of the 1994 Act, prior to its amendment by the 2013 Act, shall be available for this program: *Provided further*, That 10 percent of the total amount available for this grant program shall be available for grants under the program authorized by section 2015 of the 1968 Act: *Provided further*, That the definitions and grant conditions in section 40002 of the 1994 Act shall apply to this program;

(5) $50,000,000 is for grants to encourage arrest policies as authorized by part U of the 1968 Act, of which $4,000,000 is for a homicide reduction initiative;

(6) $30,000,000 is for sexual assault victims assistance, as authorized by section 41601 of the 1994 Act;

(7) $33,000,000 is for rural domestic violence and child abuse enforcement assistance grants, as authorized by section 40295 of the 1994 Act;

(8) $12,000,000 is for grants to reduce violent crimes against women on campus, as authorized by section 304 of the 2005 Act;

(9) $42,500,000 is for legal assistance for victims, as authorized by section 1201 of the 2000 Act;

(10) $4,500,000 is for enhanced training and services to end violence against and abuse of women in later life, as authorized by section 40802 of the 1994 Act;

(11) $16,000,000 is for grants to support families in the justice system, as authorized by section 1301 of the 2000 Act: *Provided*, That unobligated balances available for the programs authorized by section 1301 of the 2000 Act and section 41002 of the 1994 Act, prior to their amendment by the 2013 Act, shall be available for this program;

(12) $6,000,000 is for education and training to end violence against and abuse of women with disabilities, as authorized by section 1402 of the 2000 Act;

(13) $500,000 is for the National Resource Center on Workplace Responses to assist victims of domestic violence, as authorized by section 41501 of the 1994 Act;

(14) $1,000,000 is for analysis and research on violence against Indian women, including as authorized by section 904 of the 2005 Act: *Provided*, That such funds may be transferred to ''Research, Evaluation and Statistics'' for administration by the Office of Justice Programs; and

(15) $500,000 is for a national clearinghouse that provides training and technical assistance on issues relating to sexual assault of American Indian and Alaska Native women.

OFFICE OF JUSTICE PROGRAMS

RESEARCH, EVALUATION AND STATISTICS

For grants, contracts, cooperative agreements, and other assistance authorized by title I of the Omnibus Crime Control and Safe Streets Act of 1968 (''the 1968 Act''); the Juvenile Justice and Delinquency Prevention Act of 1974 (''the 1974 Act''); the Missing Children's Assistance Act (42 U.S.C. 5771 et seq.); the Prosecutorial Remedies and Other Tools to end the Exploitation of Children Today Act of 2003 (Public Law 108–21); the Justice for All Act of 2004 (Public Law 108–405); the Violence Against Women and Department of Justice Reauthorization Act of 2005 (Public Law 109–162) (''the 2005 Act''); the Victims of Child Abuse Act of 1990 (Public Law 101–647); the Second Chance Act of 2007 (Public Law 110–199); the Victims of Crime Act of 1984 (Public Law 98–473); the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109–248) (''the Adam Walsh Act''); the PROTECT Our Children Act of 2008 (Public Law 110–401); subtitle D of title II of the Homeland Security Act of 2002 (Public Law 107–296) (''the 2002 Act''); the NICS Improvement Amendments Act of 2007 (Public Law 110–180); the Violence Against Women Reauthorization Act of 2013 (Public Law 113–4) (''the 2013 Act''); and other programs, $111,000,000, to remain available until expended, of which—

(1) $41,000,000 is for criminal justice statistics programs, and other activities, as authorized by part C of title I of the 1968 Act: *Provided*, That beginning not later than 2 years after the date of enactment of this Act, as part of each National Crime Victimization Survey, the Attorney General shall include statistics relating to honor violence;

(2) $36,000,000 is for research, development, and evaluation programs, and other activities as authorized by part B of title I of the 1968 Act and subtitle D of title II of the 2002 Act;

(3) $30,000,000 is for regional information sharing activities, as authorized by part M of title I of the 1968 Act; and

(4) $4,000,000 is for activities to strengthen and enhance the practice of forensic sciences, of which $3,000,000 is for transfer to the National Institute of Standards and Technology to support Scientific Area Committees.

STATE AND LOCAL LAW ENFORCEMENT ASSISTANCE

For grants, contracts, cooperative agreements, and other assistance authorized by the Violent Crime Control and Law Enforcement Act of 1994 (Public Law 103–322) (''the 1994 Act''); the Omnibus Crime Control and Safe Streets Act of 1968 (''the 1968 Act''); the Justice for All Act of 2004 (Public Law 108–405); the Victims of Child Abuse Act of 1990 (Public Law 101–647) (''the 1990 Act''); the Trafficking Victims Protection Reauthorization Act of 2005 (Public Law 109–164); the Violence Against Women and Department of Justice Reauthorization Act of 2005 (Public Law 109–162) (''the 2005 Act''); the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109–248) (''the Adam Walsh Act''); the Victims of Trafficking and Violence Protection Act of 2000 (Public Law 106–386); the NICS Improvement Amendments Act of 2007 (Public Law 110–180); subtitle D of title II of the Homeland Security Act of 2002 (Public Law 107–296) (''the 2002 Act''); the Second Chance Act of 2007 (Public Law 110–199); the Prioritizing Resources and Organization for Intellectual Property Act of 2008 (Public Law 110–403); the Victims of Crime Act of 1984 (Public Law 98–473); the Mentally Ill Offender Treatment and Crime Reduction Reauthorization and Improvement Act of 2008 (Public Law 110–416); the Violence Against Women Reauthorization Act of 2013 (Public Law 113–4) (''the 2013 Act''); and other programs, $1,241,000,000, to remain available until expended as follows—

(1) $376,000,000 for the Edward Byrne Memorial Justice Assistance Grant program as authorized by subpart 1 of part E of title I of the 1968 Act (except that section 1001(c), and the special rules for Puerto Rico under section 505(g) of title I of the 1968 Act shall not apply for purposes of this Act), of which, notwithstanding such subpart 1, $15,000,000 is for a Preventing Violence Against Law Enforcement Officer Resilience and Survivability Initiative (VALOR), $4,000,000 is for use by the National Institute of Justice for research targeted toward developing a better understanding of the domestic radicalization phenomenon, and advancing evidence-based strategies for effective intervention and prevention, $5,000,000 is for an initiative to support evidence-based policing, $2,500,000 is for an initiative to enhance prosecutorial decision-making, $3,000,000 is for competitive grants to distribute firearm safety materials and gun locks, $750,000 is for the purposes described in the Missing Alzheimer's Disease Patient Alert Program (section 240001 of the 1994 Act), $10,500,000 is for an Edward Byrne Memorial criminal justice innovation program, and $2,500,000 is for a program to improve juvenile indigent defense;

(2) $185,000,000 for the State Criminal Alien Assistance Program, as authorized by section 241(i)(5) of the Immigration and Nationality Act (8 U.S.C. 1231(i)(5)): *Provided*, That no jurisdiction shall request compensation for any cost greater than the actual cost for Federal immigration and other detainees housed in State and local detention facilities;

(3) $42,250,000 for victim services programs for victims of trafficking, as authorized by section 107(b)(2) of Public Law 106–386, for programs authorized under Public Law 109–164, or programs authorized under Public Law 113–4;

(4) $41,000,000 for Drug Courts, as authorized by section 1001(a)(25)(A) of title I of the 1968 Act;

(5) $8,500,000 for mental health courts and adult and juvenile collaboration program grants, as authorized by parts V and HH of title I of the 1968 Act, and the Mentally Ill Offender Treatment and Crime Reduction Reauthorization and Improvement Act of 2008 (Public Law 110–416);

(6) $10,000,000 for grants for Residential Substance Abuse Treatment for State Prisoners, as authorized by part S of title I of the 1968 Act;

(7) $2,000,000 for the Capital Litigation Improvement Grant Program, as authorized by section 426 of Public Law 108–405, and for grants for wrongful conviction review;

(8) $13,000,000 for economic, high technology and Internet crime prevention grants, including as authorized by section 401 of Public Law 110–403;

(9) $2,000,000 for a student loan repayment assistance program pursuant to section 952 of Public Law 110–315;

(10) $20,000,000 for sex offender management assistance, as authorized by the Adam Walsh Act, and related activities;

(11) $8,000,000 for an initiative relating to children exposed to violence;

(12) $22,250,000 for the matching grant program for law enforcement armor vests, as authorized by section 2501 of title I of the 1968 Act: *Provided*, That $1,500,000 is transferred directly to the National Institute of Standards and Technology's Office of Law Enforcement Standards for research, testing and evaluation programs;

(13) $1,000,000 for the National Sex Offender Public Website;

(14) $5,000,000 for competitive and evidence-based programs to reduce gun crime and gang violence;

(15) $73,000,000 for grants to States to upgrade criminal and mental health records for the National Instant Criminal Background Check System, of which no less than $25,000,000 shall be for grants made under the authorities of the NICS Improvement Amendments Act of 2007 (Public Law 110–180);

(16) $12,000,000 for Paul Coverdell Forensic Sciences Improvement Grants under part BB of title I of the 1968 Act;

(17) $125,000,000 for DNA-related and forensic programs and activities, of which—

(A) $117,000,000 is for a DNA analysis and capacity enhancement program and for other local, State, and Federal forensic activities, including the purposes authorized under section 2 of the DNA Analysis Backlog Elimination Act of 2000 (Public Law 106–546) (the Debbie Smith DNA Backlog Grant Program): *Provided*, That up to 4 percent of funds made available under this paragraph may be used for the purposes described in the DNA Training and Education for Law Enforcement, Correctional Personnel, and Court Officers program (Public Law 108–405, section 303);

(B) $4,000,000 is for the purposes described in the Kirk Bloodsworth Post-Conviction DNA Testing Program (Public Law 108–405, section 412); and

(C) $4,000,000 is for Sexual Assault Forensic Exam Program grants, including as authorized by section 304 of Public Law 108–405;

(18) $41,000,000 for a grant program for community-based sexual assault response reform;

(19) $6,000,000 for the court-appointed special advocate program, as authorized by section 217 of the 1990 Act;

(20) $30,000,000 for assistance to Indian tribes;

(21) $68,000,000 for offender reentry programs and research, as authorized by the Second Chance Act of 2007 (Public Law 110–199), without regard to the time limitations specified at section 6(1) of such Act, of which not to exceed $6,000,000 is for a program to improve State, local, and tribal probation or parole supervision efforts and strategies, and $5,000,000 is for Children of Incarcerated Parents Demonstrations to enhance and maintain parental and family relationships for incarcerated parents as a reentry or recidivism reduction strategy: *Provided*, That up to $7,500,000 of funds made available in this paragraph may be used for performance-based awards for Pay for Success projects, of which up to $5,000,000 shall be for Pay for Success programs implementing the Permanent Supportive Housing Model;

(22) $5,000,000 for a veterans treatment courts program;

(23) $11,000,000 for a program to monitor prescription drugs and scheduled listed chemical products;

(24) $13,000,000 for prison rape prevention and prosecution grants to States and units of local government, and other programs, as authorized by the Prison Rape Elimination Act of 2003 (Public Law 108–79);

(25) $2,000,000 to operate a National Center for Campus Public Safety;

(26) $27,500,000 for a justice reinvestment initiative, for activities related to criminal justice reform and recidivism reduction, of which not less than $750,000 is for a task force on Federal corrections;

(27) $4,000,000 for additional replication sites employing the Project HOPE Opportunity Probation with Enforcement model implementing swift and certain sanctions in probation, and for a research project on the effectiveness of the model;

(28) $12,500,000 for the Office of Victims of Crime for supplemental victims' services and other victim-related programs and initiatives, including research and statistics, and for tribal assistance for victims of violence; and

(29) $75,000,000 for the Comprehensive School Safety Initiative, described in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act): *Provided*, That section 213 of this Act shall not apply with respect to the amount made available in this paragraph:

Provided, That, if a unit of local government uses any of the funds made available under this heading to increase the number of law enforcement officers, the unit of local government will achieve a net gain in the number of law enforcement officers who perform non-administrative public sector safety service.

JUVENILE JUSTICE PROGRAMS

For grants, contracts, cooperative agreements, and other assistance authorized by the Juvenile Justice and Delinquency Prevention Act of 1974 (''the 1974 Act''); the Omnibus Crime Control and Safe Streets Act of 1968 (''the 1968 Act''); the Violence Against Women and Department of Justice Reauthorization Act of 2005 (Public Law 109–162) (''the 2005 Act''); the Missing Children's Assistance Act (42 U.S.C. 5771 et seq.); the Prosecutorial Remedies and Other Tools to end the Exploitation of Children Today Act of 2003 (Public Law 108–21); the Victims of Child Abuse Act of 1990 (Public Law 101–647) (''the 1990 Act''); the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109–248) (''the Adam Walsh Act''); the PROTECT Our Children Act of 2008 (Public Law 110–401); the Violence Against Women Reauthorization Act of 2013 (Public Law 113–4) (''the 2013 Act''); and other juvenile justice programs, $251,500,000, to remain available until expended as follows—

(1) $55,500,000 for programs authorized by section 221 of the 1974 Act, and for training and technical assistance to assist small, nonprofit organizations with the Federal grants process: *Provided*, That of the amounts provided under this paragraph, $500,000 shall be for a competitive demonstration grant program to support emergency planning among State, local and tribal juvenile justice residential facilities;

(2) $90,000,000 for youth mentoring grants;

(3) $15,000,000 for delinquency prevention, as authorized by section 505 of the 1974 Act, of which, pursuant to sections 261 and 262 thereof—

(A) $5,000,000 shall be for the Tribal Youth Program;

(B) $3,000,000 shall be for gang and youth violence education, prevention and intervention, and related activities;

(C) $6,000,000 shall be for community-based violence prevention initiatives, including for public health approaches to reducing shootings and violence; and

(D) $1,000,000 shall be for grants and technical assistance in support of the National Forum on Youth Violence Prevention;

(4) $19,000,000 for programs authorized by the Victims of Child Abuse Act of 1990;

(5) $68,000,000 for missing and exploited children programs, including as authorized by sections 404(b) and 405(a) of the 1974 Act (except that section 102(b)(4)(B) of the PROTECT Our Children Act of 2008 (Public Law 110–401) shall not apply for purposes of this Act);

(6) $1,500,000 for child abuse training programs for judicial personnel and practitioners, as authorized by section 222 of the 1990 Act;

(7) $500,000 for an Internet site providing information and resources on children of incarcerated parents; and

(8) $2,000,000 for competitive grants focusing on girls in the juvenile justice system:

Provided, That not more than 10 percent of each amount may be used for research, evaluation, and statistics activities designed to benefit the programs or activities authorized: *Provided further*, That not more than 2 percent of the amounts designated under paragraphs (1) through (4) and (6) may be used for training and technical assistance: *Provided further*, That the two preceding provisos shall not apply to grants and projects authorized by sections 261 and 262 of the 1974 Act and to missing and exploited children programs.

PUBLIC SAFETY OFFICER BENEFITS

For payments and expenses authorized under section 1001(a)(4) of title I of the Omnibus Crime Control and Safe Streets Act of 1968, such sums as are necessary (including amounts for administrative costs), to remain available until expended; and $16,300,000 for payments authorized by section 1201(b) of such Act and for educational assistance authorized by section 1218 of such Act, to remain available until expended: *Provided*, That notwithstanding section 205 of this Act, upon a determination by the Attorney General that emergent circumstances require additional funding for such disability and education payments, the Attorney General may transfer such amounts to ''Public Safety Officer Benefits'' from available appropriations for the Department of Justice as may be necessary to respond to such circumstances: *Provided further*, That any transfer pursuant to the preceding proviso shall be treated as a reprogramming under section 505 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section.

COMMUNITY ORIENTED POLICING SERVICES

COMMUNITY ORIENTED POLICING SERVICES PROGRAMS

For activities authorized by the Violent Crime Control and Law Enforcement Act of 1994 (Public Law 103–322); the Omnibus Crime Control and Safe Streets Act of 1968 (''the 1968 Act''); and the Violence Against Women and Department of Justice Reauthorization Act of 2005 (Public Law 109–162) (''the 2005 Act''), $208,000,000, to remain available until expended: *Provided*, That any balances made available through prior year deobligations shall only be available in accordance with section 505 of this Act: *Provided further*, That of the amount provided under this heading—

(1) $7,000,000 is for anti-methamphetamine-related activities, which shall be transferred to the Drug Enforcement Administration upon enactment of this Act;

(2) $180,000,000 is for grants under section 1701 of title I of the 1968 Act (42 U.S.C. 3796dd) for the hiring and rehiring of additional career law enforcement officers under part Q of such title notwithstanding subsection (i) of such section: *Provided*, That, notwithstanding section 1704(c) of such title (42 U.S.C. 3796dd–3(c)), funding for hiring or rehiring a career law enforcement officer may not exceed $125,000 unless the Director of the Office of Community Oriented Policing Services grants a waiver from this limitation: *Provided further*, That within the amounts appropriated under this paragraph, $33,000,000 is for improving tribal law enforcement, including hiring, equipment, training, and anti-methamphetamine activities: *Provided further*, That of the amounts appropriated under this paragraph, $7,500,000 is for community policing development activities in furtherance of the purposes in section 1701: *Provided further*, That within the amounts appropriated under this paragraph, $5,000,000 is for the collaborative reform model of technical assistance in furtherance of the purposes in section 1701;

(3) $7,000,000 is for competitive grants to State law enforcement agencies in States with high seizures of precursor chemicals, finished methamphetamine, laboratories, and laboratory dump seizures: *Provided*, That funds appropriated under this paragraph shall be utilized for investigative purposes to locate or investigate illicit activities, including precursor diversion, laboratories, or methamphetamine traffickers;

(4) $7,000,000 is for competitive grants to statewide law enforcement agencies in States with high rates of primary treatment admissions for heroin and other opioids: *Provided*, That these funds shall be utilized for investigative purposes to locate or investigate illicit activities, including activities related to the distribution of heroin or unlawful distribution of prescription opioids, or unlawful heroin and prescription opioid traffickers through statewide collaboration; and

(5) $7,000,000 is for competitive grants to support regional anti-gang task forces.

GENERAL PROVISIONS—DEPARTMENT OF JUSTICE

SEC. 201. In addition to amounts otherwise made available in this title for official reception and representation expenses, a total of not to exceed $50,000 from funds appropriated to the Department of Justice in this title shall be available to the Attorney General for official reception and representation expenses.

SEC. 202. None of the funds appropriated by this title shall be available to pay for an abortion, except where the life of the mother would be endangered if the fetus were carried to term, or in the case of rape: *Provided*, That should this prohibition be declared unconstitutional by a court of competent jurisdiction, this section shall be null and void.

SEC. 203. None of the funds appropriated under this title shall be used to require any person to perform, or facilitate in any way the performance of, any abortion.

SEC. 204. Nothing in the preceding section shall remove the obligation of the Director of the Bureau of Prisons to provide escort services necessary for a female inmate to receive such service outside the Federal facility: *Provided*, That nothing in this section in any way diminishes the effect of section 203 intended to address the philosophical beliefs of individual employees of the Bureau of Prisons.

SEC. 205. Not to exceed 5 percent of any appropriation made available for the current fiscal year for the Department of Justice in this Act may be transferred between such appropriations, but no such appropriation, except as otherwise specifically provided, shall be increased by more than 10 percent by any such transfers: *Provided*, That any transfer pursuant to this section shall be treated as a reprogramming of funds under section 505 of this Act and shall not be available for obligation except in compliance with the procedures set forth in that section.

SEC. 206. The Attorney General is authorized to extend through September 30, 2015, the Personnel Management Demonstration Project transferred to the Attorney General pursuant to section 1115 of the Homeland Security Act of 2002 (Public Law 107–296; 28 U.S.C. 599B) without limitation on the number of employees or the positions covered.

SEC. 207. None of the funds made available under this title may be used by the Federal Bureau of Prisons or the United States Marshals Service for the purpose of transporting an individual who is a prisoner pursuant to conviction for crime under State or Federal law and is classified as a maximum or high security prisoner, other than to a prison or other facility certified by the Federal Bureau of Prisons as appropriately secure for housing such a prisoner.

SEC. 208. (a) None of the funds appropriated by this Act may be used by Federal prisons to purchase cable television services, or to rent or purchase audiovisual or electronic media or equipment used primarily for recreational purposes.

(b) Subsection (a) does not preclude the rental, maintenance, or purchase of audiovisual or electronic media or equipment for inmate training, religious, or educational programs.

SEC. 209. None of the funds made available under this title shall be obligated or expended for any new or enhanced information technology program having total estimated development costs in excess of $100,000,000, unless the Deputy Attorney General and the investment review board certify to the Committees on Appropriations of the House of Representatives and the Senate that the information technology program has appropriate program management controls and contractor oversight mechanisms in place, and that the program is compatible with the enterprise architecture of the Department of Justice.

SEC. 210. The notification thresholds and procedures set forth in section 505 of this Act shall apply to deviations from the amounts designated for specific activities in this Act and in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act), and to any use of deobligated balances of funds provided under this title in previous years.

SEC. 211. None of the funds appropriated by this Act may be used to plan for, begin, continue, finish, process, or approve a public-private competition under the Office of Management and Budget Circular A–76 or any successor administrative regulation, directive, or policy for work performed by employees of the Bureau of Prisons or of Federal Prison Industries, Incorporated.

SEC. 212. Notwithstanding any other provision of law, no funds shall be available for the salary, benefits, or expenses of any United States Attorney assigned dual or additional responsibilities by the Attorney General or his designee that exempt that United States Attorney from the residency requirements of section 545 of title 28, United States Code.

SEC. 213. At the discretion of the Attorney General, and in addition to any amounts

that otherwise may be available (or authorized to be made available) by law, with respect to funds appropriated by this title under the headings ''Research, Evaluation and Statistics'', ''State and Local Law Enforcement Assistance'', and ''Juvenile Justice Programs''—

(1) up to 3 percent of funds made available to the Office of Justice Programs for grant or reimbursement programs may be used by such Office to provide training and technical assistance; and

(2) up to 2 percent of funds made available for grant or reimbursement programs under such headings, except for amounts appropriated specifically for research, evaluation, or statistical programs administered by the National Institute of Justice and the Bureau of Justice Statistics, shall be transferred to and merged with funds provided to the National Institute of Justice and the Bureau of Justice Statistics, to be used by them for research, evaluation, or statistical purposes, without regard to the authorizations for such grant or reimbursement programs.

SEC. 214. Upon request by a grantee for whom the Attorney General has determined there is a fiscal hardship, the Attorney General may, with respect to funds appropriated in this or any other Act making appropriations for fiscal years 2012 through 2015 for the following programs, waive the following requirements:

(1) For the adult and juvenile offender State and local reentry demonstration projects under part FF of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3797w(g)(1)), the requirements under section 2976(g)(1) of such part.

(2) For State, Tribal, and local reentry courts under part FF of title I of such Act of 1968 (42 U.S.C. 3797w–2(e)(1) and (2)), the requirements under section 2978(e)(1) and (2) of such part.

(3) For the prosecution drug treatment alternatives to prison program under part CC of title I of such Act of 1968 (42 U.S.C. 3797q–3), the requirements under section 2904 of such part.

(4) For grants to protect inmates and safeguard communities as authorized by section 6 of the Prison Rape Elimination Act of 2003 (42 U.S.C. 15605(c)(3)), the requirements of section 6(c)(3) of such Act.

SEC. 215. Notwithstanding any other provision of law, section 20109(a) of subtitle A of title II of the Violent Crime Control and Law Enforcement Act of 1994 (42 U.S.C. 13709(a)) shall not apply to amounts made available by this or any other Act.

SEC. 216. None of the funds made available under this Act, other than for the national instant criminal background check system established under section 103 of the Brady Handgun Violence Prevention Act (18 U.S.C. 922 note), may be used by a Federal law enforcement officer to facilitate the transfer of an operable firearm to an individual if the Federal law enforcement officer knows or suspects that the individual is an agent of a drug cartel, unless law enforcement personnel of the United States continuously monitor or control the firearm at all times.

SEC. 217. (a) None of the income retained in the Department of Justice Working Capital Fund pursuant to title I of Public Law 102–140 (105 Stat. 784; 28 U.S.C. 527 note) shall be available for obligation during fiscal year 2015, except up to $40,000,000 may be obligated for implementation of a unified Department of Justice financial management system.

(b) Not to exceed $30,000,000 of the unobligated balances transferred to the capital account of the Department of Justice Working Capital Fund pursuant to title I of Public Law 102–140 (105 Stat. 784; 28 U.S.C. 527 note) shall be available for obligation in fiscal year 2015, and any use, obligation, transfer or allocation of such funds shall be treated as a reprogramming of funds under section 505 of this Act.

(c) In addition to the amount otherwise provided by this Act in the first proviso under the heading ''United States Marshals Service—Federal Prisoner Detention'', not to exceed $10,000,000 of the excess unobligated balances available under section 524(c)(8)(E) of title 28, United States Code, shall be available for obligation during fiscal year 2015, and any use, obligation, transfer or allocation of such funds shall be treated as a reprogramming of funds under section 505 of this Act.

(d) Of amounts available in the Assets Forfeiture Fund in fiscal year 2015, $154,700,000 shall be for payments associated with joint law enforcement operations as authorized by section 524(c)(1)(I) of title 28, United States Code.

(e) The Attorney General shall submit a spending plan to the Committees on Appropriations of the House of Representatives and the Senate not later than 30 days after the date of enactment of this Act detailing the planned distribution of Assets Forfeiture Fund joint law enforcement operations funding during fiscal year 2015.

(f) Subsections (a) through (d) of this section shall sunset on September 30, 2015.

SEC. 218. No funds provided in this Act shall be used to deny the Inspector General of the Department of Justice timely access to all records, documents, and other materials in the custody or possession of the Department or to prevent or impede the Inspector General's access to such records, documents and other materials, unless in accordance with an express limitation of section 6(a) of the Inspector General Act, as amended, consistent with the plain language of the Inspector General Act, as amended. The Inspector General of the Department of Justice shall report to the Committees on Appropriations within five calendar days any failures to comply with this requirement.

SEC. 219. Discretionary funds that are made available in this Act for the Office of Justice Programs may be used to participate in Performance Partnership Pilots authorized under section 526 of division H of Public Law 113–76.

This title may be cited as the ''Department of Justice Appropriations Act, 2015''.

TITLE III

SCIENCE

OFFICE OF SCIENCE AND TECHNOLOGY POLICY

For necessary expenses of the Office of Science and Technology Policy, in carrying out the purposes of the National Science and Technology Policy, Organization, and Priorities Act of 1976 (42 U.S.C. 6601 et seq.), hire of passenger motor vehicles, and services as authorized by section 3109 of title 5, United States Code, not to exceed $2,250 for official reception and representation expenses, and rental of conference rooms in the District of Columbia, $5,555,000.

NATIONAL AERONAUTICS AND SPACE ADMINISTRATION

SCIENCE

For necessary expenses, not otherwise provided for, in the conduct and support of science research and development activities, including research, development, operations, support, and services; maintenance and repair, facility planning and design; space flight, spacecraft control, and communications activities; program management; personnel and related costs, including uniforms or allowances therefor, as authorized by sections 5901 and 5902 of title 5, United States Code; travel expenses; purchase and hire of passenger motor vehicles; and purchase, lease, charter, maintenance, and operation of mission and administrative aircraft, $5,244,700,000, to remain available until September 30, 2016: *Provided*, That the formulation and development costs (with development cost as defined under section 30104 of title 51, United States Code) for the James Webb Space Telescope shall not exceed $8,000,000,000: *Provided further*, That should the individual identified under subsection (c)(2)(E) of section 30104 of title 51, United States Code, as responsible for the James Webb Space Telescope determine that the development cost of the program is likely to exceed that limitation, the individual shall immediately notify the Administrator and the increase shall be treated as if it meets the 30 percent threshold described in subsection (f) of section 30104: *Provided further*, That $100,000,000 shall be for pre-formulation and/or formulation activities for a mission that meets the science goals outlined for the Jupiter Europa mission in the most recent planetary science decadal survey.

AERONAUTICS

For necessary expenses, not otherwise provided for, in the conduct and support of aeronautics research and development activities, including research, development, operations, support, and services; maintenance and repair, facility planning and design; space flight, spacecraft control, and communications activities; program management; personnel and related costs, including uniforms or allowances therefor, as authorized by sections 5901 and 5902 of title 5, United States Code; travel expenses; purchase and hire of passenger motor vehicles; and purchase, lease, charter, maintenance, and operation of mission and administrative aircraft, $651,000,000, to remain available until September 30, 2016.

SPACE TECHNOLOGY

For necessary expenses, not otherwise provided for, in the conduct and support of space research and technology development activities, including research, development, operations, support, and services; maintenance and repair, facility planning and design; space flight, spacecraft control, and communications activities; program management; personnel and related costs, including uniforms or allowances therefor, as authorized by sections 5901 and 5902 of title 5, United States Code; travel expenses; purchase and hire of passenger motor vehicles; and purchase, lease, charter, maintenance, and operation of mission and administrative aircraft, $596,000,000, to remain available until September 30, 2016.

EXPLORATION

For necessary expenses, not otherwise provided for, in the conduct and support of exploration research and development activities, including research, development, operations, support, and services; maintenance and repair, facility planning and design; space flight, spacecraft control, and communications activities; program management; personnel and related costs, including uniforms or allowances therefor, as authorized by sections 5901 and 5902 of title 5, United States Code; travel expenses; purchase and hire of passenger motor vehicles; and purchase, lease, charter, maintenance, and operation of mission and administrative aircraft, $4,356,700,000, to remain available until September 30, 2016: *Provided*, That not less than $1,194,000,000 shall be for the Orion Multi-Purpose Crew Vehicle: *Provided further*, That not less than $2,051,300,000 shall be for the Space Launch System, which shall have a lift capability not less than 130 metric tons and which shall have an upper stage and other core elements developed simultaneously: *Provided further*, That of the funds

made available for the Space Launch System, $1,700,000,000 shall be for launch vehicle development and $351,300,000 shall be for exploration ground systems: *Provided further*, That the National Aeronautics and Space Administration (NASA) shall provide to the Committees on Appropriations of the House of Representatives and the Senate, concurrent with the annual budget submission, a 5 year budget profile and funding projection that adheres to a 70 percent Joint Confidence Level (JCL) and is consistent with the Key Decision Point C (KDP–C) for the Space Launch System and with the future KDP–C for the Orion Multi-Purpose Crew Vehicle: *Provided further*, That in complying with the preceding proviso NASA shall include budget profiles and funding projections that conform to the KDP–C management agreement for development completion of the Space Launch System by December 2017, and the management agreement for the Orion Multi-Purpose Crew Vehicle upon completing KDP–C: *Provided further*, That in no case shall the JCL of the Space Launch System or the Orion Multi-Purpose Crew Vehicle be less than the guidance outlined in NASA Procedural Requirements 7120.5E: *Provided further*, That funds made available for the Orion Multi-Purpose Crew Vehicle and Space Launch System are in addition to funds provided for these programs under the ''Construction and Environmental Compliance and Restoration'' heading: *Provided further*, That $805,000,000 shall be for commercial spaceflight activities: *Provided further*, That $306,400,000 shall be for exploration research and development.

SPACE OPERATIONS

For necessary expenses, not otherwise provided for, in the conduct and support of space operations research and development activities, including research, development, operations, support and services; space flight, spacecraft control and communications activities, including operations, production, and services; maintenance and repair, facility planning and design; program management; personnel and related costs, including uniforms or allowances therefor, as authorized by sections 5901 and 5902 of title 5, United States Code; travel expenses; purchase and hire of passenger motor vehicles; and purchase, lease, charter, maintenance and operation of mission and administrative aircraft, $3,827,800,000, to remain available until September 30, 2016.

EDUCATION

For necessary expenses, not otherwise provided for, in the conduct and support of aerospace and aeronautical education research and development activities, including research, development, operations, support, and services; program management; personnel and related costs, including uniforms or allowances therefor, as authorized by sections 5901 and 5902 of title 5, United States Code; travel expenses; purchase and hire of passenger motor vehicles; and purchase, lease, charter, maintenance, and operation of mission and administrative aircraft, $119,000,000, to remain available until September 30, 2016, of which $18,000,000 shall be for the Experimental Program to Stimulate Competitive Research and $40,000,000 shall be for the National Space Grant College program.

SAFETY, SECURITY AND MISSION SERVICES

For necessary expenses, not otherwise provided for, in the conduct and support of science, aeronautics, space technology, exploration, space operations and education research and development activities, including research, development, operations, support, and services; maintenance and repair, facility planning and design; space flight, spacecraft control, and communications activities; program management; personnel and related costs, including uniforms or allowances therefor, as authorized by sections 5901 and 5902 of title 5, United States Code; travel expenses; purchase and hire of passenger motor vehicles; not to exceed $63,000 for official reception and representation expenses; and purchase, lease, charter, maintenance, and operation of mission and administrative aircraft, $2,758,900,000, to remain available until September 30, 2016.

CONSTRUCTION AND ENVIRONMENTAL COMPLIANCE AND RESTORATION

For necessary expenses for construction of facilities including repair, rehabilitation, revitalization, and modification of facilities, construction of new facilities and additions to existing facilities, facility planning and design, and restoration, and acquisition or condemnation of real property, as authorized by law, and environmental compliance and restoration, $419,100,000, to remain available until September 30, 2020: *Provided*, That of the $429,100,000 provided for in direct obligations under this heading, $419,100,000 is appropriated from the general fund and $10,000,000 is provided from recoveries of prior year obligations: *Provided further*, That proceeds from leases deposited into this account shall be available for a period of 5 years to the extent and in amounts as provided in annual appropriations Acts: *Provided further*, That such proceeds referred to in the preceding proviso shall be available for obligation for fiscal year 2015 in an amount not to exceed $9,584,100: *Provided further*, That each annual budget request shall include an annual estimate of gross receipts and collections and proposed use of all funds collected pursuant to section 20145 of title 51, United States Code.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the Inspector General Act of 1978, $37,000,000, of which $500,000 shall remain available until September 30, 2016.

ADMINISTRATIVE PROVISIONS

(INCLUDING TRANSFER OF FUNDS)

Funds for any announced prize otherwise authorized shall remain available, without fiscal year limitation, until the prize is claimed or the offer is withdrawn.

Not to exceed 5 percent of any appropriation made available for the current fiscal year for the National Aeronautics and Space Administration in this Act may be transferred between such appropriations, but no such appropriation, except as otherwise specifically provided, shall be increased by more than 10 percent by any such transfers. Balances so transferred shall be merged with and available for the same purposes and the same time period as the appropriations to which transferred. Any transfer pursuant to this provision shall be treated as a reprogramming of funds under section 505 of this Act and shall not be available for obligation except in compliance with the procedures set forth in that section.

The spending plan required by this Act shall be provided by NASA at the theme, program, project and activity level. The spending plan, as well as any subsequent change of an amount established in that spending plan that meets the notification requirements of section 505 of this Act, shall be treated as a reprogramming under section 505 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section.

(TRANSFER OF FUNDS)

The unexpired balances of a previous account, for activities for which funds are provided in this Act, may be transferred to the new account established in this Act that provides such activities. Balances so transferred shall be merged with the funds in the newly established account, but shall be available under the same terms, conditions and period of time as previously appropriated.

NATIONAL SCIENCE FOUNDATION

RESEARCH AND RELATED ACTIVITIES

For necessary expenses in carrying out the National Science Foundation Act of 1950 (42 U.S.C. 1861 et seq.), and Public Law 86–209 (42 U.S.C. 1880 et seq.); services as authorized by section 3109 of title 5, United States Code; maintenance and operation of aircraft and purchase of flight services for research support; acquisition of aircraft; and authorized travel; $5,933,645,000, to remain available until September 30, 2016, of which not to exceed $520,000,000 shall remain available until expended for polar research and operations support, and for reimbursement to other Federal agencies for operational and science support and logistical and other related activities for the United States Antarctic program: *Provided*, That receipts for scientific support services and materials furnished by the National Research Centers and other National Science Foundation supported research facilities may be credited to this appropriation: *Provided further*, That not less than $159,690,000 shall be available for activities authorized by section 7002(c)(2)(A)(iv) of Public Law 110–69.

MAJOR RESEARCH EQUIPMENT AND FACILITIES CONSTRUCTION

For necessary expenses for the acquisition, construction, commissioning, and upgrading of major research equipment, facilities, and other such capital assets pursuant to the National Science Foundation Act of 1950 (42 U.S.C. 1861 et seq.), including authorized travel, $200,760,000, to remain available until expended.

EDUCATION AND HUMAN RESOURCES

For necessary expenses in carrying out science, mathematics and engineering education and human resources programs and activities pursuant to the National Science Foundation Act of 1950 (42 U.S.C. 1861 et seq.), including services as authorized by section 3109 of title 5, United States Code, authorized travel, and rental of conference rooms in the District of Columbia, $866,000,000, to remain available until September 30, 2016: *Provided*, That not less than $60,890,000 shall be available for activities authorized by section 7030 of Public Law 110–69.

AGENCY OPERATIONS AND AWARD MANAGEMENT

For agency operations and award management necessary in carrying out the National Science Foundation Act of 1950 (42 U.S.C. 1861 et seq.); services authorized by section 3109 of title 5, United States Code; hire of passenger motor vehicles; uniforms or allowances therefor, as authorized by sections 5901 and 5902 of title 5, United States Code; rental of conference rooms in the District of Columbia; and reimbursement of the Department of Homeland Security for security guard services; $325,000,000: *Provided*, That not to exceed $8,280 is for official reception and representation expenses: *Provided further*, That contracts may be entered into under this heading in fiscal year 2015 for maintenance and operation of facilities and for other services to be provided during the next fiscal year: *Provided further*, That of the amount provided for costs associated with the acquisition, occupancy, and related costs of new headquarters space, not more than $27,370,000 shall remain available until expended.

OFFICE OF THE NATIONAL SCIENCE BOARD

For necessary expenses (including payment of salaries, authorized travel, hire of passenger motor vehicles, the rental of conference rooms in the District of Columbia, and the employment of experts and consultants under section 3109 of title 5, United States Code) involved in carrying out section 4 of the National Science Foundation Act of 1950 (42 U.S.C. 1863) and Public Law 86–209 (42 U.S.C. 1880 et seq.), $4,370,000: *Provided*, That not to exceed $2,500 shall be available for official reception and representation expenses.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General as authorized by the Inspector General Act of 1978, $14,430,000, of which $400,000 shall remain available until September 30, 2016.

ADMINISTRATIVE PROVISION

Not to exceed 5 percent of any appropriation made available for the current fiscal year for the National Science Foundation in this Act may be transferred between such appropriations, but no such appropriation shall be increased by more than 10 percent by any such transfers. Any transfer pursuant to this section shall be treated as a reprogramming of funds under section 505 of this Act and shall not be available for obligation except in compliance with the procedures set forth in that section.

This title may be cited as the ''Science Appropriations Act, 2015''.

TITLE IV

RELATED AGENCIES

COMMISSION ON CIVIL RIGHTS

SALARIES AND EXPENSES

For necessary expenses of the Commission on Civil Rights, including hire of passenger motor vehicles, $9,200,000: *Provided*, That none of the funds appropriated in this paragraph shall be used to employ in excess of four full-time individuals under Schedule C of the Excepted Service exclusive of one special assistant for each Commissioner: *Provided further*, That none of the funds appropriated in this paragraph shall be used to reimburse Commissioners for more than 75 billable days, with the exception of the chairperson, who is permitted 125 billable days: *Provided further*, That none of the funds appropriated in this paragraph shall be used for any activity or expense that is not explicitly authorized by section 3 of the Civil Rights Commission Act of 1983 (42 U.S.C. 1975a).

EQUAL EMPLOYMENT OPPORTUNITY COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the Equal Employment Opportunity Commission as authorized by title VII of the Civil Rights Act of 1964, the Age Discrimination in Employment Act of 1967, the Equal Pay Act of 1963, the Americans with Disabilities Act of 1990, section 501 of the Rehabilitation Act of 1973, the Civil Rights Act of 1991, the Genetic Information Non-Discrimination Act (GINA) of 2008 (Public Law 110–233), the ADA Amendments Act of 2008 (Public Law 110–325), and the Lilly Ledbetter Fair Pay Act of 2009 (Public Law 111–2), including services as authorized by section 3109 of title 5, United States Code; hire of passenger motor vehicles as authorized by section 1343(b) of title 31, United States Code; nonmonetary awards to private citizens; and up to $30,000,000 for payments to State and local enforcement agencies for authorized services to the Commission, $364,500,000: *Provided*, That the Commission is authorized to make available for official reception and representation expenses not to exceed $2,250 from available funds: *Provided further*, That the Commission may take no action to implement any workforce repositioning, restructuring, or reorganization until such time as the Committees on Appropriations of the House of Representatives and the Senate have been notified of such proposals, in accordance with the reprogramming requirements of section 505 of this Act: *Provided further*, That the Chair is authorized to accept and use any gift or donation to carry out the work of the Commission.

INTERNATIONAL TRADE COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the International Trade Commission, including hire of passenger motor vehicles and services as authorized by section 3109 of title 5, United States Code, and not to exceed $2,250 for official reception and representation expenses, $84,500,000, to remain available until expended.

LEGAL SERVICES CORPORATION

PAYMENT TO THE LEGAL SERVICES CORPORATION

For payment to the Legal Services Corporation to carry out the purposes of the Legal Services Corporation Act of 1974, $375,000,000, of which $343,150,000 is for basic field programs and required independent audits; $4,350,000 is for the Office of Inspector General, of which such amounts as may be necessary may be used to conduct additional audits of recipients; $18,500,000 is for management and grants oversight; $4,000,000 is for client self-help and information technology; $4,000,000 is for a Pro Bono Innovation Fund; and $1,000,000 is for loan repayment assistance: *Provided*, That the Legal Services Corporation may continue to provide locality pay to officers and employees at a rate no greater than that provided by the Federal Government to Washington, DC-based employees as authorized by section 5304 of title 5, United States Code, notwithstanding section 1005(d) of the Legal Services Corporation Act (42 U.S.C. 2996(d)): *Provided further*, That the authorities provided in section 205 of this Act shall be applicable to the Legal Services Corporation: *Provided further*, That, for the purposes of section 505 of this Act, the Legal Services Corporation shall be considered an agency of the United States Government.

ADMINISTRATIVE PROVISION—LEGAL SERVICES CORPORATION

None of the funds appropriated in this Act to the Legal Services Corporation shall be expended for any purpose prohibited or limited by, or contrary to any of the provisions of, sections 501, 502, 503, 504, 505, and 506 of Public Law 105–119, and all funds appropriated in this Act to the Legal Services Corporation shall be subject to the same terms and conditions set forth in such sections, except that all references in sections 502 and 503 to 1997 and 1998 shall be deemed to refer instead to 2014 and 2015, respectively.

MARINE MAMMAL COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the Marine Mammal Commission as authorized by title II of the Marine Mammal Protection Act of 1972 (16 U.S.C. 1361 et seq.), $3,340,000.

OFFICE OF THE UNITED STATES TRADE REPRESENTATIVE

SALARIES AND EXPENSES

For necessary expenses of the Office of the United States Trade Representative, including the hire of passenger motor vehicles and the employment of experts and consultants as authorized by section 3109 of title 5, United States Code, $54,250,000, of which $1,000,000 shall remain available until expended: *Provided*, That not to exceed $124,000 shall be available for official reception and representation expenses.

STATE JUSTICE INSTITUTE

SALARIES AND EXPENSES

For necessary expenses of the State Justice Institute, as authorized by the State Justice Institute Authorization Act of 1984 (42 U.S.C. 10701 et seq.) $5,121,000, of which $500,000 shall remain available until September 30, 2016: *Provided*, That not to exceed $2,250 shall be available for official reception and representation expenses: *Provided further*, That, for the purposes of section 505 of this Act, the State Justice Institute shall be considered an agency of the United States Government.

TITLE V

GENERAL PROVISIONS

(INCLUDING RESCISSIONS)

SEC. 501. No part of any appropriation contained in this Act shall be used for publicity or propaganda purposes not authorized by the Congress.

SEC. 502. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

SEC. 503. The expenditure of any appropriation under this Act for any consulting service through procurement contract, pursuant to section 3109 of title 5, United States Code, shall be limited to those contracts where such expenditures are a matter of public record and available for public inspection, except where otherwise provided under existing law, or under existing Executive order issued pursuant to existing law.

SEC. 504. If any provision of this Act or the application of such provision to any person or circumstances shall be held invalid, the remainder of the Act and the application of each provision to persons or circumstances other than those as to which it is held invalid shall not be affected thereby.

SEC. 505. None of the funds provided under this Act, or provided under previous appropriations Acts to the agencies funded by this Act that remain available for obligation or expenditure in fiscal year 2015, or provided from any accounts in the Treasury of the United States derived by the collection of fees available to the agencies funded by this Act, shall be available for obligation or expenditure through a reprogramming of funds that: (1) creates or initiates a new program, project or activity; (2) eliminates a program, project or activity; (3) increases funds or personnel by any means for any project or activity for which funds have been denied or restricted; (4) relocates an office or employees; (5) reorganizes or renames offices, programs or activities; (6) contracts out or privatizes any functions or activities presently performed by Federal employees; (7) augments existing programs, projects or activities in excess of $500,000 or 10 percent, whichever is less, or reduces by 10 percent funding for any program, project or activity, or numbers of personnel by 10 percent; or (8) results from any general savings, including savings from a reduction in personnel, which would result in a change in existing programs, projects or activities as approved by Congress; unless the House and Senate Committees on Appropriations are notified 15 days in advance of such reprogramming of funds by agencies (excluding agencies of the Department of Justice) funded by this Act and 45 days in advance of such reprogramming of funds by agencies of the Department of Justice funded by this Act.

SEC. 506. (a) If it has been finally determined by a court or Federal agency that any person intentionally affixed a label bearing a ''Made in America'' inscription, or any inscription with the same meaning, to any

product sold in or shipped to the United States that is not made in the United States, the person shall be ineligible to receive any contract or subcontract made with funds made available in this Act, pursuant to the debarment, suspension, and ineligibility procedures described in sections 9.400 through 9.409 of title 48, Code of Federal Regulations.

(b)(1) To the extent practicable, with respect to authorized purchases of promotional items, funds made available by this Act shall be used to purchase items that are manufactured, produced, or assembled in the United States, its territories or possessions.

(2) The term ''promotional items'' has the meaning given the term in OMB Circular A–87, Attachment B, Item (1)(f)(3).

SEC. 507. (a) The Departments of Commerce and Justice, the National Science Foundation, and the National Aeronautics and Space Administration shall provide to the Committees on Appropriations of the House of Representatives and the Senate a quarterly report on the status of balances of appropriations at the account level. For unobligated, uncommitted balances and unobligated, committed balances the quarterly reports shall separately identify the amounts attributable to each source year of appropriation from which the balances were derived. For balances that are obligated, but unexpended, the quarterly reports shall separately identify amounts by the year of obligation.

(b) The report described in subsection (a) shall be submitted within 30 days of the end of each quarter.

(c) If a department or agency is unable to fulfill any aspect of a reporting requirement described in subsection (a) due to a limitation of a current accounting system, the department or agency shall fulfill such aspect to the maximum extent practicable under such accounting system and shall identify and describe in each quarterly report the extent to which such aspect is not fulfilled.

SEC. 508. Any costs incurred by a department or agency funded under this Act resulting from, or to prevent, personnel actions taken in response to funding reductions included in this Act shall be absorbed within the total budgetary resources available to such department or agency: *Provided*, That the authority to transfer funds between appropriations accounts as may be necessary to carry out this section is provided in addition to authorities included elsewhere in this Act: *Provided further*, That use of funds to carry out this section shall be treated as a reprogramming of funds under section 505 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section: *Provided further*, That for the Department of Commerce, this section shall also apply to actions taken for the care and protection of loan collateral or grant property.

SEC. 509. None of the funds provided by this Act shall be available to promote the sale or export of tobacco or tobacco products, or to seek the reduction or removal by any foreign country of restrictions on the marketing of tobacco or tobacco products, except for restrictions which are not applied equally to all tobacco or tobacco products of the same type.

SEC. 510. Notwithstanding any other provision of law, amounts deposited or available in the Fund established by section 1402 of chapter XIV of title II of Public Law 98–473 (42 U.S.C. 10601) in any fiscal year in excess of $2,361,000,000 shall not be available for obligation until the following fiscal year: *Provided*, That notwithstanding section 1402(d) of such Act, of the amounts available from the Fund for obligation $10,000,000 shall remain available until expended to the Department of Justice Office of Inspector General for oversight and auditing purposes.

SEC. 511. None of the funds made available to the Department of Justice in this Act may be used to discriminate against or denigrate the religious or moral beliefs of students who participate in programs for which financial assistance is provided from those funds, or of the parents or legal guardians of such students.

SEC. 512. None of the funds made available in this Act may be transferred to any department, agency, or instrumentality of the United States Government, except pursuant to a transfer made by, or transfer authority provided in, this Act or any other appropriations Act.

SEC. 513. Any funds provided in this Act used to implement E-Government Initiatives shall be subject to the procedures set forth in section 505 of this Act.

SEC. 514. (a) The Inspectors General of the Department of Commerce, the Department of Justice, the National Aeronautics and Space Administration, the National Science Foundation, and the Legal Services Corporation shall conduct audits, pursuant to the Inspector General Act (5 U.S.C. App.), of grants or contracts for which funds are appropriated by this Act, and shall submit reports to Congress on the progress of such audits, which may include preliminary findings and a description of areas of particular interest, within 180 days after initiating such an audit and every 180 days thereafter until any such audit is completed.

(b) Within 60 days after the date on which an audit described in subsection (a) by an Inspector General is completed, the Secretary, Attorney General, Administrator, Director, or President, as appropriate, shall make the results of the audit available to the public on the Internet website maintained by the Department, Administration, Foundation, or Corporation, respectively. The results shall be made available in redacted form to exclude—

(1) any matter described in section 552(b) of title 5, United States Code; and

(2) sensitive personal information for any individual, the public access to which could be used to commit identity theft or for other inappropriate or unlawful purposes.

(c) Any person awarded a grant or contract funded by amounts appropriated by this Act shall submit a statement to the Secretary of Commerce, the Attorney General, the Administrator, Director, or President, as appropriate, certifying that no funds derived from the grant or contract will be made available through a subcontract or in any other manner to another person who has a financial interest in the person awarded the grant or contract.

(d) The provisions of the preceding subsections of this section shall take effect 30 days after the date on which the Director of the Office of Management and Budget, in consultation with the Director of the Office of Government Ethics, determines that a uniform set of rules and requirements, substantially similar to the requirements in such subsections, consistently apply under the executive branch ethics program to all Federal departments, agencies, and entities.

SEC. 515. (a) None of the funds appropriated or otherwise made available under this Act may be used by the Departments of Commerce and Justice, the National Aeronautics and Space Administration, or the National Science Foundation to acquire a high-impact or moderate-impact information system, as defined for security categorization in the National Institute of Standards and Technology's (NIST) Federal Information Processing Standard Publication 199, ''Standards for Security Categorization of Federal Information and Information Systems'' unless the agency has—

(1) reviewed the supply chain risk for the information systems against criteria developed by NIST to inform acquisition decisions for high-impact and moderate-impact information systems within the Federal Government;

(2) reviewed the supply chain risk from the presumptive awardee against available and relevant threat information provided by the Federal Bureau of Investigation and other appropriate agencies; and

(3) in consultation with the Federal Bureau of Investigation or other appropriate Federal entity, conducted an assessment of any risk of cyber-espionage or sabotage associated with the acquisition of such system, including any risk associated with such system being produced, manufactured, or assembled by one or more entities identified by the United States Government as posing a cyber threat, including but not limited to, those that may be owned, directed, or subsidized by the People's Republic of China.

(b) None of the funds appropriated or otherwise made available under this Act may be used to acquire a high-impact or moderate-impact information system reviewed and assessed under subsection (a) unless the head of the assessing entity described in subsection (a) has—

(1) developed, in consultation with NIST and supply chain risk management experts, a mitigation strategy for any identified risks;

(2) determined that the acquisition of such system is in the national interest of the United States; and

(3) reported that determination to the Committees on Appropriations of the House of Representatives and the Senate.

SEC. 516. None of the funds made available in this Act shall be used in any way whatsoever to support or justify the use of torture by any official or contract employee of the United States Government.

SEC. 517. (a) Notwithstanding any other provision of law or treaty, none of the funds appropriated or otherwise made available under this Act or any other Act may be expended or obligated by a department, agency, or instrumentality of the United States to pay administrative expenses or to compensate an officer or employee of the United States in connection with requiring an export license for the export to Canada of components, parts, accessories or attachments for firearms listed in Category I, section 121.1 of title 22, Code of Federal Regulations (International Trafficking in Arms Regulations (ITAR), part 121, as it existed on April 1, 2005) with a total value not exceeding $500 wholesale in any transaction, provided that the conditions of subsection (b) of this section are met by the exporting party for such articles.

(b) The foregoing exemption from obtaining an export license—

(1) does not exempt an exporter from filing any Shipper's Export Declaration or notification letter required by law, or from being otherwise eligible under the laws of the United States to possess, ship, transport, or export the articles enumerated in subsection (a); and

(2) does not permit the export without a license of—

(A) fully automatic firearms and components and parts for such firearms, other than for end use by the Federal Government, or a Provincial or Municipal Government of Canada;

(B) barrels, cylinders, receivers (frames) or complete breech mechanisms for any firearm listed in Category I, other than for end use by the Federal Government, or a Provincial or Municipal Government of Canada; or

(C) articles for export from Canada to another foreign destination.

(c) In accordance with this section, the District Directors of Customs and postmasters shall permit the permanent or temporary export without a license of any unclassified articles specified in subsection (a) to Canada for end use in Canada or return to the United States, or temporary import of Canadian-origin items from Canada for end use in the United States or return to Canada for a Canadian citizen.

(d) The President may require export licenses under this section on a temporary basis if the President determines, upon publication first in the Federal Register, that the Government of Canada has implemented or maintained inadequate import controls for the articles specified in subsection (a), such that a significant diversion of such articles has and continues to take place for use in international terrorism or in the escalation of a conflict in another nation. The President shall terminate the requirements of a license when reasons for the temporary requirements have ceased.

SEC. 518. Notwithstanding any other provision of law, no department, agency, or instrumentality of the United States receiving appropriated funds under this Act or any other Act shall obligate or expend in any way such funds to pay administrative expenses or the compensation of any officer or employee of the United States to deny any application submitted pursuant to 22 U.S.C. 2778(b)(1)(B) and qualified pursuant to 27 CFR section 478.112 or .113, for a permit to import United States origin ''curios or relics'' firearms, parts, or ammunition.

SEC. 519. None of the funds made available in this Act may be used to include in any new bilateral or multilateral trade agreement the text of—

(1) paragraph 2 of article 16.7 of the United States-Singapore Free Trade Agreement;

(2) paragraph 4 of article 17.9 of the United States-Australia Free Trade Agreement; or

(3) paragraph 4 of article 15.9 of the United States-Morocco Free Trade Agreement.

SEC. 520. None of the funds made available in this Act may be used to authorize or issue a national security letter in contravention of any of the following laws authorizing the Federal Bureau of Investigation to issue national security letters: The Right to Financial Privacy Act; The Electronic Communications Privacy Act; The Fair Credit Reporting Act; The National Security Act of 1947; USA PATRIOT Act; and the laws amended by these Acts.

SEC. 521. If at any time during any quarter, the program manager of a project within the jurisdiction of the Departments of Commerce or Justice, the National Aeronautics and Space Administration, or the National Science Foundation totaling more than $75,000,000 has reasonable cause to believe that the total program cost has increased by 10 percent or more, the program manager shall immediately inform the respective Secretary, Administrator, or Director. The Secretary, Administrator, or Director shall notify the House and Senate Committees on Appropriations within 30 days in writing of such increase, and shall include in such notice: the date on which such determination was made; a statement of the reasons for such increases; the action taken and proposed to be taken to control future cost growth of the project; changes made in the performance or schedule milestones and the degree to which such changes have contributed to the increase in total program costs or procurement costs; new estimates of the total project or procurement costs; and a statement validating that the project's management structure is adequate to control total project or procurement costs.

SEC. 522. Funds appropriated by this Act, or made available by the transfer of funds in this Act, for intelligence or intelligence related activities are deemed to be specifically authorized by the Congress for purposes of section 504 of the National Security Act of 1947 (50 U.S.C. 414) during fiscal year 2015 until the enactment of the Intelligence Authorization Act for fiscal year 2015.

SEC. 523. None of the funds appropriated or otherwise made available by this Act may be used to enter into a contract in an amount greater than $5,000,000 or to award a grant in excess of such amount unless the prospective contractor or grantee certifies in writing to the agency awarding the contract or grant that, to the best of its knowledge and belief, the contractor or grantee has filed all Federal tax returns required during the three years preceding the certification, has not been convicted of a criminal offense under the Internal Revenue Code of 1986, and has not, more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(RESCISSIONS)

SEC. 524. (a) Of the unobligated balances available to the Department of Commerce, the following funds are hereby rescinded, not later than September 30, 2015, from the following accounts in the specified amounts—

(1) ''Departmental Management, Franchise Fund'', $2,906,000; and

(2) ''Economic Development Administration, Economic Development Assistance Programs'', $5,000,000.

(b) Of the unobligated balances available to the Department of Justice, the following funds are hereby rescinded, not later than September 30, 2015, from the following accounts in the specified amounts—

(1) ''Working Capital Fund'', $99,000,000;

(2) ''Tactical Law Enforcement Wireless Communications'', $2,000,000;

(3) ''Detention Trustee'', $23,000,000;

(4) ''Legal Activities, Assets Forfeiture Fund'', $193,000,000;

(5) ''Legal Activities, Salaries and Expenses, General Legal Activities'', $10,000,000;

(6) ''Legal Activities, Salaries and Expenses, Antitrust Division'', $6,000,000;

(7) ''Salaries and Expenses, United States Attorneys'', $9,000,000;

(8) ''United States Marshals Service, Federal Prisoner Detention'', $188,000,000;

(9) ''Bureau of Alcohol, Tobacco, Firearms and Explosives, Salaries and Expenses'', $3,200,000;

(10) ''State and Local Law Enforcement Activities, Office on Violence Against Women, Violence Against Women Prevention and Prosecution Programs'', $16,000,000;

(11) ''State and Local Law Enforcement Activities, Office of Justice Programs'', $82,500,000; and

(12) ''State and Local Law Enforcement Activities, Community Oriented Policing Services'', $40,000,000.

(c) The Departments of Commerce and Justice shall submit to the Committees on Appropriations of the House of Representatives and the Senate a report no later than September 1, 2015, specifying the amount of each rescission made pursuant to subsections (a) and (b).

SEC. 525. None of the funds made available in this Act may be used to purchase first class or premium airline travel in contravention of sections 301–10.122 through 301–10.124 of title 41 of the Code of Federal Regulations.

SEC. 526. None of the funds made available in this Act may be used to send or otherwise pay for the attendance of more than 50 employees from a Federal department or agency at any single conference occurring outside the United States unless such conference is a law enforcement training or operational conference for law enforcement personnel and the majority of Federal employees in attendance are law enforcement personnel stationed outside the United States.

SEC. 527. None of the funds appropriated or otherwise made available in this Act may be used in a manner that is inconsistent with the principal negotiating objective of the United States with respect to trade remedy laws to preserve the ability of the United States—

(1) to enforce vigorously its trade laws, including antidumping, countervailing duty, and safeguard laws;

(2) to avoid agreements that—

(A) lessen the effectiveness of domestic and international disciplines on unfair trade, especially dumping and subsidies; or

(B) lessen the effectiveness of domestic and international safeguard provisions, in order to ensure that United States workers, agricultural producers, and firms can compete fully on fair terms and enjoy the benefits of reciprocal trade concessions; and

(3) to address and remedy market distortions that lead to dumping and subsidization, including overcapacity, cartelization, and market-access barriers.

SEC. 528. None of the funds appropriated or otherwise made available in this or any other Act may be used to transfer, release, or assist in the transfer or release to or within the United States, its territories, or possessions Khalid Sheikh Mohammed or any other detainee who—

(1) is not a United States citizen or a member of the Armed Forces of the United States; and

(2) is or was held on or after June 24, 2009, at the United States Naval Station, Guantanamo Bay, Cuba, by the Department of Defense.

SEC. 529. (a) None of the funds appropriated or otherwise made available in this or any other Act may be used to construct, acquire, or modify any facility in the United States, its territories, or possessions to house any individual described in subsection (c) for the purposes of detention or imprisonment in the custody or under the effective control of the Department of Defense.

(b) The prohibition in subsection (a) shall not apply to any modification of facilities at United States Naval Station, Guantanamo Bay, Cuba.

(c) An individual described in this subsection is any individual who, as of June 24, 2009, is located at United States Naval Station, Guantanamo Bay, Cuba, and who—

(1) is not a citizen of the United States or a member of the Armed Forces of the United States; and

(2) is—

(A) in the custody or under the effective control of the Department of Defense; or

(B) otherwise under detention at United States Naval Station, Guantanamo Bay, Cuba.

SEC. 530. To the extent practicable, funds made available in this Act should be used to purchase light bulbs that are ''Energy Star'' qualified or have the ''Federal Energy Management Program'' designation.

SEC. 531. The Director of the Office of Management and Budget shall instruct any department, agency, or instrumentality of the United States receiving funds appropriated under this Act to track undisbursed balances in expired grant accounts and include in its annual performance plan and performance and accountability reports the following:

(1) Details on future action the department, agency, or instrumentality will take

to resolve undisbursed balances in expired grant accounts.

(2) The method that the department, agency, or instrumentality uses to track undisbursed balances in expired grant accounts.

(3) Identification of undisbursed balances in expired grant accounts that may be returned to the Treasury of the United States.

(4) In the preceding 3 fiscal years, details on the total number of expired grant accounts with undisbursed balances (on the first day of each fiscal year) for the department, agency, or instrumentality and the total finances that have not been obligated to a specific project remaining in the accounts.

SEC. 532. (a) None of the funds made available by this Act may be used for the National Aeronautics and Space Administration (NASA) or the Office of Science and Technology Policy (OSTP) to develop, design, plan, promulgate, implement, or execute a bilateral policy, program, order, or contract of any kind to participate, collaborate, or coordinate bilaterally in any way with China or any Chinese-owned company unless such activities are specifically authorized by a law enacted after the date of enactment of this Act.

(b) None of the funds made available by this Act may be used to effectuate the hosting of official Chinese visitors at facilities belonging to or utilized by NASA.

(c) The limitations described in subsections (a) and (b) shall not apply to activities which NASA or OSTP has certified—

(1) pose no risk of resulting in the transfer of technology, data, or other information with national security or economic security implications to China or a Chinese-owned company; and

(2) will not involve knowing interactions with officials who have been determined by the United States to have direct involvement with violations of human rights.

(d) Any certification made under subsection (c) shall be submitted to the Committees on Appropriations of the House of Representatives and the Senate no later than 30 days prior to the activity in question and shall include a description of the purpose of the activity, its agenda, its major participants, and its location and timing.

SEC. 533. None of the funds made available by this Act may be used to pay the salaries or expenses of personnel to deny, or fail to act on, an application for the importation of any model of shotgun if—

(1) all other requirements of law with respect to the proposed importation are met; and

(2) no application for the importation of such model of shotgun, in the same configuration, had been denied by the Attorney General prior to January 1, 2011, on the basis that the shotgun was not particularly suitable for or readily adaptable to sporting purposes.

SEC. 534. (a) None of the funds made available in this Act may be used to maintain or establish a computer network unless such network blocks the viewing, downloading, and exchanging of pornography.

(b) Nothing in subsection (a) shall limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities.

SEC. 535. The Departments of Commerce and Justice, the National Aeronautics and Space Administration, and the National Science Foundation shall submit spending plans, signed by the respective department or agency head, to the Committees on Appropriations of the House of Representatives and the Senate within 45 days after the date of enactment of this Act.

SEC. 536. None of the funds made available by this Act may be obligated or expended to implement the Arms Trade Treaty until the Senate approves a resolution of ratification for the Treaty.

SEC. 537. None of the funds made available by this Act under the heading ''Pacific Coastal Salmon Recovery'' may be used for grant guidelines or requirements to establish minimum riparian buffers.

SEC. 538. None of the funds made available in this Act to the Department of Justice may be used, with respect to the States of Alabama, Alaska, Arizona, California, Colorado, Connecticut, Delaware, District of Columbia, Florida, Hawaii, Illinois, Iowa, Kentucky, Maine, Maryland, Massachusetts, Michigan, Minnesota, Mississippi, Missouri, Montana, Nevada, New Hampshire, New Jersey, New Mexico, Oregon, Rhode Island, South Carolina, Tennessee, Utah, Vermont, Washington, and Wisconsin, to prevent such States from implementing their own State laws that authorize the use, distribution, possession, or cultivation of medical marijuana.

SEC. 539. None of the funds made available by this Act may be used in contravention of section 7606 (''Legitimacy of Industrial Hemp Research'') of the Agricultural Act of 2014 (Public Law 113–79) by the Department of Justice or the Drug Enforcement Administration.

SEC. 540. (a) None of the funds made available by this Act may be used to relinquish the responsibility of the National Telecommunications and Information Administration during fiscal year 2015 with respect to Internet domain name system functions, including responsibility with respect to the authoritative root zone file and the Internet Assigned Numbers Authority functions.

(b) Subsection (a) of this section shall expire on September 30, 2015.

SEC. 541. (a) IN GENERAL.—During the period beginning on January 1, 2015, and ending on December 31, 2015, the provisions of chapter 3 of title II of the Trade Act of 1974 (19 U.S.C. 2341 et seq.), as in effect on December 31, 2014, shall apply, except that in applying and administering such provisions, section 256(b) of that Act shall be applied and administered by substituting ''$16,000,000 for the period beginning on January 1, 2015, and ending December 31, 2015'' for ''$16,000,000 for each of fiscal years 2003 through 2007, and $4,000,000 for the 3-month period beginning on October 1, 2007''.

(b) TERMINATION.—During the period beginning on January 1, 2015, and ending on December 31, 2015, section 285 of the Trade Act of 1974 (19 U.S.C. 2271 note), as in effect on December 31, 2014, shall apply, except that in applying and administering that section, subsection (b) of that section shall be applied and administered as if paragraph (1) read as follows:

''(1) ASSISTANCE FOR FIRMS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), assistance may not be provided under chapter 3 after December 31, 2015.

''(B) EXCEPTION.—Notwithstanding subparagraph (A), any assistance approved under chapter 3 on or before December 31, 2015, may be provided—

''(i) to the extent funds are available pursuant to such chapter for such purpose; and

''(ii) to the extent the recipient of the assistance is otherwise eligible to receive such assistance.''.

TITLE VI—TRAVEL PROMOTION, ENHANCEMENT, AND MODERNIZATION ACT OF 2014

SEC. 601. SHORT TITLE.

This title may be cited as the ''Travel Promotion, Enhancement, and Modernization Act of 2014''.

SEC. 602. BOARD OF DIRECTORS.

Subsection (b)(2)(A) of the Travel Promotion Act of 2009 (22 U.S.C. 2131(b)(2)(A)) is amended—

(1) in the matter preceding clause (i)—

(A) in the first sentence, by striking ''promotion and marketing'' and inserting ''promotion or marketing''; and

(B) by inserting after the first sentence the following: ''At least 5 members of the board shall have experience working in United States multinational entities with marketing budgets. At least 2 members of the board shall be audit committee financial experts (as defined by the Securities and Exchange Commission in accordance with section 407 of Public Law 107–204 (15 U.S.C. 7265)). All members of the board shall be a current or former chief executive officer, chief financial officer, or chief marketing officer, or have held an equivalent management position.''; and

(2) in clause (x), by striking ''intercity passenger railroad business'' and inserting ''land or sea passenger transportation sector''.

SEC. 603. ANNUAL REPORT TO CONGRESS.

Subsection (c)(3) of the Travel Promotion Act of 2009 (22 U.S.C. 2131(c)(3)) is amended—

(1) in subparagraph (F), by striking ''and'' at the end;

(2) by redesignating subparagraph (G) as subparagraph (I); and

(3) by inserting after subparagraph (F) the following:

''(G) a description of, and rationales for, the Corporation's efforts to focus on specific countries and populations;

''(H)(i) a description of, and rationales for, the Corporation's combination of media channels employed in meeting the promotional objectives of its marketing campaign;

''(ii) the ratio in which such channels are used; and

''(iii) a justification for the use and ratio of such channels; and''.

SEC. 604. BIANNUAL REVIEW OF PROCEDURES TO DETERMINE FAIR MARKET VALUE OF GOODS AND SERVICES.

Subsection (d)(3) of the Travel Promotion Act of 2009 (22 U.S.C. 2131(d)(3)) is amended—

(1) in subparagraph (B)(ii), by striking ''80 percent'' and inserting ''70 percent''; and

(2) by adding at the end the following:

''(E) MAINTENANCE OF AN IN-KIND CONTRIBUTIONS POLICY.—The Corporation shall maintain an in-kind contributions policy.

''(F) FORMALIZED PROCEDURES FOR IN-KIND CONTRIBUTIONS POLICY.—Not later than 90 days after the date of enactment of the Travel Promotion, Enhancement, and Modernization Act of 2014, the Secretary of Commerce, in coordination with the Corporation, shall establish formal, publicly available procedures specifying time frames and conditions for—

''(i) making and agreeing to revisions of the Corporation's in-kind contributions policy; and

''(ii) addressing and resolving disagreements between the Corporation and its partners, including the Secretary of Commerce, regarding the in-kind contributions policy.

''(G) BIANNUAL REVIEW OF PROCEDURES TO DETERMINE FAIR MARKET VALUE OF GOODS AND SERVICES.—The Corporation and the Secretary of Commerce (or their designees) shall meet on a biannual basis to review the procedures to determine the fair market value of goods and services received from non-Federal sources by the Corporation under subparagraph (B).''.

SEC. 605. EXTENSION OF TRAVEL PROMOTION ACT OF 2009.

(a) IN GENERAL.—The Travel Promotion Act of 2009 (22 U.S.C. 2131) is amended—

(1) in subsection (b)(5)(A)(iv), by striking ''all States and the District of Columbia'' and inserting ''all States and territories of the United States and the District of Columbia,''; and

(2) in subsection (d)—

(A) in paragraph (2)(B), by striking ''2015'' and inserting ''2020''; and

(B) in paragraph (4)(B), by striking ''fiscal year 2011, 2012, 2013, 2014, or 2015'' and inserting ''each of the fiscal years 2011 through 2020''.

(b) SUNSET OF TRAVEL PROMOTION FUND FEE.—Section 217(h)(3)(B)(iii) of the Immigration and Nationality Act (8 U.S.C. 1187(h)(3)(B)(iii)) is amended by striking ''September 30, 2015'' and inserting ''September 30, 2020''.

SEC. 606. ACCOUNTABILITY; PROCUREMENT REQUIREMENTS.

The Travel Promotion Act of 2009 (22 U.S.C. 2131), as amended by this Act, is further amended—

(1) by redesignating subsections (e), (f), (g), and (h) as subsections (h), (e), (i), and (j), respectively;

(2) by moving subsection (e) (as so redesignated) so that it follows subsection (d);

(3) in paragraph (2) of subsection (c), by striking ''$5,000,000'' and inserting ''$500,000''; and

(4) by inserting after subsection (e), as redesignated, the following:

''(f) ACCOUNTABILITY.—

''(1) PERFORMANCE PLANS AND MEASURES.—Not later than 90 days after the date of the enactment of the Travel Promotion, Enhancement, and Modernization Act of 2014, the Corporation shall—

''(A) establish performance metrics including, time frames, evaluation methodologies, and data sources for measuring—

''(i) the effectiveness of marketing efforts by the Corporation, including its progress in achieving the long-term goals of increased traveler visits to and spending in the United States;

''(ii) whether increases in visitation and spending have occurred in response to external influences, such as economic conditions or exchange rates, rather than in response to the efforts of the Corporation; and

''(iii) any cost or benefit to the economy of the United States; and

''(B) conduct periodic program evaluations in response to the data resulting from measurements under subparagraph (A).

''(2) GAO ACCOUNTABILITY.—Not later than 60 days after the date on which the Corporation receives a report from the Government Accountability Office with recommendations for the Corporation, the Corporation shall submit a report to Congress that describes the actions taken by the Corporation in response to the recommendations in such report.

''(g) PROCUREMENT REQUIREMENTS.—The Corporation shall—

''(1) establish a competitive procurement process; and

''(2) certify in its annual report to Congress under subsection (c)(3) that any contracts entered into were in compliance with the established competitive procurement process.''.

SEC. 607. REPEAL OF ASSESSMENT AUTHORITY.

The Travel Promotion Act of 2009 (22 U.S.C. 2131), as amended by this Act, is further amended by striking subsection (e) (as redesignated by section 606(1) of this Act).

TITLE VII—REVITALIZE AMERICAN MANUFACTURING AND INNOVATION ACT OF 2014

SEC. 701. SHORT TITLE.

This title may be cited as the ''Revitalize American Manufacturing and Innovation Act of 2014''.

SEC. 702. FINDINGS.

Congress finds the following:

(1) In 2012, manufacturers contributed $2.03 trillion to the economy, or ⅛ of United States Gross Domestic Product.

(2) For every $1.00 spent in manufacturing, another $1.32 is added to the economy, the highest multiplier effect of any economic sector.

(3) Manufacturing supports an estimated 17,400,000 jobs in the United States—about 1 in 6 private-sector jobs. More than 12,000,000 Americans (or 9 percent of the workforce) are employed directly in manufacturing.

(4) In 2012, the average manufacturing worker in the United States earned $77,505 annually, including pay and benefits. The average worker in all industries earned $62,063.

(5) Taken alone, manufacturing in the United States would be the 8th largest economy in the world.

(6) Manufacturers in the United States perform two-thirds of all private-sector research and development in the United States, driving more innovation than any other sector.

SEC. 703. ESTABLISHMENT OF NETWORK FOR MANUFACTURING INNOVATION.

The National Institute of Standards and Technology Act (15 U.S.C. 271 et seq.) is amended—

(1) by redesignating section 34 as section 35; and

(2) by inserting after section 33 (15 U.S.C. 278r) the following:

''SEC. 34. NETWORK FOR MANUFACTURING INNOVATION.

''(a) ESTABLISHMENT OF NETWORK FOR MANUFACTURING INNOVATION PROGRAM.—

''(1) IN GENERAL.—The Secretary shall establish within the Institute a program to be known as the 'Network for Manufacturing Innovation Program' (referred to in this section as the 'Program').

''(2) PURPOSES OF PROGRAM.—The purposes of the Program are—

''(A) to improve the competitiveness of United States manufacturing and to increase the production of goods manufactured predominantly within the United States;

''(B) to stimulate United States leadership in advanced manufacturing research, innovation, and technology;

''(C) to facilitate the transition of innovative technologies into scalable, cost-effective, and high-performing manufacturing capabilities;

''(D) to facilitate access by manufacturing enterprises to capital-intensive infrastructure, including high-performance electronics and computing, and the supply chains that enable these technologies;

''(E) to accelerate the development of an advanced manufacturing workforce;

''(F) to facilitate peer exchange of and the documentation of best practices in addressing advanced manufacturing challenges;

''(G) to leverage non-Federal sources of support to promote a stable and sustainable business model without the need for long-term Federal funding; and

''(H) to create and preserve jobs.

''(3) SUPPORT.—The Secretary, acting through the Director, shall carry out the purposes set forth in paragraph (2) by supporting—

''(A) the Network for Manufacturing Innovation established under subsection (b); and

''(B) the establishment of centers for manufacturing innovation.

''(4) DIRECTOR.—The Secretary shall carry out the Program through the Director.

''(b) ESTABLISHMENT OF NETWORK FOR MANUFACTURING INNOVATION.—

''(1) IN GENERAL.—As part of the Program, the Secretary shall establish a network of centers for manufacturing innovation.

''(2) DESIGNATION.—The network established under paragraph (1) shall be known as the 'Network for Manufacturing Innovation' (referred to in this section as the 'Network').

''(c) CENTERS FOR MANUFACTURING INNOVATION.—

''(1) IN GENERAL.—For purposes of this section, a 'center for manufacturing innovation' is a center that—

''(A) has been established by a person or group of persons to address challenges in advanced manufacturing and to assist manufacturers in retaining or expanding industrial production and jobs in the United States;

''(B) has a predominant focus on a manufacturing process, novel material, enabling technology, supply chain integration methodology, or another relevant aspect of advanced manufacturing, such as nanotechnology applications, advanced ceramics, photonics and optics, composites, biobased and advanced materials, flexible hybrid technologies, and tool development for microelectronics;

''(C) as determined by the Secretary, has the potential—

''(i) to improve the competitiveness of United States manufacturing, including key advanced manufacturing technologies such as nanotechnology, advanced ceramics, photonics and optics, composites, biobased and advanced materials, flexible hybrid technologies, and tool development for microelectronics;

''(ii) to accelerate non-Federal investment in advanced manufacturing production capacity in the United States; or

''(iii) to enable the commercial application of new technologies or industry-wide manufacturing processes; and

''(D) includes active participation among representatives from multiple industrial entities, research universities, community colleges, and such other entities as the Secretary considers appropriate, which may include industry-led consortia, career and technical education schools, Federal laboratories, State, local, and tribal governments, businesses, educational institutions, and nonprofit organizations.

''(2) ACTIVITIES.—Activities of a center for manufacturing innovation may include the following:

''(A) Research, development, and demonstration projects, including proof-of-concept development and prototyping, to reduce the cost, time, and risk of commercializing new technologies and improvements in existing technologies, processes, products, and research and development of materials to solve precompetitive industrial problems with economic or national security implications.

''(B) Development and implementation of education, training, and workforce recruitment courses, materials, and programs.

''(C) Development of innovative methodologies and practices for supply chain integration and introduction of new technologies into supply chains.

''(D) Outreach and engagement with small and medium-sized manufacturing enterprises, including women and minority owned manufacturing enterprises, in addition to large manufacturing enterprises.

''(E) Such other activities as the Secretary, in consultation with Federal departments and agencies whose missions contribute to or are affected by advanced manufacturing, considers consistent with the purposes described in subsection (a)(2).

''(3) ADDITIONAL CENTERS FOR MANUFACTURING INNOVATION.—

''(A) IN GENERAL.—The National Additive Manufacturing Innovation Institute and other manufacturing centers formally recognized as manufacturing innovation centers

pursuant to Federal law or executive actions, or under pending interagency review for such recognition as of the date of enactment of the Revitalize American Manufacturing and Innovation Act of 2014, shall be considered centers for manufacturing innovation, but such centers shall not receive any financial assistance under subsection (d).

''(B) NETWORK PARTICIPATION.—A manufacturing center that is substantially similar to those established under this subsection but that does not receive financial assistance under subsection (d) may, upon request of the center, be recognized as a center for manufacturing innovation by the Secretary for purposes of participation in the Network.

''(d) FINANCIAL ASSISTANCE TO ESTABLISH AND SUPPORT CENTERS FOR MANUFACTURING INNOVATION.—

''(1) IN GENERAL.—In carrying out the Program, the Secretary shall award financial assistance to a person or group of persons to assist the organization in planning, establishing, or supporting a center for manufacturing innovation.

''(2) APPLICATION.—A person or group of persons seeking financial assistance under paragraph (1) shall submit to the Secretary an application therefor at such time, in such manner, and containing such information as the Secretary may require. The application shall, at a minimum, describe the specific sources and amounts of non-Federal financial support for the center on the date financial assistance is sought, as well as the anticipated sources and amounts of non-Federal financial support during the period for which the center could be eligible for continued Federal financial assistance under this section.

''(3) OPEN PROCESS.—In soliciting applications for financial assistance under paragraph (1), the Secretary shall ensure an open process that will allow for the consideration of all applications relevant to advanced manufacturing regardless of technology area.

''(4) SELECTION.—

''(A) COMPETITIVE, MERIT REVIEW.—In awarding financial assistance under paragraph (1), the Secretary shall use a competitive, merit review process that includes peer review by a diverse group of individuals with relevant expertise from both the private and public sectors.

''(B) PARTICIPATION IN PROCESS.—

''(i) IN GENERAL.—No political appointee may participate on a peer review panel. The Secretary shall implement a conflict of interest policy that ensures public transparency and accountability, and requires full disclosure of any real or potential conflicts of interest on the parts of individuals that participate in the merit selection process.

''(ii) DEFINITION.—For purposes of this subparagraph, the term 'political appointee' means any individual who—

''(I) is employed in a position described under sections 5312 through 5316 of title 5, United States Code, (relating to the Executive Schedule);

''(II) is a limited term appointee, limited emergency appointee, or noncareer appointee in the Senior Executive Service, as defined under paragraphs (5), (6), and (7), respectively, of section 3132(a) of title 5, United States Code; or

''(III) is employed in a position in the executive branch of the Government of a confidential or policy-determining character under schedule C of subpart C of part 213 of title 5 of the Code of Federal Regulations.

''(C) PERFORMANCE MEASUREMENT, TRANSPARENCY, AND ACCOUNTABILITY.—For each award of financial assistance under paragraph (1), the Secretary shall—

''(i) make publicly available at the time of the award a description of the bases for the award, including an explanation of the relative merits of the winning applicant as compared to other applications received, if applicable; and

''(ii) develop and implement metrics-based performance measures to assess the effectiveness of the activities funded.

''(D) COLLABORATION.—In awarding financial assistance under paragraph (1), the Secretary shall, acting through the National Program Office established under subsection (f)(1), collaborate with Federal departments and agencies whose missions contribute to or are affected by advanced manufacturing.

''(E) CONSIDERATIONS.—In selecting a person who submitted an application under paragraph (2) for an award of financial assistance under paragraph (1), the Secretary shall consider, at a minimum, the following:

''(i) The potential of the center for manufacturing innovation to advance domestic manufacturing and the likelihood of economic impact, including the creation or preservation of jobs, in the predominant focus areas of the center for manufacturing innovation.

''(ii) The commitment of continued financial support, advice, participation, and other contributions from non-Federal sources, to provide leverage and resources to promote a stable and sustainable business model without the need for long-term Federal funding.

''(iii) Whether the financial support provided to the center for manufacturing innovation from non-Federal sources significantly exceeds the requested Federal financial assistance.

''(iv) How the center for manufacturing innovation will increase the non-Federal investment in advanced manufacturing research in the United States.

''(v) How the center for manufacturing innovation will engage with small and medium-sized manufacturing enterprises, to improve the capacity of such enterprises to commercialize new processes and technologies.

''(vi) How the center for manufacturing innovation will carry out educational and workforce activities that meet industrial needs related to the predominant focus areas of the center.

''(vii) How the center for manufacturing innovation will advance economic competitiveness and generate substantial benefits to the Nation that extend beyond the direct return to participants in the Program.

''(viii) Whether the predominant focus of the center for manufacturing innovation is a manufacturing process, novel material, enabling technology, supply chain integration methodology, or other relevant aspect of advanced manufacturing that has not already been commercialized, marketed, distributed, or sold by another entity.

''(ix) How the center for manufacturing innovation will strengthen and leverage the assets of a region.

''(x) How the center for manufacturing will encourage the education and training of veterans and individuals with disabilities.

''(5) LIMITATIONS ON AWARDS.—

''(A) IN GENERAL.—No award of financial assistance may be made under paragraph (1) to a center of manufacturing innovation after the 7-year period beginning on the date on which the Secretary first awards financial assistance to that center under that paragraph.

''(B) MATCHING FUNDS AND PREFERENCES.—The total Federal financial assistance awarded to a center of manufacturing innovation, including the financial assistance under paragraph (1), in a given year shall not exceed 50 percent of the total funding of the center in that year, except that the Secretary may make an exception in the case of large capital facilities or equipment purchases. The Secretary shall give weighted preference to applicants seeking less than the maximum Federal share of funds allowed under this paragraph.

''(C) FUNDING DECREASE.—The amount of financial assistance provided to a center of manufacturing innovation under paragraph (1) shall decrease after the second year of funding for the center, and shall continue to decrease thereafter in each year in which financial assistance is provided, unless the Secretary determines that—

''(i) the center is otherwise meeting its stated goals and metrics under this section;

''(ii) unforeseen circumstances have altered the center's anticipated funding; and

''(iii) the center can identify future non-Federal funding sources that would warrant a temporary exemption from the limitations established in this subparagraph.

''(e) FUNDING.—

''(1) GENERAL RULE.—Except as provided in paragraph (2), no funds are authorized to be appropriated by the Revitalize American Manufacturing and Innovation Act of 2014 for carrying out this section.

''(2) AUTHORITY.—

''(A) NIST INDUSTRIAL TECHNICAL SERVICES ACCOUNT.—To the extent provided for in advance by appropriations Acts, the Secretary may use not to exceed $5,000,000 for each of the fiscal years 2015 through 2024 to carry out this section from amounts appropriated to the Institute for Industrial Technical Services.

''(B) ENERGY EFFICIENCY AND RENEWABLE ENERGY ACCOUNT.—To the extent provided for in advance by appropriations Acts, the Secretary of Energy may transfer to the Institute not to exceed $250,000,000 for the period encompassing fiscal years 2015 through 2024 for the Secretary to carry out this section from amounts appropriated for advanced manufacturing research and development within the Energy Efficiency and Renewable Energy account for the Department of Energy.

''(f) NATIONAL PROGRAM OFFICE.—

''(1) ESTABLISHMENT.—The Secretary shall establish, within the Institute, the National Office of the Network for Manufacturing Innovation Program (referred to in this section as the 'National Program Office'), which shall oversee and carry out the Program.

''(2) FUNCTIONS.—The functions of the National Program Office are—

''(A) to oversee the planning, management, and coordination of the Program;

''(B) to enter into memorandums of understanding with Federal departments and agencies whose missions contribute to or are affected by advanced manufacturing, to carry out the purposes described in subsection (a)(2);

''(C) to develop, not later than 1 year after the date of enactment of the Revitalize American Manufacturing and Innovation Act of 2014, and update not less frequently than once every 3 years thereafter, a strategic plan to guide the Program;

''(D) to establish such procedures, processes, and criteria as may be necessary and appropriate to maximize cooperation and coordinate the activities of the Program with programs and activities of other Federal departments and agencies whose missions contribute to or are affected by advanced manufacturing;

''(E) to establish a clearinghouse of public information related to the activities of the Program; and

''(F) to act as a convener of the Network.

''(3) RECOMMENDATIONS.—In developing and updating the strategic plan under paragraph (2)(C), the Secretary shall solicit recommendations and advice from a wide range of stakeholders, including industry, small

and medium-sized manufacturing enterprises, research universities, community colleges, and other relevant organizations and institutions on an ongoing basis.

''(4) REPORT TO CONGRESS.—Upon completion, the Secretary shall transmit the strategic plan required under paragraph (2)(C) to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Science, Space, and Technology of the House of Representatives.

''(5) HOLLINGS MANUFACTURING EXTENSION PARTNERSHIP.—The Secretary shall ensure that the National Program Office incorporates the Hollings Manufacturing Extension Partnership into Program planning to ensure that the results of the Program reach small and medium-sized entities.

''(6) DETAILEES.—Any Federal Government employee may be detailed to the National Program Office without reimbursement. Such detail shall be without interruption or loss of civil service status or privilege.

''(g) REPORTING AND AUDITING.—

''(1) ANNUAL REPORTS TO THE SECRETARY.—

''(A) IN GENERAL.—The Secretary shall require each recipient of financial assistance under subsection (d)(1) to annually submit a report to the Secretary that describes the finances and performance of the center for manufacturing innovation for which such assistance was awarded.

''(B) ELEMENTS.—Each report submitted under subparagraph (A) shall include—

''(i) an accounting of expenditures of amounts awarded to the recipient under subsection (d)(1); and

''(ii) consistent with the metrics-based performance measures developed and implemented by the Secretary under this section, a description of the performance of the center for manufacturing innovation with respect to—

''(I) its goals, plans, financial support, and accomplishments; and

''(II) how the center for manufacturing innovation has furthered the purposes described in subsection (a)(2).

''(2) ANNUAL REPORTS TO CONGRESS.—

''(A) IN GENERAL.—Not less frequently than once each year until December 31, 2024, the Secretary shall submit a report to Congress that describes the performance of the Program during the most recent 1-year period.

''(B) ELEMENTS.—Each report submitted under subparagraph (A) shall include, for the period covered by the report—

''(i) a summary and assessment of the reports received by the Secretary under paragraph (1);

''(ii) an accounting of the funds expended by the Secretary under the Program, including any temporary exemptions granted from the requirements of subsection (d)(5)(C);

''(iii) an assessment of the participation in, and contributions to, the Network by any centers for manufacturing innovation not receiving financial assistance under subsection (d)(1); and

''(iv) an assessment of the Program with respect to meeting the purposes described in subsection (a)(2).

''(3) ASSESSMENTS BY GAO.—

''(A) ASSESSMENTS.—Not less frequently than once every 2 years, the Comptroller General shall submit to Congress an assessment of the operation of the Program during the most recent 2-year period.

''(B) FINAL ASSESSMENT.—Not later than December 31, 2024, the Comptroller General shall submit to Congress a final report regarding the overall success of the Program.

''(C) ELEMENTS.—Each assessment submitted under subparagraph (A) or (B) shall include, for the period covered by the report—

''(i) a review of the management, coordination, and industry utility of the Program;

''(ii) an assessment of the extent to which the Program has furthered the purposes described in subsection (a)(2);

''(iii) such recommendations for legislative and administrative action as the Comptroller General considers appropriate to improve the Program; and

''(iv) an assessment as to whether any prior recommendations for improvement made by the Comptroller General have been implemented or adopted.

''(h) ADDITIONAL AUTHORITIES.—

''(1) APPOINTMENT OF PERSONNEL AND CONTRACTS.—The Secretary may appoint such personnel and enter into such contracts, financial assistance agreements, and other agreements as the Secretary considers necessary or appropriate to carry out the Program, including support for research and development activities involving a center for manufacturing innovation.

''(2) TRANSFER OF FUNDS.—Of amounts available under the authority provided by subsection (e), the Secretary may transfer to other Federal agencies such sums as the Secretary considers necessary or appropriate to carry out the Program. No funds so transferred may be used to reimburse or otherwise pay for the costs of financial assistance incurred or commitments of financial assistance made prior to the date of enactment of the Revitalize American Manufacturing and Innovation Act of 2014.

''(3) AUTHORITY OF OTHER AGENCIES.—In the event that the Secretary exercises the authority to transfer funds to another agency under paragraph (2), such agency may accept such funds to award and administer, under the same conditions and constraints applicable to the Secretary, all aspects of financial assistance awards under this section.

''(4) USE OF RESOURCES.—In furtherance of the purposes of the Program, the Secretary may use, with the consent of a covered entity and with or without reimbursement, the land, services, equipment, personnel, and facilities of such covered entity.

''(5) ACCEPTANCE OF RESOURCES.—In addition to amounts appropriated to carry out the Program, the Secretary may accept funds, services, equipment, personnel, and facilities from any covered entity to carry out the Program, subject to the same conditions and constraints otherwise applicable to the Secretary under this section and such funds may only be obligated to the extent provided for in advance by appropriations Acts.

''(6) COVERED ENTITY.—For purposes of this subsection, a covered entity is any Federal department, Federal agency, instrumentality of the United States, State, local government, tribal government, territory, or possession of the United States, or of any political subdivision thereof, or international organization, or any public or private entity or individual.

''(i) PATENTS.—Chapter 18 of title 35, United States Code, shall apply to any funding agreement (as defined in section 201 of that title) awarded to new or existing centers for manufacturing innovation.''.

SEC. 704. NATIONAL STRATEGIC PLAN FOR ADVANCED MANUFACTURING.

Section 102 of the America COMPETES Reauthorization Act of 2010 (42 U.S.C. 6622) is amended—

(1) in subsection (a), by adding at the end the following: ''In furtherance of the Committee's work, the Committee shall consult with the National Economic Council.'';

(2) in subsection (b), by striking paragraph (7) and inserting the following:

''(7) develop and update a national strategic plan for advanced manufacturing in accordance with subsection (c).''; and

(3) by striking subsection (c) and inserting the following:

''(c) NATIONAL STRATEGIC PLAN FOR ADVANCED MANUFACTURING.—

''(1) IN GENERAL.—The President shall submit to Congress, and publish on an Internet website that is accessible to the public, the strategic plan developed under paragraph (2).

''(2) DEVELOPMENT.—The Committee shall develop, and update as required under paragraph (4), in coordination with the National Economic Council, a strategic plan to improve Government coordination and provide long-term guidance for Federal programs and activities in support of United States manufacturing competitiveness, including advanced manufacturing research and development.

''(3) CONTENTS.—The strategic plan described in paragraph (2) shall—

''(A) specify and prioritize near-term and long-term objectives, including research and development objectives, the anticipated time frame for achieving the objectives, and the metrics for use in assessing progress toward the objectives;

''(B) describe the progress made in achieving the objectives from prior strategic plans, including a discussion of why specific objectives were not met;

''(C) specify the role, including the programs and activities, of each relevant Federal agency in meeting the objectives of the strategic plan;

''(D) describe how the Federal agencies and Federally funded research and development centers supporting advanced manufacturing research and development will foster the transfer of research and development results into new manufacturing technologies and United States-based manufacturing of new products and processes for the benefit of society to ensure national, energy, and economic security;

''(E) describe how such Federal agencies and centers will strengthen all levels of manufacturing education and training programs to ensure an adequate, well-trained workforce;

''(F) describe how such Federal agencies and centers will assist small and medium-sized manufacturers in developing and implementing new products and processes;

''(G) analyze factors that impact innovation and competitiveness for United States advanced manufacturing, including—

''(i) technology transfer and commercialization activities;

''(ii) the adequacy of the national security industrial base;

''(iii) the capabilities of the domestic manufacturing workforce;

''(iv) export opportunities and trade policies;

''(v) financing, investment, and taxation policies and practices;

''(vi) emerging technologies and markets;

''(vii) advanced manufacturing research and development undertaken by competing nations; and

''(viii) the capabilities of the manufacturing workforce of competing nations; and

''(H) elicit and consider the recommendations of a wide range of stakeholders, including representatives from diverse manufacturing companies, academia, and other relevant organizations and institutions.

''(4) UPDATES.—Not later than May 1, 2018, and not less frequently than once every 4 years thereafter, the President shall submit to Congress, and publish on an Internet website that is accessible to the public, an update of the strategic plan submitted under paragraph (1). Such updates shall be developed in accordance with the procedures set forth under this subsection.

''(5) REQUIREMENT TO CONSIDER STRATEGY IN THE BUDGET.—In preparing the budget for a fiscal year under section 1105(a) of title 31,

United States Code, the President shall include information regarding the consistency of the budget with the goals and recommendations included in the strategic plan developed under this subsection applying to that fiscal year.

''(6) AMP STEERING COMMITTEE INPUT.—The Advanced Manufacturing Partnership Steering Committee of the President's Council of Advisors on Science and Technology shall provide input, perspective, and recommendations to assist in the development and updates of the strategic plan under this subsection.''.

SEC. 705. REGIONAL INNOVATION PROGRAM.

Section 27 of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3722) is amended to read as follows:

''SEC. 27. REGIONAL INNOVATION PROGRAM.

''(a) ESTABLISHMENT.—The Secretary shall establish a regional innovation program to encourage and support the development of regional innovation strategies, including regional innovation clusters.

''(b) CLUSTER GRANTS.—

''(1) IN GENERAL.—As part of the program established under subsection (a), the Secretary may award grants on a competitive basis to eligible recipients for activities relating to the formation and development of regional innovation clusters.

''(2) PERMISSIBLE ACTIVITIES.—Grants awarded under this subsection may be used for activities determined appropriate by the Secretary, including the following:

''(A) Feasibility studies.

''(B) Planning activities.

''(C) Technical assistance.

''(D) Developing or strengthening communication and collaboration between and among participants of a regional innovation cluster.

''(E) Attracting additional participants to a regional innovation cluster.

''(F) Facilitating market development of products and services developed by a regional innovation cluster, including through demonstration, deployment, technology transfer, and commercialization activities.

''(G) Developing relationships between a regional innovation cluster and entities or clusters in other regions.

''(H) Interacting with the public and State and local governments to meet the goals of the cluster.

''(3) ELIGIBLE RECIPIENT DEFINED.—In this subsection, the term 'eligible recipient' means—

''(A) a State;

''(B) an Indian tribe;

''(C) a city or other political subdivision of a State;

''(D) an entity that—

''(i) is a nonprofit organization, an institution of higher education, a public-private partnership, a science or research park, a Federal laboratory, or an economic development organization or similar entity; and

''(ii) has an application that is supported by a State or a political subdivision of a State; or

''(E) a consortium of any of the entities described in subparagraphs (A) through (D).

''(4) APPLICATION.—

''(A) IN GENERAL.—An eligible recipient shall submit an application to the Secretary at such time, in such manner, and containing such information and assurances as the Secretary may require.

''(B) COMPONENTS.—The application shall include, at a minimum, a description of the regional innovation cluster supported by the proposed activity, including a description of—

''(i) whether the regional innovation cluster is supported by the private sector, State and local governments, and other relevant stakeholders;

''(ii) how the existing participants in the regional innovation cluster will encourage and solicit participation by all types of entities that might benefit from participation, including newly formed entities and those rival existing participants;

''(iii) the extent to which the regional innovation cluster is likely to stimulate innovation and have a positive impact on regional economic growth and development;

''(iv) whether the participants in the regional innovation cluster have access to, or contribute to, a well-trained workforce;

''(v) whether the participants in the regional innovation cluster are capable of attracting additional funds from non-Federal sources; and

''(vi) the likelihood that the participants in the regional innovation cluster will be able to sustain activities once grant funds under this subsection have been expended.

''(C) SPECIAL CONSIDERATION.—The Secretary shall give special consideration to applications from regions that contain communities negatively impacted by trade.

''(5) SPECIAL CONSIDERATION.—The Secretary shall give special consideration to an eligible recipient who agrees to collaborate with local workforce investment area boards.

''(6) COST SHARE.—The Secretary may not provide more than 50 percent of the total cost of any activity funded under this subsection.

''(7) OUTREACH TO RURAL COMMUNITIES.—The Secretary shall conduct outreach to public and private sector entities in rural communities to encourage those entities to participate in regional innovation cluster activities under this subsection.

''(8) FUNDING.—The Secretary may accept funds from other Federal agencies to support grants and activities under this subsection.

''(c) REGIONAL INNOVATION RESEARCH AND INFORMATION PROGRAM.—

''(1) IN GENERAL.—As part of the program established under subsection (a), the Secretary shall establish a regional innovation research and information program—

''(A) to gather, analyze, and disseminate information on best practices for regional innovation strategies (including regional innovation clusters), including information relating to how innovation, productivity, and economic development can be maximized through such strategies;

''(B) to provide technical assistance, including through the development of technical assistance guides, for the development and implementation of regional innovation strategies (including regional innovation clusters);

''(C) to support the development of relevant metrics and measurement standards to evaluate regional innovation strategies (including regional innovation clusters), including the extent to which such strategies stimulate innovation, productivity, and economic development; and

''(D) to collect and make available data on regional innovation cluster activity in the United States, including data on—

''(i) the size, specialization, and competitiveness of regional innovation clusters;

''(ii) the regional domestic product contribution, total jobs and earnings by key occupations, establishment size, nature of specialization, patents, Federal research and development spending, and other relevant information for regional innovation clusters; and

''(iii) supply chain product and service flows within and between regional innovation clusters.

''(2) RESEARCH GRANTS.—The Secretary may award research grants on a competitive basis to support and further the goals of the program established under this subsection.

''(3) DISSEMINATION OF INFORMATION.—Data and analysis compiled by the Secretary under the program established in this subsection shall be made available to other Federal agencies, State and local governments, and nonprofit and for-profit entities.

''(4) REGIONAL INNOVATION GRANT PROGRAM.—The Secretary shall incorporate data and analysis relating to any grant under subsection (b) into the program established under this subsection.

''(d) INTERAGENCY COORDINATION.—

''(1) IN GENERAL.—To the maximum extent practicable, the Secretary shall ensure that the activities carried out under this section are coordinated with, and do not duplicate the efforts of, other programs at the Department of Commerce or other Federal agencies.

''(2) COLLABORATION.—

''(A) IN GENERAL.—The Secretary shall explore and pursue collaboration with other Federal agencies, including through multiagency funding opportunities, on regional innovation strategies.

''(B) SMALL BUSINESSES.—The Secretary shall ensure that such collaboration with Federal agencies prioritizes the needs and challenges of small businesses.

''(e) EVALUATION.—

''(1) IN GENERAL.—Not later than 3 years after the date of enactment of the Revitalize American Manufacturing and Innovation Act of 2014, the Secretary shall enter into a contract with an independent entity, such as the National Academy of Sciences, to conduct an evaluation of the program established under subsection (a).

''(2) REQUIREMENTS.—The evaluation shall include—

''(A) whether the program is achieving its goals;

''(B) any recommendations for how the program may be improved; and

''(C) a recommendation as to whether the program should be continued or terminated.

''(f) DEFINITIONS.—In this section:

''(1) REGIONAL INNOVATION CLUSTER.—The term 'regional innovation cluster' means a geographically bounded network of similar, synergistic, or complementary entities that—

''(A) are engaged in or with a particular industry sector and its related sectors;

''(B) have active channels for business transactions and communication;

''(C) share specialized infrastructure, labor markets, and services; and

''(D) leverage the region's unique competitive strengths to stimulate innovation and create jobs.

''(2) STATE.—The term 'State' means one of the several States, the District of Columbia, the Commonwealth of Puerto Rico, the Virgin Islands, Guam, American Samoa, the Commonwealth of the Northern Mariana Islands, or any other territory or possession of the United States.

''(g) FUNDING.—

''(1) GENERAL RULE.—Except as provided in paragraph (2), no funds are authorized to be appropriated by the Revitalize American Manufacturing and Innovation Act of 2014 for carrying out this section.

''(2) AUTHORITY.—To the extent provided for in advance by appropriations Acts, the Secretary may use not to exceed $10,000,000 for each of the fiscal years 2015 through 2019 to carry out this section from amounts appropriated for economic development assistance programs.''.

This division may be cited as the ''Commerce, Justice, Science, and Related Agencies Appropriations Act, 2015''.

DIVISION C—DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2015

TITLE I

MILITARY PERSONNEL

MILITARY PERSONNEL, ARMY

For pay, allowances, individual clothing, subsistence, interest on deposits, gratuities, permanent change of station travel (including all expenses thereof for organizational movements), and expenses of temporary duty travel between permanent duty stations, for members of the Army on active duty (except members of reserve components provided for elsewhere), cadets, and aviation cadets; for members of the Reserve Officers' Training Corps; and for payments pursuant to section 156 of Public Law 97–377, as amended (42 U.S.C. 402 note), and to the Department of Defense Military Retirement Fund, $41,116,129,000.

MILITARY PERSONNEL, NAVY

For pay, allowances, individual clothing, subsistence, interest on deposits, gratuities, permanent change of station travel (including all expenses thereof for organizational movements), and expenses of temporary duty travel between permanent duty stations, for members of the Navy on active duty (except members of the Reserve provided for elsewhere), midshipmen, and aviation cadets; for members of the Reserve Officers' Training Corps; and for payments pursuant to section 156 of Public Law 97–377, as amended (42 U.S.C. 402 note), and to the Department of Defense Military Retirement Fund, $27,453,200,000.

MILITARY PERSONNEL, MARINE CORPS

For pay, allowances, individual clothing, subsistence, interest on deposits, gratuities, permanent change of station travel (including all expenses thereof for organizational movements), and expenses of temporary duty travel between permanent duty stations, for members of the Marine Corps on active duty (except members of the Reserve provided for elsewhere); and for payments pursuant to section 156 of Public Law 97–377, as amended (42 U.S.C. 402 note), and to the Department of Defense Military Retirement Fund, $12,828,931,000.

MILITARY PERSONNEL, AIR FORCE

For pay, allowances, individual clothing, subsistence, interest on deposits, gratuities, permanent change of station travel (including all expenses thereof for organizational movements), and expenses of temporary duty travel between permanent duty stations, for members of the Air Force on active duty (except members of reserve components provided for elsewhere), cadets, and aviation cadets; for members of the Reserve Officers' Training Corps; and for payments pursuant to section 156 of Public Law 97–377, as amended (42 U.S.C. 402 note), and to the Department of Defense Military Retirement Fund, $27,376,462,000.

RESERVE PERSONNEL, ARMY

For pay, allowances, clothing, subsistence, gratuities, travel, and related expenses for personnel of the Army Reserve on active duty under sections 10211, 10302, and 3038 of title 10, United States Code, or while serving on active duty under section 12301(d) of title 10, United States Code, in connection with performing duty specified in section 12310(a) of title 10, United States Code, or while undergoing reserve training, or while performing drills or equivalent duty or other duty, and expenses authorized by section 16131 of title 10, United States Code; and for payments to the Department of Defense Military Retirement Fund, $4,317,859,000.

RESERVE PERSONNEL, NAVY

For pay, allowances, clothing, subsistence, gratuities, travel, and related expenses for personnel of the Navy Reserve on active duty under section 10211 of title 10, United States Code, or while serving on active duty under section 12301(d) of title 10, United States Code, in connection with performing duty specified in section 12310(a) of title 10, United States Code, or while undergoing reserve training, or while performing drills or equivalent duty, and expenses authorized by section 16131 of title 10, United States Code; and for payments to the Department of Defense Military Retirement Fund, $1,835,924,000.

RESERVE PERSONNEL, MARINE CORPS

For pay, allowances, clothing, subsistence, gratuities, travel, and related expenses for personnel of the Marine Corps Reserve on active duty under section 10211 of title 10, United States Code, or while serving on active duty under section 12301(d) of title 10, United States Code, in connection with performing duty specified in section 12310(a) of title 10, United States Code, or while undergoing reserve training, or while performing drills or equivalent duty, and for members of the Marine Corps platoon leaders class, and expenses authorized by section 16131 of title 10, United States Code; and for payments to the Department of Defense Military Retirement Fund, $660,424,000.

RESERVE PERSONNEL, AIR FORCE

For pay, allowances, clothing, subsistence, gratuities, travel, and related expenses for personnel of the Air Force Reserve on active duty under sections 10211, 10305, and 8038 of title 10, United States Code, or while serving on active duty under section 12301(d) of title 10, United States Code, in connection with performing duty specified in section 12310(a) of title 10, United States Code, or while undergoing reserve training, or while performing drills or equivalent duty or other duty, and expenses authorized by section 16131 of title 10, United States Code; and for payments to the Department of Defense Military Retirement Fund, $1,653,148,000.

NATIONAL GUARD PERSONNEL, ARMY

For pay, allowances, clothing, subsistence, gratuities, travel, and related expenses for personnel of the Army National Guard while on duty under sections 10211, 10302, or 12402 of title 10 or section 708 of title 32, United States Code, or while serving on duty under section 12301(d) of title 10 or section 502(f) of title 32, United States Code, in connection with performing duty specified in section 12310(a) of title 10, United States Code, or while undergoing training, or while performing drills or equivalent duty or other duty, and expenses authorized by section 16131 of title 10, United States Code; and for payments to the Department of Defense Military Retirement Fund, $7,643,832,000.

NATIONAL GUARD PERSONNEL, AIR FORCE

For pay, allowances, clothing, subsistence, gratuities, travel, and related expenses for personnel of the Air National Guard on duty under sections 10211, 10305, or 12402 of title 10 or section 708 of title 32, United States Code, or while serving on duty under section 12301(d) of title 10 or section 502(f) of title 32, United States Code, in connection with performing duty specified in section 12310(a) of title 10, United States Code, or while undergoing training, or while performing drills or equivalent duty or other duty, and expenses authorized by section 16131 of title 10, United States Code; and for payments to the Department of Defense Military Retirement Fund, $3,118,709,000.

TITLE II

OPERATION AND MAINTENANCE

OPERATION AND MAINTENANCE, ARMY

For expenses, not otherwise provided for, necessary for the operation and maintenance of the Army, as authorized by law, $31,961,920,000: *Provided*, That not to exceed $12,478,000 can be used for emergencies and extraordinary expenses, to be expended on the approval or authority of the Secretary of the Army, and payments may be made on his certificate of necessity for confidential military purposes.

OPERATION AND MAINTENANCE, NAVY

For expenses, not otherwise provided for, necessary for the operation and maintenance of the Navy and the Marine Corps, as authorized by law, $37,590,854,000: *Provided*, That not to exceed $15,055,000 can be used for emergencies and extraordinary expenses, to be expended on the approval or authority of the Secretary of the Navy, and payments may be made on his certificate of necessity for confidential military purposes.

OPERATION AND MAINTENANCE, MARINE CORPS

For expenses, not otherwise provided for, necessary for the operation and maintenance of the Marine Corps, as authorized by law, $5,610,063,000.

OPERATION AND MAINTENANCE, AIR FORCE

For expenses, not otherwise provided for, necessary for the operation and maintenance of the Air Force, as authorized by law, $34,539,965,000: *Provided*, That not to exceed $7,699,000 can be used for emergencies and extraordinary expenses, to be expended on the approval or authority of the Secretary of the Air Force, and payments may be made on his certificate of necessity for confidential military purposes.

OPERATION AND MAINTENANCE, DEFENSE-WIDE

(INCLUDING TRANSFER OF FUNDS)

For expenses, not otherwise provided for, necessary for the operation and maintenance of activities and agencies of the Department of Defense (other than the military departments), as authorized by law, $30,824,752,000: *Provided*, That not more than $15,000,000 may be used for the Combatant Commander Initiative Fund authorized under section 166a of title 10, United States Code: *Provided further*, That not to exceed $36,000,000 can be used for emergencies and extraordinary expenses, to be expended on the approval or authority of the Secretary of Defense, and payments may be made on his certificate of necessity for confidential military purposes: *Provided further*, That of the funds provided under this heading, not less than $35,045,000 shall be made available for the Procurement Technical Assistance Cooperative Agreement Program, of which not less than $3,600,000 shall be available for centers defined in 10 U.S.C. 2411(1)(D): *Provided further*, That none of the funds appropriated or otherwise made available by this Act may be used to plan or implement the consolidation of a budget or appropriations liaison office of the Office of the Secretary of Defense, the office of the Secretary of a military department, or the service headquarters of one of the Armed Forces into a legislative affairs or legislative liaison office: *Provided further*, That $8,881,000, to remain available until expended, is available only for expenses relating to certain classified activities, and may be transferred as necessary by the Secretary of Defense to operation and maintenance appropriations or research, development, test and evaluation appropriations, to be merged with and to be available for the same time period as the appropriations to which transferred: *Provided further*, That any ceiling on the investment item unit cost of items that may be purchased with operation and maintenance funds shall not apply to the funds described in the preceding proviso: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

OPERATION AND MAINTENANCE, ARMY RESERVE

For expenses, not otherwise provided for, necessary for the operation and maintenance, including training, organization, and administration, of the Army Reserve; repair of facilities and equipment; hire of passenger motor vehicles; travel and transportation; care of the dead; recruiting; procurement of services, supplies, and equipment; and communications, $2,513,393,000.

OPERATION AND MAINTENANCE, NAVY RESERVE

For expenses, not otherwise provided for, necessary for the operation and maintenance, including training, organization, and administration, of the Navy Reserve; repair of facilities and equipment; hire of passenger motor vehicles; travel and transportation; care of the dead; recruiting; procurement of services, supplies, and equipment; and communications, $1,021,200,000.

OPERATION AND MAINTENANCE, MARINE CORPS RESERVE

For expenses, not otherwise provided for, necessary for the operation and maintenance, including training, organization, and administration, of the Marine Corps Reserve; repair of facilities and equipment; hire of passenger motor vehicles; travel and transportation; care of the dead; recruiting; procurement of services, supplies, and equipment; and communications, $270,846,000.

OPERATION AND MAINTENANCE, AIR FORCE RESERVE

For expenses, not otherwise provided for, necessary for the operation and maintenance, including training, organization, and administration, of the Air Force Reserve; repair of facilities and equipment; hire of passenger motor vehicles; travel and transportation; care of the dead; recruiting; procurement of services, supplies, and equipment; and communications, $3,026,342,000.

OPERATION AND MAINTENANCE, ARMY NATIONAL GUARD

For expenses of training, organizing, and administering the Army National Guard, including medical and hospital treatment and related expenses in non-Federal hospitals; maintenance, operation, and repairs to structures and facilities; hire of passenger motor vehicles; personnel services in the National Guard Bureau; travel expenses (other than mileage), as authorized by law for Army personnel on active duty, for Army National Guard division, regimental, and battalion commanders while inspecting units in compliance with National Guard Bureau regulations when specifically authorized by the Chief, National Guard Bureau; supplying and equipping the Army National Guard as authorized by law; and expenses of repair, modification, maintenance, and issue of supplies and equipment (including aircraft), $6,175,951,000.

OPERATION AND MAINTENANCE, AIR NATIONAL GUARD

For expenses of training, organizing, and administering the Air National Guard, including medical and hospital treatment and related expenses in non-Federal hospitals; maintenance, operation, and repairs to structures and facilities; transportation of things, hire of passenger motor vehicles; supplying and equipping the Air National Guard, as authorized by law; expenses for repair, modification, maintenance, and issue of supplies and equipment, including those furnished from stocks under the control of agencies of the Department of Defense; travel expenses (other than mileage) on the same basis as authorized by law for Air National Guard personnel on active Federal duty, for Air National Guard commanders while inspecting units in compliance with National Guard Bureau regulations when specifically authorized by the Chief, National Guard Bureau, $6,408,558,000.

UNITED STATES COURT OF APPEALS FOR THE ARMED FORCES

For salaries and expenses necessary for the United States Court of Appeals for the Armed Forces, $13,723,000, of which not to exceed $5,000 may be used for official representation purposes.

ENVIRONMENTAL RESTORATION, ARMY

(INCLUDING TRANSFER OF FUNDS)

For the Department of the Army, $201,560,000, to remain available until transferred: *Provided*, That the Secretary of the Army shall, upon determining that such funds are required for environmental restoration, reduction and recycling of hazardous waste, removal of unsafe buildings and debris of the Department of the Army, or for similar purposes, transfer the funds made available by this appropriation to other appropriations made available to the Department of the Army, to be merged with and to be available for the same purposes and for the same time period as the appropriations to which transferred: *Provided further*, That upon a determination that all or part of the funds transferred from this appropriation are not necessary for the purposes provided herein, such amounts may be transferred back to this appropriation: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

ENVIRONMENTAL RESTORATION, NAVY

(INCLUDING TRANSFER OF FUNDS)

For the Department of the Navy, $277,294,000, to remain available until transferred: *Provided*, That the Secretary of the Navy shall, upon determining that such funds are required for environmental restoration, reduction and recycling of hazardous waste, removal of unsafe buildings and debris of the Department of the Navy, or for similar purposes, transfer the funds made available by this appropriation to other appropriations made available to the Department of the Navy, to be merged with and to be available for the same purposes and for the same time period as the appropriations to which transferred: *Provided further*, That upon a determination that all or part of the funds transferred from this appropriation are not necessary for the purposes provided herein, such amounts may be transferred back to this appropriation: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

ENVIRONMENTAL RESTORATION, AIR FORCE

(INCLUDING TRANSFER OF FUNDS)

For the Department of the Air Force, $408,716,000, to remain available until transferred: *Provided*, That the Secretary of the Air Force shall, upon determining that such funds are required for environmental restoration, reduction and recycling of hazardous waste, removal of unsafe buildings and debris of the Department of the Air Force, or for similar purposes, transfer the funds made available by this appropriation to other appropriations made available to the Department of the Air Force, to be merged with and to be available for the same purposes and for the same time period as the appropriations to which transferred: *Provided further*, That upon a determination that all or part of the funds transferred from this appropriation are not necessary for the purposes provided herein, such amounts may be transferred back to this appropriation: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

ENVIRONMENTAL RESTORATION, DEFENSE-WIDE

(INCLUDING TRANSFER OF FUNDS)

For the Department of Defense, $8,547,000, to remain available until transferred: *Provided*, That the Secretary of Defense shall, upon determining that such funds are required for environmental restoration, reduction and recycling of hazardous waste, removal of unsafe buildings and debris of the Department of Defense, or for similar purposes, transfer the funds made available by this appropriation to other appropriations made available to the Department of Defense, to be merged with and to be available for the same purposes and for the same time period as the appropriations to which transferred: *Provided further*, That upon a determination that all or part of the funds transferred from this appropriation are not necessary for the purposes provided herein, such amounts may be transferred back to this appropriation: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

ENVIRONMENTAL RESTORATION, FORMERLY USED DEFENSE SITES

(INCLUDING TRANSFER OF FUNDS)

For the Department of the Army, $250,853,000, to remain available until transferred: *Provided*, That the Secretary of the Army shall, upon determining that such funds are required for environmental restoration, reduction and recycling of hazardous waste, removal of unsafe buildings and debris at sites formerly used by the Department of Defense, transfer the funds made available by this appropriation to other appropriations made available to the Department of the Army, to be merged with and to be available for the same purposes and for the same time period as the appropriations to which transferred: *Provided further*, That upon a determination that all or part of the funds transferred from this appropriation are not necessary for the purposes provided herein, such amounts may be transferred back to this appropriation: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

OVERSEAS HUMANITARIAN, DISASTER, AND CIVIC AID

For expenses relating to the Overseas Humanitarian, Disaster, and Civic Aid programs of the Department of Defense (consisting of the programs provided under sections 401, 402, 404, 407, 2557, and 2561 of title 10, United States Code), $103,000,000, to remain available until September 30, 2016.

COOPERATIVE THREAT REDUCTION ACCOUNT

For assistance to the republics of the former Soviet Union and, with appropriate authorization by the Department of Defense and Department of State, to countries outside of the former Soviet Union, including assistance provided by contract or by grants, for facilitating the elimination and the safe and secure transportation and storage of nuclear, chemical and other weapons; for establishing programs to prevent the proliferation of weapons, weapons components, and weapon-related technology and expertise; for programs relating to the training and support of defense and military personnel for demilitarization and protection of weapons, weapons components, and weapons technology and expertise, and for defense and military contacts, $365,108,000, to remain available until September 30, 2017.

DEPARTMENT OF DEFENSE ACQUISITION WORKFORCE DEVELOPMENT FUND

For the Department of Defense Acquisition Workforce Development Fund, $83,034,000.

TITLE III

PROCUREMENT

AIRCRAFT PROCUREMENT, ARMY

For construction, procurement, production, modification, and modernization of aircraft, equipment, including ordnance, ground handling equipment, spare parts, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $5,216,225,000, to remain available for obligation until September 30, 2017.

MISSILE PROCUREMENT, ARMY

For construction, procurement, production, modification, and modernization of missiles, equipment, including ordnance, ground handling equipment, spare parts, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $1,208,692,000, to remain available for obligation until September 30, 2017.

PROCUREMENT OF WEAPONS AND TRACKED COMBAT VEHICLES, ARMY

For construction, procurement, production, and modification of weapons and tracked combat vehicles, equipment, including ordnance, spare parts, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $1,722,136,000, to remain available for obligation until September 30, 2017.

PROCUREMENT OF AMMUNITION, ARMY

For construction, procurement, production, and modification of ammunition, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including ammunition facilities, authorized by section 2854 of title 10, United States Code, and the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $1,015,477,000, to remain available for obligation until September 30, 2017.

OTHER PROCUREMENT, ARMY

For construction, procurement, production, and modification of vehicles, including tactical, support, and non-tracked combat vehicles; the purchase of passenger motor vehicles for replacement only; communications and electronic equipment; other support equipment; spare parts, ordnance, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $4,747,523,000, to remain available for obligation until September 30, 2017.

AIRCRAFT PROCUREMENT, NAVY

For construction, procurement, production, modification, and modernization of aircraft, equipment, including ordnance, spare parts, and accessories therefor; specialized equipment; expansion of public and private plants, including the land necessary therefor, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway, $14,758,035,000, to remain available for obligation until September 30, 2017.

WEAPONS PROCUREMENT, NAVY

For construction, procurement, production, modification, and modernization of missiles, torpedoes, other weapons, and related support equipment including spare parts, and accessories therefor; expansion of public and private plants, including the land necessary therefor, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway, $3,137,257,000, to remain available for obligation until September 30, 2017.

PROCUREMENT OF AMMUNITION, NAVY AND MARINE CORPS

For construction, procurement, production, and modification of ammunition, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including ammunition facilities, authorized by section 2854 of title 10, United States Code, and the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $674,100,000, to remain available for obligation until September 30, 2017.

SHIPBUILDING AND CONVERSION, NAVY

For expenses necessary for the construction, acquisition, or conversion of vessels as authorized by law, including armor and armament thereof, plant equipment, appliances, and machine tools and installation thereof in public and private plants; reserve plant and Government and contractor-owned equipment layaway; procurement of critical, long lead time components and designs for vessels to be constructed or converted in the future; and expansion of public and private plants, including land necessary therefor, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title, as follows:

Carrier Replacement Program, $1,219,425,000;

Virginia Class Submarine, $3,530,254,000;

Virginia Class Submarine (AP), $2,301,825,000;

CVN Refueling Overhauls (AP), $483,600,000;

DDG–1000 Program, $419,532,000;

DDG–51 Destroyer, $2,661,907,000;

DDG–51 Destroyer (AP), $134,039,000;

Littoral Combat Ship, $1,507,049,000;

LPD–17, $1,000,000,000;

LHA Replacement, $29,093,000;

Joint High Speed Vessel, $200,000,000;

Moored Training Ship, $737,268,000;

Moored Training Ship (AP), $64,388,000;

Ship to Shore Connector, $159,600,000;

LCAC Service Life Extension Program, $40,485,000; and

For outfitting, post delivery, conversions, and first destination transportation, $474,629,000.

Completion of Prior Year Shipbuilding Programs, $991,285,000.

In all: $15,954,379,000, to remain available for obligation until September 30, 2019: *Provided*, That additional obligations may be incurred after September 30, 2019, for engineering services, tests, evaluations, and other such budgeted work that must be performed in the final stage of ship construction: *Provided further*, That none of the funds provided under this heading for the construction or conversion of any naval vessel to be constructed in shipyards in the United States shall be expended in foreign facilities for the construction of major components of such vessel: *Provided further*, That none of the funds provided under this heading shall be used for the construction of any naval vessel in foreign shipyards.

OTHER PROCUREMENT, NAVY

For procurement, production, and modernization of support equipment and materials not otherwise provided for, Navy ordnance (except ordnance for new aircraft, new ships, and ships authorized for conversion); the purchase of passenger motor vehicles for replacement only; expansion of public and private plants, including the land necessary therefor, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway, $5,846,558,000, to remain available for obligation until September 30, 2017.

PROCUREMENT, MARINE CORPS

For expenses necessary for the procurement, manufacture, and modification of missiles, armament, military equipment, spare parts, and accessories therefor; plant equipment, appliances, and machine tools, and installation thereof in public and private plants; reserve plant and Government and contractor-owned equipment layaway; vehicles for the Marine Corps, including the purchase of passenger motor vehicles for replacement only; and expansion of public and private plants, including land necessary therefor, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title, $935,209,000, to remain available for obligation until September 30, 2017.

AIRCRAFT PROCUREMENT, AIR FORCE

For construction, procurement, and modification of aircraft and equipment, including armor and armament, specialized ground handling equipment, and training devices, spare parts, and accessories therefor; specialized equipment; expansion of public and private plants, Government-owned equipment and installation thereof in such plants, erection of structures, and acquisition of land, for the foregoing purposes, and such lands and interests therein, may be acquired, and

construction prosecuted thereon prior to approval of title; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes including rents and transportation of things, $12,067,703,000, to remain available for obligation until September 30, 2017.

MISSILE PROCUREMENT, AIR FORCE

For construction, procurement, and modification of missiles, spacecraft, rockets, and related equipment, including spare parts and accessories therefor; ground handling equipment, and training devices; expansion of public and private plants, Government-owned equipment and installation thereof in such plants, erection of structures, and acquisition of land, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes including rents and transportation of things, $4,629,662,000, to remain available for obligation until September 30, 2017.

PROCUREMENT OF AMMUNITION, AIR FORCE

For construction, procurement, production, and modification of ammunition, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including ammunition facilities, authorized by section 2854 of title 10, United States Code, and the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $659,909,000, to remain available for obligation until September 30, 2017.

OTHER PROCUREMENT, AIR FORCE

For procurement and modification of equipment (including ground guidance and electronic control equipment, and ground electronic and communication equipment), and supplies, materials, and spare parts therefor, not otherwise provided for; the purchase of passenger motor vehicles for replacement only; lease of passenger motor vehicles; and expansion of public and private plants, Government-owned equipment and installation thereof in such plants, erection of structures, and acquisition of land, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon, prior to approval of title; reserve plant and Government and contractor-owned equipment layaway, $16,781,266,000, to remain available for obligation until September 30, 2017.

PROCUREMENT, DEFENSE-WIDE

For expenses of activities and agencies of the Department of Defense (other than the military departments) necessary for procurement, production, and modification of equipment, supplies, materials, and spare parts therefor, not otherwise provided for; the purchase of passenger motor vehicles for replacement only; expansion of public and private plants, equipment, and installation thereof in such plants, erection of structures, and acquisition of land for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; reserve plant and Government and contractor-owned equipment layaway, $4,429,303,000, to remain available for obligation until September 30, 2017.

DEFENSE PRODUCTION ACT PURCHASES

For activities by the Department of Defense pursuant to sections 108, 301, 302, and 303 of the Defense Production Act of 1950 (50 U.S.C. App. 2078, 2091, 2092, and 2093), $51,638,000, to remain available until expended.

TITLE IV

RESEARCH, DEVELOPMENT, TEST AND EVALUATION

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, ARMY

For expenses necessary for basic and applied scientific research, development, test and evaluation, including maintenance, rehabilitation, lease, and operation of facilities and equipment, $6,675,565,000, to remain available for obligation until September 30, 2016.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, NAVY

For expenses necessary for basic and applied scientific research, development, test and evaluation, including maintenance, rehabilitation, lease, and operation of facilities and equipment, $15,958,460,000, to remain available for obligation until September 30, 2016: *Provided*, That funds appropriated in this paragraph which are available for the V–22 may be used to meet unique operational requirements of the Special Operations Forces.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, AIR FORCE

For expenses necessary for basic and applied scientific research, development, test and evaluation, including maintenance, rehabilitation, lease, and operation of facilities and equipment, $23,643,983,000, to remain available for obligation until September 30, 2016.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, DEFENSE-WIDE

(INCLUDING TRANSFER OF FUNDS)

For expenses of activities and agencies of the Department of Defense (other than the military departments), necessary for basic and applied scientific research, development, test and evaluation; advanced research projects as may be designated and determined by the Secretary of Defense, pursuant to law; maintenance, rehabilitation, lease, and operation of facilities and equipment, $17,225,889,000, to remain available for obligation until September 30, 2016: *Provided*, That of the funds made available in this paragraph, $225,000,000 for the Defense Rapid Innovation Program shall only be available for expenses, not otherwise provided for, to include program management and oversight, to conduct research, development, test and evaluation to include proof of concept demonstration; engineering, testing, and validation; and transition to full-scale production: *Provided further*, That the Secretary of Defense may transfer funds provided herein for the Defense Rapid Innovation Program to appropriations for research, development, test and evaluation to accomplish the purpose provided herein: *Provided further*, That this transfer authority is in addition to any other transfer authority available to the Department of Defense: *Provided further*, That the Secretary of Defense shall, not fewer than 30 days prior to making transfers from this appropriation, notify the congressional defense committees in writing of the details of any such transfer.

OPERATIONAL TEST AND EVALUATION, DEFENSE

For expenses, not otherwise provided for, necessary for the independent activities of the Director, Operational Test and Evaluation, in the direction and supervision of operational test and evaluation, including initial operational test and evaluation which is conducted prior to, and in support of, production decisions; joint operational testing and evaluation; and administrative expenses in connection therewith, $209,378,000, to remain available for obligation until September 30, 2016.

TITLE V

REVOLVING AND MANAGEMENT FUNDS

DEFENSE WORKING CAPITAL FUNDS

For the Defense Working Capital Funds, $1,649,468,000.

NATIONAL DEFENSE SEALIFT FUND

For National Defense Sealift Fund programs, projects, and activities, and for expenses of the National Defense Reserve Fleet, as established by section 11 of the Merchant Ship Sales Act of 1946 (50 U.S.C. App. 1744), and for the necessary expenses to maintain and preserve a U.S.-flag merchant fleet to serve the national security needs of the United States, $485,012,000, to remain available until expended: *Provided*, That none of the funds provided in this paragraph shall be used to award a new contract that provides for the acquisition of any of the following major components unless such components are manufactured in the United States: auxiliary equipment, including pumps, for all shipboard services; propulsion system components (engines, reduction gears, and propellers); shipboard cranes; and spreaders for shipboard cranes: *Provided further*, That the exercise of an option in a contract awarded through the obligation of previously appropriated funds shall not be considered to be the award of a new contract: *Provided further*, That none of the funds provided in this paragraph shall be used to award a new contract for the construction, acquisition, or conversion of vessels, including procurement of critical, long lead time components and designs for vessels to be constructed or converted in the future: *Provided further*, That the Secretary of the military department responsible for such procurement may waive the restrictions in the first proviso on a case-by-case basis by certifying in writing to the Committees on Appropriations of the House of Representatives and the Senate that adequate domestic supplies are not available to meet Department of Defense requirements on a timely basis and that such an acquisition must be made in order to acquire capability for national security purposes.

TITLE VI

OTHER DEPARTMENT OF DEFENSE PROGRAMS

DEFENSE HEALTH PROGRAM

For expenses, not otherwise provided for, for medical and health care programs of the Department of Defense as authorized by law, $32,069,772,000; of which $30,030,650,000 shall be for operation and maintenance, of which not to exceed one percent shall remain available for obligation until September 30, 2016, and of which up to $14,718,018,000 may be available for contracts entered into under the TRICARE program; of which $308,413,000, to remain available for obligation until September 30, 2017, shall be for procurement; and of which $1,730,709,000, to remain available for obligation until September 30, 2016, shall be for research, development, test and evaluation: *Provided*, That, notwithstanding any other provision of law, of the amount made available under this heading for research, development, test and evaluation, not less than $8,000,000 shall be available for HIV prevention educational activities undertaken in connection with United States military training, exercises, and humanitarian assistance activities conducted primarily in African nations: *Provided further*, That of the

funds provided under this heading for operation and maintenance, procurement, and research, development, test and evaluation for the Interagency Program Office, the Defense Healthcare Management Systems Modernization (DHMSM) program, and the Defense Medical Information Exchange, not more than 25 percent may be obligated until the Secretary of Defense submits to the Government Accountability Office and the Committees on Appropriations of the House of Representatives and the Senate, and such Committees approve, a plan for expenditure that describes: (1) the status of the final request for proposal for DHMSM and how the program office used comments received from industry from draft requests for proposal to refine the final request for proposal; (2) any changes to the deployment timeline, including benchmarks, for full operating capability; (3) any refinements to the cost estimate for full operating capability and the total life cycle cost of the project; (4) an assurance that the acquisition strategy will comply with the acquisition rules, requirements, guidelines, and systems acquisition management practices of the Federal Government; (5) the status of the effort to achieve interoperability between the electronic health record systems of the Department of Defense and the Department of Veterans Affairs, including the scope, cost, schedule, mapping to health data standards, and performance benchmarks of the interoperable record; and (6) the progress toward developing, implementing, and fielding the interoperable electronic health record throughout the two Departments' medical facilities.

CHEMICAL AGENTS AND MUNITIONS DESTRUCTION, DEFENSE

For expenses, not otherwise provided for, necessary for the destruction of the United States stockpile of lethal chemical agents and munitions in accordance with the provisions of section 1412 of the Department of Defense Authorization Act, 1986 (50 U.S.C. 1521), and for the destruction of other chemical warfare materials that are not in the chemical weapon stockpile, $802,268,000, of which $196,128,000 shall be for operation and maintenance, of which no less than $52,102,000 shall be for the Chemical Stockpile Emergency Preparedness Program, consisting of $21,016,000 for activities on military installations and $31,086,000, to remain available until September 30, 2016, to assist State and local governments; $10,227,000 shall be for procurement, to remain available until September 30, 2017, of which $3,225,000 shall be for the Chemical Stockpile Emergency Preparedness Program to assist State and local governments; and $595,913,000, to remain available until September 30, 2016, shall be for research, development, test and evaluation, of which $575,808,000 shall only be for the Assembled Chemical Weapons Alternatives program.

DRUG INTERDICTION AND COUNTER-DRUG ACTIVITIES, DEFENSE

(INCLUDING TRANSFER OF FUNDS)

For drug interdiction and counter-drug activities of the Department of Defense, for transfer to appropriations available to the Department of Defense for military personnel of the reserve components serving under the provisions of title 10 and title 32, United States Code; for operation and maintenance; for procurement; and for research, development, test and evaluation, $950,687,000, of which $669,631,000 shall be for counter-narcotics support; $105,591,000 shall be for the drug demand reduction program; and $175,465,000 shall be for the National Guard counter-drug program: *Provided*, That the funds appropriated under this heading shall be available for obligation for the same time period and for the same purpose as the appropriation to which transferred: *Provided further*, That upon a determination that all or part of the funds transferred from this appropriation are not necessary for the purposes provided herein, such amounts may be transferred back to this appropriation: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority contained elsewhere in this Act.

OFFICE OF THE INSPECTOR GENERAL

For expenses and activities of the Office of the Inspector General in carrying out the provisions of the Inspector General Act of 1978, as amended, $311,830,000, of which $309,430,000 shall be for operation and maintenance, of which not to exceed $700,000 is available for emergencies and extraordinary expenses to be expended on the approval or authority of the Inspector General, and payments may be made on the Inspector General's certificate of necessity for confidential military purposes; of which $1,000,000, to remain available until September 30, 2017, shall be for procurement; and of which $1,400,000, to remain available until September 30, 2016, shall be for research, development, test and evaluation.

SUPPORT FOR INTERNATIONAL SPORTING COMPETITIONS

For logistical and security support for international sporting competitions (including pay and non-travel related allowances only for members of the Reserve Components of the Armed Forces of the United States called or ordered to active duty in connection with providing such support), $10,000,000, to remain available until expended.

TITLE VII

RELATED AGENCIES

CENTRAL INTELLIGENCE AGENCY RETIREMENT AND DISABILITY SYSTEM FUND

For payment to the Central Intelligence Agency Retirement and Disability System Fund, to maintain the proper funding level for continuing the operation of the Central Intelligence Agency Retirement and Disability System, $514,000,000.

INTELLIGENCE COMMUNITY MANAGEMENT ACCOUNT

For necessary expenses of the Intelligence Community Management Account, $507,600,000.

TITLE VIII

GENERAL PROVISIONS

SEC. 8001. No part of any appropriation contained in this Act shall be used for publicity or propaganda purposes not authorized by the Congress.

SEC. 8002. During the current fiscal year, provisions of law prohibiting the payment of compensation to, or employment of, any person not a citizen of the United States shall not apply to personnel of the Department of Defense: *Provided*, That salary increases granted to direct and indirect hire foreign national employees of the Department of Defense funded by this Act shall not be at a rate in excess of the percentage increase authorized by law for civilian employees of the Department of Defense whose pay is computed under the provisions of section 5332 of title 5, United States Code, or at a rate in excess of the percentage increase provided by the appropriate host nation to its own employees, whichever is higher: *Provided further*, That this section shall not apply to Department of Defense foreign service national employees serving at United States diplomatic missions whose pay is set by the Department of State under the Foreign Service Act of 1980: *Provided further*, That the limitations of this provision shall not apply to foreign national employees of the Department of Defense in the Republic of Turkey.

SEC. 8003. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year, unless expressly so provided herein.

SEC. 8004. No more than 20 percent of the appropriations in this Act which are limited for obligation during the current fiscal year shall be obligated during the last 2 months of the fiscal year: *Provided*, That this section shall not apply to obligations for support of active duty training of reserve components or summer camp training of the Reserve Officers' Training Corps.

(TRANSFER OF FUNDS)

SEC. 8005. Upon determination by the Secretary of Defense that such action is necessary in the national interest, he may, with the approval of the Office of Management and Budget, transfer not to exceed $4,500,000,000 of working capital funds of the Department of Defense or funds made available in this Act to the Department of Defense for military functions (except military construction) between such appropriations or funds or any subdivision thereof, to be merged with and to be available for the same purposes, and for the same time period, as the appropriation or fund to which transferred: *Provided*, That such authority to transfer may not be used unless for higher priority items, based on unforeseen military requirements, than those for which originally appropriated and in no case where the item for which funds are requested has been denied by the Congress: *Provided further*, That the Secretary of Defense shall notify the Congress promptly of all transfers made pursuant to this authority or any other authority in this Act: *Provided further*, That no part of the funds in this Act shall be available to prepare or present a request to the Committees on Appropriations for reprogramming of funds, unless for higher priority items, based on unforeseen military requirements, than those for which originally appropriated and in no case where the item for which reprogramming is requested has been denied by the Congress: *Provided further*, That a request for multiple reprogrammings of funds using authority provided in this section shall be made prior to June 30, 2015: *Provided further*, That transfers among military personnel appropriations shall not be taken into account for purposes of the limitation on the amount of funds that may be transferred under this section.

SEC. 8006. (a) With regard to the list of specific programs, projects, and activities (and the dollar amounts and adjustments to budget activities corresponding to such programs, projects, and activities) contained in the tables titled ''Explanation of Project Level Adjustments'' in the explanatory statement regarding this Act, the obligation and expenditure of amounts appropriated or otherwise made available in this Act for those programs, projects, and activities for which the amounts appropriated exceed the amounts requested are hereby required by law to be carried out in the manner provided by such tables to the same extent as if the tables were included in the text of this Act.

(b) Amounts specified in the referenced tables described in subsection (a) shall not be treated as subdivisions of appropriations for purposes of section 8005 of this Act: *Provided*, That section 8005 shall apply when transfers of the amounts described in subsection (a) occur between appropriation accounts.

SEC. 8007. (a) Not later than 60 days after enactment of this Act, the Department of Defense shall submit a report to the congressional defense committees to establish the

baseline for application of reprogramming and transfer authorities for fiscal year 2015: *Provided*, That the report shall include—

(1) a table for each appropriation with a separate column to display the President's budget request, adjustments made by Congress, adjustments due to enacted rescissions, if appropriate, and the fiscal year enacted level;

(2) a delineation in the table for each appropriation both by budget activity and program, project, and activity as detailed in the Budget Appendix; and

(3) an identification of items of special congressional interest.

(b) Notwithstanding section 8005 of this Act, none of the funds provided in this Act shall be available for reprogramming or transfer until the report identified in subsection (a) is submitted to the congressional defense committees, unless the Secretary of Defense certifies in writing to the congressional defense committees that such reprogramming or transfer is necessary as an emergency requirement.

(TRANSFER OF FUNDS)

SEC. 8008. During the current fiscal year, cash balances in working capital funds of the Department of Defense established pursuant to section 2208 of title 10, United States Code, may be maintained in only such amounts as are necessary at any time for cash disbursements to be made from such funds: *Provided*, That transfers may be made between such funds: *Provided further*, That transfers may be made between working capital funds and the ''Foreign Currency Fluctuations, Defense'' appropriation and the ''Operation and Maintenance'' appropriation accounts in such amounts as may be determined by the Secretary of Defense, with the approval of the Office of Management and Budget, except that such transfers may not be made unless the Secretary of Defense has notified the Congress of the proposed transfer. Except in amounts equal to the amounts appropriated to working capital funds in this Act, no obligations may be made against a working capital fund to procure or increase the value of war reserve material inventory, unless the Secretary of Defense has notified the Congress prior to any such obligation.

SEC. 8009. Funds appropriated by this Act may not be used to initiate a special access program without prior notification 30 calendar days in advance to the congressional defense committees.

SEC. 8010. None of the funds provided in this Act shall be available to initiate: (1) a multiyear contract that employs economic order quantity procurement in excess of $20,000,000 in any one year of the contract or that includes an unfunded contingent liability in excess of $20,000,000; or (2) a contract for advance procurement leading to a multiyear contract that employs economic order quantity procurement in excess of $20,000,000 in any one year, unless the congressional defense committees have been notified at least 30 days in advance of the proposed contract award: *Provided*, That no part of any appropriation contained in this Act shall be available to initiate a multiyear contract for which the economic order quantity advance procurement is not funded at least to the limits of the Government's liability: *Provided further*, That no part of any appropriation contained in this Act shall be available to initiate multiyear procurement contracts for any systems or component thereof if the value of the multiyear contract would exceed $500,000,000 unless specifically provided in this Act: *Provided further*, That no multiyear procurement contract can be terminated without 30-day prior notification to the congressional defense committees: *Provided further*, That the execution of multiyear authority shall require the use of a present value analysis to determine lowest cost compared to an annual procurement: *Provided further*, That none of the funds provided in this Act may be used for a multiyear contract executed after the date of the enactment of this Act unless in the case of any such contract—

(1) the Secretary of Defense has submitted to Congress a budget request for full funding of units to be procured through the contract and, in the case of a contract for procurement of aircraft, that includes, for any aircraft unit to be procured through the contract for which procurement funds are requested in that budget request for production beyond advance procurement activities in the fiscal year covered by the budget, full funding of procurement of such unit in that fiscal year;

(2) cancellation provisions in the contract do not include consideration of recurring manufacturing costs of the contractor associated with the production of unfunded units to be delivered under the contract;

(3) the contract provides that payments to the contractor under the contract shall not be made in advance of incurred costs on funded units; and

(4) the contract does not provide for a price adjustment based on a failure to award a follow-on contract.

SEC. 8011. Within the funds appropriated for the operation and maintenance of the Armed Forces, funds are hereby appropriated pursuant to section 401 of title 10, United States Code, for humanitarian and civic assistance costs under chapter 20 of title 10, United States Code. Such funds may also be obligated for humanitarian and civic assistance costs incidental to authorized operations and pursuant to authority granted in section 401 of chapter 20 of title 10, United States Code, and these obligations shall be reported as required by section 401(d) of title 10, United States Code: *Provided*, That funds available for operation and maintenance shall be available for providing humanitarian and similar assistance by using Civic Action Teams in the Trust Territories of the Pacific Islands and freely associated states of Micronesia, pursuant to the Compact of Free Association as authorized by Public Law 99–239: *Provided further*, That upon a determination by the Secretary of the Army that such action is beneficial for graduate medical education programs conducted at Army medical facilities located in Hawaii, the Secretary of the Army may authorize the provision of medical services at such facilities and transportation to such facilities, on a nonreimbursable basis, for civilian patients from American Samoa, the Commonwealth of the Northern Mariana Islands, the Marshall Islands, the Federated States of Micronesia, Palau, and Guam.

SEC. 8012. (a) During fiscal year 2015, the civilian personnel of the Department of Defense may not be managed on the basis of any end-strength, and the management of such personnel during that fiscal year shall not be subject to any constraint or limitation (known as an end-strength) on the number of such personnel who may be employed on the last day of such fiscal year.

(b) The fiscal year 2016 budget request for the Department of Defense as well as all justification material and other documentation supporting the fiscal year 2016 Department of Defense budget request shall be prepared and submitted to the Congress as if subsections (a) and (b) of this provision were effective with regard to fiscal year 2016.

(c) As required by section 1107 of the National Defense Authorization Act for Fiscal Year 2014 (Public Law 113–66; 10 U.S.C. 2358 note) civilian personnel at the Department of Army Science and Technology Reinvention Laboratories may not be managed on the basis of the Table of Distribution and Allowances, and the management of the workforce strength shall be done in a manner consistent with the budget available with respect to such Laboratories.

(d) Nothing in this section shall be construed to apply to military (civilian) technicians.

SEC. 8013. None of the funds made available by this Act shall be used in any way, directly or indirectly, to influence congressional action on any legislation or appropriation matters pending before the Congress.

SEC. 8014. None of the funds appropriated by this Act shall be available for the basic pay and allowances of any member of the Army participating as a full-time student and receiving benefits paid by the Secretary of Veterans Affairs from the Department of Defense Education Benefits Fund when time spent as a full-time student is credited toward completion of a service commitment: *Provided*, That this section shall not apply to those members who have reenlisted with this option prior to October 1, 1987: *Provided further*, That this section applies only to active components of the Army.

(TRANSFER OF FUNDS)

SEC. 8015. Funds appropriated in title III of this Act for the Department of Defense Pilot Mentor-Protégé Program may be transferred to any other appropriation contained in this Act solely for the purpose of implementing a Mentor-Protégé Program developmental assistance agreement pursuant to section 831 of the National Defense Authorization Act for Fiscal Year 1991 (Public Law 101–510; 10 U.S.C. 2302 note), as amended, under the authority of this provision or any other transfer authority contained in this Act.

SEC. 8016. None of the funds in this Act may be available for the purchase by the Department of Defense (and its departments and agencies) of welded shipboard anchor and mooring chain 4 inches in diameter and under unless the anchor and mooring chain are manufactured in the United States from components which are substantially manufactured in the United States: *Provided*, That for the purpose of this section, the term ''manufactured'' shall include cutting, heat treating, quality control, testing of chain and welding (including the forging and shot blasting process): *Provided further*, That for the purpose of this section substantially all of the components of anchor and mooring chain shall be considered to be produced or manufactured in the United States if the aggregate cost of the components produced or manufactured in the United States exceeds the aggregate cost of the components produced or manufactured outside the United States: *Provided further*, That when adequate domestic supplies are not available to meet Department of Defense requirements on a timely basis, the Secretary of the service responsible for the procurement may waive this restriction on a case-by-case basis by certifying in writing to the Committees on Appropriations that such an acquisition must be made in order to acquire capability for national security purposes.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8017. In addition to amounts provided elsewhere in this Act, there is appropriated $175,000,000, for an additional amount for ''Operation and Maintenance, Defense-Wide'', to remain available until expended: *Provided*, That such funds shall only be available to the Secretary of Defense, acting through the Office of Economic Adjustment of the Department of Defense, or for transfer to the Secretary of Education, notwithstanding any other provision of law, to make grants, conclude cooperative agreements, or supplement other Federal funds to construct,

renovate, repair, or expand elementary and secondary public schools on military installations in order to address capacity or facility condition deficiencies at such schools: *Provided further*, That in making such funds available, the Office of Economic Adjustment or the Secretary of Education shall give priority consideration to those military installations with schools having the most serious capacity or facility condition deficiencies as determined by the Secretary of Defense: *Provided further*, That a matching share, as outlined by the Department of Defense in the guidelines published in the September 9, 2011, Federal Register (76 Fed. Reg. 55883), is required to be provided by the local education authority or the State in which the school is located: *Provided further*, That these provisions apply to funds provided under this section, and to funds previously provided by Congress to construct, renovate, repair, or expand elementary and secondary public schools on military installations in order to address capacity or facility condition deficiencies at such schools to the extent such funds remain unobligated on the date of enactment of this section.

SEC. 8018. None of the funds available to the Department of Defense may be used to demilitarize or dispose of M–1 Carbines, M–1 Garand rifles, M–14 rifles, .22 caliber rifles, .30 caliber rifles, or M–1911 pistols, or to demilitarize or destroy small arms ammunition or ammunition components that are not otherwise prohibited from commercial sale under Federal law, unless the small arms ammunition or ammunition components are certified by the Secretary of the Army or designee as unserviceable, unsuitable, or unsafe for further use.

SEC. 8019. No more than $500,000 of the funds appropriated or made available in this Act shall be used during a single fiscal year for any single relocation of an organization, unit, activity or function of the Department of Defense into or within the National Capital Region: *Provided*, That the Secretary of Defense may waive this restriction on a case-by-case basis by certifying in writing to the congressional defense committees that such a relocation is required in the best interest of the Government.

SEC. 8020. Of the funds made available in this Act, $15,000,000 shall be available for incentive payments authorized by section 504 of the Indian Financing Act of 1974 (25 U.S.C. 1544): *Provided*, That a prime contractor or a subcontractor at any tier that makes a subcontract award to any subcontractor or supplier as defined in section 1544 of title 25, United States Code, or a small business owned and controlled by an individual or individuals defined under section 4221(9) of title 25, United States Code, shall be considered a contractor for the purposes of being allowed additional compensation under section 504 of the Indian Financing Act of 1974 (25 U.S.C. 1544) whenever the prime contract or subcontract amount is over $500,000 and involves the expenditure of funds appropriated by an Act making appropriations for the Department of Defense with respect to any fiscal year: *Provided further*, That notwithstanding section 1906 of title 41, United States Code, this section shall be applicable to any Department of Defense acquisition of supplies or services, including any contract and any subcontract at any tier for acquisition of commercial items produced or manufactured, in whole or in part, by any subcontractor or supplier defined in section 1544 of title 25, United States Code, or a small business owned and controlled by an individual or individuals defined under section 4221(9) of title 25, United States Code.

SEC. 8021. Funds appropriated by this Act for the Defense Media Activity shall not be used for any national or international political or psychological activities.

SEC. 8022. During the current fiscal year, the Department of Defense is authorized to incur obligations of not to exceed $350,000,000 for purposes specified in section 2350j(c) of title 10, United States Code, in anticipation of receipt of contributions, only from the Government of Kuwait, under that section: *Provided*, That upon receipt, such contributions from the Government of Kuwait shall be credited to the appropriations or fund which incurred such obligations.

SEC. 8023. (a) Of the funds made available in this Act, not less than $39,500,000 shall be available for the Civil Air Patrol Corporation, of which—

(1) $27,400,000 shall be available from ''Operation and Maintenance, Air Force'' to support Civil Air Patrol Corporation operation and maintenance, readiness, counter-drug activities, and drug demand reduction activities involving youth programs;

(2) $10,400,000 shall be available from ''Aircraft Procurement, Air Force''; and

(3) $1,700,000 shall be available from ''Other Procurement, Air Force'' for vehicle procurement.

(b) The Secretary of the Air Force should waive reimbursement for any funds used by the Civil Air Patrol for counter-drug activities in support of Federal, State, and local government agencies.

SEC. 8024. (a) None of the funds appropriated in this Act are available to establish a new Department of Defense (department) federally funded research and development center (FFRDC), either as a new entity, or as a separate entity administrated by an organization managing another FFRDC, or as a nonprofit membership corporation consisting of a consortium of other FFRDCs and other nonprofit entities.

(b) No member of a Board of Directors, Trustees, Overseers, Advisory Group, Special Issues Panel, Visiting Committee, or any similar entity of a defense FFRDC, and no paid consultant to any defense FFRDC, except when acting in a technical advisory capacity, may be compensated for his or her services as a member of such entity, or as a paid consultant by more than one FFRDC in a fiscal year: *Provided*, That a member of any such entity referred to previously in this subsection shall be allowed travel expenses and per diem as authorized under the Federal Joint Travel Regulations, when engaged in the performance of membership duties.

(c) Notwithstanding any other provision of law, none of the funds available to the department from any source during fiscal year 2015 may be used by a defense FFRDC, through a fee or other payment mechanism, for construction of new buildings, for payment of cost sharing for projects funded by Government grants, for absorption of contract overruns, or for certain charitable contributions, not to include employee participation in community service and/or development.

(d) Notwithstanding any other provision of law, of the funds available to the department during fiscal year 2015, not more than 5,750 staff years of technical effort (staff years) may be funded for defense FFRDCs: *Provided*, That of the specific amount referred to previously in this subsection, not more than 1,125 staff years may be funded for the defense studies and analysis FFRDCs: *Provided further*, That this subsection shall not apply to staff years funded in the National Intelligence Program (NIP) and the Military Intelligence Program (MIP).

(e) The Secretary of Defense shall, with the submission of the department's fiscal year 2016 budget request, submit a report presenting the specific amounts of staff years of technical effort to be allocated for each defense FFRDC during that fiscal year and the associated budget estimates.

(f) Notwithstanding any other provision of this Act, the total amount appropriated in this Act for FFRDCs is hereby reduced by $40,000,000.

SEC. 8025. None of the funds appropriated or made available in this Act shall be used to procure carbon, alloy, or armor steel plate for use in any Government-owned facility or property under the control of the Department of Defense which were not melted and rolled in the United States or Canada: *Provided*, That these procurement restrictions shall apply to any and all Federal Supply Class 9515, American Society of Testing and Materials (ASTM) or American Iron and Steel Institute (AISI) specifications of carbon, alloy or armor steel plate: *Provided further*, That the Secretary of the military department responsible for the procurement may waive this restriction on a case-by-case basis by certifying in writing to the Committees on Appropriations of the House of Representatives and the Senate that adequate domestic supplies are not available to meet Department of Defense requirements on a timely basis and that such an acquisition must be made in order to acquire capability for national security purposes: *Provided further*, That these restrictions shall not apply to contracts which are in being as of the date of the enactment of this Act.

SEC. 8026. For the purposes of this Act, the term ''congressional defense committees'' means the Armed Services Committee of the House of Representatives, the Armed Services Committee of the Senate, the Subcommittee on Defense of the Committee on Appropriations of the Senate, and the Subcommittee on Defense of the Committee on Appropriations of the House of Representatives.

SEC. 8027. During the current fiscal year, the Department of Defense may acquire the modification, depot maintenance and repair of aircraft, vehicles and vessels as well as the production of components and other Defense-related articles, through competition between Department of Defense depot maintenance activities and private firms: *Provided*, That the Senior Acquisition Executive of the military department or Defense Agency concerned, with power of delegation, shall certify that successful bids include comparable estimates of all direct and indirect costs for both public and private bids: *Provided further*, That Office of Management and Budget Circular A–76 shall not apply to competitions conducted under this section.

SEC. 8028. (a)(1) If the Secretary of Defense, after consultation with the United States Trade Representative, determines that a foreign country which is party to an agreement described in paragraph (2) has violated the terms of the agreement by discriminating against certain types of products produced in the United States that are covered by the agreement, the Secretary of Defense shall rescind the Secretary's blanket waiver of the Buy American Act with respect to such types of products produced in that foreign country.

(2) An agreement referred to in paragraph (1) is any reciprocal defense procurement memorandum of understanding, between the United States and a foreign country pursuant to which the Secretary of Defense has prospectively waived the Buy American Act for certain products in that country.

(b) The Secretary of Defense shall submit to the Congress a report on the amount of Department of Defense purchases from foreign entities in fiscal year 2015. Such report shall separately indicate the dollar value of items for which the Buy American Act was waived pursuant to any agreement described in subsection (a)(2), the Trade Agreement Act of 1979 (19 U.S.C. 2501 et seq.), or any international agreement to which the United States is a party.

(c) For purposes of this section, the term ''Buy American Act'' means chapter 83 of title 41, United States Code.

SEC. 8029. During the current fiscal year, amounts contained in the Department of Defense Overseas Military Facility Investment Recovery Account established by section 2921(c)(1) of the National Defense Authorization Act of 1991 (Public Law 101–510; 10 U.S.C. 2687 note) shall be available until expended for the payments specified by section 2921(c)(2) of that Act.

SEC. 8030. (a) Notwithstanding any other provision of law, the Secretary of the Air Force may convey at no cost to the Air Force, without consideration, to Indian tribes located in the States of Nevada, Idaho, North Dakota, South Dakota, Montana, Oregon, Minnesota, and Washington relocatable military housing units located at Grand Forks Air Force Base, Malmstrom Air Force Base, Mountain Home Air Force Base, Ellsworth Air Force Base, and Minot Air Force Base that are excess to the needs of the Air Force.

(b) The Secretary of the Air Force shall convey, at no cost to the Air Force, military housing units under subsection (a) in accordance with the request for such units that are submitted to the Secretary by the Operation Walking Shield Program on behalf of Indian tribes located in the States of Nevada, Idaho, North Dakota, South Dakota, Montana, Oregon, Minnesota, and Washington. Any such conveyance shall be subject to the condition that the housing units shall be removed within a reasonable period of time, as determined by the Secretary.

(c) The Operation Walking Shield Program shall resolve any conflicts among requests of Indian tribes for housing units under subsection (a) before submitting requests to the Secretary of the Air Force under subsection (b).

(d) In this section, the term ''Indian tribe'' means any recognized Indian tribe included on the current list published by the Secretary of the Interior under section 104 of the Federally Recognized Indian Tribe Act of 1994 (Public Law 103–454; 108 Stat. 4792; 25 U.S.C. 479a–1).

SEC. 8031. During the current fiscal year, appropriations which are available to the Department of Defense for operation and maintenance may be used to purchase items having an investment item unit cost of not more than $250,000.

SEC. 8032. (a) During the current fiscal year, none of the appropriations or funds available to the Department of Defense Working Capital Funds shall be used for the purchase of an investment item for the purpose of acquiring a new inventory item for sale or anticipated sale during the current fiscal year or a subsequent fiscal year to customers of the Department of Defense Working Capital Funds if such an item would not have been chargeable to the Department of Defense Business Operations Fund during fiscal year 1994 and if the purchase of such an investment item would be chargeable during the current fiscal year to appropriations made to the Department of Defense for procurement.

(b) The fiscal year 2016 budget request for the Department of Defense as well as all justification material and other documentation supporting the fiscal year 2016 Department of Defense budget shall be prepared and submitted to the Congress on the basis that any equipment which was classified as an end item and funded in a procurement appropriation contained in this Act shall be budgeted for in a proposed fiscal year 2016 procurement appropriation and not in the supply management business area or any other area or category of the Department of Defense Working Capital Funds.

SEC. 8033. None of the funds appropriated by this Act for programs of the Central Intelligence Agency shall remain available for obligation beyond the current fiscal year, except for funds appropriated for the Reserve for Contingencies, which shall remain available until September 30, 2016: *Provided*, That funds appropriated, transferred, or otherwise credited to the Central Intelligence Agency Central Services Working Capital Fund during this or any prior or subsequent fiscal year shall remain available until expended: *Provided further*, That any funds appropriated or transferred to the Central Intelligence Agency for advanced research and development acquisition, for agent operations, and for covert action programs authorized by the President under section 503 of the National Security Act of 1947 (50 U.S.C. 3093) shall remain available until September 30, 2016.

SEC. 8034. Notwithstanding any other provision of law, funds made available in this Act for the Defense Intelligence Agency may be used for the design, development, and deployment of General Defense Intelligence Program intelligence communications and intelligence information systems for the Services, the Unified and Specified Commands, and the component commands.

SEC. 8035. Of the funds appropriated to the Department of Defense under the heading ''Operation and Maintenance, Defense-Wide'', not less than $12,000,000 shall be made available only for the mitigation of environmental impacts, including training and technical assistance to tribes, related administrative support, the gathering of information, documenting of environmental damage, and developing a system for prioritization of mitigation and cost to complete estimates for mitigation, on Indian lands resulting from Department of Defense activities.

SEC. 8036. (a) None of the funds appropriated in this Act may be expended by an entity of the Department of Defense unless the entity, in expending the funds, complies with the Buy American Act. For purposes of this subsection, the term ''Buy American Act'' means chapter 83 of title 41, United States Code.

(b) If the Secretary of Defense determines that a person has been convicted of intentionally affixing a label bearing a ''Made in America'' inscription to any product sold in or shipped to the United States that is not made in America, the Secretary shall determine, in accordance with section 2410f of title 10, United States Code, whether the person should be debarred from contracting with the Department of Defense.

(c) In the case of any equipment or products purchased with appropriations provided under this Act, it is the sense of the Congress that any entity of the Department of Defense, in expending the appropriation, purchase only American-made equipment and products, provided that American-made equipment and products are cost-competitive, quality competitive, and available in a timely fashion.

SEC. 8037. None of the funds appropriated by this Act shall be available for a contract for studies, analysis, or consulting services entered into without competition on the basis of an unsolicited proposal unless the head of the activity responsible for the procurement determines—

(1) as a result of thorough technical evaluation, only one source is found fully qualified to perform the proposed work;

(2) the purpose of the contract is to explore an unsolicited proposal which offers significant scientific or technological promise, represents the product of original thinking, and was submitted in confidence by one source; or

(3) the purpose of the contract is to take advantage of unique and significant industrial accomplishment by a specific concern, or to insure that a new product or idea of a specific concern is given financial support: *Provided*, That this limitation shall not apply to contracts in an amount of less than $25,000, contracts related to improvements of equipment that is in development or production, or contracts as to which a civilian official of the Department of Defense, who has been confirmed by the Senate, determines that the award of such contract is in the interest of the national defense.

SEC. 8038. (a) Except as provided in subsections (b) and (c), none of the funds made available by this Act may be used—

(1) to establish a field operating agency; or

(2) to pay the basic pay of a member of the Armed Forces or civilian employee of the department who is transferred or reassigned from a headquarters activity if the member or employee's place of duty remains at the location of that headquarters.

(b) The Secretary of Defense or Secretary of a military department may waive the limitations in subsection (a), on a case-by-case basis, if the Secretary determines, and certifies to the Committees on Appropriations of the House of Representatives and the Senate that the granting of the waiver will reduce the personnel requirements or the financial requirements of the department.

(c) This section does not apply to—

(1) field operating agencies funded within the National Intelligence Program;

(2) an Army field operating agency established to eliminate, mitigate, or counter the effects of improvised explosive devices, and, as determined by the Secretary of the Army, other similar threats;

(3) an Army field operating agency established to improve the effectiveness and efficiencies of biometric activities and to integrate common biometric technologies throughout the Department of Defense; or

(4) an Air Force field operating agency established to administer the Air Force Mortuary Affairs Program and Mortuary Operations for the Department of Defense and authorized Federal entities.

SEC. 8039. (a) None of the funds appropriated by this Act shall be available to convert to contractor performance an activity or function of the Department of Defense that, on or after the date of the enactment of this Act, is performed by Department of Defense civilian employees unless—

(1) the conversion is based on the result of a public-private competition that includes a most efficient and cost effective organization plan developed by such activity or function;

(2) the Competitive Sourcing Official determines that, over all performance periods stated in the solicitation of offers for performance of the activity or function, the cost of performance of the activity or function by a contractor would be less costly to the Department of Defense by an amount that equals or exceeds the lesser of—

(A) 10 percent of the most efficient organization's personnel-related costs for performance of that activity or function by Federal employees; or

(B) $10,000,000; and

(3) the contractor does not receive an advantage for a proposal that would reduce costs for the Department of Defense by—

(A) not making an employer-sponsored health insurance plan available to the workers who are to be employed in the performance of that activity or function under the contract; or

(B) offering to such workers an employer-sponsored health benefits plan that requires the employer to contribute less towards the premium or subscription share than the amount that is paid by the Department of

Defense for health benefits for civilian employees under chapter 89 of title 5, United States Code.

(b)(1) The Department of Defense, without regard to subsection (a) of this section or subsection (a), (b), or (c) of section 2461 of title 10, United States Code, and notwithstanding any administrative regulation, requirement, or policy to the contrary shall have full authority to enter into a contract for the performance of any commercial or industrial type function of the Department of Defense that—

(A) is included on the procurement list established pursuant to section 2 of the Javits-Wagner-O'Day Act (section 8503 of title 41, United States Code);

(B) is planned to be converted to performance by a qualified nonprofit agency for the blind or by a qualified nonprofit agency for other severely handicapped individuals in accordance with that Act; or

(C) is planned to be converted to performance by a qualified firm under at least 51 percent ownership by an Indian tribe, as defined in section 4(e) of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 450b(e)), or a Native Hawaiian Organization, as defined in section 8(a)(15) of the Small Business Act (15 U.S.C. 637(a)(15)).

(2) This section shall not apply to depot contracts or contracts for depot maintenance as provided in sections 2469 and 2474 of title 10, United States Code.

(c) The conversion of any activity or function of the Department of Defense under the authority provided by this section shall be credited toward any competitive or outsourcing goal, target, or measurement that may be established by statute, regulation, or policy and is deemed to be awarded under the authority of, and in compliance with, subsection (h) of section 2304 of title 10, United States Code, for the competition or outsourcing of commercial activities.

(RESCISSIONS)

SEC. 8040. Of the funds appropriated in Department of Defense Appropriations Acts, the following funds are hereby rescinded from the following accounts and programs in the specified amounts: *Provided*, That no amounts may be rescinded from amounts that were designated by the Congress for Overseas Contingency Operations/Global War on Terrorism or as an emergency requirement pursuant to the Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985, as amended:

''Aircraft Procurement, Army'', 2013/2015, $18,242,000;

''Weapons and Tracked Combat Vehicles, Army'', 2013/2015, $5,000,000;

''Other Procurement, Army'', 2013/2015, $97,000,000;

''Aircraft Procurement, Navy'', 2013/2015, $47,200,000;

''Procurement, Marine Corps'', 2013/2015, $40,217,000;

''Aircraft Procurement, Air Force'', 2013/2015, $64,600,000;

''Missile Procurement, Air Force'', 2013/2015, $13,800,000;

''Aircraft Procurement, Army'', 2014/2016, $30,000,000;

''Other Procurement, Army'', 2014/2016, $213,998,000;

''Aircraft Procurement, Navy'', 2014/2016, $196,622,000;

''Weapons Procurement, Navy'', 2014/2016, $63,400,000;

''Other Procurement, Navy'', 2014/2016, $1,505,000;

''Aircraft Procurement, Air Force'', 2014/2016, $83,400,000;

''Missile Procurement, Air Force'', 2014/2016, $157,209,000;

''Procurement, Defense-Wide'', 2014/2016, $12,100,000;

''Research, Development, Test and Evaluation Army'', 2014/2015, $5,000,000;

''Research, Development, Test and Evaluation, Air Force'', 2014/2015, $37,000,000; and

''Research, Development, Test and Evaluation, Navy'', 2014/2015, $141,727,000.

SEC. 8041. None of the funds available in this Act may be used to reduce the authorized positions for military technicians (dual status) of the Army National Guard, Air National Guard, Army Reserve and Air Force Reserve for the purpose of applying any administratively imposed civilian personnel ceiling, freeze, or reduction on military technicians (dual status), unless such reductions are a direct result of a reduction in military force structure.

SEC. 8042. None of the funds appropriated or otherwise made available in this Act may be obligated or expended for assistance to the Democratic People's Republic of Korea unless specifically appropriated for that purpose.

SEC. 8043. Funds appropriated in this Act for operation and maintenance of the Military Departments, Combatant Commands and Defense Agencies shall be available for reimbursement of pay, allowances and other expenses which would otherwise be incurred against appropriations for the National Guard and Reserve when members of the National Guard and Reserve provide intelligence or counterintelligence support to Combatant Commands, Defense Agencies and Joint Intelligence Activities, including the activities and programs included within the National Intelligence Program and the Military Intelligence Program: *Provided*, That nothing in this section authorizes deviation from established Reserve and National Guard personnel and training procedures.

SEC. 8044. Of the amounts appropriated for ''Working Capital Fund, Army'', $225,000,000 shall be available to maintain competitive rates at the arsenals.

SEC. 8045. (a) None of the funds available to the Department of Defense for any fiscal year for drug interdiction or counter-drug activities may be transferred to any other department or agency of the United States except as specifically provided in an appropriations law.

(b) None of the funds available to the Central Intelligence Agency for any fiscal year for drug interdiction or counter-drug activities may be transferred to any other department or agency of the United States except as specifically provided in an appropriations law.

SEC. 8046. None of the funds appropriated by this Act may be used for the procurement of ball and roller bearings other than those produced by a domestic source and of domestic origin: *Provided*, That the Secretary of the military department responsible for such procurement may waive this restriction on a case-by-case basis by certifying in writing to the Committees on Appropriations of the House of Representatives and the Senate, that adequate domestic supplies are not available to meet Department of Defense requirements on a timely basis and that such an acquisition must be made in order to acquire capability for national security purposes: *Provided further*, That this restriction shall not apply to the purchase of ''commercial items'', as defined by section 4(12) of the Office of Federal Procurement Policy Act, except that the restriction shall apply to ball or roller bearings purchased as end items.

SEC. 8047. In addition to the amounts appropriated or otherwise made available elsewhere in this Act, $44,000,000 is hereby appropriated to the Department of Defense: *Provided*, That upon the determination of the Secretary of Defense that it shall serve the national interest, the Secretary shall make grants in the amounts specified as follows: $20,000,000 to the United Service Organizations and $24,000,000 to the Red Cross.

SEC. 8048. None of the funds in this Act may be used to purchase any supercomputer which is not manufactured in the United States, unless the Secretary of Defense certifies to the congressional defense committees that such an acquisition must be made in order to acquire capability for national security purposes that is not available from United States manufacturers.

SEC. 8049. Notwithstanding any other provision in this Act, the Small Business Innovation Research program and the Small Business Technology Transfer program set-asides shall be taken proportionally from all programs, projects, or activities to the extent they contribute to the extramural budget.

SEC. 8050. (a) Notwithstanding any other provision of law, none of the funds available to the Department of Defense for the current fiscal year and hereafter may be obligated or expended to transfer to another nation or an international organization any defense articles or services (other than intelligence services) for use in the activities described in subsection (b) unless the congressional defense committees, the Committee on Foreign Affairs of the House of Representatives, and the Committee on Foreign Relations of the Senate are notified 15 days in advance of such transfer.

(b) This section applies to—

(1) any international peacekeeping or peace-enforcement operation under the authority of chapter VI or chapter VII of the United Nations Charter under the authority of a United Nations Security Council resolution; and

(2) any other international peacekeeping, peace-enforcement, or humanitarian assistance operation.

(c) A notice under subsection (a) shall include the following:

(1) A description of the equipment, supplies, or services to be transferred.

(2) A statement of the value of the equipment, supplies, or services to be transferred.

(3) In the case of a proposed transfer of equipment or supplies—

(A) a statement of whether the inventory requirements of all elements of the Armed Forces (including the reserve components) for the type of equipment or supplies to be transferred have been met; and

(B) a statement of whether the items proposed to be transferred will have to be replaced and, if so, how the President proposes to provide funds for such replacement.

SEC. 8051. None of the funds available to the Department of Defense under this Act shall be obligated or expended to pay a contractor under a contract with the Department of Defense for costs of any amount paid by the contractor to an employee when—

(1) such costs are for a bonus or otherwise in excess of the normal salary paid by the contractor to the employee; and

(2) such bonus is part of restructuring costs associated with a business combination.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8052. During the current fiscal year, no more than $30,000,000 of appropriations made in this Act under the heading ''Operation and Maintenance, Defense-Wide'' may be transferred to appropriations available for the pay of military personnel, to be merged with, and to be available for the same time period as the appropriations to which transferred, to be used in support of such personnel in connection with support and services for eligible organizations and activities outside the Department of Defense pursuant

to section 2012 of title 10, United States Code.

SEC. 8053. During the current fiscal year, in the case of an appropriation account of the Department of Defense for which the period of availability for obligation has expired or which has closed under the provisions of section 1552 of title 31, United States Code, and which has a negative unliquidated or unexpended balance, an obligation or an adjustment of an obligation may be charged to any current appropriation account for the same purpose as the expired or closed account if—

(1) the obligation would have been properly chargeable (except as to amount) to the expired or closed account before the end of the period of availability or closing of that account;

(2) the obligation is not otherwise properly chargeable to any current appropriation account of the Department of Defense; and

(3) in the case of an expired account, the obligation is not chargeable to a current appropriation of the Department of Defense under the provisions of section 1405(b)(8) of the National Defense Authorization Act for Fiscal Year 1991, Public Law 101–510, as amended (31 U.S.C. 1551 note): *Provided*, That in the case of an expired account, if subsequent review or investigation discloses that there was not in fact a negative unliquidated or unexpended balance in the account, any charge to a current account under the authority of this section shall be reversed and recorded against the expired account: *Provided further*, That the total amount charged to a current appropriation under this section may not exceed an amount equal to 1 percent of the total appropriation for that account.

SEC. 8054. (a) Notwithstanding any other provision of law, the Chief of the National Guard Bureau may permit the use of equipment of the National Guard Distance Learning Project by any person or entity on a space-available, reimbursable basis. The Chief of the National Guard Bureau shall establish the amount of reimbursement for such use on a case-by-case basis.

(b) Amounts collected under subsection (a) shall be credited to funds available for the National Guard Distance Learning Project and be available to defray the costs associated with the use of equipment of the project under that subsection. Such funds shall be available for such purposes without fiscal year limitation.

SEC. 8055. Using funds made available by this Act or any other Act, the Secretary of the Air Force, pursuant to a determination under section 2690 of title 10, United States Code, may implement cost-effective agreements for required heating facility modernization in the Kaiserslautern Military Community in the Federal Republic of Germany: *Provided*, That in the City of Kaiserslautern and at the Rhine Ordnance Barracks area, such agreements will include the use of United States anthracite as the base load energy for municipal district heat to the United States Defense installations: *Provided further*, That at Landstuhl Army Regional Medical Center and Ramstein Air Base, furnished heat may be obtained from private, regional or municipal services, if provisions are included for the consideration of United States coal as an energy source.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8056. Of the funds appropriated in this Act under the heading ''Operation and Maintenance, Defense-wide'', $25,000,000 shall be for continued implementation and expansion of the Sexual Assault Special Victims' Counsel Program, and $5,709,000 shall be for support of high priority Sexual Assault Prevention and Response Program requirements and activities, including the training and funding of personnel: *Provided*, That the funds are made available for transfer to the Department of the Army, the Department of the Navy, and the Department of the Air Force: *Provided further*, That funds transferred shall be merged with and available for the same purposes and for the same time period as the appropriations to which the funds are transferred: *Provided further*, That this transfer authority is in addition to any other transfer authority provided in this Act.

SEC. 8057. None of the funds appropriated in title IV of this Act may be used to procure end-items for delivery to military forces for operational training, operational use or inventory requirements: *Provided*, That this restriction does not apply to end-items used in development, prototyping, and test activities preceding and leading to acceptance for operational use: *Provided further*, That this restriction does not apply to programs funded within the National Intelligence Program: *Provided further*, That the Secretary of Defense may waive this restriction on a case-by-case basis by certifying in writing to the Committees on Appropriations of the House of Representatives and the Senate that it is in the national security interest to do so.

SEC. 8058. (a) The Secretary of Defense may, on a case-by-case basis, waive with respect to a foreign country each limitation on the procurement of defense items from foreign sources provided in law if the Secretary determines that the application of the limitation with respect to that country would invalidate cooperative programs entered into between the Department of Defense and the foreign country, or would invalidate reciprocal trade agreements for the procurement of defense items entered into under section 2531 of title 10, United States Code, and the country does not discriminate against the same or similar defense items produced in the United States for that country.

(b) Subsection (a) applies with respect to—

(1) contracts and subcontracts entered into on or after the date of the enactment of this Act; and

(2) options for the procurement of items that are exercised after such date under contracts that are entered into before such date if the option prices are adjusted for any reason other than the application of a waiver granted under subsection (a).

(c) Subsection (a) does not apply to a limitation regarding construction of public vessels, ball and roller bearings, food, and clothing or textile materials as defined by section 11 (chapters 50–65) of the Harmonized Tariff Schedule and products classified under headings 4010, 4202, 4203, 6401 through 6406, 6505, 7019, 7218 through 7229, 7304.41 through 7304.49, 7306.40, 7502 through 7508, 8105, 8108, 8109, 8211, 8215, and 9404.

SEC. 8059. (a) IN GENERAL.—(1) None of the funds made available by this Act may be used for any training, equipment, or other assistance for a unit of a foreign security force if the Secretary of Defense has credible information that the unit has committed a gross violation of human rights.

(2) The Secretary of Defense, in consultation with the Secretary of State, shall ensure that prior to a decision to provide any training, equipment, or other assistance to a unit of a foreign security force full consideration is given to any credible information available to the Department of State relating to human rights violations by such unit.

(b) EXCEPTION.—The prohibition in subsection (a)(1) shall not apply if the Secretary of Defense, after consultation with the Secretary of State, determines that the government of such country has taken all necessary corrective steps, or if the equipment or other assistance is necessary to assist in disaster relief operations or other humanitarian or national security emergencies.

(c) WAIVER.—The Secretary of Defense, after consultation with the Secretary of State, may waive the prohibition in subsection (a)(1) if the Secretary of Defense determines that such waiver is required by extraordinary circumstances.

(d) PROCEDURES.—The Secretary of Defense shall establish, and periodically update, procedures to ensure that any information in the possession of the Department of Defense about gross violations of human rights by units of foreign security forces is shared on a timely basis with the Department of State.

(e) REPORT.—Not more than 15 days after the application of any exception under subsection (b) or the exercise of any waiver under subsection (c), the Secretary of Defense shall submit to the appropriate congressional committees a report—

(1) in the case of an exception under subsection (b), providing notice of the use of the exception and stating the grounds for the exception; and

(2) in the case of a waiver under subsection (c), describing the information relating to the gross violation of human rights; the extraordinary circumstances that necessitate the waiver; the purpose and duration of the training, equipment, or other assistance; and the United States forces and the foreign security force unit involved.

(f) DEFINITION.—For purposes of this section the term ''appropriate congressional committees'' means the congressional defense committees and the Committees on Appropriations.

SEC. 8060. None of the funds appropriated or otherwise made available by this or other Department of Defense Appropriations Acts may be obligated or expended for the purpose of performing repairs or maintenance to military family housing units of the Department of Defense, including areas in such military family housing units that may be used for the purpose of conducting official Department of Defense business.

SEC. 8061. Notwithstanding any other provision of law, funds appropriated in this Act under the heading ''Research, Development, Test and Evaluation, Defense-Wide'' for any new start advanced concept technology demonstration project or joint capability demonstration project may only be obligated 45 days after a report, including a description of the project, the planned acquisition and transition strategy and its estimated annual and total cost, has been provided in writing to the congressional defense committees: *Provided*, That the Secretary of Defense may waive this restriction on a case-by-case basis by certifying to the congressional defense committees that it is in the national interest to do so.

SEC. 8062. The Secretary of Defense shall provide a classified quarterly report beginning 30 days after enactment of this Act, to the House and Senate Appropriations Committees, Subcommittees on Defense on certain matters as directed in the classified annex accompanying this Act.

SEC. 8063. During the current fiscal year and hereafter, none of the funds available to the Department of Defense may be used to provide support to another department or agency of the United States if such department or agency is more than 90 days in arrears in making payment to the Department of Defense for goods or services previously provided to such department or agency on a reimbursable basis: *Provided*, That this restriction shall not apply if the department is authorized by law to provide support to such department or agency on a nonreimbursable basis, and is providing the requested support pursuant to such authority: *Provided further*, That the Secretary of Defense may waive this restriction on a case-by-case basis by certifying in writing to the Committees on Appropriations of the House of Representatives and the Senate that it is in the national security interest to do so.

SEC. 8064. Notwithstanding section 12310(b) of title 10, United States Code, a member of the National Guard serving on full-time National Guard duty under section 502(f) of title 32, United States Code, may perform duties in support of the ground-based elements of the National Ballistic Missile Defense System.

SEC. 8065. None of the funds provided in this Act may be used to transfer to any nongovernmental entity ammunition held by the Department of Defense that has a centerfire cartridge and a United States military nomenclature designation of ''armor penetrator'', ''armor piercing (AP)'', ''armor piercing incendiary (API)'', or ''armor-piercing incendiary tracer (API–T)'', except to an entity performing demilitarization services for the Department of Defense under a contract that requires the entity to demonstrate to the satisfaction of the Department of Defense that armor piercing projectiles are either: (1) rendered incapable of reuse by the demilitarization process; or (2) used to manufacture ammunition pursuant to a contract with the Department of Defense or the manufacture of ammunition for export pursuant to a License for Permanent Export of Unclassified Military Articles issued by the Department of State.

SEC. 8066. Notwithstanding any other provision of law, the Chief of the National Guard Bureau, or his designee, may waive payment of all or part of the consideration that otherwise would be required under section 2667 of title 10, United States Code, in the case of a lease of personal property for a period not in excess of 1 year to any organization specified in section 508(d) of title 32, United States Code, or any other youth, social, or fraternal nonprofit organization as may be approved by the Chief of the National Guard Bureau, or his designee, on a case-by-case basis.

SEC. 8067. In specifying the amounts requested for the Department of the Army for Arlington National Cemetery, Virginia, the budget of the President submitted to Congress shall request such amounts in the Cemeterial Expenses, Army appropriation, and shall not request such amounts in the Operation and Maintenance, Army appropriation.

SEC. 8068. None of the funds appropriated by this Act shall be used for the support of any nonappropriated funds activity of the Department of Defense that procures malt beverages and wine with nonappropriated funds for resale (including such alcoholic beverages sold by the drink) on a military installation located in the United States unless such malt beverages and wine are procured within that State, or in the case of the District of Columbia, within the District of Columbia, in which the military installation is located: *Provided*, That in a case in which the military installation is located in more than one State, purchases may be made in any State in which the installation is located: *Provided further*, That such local procurement requirements for malt beverages and wine shall apply to all alcoholic beverages only for military installations in States which are not contiguous with another State: *Provided further*, That alcoholic beverages other than wine and malt beverages, in contiguous States and the District of Columbia shall be procured from the most competitive source, price and other factors considered.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8069. Of the amounts appropriated in this Act under the heading ''Operation and Maintenance, Army'', $106,189,900 shall remain available until expended: *Provided*, That notwithstanding any other provision of law, the Secretary of Defense is authorized to transfer such funds to other activities of the Federal Government: *Provided further*, That the Secretary of Defense is authorized to enter into and carry out contracts for the acquisition of real property, construction, personal services, and operations related to projects carrying out the purposes of this section: *Provided further*, That contracts entered into under the authority of this section may provide for such indemnification as the Secretary determines to be necessary: *Provided further*, That projects authorized by this section shall comply with applicable Federal, State, and local law to the maximum extent consistent with the national security, as determined by the Secretary of Defense.

SEC. 8070. (a) None of the funds appropriated in this or any other Act may be used to take any action to modify—

(1) the appropriations account structure for the National Intelligence Program budget, including through the creation of a new appropriation or new appropriation account;

(2) how the National Intelligence Program budget request is presented in the unclassified P–1, R–1, and O–1 documents supporting the Department of Defense budget request;

(3) the process by which the National Intelligence Program appropriations are apportioned to the executing agencies; or

(4) the process by which the National Intelligence Program appropriations are allotted, obligated and disbursed.

(b) Nothing in section (a) shall be construed to prohibit the merger of programs or changes to the National Intelligence Program budget at or below the Expenditure Center level, provided such change is otherwise in accordance with paragraphs (a)(1)–(3).

(c) The Director of National Intelligence and the Secretary of Defense may jointly, only for the purposes of achieving auditable financial statements and improving fiscal reporting, study and develop detailed proposals for alternative financial management processes. Such study shall include a comprehensive counterintelligence risk assessment to ensure that none of the alternative processes will adversely affect counterintelligence.

(d) Upon development of the detailed proposals defined under subsection (c), the Director of National Intelligence and the Secretary of Defense shall—

(1) provide the proposed alternatives to all affected agencies;

(2) receive certification from all affected agencies attesting that the proposed alternatives will help achieve auditability, improve fiscal reporting, and will not adversely affect counterintelligence; and

(3) not later than 30 days after receiving all necessary certifications under paragraph (2), present the proposed alternatives and certifications to the congressional defense and intelligence committees.

(e) This section shall not be construed to alter or affect the application of section 1627 of the National Defense Authorization Act for Fiscal Year 2015 to the amounts made available by this Act.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8071. During the current fiscal year, not to exceed $200,000,000 from funds available under ''Operation and Maintenance, Defense-Wide'' may be transferred to the Department of State ''Global Security Contingency Fund'': *Provided*, That this transfer authority is in addition to any other transfer authority available to the Department of Defense: *Provided further*, That the Secretary of Defense shall, not fewer than 30 days prior to making transfers to the Department of State ''Global Security Contingency Fund'', notify the congressional defense committees in writing with the source of funds and a detailed justification, execution plan, and timeline for each proposed project.

SEC. 8072. In addition to amounts provided elsewhere in this Act, $4,000,000 is hereby appropriated to the Department of Defense, to remain available for obligation until expended: *Provided*, That notwithstanding any other provision of law, that upon the determination of the Secretary of Defense that it shall serve the national interest, these funds shall be available only for a grant to the Fisher House Foundation, Inc., only for the construction and furnishing of additional Fisher Houses to meet the needs of military family members when confronted with the illness or hospitalization of an eligible military beneficiary.

SEC. 8073. The Secretary of Defense shall issue regulations to prohibit the sale of any tobacco or tobacco-related products in military resale outlets in the United States, its territories and possessions at a price below the most competitive price in the local community: *Provided*, That such regulations shall direct that the prices of tobacco or tobacco-related products in overseas military retail outlets shall be within the range of prices established for military retail system stores located in the United States.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8074. Of the amounts appropriated in this Act under the headings ''Procurement, Defense-Wide'' and ''Research, Development, Test and Evaluation, Defense-Wide'', $619,814,000 shall be for the Israeli Cooperative Programs: *Provided*, That of this amount, $350,972,000 shall be for the Secretary of Defense to provide to the Government of Israel for the procurement of the Iron Dome defense system to counter short-range rocket threats, subject to the U.S.-Israel Iron Dome Procurement Agreement, as amended; $137,934,000 shall be for the Short Range Ballistic Missile Defense (SRBMD) program, including cruise missile defense research and development under the SRBMD program, of which $15,000,000 shall be for production activities of SRBMD missiles in the United States and in Israel to meet Israel's defense requirements consistent with each nation's laws, regulations, and procedures; $74,707,000 shall be for an upper-tier component to the Israeli Missile Defense Architecture; and $56,201,000 shall be for the Arrow System Improvement Program including development of a long range, ground and airborne, detection suite: *Provided further*, That funds made available under this provision for production of missiles and missile components may be transferred to appropriations available for the procurement of weapons and equipment, to be merged with and to be available for the same time period and the same purposes as the appropriation to which transferred: *Provided further*, That the transfer authority provided under this provision is in addition to any other transfer authority contained in this Act.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8075. Of the amounts appropriated in this Act under the heading ''Shipbuilding and Conversion, Navy'', $991,285,000 shall be available until September 30, 2015, to fund prior year shipbuilding cost increases: *Provided*, That upon enactment of this Act, the Secretary of the Navy shall transfer funds to the following appropriations in the amounts specified: *Provided further*, That the amounts transferred shall be merged with and be available for the same purposes as the appropriations to which transferred to:

(1) Under the heading ''Shipbuilding and Conversion, Navy'', 2008/2015: Carrier Replacement Program $663,000,000;

(2) Under the heading ''Shipbuilding and Conversion, Navy'', 2009/2015: LPD–17 Amphibious Transport Dock Program $54,096,000;

(3) Under the heading ''Shipbuilding and Conversion, Navy'', 2010/2015: DDG–51 Destroyer $65,771,000;

(4) Under the heading ''Shipbuilding and Conversion, Navy'', 2010/2015: Littoral Combat Ship $35,345,000;

(5) Under the heading ''Shipbuilding and Conversion, Navy'', 2011/2015: DDG–51 Destroyer $63,373,000;

(6) Under the heading ''Shipbuilding and Conversion, Navy'', 2011/2015: Littoral Combat Ship $41,700,000;

(7) Under the heading ''Shipbuilding and Conversion, Navy'', 2011/2015: Joint High Speed Vessel $9,340,000;

(8) Under the heading ''Shipbuilding and Conversion, Navy'', 2012/2015: CVN Refueling Overhauls Program $54,000,000;

(9) Under the heading ''Shipbuilding and Conversion, Navy'', 2012/2015: Joint High Speed Vessel $2,620,000; and

(10) Under the heading ''Shipbuilding and Conversion, Navy'', 2013/2015: Joint High Speed Vessel $2,040,000.

SEC. 8076. Funds appropriated by this Act, or made available by the transfer of funds in this Act, for intelligence activities are deemed to be specifically authorized by the Congress for purposes of section 504 of the National Security Act of 1947 (50 U.S.C. 3094) during fiscal year 2015 until the enactment of the Intelligence Authorization Act for Fiscal Year 2015.

SEC. 8077. None of the funds provided in this Act shall be available for obligation or expenditure through a reprogramming of funds that creates or initiates a new program, project, or activity unless such program, project, or activity must be undertaken immediately in the interest of national security and only after written prior notification to the congressional defense committees.

SEC. 8078. The budget of the President for fiscal year 2016 submitted to the Congress pursuant to section 1105 of title 31, United States Code, shall include separate budget justification documents for costs of United States Armed Forces' participation in contingency operations for the Military Personnel accounts, the Operation and Maintenance accounts, the Procurement accounts, and the Research, Development, Test and Evaluation accounts: *Provided*, That these documents shall include a description of the funding requested for each contingency operation, for each military service, to include all Active and Reserve components, and for each appropriations account: *Provided further*, That these documents shall include estimated costs for each element of expense or object class, a reconciliation of increases and decreases for each contingency operation, and programmatic data including, but not limited to, troop strength for each Active and Reserve component, and estimates of the major weapons systems deployed in support of each contingency: *Provided further*, That these documents shall include budget exhibits OP–5 and OP–32 (as defined in the Department of Defense Financial Management Regulation) for all contingency operations for the budget year and the two preceding fiscal years.

SEC. 8079. None of the funds in this Act may be used for research, development, test, evaluation, procurement or deployment of nuclear armed interceptors of a missile defense system.

SEC. 8080. Notwithstanding any other provision of this Act, to reflect savings due to favorable foreign exchange rates, the total amount appropriated in this Act is hereby reduced by $386,268,000.

SEC. 8081. None of the funds appropriated or made available in this Act shall be used to reduce or disestablish the operation of the 53rd Weather Reconnaissance Squadron of the Air Force Reserve, if such action would reduce the WC–130 Weather Reconnaissance mission below the levels funded in this Act: *Provided*, That the Air Force shall allow the 53rd Weather Reconnaissance Squadron to perform other missions in support of national defense requirements during the non-hurricane season.

SEC. 8082. None of the funds provided in this Act shall be available for integration of foreign intelligence information unless the information has been lawfully collected and processed during the conduct of authorized foreign intelligence activities: *Provided*, That information pertaining to United States persons shall only be handled in accordance with protections provided in the Fourth Amendment of the United States Constitution as implemented through Executive Order No. 12333.

SEC. 8083. (a) At the time members of reserve components of the Armed Forces are called or ordered to active duty under section 12302(a) of title 10, United States Code, each member shall be notified in writing of the expected period during which the member will be mobilized.

(b) The Secretary of Defense may waive the requirements of subsection (a) in any case in which the Secretary determines that it is necessary to do so to respond to a national security emergency or to meet dire operational requirements of the Armed Forces.

SEC. 8084. Of the amounts appropriated for ''Missile Procurement, Air Force'', $125,000,000 shall be available for the acceleration of a competitively awarded Evolved Expendable Launch Vehicle mission: *Provided*, That competitions shall be open to all certified providers of Evolved Expendable Launch Vehicle-class systems: *Provided further*, That competitions shall consider bids from two or more certified providers: *Provided further*, That notwithstanding any other provision of law, such providers may compete any certified launch vehicle in their inventory.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8085. The Secretary of Defense may transfer funds from any available Department of the Navy appropriation to any available Navy ship construction appropriation for the purpose of liquidating necessary changes resulting from inflation, market fluctuations, or rate adjustments for any ship construction program appropriated in law: *Provided*, That the Secretary may transfer not to exceed $16,000,000 under the authority provided by this section: *Provided further*, That the Secretary may not transfer any funds until 30 days after the proposed transfer has been reported to the Committees on Appropriations of the House of Representatives and the Senate, unless a response from the Committees is received sooner: *Provided further*, That any funds transferred pursuant to this section shall retain the same period of availability as when originally appropriated: *Provided further*, That the transfer authority provided by this section is in addition to any other transfer authority contained elsewhere in this Act.

SEC. 8086. (a) None of the funds appropriated by this Act may be used to transfer research and development, acquisition, or other program authority relating to current tactical unmanned aerial vehicles (TUAVs) from the Army.

(b) The Army shall retain responsibility for and operational control of the MQ–1C Gray Eagle Unmanned Aerial Vehicle (UAV) in order to support the Secretary of Defense in matters relating to the employment of unmanned aerial vehicles.

SEC. 8087. Up to $15,000,000 of the funds appropriated under the heading ''Operation and Maintenance, Navy'' may be made available for the Asia Pacific Regional Initiative Program for the purpose of enabling the Pacific Command to execute Theater Security Cooperation activities such as humanitarian assistance, and payment of incremental and personnel costs of training and exercising with foreign security forces: *Provided*, That funds made available for this purpose may be used, notwithstanding any other funding authorities for humanitarian assistance, security assistance or combined exercise expenses: *Provided further*, That funds may not be obligated to provide assistance to any foreign country that is otherwise prohibited from receiving such type of assistance under any other provision of law.

SEC. 8088. None of the funds appropriated by this Act for programs of the Office of the Director of National Intelligence shall remain available for obligation beyond the current fiscal year, except for funds appropriated for research and technology, which shall remain available until September 30, 2016.

SEC. 8089. For purposes of section 1553(b) of title 31, United States Code, any subdivision of appropriations made in this Act under the heading ''Shipbuilding and Conversion, Navy'' shall be considered to be for the same purpose as any subdivision under the heading ''Shipbuilding and Conversion, Navy'' appropriations in any prior fiscal year, and the 1 percent limitation shall apply to the total amount of the appropriation.

SEC. 8090. (a) Not later than 60 days after the date of enactment of this Act, the Director of National Intelligence shall submit a report to the congressional intelligence committees to establish the baseline for application of reprogramming and transfer authorities for fiscal year 2015: *Provided*, That the report shall include—

(1) a table for each appropriation with a separate column to display the President's budget request, adjustments made by Congress, adjustments due to enacted rescissions, if appropriate, and the fiscal year enacted level;

(2) a delineation in the table for each appropriation by Expenditure Center and project; and

(3) an identification of items of special congressional interest.

(b) None of the funds provided for the National Intelligence Program in this Act shall be available for reprogramming or transfer until the report identified in subsection (a) is submitted to the congressional intelligence committees, unless the Director of National Intelligence certifies in writing to the congressional intelligence committees that such reprogramming or transfer is necessary as an emergency requirement.

SEC. 8091. None of the funds made available by this Act may be used to eliminate, restructure or realign Army Contracting Command–New Jersey or make disproportionate personnel reductions at any Army Contracting Command–New Jersey sites without 30-day prior notification to the congressional defense committees.

SEC. 8092. None of the funds made available by this Act for excess defense articles, assistance under section 1206 of the National Defense Authorization Act for Fiscal Year 2006 (Public Law 109–163; 119 Stat. 3456), or peacekeeping operations for the countries designated annually to be in violation of the standards of the Child Soldiers Prevention Act of 2008 may be used to support any military training or operation that includes child soldiers, as defined by the Child Soldiers Prevention Act of 2008 (Public Law 110–457; 22 U.S.C. 2370c–1), unless such assistance is otherwise permitted under section 404 of the Child Soldiers Prevention Act of 2008.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8093. Of the funds appropriated in the Intelligence Community Management Account for the Program Manager for the Information Sharing Environment, $20,000,000 is available for transfer by the Director of National Intelligence to other departments and agencies for purposes of Government-wide information sharing activities: *Provided*, That funds transferred under this provision are to be merged with and available for the same purposes and time period as the appropriation to which transferred: *Provided further*, That the Office of Management and Budget must approve any transfers made under this provision.

SEC. 8094. (a) None of the funds provided for the National Intelligence Program in this or any prior appropriations Act shall be available for obligation or expenditure through a reprogramming or transfer of funds in accordance with section 102A(d) of the National Security Act of 1947 (50 U.S.C. 3024(d)) that—

(1) creates a new start effort;

(2) terminates a program with appropriated funding of $10,000,000 or more;

(3) transfers funding into or out of the National Intelligence Program; or

(4) transfers funding between appropriations,

unless the congressional intelligence committees are notified 30 days in advance of such reprogramming of funds; this notification period may be reduced for urgent national security requirements.

(b) None of the funds provided for the National Intelligence Program in this or any prior appropriations Act shall be available for obligation or expenditure through a reprogramming or transfer of funds in accordance with section 102A(d) or the National Security Act of 1947 (50 U.S.C. 3024(d)) that results in a cumulative increase or decrease of the levels specified in the classified annex accompanying the Act unless the congressional intelligence committees are notified 30 days in advance of such reprogramming of funds; this notification period may be reduced for urgent national security requirements.

SEC. 8095. The Director of National Intelligence shall submit to Congress each year, at or about the time that the President's budget is submitted to Congress that year under section 1105(a) of title 31, United States Code, a future-years intelligence program (including associated annexes) reflecting the estimated expenditures and proposed appropriations included in that budget. Any such future-years intelligence program shall cover the fiscal year with respect to which the budget is submitted and at least the four succeeding fiscal years.

SEC. 8096. For the purposes of this Act, the term ''congressional intelligence committees'' means the Permanent Select Committee on Intelligence of the House of Representatives, the Select Committee on Intelligence of the Senate, the Subcommittee on Defense of the Committee on Appropriations of the House of Representatives, and the Subcommittee on Defense of the Committee on Appropriations of the Senate.

SEC. 8097. The Department of Defense shall continue to report incremental contingency operations costs for Operation Inherent Resolve, Operation Enduring Freedom, and any named successor operations, on a monthly basis and any other operation designated and identified by the Secretary of Defense for the purposes of section 127a of title 10, United States Code, on a semi-annual basis in the Cost of War Execution Report as prescribed in the Department of Defense Financial Management Regulation Department of Defense Instruction 7000.14, Volume 12, Chapter 23 ''Contingency Operations'', Annex 1, dated September 2005.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8098. During the current fiscal year, not to exceed $11,000,000 from each of the appropriations made in title II of this Act for ''Operation and Maintenance, Army'', ''Operation and Maintenance, Navy'', and ''Operation and Maintenance, Air Force'' may be transferred by the military department concerned to its central fund established for Fisher Houses and Suites pursuant to section 2493(d) of title 10, United States Code.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8099. Funds appropriated by this Act for operation and maintenance may be available for the purpose of making remittances and transfer to the Defense Acquisition Workforce Development Fund in accordance with section 1705 of title 10, United States Code.

SEC. 8100. (a) Any agency receiving funds made available in this Act, shall, subject to subsections (b) and (c), post on the public Web site of that agency any report required to be submitted by the Congress in this or any other Act, upon the determination by the head of the agency that it shall serve the national interest.

(b) Subsection (a) shall not apply to a report if—

(1) the public posting of the report compromises national security; or

(2) the report contains proprietary information.

(c) The head of the agency posting such report shall do so only after such report has been made available to the requesting Committee or Committees of Congress for no less than 45 days.

SEC. 8101. (a) None of the funds appropriated or otherwise made available by this Act may be expended for any Federal contract for an amount in excess of $1,000,000, unless the contractor agrees not to—

(1) enter into any agreement with any of its employees or independent contractors that requires, as a condition of employment, that the employee or independent contractor agree to resolve through arbitration any claim under title VII of the Civil Rights Act of 1964 or any tort related to or arising out of sexual assault or harassment, including assault and battery, intentional infliction of emotional distress, false imprisonment, or negligent hiring, supervision, or retention; or

(2) take any action to enforce any provision of an existing agreement with an employee or independent contractor that mandates that the employee or independent contractor resolve through arbitration any claim under title VII of the Civil Rights Act of 1964 or any tort related to or arising out of sexual assault or harassment, including assault and battery, intentional infliction of emotional distress, false imprisonment, or negligent hiring, supervision, or retention.

(b) None of the funds appropriated or otherwise made available by this Act may be expended for any Federal contract unless the contractor certifies that it requires each covered subcontractor to agree not to enter into, and not to take any action to enforce any provision of, any agreement as described in paragraphs (1) and (2) of subsection (a), with respect to any employee or independent contractor performing work related to such subcontract. For purposes of this subsection, a ''covered subcontractor'' is an entity that has a subcontract in excess of $1,000,000 on a contract subject to subsection (a).

(c) The prohibitions in this section do not apply with respect to a contractor's or subcontractor's agreements with employees or independent contractors that may not be enforced in a court of the United States.

(d) The Secretary of Defense may waive the application of subsection (a) or (b) to a particular contractor or subcontractor for the purposes of a particular contract or subcontract if the Secretary or the Deputy Secretary personally determines that the waiver is necessary to avoid harm to national security interests of the United States, and that the term of the contract or subcontract is not longer than necessary to avoid such harm. The determination shall set forth with specificity the grounds for the waiver and for the contract or subcontract term selected, and shall state any alternatives considered in lieu of a waiver and the reasons each such alternative would not avoid harm to national security interests of the United States. The Secretary of Defense shall transmit to Congress, and simultaneously make public, any determination under this subsection not less than 15 business days before the contract or subcontract addressed in the determination may be awarded.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8102. From within the funds appropriated for operation and maintenance for the Defense Health Program in this Act, up to $146,857,000, shall be available for transfer to the Joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund in accordance with the provisions of section 1704 of the National Defense Authorization Act for Fiscal Year 2010, Public Law 111–84: *Provided,* That for purposes of section 1704(b), the facility operations funded are operations of the integrated Captain James A. Lovell Federal Health Care Center, consisting of the North Chicago Veterans Affairs Medical Center, the Navy Ambulatory Care Center, and supporting facilities designated as a combined Federal medical facility as described by section 706 of Public Law 110–417: *Provided further,* That additional funds may be transferred from funds appropriated for operation and maintenance for the Defense Health Program to the Joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund upon written notification by the Secretary of Defense to the Committees on Appropriations of the House of Representatives and the Senate.

SEC. 8103. The Office of the Director of National Intelligence shall not employ more Senior Executive employees than are specified in the classified annex.

SEC. 8104. None of the funds appropriated or otherwise made available by this Act and hereafter may be obligated or expended to pay a retired general or flag officer to serve as a senior mentor advising the Department of Defense unless such retired officer files a Standard Form 278 (or successor form concerning public financial disclosure under part 2634 of title 5, Code of Federal Regulations) to the Office of Government Ethics.

SEC. 8105. Appropriations available to the Department of Defense may be used for the purchase of heavy and light armored vehicles for the physical security of personnel or for force protection purposes up to a limit of $250,000 per vehicle, notwithstanding price or other limitations applicable to the purchase of passenger carrying vehicles.

SEC. 8106. None of the funds appropriated or otherwise made available by this Act or any other Act may be used by the Department of Defense or a component thereof in contravention of section 1243 of the National Defense Authorization Act for Fiscal Year 2015, relating to limitations on providing certain missile defense information to the Russian Federation.

SEC. 8107. None of the funds made available by this Act may be used by the Secretary of Defense to take beneficial occupancy of more than 3,000 parking spaces (other than handicap-reserved spaces) to be provided by the BRAC 133 project: *Provided*, That this limitation may be waived in part if: (1) the Secretary of Defense certifies to Congress that

levels of service at existing intersections in the vicinity of the project have not experienced failing levels of service as defined by the Transportation Research Board Highway Capacity Manual over a consecutive 90-day period; (2) the Department of Defense and the Virginia Department of Transportation agree on the number of additional parking spaces that may be made available to employees of the facility subject to continued 90-day traffic monitoring; and (3) the Secretary of Defense notifies the congressional defense committees in writing at least 14 days prior to exercising this waiver of the number of additional parking spaces to be made available.

SEC. 8108. The Secretary of Defense shall report quarterly the numbers of civilian personnel end strength by appropriation account for each and every appropriation account used to finance Federal civilian personnel salaries to the congressional defense committees within 15 days after the end of each fiscal quarter.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8109. Upon a determination by the Director of National Intelligence that such action is necessary and in the national interest, the Director may, with the approval of the Office of Management and Budget, transfer not to exceed $2,000,000,000 of the funds made available in this Act for the National Intelligence Program: *Provided*, That such authority to transfer may not be used unless for higher priority items, based on unforeseen intelligence requirements, than those for which originally appropriated and in no case where the item for which funds are requested has been denied by the Congress: *Provided further*, That a request for multiple reprogrammings of funds using authority provided in this section shall be made prior to June 30, 2015.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8110. There is appropriated $540,000,000 for the ''Ship Modernization, Operations and Sustainment Fund'', to remain available until September 30, 2021: *Provided*, That the Secretary of the Navy shall transfer funds from the ''Ship Modernization, Operations and Sustainment Fund'' to appropriations for operation and maintenance; research, development, test and evaluation; and procurement, only for the purposes of operating, sustaining, equipping and modernizing the Ticonderoga-class guided missile cruisers CG–63, CG–64, CG–65, CG–66, CG–67, CG–68, CG–69, CG–70, CG–71, CG–72, CG–73, and the Whidbey Island-class dock landing ships LSD–41, LSD–42, and LSD–46: *Provided further*, That funds transferred shall be merged with and be available for the same purposes and for the same time period as the appropriation to which they are transferred: *Provided further*, That the transfer authority provided herein shall be in addition to any other transfer authority available to the Department of Defense: *Provided further*, That the Secretary of the Navy shall, not less than 30 days prior to making any transfer from the ''Ship Modernization, Operations and Sustainment Fund'', notify the congressional defense committees in writing of the details of such transfer: *Provided further*, That the Secretary of the Navy shall transfer and obligate funds from the ''Ship Modernization, Operations and Sustainment Fund'' for modernization of not more than two Ticonderoga-class guided missile cruisers as detailed above in fiscal year 2015: *Provided further*, That no more than six Ticonderoga-class guided missile cruisers shall be in a phased modernization at any time: *Provided further*, That the Secretary of the Navy shall contract for the required modernization equipment in the year prior to inducting a Ticonderoga-class cruiser for modernization: *Provided further*, That the prohibition in section 2244a(a) of title 10, United States Code, shall not apply to the use of any funds transferred pursuant to this section.

SEC. 8111. None of the funds appropriated in this Act may be obligated or expended by the Secretary of a military department in contravention of the provisions of section 352 of the National Defense Authorization Act for Fiscal Year 2014 to adopt any new camouflage pattern design or uniform fabric for any combat or camouflage utility uniform or family of uniforms for use by an Armed Force.

SEC. 8112. None of the funds appropriated or otherwise made available in this or any other Act may be used to transfer, release, or assist in the transfer or release to or within the United States, its territories, or possessions Khalid Sheikh Mohammed or any other detainee who—

(1) is not a United States citizen or a member of the Armed Forces of the United States; and

(2) is or was held on or after June 24, 2009, at the United States Naval Station, Guantánamo Bay, Cuba, by the Department of Defense.

SEC. 8113. (a) None of the funds appropriated or otherwise made available in this or any other Act may be used to construct, acquire, or modify any facility in the United States, its territories, or possessions to house any individual described in subsection (c) for the purposes of detention or imprisonment in the custody or under the effective control of the Department of Defense.

(b) The prohibition in subsection (a) shall not apply to any modification of facilities at United States Naval Station, Guantánamo Bay, Cuba.

(c) An individual described in this subsection is any individual who, as of June 24, 2009, is located at United States Naval Station, Guantánamo Bay, Cuba, and who—

(1) is not a citizen of the United States or a member of the Armed Forces of the United States; and

(2) is—

(A) in the custody or under the effective control of the Department of Defense; or

(B) otherwise under detention at United States Naval Station, Guantánamo Bay, Cuba.

SEC. 8114. None of the funds appropriated or otherwise made available in this Act may be used to transfer any individual detained at United States Naval Station Guantánamo Bay, Cuba, to the custody or control of the individual's country of origin, any other foreign country, or any other foreign entity except in accordance with section 1035 of the National Defense Authorization Act for Fiscal Year 2014.

SEC. 8115. None of the funds made available by this Act may be used in contravention of section 1590 or 1591 of title 18, United States Code, or in contravention of the requirements of section 106(g) or (h) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7104(g) or (h)).

SEC. 8116. None of the funds made available by this Act may be used in contravention of the War Powers Resolution (50 U.S.C. 1541 et seq.).

SEC. 8117. None of the funds made available by this Act may be used by the Department of Defense or any other Federal agency to lease or purchase new light duty vehicles, for any executive fleet, or for an agency's fleet inventory, except in accordance with Presidential Memorandum-Federal Fleet Performance, dated May 24, 2011.

SEC. 8118. (a) None of the funds appropriated or otherwise made available by this or any other Act may be used by the Secretary of Defense, or any other official or officer of the Department of Defense, to enter into a contract, memorandum of understanding, or cooperative agreement with, or make a grant to, or provide a loan or loan guarantee to Rosoboronexport or any subsidiary of Rosoboronexport.

(b) The Secretary of Defense may waive the limitation in subsection (a) if the Secretary, in consultation with the Secretary of State and the Director of National Intelligence, determines that it is in the vital national security interest of the United States to do so, and certifies in writing to the congressional defense committees that, to the best of the Secretary's knowledge:

(1) Rosoboronexport has ceased the transfer of lethal military equipment to, and the maintenance of existing lethal military equipment for, the Government of the Syrian Arab Republic;

(2) The armed forces of the Russian Federation have withdrawn from Crimea, other than armed forces present on military bases subject to agreements in force between the Government of the Russian Federation and the Government of Ukraine; and

(3) Agents of the Russian Federation have ceased taking active measures to destabilize the control of the Government of Ukraine over eastern Ukraine.

(c) The Inspector General of the Department of Defense shall conduct a review of any action involving Rosoboronexport with respect to a waiver issued by the Secretary of Defense pursuant to subsection (b), and not later than 90 days after the date on which such a waiver is issued by the Secretary of Defense, the Inspector General shall submit to the congressional defense committees a report containing the results of the review conducted with respect to such waiver.

SEC. 8119. None of the funds made available in this Act may be used for the purchase or manufacture of a flag of the United States unless such flags are treated as covered items under section 2533a(b) of title 10, United States Code.

SEC. 8120. None of the funds appropriated in this or any other Act may be obligated or expended by the United States Government for the direct personal benefit of the President of Afghanistan.

SEC. 8121. (a) Of the funds appropriated in this Act for the Department of Defense, amounts may be made available, under such regulations as the Secretary may prescribe, to local military commanders appointed by the Secretary of Defense, or by an officer or employee designated by the Secretary, to provide at their discretion ex gratia payments in amounts consistent with subsection (d) of this section for damage, personal injury, or death that is incident to combat operations of the Armed Forces in a foreign country.

(b) An ex gratia payment under this section may be provided only if—

(1) the prospective foreign civilian recipient is determined by the local military commander to be friendly to the United States;

(2) a claim for damages would not be compensable under chapter 163 of title 10, United States Code (commonly known as the ''Foreign Claims Act''); and

(3) the property damage, personal injury, or death was not caused by action by an enemy.

(c) NATURE OF PAYMENTS.—Any payments provided under a program under subsection (a) shall not be considered an admission or acknowledgement of any legal obligation to compensate for any damage, personal injury, or death.

(d) AMOUNT OF PAYMENTS.—If the Secretary of Defense determines a program under subsection (a) to be appropriate in a particular setting, the amounts of payments,

if any, to be provided to civilians determined to have suffered harm incident to combat operations of the Armed Forces under the program should be determined pursuant to regulations prescribed by the Secretary and based on an assessment, which should include such factors as cultural appropriateness and prevailing economic conditions.

(e) LEGAL ADVICE.—Local military commanders shall receive legal advice before making ex gratia payments under this subsection. The legal advisor, under regulations of the Department of Defense, shall advise on whether an ex gratia payment is proper under this section and applicable Department of Defense regulations.

(f) WRITTEN RECORD.—A written record of any ex gratia payment offered or denied shall be kept by the local commander and on a timely basis submitted to the appropriate office in the Department of Defense as determined by the Secretary of Defense.

(g) REPORT.—The Secretary of Defense shall report to the congressional defense committees on an annual basis the efficacy of the ex gratia payment program including the number of types of cases considered, amounts offered, the response from ex gratia payment recipients, and any recommended modifications to the program.

(h) LIMITATION.—Nothing in this section shall be deemed to provide any new authority to the Secretary of Defense.

SEC. 8122. None of the funds available in this Act to the Department of Defense, other than appropriations made for necessary or routine refurbishments, upgrades or maintenance activities, shall be used to reduce or to prepare to reduce the number of deployed and non-deployed strategic delivery vehicles and launchers below the levels set forth in the report submitted to Congress in accordance with section 1042 of the National Defense Authorization Act for Fiscal Year 2012.

SEC. 8123. The Secretary of Defense shall post grant awards on a public Web site in a searchable format.

SEC. 8124. None of the funds made available by this Act may be used to cancel the avionics modernization program of record for C–130 aircraft: *Provided*, That the Secretary of the Air Force may proceed with a reduced scope program to address safety and airspace compliance requirements, using funds provided in this bill and previous funds appropriated for the avionics modernization program of record, consistent with the National Defense Authorization Act for Fiscal Year 2015.

SEC. 8125. None of the funds made available by this Act may be used by the Secretary of the Air Force to reduce the force structure at Lajes Field, Azores, Portugal, below the force structure at such Air Force Base as of October 1, 2013, except in accordance with section 1063 of the National Defense Authorization Act for Fiscal Year 2015.

SEC. 8126. None of the Operation and Maintenance funds made available in this Act may be used in contravention of section 41106 of title 49, United States Code.

SEC. 8127. None of the funds made available by this Act may be used to fund the performance of a flight demonstration team at a location outside of the United States: *Provided*, That this prohibition applies only if a performance of a flight demonstration team at a location within the United States was canceled during the current fiscal year due to insufficient funding.

SEC. 8128. None of the funds made available by this Act may be used by the National Security Agency to—

(1) conduct an acquisition pursuant to section 702 of the Foreign Intelligence Surveillance Act of 1978 for the purpose of targeting a United States person; or

(2) acquire, monitor, or store the contents (as such term is defined in section 2510(8) of title 18, United States Code) of any electronic communication of a United States person from a provider of electronic communication services to the public pursuant to section 501 of the Foreign Intelligence Surveillance Act of 1978.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8129. Of the amounts appropriated for ''Operation and Maintenance, Navy'', up to $1,000,000 shall be available for transfer to the John C. Stennis Center for Public Service Development Trust Fund established under section 116 of the John C. Stennis Center for Public Service Training and Development Act (2 U.S.C. 1105).

(INCLUDING TRANSFER OF FUNDS)

SEC. 8130. In addition to amounts provided elsewhere in this Act for basic allowance for housing for military personnel, including active duty, reserve and National Guard personnel, $88,000,000 is hereby appropriated to the Department of Defense and made available for transfer only to military personnel accounts: *Provided*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

SEC. 8131. None of the funds made available by this Act may be obligated or expended to divest E–3 airborne warning and control system aircraft, or disestablish any units of the active or reserve component associated with such aircraft: *Provided*, That not later than 90 days following the date of enactment of this Act, the Secretary of the Air Force shall submit to the congressional defense committees a report providing a detailed explanation of how the Secretary will meet the priority requirements of the commanders of the combatant commands related to airborne warning and control with a fleet of fewer than 31 E–3 aircraft.

SEC. 8132. None of the funds made available by this Act may be obligated or expended to implement the Arms Trade Treaty until the Senate approves a resolution of ratification for the Treaty.

SEC. 8133. None of the funds made available by this Act may be used to transfer or divest AH–64 Apache helicopters from the Army National Guard to the active Army in fiscal year 2015: *Provided*, That the Secretary of the Army shall ensure the continuing readiness of the AH–64 Apache aircraft and ensure the training of the crews of such aircraft during fiscal year 2015, including the allocation of funds for operation and maintenance and personnel connected with such aircraft: *Provided further*, That this section shall continue in effect through the date of enactment of the National Defense Authorization Act for Fiscal Year 2015.

SEC. 8134. None of the funds made available in this Act may be obligated for activities authorized under section 1208 of the Ronald W. Reagan National Defense Authorization Act for Fiscal Year 2005 (Public Law 112–81; 125 Stat. 1621) to initiate support for, or expand support to, foreign forces, irregular forces, groups, or individuals unless the congressional defense committees are notified in accordance with the direction contained in the classified annex accompanying this Act, not less than 15 days before initiating such support: *Provided*, That none of the funds made available in this Act may be used under such section 1208 for any activity that is not in support of an ongoing military operation being conducted by United States Special Operations Forces to combat terrorism: *Provided further*, That the Secretary of Defense may waive the prohibitions in this section if the Secretary determines that such waiver is required by extraordinary circumstances and, by not later than 72 hours after making such waiver, notifies the congressional defense committees of such waiver.

SEC. 8135. (a) Within 90 days of enactment of this Act, the Secretary of Defense shall submit a report to the congressional defense committees to assess whether the justification and approval requirements under section 811 of the National Defense Authorization Act for Fiscal Year 2010 (Public Law 111–84; 123 Stat. 2405) have, inconsistent with the intent of Congress—

(1) negatively impacted the ability of covered entities to be awarded sole-source contracts with the Department of Defense greater than $20,000,000;

(2) discouraged agencies from awarding contracts greater than $20,000,000 to covered entities; and

(3) been misconstrued and/or inconsistently implemented.

(b) The Comptroller General shall analyze and report to the congressional defense committees on the sufficiency of the Department's report in addressing the requirements; review the extent to which section 811 has negatively impacted the ability of covered entities to be awarded sole-source contracts with the Department, discouraged agencies from awarding contracts, or been misconstrued and/or inconsistently implemented.

SEC. 8136. The Secretary of the Air Force shall designate a facility located on Scott Air Force Base, Illinois, to be named after Senator Alan J. Dixon in recognition of his significant public service achievements.

SEC. 8137. None of the funds in this Act may be used to require that seafood procured for the Department of Defense from sustainably managed fisheries in the United States, as determined by the National Marine Fisheries Service, be required to additionally meet sustainability certification criteria prescribed by third-party nongovernmental organizations.

SEC. 8138. None of the funds made available by this Act may be used to—

(1) disestablish, or prepare to disestablish, a Senior Reserve Officers' Training Corps program in accordance with Department of Defense Instruction Number 1215.08, dated June 26, 2006; or

(2) close, downgrade from host to extension center, or place on probation a Senior Reserve Officers' Training Corps program in accordance with the information paper of the Department of the Army titled ''Army Senior Reserve Officers' Training Corps (SROTC) Program Review and Criteria'', dated January 27, 2014.

SEC. 8139. None of the funds appropriated or otherwise made available by this Act may be used to retire, divest, or transfer, or to prepare or plan for the retirement, divestment, or transfer of, the entire KC–10 fleet during fiscal year 2015.

SEC. 8140. None of the funds made available by this Act may be used with respect to Iraq in contravention of the War Powers Resolution (50 U.S.C. 1541 et seq.), including for the introduction of United States armed forces into hostilities in Iraq, into situations in Iraq where imminent involvement in hostilities is clearly indicated by the circumstances, or into Iraqi territory, airspace, or waters while equipped for combat, in contravention of the congressional consultation and reporting requirements of sections 3 and 4 of such Resolution (50 U.S.C. 1542 and 1543).

SEC. 8141. None of the funds made available by this Act may be used to divest, retire, transfer, or place in storage, or prepare to divest, retire, transfer, or place in storage, any A–10 aircraft, or to disestablish any units of the active or reserve component associated with such aircraft.

TITLE IX

OVERSEAS CONTINGENCY OPERATIONS

MILITARY PERSONNEL

MILITARY PERSONNEL, ARMY

For an additional amount for ''Military Personnel, Army'', $3,259,970,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

MILITARY PERSONNEL, NAVY

For an additional amount for ''Military Personnel, Navy'', $332,166,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

MILITARY PERSONNEL, MARINE CORPS

For an additional amount for ''Military Personnel, Marine Corps'', $403,311,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

MILITARY PERSONNEL, AIR FORCE

For an additional amount for ''Military Personnel, Air Force'', $728,334,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RESERVE PERSONNEL, ARMY

For an additional amount for ''Reserve Personnel, Army'', $24,990,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RESERVE PERSONNEL, NAVY

For an additional amount for ''Reserve Personnel, Navy'', $13,953,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RESERVE PERSONNEL, MARINE CORPS

For an additional amount for ''Reserve Personnel, Marine Corps'', $5,069,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RESERVE PERSONNEL, AIR FORCE

For an additional amount for ''Reserve Personnel, Air Force'', $19,175,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL GUARD PERSONNEL, ARMY

For an additional amount for ''National Guard Personnel, Army'', $174,778,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL GUARD PERSONNEL, AIR FORCE

For an additional amount for ''National Guard Personnel, Air Force'', $4,894,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE

OPERATION AND MAINTENANCE, ARMY

For an additional amount for ''Operation and Maintenance, Army'', $18,108,656,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, NAVY

For an additional amount for ''Operation and Maintenance, Navy'', $6,253,819,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, MARINE CORPS

For an additional amount for ''Operation and Maintenance, Marine Corps'', $1,850,984,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, AIR FORCE

For an additional amount for ''Operation and Maintenance, Air Force'', $10,076,383,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, DEFENSE-WIDE

For an additional amount for ''Operation and Maintenance, Defense-Wide'', $6,211,025,000: *Provided*, That of the funds provided under this heading, not to exceed $1,260,000,000, to remain available until September 30, 2016, shall be for payments to reimburse key cooperating nations for logistical, military, and other support, including access, provided to United States military and stability operations in Afghanistan and Iraq: *Provided further*, That such reimbursement payments may be made in such amounts as the Secretary of Defense, with the concurrence of the Secretary of State, and in consultation with the Director of the Office of Management and Budget, may determine, based on documentation determined by the Secretary of Defense to adequately account for the support provided, and such determination is final and conclusive upon the accounting officers of the United States, and 15 days following notification to the appropriate congressional committees: *Provided further*, That these funds may be used for the purpose of providing specialized training and procuring supplies and specialized equipment and providing such supplies and loaning such equipment on a non-reimbursable basis to coalition forces supporting United States military and stability operations in Afghanistan and Iraq, and 15 days following notification to the appropriate congressional committees: *Provided further*, That these funds may be used to reimburse the government of Jordan, in such amounts as the Secretary of Defense may determine, to maintain the ability of the Jordanian armed forces to maintain security along the border between Jordan and Syria, upon 15 days prior written notification to the congressional defense committees outlining the amounts reimbursed and the nature of the expenses to be reimbursed: *Provided further*, That not to exceed $15,000,000 can be used for emergencies and extraordinary expenses, to be expended on the approval or authority of the Secretary of Defense, and payments may be made on his certificate of necessity for confidential military purposes: *Provided further*, That the authority in the preceding proviso may only be used for emergency and extraordinary expenses associated with activities to counter the Islamic State of Iraq and the Levant: *Provided further*, That the Secretary of Defense shall provide quarterly reports to the congressional defense committees on the use of funds provided in this paragraph: *Provided further*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, ARMY RESERVE

For an additional amount for ''Operation and Maintenance, Army Reserve'', $41,532,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, NAVY RESERVE

For an additional amount for ''Operation and Maintenance, Navy Reserve'', $45,876,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, MARINE CORPS RESERVE

For an additional amount for ''Operation and Maintenance, Marine Corps Reserve'', $10,540,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, AIR FORCE RESERVE

For an additional amount for ''Operation and Maintenance, Air Force Reserve'', $77,794,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, ARMY NATIONAL GUARD

For an additional amount for ''Operation and Maintenance, Army National Guard'', $77,661,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, AIR NATIONAL GUARD

For an additional amount for ''Operation and Maintenance, Air National Guard'', $22,600,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

AFGHANISTAN SECURITY FORCES FUND

For the ''Afghanistan Security Forces Fund'', $4,109,333,000, to remain available

until September 30, 2016: *Provided*, That such funds shall be available to the Secretary of Defense, notwithstanding any other provision of law, for the purpose of allowing the Commander, Combined Security Transition Command—Afghanistan, or the Secretary's designee, to provide assistance, with the concurrence of the Secretary of State, to the security forces of Afghanistan, including the provision of equipment, supplies, services, training, facility and infrastructure repair, renovation, construction, and funding: *Provided further*, That the authority to provide assistance under this heading is in addition to any other authority to provide assistance to foreign nations: *Provided further*, That contributions of funds for the purposes provided herein from any person, foreign government, or international organization may be credited to this Fund, to remain available until expended, and used for such purposes: *Provided further*, That the Secretary of Defense shall notify the congressional defense committees in writing upon the receipt and upon the obligation of any contribution, delineating the sources and amounts of the funds received and the specific use of such contributions: *Provided further*, That the Secretary of Defense shall, not fewer than 15 days prior to obligating from this appropriation account, notify the congressional defense committees in writing of the details of any such obligation: *Provided further*, That the Secretary of Defense shall notify the congressional defense committees of any proposed new projects or transfer of funds between budget sub-activity groups in excess of $20,000,000: *Provided further*, That the United States may accept equipment procured using funds provided under this heading in this or prior Acts that was transferred to the security forces of Afghanistan and returned by such forces to the United States: *Provided further*, That equipment procured using funds provided under this heading in this or prior Acts, and not yet transferred to the security forces of Afghanistan or transferred to the security forces of Afghanistan and returned by such forces to the United States, may be treated as stocks of the Department of Defense upon written notification to the congressional defense committees: *Provided further*, That of the funds provided under this heading, not less than $25,000,000 shall be for recruitment and retention of women in the Afghanistan National Security Forces, and the recruitment and training of female security personnel for the 2015 parliamentary elections: *Provided further*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

IRAQ TRAIN AND EQUIP FUND

For the ''Iraq Train and Equip Fund'', $1,618,000,000, to remain available until September 30, 2016: *Provided*, That such funds shall be available to the Secretary of Defense, in coordination with the Secretary of State, pursuant to section 1236 of the National Defense Authorization Act for Fiscal Year 2015, to provide assistance, including training; equipment; logistics support, supplies, and services; stipends; infrastructure repair, renovation, and sustainment to military and other security forces of or associated with the Government of Iraq, including Kurdish and tribal security forces or other local security forces, with a national security mission, to counter the Islamic State in Iraq and the Levant: *Provided further*, That the Secretary of Defense shall ensure that prior to providing assistance to elements of any forces such elements are appropriately vetted, including at a minimum, assessing such elements for associations with terrorist groups or groups associated with the Government of Iran; and receiving commitments from such elements to promote respect for human rights and the rule of law: *Provided further*, That the Secretary of Defense may accept and retain contributions, including assistance in-kind, from foreign governments, including the Government of Iraq, and other entities, to carry out assistance authorized under this heading: *Provided further*, That contributions of funds for the purposes provided herein from any foreign government or other entities, may be credited to this Fund, to remain available until expended, and used for such purposes: *Provided further*, That not more than 25 percent of the funds appropriated under this heading may be obligated or expended until not fewer than 15 days after (1) the Secretary of Defense submits a report to the appropriate congressional committees, describing the plan for the provision of such training and assistance and the forces designated to receive such assistance, and (2) the President submits a report to the appropriate congressional committees on how assistance provided under this heading supports a larger regional strategy: *Provided further*, That of the amount provided under this heading, not more than 60 percent may be obligated or expended until not fewer than 15 days after the date on which the Secretary of Defense certifies to the appropriate congressional committees that an amount equal to not less than 40 percent of the amount provided under this heading has been contributed by other countries and entities for the purposes for which funds are provided under this heading, of which at least 50 percent shall have been contributed or provided by the Government of Iraq: *Provided further*, That the limitation in the preceding proviso shall not apply if the Secretary of Defense determines, in writing, that the national security objectives of the United States will be compromised by the application of the limitation to such assistance, and notifies the appropriate congressional committees not less than 15 days in advance of the exemption taking effect, including a justification for the Secretary's determination and a description of the assistance to be exempted from the application of such limitation: *Provided further*, That the Secretary of Defense may waive a provision of law relating to the acquisition of items and support services or sections 40 and 40A of the Arms Export Control Act (22 U.S.C. 2780 and 2785) if the Secretary determines such provisions of law would prohibit, restrict, delay or otherwise limit the provision of such assistance and a notice of and justification for such waiver is submitted to the appropriate congressional committees: *Provided further*, That the term ''appropriate congressional committees'' under this heading means the ''congressional defense committees'', the Committees on Appropriations and Foreign Relations of the Senate and the Committees on Appropriations and Foreign Affairs of the House of Representatives: *Provided further*, That amounts made available under this heading are designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

COUNTERTERRORISM PARTNERSHIPS FUND

(INCLUDING TRANSFER OF FUNDS)

For the ''Counterterrorism Partnerships Fund'', $1,300,000,000, to remain available until September 30, 2016: *Provided*, That such funds shall be available to provide support and assistance to foreign security forces or other groups or individuals to conduct, support, or facilitate counterterrorism and crisis response activities pursuant to section 1534 of the National Defense Authorization Act for Fiscal Year 2015: *Provided further*, That the Secretary of Defense shall transfer the funds provided herein to other appropriations provided for in this Act to be merged with and to be available for the same purposes and subject to the same authorities and for the same time period as the appropriation to which transferred: *Provided further*, That the transfer authority under this heading is in addition to any other transfer authority provided elsewhere in this Act: *Provided further*, That the funds available under this heading are available for transfer only to the extent that the Secretary of Defense submits a prior approval reprogramming request to the congressional defense committees: *Provided further*, That the Secretary of Defense shall comply with the appropriate vetting standards and procedures established elsewhere in this Act for any recipient of training, equipment, or other assistance: *Provided further*, That the amount provided under this heading is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

EUROPEAN REASSURANCE INITIATIVE

(INCLUDING TRANSFER OF FUNDS)

For the ''European Reassurance Initiative'', $175,000,000, to remain available until September 30, 2015: *Provided*, That such funds shall be available under the authority provided to the Department of Defense by any other provision of law, for programs, activities, and assistance to provide support to the Governments of Ukraine, Estonia, Lithuania and Latvia, including the provision of training, equipment, and logistical supplies, support, and services, and the payment of incremental expenses of the Armed Forces associated with prepositioning additional equipment and undertaking additional or extended deployments in such countries and adjacent waters: *Provided further*, That the Secretary of Defense shall transfer the funds provided herein to other appropriations provided for in this Act to be merged with and to be available for the same purposes and for the same time period as the appropriation to which transferred: *Provided further*, That the Secretary of Defense shall, not fewer than 15 days prior to transferring amounts from this appropriation, notify the congressional defense committees in writing of the details of any such transfer: *Provided further*, That upon a determination by the Secretary of Defense that all or part of the funds transferred from this appropriation are not necessary for the purposes herein, such amounts may be transferred back to the appropriation and shall be available for the same purposes and for the same time period as originally appropriated: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act: *Provided further*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

PROCUREMENT

AIRCRAFT PROCUREMENT, ARMY

For an additional amount for ''Aircraft Procurement, Army'', $196,200,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

MISSILE PROCUREMENT, ARMY

For an additional amount for ''Missile Procurement, Army'', $32,136,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

PROCUREMENT OF WEAPONS AND TRACKED COMBAT VEHICLES, ARMY

For an additional amount for ''Procurement of Weapons and Tracked Combat Vehicles, Army'', $5,000,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

PROCUREMENT OF AMMUNITION, ARMY

For an additional amount for ''Procurement of Ammunition, Army'', $140,905,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OTHER PROCUREMENT, ARMY

For an additional amount for ''Other Procurement, Army'', $773,583,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

AIRCRAFT PROCUREMENT, NAVY

For an additional amount for ''Aircraft Procurement, Navy'', $243,359,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

WEAPONS PROCUREMENT, NAVY

For an additional amount for ''Weapons Procurement, Navy'', $66,785,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

PROCUREMENT OF AMMUNITION, NAVY AND MARINE CORPS

For an additional amount for ''Procurement of Ammunition, Navy and Marine Corps'', $154,519,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OTHER PROCUREMENT, NAVY

For an additional amount for ''Other Procurement, Navy'', $123,710,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

PROCUREMENT, MARINE CORPS

For an additional amount for ''Procurement, Marine Corps'', $65,589,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

AIRCRAFT PROCUREMENT, AIR FORCE

For an additional amount for ''Aircraft Procurement, Air Force'', $481,019,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

MISSILE PROCUREMENT, AIR FORCE

For an additional amount for ''Missile Procurement, Air Force'', $136,189,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

PROCUREMENT OF AMMUNITION, AIR FORCE

For an additional amount for ''Procurement of Ammunition, Air Force'', $219,785,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OTHER PROCUREMENT, AIR FORCE

For an additional amount for ''Other Procurement, Air Force'', $3,607,526,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

PROCUREMENT, DEFENSE-WIDE

For an additional amount for ''Procurement, Defense-Wide'', $250,386,000, to remain available until September 30, 2017: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL GUARD AND RESERVE EQUIPMENT ACCOUNT

For procurement of aircraft, missiles, tracked combat vehicles, ammunition, other weapons and other procurement for the reserve components of the Armed Forces, $1,200,000,000, to remain available for obligation until September 30, 2017: *Provided*, That the Chiefs of National Guard and Reserve components shall, not later than 30 days after enactment of this Act, individually submit to the congressional defense committees the modernization priority assessment for their respective National Guard or Reserve component: *Provided further*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, ARMY

For an additional amount for ''Research, Development, Test and Evaluation, Army'', $2,000,000, to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, NAVY

For an additional amount for ''Research, Development, Test and Evaluation, Navy'', $36,020,000, to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, AIR FORCE

For an additional amount for ''Research, Development, Test and Evaluation, Air Force'', $14,706,000, to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, DEFENSE-WIDE

For an additional amount for ''Research, Development, Test and Evaluation, Defense-Wide'', $174,647,000, to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

REVOLVING AND MANAGEMENT FUNDS

DEFENSE WORKING CAPITAL FUNDS

For an additional amount for ''Defense Working Capital Funds'', $91,350,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OTHER DEPARTMENT OF DEFENSE PROGRAMS

DEFENSE HEALTH PROGRAM

For an additional amount for ''Defense Health Program'', $300,531,000, which shall be for operation and maintenance: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DRUG INTERDICTION AND COUNTER-DRUG ACTIVITIES, DEFENSE

For an additional amount for ''Drug Interdiction and Counter-Drug Activities, Defense'', $205,000,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

JOINT IMPROVISED EXPLOSIVE DEVICE DEFEAT FUND

(INCLUDING TRANSFER OF FUNDS)

For the ''Joint Improvised Explosive Device Defeat Fund'', $444,464,000, to remain available until September 30, 2017: *Provided*, That such funds shall be available to the Secretary of Defense, notwithstanding any other provision of law, for the purpose of allowing the Director of the Joint Improvised Explosive Device Defeat Organization to investigate, develop and provide equipment, supplies, services, training, facilities, personnel and funds to assist United States forces in the defeat of improvised explosive devices: *Provided further*, That the Secretary of Defense may transfer funds provided herein to appropriations for military personnel; operation and maintenance; procurement; research, development, test and evaluation;

and defense working capital funds to accomplish the purpose provided herein: *Provided further*, That this transfer authority is in addition to any other transfer authority available to the Department of Defense: *Provided further*, That the Secretary of Defense shall, not fewer than 15 days prior to making transfers from this appropriation, notify the congressional defense committees in writing of the details of any such transfer: *Provided further*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF THE INSPECTOR GENERAL

For an additional amount for the ''Office of the Inspector General'', $10,623,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS—THIS TITLE

SEC. 9001. Notwithstanding any other provision of law, funds made available in this title are in addition to amounts appropriated or otherwise made available for the Department of Defense for fiscal year 2015.

(INCLUDING TRANSFER OF FUNDS)

SEC. 9002. Upon the determination of the Secretary of Defense that such action is necessary in the national interest, the Secretary may, with the approval of the Office of Management and Budget, transfer up to $3,500,000,000 between the appropriations or funds made available to the Department of Defense in this title: *Provided*, That the Secretary shall notify the Congress promptly of each transfer made pursuant to the authority in this section: *Provided further*, That the authority provided in this section is in addition to any other transfer authority available to the Department of Defense and is subject to the same terms and conditions as the authority provided in the Department of Defense Appropriations Act, 2015.

SEC. 9003. Supervision and administration costs and costs for design during construction associated with a construction project funded with appropriations available for operation and maintenance or the ''Afghanistan Security Forces Fund'' provided in this Act and executed in direct support of overseas contingency operations in Afghanistan, may be obligated at the time a construction contract is awarded: *Provided*, That for the purpose of this section, supervision and administration costs and costs for design during construction include all in-house Government costs.

SEC. 9004. From funds made available in this title, the Secretary of Defense may purchase for use by military and civilian employees of the Department of Defense in the U.S. Central Command area of responsibility: (a) passenger motor vehicles up to a limit of $75,000 per vehicle; and (b) heavy and light armored vehicles for the physical security of personnel or for force protection purposes up to a limit of $250,000 per vehicle, notwithstanding price or other limitations applicable to the purchase of passenger carrying vehicles.

SEC. 9005. Not to exceed $10,000,000 of the amounts appropriated in this title under the heading ''Operation and Maintenance, Army'' may be used, notwithstanding any other provision of law, to fund the Commander's Emergency Response Program (CERP), for the purpose of enabling military commanders in Afghanistan to respond to urgent, small-scale, humanitarian relief and reconstruction requirements within their areas of responsibility: *Provided*, That each project (including any ancillary or related elements in connection with such project) executed under this authority shall not exceed $2,000,000: *Provided further*, That not later than 45 days after the end of each fiscal year quarter, the Secretary of Defense shall submit to the congressional defense committees a report regarding the source of funds and the allocation and use of funds during that quarter that were made available pursuant to the authority provided in this section or under any other provision of law for the purposes described herein: *Provided further*, That, not later than 30 days after the end of each month, the Army shall submit to the congressional defense committees monthly commitment, obligation, and expenditure data for the Commander's Emergency Response Program in Afghanistan: *Provided further*, That not less than 15 days before making funds available pursuant to the authority provided in this section or under any other provision of law for the purposes described herein for a project with a total anticipated cost for completion of $500,000 or more, the Secretary shall submit to the congressional defense committees a written notice containing each of the following:

(1) The location, nature and purpose of the proposed project, including how the project is intended to advance the military campaign plan for the country in which it is to be carried out.

(2) The budget, implementation timeline with milestones, and completion date for the proposed project, including any other CERP funding that has been or is anticipated to be contributed to the completion of the project.

(3) A plan for the sustainment of the proposed project, including the agreement with either the host nation, a non-Department of Defense agency of the United States Government or a third-party contributor to finance the sustainment of the activities and maintenance of any equipment or facilities to be provided through the proposed project.

SEC. 9006. Funds available to the Department of Defense for operation and maintenance may be used, notwithstanding any other provision of law, to provide supplies, services, transportation, including airlift and sealift, and other logistical support to coalition forces supporting military and stability operations in Afghanistan: *Provided*, That the Secretary of Defense shall provide quarterly reports to the congressional defense committees regarding support provided under this section.

SEC. 9007. None of the funds appropriated or otherwise made available by this or any other Act shall be obligated or expended by the United States Government for a purpose as follows:

(1) To establish any military installation or base for the purpose of providing for the permanent stationing of United States Armed Forces in Iraq.

(2) To exercise United States control over any oil resource of Iraq.

(3) To establish any military installation or base for the purpose of providing for the permanent stationing of United States Armed Forces in Afghanistan.

SEC. 9008. None of the funds made available in this Act may be used in contravention of the following laws enacted or regulations promulgated to implement the United Nations Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (done at New York on December 10, 1984):

(1) Section 2340A of title 18, United States Code.

(2) Section 2242 of the Foreign Affairs Reform and Restructuring Act of 1998 (division G of Public Law 105–277; 112 Stat. 2681–822; 8 U.S.C. 1231 note) and regulations prescribed thereto, including regulations under part 208 of title 8, Code of Federal Regulations, and part 95 of title 22, Code of Federal Regulations.

(3) Sections 1002 and 1003 of the Department of Defense, Emergency Supplemental Appropriations to Address Hurricanes in the Gulf of Mexico, and Pandemic Influenza Act, 2006 (Public Law 109–148).

SEC. 9009. None of the funds provided for the ''Afghanistan Security Forces Fund'' (ASFF) may be obligated prior to the approval of a financial and activity plan by the Afghanistan Resources Oversight Council (AROC) of the Department of Defense: *Provided*, That the AROC must approve the requirement and acquisition plan for any service requirements in excess of $50,000,000 annually and any non-standard equipment requirements in excess of $100,000,000 using ASFF: *Provided further*, That the Department of Defense must certify to the congressional defense committees that the AROC has convened and approved a process for ensuring compliance with the requirements in the preceding proviso and accompanying report language for the ASFF.

SEC. 9010. Funds made available in this title to the Department of Defense for operation and maintenance may be used to purchase items having an investment unit cost of not more than $250,000: *Provided*, That, upon determination by the Secretary of Defense that such action is necessary to meet the operational requirements of a Commander of a Combatant Command engaged in contingency operations overseas, such funds may be used to purchase items having an investment item unit cost of not more than $500,000.

SEC. 9011. From funds made available to the Department of Defense in this title under the heading ''Operation and Maintenance, Air Force'', up to $140,000,000 may be used by the Secretary of Defense, notwithstanding any other provision of law, to support United States Government transition activities in Iraq by funding the operations and activities of the Office of Security Cooperation in Iraq and security assistance teams, including life support, transportation and personal security, and facilities renovation and construction, and site closeout activities prior to returning sites to the Government of Iraq: *Provided*, That to the extent authorized under the National Defense Authorization Act for Fiscal Year 2015, the operations and activities that may be carried out by the Office of Security Cooperation in Iraq may, with the concurrence of the Secretary of State, include non-operational training activities in support of Iraqi Minister of Defense and Counter Terrorism Service personnel in an institutional environment to address capability gaps, integrate processes relating to intelligence, air sovereignty, combined arms, logistics and maintenance, and to manage and integrate defense-related institutions: *Provided further*, That not later than 30 days following the enactment of this Act, the Secretary of Defense and the Secretary of State shall submit to the congressional defense committees a plan for transitioning any such training activities that they determine are needed after the end of fiscal year 2015, to existing or new contracts for the sale of defense articles or defense services consistent with the provisions of the Arms Export Control Act (22 U.S.C. 2751 et seq.): *Provided further*, That not less than 15 days before making funds available pursuant to the authority provided in this section, the Secretary of Defense shall submit to the congressional defense committees a written notice containing a detailed justification and timeline for the operations and activities of the Office of Security Cooperation in Iraq at each site where such operations and activities will be conducted during fiscal year 2015.

SEC. 9012. (a) None of the funds appropriated or otherwise made available by this Act under the heading ''Operation and Maintenance, Defense-Wide'' for payments under section 1233 of Public Law 110–181 for reimbursement to the Government of Pakistan may be made available unless the Secretary of Defense, in coordination with the Secretary of State, certifies to the congressional defense committees that the Government of Pakistan is—

(1) cooperating with the United States in counterterrorism efforts against the Haqqani Network, the Quetta Shura Taliban, Lashkar e-Tayyiba, Jaish-e-Mohammed, Al Qaeda, and other domestic and foreign terrorist organizations, including taking steps to end support for such groups and prevent them from basing and operating in Pakistan and carrying out cross border attacks into neighboring countries;

(2) not supporting terrorist activities against United States or coalition forces in Afghanistan, and Pakistan's military and intelligence agencies are not intervening extra-judicially into political and judicial processes in Pakistan;

(3) dismantling improvised explosive device (IED) networks and interdicting precursor chemicals used in the manufacture of IEDs;

(4) preventing the proliferation of nuclear-related material and expertise;

(5) implementing policies to protect judicial independence and due process of law;

(6) issuing visas in a timely manner for United States visitors engaged in counterterrorism efforts and assistance programs in Pakistan; and

(7) providing humanitarian organizations access to detainees, internally displaced persons, and other Pakistani civilians affected by the conflict.

(b) The Secretary of Defense, in coordination with the Secretary of State, may waive the restriction in paragraph (a) on a case-by-case basis by certifying in writing to the congressional defense committees that it is in the national security interest to do so: *Provided*, That if the Secretary of Defense, in coordination with the Secretary of State, exercises such waiver authority, the Secretaries shall report to the congressional defense committees on both the justification for the waiver and on the requirements of this section that the Government of Pakistan was not able to meet: *Provided further*, That such report may be submitted in classified form if necessary.

(RESCISSIONS)

SEC. 9013. Of the funds appropriated in Department of Defense Appropriations Acts, the following funds are hereby rescinded from the following accounts and programs in the specified amounts: *Provided*, That such amounts are designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985, as amended:

''Other Procurement, Army'', 2013/2015, $8,200,000;

''Aircraft Procurement, Army'', 2014/2016, $464,000,000; and

''Afghanistan Security Forces Fund'', 2014/2015, $764,380,000.

SEC. 9014. None of the funds made available by this Act may be used with respect to Syria in contravention of the War Powers Resolution (50 U.S.C. 1541 et seq.), including for the introduction of United States armed or military forces into hostilities in Syria, into situations in Syria where imminent involvement in hostilities is clearly indicated by the circumstances, or into Syrian territory, airspace, or waters while equipped for combat, in contravention of the congressional consultation and reporting requirements of sections 3 and 4 of that law (50 U.S.C. 1542 and 1543).

SEC. 9015. In addition to the amounts appropriated in this Act, $250,000,000 is hereby appropriated, notwithstanding any other provision of law, to conduct surface and subsurface clearance of unexploded ordnance at closed training ranges used by the Armed Forces of the United States in Afghanistan: *Provided*, That such funds shall be available until September 30, 2016: *Provided further*, That such ranges shall not have been transferred to the Islamic Republic of Afghanistan for use by its armed forces: *Provided further*, That within 90 days of enactment of this Act, the Secretary of Defense shall provide to the congressional defense committees a written plan to mitigate the threat of unexploded ordnance at such ranges, including a detailed spend plan: *Provided further*, That the Secretary of Defense shall provide the congressional defense committees written progress reports every 180 days after the submission of the initial plan, until such funds are fully expended: *Provided further*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 9016. The Secretary of Defense is authorized, in coordination with the Secretary of State, to provide assistance, including training, equipment, supplies, sustainment and stipends, to appropriately vetted elements of the Syrian opposition and other appropriately vetted Syrian groups or individuals for the following purposes: defending the Syrian people from attacks by the Islamic State of Iraq and the Levant (ISIL), and securing territory controlled by the Syrian opposition; protecting the United States, its friends and allies, and the Syrian people from the threats posed by terrorists in Syria; and promoting the conditions for a negotiated settlement to end the conflict in Syria: *Provided*, That up to $500,000,000 of funds appropriated for the Counterterrorism Partnerships Fund may be used for activities authorized by this section: *Provided further*, That the Secretary may accept and retain contributions, including assistance in-kind, from foreign governments to carry out activities as authorized by this section and shall be credited to the appropriate appropriations accounts, except that any funds so accepted by the Secretary shall not be available for obligation until a reprogramming action is submitted to the congressional defense committees: *Provided further*, That the President and the Secretary of Defense shall comply with the reporting requirements in section 149(b)(1), (b)(2), (c), and (d) of the Continuing Appropriations Resolution, 2015 (Public Law 113–164): *Provided further*, That the term ''appropriately vetted'' as used in this section shall be construed to mean, at a minimum, assessments of possible recipients for associations with terrorist groups including the Islamic State of Iraq and the Levant (ISIL), Jabhat al Nusrah, Ahrar al Sham, other al-Qaeda related groups, Hezbollah, or Shia militias supporting the Governments of Syria or Iran; and for commitment to the rule of law and a peaceful and democratic Syria: *Provided further*, That none of the funds used pursuant to this authority shall be used for the procurement or transfer of man portable air defense systems: *Provided further*, That nothing in this section shall be construed to constitute a specific statutory authorization for the introduction of the United States Armed Forces into hostilities or into situations wherein hostilities are clearly indicated by the circumstances, in accordance with section 8(a)(1) of the War Powers Resolution: *Provided further*, That amounts made available by this section are designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985: *Provided further*, That the authority to provide assistance under this section shall terminate on September 30, 2015.

SEC. 9017. None of the funds in this Act may be made available for the transfer of additional C–130 cargo aircraft to the Afghanistan National Security Forces or the Afghanistan Air Force until the Department of Defense provides a report to the congressional defense committees of the Afghanistan Air Force's medium airlift requirements. The report should identify Afghanistan's ability to utilize and maintain existing medium lift aircraft in the inventory and the best alternative platform, if necessary, to provide additional support to the Afghanistan Air Force's current medium airlift capacity.

(INCLUDING TRANSFER OF FUNDS)

SEC. 9018. In addition to amounts appropriated in title II or otherwise made available elsewhere in this Act, $1,000,000,000 is hereby appropriated to the Department of Defense and made available for transfer to the operation and maintenance accounts of the Army, Navy, Marine Corps, and Air Force (including National Guard and reserve) for purposes of improving military readiness: *Provided*, That the transfer authority provided under this provision is in addition to any other transfer authority provided elsewhere in this Act: *Provided further*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

TITLE X

EBOLA RESPONSE AND PREPAREDNESS

PROCUREMENT

PROCUREMENT, DEFENSE-WIDE

For an additional amount for ''Procurement, Defense-Wide'', $17,000,000, to remain available until September 30, 2017, for expenses related to the Ebola outbreak: *Provided*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, DEFENSE-WIDE

For an additional amount for ''Research, Development, Test and Evaluation, Defense-Wide'', $95,000,000, to remain available until September 30, 2016, for expenses related to developing technologies that are relevant to the Ebola outbreak: *Provided*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

This division may be cited as the ''Department of Defense Appropriations Act, 2015''.

DIVISION D—ENERGY AND WATER DEVELOPMENT AND RELATED AGENCIES APPROPRIATIONS ACT, 2015

TITLE I

CORPS OF ENGINEERS—CIVIL

DEPARTMENT OF THE ARMY

CORPS OF ENGINEERS—CIVIL

The following appropriations shall be expended under the direction of the Secretary of the Army and the supervision of the Chief

of Engineers for authorized civil functions of the Department of the Army pertaining to river and harbor, flood and storm damage reduction, shore protection, aquatic ecosystem restoration, and related efforts.

INVESTIGATIONS

For expenses necessary where authorized by law for the collection and study of basic information pertaining to river and harbor, flood and storm damage reduction, shore protection, aquatic ecosystem restoration, and related needs; for surveys and detailed studies, and plans and specifications of proposed river and harbor, flood and storm damage reduction, shore protection, and aquatic ecosystem restoration projects, and related efforts prior to construction; for restudy of authorized projects; and for miscellaneous investigations, and, when authorized by law, surveys and detailed studies, and plans and specifications of projects prior to construction, $122,000,000, to remain available until expended: *Provided*, That the Secretary may initiate up to, but not more than, 10 new study starts during fiscal year 2015: *Provided further*, That the new study starts will consist of seven studies where the majority of the benefits are derived from navigation transportation savings or from flood and storm damage reduction and three studies where the majority of the benefits are derived from environmental restoration: *Provided further*, That the Secretary shall not deviate from the new starts proposed in the work plan, once the plan has been submitted to the Committees on Appropriations of the House of Representatives and the Senate.

CONSTRUCTION

For expenses necessary for the construction of river and harbor, flood and storm damage reduction, shore protection, aquatic ecosystem restoration, and related projects authorized by law; for conducting detailed studies, and plans and specifications, of such projects (including those involving participation by States, local governments, or private groups) authorized or made eligible for selection by law (but such detailed studies, and plans and specifications, shall not constitute a commitment of the Government to construction); $1,639,489,000, to remain available until expended; of which such sums as are necessary to cover the Federal share of construction costs for facilities under the Dredged Material Disposal Facilities program shall be derived from the Harbor Maintenance Trust Fund as authorized by Public Law 104–303; and of which such sums as are necessary to cover one-half of the costs of construction, replacement, rehabilitation, and expansion of inland waterways projects shall be derived from the Inland Waterways Trust Fund, except as otherwise specifically provided for in law: *Provided*, That the Secretary may initiate up to, but not more than, four new construction starts during fiscal year 2015: *Provided further*, That the new construction starts will consist of three projects where the majority of the benefits are derived from navigation transportation savings or from flood and storm damage reduction and one project where the majority of the benefits are derived from environmental restoration: *Provided further*, That for new construction projects, project cost sharing agreements shall be executed as soon as practicable but no later than August 31, 2015: *Provided further*, That no allocation for a new start shall be considered final and no work allowance shall be made until the Secretary provides to the Committees on Appropriations of the House of Representatives and the Senate an out-year funding scenario demonstrating the affordability of the selected new start and the impacts on other projects: *Provided further*, That the Secretary may not deviate from the new starts proposed in the work plan, once the plan has been submitted to the Committees on Appropriations of the House of Representatives and the Senate.

MISSISSIPPI RIVER AND TRIBUTARIES

For expenses necessary for flood damage reduction projects and related efforts in the Mississippi River alluvial valley below Cape Girardeau, Missouri, as authorized by law, $302,000,000, to remain available until expended, of which such sums as are necessary to cover the Federal share of eligible operation and maintenance costs for inland harbors shall be derived from the Harbor Maintenance Trust Fund.

OPERATION AND MAINTENANCE

For expenses necessary for the operation, maintenance, and care of existing river and harbor, flood and storm damage reduction, aquatic ecosystem restoration, and related projects authorized by law; providing security for infrastructure owned or operated by the Corps, including administrative buildings and laboratories; maintaining harbor channels provided by a State, municipality, or other public agency that serve essential navigation needs of general commerce, where authorized by law; surveying and charting northern and northwestern lakes and connecting waters; clearing and straightening channels; and removing obstructions to navigation, $2,908,511,000, to remain available until expended, of which such sums as are necessary to cover the Federal share of eligible operation and maintenance costs for coastal harbors and channels, and for inland harbors shall be derived from the Harbor Maintenance Trust Fund; of which such sums as become available from the special account for the Corps of Engineers established by the Land and Water Conservation Fund Act of 1965 shall be derived from that account for resource protection, research, interpretation, and maintenance activities related to resource protection in the areas at which outdoor recreation is available; and of which such sums as become available from fees collected under section 217 of Public Law 104–303 shall be used to cover the cost of operation and maintenance of the dredged material disposal facilities for which such fees have been collected: *Provided*, That 1 percent of the total amount of funds provided for each of the programs, projects, or activities funded under this heading shall not be allocated to a field operating activity prior to the beginning of the fourth quarter of the fiscal year and shall be available for use by the Chief of Engineers to fund such emergency activities as the Chief of Engineers determines to be necessary and appropriate, and that the Chief of Engineers shall allocate during the fourth quarter any remaining funds which have not been used for emergency activities proportionally in accordance with the amounts provided for the programs, projects, or activities.

REGULATORY PROGRAM

For expenses necessary for administration of laws pertaining to regulation of navigable waters and wetlands, $200,000,000, to remain available until September 30, 2016.

FORMERLY UTILIZED SITES REMEDIAL ACTION PROGRAM

For expenses necessary to clean up contamination from sites in the United States resulting from work performed as part of the Nation's early atomic energy program, $101,500,000, to remain available until expended.

FLOOD CONTROL AND COASTAL EMERGENCIES

For expenses necessary to prepare for flood, hurricane, and other natural disasters and support emergency operations, repairs, and other activities in response to such disasters as authorized by law, $28,000,000, to remain available until expended.

EXPENSES

For expenses necessary for the supervision and general administration of the civil works program in the headquarters of the Corps of Engineers and the offices of the Division Engineers; and for costs of management and operation of the Humphreys Engineer Center Support Activity, the Institute for Water Resources, the United States Army Engineer Research and Development Center, and the United States Army Corps of Engineers Finance Center allocable to the civil works program, $178,000,000, to remain available until September 30, 2016, of which not to exceed $5,000 may be used for official reception and representation purposes and only during the current fiscal year: *Provided*, That no part of any other appropriation provided in title I of this Act shall be available to fund the civil works activities of the Office of the Chief of Engineers or the civil works executive direction and management activities of the division offices: *Provided further*, That any Flood Control and Coastal Emergencies appropriation may be used to fund the supervision and general administration of emergency operations, repairs, and other activities in response to any flood, hurricane, or other natural disaster.

OFFICE OF THE ASSISTANT SECRETARY OF THE ARMY FOR CIVIL WORKS

For the Office of the Assistant Secretary of the Army for Civil Works as authorized by 10 U.S.C. 3016(b)(3), $3,000,000, to remain available until September 30, 2016.

GENERAL PROVISIONS—CORPS OF ENGINEERS—CIVIL

(INCLUDING TRANSFER AND RESCISSION OF FUNDS)

SEC. 101. (a) None of the funds provided in title I of this Act, or provided by previous appropriations Acts to the agencies or entities funded in title I of this Act that remain available for obligation or expenditure in fiscal year 2015, shall be available for obligation or expenditure through a reprogramming of funds that:

(1) creates or initiates a new program, project, or activity;

(2) eliminates a program, project, or activity;

(3) increases funds or personnel for any program, project, or activity for which funds have been denied or restricted by this Act, unless prior approval is received from the House and Senate Committees on Appropriations;

(4) proposes to use funds directed for a specific activity for a different purpose, unless prior approval is received from the House and Senate Committees on Appropriations;

(5) augments or reduces existing programs, projects, or activities in excess of the amounts contained in paragraphs 6 through 10, unless prior approval is received from the House and Senate Committees on Appropriations;

(6) INVESTIGATIONS.—For a base level over $100,000, reprogramming of 25 percent of the base amount up to a limit of $150,000 per project, study or activity is allowed: *Provided*, That for a base level less than $100,000, the reprogramming limit is $25,000: *Provided further*, That up to $25,000 may be reprogrammed into any continuing study or activity that did not receive an appropriation for existing obligations and concomitant administrative expenses;

(7) CONSTRUCTION.—For a base level over $2,000,000, reprogramming of 15 percent of the base amount up to a limit of $3,000,000 per project, study or activity is allowed: *Provided*, That for a base level less than $2,000,000, the reprogramming limit is

$300,000: *Provided further*, That up to $3,000,000 may be reprogrammed for settled contractor claims, changed conditions, or real estate deficiency judgments: *Provided further*, That up to $300,000 may be reprogrammed into any continuing study or activity that did not receive an appropriation for existing obligations and concomitant administrative expenses;

(8) OPERATION AND MAINTENANCE.—Unlimited reprogramming authority is granted for the Corps to be able to respond to emergencies: *Provided*, That the Chief of Engineers shall notify the House and Senate Committees on Appropriations of these emergency actions as soon thereafter as practicable: *Provided further*, That for a base level over $1,000,000, reprogramming of 15 percent of the base amount up to a limit of $5,000,000 per project, study or activity is allowed: *Provided further*, That for a base level less than $1,000,000, the reprogramming limit is $150,000: *Provided further*, That $150,000 may be reprogrammed into any continuing study or activity that did not receive an appropriation;

(9) MISSISSIPPI RIVER AND TRIBUTARIES.—The reprogramming guidelines in paragraphs (6), (7), and (8) shall apply to the Investigations, Construction, and Operation and Maintenance portions of the Mississippi River and Tributaries Account respectively; and

(10) FORMERLY UTILIZED SITES REMEDIAL ACTION PROGRAM.—Reprogramming of up to 15 percent of the base of the receiving project is permitted.

(b) DE MINIMIS REPROGRAMMINGS.—In no case should a reprogramming for less than $50,000 be submitted to the House and Senate Committees on Appropriations.

(c) CONTINUING AUTHORITIES PROGRAM.—Subsection (a)(1) shall not apply to any project or activity funded under the continuing authorities program.

(d) Not later than 60 days after the date of enactment of this Act, the Secretary shall submit a report to the House and Senate Committees on Appropriations to establish the baseline for application of reprogramming and transfer authorities for the current fiscal year which shall include:

(1) A table for each appropriation with a separate column to display the President's budget request, adjustments made by Congress, adjustments due to enacted rescissions, if applicable, and the fiscal year enacted level; and

(2) A delineation in the table for each appropriation both by object class and program, project and activity as detailed in the budget appendix for the respective appropriations; and

(3) An identification of items of special congressional interest.

SEC. 102. None of the funds made available in this title may be used to award or modify any contract that commits funds beyond the amounts appropriated for that program, project, or activity that remain unobligated, except that such amounts may include any funds that have been made available through reprogramming pursuant to section 101.

SEC. 103. The Secretary of the Army may transfer to the Fish and Wildlife Service, and the Fish and Wildlife Service may accept and expend, up to $4,700,000 of funds provided in this title under the heading ''Operation and Maintenance'' to mitigate for fisheries lost due to Corps of Engineers projects.

SEC. 104. Subsection (a)(6) of section 511 of the Water Resources Development Act of 1996 (16 U.S.C. 3301 note; 110 Stat. 3761–3762; 113 Stat. 375–376; 121 Stat. 1203) is amended by striking ''$25,000,000'' and inserting ''$43,400,000''.

SEC. 105. The Secretary shall allocate funds made available in this Act solely in accordance with the provisions of this Act and the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act), including the determination and designation of new starts.

SEC. 106. None of the funds made available by this Act may be used to continue the study conducted by the Army Corps of Engineers pursuant to section 5018(a)(1) of the Water Resources Development Act of 2007 (Public Law 110–114).

SEC. 107. None of the funds made available in this Act may be used within the borders of the State of Louisiana by the Mississippi Valley Division or the Southwestern Division of the Army Corps of Engineers or any district of the Corps within such divisions to implement or enforce the mitigation methodology, referred to as the ''Modified Charleston Method''.

SEC. 108. (a) Of the funds made available in prior appropriations Acts for water resources efforts under the headings ''Corps of Engineers—Civil, Department of the Army'' that remain unobligated as of the date of enactment of this Act, including amounts specified in law for particular projects, programs, or activities, $28,000,000 is rescinded.

(b) None of the funds under subsection (a) may be rescinded from amounts that the Congress designated as an emergency requirement pursuant to the Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985, as amended.

SEC. 109. None of the funds made available in this or any other Act making appropriations for Energy and Water Development for any fiscal year may be used by the Corps of Engineers during the fiscal year ending September 30, 2015, to develop, adopt, implement, administer, or enforce any change to the regulations in effect on October 1, 2012, pertaining to the definitions of the terms ''fill material'' or ''discharge of fill material'' for the purposes of the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.).

SEC. 110. The limited reevaluation report initiated in fiscal year 2012 for the Mobile Harbor, Alabama navigation project shall include evaluation of the full depth of the project as authorized under section 201 of Public Law 99–662 (110 Stat. 4090) at the same non-Federal share of the cost as in the design agreement executed on August 14, 2012.

SEC. 111. None of the funds made available by this Act may be used to require a permit for the discharge of dredged or fill material under the Federal Water Pollution Control Act (33 U.S.C. 1251, et seq.) for the activities identified in subparagraphs (A) and (C) of section 404(f)(1) of the Act (33 U.S.C. 1344(f)(1)(A),(C)).

SEC. 112. The U.S. Environmental Protection Agency and the U.S. Department of the Army shall withdraw the interpretive rule, ''U.S. Environmental Protection Agency and the U.S. Department of the Army Interpretive Rule Regarding the Applicability of the Clean Water Act Section 404(f)(1)(A),'' signed on March 25, 2014.

TITLE II

DEPARTMENT OF THE INTERIOR

CENTRAL UTAH PROJECT

CENTRAL UTAH PROJECT COMPLETION ACCOUNT

For carrying out activities authorized by the Central Utah Project Completion Act, $9,874,000, to remain available until expended, of which $1,000,000 shall be deposited into the Utah Reclamation Mitigation and Conservation Account for use by the Utah Reclamation Mitigation and Conservation Commission: *Provided*, That of the amount provided under this heading, $1,300,000 shall be available until September 30, 2016, for necessary expenses incurred in carrying out related responsibilities of the Secretary of the Interior: *Provided further*, That for fiscal year 2015, of the amount made available to the Commission under this Act or any other Act, the Commission may use an amount not to exceed $1,500,000 for administrative expenses.

BUREAU OF RECLAMATION

The following appropriations shall be expended to execute authorized functions of the Bureau of Reclamation:

WATER AND RELATED RESOURCES

(INCLUDING TRANSFERS OF FUNDS)

For management, development, and restoration of water and related natural resources and for related activities, including the operation, maintenance, and rehabilitation of reclamation and other facilities, participation in fulfilling related Federal responsibilities to Native Americans, and related grants to, and cooperative and other agreements with, State and local governments, federally recognized Indian tribes, and others, $978,131,000, to remain available until expended, of which $25,000 shall be available for transfer to the Upper Colorado River Basin Fund and $6,840,000 shall be available for transfer to the Lower Colorado River Basin Development Fund; of which such amounts as may be necessary may be advanced to the Colorado River Dam Fund: *Provided*, That such transfers may be increased or decreased within the overall appropriation under this heading: *Provided further*, That of the total appropriated, the amount for program activities that can be financed by the Reclamation Fund or the Bureau of Reclamation special fee account established by 16 U.S.C. 6806 shall be derived from that Fund or account: *Provided further*, That funds contributed under 43 U.S.C. 395 are available until expended for the purposes for which the funds were contributed: *Provided further*, That funds advanced under 43 U.S.C. 397a shall be credited to this account and are available until expended for the same purposes as the sums appropriated under this heading: *Provided further*, That of the amounts provided herein, funds may be used for high-priority projects which shall be carried out by the Youth Conservation Corps, as authorized by 16 U.S.C. 1706.

CENTRAL VALLEY PROJECT RESTORATION FUND

For carrying out the programs, projects, plans, habitat restoration, improvement, and acquisition provisions of the Central Valley Project Improvement Act, $56,995,000, to be derived from such sums as may be collected in the Central Valley Project Restoration Fund pursuant to sections 3407(d), 3404(c)(3), and 3405(f) of Public Law 102–575, to remain available until expended: *Provided*, That the Bureau of Reclamation is directed to assess and collect the full amount of the additional mitigation and restoration payments authorized by section 3407(d) of Public Law 102–575: *Provided further*, That none of the funds made available under this heading may be used for the acquisition or leasing of water for in-stream purposes if the water is already committed to in-stream purposes by a court adopted decree or order.

CALIFORNIA BAY-DELTA RESTORATION

(INCLUDING TRANSFERS OF FUNDS)

For carrying out activities authorized by the Water Supply, Reliability, and Environmental Improvement Act, consistent with plans to be approved by the Secretary of the Interior, $37,000,000, to remain available until expended, of which such amounts as may be necessary to carry out such activities may be transferred to appropriate accounts of other participating Federal agencies to carry out authorized purposes: *Provided*, That funds appropriated herein may be used for the Federal share of the costs of CALFED

Program management: *Provided further*, That CALFED implementation shall be carried out in a balanced manner with clear performance measures demonstrating concurrent progress in achieving the goals and objectives of the Program.

POLICY AND ADMINISTRATION

For necessary expenses of policy, administration, and related functions in the Office of the Commissioner, the Denver office, and offices in the five regions of the Bureau of Reclamation, to remain available until September 30, 2016, $58,500,000, to be derived from the Reclamation Fund and be nonreimbursable as provided in 43 U.S.C. 377: *Provided*, That no part of any other appropriation in this Act shall be available for activities or functions budgeted as policy and administration expenses.

BUREAU OF RECLAMATION LOAN PROGRAM ACCOUNT

(INCLUDING RESCISSION OF FUNDS)

Of the unobligated balances available under this heading, $500,000 is hereby rescinded.

ADMINISTRATIVE PROVISION

Appropriations for the Bureau of Reclamation shall be available for purchase of not to exceed five passenger motor vehicles, which are for replacement only.

GENERAL PROVISIONS—DEPARTMENT OF THE INTERIOR

SEC. 201. (a) None of the funds provided in title II of this Act for Water and Related Resources, or provided by previous appropriations Acts to the agencies or entities funded in title II of this Act for Water and Related Resources that remain available for obligation or expenditure in fiscal year 2015, shall be available for obligation or expenditure through a reprogramming of funds that—

(1) initiates or creates a new program, project, or activity;

(2) eliminates a program, project, or activity;

(3) increases funds for any program, project, or activity for which funds have been denied or restricted by this Act, unless prior approval is received from the Committees on Appropriations of the House of Representatives and the Senate;

(4) restarts or resumes any program, project or activity for which funds are not provided in this Act, unless prior approval is received from the Committees on Appropriations of the House of Representatives and the Senate;

(5) transfers funds in excess of the following limits, unless prior approval is received from the Committees on Appropriations of the House of Representatives and the Senate:

(A) 15 percent for any program, project or activity for which $2,000,000 or more is available at the beginning of the fiscal year; or

(B) $300,000 for any program, project or activity for which less than $2,000,000 is available at the beginning of the fiscal year;

(6) transfers more than $500,000 from either the Facilities Operation, Maintenance, and Rehabilitation category or the Resources Management and Development category to any program, project, or activity in the other category, unless prior approval is received from the Committees on Appropriations of the House of Representatives and the Senate; or

(7) transfers, where necessary to discharge legal obligations of the Bureau of Reclamation, more than $5,000,000 to provide adequate funds for settled contractor claims, increased contractor earnings due to accelerated rates of operations, and real estate deficiency judgments, unless prior approval is received from the Committees on Appropriations of the House of Representatives and the Senate.

(b) Subsection (a)(5) shall not apply to any transfer of funds within the Facilities Operation, Maintenance, and Rehabilitation category.

(c) For purposes of this section, the term transfer means any movement of funds into or out of a program, project, or activity.

(d) The Bureau of Reclamation shall submit reports on a quarterly basis to the Committees on Appropriations of the House of Representatives and the Senate detailing all the funds reprogrammed between programs, projects, activities, or categories of funding. The first quarterly report shall be submitted not later than 60 days after the date of enactment of this Act.

SEC. 202. (a) None of the funds appropriated or otherwise made available by this Act may be used to determine the final point of discharge for the interceptor drain for the San Luis Unit until development by the Secretary of the Interior and the State of California of a plan, which shall conform to the water quality standards of the State of California as approved by the Administrator of the Environmental Protection Agency, to minimize any detrimental effect of the San Luis drainage waters.

(b) The costs of the Kesterson Reservoir Cleanup Program and the costs of the San Joaquin Valley Drainage Program shall be classified by the Secretary of the Interior as reimbursable or nonreimbursable and collected until fully repaid pursuant to the ''Cleanup Program—Alternative Repayment Plan'' and the ''SJVDP—Alternative Repayment Plan'' described in the report entitled ''Repayment Report, Kesterson Reservoir Cleanup Program and San Joaquin Valley Drainage Program, February 1995'', prepared by the Department of the Interior, Bureau of Reclamation. Any future obligations of funds by the United States relating to, or providing for, drainage service or drainage studies for the San Luis Unit shall be fully reimbursable by San Luis Unit beneficiaries of such service or studies pursuant to Federal reclamation law.

SEC. 203. Section 9504(e) of the Secure Water Act of 2009 (42 U.S.C. 10364(e)) is amended by striking ''$200,000,000'' and inserting ''$300,000,000''.

SEC. 204. Section 301 of the Reclamation States Emergency Drought Relief Act of 1991 (43 U.S.C. 2241) is amended by striking ''2012'' and inserting ''2017''.

SEC. 205. Title I of Public Law 108–361 (the Calfed Bay-Delta Authorization Act) (118 Stat. 1681), as amended by section 210 of Public Law 111–85, is amended by striking ''2015'' each place it appears and inserting ''2016''.

SEC. 206. (a) IN GENERAL.—The Secretary of the Interior may fund or participate in pilot projects to increase Colorado River System water in Lake Mead and the initial units of Colorado River Storage Project reservoirs, as authorized by the first section of the Act of April 11, 1956 (43 U.S.C. 620), to address the effects of historic drought conditions.

(b) ADMINISTRATION.—Pilot projects under this section are authorized to be funded through—

(1) grants by the Secretary to public entities that use water from the Colorado River Basin for municipal purposes for projects that are implemented by 1 or more non-Federal entities; or

(2) grants or other appropriate financial agreements to provide additional funds for renewing or implementing water conservation agreements that are in existence on the date of enactment of this Act.

(c) LIMITATIONS.—

(1) Funds in the Upper Colorado River Basin Fund established by section 5 of the Colorado River Storage Project Act (43 U.S.C. 620d) and the Lower Colorado River Basin Development Fund established by section 403 of the Colorado River Basin Project Act (43 U.S.C. 1543) shall not be used to carry out this section; and

(2) the authority to fund these pilot projects through grants shall terminate on September 30, 2018.

(d) REPORT AND RECOMMENDATION.—Not later than September 30, 2018, the Secretary shall submit to the Committees on Appropriations and Natural Resources of the House of Representatives and the Committees on Appropriations and Energy and Natural Resources of the Senate a report evaluating the effectiveness of the pilot projects described in subsection (a) and a recommendation to Congress whether the activities undertaken by the pilot projects should be continued.

TITLE III

DEPARTMENT OF ENERGY

ENERGY PROGRAMS

ENERGY EFFICIENCY AND RENEWABLE ENERGY

(INCLUDING TRANSFER AND RESCISSION OF FUNDS)

For Department of Energy expenses including the purchase, construction, and acquisition of plant and capital equipment, and other expenses necessary for energy efficiency and renewable energy activities in carrying out the purposes of the Department of Energy Organization Act (42 U.S.C. 7101 et seq.), including the acquisition or condemnation of any real property or any facility or for plant or facility acquisition, construction, or expansion, $1,936,999,858, to remain available until expended: *Provided*, That $160,000,000 shall be available until September 30, 2016, for program direction: *Provided further*, That, of the amount provided under this heading, the Secretary may transfer up to $45,000,000 to the Defense Production Act Fund for activities of the Department of Energy pursuant to the Defense Production Act of 1950 (50 U.S.C. App. 2061, et seq.): *Provided further*, That $13,064,858 from unobligated balances available from prior year appropriations provided under this heading is hereby rescinded, of which $145,204 is from Public Law 111–8 and $696,654 is from Public Law 111–85: *Provided further*, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

ELECTRICITY DELIVERY AND ENERGY RELIABILITY

For Department of Energy expenses including the purchase, construction, and acquisition of plant and capital equipment, and other expenses necessary for electricity delivery and energy reliability activities in carrying out the purposes of the Department of Energy Organization Act (42 U.S.C. 7101 et seq.), including the acquisition or condemnation of any real property or any facility or for plant or facility acquisition, construction, or expansion, $147,306,000, to remain available until expended: *Provided*, That $27,606,000 shall be available until September 30, 2016, for program direction.

NUCLEAR ENERGY

(INCLUDING RESCISSION OF FUNDS)

For Department of Energy expenses including the purchase, construction, and acquisition of plant and capital equipment, and other expenses necessary for nuclear energy activities in carrying out the purposes of the Department of Energy Organization Act (42 U.S.C. 7101 et seq.), including the acquisition or condemnation of any real property or any facility or for plant or facility acquisition,

construction, or expansion, $913,500,000, to remain available until expended: *Provided*, That, of the amount made available under this heading, $80,000,000 shall be available until September 30, 2016, for program direction including official reception and representation expenses not to exceed $10,000: *Provided further*, That, of the funds made available under this heading in prior years, $80,000,000 of unobligated balances is hereby rescinded, including up to $18,000,000 from funds provided for program direction activities: *Provided further*, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

FOSSIL ENERGY RESEARCH AND DEVELOPMENT

For Department of Energy expenses necessary in carrying out fossil energy research and development activities, under the authority of the Department of Energy Organization Act (Public Law 95–91), including the acquisition of interest, including defeasible and equitable interests in any real property or any facility or for plant or facility acquisition or expansion, and for conducting inquiries, technological investigations and research concerning the extraction, processing, use, and disposal of mineral substances without objectionable social and environmental costs (30 U.S.C. 3, 1602, and 1603), $571,000,000, to remain available until expended: *Provided*, That $119,000,000 shall be available until September 30, 2016, for program direction.

NAVAL PETROLEUM AND OIL SHALE RESERVES

For Department of Energy expenses necessary to carry out naval petroleum and oil shale reserve activities, $19,950,000, to remain available until expended: *Provided*, That, notwithstanding any other provision of law, unobligated funds remaining from prior years shall be available for all naval petroleum and oil shale reserve activities.

ELK HILLS SCHOOL LANDS FUND

For necessary expenses in fulfilling the final payment under the Settlement Agreement entered into by the United States and the State of California on October 11, 1996, as authorized by section 3415 of Public Law 104–106, $15,579,815, for payment to the State of California for the State Teachers' Retirement Fund, of which $15,579,815 shall be derived from the Elk Hills School Lands Fund.

STRATEGIC PETROLEUM RESERVE

For Department of Energy expenses necessary for Strategic Petroleum Reserve facility development and operations and program management activities pursuant to the Energy Policy and Conservation Act (42 U.S.C. 6201 et seq.), $200,000,000, to remain available until expended.

NORTHEAST HOME HEATING OIL RESERVE

(INCLUDING RESCISSION OF FUNDS)

For Department of Energy expenses necessary for Northeast Home Heating Oil Reserve storage, operation, and management activities pursuant to the Energy Policy and Conservation Act (42 U.S.C. 6201 et seq.), $7,600,000, to remain available until expended: *Provided*, That of the unobligated balances from prior year appropriations available under this heading, $6,000,000 is hereby rescinded: *Provided further*, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

ENERGY INFORMATION ADMINISTRATION

For Department of Energy expenses necessary in carrying out the activities of the Energy Information Administration, $117,000,000, to remain available until expended.

NON-DEFENSE ENVIRONMENTAL CLEANUP

For Department of Energy expenses, including the purchase, construction, and acquisition of plant and capital equipment and other expenses necessary for non-defense environmental cleanup activities in carrying out the purposes of the Department of Energy Organization Act (42 U.S.C. 7101 et seq.), including the acquisition or condemnation of any real property or any facility or for plant or facility acquisition, construction, or expansion, $246,000,000, to remain available until expended: *Provided*, That funding made available under this heading may be made available for 15–D–410 Fort St. Vrain Facility Improvements Project.

URANIUM ENRICHMENT DECONTAMINATION AND DECOMMISSIONING FUND

For Department of Energy expenses necessary in carrying out uranium enrichment facility decontamination and decommissioning, remedial actions, and other activities of title II of the Atomic Energy Act of 1954, and title X, subtitle A, of the Energy Policy Act of 1992, $625,000,000, to be derived from the Uranium Enrichment Decontamination and Decommissioning Fund, to remain available until expended, of which $10,000,000 shall be available in accordance with title X, subtitle A, of the Energy Policy Act of 1992.

SCIENCE

For Department of Energy expenses including the purchase, construction, and acquisition of plant and capital equipment, and other expenses necessary for science activities in carrying out the purposes of the Department of Energy Organization Act (42 U.S.C. 7101 et seq.), including the acquisition or condemnation of any real property or facility or for plant or facility acquisition, construction, or expansion, and purchase of not more than 17 passenger motor vehicles for replacement only, including two buses, $5,071,000,000, to remain available until expended: *Provided*, That $183,700,000 shall be available until September 30, 2016, for program direction: *Provided further*, That no funding may be made available for United States cash contributions to the International Thermonuclear Experimental Reactor project until its governing Council implements the recommendations of the Third Biennial International Organization Management Assessment Report: *Provided further*, That the Secretary of Energy may waive this requirement upon submission to the Committees on Appropriations of the House of Representatives and the Senate a determination that the Council is making satisfactory progress towards implementation of such recommendations.

ADVANCED RESEARCH PROJECTS AGENCY—ENERGY

For Department of Energy expenses necessary in carrying out the activities authorized by section 5012 of the America COMPETES Act (Public Law 110–69), as amended, $280,000,000, to remain available until expended: *Provided*, That $28,000,000 shall be available until September 30, 2016, for program direction.

TITLE 17 INNOVATIVE TECHNOLOGY LOAN GUARANTEE PROGRAM

Such sums as are derived from amounts received from borrowers pursuant to section 1702(b) of the Energy Policy Act of 2005 under this heading in prior Acts, shall be collected in accordance with section 502(7) of the Congressional Budget Act of 1974: *Provided*, That, for necessary administrative expenses to carry out this Loan Guarantee program, $42,000,000 is appropriated, to remain available until September 30, 2016: *Provided further*, That $25,000,000 of the fees collected pursuant to section 1702(h) of the Energy Policy Act of 2005 shall be credited as offsetting collections to this account to cover administrative expenses and shall remain available until expended, so as to result in a final fiscal year 2015 appropriation from the general fund estimated at not more than $17,000,000: *Provided further*, That fees collected under section 1702(h) in excess of the amount appropriated for administrative expenses shall not be available until appropriated: *Provided further*, That the Department of Energy shall not subordinate any loan obligation to other financing in violation of section 1702 of the Energy Policy Act of 2005 or subordinate any Guaranteed Obligation to any loan or other debt obligations in violation of section 609.10 of title 10, Code of Federal Regulations.

ADVANCED TECHNOLOGY VEHICLES MANUFACTURING LOAN PROGRAM

For Department of Energy administrative expenses necessary in carrying out the Advanced Technology Vehicles Manufacturing Loan Program, $4,000,000, to remain available until September 30, 2016.

CLEAN COAL TECHNOLOGY

(INCLUDING RESCISSION OF FUNDS)

Of the unobligated balances from prior year appropriations under this heading, $6,600,000 is hereby permanently rescinded: *Provided*, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985, as amended.

DEPARTMENTAL ADMINISTRATION

For salaries and expenses of the Department of Energy necessary for departmental administration in carrying out the purposes of the Department of Energy Organization Act (42 U.S.C. 7101 et seq.), $245,142,000, to remain available until September 30, 2016, including the hire of passenger motor vehicles and official reception and representation expenses not to exceed $30,000, plus such additional amounts as necessary to cover increases in the estimated amount of cost of work for others notwithstanding the provisions of the Anti-Deficiency Act (31 U.S.C. 1511 et seq.): *Provided*, That such increases in cost of work are offset by revenue increases of the same or greater amount: *Provided further*, That moneys received by the Department for miscellaneous revenues estimated to total $119,171,000 in fiscal year 2015 may be retained and used for operating expenses within this account, as authorized by section 201 of Public Law 95–238, notwithstanding the provisions of 31 U.S.C. 3302: *Provided further*, That the sum herein appropriated shall be reduced as collections are received during the fiscal year so as to result in a final fiscal year 2015 appropriation from the general fund estimated at not more than $125,971,000: *Provided further*, That $31,181,000 is for Energy Policy and Systems Analysis: *Provided further*, That of the funds made available for Energy Policy and Systems Analysis, the Secretary may obligate only $26,000,000 until the report required under section 315(f) of this Act has been submitted to Congress.

OFFICE OF THE INSPECTOR GENERAL

For necessary expenses of the Office of the Inspector General in carrying out the provisions of the Inspector General Act of 1978, $40,500,000, to remain available until September 30, 2016.

ATOMIC ENERGY DEFENSE ACTIVITIES

NATIONAL NUCLEAR SECURITY ADMINISTRATION

WEAPONS ACTIVITIES

(INCLUDING RESCISSION OF FUNDS)

For Department of Energy expenses, including the purchase, construction, and acquisition of plant and capital equipment and other incidental expenses necessary for atomic energy defense weapons activities in carrying out the purposes of the Department of Energy Organization Act (42 U.S.C. 7101 et seq.), including the acquisition or condemnation of any real property or any facility or for plant or facility acquisition, construction, or expansion, and the purchase of not to exceed 4 passenger vehicles, $8,231,770,000, to remain available until expended: *Provided*, That $97,118,000 shall be available until September 30, 2016, for program direction: *Provided further*, That of the unobligated balances from prior year appropriations available under this heading, $45,113,000 is hereby rescinded: *Provided further*, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

DEFENSE NUCLEAR NONPROLIFERATION

(INCLUDING RESCISSION OF FUNDS)

For Department of Energy expenses, including the purchase, construction, and acquisition of plant and capital equipment and other incidental expenses necessary for defense nuclear nonproliferation activities, in carrying out the purposes of the Department of Energy Organization Act (42 U.S.C. 7101 et seq.), including the acquisition or condemnation of any real property or any facility or for plant or facility acquisition, construction, or expansion, $1,641,369,000, to remain available until expended: *Provided*, That funds provided by this Act for Project 99–D–143, Mixed Oxide Fuel Fabrication Facility, and by prior Acts that remain unobligated for such Project, may be made available only for construction and program support activities for such Project: *Provided further*, That of the unobligated balances from prior year appropriations available under this heading, $24,731,000 is hereby rescinded: *Provided further*, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

NAVAL REACTORS

(INCLUDING RESCISSION OF FUNDS)

For Department of Energy expenses necessary for naval reactors activities to carry out the Department of Energy Organization Act (42 U.S.C. 7101 et seq.), including the acquisition (by purchase, condemnation, construction, or otherwise) of real property, plant, and capital equipment, facilities, and facility expansion, $1,238,500,000, to remain available until expended: *Provided*, That $41,500,000 shall be available until September 30, 2016, for program direction: *Provided further*, That $4,500,000 from unobligated balances available from prior year appropriations provided under this heading is hereby rescinded: *Provided further*, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

FEDERAL SALARIES AND EXPENSES

For necessary expenses for Federal Salaries and Expenses (previously the Office of the Administrator) in the National Nuclear Security Administration, $370,000,000, to remain available until September 30, 2016, including official reception and representation expenses not to exceed $12,000.

ENVIRONMENTAL AND OTHER DEFENSE ACTIVITIES

DEFENSE ENVIRONMENTAL CLEANUP

(INCLUDING RESCISSION OF FUNDS)

For Department of Energy expenses, including the purchase, construction, and acquisition of plant and capital equipment and other expenses necessary for atomic energy defense environmental cleanup activities in carrying out the purposes of the Department of Energy Organization Act (42 U.S.C. 7101 et seq.), including the acquisition or condemnation of any real property or any facility or for plant or facility acquisition, construction, or expansion, and the purchase of not to exceed one sport utility vehicle, one heavy duty truck, two ambulances, and one ladder fire truck for replacement only, $5,010,830,000, to remain available until expended: *Provided*, That $280,784,000 shall be available until September 30, 2016, for program direction: *Provided further*, That $10,830,000 from unobligated balances available from prior year appropriations provided under this heading is hereby rescinded: *Provided further*, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

DEFENSE URANIUM ENRICHMENT DECONTAMINATION AND DECOMMISSIONING

For an additional amount for atomic energy of defense environmental cleanup activities for Department of Energy contributions for uranium enrichment decontamination and decommissioning activities, $463,000,000, to be deposited into the Defense Environmental Cleanup account which shall be transferred to the ''Uranium Enrichment Decontamination and Decommissioning Fund''.

OTHER DEFENSE ACTIVITIES

For Department of Energy expenses, including the purchase, construction, and acquisition of plant and capital equipment and other expenses, necessary for atomic energy defense, other defense activities, and classified activities, in carrying out the purposes of the Department of Energy Organization Act (42 U.S.C. 7101 et seq.), including the acquisition or condemnation of any real property or any facility or for plant or facility acquisition, construction, or expansion, $754,000,000, to remain available until expended: *Provided*, That $249,378,000 shall be available until September 30, 2016, for program direction.

POWER MARKETING ADMINISTRATION

BONNEVILLE POWER ADMINISTRATION FUND

Expenditures from the Bonneville Power Administration Fund, established pursuant to Public Law 93–454, are approved for the Black Canyon Trout Hatchery and, in addition, for official reception and representation expenses in an amount not to exceed $5,000: *Provided*, That during fiscal year 2015, no new direct loan obligations may be made.

OPERATION AND MAINTENANCE, SOUTHEASTERN POWER ADMINISTRATION

For necessary expenses of operation and maintenance of power transmission facilities and of marketing electric power and energy, including transmission wheeling and ancillary services, pursuant to section 5 of the Flood Control Act of 1944 (16 U.S.C. 825s), as applied to the southeastern power area, $7,220,000, including official reception and representation expenses in an amount not to exceed $1,500, to remain available until expended: *Provided*, That notwithstanding 31 U.S.C. 3302 and section 5 of the Flood Control Act of 1944, up to $7,220,000 collected by the Southeastern Power Administration from the sale of power and related services shall be credited to this account as discretionary offsetting collections, to remain available until expended for the sole purpose of funding the annual expenses of the Southeastern Power Administration: *Provided further*, That the sum herein appropriated for annual expenses shall be reduced as collections are received during the fiscal year so as to result in a final fiscal year 2015 appropriation estimated at not more than $0: *Provided further*, That, notwithstanding 31 U.S.C. 3302, up to $73,579,000 collected by the Southeastern Power Administration pursuant to the Flood Control Act of 1944 to recover purchase power and wheeling expenses shall be credited to this account as offsetting collections, to remain available until expended for the sole purpose of making purchase power and wheeling expenditures: *Provided further*, That for purposes of this appropriation, annual expenses means expenditures that are generally recovered in the same year that they are incurred (excluding purchase power and wheeling expenses).

OPERATION AND MAINTENANCE, SOUTHWESTERN POWER ADMINISTRATION

For necessary expenses of operation and maintenance of power transmission facilities and of marketing electric power and energy, for construction and acquisition of transmission lines, substations and appurtenant facilities, and for administrative expenses, including official reception and representation expenses in an amount not to exceed $1,500 in carrying out section 5 of the Flood Control Act of 1944 (16 U.S.C. 825s), as applied to the Southwestern Power Administration, $46,240,000, to remain available until expended: *Provided*, That notwithstanding 31 U.S.C. 3302 and section 5 of the Flood Control Act of 1944 (16 U.S.C. 825s), up to $34,840,000 collected by the Southwestern Power Administration from the sale of power and related services shall be credited to this account as discretionary offsetting collections, to remain available until expended, for the sole purpose of funding the annual expenses of the Southwestern Power Administration: *Provided further*, That the sum herein appropriated for annual expenses shall be reduced as collections are received during the fiscal year so as to result in a final fiscal year 2015 appropriation estimated at not more than $11,400,000: *Provided further*, That, notwithstanding 31 U.S.C. 3302, up to $53,000,000 collected by the Southwestern Power Administration pursuant to the Flood Control Act of 1944 to recover purchase power and wheeling expenses shall be credited to this account as offsetting collections, to remain available until expended for the sole purpose of making purchase power and wheeling expenditures: *Provided further*, That, for purposes of this appropriation, annual expenses means expenditures that are generally recovered in the same year that they are incurred (excluding purchase power and wheeling expenses).

CONSTRUCTION, REHABILITATION, OPERATION AND MAINTENANCE, WESTERN AREA POWER ADMINISTRATION

For carrying out the functions authorized by title III, section 302(a)(1)(E) of the Act of August 4, 1977 (42 U.S.C. 7152), and other related activities including conservation and renewable resources programs as authorized, $304,402,000, including official reception and representation expenses in an amount not to exceed $1,500, to remain available until expended, of which $296,321,000 shall be derived from the Department of the Interior Reclamation Fund: *Provided*, That notwithstanding 31 U.S.C. 3302, section 5 of the Flood

Control Act of 1944 (16 U.S.C. 825s), and section 1 of the Interior Department Appropriation Act, 1939 (43 U.S.C. 392a), up to $211,030,000 collected by the Western Area Power Administration from the sale of power and related services shall be credited to this account as discretionary offsetting collections, to remain available until expended, for the sole purpose of funding the annual expenses of the Western Area Power Administration: *Provided further*, That the sum herein appropriated for annual expenses shall be reduced as collections are received during the fiscal year so as to result in a final fiscal year 2015 appropriation estimated at not more than $93,372,000, of which $85,291,000 is derived from the Reclamation Fund: *Provided further*, That, notwithstanding 31 U.S.C. 3302, up to $260,510,000 collected by the Western Area Power Administration pursuant to the Flood Control Act of 1944 and the Reclamation Project Act of 1939 to recover purchase power and wheeling expenses shall be credited to this account as offsetting collections, to remain available until expended for the sole purpose of making purchase power and wheeling expenditures: *Provided further*, That, for purposes of this appropriation, annual expenses means expenditures that are generally recovered in the same year that they are incurred (excluding purchase power and wheeling expenses).

FALCON AND AMISTAD OPERATING AND MAINTENANCE FUND

For operation, maintenance, and emergency costs for the hydroelectric facilities at the Falcon and Amistad Dams, $4,727,000, to remain available until expended, and to be derived from the Falcon and Amistad Operating and Maintenance Fund of the Western Area Power Administration, as provided in section 2 of the Act of June 18, 1954 (68 Stat. 255): *Provided*, That notwithstanding the provisions of that Act and of 31 U.S.C. 3302, up to $4,499,000 collected by the Western Area Power Administration from the sale of power and related services from the Falcon and Amistad Dams shall be credited to this account as discretionary offsetting collections, to remain available until expended for the sole purpose of funding the annual expenses of the hydroelectric facilities of these Dams and associated Western Area Power Administration activities: *Provided further*, That the sum herein appropriated for annual expenses shall be reduced as collections are received during the fiscal year so as to result in a final fiscal year 2015 appropriation estimated at not more than $228,000: *Provided further*, That for purposes of this appropriation, annual expenses means expenditures that are generally recovered in the same year that they are incurred: *Provided further*, That for fiscal year 2015, the Administrator of the Western Area Power Administration may accept up to $802,000 in funds contributed by United States power customers of the Falcon and Amistad Dams for deposit into the Falcon and Amistad Operating and Maintenance Fund, and such funds shall be available for the purpose for which contributed in like manner as if said sums had been specifically appropriated for such purpose: *Provided further*, That any such funds shall be available without further appropriation and without fiscal year limitation for use by the Commissioner of the United States Section of the International Boundary and Water Commission for the sole purpose of operating, maintaining, repairing, rehabilitating, replacing, or upgrading the hydroelectric facilities at these Dams in accordance with agreements reached between the Administrator, Commissioner, and the power customers.

FEDERAL ENERGY REGULATORY COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the Federal Energy Regulatory Commission to carry out the provisions of the Department of Energy Organization Act (42 U.S.C. 7101 et seq.), including services as authorized by 5 U.S.C. 3109, the hire of passenger motor vehicles, and official reception and representation expenses not to exceed $3,000, $304,389,000, to remain available until expended: *Provided*, That of the amount appropriated herein, not more than $5,400,000 may be made available for salaries, travel, and other support costs for the offices of the Commissioners: *Provided further*, That notwithstanding any other provision of law, not to exceed $304,389,000 of revenues from fees and annual charges, and other services and collections in fiscal year 2015 shall be retained and used for necessary expenses in this account, and shall remain available until expended: *Provided further*, That the sum herein appropriated from the general fund shall be reduced as revenues are received during fiscal year 2015 so as to result in a final fiscal year 2015 appropriation from the general fund estimated at not more than $0.

GENERAL PROVISIONS—DEPARTMENT OF ENERGY

(INCLUDING TRANSFER AND RESCISSIONS OF FUNDS)

SEC. 301. (a) No appropriation, funds, or authority made available by this title for the Department of Energy shall be used to initiate or resume any program, project, or activity or to prepare or initiate Requests For Proposals or similar arrangements (including Requests for Quotations, Requests for Information, and Funding Opportunity Announcements) for a program, project, or activity if the program, project, or activity has not been funded by Congress.

(b)(1) Unless the Secretary of Energy notifies the Committees on Appropriations of the House of Representatives and the Senate at least 3 full business days in advance, none of the funds made available in this title may be used to—

(A) make a grant allocation or discretionary grant award totaling $1,000,000 or more;

(B) make a discretionary contract award or Other Transaction Agreement totaling $1,000,000 or more, including a contract covered by the Federal Acquisition Regulation;

(C) issue a letter of intent to make an allocation, award, or Agreement in excess of the limits in subparagraph (A) or (B); or

(D) announce publicly the intention to make an allocation, award, or Agreement in excess of the limits in subparagraph (A) or (B).

(2) The Secretary of Energy shall submit to the Committees on Appropriations of the House of Representatives and the Senate within 15 days of the conclusion of each quarter a report detailing each grant allocation or discretionary grant award totaling less than $1,000,000 provided during the previous quarter.

(3) The notification required by paragraph (1) and the report required by paragraph (2) shall include the recipient of the award, the amount of the award, the fiscal year for which the funds for the award were appropriated, the account and program, project, or activity from which the funds are being drawn, the title of the award, and a brief description of the activity for which the award is made.

(c) The Department of Energy may not, with respect to any program, project, or activity that uses budget authority made available in this title under the heading ''Department of Energy—Energy Programs'', enter into a multiyear contract, award a multiyear grant, or enter into a multiyear cooperative agreement unless—

(1) the contract, grant, or cooperative agreement is funded for the full period of performance as anticipated at the time of award; or

(2) the contract, grant, or cooperative agreement includes a clause conditioning the Federal Government's obligation on the availability of future year budget authority and the Secretary notifies the Committees on Appropriations of the House of Representatives and the Senate at least 3 days in advance.

(d) Except as provided in subsections (e), (f), and (g), the amounts made available by this title shall be expended as authorized by law for the programs, projects, and activities specified in the ''Final Bill'' column in the ''Department of Energy'' table included under the heading ''Title III—Department of Energy'' in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(e) The amounts made available by this title may be reprogrammed for any program, project, or activity, and the Department shall notify the Committees on Appropriations of the House of Representatives and the Senate at least 30 days prior to the use of any proposed reprogramming which would cause any program, project, or activity funding level to increase or decrease by more than $5,000,000 or 10 percent, whichever is less, during the time period covered by this Act.

(f) None of the funds provided in this title shall be available for obligation or expenditure through a reprogramming of funds that—

(1) creates, initiates, or eliminates a program, project, or activity;

(2) increases funds or personnel for any program, project, or activity for which funds are denied or restricted by this Act; or

(3) reduces funds that are directed to be used for a specific program, project, or activity by this Act.

(g)(1) The Secretary of Energy may waive any requirement or restriction in this section that applies to the use of funds made available for the Department of Energy if compliance with such requirement or restriction would pose a substantial risk to human health, the environment, welfare, or national security.

(2) The Secretary of Energy shall notify the Committees on Appropriations of the House of Representatives and the Senate of any waiver under paragraph (1) as soon as practicable, but not later than 3 days after the date of the activity to which a requirement or restriction would otherwise have applied. Such notice shall include an explanation of the substantial risk under paragraph (1) that permitted such waiver.

SEC. 302. The unexpended balances of prior appropriations provided for activities in this Act may be available to the same appropriation accounts for such activities established pursuant to this title. Available balances may be merged with funds in the applicable established accounts and thereafter may be accounted for as one fund for the same time period as originally enacted.

SEC. 303. Funds appropriated by this or any other Act, or made available by the transfer of funds in this Act, for intelligence activities are deemed to be specifically authorized by the Congress for purposes of section 504 of the National Security Act of 1947 (50 U.S.C. 414) during fiscal year 2015 until the enactment of the Intelligence Authorization Act for fiscal year 2015.

SEC. 304. None of the funds made available in this title shall be used for the construction of facilities classified as high-hazard nuclear facilities under 10 CFR Part 830 unless independent oversight is conducted by the Office of Independent Enterprise Assessments to ensure the project is in compliance with nuclear safety requirements.

SEC. 305. None of the funds made available in this title may be used to approve critical decision-2 or critical decision-3 under Department of Energy Order 413.3B, or any successive departmental guidance, for construction projects where the total project cost exceeds $100,000,000, until a separate independent cost estimate has been developed for the project for that critical decision.

SEC. 306. (a) SECRETARIAL DETERMINATIONS.—In this fiscal year, and in each subsequent fiscal year, any determination (including a determination made prior to the date of enactment of this Act) by the Secretary of Energy under section 3112(d)(2)(B) of the USEC Privatization Act (110 Stat. 1321–335), as amended, shall be valid for not more than 2 calendar years subsequent to such determination.

(b) CONGRESSIONAL NOTIFICATION.—In this fiscal year, and in each subsequent fiscal year, not less than 30 days prior to the provision of uranium in any form the Secretary of Energy shall notify the Committees on Appropriations of the House of Representatives and the Senate of the following—

(1) the provisions of law (including regulations) authorizing the provision of uranium;

(2) the amount of uranium to be provided;

(3) an estimate by the Secretary of Energy of the gross fair market value of the uranium on the expected date of the provision of the uranium;

(4) the expected date of the provision of the uranium;

(5) the recipient of the uranium;

(6) the value the Secretary of Energy expects to receive in exchange for the uranium, including any adjustments to the gross fair market value of the uranium; and

(7) whether the uranium to be provided is encumbered by any restriction on use under an international agreement or otherwise.

SEC. 307. Notwithstanding section 301(c) of this Act, none of the funds made available under the heading ''Department of Energy—Energy Programs—Science'' may be used for a multiyear contract, grant, cooperative agreement, or Other Transaction Agreement of $1,000,000 or less unless the contract, grant, cooperative agreement, or Other Transaction Agreement is funded for the full period of performance as anticipated at the time of award.

SEC. 308. In fiscal year 2015 and subsequent fiscal years, the Secretary of Energy shall submit to the congressional defense committees (as defined in U.S.C. 101(a)(16)) a report, on each major warhead refurbishment program that reaches the Phase 6.3 milestone, that provides an analysis of alternatives. Such report shall include—

(1) a full description of alternatives considered prior to the award of Phase 6.3;

(2) a comparison of the costs and benefits of each of those alternatives, to include an analysis of trade-offs among cost, schedule, and performance objectives against each alternative considered;

(3) identification of the cost and risk of critical technology elements associated with each alternative, including technology maturity, integration risk, manufacturing feasibility, and demonstration needs;

(4) identification of the cost and risk of additional capital asset and infrastructure capabilities required to support production and certification of each alternative;

(5) a comparative analysis of the risks, costs, and scheduling needs for any military requirement intended to enhance warhead safety, security, or maintainability, including any requirement to consolidate and/or integrate warhead systems or mods as compared to at least one other feasible refurbishment alternative the Nuclear Weapons Council considers appropriate; and

(6) a life-cycle cost estimate for the alternative selected that details the overall cost, scope, and schedule planning assumptions.

SEC. 309. (a) Unobligated balances available from prior year appropriations are hereby rescinded from the following accounts of the Department of Energy in the specified amounts:

(1) ''Energy Programs—Energy Efficiency and Renewable Energy'', $9,740,000.

(2) ''Energy Programs—Electricity Delivery and Energy Reliability'', $331,000.

(3) ''Energy Programs—Nuclear Energy'', $121,000.

(4) ''Energy Programs—Fossil Energy Research and Development'', $10,413,000.

(5) ''Energy Programs—Science'', $3,262,000.

(6) ''Energy Programs—Advanced Research Projects Agency—Energy'', $18,000.

(7) ''Energy Programs—Departmental Administration'', $928,000.

(8) ''Atomic Energy Defense Activities—National Nuclear Security Administration—Weapons Activities'', $6,298,000.

(9) ''Atomic Energy Defense Activities—National Nuclear Security Administration—Defense Nuclear Nonproliferation'', $1,390,000.

(10) ''Atomic Energy Defense Activities—National Nuclear Security Administration—Naval Reactors'', $160,000.

(11) ''Atomic Energy Defense Activities—National Nuclear Security Administration—Office of the Administrator'', $413,000.

(12) ''Environmental and Other Defense Activities—Defense Environmental Cleanup'', $9,983,000.

(13) ''Environmental and Other Defense Activities—Other Defense Activities'', $551,000.

(14) ''Power Marketing Administrations—Construction, Rehabilitation, Operation and Maintenance, Western Area Power Administration'', $1,632,000.

(b) No amounts may be rescinded by this section from amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 310. (a) None of the funds made available in this or any prior Act under the heading ''Defense Nuclear Nonproliferation'' may be made available to enter into new contracts with, or new agreements for Federal assistance to, the Russian Federation.

(b) The Secretary of Energy may waive the prohibition in subsection (a) if the Secretary determines that such activity is in the national security interests of the United States. This waiver authority may not be delegated.

(c) A waiver under subsection (b) shall not be effective until 15 days after the date on which the Secretary submits to the Committees on Appropriations of the House of Representatives and the Senate, in classified form if necessary, a report on the justification for the waiver.

SEC. 311. Of the funds authorized by the Secretary of Energy for laboratory directed research and development, no individual program, project, or activity funded by this or any subsequent Act making appropriations for Energy and Water Development for any fiscal year may be charged more than the statutory maximum authorized for such activities: *Provided*, That this section shall take effect not earlier than October 1, 2015.

SEC. 312. (a) DOMESTIC URANIUM ENRICHMENT.—None of the funds appropriated by this or any other Act or that may be available to the Department of Energy may be used for the construction of centrifuges for the production of enriched uranium for national security needs in fiscal year 2015.

(b) The Department shall provide a report to the Committees on Appropriations of the House of Representatives and the Senate not later than April 30, 2015 that includes:

(1) an accounting of the current and future availability of low-enriched uranium, highly-enriched uranium, and tritium to meet defense needs; and

(2) a cost-benefit analysis of each of the options available to supply enriched uranium for defense purposes, including a preliminary cost and schedule estimate to build a national security train.

SEC. 313. None of the funds made available in this Act may be used—

(1) to implement or enforce section 430.32(x) of title 10, Code of Federal Regulations; or

(2) to implement or enforce the standards established by the tables contained in section 325(i)(1)(B) of the Energy Policy and Conservation Act (42 U.S.C. 6295(i)(1)(B)) with respect to BPAR incandescent reflector lamps, BR incandescent reflector lamps, and ER incandescent reflector lamps.

SEC. 314. None of the funds made available by this Act may be used in contravention of section 3112(d)(2)(B) of the USEC Privatization Act (42 U.S.C. 2297h–10(d)(2)(B)) and all public notice and comment requirements under chapter 6 of title 5, United States Code, that are applicable to carrying out such section.

SEC. 315. (a) NOTIFICATION OF STRATEGIC PETROLEUM RESERVE DRAWDOWN.—None of the funds made available by this Act or any prior Act, or funds made available in the SPR Petroleum Account, may be used to conduct a drawdown (including a test drawdown) and sale or exchange of petroleum products from the Strategic Petroleum Reserve unless the Secretary of Energy provides notice, in accordance with subsection (b), of such exchange, or drawdown (including a test drawdown) to the Committees on Appropriations of the House of Representatives and the Senate.

(b)(1) CONTENT OF NOTIFICATION.—The notification required under subsection (a) shall include at a minimum—

(A) The justification for the drawdown or exchange, including—

(i) a specific description of any obligation under international energy agreements; and

(ii) in the case of a test drawdown, the specific aspects of the Strategic Petroleum Reserve to be tested;

(B) the provisions of law (including regulations) authorizing the drawdown or exchange;

(C) the number of barrels of petroleum products proposed to be withdrawn or exchanged;

(D) the location of the Strategic Petroleum Reserve site or sites from which the petroleum products are proposed to be withdrawn;

(E) a good faith estimate of the expected proceeds from the sale of the petroleum products;

(F) an estimate of the total inventories of petroleum products in the Strategic Petroleum Reserve after the anticipated drawdown;

(G) a detailed plan for disposition of the proceeds after deposit into the SPR Petroleum Account; and

(H) a plan for refilling the Strategic Petroleum Reserve, including whether the acquisition will be of the same or a different petroleum product.

(2) TIMING OF NOTIFICATION.—The Secretary shall provide the notification required under subsection (a)—

(A) in the case of an exchange or a drawdown, as soon as practicable after the exchange or drawdown has occurred; and

(B) in the case of a test drawdown, not later than 30 days prior to a test drawdown.

(c) POST-SALE NOTIFICATION.—In addition to reporting requirements under other provisions of law, the Secretary shall, upon the execution of all contract awards associated

with a competitive sale of petroleum products, notify the Committees on Appropriations of the House of Representatives and the Senate of the actual value of the proceeds from the sale.

(d)(1) NEW REGIONAL RESERVES.—The Secretary may not establish any new regional petroleum product reserve—

(A) unless funding for the proposed regional petroleum product reserve is explicitly requested in advance in an annual budget submission and approved by the Congress in an appropriations Act; or

(B) until 90 days after notification of, and approval by, the Committees on Appropriations of the House of Representatives and the Senate.

(2) The budget request or notification shall include—

(A) the justification for the new reserve;

(B) a cost estimate for the establishment, operation, and maintenance of the reserve, including funding sources;

(C) a detailed plan for operation of the reserve, including the conditions upon which the products may be released;

(D) the location of the reserve; and

(E) the estimate of the total inventory of the reserve.

(e) REPORT ON REFINED PETROLEUM PRODUCTS.—Not later than 180 days after the enactment of this Act, the Secretary shall submit to the Committees on Appropriations of the House of Representatives and the Senate a detailed plan for operation of the refined petroleum products reserve, including funding sources and the conditions upon which refined petroleum products may be released.

(f) REPORT ON STRATEGIC PETROLEUM RESERVE EXPANSION.—(1) The Secretary, through the Office of Energy Policy and Systems Analysis, shall submit to the Committees on Appropriations of the House of Representatives and the Senate not later than 180 days after enactment of this Act the report required in Public Law 111–8 (123 Stat. 617) regarding the expansion of the Strategic Petroleum Reserve.

(2) The report required in paragraph (1) shall include an analysis of the impacts of Northeast Regional Refined Petroleum Product Reserve on the domestic petroleum market.

TITLE IV

INDEPENDENT AGENCIES

APPALACHIAN REGIONAL COMMISSION

For expenses necessary to carry out the programs authorized by the Appalachian Regional Development Act of 1965, notwithstanding 40 U.S.C. 14704, and for necessary expenses for the Federal Co-Chairman and the Alternate on the Appalachian Regional Commission, for payment of the Federal share of the administrative expenses of the Commission, including services as authorized by 5 U.S.C. 3109, and hire of passenger motor vehicles, $90,000,000, to remain available until expended.

DEFENSE NUCLEAR FACILITIES SAFETY BOARD

SALARIES AND EXPENSES

For expenses necessary for the Defense Nuclear Facilities Safety Board in carrying out activities authorized by the Atomic Energy Act of 1954, as amended by Public Law 100–456, section 1441, $28,500,000, to remain available until September 30, 2016.

DELTA REGIONAL AUTHORITY

SALARIES AND EXPENSES

For expenses necessary of the Delta Regional Authority and to carry out its activities, as authorized by the Delta Regional Authority Act of 2000, notwithstanding sections 382C(b)(2), 382F(d), 382M, and 382N of said Act, $12,000,000, to remain available until expended.

DENALI COMMISSION

For expenses of the Denali Commission including the purchase, construction, and acquisition of plant and capital equipment as necessary and other expenses, $10,000,000, to remain available until expended, notwithstanding the limitations contained in section 306(g) of the Denali Commission Act of 1998: *Provided*, That funds shall be available for construction projects in an amount not to exceed 80 percent of total project cost for distressed communities, as defined by section 307 of the Denali Commission Act of 1998 (division C, title III, Public Law 105–277), as amended by section 701 of appendix D, title VII, Public Law 106–113 (113 Stat. 1501A–280), and an amount not to exceed 50 percent for non-distressed communities.

NORTHERN BORDER REGIONAL COMMISSION

For expenses necessary of the Northern Border Regional Commission in carrying out activities authorized by subtitle V of title 40, United States Code, $5,000,000, to remain available until expended: *Provided*, That such amounts shall be available for administrative expenses, notwithstanding section 15751(b) of title 40, United States Code.

SOUTHEAST CRESCENT REGIONAL COMMISSION

For necessary expenses of the Southeast Crescent Regional Commission in carrying out activities authorized by subtitle V of title 40, United States Code, $250,000, to remain available until expended.

NUCLEAR REGULATORY COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the Commission in carrying out the purposes of the Energy Reorganization Act of 1974 and the Atomic Energy Act of 1954, $1,003,233,000, including official representation expenses not to exceed $25,000, to remain available until expended: *Provided*, That of the amount appropriated herein, not more than $7,500,000 may be made available for salaries, travel, and other support costs for the Office of the Commission, to remain available until September 30, 2016, of which, notwithstanding section 201(a)(2)(c) of the Energy Reorganization Act of 1974 (42 U.S.C. 5841(a)(2)(c)), the use and expenditure shall only be approved by a majority vote of the Commission: *Provided further*, That the Commission may reprogram, not earlier than 30 days after notification of and approval by the Committees on Appropriations of the House of Representatives and the Senate, up to an additional $2,000,000 for salaries, travel, and other support costs of the Office of the Commission: *Provided further*, That revenues from licensing fees, inspection services, and other services and collections estimated at $885,375,000 in fiscal year 2015 shall be retained and used for necessary salaries and expenses in this account, notwithstanding 31 U.S.C. 3302, and shall remain available until expended: *Provided further*, That the sum herein appropriated shall be reduced by the amount of revenues received during fiscal year 2015 so as to result in a final fiscal year 2015 appropriation estimated at not more than $117,858,000: *Provided further*, That of the amounts appropriated under this heading, $10,000,000 shall be for university research and development in areas relevant to their respective organization's mission, and $5,000,000 shall be for a Nuclear Science and Engineering Grant Program that will support multiyear projects that do not align with programmatic missions but are critical to maintaining the discipline of nuclear science and engineering.

OFFICE OF INSPECTOR GENERAL

For expenses necessary of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, $12,071,000, to remain available until September 30, 2016: *Provided*, That revenues from licensing fees, inspection services, and other services and collections estimated at $10,099,000 in fiscal year 2015 shall be retained and be available until September 30, 2016, for necessary salaries and expenses in this account, notwithstanding section 3302 of title 31, United States Code: *Provided further*, That the sum herein appropriated shall be reduced by the amount of revenues received during fiscal year 2015 so as to result in a final fiscal year 2015 appropriation estimated at not more than $1,972,000: *Provided further*, That, of the amounts appropriated under this heading, $850,000 shall be for Inspector General services for the Defense Nuclear Facilities Safety Board, which shall not be available from fee revenues: *Provided further*, That, notwithstanding any other provision of law, in this fiscal year and each fiscal year thereafter, the Inspector General of the Nuclear Regulatory Commission is authorized to exercise the same authorities with respect to the Defense Nuclear Facilities Safety Board, as determined by the Inspector General of the Nuclear Regulatory Commission, as the Inspector General exercises under the Inspector General Act of 1978 (5 U.S.C. App.) with respect to the Nuclear Regulatory Commission.

NUCLEAR WASTE TECHNICAL REVIEW BOARD

SALARIES AND EXPENSES

For expenses necessary of the Nuclear Waste Technical Review Board, as authorized by Public Law 100–203, section 5051, $3,400,000, to be derived from the Nuclear Waste Fund, to remain available until September 30, 2016.

GENERAL PROVISIONS—INDEPENDENT AGENCIES

SEC. 401. The Chairman of the Nuclear Regulatory Commission shall notify the other members of the Commission, the Committees on Appropriations of the House of Representatives and the Senate, the Committee on Energy and Commerce of the House of Representatives, and the Committee on Environment and Public Works of the Senate, not later than 1 day after the Chairman begins performing functions under the authority of section 3 of Reorganization Plan No. 1 of 1980, or after a member of the Commission who is delegated emergency functions under subsection (b) of that section begins performing those functions. Such notification shall include an explanation of the circumstances warranting the exercise of such authority. The Chairman shall report to the Committees, not less frequently than once each week, on the actions taken by the Chairman, or a delegated member of the Commission, under such authority, until the authority is relinquished. The Chairman shall notify the Committees not later than 1 day after such authority is relinquished. The Chairman shall submit the report required by section 3(d) of the Reorganization Plan No. 1 of 1980 to the Committees not later than 1 day after it was submitted to the Commission. This section shall be in effect in fiscal year 2015 and each subsequent fiscal year.

SEC. 402. The Nuclear Regulatory Commission shall comply with the July 5, 2011, version of Chapter VI of its Internal Commission Procedures when responding to Congressional requests for information.

SEC. 403. (a) SECURING RADIOLOGICAL MATERIAL.—No later than 2 years from enactment of this Act, the Nuclear Regulatory Commission (NRC) shall provide a report to the Committees on Appropriations of the House of Representatives and the Senate that evaluates the effectiveness of the requirements of 10 CFR Part 37 and determines whether such

requirements are adequate to protect high-risk radiological material. Such evaluation shall consider inspection results and event reports from the first two years of implementation of the requirements in 10 CFR Part 37 for NRC licensees.

(b) No later than 2 years after the completion of the NRC evaluation required in subsection (a), the Government Accountability Office, with assistance from an independent group of security experts, shall provide a report to Congress on the effectiveness of the requirements of 10 CFR Part 37 for NRC and Agreement State licensees and recommendations to further strengthen radiological security.

SEC. 404. For this fiscal year, and each fiscal year hereafter, each independent agency receiving funding under this title shall submit to the Committees on Appropriations of the House of Representatives and the Senate a Congressional Budget Justification and a detailed annual report.

TITLE V

GENERAL PROVISIONS

SEC. 501. None of the funds appropriated by this Act may be used in any way, directly or indirectly, to influence congressional action on any legislation or appropriation matters pending before Congress, other than to communicate to Members of Congress as described in 18 U.S.C. 1913.

SEC. 502. (a) None of the funds made available in title III of this Act may be transferred to any department, agency, or instrumentality of the United States Government, except pursuant to a transfer made by or transfer authority provided in this Act or any other appropriations Act for any fiscal year, transfer authority referenced in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act), or any authority whereby a department, agency, or instrumentality of the United States Government may provide goods or services to another department, agency, or instrumentality.

(b) None of the funds made available for any department, agency, or instrumentality of the United States Government may be transferred to accounts funded in title III of this Act, except pursuant to a transfer made by or transfer authority provided in this Act or any other appropriations Act for any fiscal year, transfer authority referenced in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act), or any authority whereby a department, agency, or instrumentality of the United States Government may provide goods or services to another department, agency, or instrumentality.

(c) The head of any relevant department or agency funded in this Act utilizing any transfer authority shall submit to the Committees on Appropriations of the House of Representatives and the Senate a semi-annual report detailing the transfer authorities, except for any authority whereby a department, agency, or instrumentality of the United States Government may provide goods or services to another department, agency, or instrumentality, used in the previous 6 months and in the year-to-date. This report shall include the amounts transferred and the purposes for which they were transferred, and shall not replace or modify existing notification requirements for each authority.

SEC. 503. None of the funds made available by this Act may be used in contravention of Executive Order No. 12898 of February 11, 1994 (Federal Actions to Address Environmental Justice in Minority Populations and Low-Income Populations).

This division may be cited as the ''Energy and Water Development and Related Agencies Appropriations Act, 2015''.

DIVISION E—FINANCIAL SERVICES AND GENERAL GOVERNMENT APPROPRIATIONS ACT, 2015

TITLE I

DEPARTMENT OF THE TREASURY

DEPARTMENTAL OFFICES

SALARIES AND EXPENSES

For necessary expenses of the Departmental Offices including operation and maintenance of the Treasury Building and Annex; hire of passenger motor vehicles; maintenance, repairs, and improvements of, and purchase of commercial insurance policies for, real properties leased or owned overseas, when necessary for the performance of official business; executive direction program activities; international affairs and economic policy activities; domestic finance and tax policy activities; and Treasury-wide management policies and programs activities, $210,000,000: *Provided*, That of the amount appropriated under this heading—

(1) not to exceed $350,000 is for official reception and representation expenses;

(2) not to exceed $258,000 is for unforeseen emergencies of a confidential nature to be allocated and expended under the direction of the Secretary of the Treasury and to be accounted for solely on the Secretary's certificate; and

(3) not to exceed $24,200,000 shall remain available until September 30, 2016, for—

(A) the Treasury-wide Financial Statement Audit and Internal Control Program;

(B) information technology modernization requirements;

(C) in an amount not less than $9,500,000, the audit, oversight, and administration of the Gulf Coast Restoration Trust Fund; and

(D) in an amount not to exceed $3,400,000, the development and implementation of programs within the Office of Critical Infrastructure Protection and Compliance Policy, including entering into cooperative agreements.

OFFICE OF TERRORISM AND FINANCIAL INTELLIGENCE

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For the necessary expenses of the Office of Terrorism and Financial Intelligence to safeguard the financial system against illicit use and to combat rogue nations, terrorist facilitators, weapons of mass destruction proliferators, money launderers, drug kingpins, and other national security threats, $112,500,000: *Provided*, That of the amount appropriated under this heading: (1) not to exceed $27,000,000 is available for administrative expenses; and (2) $1,000,000, to remain available until September 30, 2016, is available for secure space requirements: *Provided further*, That the unobligated balances of prior year appropriations made available for terrorism and financial intelligence activities under the heading ''Department of the Treasury—Departmental Offices—Salaries and Expenses'' shall be transferred to, and merged with, this account.

DEPARTMENT-WIDE SYSTEMS AND CAPITAL INVESTMENTS PROGRAMS

(INCLUDING TRANSFER OF FUNDS)

For development and acquisition of automatic data processing equipment, software, and services and for repairs and renovations to buildings owned by the Department of the Treasury, $2,725,000, to remain available until September 30, 2017: *Provided*, That these funds shall be transferred to accounts and in amounts as necessary to satisfy the requirements of the Department's offices, bureaus, and other organizations: *Provided further*, That this transfer authority shall be in addition to any other transfer authority provided in this Act: *Provided further*, That none of the funds appropriated under this heading shall be used to support or supplement ''Internal Revenue Service, Operations Support'' or ''Internal Revenue Service, Business Systems Modernization''.

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, $35,351,000, including hire of passenger motor vehicles; of which not to exceed $100,000 shall be available for unforeseen emergencies of a confidential nature, to be allocated and expended under the direction of the Inspector General of the Treasury; of which up to $2,800,000 shall be for audits and investigations conducted pursuant to section 1608 of the Resources and Ecosystems Sustainability, Tourist Opportunities, and Revived Economies of the Gulf Coast States Act of 2012 (33 U.S.C. 1321 note); and of which not to exceed $1,000 shall be available for official reception and representation expenses.

TREASURY INSPECTOR GENERAL FOR TAX ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses of the Treasury Inspector General for Tax Administration in carrying out the Inspector General Act of 1978, as amended, including purchase and hire of passenger motor vehicles (31 U.S.C. 1343(b)); and services authorized by 5 U.S.C. 3109, at such rates as may be determined by the Inspector General for Tax Administration; $158,210,000, of which $5,000,000 shall remain available until September 30, 2016; of which not to exceed $6,000,000 shall be available for official travel expenses; of which not to exceed $500,000 shall be available for unforeseen emergencies of a confidential nature, to be allocated and expended under the direction of the Inspector General for Tax Administration; and of which not to exceed $1,500 shall be available for official reception and representation expenses.

SPECIAL INSPECTOR GENERAL FOR THE TROUBLED ASSET RELIEF PROGRAM

SALARIES AND EXPENSES

For necessary expenses of the Office of the Special Inspector General in carrying out the provisions of the Emergency Economic Stabilization Act of 2008 (Public Law 110–343), $34,234,000.

FINANCIAL CRIMES ENFORCEMENT NETWORK

SALARIES AND EXPENSES

For necessary expenses of the Financial Crimes Enforcement Network, including hire of passenger motor vehicles; travel and training expenses of non-Federal and foreign government personnel to attend meetings and training concerned with domestic and foreign financial intelligence activities, law enforcement, and financial regulation; services authorized by 5 U.S.C. 3109; not to exceed $10,000 for official reception and representation expenses; and for assistance to Federal law enforcement agencies, with or without reimbursement, $112,000,000, of which not to exceed $34,335,000 shall remain available until September 30, 2017.

TREASURY FORFEITURE FUND

(RESCISSION)

Of the unobligated balances available under this heading, $769,000,000 are rescinded.

BUREAU OF THE FISCAL SERVICE

SALARIES AND EXPENSES

For necessary expenses of operations of the Bureau of the Fiscal Service, $348,184,000; of which not to exceed $4,210,000, to remain available until September 30, 2017, is for information systems modernization initiatives; and of which $5,000 shall be available

for official reception and representation expenses.

In addition, $165,000, to be derived from the Oil Spill Liability Trust Fund to reimburse administrative and personnel expenses for financial management of the Fund, as authorized by section 1012 of Public Law 101–380.

ALCOHOL AND TOBACCO TAX AND TRADE BUREAU

SALARIES AND EXPENSES

For necessary expenses of carrying out section 1111 of the Homeland Security Act of 2002, including hire of passenger motor vehicles, $100,000,000; of which not to exceed $6,000 for official reception and representation expenses; not to exceed $50,000 for cooperative research and development programs for laboratory services; and provision of laboratory assistance to State and local agencies with or without reimbursement: *Provided*, That of the amount appropriated under this heading, $3,000,000 shall be for the costs of criminal enforcement activities and special law enforcement agents for targeting tobacco smuggling and other criminal diversion activities.

UNITED STATES MINT

UNITED STATES MINT PUBLIC ENTERPRISE FUND

Pursuant to section 5136 of title 31, United States Code, the United States Mint is provided funding through the United States Mint Public Enterprise Fund for costs associated with the production of circulating coins, numismatic coins, and protective services, including both operating expenses and capital investments: *Provided*, That the aggregate amount of new liabilities and obligations incurred during fiscal year 2015 under such section 5136 for circulating coinage and protective service capital investments of the United States Mint shall not exceed $20,000,000.

COMMUNITY DEVELOPMENT FINANCIAL INSTITUTIONS FUND PROGRAM ACCOUNT

To carry out the Riegle Community Development and Regulatory Improvements Act of 1994 (subtitle A of title I of Public Law 103–325), including services authorized by section 3109 of title 5, United States Code, but at rates for individuals not to exceed the per diem rate equivalent to the rate for EX–3, $230,500,000. Of the amount appropriated under this heading—

(1) not less than $152,400,000, notwithstanding section 108(e) of Public Law 103–325 (12 U.S.C. 4707(e)) with regard to Small and/or Emerging Community Development Financial Institutions Assistance awards, is available until September 30, 2016, for financial assistance and technical assistance under subparagraphs (A) and (B) of section 108(a)(1), respectively, of Public Law 103–325 (12 U.S.C. 4707(a)(1)(A) and (B)), of which up to $3,102,500 may be used for the cost of direct loans: *Provided*, That the cost of direct and guaranteed loans, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That these funds are available to subsidize gross obligations for the principal amount of direct loans not to exceed $25,000,000;

(2) not less than $15,000,000, notwithstanding section 108(e) of Public Law 103–325 (12 U.S.C. 4707(e)), is available until September 30, 2016, for financial assistance, technical assistance, training and outreach programs designed to benefit Native American, Native Hawaiian, and Alaskan Native communities and provided primarily through qualified community development lender organizations with experience and expertise in community development banking and lending in Indian country, Native American organizations, tribes and tribal organizations, and other suitable providers;

(3) not less than $18,000,000 is available until September 30, 2016, for the Bank Enterprise Award program;

(4) not less than $22,000,000, notwithstanding subsections (d) and (e) of section 108 of Public Law 103–325 (12 U.S.C. 4707(d) and (e)), is available until September 30, 2016, for a Healthy Food Financing Initiative to provide financial assistance, technical assistance, training, and outreach to community development financial institutions for the purpose of offering affordable financing and technical assistance to expand the availability of healthy food options in distressed communities;

(5) up to $23,100,000 is available until September 30, 2015, for administrative expenses, including administration of CDFI fund programs and the New Markets Tax Credit Program, of which up to $1,000,000 is for capacity building to expand CDFI investments in underserved areas, and up to $300,000 is for administrative expenses to carry out the direct loan program; and

(6) during fiscal year 2015, none of the funds available under this heading are available for the cost, as defined in section 502 of the Congressional Budget Act of 1974, of commitments to guarantee bonds and notes under section 114A of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4713a): *Provided*, That commitments to guarantee bonds and notes under such section 114A shall not exceed $750,000,000: *Provided further*, That such section 114A shall remain in effect until September 30, 2015.

INTERNAL REVENUE SERVICE

TAXPAYER SERVICES

For necessary expenses of the Internal Revenue Service to provide taxpayer services, including pre-filing assistance and education, filing and account services, taxpayer advocacy services, and other services as authorized by 5 U.S.C. 3109, at such rates as may be determined by the Commissioner, $2,156,554,000, of which not less than $7,000,000 shall be for the Tax Counseling for the Elderly Program, of which not less than $10,000,000 shall be available for low-income taxpayer clinic grants, and of which not less than $12,000,000, to remain available until September 30, 2016, shall be available for a Community Volunteer Income Tax Assistance matching grants program for tax return preparation assistance, of which not less than $206,000,000 shall be available for operating expenses of the Taxpayer Advocate Service: *Provided*, That of the amounts made available for the Taxpayer Advocate Service, not less than $5,000,000 shall be for identity theft casework.

ENFORCEMENT

For necessary expenses for tax enforcement activities of the Internal Revenue Service to determine and collect owed taxes, to provide legal and litigation support, to conduct criminal investigations, to enforce criminal statutes related to violations of internal revenue laws and other financial crimes, to purchase and hire passenger motor vehicles (31 U.S.C. 1343(b)), and to provide other services as authorized by 5 U.S.C. 3109, at such rates as may be determined by the Commissioner, $4,860,000,000, of which not less than $60,257,000 shall be for the Interagency Crime and Drug Enforcement program.

OPERATIONS SUPPORT

For necessary expenses of the Internal Revenue Service to support taxpayer services and enforcement programs, including rent payments; facilities services; printing; postage; physical security; headquarters and other IRS-wide administration activities; research and statistics of income; telecommunications; information technology development, enhancement, operations, maintenance, and security; the hire of passenger motor vehicles (31 U.S.C. 1343(b)); and other services as authorized by 5 U.S.C. 3109, at such rates as may be determined by the Commissioner; $3,638,446,000, of which not to exceed $315,000,000 shall remain available until September 30, 2016; of which not to exceed $1,000,000 shall remain available until September 30, 2017, for research; of which not less than $1,850,000 shall be for the Internal Revenue Service Oversight Board; of which not to exceed $25,000 shall be for official reception and representation expenses: *Provided*, That not later than 30 days after the end of each quarter, the Internal Revenue Service shall submit a report to the Committees on Appropriations of the House of Representatives and the Senate and the Comptroller General of the United States detailing the cost and schedule performance for its major information technology investments, including the purpose and life-cycle stages of the investments; the reasons for any cost and schedule variances; the risks of such investments and strategies the Internal Revenue Service is using to mitigate such risks; and the expected developmental milestones to be achieved and costs to be incurred in the next quarter: *Provided further*, That the Internal Revenue Service shall include, in its budget justification for fiscal year 2016, a summary of cost and schedule performance information for its major information technology systems.

BUSINESS SYSTEMS MODERNIZATION

For necessary expenses of the Internal Revenue Service's business systems modernization program, $290,000,000, to remain available until September 30, 2017, for the capital asset acquisition of information technology systems, including management and related contractual costs of said acquisitions, including related Internal Revenue Service labor costs, and contractual costs associated with operations authorized by 5 U.S.C. 3109: *Provided*, That not later than 30 days after the end of each quarter, the Internal Revenue Service shall submit a report to the Committees on Appropriations of the House of Representatives and the Senate and the Comptroller General of the United States detailing the cost and schedule performance for CADE 2 and Modernized e-File information technology investments, including the purposes and life-cycle stages of the investments; the reasons for any cost and schedule variances; the risks of such investments and the strategies the Internal Revenue Service is using to mitigate such risks; and the expected developmental milestones to be achieved and costs to be incurred in the next quarter.

ADMINISTRATIVE PROVISIONS—INTERNAL REVENUE SERVICE

(INCLUDING TRANSFER OF FUNDS)

SEC. 101. Not to exceed 5 percent of any appropriation made available in this Act to the Internal Revenue Service may be transferred to any other Internal Revenue Service appropriation upon the advance approval of the Committees on Appropriations.

SEC. 102. The Internal Revenue Service shall maintain an employee training program, which shall include the following topics: taxpayers' rights, dealing courteously with taxpayers, cross-cultural relations, ethics, and the impartial application of tax law.

SEC. 103. The Internal Revenue Service shall institute and enforce policies and procedures that will safeguard the confidentiality of taxpayer information and protect taxpayers against identity theft.

SEC. 104. Funds made available by this or any other Act to the Internal Revenue Service shall be available for improved facilities

and increased staffing to provide sufficient and effective 1–800 help line service for taxpayers. The Commissioner shall continue to make improvements to the Internal Revenue Service 1–800 help line service a priority and allocate resources necessary to enhance the response time to taxpayer communications, particularly with regard to victims of tax-related crimes.

SEC. 105. None of the funds made available to the Internal Revenue Service by this Act may be used to make a video unless the Service-Wide Video Editorial Board determines in advance that making the video is appropriate, taking into account the cost, topic, tone, and purpose of the video.

SEC. 106. The Internal Revenue Service shall issue a notice of confirmation of any address change relating to an employer making employment tax payments, and such notice shall be sent to both the employer's former and new address and an officer or employee of the Internal Revenue Service shall give special consideration to an offer-in-compromise from a taxpayer who has been the victim of fraud by a third party payroll tax preparer.

SEC. 107. None of the funds made available under this Act may be used by the Internal Revenue Service to target citizens of the United States for exercising any right guaranteed under the First Amendment to the Constitution of the United States.

SEC. 108. None of the funds made available in this Act may be used by the Internal Revenue Service to target groups for regulatory scrutiny based on their ideological beliefs.

SEC. 109. None of funds made available by this Act to the Internal Revenue Service shall be obligated or expended on conferences that do not adhere to the procedures, verification processes, documentation requirements, and policies issued by the Chief Financial Officer, Human Capital Office, and Agency-Wide Shared Services as a result of the recommendations in the report published on May 31, 2013, by the Treasury Inspector General for Tax Administration entitled ''Review of the August 2010 Small Business/Self-Employed Division's Conference in Anaheim, California'' (Reference Number 2013–10–037).

SEC. 110. None of the funds made available by this Act may be used in contravention of section 6103 of the Internal Revenue Code of 1986 (relating to confidentiality and disclosure of returns and return information).

ADMINISTRATIVE PROVISIONS—DEPARTMENT OF THE TREASURY

(INCLUDING TRANSFERS OF FUNDS)

SEC. 111. Appropriations to the Department of the Treasury in this Act shall be available for uniforms or allowances therefor, as authorized by law (5 U.S.C. 5901), including maintenance, repairs, and cleaning; purchase of insurance for official motor vehicles operated in foreign countries; purchase of motor vehicles without regard to the general purchase price limitations for vehicles purchased and used overseas for the current fiscal year; entering into contracts with the Department of State for the furnishing of health and medical services to employees and their dependents serving in foreign countries; and services authorized by 5 U.S.C. 3109.

SEC. 112. Not to exceed 2 percent of any appropriations in this title made available under the headings ''Departmental Offices—Salaries and Expenses'', ''Office of Inspector General'', ''Special Inspector General for the Troubled Asset Relief Program'', ''Financial Crimes Enforcement Network'', ''Bureau of the Fiscal Service'', and ''Alcohol and Tobacco Tax and Trade Bureau'' may be transferred between such appropriations upon the advance approval of the Committees on Appropriations of the House of Representatives and the Senate: *Provided*, That no transfer under this section may increase or decrease any such appropriation by more than 2 percent.

SEC. 113. Not to exceed 2 percent of any appropriation made available in this Act to the Internal Revenue Service may be transferred to the Treasury Inspector General for Tax Administration's appropriation upon the advance approval of the Committees on Appropriations of the House of Representatives and the Senate: *Provided*, That no transfer may increase or decrease any such appropriation by more than 2 percent.

SEC. 114. None of the funds appropriated in this Act or otherwise available to the Department of the Treasury or the Bureau of Engraving and Printing may be used to redesign the $1 Federal Reserve note.

SEC. 115. The Secretary of the Treasury may transfer funds from the ''Bureau of the Fiscal Service-Salaries and Expenses'' to the Debt Collection Fund as necessary to cover the costs of debt collection: *Provided*, That such amounts shall be reimbursed to such salaries and expenses account from debt collections received in the Debt Collection Fund.

SEC. 116. None of the funds appropriated or otherwise made available by this or any other Act may be used by the United States Mint to construct or operate any museum without the explicit approval of the Committees on Appropriations of the House of Representatives and the Senate, the House Committee on Financial Services, and the Senate Committee on Banking, Housing, and Urban Affairs.

SEC. 117. None of the funds appropriated or otherwise made available by this or any other Act or source to the Department of the Treasury, the Bureau of Engraving and Printing, and the United States Mint, individually or collectively, may be used to consolidate any or all functions of the Bureau of Engraving and Printing and the United States Mint without the explicit approval of the House Committee on Financial Services; the Senate Committee on Banking, Housing, and Urban Affairs; and the Committees on Appropriations of the House of Representatives and the Senate.

SEC. 118. Funds appropriated by this Act, or made available by the transfer of funds in this Act, for the Department of the Treasury's intelligence or intelligence related activities are deemed to be specifically authorized by the Congress for purposes of section 504 of the National Security Act of 1947 (50 U.S.C. 414) during fiscal year 2015 until the enactment of the Intelligence Authorization Act for Fiscal Year 2015.

SEC. 119. Not to exceed $5,000 shall be made available from the Bureau of Engraving and Printing's Industrial Revolving Fund for necessary official reception and representation expenses.

SEC. 120. The Secretary of the Treasury shall submit a Capital Investment Plan to the Committees on Appropriations of the Senate and the House of Representatives not later than 30 days following the submission of the annual budget submitted by the President: *Provided*, That such Capital Investment Plan shall include capital investment spending from all accounts within the Department of the Treasury, including but not limited to the Department-wide Systems and Capital Investment Programs account, Treasury Franchise Fund account, and the Treasury Forfeiture Fund account: *Provided further*, That such Capital Investment Plan shall include expenditures occurring in previous fiscal years for each capital investment project that has not been fully completed.

SEC. 121. (a) Not later than 60 days after the end of each quarter, the Office of Financial Stability and the Office of Financial Research shall submit reports on their activities to the Committees on Appropriations of the House of Representatives and the Senate, the Committee on Financial Services of the House of Representatives and the Senate Committee on Banking, Housing, and Urban Affairs.

(b) The reports required under subsection (a) shall include—

(1) the obligations made during the previous quarter by object class, office, and activity;

(2) the estimated obligations for the remainder of the fiscal year by object class, office, and activity;

(3) the number of full-time equivalents within each office during the previous quarter;

(4) the estimated number of full-time equivalents within each office for the remainder of the fiscal year; and

(5) actions taken to achieve the goals, objectives, and performance measures of each office.

(c) At the request of any such Committees specified in subsection (a), the Office of Financial Stability and the Office of Financial Research shall make officials available to testify on the contents of the reports required under subsection (a).

SEC. 122. Within 45 days after the date of enactment of this Act, the Secretary of the Treasury shall submit an itemized report to the Committees on Appropriations of the House of Representatives and the Senate on the amount of total funds charged to each office by the Franchise Fund including the amount charged for each service provided by the Franchise Fund to each office, a detailed description of the services, a detailed explanation of how each charge for each service is calculated, and a description of the role customers have in governing in the Franchise Fund.

SEC. 123. The Secretary of the Treasury, in consultation with the appropriate agencies, departments, bureaus, and commissions that have expertise in terrorism and complex financial instruments, shall provide a report to the Committees on Appropriations of the House of Representatives and Senate, the Committee on Financial Services of the House of Representatives, and the Committee on Banking, Housing, and Urban Affairs of the Senate not later than 90 days after the date of enactment of this Act on economic warfare and financial terrorism.

This title may be cited as the ''Department of the Treasury Appropriations Act, 2015''.

TITLE II

EXECUTIVE OFFICE OF THE PRESIDENT AND FUNDS APPROPRIATED TO THE PRESIDENT

THE WHITE HOUSE

SALARIES AND EXPENSES

For necessary expenses for the White House as authorized by law, including not to exceed $3,850,000 for services as authorized by 5 U.S.C. 3109 and 3 U.S.C. 105; subsistence expenses as authorized by 3 U.S.C. 105, which shall be expended and accounted for as provided in that section; hire of passenger motor vehicles, and travel (not to exceed $100,000 to be expended and accounted for as provided by 3 U.S.C. 103); and not to exceed $19,000 for official reception and representation expenses, to be available for allocation within the Executive Office of the President; and for necessary expenses of the Office of Policy Development, including services as authorized by 5 U.S.C. 3109 and 3 U.S.C. 107, $55,000,000.

EXECUTIVE RESIDENCE AT THE WHITE HOUSE

OPERATING EXPENSES

For necessary expenses of the Executive Residence at the White House, $12,700,000, to

be expended and accounted for as provided by 3 U.S.C. 105, 109, 110, and 112–114.

REIMBURSABLE EXPENSES

For the reimbursable expenses of the Executive Residence at the White House, such sums as may be necessary: *Provided*, That all reimbursable operating expenses of the Executive Residence shall be made in accordance with the provisions of this paragraph: *Provided further*, That, notwithstanding any other provision of law, such amount for reimbursable operating expenses shall be the exclusive authority of the Executive Residence to incur obligations and to receive offsetting collections, for such expenses: *Provided further*, That the Executive Residence shall require each person sponsoring a reimbursable political event to pay in advance an amount equal to the estimated cost of the event, and all such advance payments shall be credited to this account and remain available until expended: *Provided further*, That the Executive Residence shall require the national committee of the political party of the President to maintain on deposit $25,000, to be separately accounted for and available for expenses relating to reimbursable political events sponsored by such committee during such fiscal year: *Provided further*, That the Executive Residence shall ensure that a written notice of any amount owed for a reimbursable operating expense under this paragraph is submitted to the person owing such amount within 60 days after such expense is incurred, and that such amount is collected within 30 days after the submission of such notice: *Provided further*, That the Executive Residence shall charge interest and assess penalties and other charges on any such amount that is not reimbursed within such 30 days, in accordance with the interest and penalty provisions applicable to an outstanding debt on a United States Government claim under 31 U.S.C. 3717: *Provided further*, That each such amount that is reimbursed, and any accompanying interest and charges, shall be deposited in the Treasury as miscellaneous receipts: *Provided further*, That the Executive Residence shall prepare and submit to the Committees on Appropriations, by not later than 90 days after the end of the fiscal year covered by this Act, a report setting forth the reimbursable operating expenses of the Executive Residence during the preceding fiscal year, including the total amount of such expenses, the amount of such total that consists of reimbursable official and ceremonial events, the amount of such total that consists of reimbursable political events, and the portion of each such amount that has been reimbursed as of the date of the report: *Provided further*, That the Executive Residence shall maintain a system for the tracking of expenses related to reimbursable events within the Executive Residence that includes a standard for the classification of any such expense as political or nonpolitical: *Provided further*, That no provision of this paragraph may be construed to exempt the Executive Residence from any other applicable requirement of subchapter I or II of chapter 37 of title 31, United States Code.

WHITE HOUSE REPAIR AND RESTORATION

For the repair, alteration, and improvement of the Executive Residence at the White House pursuant to 3 U.S.C. 105(d), $625,000, to remain available until expended, for required maintenance, resolution of safety and health issues, and continued preventative maintenance.

COUNCIL OF ECONOMIC ADVISERS

SALARIES AND EXPENSES

For necessary expenses of the Council of Economic Advisers in carrying out its functions under the Employment Act of 1946 (15 U.S.C. 1021 et seq.), $4,184,000.

NATIONAL SECURITY COUNCIL AND HOMELAND SECURITY COUNCIL

SALARIES AND EXPENSES

For necessary expenses of the National Security Council and the Homeland Security Council, including services as authorized by 5 U.S.C. 3109, $12,600,000.

OFFICE OF ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses of the Office of Administration, including services as authorized by 5 U.S.C. 3109 and 3 U.S.C. 107, and hire of passenger motor vehicles, $111,300,000, of which not to exceed $12,006,000 shall remain available until expended for continued modernization of the information technology infrastructure within the Executive Office of the President.

OFFICE OF MANAGEMENT AND BUDGET

SALARIES AND EXPENSES

For necessary expenses of the Office of Management and Budget, including hire of passenger motor vehicles and services as authorized by 5 U.S.C. 3109, to carry out the provisions of chapter 35 of title 44, United States Code, and to prepare and submit the budget of the United States Government, in accordance with section 1105(a) of title 31, United States Code, $91,750,000, of which not to exceed $3,000 shall be available for official representation expenses: *Provided*, That none of the funds appropriated in this Act for the Office of Management and Budget may be used for the purpose of reviewing any agricultural marketing orders or any activities or regulations under the provisions of the Agricultural Marketing Agreement Act of 1937 (7 U.S.C. 601 et seq.): *Provided further*, That none of the funds made available for the Office of Management and Budget by this Act may be expended for the altering of the transcript of actual testimony of witnesses, except for testimony of officials of the Office of Management and Budget, before the Committees on Appropriations or their subcommittees: *Provided further*, That none of the funds provided in this or prior Acts shall be used, directly or indirectly, by the Office of Management and Budget, for evaluating or determining if water resource project or study reports submitted by the Chief of Engineers acting through the Secretary of the Army are in compliance with all applicable laws, regulations, and requirements relevant to the Civil Works water resource planning process: *Provided further*, That the Office of Management and Budget shall have not more than 60 days in which to perform budgetary policy reviews of water resource matters on which the Chief of Engineers has reported: *Provided further*, That the Director of the Office of Management and Budget shall notify the appropriate authorizing and appropriating committees when the 60-day review is initiated: *Provided further*, That if water resource reports have not been transmitted to the appropriate authorizing and appropriating committees within 15 days after the end of the Office of Management and Budget review period based on the notification from the Director, Congress shall assume Office of Management and Budget concurrence with the report and act accordingly.

OFFICE OF NATIONAL DRUG CONTROL POLICY

SALARIES AND EXPENSES

For necessary expenses of the Office of National Drug Control Policy; for research activities pursuant to the Office of National Drug Control Policy Reauthorization Act of 2006 (Public Law 109–469); not to exceed $10,000 for official reception and representation expenses; and for participation in joint projects or in the provision of services on matters of mutual interest with nonprofit, research, or public organizations or agencies, with or without reimbursement, $22,647,000: *Provided*, That the Office is authorized to accept, hold, administer, and utilize gifts, both real and personal, public and private, without fiscal year limitation, for the purpose of aiding or facilitating the work of the Office.

FEDERAL DRUG CONTROL PROGRAMS

HIGH INTENSITY DRUG TRAFFICKING AREAS PROGRAM

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Office of National Drug Control Policy's High Intensity Drug Trafficking Areas Program, $245,000,000, to remain available until September 30, 2016, for drug control activities consistent with the approved strategy for each of the designated High Intensity Drug Trafficking Areas (''HIDTAs''), of which not less than 51 percent shall be transferred to State and local entities for drug control activities and shall be obligated not later than 120 days after enactment of this Act: *Provided*, That up to 49 percent may be transferred to Federal agencies and departments in amounts determined by the Director of the Office of National Drug Control Policy, of which up to $2,700,000 may be used for auditing services and associated activities: *Provided further*, That, notwithstanding the requirements of Public Law 106–58, any unexpended funds obligated prior to fiscal year 2013 may be used for any other approved activities of that HIDTA, subject to reprogramming requirements: *Provided further*, That each HIDTA designated as of September 30, 2014, shall be funded at not less than the fiscal year 2014 base level, unless the Director submits to the Committees on Appropriations of the House of Representatives and the Senate justification for changes to those levels based on clearly articulated priorities and published Office of National Drug Control Policy performance measures of effectiveness: *Provided further*, That the Director shall notify the Committees on Appropriations of the initial allocation of fiscal year 2015 funding among HIDTAs not later than 45 days after enactment of this Act, and shall notify the Committees of planned uses of discretionary HIDTA funding, as determined in consultation with the HIDTA Directors, not later than 90 days after enactment of this Act: *Provided further*, That upon a determination that all or part of the funds so transferred from this appropriation are not necessary for the purposes provided herein and upon notification to the Committees on Appropriations of the House of Representatives and the Senate, such amounts may be transferred back to this appropriation.

OTHER FEDERAL DRUG CONTROL PROGRAMS

(INCLUDING TRANSFERS OF FUNDS)

For other drug control activities authorized by the Office of National Drug Control Policy Reauthorization Act of 2006 (Public Law 109–469), $107,150,000, to remain available until expended, which shall be available as follows: $93,500,000 for the Drug-Free Communities Program, of which $2,000,000 shall be made available as directed by section 4 of Public Law 107–82, as amended by Public Law 109–469 (21 U.S.C. 1521 note); $1,400,000 for drug court training and technical assistance; $9,000,000 for anti-doping activities; $2,000,000 for the United States membership dues to the World Anti-Doping Agency; and $1,250,000 shall be made available as directed by section 1105 of Public Law 109–469: *Provided*, That amounts made available under this heading may be transferred to other Federal departments and agencies to carry out such activities.

UNANTICIPATED NEEDS

For expenses necessary to enable the President to meet unanticipated needs, in furtherance of the national interest, security, or defense which may arise at home or abroad

during the current fiscal year, as authorized by 3 U.S.C. 108, $800,000, to remain available until September 30, 2016.

INFORMATION TECHNOLOGY OVERSIGHT AND REFORM

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses for the furtherance of integrated, efficient, secure, and effective uses of information technology in the Federal Government, $20,000,000, to remain available until expended: *Provided*, That the Director of the Office of Management and Budget may transfer these funds to one or more other agencies to carry out projects to meet these purposes: *Provided further*, That the Director of the Office of Management and Budget shall submit quarterly reports not later than 45 days after the end of each quarter to the Committees on Appropriations of the House of Representatives and the Senate and the Government Accountability Office identifying the savings achieved by the Office of Management and Budget's government-wide information technology reform efforts: *Provided further*, That such reports shall include savings identified by fiscal year, agency, and appropriation.

SPECIAL ASSISTANCE TO THE PRESIDENT

SALARIES AND EXPENSES

For necessary expenses to enable the Vice President to provide assistance to the President in connection with specially assigned functions; services as authorized by 5 U.S.C. 3109 and 3 U.S.C. 106, including subsistence expenses as authorized by 3 U.S.C. 106, which shall be expended and accounted for as provided in that section; and hire of passenger motor vehicles, $4,211,000.

OFFICIAL RESIDENCE OF THE VICE PRESIDENT

OPERATING EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For the care, operation, refurnishing, improvement, and to the extent not otherwise provided for, heating and lighting, including electric power and fixtures, of the official residence of the Vice President; the hire of passenger motor vehicles; and not to exceed $90,000 pursuant to 3 U.S.C. 106(b)(2), $299,000: *Provided*, That advances, repayments, or transfers from this appropriation may be made to any department or agency for expenses of carrying out such activities.

ADMINISTRATIVE PROVISIONS—EXECUTIVE OFFICE OF THE PRESIDENT AND FUNDS APPROPRIATED TO THE PRESIDENT

(INCLUDING TRANSFERS OF FUNDS)

SEC. 201. From funds made available in this Act under the headings ''The White House'', ''Executive Residence at the White House'', ''White House Repair and Restoration'', ''Council of Economic Advisers'', ''National Security Council and Homeland Security Council'', ''Office of Administration'', ''Special Assistance to the President'', and ''Official Residence of the Vice President'', the Director of the Office of Management and Budget (or such other officer as the President may designate in writing), may, with advance approval of the Committees on Appropriations of the House of Representatives and the Senate, transfer not to exceed 10 percent of any such appropriation to any other such appropriation, to be merged with and available for the same time and for the same purposes as the appropriation to which transferred: *Provided*, That the amount of an appropriation shall not be increased by more than 50 percent by such transfers: *Provided further*, That no amount shall be transferred from ''Special Assistance to the President'' or ''Official Residence of the Vice President'' without the approval of the Vice President.

SEC. 202. Within 90 days after the date of enactment of this section, the Director of the Office of Management and Budget shall submit a report to the Committees on Appropriations of the House of Representatives and the Senate on the costs of implementing the Dodd-Frank Wall Street Reform and Consumer Protection Act (Public Law 111–203). Such report shall include—

(1) the estimated mandatory and discretionary obligations of funds through fiscal year 2017, by Federal agency and by fiscal year, including—

(A) the estimated obligations by cost inputs such as rent, information technology, contracts, and personnel;

(B) the methodology and data sources used to calculate such estimated obligations; and

(C) the specific section of such Act that requires the obligation of funds; and

(2) the estimated receipts through fiscal year 2017 from assessments, user fees, and other fees by the Federal agency making the collections, by fiscal year, including—

(A) the methodology and data sources used to calculate such estimated collections; and

(B) the specific section of such Act that authorizes the collection of funds.

SEC. 203. (a) During fiscal year 2015, any Executive order issued by the President shall be accompanied by a statement from the Director of the Office of Management and Budget on the budgetary impact, including costs, benefits, and revenues, of the Executive order.

(b) Any such statement shall include—

(1) a narrative summary of the budgetary impact of such order on the Federal Government;

(2) the impact on mandatory and discretionary obligations and outlays, listed by Federal agency, for each year in the 5-fiscal year period beginning in fiscal year 2015; and

(3) the impact on revenues of the Federal Government over the 5-fiscal year period beginning in fiscal year 2015.

(c) If an Executive order is issued during fiscal year 2015 due to a national emergency, the Director of the Office of Management and Budget may issue the statement required by subsection (a) not later than 15 days after the date that the Executive order is issued.

SEC. 204. The Director of the Office of National Drug Control Policy shall submit to the Committees on Appropriations of the House of Representatives and the Senate not later than 60 days after the date of enactment of this Act, and prior to the initial obligation of more than 20 percent of the funds appropriated in any account under the heading ''Office of National Drug Control Policy'', a detailed narrative and financial plan on the proposed uses of all funds under the account by program, project, and activity: *Provided*, That the reports required by this section shall be updated and submitted to the Committees on Appropriations every 6 months and shall include information detailing how the estimates and assumptions contained in previous reports have changed: *Provided further*, That any new projects and changes in funding of ongoing projects shall be subject to the prior approval of the Committees on Appropriations.

SEC. 205. Not to exceed 2 percent of any appropriations in this Act made available to the Office of National Drug Control Policy may be transferred between appropriated programs upon the advance approval of the Committees on Appropriations: *Provided*, That no transfer may increase or decrease any such appropriation by more than 3 percent.

SEC. 206. Not to exceed $1,000,000 of any appropriations in this Act made available to the Office of National Drug Control Policy may be reprogrammed within a program, project, or activity upon the advance approval of the Committees on Appropriations.

SEC. 207. The first proviso under the heading ''Data-Driven Innovation'' in division E of Public Law 113–76 is amended by striking ''shall'' and inserting ''may''.

This title may be cited as the ''Executive Office of the President Appropriations Act, 2015''.

TITLE III

THE JUDICIARY

SUPREME COURT OF THE UNITED STATES

SALARIES AND EXPENSES

For expenses necessary for the operation of the Supreme Court, as required by law, excluding care of the building and grounds, including hire of passenger motor vehicles as authorized by 31 U.S.C. 1343 and 1344; not to exceed $10,000 for official reception and representation expenses; and for miscellaneous expenses, to be expended as the Chief Justice may approve, $74,967,000, of which $2,000,000 shall remain available until expended.

In addition, there are appropriated such sums as may be necessary under current law for the salaries of the chief justice and associate justices of the court.

CARE OF THE BUILDING AND GROUNDS

For such expenditures as may be necessary to enable the Architect of the Capitol to carry out the duties imposed upon the Architect by 40 U.S.C. 6111 and 6112, $11,640,000, to remain available until expended.

UNITED STATES COURT OF APPEALS FOR THE FEDERAL CIRCUIT

SALARIES AND EXPENSES

For salaries of officers and employees, and for necessary expenses of the court, as authorized by law, $30,212,000.

In addition, there are appropriated such sums as may be necessary under current law for the salaries of the chief judge and judges of the court.

UNITED STATES COURT OF INTERNATIONAL TRADE

SALARIES AND EXPENSES

For salaries of officers and employees of the court, services, and necessary expenses of the court, as authorized by law, $17,807,000.

In addition, there are appropriated such sums as may be necessary under current law for the salaries of the chief judge and judges of the court.

COURTS OF APPEALS, DISTRICT COURTS, AND OTHER JUDICIAL SERVICES

SALARIES AND EXPENSES

For the salaries of judges of the United States Court of Federal Claims, magistrate judges, and all other officers and employees of the Federal Judiciary not otherwise specifically provided for, necessary expenses of the courts, and the purchase, rental, repair, and cleaning of uniforms for Probation and Pretrial Services Office staff, as authorized by law, $4,846,818,000 (including the purchase of firearms and ammunition); of which not to exceed $27,817,000 shall remain available until expended for space alteration projects and for furniture and furnishings related to new space alteration and construction projects; and of which not to exceed $10,000,000 shall remain available until September 30, 2016, for the Integrated Workplace Initiative: *Provided*, That the amount provided for the Integrated Workplace Initiative shall not be available for obligation until the Director of the Administrative Office of the United States Courts submits a report to the Committees on Appropriations of the House of Representatives and the Senate showing that the estimated cost savings resulting from the Initiative will exceed the estimated amounts obligated for the Initiative.

In addition, there are appropriated such sums as may be necessary under current law for the salaries of circuit and district judges

(including judges of the territorial courts of the United States), bankruptcy judges, and justices and judges retired from office or from regular active service.

In addition, for expenses of the United States Court of Federal Claims associated with processing cases under the National Childhood Vaccine Injury Act of 1986 (Public Law 99–660), not to exceed $5,423,000, to be appropriated from the Vaccine Injury Compensation Trust Fund.

DEFENDER SERVICES

For the operation of Federal Defender organizations; the compensation and reimbursement of expenses of attorneys appointed to represent persons under 18 U.S.C. 3006A and 3599, and for the compensation and reimbursement of expenses of persons furnishing investigative, expert, and other services for such representations as authorized by law; the compensation (in accordance with the maximums under 18 U.S.C. 3006A) and reimbursement of expenses of attorneys appointed to assist the court in criminal cases where the defendant has waived representation by counsel; the compensation and reimbursement of expenses of attorneys appointed to represent jurors in civil actions for the protection of their employment, as authorized by 28 U.S.C. 1875(d)(1); the compensation and reimbursement of expenses of attorneys appointed under 18 U.S.C. 983(b)(1) in connection with certain judicial civil forfeiture proceedings; the compensation and reimbursement of travel expenses of guardians ad litem appointed under 18 U.S.C. 4100(b); and for necessary training and general administrative expenses, $1,016,499,000, to remain available until expended.

FEES OF JURORS AND COMMISSIONERS

For fees and expenses of jurors as authorized by 28 U.S.C. 1871 and 1876; compensation of jury commissioners as authorized by 28 U.S.C. 1863; and compensation of commissioners appointed in condemnation cases pursuant to rule 71.1(h) of the Federal Rules of Civil Procedure (28 U.S.C. Appendix Rule 71.1(h)), $52,191,000, to remain available until expended: *Provided*, That the compensation of land commissioners shall not exceed the daily equivalent of the highest rate payable under 5 U.S.C. 5332.

COURT SECURITY

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses, not otherwise provided for, incident to the provision of protective guard services for United States courthouses and other facilities housing Federal court operations, and the procurement, installation, and maintenance of security systems and equipment for United States courthouses and other facilities housing Federal court operations, including building ingress-egress control, inspection of mail and packages, directed security patrols, perimeter security, basic security services provided by the Federal Protective Service, and other similar activities as authorized by section 1010 of the Judicial Improvement and Access to Justice Act (Public Law 100–702), $513,975,000, of which not to exceed $15,000,000 shall remain available until expended, to be expended directly or transferred to the United States Marshals Service, which shall be responsible for administering the Judicial Facility Security Program consistent with standards or guidelines agreed to by the Director of the Administrative Office of the United States Courts and the Attorney General.

ADMINISTRATIVE OFFICE OF THE UNITED STATES COURTS

SALARIES AND EXPENSES

For necessary expenses of the Administrative Office of the United States Courts as authorized by law, including travel as authorized by 31 U.S.C. 1345, hire of a passenger motor vehicle as authorized by 31 U.S.C. 1343(b), advertising and rent in the District of Columbia and elsewhere, $84,399,000, of which not to exceed $8,500 is authorized for official reception and representation expenses.

FEDERAL JUDICIAL CENTER

SALARIES AND EXPENSES

For necessary expenses of the Federal Judicial Center, as authorized by Public Law 90–219, $26,959,000; of which $1,800,000 shall remain available through September 30, 2016, to provide education and training to Federal court personnel; and of which not to exceed $1,500 is authorized for official reception and representation expenses.

UNITED STATES SENTENCING COMMISSION

SALARIES AND EXPENSES

For the salaries and expenses necessary to carry out the provisions of chapter 58 of title 28, United States Code, $16,894,000, of which not to exceed $1,000 is authorized for official reception and representation expenses.

ADMINISTRATIVE PROVISIONS—THE JUDICIARY

(INCLUDING TRANSFER OF FUNDS)

SEC. 301. Appropriations and authorizations made in this title which are available for salaries and expenses shall be available for services as authorized by 5 U.S.C. 3109.

SEC. 302. Not to exceed 5 percent of any appropriation made available for the current fiscal year for the Judiciary in this Act may be transferred between such appropriations, but no such appropriation, except ''Courts of Appeals, District Courts, and Other Judicial Services, Defender Services'' and ''Courts of Appeals, District Courts, and Other Judicial Services, Fees of Jurors and Commissioners'', shall be increased by more than 10 percent by any such transfers: *Provided*, That any transfer pursuant to this section shall be treated as a reprogramming of funds under sections 604 and 608 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in section 608.

SEC. 303. Notwithstanding any other provision of law, the salaries and expenses appropriation for ''Courts of Appeals, District Courts, and Other Judicial Services'' shall be available for official reception and representation expenses of the Judicial Conference of the United States: *Provided*, That such available funds shall not exceed $11,000 and shall be administered by the Director of the Administrative Office of the United States Courts in the capacity as Secretary of the Judicial Conference.

SEC. 304. Section 3314(a) of title 40, United States Code, shall be applied by substituting ''Federal'' for ''executive'' each place it appears.

SEC. 305. In accordance with 28 U.S.C. 561–569, and notwithstanding any other provision of law, the United States Marshals Service shall provide, for such courthouses as its Director may designate in consultation with the Director of the Administrative Office of the United States Courts, for purposes of a pilot program, the security services that 40 U.S.C. 1315 authorizes the Department of Homeland Security to provide, except for the services specified in 40 U.S.C. 1315(b)(2)(E). For building-specific security services at these courthouses, the Director of the Administrative Office of the United States Courts shall reimburse the United States Marshals Service rather than the Department of Homeland Security.

SEC. 306. (a) Section 203(c) of the Judicial Improvements Act of 1990 (Public Law 101–650; 28 U.S.C. 133 note), is amended in the matter following paragraph (12)—

(1) in the second sentence (relating to the District of Kansas), by striking ''23 years and 6 months'' and inserting ''24 years and 6 months''; and

(2) in the sixth sentence (relating to the District of Hawaii), by striking ''20 years and 6 months'' and inserting ''21 years and 6 months''.

(b) Section 406 of the Transportation, Treasury, Housing and Urban Development, the Judiciary, the District of Columbia, and Independent Agencies Appropriations Act, 2006 (Public Law 109–115; 119 Stat. 2470; 28 U.S.C. 133 note) is amended in the second sentence (relating to the eastern District of Missouri) by striking ''21 years and 6 months'' and inserting ''22 years and 6 months''.

(c) Section 312(c)(2) of the 21st Century Department of Justice Appropriations Authorization Act (Public Law 107–273; 28 U.S.C. 133 note), is amended—

(1) in the first sentence by striking ''12 years'' and inserting ''13 years'';

(2) in the second sentence (relating to the central District of California), by striking ''11 years and 6 months'' and inserting ''12 years and 6 months''; and

(3) in the third sentence (relating to the western district of North Carolina), by striking ''10 years'' and inserting ''11 years''.

SEC. 307. Section 84(b) of title 28, United States Code, is amended in the second sentence by inserting ''Bakersfield,'' after ''shall be held at''.

SEC. 308. Section 3155 of title 18, United States Code, is amended—

(1) in the first sentence, by deleting the words ''and the Director''; and

(2) in the first sentence, by inserting at the end ''and shall ensure that case file, statistical, and other information concerning the work of pretrial services is provided to the Director''.

This title may be cited as the ''Judiciary Appropriations Act, 2015''.

TITLE IV

DISTRICT OF COLUMBIA

FEDERAL FUNDS

FEDERAL PAYMENT FOR RESIDENT TUITION SUPPORT

For a Federal payment to the District of Columbia, to be deposited into a dedicated account, for a nationwide program to be administered by the Mayor, for District of Columbia resident tuition support, $30,000,000, to remain available until expended: *Provided*, That such funds, including any interest accrued thereon, may be used on behalf of eligible District of Columbia residents to pay an amount based upon the difference between in-State and out-of-State tuition at public institutions of higher education, or to pay up to $2,500 each year at eligible private institutions of higher education: *Provided further*, That the awarding of such funds may be prioritized on the basis of a resident's academic merit, the income and need of eligible students and such other factors as may be authorized: *Provided further*, That the District of Columbia government shall maintain a dedicated account for the Resident Tuition Support Program that shall consist of the Federal funds appropriated to the Program in this Act and any subsequent appropriations, any unobligated balances from prior fiscal years, and any interest earned in this or any fiscal year: *Provided further*, That the account shall be under the control of the District of Columbia Chief Financial Officer, who shall use those funds solely for the purposes of carrying out the Resident Tuition Support Program: *Provided further*, That the Office of the Chief Financial Officer shall provide a quarterly financial report to the Committees on Appropriations of the House

of Representatives and the Senate for these funds showing, by object class, the expenditures made and the purpose therefor.

FEDERAL PAYMENT FOR EMERGENCY PLANNING AND SECURITY COSTS IN THE DISTRICT OF COLUMBIA

For a Federal payment of necessary expenses, as determined by the Mayor of the District of Columbia in written consultation with the elected county or city officials of surrounding jurisdictions, $12,500,000, to remain available until expended, for the costs of providing public safety at events related to the presence of the National Capital in the District of Columbia, including support requested by the Director of the United States Secret Service in carrying out protective duties under the direction of the Secretary of Homeland Security, and for the costs of providing support to respond to immediate and specific terrorist threats or attacks in the District of Columbia or surrounding jurisdictions.

FEDERAL PAYMENT TO THE DISTRICT OF COLUMBIA COURTS

For salaries and expenses for the District of Columbia Courts, $245,110,000 to be allocated as follows: for the District of Columbia Court of Appeals, $13,622,000, of which not to exceed $2,500 is for official reception and representation expenses; for the Superior Court of the District of Columbia, $116,443,000, of which not to exceed $2,500 is for official reception and representation expenses; for the District of Columbia Court System, $71,155,000, of which not to exceed $2,500 is for official reception and representation expenses; and $43,890,000, to remain available until September 30, 2016, for capital improvements for District of Columbia courthouse facilities: *Provided*, That funds made available for capital improvements shall be expended consistent with the District of Columbia Courts master plan study and facilities condition assessment: *Provided further*, That notwithstanding any other provision of law, all amounts under this heading shall be apportioned quarterly by the Office of Management and Budget and obligated and expended in the same manner as funds appropriated for salaries and expenses of other Federal agencies: *Provided further*, That 30 days after providing written notice to the Committees on Appropriations of the House of Representatives and the Senate, the District of Columbia Courts may reallocate not more than $6,000,000 of the funds provided under this heading among the items and entities funded under this heading: *Provided further*, That the Joint Committee on Judicial Administration in the District of Columbia may, by regulation, establish a program substantially similar to the program set forth in subchapter II of chapter 35 of title 5, United States Code, for employees of the District of Columbia Courts.

FEDERAL PAYMENT FOR DEFENDER SERVICES IN DISTRICT OF COLUMBIA COURTS

For payments authorized under section 11–2604 and section 11–2605, D.C. Official Code (relating to representation provided under the District of Columbia Criminal Justice Act), payments for counsel appointed in proceedings in the Family Court of the Superior Court of the District of Columbia under chapter 23 of title 16, D.C. Official Code, or pursuant to contractual agreements to provide guardian ad litem representation, training, technical assistance, and such other services as are necessary to improve the quality of guardian ad litem representation, payments for counsel appointed in adoption proceedings under chapter 3 of title 16, D.C. Official Code, and payments authorized under section 21–2060, D.C. Official Code (relating to services provided under the District of Columbia Guardianship, Protective Proceedings, and Durable Power of Attorney Act of 1986), $49,890,000, to remain available until expended: *Provided*, That funds provided under this heading shall be administered by the Joint Committee on Judicial Administration in the District of Columbia: *Provided further*, That, notwithstanding any other provision of law, this appropriation shall be apportioned quarterly by the Office of Management and Budget and obligated and expended in the same manner as funds appropriated for expenses of other Federal agencies.

FEDERAL PAYMENT TO THE COURT SERVICES AND OFFENDER SUPERVISION AGENCY FOR THE DISTRICT OF COLUMBIA

For salaries and expenses, including the transfer and hire of motor vehicles, of the Court Services and Offender Supervision Agency for the District of Columbia, as authorized by the National Capital Revitalization and Self-Government Improvement Act of 1997, $234,000,000, of which not to exceed $2,000 is for official reception and representation expenses related to Community Supervision and Pretrial Services Agency programs, of which not to exceed $25,000 is for dues and assessments relating to the implementation of the Court Services and Offender Supervision Agency Interstate Supervision Act of 2002; of which $173,155,000 shall be for necessary expenses of Community Supervision and Sex Offender Registration, to include expenses relating to the supervision of adults subject to protection orders or the provision of services for or related to such persons, of which up to $9,000,000 shall remain available until September 30, 2017, for the relocation of offender supervision field offices; and of which $60,845,000 shall be available to the Pretrial Services Agency: *Provided*, That notwithstanding any other provision of law, all amounts under this heading shall be apportioned quarterly by the Office of Management and Budget and obligated and expended in the same manner as funds appropriated for salaries and expenses of other Federal agencies: *Provided further*, That amounts under this heading may be used for programmatic incentives for offenders and defendants successfully meeting terms of supervision: *Provided further*, That the Director is authorized to accept and use gifts in the form of in-kind contributions of the following: space and hospitality to support offender and defendant programs; equipment, supplies, and vocational training services necessary to sustain, educate, and train offenders and defendants, including their dependent children; and programmatic incentives for offenders and defendants meeting terms of supervision: *Provided further*, That the Director shall keep accurate and detailed records of the acceptance and use of any gift under the previous proviso, and shall make such records available for audit and public inspection: *Provided further*, That the Court Services and Offender Supervision Agency Director is authorized to accept and use reimbursement from the District of Columbia Government for space and services provided on a cost reimbursable basis.

FEDERAL PAYMENT TO THE DISTRICT OF COLUMBIA PUBLIC DEFENDER SERVICE

For salaries and expenses, including the transfer and hire of motor vehicles, of the District of Columbia Public Defender Service, as authorized by the National Capital Revitalization and Self-Government Improvement Act of 1997, $41,231,000, of which $1,150,000, to remain available until September 30, 2017, is for relocation of satellite offices: *Provided*, That notwithstanding any other provision of law, all amounts under this heading shall be apportioned quarterly by the Office of Management and Budget and obligated and expended in the same manner as funds appropriated for salaries and expenses of Federal agencies: *Provided further*, That, notwithstanding section 1342 of title 31, United States Code, and in addition to the authority provided by the District of Columbia Code Section 2–1607(b), upon approval of the Board of Trustees, the District of Columbia Public Defender Service may accept and use voluntary and uncompensated services for the purpose of aiding or facilitating the work of the District of Columbia Public Defender Service: *Provided further*, That, notwithstanding District of Columbia Code section 2–1603(d), for the purpose of any action brought against the Board of the Trustees of the District of Columbia Public Defender Service, the trustees shall be deemed to be employees of the Public Defender Service.

FEDERAL PAYMENT TO THE DISTRICT OF COLUMBIA WATER AND SEWER AUTHORITY

For a Federal payment to the District of Columbia Water and Sewer Authority, $14,000,000, to remain available until expended, to continue implementation of the Combined Sewer Overflow Long-Term Plan: *Provided*, That the District of Columbia Water and Sewer Authority provides a 100 percent match for this payment.

FEDERAL PAYMENT TO THE CRIMINAL JUSTICE COORDINATING COUNCIL

For a Federal payment to the Criminal Justice Coordinating Council, $1,900,000, to remain available until expended, to support initiatives related to the coordination of Federal and local criminal justice resources in the District of Columbia.

FEDERAL PAYMENT FOR JUDICIAL COMMISSIONS

For a Federal payment, to remain available until September 30, 2016, to the Commission on Judicial Disabilities and Tenure, $295,000, and for the Judicial Nomination Commission, $270,000.

FEDERAL PAYMENT FOR SCHOOL IMPROVEMENT

For a Federal payment for a school improvement program in the District of Columbia, $45,000,000, to remain available until expended, for payments authorized under the Scholarship for Opportunity and Results Act (division C of Public Law 112–10): *Provided*, That within funds provided for opportunity scholarships $3,000,000 shall be for the activities specified in sections 3007(b) through 3007(d) and 3009 of the Act.

FEDERAL PAYMENT FOR THE DISTRICT OF COLUMBIA NATIONAL GUARD

For a Federal payment to the District of Columbia National Guard, $435,000, to remain available until expended for the Major General David F. Wherley, Jr. District of Columbia National Guard Retention and College Access Program.

FEDERAL PAYMENT FOR TESTING AND TREATMENT OF HIV/AIDS

For a Federal payment to the District of Columbia for the testing of individuals for, and the treatment of individuals with, human immunodeficiency virus and acquired immunodeficiency syndrome in the District of Columbia, $5,000,000.

DISTRICT OF COLUMBIA FUNDS

Local funds are appropriated for the District of Columbia for the current fiscal year out of the General Fund of the District of Columbia (''General Fund'') for programs and activities set forth under the heading ''District of Columbia Funds Summary of Expenses'' and at the rate set forth under such heading, as included in the Fiscal Year 2015 Budget Request Act of 2014 submitted to the Congress by the District of Columbia as amended as of the date of enactment of this Act: *Provided*, That notwithstanding any

other provision of law, except as provided in section 450A of the District of Columbia Home Rule Act (section 1–204.50a, D.C. Official Code), sections 816 and 817 of the Financial Services and General Government Appropriations Act, 2009 (secs. 47–369.01 and 47–369.02, D.C. Official Code), and provisions of this Act, the total amount appropriated in this Act for operating expenses for the District of Columbia for fiscal year 2015 under this heading shall not exceed the estimates included in the Fiscal Year 2015 Budget Request Act of 2014 submitted to Congress by the District of Columbia as amended as of the date of enactment of this Act or the sum of the total revenues of the District of Columbia for such fiscal year: *Provided further*, That the amount appropriated may be increased by proceeds of one-time transactions, which are expended for emergency or unanticipated operating or capital needs: *Provided further*, That such increases shall be approved by enactment of local District law and shall comply with all reserve requirements contained in the District of Columbia Home Rule Act: *Provided further*, That the Chief Financial Officer of the District of Columbia shall take such steps as are necessary to assure that the District of Columbia meets these requirements, including the apportioning by the Chief Financial Officer of the appropriations and funds made available to the District during fiscal year 2015, except that the Chief Financial Officer may not reprogram for operating expenses any funds derived from bonds, notes, or other obligations issued for capital projects.

This title may be cited as the ''District of Columbia Appropriations Act, 2015''.

TITLE V

INDEPENDENT AGENCIES

ADMINISTRATIVE CONFERENCE OF THE UNITED STATES

SALARIES AND EXPENSES

For necessary expenses of the Administrative Conference of the United States, authorized by 5 U.S.C. 591 et seq., $3,100,000, to remain available until September 30, 2016, of which not to exceed $1,000 is for official reception and representation expenses.

COMMODITY FUTURES TRADING COMMISSION

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses to carry out the provisions of the Commodity Exchange Act (7 U.S.C. 1 et seq.), including the purchase and hire of passenger motor vehicles, and the rental of space (to include multiple year leases) in the District of Columbia and elsewhere, $250,000,000, including not to exceed $3,000 for official reception and representation expenses, and not to exceed $25,000 for the expenses for consultations and meetings hosted by the Commission with foreign governmental and other regulatory officials, of which not less than $50,000,000, to remain available until September 30, 2016, shall be for the purchase of information technology and of which not less than $2,620,000 shall be for the Office of the Inspector General: *Provided*, That not to exceed $10,000,000 of the amounts provided herein may be moved between the amount for salaries and expenses and the amount for the purchase of information technology subject to reprogramming procedures under section 608 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section.

CONSUMER PRODUCT SAFETY COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the Consumer Product Safety Commission, including hire of passenger motor vehicles, services as authorized by 5 U.S.C. 3109, but at rates for individuals not to exceed the per diem rate equivalent to the maximum rate payable under 5 U.S.C. 5376, purchase of nominal awards to recognize non-Federal officials' contributions to Commission activities, and not to exceed $4,000 for official reception and representation expenses, $123,000,000.

ELECTION ASSISTANCE COMMISSION

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses to carry out the Help America Vote Act of 2002 (Public Law 107–252), $10,000,000, of which $1,900,000 shall be transferred to the National Institute of Standards and Technology for election reform activities authorized under the Help America Vote Act of 2002.

FEDERAL COMMUNICATIONS COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the Federal Communications Commission, as authorized by law, including uniforms and allowances therefor, as authorized by 5 U.S.C. 5901–5902; not to exceed $4,000 for official reception and representation expenses; purchase and hire of motor vehicles; special counsel fees; and services as authorized by 5 U.S.C. 3109, $339,844,000, to remain available until expended: *Provided*, That of which not less than $300,000 shall be available for consultation with federally recognized Indian tribes, Alaska Native villages, and entities related to Hawaiian Home Lands: *Provided further*, That $339,844,000 of offsetting collections shall be assessed and collected pursuant to section 9 of title I of the Communications Act of 1934, shall be retained and used for necessary expenses and shall remain available until expended: *Provided further*, That the sum herein appropriated shall be reduced as such offsetting collections are received during fiscal year 2015 so as to result in a final fiscal year 2015 appropriation estimated at $0: *Provided further*, That any offsetting collections received in excess of $339,844,000 in fiscal year 2015 shall not be available for obligation: *Provided further*, That remaining offsetting collections from prior years collected in excess of the amount specified for collection in each such year and otherwise becoming available on October 1, 2014, shall not be available for obligation: *Provided further*, That notwithstanding 47 U.S.C. 309(j)(8)(B), proceeds from the use of a competitive bidding system that may be retained and made available for obligation shall not exceed $106,000,000 for fiscal year 2015: *Provided further*, That of the amount appropriated under this heading, not less than $11,090,000 shall be for the salaries and expenses of the Office of Inspector General.

ADMINISTRATIVE PROVISIONS—FEDERAL COMMUNICATIONS COMMISSION

SEC. 501. Section 302 of the Universal Service Antideficiency Temporary Suspension Act is amended by striking ''December 31, 2015'', each place it appears and inserting ''December 31, 2016''.

SEC. 502. None of the funds appropriated by this Act may be used by the Federal Communications Commission to modify, amend, or change its rules or regulations for universal service support payments to implement the February 27, 2004 recommendations of the Federal-State Joint Board on Universal Service regarding single connection or primary line restrictions on universal service support payments.

FEDERAL DEPOSIT INSURANCE CORPORATION

OFFICE OF THE INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, $34,568,000, to be derived from the Deposit Insurance Fund or, only when appropriate, the FSLIC Resolution Fund.

FEDERAL ELECTION COMMISSION

SALARIES AND EXPENSES

For necessary expenses to carry out the provisions of the Federal Election Campaign Act of 1971, $67,500,000, of which not to exceed $5,000 shall be available for reception and representation expenses.

FEDERAL LABOR RELATIONS AUTHORITY

SALARIES AND EXPENSES

For necessary expenses to carry out functions of the Federal Labor Relations Authority, pursuant to Reorganization Plan Numbered 2 of 1978, and the Civil Service Reform Act of 1978, including services authorized by 5 U.S.C. 3109, and including hire of experts and consultants, hire of passenger motor vehicles, and including official reception and representation expenses (not to exceed $1,500) and rental of conference rooms in the District of Columbia and elsewhere, $25,548,000: *Provided*, That public members of the Federal Service Impasses Panel may be paid travel expenses and per diem in lieu of subsistence as authorized by law (5 U.S.C. 5703) for persons employed intermittently in the Government service, and compensation as authorized by 5 U.S.C. 3109: *Provided further*, That, notwithstanding 31 U.S.C. 3302, funds received from fees charged to non-Federal participants at labor-management relations conferences shall be credited to and merged with this account, to be available without further appropriation for the costs of carrying out these conferences.

FEDERAL TRADE COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the Federal Trade Commission, including uniforms or allowances therefor, as authorized by 5 U.S.C. 5901–5902; services as authorized by 5 U.S.C. 3109; hire of passenger motor vehicles; and not to exceed $2,000 for official reception and representation expenses, $293,000,000, to remain available until expended: *Provided*, That not to exceed $300,000 shall be available for use to contract with a person or persons for collection services in accordance with the terms of 31 U.S.C. 3718: *Provided further*, That, notwithstanding any other provision of law, not to exceed $100,000,000 of offsetting collections derived from fees collected for premerger notification filings under the Hart-Scott-Rodino Antitrust Improvements Act of 1976 (15 U.S.C. 18a), regardless of the year of collection, shall be retained and used for necessary expenses in this appropriation: *Provided further*, That, notwithstanding any other provision of law, not to exceed $14,000,000 in offsetting collections derived from fees sufficient to implement and enforce the Telemarketing Sales Rule, promulgated under the Telemarketing and Consumer Fraud and Abuse Prevention Act (15 U.S.C. 6101 et seq.), shall be credited to this account, and be retained and used for necessary expenses in this appropriation: *Provided further*, That the sum herein appropriated from the general fund shall be reduced as such offsetting collections are received during fiscal year 2015, so as to result in a final fiscal year 2015 appropriation from the general fund estimated at not more than $179,000,000: *Provided further*, That none of the funds made available to the Federal Trade Commission may be used to implement subsection (e)(2)(B) of section 43 of the Federal Deposit Insurance Act (12 U.S.C. 1831t).

GENERAL SERVICES ADMINISTRATION

REAL PROPERTY ACTIVITIES

FEDERAL BUILDINGS FUND

LIMITATIONS ON AVAILABILITY OF REVENUE

(INCLUDING TRANSFERS OF FUNDS)

Amounts in the Fund, including revenues and collections deposited into the Fund shall

be available for necessary expenses of real property management and related activities not otherwise provided for, including operation, maintenance, and protection of federally owned and leased buildings; rental of buildings in the District of Columbia; restoration of leased premises; moving governmental agencies (including space adjustments and telecommunications relocation expenses) in connection with the assignment, allocation and transfer of space; contractual services incident to cleaning or servicing buildings, and moving; repair and alteration of federally owned buildings including grounds, approaches and appurtenances; care and safeguarding of sites; maintenance, preservation, demolition, and equipment; acquisition of buildings and sites by purchase, condemnation, or as otherwise authorized by law; acquisition of options to purchase buildings and sites; conversion and extension of federally owned buildings; preliminary planning and design of projects by contract or otherwise; construction of new buildings (including equipment for such buildings); and payment of principal, interest, and any other obligations for public buildings acquired by installment purchase and purchase contract; in the aggregate amount of $9,238,310,000, of which—

(1) $509,670,000 shall remain available until expended for construction and acquisition (including funds for sites and expenses, and associated design and construction services) of additional projects at—

(A) California, Calexico, Calexico West Land Port of Entry, $98,062,000;

(B) California, San Diego, San Ysidro Land Port of Entry, $216,828,000;

(C) District of Columbia, Washington, DHS Consolidation at St. Elizabeths, $144,000,000;

(D) National Capital Region, Civilian Cyber Campus, $35,000,000; and

(E) New York, Glenville, Scotia Depot, $15,780,000:

Provided, That each of the foregoing limits of costs on new construction and acquisition projects may be exceeded to the extent that savings are effected in other such projects, but not to exceed 10 percent of the amounts included in a transmitted prospectus, if required, unless advance approval is obtained from the Committees on Appropriations of a greater amount;

(2) $818,160,000 shall remain available until expended for repairs and alterations, including associated design and construction services, of which—

(A) $306,894,000 is for Major Repairs and Alterations;

(B) $390,266,000 is for Basic Repairs and Alterations; and

(C) $121,000,000 is for Special Emphasis Programs, of which—

(i) $5,000,000 is for Energy and Water Retrofit and Conservation Measures;

(ii) $26,000,000 is for Fire and Life Safety;

(iii) $20,000,000 is for Judiciary Capital Security; and

(iv) $70,000,000 is for Consolidation Activities: *Provided*, That consolidation projects result in reduced annual rent paid by the tenant agency: *Provided further*, That no consolidation project exceed $20,000,000 in costs: *Provided further*, That consolidation projects are approved by each of the committees specified in section 3307(a) of title 40, United States Code: *Provided further*, That preference is given to consolidation projects that achieve a utilization rate of 130 usable square feet or less per person for office space: *Provided further*, That the obligation of funds under this paragraph for consolidation activities may not be made until 10 days after a proposed spending plan and explanation for each project to be undertaken, including estimated savings, has been submitted to the Committees on Appropriations of the House of Representatives and the Senate:

Provided, That funds made available in this or any previous Act in the Federal Buildings Fund for Repairs and Alterations shall, for prospectus projects, be limited to the amount identified for each project, except each project in this or any previous Act may be increased by an amount not to exceed 10 percent unless advance approval is obtained from the Committees on Appropriations of a greater amount: *Provided further*, That additional projects for which prospectuses have been fully approved may be funded under this category only if advance approval is obtained from the Committees on Appropriations: *Provided further*, That the amounts provided in this or any prior Act for ''Repairs and Alterations'' may be used to fund costs associated with implementing security improvements to buildings necessary to meet the minimum standards for security in accordance with current law and in compliance with the reprogramming guidelines of the appropriate Committees of the House and Senate: *Provided further*, That the difference between the funds appropriated and expended on any projects in this or any prior Act, under the heading ''Repairs and Alterations'', may be transferred to Basic Repairs and Alterations or used to fund authorized increases in prospectus projects: *Provided further*, That the amount provided in this or any prior Act for Basic Repairs and Alterations may be used to pay claims against the Government arising from any projects under the heading ''Repairs and Alterations'' or used to fund authorized increases in prospectus projects;

(3) $5,666,348,000 for rental of space to remain available until expended; and

(4) $2,244,132,000 for building operations to remain available until expended, of which $1,122,727,000 is for building services, and $1,121,405,000 is for salaries and expenses: *Provided further*, That not to exceed 5 percent of any appropriation made available under this paragraph for building operations may be transferred between and merged with such appropriations upon notification to the Committees on Appropriations of the House of Representatives and the Senate, but no such appropriation shall be increased by more than 5 percent by any such transfers: *Provided further*, That section 508 of this title shall not apply with respect to funds made available under this heading for building operations:

Provided further, That the total amount of funds made available from this Fund to the General Services Administration shall not be available for expenses of any construction, repair, alteration and acquisition project for which a prospectus, if required by 40 U.S.C. 3307(a), has not been approved, except that necessary funds may be expended for each project for required expenses for the development of a proposed prospectus: *Provided further*, That funds available in the Federal Buildings Fund may be expended for emergency repairs when advance approval is obtained from the Committees on Appropriations: *Provided further*, That amounts necessary to provide reimbursable special services to other agencies under 40 U.S.C. 592(b)(2) and amounts to provide such reimbursable fencing, lighting, guard booths, and other facilities on private or other property not in Government ownership or control as may be appropriate to enable the United States Secret Service to perform its protective functions pursuant to 18 U.S.C. 3056, shall be available from such revenues and collections: *Provided further*, That revenues and collections and any other sums accruing to this Fund during fiscal year 2015, excluding reimbursements under 40 U.S.C. 592(b)(2), in excess of the aggregate new obligational authority authorized for Real Property Activities of the Federal Buildings Fund in this Act shall remain in the Fund and shall not be available for expenditure except as authorized in appropriations Acts.

GENERAL ACTIVITIES

GOVERNMENT-WIDE POLICY

For expenses authorized by law, not otherwise provided for, for Government-wide policy and evaluation activities associated with the management of real and personal property assets and certain administrative services; Government-wide policy support responsibilities relating to acquisition, travel, motor vehicles, information technology management, and related technology activities; and services as authorized by 5 U.S.C. 3109; $58,000,000.

OPERATING EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For expenses authorized by law, not otherwise provided for, for Government-wide activities associated with utilization and donation of surplus personal property; disposal of real property; agency-wide policy direction, management, and communications; the Civilian Board of Contract Appeals; services as authorized by 5 U.S.C. 3109; $61,049,000, of which $26,328,000 is for Real and Personal Property Management and Disposal; $25,729,000 is for the Office of the Administrator, of which not to exceed $7,500 is for official reception and representation expenses; and $8,992,000 is for the Civilian Board of Contract Appeals: *Provided further*, That not to exceed 5 percent of the appropriation made available under this heading for Office of the Administrator may be transferred to the appropriation for the Real and Personal Property Management and Disposal upon notification to the Committees on Appropriations of the House of Representatives and the Senate, but the appropriation for the Real and Personal Property Management and Disposal may not be increased by more than 5 percent by any such transfer.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General and service authorized by 5 U.S.C. 3109, $65,000,000, of which $2,000,000 is available until expended: *Provided*, That not to exceed $50,000 shall be available for payment for information and detection of fraud against the Government, including payment for recovery of stolen Government property: *Provided further*, That not to exceed $2,500 shall be available for awards to employees of other Federal agencies and private citizens in recognition of efforts and initiatives resulting in enhanced Office of Inspector General effectiveness.

ALLOWANCES AND OFFICE STAFF FOR FORMER PRESIDENTS

For carrying out the provisions of the Act of August 25, 1958 (3 U.S.C. 102 note), and Public Law 95–138, $3,250,000.

FEDERAL CITIZEN SERVICES FUND

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Office of Citizen Services and Innovative Technologies, including services authorized by 40 U.S.C. 323 and 44 U.S.C. 3604; and for necessary expenses in support of interagency projects that enable the Federal Government to enhance its ability to conduct activities electronically, through the development and implementation of innovative uses of information technology; $53,294,000, of which $14,135,000 shall be available for electronic government projects, to be deposited into the Federal Citizen Services Fund: *Provided*, That the previous amount may be transferred to Federal agencies to carry out the purpose of the Federal Citizen Services Fund: *Provided further*, That the appropriations, revenues, reimbursements, and collections deposited into

the Fund shall be available until expended for necessary expenses of Federal Citizen Services and other activities that enable the Federal Government to enhance its ability to conduct activities electronically in the aggregate amount not to exceed $90,000,000: *Provided further*, That appropriations, revenues, reimbursements, and collections accruing to this Fund during fiscal year 2015 in excess of such amount shall remain in the Fund and shall not be available for expenditure except as authorized in appropriations Acts: *Provided further*, That any appropriations provided to the Electronic Government Fund that remain unobligated as of September 30, 2014, may be transferred to the Federal Citizen Services Fund: *Provided further*, That the transfer authorities provided herein shall be in addition to any other transfer authority provided in this Act.

ADMINISTRATIVE PROVISIONS—GENERAL SERVICES ADMINISTRATION

(INCLUDING TRANSFER OF FUNDS)

SEC. 510. Funds available to the General Services Administration shall be available for the hire of passenger motor vehicles.

SEC. 511. Funds in the Federal Buildings Fund made available for fiscal year 2015 for Federal Buildings Fund activities may be transferred between such activities only to the extent necessary to meet program requirements: *Provided*, That any proposed transfers shall be approved in advance by the Committees on Appropriations of the House of Representatives and the Senate.

SEC. 512. Except as otherwise provided in this title, funds made available by this Act shall be used to transmit a fiscal year 2016 request for United States Courthouse construction only if the request: (1) meets the design guide standards for construction as established and approved by the General Services Administration, the Judicial Conference of the United States, and the Office of Management and Budget; (2) reflects the priorities of the Judicial Conference of the United States as set out in its approved 5-year construction plan; and (3) includes a standardized courtroom utilization study of each facility to be constructed, replaced, or expanded.

SEC. 513. None of the funds provided in this Act may be used to increase the amount of occupiable square feet, provide cleaning services, security enhancements, or any other service usually provided through the Federal Buildings Fund, to any agency that does not pay the rate per square foot assessment for space and services as determined by the General Services Administration in consideration of the Public Buildings Amendments Act of 1972 (Public Law 92–313).

SEC. 514. From funds made available under the heading ''Federal Buildings Fund, Limitations on Availability of Revenue'', claims against the Government of less than $250,000 arising from direct construction projects and acquisition of buildings may be liquidated from savings effected in other construction projects with prior notification to the Committees on Appropriations of the House of Representatives and the Senate.

SEC. 515. In any case in which the Committee on Transportation and Infrastructure of the House of Representatives and the Committee on Environment and Public Works of the Senate adopt a resolution granting lease authority pursuant to a prospectus transmitted to Congress by the Administrator of the General Services Administration under 40 U.S.C. 3307, the Administrator shall ensure that the delineated area of procurement is identical to the delineated area included in the prospectus for all lease agreements, except that, if the Administrator determines that the delineated area of the procurement should not be identical to the delineated area included in the prospectus, the Administrator shall provide an explanatory statement to each of such committees and the Committees on Appropriations of the House of Representatives and the Senate prior to exercising any lease authority provided in the resolution.

SEC. 516. With respect to each project funded under the heading ''Major Repairs and Alterations'' or ''Judiciary Capital Security Program'', and with respect to E-Government projects funded under the heading ''Federal Citizen Services Fund'', the Administrator of General Services shall submit a spending plan and explanation for each project to be undertaken to the Committees on Appropriations of the House of Representatives and the Senate not later than 30 days after the date of enactment of this Act.

SEC. 517. Any consolidation of the headquarters of the Federal Bureau of Investigation must result in a full consolidation.

HARRY S TRUMAN SCHOLARSHIP FOUNDATION

SALARIES AND EXPENSES

For payment to the Harry S Truman Scholarship Foundation Trust Fund, established by section 10 of Public Law 93–642, $750,000, to remain available until expended.

MERIT SYSTEMS PROTECTION BOARD

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses to carry out functions of the Merit Systems Protection Board pursuant to Reorganization Plan Numbered 2 of 1978, the Civil Service Reform Act of 1978, and the Whistleblower Protection Act of 1989 (5 U.S.C. 5509 note), including services as authorized by 5 U.S.C. 3109, rental of conference rooms in the District of Columbia and elsewhere, hire of passenger motor vehicles, direct procurement of survey printing, and not to exceed $2,000 for official reception and representation expenses, $42,740,000, to remain available until September 30, 2016, together with not to exceed $2,345,000, to remain available until September 30, 2016, for administrative expenses to adjudicate retirement appeals to be transferred from the Civil Service Retirement and Disability Fund in amounts determined by the Merit Systems Protection Board.

MORRIS K. UDALL AND STEWART L. UDALL FOUNDATION

MORRIS K. UDALL AND STEWART L. UDALL TRUST FUND

(INCLUDING TRANSFER OF FUNDS)

For payment to the Morris K. Udall and Stewart L. Udall Trust Fund, pursuant to the Morris K. Udall and Stewart L. Udall Foundation Act (20 U.S.C. 5601 et seq.), $1,995,000, to remain available until expended, of which, notwithstanding sections 8 and 9 of such Act: (1) up to $50,000 shall be used to conduct financial audits pursuant to the Accountability of Tax Dollars Act of 2002 (Public Law 107–289); and (2) up to $1,000,000 shall be available to carry out the activities authorized by section 6(7) of Public Law 102–259 and section 817(a) of Public Law 106–568 (20 U.S.C. 5604(7)): *Provided*, That of the total amount made available under this heading $200,000 shall be transferred to the Office of Inspector General of the Department of the Interior, to remain available until expended, for audits and investigations of the Morris K. Udall and Stewart L. Udall Foundation, consistent with the Inspector General Act of 1978 (5 U.S.C. App.).

ENVIRONMENTAL DISPUTE RESOLUTION FUND

For payment to the Environmental Dispute Resolution Fund to carry out activities authorized in the Environmental Policy and Conflict Resolution Act of 1998, $3,400,000, to remain available until expended.

NATIONAL ARCHIVES AND RECORDS ADMINISTRATION

OPERATING EXPENSES

For necessary expenses in connection with the administration of the National Archives and Records Administration and archived Federal records and related activities, as provided by law, and for expenses necessary for the review and declassification of documents, the activities of the Public Interest Declassification Board, the operations and maintenance of the electronic records archives, the hire of passenger motor vehicles, and for uniforms or allowances therefor, as authorized by law (5 U.S.C. 5901), including maintenance, repairs, and cleaning, $365,000,000.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Reform Act of 2008, Public Law 110–409, 122 Stat. 4302–16 (2008), and the Inspector General Act of 1978 (5 U.S.C. App.), and for the hire of passenger motor vehicles, $4,130,000.

REPAIRS AND RESTORATION

For the repair, alteration, and improvement of archives facilities, and to provide adequate storage for holdings, $7,600,000, to remain available until expended.

NATIONAL HISTORICAL PUBLICATIONS AND RECORDS COMMISSION

GRANTS PROGRAM

For necessary expenses for allocations and grants for historical publications and records as authorized by 44 U.S.C. 2504, $5,000,000, to remain available until expended.

NATIONAL CREDIT UNION ADMINISTRATION

COMMUNITY DEVELOPMENT REVOLVING LOAN FUND

For the Community Development Revolving Loan Fund program as authorized by 42 U.S.C. 9812, 9822 and 9910, $2,000,000 shall be available until September 30, 2016, for technical assistance to low-income designated credit unions.

OFFICE OF GOVERNMENT ETHICS

SALARIES AND EXPENSES

For necessary expenses to carry out functions of the Office of Government Ethics pursuant to the Ethics in Government Act of 1978, the Ethics Reform Act of 1989, and the Stop Trading on Congressional Knowledge Act of 2012, including services as authorized by 5 U.S.C. 3109, rental of conference rooms in the District of Columbia and elsewhere, hire of passenger motor vehicles, and not to exceed $1,500 for official reception and representation expenses, $15,420,000.

OFFICE OF PERSONNEL MANAGEMENT

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF TRUST FUNDS)

For necessary expenses to carry out functions of the Office of Personnel Management (OPM) pursuant to Reorganization Plan Numbered 2 of 1978 and the Civil Service Reform Act of 1978, including services as authorized by 5 U.S.C. 3109; medical examinations performed for veterans by private physicians on a fee basis; rental of conference rooms in the District of Columbia and elsewhere; hire of passenger motor vehicles; not to exceed $2,500 for official reception and representation expenses; advances for reimbursements to applicable funds of OPM and the Federal Bureau of Investigation for expenses incurred under Executive Order No. 10422 of January 9, 1953, as amended; and payment of per diem and/or subsistence allowances to employees where Voting Rights Act activities require an employee to remain overnight at his or her post of duty, $96,039,000, of which $642,000 may be for

strengthening the capacity and capabilities of the acquisition workforce (as defined by the Office of Federal Procurement Policy Act, as amended (41 U.S.C. 4001 et seq.)), including the recruitment, hiring, training, and retention of such workforce and information technology in support of acquisition workforce effectiveness or for management solutions to improve acquisition management; and in addition $118,425,000 for administrative expenses, to be transferred from the appropriate trust funds of OPM without regard to other statutes, including direct procurement of printed materials, for the retirement and insurance programs: *Provided*, That the provisions of this appropriation shall not affect the authority to use applicable trust funds as provided by sections 8348(a)(1)(B), 8958(f)(2)(A), 8988(f)(2)(A), and 9004(f)(2)(A) of title 5, United States Code: *Provided further*, That no part of this appropriation shall be available for salaries and expenses of the Legal Examining Unit of OPM established pursuant to Executive Order No. 9358 of July 1, 1943, or any successor unit of like purpose: *Provided further*, That the President's Commission on White House Fellows, established by Executive Order No. 11183 of October 3, 1964, may, during fiscal year 2015, accept donations of money, property, and personal services: *Provided further*, That such donations, including those from prior years, may be used for the development of publicity materials to provide information about the White House Fellows, except that no such donations shall be accepted for travel or reimbursement of travel expenses, or for the salaries of employees of such Commission.

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF TRUST FUNDS)

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, including services as authorized by 5 U.S.C. 3109, hire of passenger motor vehicles, $4,384,000, and in addition, not to exceed $21,340,000 for administrative expenses to audit, investigate, and provide other oversight of the Office of Personnel Management's retirement and insurance programs, to be transferred from the appropriate trust funds of the Office of Personnel Management, as determined by the Inspector General: *Provided*, That the Inspector General is authorized to rent conference rooms in the District of Columbia and elsewhere.

OFFICE OF SPECIAL COUNSEL

SALARIES AND EXPENSES

For necessary expenses to carry out functions of the Office of Special Counsel pursuant to Reorganization Plan Numbered 2 of 1978, the Civil Service Reform Act of 1978 (Public Law 95–454), the Whistleblower Protection Act of 1989 (Public Law 101–12) as amended by Public Law 107–304, the Whistleblower Protection Enhancement Act of 2012 (Public Law 112–199), and the Uniformed Services Employment and Reemployment Rights Act of 1994 (Public Law 103–353), including services as authorized by 5 U.S.C. 3109, payment of fees and expenses for witnesses, rental of conference rooms in the District of Columbia and elsewhere, and hire of passenger motor vehicles; $22,939,000.

POSTAL REGULATORY COMMISSION

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses of the Postal Regulatory Commission in carrying out the provisions of the Postal Accountability and Enhancement Act (Public Law 109–435), $14,700,000, to be derived by transfer from the Postal Service Fund and expended as authorized by section 603(a) of such Act.

PRIVACY AND CIVIL LIBERTIES OVERSIGHT BOARD

SALARIES AND EXPENSES

For necessary expenses of the Privacy and Civil Liberties Oversight Board, as authorized by section 1061 of the Intelligence Reform and Terrorism Prevention Act of 2004 (42 U.S.C. 2000ee), $7,500,000, to remain available until September 30, 2016.

RECOVERY ACCOUNTABILITY AND TRANSPARENCY BOARD

SALARIES AND EXPENSES

For necessary expenses of the Recovery Accountability and Transparency Board to carry out the provisions of title XV of the American Recovery and Reinvestment Act of 2009 (Public Law 111–5), and to develop and test information technology resources and oversight mechanisms to enhance transparency of and detect and remediate waste, fraud, and abuse in Federal spending, and to develop and use information technology resources and oversight mechanisms to detect and remediate waste, fraud, and abuse in obligation and expenditure of funds as described in section 904(d) of the Disaster Relief Appropriations Act, 2013 (Public Law 113–2), which shall be administered under the terms and conditions of the accountability authorities of title XV of Public Law 111–5, $18,000,000.

SECURITIES AND EXCHANGE COMMISSION

SALARIES AND EXPENSES

For necessary expenses for the Securities and Exchange Commission, including services as authorized by 5 U.S.C. 3109, the rental of space (to include multiple year leases) in the District of Columbia and elsewhere, and not to exceed $3,500 for official reception and representation expenses, $1,500,000,000, to remain available until expended; of which not less than $9,239,000 shall be for the Office of Inspector General; of which not to exceed $50,000 shall be available for a permanent secretariat for the International Organization of Securities Commissions; of which not to exceed $100,000 shall be available for expenses for consultations and meetings hosted by the Commission with foreign governmental and other regulatory officials, members of their delegations and staffs to exchange views concerning securities matters, such expenses to include necessary logistic and administrative expenses and the expenses of Commission staff and foreign invitees in attendance including: (1) incidental expenses such as meals; (2) travel and transportation; and (3) related lodging or subsistence; and of which not less than $56,613,000 shall be for the Division of Economic and Risk Analysis: *Provided*, That fees and charges authorized by section 31 of the Securities Exchange Act of 1934 (15 U.S.C. 78ee) shall be credited to this account as offsetting collections: *Provided further*, That not to exceed $1,500,000,000 of such offsetting collections shall be available until expended for necessary expenses of this account: *Provided further*, That the total amount appropriated under this heading from the general fund for fiscal year 2015 shall be reduced as such offsetting fees are received so as to result in a final total fiscal year 2015 appropriation from the general fund estimated at not more than $0.

SELECTIVE SERVICE SYSTEM

SALARIES AND EXPENSES

For necessary expenses of the Selective Service System, including expenses of attendance at meetings and of training for uniformed personnel assigned to the Selective Service System, as authorized by 5 U.S.C. 4101–4118 for civilian employees; hire of passenger motor vehicles; services as authorized by 5 U.S.C. 3109; and not to exceed $750 for official reception and representation expenses; $22,500,000: *Provided*, That during the current fiscal year, the President may exempt this appropriation from the provisions of 31 U.S.C. 1341, whenever the President deems such action to be necessary in the interest of national defense: *Provided further*, That none of the funds appropriated by this Act may be expended for or in connection with the induction of any person into the Armed Forces of the United States.

SMALL BUSINESS ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses, not otherwise provided for, of the Small Business Administration, including hire of passenger motor vehicles as authorized by sections 1343 and 1344 of title 31, United States Code, and not to exceed $3,500 for official reception and representation expenses, $257,000,000, of which not less than $12,000,000 shall be available for examinations, reviews, and other lender oversight activities: *Provided*, That the Administrator is authorized to charge fees to cover the cost of publications developed by the Small Business Administration, and certain loan program activities, including fees authorized by section 5(b) of the Small Business Act: *Provided further*, That, notwithstanding 31 U.S.C. 3302, revenues received from all such activities shall be credited to this account, to remain available until expended, for carrying out these purposes without further appropriations: *Provided further*, That the Small Business Administration may accept gifts in an amount not to exceed $4,000,000 and may co-sponsor activities, each in accordance with section 132(a) of division K of Public Law 108–447, during fiscal year 2015: *Provided further*, That $6,100,000 shall be available for the Loan Modernization and Accounting System, to be available until September 30, 2016: *Provided further*, That $2,000,000 shall be for the Federal and State Technology Partnership Program under section 34 of the Small Business Act (15 U.S.C. 657d).

ENTREPRENEURIAL DEVELOPMENT PROGRAMS

For necessary expenses of programs supporting entrepreneurial and small business development, $220,000,000, to remain available until September 30, 2016: *Provided*, That $115,000,000 shall be available to fund grants for performance in fiscal year 2015 or fiscal year 2016 as authorized by section 21 of the Small Business Act: *Provided further*, That $22,300,000 shall be for marketing, management, and technical assistance under section 7(m) of the Small Business Act (15 U.S.C. 636(m)(4)) by intermediaries that make microloans under the microloan program: *Provided further*, That $17,400,000 shall be available for grants to States to carry out export programs that assist small business concerns authorized under section 1207 of Public Law 111–240.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, $19,400,000.

OFFICE OF ADVOCACY

For necessary expenses of the Office of Advocacy in carrying out the provisions of title II of Public Law 94–305 (15 U.S.C. 634a et seq.) and the Regulatory Flexibility Act of 1980 (5 U.S.C. 601 et seq.), $9,120,000, to remain available until expended.

BUSINESS LOANS PROGRAM ACCOUNT

(INCLUDING TRANSFER OF FUNDS)

For the cost of direct loans, $2,500,000, to remain available until expended, and for the cost of guaranteed loans as authorized by section 503 of the Small Business Investment Act of 1958 (Public Law 85–699), $45,000,000, to

remain available until expended: *Provided*, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That subject to section 502 of the Congressional Budget Act of 1974, during fiscal year 2015 commitments to guarantee loans under section 503 of the Small Business Investment Act of 1958 shall not exceed $7,500,000,000: *Provided further*, That during fiscal year 2015 commitments for general business loans authorized under section 7(a) of the Small Business Act shall not exceed $18,750,000,000 for a combination of amortizing term loans and the aggregated maximum line of credit provided by revolving loans: *Provided further*, That during fiscal year 2015 commitments to guarantee loans for debentures under section 303(b) of the Small Business Investment Act of 1958 shall not exceed $4,000,000,000: *Provided further*, That during fiscal year 2015, guarantees of trust certificates authorized by section 5(g) of the Small Business Act shall not exceed a principal amount of $12,000,000,000. In addition, for administrative expenses to carry out the direct and guaranteed loan programs, $147,726,000, which may be transferred to and merged with the appropriations for Salaries and Expenses.

DISASTER LOANS PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For administrative expenses to carry out the direct loan program authorized by section 7(b) of the Small Business Act, $186,858,000, to be available until expended, of which $1,000,000 is for the Office of Inspector General of the Small Business Administration for audits and reviews of disaster loans and the disaster loan programs and shall be transferred to and merged with the appropriations for the Office of Inspector General; of which $176,858,000 is for direct administrative expenses of loan making and servicing to carry out the direct loan program, which may be transferred to and merged with the appropriations for Salaries and Expenses; and of which $9,000,000 is for indirect administrative expenses for the direct loan program, which may be transferred to and merged with the appropriations for Salaries and Expenses.

ADMINISTRATIVE PROVISIONS—SMALL BUSINESS ADMINISTRATION

(INCLUDING TRANSFER OF FUNDS)

SEC. 520. Not to exceed 5 percent of any appropriation made available for the current fiscal year for the Small Business Administration in this Act may be transferred between such appropriations, but no such appropriation shall be increased by more than 10 percent by any such transfers: *Provided*, That any transfer pursuant to this paragraph shall be treated as a reprogramming of funds under section 608 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section.

SEC. 521. (a) None of the funds made available under this Act may be used to collect a guarantee fee under section 7(a)(18) of the Small Business Act (15 U.S.C. 636(a)(18)) with respect to a loan guaranteed under section 7(a)(31) of such Act that is made to a small business concern (as defined under section 3 of such Act (15 U.S.C. 632)) that is 51 percent or more owned and controlled by 1 or more individuals who is a veteran (as defined in section 101 of title 38, United States Code) or the spouse of a veteran.

(b) Nothing in this section shall be construed to limit the authority of the Administrator of the Small Business Administration to waive such a guarantee fee or any other loan fee with respect to a loan to a small business concern described in subsection (a) or any other borrower.

UNITED STATES POSTAL SERVICE

PAYMENT TO THE POSTAL SERVICE FUND

For payment to the Postal Service Fund for revenue forgone on free and reduced rate mail, pursuant to subsections (c) and (d) of section 2401 of title 39, United States Code, $70,000,000, of which $41,000,000 shall not be available for obligation until October 1, 2015: *Provided*, That mail for overseas voting and mail for the blind shall continue to be free: *Provided further*, That 6-day delivery and rural delivery of mail shall continue at not less than the 1983 level: *Provided further*, That none of the funds made available to the Postal Service by this Act shall be used to implement any rule, regulation, or policy of charging any officer or employee of any State or local child support enforcement agency, or any individual participating in a State or local program of child support enforcement, a fee for information requested or provided concerning an address of a postal customer: *Provided further*, That none of the funds provided in this Act shall be used to consolidate or close small rural and other small post offices.

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, $243,883,000, to be derived by transfer from the Postal Service Fund and expended as authorized by section 603(b)(3) of the Postal Accountability and Enhancement Act (Public Law 109–435).

UNITED STATES TAX COURT

SALARIES AND EXPENSES

For necessary expenses, including contract reporting and other services as authorized by 5 U.S.C. 3109, $51,300,000: *Provided*, That travel expenses of the judges shall be paid upon the written certificate of the judge.

TITLE VI

GENERAL PROVISIONS—THIS ACT

(INCLUDING RESCISSION)

SEC. 601. None of the funds in this Act shall be used for the planning or execution of any program to pay the expenses of, or otherwise compensate, non-Federal parties intervening in regulatory or adjudicatory proceedings funded in this Act.

SEC. 602. None of the funds appropriated in this Act shall remain available for obligation beyond the current fiscal year, nor may any be transferred to other appropriations, unless expressly so provided herein.

SEC. 603. The expenditure of any appropriation under this Act for any consulting service through procurement contract pursuant to 5 U.S.C. 3109, shall be limited to those contracts where such expenditures are a matter of public record and available for public inspection, except where otherwise provided under existing law, or under existing Executive order issued pursuant to existing law.

SEC. 604. None of the funds made available in this Act may be transferred to any department, agency, or instrumentality of the United States Government, except pursuant to a transfer made by, or transfer authority provided in, this Act or any other appropriations Act.

SEC. 605. None of the funds made available by this Act shall be available for any activity or for paying the salary of any Government employee where funding an activity or paying a salary to a Government employee would result in a decision, determination, rule, regulation, or policy that would prohibit the enforcement of section 307 of the Tariff Act of 1930 (19 U.S.C. 1307).

SEC. 606. No funds appropriated pursuant to this Act may be expended by an entity unless the entity agrees that in expending the assistance the entity will comply with chapter 83 of title 41, United States Code.

SEC. 607. No funds appropriated or otherwise made available under this Act shall be made available to any person or entity that has been convicted of violating chapter 83 of title 41, United States Code.

SEC. 608. Except as otherwise provided in this Act, none of the funds provided in this Act, provided by previous appropriations Acts to the agencies or entities funded in this Act that remain available for obligation or expenditure in fiscal year 2015, or provided from any accounts in the Treasury derived by the collection of fees and available to the agencies funded by this Act, shall be available for obligation or expenditure through a reprogramming of funds that: (1) creates a new program; (2) eliminates a program, project, or activity; (3) increases funds or personnel for any program, project, or activity for which funds have been denied or restricted by the Congress; (4) proposes to use funds directed for a specific activity by the Committee on Appropriations of either the House of Representatives or the Senate for a different purpose; (5) augments existing programs, projects, or activities in excess of $5,000,000 or 10 percent, whichever is less; (6) reduces existing programs, projects, or activities by $5,000,000 or 10 percent, whichever is less; or (7) creates or reorganizes offices, programs, or activities unless prior approval is received from the Committees on Appropriations of the House of Representatives and the Senate: *Provided*, That prior to any significant reorganization or restructuring of offices, programs, or activities, each agency or entity funded in this Act shall consult with the Committees on Appropriations of the House of Representatives and the Senate: *Provided further*, That not later than 60 days after the date of enactment of this Act, each agency funded by this Act shall submit a report to the Committees on Appropriations of the House of Representatives and the Senate to establish the baseline for application of reprogramming and transfer authorities for the current fiscal year: *Provided further*, That at a minimum the report shall include: (1) a table for each appropriation with a separate column to display the President's budget request, adjustments made by Congress, adjustments due to enacted rescissions, if appropriate, and the fiscal year enacted level; (2) a delineation in the table for each appropriation both by object class and program, project, and activity as detailed in the budget appendix for the respective appropriation; and (3) an identification of items of special congressional interest: *Provided further*, That the amount appropriated or limited for salaries and expenses for an agency shall be reduced by $100,000 per day for each day after the required date that the report has not been submitted to the Congress.

SEC. 609. Except as otherwise specifically provided by law, not to exceed 50 percent of unobligated balances remaining available at the end of fiscal year 2015 from appropriations made available for salaries and expenses for fiscal year 2015 in this Act, shall remain available through September 30, 2016, for each such account for the purposes authorized: *Provided*, That a request shall be submitted to the Committees on Appropriations of the House of Representatives and the Senate for approval prior to the expenditure of such funds: *Provided further*, That these requests shall be made in compliance with reprogramming guidelines.

SEC. 610. (a) None of the funds made available in this Act may be used by the Executive Office of the President to request—

(1) any official background investigation report on any individual from the Federal Bureau of Investigation; or

(2) a determination with respect to the treatment of an organization as described in section 501(c) of the Internal Revenue Code of 1986 and exempt from taxation under section 501(a) of such Code from the Department of the Treasury or the Internal Revenue Service.

(b) Subsection (a) shall not apply—

(1) in the case of an official background investigation report, if such individual has given express written consent for such request not more than 6 months prior to the date of such request and during the same presidential administration; or

(2) if such request is required due to extraordinary circumstances involving national security.

SEC. 611. The cost accounting standards promulgated under chapter 15 of title 41, United States Code shall not apply with respect to a contract under the Federal Employees Health Benefits Program established under chapter 89 of title 5, United States Code.

SEC. 612. For the purpose of resolving litigation and implementing any settlement agreements regarding the nonforeign area cost-of-living allowance program, the Office of Personnel Management may accept and utilize (without regard to any restriction on unanticipated travel expenses imposed in an Appropriations Act) funds made available to the Office of Personnel Management pursuant to court approval.

SEC. 613. No funds appropriated by this Act shall be available to pay for an abortion, or the administrative expenses in connection with any health plan under the Federal employees health benefits program which provides any benefits or coverage for abortions.

SEC. 614. The provision of section 613 shall not apply where the life of the mother would be endangered if the fetus were carried to term, or the pregnancy is the result of an act of rape or incest.

SEC. 615. In order to promote Government access to commercial information technology, the restriction on purchasing nondomestic articles, materials, and supplies set forth in chapter 83 of title 41, United States Code (popularly known as the Buy American Act), shall not apply to the acquisition by the Federal Government of information technology (as defined in section 11101 of title 40, United States Code), that is a commercial item (as defined in section 103 of title 41, United States Code).

SEC. 616. Notwithstanding section 1353 of title 31, United States Code, no officer or employee of any regulatory agency or commission funded by this Act may accept on behalf of that agency, nor may such agency or commission accept, payment or reimbursement from a non-Federal entity for travel, subsistence, or related expenses for the purpose of enabling an officer or employee to attend and participate in any meeting or similar function relating to the official duties of the officer or employee when the entity offering payment or reimbursement is a person or entity subject to regulation by such agency or commission, or represents a person or entity subject to regulation by such agency or commission, unless the person or entity is an organization described in section 501(c)(3) of the Internal Revenue Code of 1986 and exempt from tax under section 501(a) of such Code.

SEC. 617. Notwithstanding section 708 of this Act, funds made available to the Commodity Futures Trading Commission and the Securities and Exchange Commission by this or any other Act may be used for the interagency funding and sponsorship of a joint advisory committee to advise on emerging regulatory issues.

SEC. 618. (a)(1) Notwithstanding any other provision of law, an Executive agency covered by this Act otherwise authorized to enter into contracts for either leases or the construction or alteration of real property for office, meeting, storage, or other space must consult with the General Services Administration before issuing a solicitation for offers of new leases or construction contracts, and in the case of succeeding leases, before entering into negotiations with the current lessor.

(2) Any such agency with authority to enter into an emergency lease may do so during any period declared by the President to require emergency leasing authority with respect to such agency.

(b) For purposes of this section, the term ''Executive agency covered by this Act'' means any Executive agency provided funds by this Act, but does not include the General Services Administration or the United States Postal Service.

SEC. 619. (a) There are appropriated for the following activities the amounts required under current law:

(1) Compensation of the President (3 U.S.C. 102).

(2) Payments to—

(A) the Judicial Officers' Retirement Fund (28 U.S.C. 377(o));

(B) the Judicial Survivors' Annuities Fund (28 U.S.C. 376(c)); and

(C) the United States Court of Federal Claims Judges' Retirement Fund (28 U.S.C. 178(l)).

(3) Payment of Government contributions—

(A) with respect to the health benefits of retired employees, as authorized by chapter 89 of title 5, United States Code, and the Retired Federal Employees Health Benefits Act (74 Stat. 849); and

(B) with respect to the life insurance benefits for employees retiring after December 31, 1989 (5 U.S.C. ch. 87).

(4) Payment to finance the unfunded liability of new and increased annuity benefits under the Civil Service Retirement and Disability Fund (5 U.S.C. 8348).

(5) Payment of annuities authorized to be paid from the Civil Service Retirement and Disability Fund by statutory provisions other than subchapter III of chapter 83 or chapter 84 of title 5, United States Code.

(b) Nothing in this section may be construed to exempt any amount appropriated by this section from any otherwise applicable limitation on the use of funds contained in this Act.

SEC. 620. The Public Company Accounting Oversight Board (Board) shall have authority to obligate funds for the scholarship program established by section 109(c)(2) of the Sarbanes-Oxley Act of 2002 (Public Law 107–204) in an aggregate amount not exceeding the amount of funds collected by the Board as of December 31, 2014, including accrued interest, as a result of the assessment of monetary penalties. Funds available for obligation in fiscal year 2015 shall remain available until expended.

SEC. 621. None of the funds made available in this Act may be used by the Federal Trade Commission to complete the draft report entitled ''Interagency Working Group on Food Marketed to Children: Preliminary Proposed Nutrition Principles to Guide Industry Self-Regulatory Efforts'' unless the Interagency Working Group on Food Marketed to Children complies with Executive Order No. 13563.

SEC. 622. None of the funds made available by this Act may be used to pay the salaries and expenses for the following positions:

(1) Director, White House Office of Health Reform.

(2) Assistant to the President for Energy and Climate Change.

(3) Senior Advisor to the Secretary of the Treasury assigned to the Presidential Task Force on the Auto Industry and Senior Counselor for Manufacturing Policy.

(4) White House Director of Urban Affairs.

SEC. 623. None of the funds in this Act may be used for the Director of the Office of Personnel Management to award a contract, enter an extension of, or exercise an option on a contract to a contractor conducting the final quality review processes for background investigation fieldwork services or background investigation support services that, as of the date of the award of the contract, are being conducted by that contractor.

SEC. 624. Sections 1101(a) and 1104(a)(2)(A) of the Internet Tax Freedom Act (title XI of division C of Public Law 105–277; 47 U.S.C. 151 note) are amended by striking ''November 1, 2014'' and inserting ''October 1, 2015''.

SEC. 625. (a) The head of each executive branch agency funded by this Act shall ensure that the Chief Information Officer of the agency has the authority to participate in decisions regarding the budget planning process related to information technology.

(b) Amounts appropriated for any executive branch agency funded by this Act that are available for information technology shall be allocated within the agency, consistent with the provisions of appropriations Acts and budget guidelines and recommendations from the Director of the Office of Management and Budget, in such manner as specified by, or approved by, the Chief Information Officer of the agency in consultation with the Chief Financial Officer of the agency and budget officials.

SEC. 626. None of the funds made available in this Act may be used in contravention of chapter 29, 31, or 33 of title 44, United States Code.

SEC. 627. None of the funds made available by this Act may be used to enter into any contract with an incorporated entity if such entity's sealed bid or competitive proposal shows that such entity is incorporated or chartered in Bermuda or the Cayman Islands, and such entity's sealed bid or competitive proposal shows that such entity was previously incorporated in the United States.

SEC. 628. None of the funds made available by this Act may be used to lease or purchase new light duty vehicles for any executive fleet, or for an agency's fleet inventory, except in accordance with Presidential Memorandum—Federal Fleet Performance, dated May 24, 2011. In instances where there is not an appropriate alternative fueled vehicle commercially available for a particular light duty vehicle class, an exception is granted as to not impede agency missions.

SEC. 629. From the unobligated balances available in the Securities and Exchange Commission Reserve Fund established by section 991 of the Dodd-Frank Wall Street Reform and Consumer Protection Act (Public Law 111–203), $25,000,000 are rescinded.

SEC. 630. Section 716 of the Dodd-Frank Wall Street Reform and Consumer Protection Act (15 U.S.C. 8305) is amended—

(1) in subsection (b)—

(A) in paragraph (2)(B), by striking ''insured depository institution'' and inserting ''covered depository institution''; and

(B) by adding at the end the following:

''(3) COVERED DEPOSITORY INSTITUTION.—The term 'covered depository institution' means—

''(A) an insured depository institution, as that term is defined in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813); and

''(B) a United States uninsured branch or agency of a foreign bank.'';

(2) in subsection (c)—

(A) in the heading for such subsection, by striking ''INSURED'' and inserting ''COVERED'';

(B) by striking ''an insured'' and inserting ''a covered'';

(C) by striking ''such insured'' and inserting ''such covered''; and

(D) by striking ''or savings and loan holding company'' and inserting ''savings and loan holding company, or foreign banking organization (as such term is defined under Regulation K of the Board of Governors of the Federal Reserve System (12 CFR 211.21(o)))'';

(3) by amending subsection (d) to read as follows:

''(d) ONLY BONA FIDE HEDGING AND TRADITIONAL BANK ACTIVITIES PERMITTED.—

''(1) IN GENERAL.—The prohibition in subsection (a) shall not apply to any covered depository institution that limits its swap and security-based swap activities to the following:

''(A) HEDGING AND OTHER SIMILAR RISK MITIGATION ACTIVITIES.—Hedging and other similar risk mitigating activities directly related to the covered depository institution's activities.

''(B) NON-STRUCTURED FINANCE SWAP ACTIVITIES.—Acting as a swaps entity for swaps or security-based swaps other than a structured finance swap.

''(C) CERTAIN STRUCTURED FINANCE SWAP ACTIVITIES.—Acting as a swaps entity for swaps or security-based swaps that are structured finance swaps, if—

''(i) such structured finance swaps are undertaken for hedging or risk management purposes; or

''(ii) each asset-backed security underlying such structured finance swaps is of a credit quality and of a type or category with respect to which the prudential regulators have jointly adopted rules authorizing swap or security-based swap activity by covered depository institutions.

''(2) DEFINITIONS.—For purposes of this subsection:

''(A) STRUCTURED FINANCE SWAP.—The term 'structured finance swap' means a swap or security-based swap based on an asset-backed security (or group or index primarily comprised of asset-backed securities).

''(B) ASSET-BACKED SECURITY.—The term 'asset-backed security' has the meaning given such term under section 3(a) of the Securities Exchange Act of 1934 (15 U.S.C. 78c(a)).'';

(4) in subsection (e), by striking ''an insured'' and inserting ''a covered''; and

(5) in subsection (f)—

(A) by striking ''an insured depository'' and inserting ''a covered depository''; and

(B) by striking ''the insured depository'' each place such term appears and inserting ''the covered depository''.

TITLE VII

GENERAL PROVISIONS—GOVERNMENT-WIDE

DEPARTMENTS, AGENCIES, AND CORPORATIONS

(INCLUDING TRANSFER OF FUNDS)

SEC. 701. No department, agency, or instrumentality of the United States receiving appropriated funds under this or any other Act for fiscal year 2015 shall obligate or expend any such funds, unless such department, agency, or instrumentality has in place, and will continue to administer in good faith, a written policy designed to ensure that all of its workplaces are free from the illegal use, possession, or distribution of controlled substances (as defined in the Controlled Substances Act (21 U.S.C. 802)) by the officers and employees of such department, agency, or instrumentality.

SEC. 702. Unless otherwise specifically provided, the maximum amount allowable during the current fiscal year in accordance with subsection 1343(c) of title 31, United States Code, for the purchase of any passenger motor vehicle (exclusive of buses, ambulances, law enforcement vehicles, protective vehicles, and undercover surveillance vehicles), is hereby fixed at $13,197 except station wagons for which the maximum shall be $13,631: *Provided*, That these limits may be exceeded by not to exceed $3,700 for police-type vehicles, and by not to exceed $4,000 for special heavy-duty vehicles: *Provided further*, That the limits set forth in this section may not be exceeded by more than 5 percent for electric or hybrid vehicles purchased for demonstration under the provisions of the Electric and Hybrid Vehicle Research, Development, and Demonstration Act of 1976: *Provided further*, That the limits set forth in this section may be exceeded by the incremental cost of clean alternative fuels vehicles acquired pursuant to Public Law 101–549 over the cost of comparable conventionally fueled vehicles: *Provided further*, That the limits set forth in this section shall not apply to any vehicle that is a commercial item and which operates on emerging motor vehicle technology, including but not limited to electric, plug-in hybrid electric, and hydrogen fuel cell vehicles.

SEC. 703. Appropriations of the executive departments and independent establishments for the current fiscal year available for expenses of travel, or for the expenses of the activity concerned, are hereby made available for quarters allowances and cost-of-living allowances, in accordance with 5 U.S.C. 5922–5924.

SEC. 704. Unless otherwise specified in law during the current fiscal year, no part of any appropriation contained in this or any other Act shall be used to pay the compensation of any officer or employee of the Government of the United States (including any agency the majority of the stock of which is owned by the Government of the United States) whose post of duty is in the continental United States unless such person: (1) is a citizen of the United States; (2) is a person who is lawfully admitted for permanent residence and is seeking citizenship as outlined in 8 U.S.C. 1324b(a)(3)(B); (3) is a person who is admitted as a refugee under 8 U.S.C. 1157 or is granted asylum under 8 U.S.C. 1158 and has filed a declaration of intention to become a lawful permanent resident and then a citizen when eligible; or (4) is a person who owes allegiance to the United States: *Provided*, That for purposes of this section, affidavits signed by any such person shall be considered prima facie evidence that the requirements of this section with respect to his or her status are being complied with: *Provided further*, That for purposes of subsections (2) and (3) such affidavits shall be submitted prior to employment and updated thereafter as necessary: *Provided further*, That any person making a false affidavit shall be guilty of a felony, and upon conviction, shall be fined no more than $4,000 or imprisoned for not more than 1 year, or both: *Provided further*, That the above penal clause shall be in addition to, and not in substitution for, any other provisions of existing law: *Provided further*, That any payment made to any officer or employee contrary to the provisions of this section shall be recoverable in action by the Federal Government: *Provided further*, That this section shall not apply to any person who is an officer or employee of the Government of the United States on the date of enactment of this Act, or to international broadcasters employed by the Broadcasting Board of Governors, or to temporary employment of translators, or to temporary employment in the field service (not to exceed 60 days) as a result of emergencies: *Provided further*, That this section does not apply to the employment as Wildland firefighters for not more than 120 days of nonresident aliens employed by the Department of the Interior or the USDA Forest Service pursuant to an agreement with another country.

SEC. 705. Appropriations available to any department or agency during the current fiscal year for necessary expenses, including maintenance or operating expenses, shall also be available for payment to the General Services Administration for charges for space and services and those expenses of renovation and alteration of buildings and facilities which constitute public improvements performed in accordance with the Public Buildings Act of 1959 (73 Stat. 479), the Public Buildings Amendments of 1972 (86 Stat. 216), or other applicable law.

SEC. 706. In addition to funds provided in this or any other Act, all Federal agencies are authorized to receive and use funds resulting from the sale of materials, including Federal records disposed of pursuant to a records schedule recovered through recycling or waste prevention programs. Such funds shall be available until expended for the following purposes:

(1) Acquisition, waste reduction and prevention, and recycling programs as described in Executive Order No. 13423 (January 24, 2007), including any such programs adopted prior to the effective date of the Executive order.

(2) Other Federal agency environmental management programs, including, but not limited to, the development and implementation of hazardous waste management and pollution prevention programs.

(3) Other employee programs as authorized by law or as deemed appropriate by the head of the Federal agency.

SEC. 707. Funds made available by this or any other Act for administrative expenses in the current fiscal year of the corporations and agencies subject to chapter 91 of title 31, United States Code, shall be available, in addition to objects for which such funds are otherwise available, for rent in the District of Columbia; services in accordance with 5 U.S.C. 3109; and the objects specified under this head, all the provisions of which shall be applicable to the expenditure of such funds unless otherwise specified in the Act by which they are made available: *Provided*, That in the event any functions budgeted as administrative expenses are subsequently transferred to or paid from other funds, the limitations on administrative expenses shall be correspondingly reduced.

SEC. 708. No part of any appropriation contained in this or any other Act shall be available for interagency financing of boards (except Federal Executive Boards), commissions, councils, committees, or similar groups (whether or not they are interagency entities) which do not have a prior and specific statutory approval to receive financial support from more than one agency or instrumentality.

SEC. 709. None of the funds made available pursuant to the provisions of this or any other Act shall be used to implement, administer, or enforce any regulation which has been disapproved pursuant to a joint resolution duly adopted in accordance with the applicable law of the United States.

SEC. 710. During the period in which the head of any department or agency, or any other officer or civilian employee of the Federal Government appointed by the President of the United States, holds office, no funds may be obligated or expended in excess of $5,000 to furnish or redecorate the office of such department head, agency head, officer, or employee, or to purchase furniture or make improvements for any such office, unless advance notice of such furnishing or redecoration is transmitted to the Committees

on Appropriations of the House of Representatives and the Senate. For the purposes of this section, the term ''office'' shall include the entire suite of offices assigned to the individual, as well as any other space used primarily by the individual or the use of which is directly controlled by the individual.

SEC. 711. Notwithstanding 31 U.S.C. 1346, or section 708 of this Act, funds made available for the current fiscal year by this or any other Act shall be available for the interagency funding of national security and emergency preparedness telecommunications initiatives which benefit multiple Federal departments, agencies, or entities, as provided by Executive Order No. 13618 (July 6, 2012).

SEC. 712. (a) None of the funds made available by this or any other Act may be obligated or expended by any department, agency, or other instrumentality of the Federal Government to pay the salaries or expenses of any individual appointed to a position of a confidential or policy-determining character that is excepted from the competitive service under section 3302 of title 5, United States Code, (pursuant to schedule C of subpart C of part 213 of title 5 of the Code of Federal Regulations) unless the head of the applicable department, agency, or other instrumentality employing such schedule C individual certifies to the Director of the Office of Personnel Management that the schedule C position occupied by the individual was not created solely or primarily in order to detail the individual to the White House.

(b) The provisions of this section shall not apply to Federal employees or members of the armed forces detailed to or from an element of the intelligence community (as that term is defined under section 3(4) of the National Security Act of 1947 (50 U.S.C. 3003(4))).

SEC. 713. No part of any appropriation contained in this or any other Act shall be available for the payment of the salary of any officer or employee of the Federal Government, who—

(1) prohibits or prevents, or attempts or threatens to prohibit or prevent, any other officer or employee of the Federal Government from having any direct oral or written communication or contact with any Member, committee, or subcommittee of the Congress in connection with any matter pertaining to the employment of such other officer or employee or pertaining to the department or agency of such other officer or employee in any way, irrespective of whether such communication or contact is at the initiative of such other officer or employee or in response to the request or inquiry of such Member, committee, or subcommittee; or

(2) removes, suspends from duty without pay, demotes, reduces in rank, seniority, status, pay, or performance or efficiency rating, denies promotion to, relocates, reassigns, transfers, disciplines, or discriminates in regard to any employment right, entitlement, or benefit, or any term or condition of employment of, any other officer or employee of the Federal Government, or attempts or threatens to commit any of the foregoing actions with respect to such other officer or employee, by reason of any communication or contact of such other officer or employee with any Member, committee, or subcommittee of the Congress as described in paragraph (1).

SEC. 714. (a) None of the funds made available in this or any other Act may be obligated or expended for any employee training that—

(1) does not meet identified needs for knowledge, skills, and abilities bearing directly upon the performance of official duties;

(2) contains elements likely to induce high levels of emotional response or psychological stress in some participants;

(3) does not require prior employee notification of the content and methods to be used in the training and written end of course evaluation;

(4) contains any methods or content associated with religious or quasi-religious belief systems or ''new age'' belief systems as defined in Equal Employment Opportunity Commission Notice N–915.022, dated September 2, 1988; or

(5) is offensive to, or designed to change, participants' personal values or lifestyle outside the workplace.

(b) Nothing in this section shall prohibit, restrict, or otherwise preclude an agency from conducting training bearing directly upon the performance of official duties.

SEC. 715. No part of any funds appropriated in this or any other Act shall be used by an agency of the executive branch, other than for normal and recognized executive-legislative relationships, for publicity or propaganda purposes, and for the preparation, distribution or use of any kit, pamphlet, booklet, publication, radio, television, or film presentation designed to support or defeat legislation pending before the Congress, except in presentation to the Congress itself.

SEC. 716. None of the funds appropriated by this or any other Act may be used by an agency to provide a Federal employee's home address to any labor organization except when the employee has authorized such disclosure or when such disclosure has been ordered by a court of competent jurisdiction.

SEC. 717. None of the funds made available in this or any other Act may be used to provide any non-public information such as mailing, telephone or electronic mailing lists to any person or any organization outside of the Federal Government without the approval of the Committees on Appropriations of the House of Representatives and the Senate.

SEC. 718. No part of any appropriation contained in this or any other Act shall be used directly or indirectly, including by private contractor, for publicity or propaganda purposes within the United States not heretofore authorized by Congress.

SEC. 719. (a) In this section, the term ''agency''—

(1) means an Executive agency, as defined under 5 U.S.C. 105; and

(2) includes a military department, as defined under section 102 of such title, the Postal Service, and the Postal Regulatory Commission.

(b) Unless authorized in accordance with law or regulations to use such time for other purposes, an employee of an agency shall use official time in an honest effort to perform official duties. An employee not under a leave system, including a Presidential appointee exempted under 5 U.S.C. 6301(2), has an obligation to expend an honest effort and a reasonable proportion of such employee's time in the performance of official duties.

SEC. 720. Notwithstanding 31 U.S.C. 1346 and section 708 of this Act, funds made available for the current fiscal year by this or any other Act to any department or agency, which is a member of the Federal Accounting Standards Advisory Board (FASAB), shall be available to finance an appropriate share of FASAB administrative costs.

SEC. 721. Notwithstanding 31 U.S.C. 1346 and section 708 of this Act, the head of each Executive department and agency is hereby authorized to transfer to or reimburse ''General Services Administration, Government-wide Policy'' with the approval of the Director of the Office of Management and Budget, funds made available for the current fiscal year by this or any other Act, including rebates from charge card and other contracts: *Provided*, That these funds shall be administered by the Administrator of General Services to support Government-wide and other multi-agency financial, information technology, procurement, and other management innovations, initiatives, and activities, as approved by the Director of the Office of Management and Budget, in consultation with the appropriate interagency and multi-agency groups designated by the Director (including the President's Management Council for overall management improvement initiatives, the Chief Financial Officers Council for financial management initiatives, the Chief Information Officers Council for information technology initiatives, the Chief Human Capital Officers Council for human capital initiatives, the Chief Acquisition Officers Council for procurement initiatives, and the Performance Improvement Council for performance improvement initiatives): *Provided further*, That the total funds transferred or reimbursed shall not exceed $17,000,000 for Government-Wide innovations, initiatives, and activities: *Provided further*, That the funds transferred to or for reimbursement of ''General Services Administration, Government-wide Policy'' during fiscal year 2015 shall remain available for obligation through September 30, 2016: *Provided further*, That such transfers or reimbursements may only be made after 15 days following notification of the Committees on Appropriations of the House of Representatives and the Senate by the Director of the Office of Management and Budget.

SEC. 722. Notwithstanding any other provision of law, a woman may breastfeed her child at any location in a Federal building or on Federal property, if the woman and her child are otherwise authorized to be present at the location.

SEC. 723. Notwithstanding 31 U.S.C. 1346, or section 708 of this Act, funds made available for the current fiscal year by this or any other Act shall be available for the interagency funding of specific projects, workshops, studies, and similar efforts to carry out the purposes of the National Science and Technology Council (authorized by Executive Order No. 12881), which benefit multiple Federal departments, agencies, or entities: *Provided*, That the Office of Management and Budget shall provide a report describing the budget of and resources connected with the National Science and Technology Council to the Committees on Appropriations, the House Committee on Science and Technology, and the Senate Committee on Commerce, Science, and Transportation 90 days after enactment of this Act.

SEC. 724. Any request for proposals, solicitation, grant application, form, notification, press release, or other publications involving the distribution of Federal funds shall indicate the agency providing the funds, the Catalog of Federal Domestic Assistance Number, as applicable, and the amount provided: *Provided*, That this section shall apply to direct payments, formula funds, and grants received by a State receiving Federal funds.

SEC. 725. (a) PROHIBITION OF FEDERAL AGENCY MONITORING OF INDIVIDUALS' INTERNET USE.—None of the funds made available in this or any other Act may be used by any Federal agency—

(1) to collect, review, or create any aggregation of data, derived from any means, that includes any personally identifiable information relating to an individual's access to or use of any Federal Government Internet site of the agency; or

(2) to enter into any agreement with a third party (including another government agency) to collect, review, or obtain any aggregation of data, derived from any means,

that includes any personally identifiable information relating to an individual's access to or use of any nongovernmental Internet site.

(b) EXCEPTIONS.—The limitations established in subsection (a) shall not apply to—

(1) any record of aggregate data that does not identify particular persons;

(2) any voluntary submission of personally identifiable information;

(3) any action taken for law enforcement, regulatory, or supervisory purposes, in accordance with applicable law; or

(4) any action described in subsection (a)(1) that is a system security action taken by the operator of an Internet site and is necessarily incident to providing the Internet site services or to protecting the rights or property of the provider of the Internet site.

(c) DEFINITIONS.—For the purposes of this section:

(1) The term ''regulatory'' means agency actions to implement, interpret or enforce authorities provided in law.

(2) The term ''supervisory'' means examinations of the agency's supervised institutions, including assessing safety and soundness, overall financial condition, management practices and policies and compliance with applicable standards as provided in law.

SEC. 726. (a) None of the funds appropriated by this Act may be used to enter into or renew a contract which includes a provision providing prescription drug coverage, except where the contract also includes a provision for contraceptive coverage.

(b) Nothing in this section shall apply to a contract with—

(1) any of the following religious plans:

(A) Personal Care's HMO; and

(B) OSF HealthPlans, Inc.; and

(2) any existing or future plan, if the carrier for the plan objects to such coverage on the basis of religious beliefs.

(c) In implementing this section, any plan that enters into or renews a contract under this section may not subject any individual to discrimination on the basis that the individual refuses to prescribe or otherwise provide for contraceptives because such activities would be contrary to the individual's religious beliefs or moral convictions.

(d) Nothing in this section shall be construed to require coverage of abortion or abortion-related services.

SEC. 727. The United States is committed to ensuring the health of its Olympic, Pan American, and Paralympic athletes, and supports the strict adherence to anti-doping in sport through testing, adjudication, education, and research as performed by nationally recognized oversight authorities.

SEC. 728. Notwithstanding any other provision of law, funds appropriated for official travel to Federal departments and agencies may be used by such departments and agencies, if consistent with Office of Management and Budget Circular A–126 regarding official travel for Government personnel, to participate in the fractional aircraft ownership pilot program.

SEC. 729. Notwithstanding any other provision of law, none of the funds appropriated or made available under this or any other appropriations Act may be used to implement or enforce restrictions or limitations on the Coast Guard Congressional Fellowship Program, or to implement the proposed regulations of the Office of Personnel Management to add sections 300.311 through 300.316 to part 300 of title 5 of the Code of Federal Regulations, published in the Federal Register, volume 68, number 174, on September 9, 2003 (relating to the detail of executive branch employees to the legislative branch).

SEC. 730. Notwithstanding any other provision of law, no executive branch agency shall purchase, construct, or lease any additional facilities, except within or contiguous to existing locations, to be used for the purpose of conducting Federal law enforcement training without the advance approval of the Committees on Appropriations of the House of Representatives and the Senate, except that the Federal Law Enforcement Training Center is authorized to obtain the temporary use of additional facilities by lease, contract, or other agreement for training which cannot be accommodated in existing Center facilities.

SEC. 731. Unless otherwise authorized by existing law, none of the funds provided in this or any other Act may be used by an executive branch agency to produce any prepackaged news story intended for broadcast or distribution in the United States, unless the story includes a clear notification within the text or audio of the prepackaged news story that the prepackaged news story was prepared or funded by that executive branch agency.

SEC. 732. None of the funds made available in this Act may be used in contravention of section 552a of title 5, United States Code (popularly known as the Privacy Act), and regulations implementing that section.

SEC. 733. (a) IN GENERAL.—None of the funds appropriated or otherwise made available by this or any other Act may be used for any Federal Government contract with any foreign incorporated entity which is treated as an inverted domestic corporation under section 835(b) of the Homeland Security Act of 2002 (6 U.S.C. 395(b)) or any subsidiary of such an entity.

(b) WAIVERS.—

(1) IN GENERAL.—Any Secretary shall waive subsection (a) with respect to any Federal Government contract under the authority of such Secretary if the Secretary determines that the waiver is required in the interest of national security.

(2) REPORT TO CONGRESS.—Any Secretary issuing a waiver under paragraph (1) shall report such issuance to Congress.

(c) EXCEPTION.—This section shall not apply to any Federal Government contract entered into before the date of the enactment of this Act, or to any task order issued pursuant to such contract.

SEC. 734. During fiscal year 2015, for each employee who—

(1) retires under section 8336(d)(2) or 8414(b)(1)(B) of title 5, United States Code; or

(2) retires under any other provision of subchapter III of chapter 83 or chapter 84 of such title 5 and receives a payment as an incentive to separate, the separating agency shall remit to the Civil Service Retirement and Disability Fund an amount equal to the Office of Personnel Management's average unit cost of processing a retirement claim for the preceding fiscal year. Such amounts shall be available until expended to the Office of Personnel Management and shall be deemed to be an administrative expense under section 8348(a)(1)(B) of title 5, United States Code.

SEC. 735. (a) None of the funds made available in this or any other Act may be used to recommend or require any entity submitting an offer for a Federal contract to disclose any of the following information as a condition of submitting the offer:

(1) Any payment consisting of a contribution, expenditure, independent expenditure, or disbursement for an electioneering communication that is made by the entity, its officers or directors, or any of its affiliates or subsidiaries to a candidate for election for Federal office or to a political committee, or that is otherwise made with respect to any election for Federal office.

(2) Any disbursement of funds (other than a payment described in paragraph (1)) made by the entity, its officers or directors, or any of its affiliates or subsidiaries to any person with the intent or the reasonable expectation that the person will use the funds to make a payment described in paragraph (1).

(b) In this section, each of the terms ''contribution'', ''expenditure'', ''independent expenditure'', ''electioneering communication'', ''candidate'', ''election'', and ''Federal office'' has the meaning given such term in the Federal Election Campaign Act of 1971 (2 U.S.C. 431 et seq.).

SEC. 736. None of the funds made available in this or any other Act may be used to pay for the painting of a portrait of an officer or employee of the Federal government, including the President, the Vice President, a member of Congress (including a Delegate or a Resident Commissioner to Congress), the head of an executive branch agency (as defined in section 133 of title 41, United States Code), or the head of an office of the legislative branch.

SEC. 737. (a)(1) Notwithstanding any other provision of law, and except as otherwise provided in this section, no part of any of the funds appropriated for fiscal year 2015, by this or any other Act, may be used to pay any prevailing rate employee described in section 5342(a)(2)(A) of title 5, United States Code—

(A) during the period from the date of expiration of the limitation imposed by the comparable section for the previous fiscal years until the normal effective date of the applicable wage survey adjustment that is to take effect in fiscal year 2015, in an amount that exceeds the rate payable for the applicable grade and step of the applicable wage schedule in accordance with such section; and

(B) during the period consisting of the remainder of fiscal year 2015, in an amount that exceeds, as a result of a wage survey adjustment, the rate payable under subparagraph (A) by more than the sum of—

(i) the percentage adjustment taking effect in fiscal year 2015 under section 5303 of title 5, United States Code, in the rates of pay under the General Schedule; and

(ii) the difference between the overall average percentage of the locality-based comparability payments taking effect in fiscal year 2015 under section 5304 of such title (whether by adjustment or otherwise), and the overall average percentage of such payments which was effective in the previous fiscal year under such section.

(2) Notwithstanding any other provision of law, no prevailing rate employee described in subparagraph (B) or (C) of section 5342(a)(2) of title 5, United States Code, and no employee covered by section 5348 of such title, may be paid during the periods for which paragraph (1) is in effect at a rate that exceeds the rates that would be payable under paragraph (1) were paragraph (1) applicable to such employee.

(3) For the purposes of this subsection, the rates payable to an employee who is covered by this subsection and who is paid from a schedule not in existence on September 30, 2014, shall be determined under regulations prescribed by the Office of Personnel Management.

(4) Notwithstanding any other provision of law, rates of premium pay for employees subject to this subsection may not be changed from the rates in effect on September 30, 2014, except to the extent determined by the Office of Personnel Management to be consistent with the purpose of this subsection.

(5) This subsection shall apply with respect to pay for service performed after September 30, 2014.

(6) For the purpose of administering any provision of law (including any rule or regulation that provides premium pay, retirement, life insurance, or any other employee benefit) that requires any deduction or contribution, or that imposes any requirement

or limitation on the basis of a rate of salary or basic pay, the rate of salary or basic pay payable after the application of this subsection shall be treated as the rate of salary or basic pay.

(7) Nothing in this subsection shall be considered to permit or require the payment to any employee covered by this subsection at a rate in excess of the rate that would be payable were this subsection not in effect.

(8) The Office of Personnel Management may provide for exceptions to the limitations imposed by this subsection if the Office determines that such exceptions are necessary to ensure the recruitment or retention of qualified employees.

(b) Notwithstanding subsection (a), the adjustment in rates of basic pay for the statutory pay systems that take place in fiscal year 2015 under sections 5344 and 5348 of title 5, United States Code, shall be—

(1) not less than the percentage received by employees in the same location whose rates of basic pay are adjusted pursuant to the statutory pay systems under sections 5303 and 5304 of title 5, United States Code: *Provided*, That prevailing rate employees at locations where there are no employees whose pay is increased pursuant to sections 5303 and 5304 of title 5, United States Code, and prevailing rate employees described in section 5343(a)(5) of title 5, United States Code, shall be considered to be located in the pay locality designated as ''Rest of United States'' pursuant to section 5304 of title 5, United States Code, for purposes of this subsection; and

(2) effective as of the first day of the first applicable pay period beginning after September 30, 2014.

SEC. 738. (a) The Vice President may not receive a pay raise in calendar year 2015, notwithstanding the rate adjustment made under section 104 of title 3, United States Code, or any other provision of law.

(b) An employee serving in an Executive Schedule position, or in a position for which the rate of pay is fixed by statute at an Executive Schedule rate, may not receive a pay rate increase in calendar year 2015, notwithstanding schedule adjustments made under section 5318 of title 5, United States Code, or any other provision of law, except as provided in subsection (g), (h), or (i). This subsection applies only to employees who are holding a position under a political appointment.

(c) A chief of mission or ambassador at large may not receive a pay rate increase in calendar year 2015, notwithstanding section 401 of the Foreign Service Act of 1980 (Public Law 96–465) or any other provision of law, except as provided in subsection (g), (h), or (i).

(d) Notwithstanding sections 5382 and 5383 of title 5, United States Code, a pay rate increase may not be received in calendar year 2015 (except as provided in subsection (g), (h), or (i)) by—

(1) a noncareer appointee in the Senior Executive Service paid a rate of basic pay at or above level IV of the Executive Schedule; or

(2) a limited term appointee or limited emergency appointee in the Senior Executive Service serving under a political appointment and paid a rate of basic pay at or above level IV of the Executive Schedule.

(e) Any employee paid a rate of basic pay (including any locality-based payments under section 5304 of title 5, United States Code, or similar authority) at or above level IV of the Executive Schedule who serves under a political appointment may not receive a pay rate increase in calendar year 2015, notwithstanding any other provision of law, except as provided in subsection (g), (h), or (i). This subsection does not apply to employees in the General Schedule pay system or the Foreign Service pay system, or to employees appointed under section 3161 of title 5, United States Code, or to employees in another pay system whose position would be classified at GS–15 or below if chapter 51 of title 5, United States Code, applied to them.

(f) Nothing in subsections (b) through (e) shall prevent employees who do not serve under a political appointment from receiving pay increases as otherwise provided under applicable law.

(g) A career appointee in the Senior Executive Service who receives a Presidential appointment and who makes an election to retain Senior Executive Service basic pay entitlements under section 3392 of title 5, United States Code, is not subject to this section.

(h) A member of the Senior Foreign Service who receives a Presidential appointment to any position in the executive branch and who makes an election to retain Senior Foreign Service pay entitlements under section 302(b) of the Foreign Service Act of 1980 (Public Law 96–465) is not subject to this section.

(i) Notwithstanding subsections (b) through (e), an employee in a covered position may receive a pay rate increase upon an authorized movement to a different covered position with higher-level duties and a preestablished higher level or range of pay, except that any such increase must be based on the rates of pay and applicable pay limitations in effect on December 31, 2013.

(j) Notwithstanding any other provision of law, for an individual who is newly appointed to a covered position during the period of time subject to this section, the initial pay rate shall be based on the rates of pay and applicable pay limitations in effect on December 31, 2013.

(k) If an employee affected by subsections (b) through (e) is subject to a biweekly pay period that begins in calendar year 2015 but ends in calendar year 2016, the bar on the employee's receipt of pay rate increases shall apply through the end of that pay period.

SEC. 739. (a) The head of any Executive branch department, agency, board, commission, or office funded by this or any other appropriations Act shall submit annual reports to the Inspector General or senior ethics official for any entity without an Inspector General, regarding the costs and contracting procedures related to each conference held by any such department, agency, board, commission, or office during fiscal year 2015 for which the cost to the United States Government was more than $100,000.

(b) Each report submitted shall include, for each conference described in subsection (a) held during the applicable period—

(1) a description of its purpose;

(2) the number of participants attending;

(3) a detailed statement of the costs to the United States Government, including—

(A) the cost of any food or beverages;

(B) the cost of any audio-visual services;

(C) the cost of employee or contractor travel to and from the conference; and

(D) a discussion of the methodology used to determine which costs relate to the conference; and

(4) a description of the contracting procedures used including—

(A) whether contracts were awarded on a competitive basis; and

(B) a discussion of any cost comparison conducted by the departmental component or office in evaluating potential contractors for the conference.

(c) Within 15 days of the date of a conference held by any Executive branch department, agency, board, commission, or office funded by this or any other appropriations Act during fiscal year 2015 for which the cost to the United States Government was more than $20,000, the head of any such department, agency, board, commission, or office shall notify the Inspector General or senior ethics official for any entity without an Inspector General, of the date, location, and number of employees attending such conference.

(d) A grant or contract funded by amounts appropriated by this or any other appropriations Act may not be used for the purpose of defraying the costs of a conference described in subsection (c) that is not directly and programmatically related to the purpose for which the grant or contract was awarded, such as a conference held in connection with planning, training, assessment, review, or other routine purposes related to a project funded by the grant or contract.

(e) None of the funds made available in this or any other appropriations Act may be used for travel and conference activities that are not in compliance with Office of Management and Budget Memorandum M–12–12 dated May 11, 2012.

SEC. 740. None of the funds made available in this or any other appropriations Act may be used to increase, eliminate, or reduce funding for a program, project, or activity as proposed in the President's budget request for a fiscal year until such proposed change is subsequently enacted in an appropriation Act, or unless such change is made pursuant to the reprogramming or transfer provisions of this or any other appropriations Act.

SEC. 741. None of the funds made available by this or any other Act may be used to implement, administer, enforce, or apply the rule entitled ''Competitive Area'' published by the Office of Personnel Management in the Federal Register on April 15, 2008 (73 Fed. Reg. 20180 et seq.).

SEC. 742. None of the funds appropriated or otherwise made available by this or any other Act may be used to begin or announce a study or public-private competition regarding the conversion to contractor performance of any function performed by Federal employees pursuant to Office of Management and Budget Circular A–76 or any other administrative regulation, directive, or policy.

SEC. 743. (a) None of the funds appropriated or otherwise made available by this or any other Act may be available for a contract, grant, or cooperative agreement with an entity that requires employees or contractors of such entity seeking to report fraud, waste, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or contactors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(b) The limitation in subsection (a) shall not contravene requirements applicable to Standard Form 312, Form 4414, or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

SEC. 744. None of the funds made available by this or any other Act may be used to enter into a contract, memorandum of understanding, or cooperative agreement with, make a grant to, or provide a loan or loan guarantee to, any corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless a Federal agency has considered suspension or debarment of the corporation and has made a determination that this further action is not necessary to protect the interests of the Government.

SEC. 745. None of the funds made available by this or any other Act may be used to enter into a contract, memorandum of understanding, or cooperative agreement with, make a grant to, or provide a loan or loan guarantee to, any corporation that was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless a Federal agency has considered suspension or debarment of the corporation and has made a determination that this further action is not necessary to protect the interests of the Government.

SEC. 746. Not later than 1 year after the date of enactment of this Act, the Director of the Office of Management and Budget, in consultation with the Council of Inspectors General on Integrity and Efficiency, the Government Accountability Office, and other stakeholders shall develop—

(1) criteria for an agency that has demonstrated a stabilized, effective system of internal control over financial reporting, whereby the agency would qualify for a consolidated Department level audit for obtaining a financial statement audit opinion, rather than an agency level audit; and

(2) recommendations on how to improve current financial reporting requirements to increase government transparency, in conjunction with the implementation of the Digital Accountability and Transparency Act of 2014 (Public Law 113–101), and better meet the needs of all stakeholders.

SEC. 747. (a) No funds appropriated in this or any other Act may be used to implement or enforce the agreements in Standard Forms 312 and 4414 of the Government or any other nondisclosure policy, form, or agreement if such policy, form, or agreement does not contain the following provisions: ''These provisions are consistent with and do not supersede, conflict with, or otherwise alter the employee obligations, rights, or liabilities created by existing statute or Executive order relating to (1) classified information, (2) communications to Congress, (3) the reporting to an Inspector General of a violation of any law, rule, or regulation, or mismanagement, a gross waste of funds, an abuse of authority, or a substantial and specific danger to public health or safety, or (4) any other whistleblower protection. The definitions, requirements, obligations, rights, sanctions, and liabilities created by controlling Executive orders and statutory provisions are incorporated into this agreement and are controlling.'': *Provided*, That notwithstanding the preceding provision of this section, a nondisclosure policy form or agreement that is to be executed by a person connected with the conduct of an intelligence or intelligence-related activity, other than an employee or officer of the United States Government, may contain provisions appropriate to the particular activity for which such document is to be used. Such form or agreement shall, at a minimum, require that the person will not disclose any classified information received in the course of such activity unless specifically authorized to do so by the United States Government. Such nondisclosure forms shall also make it clear that they do not bar disclosures to Congress, or to an authorized official of an executive agency or the Department of Justice, that are essential to reporting a substantial violation of law.

(b) A nondisclosure agreement may continue to be implemented and enforced notwithstanding subsection (a) if it complies with the requirements for such agreement that were in effect when the agreement was entered into.

(c) No funds appropriated in this or any other Act may be used to implement or enforce any agreement entered into during fiscal year 2014 which does not contain substantially similar language to that required in subsection (a).

SEC. 748. During fiscal year 2015, on the date that a request is made for a transfer of funds in accordance with section 1017 of Public Law 111–203, the Bureau of Consumer Financial Protection shall notify Committees on Appropriations of the House of Representatives and the Senate, the Committee on Financial Services of the House of Representatives, and the Committee on Banking, Housing, and Urban Affairs of the Senate of such requests.

SEC. 749. None of the funds made available by this or any other Act may be used to implement a new Federal Flood Risk Management Standard until the Administration has solicited and considered input from Governors, mayors, and other stakeholders.

SEC. 750. Except as expressly provided otherwise, any reference to ''this Act'' contained in any title other than title IV or VIII shall not apply to such title IV or VIII.

TITLE VIII

GENERAL PROVISIONS—DISTRICT OF COLUMBIA

(INCLUDING TRANSFERS OF FUNDS)

SEC. 801. There are appropriated from the applicable funds of the District of Columbia such sums as may be necessary for making refunds and for the payment of legal settlements or judgments that have been entered against the District of Columbia government.

SEC. 802. None of the Federal funds provided in this Act shall be used for publicity or propaganda purposes or implementation of any policy including boycott designed to support or defeat legislation pending before Congress or any State legislature.

SEC. 803. (a) None of the Federal funds provided under this Act to the agencies funded by this Act, both Federal and District government agencies, that remain available for obligation or expenditure in fiscal year 2015, or provided from any accounts in the Treasury of the United States derived by the collection of fees available to the agencies funded by this Act, shall be available for obligation or expenditures for an agency through a reprogramming of funds which—

(1) creates new programs;

(2) eliminates a program, project, or responsibility center;

(3) establishes or changes allocations specifically denied, limited or increased under this Act;

(4) increases funds or personnel by any means for any program, project, or responsibility center for which funds have been denied or restricted;

(5) re-establishes any program or project previously deferred through reprogramming;

(6) augments any existing program, project, or responsibility center through a reprogramming of funds in excess of $3,000,000 or 10 percent, whichever is less; or

(7) increases by 20 percent or more personnel assigned to a specific program, project or responsibility center,

unless prior approval is received from the Committees on Appropriations of the House of Representatives and the Senate.

(b) The District of Columbia government is authorized to approve and execute reprogramming and transfer requests of local funds under this title through November 7, 2015.

SEC. 804. None of the Federal funds provided in this Act may be used by the District of Columbia to provide for salaries, expenses, or other costs associated with the offices of United States Senator or United States Representative under section 4(d) of the District of Columbia Statehood Constitutional Convention Initiatives of 1979 (D.C. Law 3–171; D.C. Official Code, sec. 1–123).

SEC. 805. Except as otherwise provided in this section, none of the funds made available by this Act or by any other Act may be used to provide any officer or employee of the District of Columbia with an official vehicle unless the officer or employee uses the vehicle only in the performance of the officer's or employee's official duties. For purposes of this section, the term ''official duties'' does not include travel between the officer's or employee's residence and workplace, except in the case of—

(1) an officer or employee of the Metropolitan Police Department who resides in the District of Columbia or is otherwise designated by the Chief of the Department;

(2) at the discretion of the Fire Chief, an officer or employee of the District of Columbia Fire and Emergency Medical Services Department who resides in the District of Columbia and is on call 24 hours a day;

(3) at the discretion of the Director of the Department of Corrections, an officer or employee of the District of Columbia Department of Corrections who resides in the District of Columbia and is on call 24 hours a day;

(4) at the discretion of the Chief Medical Examiner, an officer or employee of the Office of the Chief Medical Examiner who resides in the District of Columbia and is on call 24 hours a day;

(5) at the discretion of the Director of the Homeland Security and Emergency Management Agency, an officer or employee of the Homeland Security and Emergency Management Agency who resides in the District of Columbia and is on call 24 hours a day;

(6) the Mayor of the District of Columbia; and

(7) the Chairman of the Council of the District of Columbia.

SEC. 806. (a) None of the Federal funds contained in this Act may be used by the District of Columbia Attorney General or any other officer or entity of the District government to provide assistance for any petition drive or civil action which seeks to require Congress to provide for voting representation in Congress for the District of Columbia.

(b) Nothing in this section bars the District of Columbia Attorney General from reviewing or commenting on briefs in private lawsuits, or from consulting with officials of the District government regarding such lawsuits.

SEC. 807. None of the Federal funds contained in this Act may be used to distribute any needle or syringe for the purpose of preventing the spread of blood borne pathogens in any location that has been determined by the local public health or local law enforcement authorities to be inappropriate for such distribution.

SEC. 808. Nothing in this Act may be construed to prevent the Council or Mayor of the District of Columbia from addressing the issue of the provision of contraceptive coverage by health insurance plans, but it is the intent of Congress that any legislation enacted on such issue should include a ''conscience clause'' which provides exceptions for religious beliefs and moral convictions.

SEC. 809. (a) None of the Federal funds contained in this Act may be used to enact or carry out any law, rule, or regulation to legalize or otherwise reduce penalties associated with the possession, use, or distribution of any schedule I substance under the Controlled Substances Act (21 U.S.C. 801 et seq.) or any tetrahydrocannabinols derivative.

(b) None of the funds contained in this Act may be used to enact any law, rule, or regulation to legalize or otherwise reduce penalties associated with the possession, use, or distribution of any schedule I substance under the Controlled Substances Act (21

U.S.C. 801 et seq.) or any tetrahydrocannabinols derivative for recreational purposes.

SEC. 810. None of the funds appropriated under this Act shall be expended for any abortion except where the life of the mother would be endangered if the fetus were carried to term or where the pregnancy is the result of an act of rape or incest.

SEC. 811. (a) No later than 30 calendar days after the date of the enactment of this Act, the Chief Financial Officer for the District of Columbia shall submit to the appropriate committees of Congress, the Mayor, and the Council of the District of Columbia, a revised appropriated funds operating budget in the format of the budget that the District of Columbia government submitted pursuant to section 442 of the District of Columbia Home Rule Act (D.C. Official Code, sec. 1–204.42), for all agencies of the District of Columbia government for fiscal year 2015 that is in the total amount of the approved appropriation and that realigns all budgeted data for personal services and other-than-personal services, respectively, with anticipated actual expenditures.

(b) This section shall apply only to an agency for which the Chief Financial Officer for the District of Columbia certifies that a reallocation is required to address unanticipated changes in program requirements.

SEC. 812. No later than 30 calendar days after the date of the enactment of this Act, the Chief Financial Officer for the District of Columbia shall submit to the appropriate committees of Congress, the Mayor, and the Council for the District of Columbia, a revised appropriated funds operating budget for the District of Columbia Public Schools that aligns schools budgets to actual enrollment. The revised appropriated funds budget shall be in the format of the budget that the District of Columbia government submitted pursuant to section 442 of the District of Columbia Home Rule Act (D.C. Official Code, Sec. 1–204.42).

SEC. 813. (a) Amounts appropriated in this Act as operating funds may be transferred to the District of Columbia's enterprise and capital funds and such amounts, once transferred, shall retain appropriation authority consistent with the provisions of this Act.

(b) The District of Columbia government is authorized to reprogram or transfer for operating expenses any local funds transferred or reprogrammed in this or the four prior fiscal years from operating funds to capital funds, and such amounts, once transferred or reprogrammed, shall retain appropriation authority consistent with the provisions of this Act.

(c) The District of Columbia government may not transfer or reprogram for operating expenses any funds derived from bonds, notes, or other obligations issued for capital projects.

SEC. 814. None of the Federal funds appropriated in this Act shall remain available for obligation beyond the current fiscal year, nor may any be transferred to other appropriations, unless expressly so provided herein.

SEC. 815. Except as otherwise specifically provided by law or under this Act, not to exceed 50 percent of unobligated balances remaining available at the end of fiscal year 2015 from appropriations of Federal funds made available for salaries and expenses for fiscal year 2015 in this Act, shall remain available through September 30, 2016, for each such account for the purposes authorized: *Provided*, That a request shall be submitted to the Committees on Appropriations of the House of Representatives and the Senate for approval prior to the expenditure of such funds: *Provided further*, That these requests shall be made in compliance with reprogramming guidelines outlined in section 803 of this Act.

SEC. 816. (a) During fiscal year 2016, during a period in which neither a District of Columbia continuing resolution or a regular District of Columbia appropriation bill is in effect, local funds are appropriated in the amount provided for any project or activity for which local funds are provided in the Fiscal Year 2016 Budget Request Act of 2015 as submitted to Congress (subject to any modifications enacted by the District of Columbia as of the beginning of the period during which this subsection is in effect) at the rate set forth by such Act.

(b) Appropriations made by subsection (a) shall cease to be available—

(1) during any period in which a District of Columbia continuing resolution for fiscal year 2016 is in effect; or

(2) upon the enactment into law of the regular District of Columbia appropriation bill for fiscal year 2016.

(c) An appropriation made by subsection (a) is provided under the authority and conditions as provided under this Act and shall be available to the extent and in the manner that would be provided by this Act.

(d) An appropriation made by subsection (a) shall cover all obligations or expenditures incurred for such project or activity during the portion of fiscal year 2016 for which this section applies to such project or activity.

(e) This section shall not apply to a project or activity during any period of fiscal year 2016 if any other provision of law (other than an authorization of appropriations)—

(1) makes an appropriation, makes funds available, or grants authority for such project or activity to continue for such period; or

(2) specifically provides that no appropriation shall be made, no funds shall be made available, or no authority shall be granted for such project or activity to continue for such period.

(f) Nothing in this section shall be construed to affect obligations of the government of the District of Columbia mandated by other law.

SEC. 817. Except as expressly provided otherwise, any reference to ''this Act'' contained in this title or in title IV shall be treated as referring only to the provisions of this title or of title IV.

This division may be cited as the ''Financial Services and General Government Appropriations Act, 2015''.

DIVISION F—DEPARTMENT OF THE INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015

TITLE I

DEPARTMENT OF THE INTERIOR

BUREAU OF LAND MANAGEMENT

MANAGEMENT OF LANDS AND RESOURCES

For necessary expenses for protection, use, improvement, development, disposal, cadastral surveying, classification, acquisition of easements and other interests in lands, and performance of other functions, including maintenance of facilities, as authorized by law, in the management of lands and their resources under the jurisdiction of the Bureau of Land Management, including the general administration of the Bureau, and assessment of mineral potential of public lands pursuant to section 1010(a) of Public Law 96–487 (16 U.S.C. 3150(a)), $970,016,000, to remain available until expended; of which $3,000,000 shall be available in fiscal year 2015 subject to a match by at least an equal amount by the National Fish and Wildlife Foundation for cost-shared projects supporting conservation of Bureau lands; and such funds shall be advanced to the Foundation as a lump-sum grant without regard to when expenses are incurred.

In addition, $32,500,000 is for the processing of applications for permit to drill and related use authorizations, to remain available until expended, to be reduced by amounts collected by the Bureau and credited to this appropriation that shall be derived from a fee of $6,500 per new application for permit to drill that the Bureau shall collect upon submission of each new application, and, in addition, $39,696,000 is for Mining Law Administration program operations, including the cost of administering the mining claim fee program, to remain available until expended, to be reduced by amounts collected by the Bureau and credited to this appropriation from mining claim maintenance fees and location fees that are hereby authorized for fiscal year 2015 so as to result in a final appropriation estimated at not more than $970,016,000, and $2,000,000, to remain available until expended, from communication site rental fees established by the Bureau for the cost of administering communication site activities.

LAND ACQUISITION

For expenses necessary to carry out sections 205, 206, and 318(d) of Public Law 94–579, including administrative expenses and acquisition of lands or waters, or interests therein, $19,746,000, to be derived from the Land and Water Conservation Fund and to remain available until expended.

OREGON AND CALIFORNIA GRANT LANDS

For expenses necessary for management, protection, and development of resources and for construction, operation, and maintenance of access roads, reforestation, and other improvements on the revested Oregon and California Railroad grant lands, on other Federal lands in the Oregon and California land-grant counties of Oregon, and on adjacent rights-of-way; and acquisition of lands or interests therein, including existing connecting roads on or adjacent to such grant lands; $113,777,000, to remain available until expended: *Provided*, That 25 percent of the aggregate of all receipts during the current fiscal year from the revested Oregon and California Railroad grant lands is hereby made a charge against the Oregon and California land-grant fund and shall be transferred to the General Fund in the Treasury in accordance with the second paragraph of subsection (b) of title II of the Act of August 28, 1937 (43 U.S.C. 1181(f)).

RANGE IMPROVEMENTS

For rehabilitation, protection, and acquisition of lands and interests therein, and improvement of Federal rangelands pursuant to section 401 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1751), notwithstanding any other Act, sums equal to 50 percent of all moneys received during the prior fiscal year under sections 3 and 15 of the Taylor Grazing Act (43 U.S.C. 315(b), 315(m)) and the amount designated for range improvements from grazing fees and mineral leasing receipts from Bankhead-Jones lands transferred to the Department of the Interior pursuant to law, but not less than $10,000,000, to remain available until expended: *Provided*, That not to exceed $600,000 shall be available for administrative expenses.

SERVICE CHARGES, DEPOSITS, AND FORFEITURES

For administrative expenses and other costs related to processing application documents and other authorizations for use and disposal of public lands and resources, for costs of providing copies of official public land documents, for monitoring construction, operation, and termination of facilities in conjunction with use authorizations, and

for rehabilitation of damaged property, such amounts as may be collected under Public Law 94–579 (43 U.S.C. 1701 et seq.), and under section 28 of the Mineral Leasing Act (30 U.S.C. 185), to remain available until expended: *Provided*, That, notwithstanding any provision to the contrary of section 305(a) of Public Law 94–579 (43 U.S.C. 1735(a)), any moneys that have been or will be received pursuant to that section, whether as a result of forfeiture, compromise, or settlement, if not appropriate for refund pursuant to section 305(c) of that Act (43 U.S.C. 1735(c)), shall be available and may be expended under the authority of this Act by the Secretary to improve, protect, or rehabilitate any public lands administered through the Bureau of Land Management which have been damaged by the action of a resource developer, purchaser, permittee, or any unauthorized person, without regard to whether all moneys collected from each such action are used on the exact lands damaged which led to the action: *Provided further*, That any such moneys that are in excess of amounts needed to repair damage to the exact land for which funds were collected may be used to repair other damaged public lands.

MISCELLANEOUS TRUST FUNDS

In addition to amounts authorized to be expended under existing laws, there is hereby appropriated such amounts as may be contributed under section 307 of Public Law 94–579 (43 U.S.C. 1737), and such amounts as may be advanced for administrative costs, surveys, appraisals, and costs of making conveyances of omitted lands under section 211(b) of that Act (43 U.S.C. 1721(b)), to remain available until expended.

ADMINISTRATIVE PROVISIONS

The Bureau of Land Management may carry out the operations funded under this Act by direct expenditure, contracts, grants, cooperative agreements and reimbursable agreements with public and private entities, including with States. Appropriations for the Bureau shall be available for purchase, erection, and dismantlement of temporary structures, and alteration and maintenance of necessary buildings and appurtenant facilities to which the United States has title; up to $100,000 for payments, at the discretion of the Secretary, for information or evidence concerning violations of laws administered by the Bureau; miscellaneous and emergency expenses of enforcement activities authorized or approved by the Secretary and to be accounted for solely on the Secretary's certificate, not to exceed $10,000: *Provided*, That notwithstanding Public Law 90–620 (44 U.S.C. 501), the Bureau may, under cooperative cost-sharing and partnership arrangements authorized by law, procure printing services from cooperators in connection with jointly produced publications for which the cooperators share the cost of printing either in cash or in services, and the Bureau determines the cooperator is capable of meeting accepted quality standards: *Provided further*, That projects to be funded pursuant to a written commitment by a State government to provide an identified amount of money in support of the project may be carried out by the Bureau on a reimbursable basis. Appropriations herein made shall not be available for the destruction of healthy, unadopted, wild horses and burros in the care of the Bureau or its contractors or for the sale of wild horses and burros that results in their destruction for processing into commercial products.

UNITED STATES FISH AND WILDLIFE SERVICE

RESOURCE MANAGEMENT

For necessary expenses of the United States Fish and Wildlife Service, as authorized by law, and for scientific and economic studies, general administration, and for the performance of other authorized functions related to such resources, $1,207,658,000, to remain available until September 30, 2016 except as otherwise provided herein: *Provided*, That not to exceed $20,515,000 shall be used for implementing subsections (a), (b), (c), and (e) of section 4 of the Endangered Species Act of 1973 (16 U.S.C. 1533) (except for processing petitions, developing and issuing proposed and final regulations, and taking any other steps to implement actions described in subsection (c)(2)(A), (c)(2)(B)(i), or (c)(2)(B)(ii)), of which not to exceed $4,605,000 shall be used for any activity regarding the designation of critical habitat, pursuant to subsection (a)(3), excluding litigation support, for species listed pursuant to subsection (a)(1) prior to October 1, 2012; of which not to exceed $1,501,000 shall be used for any activity regarding petitions to list species that are indigenous to the United States pursuant to subsections (b)(3)(A) and (b)(3)(B); and, of which not to exceed $1,504,000 shall be used for implementing subsections (a), (b), (c), and (e) of section 4 of the Endangered Species Act of 1973 (16 U.S.C. 1533) for species that are not indigenous to the United States.

CONSTRUCTION

For construction, improvement, acquisition, or removal of buildings and other facilities required in the conservation, management, investigation, protection, and utilization of fish and wildlife resources, and the acquisition of lands and interests therein; $15,687,000, to remain available until expended.

LAND ACQUISITION

For expenses necessary to carry out the Land and Water Conservation Fund Act of 1965, (16 U.S.C. 460*l*–4 et seq.), including administrative expenses, and for acquisition of land or waters, or interest therein, in accordance with statutory authority applicable to the United States Fish and Wildlife Service, $47,535,000, to be derived from the Land and Water Conservation Fund and to remain available until expended: *Provided*, That none of the funds appropriated for specific land acquisition projects may be used to pay for any administrative overhead, planning or other management costs.

COOPERATIVE ENDANGERED SPECIES CONSERVATION FUND

For expenses necessary to carry out section 6 of the Endangered Species Act of 1973 (16 U.S.C. 1535), $50,095,000, to remain available until expended, of which $22,695,000 is to be derived from the Cooperative Endangered Species Conservation Fund; and of which $27,400,000 is to be derived from the Land and Water Conservation Fund.

NATIONAL WILDLIFE REFUGE FUND

For expenses necessary to implement the Act of October 17, 1978 (16 U.S.C. 715s), $13,228,000.

NORTH AMERICAN WETLANDS CONSERVATION FUND

For expenses necessary to carry out the provisions of the North American Wetlands Conservation Act (16 U.S.C. 4401 et seq.), $34,145,000, to remain available until expended.

NEOTROPICAL MIGRATORY BIRD CONSERVATION

For expenses necessary to carry out the Neotropical Migratory Bird Conservation Act (16 U.S.C. 6101 et seq.), $3,660,000, to remain available until expended.

MULTINATIONAL SPECIES CONSERVATION FUND

For expenses necessary to carry out the African Elephant Conservation Act (16 U.S.C. 4201 et seq.), the Asian Elephant Conservation Act of 1997 (16 U.S.C. 4261 et seq.), the Rhinoceros and Tiger Conservation Act of 1994 (16 U.S.C. 5301 et seq.), the Great Ape Conservation Act of 2000 (16 U.S.C. 6301 et seq.), and the Marine Turtle Conservation Act of 2004 (16 U.S.C. 6601 et seq.), $9,061,000, to remain available until expended.

STATE AND TRIBAL WILDLIFE GRANTS

For wildlife conservation grants to States and to the District of Columbia, Puerto Rico, Guam, the United States Virgin Islands, the Northern Mariana Islands, American Samoa, and Indian tribes under the provisions of the Fish and Wildlife Act of 1956 and the Fish and Wildlife Coordination Act, for the development and implementation of programs for the benefit of wildlife and their habitat, including species that are not hunted or fished, $58,695,000, to remain available until expended: *Provided*, That of the amount provided herein, $4,084,000 is for a competitive grant program for Indian tribes not subject to the remaining provisions of this appropriation: *Provided further*, That $5,487,000 is for a competitive grant program for States, territories, and other jurisdictions and at the discretion of affected States, the regional Associations of fish and wildlife agencies, not subject to the remaining provisions of this appropriation: *Provided further*, That the Secretary shall, after deducting $9,571,000 and administrative expenses, apportion the amount provided herein in the following manner: (1) to the District of Columbia and to the Commonwealth of Puerto Rico, each a sum equal to not more than one-half of 1 percent thereof; and (2) to Guam, American Samoa, the United States Virgin Islands, and the Commonwealth of the Northern Mariana Islands, each a sum equal to not more than one-fourth of 1 percent thereof: *Provided further*, That the Secretary shall apportion the remaining amount in the following manner: (1) one-third of which is based on the ratio to which the land area of such State bears to the total land area of all such States; and (2) two-thirds of which is based on the ratio to which the population of such State bears to the total population of all such States: *Provided further*, That the amounts apportioned under this paragraph shall be adjusted equitably so that no State shall be apportioned a sum which is less than 1 percent of the amount available for apportionment under this paragraph for any fiscal year or more than 5 percent of such amount: *Provided further*, That the Federal share of planning grants shall not exceed 75 percent of the total costs of such projects and the Federal share of implementation grants shall not exceed 65 percent of the total costs of such projects: *Provided further*, That the non-Federal share of such projects may not be derived from Federal grant programs: *Provided further*, That any amount apportioned in 2015 to any State, territory, or other jurisdiction that remains unobligated as of September 30, 2016, shall be reapportioned, together with funds appropriated in 2017, in the manner provided herein.

ADMINISTRATIVE PROVISIONS

The United States Fish and Wildlife Service may carry out the operations of Service programs by direct expenditure, contracts, grants, cooperative agreements and reimbursable agreements with public and private entities. Appropriations and funds available to the United States Fish and Wildlife Service shall be available for repair of damage to public roads within and adjacent to reservation areas caused by operations of the Service; options for the purchase of land at not to exceed $1 for each option; facilities incident to such public recreational uses on conservation areas as are consistent with their primary purpose; and the maintenance and improvement of aquaria, buildings, and other facilities under the jurisdiction of the Service and to which the United States has title,

and which are used pursuant to law in connection with management, and investigation of fish and wildlife resources: *Provided*, That notwithstanding 44 U.S.C. 501, the Service may, under cooperative cost sharing and partnership arrangements authorized by law, procure printing services from cooperators in connection with jointly produced publications for which the cooperators share at least one-half the cost of printing either in cash or services and the Service determines the cooperator is capable of meeting accepted quality standards: *Provided further*, That the Service may accept donated aircraft as replacements for existing aircraft: *Provided further*, That notwithstanding 31 U.S.C. 3302, all fees collected for non-toxic shot review and approval shall be deposited under the heading ''United States Fish and Wildlife Service—Resource Management'' and shall be available to the Secretary, without further appropriation, to be used for expenses of processing of such non-toxic shot type or coating applications and revising regulations as necessary, and shall remain available until expended.

NATIONAL PARK SERVICE

OPERATION OF THE NATIONAL PARK SYSTEM

For expenses necessary for the management, operation, and maintenance of areas and facilities administered by the National Park Service and for the general administration of the National Park Service, $2,275,773,000, of which $9,923,000 for planning and interagency coordination in support of Everglades restoration and $81,961,000 for maintenance, repair, or rehabilitation projects for constructed assets shall remain available until September 30, 2016: *Provided*, That funds appropriated under this heading in this Act and previous Appropriations Acts are available for the purposes of section 5 of Public Law 95–348 and section 204 of Public Law 93–486, as amended by section 1(3) of Public Law 100–355.

NATIONAL RECREATION AND PRESERVATION

For expenses necessary to carry out recreation programs, natural programs, cultural programs, heritage partnership programs, environmental compliance and review, international park affairs, and grant administration, not otherwise provided for, $63,117,000.

HISTORIC PRESERVATION FUND

For expenses necessary in carrying out the National Historic Preservation Act (16 U.S.C. 470 et seq.), $56,410,000, to be derived from the Historic Preservation Fund and to remain available until September 30, 2016.

CONSTRUCTION

For construction, improvements, repair, or replacement of physical facilities, including modifications authorized by section 104 of the Everglades National Park Protection and Expansion Act of 1989 (16 U.S.C. 410r-8), $138,339,000, to remain available until expended: *Provided*, That notwithstanding any other provision of law, for any project initially funded in fiscal year 2015 with a future phase indicated in the National Park Service 5–Year Line Item Construction Plan, a single procurement may be issued which includes the full scope of the project: *Provided further*, That the solicitation and contract shall contain the clause ''availability of funds'' found at 48 CFR 52.232–18.

LAND AND WATER CONSERVATION FUND

(RESCISSION)

The contract authority provided for fiscal year 2015 by section 9 of the Land and Water Conservation Fund Act of 1965 (16 U.S.C. 460*l*–10a) is rescinded.

LAND ACQUISITION AND STATE ASSISTANCE

For expenses necessary to carry out the Land and Water Conservation Act of 1965 (16 U.S.C. 460*l*–4 through 11), including administrative expenses, and for acquisition of lands or waters, or interest therein, in accordance with the statutory authority applicable to the National Park Service, $98,960,000, to be derived from the Land and Water Conservation Fund and to remain available until expended, of which $48,117,000 is for the State assistance program and of which $8,986,000 shall be for the American Battlefield Protection Program grants as authorized by section 7301 of the Omnibus Public Land Management Act of 2009 (Public Law 111–11).

CENTENNIAL CHALLENGE

For expenses necessary to carry out the provisions of section 814(g) of Public Law 104–333 (16 U.S.C. 1f) relating to challenge cost share agreements, $10,000,000, to remain available until expended, for Centennial Challenge projects and programs: *Provided*, That not less than 50 percent of the total cost of each project or program shall be derived from non-Federal sources in the form of donated cash, assets, or a pledge of donation guaranteed by an irrevocable letter of credit.

ADMINISTRATIVE PROVISIONS

(INCLUDING TRANSFER OF FUNDS)

In addition to other uses set forth in section 407(d) of Public Law 105–391, franchise fees credited to a sub-account shall be available for expenditure by the Secretary, without further appropriation, for use at any unit within the National Park System to extinguish or reduce liability for Possessory Interest or leasehold surrender interest. Such funds may only be used for this purpose to the extent that the benefitting unit anticipated franchise fee receipts over the term of the contract at that unit exceed the amount of funds used to extinguish or reduce liability. Franchise fees at the benefitting unit shall be credited to the sub-account of the originating unit over a period not to exceed the term of a single contract at the benefitting unit, in the amount of funds so expended to extinguish or reduce liability.

For the costs of administration of the Land and Water Conservation Fund grants authorized by section 105(a)(2)(B) of the Gulf of Mexico Energy Security Act of 2006 (Public Law 109–432), the National Park Service may retain up to 3 percent of the amounts which are authorized to be disbursed under such section, such retained amounts to remain available until expended.

National Park Service funds may be transferred to the Federal Highway Administration (FHWA), Department of Transportation, for purposes authorized under 23 U.S.C. 204. Transfers may include a reasonable amount for FHWA administrative support costs.

UNITED STATES GEOLOGICAL SURVEY

SURVEYS, INVESTIGATIONS, AND RESEARCH

For expenses necessary for the United States Geological Survey to perform surveys, investigations, and research covering topography, geology, hydrology, biology, and the mineral and water resources of the United States, its territories and possessions, and other areas as authorized by 43 U.S.C. 31, 1332, and 1340; classify lands as to their mineral and water resources; give engineering supervision to power permittees and Federal Energy Regulatory Commission licensees; administer the minerals exploration program (30 U.S.C. 641); conduct inquiries into the economic conditions affecting mining and materials processing industries (30 U.S.C. 3, 21a, and 1603; 50 U.S.C. 98g(1)) and related purposes as authorized by law; and to publish and disseminate data relative to the foregoing activities; $1,045,000,000, to remain available until September 30, 2016; of which $53,337,189 shall remain available until expended for satellite operations; and of which $7,280,000 shall be available until expended for deferred maintenance and capital improvement projects that exceed $100,000 in cost: *Provided*, That none of the funds provided for the ecosystem research activity shall be used to conduct new surveys on private property, unless specifically authorized in writing by the property owner: *Provided further*, That no part of this appropriation shall be used to pay more than one-half the cost of topographic mapping or water resources data collection and investigations carried on in cooperation with States and municipalities.

ADMINISTRATIVE PROVISIONS

From within the amount appropriated for activities of the United States Geological Survey such sums as are necessary shall be available for contracting for the furnishing of topographic maps and for the making of geophysical or other specialized surveys when it is administratively determined that such procedures are in the public interest; construction and maintenance of necessary buildings and appurtenant facilities; acquisition of lands for gauging stations and observation wells; expenses of the United States National Committee for Geological Sciences; and payment of compensation and expenses of persons employed by the Survey duly appointed to represent the United States in the negotiation and administration of interstate compacts: *Provided*, That activities funded by appropriations herein made may be accomplished through the use of contracts, grants, or cooperative agreements as defined in section 6302 of title 31, United States Code: *Provided further*, That the United States Geological Survey may enter into contracts or cooperative agreements directly with individuals or indirectly with institutions or nonprofit organizations, without regard to 41 U.S.C. 6101, for the temporary or intermittent services of students or recent graduates, who shall be considered employees for the purpose of chapters 57 and 81 of title 5, United States Code, relating to compensation for travel and work injuries, and chapter 171 of title 28, United States Code, relating to tort claims, but shall not be considered to be Federal employees for any other purposes.

BUREAU OF OCEAN ENERGY MANAGEMENT

OCEAN ENERGY MANAGEMENT

For expenses necessary for granting leases, easements, rights-of-way and agreements for use for oil and gas, other minerals, energy, and marine-related purposes on the Outer Continental Shelf and approving operations related thereto, as authorized by law; for environmental studies, as authorized by law; for implementing other laws and to the extent provided by Presidential or Secretarial delegation; and for matching grants or cooperative agreements, $169,770,000, of which $72,422,000 is to remain available until September 30, 2016 and of which $97,348,000 is to remain available until expended: *Provided*, That this total appropriation shall be reduced by amounts collected by the Secretary and credited to this appropriation from additions to receipts resulting from increases to lease rental rates in effect on August 5, 1993, and from cost recovery fees from activities conducted by the Bureau of Ocean Energy Management pursuant to the Outer Continental Shelf Lands Act, including studies, assessments, analysis, and miscellaneous administrative activities: *Provided further*, That the sum herein appropriated shall be reduced as such collections are received during the fiscal year, so as to result in a final fiscal year 2015 appropriation estimated at not more than $72,422,000: *Provided further*, That not to exceed $3,000 shall be available for reasonable expenses related to promoting

volunteer beach and marine cleanup activities.

BUREAU OF SAFETY AND ENVIRONMENTAL ENFORCEMENT

OFFSHORE SAFETY AND ENVIRONMENTAL ENFORCEMENT

For expenses necessary for the regulation of operations related to leases, easements, rights-of-way and agreements for use for oil and gas, other minerals, energy, and marine-related purposes on the Outer Continental Shelf, as authorized by law; for enforcing and implementing laws and regulations as authorized by law and to the extent provided by Presidential or Secretarial delegation; and for matching grants or cooperative agreements, $124,726,000, of which $66,147,000 is to remain available until September 30, 2016 and of which $58,579,000 is to remain available until expended: *Provided*, That this total appropriation shall be reduced by amounts collected by the Secretary and credited to this appropriation from additions to receipts resulting from increases to lease rental rates in effect on August 5, 1993, and from cost recovery fees from activities conducted by the Bureau of Safety and Environmental Enforcement pursuant to the Outer Continental Shelf Lands Act, including studies, assessments, analysis, and miscellaneous administrative activities: *Provided further*, That the sum herein appropriated shall be reduced as such collections are received during the fiscal year, so as to result in a final fiscal year 2015 appropriation estimated at not more than $66,147,000.

For an additional amount, $65,000,000, to remain available until expended, to be reduced by amounts collected by the Secretary and credited to this appropriation, which shall be derived from non-refundable inspection fees collected in fiscal year 2015, as provided in this Act: *Provided*, That to the extent that amounts realized from such inspection fees exceed $65,000,000, the amounts realized in excess of $65,000,000 shall be credited to this appropriation and remain available until expended: *Provided further*, That for fiscal year 2015, not less than 50 percent of the inspection fees expended by the Bureau of Safety and Environmental Enforcement will be used to fund personnel and mission-related costs to expand capacity and expedite the orderly development, subject to environmental safeguards, of the Outer Continental Shelf pursuant to the Outer Continental Shelf Lands Act (43 U.S.C. 1331 et seq.), including the review of applications for permits to drill.

OIL SPILL RESEARCH

For necessary expenses to carry out title I, section 1016, title IV, sections 4202 and 4303, title VII, and title VIII, section 8201 of the Oil Pollution Act of 1990, $14,899,000, which shall be derived from the Oil Spill Liability Trust Fund, to remain available until expended.

OFFICE OF SURFACE MINING RECLAMATION AND ENFORCEMENT

REGULATION AND TECHNOLOGY

For necessary expenses to carry out the provisions of the Surface Mining Control and Reclamation Act of 1977, Public Law 95–87, $122,713,000, to remain available until September 30, 2016: *Provided*, That appropriations for the Office of Surface Mining Reclamation and Enforcement may provide for the travel and per diem expenses of State and tribal personnel attending Office of Surface Mining Reclamation and Enforcement sponsored training.

In addition, for costs to review, administer, and enforce permits issued by the Bureau pursuant to section 507 of Public Law 95–87 (30 U.S.C. 1257), $40,000, to remain available until expended: *Provided*, That fees assessed and collected by the Bureau pursuant to such section 507 shall be credited to this account as discretionary offsetting collections, to remain available until expended: *Provided further*, That the sum herein appropriated from the general fund shall be reduced as collections are received during the fiscal year, so as to result in a fiscal year 2015 appropriation estimated at not more than $122,713,000.

ABANDONED MINE RECLAMATION FUND

For necessary expenses to carry out title IV of the Surface Mining Control and Reclamation Act of 1977, Public Law 95–87, $27,399,000, to be derived from receipts of the Abandoned Mine Reclamation Fund and to remain available until expended: *Provided*, That pursuant to Public Law 97–365, the Department of the Interior is authorized to use up to 20 percent from the recovery of the delinquent debt owed to the United States Government to pay for contracts to collect these debts: *Provided further*, That funds made available under title IV of Public Law 95–87 may be used for any required non-Federal share of the cost of projects funded by the Federal Government for the purpose of environmental restoration related to treatment or abatement of acid mine drainage from abandoned mines: *Provided further*, That such projects must be consistent with the purposes and priorities of the Surface Mining Control and Reclamation Act: *Provided further*, That amounts provided under this heading may be used for the travel and per diem expenses of State and tribal personnel attending Office of Surface Mining Reclamation and Enforcement sponsored training.

ADMINISTRATIVE PROVISION

In fiscal year 2015 and each fiscal year thereafter, with funds available for the Technical Innovation and Professional Services program in this or any other Act with respect to any fiscal year, the Secretary may transfer title for computer hardware, software and other technical equipment to State and tribal regulatory and reclamation programs.

BUREAU OF INDIAN AFFAIRS AND BUREAU OF INDIAN EDUCATION

OPERATION OF INDIAN PROGRAMS

(INCLUDING TRANSFER OF FUNDS)

For expenses necessary for the operation of Indian programs, as authorized by law, including the Snyder Act of November 2, 1921 (25 U.S.C. 13), the Indian Self-Determination and Education Assistance Act of 1975 (25 U.S.C. 450 et seq.), the Education Amendments of 1978 (25 U.S.C. 2001–2019), and the Tribally Controlled Schools Act of 1988 (25 U.S.C. 2501 et seq.), $2,429,236,000, to remain available until September 30, 2016, except as otherwise provided herein; of which not to exceed $8,500 may be for official reception and representation expenses; of which not to exceed $74,809,000 shall be for welfare assistance payments: *Provided*, That in cases of designated Federal disasters, the Secretary may exceed such cap, from the amounts provided herein, to provide for disaster relief to Indian communities affected by the disaster: *Provided further*, That federally recognized Indian tribes and tribal organizations of federally recognized Indian tribes may use their tribal priority allocations for unmet welfare assistance costs: *Provided further*, That not to exceed $606,690,000 for school operations costs of Bureau-funded schools and other education programs shall become available on July 1, 2015, and shall remain available until September 30, 2016: *Provided further*, That not to exceed $48,553,000 shall remain available until expended for housing improvement, road maintenance, attorney fees, litigation support, land records improvement, and the Navajo-Hopi Settlement Program: *Provided further*, That notwithstanding any other provision of law, including but not limited to the Indian Self-Determination Act of 1975 (25 U.S.C. 450f et seq.) and section 1128 of the Education Amendments of 1978 (25 U.S.C. 2008), not to exceed $62,395,000 within and only from such amounts made available for school operations shall be available for administrative cost grants associated with ongoing grants entered into with the Bureau prior to or during fiscal year 2014 for the operation of Bureau-funded schools, and up to $500,000 within and only from such amounts made available for administrative cost grants shall be available for the transitional costs of initial administrative cost grants to grantees that assume operation on or after July 1, 2014, of Bureau-funded schools: *Provided further*, That any forestry funds allocated to a federally recognized tribe which remain unobligated as of September 30, 2016, may be transferred during fiscal year 2017 to an Indian forest land assistance account established for the benefit of the holder of the funds within the holder's trust fund account: *Provided further*, That any such unobligated balances not so transferred shall expire on September 30, 2017: *Provided further*, That in order to enhance the safety of Bureau field employees, the Bureau may use funds to purchase uniforms or other identifying articles of clothing for personnel.

CONSTRUCTION

(INCLUDING TRANSFER OF FUNDS)

For construction, repair, improvement, and maintenance of irrigation and power systems, buildings, utilities, and other facilities, including architectural and engineering services by contract; acquisition of lands, and interests in lands; and preparation of lands for farming, and for construction of the Navajo Indian Irrigation Project pursuant to Public Law 87–483, $128,876,000, to remain available until expended: *Provided*, That such amounts as may be available for the construction of the Navajo Indian Irrigation Project may be transferred to the Bureau of Reclamation: *Provided further*, That not to exceed 6 percent of contract authority available to the Bureau of Indian Affairs from the Federal Highway Trust Fund may be used to cover the road program management costs of the Bureau: *Provided further*, That any funds provided for the Safety of Dams program pursuant to 25 U.S.C. 13 shall be made available on a nonreimbursable basis: *Provided further*, That for fiscal year 2015, in implementing new construction or facilities improvement and repair project grants in excess of $100,000 that are provided to grant schools under Public Law 100–297, the Secretary of the Interior shall use the Administrative and Audit Requirements and Cost Principles for Assistance Programs contained in 43 CFR part 12 as the regulatory requirements: *Provided further*, That such grants shall not be subject to section 12.61 of 43 CFR; the Secretary and the grantee shall negotiate and determine a schedule of payments for the work to be performed: *Provided further*, That in considering grant applications, the Secretary shall consider whether such grantee would be deficient in assuring that the construction projects conform to applicable building standards and codes and Federal, tribal, or State health and safety standards as required by 25 U.S.C. 2005(b), with respect to organizational and financial management capabilities: *Provided further*, That if the Secretary declines a grant application, the Secretary shall follow the requirements contained in 25 U.S.C. 2504(f): *Provided further*, That any disputes between the Secretary and any grantee concerning a grant shall be subject to the disputes provision in 25 U.S.C. 2507(e): *Provided further*, That in order to ensure timely completion of

construction projects, the Secretary may assume control of a project and all funds related to the project, if, within 18 months of the date of enactment of this Act, any grantee receiving funds appropriated in this Act or in any prior Act, has not completed the planning and design phase of the project and commenced construction: *Provided further*, That this appropriation may be reimbursed from the Office of the Special Trustee for American Indians appropriation for the appropriate share of construction costs for space expansion needed in agency offices to meet trust reform implementation.

INDIAN LAND AND WATER CLAIM SETTLEMENTS AND MISCELLANEOUS PAYMENTS TO INDIANS

For payments and necessary administrative expenses for implementation of Indian land and water claim settlements pursuant to Public Laws 99–264, 100–580, 101–618, 111–11, and 111–291, and for implementation of other land and water rights settlements, $35,655,000, to remain available until expended.

INDIAN GUARANTEED LOAN PROGRAM ACCOUNT

For the cost of guaranteed loans and insured loans, $7,731,000, of which $1,045,000 is for administrative expenses, as authorized by the Indian Financing Act of 1974: *Provided*, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That these funds are available to subsidize total loan principal, any part of which is to be guaranteed or insured, not to exceed $100,496,183.

ADMINISTRATIVE PROVISIONS

The Bureau of Indian Affairs may carry out the operation of Indian programs by direct expenditure, contracts, cooperative agreements, compacts, and grants, either directly or in cooperation with States and other organizations.

Notwithstanding 25 U.S.C. 15, the Bureau of Indian Affairs may contract for services in support of the management, operation, and maintenance of the Power Division of the San Carlos Irrigation Project.

Notwithstanding any other provision of law, no funds available to the Bureau of Indian Affairs for central office oversight and Executive Direction and Administrative Services (except executive direction and administrative services funding for Tribal Priority Allocations, regional offices, and facilities operations and maintenance) shall be available for contracts, grants, compacts, or cooperative agreements with the Bureau of Indian Affairs under the provisions of the Indian Self-Determination Act or the Tribal Self-Governance Act of 1994 (Public Law 103–413).

In the event any tribe returns appropriations made available by this Act to the Bureau of Indian Affairs, this action shall not diminish the Federal Government's trust responsibility to that tribe, or the government-to-government relationship between the United States and that tribe, or that tribe's ability to access future appropriations.

Notwithstanding any other provision of law, no funds available to the Bureau of Indian Education, other than the amounts provided herein for assistance to public schools under 25 U.S.C. 452 et seq., shall be available to support the operation of any elementary or secondary school in the State of Alaska.

No funds available to the Bureau of Indian Education shall be used to support expanded grades for any school or dormitory beyond the grade structure in place or approved by the Secretary of the Interior at each school in the Bureau of Indian Education school system as of October 1, 1995, except that the Secretary of the Interior may waive this prohibition to support expansion of up to one additional grade when the Secretary determines such waiver is needed to support accomplishment of the mission of the Bureau of Indian Education. Appropriations made available in this or any prior Act for schools funded by the Bureau shall be available, in accordance with the Bureau's funding formula, only to the schools in the Bureau school system as of September 1, 1996, and to any school or school program that was reinstated in fiscal year 2012. Funds made available under this Act may not be used to establish a charter school at a Bureau-funded school (as that term is defined in section 1141 of the Education Amendments of 1978 (25 U.S.C. 2021)), except that a charter school that is in existence on the date of the enactment of this Act and that has operated at a Bureau-funded school before September 1, 1999, may continue to operate during that period, but only if the charter school pays to the Bureau a pro rata share of funds to reimburse the Bureau for the use of the real and personal property (including buses and vans), the funds of the charter school are kept separate and apart from Bureau funds, and the Bureau does not assume any obligation for charter school programs of the State in which the school is located if the charter school loses such funding. Employees of Bureau-funded schools sharing a campus with a charter school and performing functions related to the charter school's operation and employees of a charter school shall not be treated as Federal employees for purposes of chapter 171 of title 28, United States Code.

Notwithstanding any other provision of law, including section 113 of title I of appendix C of Public Law 106–113, if in fiscal year 2003 or 2004 a grantee received indirect and administrative costs pursuant to a distribution formula based on section 5(f) of Public Law 101–301, the Secretary shall continue to distribute indirect and administrative cost funds to such grantee using the section 5(f) distribution formula.

Funds available under this Act may not be used to establish satellite locations of schools in the Bureau school system as of September 1, 1996, except that the Secretary may waive this prohibition in order for an Indian tribe to provide language and cultural immersion educational programs for nonpublic schools located within the jurisdictional area of the tribal government which exclusively serve tribal members, do not include grades beyond those currently served at the existing Bureau-funded school, provide an educational environment with educator presence and academic facilities comparable to the Bureau-funded school, comply with all applicable Tribal, Federal, or State health and safety standards, and the Americans with Disabilities Act, and demonstrate the benefits of establishing operations at a satellite location in lieu of incurring extraordinary costs, such as for transportation or other impacts to students such as those caused by busing students extended distances: *Provided*, That no funds available under this Act may be used to fund operations, maintenance, rehabilitation, construction or other facilities-related costs for such assets that are not owned by the Bureau: *Provided further*, That the term ''satellite school'' means a school location physically separated from the existing Bureau school by more than 50 miles but that forms part of the existing school in all other respects.

DEPARTMENTAL OFFICES

OFFICE OF THE SECRETARY

DEPARTMENTAL OPERATIONS

For necessary expenses for management of the Department of the Interior, including the collection and disbursement of royalties, fees, and other mineral revenue proceeds, and for grants and cooperative agreements, as authorized by law, $265,263,000, to remain available until September 30, 2016; of which not to exceed $15,000 may be for official reception and representation expenses; and of which up to $1,000,000 shall be available for workers compensation payments and unemployment compensation payments associated with the orderly closure of the United States Bureau of Mines; and of which $12,000,000 for the Office of Valuation Services is to be derived from the Land and Water Conservation Fund and shall remain available until expended; and of which $38,300,000 shall remain available until expended for the purpose of mineral revenue management activities: *Provided*, That notwithstanding any other provision of law, $15,000 under this heading shall be available for refunds of overpayments in connection with certain Indian leases in which the Secretary concurred with the claimed refund due, to pay amounts owed to Indian allottees or tribes, or to correct prior unrecoverable erroneous payments.

ADMINISTRATIVE PROVISIONS

For fiscal year 2015, up to $400,000 of the payments authorized by the Act of October 20, 1976 (31 U.S.C. 6901–6907) may be retained for administrative expenses of the Payments in Lieu of Taxes Program: *Provided*, That no payment shall be made pursuant to that Act to otherwise eligible units of local government if the computed amount of the payment is less than $100: *Provided further*, That the Secretary may reduce the payment authorized by 31 U.S.C. 6901–6907 for an individual county by the amount necessary to correct prior year overpayments to that county: *Provided further*, That the amount needed to correct a prior year underpayment to an individual county shall be paid from any reductions for overpayments to other counties and the amount necessary to cover any remaining underpayment is hereby appropriated and shall be paid to individual counties.

INSULAR AFFAIRS

ASSISTANCE TO TERRITORIES

For expenses necessary for assistance to territories under the jurisdiction of the Department of the Interior and other jurisdictions identified in section 104(e) of Public Law 108–188, $85,976,000, of which: (1) $76,528,000 shall remain available until expended for territorial assistance, including general technical assistance, maintenance assistance, disaster assistance, coral reef initiative activities, and brown tree snake control and research; grants to the judiciary in American Samoa for compensation and expenses, as authorized by law (48 U.S.C. 1661(c)); grants to the Government of American Samoa, in addition to current local revenues, for construction and support of governmental functions; grants to the Government of the Virgin Islands as authorized by law; grants to the Government of Guam, as authorized by law; and grants to the Government of the Northern Mariana Islands as authorized by law (Public Law 94–241; 90 Stat. 272); and (2) $9,448,000 shall be available until September 30, 2016, for salaries and expenses of the Office of Insular Affairs: *Provided*, That all financial transactions of the territorial and local governments herein provided for, including such transactions of all agencies or instrumentalities established or used by such governments, may be audited by the Government Accountability Office, at its discretion, in accordance with chapter 35 of title 31, United States Code: *Provided further*, That Northern Mariana Islands Covenant grant funding shall be provided according to those terms of the Agreement of the Special Representatives on Future United States Financial Assistance for the Northern Mariana

Islands approved by Public Law 104–134: *Provided further*, That the funds for the program of operations and maintenance improvement are appropriated to institutionalize routine operations and maintenance improvement of capital infrastructure with territorial participation and cost sharing to be determined by the Secretary based on the grantee's commitment to timely maintenance of its capital assets: *Provided further*, That any appropriation for disaster assistance under this heading in this Act or previous appropriations Acts may be used as non-Federal matching funds for the purpose of hazard mitigation grants provided pursuant to section 404 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5170c).

COMPACT OF FREE ASSOCIATION

For grants and necessary expenses, $3,318,000, to remain available until expended, as provided for in sections 221(a)(2) and 233 of the Compact of Free Association for the Republic of Palau; and section 221(a)(2) of the Compacts of Free Association for the Government of the Republic of the Marshall Islands and the Federated States of Micronesia, as authorized by Public Law 99–658 and Public Law 108–188.

ADMINISTRATIVE PROVISIONS

(INCLUDING TRANSFER OF FUNDS)

At the request of the Governor of Guam, the Secretary may transfer discretionary funds or mandatory funds provided under section 104(e) of Public Law 108–188 and Public Law 104–134, that are allocated for Guam, to the Secretary of Agriculture for the subsidy cost of direct or guaranteed loans, plus not to exceed three percent of the amount of the subsidy transferred for the cost of loan administration, for the purposes authorized by the Rural Electrification Act of 1936 and section 306(a)(1) of the Consolidated Farm and Rural Development Act for construction and repair projects in Guam, and such funds shall remain available until expended: *Provided*, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That such loans or loan guarantees may be made without regard to the population of the area, credit elsewhere requirements, and restrictions on the types of eligible entities under the Rural Electrification Act of 1936 and section 306(a)(1) of the Consolidated Farm and Rural Development Act: *Provided further*, That any funds transferred to the Secretary of Agriculture shall be in addition to funds otherwise made available to make or guarantee loans under such authorities.

OFFICE OF THE SOLICITOR

SALARIES AND EXPENSES

For necessary expenses of the Office of the Solicitor, $65,800,000.

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

For necessary expenses of the Office of Inspector General, $50,047,000.

OFFICE OF THE SPECIAL TRUSTEE FOR AMERICAN INDIANS

FEDERAL TRUST PROGRAMS

(INCLUDING TRANSFER OF FUNDS)

For the operation of trust programs for Indians by direct expenditure, contracts, cooperative agreements, compacts, and grants, $139,029,000, to remain available until expended, of which not to exceed $23,061,000 from this or any other Act, may be available for historical accounting: *Provided*, That funds for trust management improvements and litigation support may, as needed, be transferred to or merged with the Bureau of Indian Affairs and Bureau of Indian Education, ''Operation of Indian Programs'' account; the Office of the Solicitor, ''Salaries and Expenses'' account; and the Office of the Secretary, ''Departmental Operations'' account: *Provided further*, That funds made available through contracts or grants obligated during fiscal year 2015, as authorized by the Indian Self-Determination Act of 1975 (25 U.S.C. 450 et seq.), shall remain available until expended by the contractor or grantee: *Provided further*, That, notwithstanding any other provision of law, the Secretary shall not be required to provide a quarterly statement of performance for any Indian trust account that has not had activity for at least 18 months and has a balance of $15 or less: *Provided further*, That the Secretary shall issue an annual account statement and maintain a record of any such accounts and shall permit the balance in each such account to be withdrawn upon the express written request of the account holder: *Provided further*, That not to exceed $50,000 is available for the Secretary to make payments to correct administrative errors of either disbursements from or deposits to Individual Indian Money or Tribal accounts after September 30, 2002: *Provided further*, That erroneous payments that are recovered shall be credited to and remain available in this account for this purpose: *Provided further*, That the Secretary shall not be required to reconcile Special Deposit Accounts with a balance of less than $500 unless the Office of the Special Trustee receives proof of ownership from a Special Deposit Accounts claimant.

DEPARTMENT-WIDE PROGRAMS

WILDLAND FIRE MANAGEMENT

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses for fire preparedness, fire suppression operations, fire science and research, emergency rehabilitation, hazardous fuels management activities, and rural fire assistance by the Department of the Interior, $804,779,000, to remain available until expended, of which not to exceed $6,127,000 shall be for the renovation or construction of fire facilities: *Provided*, That such funds are also available for repayment of advances to other appropriation accounts from which funds were previously transferred for such purposes: *Provided further*, That of the funds provided $164,000,000 is for hazardous fuels management activities, of which $10,000,000 is for resilient landscapes activities: *Provided further*, That of the funds provided $18,035,000 is for burned area rehabilitation: *Provided further*, That persons hired pursuant to 43 U.S.C. 1469 may be furnished subsistence and lodging without cost from funds available from this appropriation: *Provided further*, That notwithstanding 42 U.S.C. 1856d, sums received by a bureau or office of the Department of the Interior for fire protection rendered pursuant to 42 U.S.C. 1856 et seq., protection of United States property, may be credited to the appropriation from which funds were expended to provide that protection, and are available without fiscal year limitation: *Provided further*, That using the amounts designated under this title of this Act, the Secretary of the Interior may enter into procurement contracts, grants, or cooperative agreements, for hazardous fuels management and resilient landscapes activities, and for training and monitoring associated with such hazardous fuels management and resilient landscapes activities on Federal land, or on adjacent non-Federal land for activities that benefit resources on Federal land: *Provided further*, That the costs of implementing any cooperative agreement between the Federal Government and any non-Federal entity may be shared, as mutually agreed on by the affected parties: *Provided further*, That notwithstanding requirements of the Competition in Contracting Act, the Secretary, for purposes of hazardous fuels management and resilient landscapes activities, may obtain maximum practicable competition among: (1) local private, nonprofit, or cooperative entities; (2) Youth Conservation Corps crews, Public Lands Corps (Public Law 109–154), or related partnerships with State, local, or nonprofit youth groups; (3) small or microbusinesses; or (4) other entities that will hire or train locally a significant percentage, defined as 50 percent or more, of the project workforce to complete such contracts: *Provided further*, That in implementing this section, the Secretary shall develop written guidance to field units to ensure accountability and consistent application of the authorities provided herein: *Provided further*, That funds appropriated under this heading may be used to reimburse the United States Fish and Wildlife Service and the National Marine Fisheries Service for the costs of carrying out their responsibilities under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) to consult and conference, as required by section 7 of such Act, in connection with wildland fire management activities: *Provided further*, That the Secretary of the Interior may use wildland fire appropriations to enter into leases of real property with local governments, at or below fair market value, to construct capitalized improvements for fire facilities on such leased properties, including but not limited to fire guard stations, retardant stations, and other initial attack and fire support facilities, and to make advance payments for any such lease or for construction activity associated with the lease: *Provided further*, That the Secretary of the Interior and the Secretary of Agriculture may authorize the transfer of funds appropriated for wildland fire management, in an aggregate amount not to exceed $50,000,000, between the Departments when such transfers would facilitate and expedite wildland fire management programs and projects: *Provided further*, That funds provided for wildfire suppression shall be available for support of Federal emergency response actions: *Provided further*, That funds appropriated under this heading shall be available for assistance to or through the Department of State in connection with forest and rangeland research, technical information, and assistance in foreign countries, and, with the concurrence of the Secretary of State, shall be available to support forestry, wildland fire management, and related natural resource activities outside the United States and its territories and possessions, including technical assistance, education and training, and cooperation with United States and international organizations.

FLAME WILDFIRE SUPPRESSION RESERVE FUND

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses for large fire suppression operations of the Department of the Interior and as a reserve fund for suppression and Federal emergency response activities, $92,000,000, to remain available until expended: *Provided*, That such amounts are only available for transfer to the ''Wildland Fire Management'' account following a declaration by the Secretary in accordance with section 502 of the FLAME Act of 2009 (43 U.S.C. 1748a).

CENTRAL HAZARDOUS MATERIALS FUND

For necessary expenses of the Department of the Interior and any of its component offices and bureaus for the response action, including associated activities, performed pursuant to the Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. 9601 et seq.), $10,010,000, to remain available until expended.

NATURAL RESOURCE DAMAGE ASSESSMENT AND RESTORATION

NATURAL RESOURCE DAMAGE ASSESSMENT FUND

To conduct natural resource damage assessment, restoration activities, and onshore oil spill preparedness by the Department of the Interior necessary to carry out the provisions of the Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. 9601 et seq.), the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.), the Oil Pollution Act of 1990 (33 U.S.C. 2701 et seq.), and Public Law 101–337 (16 U.S.C. 19jj et seq.), $7,767,000, to remain available until expended.

WORKING CAPITAL FUND

For the operation and maintenance of a departmental financial and business management system, information technology improvements of general benefit to the Department, consolidation of facilities and operations throughout the Department, $57,100,000, to remain available until expended: *Provided*, That none of the funds appropriated in this Act or any other Act may be used to establish reserves in the Working Capital Fund account other than for accrued annual leave and depreciation of equipment without prior approval of the Committees on Appropriations of the House of Representatives and the Senate: *Provided further*, That the Secretary may assess reasonable charges to State, local and tribal government employees for training services provided by the National Indian Program Training Center, other than training related to Public Law 93–638: *Provided further*, That the Secretary may lease or otherwise provide space and related facilities, equipment or professional services of the National Indian Program Training Center to State, local and tribal government employees or persons or organizations engaged in cultural, educational, or recreational activities (as defined in section 3306(a) of title 40, United States Code) at the prevailing rate for similar space, facilities, equipment, or services in the vicinity of the National Indian Program Training Center: *Provided further*, That all funds received pursuant to the two preceding provisos shall be credited to this account, shall be available until expended, and shall be used by the Secretary for necessary expenses of the National Indian Program Training Center: *Provided further*, That the Secretary may enter into grants and cooperative agreements to support the Office of Natural Resource Revenue's collection and disbursement of royalties, fees, and other mineral revenue proceeds, as authorized by law.

ADMINISTRATIVE PROVISION

There is hereby authorized for acquisition from available resources within the Working Capital Fund, aircraft which may be obtained by donation, purchase or through available excess surplus property: *Provided*, That existing aircraft being replaced may be sold, with proceeds derived or trade-in value used to offset the purchase price for the replacement aircraft.

GENERAL PROVISIONS, DEPARTMENT OF THE INTERIOR

(INCLUDING TRANSFERS OF FUNDS)

EMERGENCY TRANSFER AUTHORITY—INTRA-BUREAU

SEC. 101. Appropriations made in this title shall be available for expenditure or transfer (within each bureau or office), with the approval of the Secretary, for the emergency reconstruction, replacement, or repair of aircraft, buildings, utilities, or other facilities or equipment damaged or destroyed by fire, flood, storm, or other unavoidable causes: *Provided*, That no funds shall be made available under this authority until funds specifically made available to the Department of the Interior for emergencies shall have been exhausted: *Provided further*, That all funds used pursuant to this section must be replenished by a supplemental appropriation, which must be requested as promptly as possible.

EMERGENCY TRANSFER AUTHORITY—DEPARTMENT-WIDE

SEC. 102. The Secretary may authorize the expenditure or transfer of any no year appropriation in this title, in addition to the amounts included in the budget programs of the several agencies, for the suppression or emergency prevention of wildland fires on or threatening lands under the jurisdiction of the Department of the Interior; for the emergency rehabilitation of burned-over lands under its jurisdiction; for emergency actions related to potential or actual earthquakes, floods, volcanoes, storms, or other unavoidable causes; for contingency planning subsequent to actual oil spills; for response and natural resource damage assessment activities related to actual oil spills or releases of hazardous substances into the environment; for the prevention, suppression, and control of actual or potential grasshopper and Mormon cricket outbreaks on lands under the jurisdiction of the Secretary, pursuant to the authority in section 417(b) of Public Law 106–224 (7 U.S.C. 7717(b)); for emergency reclamation projects under section 410 of Public Law 95–87; and shall transfer, from any no year funds available to the Office of Surface Mining Reclamation and Enforcement, such funds as may be necessary to permit assumption of regulatory authority in the event a primacy State is not carrying out the regulatory provisions of the Surface Mining Act: *Provided*, That appropriations made in this title for wildland fire operations shall be available for the payment of obligations incurred during the preceding fiscal year, and for reimbursement to other Federal agencies for destruction of vehicles, aircraft, or other equipment in connection with their use for wildland fire operations, such reimbursement to be credited to appropriations currently available at the time of receipt thereof: *Provided further*, That for wildland fire operations, no funds shall be made available under this authority until the Secretary determines that funds appropriated for ''wildland fire operations'' and ''FLAME Wildfire Suppression Reserve Fund'' shall be exhausted within 30 days: *Provided further*, That all funds used pursuant to this section must be replenished by a supplemental appropriation, which must be requested as promptly as possible: *Provided further*, That such replenishment funds shall be used to reimburse, on a pro rata basis, accounts from which emergency funds were transferred.

AUTHORIZED USE OF FUNDS

SEC. 103. Appropriations made to the Department of the Interior in this title shall be available for services as authorized by section 3109 of title 5, United States Code, when authorized by the Secretary, in total amount not to exceed $500,000; purchase and replacement of motor vehicles, including specially equipped law enforcement vehicles; hire, maintenance, and operation of aircraft; hire of passenger motor vehicles; purchase of reprints; payment for telephone service in private residences in the field, when authorized under regulations approved by the Secretary; and the payment of dues, when authorized by the Secretary, for library membership in societies or associations which issue publications to members only or at a price to members lower than to subscribers who are not members.

AUTHORIZED USE OF FUNDS, INDIAN TRUST MANAGEMENT

SEC. 104. Appropriations made in this Act under the headings Bureau of Indian Affairs and Bureau of Indian Education, and Office of the Special Trustee for American Indians and any unobligated balances from prior appropriations Acts made under the same headings shall be available for expenditure or transfer for Indian trust management and reform activities. Total funding for historical accounting activities shall not exceed amounts specifically designated in this Act for such purpose.

REDISTRIBUTION OF FUNDS, BUREAU OF INDIAN AFFAIRS

SEC. 105. Notwithstanding any other provision of law, the Secretary of the Interior is authorized to redistribute any Tribal Priority Allocation funds, including tribal base funds, to alleviate tribal funding inequities by transferring funds to address identified, unmet needs, dual enrollment, overlapping service areas or inaccurate distribution methodologies. No tribe shall receive a reduction in Tribal Priority Allocation funds of more than 10 percent in fiscal year 2015. Under circumstances of dual enrollment, overlapping service areas or inaccurate distribution methodologies, the 10 percent limitation does not apply.

ELLIS, GOVERNORS, AND LIBERTY ISLANDS

SEC. 106. Notwithstanding any other provision of law, the Secretary of the Interior is authorized to acquire lands, waters, or interests therein including the use of all or part of any pier, dock, or landing within the State of New York and the State of New Jersey, for the purpose of operating and maintaining facilities in the support of transportation and accommodation of visitors to Ellis, Governors, and Liberty Islands, and of other program and administrative activities, by donation or with appropriated funds, including franchise fees (and other monetary consideration), or by exchange; and the Secretary is authorized to negotiate and enter into leases, subleases, concession contracts or other agreements for the use of such facilities on such terms and conditions as the Secretary may determine reasonable.

OUTER CONTINENTAL SHELF INSPECTION FEES

SEC. 107. (a) In fiscal year 2015, the Secretary shall collect a nonrefundable inspection fee, which shall be deposited in the ''Offshore Safety and Environmental Enforcement'' account, from the designated operator for facilities subject to inspection under 43 U.S.C. 1348(c).

(b) Annual fees shall be collected for facilities that are above the waterline, excluding drilling rigs, and are in place at the start of the fiscal year. Fees for fiscal year 2015 shall be:

(1) $10,500 for facilities with no wells, but with processing equipment or gathering lines;

(2) $17,000 for facilities with 1 to 10 wells, with any combination of active or inactive wells; and

(3) $31,500 for facilities with more than 10 wells, with any combination of active or inactive wells.

(c) Fees for drilling rigs shall be assessed for all inspections completed in fiscal year 2015. Fees for fiscal year 2015 shall be:

(1) $30,500 per inspection for rigs operating in water depths of 500 feet or more; and

(2) $16,700 per inspection for rigs operating in water depths of less than 500 feet.

(d) The Secretary shall bill designated operators under subsection (b) within 60 days, with payment required within 30 days of billing. The Secretary shall bill designated operators under subsection (c) within 30 days of the end of the month in which the inspection occurred, with payment required within 30 days of billing.

OIL AND GAS LEASING INTERNET PROGRAM

SEC. 108. (a) Notwithstanding section 17(b)(1)(A) of the Mineral Leasing Act (30

U.S.C. 226(b)(1)(A)), the Secretary of the Interior shall have the authority to implement an oil and gas leasing Internet program, under which the Secretary may conduct lease sales through methods other than oral bidding.

(b) The authority in subsection (a) shall be effective for fiscal year 2015 until the date of the enactment of a provision of the Carl Levin and Howard P. ''Buck'' McKeon National Defense Authorization Act for Fiscal Year 2015 that amends section 17(b)(1) of the Mineral Leasing Act (30 U.S.C. 226(b)(1)) to authorize onshore lease sales through Internet-based bidding methods.

BUREAU OF OCEAN ENERGY MANAGEMENT, REGULATION AND ENFORCEMENT REORGANIZATION

SEC. 109. The Secretary of the Interior, in order to implement a reorganization of the Bureau of Ocean Energy Management, Regulation and Enforcement, may transfer funds among and between the successor offices and bureaus affected by the reorganization only in conformance with the reprogramming guidelines for division F in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

CONTRACTS AND AGREEMENTS FOR WILD HORSE AND BURRO HOLDING FACILITIES

SEC. 110. Notwithstanding any other provision of this Act, the Secretary of the Interior may enter into multiyear cooperative agreements with nonprofit organizations and other appropriate entities, and may enter into multiyear contracts in accordance with the provisions of section 304B of the Federal Property and Administrative Services Act of 1949 (41 U.S.C. 254c) (except that the 5-year term restriction in subsection (d) shall not apply), for the long-term care and maintenance of excess wild free roaming horses and burros by such organizations or entities on private land. Such cooperative agreements and contracts may not exceed 10 years, subject to renewal at the discretion of the Secretary.

MASS MARKING OF SALMONIDS

SEC. 111. The United States Fish and Wildlife Service shall, in carrying out its responsibilities to protect threatened and endangered species of salmon, implement a system of mass marking of salmonid stocks, intended for harvest, that are released from federally operated or federally financed hatcheries including but not limited to fish releases of coho, chinook, and steelhead species. Marked fish must have a visible mark that can be readily identified by commercial and recreational fishers.

PROHIBITION ON USE OF FUNDS

SEC. 112. (a) Any proposed new use of the Arizona & California Railroad Company's Right of Way for conveyance of water shall not proceed unless the Secretary of the Interior certifies that the proposed new use is within the scope of the Right of Way.

(b) No funds appropriated or otherwise made available to the Department of the Interior may be used, in relation to any proposal to store water underground for the purpose of export, for approval of any right-of-way or similar authorization on the Mojave National Preserve or lands managed by the Needles Field Office of the Bureau of Land Management, or for carrying out any activities associated with such right-of-way or similar approval.

REPUBLIC OF PALAU

SEC. 113. (a) IN GENERAL.—Subject to subsection (c), the United States Government, through the Secretary of the Interior shall provide to the Government of Palau for fiscal year 2015 grants in amounts equal to the annual amounts specified in subsections (a), (c), and (d) of section 211 of the Compact of Free Association between the Government of the United States of America and the Government of Palau (48 U.S.C. 1931 note) (referred to in this section as the ''Compact'').

(b) PROGRAMMATIC ASSISTANCE.—Subject to subsection (c), the United States shall provide programmatic assistance to the Republic of Palau for fiscal year 2015 in amounts equal to the amounts provided in subsections (a) and (b)(1) of section 221 of the Compact.

(c) LIMITATIONS ON ASSISTANCE.—

(1) IN GENERAL.—The grants and programmatic assistance provided under subsections (a) and (b) shall be provided to the same extent and in the same manner as the grants and assistance were provided in fiscal year 2009.

(2) TRUST FUND.—If the Government of Palau withdraws more than $5,000,000 from the trust fund established under section 211(f) of the Compact, amounts to be provided under subsections (a) and (b) shall be withheld from the Government of Palau.

EXHAUSTION OF ADMINISTRATIVE REVIEW

SEC. 114. Paragraph (1) of section 122(a) of division E of Public Law 112–74 (125 Stat. 1013), as amended by section 122 of division G of Public Law 113–76 (128 Stat. 314), is further amended by striking ''through 2015,'' in the first sentence and inserting ''through 2016,''.

WILD LANDS FUNDING PROHIBITION

SEC. 115. None of the funds made available in this Act or any other Act may be used to implement, administer, or enforce Secretarial Order No. 3310 issued by the Secretary of the Interior on December 22, 2010: *Provided*, That nothing in this section shall restrict the Secretary's authorities under sections 201 and 202 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1711 and 1712).

BUREAU OF INDIAN EDUCATION OPERATED SCHOOLS

SEC. 116. Section 115(d) of division E of Public Law 112–74 (125 Stat. 1010) is amended by striking ''2014'' and inserting ''2017''.

REAUTHORIZATION OF FOREST ECOSYSTEM HEALTH AND RECOVERY FUND

SEC. 117. Title I of the Department of the Interior, Environment, and Related Agencies Appropriations Act, 2010 (Public Law 111–88) is amended in the text under the heading ''FOREST ECOSYSTEM HEALTH AND RECOVERY FUND'' by striking ''2015'' each place it appears and inserting ''2020''.

VOLUNTEERS IN PARKS

SEC. 118. Section 4 of Public Law 91–357 (16 U.S.C. 18j), as amended, is further amended by striking ''$3,500,000'' and inserting ''$5,000,000''.

CONTRACTS AND AGREEMENTS WITH INDIAN AFFAIRS

SEC. 119. Notwithstanding any other provision of law, during fiscal year 2015, in carrying out work involving cooperation with State, local, and tribal governments or any political subdivision thereof, Indian Affairs may record obligations against accounts receivable from any such entities, except that total obligations at the end of the fiscal year shall not exceed total budgetary resources available at the end of the fiscal year.

HERITAGE AREAS

SEC. 120. (a) Section 109 of title I of Public Law 105–355 (16 U.S.C. 461 note) shall be applied for fiscal year 2015 by substituting ''2015'' for ''2014''.

(b) Section 157(h)(1) of title I of Public Law 106–291 (16 U.S.C. 461 note) is amended by striking ''$10,000,000'' and inserting ''$11,000,000''.

RATIFICATION OF PAYMENTS

SEC. 121. All payments made to school districts under the first section of the Act of June 4, 1948 (62 Stat. 338, chapter 417; 16 U.S.C. 40a), during the period beginning in fiscal year 1976 and ending on the date of enactment of this Act are ratified and approved, notwithstanding the payments made under chapter 69 of title 31, United States Code to the units of general local government.

SAGE-GROUSE

SEC. 122. None of the funds made available by this or any other Act may be used by the Secretary of the Interior to write or issue pursuant to section 4 of the Endangered Species Act of 1973 (16 U.S.C. 1533)—

(1) a proposed rule for greater sage-grouse (*Centrocercus urophasianus*);

(2) a proposed rule for the Columbia basin distinct population segment of greater sage-grouse;

(3) a final rule for the bi-state distinct population segment of greater sage-grouse; or

(4) a final rule for Gunnison sage-grouse (*Centrocercus minimus*).

TITLE II

ENVIRONMENTAL PROTECTION AGENCY

SCIENCE AND TECHNOLOGY

For science and technology, including research and development activities, which shall include research and development activities under the Comprehensive Environmental Response, Compensation, and Liability Act of 1980; necessary expenses for personnel and related costs and travel expenses; procurement of laboratory equipment and supplies; and other operating expenses in support of research and development, $734,648,000, to remain available until September 30, 2016: *Provided*, That of the funds included under this heading, $4,100,000 shall be for Research: National Priorities as specified in the explanatory statement accompanying this Act.

ENVIRONMENTAL PROGRAMS AND MANAGEMENT

For environmental programs and management, including necessary expenses, not otherwise provided for, for personnel and related costs and travel expenses; hire of passenger motor vehicles; hire, maintenance, and operation of aircraft; purchase of reprints; library memberships in societies or associations which issue publications to members only or at a price to members lower than to subscribers who are not members; administrative costs of the brownfields program under the Small Business Liability Relief and Brownfields Revitalization Act of 2002; and not to exceed $19,000 for official reception and representation expenses, $2,613,679,000, to remain available until September 30, 2016: *Provided*, That of the funds included under this heading, $12,700,000 shall be for Environmental Protection: National Priorities as specified in the explanatory statement accompanying this Act: *Provided further*, That of the funds included under this heading, $427,737,000 shall be for Geographic Programs specified in the explanatory statement accompanying this Act: *Provided further*, That of the funds provided under this heading for Information Exchange and Outreach, $856,750 of funds made available for the Immediate Office of the Administrator and $1,790,750 of funds made available for the Office of Congressional and Intergovernmental Relations shall be withheld from obligation until reports detailed in the explanatory statement accompanying this Act are provided to the Committees on Appropriations of the House of Representatives and the Senate; and of the funds provided under this heading for Operations and Administration for the Office of the Chief Financial Officer, $741,500 shall be withheld from obligation until such reports are provided to the Committees on Appropriations of the House of Representatives and the Senate.

HAZARDOUS WASTE ELECTRONIC MANIFEST SYSTEM FUND

For necessary expenses to carry out section 3024 of the Solid Waste Disposal Act (42 U.S.C. 6939g), including the development, operation, maintenance, and upgrading of the hazardous waste electronic manifest system established by such section, $3,674,000, to remain available until September 30, 2017.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, $41,489,000, to remain available until September 30, 2016.

BUILDINGS AND FACILITIES

For construction, repair, improvement, extension, alteration, and purchase of fixed equipment or facilities of, or for use by, the Environmental Protection Agency, $42,317,000, to remain available until expended.

HAZARDOUS SUBSTANCE SUPERFUND

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses to carry out the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA), including sections 111(c)(3), (c)(5), (c)(6), and (e)(4) (42 U.S.C. 9611) $1,088,769,000, to remain available until expended, consisting of such sums as are available in the Trust Fund on September 30, 2014, as authorized by section 517(a) of the Superfund Amendments and Reauthorization Act of 1986 (SARA) and up to $1,088,769,000 as a payment from general revenues to the Hazardous Substance Superfund for purposes as authorized by section 517(b) of SARA: *Provided*, That funds appropriated under this heading may be allocated to other Federal agencies in accordance with section 111(a) of CERCLA: *Provided further*, That of the funds appropriated under this heading, $9,939,000 shall be paid to the ''Office of Inspector General'' appropriation to remain available until September 30, 2016, and $18,850,000 shall be paid to the ''Science and Technology'' appropriation to remain available until September 30, 2016.

LEAKING UNDERGROUND STORAGE TANK TRUST FUND PROGRAM

For necessary expenses to carry out leaking underground storage tank cleanup activities authorized by subtitle I of the Solid Waste Disposal Act, $91,941,000, to remain available until expended, of which $66,572,000 shall be for carrying out leaking underground storage tank cleanup activities authorized by section 9003(h) of the Solid Waste Disposal Act; $25,369,000 shall be for carrying out the other provisions of the Solid Waste Disposal Act specified in section 9508(c) of the Internal Revenue Code: *Provided*, That the Administrator is authorized to use appropriations made available under this heading to implement section 9013 of the Solid Waste Disposal Act to provide financial assistance to federally recognized Indian tribes for the development and implementation of programs to manage underground storage tanks.

INLAND OIL SPILL PROGRAMS

For expenses necessary to carry out the Environmental Protection Agency's responsibilities under the Oil Pollution Act of 1990, $18,209,000, to be derived from the Oil Spill Liability trust fund, to remain available until expended.

STATE AND TRIBAL ASSISTANCE GRANTS

For environmental programs and infrastructure assistance, including capitalization grants for State revolving funds and performance partnership grants, $3,545,161,000, to remain available until expended, of which—

(1) $1,448,887,000 shall be for making capitalization grants for the Clean Water State Revolving Funds under title VI of the Federal Water Pollution Control Act; and of which $906,896,000 shall be for making capitalization grants for the Drinking Water State Revolving Funds under section 1452 of the Safe Drinking Water Act: *Provided*, That for fiscal year 2015, to the extent there are sufficient eligible project applications, not less than 10 percent of the funds made available under this title to each State for Clean Water State Revolving Fund capitalization grants shall be used by the State for projects to address green infrastructure, water or energy efficiency improvements, or other environmentally innovative activities: *Provided further*, That for fiscal year 2015, funds made available under this title to each State for Drinking Water State Revolving Fund capitalization grants may, at the discretion of each State, be used for projects to address green infrastructure, water or energy efficiency improvements, or other environmentally innovative activities: *Provided further*, That notwithstanding section 603(d)(7) of the Federal Water Pollution Control Act, the limitation on the amounts in a State water pollution control revolving fund that may be used by a State to administer the fund shall not apply to amounts included as principal in loans made by such fund in fiscal year 2015 and prior years where such amounts represent costs of administering the fund to the extent that such amounts are or were deemed reasonable by the Administrator, accounted for separately from other assets in the fund, and used for eligible purposes of the fund, including administration: *Provided further*, That for fiscal year 2015, notwithstanding the limitation on amounts in section 518(c) of the Federal Water Pollution Control Act and section 1452(i) of the Safe Drinking Water Act, up to a total of 2 percent of the funds appropriated for State Revolving Funds under such Acts may be reserved by the Administrator for grants under section 518(c) and section 1452(i) of such Acts: *Provided further*, That for fiscal year 2015, notwithstanding the amounts specified in section 205(c) of the Federal Water Pollution Control Act, up to 1.5 percent of the aggregate funds appropriated for the Clean Water State Revolving Fund program under the Act less any sums reserved under section 518(c) of the Act, may be reserved by the Administrator for grants made under title II of the Clean Water Act for American Samoa, Guam, the Commonwealth of the Northern Marianas, and United States Virgin Islands: *Provided further*, That for fiscal year 2015, notwithstanding the limitations on amounts specified in section 1452(j) of the Safe Drinking Water Act, up to 1.5 percent of the funds appropriated for the Drinking Water State Revolving Fund programs under the Safe Drinking Water Act may be reserved by the Administrator for grants made under section 1452(j) of the Safe Drinking Water Act: *Provided further*, That not less than 20 percent but not more than 30 percent of the funds made available under this title to each State for Drinking Water State Revolving Fund capitalization grants shall be used by the State to provide additional subsidy to eligible recipients in the form of forgiveness of principal, negative interest loans, or grants (or any combination of these), and shall be so used by the State only where such funds are provided as initial financing for an eligible recipient or to buy, refinance, or restructure the debt obligations of eligible recipients only where such debt was incurred on or after the date of enactment of this Act;

(2) $5,000,000 shall be for architectural, engineering, planning, design, construction and related activities in connection with the construction of high priority water and wastewater facilities in the area of the United States-Mexico Border, after consultation with the appropriate border commission; *Provided*, That no funds provided by this appropriations Act to address the water, wastewater and other critical infrastructure needs of the colonias in the United States along the United States-Mexico border shall be made available to a county or municipal government unless that government has established an enforceable local ordinance, or other zoning rule, which prevents in that jurisdiction the development or construction of any additional colonia areas, or the development within an existing colonia the construction of any new home, business, or other structure which lacks water, wastewater, or other necessary infrastructure;

(3) $10,000,000 shall be for grants to the State of Alaska to address drinking water and wastewater infrastructure needs of rural and Alaska Native Villages: *Provided*, That of these funds: (A) the State of Alaska shall provide a match of 25 percent; (B) no more than 5 percent of the funds may be used for administrative and overhead expenses; and (C) the State of Alaska shall make awards consistent with the Statewide priority list established in conjunction with the Agency and the U.S. Department of Agriculture for all water, sewer, waste disposal, and similar projects carried out by the State of Alaska that are funded under section 221 of the Federal Water Pollution Control Act (33 U.S.C. 1301) or the Consolidated Farm and Rural Development Act (7 U.S.C. 1921 et seq.) which shall allocate not less than 25 percent of the funds provided for projects in regional hub communities;

(4) $80,000,000 shall be to carry out section 104(k) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA), including grants, interagency agreements, and associated program support costs: *Provided*, That not more than 25 percent of the amount appropriated to carry out section 104(k) of CERCLA shall be used for site characterization, assessment, and remediation of facilities described in section 101(39)(D)(ii)(II) of CERCLA;

(5) $30,000,000 shall be for grants under title VII, subtitle G of the Energy Policy Act of 2005;

(6) $10,000,000 shall be for targeted airshed grants in accordance with the terms and conditions of the explanatory statement accompanying this Act; and

(7) $1,054,378,000 shall be for grants, including associated program support costs, to States, federally recognized tribes, interstate agencies, tribal consortia, and air pollution control agencies for multi-media or single media pollution prevention, control and abatement and related activities, including activities pursuant to the provisions set forth under this heading in Public Law 104–134, and for making grants under section 103 of the Clean Air Act for particulate matter monitoring and data collection activities subject to terms and conditions specified by the Administrator, of which: $47,745,000 shall be for carrying out section 128 of CERCLA; $9,646,000 shall be for Environmental Information Exchange Network grants, including associated program support costs; $1,498,000 shall be for grants to States under section 2007(f)(2) of the Solid Waste Disposal Act, which shall be in addition to funds appropriated under the heading ''Leaking Underground Storage Tank Trust Fund Program'' to carry out the provisions of the Solid Waste Disposal Act specified in section 9508(c) of the Internal Revenue Code other than section 9003(h) of the Solid Waste Disposal Act; $17,848,000 of the funds available for grants under section 106 of the Federal Water Pollution Control Act shall be for State participation in national- and State-

level statistical surveys of water resources and enhancements to State monitoring programs.

ADMINISTRATIVE PROVISIONS—ENVIRONMENTAL PROTECTION AGENCY

(INCLUDING TRANSFER AND RESCISSION OF FUNDS)

For fiscal year 2015, notwithstanding 31 U.S.C. 6303(1) and 6305(1), the Administrator of the Environmental Protection Agency, in carrying out the Agency's function to implement directly Federal environmental programs required or authorized by law in the absence of an acceptable tribal program, may award cooperative agreements to federally recognized Indian tribes or Intertribal consortia, if authorized by their member tribes, to assist the Administrator in implementing Federal environmental programs for Indian tribes required or authorized by law, except that no such cooperative agreements may be awarded from funds designated for State financial assistance agreements.

The Administrator of the Environmental Protection Agency is authorized to collect and obligate pesticide registration service fees in accordance with section 33 of the Federal Insecticide, Fungicide, and Rodenticide Act, as amended by Public Law 112–177, the Pesticide Registration Improvement Extension Act of 2012.

Notwithstanding section 33(d)(2) of the Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA) (7 U.S.C. 136w–8(d)(2)), the Administrator of the Environmental Protection Agency may assess fees under section 33 of FIFRA (7 U.S.C. 136w–8) for fiscal year 2015.

The Administrator is authorized to transfer up to $300,000,000 of the funds appropriated for the Great Lakes Restoration Initiative under the heading ''Environmental Programs and Management'' to the head of any Federal department or agency, with the concurrence of such head, to carry out activities that would support the Great Lakes Restoration Initiative and Great Lakes Water Quality Agreement programs, projects, or activities; to enter into an interagency agreement with the head of such Federal department or agency to carry out these activities; and to make grants to governmental entities, nonprofit organizations, institutions, and individuals for planning, research, monitoring, outreach, and implementation in furtherance of the Great Lakes Restoration Initiative and the Great Lakes Water Quality Agreement.

The Science and Technology, Environmental Programs and Management, Office of Inspector General, Hazardous Substance Superfund, and Leaking Underground Storage Tank Trust Fund Program Accounts, are available for the construction, alteration, repair, rehabilitation, and renovation of facilities provided that the cost does not exceed $150,000 per project.

The fourth paragraph under the heading ''Administrative Provisions'' in title II of Public Law 109–54 is amended by striking ''2015'' and inserting ''2020''.

For fiscal year 2015, and notwithstanding section 518(f) of the Water Pollution Control Act, the Administrator is authorized to use the amounts appropriated for any fiscal year under Section 319 of the Act to make grants to federally recognized Indian tribes pursuant to sections 319(h) and 518(e) of that Act.

The Administrator is authorized to use the amounts appropriated under the heading ''Environmental Programs and Management'' for fiscal year 2015 to provide grants to implement the Southeastern New England Watershed Restoration Program.

From unobligated balances to carry out projects and activities funded through the ''State and Tribal Assistance Grants'' account, $40,000,000, are hereby permanently rescinded: *Provided*, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

TITLE III

RELATED AGENCIES

DEPARTMENT OF AGRICULTURE

FOREST SERVICE

FOREST AND RANGELAND RESEARCH

For necessary expenses of forest and rangeland research as authorized by law, $296,000,000, to remain available until expended: *Provided*, That of the funds provided, $70,000,000 is for the forest inventory and analysis program.

STATE AND PRIVATE FORESTRY

For necessary expenses of cooperating with and providing technical and financial assistance to States, territories, possessions, and others, and for forest health management, including treatments of pests, pathogens, and invasive or noxious plants and for restoring and rehabilitating forests damaged by pests or invasive plants, cooperative forestry, and education and land conservation activities and conducting an international program as authorized, $232,653,000, to remain available until expended, as authorized by law; of which $53,000,000 is to be derived from the Land and Water Conservation Fund.

NATIONAL FOREST SYSTEM

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Forest Service, not otherwise provided for, for management, protection, improvement, and utilization of the National Forest System, $1,494,330,000, to remain available until expended: *Provided*, That of the funds provided, $40,000,000 shall be deposited in the Collaborative Forest Landscape Restoration Fund for ecological restoration treatments as authorized by 16 U.S.C. 7303(f): *Provided further*, That of the funds provided, $339,130,000 shall be for forest products: *Provided further*, That of the funds provided, up to $81,941,000 is for the Integrated Resource Restoration pilot program for Region 1, Region 3 and Region 4: *Provided further*, That of the funds provided for forest products, up to $65,560,000 may be transferred to support the Integrated Resource Restoration pilot program in the preceding proviso: *Provided further*, That the Secretary of Agriculture may transfer to the Secretary of the Interior any unobligated funds appropriated in this fiscal year or in a previous fiscal year for operation of the Valles Caldera National Preserve.

CAPITAL IMPROVEMENT AND MAINTENANCE

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses of the Forest Service, not otherwise provided for, $360,374,000, to remain available until expended, for construction, capital improvement, maintenance and acquisition of buildings and other facilities and infrastructure; and for construction, reconstruction, decommissioning of roads that are no longer needed, including unauthorized roads that are not part of the transportation system, and maintenance of forest roads and trails by the Forest Service as authorized by 16 U.S.C. 532–538 and 23 U.S.C. 101 and 205: *Provided*, That $40,000,000 shall be designated for urgently needed road decommissioning, road and trail repair and maintenance and associated activities, and removal of fish passage barriers, especially in areas where Forest Service roads may be contributing to water quality problems in streams and water bodies which support threatened, endangered, or sensitive species or community water sources: *Provided further*, That funds becoming available in fiscal year 2015 under the Act of March 4, 1913 (16 U.S.C. 501) shall be transferred to the General Fund of the Treasury and shall not be available for transfer or obligation for any other purpose unless the funds are appropriated: *Provided further*, That of the funds provided for decommissioning of roads, up to $14,743,000 may be transferred to the ''National Forest System'' to support the Integrated Resource Restoration pilot program.

LAND ACQUISITION

For expenses necessary to carry out the provisions of the Land and Water Conservation Fund Act of 1965, (16 U.S.C. 460*l*–4 et seq.), including administrative expenses, and for acquisition of land or waters, or interest therein, in accordance with statutory authority applicable to the Forest Service, $47,500,000, to be derived from the Land and Water Conservation Fund and to remain available until expended.

ACQUISITION OF LANDS FOR NATIONAL FORESTS SPECIAL ACTS

For acquisition of lands within the exterior boundaries of the Cache, Uinta, and Wasatch National Forests, Utah; the Toiyabe National Forest, Nevada; and the Angeles, San Bernardino, Sequoia, and Cleveland National Forests, California, as authorized by law, $950,000, to be derived from forest receipts.

ACQUISITION OF LANDS TO COMPLETE LAND EXCHANGES

For acquisition of lands, such sums, to be derived from funds deposited by State, county, or municipal governments, public school districts, or other public school authorities, and for authorized expenditures from funds deposited by non-Federal parties pursuant to Land Sale and Exchange Acts, pursuant to the Act of December 4, 1967, (16 U.S.C. 484a), to remain available until expended (16 U.S.C. 460*l*–516–617a, 555a; Public Law 96–586; Public Law 76–589, 76–591; and Public Law 78–310).

RANGE BETTERMENT FUND

For necessary expenses of range rehabilitation, protection, and improvement, 50 percent of all moneys received during the prior fiscal year, as fees for grazing domestic livestock on lands in National Forests in the 16 Western States, pursuant to section 401(b)(1) of Public Law 94–579, to remain available until expended, of which not to exceed 6 percent shall be available for administrative expenses associated with on-the-ground range rehabilitation, protection, and improvements.

GIFTS, DONATIONS AND BEQUESTS FOR FOREST AND RANGELAND RESEARCH

For expenses authorized by 16 U.S.C. 1643(b), $45,000, to remain available until expended, to be derived from the fund established pursuant to the above Act.

MANAGEMENT OF NATIONAL FOREST LANDS FOR SUBSISTENCE USES

For necessary expenses of the Forest Service to manage Federal lands in Alaska for subsistence uses under title VIII of the Alaska National Interest Lands Conservation Act (Public Law 96–487), $2,500,000, to remain available until expended.

WILDLAND FIRE MANAGEMENT

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses for forest fire presuppression activities on National Forest System lands, for emergency fire suppression on or adjacent to such lands or other lands under fire protection agreement, hazardous fuels management on or adjacent to such lands, emergency rehabilitation of burned-over National Forest System lands and

water, and for State and volunteer fire assistance, $2,333,298,000, to remain available until expended: *Provided*, That such funds including unobligated balances under this heading, are available for repayment of advances from other appropriations accounts previously transferred for such purposes: *Provided further*, That such funds shall be available to reimburse State and other cooperating entities for services provided in response to wildfire and other emergencies or disasters to the extent such reimbursements by the Forest Service for non-fire emergencies are fully repaid by the responsible emergency management agency: *Provided further*, That, notwithstanding any other provision of law, $6,914,000 of funds appropriated under this appropriation shall be available for the Forest Service in support of fire science research authorized by the Joint Fire Science Program, including all Forest Service authorities for the use of funds, such as contracts, grants, research joint venture agreements, and cooperative agreements: *Provided further*, That all authorities for the use of funds, including the use of contracts, grants, and cooperative agreements, available to execute the Forest and Rangeland Research appropriation, are also available in the utilization of these funds for Fire Science Research: *Provided further*, That funds provided shall be available for emergency rehabilitation and restoration, hazardous fuels management activities, support to Federal emergency response, and wildfire suppression activities of the Forest Service: *Provided further*, That of the funds provided, $361,749,000 is for hazardous fuels management activities, $19,795,000 is for research activities and to make competitive research grants pursuant to the Forest and Rangeland Renewable Resources Research Act, (16 U.S.C. 1641 et seq.), $78,000,000 is for State fire assistance, and $13,000,000 is for volunteer fire assistance under section 10 of the Cooperative Forestry Assistance Act of 1978 (16 U.S.C. 2106): *Provided further*, That amounts in this paragraph may be transferred to the ''National Forest System'', and ''Forest and Rangeland Research'' accounts to fund forest and rangeland research, the Joint Fire Science Program, vegetation and watershed management, heritage site rehabilitation, and wildlife and fish habitat management and restoration: *Provided further*, That, of the funds provided, $65,000,000 shall be available for the purpose of acquiring aircraft for the next-generation airtanker fleet to enhance firefighting mobility, effectiveness, efficiency, and safety, and such aircraft shall be suitable for contractor operation over the terrain and forested-ecosystems characteristic of National Forest System lands, as determined by the Chief of the Forest Service: *Provided further*, That the costs of implementing any cooperative agreement between the Federal Government and any non-Federal entity may be shared, as mutually agreed on by the affected parties: *Provided further*, That up to $15,000,000 of the funds provided herein may be used by the Secretary of Agriculture to enter into procurement contracts or cooperative agreements or to issue grants for hazardous fuels management activities and for training or monitoring associated with such hazardous fuels management activities on Federal land or on non-Federal land if the Secretary determines such activities implement a community wildfire protection plan (or equivalent) and benefit resources on Federal land: *Provided further*, That funds made available to implement the Community Forest Restoration Act, Public Law 106–393, title VI, shall be available for use on non-Federal lands in accordance with authorities made available to the Forest Service under the ''State and Private Forestry'' appropriation: *Provided further*, That the Secretary of the Interior and the Secretary of Agriculture may authorize the transfer of funds appropriated for wildland fire management, in an aggregate amount not to exceed $50,000,000, between the Departments when such transfers would facilitate and expedite wildland fire management programs and projects: *Provided further*, That of the funds provided for hazardous fuels management, not to exceed $15,000,000 may be used to make grants, using any authorities available to the Forest Service under the ''State and Private Forestry'' appropriation, for the purpose of creating incentives for increased use of biomass from National Forest System lands: *Provided further*, That funds designated for wildfire suppression, including funds transferred from the ''FLAME Wildfire Suppression Reserve Fund,'' shall be assessed for cost pools on the same basis as such assessments are calculated against other agency programs: *Provided further*, That of the funds for hazardous fuels management, up to $28,077,000 may be transferred to the ''National Forest System'' to support the Integrated Resource Restoration pilot program.

FLAME WILDFIRE SUPPRESSION RESERVE FUND

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses for large fire suppression operations of the Department of Agriculture and as a reserve fund for suppression and Federal emergency response activities, $303,060,000, to remain available until expended: *Provided*, That such amounts are only available for transfer to the ''Wildland Fire Management'' account following a declaration by the Secretary in accordance with section 502 of the FLAME Act of 2009 (43 U.S.C. 1748a).

ADMINISTRATIVE PROVISIONS—FOREST SERVICE

(INCLUDING TRANSFERS OF FUNDS)

Appropriations to the Forest Service for the current fiscal year shall be available for: (1) purchase of passenger motor vehicles; acquisition of passenger motor vehicles from excess sources, and hire of such vehicles; purchase, lease, operation, maintenance, and acquisition of aircraft to maintain the operable fleet for use in Forest Service wildland fire programs and other Forest Service programs; notwithstanding other provisions of law, existing aircraft being replaced may be sold, with proceeds derived or trade-in value used to offset the purchase price for the replacement aircraft; (2) services pursuant to 7 U.S.C. 2225, and not to exceed $100,000 for employment under 5 U.S.C. 3109; (3) purchase, erection, and alteration of buildings and other public improvements (7 U.S.C. 2250); (4) acquisition of land, waters, and interests therein pursuant to 7 U.S.C. 428a; (5) for expenses pursuant to the Volunteers in the National Forest Act of 1972 (16 U.S.C. 558a, 558d, and 558a note); (6) the cost of uniforms as authorized by 5 U.S.C. 5901–5902; and (7) for debt collection contracts in accordance with 31 U.S.C. 3718(c).

Any appropriations or funds available to the Forest Service may be transferred to the Wildland Fire Management appropriation for forest firefighting, emergency rehabilitation of burned-over or damaged lands or waters under its jurisdiction, and fire preparedness due to severe burning conditions upon the Secretary's notification of the House and Senate Committees on Appropriations that all fire suppression funds appropriated under the headings ''Wildland Fire Management'' and ''FLAME Wildfire Suppression Reserve Fund'' will be obligated within 30 days: *Provided*, That all funds used pursuant to this paragraph must be replenished by a supplemental appropriation which must be requested as promptly as possible.

Funds appropriated to the Forest Service shall be available for assistance to or through the Agency for International Development in connection with forest and rangeland research, technical information, and assistance in foreign countries, and shall be available to support forestry and related natural resource activities outside the United States and its territories and possessions, including technical assistance, education and training, and cooperation with U.S., private, and international organizations. The Forest Service, acting for the International Program, may sign direct funding agreements with foreign governments and institutions as well as other domestic agencies (including the U.S. Agency for International Development, the Department of State, and the Millennium Challenge Corporation), U.S. private sector firms, institutions and organizations to provide technical assistance and training programs overseas on forestry and rangeland management.

Funds appropriated to the Forest Service shall be available for expenditure or transfer to the Department of the Interior, Bureau of Land Management, for removal, preparation, and adoption of excess wild horses and burros from National Forest System lands, and for the performance of cadastral surveys to designate the boundaries of such lands.

None of the funds made available to the Forest Service in this Act or any other Act with respect to any fiscal year shall be subject to transfer under the provisions of section 702(b) of the Department of Agriculture Organic Act of 1944 (7 U.S.C. 2257), section 442 of Public Law 106–224 (7 U.S.C. 7772), or section 10417(b) of Public Law 107–107 (7 U.S.C. 8316(b)).

None of the funds available to the Forest Service may be reprogrammed without the advance approval of the House and Senate Committees on Appropriations in accordance with the reprogramming procedures contained in the explanatory statement accompanying this Act.

Not more than $82,000,000 of funds available to the Forest Service shall be transferred to the Working Capital Fund of the Department of Agriculture and not more than $14,500,000 of funds available to the Forest Service shall be transferred to the Department of Agriculture for Department Reimbursable Programs, commonly referred to as Greenbook charges. Nothing in this paragraph shall prohibit or limit the use of reimbursable agreements requested by the Forest Service in order to obtain services from the Department of Agriculture's National Information Technology Center. Nothing in this paragraph shall limit the Forest Service portion of implementation costs to be paid to the Department of Agriculture for the International Technology Service.

Of the funds available to the Forest Service, up to $5,000,000 shall be available for priority projects within the scope of the approved budget, which shall be carried out by the Youth Conservation Corps and shall be carried out under the authority of the Public Lands Corps Act of 1993, Public Law 103–82, as amended by Public Lands Corps Healthy Forests Restoration Act of 2005, Public Law 109–154.

Of the funds available to the Forest Service, $4,000 is available to the Chief of the Forest Service for official reception and representation expenses.

Pursuant to sections 405(b) and 410(b) of Public Law 101–593, of the funds available to the Forest Service, up to $3,000,000 may be advanced in a lump sum to the National Forest Foundation to aid conservation partnership projects in support of the Forest Service mission, without regard to when the Foundation incurs expenses, for projects on or benefitting National Forest System lands or related to Forest Service programs: *Provided*, That of the Federal funds made available to

the Foundation, no more than $300,000 shall be available for administrative expenses: *Provided further*, That the Foundation shall obtain, by the end of the period of Federal financial assistance, private contributions to match on at least one-for-one basis funds made available by the Forest Service: *Provided further*, That the Foundation may transfer Federal funds to a Federal or a non-Federal recipient for a project at the same rate that the recipient has obtained the non-Federal matching funds.

Pursuant to section 2(b)(2) of Public Law 98–244, up to $3,000,000 of the funds available to the Forest Service may be advanced to the National Fish and Wildlife Foundation in a lump sum to aid cost-share conservation projects, without regard to when expenses are incurred, on or benefitting National Forest System lands or related to Forest Service programs: *Provided*, That such funds shall be matched on at least a one-for-one basis by the Foundation or its sub-recipients: *Provided further*, That the Foundation may transfer Federal funds to a Federal or non-Federal recipient for a project at the same rate that the recipient has obtained the non-Federal matching funds.

Funds appropriated to the Forest Service shall be available for interactions with and providing technical assistance to rural communities and natural resource-based businesses for sustainable rural development purposes.

Funds appropriated to the Forest Service shall be available for payments to counties within the Columbia River Gorge National Scenic Area, pursuant to section 14(c)(1) and (2), and section 16(a)(2) of Public Law 99–663.

Any funds appropriated to the Forest Service may be used to meet the non-Federal share requirement in section 502(c) of the Older Americans Act of 1965 (42 U.S.C. 3056(c)(2)).

Funds available to the Forest Service, not to exceed $55,000,000, shall be assessed for the purpose of performing fire, administrative and other facilities maintenance and decommissioning. Such assessments shall occur using a square foot rate charged on the same basis the agency uses to assess programs for payment of rent, utilities, and other support services.

Notwithstanding any other provision of law, any appropriations or funds available to the Forest Service not to exceed $500,000 may be used to reimburse the Office of the General Counsel (OGC), Department of Agriculture, for travel and related expenses incurred as a result of OGC assistance or participation requested by the Forest Service at meetings, training sessions, management reviews, land purchase negotiations and similar nonlitigation-related matters. Future budget justifications for both the Forest Service and the Department of Agriculture should clearly display the sums previously transferred and the requested funding transfers.

An eligible individual who is employed in any project funded under title V of the Older Americans Act of 1965 (42 U.S.C. 3056 et seq.) and administered by the Forest Service shall be considered to be a Federal employee for purposes of chapter 171 of title 28, United States Code.

DEPARTMENT OF HEALTH AND HUMAN SERVICES

INDIAN HEALTH SERVICE

INDIAN HEALTH SERVICES

For expenses necessary to carry out the Act of August 5, 1954 (68 Stat. 674), the Indian Self-Determination and Education Assistance Act, the Indian Health Care Improvement Act, and titles II and III of the Public Health Service Act with respect to the Indian Health Service, $4,182,147,000, together with payments received during the fiscal year pursuant to 42 U.S.C. 238(b) and 238b, for services furnished by the Indian Health Service: *Provided*, That funds made available to tribes and tribal organizations through contracts, grant agreements, or any other agreements or compacts authorized by the Indian Self-Determination and Education Assistance Act of 1975 (25 U.S.C. 450), shall be deemed to be obligated at the time of the grant or contract award and thereafter shall remain available to the tribe or tribal organization without fiscal year limitation: *Provided further*, That, $914,139,000 for Purchased/Referred Care, including $51,500,000 for the Indian Catastrophic Health Emergency Fund, shall remain available until expended: *Provided further*, That, of the funds provided, up to $36,000,000 shall remain available until expended for implementation of the loan repayment program under section 108 of the Indian Health Care Improvement Act: *Provided further*, That the amounts collected by the Federal Government as authorized by sections 104 and 108 of the Indian Health Care Improvement Act (25 U.S.C. 1613a and 1616a) during the preceding fiscal year for breach of contracts shall be deposited to the Fund authorized by section 108A of the Act (25 U.S.C. 1616a–1) and shall remain available until expended and, notwithstanding section 108A(c) of the Act (25 U.S.C. 1616a–1(c)), funds shall be available to make new awards under the loan repayment and scholarship programs under sections 104 and 108 of the Act (25 U.S.C. 1613a and 1616a): *Provided further*, That notwithstanding any other provision of law, the amounts made available within this account for the methamphetamine and suicide prevention and treatment initiative and for the domestic violence prevention initiative shall be allocated at the discretion of the Director of the Indian Health Service and shall remain available until expended: *Provided further*, That funds provided in this Act may be used for annual contracts and grants that fall within 2 fiscal years, provided the total obligation is recorded in the year the funds are appropriated: *Provided further*, That the amounts collected by the Secretary of Health and Human Services under the authority of title IV of the Indian Health Care Improvement Act shall remain available until expended for the purpose of achieving compliance with the applicable conditions and requirements of titles XVIII and XIX of the Social Security Act, except for those related to the planning, design, or construction of new facilities: *Provided further*, That funding contained herein for scholarship programs under the Indian Health Care Improvement Act (25 U.S.C. 1613) shall remain available until expended: *Provided further*, That amounts received by tribes and tribal organizations under title IV of the Indian Health Care Improvement Act shall be reported and accounted for and available to the receiving tribes and tribal organizations until expended: *Provided further*, That the Bureau of Indian Affairs may collect from the Indian Health Service, tribes and tribal organizations operating health facilities pursuant to Public Law 93–638, such individually identifiable health information relating to disabled children as may be necessary for the purpose of carrying out its functions under the Individuals with Disabilities Education Act (20 U.S.C. 1400, et seq.): *Provided further*, That the Indian Health Care Improvement Fund may be used, as needed, to carry out activities typically funded under the Indian Health Facilities account.

INDIAN HEALTH FACILITIES

For construction, repair, maintenance, improvement, and equipment of health and related auxiliary facilities, including quarters for personnel; preparation of plans, specifications, and drawings; acquisition of sites, purchase and erection of modular buildings, and purchases of trailers; and for provision of domestic and community sanitation facilities for Indians, as authorized by section 7 of the Act of August 5, 1954 (42 U.S.C. 2004a), the Indian Self-Determination Act, and the Indian Health Care Improvement Act, and for expenses necessary to carry out such Acts and titles II and III of the Public Health Service Act with respect to environmental health and facilities support activities of the Indian Health Service, $460,234,000 to remain available until expended: *Provided*, That notwithstanding any other provision of law, funds appropriated for the planning, design, construction, renovation or expansion of health facilities for the benefit of an Indian tribe or tribes may be used to purchase land on which such facilities will be located: *Provided further*, That not to exceed $500,000 may be used by the Indian Health Service to purchase TRANSAM equipment from the Department of Defense for distribution to the Indian Health Service and tribal facilities: *Provided further*, That none of the funds appropriated to the Indian Health Service may be used for sanitation facilities construction for new homes funded with grants by the housing programs of the United States Department of Housing and Urban Development: *Provided further*, That not to exceed $2,700,000 from this account and the ''Indian Health Services'' account may be used by the Indian Health Service to obtain ambulances for the Indian Health Service and tribal facilities in conjunction with an existing interagency agreement between the Indian Health Service and the General Services Administration: *Provided further*, That not to exceed $500,000 may be placed in a Demolition Fund, to remain available until expended, and be used by the Indian Health Service for the demolition of Federal buildings.

ADMINISTRATIVE PROVISIONS—INDIAN HEALTH SERVICE

Appropriations provided in this Act to the Indian Health Service shall be available for services as authorized by 5 U.S.C. 3109 at rates not to exceed the per diem rate equivalent to the maximum rate payable for senior-level positions under 5 U.S.C. 5376; hire of passenger motor vehicles and aircraft; purchase of medical equipment; purchase of reprints; purchase, renovation and erection of modular buildings and renovation of existing facilities; payments for telephone service in private residences in the field, when authorized under regulations approved by the Secretary; uniforms or allowances therefor as authorized by 5 U.S.C. 5901–5902; and for expenses of attendance at meetings that relate to the functions or activities of the Indian Health Service: *Provided*, That in accordance with the provisions of the Indian Health Care Improvement Act, non-Indian patients may be extended health care at all tribally administered or Indian Health Service facilities, subject to charges, and the proceeds along with funds recovered under the Federal Medical Care Recovery Act (42 U.S.C. 2651–2653) shall be credited to the account of the facility providing the service and shall be available without fiscal year limitation: *Provided further*, That notwithstanding any other law or regulation, funds transferred from the Department of Housing and Urban Development to the Indian Health Service shall be administered under Public Law 86–121, the Indian Sanitation Facilities Act and Public Law 93–638: *Provided further*, That funds appropriated to the Indian Health Service in this Act, except those used for administrative and program direction purposes, shall not be subject to limitations directed at curtailing Federal travel and transportation: *Provided further*, That none of the

funds made available to the Indian Health Service in this Act shall be used for any assessments or charges by the Department of Health and Human Services unless identified in the budget justification and provided in this Act, or approved by the House and Senate Committees on Appropriations through the reprogramming process: *Provided further*, That notwithstanding any other provision of law, funds previously or herein made available to a tribe or tribal organization through a contract, grant, or agreement authorized by title I or title V of the Indian Self-Determination and Education Assistance Act of 1975 (25 U.S.C. 450), may be deobligated and reobligated to a self-determination contract under title I, or a self-governance agreement under title V of such Act and thereafter shall remain available to the tribe or tribal organization without fiscal year limitation: *Provided further*, That none of the funds made available to the Indian Health Service in this Act shall be used to implement the final rule published in the Federal Register on September 16, 1987, by the Department of Health and Human Services, relating to the eligibility for the health care services of the Indian Health Service until the Indian Health Service has submitted a budget request reflecting the increased costs associated with the proposed final rule, and such request has been included in an appropriations Act and enacted into law: *Provided further*, That with respect to functions transferred by the Indian Health Service to tribes or tribal organizations, the Indian Health Service is authorized to provide goods and services to those entities on a reimbursable basis, including payments in advance with subsequent adjustment, and the reimbursements received therefrom, along with the funds received from those entities pursuant to the Indian Self-Determination Act, may be credited to the same or subsequent appropriation account from which the funds were originally derived, with such amounts to remain available until expended: *Provided further*, That reimbursements for training, technical assistance, or services provided by the Indian Health Service will contain total costs, including direct, administrative, and overhead associated with the provision of goods, services, or technical assistance: *Provided further*, That the appropriation structure for the Indian Health Service may not be altered without advance notification to the House and Senate Committees on Appropriations.

NATIONAL INSTITUTES OF HEALTH

NATIONAL INSTITUTE OF ENVIRONMENTAL HEALTH SCIENCES

For necessary expenses for the National Institute of Environmental Health Sciences in carrying out activities set forth in section 311(a) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9660(a)) and section 126(g) of the Superfund Amendments and Reauthorization Act of 1986, $77,349,000.

AGENCY FOR TOXIC SUBSTANCES AND DISEASE REGISTRY

TOXIC SUBSTANCES AND ENVIRONMENTAL PUBLIC HEALTH

For necessary expenses for the Agency for Toxic Substances and Disease Registry (ATSDR) in carrying out activities set forth in sections 104(i) and 111(c)(4) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA) and section 3019 of the Solid Waste Disposal Act, $74,691,000, of which up to $1,000 per eligible employee of the Agency for Toxic Substances and Disease Registry shall remain available until expended for Individual Learning Accounts: *Provided*, That notwithstanding any other provision of law, in lieu of performing a health assessment under section 104(i)(6) of CERCLA, the Administrator of ATSDR may conduct other appropriate health studies, evaluations, or activities, including, without limitation, biomedical testing, clinical evaluations, medical monitoring, and referral to accredited healthcare providers: *Provided further*, That in performing any such health assessment or health study, evaluation, or activity, the Administrator of ATSDR shall not be bound by the deadlines in section 104(i)(6)(A) of CERCLA: *Provided further*, That none of the funds appropriated under this heading shall be available for ATSDR to issue in excess of 40 toxicological profiles pursuant to section 104(i) of CERCLA during fiscal year 2015, and existing profiles may be updated as necessary.

OTHER RELATED AGENCIES

EXECUTIVE OFFICE OF THE PRESIDENT

COUNCIL ON ENVIRONMENTAL QUALITY AND OFFICE OF ENVIRONMENTAL QUALITY

For necessary expenses to continue functions assigned to the Council on Environmental Quality and Office of Environmental Quality pursuant to the National Environmental Policy Act of 1969, the Environmental Quality Improvement Act of 1970, and Reorganization Plan No. 1 of 1977, and not to exceed $750 for official reception and representation expenses, $3,000,000: *Provided*, That notwithstanding section 202 of the National Environmental Policy Act of 1970, the Council shall consist of one member, appointed by the President, by and with the advice and consent of the Senate, serving as chairman and exercising all powers, functions, and duties of the Council.

CHEMICAL SAFETY AND HAZARD INVESTIGATION BOARD

SALARIES AND EXPENSES

For necessary expenses in carrying out activities pursuant to section 112(r)(6) of the Clean Air Act, including hire of passenger vehicles, uniforms or allowances therefor, as authorized by 5 U.S.C. 5901–5902, and for services authorized by 5 U.S.C. 3109 but at rates for individuals not to exceed the per diem equivalent to the maximum rate payable for senior level positions under 5 U.S.C. 5376, $11,000,000: *Provided*, That the Chemical Safety and Hazard Investigation Board (Board) shall have not more than three career Senior Executive Service positions: *Provided further*, That notwithstanding any other provision of law, the individual appointed to the position of Inspector General of the Environmental Protection Agency (EPA) shall, by virtue of such appointment, also hold the position of Inspector General of the Board: *Provided further*, That notwithstanding any other provision of law, the Inspector General of the Board shall utilize personnel of the Office of Inspector General of EPA in performing the duties of the Inspector General of the Board, and shall not appoint any individuals to positions within the Board.

OFFICE OF NAVAJO AND HOPI INDIAN RELOCATION

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses of the Office of Navajo and Hopi Indian Relocation as authorized by Public Law 93–531, $7,341,000, to remain available until expended: *Provided*, That funds provided in this or any other appropriations Act are to be used to relocate eligible individuals and groups including evictees from District 6, Hopi-partitioned lands residents, those in significantly substandard housing, and all others certified as eligible and not included in the preceding categories: *Provided further*, That none of the funds contained in this or any other Act may be used by the Office of Navajo and Hopi Indian Relocation to evict any single Navajo or Navajo family who, as of November 30, 1985, was physically domiciled on the lands partitioned to the Hopi Tribe unless a new or replacement home is provided for such household: *Provided further*, That no relocatee will be provided with more than one new or replacement home: *Provided further*, That the Office shall relocate any certified eligible relocatees who have selected and received an approved homesite on the Navajo reservation or selected a replacement residence off the Navajo reservation or on the land acquired pursuant to 25 U.S.C. 640d-10: *Provided further*, That $200,000 shall be transferred to the Office of Inspector General of the Department of the Interior, to remain available until expended, for audits and investigations of the Office of Navajo and Hopi Indian Relocation, consistent with the Inspector General Act of 1978 (5 U.S.C. App.).

INSTITUTE OF AMERICAN INDIAN AND ALASKA NATIVE CULTURE AND ARTS DEVELOPMENT

PAYMENT TO THE INSTITUTE

For payment to the Institute of American Indian and Alaska Native Culture and Arts Development, as authorized by title XV of Public Law 99–498 (20 U.S.C. 56 part A), $9,469,000, to remain available until September 30, 2016.

SMITHSONIAN INSTITUTION

SALARIES AND EXPENSES

For necessary expenses of the Smithsonian Institution, as authorized by law, including research in the fields of art, science, and history; development, preservation, and documentation of the National Collections; presentation of public exhibits and performances; collection, preparation, dissemination, and exchange of information and publications; conduct of education, training, and museum assistance programs; maintenance, alteration, operation, lease agreements of no more than 30 years, and protection of buildings, facilities, and approaches; not to exceed $100,000 for services as authorized by 5 U.S.C. 3109; and purchase, rental, repair, and cleaning of uniforms for employees, $675,343,000, to remain available until September 30, 2016, except as otherwise provided herein; of which not to exceed $47,522,000 for the instrumentation program, collections acquisition, exhibition reinstallation, the National Museum of African American History and Culture, and the repatriation of skeletal remains program shall remain available until expended; and including such funds as may be necessary to support American overseas research centers: *Provided*, That funds appropriated herein are available for advance payments to independent contractors performing research services or participating in official Smithsonian presentations.

FACILITIES CAPITAL

For necessary expenses of repair, revitalization, and alteration of facilities owned or occupied by the Smithsonian Institution, by contract or otherwise, as authorized by section 2 of the Act of August 22, 1949 (63 Stat. 623), and for construction, including necessary personnel, $144,198,000, to remain available until expended, of which not to exceed $10,000 shall be for services as authorized by 5 U.S.C. 3109, and of which $24,010,000 shall be for construction of the National Museum of African American History and Culture.

NATIONAL GALLERY OF ART

SALARIES AND EXPENSES

For the upkeep and operations of the National Gallery of Art, the protection and care of the works of art therein, and administrative expenses incident thereto, as authorized by the Act of March 24, 1937 (50 Stat. 51), as amended by the public resolution of

April 13, 1939 (Public Resolution 9, Seventy-sixth Congress), including services as authorized by 5 U.S.C. 3109; payment in advance when authorized by the treasurer of the Gallery for membership in library, museum, and art associations or societies whose publications or services are available to members only, or to members at a price lower than to the general public; purchase, repair, and cleaning of uniforms for guards, and uniforms, or allowances therefor, for other employees as authorized by law (5 U.S.C. 5901–5902); purchase or rental of devices and services for protecting buildings and contents thereof, and maintenance, alteration, improvement, and repair of buildings, approaches, and grounds; and purchase of services for restoration and repair of works of art for the National Gallery of Art by contracts made, without advertising, with individuals, firms, or organizations at such rates or prices and under such terms and conditions as the Gallery may deem proper, $119,500,000, to remain available until September 30, 2016, of which not to exceed $3,578,000 for the special exhibition program shall remain available until expended.

REPAIR, RESTORATION AND RENOVATION OF BUILDINGS

For necessary expenses of repair, restoration and renovation of buildings, grounds and facilities owned or occupied by the National Gallery of Art, by contract or otherwise, for operating lease agreements of no more than 10 years, with no extensions or renewals beyond the 10 years, that address space needs created by the ongoing renovations in the Master Facilities Plan, as authorized, $19,000,000, to remain available until expended: *Provided*, That contracts awarded for environmental systems, protection systems, and exterior repair or renovation of buildings of the National Gallery of Art may be negotiated with selected contractors and awarded on the basis of contractor qualifications as well as price.

JOHN F. KENNEDY CENTER FOR THE PERFORMING ARTS

OPERATIONS AND MAINTENANCE

For necessary expenses for the operation, maintenance and security of the John F. Kennedy Center for the Performing Arts, $22,000,000.

CAPITAL REPAIR AND RESTORATION

For necessary expenses for capital repair and restoration of the existing features of the building and site of the John F. Kennedy Center for the Performing Arts, $10,800,000, to remain available until expended.

WOODROW WILSON INTERNATIONAL CENTER FOR SCHOLARS

SALARIES AND EXPENSES

For expenses necessary in carrying out the provisions of the Woodrow Wilson Memorial Act of 1968 (82 Stat. 1356) including hire of passenger vehicles and services as authorized by 5 U.S.C. 3109, $10,500,000, to remain available until September 30, 2016.

NATIONAL FOUNDATION ON THE ARTS AND THE HUMANITIES

NATIONAL ENDOWMENT FOR THE ARTS

GRANTS AND ADMINISTRATION

For necessary expenses to carry out the National Foundation on the Arts and the Humanities Act of 1965, $146,021,000 shall be available to the National Endowment for the Arts for the support of projects and productions in the arts, including arts education and public outreach activities, through assistance to organizations and individuals pursuant to section 5 of the Act, for program support, and for administering the functions of the Act, to remain available until expended.

NATIONAL ENDOWMENT FOR THE HUMANITIES

GRANTS AND ADMINISTRATION

For necessary expenses to carry out the National Foundation on the Arts and the Humanities Act of 1965, $146,021,000 to remain available until expended, of which $135,121,000 shall be available for support of activities in the humanities, pursuant to section 7(c) of the Act and for administering the functions of the Act; and $10,900,000 shall be available to carry out the matching grants program pursuant to section 10(a)(2) of the Act, including $8,500,000 for the purposes of section 7(h): *Provided*, That appropriations for carrying out section 10(a)(2) shall be available for obligation only in such amounts as may be equal to the total amounts of gifts, bequests, devises of money, and other property accepted by the chairman or by grantees of the National Endowment for the Humanities under the provisions of sections 11(a)(2)(B) and 11(a)(3)(B) during the current and preceding fiscal years for which equal amounts have not previously been appropriated.

ADMINISTRATIVE PROVISIONS

None of the funds appropriated to the National Foundation on the Arts and the Humanities may be used to process any grant or contract documents which do not include the text of 18 U.S.C. 1913: *Provided*, That none of the funds appropriated to the National Foundation on the Arts and the Humanities may be used for official reception and representation expenses: *Provided further*, That funds from nonappropriated sources may be used as necessary for official reception and representation expenses: *Provided further*, That the Chairperson of the National Endowment for the Arts may approve grants of up to $10,000, if in the aggregate the amount of such grants does not exceed 5 percent of the sums appropriated for grantmaking purposes per year: *Provided further*, That such small grant actions are taken pursuant to the terms of an expressed and direct delegation of authority from the National Council on the Arts to the Chairperson.

COMMISSION OF FINE ARTS

SALARIES AND EXPENSES

For expenses of the Commission of Fine Arts under Chapter 91 of title 40, United States Code, $2,524,000: *Provided*, That the Commission is authorized to charge fees to cover the full costs of its publications, and such fees shall be credited to this account as an offsetting collection, to remain available until expended without further appropriation: *Provided further*, That the Commission is authorized to accept gifts, including objects, papers, artwork, drawings and artifacts, that pertain to the history and design of the Nation's Capital or the history and activities of the Commission of Fine Arts, for the purpose of artistic display, study or education.

NATIONAL CAPITAL ARTS AND CULTURAL AFFAIRS

For necessary expenses as authorized by Public Law 99–190 (20 U.S.C. 956a), $2,000,000.

ADVISORY COUNCIL ON HISTORIC PRESERVATION

SALARIES AND EXPENSES

For necessary expenses of the Advisory Council on Historic Preservation (Public Law 89–665), $6,204,000.

NATIONAL CAPITAL PLANNING COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the National Capital Planning Commission under chapter 87 of title 40, United States Code, including services as authorized by 5 U.S.C. 3109, $7,948,000: *Provided*, That one-quarter of 1 percent of the funds provided under this heading may be used for official reception and representational expenses associated with hosting international visitors engaged in the planning and physical development of world capitals.

UNITED STATES HOLOCAUST MEMORIAL MUSEUM

HOLOCAUST MEMORIAL MUSEUM

For expenses of the Holocaust Memorial Museum, as authorized by Public Law 106–292 (36 U.S.C. 2301–2310), $52,385,000, of which $515,000 shall remain available until September 30, 2017, for the Museum's equipment replacement program; and of which $1,900,000 for the Museum's repair and rehabilitation program and $1,264,000 for the Museum's outreach initiatives program shall remain available until expended.

DWIGHT D. EISENHOWER MEMORIAL COMMISSION

SALARIES AND EXPENSES

For necessary expenses, including the costs of construction design, of the Dwight D. Eisenhower Memorial Commission, $1,000,000, to remain available until expended.

TITLE IV

GENERAL PROVISIONS

(INCLUDING TRANSFERS OF FUNDS)

RESTRICTION ON USE OF FUNDS

SEC. 401. No part of any appropriation contained in this Act shall be available for any activity or the publication or distribution of literature that in any way tends to promote public support or opposition to any legislative proposal on which Congressional action is not complete other than to communicate to Members of Congress as described in 18 U.S.C. 1913.

OBLIGATION OF APPROPRIATIONS

SEC. 402. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

DISCLOSURE OF ADMINISTRATIVE EXPENSES

SEC. 403. The amount and basis of estimated overhead charges, deductions, reserves or holdbacks, including working capital fund and cost pool charges, from programs, projects, activities and subactivities to support government-wide, departmental, agency, or bureau administrative functions or headquarters, regional, or central operations shall be presented in annual budget justifications and subject to approval by the Committees on Appropriations of the House of Representatives and the Senate. Changes to such estimates shall be presented to the Committees on Appropriations for approval.

MINING APPLICATIONS

SEC. 404. (a) LIMITATION OF FUNDS.—None of the funds appropriated or otherwise made available pursuant to this Act shall be obligated or expended to accept or process applications for a patent for any mining or mill site claim located under the general mining laws.

(b) EXCEPTIONS.—Subsection (a) shall not apply if the Secretary of the Interior determines that, for the claim concerned (1) a patent application was filed with the Secretary on or before September 30, 1994; and (2) all requirements established under sections 2325 and 2326 of the Revised Statutes (30 U.S.C. 29 and 30) for vein or lode claims, sections 2329, 2330, 2331, and 2333 of the Revised Statutes (30 U.S.C. 35, 36, and 37) for placer claims, and section 2337 of the Revised Statutes (30 U.S.C. 42) for mill site claims, as the case may be, were fully complied with by the applicant by that date.

(c) REPORT.—On September 30, 2015, the Secretary of the Interior shall file with the House and Senate Committees on Appropriations and the Committee on Natural Resources of the House and the Committee on

Energy and Natural Resources of the Senate a report on actions taken by the Department under the plan submitted pursuant to section 314(c) of the Department of the Interior and Related Agencies Appropriations Act, 1997 (Public Law 104–208).

(d) MINERAL EXAMINATIONS.—In order to process patent applications in a timely and responsible manner, upon the request of a patent applicant, the Secretary of the Interior shall allow the applicant to fund a qualified third-party contractor to be selected by the Director of the Bureau of Land Management to conduct a mineral examination of the mining claims or mill sites contained in a patent application as set forth in subsection (b). The Bureau of Land Management shall have the sole responsibility to choose and pay the third-party contractor in accordance with the standard procedures employed by the Bureau of Land Management in the retention of third-party contractors.

CONTRACT SUPPORT COSTS, PRIOR YEAR LIMITATION

SEC. 405. Notwithstanding any other provision of law, amounts appropriated to or otherwise designated in committee reports for the Bureau of Indian Affairs and the Indian Health Service by Public Laws 103–138, 103–332, 104–134, 104–208, 105–83, 105–277, 106–113, 106–291, 107–63, 108–7, 108–108, 108–447, 109–54, 109–289, division B and Continuing Appropriations Resolution, 2007 (division B of Public Law 109–289, as amended by Public Laws 110–5 and 110–28), Public Laws 110–92, 110–116, 110–137, 110–149, 110–161, 110–329, 111–6, 111–8, 111–88, 112–10, 112–74, and 113–6 for payments for contract support costs associated with self-determination or self-governance contracts, grants, compacts, or annual funding agreements with the Bureau of Indian Affairs or the Indian Health Service as funded by such Acts, are the total amounts available for fiscal years 1994 through 2013 for such purposes, except that the Bureau of Indian Affairs, tribes and tribal organizations may use their tribal priority allocations for unmet contract support costs of ongoing contracts, grants, self-governance compacts, or annual funding agreements.

CONTRACT SUPPORT COSTS, FISCAL YEAR 2014 LIMITATION

SEC. 406. Amounts provided under the headings ''Department of the Interior, Bureau of Indian Affairs and Bureau of Indian Education, Operation of Indian Programs'' and ''Department of Health and Human Services, Indian Health Service, Indian Health Services'' in the Consolidated Appropriations Act, 2014 (Public Law 113–76) are the only amounts available for contract support costs arising out of self-determination or self-governance contracts, grants, compacts, or annual funding agreements with the Bureau of Indian Affairs or the Indian Health Service for activities funded by the fiscal year 2014 appropriation: *Provided,* That such amounts provided by that Act are not available for payment of claims for contract support costs for prior years, or for repayments of payments for settlements or judgments awarding contract support costs for prior years.

CONTRACT SUPPORT COSTS, FISCAL YEAR 2015 LIMITATION

SEC. 407. Amounts provided by this Act for fiscal year 2015 under the headings ''Department of Health and Human Services, Indian Health Service, Indian Health Services'' and ''Department of the Interior, Bureau of Indian Affairs and Bureau of Indian Education, Operation of Indian Programs'' are the only amounts available for contract support costs arising out of self-determination or self-governance contracts, grants, compacts, or annual funding agreements for fiscal year 2015 with the Bureau of Indian Affairs or the Indian Health Service: *Provided,* That such amounts provided by this Act are not available for payment of claims for contract support costs for prior years, or for repayments of payments for settlements or judgments awarding contract support costs for prior years.

FOREST MANAGEMENT PLANS

SEC. 408. The Secretary of Agriculture shall not be considered to be in violation of subparagraph 6(f)(5)(A) of the Forest and Rangeland Renewable Resources Planning Act of 1974 (16 U.S.C. 1604(f)(5)(A)) solely because more than 15 years have passed without revision of the plan for a unit of the National Forest System. Nothing in this section exempts the Secretary from any other requirement of the Forest and Rangeland Renewable Resources Planning Act (16 U.S.C. 1600 et seq.) or any other law: *Provided*, That if the Secretary is not acting expeditiously and in good faith, within the funding available, to revise a plan for a unit of the National Forest System, this section shall be void with respect to such plan and a court of proper jurisdiction may order completion of the plan on an accelerated basis.

PROHIBITION WITHIN NATIONAL MONUMENTS

SEC. 409. No funds provided in this Act may be expended to conduct preleasing, leasing and related activities under either the Mineral Leasing Act (30 U.S.C. 181 et seq.) or the Outer Continental Shelf Lands Act (43 U.S.C. 1331 et seq.) within the boundaries of a National Monument established pursuant to the Act of June 8, 1906 (16 U.S.C. 431 et seq.) as such boundary existed on January 20, 2001, except where such activities are allowed under the Presidential proclamation establishing such monument.

LIMITATION ON TAKINGS

SEC. 410. Unless otherwise provided herein, no funds appropriated in this Act for the acquisition of lands or interests in lands may be expended for the filing of declarations of taking or complaints in condemnation without the approval of the House and Senate Committees on Appropriations: *Provided*, That this provision shall not apply to funds appropriated to implement the Everglades National Park Protection and Expansion Act of 1989, or to funds appropriated for Federal assistance to the State of Florida to acquire lands for Everglades restoration purposes.

TIMBER SALE REQUIREMENTS

SEC. 411. No timber sale in Alaska's Region 10 shall be advertised if the indicated rate is deficit (defined as the value of the timber is not sufficient to cover all logging and stumpage costs and provide a normal profit and risk allowance under the Forest Service's appraisal process) when appraised using a residual value appraisal. The western red cedar timber from those sales which is surplus to the needs of the domestic processors in Alaska, shall be made available to domestic processors in the contiguous 48 United States at prevailing domestic prices. All additional western red cedar volume not sold to Alaska or contiguous 48 United States domestic processors may be exported to foreign markets at the election of the timber sale holder. All Alaska yellow cedar may be sold at prevailing export prices at the election of the timber sale holder.

PROHIBITION ON NO-BID CONTRACTS

SEC. 412. None of the funds appropriated or otherwise made available by this Act to executive branch agencies may be used to enter into any Federal contract unless such contract is entered into in accordance with the requirements of Chapter 33 of title 41, United States Code, or Chapter 137 of title 10, United States Code, and the Federal Acquisition Regulation, unless—

(1) Federal law specifically authorizes a contract to be entered into without regard for these requirements, including formula grants for States, or federally recognized Indian tribes; or

(2) such contract is authorized by the Indian Self-Determination and Education and Assistance Act (Public Law 93–638, 25 U.S.C. 450 et seq.) or by any other Federal laws that specifically authorize a contract within an Indian tribe as defined in section 4(e) of that Act (25 U.S.C. 450b(e)); or

(3) such contract was awarded prior to the date of enactment of this Act.

POSTING OF REPORTS

SEC. 413. (a) Any agency receiving funds made available in this Act, shall, subject to subsections (b) and (c), post on the public website of that agency any report required to be submitted by the Congress in this or any other Act, upon the determination by the head of the agency that it shall serve the national interest.

(b) Subsection (a) shall not apply to a report if—

(1) the public posting of the report compromises national security; or

(2) the report contains proprietary information.

(c) The head of the agency posting such report shall do so only after such report has been made available to the requesting Committee or Committees of Congress for no less than 45 days.

NATIONAL ENDOWMENT FOR THE ARTS GRANT GUIDELINES

SEC. 414. Of the funds provided to the National Endowment for the Arts—

(1) The Chairperson shall only award a grant to an individual if such grant is awarded to such individual for a literature fellowship, National Heritage Fellowship, or American Jazz Masters Fellowship.

(2) The Chairperson shall establish procedures to ensure that no funding provided through a grant, except a grant made to a State or local arts agency, or regional group, may be used to make a grant to any other organization or individual to conduct activity independent of the direct grant recipient. Nothing in this subsection shall prohibit payments made in exchange for goods and services.

(3) No grant shall be used for seasonal support to a group, unless the application is specific to the contents of the season, including identified programs and/or projects.

NATIONAL ENDOWMENT FOR THE ARTS PROGRAM PRIORITIES

SEC. 415. (a) In providing services or awarding financial assistance under the National Foundation on the Arts and the Humanities Act of 1965 from funds appropriated under this Act, the Chairperson of the National Endowment for the Arts shall ensure that priority is given to providing services or awarding financial assistance for projects, productions, workshops, or programs that serve underserved populations.

(b) In this section:

(1) The term ''underserved population'' means a population of individuals, including urban minorities, who have historically been outside the purview of arts and humanities programs due to factors such as a high incidence of income below the poverty line or to geographic isolation.

(2) The term ''poverty line'' means the poverty line (as defined by the Office of Management and Budget, and revised annually in accordance with section 673(2) of the Community Services Block Grant Act (42 U.S.C. 9902(2))) applicable to a family of the size involved.

(c) In providing services and awarding financial assistance under the National Foundation on the Arts and Humanities Act of

1965 with funds appropriated by this Act, the Chairperson of the National Endowment for the Arts shall ensure that priority is given to providing services or awarding financial assistance for projects, productions, workshops, or programs that will encourage public knowledge, education, understanding, and appreciation of the arts.

(d) With funds appropriated by this Act to carry out section 5 of the National Foundation on the Arts and Humanities Act of 1965—

(1) the Chairperson shall establish a grant category for projects, productions, workshops, or programs that are of national impact or availability or are able to tour several States;

(2) the Chairperson shall not make grants exceeding 15 percent, in the aggregate, of such funds to any single State, excluding grants made under the authority of paragraph (1);

(3) the Chairperson shall report to the Congress annually and by State, on grants awarded by the Chairperson in each grant category under section 5 of such Act; and

(4) the Chairperson shall encourage the use of grants to improve and support community-based music performance and education.

ARTS INDEMNITY LIMITATIONS

SEC. 416. Section 5 of the Arts and Artifacts Indemnity Act (20 U.S.C. 974) is amended—

(1) in subsection (b)—

(A) by striking ''$10,000,000,000'' and inserting ''$15,000,000,000''; and

(B) by striking ''$5,000,000,000'' and inserting ''$7,500,000,000''; and

(2) in subsection (c)—

(A) by striking ''$1,200,000,000'' and inserting ''$1,800,000,000''; and

(B) by striking ''$750,000,000'' and inserting ''$1,000,000,000''.

STATUS OF BALANCES OF APPROPRIATIONS

SEC. 417. The Department of the Interior, the Environmental Protection Agency, the Forest Service, and the Indian Health Service shall provide the Committees on Appropriations of the House of Representatives and Senate quarterly reports on the status of balances of appropriations including all uncommitted, committed, and unobligated funds in each program and activity.

REPORT ON USE OF CLIMATE CHANGE FUNDS

SEC. 418. Not later than 120 days after the date on which the President's fiscal year 2016 budget request is submitted to the Congress, the President shall submit a comprehensive report to the Committees on Appropriations of the House of Representatives and the Senate describing in detail all Federal agency funding, domestic and international, for climate change programs, projects, and activities in fiscal years 2014 and 2015, including an accounting of funding by agency with each agency identifying climate change programs, projects, and activities and associated costs by line item as presented in the President's Budget Appendix, and including citations and linkages where practicable to each strategic plan that is driving funding within each climate change program, project, and activity listed in the report.

PROHIBITION ON USE OF FUNDS

SEC. 419. Notwithstanding any other provision of law, none of the funds made available in this Act or any other Act may be used to promulgate or implement any regulation requiring the issuance of permits under title V of the Clean Air Act (42 U.S.C. 7661 et seq.) for carbon dioxide, nitrous oxide, water vapor, or methane emissions resulting from biological processes associated with livestock production.

GREENHOUSE GAS REPORTING RESTRICTIONS

SEC. 420. Notwithstanding any other provision of law, none of the funds made available in this or any other Act may be used to implement any provision in a rule, if that provision requires mandatory reporting of greenhouse gas emissions from manure management systems.

AMERICAN BATTLEFIELD PROTECTION PROGRAM GRANTS

SEC. 421. Section 7301(c) of Public Law 111–11 (16 U.S.C. 469k–1(c)) is amended by striking ''2014'' and inserting ''2021''.

RECREATION FEE

SEC. 422. Section 810 of the Federal Lands Recreation Enhancement Act (16 U.S.C. 6809) is amended by striking ''10 years after December 8, 2004'' and inserting ''on September 30, 2016''.

MODIFICATION OF AUTHORITIES

SEC. 423. (a) Section 8162(m)(3) of the Department of Defense Appropriations Act, 2000 (40 U.S.C. 8903 note; Public Law 106–79) is amended by striking ''September 30, 2014'' and inserting ''September 30, 2015''.

(b) For fiscal year 2015, the authority provided by the provisos under the heading ''Dwight D. Eisenhower Memorial Commission—Capital Construction'' in division E of Public Law 112–74 shall not be in effect.

USE OF AMERICAN IRON AND STEEL

SEC. 424. (a)(1) None of the funds made available by a State water pollution control revolving fund as authorized by section 1452 of the Safe Drinking Water Act (42 U.S.C. 300j–12) shall be used for a project for the construction, alteration, maintenance, or repair of a public water system or treatment works unless all of the iron and steel products used in the project are produced in the United States.

(2) In this section, the term ''iron and steel products'' means the following products made primarily of iron or steel: lined or unlined pipes and fittings, manhole covers and other municipal castings, hydrants, tanks, flanges, pipe clamps and restraints, valves, structural steel, reinforced precast concrete, and construction materials.

(b) Subsection (a) shall not apply in any case or category of cases in which the Administrator of the Environmental Protection Agency (in this section referred to as the ''Administrator'') finds that—

(1) applying subsection (a) would be inconsistent with the public interest;

(2) iron and steel products are not produced in the United States in sufficient and reasonably available quantities and of a satisfactory quality; or

(3) inclusion of iron and steel products produced in the United States will increase the cost of the overall project by more than 25 percent.

(c) If the Administrator receives a request for a waiver under this section, the Administrator shall make available to the public on an informal basis a copy of the request and information available to the Administrator concerning the request, and shall allow for informal public input on the request for at least 15 days prior to making a finding based on the request. The Administrator shall make the request and accompanying information available by electronic means, including on the official public Internet Web site of the Environmental Protection Agency.

(d) This section shall be applied in a manner consistent with United States obligations under international agreements.

(e) The Administrator may retain up to 0.25 percent of the funds appropriated in this Act for the Clean and Drinking Water State Revolving Funds for carrying out the provisions described in subsection (a)(1) for management and oversight of the requirements of this section.

(f) This section does not apply with respect to a project if a State agency approves the engineering plans and specifications for the project, in that agency's capacity to approve such plans and specifications prior to a project requesting bids, prior to the date of the enactment of this Act.

FUNDING PROHIBITION

SEC. 425. None of the funds made available by this or any other Act may be used to regulate the lead content of ammunition, ammunition components, or fishing tackle under the Toxic Substances Control Act (15 U.S.C. 2601 et seq.) or any other law.

This division may be cited as the ''Department of the Interior, Environment, and Related Agencies Appropriations Act, 2015''.

DIVISION G—DEPARTMENTS OF LABOR, HEALTH AND HUMAN SERVICES, AND EDUCATION, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015

TITLE I

DEPARTMENT OF LABOR

EMPLOYMENT AND TRAINING ADMINISTRATION

TRAINING AND EMPLOYMENT SERVICES

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses of the Workforce Innovation and Opportunity Act (referred to in this Act as ''WIOA''), the Second Chance Act of 2007, and the Women in Apprenticeship and Non-Traditional Occupations Act of 1992 (''WANTO Act''), $3,139,706,000, plus reimbursements, shall be available. Of the amounts provided:

(1) for grants to States for adult employment and training activities, youth activities, and dislocated worker employment and training activities, $2,624,108,000 as follows:

(A) $776,736,000 for adult employment and training activities, of which $64,736,000 shall be available for the period July 1, 2015, through June 30, 2016, and of which $712,000,000 shall be available for the period October 1, 2015 through June 30, 2016;

(B) $831,842,000 for youth activities, which shall be available for the period April 1, 2015 through June 30, 2016; and

(C) $1,015,530,000 for dislocated worker employment and training activities, of which $155,530,000 shall be available for the period July 1, 2015 through June 30, 2016, and of which $860,000,000 shall be available for the period October 1, 2015 through June 30, 2016: *Provided*, That notwithstanding section 128(a)(1) of the WIOA, the amount available to the Governor for statewide workforce investment activities shall not exceed 10 percent of the amount allotted to the State from each of the appropriations under the preceding subparagraphs;

(2) for federally administered programs, $429,520,000 as follows:

(A) $220,859,000 for the dislocated workers assistance national reserve, of which $20,859,000 shall be available for the period July 1, 2015 through September 30, 2016, and of which $200,000,000 shall be available for the period October 1, 2015 through September 30, 2016: *Provided*, That funds provided to carry out section 132(a)(2)(A) of the WIOA may be used to provide assistance to a State for statewide or local use in order to address cases where there have been worker dislocations across multiple sectors or across multiple local areas and such workers remain dislocated; coordinate the State workforce development plan with emerging economic development needs; and train such eligible dislocated workers: *Provided further*, That funds provided to carry out sections 168(b) and 169(c) of the WIOA may be used for technical assistance and demonstration projects,

respectively, that provide assistance to new entrants in the workforce and incumbent workers: *Provided further*, That notwithstanding section 168(b) of the WIOA and section 170(b) of the Workforce Investment Act of 1998 (referred to in this Act as ''WIA''), of the funds provided under this subparagraph, and the funds available from the appropriation under this subparagraph under the authority of the WIA in Public Law 113–76, the Secretary of Labor (referred to in this title as ''Secretary'') may reserve not more than 10 percent of such funds to provide technical assistance and carry out additional activities related to the transition to the WIOA;

(B) $46,082,000 for Native American programs, which shall be available for the period July 1, 2015 through June 30, 2016;

(C) $81,896,000 for migrant and seasonal farmworker programs under section 167 of the WIOA, including $75,885,000 for formula grants (of which not less than 70 percent shall be for employment and training services), $5,517,000 for migrant and seasonal housing (of which not less than 70 percent shall be for permanent housing), and $494,000 for other discretionary purposes, which shall be available for the period July 1, 2015 through June 30, 2016: *Provided*, That notwithstanding any other provision of law or related regulation, the Department of Labor shall take no action limiting the number or proportion of eligible participants receiving related assistance services or discouraging grantees from providing such services;

(D) $994,000 for carrying out the WANTO Act, which shall be available for the period July 1, 2015 through June 30, 2016; and

(E) $79,689,000 for YouthBuild activities as described in section 171 of the WIOA, which shall be available for the period April 1, 2015 through June 30, 2016;

(3) for national activities, $86,078,000, as follows:

(A) $82,078,000 for ex-offender activities, under the authority of section 169 of the WIOA and section 212 of the Second Chance Act of 2007, which shall be available for the period April 1, 2015 through June 30, 2016: *Provided*, That of this amount, $20,000,000 shall be for competitive grants to national and regional intermediaries for activities that prepare young ex-offenders and school dropouts for employment, with a priority for projects serving high-crime, high-poverty areas; and

(B) $4,000,000 for the Workforce Data Quality Initiative, under the authority of section 169 of the WIOA, which shall be available for the period July 1, 2015 through June 30, 2016.

JOB CORPS

(INCLUDING TRANSFER OF FUNDS)

To carry out subtitle C of title I of the WIOA, including Federal administrative expenses, the purchase and hire of passenger motor vehicles, the construction, alteration, and repairs of buildings and other facilities, and the purchase of real property for training centers as authorized by the WIOA, $1,688,155,000, plus reimbursements, as follows:

(1) $1,580,825,000 for Job Corps Operations, which shall be available for the period July 1, 2015 through June 30, 2016;

(2) $75,000,000 for construction, rehabilitation and acquisition of Job Corps Centers, which shall be available for the period July 1, 2015 through June 30, 2018, and which may include the acquisition, maintenance, and repair of major items of equipment: *Provided*, That the Secretary may transfer up to 15 percent of such funds to meet the operational needs of such centers or to achieve administrative efficiencies: *Provided further*, That any funds transferred pursuant to the preceding proviso shall not be available for obligation after June 30, 2016: *Provided further*, That the Committees on Appropriations of the House of Representatives and the Senate are notified at least 15 days in advance of any transfer; and

(3) $32,330,000 for necessary expenses of Job Corps, including expenses under the authority of the WIA, which shall be available for obligation for the period October 1, 2014 through September 30, 2015:

Provided, That no funds from any other appropriation shall be used to provide meal services at or for Job Corps centers: *Provided further*, That an entity operating a Job Corps center that is ranked among the top 5 percent of all Job Corps centers based on the Outcome Measurement System for program year 2013 shall be eligible to compete in any selection process to operate such center that is carried out during the period beginning on October 1, 2014 and ending on June 30, 2015.

COMMUNITY SERVICE EMPLOYMENT FOR OLDER AMERICANS

To carry out title V of the Older Americans Act of 1965 (referred to in this Act as ''OAA''), $434,371,000, which shall be available for the period July 1, 2015 through June 30, 2016, and may be recaptured and reobligated in accordance with section 517(c) of the OAA.

FEDERAL UNEMPLOYMENT BENEFITS AND ALLOWANCES

For payments during fiscal year 2015 of trade adjustment benefit payments and allowances under part I of subchapter B of chapter 2 of title II of the Trade Act of 1974, and section 246 of that Act; and for training, employment and case management services, allowances for job search and relocation, and related State administrative expenses under part II of subchapter B of chapter 2 of title II of the Trade Act of 1974, and including benefit payments, allowances, training, employment and case management services, and related State administration provided pursuant to section 231(a) and section 233(b) of the Trade Adjustment Assistance Extension Act of 2011, $710,600,000, together with such amounts as may be necessary to be charged to the subsequent appropriation for payments for any period subsequent to September 15, 2015.

STATE UNEMPLOYMENT INSURANCE AND EMPLOYMENT SERVICE OPERATIONS

For authorized administrative expenses, $81,566,000, together with not to exceed $3,495,584,000 which may be expended from the Employment Security Administration Account in the Unemployment Trust Fund (''the Trust Fund''), of which:

(1) $2,757,793,000 from the Trust Fund is for grants to States for the administration of State unemployment insurance laws as authorized under title III of the Social Security Act (including not less than $60,000,000 to conduct in-person reemployment and eligibility assessments and unemployment insurance improper payment reviews, and to provide reemployment services and referrals to training as appropriate, $10,000,000 for activities to address the misclassification of workers, and $3,000,000 for continued support of the Unemployment Insurance Integrity Center of Excellence), the administration of unemployment insurance for Federal employees and for ex-service members as authorized under 5 U.S.C. 8501–8523, and the administration of trade readjustment allowances, reemployment trade adjustment assistance, and alternative trade adjustment assistance under the Trade Act of 1974 and under sections 231(a) and 233(b) of the Trade Adjustment Assistance Extension Act of 2011, and shall be available for obligation by the States through December 31, 2015, except that funds used for automation acquisitions shall be available for Federal obligation through December 31, 2015, and for State obligation through September 30, 2017, or, if the automation acquisition is being carried out through consortia of States, for State obligation through September 30, 2020, and for expenditure through September 30, 2021, and funds for competitive grants awarded to States for improved operations, to conduct in-person assessments and reviews and provide reemployment services and referrals, and to address misclassification of workers shall be available for Federal obligation through December 31, 2015 and for obligation by the States through September 30, 2017, and funds used for unemployment insurance workloads experienced by the States through September 30, 2015 shall be available for Federal obligation through December 31, 2015: *Provided*, That funds provided under this heading for fiscal year 2011 through fiscal year 2014 for automation acquisitions that are being carried out by consortia of States shall be available for expenditure by the States for six fiscal years after the fiscal year in which the funds were obligated to the States;

(2) $12,892,000 from the Trust Fund is for national activities necessary to support the administration of the Federal-State unemployment insurance system;

(3) $642,771,000 from the Trust Fund, together with $21,413,000 from the General Fund of the Treasury, is for grants to States in accordance with section 6 of the Wagner-Peyser Act, and shall be available for Federal obligation for the period July 1, 2015 through June 30, 2016;

(4) $19,818,000 from the Trust Fund is for national activities of the Employment Service, including administration of the work opportunity tax credit under section 51 of the Internal Revenue Code of 1986, and the provision of technical assistance and staff training under the Wagner-Peyser Act;

(5) $62,310,000 from the Trust Fund is for the administration of foreign labor certifications and related activities under the Immigration and Nationality Act and related laws, of which $48,028,000 shall be available for the Federal administration of such activities, and $14,282,000 shall be available for grants to States for the administration of such activities; and

(6) $60,153,000 from the General Fund is to provide workforce information, national electronic tools, and one-stop system building under the Wagner-Peyser Act and shall be available for Federal obligation for the period July 1, 2015 through June 30, 2016:

Provided, That to the extent that the Average Weekly Insured Unemployment (''AWIU'') for fiscal year 2015 is projected by the Department of Labor to exceed 2,957,000, an additional $28,600,000 from the Trust Fund shall be available for obligation for every 100,000 increase in the AWIU level (including a pro rata amount for any increment less than 100,000) to carry out title III of the Social Security Act: *Provided further*, That funds appropriated in this Act that are allotted to a State to carry out activities under title III of the Social Security Act may be used by such State to assist other States in carrying out activities under such title III if the other States include areas that have suffered a major disaster declared by the President under the Robert T. Stafford Disaster Relief and Emergency Assistance Act: *Provided further*, That the Secretary may use funds appropriated for grants to States under title III of the Social Security Act to make payments on behalf of States for the use of the National Directory of New Hires under section 453(j)(8) of such Act: *Provided further*, That the Secretary may use funds appropriated for grants to States under title III of the Social Security Act to make payments on behalf of States to the entity operating the State Information Data Exchange

System: *Provided further*, That funds appropriated in this Act which are used to establish a national one-stop career center system, or which are used to support the national activities of the Federal-State unemployment insurance, employment service, or immigration programs, may be obligated in contracts, grants, or agreements with States and non-State entities: *Provided further*, That States awarded competitive grants for improved operations under title III of the Social Security Act, or awarded grants to support the national activities of the Federal-State unemployment insurance system, may award subgrants to other States under such grants, subject to the conditions applicable to the grants: *Provided further*, That funds appropriated under this Act for activities authorized under title III of the Social Security Act and the Wagner-Peyser Act may be used by States to fund integrated Unemployment Insurance and Employment Service automation efforts, notwithstanding cost allocation principles prescribed under the Office of Management and Budget Circular A–87: *Provided further*, That the Secretary, at the request of a State participating in a consortium with other States, may reallot funds allotted to such State under title III of the Social Security Act to other States participating in the consortium in order to carry out activities that benefit the administration of the unemployment compensation law of the State making the request: *Provided further*, That the Secretary may collect fees for the costs associated with additional data collection, analyses, and reporting services relating to the National Agricultural Workers Survey requested by State and local governments, public and private institutions of higher education, and non-profit organizations and may utilize such sums, in accordance with the provisions of 29 U.S.C. 9a, for the National Agricultural Workers Survey infrastructure, methodology, and data to meet the information collection and reporting needs of such entities, which shall be credited to this appropriation and shall remain available until September 30, 2016, for such purposes.

In addition, $20,000,000 from the Employment Security Administration Account of the Unemployment Trust Fund shall be available for in-person reemployment and eligibility assessments and unemployment insurance improper payment reviews and to provide reemployment services and referrals to training as appropriate, which shall be available for Federal obligations through December 31, 2015, and for State obligation through September 30, 2017.

ADVANCES TO THE UNEMPLOYMENT TRUST FUND AND OTHER FUNDS

For repayable advances to the Unemployment Trust Fund as authorized by sections 905(d) and 1203 of the Social Security Act, and to the Black Lung Disability Trust Fund as authorized by section 9501(c)(1) of the Internal Revenue Code of 1986; and for nonrepayable advances to the revolving fund established by section 901(e) of the Social Security Act, to the Unemployment Trust Fund as authorized by 5 U.S.C. 8509, and to the ''Federal Unemployment Benefits and Allowances'' account, such sums as may be necessary, which shall be available for obligation through September 30, 2016.

PROGRAM ADMINISTRATION

For expenses of administering employment and training programs, $104,577,000, together with not to exceed $49,982,000 which may be expended from the Employment Security Administration Account in the Unemployment Trust Fund.

EMPLOYEE BENEFITS SECURITY ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses for the Employee Benefits Security Administration, $181,000,000.

PENSION BENEFIT GUARANTY CORPORATION

PENSION BENEFIT GUARANTY CORPORATION FUND

The Pension Benefit Guaranty Corporation (''Corporation'') is authorized to make such expenditures, including financial assistance authorized by subtitle E of title IV of the Employee Retirement Income Security Act of 1974, within limits of funds and borrowing authority available to the Corporation, and in accord with law, and to make such contracts and commitments without regard to fiscal year limitations, as provided by 31 U.S.C. 9104, as may be necessary in carrying out the program, including associated administrative expenses, through September 30, 2015, for the Corporation: *Provided*, That none of the funds available to the Corporation for fiscal year 2015 shall be available for obligations for administrative expenses in excess of $415,394,000: *Provided further*, That to the extent that the number of new plan participants in plans terminated by the Corporation exceeds 100,000 in fiscal year 2015, an amount not to exceed an additional $9,200,000 shall be available through September 30, 2016, for obligation for administrative expenses for every 20,000 additional terminated participants: *Provided further*, That obligations in excess of the amounts provided in this paragraph may be incurred for unforeseen and extraordinary pretermination expenses or extraordinary multiemployer program related expenses after approval by the Office of Management and Budget and notification of the Committees on Appropriations of the House of Representatives and the Senate.

WAGE AND HOUR DIVISION

SALARIES AND EXPENSES

For necessary expenses for the Wage and Hour Division, including reimbursement to State, Federal, and local agencies and their employees for inspection services rendered, $227,500,000.

OFFICE OF LABOR-MANAGEMENT STANDARDS

SALARIES AND EXPENSES

For necessary expenses for the Office of Labor-Management Standards, $39,129,000.

OFFICE OF FEDERAL CONTRACT COMPLIANCE PROGRAMS

SALARIES AND EXPENSES

For necessary expenses for the Office of Federal Contract Compliance Programs, $106,476,000.

OFFICE OF WORKERS' COMPENSATION PROGRAMS

SALARIES AND EXPENSES

For necessary expenses for the Office of Workers' Compensation Programs, $110,823,000, together with $2,177,000 which may be expended from the Special Fund in accordance with sections 39(c), 44(d), and 44(j) of the Longshore and Harbor Workers' Compensation Act.

SPECIAL BENEFITS

(INCLUDING TRANSFER OF FUNDS)

For the payment of compensation, benefits, and expenses (except administrative expenses) accruing during the current or any prior fiscal year authorized by 5 U.S.C. 81; continuation of benefits as provided for under the heading ''Civilian War Benefits'' in the Federal Security Agency Appropriation Act, 1947; the Employees' Compensation Commission Appropriation Act, 1944; sections 4(c) and 5(f) of the War Claims Act of 1948; and 50 percent of the additional compensation and benefits required by section 10(h) of the Longshore and Harbor Workers' Compensation Act, $210,000,000, together with such amounts as may be necessary to be charged to the subsequent year appropriation for the payment of compensation and other benefits for any period subsequent to August 15 of the current year: *Provided*, That amounts appropriated may be used under 5 U.S.C. 8104 by the Secretary to reimburse an employer, who is not the employer at the time of injury, for portions of the salary of a re-employed, disabled beneficiary: *Provided further*, That balances of reimbursements unobligated on September 30, 2014, shall remain available until expended for the payment of compensation, benefits, and expenses: *Provided further*, That in addition there shall be transferred to this appropriation from the Postal Service and from any other corporation or instrumentality required under 5 U.S.C. 8147(c) to pay an amount for its fair share of the cost of administration, such sums as the Secretary determines to be the cost of administration for employees of such fair share entities through September 30, 2015: *Provided further*, That of those funds transferred to this account from the fair share entities to pay the cost of administration of the Federal Employees' Compensation Act, $60,334,000 shall be made available to the Secretary as follows:

(1) For enhancement and maintenance of automated data processing systems operations and telecommunications systems, $19,499,000;

(2) For automated workload processing operations, including document imaging, centralized mail intake, and medical bill processing, $22,968,000;

(3) For periodic roll disability management and medical review, $16,482,000;

(4) For program integrity, $1,385,000; and

(5) The remaining funds shall be paid into the Treasury as miscellaneous receipts:

Provided further, That the Secretary may require that any person filing a notice of injury or a claim for benefits under 5 U.S.C. 81, or the Longshore and Harbor Workers' Compensation Act, provide as part of such notice and claim, such identifying information (including Social Security account number) as such regulations may prescribe.

SPECIAL BENEFITS FOR DISABLED COAL MINERS

For carrying out title IV of the Federal Mine Safety and Health Act of 1977, as amended by Public Law 107–275, $77,262,000, to remain available until expended.

For making after July 31 of the current fiscal year, benefit payments to individuals under title IV of such Act, for costs incurred in the current fiscal year, such amounts as may be necessary.

For making benefit payments under title IV for the first quarter of fiscal year 2016, $21,000,000, to remain available until expended.

ADMINISTRATIVE EXPENSES, ENERGY EMPLOYEES OCCUPATIONAL ILLNESS COMPENSATION FUND

For necessary expenses to administer the Energy Employees Occupational Illness Compensation Program Act, $56,406,000, to remain available until expended: *Provided*, That the Secretary may require that any person filing a claim for benefits under the Act provide as part of such claim such identifying information (including Social Security account number) as may be prescribed.

BLACK LUNG DISABILITY TRUST FUND

(INCLUDING TRANSFER OF FUNDS)

Such sums as may be necessary from the Black Lung Disability Trust Fund (the ''Fund''), to remain available until expended, for payment of all benefits authorized by section 9501(d)(1), (2), (6), and (7) of the Internal

Revenue Code of 1986; and repayment of, and payment of interest on advances, as authorized by section 9501(d)(4) of that Act. In addition, the following amounts may be expended from the Fund for fiscal year 2015 for expenses of operation and administration of the Black Lung Benefits program, as authorized by section 9501(d)(5): not to exceed $33,321,000 for transfer to the Office of Workers' Compensation Programs, ''Salaries and Expenses''; not to exceed $30,403,000 for transfer to Departmental Management, ''Salaries and Expenses''; not to exceed $327,000 for transfer to Departmental Management, ''Office of Inspector General''; and not to exceed $356,000 for payments into miscellaneous receipts for the expenses of the Department of the Treasury.

OCCUPATIONAL SAFETY AND HEALTH ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses for the Occupational Safety and Health Administration, $552,787,000, including not to exceed $100,850,000 which shall be the maximum amount available for grants to States under section 23(g) of the Occupational Safety and Health Act (the ''Act''), which grants shall be no less than 50 percent of the costs of State occupational safety and health programs required to be incurred under plans approved by the Secretary under section 18 of the Act; and, in addition, notwithstanding 31 U.S.C. 3302, the Occupational Safety and Health Administration may retain up to $499,000 per fiscal year of training institute course tuition and fees, otherwise authorized by law to be collected, and may utilize such sums for occupational safety and health training and education: *Provided*, That notwithstanding 31 U.S.C. 3302, the Secretary is authorized, during the fiscal year ending September 30, 2015, to collect and retain fees for services provided to Nationally Recognized Testing Laboratories, and may utilize such sums, in accordance with the provisions of 29 U.S.C. 9a, to administer national and international laboratory recognition programs that ensure the safety of equipment and products used by workers in the workplace: *Provided further*, That none of the funds appropriated under this paragraph shall be obligated or expended to prescribe, issue, administer, or enforce any standard, rule, regulation, or order under the Act which is applicable to any person who is engaged in a farming operation which does not maintain a temporary labor camp and employs 10 or fewer employees: *Provided further*, That no funds appropriated under this paragraph shall be obligated or expended to administer or enforce any standard, rule, regulation, or order under the Act with respect to any employer of 10 or fewer employees who is included within a category having a Days Away, Restricted, or Transferred (''DART'') occupational injury and illness rate, at the most precise industrial classification code for which such data are published, less than the national average rate as such rates are most recently published by the Secretary, acting through the Bureau of Labor Statistics, in accordance with section 24 of the Act, except—

(1) to provide, as authorized by the Act, consultation, technical assistance, educational and training services, and to conduct surveys and studies;

(2) to conduct an inspection or investigation in response to an employee complaint, to issue a citation for violations found during such inspection, and to assess a penalty for violations which are not corrected within a reasonable abatement period and for any willful violations found;

(3) to take any action authorized by the Act with respect to imminent dangers;

(4) to take any action authorized by the Act with respect to health hazards;

(5) to take any action authorized by the Act with respect to a report of an employment accident which is fatal to one or more employees or which results in hospitalization of two or more employees, and to take any action pursuant to such investigation authorized by the Act; and

(6) to take any action authorized by the Act with respect to complaints of discrimination against employees for exercising rights under the Act:

Provided further, That the foregoing proviso shall not apply to any person who is engaged in a farming operation which does not maintain a temporary labor camp and employs 10 or fewer employees: *Provided further*, That $10,537,000 shall be available for Susan Harwood training grants.

MINE SAFETY AND HEALTH ADMINISTRATION

SALARIES AND EXPENSES

For necessary expenses for the Mine Safety and Health Administration, $375,887,000, including purchase and bestowal of certificates and trophies in connection with mine rescue and first-aid work, and the hire of passenger motor vehicles, including up to $2,000,000 for mine rescue and recovery activities and not less than $8,441,000 for state assistance grants: *Provided*, That notwithstanding 31 U.S.C. 3302, not to exceed $750,000 may be collected by the National Mine Health and Safety Academy for room, board, tuition, and the sale of training materials, otherwise authorized by law to be collected, to be available for mine safety and health education and training activities: *Provided further*, That notwithstanding 31 U.S.C. 3302, the Mine Safety and Health Administration is authorized to collect and retain up to $2,499,000 from fees collected for the approval and certification of equipment, materials, and explosives for use in mines, and may utilize such sums for such activities: *Provided further*, That the Secretary is authorized to accept lands, buildings, equipment, and other contributions from public and private sources and to prosecute projects in cooperation with other agencies, Federal, State, or private: *Provided further*, That the Mine Safety and Health Administration is authorized to promote health and safety education and training in the mining community through cooperative programs with States, industry, and safety associations: *Provided further*, That the Secretary is authorized to recognize the Joseph A. Holmes Safety Association as a principal safety association and, notwithstanding any other provision of law, may provide funds and, with or without reimbursement, personnel, including service of Mine Safety and Health Administration officials as officers in local chapters or in the national organization: *Provided further*, That any funds available to the Department of Labor may be used, with the approval of the Secretary, to provide for the costs of mine rescue and survival operations in the event of a major disaster.

BUREAU OF LABOR STATISTICS

SALARIES AND EXPENSES

For necessary expenses for the Bureau of Labor Statistics, including advances or reimbursements to State, Federal, and local agencies and their employees for services rendered, $527,212,000, together with not to exceed $65,000,000 which may be expended from the Employment Security Administration account in the Unemployment Trust Fund.

OFFICE OF DISABILITY EMPLOYMENT POLICY

SALARIES AND EXPENSES

For necessary expenses for the Office of Disability Employment Policy to provide leadership, develop policy and initiatives, and award grants furthering the objective of eliminating barriers to the training and employment of people with disabilities, $38,500,000.

DEPARTMENTAL MANAGEMENT

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses for Departmental Management, including the hire of three passenger motor vehicles, $337,621,000, together with not to exceed $308,000, which may be expended from the Employment Security Administration account in the Unemployment Trust Fund: *Provided*, That $64,825,000 for the Bureau of International Labor Affairs shall be available for obligation through December 31, 2015: *Provided further*, That funds available to the Bureau of International Labor Affairs may be used to administer or operate international labor activities, bilateral and multilateral technical assistance, and microfinance programs, by or through contracts, grants, subgrants and other arrangements: *Provided further*, That not more than $58,825,000 shall be for programs to combat exploitative child labor internationally and not less than $6,000,000 shall be used to implement model programs that address worker rights issues through technical assistance in countries with which the United States has free trade agreements or trade preference programs: *Provided further*, That $8,040,000 shall be used for program evaluation and shall be available for obligation through September 30, 2016: *Provided further*, That funds available for program evaluation may be transferred to any other appropriate account in the Department for such purpose: *Provided further*, That the Committees on Appropriations of the House of Representatives and the Senate are notified at least 15 days in advance of any transfer: *Provided further*, That the funds available to the Women's Bureau may be used for grants to serve and promote the interests of women in the workforce.

VETERANS EMPLOYMENT AND TRAINING

Not to exceed $231,872,000 may be derived from the Employment Security Administration account in the Unemployment Trust Fund to carry out the provisions of chapters 41, 42, and 43 of title 38, United States Code, of which:

(1) $175,000,000 is for Jobs for Veterans State grants under 38 U.S.C. 4102A(b)(5) to support disabled veterans' outreach program specialists under section 4103A of such title and local veterans' employment representatives under section 4104(b) of such title, and for the expenses described in section 4102A(b)(5)(C), which shall be available for obligation by the States through December 31, 2015 and not to exceed 3 percent for the necessary Federal expenditures for data systems and contract support to allow for the tracking of participant and performance information: *Provided*, That, in addition, such funds may be used to support such specialists and representatives in the provision of services to transitioning members of the Armed Forces who have participated in the Transition Assistance Program and have been identified as in need of intensive services, to members of the Armed Forces who are wounded, ill, or injured and receiving treatment in military treatment facilities or warrior transition units, and to the spouses or other family caregivers of such wounded, ill, or injured members;

(2) $14,000,000 is for carrying out the Transition Assistance Program under 38 U.S.C. 4113 and 10 U.S.C. 1144;

(3) $39,458,000 is for Federal administration of chapters 41, 42, and 43 of title 38, United States Code; and

(4) $3,414,000 is for the National Veterans' Employment and Training Services Institute under 38 U.S.C. 4109:

Provided, That the Secretary may reallocate among the appropriations provided under paragraphs (1) through (4) above an amount not to exceed 3 percent of the appropriation from which such reallocation is made.

In addition, from the General Fund of the Treasury, $38,109,000 is for carrying out programs to assist homeless veterans and veterans at risk of homelessness who are transitioning from certain institutions under sections 2021, 2021A, and 2023 of title 38, United States Code: *Provided*, That notwithstanding subsections (c)(3) and (d) of section 2023, the Secretary may award grants through September 30, 2015, to provide services under such section: *Provided further*, That services provided under section 2023 may include, in addition to services to the individuals described in subsection (e) of such section, services to veterans recently released from incarceration who are at risk of homelessness.

IT MODERNIZATION

For necessary expenses for Department of Labor centralized infrastructure technology investment activities related to support systems and modernization, $15,394,000.

OFFICE OF INSPECTOR GENERAL

For salaries and expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, $76,000,000, together with not to exceed $5,590,000 which may be expended from the Employment Security Administration account in the Unemployment Trust Fund.

GENERAL PROVISIONS

SEC. 101. None of the funds appropriated by this Act for the Job Corps shall be used to pay the salary and bonuses of an individual, either as direct costs or any proration as an indirect cost, at a rate in excess of Executive Level II.

(TRANSFER OF FUNDS)

SEC. 102. Not to exceed 1 percent of any discretionary funds (pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985) which are appropriated for the current fiscal year for the Department of Labor in this Act may be transferred between a program, project, or activity, but no such program, project, or activity shall be increased by more than 3 percent by any such transfer: *Provided*, That the transfer authority granted by this section shall not be used to create any new program or to fund any project or activity for which no funds are provided in this Act: *Provided further*, That the Committees on Appropriations of the House of Representatives and the Senate are notified at least 15 days in advance of any transfer.

SEC. 103. In accordance with Executive Order 13126, none of the funds appropriated or otherwise made available pursuant to this Act shall be obligated or expended for the procurement of goods mined, produced, manufactured, or harvested or services rendered, in whole or in part, by forced or indentured child labor in industries and host countries already identified by the United States Department of Labor prior to enactment of this Act.

SEC. 104. None of the funds made available to the Department of Labor for grants under section 414(c) of the American Competitiveness and Workforce Improvement Act of 1998 may be used for any purpose other than competitive grants for training individuals over the age of 16 who are not currently enrolled in school within a local educational agency in the occupations and industries for which employers are using H–1B visas to hire foreign workers, and the related activities necessary to support such training: *Provided*, That the preceding limitation shall not apply to funding provided pursuant to solicitations for grant applications issued prior to January 15, 2014.

SEC. 105. None of the funds made available by this Act under the heading ''Employment and Training Administration'' shall be used by a recipient or subrecipient of such funds to pay the salary and bonuses of an individual, either as direct costs or indirect costs, at a rate in excess of Executive Level II. This limitation shall not apply to vendors providing goods and services as defined in Office of Management and Budget Circular A–133. Where States are recipients of such funds, States may establish a lower limit for salaries and bonuses of those receiving salaries and bonuses from subrecipients of such funds, taking into account factors including the relative cost-of-living in the State, the compensation levels for comparable State or local government employees, and the size of the organizations that administer Federal programs involved including Employment and Training Administration programs.

(INCLUDING TRANSFER OF FUNDS)

SEC. 106. Notwithstanding section 102, the Secretary may transfer funds made available to the Employment and Training Administration by this Act, either directly or through a set-aside, for technical assistance services to grantees to ''Program Administration'' when it is determined that those services will be more efficiently performed by Federal employees: *Provided*, That this section shall not apply to section 171 of the WIOA.

(INCLUDING TRANSFER OF FUNDS)

SEC. 107. (a) The Secretary may reserve not more than 0.5 percent from each appropriation made available in this Act identified in subsection (b) in order to carry out evaluations of any of the programs or activities that are funded under such accounts. Any funds reserved under this section shall be transferred to ''Departmental Management'' for use by the Office of the Chief Evaluation Officer within the Department of Labor, and shall be available for obligation through September 30, 2016: *Provided*, That such funds shall only be available if the Chief Evaluation Officer of the Department of Labor submits a plan to the Committees on Appropriations of the House of Representatives and the Senate describing the evaluations to be carried out 15 days in advance of any transfer.

(b) The accounts referred to in subsection (a) are: ''Training and Employment Services'', ''Job Corps'', ''Community Service Employment for Older Americans'', ''State Unemployment Insurance and Employment Service Operations'', ''Employee Benefits Security Administration'', ''Office of Workers' Compensation Programs'', ''Wage and Hour Division'', ''Office of Federal Contract Compliance Programs'', ''Office of Labor Management Standards'', ''Occupational Safety and Health Administration'', ''Mine Safety and Health Administration'', funding made available to the ''Bureau of International Affairs'' and ''Women's Bureau'' within the ''Departmental Management, Salaries and Expenses'' account, and ''Veterans Employment and Training''.

SEC. 108. (a) FLEXIBILITY WITH RESPECT TO THE CROSSING OF H–2B NONIMMIGRANTS WORKING IN THE SEAFOOD INDUSTRY.—

(1) IN GENERAL.—Subject to paragraph (2), if a petition for H–2B nonimmigrants filed by an employer in the seafood industry is granted, the employer may bring the nonimmigrants described in the petition into the United States at any time during the 120-day period beginning on the start date for which the employer is seeking the services of the nonimmigrants without filing another petition.

(2) REQUIREMENTS FOR CROSSINGS AFTER 90TH DAY.—An employer in the seafood industry may not bring H–2B nonimmigrants into the United States after the date that is 90 days after the start date for which the employer is seeking the services of the nonimmigrants unless the employer—

(A) completes a new assessment of the local labor market by—

(i) listing job orders in local newspapers on 2 separate Sundays; and

(ii) posting the job opportunity on the appropriate Department of Labor Electronic Job Registry and at the employer's place of employment; and

(B) offers the job to an equally or better qualified United States worker who—

(i) applies for the job; and

(ii) will be available at the time and place of need.

(3) EXEMPTION FROM RULES WITH RESPECT TO STAGGERING.—The Secretary of Labor shall not consider an employer in the seafood industry who brings H–2B nonimmigrants into the United States during the 120-day period specified in paragraph (1) to be staggering the date of need in violation of section 655.20(d) of title 20, Code of Federal Regulations, or any other applicable provision of law.

(b) H–2B NONIMMIGRANTS DEFINED.—In this section, the term ''H–2B nonimmigrants'' means aliens admitted to the United States pursuant to section 101(a)(15)(H)(ii)(B) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(ii)(B)).

SEC. 109. None of the funds made available by this Act may be used by the Pension Benefit Guaranty Corporation to take any action in connection with any asserted liability under subsection (e) of section 4062 of the Employee Retirement Income Security Act of 1974: *Provided*, That this section shall cease to apply upon the enactment of any bill that amends such subsection.

(INCLUDING TRANSFER OF FUNDS)

SEC. 110. (a) The Secretary may reserve not more than 0.25 percent from each appropriation made available in this Act identified in subsection (b) in order to carry out information technology purchases and upgrades for any of the programs or activities that are funded under such accounts. Any funds reserved under this section shall be transferred to ''Departmental Management'' for use by the Office of the Chief Information Officer within the Department of Labor, and shall be available for obligation through September 30, 2016: *Provided*, That such funds shall only be available if the Chief Information Officer of the Department of Labor submits a plan to the Committees on Appropriations of the House of Representatives and the Senate describing the purchases and upgrades to be carried out and an explanation of why funds are not needed in the donor account 15 days in advance of any transfer.

(b) The accounts referred to in subsection (a) are: ''Employment and Training Administration Program Administration'', funding made available for Federal administration within ''Job Corps'', ''Foreign Labor Certification Program Administration'', ''Employee Benefits Security Administration'', ''Office of Workers' Compensation Programs'', ''Wage and Hour Division'', ''Office of Federal Contract Compliance Programs'', ''Office of Labor Management Standards'', ''Occupational Safety and Health Administration'', ''Mine Safety and Health Administration'', ''Veterans Employment and Training'', ''Bureau of Labor Statistics'', and ''Office of Disability Employment Policy''.

SEC. 111. (a) Section 7 of the Fair Labor Standards Act of 1938 (29 U.S.C. 207) shall be

applied as if the following text is part of such section:

''(s)(1) The provisions of this section shall not apply for a period of 2 years after the occurrence of a major disaster to any employee—

''(A) employed to adjust or evaluate claims resulting from or relating to such major disaster, by an employer not engaged, directly or through an affiliate, in underwriting, selling, or marketing property, casualty, or liability insurance policies or contracts;

''(B) who receives from such employer on average weekly compensation of not less than $591.00 per week or any minimum weekly amount established by the Secretary, whichever is greater, for the number of weeks such employee is engaged in any of the activities described in subparagraph (C); and

''(C) whose duties include any of the following:

''(i) interviewing insured individuals, individuals who suffered injuries or other damages or losses arising from or relating to a disaster, witnesses, or physicians;

''(ii) inspecting property damage or reviewing factual information to prepare damage estimates;

''(iii) evaluating and making recommendations regarding coverage or compensability of claims or determining liability or value aspects of claims;

''(iv) negotiating settlements; or

''(v) making recommendations regarding litigation.

''(2) The exemption in this subsection shall not affect the exemption provided by section 13(a)(1).

''(3) For purposes of this subsection—

''(A) the term 'major disaster' means any disaster or catastrophe declared or designated by any State or Federal agency or department;

''(B) the term 'employee employed to adjust or evaluate claims resulting from or relating to such major disaster' means an individual who timely secured or secures a license required by applicable law to engage in and perform the activities described in clauses (i) through (v) of paragraph (1)(C) relating to a major disaster, and is employed by an employer that maintains worker compensation insurance coverage or protection for its employees, if required by applicable law, and withholds applicable Federal, State, and local income and payroll taxes from the wages, salaries and any benefits of such employees; and

''(C) the term 'affiliate' means a company that, by reason of ownership or control of 25 percent or more of the outstanding shares of any class of voting securities of one or more companies, directly or indirectly, controls, is controlled by, or is under common control with, another company.''.

(b) This section shall be effective on the date of enactment of this Act.

This title may be cited as the ''Department of Labor Appropriations Act, 2015''.

TITLE II

DEPARTMENT OF HEALTH AND HUMAN SERVICES

Health Resources and Services Administration

PRIMARY HEALTH CARE

For carrying out titles II and III of the Public Health Service Act (referred to in this Act as the ''PHS Act'') with respect to primary health care and the Native Hawaiian Health Care Act of 1988, $1,491,522,000: *Provided*, That no more than $100,000 shall be available until expended for carrying out the provisions of section 224(o) of the PHS Act, including associated administrative expenses and relevant evaluations: *Provided further*, That no more than $99,893,000 shall be available until expended for carrying out the provisions of Public Law 104–73 and for expenses incurred by the Department of Health and Human Services (referred to in this Act as ''HHS'') pertaining to administrative claims made under such law: *Provided further*, That of funds provided for the Health Centers program, as defined by section 330 of the PHS Act, by this Act or any other Act for fiscal year 2015, not less than $165,000,000 shall be obligated in fiscal year 2015 as base grant adjustments, not less than $350,000,000 shall be obligated in fiscal year 2015 to support new access points including approved and unfunded applications from fiscal year 2014, grants to expand medical services, behavioral health, oral health, pharmacy, and vision services, and up to $150,000,000 shall be obligated in fiscal year 2015 for construction and capital improvement costs.

HEALTH WORKFORCE

For carrying out titles III, VII, and VIII of the PHS Act with respect to the health workforce, section 1128E of the Social Security Act, and the Health Care Quality Improvement Act of 1986, $751,600,000: *Provided*, That sections 747(c)(2), 751(j)(2), 762(k), and the proportional funding amounts in paragraphs (1) through (4) of section 756(e) of the PHS Act shall not apply to funds made available under this heading: *Provided further*, That for any program operating under section 751 of the PHS Act on or before January 1, 2009, the Secretary may hereafter waive any of the requirements contained in sections 751(d)(2)(A) and 751(d)(2)(B) of such Act for the full project period of a grant under such section: *Provided further*, That no funds shall be available for section 340G–1 of the PHS Act: *Provided further*, That fees collected for the disclosure of information under section 427(b) of the Health Care Quality Improvement Act of 1986 and sections 1128E(d)(2) and 1921 of the Social Security Act shall be sufficient to recover the full costs of operating the programs authorized by such sections and shall remain available until expended for the National Practitioner Data Bank: *Provided further*, That funds transferred to this account to carry out section 846 and subpart 3 of part D of title III of the PHS Act may be used to make prior year adjustments to awards made under such sections.

MATERNAL AND CHILD HEALTH

For carrying out titles III, XI, XII, and XIX of the PHS Act with respect to maternal and child health, title V of the Social Security Act, and section 712 of the American Jobs Creation Act of 2004, $851,738,000: *Provided*, That notwithstanding sections 502(a)(1) and 502(b)(1) of the Social Security Act, not more than $77,093,000 shall be available for carrying out special projects of regional and national significance pursuant to section 501(a)(2) of such Act and $10,276,000 shall be available for projects described in paragraphs (A) through (F) of section 501(a)(3) of such Act.

RYAN WHITE HIV/AIDS PROGRAM

For carrying out title XXVI of the PHS Act with respect to the Ryan White HIV/AIDS program, $2,318,781,000, of which $1,970,881,000 shall remain available to the Secretary through September 30, 2017, for parts A and B of title XXVI of the PHS Act, and of which not less than $900,313,000 shall be for State AIDS Drug Assistance Programs under the authority of section 2616 or 311(c) of such Act.

HEALTH CARE SYSTEMS

For carrying out titles III and XII of the PHS Act with respect to health care systems, and the Stem Cell Therapeutic and Research Act of 2005, $103,193,000, of which $122,000 shall be available until expended for facilities renovations at the Gillis W. Long Hansen's Disease Center.

RURAL HEALTH

For carrying out titles III and IV of the PHS Act with respect to rural health, section 427(a) of the Federal Coal Mine Health and Safety Act, the Cardiac Arrest Survival Act of 2000, and sections 711 and 1820 of the Social Security Act, $147,471,000, of which $41,609,000 from general revenues, notwithstanding section 1820(j) of the Social Security Act, shall be available for carrying out the Medicare rural hospital flexibility grants program: *Provided*, That of the funds made available under this heading for Medicare rural hospital flexibility grants, $14,942,000 shall be available for the Small Rural Hospital Improvement Grant Program for quality improvement and adoption of health information technology and up to $1,000,000 shall be to carry out section 1820(g)(6) of the Social Security Act, with funds provided for grants under section 1820(g)(6) available for the purchase and implementation of telehealth services, including pilots and demonstrations on the use of electronic health records to coordinate rural veterans care between rural providers and the Department of Veterans Affairs electronic health record system: *Provided further*, That notwithstanding section 338J(k) of the PHS Act, $9,511,000 shall be available for State Offices of Rural Health.

FAMILY PLANNING

For carrying out the program under title X of the PHS Act to provide for voluntary family planning projects, $286,479,000: *Provided*, That amounts provided to said projects under such title shall not be expended for abortions, that all pregnancy counseling shall be nondirective, and that such amounts shall not be expended for any activity (including the publication or distribution of literature) that in any way tends to promote public support or opposition to any legislative proposal or candidate for public office.

PROGRAM MANAGEMENT

For program support in the Health Resources and Services Administration, $154,000,000: *Provided*, That funds made available under this heading may be used to supplement program support funding provided under the headings ''Primary Health Care'', ''Health Workforce'', ''Maternal and Child Health'', ''Ryan White HIV/AIDS Program'', ''Health Care Systems'', and ''Rural Health''.

VACCINE INJURY COMPENSATION PROGRAM TRUST FUND

For payments from the Vaccine Injury Compensation Program Trust Fund (the ''Trust Fund''), such sums as may be necessary for claims associated with vaccine-related injury or death with respect to vaccines administered after September 30, 1988, pursuant to subtitle 2 of title XXI of the PHS Act, to remain available until expended: *Provided*, That for necessary administrative expenses, not to exceed $7,500,000 shall be available from the Trust Fund to the Secretary.

Centers for Disease Control and Prevention

IMMUNIZATION AND RESPIRATORY DISEASES

For carrying out titles II, III, XVII, and XXI, and section 2821 of the PHS Act, titles II and IV of the Immigration and Nationality Act, and section 501 of the Refugee Education Assistance Act, with respect to immunization and respiratory diseases, $573,105,000.

HIV/AIDS, VIRAL HEPATITIS, SEXUALLY TRANSMITTED DISEASES, AND TUBERCULOSIS PREVENTION

For carrying out titles II, III, XVII, and XXIII of the PHS Act with respect to HIV/

AIDS, viral hepatitis, sexually transmitted diseases, and tuberculosis prevention, $1,117,609,000.

EMERGING AND ZOONOTIC INFECTIOUS DISEASES

For carrying out titles II, III, and XVII, and section 2821 of the PHS Act, titles II and IV of the Immigration and Nationality Act, and section 501 of the Refugee Education Assistance Act, with respect to emerging and zoonotic infectious diseases, $352,990,000: *Provided*, That of the funds available under this heading, $30,000,000 shall be for the Advanced Molecular Detection initiative.

CHRONIC DISEASE PREVENTION AND HEALTH PROMOTION

For carrying out titles II, III, XI, XV, XVII, and XIX of the PHS Act with respect to chronic disease prevention and health promotion, $747,220,000: *Provided*, That funds appropriated under this account may be available for making grants under section 1509 of the PHS Act for not less than 21 States, tribes, or tribal organizations: *Provided further*, That of the funds available under this heading, $7,500,000 shall be available to continue and expand community specific extension and outreach programs to combat obesity in counties with the highest levels of obesity: *Provided further*, That of the funds provided under this heading, $80,000,000 shall be available for a program consisting of three-year grants of no less than $100,000 per year to non-governmental entities, local public health offices, school districts, local housing authorities, local transportation authorities or Indian tribes to implement evidence-based chronic disease prevention strategies: *Provided further*, That applicants for grants described in the previous proviso shall determine the population to be served and shall agree to work in collaboration with multi-sector partners: *Provided further*, That the proportional funding requirements under section 1503(a) of the PHS Act shall not apply to funds made available under this heading.

BIRTH DEFECTS, DEVELOPMENTAL DISABILITIES, DISABILITIES AND HEALTH

For carrying out titles II, III, XI, and XVII of the PHS Act with respect to birth defects, developmental disabilities, disabilities and health, $131,781,000.

PUBLIC HEALTH SCIENTIFIC SERVICES

For carrying out titles II, III, and XVII of the PHS Act with respect to health statistics, surveillance, health informatics, and workforce development, $481,061,000.

ENVIRONMENTAL HEALTH

For carrying out titles II, III, and XVII of the PHS Act with respect to environmental health, $166,404,000.

INJURY PREVENTION AND CONTROL

For carrying out titles II, III, and XVII of the PHS Act with respect to injury prevention and control, $170,447,000: *Provided*, That of the funds provided under this heading, $20,000,000 shall be available for an evidence-based prescription drug overdose prevention program.

NATIONAL INSTITUTE FOR OCCUPATIONAL SAFETY AND HEALTH

For carrying out titles II, III, and XVII of the PHS Act, sections 101, 102, 103, 201, 202, 203, 301, and 501 of the Federal Mine Safety and Health Act, section 13 of the Mine Improvement and New Emergency Response Act, and sections 20, 21, and 22 of the Occupational Safety and Health Act, with respect to occupational safety and health, $334,863,000.

ENERGY EMPLOYEES OCCUPATIONAL ILLNESS COMPENSATION PROGRAM

For necessary expenses to administer the Energy Employees Occupational Illness Compensation Program Act, $55,358,000, to remain available until expended: *Provided*, That this amount shall be available consistent with the provision regarding administrative expenses in section 151(b) of division B, title I of Public Law 106–554.

GLOBAL HEALTH

For carrying out titles II, III, and XVII of the PHS Act with respect to global health, $416,517,000, of which $128,421,000 for international HIV/AIDS shall remain available through September 30, 2016: *Provided*, That funds may be used for purchase and insurance of official motor vehicles in foreign countries: *Provided further*, That these funds are in addition to amounts provided in section 137 of Public Law 113–164.

PUBLIC HEALTH PREPAREDNESS AND RESPONSE

For carrying out titles II, III, and XVII of the PHS Act with respect to public health preparedness and response, and for expenses necessary to support activities related to countering potential biological, nuclear, radiological, and chemical threats to civilian populations, $1,352,551,000, of which $534,343,000 shall remain available until expended for the Strategic National Stockpile: *Provided*, That in the event the Director of the CDC activates the Emergency Operations Center, the Director of the CDC may detail CDC staff without reimbursement for up to 45 days to support the work of the CDC Emergency Operations Center, so long as the Director provides a notice to the Committees on Appropriations of the House of Representatives and the Senate within 15 days of the use of this authority and a full report within 30 days after use of this authority which includes the number of staff and funding level broken down by the originating center and number of days detailed: *Provided further*, That funds appropriated under this heading may be used to support a contract for the operation and maintenance of an aircraft in direct support of activities throughout CDC to ensure the agency is prepared to address public health preparedness emergencies.

BUILDINGS AND FACILITIES

For acquisition of real property, equipment, construction, and renovation of facilities, $10,000,000, which shall remain available until September 30, 2019: *Provided*, That funds previously set-aside by CDC for repair and upgrade of the Lake Lynn Experimental Mine and Laboratory shall be used to acquire a replacement mine safety research facility.

CDC-WIDE ACTIVITIES AND PROGRAM SUPPORT

(INCLUDING TRANSFER OF FUNDS)

For carrying out titles II, III, XVII and XIX, and section 2821 of the PHS Act and for cross-cutting activities and program support for activities funded in other appropriations included in this Act for the Centers for Disease Control and Prevention, $113,570,000: *Provided*, That paragraphs (1) through (3) of subsection (b) of section 2821 of the PHS Act shall not apply to funds appropriated under this heading and in all other accounts of the CDC: *Provided further*, That employees of CDC or the Public Health Service, both civilian and commissioned officers, detailed to States, municipalities, or other organizations under authority of section 214 of the PHS Act, or in overseas assignments, shall be treated as non-Federal employees for reporting purposes only and shall not be included within any personnel ceiling applicable to the Agency, Service, or HHS during the period of detail or assignment: *Provided further*, That CDC may use up to $10,000 from amounts appropriated to CDC in this Act for official reception and representation expenses when specifically approved by the Director of CDC: *Provided further*, That in addition, such sums as may be derived from authorized user fees, which shall be credited to the appropriation charged with the cost thereof: *Provided further*, That with respect to the previous proviso, authorized user fees from the Vessel Sanitation Program shall be available through September 30, 2016: *Provided further*, That of the funds made available under this heading and in all other accounts of CDC, up to $1,000 per eligible employee of CDC shall be made available until expended for Individual Learning Accounts.

NATIONAL INSTITUTES OF HEALTH

NATIONAL CANCER INSTITUTE

For carrying out section 301 and title IV of the PHS Act with respect to cancer, $4,950,396,000, of which up to $8,000,000 may be used for facilities repairs and improvements at the National Cancer Institute—Frederick Federally Funded Research and Development Center in Frederick, Maryland.

NATIONAL HEART, LUNG, AND BLOOD INSTITUTE

For carrying out section 301 and title IV of the PHS Act with respect to cardiovascular, lung, and blood diseases, and blood and blood products, $2,997,870,000.

NATIONAL INSTITUTE OF DENTAL AND CRANIOFACIAL RESEARCH

For carrying out section 301 and title IV of the PHS Act with respect to dental and craniofacial diseases, $399,886,000.

NATIONAL INSTITUTE OF DIABETES AND DIGESTIVE AND KIDNEY DISEASES

For carrying out section 301 and title IV of the PHS Act with respect to diabetes and digestive and kidney disease, $1,749,681,000.

NATIONAL INSTITUTE OF NEUROLOGICAL DISORDERS AND STROKE

For carrying out section 301 and title IV of the PHS Act with respect to neurological disorders and stroke, $1,605,205,000.

NATIONAL INSTITUTE OF ALLERGY AND INFECTIOUS DISEASES

For carrying out section 301 and title IV of the PHS Act with respect to allergy and infectious diseases, $4,358,841,000.

NATIONAL INSTITUTE OF GENERAL MEDICAL SCIENCES

For carrying out section 301 and title IV of the PHS Act with respect to general medical sciences, $2,371,476,000, of which $715,000,000 shall be from funds available under section 241 of the PHS Act: *Provided*, That not less than $273,325,000 is provided for the Institutional Development Awards program.

EUNICE KENNEDY SHRIVER NATIONAL INSTITUTE OF CHILD HEALTH AND HUMAN DEVELOPMENT

For carrying out section 301 and title IV of the PHS Act with respect to child health and human development, $1,286,571,000.

NATIONAL EYE INSTITUTE

For carrying out section 301 and title IV of the PHS Act with respect to eye diseases and visual disorders, $684,191,000.

NATIONAL INSTITUTE OF ENVIRONMENTAL HEALTH SCIENCES

For carrying out section 301 and title IV of the PHS Act with respect to environmental health sciences, $667,502,000.

NATIONAL INSTITUTE ON AGING

For carrying out section 301 and title IV of the PHS Act with respect to aging, $1,199,468,000.

NATIONAL INSTITUTE OF ARTHRITIS AND MUSCULOSKELETAL AND SKIN DISEASES

For carrying out section 301 and title IV of the PHS Act with respect to arthritis and musculoskeletal and skin diseases, $521,665,000.

NATIONAL INSTITUTE ON DEAFNESS AND OTHER COMMUNICATION DISORDERS

For carrying out section 301 and title IV of the PHS Act with respect to deafness and other communication disorders, $405,302,000.

NATIONAL INSTITUTE OF NURSING RESEARCH

For carrying out section 301 and title IV of the PHS Act with respect to nursing research, $140,953,000.

NATIONAL INSTITUTE ON ALCOHOL ABUSE AND ALCOHOLISM

For carrying out section 301 and title IV of the PHS Act with respect to alcohol abuse and alcoholism, $447,408,000.

NATIONAL INSTITUTE ON DRUG ABUSE

For carrying out section 301 and title IV of the PHS Act with respect to drug abuse, $1,028,614,000.

NATIONAL INSTITUTE OF MENTAL HEALTH

For carrying out section 301 and title IV of the PHS Act with respect to mental health, $1,463,036,000.

NATIONAL HUMAN GENOME RESEARCH INSTITUTE

For carrying out section 301 and title IV of the PHS Act with respect to human genome research, $499,356,000.

NATIONAL INSTITUTE OF BIOMEDICAL IMAGING AND BIOENGINEERING

For carrying out section 301 and title IV of the PHS Act with respect to biomedical imaging and bioengineering research, $330,192,000.

NATIONAL CENTER FOR COMPLEMENTARY AND INTEGRATIVE HEALTH

For carrying out section 301 and title IV of the PHS Act with respect to complementary and integrative health, $124,681,000: *Provided*, That these funds may be used to support the transition enacted in section 224 of this Act.

NATIONAL INSTITUTE ON MINORITY HEALTH AND HEALTH DISPARITIES

For carrying out section 301 and title IV of the PHS Act with respect to minority health and health disparities research, $269,154,000.

JOHN E. FOGARTY INTERNATIONAL CENTER

For carrying out the activities of the John E. Fogarty International Center (described in subpart 2 of part E of title IV of the PHS Act), $67,786,000.

NATIONAL LIBRARY OF MEDICINE

For carrying out section 301 and title IV of the PHS Act with respect to health information communications, $336,939,000: *Provided*, That of the amounts available for improvement of information systems, $4,000,000 shall be available until September 30, 2016: *Provided further*, That in fiscal year 2015, the National Library of Medicine may enter into personal services contracts for the provision of services in facilities owned, operated, or constructed under the jurisdiction of the National Institutes of Health (referred to in this title as ''NIH'').

NATIONAL CENTER FOR ADVANCING TRANSLATIONAL SCIENCES

For carrying out section 301 and title IV of the PHS Act with respect to translational sciences, $635,230,000: *Provided*, That up to $9,835,000 shall be available to implement section 480 of the PHS Act, relating to the Cures Acceleration Network: *Provided further*, That at least $474,746,000 is provided to the Clinical and Translational Sciences Awards program.

OFFICE OF THE DIRECTOR

(INCLUDING TRANSFER OF FUNDS)

For carrying out the responsibilities of the Office of the Director, NIH, $1,401,134,000, of which up to $25,000,000 may be used to carry out section 213 of this Act: *Provided*, That funding shall be available for the purchase of not to exceed 29 passenger motor vehicles for replacement only: *Provided further*, That all funds credited to the NIH Management Fund shall remain available for one fiscal year after the fiscal year in which they are deposited: *Provided further*, That $165,000,000 shall be for the National Children's Study (''NCS'') or research related to the Study's goals and mission, and any funds in excess of the estimated need shall be transferred to and merged with the accounts for the various Institutes and Centers to support activity related to the goals and objectives of the NCS: *Provided further*, That NIH shall submit a spend plan on the NCS's next phase to the Committees on Appropriations of the House of Representatives and the Senate not later than 90 days after the date of enactment of this Act: *Provided further*, That $533,039,000 shall be available for the Common Fund established under section 402A(c)(1) of the PHS Act: *Provided further*, That of the funds provided, $10,000 shall be for official reception and representation expenses when specifically approved by the Director of the NIH: *Provided further*, That the Office of AIDS Research within the Office of the Director of the NIH may spend up to $8,000,000 to make grants for construction or renovation of facilities as provided for in section 2354(a)(5)(B) of the PHS Act: *Provided further*, That NIH shall contract with the National Academy of Sciences for a Blue Ribbon Commission on Scientific Literacy and Standing: *Provided further*, That NIH shall submit to Congress an NIH-wide 5-year scientific strategic plan as outlined in sections 402(b)(3) and 402(b)(4) of the PHS Act no later than 1 year after enactment of this Act.

In addition to other funds appropriated for the Common Fund established under section 402A(c) of the PHS Act, $12,600,000 is appropriated to the Common Fund from the 10-year Pediatric Research Initiative Fund described in section 9008 of title 26, United States Code, for the purpose of carrying out section 402(b)(7)(B)(ii) of the PHS Act (relating to pediatric research), as authorized in the Gabriella Miller Kids First Research Act.

BUILDINGS AND FACILITIES

For the study of, construction of, renovation of, and acquisition of equipment for, facilities of or used by NIH, including the acquisition of real property, $128,863,000, to remain available through September 30, 2019.

SUBSTANCE ABUSE AND MENTAL HEALTH SERVICES ADMINISTRATION

MENTAL HEALTH

For carrying out titles III, V, and XIX of the PHS Act with respect to mental health, and the Protection and Advocacy for Individuals with Mental Illness Act, $1,045,936,000: *Provided*, That notwithstanding section 520A(f)(2) of the PHS Act, no funds appropriated for carrying out section 520A shall be available for carrying out section 1971 of the PHS Act: *Provided further*, That in addition to amounts provided herein, $21,039,000 shall be available under section 241 of the PHS Act to carry out subpart I of part B of title XIX of the PHS Act to fund section 1920(b) technical assistance, national data, data collection and evaluation activities, and further that the total available under this Act for section 1920(b) activities shall not exceed 5 percent of the amounts appropriated for subpart I of part B of title XIX: *Provided further*, That section 520E(b)(2) of the PHS Act shall not apply to funds appropriated in this Act for fiscal year 2015: *Provided further*, That of the amount appropriated under this heading, $45,887,000 shall be for the National Child Traumatic Stress Initiative as described in section 582 of the PHS Act: *Provided further*, That notwithstanding section 565(b)(1) of the PHS Act, technical assistance may be provided to a public entity to establish or operate a system of comprehensive community mental health services to children with a serious emotional disturbance, without regard to whether the public entity receives a grant under section 561(a) of such Act: *Provided further*, That States shall expend at least 5 percent of the amount each receives for carrying out section 1911 of the PHS Act to support evidence-based programs that address the needs of individuals with early serious mental illness, including psychotic disorders, regardless of the age of the individual at onset: *Provided further*, That none of the funds provided for section 1911 of the PHS Act shall be subject to section 241 of such Act.

SUBSTANCE ABUSE TREATMENT

For carrying out titles III, V, and XIX of the PHS Act with respect to substance abuse treatment and section 1922(a) of the PHS Act with respect to substance abuse prevention, $2,102,658,000: *Provided*, That in addition to amounts provided herein, the following amounts shall be available under section 241 of the PHS Act: (1) $79,200,000 to carry out subpart II of part B of title XIX of the PHS Act to fund section 1935(b) technical assistance, national data, data collection and evaluation activities, and further that the total available under this Act for section 1935(b) activities shall not exceed 5 percent of the amounts appropriated for subpart II of part B of title XIX; and (2) $2,000,000 to evaluate substance abuse treatment programs: *Provided further*, That none of the funds provided for section 1921 of the PHS Act shall be subject to section 241 of such Act.

SUBSTANCE ABUSE PREVENTION

For carrying out titles III and V of the PHS Act with respect to substance abuse prevention, $175,219,000.

HEALTH SURVEILLANCE AND PROGRAM SUPPORT

For program support and cross-cutting activities that supplement activities funded under the headings ''Mental Health'', ''Substance Abuse Treatment'', and ''Substance Abuse Prevention'' in carrying out titles III, V, and XIX of the PHS Act and the Protection and Advocacy for Individuals with Mental Illness Act in the Substance Abuse and Mental Health Services Administration, $150,232,000: *Provided*, That in addition to amounts provided herein, $31,428,000 shall be available under section 241 of the PHS Act to supplement funds available to carry out national surveys on drug abuse and mental health, to collect and analyze program data, and to conduct public awareness and technical assistance activities: *Provided further*, That, in addition, fees may be collected for the costs of publications, data, data tabulations, and data analysis completed under title V of the PHS Act and provided to a public or private entity upon request, which shall be credited to this appropriation and shall remain available until expended for such purposes: *Provided further*, That amounts made available in this Act for carrying out section 501(m) of the PHS Act shall remain available through September 30, 2016: *Provided further*, That funds made available under this heading may be used to supplement program support funding provided under the headings ''Mental Health'', ''Substance Abuse Treatment'', and ''Substance Abuse Prevention''.

AGENCY FOR HEALTHCARE RESEARCH AND QUALITY

HEALTHCARE RESEARCH AND QUALITY

For carrying out titles III and IX of the PHS Act, part A of title XI of the Social Security Act, and section 1013 of the Medicare Prescription Drug, Improvement, and Modernization Act of 2003, $363,698,000: *Provided*, That section 947(c) of the PHS Act shall not apply in fiscal year 2015: *Provided further*, That in addition, amounts received from Freedom of Information Act fees, reimbursable and interagency agreements, and the sale of data shall be credited to this appropriation and shall remain available until September 30, 2016.

CENTERS FOR MEDICARE AND MEDICAID SERVICES

GRANTS TO STATES FOR MEDICAID

For carrying out, except as otherwise provided, titles XI and XIX of the Social Security Act, $234,608,916,000, to remain available until expended.

For making, after May 31, 2015, payments to States under title XIX or in the case of section 1928 on behalf of States under title XIX of the Social Security Act for the last quarter of fiscal year 2015 for unanticipated costs incurred for the current fiscal year, such sums as may be necessary.

For making payments to States or in the case of section 1928 on behalf of States under title XIX of the Social Security Act for the first quarter of fiscal year 2016, $113,272,140,000, to remain available until expended.

Payment under such title XIX may be made for any quarter with respect to a State plan or plan amendment in effect during such quarter, if submitted in or prior to such quarter and approved in that or any subsequent quarter.

PAYMENTS TO HEALTH CARE TRUST FUNDS

For payment to the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund, as provided under sections 217(g), 1844, and 1860D–16 of the Social Security Act, sections 103(c) and 111(d) of the Social Security Amendments of 1965, section 278(d)(3) of Public Law 97–248, and for administrative expenses incurred pursuant to section 201(g) of the Social Security Act, $259,212,000,000.

In addition, for making matching payments under section 1844 and benefit payments under section 1860D–16 of the Social Security Act that were not anticipated in budget estimates, such sums as may be necessary.

PROGRAM MANAGEMENT

For carrying out, except as otherwise provided, titles XI, XVIII, XIX, and XXI of the Social Security Act, titles XIII and XXVII of the PHS Act, the Clinical Laboratory Improvement Amendments of 1988, and other responsibilities of the Centers for Medicare and Medicaid Services, not to exceed $3,669,744,000, to be transferred from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund, as authorized by section 201(g) of the Social Security Act; together with all funds collected in accordance with section 353 of the PHS Act and section 1857(e)(2) of the Social Security Act, funds retained by the Secretary pursuant to section 302 of the Tax Relief and Health Care Act of 2006; and such sums as may be collected from authorized user fees and the sale of data, which shall be credited to this account and remain available until September 30, 2020: *Provided*, That all funds derived in accordance with 31 U.S.C. 9701 from organizations established under title XIII of the PHS Act shall be credited to and available for carrying out the purposes of this appropriation: *Provided further*, That the Secretary is directed to collect fees in fiscal year 2015 from Medicare Advantage organizations pursuant to section 1857(e)(2) of the Social Security Act and from eligible organizations with risk-sharing contracts under section 1876 of that Act pursuant to section 1876(k)(4)(D) of that Act.

HEALTH CARE FRAUD AND ABUSE CONTROL ACCOUNT

In addition to amounts otherwise available for program integrity and program management, $672,000,000, to remain available through September 30, 2016, to be transferred from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund, as authorized by section 201(g) of the Social Security Act, of which $477,120,000 shall be for the Medicare Integrity Program at the Centers for Medicare and Medicaid Services, including administrative costs, to conduct oversight activities for Medicare Advantage under Part C and the Medicare Prescription Drug Program under Part D of the Social Security Act and for activities described in section 1893(b) of such Act, of which $67,200,000 shall be for the Department of Health and Human Services Office of Inspector General to carry out fraud and abuse activities authorized by section 1817(k)(3) of such Act, of which $67,200,000 shall be for the Medicaid and Children's Health Insurance Program (''CHIP'') program integrity activities, and of which $60,480,000 shall be for the Department of Justice to carry out fraud and abuse activities authorized by section 1817(k)(3) of such Act: *Provided*, That the report required by section 1817(k)(5) of the Social Security Act for fiscal year 2015 shall include measures of the operational efficiency and impact on fraud, waste, and abuse in the Medicare, Medicaid, and CHIP programs for the funds provided by this appropriation: *Provided further*, That of the amount provided under this heading, $311,000,000 is provided to meet the terms of section 251(b)(2)(C)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985, as amended, and $361,000,000 is additional new budget authority specified for purposes of section 251(b)(2)(C) of such Act.

ADMINISTRATION FOR CHILDREN AND FAMILIES

PAYMENTS TO STATES FOR CHILD SUPPORT ENFORCEMENT AND FAMILY SUPPORT PROGRAMS

For carrying out, except as otherwise provided, titles I, IV–D, X, XI, XIV, and XVI of the Social Security Act and the Act of July 5, 1960, $2,438,523,000, to remain available until expended; and for such purposes for the first quarter of fiscal year 2016, $1,160,000,000, to remain available until expended.

For carrying out, after May 31 of the current fiscal year, except as otherwise provided, titles I, IV–D, X, XI, XIV, and XVI of the Social Security Act and the Act of July 5, 1960, for the last 3 months of the current fiscal year for unanticipated costs, incurred for the current fiscal year, such sums as may be necessary.

LOW INCOME HOME ENERGY ASSISTANCE

For making payments under subsections (b) and (d) of section 2602 of the Low Income Home Energy Assistance Act of 1981, $3,390,304,000: *Provided*, That all but $491,000,000 of this amount shall be allocated as though the total appropriation for such payments for fiscal year 2015 was less than $1,975,000,000: *Provided further*, That notwithstanding section 2609A(a), of the amounts appropriated under section 2602(b), not more than $2,988,000 of such amounts may be reserved by the Secretary for technical assistance, training, and monitoring of program activities for compliance with internal controls, policies and procedures and may, in addition to the authorities provided in section 2609A(a)(1), use such funds through contracts with private entities that do not qualify as nonprofit organizations.

REFUGEE AND ENTRANT ASSISTANCE

For necessary expenses for refugee and entrant assistance activities authorized by section 414 of the Immigration and Nationality Act and section 501 of the Refugee Education Assistance Act of 1980, and for carrying out section 462 of the Homeland Security Act of 2002, section 235 of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008, the Trafficking Victims Protection Act of 2000 (''TVPA''), section 203 of the Trafficking Victims Protection Reauthorization Act of 2005, and the Torture Victims Relief Act of 1998, $1,559,884,000, of which $1,533,394,000 shall remain available through September 30, 2017 for carrying out such sections 414, 501, 462, and 235: *Provided*, That amounts available under this heading to carry out such section 203 and the TVPA shall also be available for research and evaluation with respect to activities under those authorities: *Provided further*, That the limitation in section 206 of this Act regarding transfers increasing any appropriation shall apply to transfers to appropriations under this heading by substituting ''10 percent'' for ''3 percent''.

PAYMENTS TO STATES FOR THE CHILD CARE AND DEVELOPMENT BLOCK GRANT

For carrying out the Child Care and Development Block Grant Act of 1990 (''CCDBG Act''), $2,435,000,000 shall be used to supplement, not supplant State general revenue funds for child care assistance for low-income families: *Provided*, That $19,357,000 shall be available for child care resource and referral and school-aged child care activities, of which $996,000 shall be available to the Secretary for a competitive grant for the operation of a national toll free referral line and Web site to develop and disseminate child care consumer education information for parents and help parents access child care in their local community: *Provided further*, That, in addition to the amounts required to be reserved by the States under section 658G of the CCDBG Act, $305,906,000 shall be reserved by the States for activities authorized under section 658G, of which $112,187,000 shall be for activities that improve the quality of infant and toddler care: *Provided further*, That $9,851,000 shall be for use by the Secretary for child care research, demonstration, and evaluation activities: *Provided further*, That technical assistance under section 658I(a)(3) of such Act may be provided directly, or through the use of contracts, grants, cooperative agreements, or interagency agreements.

SOCIAL SERVICES BLOCK GRANT

For making grants to States pursuant to section 2002 of the Social Security Act, $1,700,000,000: *Provided*, That notwithstanding subparagraph (B) of section 404(d)(2) of such Act, the applicable percent specified under such subparagraph for a State to carry out State programs pursuant to title XX–A of such Act shall be 10 percent.

CHILDREN AND FAMILIES SERVICES PROGRAMS

For carrying out, except as otherwise provided, the Runaway and Homeless Youth Act, the Head Start Act, the Child Abuse Prevention and Treatment Act, sections 303 and 313 of the Family Violence Prevention and Services Act, the Native American Programs Act of 1974, title II of the Child Abuse Prevention and Treatment and Adoption Reform Act of 1978 (adoption opportunities), the Abandoned Infants Assistance Act of 1988, part B–1 of title IV and sections 413, 1110, and 1115 of the Social Security Act; for making payments under the Community Services Block Grant Act (''CSBG Act''), sections 473B and 477(i) of the Social Security Act, and the Assets for Independence Act; for necessary administrative expenses to carry out such Acts and titles I, IV, V, X, XI, XIV, XVI, and XX of the Social Security Act, the Act of July 5, 1960, the Low Income Home Energy Assistance Act of 1981, title IV of the Immigration and Nationality Act, and section 501 of the Refugee Education Assistance Act of 1980; and for the administration of prior year obligations made by the Administration for Children and Families under the Developmental Disabilities Assistance and Bill of Rights Act and the Help America Vote Act of 2002, $10,346,115,000, of which $37,943,000, to remain available through September 30, 2016, shall be for grants to States

for adoption incentive payments, as authorized by section 473A of the Social Security Act and may be made for adoptions completed before September 30, 2015: *Provided*, That $8,598,095,000 shall be for making payments under the Head Start Act: *Provided further*, That of the amount in the previous proviso, $8,073,095,000 shall be available for payments under section 640 of the Head Start Act: *Provided further*, That of the amount provided for making payments under the Head Start Act, $25,000,000 shall be available for allocation by the Secretary to supplement activities described in paragraphs (7)(B) and (9) of section 641(c) of such Act under the Designation Renewal System, established under the authority of sections 641(c)(7), 645A(b)(12) and 645A(d) of such Act: *Provided further*, That amounts allocated to Head Start grantees at the discretion of the Secretary to supplement activities pursuant to the previous proviso shall not be included in the calculation of the ''base grant'' in subsequent fiscal years, as such term is used in section 640(a)(7)(A) of the Head Start Act: *Provided further*, That notwithstanding section 640 of the Head Start Act, of the amount provided for making payments under the Head Start Act, and in addition to funds otherwise available under section 640 for such purposes, $500,000,000 shall be available through March 31, 2016 for Early Head Start programs as described in section 645A of such Act, for conversion of Head Start services to Early Head Start services as described in section 645(a)(5)(A) of such Act, and for discretionary grants for high quality infant and toddler care through Early Head Start-Child Care Partnerships, to entities defined as eligible under section 645A(d) of such Act, with such funds in this Act and Public Law 113–76 not included in the calculation of the ''base grant'' for the current or any subsequent fiscal year as such term is used in section 640(a)(7)(A) of the Head Start Act, and, notwithstanding section 645A(c)(2) of such Act, these funds are available to serve children under age 4: *Provided further*, That of the amount made available in the immediately preceding proviso, up to $10,000,000 shall be available for the Federal costs of administration and evaluation activities of the program described in such proviso: *Provided further*, That $710,383,000 shall be for making payments under the CSBG Act: *Provided further*, That $36,733,000 shall be for sections 680 and 678E(b)(2) of the CSBG Act, of which not less than $29,883,000 shall be for section 680(a)(2) and not less than $6,500,000 shall be for section 680(a)(3)(B) of such Act: *Provided further*, That to the extent Community Services Block Grant funds are distributed as grant funds by a State to an eligible entity as provided under the CSBG Act, and have not been expended by such entity, they shall remain with such entity for carryover into the next fiscal year for expenditure by such entity consistent with program purposes: *Provided further*, That the Secretary shall establish procedures regarding the disposition of intangible assets and program income that permit such assets acquired with, and program income derived from, grant funds authorized under section 680 of the CSBG Act to become the sole property of such grantees after a period of not more than 12 years after the end of the grant period for any activity consistent with section 680(a)(2)(A) of the CSBG Act: *Provided further*, That intangible assets in the form of loans, equity investments and other debt instruments, and program income may be used by grantees for any eligible purpose consistent with section 680(a)(2)(A) of the CSBG Act: *Provided further*, That these procedures shall apply to such grant funds made available after November 29, 1999: *Provided further*, That funds appropriated for section 680(a)(2) of the CSBG Act shall be available for financing construction and rehabilitation and loans or investments in private business enterprises owned by community development corporations: *Provided further*, That section 303(a)(2)(A)(i) of the Family Violence Prevention and Services Act shall not apply to amounts provided herein: *Provided further*, That $1,864,000 shall be for a human services case management system for federally declared disasters, to include a comprehensive national case management contract and Federal costs of administering the system: *Provided further*, That up to $2,000,000 shall be for improving the Public Assistance Reporting Information System, including grants to States to support data collection for a study of the system's effectiveness.

PROMOTING SAFE AND STABLE FAMILIES

For carrying out, except as otherwise provided, section 436 of the Social Security Act, $345,000,000 and, for carrying out, except as otherwise provided, section 437 of such Act, $59,765,000.

PAYMENTS FOR FOSTER CARE AND PERMANENCY

For carrying out, except as otherwise provided, title IV–E of the Social Security Act, $4,832,000,000.

For carrying out, except as otherwise provided, title IV–E of the Social Security Act, for the first quarter of fiscal year 2016, $2,300,000,000.

For carrying out, after May 31 of the current fiscal year, except as otherwise provided, section 474 of title IV–E of the Social Security Act, for the last 3 months of the current fiscal year for unanticipated costs, incurred for the current fiscal year, such sums as may be necessary.

ADMINISTRATION FOR COMMUNITY LIVING

AGING AND DISABILITY SERVICES PROGRAMS

(INCLUDING TRANSFER OF FUNDS)

For carrying out, to the extent not otherwise provided, the OAA, titles III and XXIX of the PHS Act, section 119 of the Medicare Improvements for Patients and Providers Act of 2008, title XX–B of the Social Security Act, the Developmental Disabilities Assistance and Bill of Rights Act, parts 2 and 5 of subtitle D of title II of the Help America Vote Act of 2002, and for Department-wide coordination of policy and program activities that assist individuals with disabilities, $1,621,141,000, together with $52,115,000 to be transferred from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund to carry out section 4360 of the Omnibus Budget Reconciliation Act of 1990: *Provided*, That amounts appropriated under this heading may be used for grants to States under section 361 of the OAA only for disease prevention and health promotion programs and activities which have been demonstrated through rigorous evaluation to be evidence-based and effective: *Provided further*, That none of the funds provided shall be used to carry out sections 1701 and 1703 of the PHS Act (with respect to chronic disease self-management activity grants), except that such funds may be used for necessary expenses associated with administering any such grants awarded prior to the date of the enactment of this Act: *Provided further*, That notwithstanding any other provision of this Act, funds made available under this heading to carry out section 311 of the OAA may be transferred to the Secretary of Agriculture in accordance with such section.

OFFICE OF THE SECRETARY

GENERAL DEPARTMENTAL MANAGEMENT

For necessary expenses, not otherwise provided, for general departmental management, including hire of six passenger motor vehicles, and for carrying out titles III, XVII, XXI, and section 229 of the PHS Act, the United States-Mexico Border Health Commission Act, and research studies under section 1110 of the Social Security Act, $448,034,000, together with $64,828,000 from the amounts available under section 241 of the PHS Act to carry out national health or human services research and evaluation activities: *Provided*, That of this amount, $52,224,000 shall be for minority AIDS prevention and treatment activities: *Provided further*, That of the funds made available under this heading, $101,000,000 shall be for making competitive contracts and grants to public and private entities to fund medically accurate and age appropriate programs that reduce teen pregnancy and for the Federal costs associated with administering and evaluating such contracts and grants, of which not more than 10 percent of the available funds shall be for training and technical assistance, evaluation, outreach, and additional program support activities, and of the remaining amount 75 percent shall be for replicating programs that have been proven effective through rigorous evaluation to reduce teenage pregnancy, behavioral risk factors underlying teenage pregnancy, or other associated risk factors, and 25 percent shall be available for research and demonstration grants to develop, replicate, refine, and test additional models and innovative strategies for preventing teenage pregnancy: *Provided further*, That of the amounts provided under this heading from amounts available under section 241 of the PHS Act, $6,800,000 shall be available to carry out evaluations (including longitudinal evaluations) of teenage pregnancy prevention approaches: *Provided further*, That of the funds made available under this heading, $1,750,000 is for strengthening the Department's acquisition workforce capacity and capabilities: *Provided further*, That with respect to the previous proviso, such funds shall be available for training, recruiting, retaining, and hiring members of the acquisition workforce as defined by 41 U.S.C. 1703, for information technology in support of acquisition workforce effectiveness and for management solutions to improve acquisition management: *Provided further*, That of the funds made available under this heading, $5,000,000 shall be for making competitive grants to provide abstinence education (as defined by section 510(b)(2)(A)–(H) of the Social Security Act) to adolescents, and for Federal costs of administering the grant: *Provided further*, That grants made under the authority of section 510(b)(2)(A)–(H) of the Social Security Act shall be made only to public and private entities that agree that, with respect to an adolescent to whom the entities provide abstinence education under such grant, the entities will not provide to that adolescent any other education regarding sexual conduct, except that, in the case of an entity expressly required by law to provide health information or services the adolescent shall not be precluded from seeking health information or services from the entity in a different setting than the setting in which abstinence education was provided: *Provided further*, That funds provided in this Act for embryo adoption activities may be used to provide to individuals adopting embryos, through grants and other mechanisms, medical and administrative services deemed necessary for such adoptions: *Provided further*, That such services shall be provided consistent with 42 CFR 59.5(a)(4).

OFFICE OF MEDICARE HEARINGS AND APPEALS

For expenses necessary for the Office of Medicare Hearings and Appeals, $87,381,000, to be transferred in appropriate part from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund.

OFFICE OF THE NATIONAL COORDINATOR FOR HEALTH INFORMATION TECHNOLOGY

For expenses necessary for the Office of the National Coordinator for Health Information Technology, including grants, contracts, and cooperative agreements for the development and advancement of interoperable health information technology, $60,367,000.

OFFICE OF INSPECTOR GENERAL

For expenses necessary for the Office of Inspector General, including the hire of passenger motor vehicles for investigations, in carrying out the provisions of the Inspector General Act of 1978, $71,000,000: *Provided*, That of such amount, necessary sums shall be available for providing protective services to the Secretary and investigating non-payment of child support cases for which non-payment is a Federal offense under 18 U.S.C. 228.

OFFICE FOR CIVIL RIGHTS

For expenses necessary for the Office for Civil Rights, $38,798,000.

RETIREMENT PAY AND MEDICAL BENEFITS FOR COMMISSIONED OFFICERS

For retirement pay and medical benefits of Public Health Service Commissioned Officers as authorized by law, for payments under the Retired Serviceman's Family Protection Plan and Survivor Benefit Plan, and for medical care of dependents and retired personnel under the Dependents' Medical Care Act, such amounts as may be required during the current fiscal year.

PUBLIC HEALTH AND SOCIAL SERVICES EMERGENCY FUND

For expenses necessary to support activities related to countering potential biological, nuclear, radiological, chemical, and cybersecurity threats to civilian populations, and for other public health emergencies, $848,154,000, of which $415,000,000 shall remain available through September 30, 2016, for expenses necessary to support advanced research and development pursuant to section 319L of the PHS Act, and other administrative expenses of the Biomedical Advanced Research and Development Authority: *Provided*, That funds provided under this heading for the purpose of acquisition of security countermeasures shall be in addition to any other funds available for such purpose: *Provided further*, That products purchased with funds provided under this heading may, at the discretion of the Secretary, be deposited in the Strategic National Stockpile pursuant to section 319F–2 of the PHS Act: *Provided further*, That $5,000,000 of the amounts made available to support emergency operations shall remain available through September 30, 2017: *Provided further*, That these funds are in addition to amounts provided in section 136 of Public Law 113–164.

For expenses necessary for procuring security countermeasures (as defined in section 319F–2(c)(1)(B) of the PHS Act), $255,000,000, to remain available until expended.

For an additional amount for expenses necessary to prepare for or respond to an influenza pandemic, $71,915,000; of which $39,906,000 shall be available until expended, for activities including the development and purchase of vaccine, antivirals, necessary medical supplies, diagnostics, and other surveillance tools: *Provided*, That notwithstanding section 496(b) of the PHS Act, funds may be used for the construction or renovation of privately owned facilities for the production of pandemic influenza vaccines and other biologics, if the Secretary finds such construction or renovation necessary to secure sufficient supplies of such vaccines or biologics.

GENERAL PROVISIONS

SEC. 201. Funds appropriated in this title shall be available for not to exceed $50,000 for official reception and representation expenses when specifically approved by the Secretary.

SEC. 202. The Secretary shall make available through assignment not more than 60 employees of the Public Health Service to assist in child survival activities and to work in AIDS programs through and with funds provided by the Agency for International Development, the United Nations International Children's Emergency Fund or the World Health Organization.

SEC. 203. None of the funds appropriated in this title shall be used to pay the salary of an individual, through a grant or other extramural mechanism, at a rate in excess of Executive Level II.

SEC. 204. None of the funds appropriated in this Act may be expended pursuant to section 241 of the PHS Act, except for funds specifically provided for in this Act, or for other taps and assessments made by any office located in HHS, prior to the preparation and submission of a report by the Secretary to the Committees on Appropriations of the House of Representatives and the Senate detailing the planned uses of such funds.

SEC. 205. Notwithstanding section 241(a) of the PHS Act, such portion as the Secretary shall determine, but not more than 2.5 percent, of any amounts appropriated for programs authorized under such Act shall be made available for the evaluation (directly, or by grants or contracts) and the implementation and effectiveness of programs funded in this title.

(TRANSFER OF FUNDS)

SEC. 206. Not to exceed 1 percent of any discretionary funds (pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985) which are appropriated for the current fiscal year for HHS in this Act may be transferred between appropriations, but no such appropriation shall be increased by more than 3 percent by any such transfer: *Provided*, That the transfer authority granted by this section shall not be used to create any new program or to fund any project or activity for which no funds are provided in this Act: *Provided further*, That the Committees on Appropriations of the House of Representatives and the Senate are notified at least 15 days in advance of any transfer.

(TRANSFER OF FUNDS)

SEC. 207. The Director of the NIH, jointly with the Director of the Office of AIDS Research, may transfer up to 3 percent among institutes and centers from the total amounts identified by these two Directors as funding for research pertaining to the human immunodeficiency virus: *Provided*, That the Committees on Appropriations of the House of Representatives and the Senate are notified at least 15 days in advance of any transfer.

(TRANSFER OF FUNDS)

SEC. 208. Of the amounts made available in this Act for NIH, the amount for research related to the human immunodeficiency virus, as jointly determined by the Director of NIH and the Director of the Office of AIDS Research, shall be made available to the ''Office of AIDS Research'' account. The Director of the Office of AIDS Research shall transfer from such account amounts necessary to carry out section 2353(d)(3) of the PHS Act.

SEC. 209. None of the funds appropriated in this Act may be made available to any entity under title X of the PHS Act unless the applicant for the award certifies to the Secretary that it encourages family participation in the decision of minors to seek family planning services and that it provides counseling to minors on how to resist attempts to coerce minors into engaging in sexual activities.

SEC. 210. Notwithstanding any other provision of law, no provider of services under title X of the PHS Act shall be exempt from any State law requiring notification or the reporting of child abuse, child molestation, sexual abuse, rape, or incest.

SEC. 211. None of the funds appropriated by this Act (including funds appropriated to any trust fund) may be used to carry out the Medicare Advantage program if the Secretary denies participation in such program to an otherwise eligible entity (including a Provider Sponsored Organization) because the entity informs the Secretary that it will not provide, pay for, provide coverage of, or provide referrals for abortions: *Provided*, That the Secretary shall make appropriate prospective adjustments to the capitation payment to such an entity (based on an actuarially sound estimate of the expected costs of providing the service to such entity's enrollees): *Provided further*, That nothing in this section shall be construed to change the Medicare program's coverage for such services and a Medicare Advantage organization described in this section shall be responsible for informing enrollees where to obtain information about all Medicare covered services.

SEC. 212. In order for HHS to carry out international health activities, including HIV/AIDS and other infectious disease, chronic and environmental disease, and other health activities abroad during fiscal year 2015:

(1) The Secretary may exercise authority equivalent to that available to the Secretary of State in section 2(c) of the State Department Basic Authorities Act of 1956. The Secretary shall consult with the Secretary of State and relevant Chief of Mission to ensure that the authority provided in this section is exercised in a manner consistent with section 207 of the Foreign Service Act of 1980 and other applicable statutes administered by the Department of State.

(2) The Secretary is authorized to provide such funds by advance or reimbursement to the Secretary of State as may be necessary to pay the costs of acquisition, lease, alteration, renovation, and management of facilities outside of the United States for the use of HHS. The Department of State shall cooperate fully with the Secretary to ensure that HHS has secure, safe, functional facilities that comply with applicable regulation governing location, setback, and other facilities requirements and serve the purposes established by this Act. The Secretary is authorized, in consultation with the Secretary of State, through grant or cooperative agreement, to make available to public or nonprofit private institutions or agencies in participating foreign countries, funds to acquire, lease, alter, or renovate facilities in those countries as necessary to conduct programs of assistance for international health activities, including activities relating to HIV/AIDS and other infectious diseases, chronic and environmental diseases, and other health activities abroad.

(3) The Secretary is authorized to provide to personnel appointed or assigned by the Secretary to serve abroad, allowances and benefits similar to those provided under chapter 9 of title I of the Foreign Service Act of 1980, and 22 U.S.C. 4081 through 4086 and subject to such regulations prescribed by the Secretary. The Secretary is further authorized to provide locality-based comparability payments (stated as a percentage) up to the amount of the locality-based comparability payment (stated as a percentage) that would be payable to such personnel under section 5304 of title 5, United States Code if such personnel's official duty station were in the District of Columbia. Leaves of absence for personnel under this subsection shall be on the

same basis as that provided under subchapter I of chapter 63 of title 5, United States Code, or section 903 of the Foreign Service Act of 1980, to individuals serving in the Foreign Service.

SEC. 213. (a) AUTHORITY.—Notwithstanding any other provision of law, the Director of NIH (''Director'') may use funds available under section 402(b)(7) or 402(b)(12) of the PHS Act to enter into transactions (other than contracts, cooperative agreements, or grants) to carry out research identified pursuant to such section 402(b)(7) (pertaining to the Common Fund) or research and activities described in such section 402(b)(12).

(b) PEER REVIEW.—In entering into transactions under subsection (a), the Director may utilize such peer review procedures (including consultation with appropriate scientific experts) as the Director determines to be appropriate to obtain assessments of scientific and technical merit. Such procedures shall apply to such transactions in lieu of the peer review and advisory council review procedures that would otherwise be required under sections 301(a)(3), 405(b)(1)(B), 405(b)(2), 406(a)(3)(A), 492, and 494 of the PHS Act.

SEC. 214. Funds which are available for Individual Learning Accounts for employees of CDC and the Agency for Toxic Substances and Disease Registry (''ATSDR'') may be transferred to appropriate accounts of CDC, to be available only for Individual Learning Accounts: *Provided*, That such funds may be used for any individual full-time equivalent employee while such employee is employed either by CDC or ATSDR.

SEC. 215. Not to exceed $45,000,000 of funds appropriated by this Act to the institutes and centers of the National Institutes of Health may be used for alteration, repair, or improvement of facilities, as necessary for the proper and efficient conduct of the activities authorized herein, at not to exceed $3,500,000 per project.

(TRANSFER OF FUNDS)

SEC. 216. Of the amounts made available for NIH, 1 percent of the amount made available for National Research Service Awards (''NRSA'') shall be made available to the Administrator of the Health Resources and Services Administration to make NRSA awards for research in primary medical care to individuals affiliated with entities who have received grants or contracts under sections 736, 739, or 747 of the PHS Act, and 1 percent of the amount made available for NRSA shall be made available to the Director of the Agency for Healthcare Research and Quality to make NRSA awards for health service research.

SEC. 217. None of the funds made available in this title may be used, in whole or in part, to advocate or promote gun control.

SEC. 218. (a) The Secretary shall establish a publicly accessible Web site to provide information regarding the uses of funds made available under section 4002 of the Patient Protection and Affordable Care Act of 2010 (''ACA'').

(b) With respect to funds provided under section 4002 of the ACA, the Secretary shall include on the Web site established under subsection (a) at a minimum the following information:

(1) In the case of each transfer of funds under section 4002(c), a statement indicating the program or activity receiving funds, the operating division or office that will administer the funds, and the planned uses of the funds, to be posted not later than the day after the transfer is made.

(2) Identification (along with a link to the full text) of each funding opportunity announcement, request for proposals, or other announcement or solicitation of proposals for grants, cooperative agreements, or contracts intended to be awarded using such funds, to be posted not later than the day after the announcement or solicitation is issued.

(3) Identification of each grant, cooperative agreement, or contract with a value of $25,000 or more awarded using such funds, including the purpose of the award and the identity of the recipient, to be posted not later than 5 days after the award is made.

(4) A report detailing the uses of all funds transferred under section 4002(c) during the fiscal year, to be posted not later than 90 days after the end of the fiscal year.

(c) With respect to awards made in fiscal years 2013 through 2015, the Secretary shall also include on the Web site established under subsection (a), semi-annual reports from each entity awarded a grant, cooperative agreement, or contract from such funds with a value of $25,000 or more, summarizing the activities undertaken and identifying any sub-grants or sub-contracts awarded (including the purpose of the award and the identity of the recipient), to be posted not later than 30 days after the end of each 6-month period.

(d) In carrying out this section, the Secretary shall:

(1) present the information required in subsection (b)(1) on a single webpage or on a single database;

(2) ensure that all information required in this section is directly accessible from the single webpage or database; and

(3) ensure that all information required in this section is able to be organized by program or State.

(TRANSFER OF FUNDS)

SEC. 219. (a) Within 45 days of enactment of this Act, the Secretary shall transfer funds appropriated under section 4002 of the Patient Protection and Affordable Care Act of 2010 (''ACA'') to the accounts specified, in the amounts specified, and for the activities specified under the heading ''Prevention and Public Health Fund'' in the explanatory statement described in section 4 (in the matter preceding division A of this Consolidated Act) accompanying this Act.

(b) Notwithstanding section 4002(c) of the ACA, the Secretary may not further transfer these amounts.

(c) Funds transferred for activities authorized under section 2821 of the PHS Act shall be made available without reference to section 2821(b) of such Act.

SEC. 220. (a) The Biomedical Advanced Research and Development Authority (''BARDA'') may enter into a contract, for more than one but no more than 10 program years, for purchase of research services or of security countermeasures, as that term is defined in section 319F–2(c)(1)(B) of the PHS Act (42 U.S.C. 247d–6b(c)(1)(B)), if—

(1) funds are available and obligated—

(A) for the full period of the contract or for the first fiscal year in which the contract is in effect; and

(B) for the estimated costs associated with a necessary termination of the contract; and

(2) the Secretary determines that a multiyear contract will serve the best interests of the Federal Government by encouraging full and open competition or promoting economy in administration, performance, and operation of BARDA's programs.

(b) A contract entered into under this section:

(1) shall include a termination clause as described by subsection (c) of section 3903 of title 41, United States Code; and

(2) shall be subject to the congressional notice requirement stated in subsection (d) of such section.

SEC. 221. (a) The Secretary shall publish in the fiscal year 2016 budget justification and on Departmental Web sites information concerning the employment of full-time equivalent Federal employees or contractors for the purposes of implementing, administering, enforcing, or otherwise carrying out the provisions of the Patient Protection and Affordable Care Act of 2010 (''ACA''), and the amendments made by that Act, in the proposed fiscal year and the 4 prior fiscal years.

(b) With respect to employees or contractors supported by all funds appropriated for purposes of carrying out the ACA (and the amendments made by that Act), the Secretary shall include, at a minimum, the following information:

(1) For each such fiscal year, the section of such Act under which such funds were appropriated, a statement indicating the program, project, or activity receiving such funds, the Federal operating division or office that administers such program, and the amount of funding received in discretionary or mandatory appropriations.

(2) For each such fiscal year, the number of full-time equivalent employees or contracted employees assigned to each authorized and funded provision detailed in accordance with paragraph (1).

(c) In carrying out this section, the Secretary may exclude from the report employees or contractors who:

(1) Are supported through appropriations enacted in laws other than the ACA and work on programs that existed prior to the passage of the ACA;

(2) spend less than 50 percent of their time on activities funded by or newly authorized in the ACA;

(3) or who work on contracts for which FTE reporting is not a requirement of their contract, such as fixed-price contracts.

SEC. 222. In addition to the amounts otherwise available for ''Centers for Medicare and Medicaid Services, Program Management'', the Secretary of Health and Human Services may transfer up to $305,000,000 to such account from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund to support program management activity related to the Medicare Program: *Provided*, That except for the foregoing purpose, such funds may not be used to support any provision of Public Law 111–148 or Public Law 111–152 (or any amendment made by either such Public Law) or to supplant any other amounts within such account.

SEC. 223. In lieu of the timeframe specified in section 338E(c)(2) of the PHS Act, terminations described in such section may occur up to 60 days after the execution of a contract awarded in fiscal year 2015 under section 338B of such Act.

SEC. 224. Title IV of the PHS Act is amended by:

(1) Striking ''National Center for Complementary and Alternative Medicine'' in each place it appears and replacing it with ''National Center for Complementary and Integrative Health'';

(2) Striking ''alternative medicine'' in each place it appears and replacing it with ''integrative health'';

(3) Striking all references to ''alternative and complementary medical treatment'' or ''complementary and alternative treatment'' in each place either appears and inserting ''complementary and integrative health'';

(4) Striking references to ''alternative medical treatment'' in each place it appears and inserting ''integrative health treatment''; and

(5) Striking section 485D(c) and inserting:

''(c) In carrying out subsection (a), the Director of the Center shall, as appropriate, study the integration of new and non-traditional approaches to health care treatment and consumption, including but not limited

to non-traditional treatment, diagnostic and prevention systems, modalities, and disciplines.''.

SEC. 225. In addition to amounts provided herein, payments made for research organisms or substances, authorized under section 301(a) of the PHS Act, shall be retained and credited to the appropriations accounts of the Institutes and Centers of the NIH making the substance or organism available under section 301(a). Amounts credited to the account under this authority shall be available for obligation through September 30, 2016.

SEC. 226. The Secretary shall publish, as part of the fiscal year 2016 budget of the President submitted under section 1105(a) of title 31, United States Code, information that details the uses of all funds used by the Centers for Medicare and Medicaid Services specifically for Health Insurance Marketplaces for each fiscal year since the enactment of the Patient Protection and Affordable Care Act (Public Law 111–148) and the proposed uses for such funds for fiscal year 2016. Such information shall include, for each such fiscal year—

(1) the amount of funds used for each activity specified under the heading ''Health Insurance Marketplace Transparency'' in the explanatory statement described in section 4 (in the matter preceding division A of this Consolidated Act) accompanying this Act; and

(2) the milestones completed for data hub functionality and implementation readiness.

SEC. 227. None of the funds made available by this Act from the Federal Hospital Insurance Trust Fund or the Federal Supplemental Medical Insurance Trust Fund, or transferred from other accounts funded by this Act to the ''Centers for Medicare and Medicaid Services—Program Management'' account, may be used for payments under section 1342(b)(1) of Public Law 111–148 (relating to risk corridors).

SEC. 228. (a) Subject to the succeeding provisions of this section, activities authorized under part A of title IV and section 1108(b) of the Social Security Act shall continue through September 30, 2015, in the manner authorized for fiscal year 2014, and out of any money in the Treasury of the United States not otherwise appropriated, there are hereby appropriated such sums as may be necessary for such purpose. Grants and payments may be made pursuant to this authority through September 30, 2015, at the level provided for such activities for fiscal year 2014, except as provided in subsections (b) and (c).

(b) In the case of the Contingency Fund for State Welfare Programs established under section 403(b) of the Social Security Act—

(1) the amount appropriated for section 403(b) of such Act shall be $608,000,000 for each of fiscal years 2015 and 2016;

(2) the requirement to reserve funds provided for in section 403(b)(2) of such Act shall not apply during fiscal years 2015 and 2016; and

(3) grants and payments may only be made from such Fund for fiscal year 2015 after the application of subsection (d).

(c) In the case of research, evaluations, and national studies funded under section 413(h)(1) of the Social Security Act, no funds shall be appropriated under that section for fiscal year 2015 or any fiscal year thereafter.

(d) Of the amount made available under subsection (b)(1) for section 403(b) of the Social Security Act for fiscal year 2015—

(1) $15,000,000 is hereby transferred and made available to carry out section 413(h) of the Social Security Act; and

(2) $10,000,000 is hereby transferred and made available to the Bureau of the Census to conduct activities using the Survey of Income and Program Participation to obtain information to enable interested parties to evaluate the impact of the amendments made by title I of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996.

(e) Section 413(h)(1) of the Social Security Act (42 U.S.C. 613(h)(1)) is amended, in the matter preceding subparagraph (A), by striking ''Out of any money in the Treasury of the United States not otherwise appropriated, there are appropriated $15,000,000 for fiscal year 2012'' and inserting ''Funds made available to carry out this section for a fiscal year shall be used''.

(f) Section 414 of the Social Security Act (42 U.S.C. 614) is repealed.

(g) Expenditures made pursuant to Public Law 113–164 for section 403(b) of the Social Security Act for fiscal year 2015 shall be charged to the appropriation provided by subsection (b)(1) for such fiscal year.

SEC. 229. The remaining unobligated balances of the amount appropriated for fiscal year 2015 by section 510(d) of the Social Security Act (42 U.S.C. 710(d)) for which no application has been received by the Funding Opportunity Announcement deadline, shall be made available to States that require the implementation of each element described in subparagraphs (A) through (H) of the definition of abstinence education in section 510(b)(2). The remaining unobligated balances shall be reallocated to such States that submit a valid application consistent with the original formula for this funding.

SEC. 230. Hereafter, for each fiscal year through fiscal year 2025, the Director of the National Institutes of Health shall prepare and submit directly to the President for review and transmittal to Congress, after reasonable opportunity for comment, but without change, by the Secretary of Health and Human Services and the Advisory Council on Alzheimer's Research, Care, and Services, an annual budget estimate (including an estimate of the number and type of personnel needs for the Institutes) for the initiatives of the National Institutes of Health pursuant to the National Alzheimer's Plan, as required under section 2(d)(2) of Public Law 111–375.

This title may be cited as the ''Department of Health and Human Services Appropriations Act, 2015''.

TITLE III

DEPARTMENT OF EDUCATION

EDUCATION FOR THE DISADVANTAGED

For carrying out title I of the Elementary and Secondary Education Act of 1965 (referred to in this Act as ''ESEA'') and section 418A of the Higher Education Act of 1965 (referred to in this Act as ''HEA''), $15,536,107,000, of which $4,652,762,000 shall become available on July 1, 2015, and shall remain available through September 30, 2016, and of which $10,841,177,000 shall become available on October 1, 2015, and shall remain available through September 30, 2016, for academic year 2015–2016: *Provided*, That $6,459,401,000 shall be for basic grants under section 1124 of the ESEA: *Provided further*, That up to $3,984,000 of these funds shall be available to the Secretary of Education (referred to in this title as ''Secretary'') on October 1, 2014, to obtain annually updated local educational agency-level census poverty data from the Bureau of the Census: *Provided further*, That $1,362,301,000 shall be for concentration grants under section 1124A of the ESEA: *Provided further*, That $3,294,050,000 shall be for targeted grants under section 1125 of the ESEA: *Provided further*, That $3,294,050,000 shall be for education finance incentive grants under section 1125A of the ESEA: *Provided further*, That funds available under sections 1124, 1124A, 1125 and 1125A of the ESEA may be used to provide homeless children and youths with services not ordinarily provided to other students under those sections, including supporting the liaison designated pursuant to section 722(g)(1)(J)(ii) of the McKinney-Vento Homeless Assistance Act, and providing transportation pursuant to section 722(g)(1)(J)(iii) of such Act: *Provided further*, That $710,000 shall be to carry out sections 1501 and 1503 of the ESEA: *Provided further*, That $505,756,000 shall be available for school improvement grants under section 1003(g) of the ESEA, which shall be allocated by the Secretary through the formula described in section 1003(g)(2) and shall be used consistent with the requirements of section 1003(g), except that State and local educational agencies may use such funds to serve any school eligible to receive assistance under part A of title I that has not made adequate yearly progress for at least 2 years or is in the State's lowest quintile of performance based on proficiency rates and, in the case of secondary schools, priority shall be given to those schools with graduation rates below 60 percent: *Provided further*, That notwithstanding section 1003(g)(5)(C) of the ESEA, the Secretary may permit a State educational agency to establish an award period of up to 5 years for each participating local educational agency: *Provided further*, That funds available for school improvement grants for fiscal year 2014 and thereafter may be used by a local educational agency to implement a whole-school reform strategy for a school using an evidence-based strategy that ensures whole-school reform is undertaken in partnership with a strategy developer offering a whole-school reform program that is based on at least a moderate level of evidence that the program will have a statistically significant effect on student outcomes, including at least one well-designed and well-implemented experimental or quasi-experimental study: *Provided further*, That funds available for school improvement grants may be used by a local educational agency to implement an alternative State-determined school improvement strategy that has been established by a State educational agency with the approval of the Secretary: *Provided further*, That a local educational agency that is determined to be eligible for services under subpart 1 or 2 of part B of title VI of the ESEA may modify not more than one element of a school improvement grant model: *Provided further*, That notwithstanding section 1003(g)(5)(A), each State educational agency may establish a maximum subgrant size of not more than $2,000,000 for each participating school applicable to such funds: *Provided further*, That the Secretary may reserve up to 5 percent of the funds available for section 1003(g) of the ESEA to carry out activities to build State and local educational agency capacity to implement effectively the school improvement grants program: *Provided further*, That $160,000,000 shall be available under section 1502 of the ESEA for a comprehensive literacy development and education program to advance literacy skills, including pre-literacy skills, reading, and writing, for students from birth through grade 12, including limited-English-proficient students and students with disabilities, of which one-half of 1 percent shall be reserved for the Secretary of the Interior for such a program at schools funded by the Bureau of Indian Education, one-half of 1 percent shall be reserved for grants to the outlying areas for such a program, up to 5 percent may be reserved for national activities, and the remainder shall be used to award competitive grants to State educational agencies for such a program, of which a State educational agency may reserve up to 5 percent for State leadership activities, including technical assistance and training,

data collection, reporting, and administration, and shall subgrant not less than 95 percent to local educational agencies or, in the case of early literacy, to local educational agencies or other nonprofit providers of early childhood education that partner with a public or private nonprofit organization or agency with a demonstrated record of effectiveness in improving the early literacy development of children from birth through kindergarten entry and in providing professional development in early literacy, giving priority to such agencies or other entities serving greater numbers or percentages of disadvantaged children: *Provided further*, That the State educational agency shall ensure that at least 15 percent of the subgranted funds are used to serve children from birth through age 5, 40 percent are used to serve students in kindergarten through grade 5, and 40 percent are used to serve students in middle and high school including an equitable distribution of funds between middle and high schools: *Provided further*, That eligible entities receiving subgrants from State educational agencies shall use such funds for services and activities that have the characteristics of effective literacy instruction through professional development, screening and assessment, targeted interventions for students reading below grade level and other research-based methods of improving classroom instruction and practice: *Provided further*, That $37,474,000 shall be for carrying out section 418A of the HEA.

IMPACT AID

For carrying out programs of financial assistance to federally affected schools authorized by title VIII of the ESEA, $1,288,603,000, of which $1,151,233,000 shall be for basic support payments under section 8003(b), $48,316,000 shall be for payments for children with disabilities under section 8003(d), $17,406,000 shall be for construction under section 8007(b) and be available for obligation through September 30, 2016, $66,813,000 shall be for Federal property payments under section 8002, and $4,835,000, to remain available until expended, shall be for facilities maintenance under section 8008: *Provided*, That for purposes of computing the amount of a payment for an eligible local educational agency under section 8003(a) for school year 2014–2015, children enrolled in a school of such agency that would otherwise be eligible for payment under section 8003(a)(1)(B) of such Act, but due to the deployment of both parents or legal guardians, or a parent or legal guardian having sole custody of such children, or due to the death of a military parent or legal guardian while on active duty (so long as such children reside on Federal property as described in section 8003(a)(1)(B)), are no longer eligible under such section, shall be considered as eligible students under such section, provided such students remain in average daily attendance at a school in the same local educational agency they attended prior to their change in eligibility status.

SCHOOL IMPROVEMENT PROGRAMS

For carrying out school improvement activities authorized by parts A and B of title II, part B of title IV, parts A and B of title VI, and parts B and C of title VII of the ESEA; the McKinney-Vento Homeless Assistance Act; section 203 of the Educational Technical Assistance Act of 2002; the Compact of Free Association Amendments Act of 2003; and the Civil Rights Act of 1964, $4,402,671,000, of which $2,585,661,000 shall become available on July 1, 2015, and remain available through September 30, 2016, and of which $1,681,441,000 shall become available on October 1, 2015, and shall remain available through September 30, 2016, for academic year 2015–2016: *Provided*, That funds made available to carry out part B of title VII of the ESEA may be used for construction, renovation, and modernization of any elementary school, secondary school, or structure related to an elementary school or secondary school, run by the Department of Education of the State of Hawaii, that serves a predominantly Native Hawaiian student body: *Provided further*, That funds made available to carry out part C of title VII of the ESEA shall be awarded on a competitive basis, and also may be used for construction: *Provided further*, That $48,445,000 shall be available to carry out section 203 of the Educational Technical Assistance Act of 2002: *Provided further*, That $16,699,000 shall be available to carry out the Supplemental Education Grants program for the Federated States of Micronesia and the Republic of the Marshall Islands: *Provided further*, That the Secretary may reserve up to 5 percent of the amount referred to in the previous proviso to provide technical assistance in the implementation of these grants: *Provided further*, That up to 2.3 percent of the funds for subpart 1 of part A of title II of the ESEA shall be reserved by the Secretary for competitive awards for teacher or principal recruitment and training or professional enhancement activities, including for civic education instruction, to national not-for-profit organizations, of which up to 8 percent may only be used for research, dissemination, evaluation, and technical assistance for competitive awards carried out under this proviso: *Provided further*, That $152,717,000 shall be to carry out part B of title II of the ESEA.

INDIAN EDUCATION

For expenses necessary to carry out, to the extent not otherwise provided, title VII, part A of the ESEA, $123,939,000.

INNOVATION AND IMPROVEMENT

For carrying out activities authorized by part G of title I, subpart 5 of part A and parts C and D of title II, parts B, C, and D of title V of the ESEA, and section 14007 of division A of the American Recovery and Reinvestment Act of 2009, as amended, $1,102,111,000: *Provided*, That up to $120,000,000 shall be available through December 31, 2015 for section 14007 of division A of Public Law 111–5, and up to 5 percent of such funds may be used for technical assistance and the evaluation of activities carried out under such section: *Provided further*, That the education facilities clearinghouse established through a competitive award process in fiscal year 2013 is authorized to collect and disseminate information on effective educational practices and the latest research regarding the planning, design, financing, construction, improvement, operation, and maintenance of safe, healthy, high-performance public facilities for early learning programs, kindergarten through grade 12, and higher education: *Provided further*, That $230,000,000 of the funds for subpart 1 of part D of title V of the ESEA shall be for competitive grants to local educational agencies, including charter schools that are local educational agencies, or States, or partnerships of: (1) a local educational agency, a State, or both; and (2) at least one nonprofit organization to develop and implement performance-based compensation systems for teachers, principals, and other personnel in high-need schools: *Provided further*, That such performance-based compensation systems must consider gains in student academic achievement as well as classroom evaluations conducted multiple times during each school year among other factors and provide educators with incentives to take on additional responsibilities and leadership roles: *Provided further*, That recipients of such grants shall demonstrate that such performance-based compensation systems are developed with the input of teachers and school leaders in the schools and local educational agencies to be served by the grant: *Provided further*, That recipients of such grants may use such funds to develop or improve systems and tools (which may be developed and used for the entire local educational agency or only for schools served under the grant) that would enhance the quality and success of the compensation system, such as high-quality teacher evaluations and tools to measure growth in student achievement: *Provided further*, That applications for such grants shall include a plan to sustain financially the activities conducted and systems developed under the grant once the grant period has expired: *Provided further*, That up to 5 percent of such funds for competitive grants shall be available for technical assistance, training, peer review of applications, program outreach, and evaluation activities: *Provided further*, That $250,000,000 of the funds for part D of title V of the ESEA shall be available through December 31, 2015 for carrying out, in accordance with the applicable requirements of part D of title V of the ESEA, a preschool development grants program: *Provided further*, That the Secretary, jointly with the Secretary of HHS, shall make competitive awards to States for activities that build the capacity within the State to develop, enhance, or expand high-quality preschool programs, including comprehensive services and family engagement, for preschool-aged children from families at or below 200 percent of the Federal poverty line: *Provided further*, That each State may subgrant a portion of such grant funds to local educational agencies and other early learning providers (including, but not limited to, Head Start programs and licensed child care providers), or consortia thereof, for the implementation of high-quality preschool programs for children from families at or below 200 percent of the Federal poverty line: *Provided further*, That subgrantees that are local educational agencies shall form strong partnerships with early learning providers and that subgrantees that are early learning providers shall form strong partnerships with local educational agencies, in order to carry out the requirements of the subgrant: *Provided further*, That up to 3 percent of such funds for preschool development grants shall be available for technical assistance, evaluation, and other national activities related to such grants: *Provided further*, That $10,000,000 of funds available under part D of title V of the ESEA shall be for the Full-Service Community Schools program: *Provided further*, That of the funds available for part B of title V of the ESEA, the Secretary shall use up to $11,000,000 to carry out activities under section 5205(b) and shall use not less than $13,000,000 for subpart 2: *Provided further*, That of the funds available for subpart 1 of part B of title V of the ESEA, and notwithstanding section 5205(a), the Secretary shall reserve up to $75,000,000 to make multiple awards to non-profit charter management organizations and other entities that are not for-profit entities for the replication and expansion of successful charter school models and shall reserve not less than $11,000,000 to carry out the activities described in section 5205(a), including improving quality and oversight of charter schools and providing technical assistance and grants to authorized public chartering agencies in order to increase the number of high-performing charter schools: *Provided further*, That funds available for part B of title V of the ESEA may be used for grants that support preschool education in charter schools: *Provided further*, That each application submitted pursuant to section 5203(a) shall describe a plan to monitor and hold accountable authorized public chartering agencies through such activities as providing technical assistance or

establishing a professional development program, which may include evaluation, planning, training, and systems development for staff of authorized public chartering agencies to improve the capacity of such agencies in the State to authorize, monitor, and hold accountable charter schools: *Provided further*, That each application submitted pursuant to section 5203(a) shall contain assurances that State law, regulations, or other policies require that: (1) each authorized charter school in the State operate under a legally binding charter or performance contract between itself and the school's authorized public chartering agency that describes the rights and responsibilities of the school and the public chartering agency; conduct annual, timely, and independent audits of the school's financial statements that are filed with the school's authorized public chartering agency; and demonstrate improved student academic achievement; and (2) authorized public chartering agencies use increases in student academic achievement for all groups of students described in section 1111(b)(2)(C)(v) of the ESEA as one of the most important factors when determining to renew or revoke a school's charter.

SAFE SCHOOLS AND CITIZENSHIP EDUCATION

For carrying out activities authorized by part A of title IV and subparts 1, 2, and 10 of part D of title V of the ESEA, $223,315,000: *Provided*, That $70,000,000 shall be available for subpart 2 of part A of title IV, of which up to $5,000,000, to remain available until expended, shall be for the Project School Emergency Response to Violence (''Project SERV'') program to provide education-related services to local educational agencies and institutions of higher education in which the learning environment has been disrupted due to a violent or traumatic crisis: *Provided further*, That $56,754,000 shall be available through December 31, 2015 for Promise Neighborhoods.

ENGLISH LANGUAGE ACQUISITION

For carrying out part A of title III of the ESEA, $737,400,000, which shall become available on July 1, 2015, and shall remain available through September 30, 2016, except that 6.5 percent of such amount shall be available on October 1, 2014, and shall remain available through September 30, 2016, to carry out activities under section 3111(c)(1)(C): *Provided*, That the Secretary shall use estimates of the American Community Survey child counts for the most recent 3-year period available to calculate allocations under such part: *Provided further*, That the Secretary shall use $14,000,000 of funds available under this paragraph for grants to all State educational agencies within States with at least one county where 50 or more unaccompanied children have been released to sponsors since January 1, 2014, through the Department of Health and Human Services, Office of Refugee Resettlement: *Provided further*, That awards to eligible State educational agencies shall be based on the State's relative share of unaccompanied children that have been released to sponsors since January 1, 2014: *Provided further*, That the data on unaccompanied children used by the Secretary under the two preceding provisos shall be the most recently available data from the Department of Health and Human Services, Office of Refugee Resettlement, as of the date of enactment of this Act: *Provided further*, That each eligible State educational agency that receives a grant shall award subgrants to local educational agencies in the State that have experienced a significant increase during the 2014–2015 school year, as determined by the State educational agency, compared to the average of the 2 preceding school years, in the number or percentage of immigrant children and youth enrolled in their schools: *Provided further*, That local educational agencies shall use those subgrants for supplemental academic and non-academic services and supports to immigrant children and youth: *Provided further*, That the term ''immigrant children and youth'' has the meaning given in section 3301 of the ESEA, and the terms ''State educational agency'' and ''local educational agency'' have the meanings given to them in section 9101 of the ESEA: *Provided further*, That each eligible State educational agency shall prepare and submit to the Secretary not later than 1 year after the award a report identifying the local educational agencies that received subgrants, the State's definition of ''significant increase'' used to award the subgrants; and such other information as the Secretary may require.

SPECIAL EDUCATION

For carrying out the Individuals with Disabilities Education Act (IDEA) and the Special Olympics Sport and Empowerment Act of 2004, $12,522,358,000, of which $3,006,259,000 shall become available on July 1, 2015, and shall remain available through September 30, 2016, and of which $9,283,383,000 shall become available on October 1, 2015, and shall remain available through September 30, 2016, for academic year 2015–2016: *Provided*, That the amount for section 611(b)(2) of the IDEA shall be equal to the lesser of the amount available for that activity during fiscal year 2014, increased by the amount of inflation as specified in section 619(d)(2)(B) of the IDEA, or the percent change in the funds appropriated under section 611(i) of the IDEA, but not less than the amount for that activity during fiscal year 2014: *Provided further*, That the Secretary shall, without regard to section 611(d) of the IDEA, distribute to all other States (as that term is defined in section 611(g)(2)), subject to the third proviso, any amount by which a State's allocation under section 611(d), from funds appropriated under this heading, is reduced under section 612(a)(18)(B), according to the following: 85 percent on the basis of the States' relative populations of children aged 3 through 21 who are of the same age as children with disabilities for whom the State ensures the availability of a free appropriate public education under this part, and 15 percent to States on the basis of the States' relative populations of those children who are living in poverty: *Provided further*, That the Secretary may not distribute any funds under the previous proviso to any State whose reduction in allocation from funds appropriated under this heading made funds available for such a distribution: *Provided further*, That the States shall allocate such funds distributed under the second proviso to local educational agencies in accordance with section 611(f): *Provided further*, That the amount by which a State's allocation under section 611(d) of the IDEA is reduced under section 612(a)(18)(B) and the amounts distributed to States under the previous provisos in fiscal year 2012 or any subsequent year shall not be considered in calculating the awards under section 611(d) for fiscal year 2013 or for any subsequent fiscal years: *Provided further*, That, notwithstanding the provision in section 612(a)(18)(B) regarding the fiscal year in which a State's allocation under section 611(d) is reduced for failure to comply with the requirement of section 612(a)(18)(A), the Secretary may apply the reduction specified in section 612(a)(18)(B) over a period of consecutive fiscal years, not to exceed five, until the entire reduction is applied: *Provided further*, That the Secretary may, in any fiscal year in which a State's allocation under section 611 is reduced in accordance with section 612(a)(18)(B), reduce the amount a State may reserve under section 611(e)(1) by an amount that bears the same relation to the maximum amount described in that paragraph as the reduction under section 612(a)(18)(B) bears to the total allocation the State would have received in that fiscal year under section 611(d) in the absence of the reduction: *Provided further*, That the Secretary shall either reduce the allocation of funds under section 611 for any fiscal year following the fiscal year for which the State fails to comply with the requirement of section 612(a)(18)(A) as authorized by section 612(a)(18)(B), or seek to recover funds under section 452 of the General Education Provisions Act (20 U.S.C. 1234a): *Provided further*, That the funds reserved under 611(c) of the IDEA may be used to provide technical assistance to States to improve the capacity of the States to meet the data collection requirements of sections 616 and 618 and to administer and carry out other services and activities to improve data collection, coordination, quality, and use under parts B and C of the IDEA: *Provided further*, That the level of effort a local educational agency must meet under section 613(a)(2)(A)(iii) of the IDEA, in the year after it fails to maintain effort is the level of effort that would have been required in the absence of that failure and not the LEA's reduced level of expenditures: *Provided further*, That the Secretary may use funds made available for the State Personnel Development Grants program under part D, subpart 1 of IDEA to evaluate program performance under such subpart.

REHABILITATION SERVICES AND DISABILITY RESEARCH

For carrying out, to the extent not otherwise provided, the Rehabilitation Act of 1973, the Assistive Technology Act of 1998, and the Helen Keller National Center Act, $3,709,853,000, of which $3,335,074,000 shall be for grants for vocational rehabilitation services under title I of the Rehabilitation Act: *Provided*, That the Secretary may use amounts provided in this Act that remain available subsequent to the reallotment of funds to States pursuant to section 110(b) of the Rehabilitation Act for innovative activities aimed at improving the outcomes of individuals with disabilities as defined in section 7(20)(B) of the Rehabilitation Act, including activities aimed at improving the education and post-school outcomes of children receiving Supplemental Security Income (''SSI'') and their families that may result in long-term improvement in the SSI child recipient's economic status and self-sufficiency: *Provided further*, That States may award subgrants for a portion of the funds to other public and private, non-profit entities: *Provided further*, That any funds made available subsequent to reallotment for innovative activities aimed at improving the outcomes of individuals with disabilities shall remain available until September 30, 2016: *Provided further*, That $2,000,000 shall be for competitive grants to support alternative financing programs that provide for the purchase of assistive technology devices, such as a low-interest loan fund; an interest buydown program; a revolving loan fund; a loan guarantee; or insurance program: *Provided further*, That applicants shall provide an assurance that, and information describing the manner in which, the alternative financing program will expand and emphasize consumer choice and control: *Provided further*, That State agencies and community-based disability organizations that are directed by and operated for individuals with disabilities shall be eligible to compete.

SPECIAL INSTITUTIONS FOR PERSONS WITH DISABILITIES

AMERICAN PRINTING HOUSE FOR THE BLIND

For carrying out the Act of March 3, 1879, $24,931,000.

NATIONAL TECHNICAL INSTITUTE FOR THE DEAF

For the National Technical Institute for the Deaf under titles I and II of the Education of the Deaf Act of 1986, $67,016,000: *Provided*, That from the total amount available, the Institute may at its discretion use funds for the endowment program as authorized under section 207 of such Act.

GALLAUDET UNIVERSITY

For the Kendall Demonstration Elementary School, the Model Secondary School for the Deaf, and the partial support of Gallaudet University under titles I and II of the Education of the Deaf Act of 1986, $120,275,000: *Provided*, That from the total amount available, the University may at its discretion use funds for the endowment program as authorized under section 207 of such Act.

CAREER, TECHNICAL, AND ADULT EDUCATION

For carrying out, to the extent not otherwise provided, the Carl D. Perkins Career and Technical Education Act of 2006 and the Adult Education and Family Literacy Act (''AEFLA''), $1,707,686,000, of which $916,686,000 shall become available on July 1, 2015, and shall remain available through September 30, 2016, and of which $791,000,000 shall become available on October 1, 2015, and shall remain available through September 30, 2016: *Provided*, That of the amount provided for Adult Education State Grants, $71,439,000 shall be made available for integrated English literacy and civics education services to immigrants and other limited-English-proficient populations: *Provided further*, That of the amount reserved for integrated English literacy and civics education, notwithstanding section 211 of the AEFLA, 65 percent shall be allocated to States based on a State's absolute need as determined by calculating each State's share of a 10-year average of the United States Citizenship and Immigration Services data for immigrants admitted for legal permanent residence for the 10 most recent years, and 35 percent allocated to States that experienced growth as measured by the average of the 3 most recent years for which United States Citizenship and Immigration Services data for immigrants admitted for legal permanent residence are available, except that no State shall be allocated an amount less than $60,000: *Provided further*, That of the amounts made available for AEFLA, $13,712,000 shall be for national leadership activities under section 243.

STUDENT FINANCIAL ASSISTANCE

For carrying out subparts 1, 3, and 10 of part A, and part C of title IV of the HEA, $24,198,210,000, which shall remain available through September 30, 2016.

The maximum Pell Grant for which a student shall be eligible during award year 2015–2016 shall be $4,860.

STUDENT AID ADMINISTRATION

For Federal administrative expenses to carry out part D of title I, and subparts 1, 3, 9, and 10 of part A, and parts B, C, D, and E of title IV of the HEA, and subpart 1 of part A of title VII of the Public Health Service Act, $1,396,924,000, to remain available through September 30, 2016.

HIGHER EDUCATION

For carrying out, to the extent not otherwise provided, titles II, III, IV, V, VI, VII, and VIII of the HEA, the Mutual Educational and Cultural Exchange Act of 1961, and section 117 of the Carl D. Perkins Career and Technical Education Act of 2006, $1,924,839,000: *Provided*, That notwithstanding any other provision of law, funds made available in this Act to carry out title VI of the HEA and section 102(b)(6) of the Mutual Educational and Cultural Exchange Act of 1961 may be used to support visits and study in foreign countries by individuals who are participating in advanced foreign language training and international studies in areas that are vital to United States national security and who plan to apply their language skills and knowledge of these countries in the fields of government, the professions, or international development: *Provided further*, That of the funds referred to in the preceding proviso up to 1 percent may be used for program evaluation, national outreach, and information dissemination activities: *Provided further*, That up to 1.5 percent of the funds made available under chapter 2 of subpart 2 of part A of title IV of the HEA may be used for evaluation: *Provided further*, That up to 2.5 percent of the funds made available under this Act for part B of title VII of the HEA may be used for technical assistance and the evaluation of activities carried out under such section.

HOWARD UNIVERSITY

For partial support of Howard University, $221,821,000, of which not less than $3,405,000 shall be for a matching endowment grant pursuant to the Howard University Endowment Act and shall remain available until expended.

COLLEGE HOUSING AND ACADEMIC FACILITIES LOANS PROGRAM

For Federal administrative expenses to carry out activities related to existing facility loans pursuant to section 121 of the HEA, $435,000.

HISTORICALLY BLACK COLLEGE AND UNIVERSITY CAPITAL FINANCING PROGRAM ACCOUNT

For the cost of guaranteed loans, $19,096,000, as authorized pursuant to part D of title III of the HEA, which shall remain available through September 30, 2016: *Provided*, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That these funds are available to subsidize total loan principal, any part of which is to be guaranteed, not to exceed $303,593,000: *Provided further*, That these funds may be used to support loans to public and private Historically Black Colleges and Universities without regard to the limitations within section 344(a) of the HEA.

In addition, for administrative expenses to carry out the Historically Black College and University Capital Financing Program entered into pursuant to part D of title III of the HEA, $334,000.

INSTITUTE OF EDUCATION SCIENCES

For carrying out activities authorized by the Education Sciences Reform Act of 2002, the National Assessment of Educational Progress Authorization Act, section 208 of the Educational Technical Assistance Act of 2002, and section 664 of the Individuals with Disabilities Education Act, $573,935,000, which shall remain available through September 30, 2016: *Provided*, That funds available to carry out section 208 of the Educational Technical Assistance Act may be used to link Statewide elementary and secondary data systems with early childhood, postsecondary, and workforce data systems, or to further develop such systems: *Provided further*, That up to $6,000,000 of the funds available to carry out section 208 of the Educational Technical Assistance Act may be used for awards to public or private organizations or agencies to support activities to improve data coordination, quality, and use at the local, State, and national levels: *Provided further*, That $137,235,000 shall be for carrying out activities authorized by the National Assessment of Educational Progress Authorization Act.

DEPARTMENTAL MANAGEMENT

PROGRAM ADMINISTRATION

For carrying out, to the extent not otherwise provided, the Department of Education Organization Act, including rental of conference rooms in the District of Columbia and hire of three passenger motor vehicles, $411,000,000, of which up to $1,000,000, to remain available until expended, shall be for relocation of, and renovation of buildings occupied by, Department staff.

OFFICE FOR CIVIL RIGHTS

For expenses necessary for the Office for Civil Rights, as authorized by section 203 of the Department of Education Organization Act, $100,000,000.

OFFICE OF INSPECTOR GENERAL

For expenses necessary for the Office of Inspector General, as authorized by section 212 of the Department of Education Organization Act, $57,791,000.

GENERAL PROVISIONS

SEC. 301. No funds appropriated in this Act may be used for the transportation of students or teachers (or for the purchase of equipment for such transportation) in order to overcome racial imbalance in any school or school system, or for the transportation of students or teachers (or for the purchase of equipment for such transportation) in order to carry out a plan of racial desegregation of any school or school system.

SEC. 302. None of the funds contained in this Act shall be used to require, directly or indirectly, the transportation of any student to a school other than the school which is nearest the student's home, except for a student requiring special education, to the school offering such special education, in order to comply with title VI of the Civil Rights Act of 1964. For the purpose of this section an indirect requirement of transportation of students includes the transportation of students to carry out a plan involving the reorganization of the grade structure of schools, the pairing of schools, or the clustering of schools, or any combination of grade restructuring, pairing, or clustering. The prohibition described in this section does not include the establishment of magnet schools.

SEC. 303. No funds appropriated in this Act may be used to prevent the implementation of programs of voluntary prayer and meditation in the public schools.

(TRANSFER OF FUNDS)

SEC. 304. Not to exceed 1 percent of any discretionary funds (pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985) which are appropriated for the Department of Education in this Act may be transferred between appropriations, but no such appropriation shall be increased by more than 3 percent by any such transfer: *Provided*, That the transfer authority granted by this section shall not be used to create any new program or to fund any project or activity for which no funds are provided in this Act: *Provided further*, That the Committees on Appropriations of the House of Representatives and the Senate are notified at least 15 days in advance of any transfer.

SEC. 305. The Outlying Areas may consolidate funds received under this Act, pursuant to 48 U.S.C. 1469a, under part A of title V of the ESEA.

SEC. 306. Section 105(f)(1)(B)(ix) of the Compact of Free Association Amendments Act of 2003 (48 U.S.C. 1921d(f)(1)(B)(ix)) shall be applied by substituting ''2015'' for ''2009''.

SEC. 307. The Secretary, in consultation with the Director of the Institute of Education Sciences, may reserve funds under section 9601 of the ESEA (subject to the limitations in subsections (b) and (c) of that section) in order to carry out activities authorized under paragraphs (1) and (2) of subsection (a) of that section with respect to

any ESEA program funded in this Act and without respect to the source of funds for those activities: *Provided*, That high-quality evaluations of ESEA programs shall be prioritized, before using funds for any other evaluation activities: *Provided further*, That any funds reserved under this section shall be available from July 1, 2015 through September 30, 2016: *Provided further*, That not later than 10 days prior to the initial obligation of funds reserved under this section, the Secretary, in consultation with the Director, shall submit an evaluation plan to the Senate Committees on Appropriations and Health, Education, Labor, and Pensions and the House Committees on Appropriations and Education and the Workforce which identifies the source and amount of funds reserved under this section, the impact on program grantees if funds are withheld, the programs to be evaluated with such funds, how ESEA programs will be regularly evaluated, and how findings from evaluations completed under this section will be widely disseminated.

SEC. 308. The Secretary of Education shall—

(1) modify the Free Application for Federal Student Aid described in section 483 of the HEA so that the Free Application for Federal Student Aid contains an individual box for the purpose of identifying students who are foster youth or were in the foster care system; and

(2) utilize such identification as a tool to notify students who are foster youth or were in the foster care system of their potential eligibility for Federal student aid, including postsecondary education programs through the John H. Chafee Foster Care Independence Program and any other Federal programs under which such students may be eligible to receive assistance.

SEC. 309. (a) STUDENT ELIGIBILITY.—

(1) Subsection (d) of section 484 of the HEA is amended to read as follows:

''(d) STUDENTS WHO ARE NOT HIGH SCHOOL GRADUATES.—

''(1) STUDENT ELIGIBILITY.—In order for a student who does not have a certificate of graduation from a school providing secondary education, or the recognized equivalent of such certificate, to be eligible for any assistance under subparts 1, 3, and 4 of part A and parts B, C, D, and E of this title, the student shall meet the requirements of one of the following subparagraphs:

''(A) The student is enrolled in an eligible career pathway program and meets one of the following standards:

''(i) The student shall take an independently administered examination and shall achieve a score, specified by the Secretary, demonstrating that such student can benefit from the education or training being offered. Such examination shall be approved by the Secretary on the basis of compliance with such standards for development, administration, and scoring as the Secretary may prescribe in regulations.

''(ii) The student shall be determined as having the ability to benefit from the education or training in accordance with such process as the State shall prescribe. Any such process described or approved by a State for the purposes of this section shall be effective 6 months after the date of submission to the Secretary unless the Secretary disapproves such process. In determining whether to approve or disapprove such process, the Secretary shall take into account the effectiveness of such process in enabling students without secondary school diplomas or the equivalent thereof to benefit from the instruction offered by institutions utilizing such process, and shall also take into account the cultural diversity, economic circumstances, and educational preparation of the populations served by the institutions.

''(iii) The student shall be determined by the institution of higher education as having the ability to benefit from the education or training offered by the institution of higher education upon satisfactory completion of 6 credit hours or the equivalent coursework that are applicable toward a degree or certificate offered by the institution of higher education.

''(B) The student has completed a secondary school education in a home school setting that is treated as a home school or private school under State law.

''(2) ELIGIBLE CAREER PATHWAY PROGRAM.—In this subsection, the term 'eligible career pathway program' means a program that—

''(A) concurrently enrolls participants in connected adult education and eligible postsecondary programs;

''(B) provides counseling and supportive services to identify and attain academic and career goals;

''(C) provides structured course sequences that—

''(i) are articulated and contextualized; and

''(ii) allow students to advance to higher levels of education and employment;

''(D) provides opportunities for acceleration to attain recognized postsecondary credentials, including degrees, industry relevant certifications, and certificates of completion of apprenticeship programs;

''(E) is organized to meet the needs of adults;

''(F) is aligned with the education and skill needs of the regional economy; and

''(G) has been developed and implemented in collaboration with partners in business, workforce development, and economic development.''.

(2) The amendment made by paragraph (1) shall take effect as if such amendment was enacted on June 30, 2014, and shall apply to students who are enrolled or who first enroll in an eligible program of study on or after July 1, 2014.

(b) Section 401 (b)(2)(A)(ii) of the HEA is amended by inserting after ''year'' and before the comma ''except that a student eligible only under 484(d)(1)(A) who first enrolls in an eligible program of study on or after July 1, 2015 shall not be eligible for the amount of the increase calculated under paragraph (7)(B)''.

SEC. 310. (a) An institution of higher education that maintains an endowment fund supported with funds appropriated for title III or V of the HEA for fiscal year 2015 may use the income from that fund to award scholarships to students, subject to the limitation in section 331(c)(3)(B)(i) of the HEA. The use of such income for such purposes, prior to the enactment of this Act, shall be considered to have been an allowable use of that income, subject to that limitation.

(b) Subsection (a) shall be in effect until titles III and V of the HEA are reauthorized.

SEC. 311. In making awards under section 402D of the HEA with funds appropriated by this Act, the Secretary shall—

(1) notwithstanding any other provision of law, publish a notice inviting applications for new awards no later than December 18, 2014; and

(2) make all awards by August 10, 2015.

This title may be cited as the ''Department of Education Appropriations Act, 2015''.

TITLE IV

RELATED AGENCIES

COMMITTEE FOR PURCHASE FROM PEOPLE WHO ARE BLIND OR SEVERELY DISABLED

SALARIES AND EXPENSES

For expenses necessary for the Committee for Purchase From People Who Are Blind or Severely Disabled established by Public Law 92–28, $5,362,000.

CORPORATION FOR NATIONAL AND COMMUNITY SERVICE

OPERATING EXPENSES

For necessary expenses for the Corporation for National and Community Service (referred to in this title as ''CNCS'') to carry out the Domestic Volunteer Service Act of 1973 (referred to in this title as ''1973 Act'') and the National and Community Service Act of 1990 (referred to in this title as ''1990 Act''), $758,349,000, notwithstanding sections 198B(b)(3), 198S(g), 501(a)(6), 501(a)(4)(C), and 501(a)(4)(F) of the 1990 Act: *Provided*, That of the amounts provided under this heading: (1) up to 1 percent of program grant funds may be used to defray the costs of conducting grant application reviews, including the use of outside peer reviewers and electronic management of the grants cycle; (2) $70,000,000 shall be available for expenses authorized under section 501(a)(4)(E) of the 1990 Act; (3) $16,038,000 shall be available to provide assistance to State commissions on national and community service, under section 126(a) of the 1990 Act and notwithstanding section 501(a)(5)(B) of the 1990 Act; (4) $30,000,000 shall be available to carry out subtitle E of the 1990 Act; and (5) $3,800,000 shall be available for expenses authorized under section 501(a)(4)(F) of the 1990 Act, which, notwithstanding the provisions of section 198P shall be awarded by CNCS on a competitive basis: *Provided further*, That for the purposes of carrying out the 1990 Act, satisfying the requirements in section 122(c)(1)(D) may include a determination of need by the local community: *Provided further*, That not to exceed 20 percent of funds made available under section 501(a)(4)(E) of the 1990 Act may be used for Social Innovation Fund Pilot Program-related performance-based awards for Pay for Success projects and shall remain available through September 30, 2016: *Provided further*, That, with respect to the previous proviso, any funds obligated for such projects shall remain available for disbursement until expended, notwithstanding 31 U.S.C. 1552(a): *Provided further*, That any funds deobligated from projects under section 501(a)(4)(E) of the 1990 Act shall immediately be available for activities authorized under 198K of such Act.

PAYMENT TO THE NATIONAL SERVICE TRUST

(INCLUDING TRANSFER OF FUNDS)

For payment to the National Service Trust established under subtitle D of title I of the 1990 Act, $209,618,000, to remain available until expended: *Provided*, That CNCS may transfer additional funds from the amount provided within ''Operating Expenses'' allocated to grants under subtitle C of title I of the 1990 Act to the National Service Trust upon determination that such transfer is necessary to support the activities of national service participants and after notice is transmitted to the Committees on Appropriations of the House of Representatives and the Senate: *Provided further*, That amounts appropriated for or transferred to the National Service Trust may be invested under section 145(b) of the 1990 Act without regard to the requirement to apportion funds under 31 U.S.C. 1513(b).

SALARIES AND EXPENSES

For necessary expenses of administration as provided under section 501(a)(5) of the 1990 Act and under section 504(a) of the 1973 Act, including payment of salaries, authorized travel, hire of passenger motor vehicles, the rental of conference rooms in the District of Columbia, the employment of experts and consultants authorized under 5 U.S.C. 3109, and not to exceed $2,500 for official reception and representation expenses, $81,737,000.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the Inspector General Act of 1978, $5,250,000.

ADMINISTRATIVE PROVISIONS

SEC. 401. CNCS shall make any significant changes to program requirements, service delivery or policy only through public notice and comment rulemaking. For fiscal year 2015, during any grant selection process, an officer or employee of CNCS shall not knowingly disclose any covered grant selection information regarding such selection, directly or indirectly, to any person other than an officer or employee of CNCS that is authorized by CNCS to receive such information.

SEC. 402. AmeriCorps programs receiving grants under the National Service Trust program shall meet an overall minimum share requirement of 24 percent for the first 3 years that they receive AmeriCorps funding, and thereafter shall meet the overall minimum share requirement as provided in section 2521.60 of title 45, Code of Federal Regulations, without regard to the operating costs match requirement in section 121(e) or the member support Federal share limitations in section 140 of the 1990 Act, and subject to partial waiver consistent with section 2521.70 of title 45, Code of Federal Regulations.

SEC. 403. Donations made to CNCS under section 196 of the 1990 Act for the purposes of financing programs and operations under titles I and II of the 1973 Act or subtitle B, C, D, or E of title I of the 1990 Act shall be used to supplement and not supplant current programs and operations.

SEC. 404. In addition to the requirements in section 146(a) of the 1990 Act, use of an educational award for the purpose described in section 148(a)(4) shall be limited to individuals who are veterans as defined under section 101 of the Act.

SEC. 405. For the purpose of carrying out section 189D of the 1990 Act:

(1) Entities described in paragraph (a) of such section shall be considered ''qualified entities'' under section 3 of the National Child Protection Act of 1993 (''NCPA''); and

(2) Individuals described in such section shall be considered ''volunteers'' under section 3 of NCPA; and

(3) State Commissions on National and Community Service established pursuant to section 178 of the 1990 Act, are authorized to receive criminal history record information, consistent with Public Law 92–544.

CORPORATION FOR PUBLIC BROADCASTING

For payment to the Corporation for Public Broadcasting (''CPB''), as authorized by the Communications Act of 1934, an amount which shall be available within limitations specified by that Act, for the fiscal year 2017, $445,000,000: *Provided*, That none of the funds made available to CPB by this Act shall be used to pay for receptions, parties, or similar forms of entertainment for Government officials or employees: *Provided further*, That none of the funds made available to CPB by this Act shall be available or used to aid or support any program or activity from which any person is excluded, or is denied benefits, or is discriminated against, on the basis of race, color, national origin, religion, or sex: *Provided further*, That none of the funds made available to CPB by this Act shall be used to apply any political test or qualification in selecting, appointing, promoting, or taking any other personnel action with respect to officers, agents, and employees of CPB: *Provided further*, That none of the funds made available to CPB by this Act shall be used to support the Television Future Fund or any similar purpose.

FEDERAL MEDIATION AND CONCILIATION SERVICE

SALARIES AND EXPENSES

For expenses necessary for the Federal Mediation and Conciliation Service (''Service'') to carry out the functions vested in it by the Labor-Management Relations Act, 1947, including hire of passenger motor vehicles; for expenses necessary for the Labor-Management Cooperation Act of 1978; and for expenses necessary for the Service to carry out the functions vested in it by the Civil Service Reform Act, $45,666,000, including up to $400,000 to remain available through September 30, 2016 for activities authorized by the Labor-Management Cooperation Act of 1978: *Provided*, That notwithstanding 31 U.S.C. 3302, fees charged, up to full-cost recovery, for special training activities and other conflict resolution services and technical assistance, including those provided to foreign governments and international organizations, and for arbitration services shall be credited to and merged with this account, and shall remain available until expended: *Provided further*, That fees for arbitration services shall be available only for education, training, and professional development of the agency workforce: *Provided further*, That the Director of the Service is authorized to accept and use on behalf of the United States gifts of services and real, personal, or other property in the aid of any projects or functions within the Director's jurisdiction.

FEDERAL MINE SAFETY AND HEALTH REVIEW COMMISSION

SALARIES AND EXPENSES

For expenses necessary for the Federal Mine Safety and Health Review Commission, $16,751,000.

INSTITUTE OF MUSEUM AND LIBRARY SERVICES

OFFICE OF MUSEUM AND LIBRARY SERVICES: GRANTS AND ADMINISTRATION

For carrying out the Museum and Library Services Act of 1996 and the National Museum of African American History and Culture Act, $227,860,000.

MEDICAID AND CHIP PAYMENT AND ACCESS COMMISSION

SALARIES AND EXPENSES

For expenses necessary to carry out section 1900 of the Social Security Act, $7,650,000.

MEDICARE PAYMENT ADVISORY COMMISSION

SALARIES AND EXPENSES

For expenses necessary to carry out section 1805 of the Social Security Act, $11,749,000, to be transferred to this appropriation from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund.

NATIONAL COUNCIL ON DISABILITY

SALARIES AND EXPENSES

For expenses necessary for the National Council on Disability as authorized by title IV of the Rehabilitation Act of 1973, $3,250,000.

NATIONAL LABOR RELATIONS BOARD

SALARIES AND EXPENSES

For expenses necessary for the National Labor Relations Board to carry out the functions vested in it by the Labor-Management Relations Act, 1947, and other laws, $274,224,000: *Provided*, That no part of this appropriation shall be available to organize or assist in organizing agricultural laborers or used in connection with investigations, hearings, directives, or orders concerning bargaining units composed of agricultural laborers as referred to in section 2(3) of the Act of July 5, 1935, and as amended by the Labor-Management Relations Act, 1947, and as defined in section 3(f) of the Act of June 25, 1938, and including in said definition employees engaged in the maintenance and operation of ditches, canals, reservoirs, and waterways when maintained or operated on a mutual, nonprofit basis and at least 95 percent of the water stored or supplied thereby is used for farming purposes.

ADMINISTRATIVE PROVISION

SEC. 406. None of the funds provided by this Act or previous Acts making appropriations for the National Labor Relations Board may be used to issue any new administrative directive or regulation that would provide employees any means of voting through any electronic means in an election to determine a representative for the purposes of collective bargaining.

NATIONAL MEDIATION BOARD

SALARIES AND EXPENSES

For expenses necessary to carry out the provisions of the Railway Labor Act, including emergency boards appointed by the President, $13,227,000.

OCCUPATIONAL SAFETY AND HEALTH REVIEW COMMISSION

SALARIES AND EXPENSES

For expenses necessary for the Occupational Safety and Health Review Commission, $11,639,000.

RAILROAD RETIREMENT BOARD

DUAL BENEFITS PAYMENTS ACCOUNT

For payment to the Dual Benefits Payments Account, authorized under section 15(d) of the Railroad Retirement Act of 1974, $34,000,000, which shall include amounts becoming available in fiscal year 2014 pursuant to section 224(c)(1)(B) of Public Law 98–76; and in addition, an amount, not to exceed 2 percent of the amount provided herein, shall be available proportional to the amount by which the product of recipients and the average benefit received exceeds the amount available for payment of vested dual benefits: *Provided*, That the total amount provided herein shall be credited in 12 approximately equal amounts on the first day of each month in the fiscal year.

FEDERAL PAYMENTS TO THE RAILROAD RETIREMENT ACCOUNTS

For payment to the accounts established in the Treasury for the payment of benefits under the Railroad Retirement Act for interest earned on unnegotiated checks, $150,000, to remain available through September 30, 2016, which shall be the maximum amount available for payment pursuant to section 417 of Public Law 98–76.

LIMITATION ON ADMINISTRATION

For necessary expenses for the Railroad Retirement Board (''Board'') for administration of the Railroad Retirement Act and the Railroad Unemployment Insurance Act, $111,225,000, to be derived in such amounts as determined by the Board from the railroad retirement accounts and from moneys credited to the railroad unemployment insurance administration fund: *Provided*, That notwithstanding section 7(b)(9) of the Railroad Retirement Act this limitation may be used to hire attorneys only through the excepted service: *Provided further*, That the previous proviso shall not change the status under Federal employment laws of any attorney hired by the Railroad Retirement Board prior to January 1, 2013.

LIMITATION ON THE OFFICE OF INSPECTOR GENERAL

For expenses necessary for the Office of Inspector General for audit, investigatory and review activities, as authorized by the Inspector General Act of 1978, not more than $8,437,000, to be derived from the railroad retirement accounts and railroad unemployment insurance account.

SOCIAL SECURITY ADMINISTRATION

PAYMENTS TO SOCIAL SECURITY TRUST FUNDS

For payment to the Federal Old-Age and Survivors Insurance Trust Fund and the Federal Disability Insurance Trust Fund, as provided under sections 201(m), 228(g), and 1131(b)(2) of the Social Security Act, $16,400,000.

SUPPLEMENTAL SECURITY INCOME PROGRAM

For carrying out titles XI and XVI of the Social Security Act, section 401 of Public Law 92–603, section 212 of Public Law 93–66, as amended, and section 405 of Public Law 95–216, including payment to the Social Security trust funds for administrative expenses incurred pursuant to section 201(g)(1) of the Social Security Act, $41,232,978,000, to remain available until expended: *Provided*, That any portion of the funds provided to a State in the current fiscal year and not obligated by the State during that year shall be returned to the Treasury: *Provided further*, That not more than $83,000,000 shall be available for research and demonstrations under sections 1110, 1115, and 1144 of the Social Security Act, and remain available through September 30, 2017.

For making, after June 15 of the current fiscal year, benefit payments to individuals under title XVI of the Social Security Act, for unanticipated costs incurred for the current fiscal year, such sums as may be necessary.

For making benefit payments under title XVI of the Social Security Act for the first quarter of fiscal year 2016, $19,200,000,000, to remain available until expended.

LIMITATION ON ADMINISTRATIVE EXPENSES

For necessary expenses, including the hire of two passenger motor vehicles, and not to exceed $20,000 for official reception and representation expenses, not more than $10,284,945,000 may be expended, as authorized by section 201(g)(1) of the Social Security Act, from any one or all of the trust funds referred to in such section: *Provided*, That not less than $2,300,000 shall be for the Social Security Advisory Board: *Provided further*, That, $131,000,000 may be used for the costs associated with conducting continuing disability reviews under titles II and XVI of the Social Security Act and conducting redeterminations of eligibility under title XVI of the Social Security Act: *Provided further*, That the Commissioner may allocate additional funds under this paragraph above the level specified in the previous proviso for such activities but only to reconcile estimated and actual unit costs for conducting such activities and after notifying the Committees on Appropriations of the House of Representatives and the Senate at least 15 days in advance of any such reallocation: *Provided further*, That unobligated balances of funds provided under this paragraph at the end of fiscal year 2015 not needed for fiscal year 2015 shall remain available until expended to invest in the Social Security Administration information technology and telecommunications hardware and software infrastructure, including related equipment and non-payroll administrative expenses associated solely with this information technology and telecommunications infrastructure: *Provided further*, That the Commissioner of Social Security shall notify the Committees on Appropriations of the House of Representatives and the Senate prior to making unobligated balances available under the authority in the previous proviso: *Provided further*, That reimbursement to the trust funds under this heading for expenditures for official time for employees of the Social Security Administration pursuant to 5 U.S.C. 7131, and for facilities or support services for labor organizations pursuant to policies, regulations, or procedures referred to in section 7135(b) of such title shall be made by the Secretary of the Treasury, with interest, from amounts in the general fund not otherwise appropriated, as soon as possible after such expenditures are made.

In addition, for the costs associated with continuing disability reviews under titles II and XVI of the Social Security Act and for the cost associated with conducting redeterminations of eligibility under title XVI of the Social Security Act, $1,396,000,000 may be expended, as authorized by section 201(g)(1) of the Social Security Act, from any one or all of the trust funds referred to therein: *Provided*, That, of such amount, $273,000,000 is provided to meet the terms of section 251(b)(2)(B)(ii)(III) of the Balanced Budget and Emergency Deficit Control Act of 1985, as amended, and $1,123,000,000 is additional new budget authority specified for purposes of section 251(b)(2)(B) of such Act: *Provided further*, That the Commissioner shall provide to the Congress (at the conclusion of the fiscal year) a report on the obligation and expenditure of these funds, similar to the reports that were required by section 103(d)(2) of Public Law 104–121 for fiscal years 1996 through 2002.

In addition, $124,000,000 to be derived from administration fees in excess of $5.00 per supplementary payment collected pursuant to section 1616(d) of the Social Security Act or section 212(b)(3) of Public Law 93–66, which shall remain available until expended. To the extent that the amounts collected pursuant to such sections in fiscal year 2015 exceed $124,000,000, the amounts shall be available in fiscal year 2016 only to the extent provided in advance in appropriations Acts.

In addition, up to $1,000,000 to be derived from fees collected pursuant to section 303(c) of the Social Security Protection Act, which shall remain available until expended.

OFFICE OF INSPECTOR GENERAL

(INCLUDING TRANSFER OF FUNDS)

For expenses necessary for the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, $28,829,000, together with not to exceed $74,521,000, to be transferred and expended as authorized by section 201(g)(1) of the Social Security Act from the Federal Old-Age and Survivors Insurance Trust Fund and the Federal Disability Insurance Trust Fund.

In addition, an amount not to exceed 3 percent of the total provided in this appropriation may be transferred from the ''Limitation on Administrative Expenses'', Social Security Administration, to be merged with this account, to be available for the time and purposes for which this account is available: *Provided*, That notice of such transfers shall be transmitted promptly to the Committees on Appropriations of the House of Representatives and the Senate at least 15 days in advance of any transfer.

TITLE V

GENERAL PROVISIONS

(TRANSFER OF FUNDS)

SEC. 501. The Secretaries of Labor, Health and Human Services, and Education are authorized to transfer unexpended balances of prior appropriations to accounts corresponding to current appropriations provided in this Act. Such transferred balances shall be used for the same purpose, and for the same periods of time, for which they were originally appropriated.

SEC. 502. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

SEC. 503. (a) No part of any appropriation contained in this Act or transferred pursuant to section 4002 of Public Law 111–148 shall be used, other than for normal and recognized executive-legislative relationships, for publicity or propaganda purposes, for the preparation, distribution, or use of any kit, pamphlet, booklet, publication, electronic communication, radio, television, or video presentation designed to support or defeat the enactment of legislation before the Congress or any State or local legislature or legislative body, except in presentation to the Congress or any State or local legislature itself, or designed to support or defeat any proposed or pending regulation, administrative action, or order issued by the executive branch of any State or local government, except in presentation to the executive branch of any State or local government itself.

(b) No part of any appropriation contained in this Act or transferred pursuant to section 4002 of Public Law 111–148 shall be used to pay the salary or expenses of any grant or contract recipient, or agent acting for such recipient, related to any activity designed to influence the enactment of legislation, appropriations, regulation, administrative action, or Executive order proposed or pending before the Congress or any State government, State legislature or local legislature or legislative body, other than for normal and recognized executive-legislative relationships or participation by an agency or officer of a State, local or tribal government in policymaking and administrative processes within the executive branch of that government.

(c) The prohibitions in subsections (a) and (b) shall include any activity to advocate or promote any proposed, pending or future Federal, State or local tax increase, or any proposed, pending, or future requirement or restriction on any legal consumer product, including its sale or marketing, including but not limited to the advocacy or promotion of gun control.

SEC. 504. The Secretaries of Labor and Education are authorized to make available not to exceed $28,000 and $20,000, respectively, from funds available for salaries and expenses under titles I and III, respectively, for official reception and representation expenses; the Director of the Federal Mediation and Conciliation Service is authorized to make available for official reception and representation expenses not to exceed $5,000 from the funds available for ''Federal Mediation and Conciliation Service, Salaries and Expenses''; and the Chairman of the National Mediation Board is authorized to make available for official reception and representation expenses not to exceed $5,000 from funds available for ''National Mediation Board, Salaries and Expenses''.

SEC. 505. When issuing statements, press releases, requests for proposals, bid solicitations and other documents describing projects or programs funded in whole or in part with Federal money, all grantees receiving Federal funds included in this Act, including but not limited to State and local governments and recipients of Federal research grants, shall clearly state—

(1) the percentage of the total costs of the program or project which will be financed with Federal money;

(2) the dollar amount of Federal funds for the project or program; and

(3) percentage and dollar amount of the total costs of the project or program that will be financed by non-governmental sources.

SEC. 506. (a) None of the funds appropriated in this Act, and none of the funds in any trust fund to which funds are appropriated in this Act, shall be expended for any abortion.

(b) None of the funds appropriated in this Act, and none of the funds in any trust fund to which funds are appropriated in this Act, shall be expended for health benefits coverage that includes coverage of abortion.

(c) The term ''health benefits coverage'' means the package of services covered by a managed care provider or organization pursuant to a contract or other arrangement.

SEC. 507. (a) The limitations established in the preceding section shall not apply to an abortion—

(1) if the pregnancy is the result of an act of rape or incest; or

(2) in the case where a woman suffers from a physical disorder, physical injury, or physical illness, including a life-endangering physical condition caused by or arising from the pregnancy itself, that would, as certified by a physician, place the woman in danger of death unless an abortion is performed.

(b) Nothing in the preceding section shall be construed as prohibiting the expenditure by a State, locality, entity, or private person of State, local, or private funds (other than a State's or locality's contribution of Medicaid matching funds).

(c) Nothing in the preceding section shall be construed as restricting the ability of any managed care provider from offering abortion coverage or the ability of a State or locality to contract separately with such a provider for such coverage with State funds (other than a State's or locality's contribution of Medicaid matching funds).

(d)(1) None of the funds made available in this Act may be made available to a Federal agency or program, or to a State or local government, if such agency, program, or government subjects any institutional or individual health care entity to discrimination on the basis that the health care entity does not provide, pay for, provide coverage of, or refer for abortions.

(2) In this subsection, the term ''health care entity'' includes an individual physician or other health care professional, a hospital, a provider-sponsored organization, a health maintenance organization, a health insurance plan, or any other kind of health care facility, organization, or plan.

SEC. 508. (a) None of the funds made available in this Act may be used for—

(1) the creation of a human embryo or embryos for research purposes; or

(2) research in which a human embryo or embryos are destroyed, discarded, or knowingly subjected to risk of injury or death greater than that allowed for research on fetuses in utero under 45 CFR 46.204(b) and section 498(b) of the Public Health Service Act (42 U.S.C. 289g(b)).

(b) For purposes of this section, the term ''human embryo or embryos'' includes any organism, not protected as a human subject under 45 CFR 46 as of the date of the enactment of this Act, that is derived by fertilization, parthenogenesis, cloning, or any other means from one or more human gametes or human diploid cells.

SEC. 509. (a) None of the funds made available in this Act may be used for any activity that promotes the legalization of any drug or other substance included in schedule I of the schedules of controlled substances established under section 202 of the Controlled Substances Act except for normal and recognized executive-congressional communications.

(b) The limitation in subsection (a) shall not apply when there is significant medical evidence of a therapeutic advantage to the use of such drug or other substance or that federally sponsored clinical trials are being conducted to determine therapeutic advantage.

SEC. 510. None of the funds made available in this Act may be used to promulgate or adopt any final standard under section 1173(b) of the Social Security Act providing for, or providing for the assignment of, a unique health identifier for an individual (except in an individual's capacity as an employer or a health care provider), until legislation is enacted specifically approving the standard.

SEC. 511. None of the funds made available in this Act may be obligated or expended to enter into or renew a contract with an entity if—

(1) such entity is otherwise a contractor with the United States and is subject to the requirement in 38 U.S.C. 4212(d) regarding submission of an annual report to the Secretary of Labor concerning employment of certain veterans; and

(2) such entity has not submitted a report as required by that section for the most recent year for which such requirement was applicable to such entity.

SEC. 512. None of the funds made available in this Act may be transferred to any department, agency, or instrumentality of the United States Government, except pursuant to a transfer made by, or transfer authority provided in, this Act or any other appropriation Act.

SEC. 513. None of the funds made available by this Act to carry out the Library Services and Technology Act may be made available to any library covered by paragraph (1) of section 224(f) of such Act, as amended by the Children's Internet Protection Act, unless such library has made the certifications required by paragraph (4) of such section.

SEC. 514. (a) None of the funds provided under this Act, or provided under previous appropriations Acts to the agencies funded by this Act that remain available for obligation or expenditure in fiscal year 2015, or provided from any accounts in the Treasury of the United States derived by the collection of fees available to the agencies funded by this Act, shall be available for obligation or expenditure through a reprogramming of funds that—

(1) creates new programs;

(2) eliminates a program, project, or activity;

(3) increases funds or personnel by any means for any project or activity for which funds have been denied or restricted;

(4) relocates an office or employees;

(5) reorganizes or renames offices;

(6) reorganizes programs or activities; or

(7) contracts out or privatizes any functions or activities presently performed by Federal employees;

unless the Committees on Appropriations of the House of Representatives and the Senate are consulted 15 days in advance of such reprogramming or of an announcement of intent relating to such reprogramming, whichever occurs earlier, and are notified in writing 10 days in advance of such reprogramming.

(b) None of the funds provided under this Act, or provided under previous appropriations Acts to the agencies funded by this Act that remain available for obligation or expenditure in fiscal year 2015, or provided from any accounts in the Treasury of the United States derived by the collection of fees available to the agencies funded by this Act, shall be available for obligation or expenditure through a reprogramming of funds in excess of $500,000 or 10 percent, whichever is less, that—

(1) augments existing programs, projects (including construction projects), or activities;

(2) reduces by 10 percent funding for any existing program, project, or activity, or numbers of personnel by 10 percent as approved by Congress; or

(3) results from any general savings from a reduction in personnel which would result in a change in existing programs, activities, or projects as approved by Congress;

unless the Committees on Appropriations of the House of Representatives and the Senate are consulted 15 days in advance of such reprogramming or of an announcement of intent relating to such reprogramming, whichever occurs earlier, and are notified in writing 10 days in advance of such reprogramming.

SEC. 515. (a) None of the funds made available in this Act may be used to request that a candidate for appointment to a Federal scientific advisory committee disclose the political affiliation or voting history of the candidate or the position that the candidate holds with respect to political issues not directly related to and necessary for the work of the committee involved.

(b) None of the funds made available in this Act may be used to disseminate information that is deliberately false or misleading.

SEC. 516. Within 45 days of enactment of this Act, each department and related agency funded through this Act shall submit an operating plan that details at the program, project, and activity level any funding allocations for fiscal year 2015 that are different than those specified in this Act, the accompanying detailed table in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act) accompanying this Act, or the fiscal year 2015 budget request.

SEC. 517. The Secretaries of Labor, Health and Human Services, and Education shall each prepare and submit to the Committees on Appropriations of the House of Representatives and the Senate a report on the number and amount of contracts, grants, and cooperative agreements exceeding $500,000 in value and awarded by the Department on a non-competitive basis during each quarter of fiscal year 2015, but not to include grants awarded on a formula basis or directed by law. Such report shall include the name of the contractor or grantee, the amount of funding, the governmental purpose, including a justification for issuing the award on a non-competitive basis. Such report shall be transmitted to the Committees within 30 days after the end of the quarter for which the report is submitted.

SEC. 518. None of the funds appropriated in this Act shall be expended or obligated by the Commissioner of Social Security, for purposes of administering Social Security benefit payments under title II of the Social Security Act, to process any claim for credit for a quarter of coverage based on work performed under a social security account number that is not the claimant's number and the performance of such work under such number has formed the basis for a conviction of the claimant of a violation of section 208(a)(6) or (7) of the Social Security Act.

SEC. 519. None of the funds appropriated by this Act may be used by the Commissioner of Social Security or the Social Security Administration to pay the compensation of employees of the Social Security Administration to administer Social Security benefit payments, under any agreement between the United States and Mexico establishing totalization arrangements between the social security system established by title II of the Social Security Act and the social security system of Mexico, which would not otherwise be payable but for such agreement.

(RESCISSION)

SEC. 520. Of the funds made available for performance bonus payments under section 2105(a)(3)(E) of the Social Security Act, $1,745,000,000 are hereby rescinded.

SEC. 521. Notwithstanding any other provision of this Act, no funds appropriated in this Act shall be used to carry out any program of distributing sterile needles or syringes for the hypodermic injection of any illegal drug.

(RESCISSION)

SEC. 522. Of the funds made available for fiscal year 2015 under section 3403 of Public Law 111–148, $10,000,000 are rescinded.

SEC. 523. Not later than 30 days after the end of each calendar quarter, beginning with the first quarter of fiscal year 2013, the Departments of Labor, Health and Human Services and Education and the Social Security Administration shall provide the Committees on Appropriations of the House of Representatives and Senate a quarterly report on the status of balances of appropriations: *Provided*, That for balances that are unobligated and uncommitted, committed, and obligated but unexpended, the quarterly reports shall separately identify the amounts attributable to each source year of appropriation (beginning with fiscal year 2012, or, to the extent feasible, earlier fiscal years) from which balances were derived.

SEC. 524. (a) Federal agencies may use Federal discretionary funds that are made available in this Act to carry out up to 10 Performance Partnership Pilots. Such Pilots shall:

(1) be designed to improve outcomes for disconnected youth, and

(2) involve Federal programs targeted on disconnected youth, or designed to prevent youth from disconnecting from school or work, that provide education, training, employment, and other related social services. Such Pilots shall be governed by the provisions of section 526 of the Departments of Labor, Health and Human Services, and Education, and Related Agencies Appropriations Act, 2014, except that in carrying out such Pilots section 526 shall be applied by substituting ''FISCAL YEAR 2015'' for ''FISCAL YEAR 2014'' in the title of subsection (b) and by substituting ''September 30, 2019'' for ''September 30, 2018'' each place it appears.

(b) In addition, Federal agencies may use Federal discretionary funds that are made available in this Act to participate in Performance Partnership Pilots that are being carried out pursuant to the authority provided by section 526 of the Departments of Labor, Health and Human Services, and Education, and Related Agencies Appropriations Act, 2014.

SEC. 525. Each Federal agency, or in the case of an agency with multiple bureaus, each bureau (or operating division) funded under this Act that has research and development expenditures in excess of $100,000,000 per year shall develop a Federal research public access policy that provides for—

(1) the submission to the agency, agency bureau, or designated entity acting on behalf of the agency, a machine-readable version of the author's final peer-reviewed manuscripts that have been accepted for publication in peer-reviewed journals describing research supported, in whole or in part, from funding by the Federal Government;

(2) free online public access to such final peer-reviewed manuscripts or published versions not later than 12 months after the official date of publication; and

(3) compliance with all relevant copyright laws.

SEC. 526. (a) None of the funds made available in this Act may be used to maintain or establish a computer network unless such network blocks the viewing, downloading, and exchanging of pornography.

(b) Nothing in subsection (a) shall limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities.

SEC. 527. For purposes of carrying out Executive Order 13589, Office of Management and Budget Memorandum M–12–12 dated May 11, 2012, and requirements contained in the annual appropriations bills relating to conference attendance and expenditures:

(1) the operating divisions of HHS shall be considered independent agencies; and

(2) attendance at and support for scientific conferences shall be tabulated separately from and not included in agency totals.

(TRANSFER)

SEC. 528. (a) This section applies to the amounts that—

(1) are made available in this Act—

(A) under the heading ''REHABILITATION SERVICES AND DISABILITY RESEARCH'' in title III; or

(B) under the heading ''PROGRAM ADMINISTRATION'' under the heading ''DEPARTMENTAL MANAGEMENT'' in title III; and

(2) relate to functions described in subsection (b), (m)(1), or (n)(2) of section 491 of the WIOA.

(b) Amounts described in subsection (a) shall be obligated, expended, and transferred in accordance with that section 491.

SEC. 529. None of the funds made available under this or any other Act, or any prior Appropriations Act, may be provided to the Association of Community Organizations for Reform Now (ACORN), or any of its affiliates, subsidiaries, allied organizations, or successors.

TITLE VI

EBOLA RESPONSE AND PREPAREDNESS

DEPARTMENT OF HEALTH AND HUMAN SERVICES

CENTERS FOR DISEASE CONTROL AND PREVENTION

CDC-WIDE ACTIVITIES AND PROGRAM SUPPORT

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''CDC-Wide Activities and Program Support,'' $1,771,000,000, to remain available until September 30, 2019, to prevent, prepare for, and respond to Ebola domestically and internationally; for the transportation, medical care, treatment, and other related costs of persons quarantined or isolated under Federal or State quarantine law; and to carry out titles II, III, and XVII of the Public Health Service (''PHS'') Act with respect to domestic preparedness and global health: *Provided*, That no less than $10,000,000 shall be for worker-based training to prevent and reduce exposure of hospital employees, emergency first responders and other workers who are at risk of exposure to Ebola through their work duties: *Provided further*, That $597,000,000 shall be used to support national public health institutes and global health security: *Provided further*, That $155,000,000 shall be to support the Public Health Emergency Preparedness program: *Provided further*, That products purchased with these funds may, at the discretion of the Secretary of Health and Human Services, be deposited in the Strategic National Stockpile under section 319F–2 of the PHS Act: *Provided further*, That funds may be used for purchase and insurance of official motor vehicles in foreign countries: *Provided further*, That such funds may be transferred by the Director of the Centers for Disease Control and Prevention (''CDC'') to other accounts of the CDC for the purposes provided in this paragraph: *Provided further*, That the Director of the CDC shall notify the Committees on Appropriations of the House of Representatives and the Senate promptly after any transfer under the preceding proviso: *Provided further*, That the transfer authority provided in this paragraph is in addition to any other transfer authority provided by law: *Provided further*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL INSTITUTES OF HEALTH

NATIONAL INSTITUTE OF ALLERGY AND INFECTIOUS DISEASES

For an additional amount for ''National Institute of Allergy and Infectious Diseases'' to prevent, prepare for, and respond to Ebola domestically and internationally, including expenses related to carrying out section 301 and title IV of the PHS Act, $238,000,000, to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF THE SECRETARY

PUBLIC HEALTH AND SOCIAL SERVICES EMERGENCY FUND

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Public Health and Social Services Emergency Fund'' to prevent, prepare for, and respond to Ebola domestically or internationally, and to develop necessary medical countermeasures and vaccines including the development and purchase of vaccines, therapeutics, diagnostics, necessary medical supplies, and administrative activities, $733,000,000, to remain available until September 30, 2019: *Provided*, That products purchased with these funds may, at the discretion of the Secretary of Health and Human Services, be deposited in the Strategic National Stockpile under section 319F–2 of the PHS Act: *Provided further*, That, notwithstanding section 496(b) of the PHS Act, funds may be used for the renovation and alteration of privately owned facilities to improve preparedness and response capability at the State and local level: *Provided further*, That sections 319C–1(h)(3) and 319C–2(h) of the PHS Act shall not apply to funds appropriated under this heading: *Provided further*, That reimbursement of domestic transportation and treatment costs (other than costs paid or reimbursed by the individual's health coverage) for an individual treated in the United States for Ebola, before or after the date of enactment of this Act, shall be deemed to be a use of resources of the Secretary in implementation of a plan under section 311(c)(1) of the PHS Act (42 U.S.C. 243(c)(1)), and funds made available by this title shall be available for that purpose, at the discretion of the Secretary: *Provided further*, That funds appropriated in this paragraph may be used for the purposes specified in this paragraph and to the fund authorized by section 319F–4 of the PHS Act: *Provided further*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS

SEC. 601. For purposes of preventing, preparing for, and responding to Ebola domestically or internationally, the Secretary of Health and Human Services may use funds provided in this title—

(1) for the CDC to acquire, lease, construct, alter, renovate, equip, furnish, or manage facilities outside of the United States, as necessary to conduct such programs, in consultation with the Secretary of State, either directly for the use of the United States Government or for the use, pursuant to grants, direct assistance, or cooperative agreements, of public or nonprofit private institutions or agencies in participating foreign countries;

(2) for the CDC to obtain by contract (in accordance with section 3109 of title 5, but without regard to the limitations in such

section on the period of service and on pay) the personal services of experts or consultants who have scientific or other professional qualifications, except that in no case shall the compensation provided to any such expert or consultant exceed the daily equivalent of the annual rate of compensation for Executive Level II employees; and

(3) to use available resources to provide Federal assistance as necessary for repatriation notwithstanding the limitation on temporary assistance in section 1113(d) of the Social Security Act.

SEC. 602. The Secretary shall provide notice to the Committees on Appropriations of the House of Representatives and the Senate within 15 days of the use of the provisions in section 601.

SEC. 603. A grant awarded by the Department of Health and Human Services with funds made available by this title may be made conditional on agreement by the awardee to comply with existing and future guidance from the Secretary regarding control of the spread of the Ebola virus.

(TRANSFER OF FUNDS)

SEC. 604. Funds appropriated in this title may be transferred to, and merged with, other appropriation accounts of the Centers for Disease Control and Prevention, the Assistant Secretary for Preparedness and Response, or the National Institutes of Health for the purposes specified in this title following consultation with the Office of Management and Budget: *Provided*, That the Committees on Appropriations of the House of Representatives and the Senate shall be notified 10 days in advance of any such transfer: *Provided further*, That, upon a determination that all or part of the funds transferred from an appropriation are not necessary, such amounts may be transferred back to that appropriation: *Provided further*, That none of the funds made available by this title may be transferred pursuant to the authority in section 206 of this Act or section 241(a) of the PHS Act.

This division may be cited as the ''Departments of Labor, Health and Human Services, and Education, and Related Agencies Appropriations Act, 2015''.

DIVISION H—LEGISLATIVE BRANCH APPROPRIATIONS ACT, 2015

TITLE I

LEGISLATIVE BRANCH

SENATE

EXPENSE ALLOWANCES

For expense allowances of the Vice President, $18,760; the President Pro Tempore of the Senate, $37,520; Majority Leader of the Senate, $39,920; Minority Leader of the Senate, $39,920; Majority Whip of the Senate, $9,980; Minority Whip of the Senate, $9,980; Chairmen of the Majority and Minority Conference Committees, $4,690 for each Chairman; and Chairmen of the Majority and Minority Policy Committees, $4,690 for each Chairman; in all, $174,840.

REPRESENTATION ALLOWANCES FOR THE MAJORITY AND MINORITY LEADERS

For representation allowances of the Majority and Minority Leaders of the Senate, $14,070 for each such Leader; in all, $28,140.

SALARIES, OFFICERS AND EMPLOYEES

For compensation of officers, employees, and others as authorized by law, including agency contributions, $177,723,681, which shall be paid from this appropriation without regard to the following limitations:

OFFICE OF THE VICE PRESIDENT

For the Office of the Vice President, $2,417,248.

OFFICE OF THE PRESIDENT PRO TEMPORE

For the Office of the President Pro Tempore, $723,466.

OFFICES OF THE MAJORITY AND MINORITY LEADERS

For Offices of the Majority and Minority Leaders, $5,255,576.

OFFICES OF THE MAJORITY AND MINORITY WHIPS

For Offices of the Majority and Minority Whips, $3,359,424.

COMMITTEE ON APPROPRIATIONS

For salaries of the Committee on Appropriations, $15,142,000.

CONFERENCE COMMITTEES

For the Conference of the Majority and the Conference of the Minority, at rates of compensation to be fixed by the Chairman of each such committee, $1,658,000 for each such committee; in all, $3,316,000.

OFFICES OF THE SECRETARIES OF THE CONFERENCE OF THE MAJORITY AND THE CONFERENCE OF THE MINORITY

For Offices of the Secretaries of the Conference of the Majority and the Conference of the Minority, $817,402.

POLICY COMMITTEES

For salaries of the Majority Policy Committee and the Minority Policy Committee, $1,692,905 for each such committee; in all, $3,385,810.

OFFICE OF THE CHAPLAIN

For Office of the Chaplain, $416,886.

OFFICE OF THE SECRETARY

For Office of the Secretary, $24,772,000.

OFFICE OF THE SERGEANT AT ARMS AND DOORKEEPER

For Office of the Sergeant at Arms and Doorkeeper, $69,000,000.

OFFICES OF THE SECRETARIES FOR THE MAJORITY AND MINORITY

For Offices of the Secretary for the Majority and the Secretary for the Minority, $1,762,000.

AGENCY CONTRIBUTIONS AND RELATED EXPENSES

For agency contributions for employee benefits, as authorized by law, and related expenses, $47,355,869.

OFFICE OF THE LEGISLATIVE COUNSEL OF THE SENATE

For salaries and expenses of the Office of the Legislative Counsel of the Senate, $5,408,500.

OFFICE OF SENATE LEGAL COUNSEL

For salaries and expenses of the Office of Senate Legal Counsel, $1,120,000.

EXPENSE ALLOWANCES OF THE SECRETARY OF THE SENATE, SERGEANT AT ARMS AND DOORKEEPER OF THE SENATE, AND SECRETARIES FOR THE MAJORITY AND MINORITY OF THE SENATE

For expense allowances of the Secretary of the Senate, $7,110; Sergeant at Arms and Doorkeeper of the Senate, $7,110; Secretary for the Majority of the Senate, $7,110; Secretary for the Minority of the Senate, $7,110; in all, $28,440.

CONTINGENT EXPENSES OF THE SENATE

INQUIRIES AND INVESTIGATIONS

For expenses of inquiries and investigations ordered by the Senate, or conducted under paragraph 1 of rule XXVI of the Standing Rules of the Senate, section 112 of the Supplemental Appropriations and Rescission Act, 1980 (Public Law 96–304), and Senate Resolution 281, 96th Congress, agreed to March 11, 1980, $133,265,000, of which $26,650,000 shall remain available until September 30, 2017.

EXPENSES OF THE UNITED STATES SENATE CAUCUS ON INTERNATIONAL NARCOTICS CONTROL

For expenses of the United States Senate Caucus on International Narcotics Control, $508,000.

SECRETARY OF THE SENATE

For expenses of the Office of the Secretary of the Senate, $6,250,000 of which $4,350,000 shall remain available until September 30, 2019.

SERGEANT AT ARMS AND DOORKEEPER OF THE SENATE

For expenses of the Office of the Sergeant at Arms and Doorkeeper of the Senate, $128,300,499, which shall remain available until September 30, 2019.

MISCELLANEOUS ITEMS

For miscellaneous items, $21,178,002, which shall remain available until September 30, 2017.

SENATORS' OFFICIAL PERSONNEL AND OFFICE EXPENSE ACCOUNT

For Senators' Official Personnel and Office Expense Account, $390,000,000 of which $19,109,214 shall remain available until September 30, 2017.

OFFICIAL MAIL COSTS

For expenses necessary for official mail costs of the Senate, $300,000.

ADMINISTRATIVE PROVISIONS

SENATE STATIONERY PROCUREMENT

SEC. 1. (a) Sections 65, 66, 67, and 68 of the Revised Statutes (2 U.S.C. 6569, 6570, 6571) are repealed.

(b) The fifth paragraph after the paragraph under the side heading ''For contingent expenses, namely'': under the subheading ''Senate'', under the heading ''Legislative'' of the Act of March 3, 1887 (24 Stat. 596, chapter 392; 2 U.S.C. 6572), is amended by striking ''sections, sixty-five, sixty six, sixty-seven, sixty-eight, and sixty-nine,'' and inserting ''section 69''.

SEC. 2. Section 7(e) of the Legislative Branch Appropriations Act, 2003 (2 U.S.C. 6115 note) is amended by striking ''and the 110th Congress'' and inserting ''the 110th Congress, and the 114th Congress''.

HOUSE OF REPRESENTATIVES

SALARIES AND EXPENSES

For salaries and expenses of the House of Representatives, $1,180,736,000, as follows:

HOUSE LEADERSHIP OFFICES

For salaries and expenses, as authorized by law, $22,278,891, including: Office of the Speaker, $6,645,417, including $25,000 for official expenses of the Speaker; Office of the Majority Floor Leader, $2,180,048, including $10,000 for official expenses of the Majority Leader; Office of the Minority Floor Leader, $7,114,471, including $10,000 for official expenses of the Minority Leader; Office of the Majority Whip, including the Chief Deputy Majority Whip, $1,886,632, including $5,000 for official expenses of the Majority Whip; Office of the Minority Whip, including the Chief Deputy Minority Whip, $1,459,639, including $5,000 for official expenses of the Minority Whip; Republican Conference, $1,505,426; Democratic Caucus, $1,487,258: *Provided*, That such amount for salaries and expenses shall remain available from January 3, 2015 until January 2, 2016.

MEMBERS' REPRESENTATIONAL ALLOWANCES

INCLUDING MEMBERS' CLERK HIRE, OFFICIAL EXPENSES OF MEMBERS, AND OFFICIAL MAIL

For Members' representational allowances, including Members' clerk hire, official expenses, and official mail, $554,317,732.

COMMITTEE EMPLOYEES

STANDING COMMITTEES, SPECIAL AND SELECT

For salaries and expenses of standing committees, special and select, authorized by House resolutions, $123,903,173: *Provided*, That such amount shall remain available for such salaries and expenses until December 31, 2016, except that $2,300,000 of such amount

shall remain available until expended for committee room upgrading.

COMMITTEE ON APPROPRIATIONS

For salaries and expenses of the Committee on Appropriations, $23,271,004, including studies and examinations of executive agencies and temporary personal services for such committee, to be expended in accordance with section 202(b) of the Legislative Reorganization Act of 1946 and to be available for reimbursement to agencies for services performed: *Provided*, That such amount shall remain available for such salaries and expenses until December 31, 2016.

SALARIES, OFFICERS AND EMPLOYEES

For compensation and expenses of officers and employees, as authorized by law, $171,344,864, including: for salaries and expenses of the Office of the Clerk, including the positions of the Chaplain and the Historian, and including not more than $25,000 for official representative and reception expenses, of which not more than $20,000 is for the Family Room and not more than $2,000 is for the Office of the Chaplain, $24,009,473; for salaries and expenses of the Office of the Sergeant at Arms, including the position of Superintendent of Garages and the Office of Emergency Management, and including not more than $3,000 for official representation and reception expenses, $11,926,729 of which $4,344,000 shall remain available until expended; for salaries and expenses of the Office of the Chief Administrative Officer including not more than $3,000 for official representation and reception expenses, $113,100,000, of which $4,000,000 shall remain available until expended; for salaries and expenses of the Office of the Inspector General, $4,741,809; for salaries and expenses of the Office of General Counsel, $1,340,987; for salaries and expenses of the Office of the Parliamentarian, including the Parliamentarian, $2,000 for preparing the Digest of Rules, and not more than $1,000 for official representation and reception expenses, $1,952,249; for salaries and expenses of the Office of the Law Revision Counsel of the House, $4,087,587, of which $1,000,000 shall remain available until expended for the completion of the House Modernization Initiative; for salaries and expenses of the Office of the Legislative Counsel of the House, $8,892,975, of which $540,000 shall remain available until expended for the completion of the House Modernization Initiative; for salaries and expenses of the Office of Interparliamentary Affairs, $814,069; for other authorized employees, $478,986.

ALLOWANCES AND EXPENSES

For allowances and expenses as authorized by House resolution or law, $285,620,336, including: supplies, materials, administrative costs and Federal tort claims, $4,152,789; official mail for committees, leadership offices, and administrative offices of the House, $190,486; Government contributions for health, retirement, Social Security, and other applicable employee benefits, $256,635,776, to remain available until March 31, 2016; Business Continuity and Disaster Recovery, $16,217,008 of which $5,000,000 shall remain available until expended; transition activities for new members and staff, $3,737,000, to remain available until expended; Wounded Warrior Program $2,500,000, to remain available until expended; Office of Congressional Ethics, $1,467,030; and miscellaneous items including purchase, exchange, maintenance, repair and operation of House motor vehicles, interparliamentary receptions, and gratuities to heirs of deceased employees of the House, $720,247.

ADMINISTRATIVE PROVISIONS

SEC. 101. (a) REQUIRING AMOUNTS REMAINING IN MEMBERS' REPRESENTATIONAL ALLOWANCES TO BE USED FOR DEFICIT REDUCTION OR TO REDUCE THE FEDERAL DEBT.—Notwithstanding any other provision of law, any amounts appropriated under this Act for ''HOUSE OF REPRESENTATIVES—SALARIES AND EXPENSES—MEMBERS' REPRESENTATIONAL ALLOWANCES'' shall be available only for fiscal year 2015. Any amount remaining after all payments are made under such allowances for fiscal year 2015 shall be deposited in the Treasury and used for deficit reduction (or, if there is no Federal budget deficit after all such payments have been made, for reducing the Federal debt, in such manner as the Secretary of the Treasury considers appropriate).

(b) REGULATIONS.—The Committee on House Administration of the House of Representatives shall have authority to prescribe regulations to carry out this section.

(c) DEFINITION.—As used in this section, the term ''Member of the House of Representatives'' means a Representative in, or a Delegate or Resident Commissioner to, the Congress.

DELIVERY OF BILLS AND RESOLUTIONS

SEC. 102. None of the funds made available in this Act may be used to deliver a printed copy of a bill, joint resolution, or resolution to the office of a Member of the House of Representatives (including a Delegate or Resident Commissioner to the Congress) unless the Member requests a copy.

DELIVERY OF CONGRESSIONAL RECORD

SEC. 103. None of the funds made available by this Act may be used to deliver a printed copy of any version of the Congressional Record to the office of a Member of the House of Representatives (including a Delegate or Resident Commissioner to the Congress).

LIMITATION ON AMOUNT AVAILABLE TO LEASE VEHICLES

SEC. 104. None of the funds made available in this Act may be used by the Chief Administrative Officer of the House of Representatives to make any payments from any Members' Representational Allowance for the leasing of a vehicle, excluding mobile district offices, in an aggregate amount that exceeds $1,000 for the vehicle in any month.

LIMITATION ON PRINTED COPIES OF U.S. CODE TO HOUSE

SEC. 105. None of the funds made available by this Act may be used to provide an aggregate number of more than 50 printed copies of any edition of the United States Code to all offices of the House of Representatives.

DELIVERY OF REPORTS OF DISBURSEMENTS

SEC. 106. None of the funds made available by this Act may be used to deliver a printed copy of the report of disbursements for the operations of the House of Representatives under section 106 of the House of Representatives Administrative Reform Technical Corrections Act (2 U.S.C. 5535) to the office of a Member of the House of Representatives (including a Delegate or Resident Commissioner to the Congress).

DELIVERY OF DAILY CALENDAR

SEC. 107. None of the funds made available by this Act may be used to deliver to the office of a Member of the House of Representatives (including a Delegate or Resident Commissioner to the Congress) a printed copy of the Daily Calendar of the House of Representatives which is prepared by the Clerk of the House of Representatives.

JOINT ITEMS

For Joint Committees, as follows:

JOINT ECONOMIC COMMITTEE

For salaries and expenses of the Joint Economic Committee, $4,203,000, to be disbursed by the Secretary of the Senate.

JOINT COMMITTEE ON TAXATION

For salaries and expenses of the Joint Committee on Taxation, $10,095,000, to be disbursed by the Chief Administrative Officer of the House of Representatives.

For other joint items, as follows:

OFFICE OF THE ATTENDING PHYSICIAN

For medical supplies, equipment, and contingent expenses of the emergency rooms, and for the Attending Physician and his assistants, including:

(1) an allowance of $2,175 per month to the Attending Physician;

(2) an allowance of $1,300 per month to the Senior Medical Officer;

(3) an allowance of $725 per month each to three medical officers while on duty in the Office of the Attending Physician;

(4) an allowance of $725 per month to 2 assistants and $580 per month each not to exceed 11 assistants on the basis heretofore provided for such assistants; and

(5) $2,486,000 for reimbursement to the Department of the Navy for expenses incurred for staff and equipment assigned to the Office of the Attending Physician, which shall be advanced and credited to the applicable appropriation or appropriations from which such salaries, allowances, and other expenses are payable and shall be available for all the purposes thereof, $3,371,000, to be disbursed by the Chief Administrative Officer of the House of Representatives.

OFFICE OF CONGRESSIONAL ACCESSIBILITY SERVICES

SALARIES AND EXPENSES

For salaries and expenses of the Office of Congressional Accessibility Services, $1,387,000, to be disbursed by the Secretary of the Senate.

CAPITOL POLICE

SALARIES

For salaries of employees of the Capitol Police, including overtime, hazardous duty pay, and Government contributions for health, retirement, social security, professional liability insurance, and other applicable employee benefits, $286,500,000 of which overtime shall not exceed $23,425,000 unless the Committee on Appropriations of the House and Senate are notified, to be disbursed by the Chief of the Capitol Police or his designee.

GENERAL EXPENSES

For necessary expenses of the Capitol Police, including motor vehicles, communications and other equipment, security equipment and installation, uniforms, weapons, supplies, materials, training, medical services, forensic services, stenographic services, personal and professional services, the employee assistance program, the awards program, postage, communication services, travel advances, relocation of instructor and liaison personnel for the Federal Law Enforcement Training Center, and not more than $5,000 to be expended on the certification of the Chief of the Capitol Police in connection with official representation and reception expenses, $61,459,000, to be disbursed by the Chief of the Capitol Police or his designee: *Provided*, That, notwithstanding any other provision of law, the cost of basic training for the Capitol Police at the Federal Law Enforcement Training Center for fiscal year 2015 shall be paid by the Secretary of Homeland Security from funds available to the Department of Homeland Security.

OFFICE OF COMPLIANCE

SALARIES AND EXPENSES

For salaries and expenses of the Office of Compliance, as authorized by section 305 of the Congressional Accountability Act of 1995 (2 U.S.C. 1385), $3,959,000, of which $450,000 shall remain available until September 30, 2016: *Provided*, That not more than $500 may

be expended on the certification of the Executive Director of the Office of Compliance in connection with official representation and reception expenses.

ADMINISTRATIVE PROVISION

EMPLOYEE NOTIFICATIONS

SEC. 1001. Section 301(h)(2) of the Congressional Accountability Act of 1995 (2 U.S.C. 1381(h)(2)) is amended by striking ''the residences of covered employees'' and inserting ''covered employees by the end of each fiscal year''.

CONGRESSIONAL BUDGET OFFICE

SALARIES AND EXPENSES

For salaries and expenses necessary for operation of the Congressional Budget Office, including not more than $6,000 to be expended on the certification of the Director of the Congressional Budget Office in connection with official representation and reception expenses, $45,700,000.

ARCHITECT OF THE CAPITOL

GENERAL ADMINISTRATION

For salaries for the Architect of the Capitol, and other personal services, at rates of pay provided by law; for surveys and studies in connection with activities under the care of the Architect of the Capitol; for all necessary expenses for the general and administrative support of the operations under the Architect of the Capitol including the Botanic Garden; electrical substations of the Capitol, Senate and House office buildings, and other facilities under the jurisdiction of the Architect of the Capitol; including furnishings and office equipment; including not more than $5,000 for official reception and representation expenses, to be expended as the Architect of the Capitol may approve; for purchase or exchange, maintenance, and operation of a passenger motor vehicle, $91,455,000.

CAPITOL BUILDING

For all necessary expenses for the maintenance, care and operation of the Capitol, $54,665,000, of which $9,134,000 shall remain available until September 30, 2019, and of which $21,222,000 shall remain available until expended.

CAPITOL GROUNDS

For all necessary expenses for care and improvement of grounds surrounding the Capitol, the Senate and House office buildings, and the Capitol Power Plant, $11,973,000, of which $2,000,000 shall remain available until September 30, 2019.

SENATE OFFICE BUILDINGS

For all necessary expenses for the maintenance, care and operation of Senate office buildings; and furniture and furnishings to be expended under the control and supervision of the Architect of the Capitol, $94,313,000, of which $36,488,000 shall remain available until September 30, 2019.

HOUSE OFFICE BUILDINGS

For all necessary expenses for the maintenance, care and operation of the House office buildings, $89,446,898, of which $24,824,898 shall remain available until September 30, 2019.

In addition, for a payment to the House Historic Buildings Revitalization Trust Fund, $70,000,000, to remain available until expended.

CAPITOL POWER PLANT

For all necessary expenses for the maintenance, care and operation of the Capitol Power Plant; lighting, heating, power (including the purchase of electrical energy) and water and sewer services for the Capitol, Senate and House office buildings, Library of Congress buildings, and the grounds about the same, Botanic Garden, Senate garage, and air conditioning refrigeration not supplied from plants in any of such buildings; heating the Government Printing Office and Washington City Post Office, and heating and chilled water for air conditioning for the Supreme Court Building, the Union Station complex, the Thurgood Marshall Federal Judiciary Building and the Folger Shakespeare Library, expenses for which shall be advanced or reimbursed upon request of the Architect of the Capitol and amounts so received shall be deposited into the Treasury to the credit of this appropriation, $90,652,000, of which $8,686,000 shall remain available until September 30, 2019: *Provided*, That not more than $9,000,000 of the funds credited or to be reimbursed to this appropriation as herein provided shall be available for obligation during fiscal year 2015.

LIBRARY BUILDINGS AND GROUNDS

For all necessary expenses for the mechanical and structural maintenance, care and operation of the Library buildings and grounds, $42,180,000, of which $17,042,000 shall remain available until September 30, 2019.

CAPITOL POLICE BUILDINGS, GROUNDS, AND SECURITY

For all necessary expenses for the maintenance, care and operation of buildings, grounds and security enhancements of the United States Capitol Police, wherever located, the Alternate Computer Facility, and AOC security operations, $19,159,000, of which $1,000,000 shall remain available until September 30, 2019.

BOTANIC GARDEN

For all necessary expenses for the maintenance, care and operation of the Botanic Garden and the nurseries, buildings, grounds, and collections; and purchase and exchange, maintenance, repair, and operation of a passenger motor vehicle; all under the direction of the Joint Committee on the Library, $15,573,000, of which $5,693,000 shall remain available until September 30, 2019: *Provided*, That of the amount made available under this heading, the Architect of the Capitol may obligate and expend such sums as may be necessary for the maintenance, care and operation of the National Garden established under section 307E of the Legislative Branch Appropriations Act, 1989 (2 U.S.C. 2146), upon vouchers approved by the Architect of the Capitol or a duly authorized designee.

CAPITOL VISITOR CENTER

For all necessary expenses for the operation of the Capitol Visitor Center, $20,844,000.

ADMINISTRATIVE PROVISIONS

NO BONUSES FOR CONTRACTORS BEHIND SCHEDULE OR OVER BUDGET

SEC. 1101. None of the funds made available in this Act for the Architect of the Capitol may be used to make incentive or award payments to contractors for work on contracts or programs for which the contractor is behind schedule or over budget, unless the Architect of the Capitol, or agency-employed designee, determines that any such deviations are due to unforeseeable events, government-driven scope changes, or are not significant within the overall scope of the project and/or program.

U.S. BOTANIC GARDEN ADMINISTRATION OF EDUCATIONAL OUTREACH AND SERVICES

SEC. 1102. (a) The Architect of the Capitol, subject to the direction of the Joint Committee of Congress on the Library, may enter into cooperative agreements with entities under such terms as the Architect determines advisable, in order to support the United States Botanic Garden in carrying out its duties, authorities, and mission.

(b)(1) The Architect of the Capitol may, subject to the direction of the Joint Committee of Congress on the Library, enter into a no-cost agreement, through a contract, cooperative agreement, or memorandum of understanding, with a qualified entity to conduct, or provide support for, an educational exhibit, program, class, or outreach that benefits the educational mission of the United States Botanic Garden.

(2) Any agreement under paragraph (1) may—

(A) allow the qualified entity to accept fees for any program or class described in paragraph (1) in order to cover all or a portion of the entity's costs of any supplies, honoraria, or associated expenses for the program or class; and

(B) subject to such terms as the Architect considers appropriate and necessary, grant temporary concessions to the qualified entity, or allow the qualified entity to grant temporary concessions to another person, in connection with an educational exhibit, program, class, or outreach described in paragraph (1), including concessions for food and merchandise sales that are specifically related to the educational mission involved.

(3) Section 5104(c) of title 40, United States Code, shall not apply to any activity carried out under this subsection.

(4) In this subsection, the term ''qualified entity'' means—

(A) the National Fund for the United States Botanic Garden; and

(B) any other organization described in section 501(c) of the Internal Revenue Code of 1986 and exempt from tax under section 501(a) of such Code that the Architect of the Capitol determines shares interests complementary to the educational mission of the United States Botanic Garden.

(c) Any authority under subsection (a) or (b) shall not apply to any agreement providing for the construction or improvement of real property.

(d) This section shall apply with respect to fiscal year 2015 and each succeeding fiscal year.

SCRIMS

SEC. 1103. None of the funds made available by this Act may be used for scrims containing photographs of building facades during restoration or construction projects performed by the Architect of the Capitol.

LIBRARY OF CONGRESS

SALARIES AND EXPENSES

For necessary expenses of the Library of Congress not otherwise provided for, including development and maintenance of the Library's catalogs; custody and custodial care of the Library buildings; special clothing; cleaning, laundering and repair of uniforms; preservation of motion pictures in the custody of the Library; operation and maintenance of the American Folklife Center in the Library; activities under the Civil Rights History Project Act of 2009; preparation and distribution of catalog records and other publications of the Library; hire or purchase of one passenger motor vehicle; and expenses of the Library of Congress Trust Fund Board not properly chargeable to the income of any trust fund held by the Board, $419,357,000, of which not more than $6,000,000 shall be derived from collections credited to this appropriation during fiscal year 2015, and shall remain available until expended, under the Act of June 28, 1902 (chapter 1301; 32 Stat. 480; 2 U.S.C. 150) and not more than $350,000 shall be derived from collections during fiscal year 2015 and shall remain available until expended for the development and maintenance of an international legal information database and activities related thereto: *Provided*, That the Library of Congress may not obligate or expend any funds derived from collections under the Act of June 28, 1902, in excess of the amount authorized for obligation

or expenditure in appropriations Acts: *Provided further*, That the total amount available for obligation shall be reduced by the amount by which collections are less than $6,350,000: *Provided further*, That of the total amount appropriated, not more than $12,000 may be expended, on the certification of the Librarian of Congress, in connection with official representation and reception expenses for the Overseas Field Offices: *Provided further*, That of the total amount appropriated, $8,231,000 shall remain available until expended for the digital collections and educational curricula program.

COPYRIGHT OFFICE

SALARIES AND EXPENSES

For all necessary expenses of the Copyright Office, $54,303,000, of which not more than $27,971,000, to remain available until expended, shall be derived from collections credited to this appropriation during fiscal year 2015 under section 708(d) of title 17, United States Code: *Provided*, That the Copyright Office may not obligate or expend any funds derived from collections under such section, in excess of the amount authorized for obligation or expenditure in appropriations Acts: *Provided further*, That not more than $5,611,000 shall be derived from collections during fiscal year 2015 under sections 111(d)(2), 119(b)(2), 803(e), 1005, and 1316 of such title: *Provided further*, That the total amount available for obligation shall be reduced by the amount by which collections are less than $33,582,000: *Provided further*, That not more than $100,000 of the amount appropriated is available for the maintenance of an ''International Copyright Institute'' in the Copyright Office of the Library of Congress for the purpose of training nationals of developing countries in intellectual property laws and policies: *Provided further*, That not more than $6,500 may be expended, on the certification of the Librarian of Congress, in connection with official representation and reception expenses for activities of the International Copyright Institute and for copyright delegations, visitors, and seminars: *Provided further*, That notwithstanding any provision of chapter 8 of title 17, United States Code, any amounts made available under this heading which are attributable to royalty fees and payments received by the Copyright Office pursuant to sections 111, 119, and chapter 10 of such title may be used for the costs incurred in the administration of the Copyright Royalty Judges program, with the exception of the costs of salaries and benefits for the Copyright Royalty Judges and staff under section 802(e).

CONGRESSIONAL RESEARCH SERVICE

SALARIES AND EXPENSES

For necessary expenses to carry out the provisions of section 203 of the Legislative Reorganization Act of 1946 (2 U.S.C. 166) and to revise and extend the Annotated Constitution of the United States of America, $106,945,000: *Provided*, That no part of such amount may be used to pay any salary or expense in connection with any publication, or preparation of material therefor (except the Digest of Public General Bills), to be issued by the Library of Congress unless such publication has obtained prior approval of either the Committee on House Administration of the House of Representatives or the Committee on Rules and Administration of the Senate.

BOOKS FOR THE BLIND AND PHYSICALLY HANDICAPPED

SALARIES AND EXPENSES

For salaries and expenses to carry out the Act of March 3, 1931 (chapter 400; 46 Stat. 1487; 2 U.S.C. 135a), $50,248,000: *Provided*, That of the total amount appropriated, $650,000 shall be available to contract to provide newspapers to blind and physically handicapped residents at no cost to the individual.

ADMINISTRATIVE PROVISION

REIMBURSABLE AND REVOLVING FUND ACTIVITIES

SEC. 1201. (a) IN GENERAL.—For fiscal year 2015, the obligational authority of the Library of Congress for the activities described in subsection (b) may not exceed $203,058,000.

(b) ACTIVITIES.—The activities referred to in subsection (a) are reimbursable and revolving fund activities that are funded from sources other than appropriations to the Library in appropriations Acts for the legislative branch.

GOVERNMENT PUBLISHING OFFICE

CONGRESSIONAL PUBLISHING

(INCLUDING TRANSFER OF FUNDS)

For authorized publishing of congressional information and the distribution of congressional information in any format; expenses necessary for preparing the semimonthly and session index to the Congressional Record, as authorized by law (section 902 of title 44, United States Code); publishing of Government publications authorized by law to be distributed to Members of Congress; and publishing and distribution of Government publications authorized by law to be distributed without charge to the recipient, $79,736,000: *Provided*, That this appropriation shall not be available for paper copies of the permanent edition of the Congressional Record for individual Representatives, Resident Commissioners or Delegates authorized under section 906 of title 44, United States Code: *Provided further*, That this appropriation shall be available for the payment of obligations incurred under the appropriations for similar purposes for preceding fiscal years: *Provided further*, That notwithstanding the 2-year limitation under section 718 of title 44, United States Code, none of the funds appropriated or made available under this Act or any other Act for printing and binding and related services provided to Congress under chapter 7 of title 44, United States Code, may be expended to print a document, report, or publication after the 27-month period beginning on the date that such document, report, or publication is authorized by Congress to be printed, unless Congress reauthorizes such printing in accordance with section 718 of title 44, United States Code: *Provided further*, That any unobligated or unexpended balances in this account or accounts for similar purposes for preceding fiscal years may be transferred to the Government Publishing Office business operations revolving fund for carrying out the purposes of this heading, subject to the approval of the Committees on Appropriations of the House of Representatives and Senate: *Provided further*, That notwithstanding sections 901, 902, and 906 of title 44, United States Code, this appropriation may be used to prepare indexes to the Congressional Record on only a monthly and session basis.

PUBLIC INFORMATION PROGRAMS OF THE SUPERINTENDENT OF DOCUMENTS

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For expenses of the public information programs of the Office of Superintendent of Documents necessary to provide for the cataloging and indexing of Government publications and their distribution to the public, Members of Congress, other Government agencies, and designated depository and international exchange libraries as authorized by law, $31,500,000: *Provided*, That amounts of not more than $2,000,000 from current year appropriations are authorized for producing and disseminating Congressional serial sets and other related publications for fiscal years 2013 and 2014 to depository and other designated libraries: *Provided further*, That any unobligated or unexpended balances in this account or accounts for similar purposes for preceding fiscal years may be transferred to the Government Publishing Office business operations revolving fund for carrying out the purposes of this heading, subject to the approval of the Committees on Appropriations of the House of Representatives and Senate.

GOVERNMENT PUBLISHING OFFICE BUSINESS OPERATIONS REVOLVING FUND

For payment to the Government Publishing Office Business Operations Revolving Fund, $8,757,000, to remain available until expended, for information technology development and facilities repair: *Provided*, That the Government Publishing Office is hereby authorized to make such expenditures, within the limits of funds available and in accordance with law, and to make such contracts and commitments without regard to fiscal year limitations as provided by section 9104 of title 31, United States Code, as may be necessary in carrying out the programs and purposes set forth in the budget for the current fiscal year for the Government Publishing Office business operations revolving fund: *Provided further*, That not more than $7,500 may be expended on the certification of the Director of the Government Publishing Office in connection with official representation and reception expenses: *Provided further*, That the business operations revolving fund shall be available for the hire or purchase of not more than 12 passenger motor vehicles: *Provided further*, That expenditures in connection with travel expenses of the advisory councils to the Director of the Government Publishing Office shall be deemed necessary to carry out the provisions of title 44, United States Code: *Provided further*, That the business operations revolving fund shall be available for temporary or intermittent services under section 3109(b) of title 5, United States Code, but at rates for individuals not more than the daily equivalent of the annual rate of basic pay for level V of the Executive Schedule under section 5316 of such title: *Provided further*, That activities financed through the business operations revolving fund may provide information in any format: *Provided further*, That the business operations revolving fund and the funds provided under the heading ''Public Information Programs of the Superintendent of Documents'' may not be used for contracted security services at GPO's passport facility in the District of Columbia.

ADMINISTRATIVE PROVISION

REDESIGNATION OF GOVERNMENT PRINTING OFFICE TO GOVERNMENT PUBLISHING OFFICE

SEC. 1301. (a) IN GENERAL.—The Government Printing Office is hereby redesignated the Government Publishing Office.

(b) REFERENCES.—Any reference to the Government Printing Office in any law, rule, regulation, certificate, directive, instruction, or other official paper in force on the date of enactment of this Act shall be considered to refer and apply to the Government Publishing Office.

(c) TITLE 44, UNITED STATES CODE.—Title 44, United States Code, is amended—

(1) by striking ''Public Printer'' each place that term appears and inserting ''Director of the Government Publishing Office''; and

(2) in the heading for each of sections 301, 302, 303, 304, 305, 306, 307, 502, 710, 1102, 1111, 1115, 1340, 1701, 1712, and 1914, by striking ''**PUBLIC PRINTER**'' and inserting ''**DIRECTOR OF THE GOVERNMENT PUBLISHING OFFICE**''.

(d) OTHER REFERENCES.—Any reference in any law other than in title 44, United States

Code, or in any rule, regulation, certificate, directive, instruction, or other official paper in force on the date of enactment of this Act to the Public Printer shall be considered to refer and apply to the Director of the Government Publishing Office.

(e) TITLE 44, UNITED STATES CODE.—Title 44, United States Code, is amended—

(1) by striking ''Deputy Public Printer'' each place that term appears and inserting ''Deputy Director of the Government Publishing Office''; and

(2) in the heading for each of sections 302 and 303, by striking ''**DEPUTY PUBLIC PRINTER**'' and inserting ''**DEPUTY DIRECTOR OF THE GOVERNMENT PUBLISHING OFFICE**''.

(f) OTHER REFERENCES.—Any reference in any law other than in title 44, United States Code, or in any rule, regulation, certificate, directive, instruction, or other official paper in force on the date of enactment of this Act to the Deputy Public Printer shall be considered to refer and apply to the Deputy Director of the Government Publishing Office.

(g) Section 301 of title 44, United States Code, is amended—

(1) in the first sentence, by striking '', who must be a practical printer and versed in the art of bookbinding,''; and

(2) in the second sentence, by striking ''His'' and inserting ''The''.

(h) Section 302 of title 44, United States Code, is amended—

(1) in the first sentence, by striking '', who must be a practical printer and versed in the art of bookbinding,''; and

(2) in the second sentence—

(A) by striking ''He'' and inserting ''The Deputy Director of the Government Publishing Office'';

(B) by striking ''perform the duties formerly required of the chief clerk,'';

(C) by striking '', and perform'' and inserting ''and perform''; and

(D) by striking ''of him''.

(i) Chapter 3 of title 44, United States Code is amended—

(1) in the first sentence of section 304, by striking ''or his'' and inserting ''or the Director's'';

(2) in section 305(a)—

(A) by striking ''he considers'' and inserting ''the Director considers''; and

(B) by striking ''He may not'' and inserting ''The Director of the Government Publishing Office may not'';

(3) in section 306, by striking ''his direction'' and inserting ''the direction of the Director'';

(4) in section 308—

(A) in subsection (b)(1)—

(i) by striking ''his accounts'' and inserting ''the accounts of the disbursing officer''; and

(ii) by striking ''his name'' and inserting ''the name of the disbursing officer'';

(B) in subsection (b)(2)—

(i) by striking ''his estate'' and inserting ''the estate of the disbursing officer'';

(ii) by striking ''to him'' and inserting ''to the deputy disbursing officer''; and

(iii) by striking ''his service'' and inserting ''the service of the deputy disbursing officer''; and

(C) in subsection (c)(1)—

(i) by striking ''by him'' and inserting ''by such officer or employee'';

(ii) by striking ''his discretion'' and inserting ''the discretion of the Comptroller General''; and

(iii) by striking ''whenever he'' each place that terms appears and inserting ''whenever the Comptroller General'';

(5) in section 309—

(A) in the second sentence of subsection (a), by striking ''by him'' and inserting ''by the Director''; and

(B) in subsection (f), by striking ''his or her discretion'' and inserting ''the discretion of the Comptroller General'';

(6) in section 310, by striking ''his written request'' and inserting ''the written request of the Director'';

(7) in section 311(b), by striking ''he justifies'' and inserting ''the Director justifies'';

(8) in section 312, by striking ''his service'' and inserting ''the service of such officer''; and

(9) in section 317, by striking ''his delegate'' and inserting ''a delegate of the Director''.

GOVERNMENT ACCOUNTABILITY OFFICE

SALARIES AND EXPENSES

For necessary expenses of the Government Accountability Office, including not more than $12,500 to be expended on the certification of the Comptroller General of the United States in connection with official representation and reception expenses; temporary or intermittent services under section 3109(b) of title 5, United States Code, but at rates for individuals not more than the daily equivalent of the annual rate of basic pay for level IV of the Executive Schedule under section 5315 of such title; hire of one passenger motor vehicle; advance payments in foreign countries in accordance with section 3324 of title 31, United States Code; benefits comparable to those payable under sections 901(5), (6), and (8) of the Foreign Service Act of 1980 (22 U.S.C. 4081(5), (6), and (8)); and under regulations prescribed by the Comptroller General of the United States, rental of living quarters in foreign countries, $522,000,000: *Provided*, That, in addition, $23,750,000 of payments received under sections 782, 3521, and 9105 of title 31, United States Code, shall be available without fiscal year limitation: *Provided further*, That this appropriation and appropriations for administrative expenses of any other department or agency which is a member of the National Intergovernmental Audit Forum or a Regional Intergovernmental Audit Forum shall be available to finance an appropriate share of either Forum's costs as determined by the respective Forum, including necessary travel expenses of non-Federal participants: *Provided further*, That payments hereunder to the Forum may be credited as reimbursements to any appropriation from which costs involved are initially financed.

ADMINISTRATIVE PROVISION

CENTER FOR AUDIT EXCELLENCE

SEC. 1401. (a) CENTER FOR AUDIT EXCELLENCE.—

(1) ESTABLISHMENT.—Chapter 7 of title 31, United States Code, is amended by adding at the end the following new subchapter:

''Subchapter VII—Center for Audit Excellence

''SEC. 791. CENTER FOR AUDIT EXCELLENCE.

''(a) ESTABLISHMENT.—The Comptroller General shall establish, maintain, and operate a center within the Government Accountability Office to be known as the 'Center for Audit Excellence' (hereafter in this subchapter referred to as the 'Center').

''(b) PURPOSE AND ACTIVITIES.—

''(1) IN GENERAL.—The Center shall build institutional auditing capacity and promote good governance by providing affordable, relevant, and high-quality training, technical assistance, and products and services to qualified personnel and entities of governments (including the Federal Government, State and local governments, tribal governments, and governments of foreign nations), international organizations, and other private organizations.

''(2) DETERMINATION OF QUALIFIED PERSONNEL AND ENTITIES.—Personnel and entities shall be considered qualified for purposes of receiving training, technical assistance, and products or services from the Center under paragraph (1) in accordance with such criteria as the Comptroller General may establish and publish.

''(c) FEES.—

''(1) PERMITTING CHARGING OF FEES.—The Comptroller General may establish, charge, and collect fees (on a reimbursable or advance basis) for the training, technical assistance, and products and services provided by the Center under this subchapter.

''(2) DEPOSIT INTO SEPARATE ACCOUNT.—The Comptroller General shall deposit all fees collected under paragraph (1) into the Center for Audit Excellence Account established under section 792.

''(d) GIFTS OF PROPERTY AND SERVICES.—The Comptroller General may accept and use conditional or non-conditional gifts of property (both real and personal) and services (including services of guest lecturers) to support the operation of the Center, except that the Comptroller General may not accept or use such a gift if the Comptroller General determines that the acceptance or use of the gift would compromise or appear to compromise the integrity of the Government Accountability Office.

''(e) SENSE OF CONGRESS REGARDING PERSONNEL.—It is the sense of Congress that the Center should be staffed primarily by personnel of the Government Accountability Office who are not otherwise engaged in carrying out other duties of the Office under this chapter, so as to ensure that the operation of the Center will not detract from or impact the oversight and audit work of the Office.

''SEC. 792. ACCOUNT.

''(a) ESTABLISHMENT OF SEPARATE ACCOUNT.—There is established in the Treasury as a separate account for the Government Accountability Office the 'Center for Audit Excellence Account', which shall consist of the fees deposited by the Comptroller General under section 791(c) and such other amounts as may be appropriated under law.

''(b) USE OF ACCOUNT.—Amounts in the Center for Audit Excellence Account shall be available to the Comptroller General, in amounts specified in appropriations Acts and without fiscal year limitation, to carry out this subchapter.

''SEC. 793. AUTHORIZATION OF APPROPRIATIONS.

''There are authorized to be appropriated such sums as may be necessary to carry out this subchapter.''.

(2) CLERICAL AMENDMENT.—The table of sections for chapter 7 of title 31, United States Code, is amended by adding at the end the following:

''SUBCHAPTER VII—CENTER FOR AUDIT EXCELLENCE

''791. Center for Audit Excellence.
''792. Account.
''793. Authorization of appropriations.''

(b) APPROVAL OF BUSINESS PLAN.—The Comptroller General may not begin operating the Center for Audit Excellence under subchapter VII of chapter 7 of title 31, United States Code (as added by subsection (a)) until—

(1) the Comptroller General submits a business plan for the Center to the Committees on Appropriations of the House of Representatives and Senate; and

(2) each such Committee approves the plan.

OPEN WORLD LEADERSHIP CENTER TRUST FUND

For a payment to the Open World Leadership Center Trust Fund for financing activities of the Open World Leadership Center under section 313 of the Legislative Branch Appropriations Act, 2001 (2 U.S.C. 1151), $5,700,000: *Provided*, That funds made available to support Russian participants shall

only be used for those engaging in free market development, humanitarian activities, and civic engagement, and shall not be used for officials of the central government of Russia.

JOHN C. STENNIS CENTER FOR PUBLIC SERVICE TRAINING AND DEVELOPMENT

For payment to the John C. Stennis Center for Public Service Development Trust Fund established under section 116 of the John C. Stennis Center for Public Service Training and Development Act (2 U.S.C. 1105), $430,000.

TITLE II

GENERAL PROVISIONS

MAINTENANCE AND CARE OF PRIVATE VEHICLES

SEC. 201. No part of the funds appropriated in this Act shall be used for the maintenance or care of private vehicles, except for emergency assistance and cleaning as may be provided under regulations relating to parking facilities for the House of Representatives issued by the Committee on House Administration and for the Senate issued by the Committee on Rules and Administration.

FISCAL YEAR LIMITATION

SEC. 202. No part of the funds appropriated in this Act shall remain available for obligation beyond fiscal year 2015 unless expressly so provided in this Act.

RATES OF COMPENSATION AND DESIGNATION

SEC. 203. Whenever in this Act any office or position not specifically established by the Legislative Pay Act of 1929 (46 Stat. 32 et seq.) is appropriated for or the rate of compensation or designation of any office or position appropriated for is different from that specifically established by such Act, the rate of compensation and the designation in this Act shall be the permanent law with respect thereto: *Provided*, That the provisions in this Act for the various items of official expenses of Members, officers, and committees of the Senate and House of Representatives, and clerk hire for Senators and Members of the House of Representatives shall be the permanent law with respect thereto.

CONSULTING SERVICES

SEC. 204. The expenditure of any appropriation under this Act for any consulting service through procurement contract, under section 3109 of title 5, United States Code, shall be limited to those contracts where such expenditures are a matter of public record and available for public inspection, except where otherwise provided under existing law, or under existing Executive order issued under existing law.

COSTS OF LBFMC

SEC. 205. Amounts available for administrative expenses of any legislative branch entity which participates in the Legislative Branch Financial Managers Council (LBFMC) established by charter on March 26, 1996, shall be available to finance an appropriate share of LBFMC costs as determined by the LBFMC, except that the total LBFMC costs to be shared among all participating legislative branch entities (in such allocations among the entities as the entities may determine) may not exceed $2,000.

LANDSCAPE MAINTENANCE

SEC. 206. For fiscal year 2015 and each fiscal year thereafter, the Architect of the Capitol, in consultation with the District of Columbia, is authorized to maintain and improve the landscape features, excluding streets, in Square 580 up to the beginning of I–395.

LIMITATION ON TRANSFERS

SEC. 207. None of the funds made available in this Act may be transferred to any department, agency, or instrumentality of the United States Government, except pursuant to a transfer made by, or transfer authority provided in, this Act or any other appropriation Act.

GUIDED TOURS OF THE CAPITOL

SEC. 208. (a) Except as provided in subsection (b), none of the funds made available to the Architect of the Capitol in this Act may be used to eliminate or restrict guided tours of the United States Capitol which are led by employees and interns of offices of Members of Congress and other offices of the House of Representatives and Senate.

(b) At the direction of the Capitol Police Board, or at the direction of the Architect of the Capitol with the approval of the Capitol Police Board, guided tours of the United States Capitol which are led by employees and interns described in subsection (a) may be suspended temporarily or otherwise subject to restriction for security or related reasons to the same extent as guided tours of the United States Capitol which are led by the Architect of the Capitol.

This division may be cited as the ''Legislative Branch Appropriations Act, 2015''.

DIVISION I—MILITARY CONSTRUCTION AND VETERANS AFFAIRS, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015

TITLE I

DEPARTMENT OF DEFENSE

MILITARY CONSTRUCTION, ARMY

For acquisition, construction, installation, and equipment of temporary or permanent public works, military installations, facilities, and real property for the Army as currently authorized by law, including personnel in the Army Corps of Engineers and other personal services necessary for the purposes of this appropriation, and for construction and operation of facilities in support of the functions of the Commander in Chief, $528,427,000, to remain available until September 30, 2019: *Provided*, That of this amount, not to exceed $51,127,000 shall be available for study, planning, design, architect and engineer services, and host nation support, as authorized by law, unless the Secretary of the Army determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, NAVY AND MARINE CORPS

For acquisition, construction, installation, and equipment of temporary or permanent public works, naval installations, facilities, and real property for the Navy and Marine Corps as currently authorized by law, including personnel in the Naval Facilities Engineering Command and other personal services necessary for the purposes of this appropriation, $1,018,772,000, to remain available until September 30, 2019: *Provided*, That of this amount, not to exceed $33,366,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Secretary of the Navy determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, AIR FORCE

For acquisition, construction, installation, and equipment of temporary or permanent public works, military installations, facilities, and real property for the Air Force as currently authorized by law, $811,774,000, to remain available until September 30, 2019: *Provided*, That of this amount, not to exceed $10,738,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Secretary of the Air Force determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor: *Provided further*, That none of the funds provided under this heading for military construction in the United Kingdom as identified in the table entitled ''Military Construction'' in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act) may be obligated or expended until the Department of Defense completes a European Consolidation Study, and the Secretary of Defense (1) provides to the Committees on Appropriations of both Houses of Congress a comprehensive European basing strategy reflecting the findings of the Consolidation Study, and (2) certifies in writing the requirement identified in the study for any military construction project in the United Kingdom funded in this section.

MILITARY CONSTRUCTION, DEFENSE-WIDE

(INCLUDING TRANSFER OF FUNDS)

For acquisition, construction, installation, and equipment of temporary or permanent public works, installations, facilities, and real property for activities and agencies of the Department of Defense (other than the military departments), as currently authorized by law, $1,991,690,000, to remain available until September 30, 2019: *Provided*, That such amounts of this appropriation as may be determined by the Secretary of Defense may be transferred to such appropriations of the Department of Defense available for military construction or family housing as the Secretary may designate, to be merged with and to be available for the same purposes, and for the same time period, as the appropriation or fund to which transferred: *Provided further*, That of the amount appropriated, not to exceed $162,240,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Secretary of Defense determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor: *Provided further*, That of the amount appropriated, notwithstanding any other provision of law, $37,918,000 shall be available for payments to the North Atlantic Treaty Organization for the planning, design, and construction of a new North Atlantic Treaty Organization headquarters: *Provided further*, That none of the funds made available by this title may be used to construct a squadron operations facility at Cannon Air Force Base, New Mexico, until the Secretary of Defense submits to the Committees on Appropriations of both Houses of Congress a report that includes the following:

(1) A definition of ''Special Operations Forces-peculiar'' as it applies to the use of United States Special Operations Command (USSOCOM) funding to meet military construction requirements for facilities that provide healthcare services or support fitness activities.

(2) A description of the decision-making process used to determine whether a military construction project that provides healthcare facilities or supports fitness activities should be funded by the USSOCOM or the military services.

(3) An addendum to the DOD Form 1391 for this project providing a schematic of the human performance center, a listing of the planned equipment related to training and resiliency and a description of the mission-critical benefit of each item, an explanation of why the unique physical and psychological health services incorporated could not be

provided by the Defense Health Agency or military services, and a planned staffing breakdown.

MILITARY CONSTRUCTION, ARMY NATIONAL GUARD

For construction, acquisition, expansion, rehabilitation, and conversion of facilities for the training and administration of the Army National Guard, and contributions therefor, as authorized by chapter 1803 of title 10, United States Code, and Military Construction Authorization Acts, $128,920,000, to remain available until September 30, 2019: *Provided*, That of the amount appropriated, not to exceed $17,600,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Director of the Army National Guard determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, AIR NATIONAL GUARD

For construction, acquisition, expansion, rehabilitation, and conversion of facilities for the training and administration of the Air National Guard, and contributions therefor, as authorized by chapter 1803 of title 10, United States Code, and Military Construction Authorization Acts, $92,663,000, to remain available until September 30, 2019: *Provided*, That of the amount appropriated, not to exceed $7,700,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Director of the Air National Guard determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, ARMY RESERVE

For construction, acquisition, expansion, rehabilitation, and conversion of facilities for the training and administration of the Army Reserve as authorized by chapter 1803 of title 10, United States Code, and Military Construction Authorization Acts, $103,946,000, to remain available until September 30, 2019: *Provided*, That of the amount appropriated, not to exceed $8,337,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Chief of the Army Reserve determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, NAVY RESERVE

For construction, acquisition, expansion, rehabilitation, and conversion of facilities for the training and administration of the reserve components of the Navy and Marine Corps as authorized by chapter 1803 of title 10, United States Code, and Military Construction Authorization Acts, $51,528,000, to remain available until September 30, 2019: *Provided*, That of the amount appropriated, not to exceed $2,123,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Secretary of the Navy determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, AIR FORCE RESERVE

For construction, acquisition, expansion, rehabilitation, and conversion of facilities for the training and administration of the Air Force Reserve as authorized by chapter 1803 of title 10, United States Code, and Military Construction Authorization Acts, $49,492,000, to remain available until September 30, 2019: *Provided*, That of the amount appropriated, not to exceed $6,892,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Chief of the Air Force Reserve determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

NORTH ATLANTIC TREATY ORGANIZATION SECURITY INVESTMENT PROGRAM

For the United States share of the cost of the North Atlantic Treaty Organization Security Investment Program for the acquisition and construction of military facilities and installations (including international military headquarters) and for related expenses for the collective defense of the North Atlantic Treaty Area as authorized by section 2806 of title 10, United States Code, and Military Construction Authorization Acts, $199,700,000, to remain available until expended.

FAMILY HOUSING CONSTRUCTION, ARMY

For expenses of family housing for the Army for construction, including acquisition, replacement, addition, expansion, extension, and alteration, as authorized by law, $78,609,000, to remain available until September 30, 2019.

FAMILY HOUSING OPERATION AND MAINTENANCE, ARMY

For expenses of family housing for the Army for operation and maintenance, including debt payment, leasing, minor construction, principal and interest charges, and insurance premiums, as authorized by law, $350,976,000.

FAMILY HOUSING CONSTRUCTION, NAVY AND MARINE CORPS

For expenses of family housing for the Navy and Marine Corps for construction, including acquisition, replacement, addition, expansion, extension, and alteration, as authorized by law, $16,412,000, to remain available until September 30, 2019.

FAMILY HOUSING OPERATION AND MAINTENANCE, NAVY AND MARINE CORPS

For expenses of family housing for the Navy and Marine Corps for operation and maintenance, including debt payment, leasing, minor construction, principal and interest charges, and insurance premiums, as authorized by law, $354,029,000.

FAMILY HOUSING OPERATION AND MAINTENANCE, AIR FORCE

For expenses of family housing for the Air Force for operation and maintenance, including debt payment, leasing, minor construction, principal and interest charges, and insurance premiums, as authorized by law, $327,747,000.

FAMILY HOUSING OPERATION AND MAINTENANCE, DEFENSE-WIDE

For expenses of family housing for the activities and agencies of the Department of Defense (other than the military departments) for operation and maintenance, leasing, and minor construction, as authorized by law, $61,100,000.

DEPARTMENT OF DEFENSE FAMILY HOUSING IMPROVEMENT FUND

For the Department of Defense Family Housing Improvement Fund, $1,662,000, to remain available until expended, for family housing initiatives undertaken pursuant to section 2883 of title 10, United States Code, providing alternative means of acquiring and improving military family housing and supporting facilities.

CHEMICAL DEMILITARIZATION CONSTRUCTION, DEFENSE-WIDE

For expenses of construction, not otherwise provided for, necessary for the destruction of the United States stockpile of lethal chemical agents and munitions in accordance with section 1412 of the Department of Defense Authorization Act, 1986 (50 U.S.C. 1521), and for the destruction of other chemical warfare materials that are not in the chemical weapon stockpile, as currently authorized by law, $38,715,000, to remain available until September 30, 2019, which shall be only for the Assembled Chemical Weapons Alternatives program.

DEPARTMENT OF DEFENSE BASE CLOSURE ACCOUNT

For deposit into the Department of Defense Base Closure Account, established by section 2906(a)(1) of the Defense Base Closure and Realignment Act of 1990 (10 U.S.C. 2687 note), as amended by section 2711 of the National Defense Authorization Act for Fiscal Year 2013 (Public Law 112–239), $315,085,000, to remain available until expended.

ADMINISTRATIVE PROVISIONS

SEC. 101. None of the funds made available in this title shall be expended for payments under a cost-plus-a-fixed-fee contract for construction, where cost estimates exceed $25,000, to be performed within the United States, except Alaska, without the specific approval in writing of the Secretary of Defense setting forth the reasons therefor.

SEC. 102. Funds made available in this title for construction shall be available for hire of passenger motor vehicles.

SEC. 103. Funds made available in this title for construction may be used for advances to the Federal Highway Administration, Department of Transportation, for the construction of access roads as authorized by section 210 of title 23, United States Code, when projects authorized therein are certified as important to the national defense by the Secretary of Defense.

SEC. 104. None of the funds made available in this title may be used to begin construction of new bases in the United States for which specific appropriations have not been made.

SEC. 105. None of the funds made available in this title shall be used for purchase of land or land easements in excess of 100 percent of the value as determined by the Army Corps of Engineers or the Naval Facilities Engineering Command, except: (1) where there is a determination of value by a Federal court; (2) purchases negotiated by the Attorney General or the designee of the Attorney General; (3) where the estimated value is less than $25,000; or (4) as otherwise determined by the Secretary of Defense to be in the public interest.

SEC. 106. None of the funds made available in this title shall be used to: (1) acquire land; (2) provide for site preparation; or (3) install utilities for any family housing, except housing for which funds have been made available in annual Acts making appropriations for military construction.

SEC. 107. None of the funds made available in this title for minor construction may be used to transfer or relocate any activity from one base or installation to another, without prior notification to the Committees on Appropriations of both Houses of Congress.

SEC. 108. None of the funds made available in this title may be used for the procurement of steel for any construction project or activity for which American steel producers, fabricators, and manufacturers have been denied the opportunity to compete for such steel procurement.

SEC. 109. None of the funds available to the Department of Defense for military construction or family housing during the current fiscal year may be used to pay real property taxes in any foreign nation.

SEC. 110. None of the funds made available in this title may be used to initiate a new installation overseas without prior notification to the Committees on Appropriations of both Houses of Congress.

SEC. 111. None of the funds made available in this title may be obligated for architect and engineer contracts estimated by the Government to exceed $500,000 for projects to be accomplished in Japan, in any North Atlantic Treaty Organization member country, or in countries bordering the Arabian Gulf, unless such contracts are awarded to United States firms or United States firms in joint venture with host nation firms.

SEC. 112. None of the funds made available in this title for military construction in the United States territories and possessions in the Pacific and on Kwajalein Atoll, or in countries bordering the Arabian Gulf, may be used to award any contract estimated by the Government to exceed $1,000,000 to a foreign contractor: *Provided*, That this section shall not be applicable to contract awards for which the lowest responsive and responsible bid of a United States contractor exceeds the lowest responsive and responsible bid of a foreign contractor by greater than 20 percent: *Provided further*, That this section shall not apply to contract awards for military construction on Kwajalein Atoll for which the lowest responsive and responsible bid is submitted by a Marshallese contractor.

SEC. 113. The Secretary of Defense shall inform the appropriate committees of both Houses of Congress, including the Committees on Appropriations, of plans and scope of any proposed military exercise involving United States personnel 30 days prior to its occurring, if amounts expended for construction, either temporary or permanent, are anticipated to exceed $100,000.

SEC. 114. Not more than 20 percent of the funds made available in this title which are limited for obligation during the current fiscal year shall be obligated during the last 2 months of the fiscal year.

SEC. 115. Funds appropriated to the Department of Defense for construction in prior years shall be available for construction authorized for each such military department by the authorizations enacted into law during the current session of Congress.

SEC. 116. For military construction or family housing projects that are being completed with funds otherwise expired or lapsed for obligation, expired or lapsed funds may be used to pay the cost of associated supervision, inspection, overhead, engineering and design on those projects and on subsequent claims, if any.

SEC. 117. Notwithstanding any other provision of law, any funds made available to a military department or defense agency for the construction of military projects may be obligated for a military construction project or contract, or for any portion of such a project or contract, at any time before the end of the fourth fiscal year after the fiscal year for which funds for such project were made available, if the funds obligated for such project: (1) are obligated from funds available for military construction projects; and (2) do not exceed the amount appropriated for such project, plus any amount by which the cost of such project is increased pursuant to law.

(INCLUDING TRANSFER OF FUNDS)

SEC. 118. In addition to any other transfer authority available to the Department of Defense, proceeds deposited to the Department of Defense Base Closure Account established by section 207(a)(1) of the Defense Authorization Amendments and Base Closure and Realignment Act (10 U.S.C. 2687 note) pursuant to section 207(a)(2)(C) of such Act, may be transferred to the account established by section 2906(a)(1) of the Defense Base Closure and Realignment Act of 1990 (10 U.S.C. 2687 note), to be merged with, and to be available for the same purposes and the same time period as that account.

(INCLUDING TRANSFER OF FUNDS)

SEC. 119. Subject to 30 days prior notification, or 14 days for a notification provided in an electronic medium pursuant to sections 480 and 2883 of title 10, United States Code, to the Committees on Appropriations of both Houses of Congress, such additional amounts as may be determined by the Secretary of Defense may be transferred to: (1) the Department of Defense Family Housing Improvement Fund from amounts appropriated for construction in ''Family Housing'' accounts, to be merged with and to be available for the same purposes and for the same period of time as amounts appropriated directly to the Fund; or (2) the Department of Defense Military Unaccompanied Housing Improvement Fund from amounts appropriated for construction of military unaccompanied housing in ''Military Construction'' accounts, to be merged with and to be available for the same purposes and for the same period of time as amounts appropriated directly to the Fund: *Provided*, That appropriations made available to the Funds shall be available to cover the costs, as defined in section 502(5) of the Congressional Budget Act of 1974, of direct loans or loan guarantees issued by the Department of Defense pursuant to the provisions of subchapter IV of chapter 169 of title 10, United States Code, pertaining to alternative means of acquiring and improving military family housing, military unaccompanied housing, and supporting facilities: *Provided further*, That the transfer authority in this provision shall also be applicable to amounts appropriated for construction in ''Family Housing'' accounts in section 2002 of Public Law 112–10.

(INCLUDING TRANSFER OF FUNDS)

SEC. 120. In addition to any other transfer authority available to the Department of Defense, amounts may be transferred from the Department of Defense Base Closure Account to the fund established by section 1013(d) of the Demonstration Cities and Metropolitan Development Act of 1966 (42 U.S.C. 3374) to pay for expenses associated with the Homeowners Assistance Program incurred under 42 U.S.C. 3374(a)(1)(A). Any amounts transferred shall be merged with and be available for the same purposes and for the same time period as the fund to which transferred.

SEC. 121. Notwithstanding any other provision of law, funds made available in this title for operation and maintenance of family housing shall be the exclusive source of funds for repair and maintenance of all family housing units, including general or flag officer quarters: *Provided*, That not more than $35,000 per unit may be spent annually for the maintenance and repair of any general or flag officer quarters without 30 days prior notification, or 14 days for a notification provided in an electronic medium pursuant to sections 480 and 2883 of title 10, United States Code, to the Committees on Appropriations of both Houses of Congress, except that an after-the-fact notification shall be submitted if the limitation is exceeded solely due to costs associated with environmental remediation that could not be reasonably anticipated at the time of the budget submission: *Provided further*, That the Under Secretary of Defense (Comptroller) is to report annually to the Committees on Appropriations of both Houses of Congress all operation and maintenance expenditures for each individual general or flag officer quarters for the prior fiscal year.

SEC. 122. Amounts contained in the Ford Island Improvement Account established by subsection (h) of section 2814 of title 10, United States Code, are appropriated and shall be available until expended for the purposes specified in subsection (i)(1) of such section or until transferred pursuant to subsection (i)(3) of such section.

(INCLUDING TRANSFER OF FUNDS)

SEC. 123. During the 5-year period after appropriations available in this Act to the Department of Defense for military construction and family housing operation and maintenance and construction have expired for obligation, upon a determination that such appropriations will not be necessary for the liquidation of obligations or for making authorized adjustments to such appropriations for obligations incurred during the period of availability of such appropriations, unobligated balances of such appropriations may be transferred into the appropriation ''Foreign Currency Fluctuations, Construction, Defense'', to be merged with and to be available for the same time period and for the same purposes as the appropriation to which transferred.

SEC. 124. (a) Except as provided in subsection (b), none of the funds made available in this Act may be used by the Secretary of the Army to relocate a unit in the Army that—

(1) performs a testing mission or function that is not performed by any other unit in the Army and is specifically stipulated in title 10, United States Code; and

(2) is located at a military installation at which the total number of civilian employees of the Department of the Army and Army contractor personnel employed exceeds 10 percent of the total number of members of the regular and reserve components of the Army assigned to the installation.

(b) EXCEPTION.—Subsection (a) shall not apply if the Secretary of the Army certifies to the congressional defense committees that in proposing the relocation of the unit of the Army, the Secretary complied with Army Regulation 5–10 relating to the policy, procedures, and responsibilities for Army stationing actions.

SEC. 125. Amounts appropriated or otherwise made available in an account funded under the headings in this title may be transferred among projects and activities within the account in accordance with the reprogramming guidelines for military construction and family housing construction contained in Department of Defense Financial Management Regulation 7000.14–R, Volume 3, Chapter 7, of February 2009, as in effect on the date of enactment of this Act.

SEC. 126. None of the funds made available in this title may be obligated or expended for planning and design and construction of projects at Arlington National Cemetery.

SEC. 127. For an additional amount for ''Military Construction, Navy and Marine Corps'', ''Military Construction, Air Force'', ''Military Construction, Army Reserve'', and ''Military Construction, Navy Reserve'', $125,000,000, to remain available until September 30, 2018: *Provided*, That notwithstanding any other provision of law, such funds may be obligated and expended to carry out construction of projects, excluding in Europe, as authorized in division B of Public Law 113–66: *Provided further*, That not later than 30 days after enactment of this Act, the Secretary of Defense shall submit to the Committees on Appropriations of both Houses of Congress an expenditure plan for funds provided under this heading.

SEC. 128. For an additional amount for ''Military Construction, Army'', $61,000,000; ''Military Construction, Army National Guard'', $5,000,000; and ''Military Construction, Army Reserve'', $51,000,000, to remain available until September 30, 2019: *Provided*, That notwithstanding any other provision of law, such funds may only be obligated to carry out construction of certain projects as authorized in division B of an Act authorizing appropriations for fiscal year 2015 for military activities of the Department of Defense (relating to Military Construction Authorizations): *Provided further*, That not later than 30 days after enactment of this Act, the Secretary of the Army shall submit to the Committees on Appropriations of both Houses of Congress an expenditure plan for funds provided under this heading.

(RESCISSION OF FUNDS)

SEC. 129. Of the unobligated balances available for ''Military Construction, Army'', from prior appropriations Acts (other than appropriations designated by law as being for contingency operations directly related to the global war on terrorism or as an emergency requirement), $49,533,000 are hereby rescinded.

(RESCISSION OF FUNDS)

SEC. 130. Of the unobligated balances available for ''Military Construction, Navy and Marine Corps'', from prior appropriations Acts (other than appropriations designated by law as for being for contingency operations directly related to the global war on terrorism or as an emergency requirement), $25,522,000 are hereby rescinded.

(RESCISSION OF FUNDS)

SEC. 131. Of the unobligated balances available for ''Military Construction, Air Force'', from prior appropriations Acts (other than appropriations designated by law as for being for contingency operations directly related to the global war on terrorism or as an emergency requirement), $41,392,000 are hereby rescinded.

(RESCISSION OF FUNDS)

SEC. 132. Of the unobligated balances available for ''NATO Security Investment Program'', from prior appropriations Acts (other than appropriations designated by law as being for contingency operations directly related to the global war on terrorism or as an emergency requirement), $25,000,000 are hereby rescinded.

(RESCISSION OF FUNDS)

SEC. 133. Of the unobligated balances made available in prior appropriation Acts for the fund established in section 1013(d) of the Demonstration Cities and Metropolitan Development Act of 1966 (42 U.S.C. 3374) (other than appropriations designated by law as being for contingency operations directly related to the global war on terrorism or as an emergency requirement), $63,800,000 are hereby rescinded.

SEC. 134. For the purposes of this Act, the term ''congressional defense committees'' means the Committees on Armed Services of the House of Representatives and the Senate, the Subcommittee on Military Construction and Veterans Affairs of the Committee on Appropriations of the Senate, and the Subcommittee on Military Construction and Veterans Affairs of the Committee on Appropriations of the House of Representatives.

SEC. 135. None of the funds made available by this Act may be used for the closure or abandonment of any facility located at Lajes Field, Azores, Portugal.

TITLE II

DEPARTMENT OF VETERANS AFFAIRS

VETERANS BENEFITS ADMINISTRATION

COMPENSATION AND PENSIONS

(INCLUDING TRANSFER OF FUNDS)

For the payment of compensation benefits to or on behalf of veterans and a pilot program for disability examinations as authorized by section 107 and chapters 11, 13, 18, 51, 53, 55, and 61 of title 38, United States Code; pension benefits to or on behalf of veterans as authorized by chapters 15, 51, 53, 55, and 61 of title 38, United States Code; and burial benefits, the Reinstated Entitlement Program for Survivors, emergency and other officers' retirement pay, adjusted-service credits and certificates, payment of premiums due on commercial life insurance policies guaranteed under the provisions of title IV of the Servicemembers Civil Relief Act (50 U.S.C. App. 541 et seq.) and for other benefits as authorized by sections 107, 1312, 1977, and 2106, and chapters 23, 51, 53, 55, and 61 of title 38, United States Code, $79,071,000,000, to remain available until expended: *Provided*, That not to exceed $15,430,000 of the amount appropriated under this heading shall be reimbursed to ''General Operating Expenses, Veterans Benefits Administration'', and ''Information Technology Systems'' for necessary expenses in implementing the provisions of chapters 51, 53, and 55 of title 38, United States Code, the funding source for which is specifically provided as the ''Compensation and Pensions'' appropriation: *Provided further*, That such sums as may be earned on an actual qualifying patient basis, shall be reimbursed to ''Medical Care Collections Fund'' to augment the funding of individual medical facilities for nursing home care provided to pensioners as authorized.

READJUSTMENT BENEFITS

For the payment of readjustment and rehabilitation benefits to or on behalf of veterans as authorized by chapters 21, 30, 31, 33, 34, 35, 36, 39, 41, 51, 53, 55, and 61 of title 38, United States Code, $14,997,136,000, to remain available until expended: *Provided*, That expenses for rehabilitation program services and assistance which the Secretary is authorized to provide under subsection (a) of section 3104 of title 38, United States Code, other than under paragraphs (1), (2), (5), and (11) of that subsection, shall be charged to this account.

VETERANS INSURANCE AND INDEMNITIES

For military and naval insurance, national service life insurance, servicemen's indemnities, service-disabled veterans insurance, and veterans mortgage life insurance as authorized by chapters 19 and 21, title 38, United States Code, $63,257,000, to remain available until expended.

VETERANS HOUSING BENEFIT PROGRAM FUND

For the cost of direct and guaranteed loans, such sums as may be necessary to carry out the program, as authorized by subchapters I through III of chapter 37 of title 38, United States Code: *Provided*, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That during fiscal year 2015, within the resources available, not to exceed $500,000 in gross obligations for direct loans are authorized for specially adapted housing loans.

In addition, for administrative expenses to carry out the direct and guaranteed loan programs, $160,881,000.

VOCATIONAL REHABILITATION LOANS PROGRAM ACCOUNT

For the cost of direct loans, $10,000, as authorized by chapter 31 of title 38, United States Code: *Provided*, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That funds made available under this heading are available to subsidize gross obligations for the principal amount of direct loans not to exceed $2,877,000.

In addition, for administrative expenses necessary to carry out the direct loan program, $361,000, which may be paid to the appropriation for ''General Operating Expenses, Veterans Benefits Administration''.

NATIVE AMERICAN VETERAN HOUSING LOAN PROGRAM ACCOUNT

For administrative expenses to carry out the direct loan program authorized by subchapter V of chapter 37 of title 38, United States Code, $1,130,000.

VETERANS HEALTH ADMINISTRATION

MEDICAL SERVICES

For necessary expenses for furnishing, as authorized by law, inpatient and outpatient care and treatment to beneficiaries of the Department of Veterans Affairs and veterans described in section 1705(a) of title 38, United States Code, including care and treatment in facilities not under the jurisdiction of the Department, and including medical supplies and equipment, bioengineering services, food services, and salaries and expenses of healthcare employees hired under title 38, United States Code, aid to State homes as authorized by section 1741 of title 38, United States Code, assistance and support services for caregivers as authorized by section 1720G of title 38, United States Code, loan repayments authorized by section 604 of the Caregivers and Veterans Omnibus Health Services Act of 2010 (Public Law 111–163; 124 Stat. 1174; 38 U.S.C. 7681 note), and hospital care and medical services authorized by section 1787 of title 38, United States Code; $209,189,000, which shall be in addition to funds previously appropriated under this heading that became available on October 1, 2014; and, in addition, $47,603,202,000, plus reimbursements, shall become available on October 1, 2015, and shall remain available until September 30, 2016: *Provided*, That notwithstanding any other provision of law, the Secretary of Veterans Affairs shall establish a priority for the provision of medical treatment for veterans who have service-connected disabilities, lower income, or have special needs: *Provided further*, That notwithstanding any other provision of law, the Secretary of Veterans Affairs shall give priority funding for the provision of basic medical benefits to veterans in enrollment priority groups 1 through 6: *Provided further*, That notwithstanding any other provision of law, the Secretary of Veterans Affairs may authorize the dispensing of prescription drugs from Veterans Health Administration facilities to enrolled veterans with privately written prescriptions based on requirements established by the Secretary: *Provided further*, That the implementation of the program described in the previous proviso shall incur no additional cost to the Department of Veterans Affairs.

MEDICAL SUPPORT AND COMPLIANCE

For necessary expenses in the administration of the medical, hospital, nursing home, domiciliary, construction, supply, and research activities, as authorized by law; administrative expenses in support of capital policy activities; and administrative and legal expenses of the Department for collecting and recovering amounts owed the Department as authorized under chapter 17 of title 38, United States Code, and the Federal Medical Care Recovery Act (42 U.S.C. 2651 et seq.), $6,144,000,000, plus reimbursements, shall become available on October 1, 2015, and shall remain available until September 30, 2016.

MEDICAL FACILITIES

For necessary expenses for the maintenance and operation of hospitals, nursing homes, domiciliary facilities, and other necessary facilities of the Veterans Health Administration; for administrative expenses in support of planning, design, project management, real property acquisition and disposition, construction, and renovation of any facility under the jurisdiction or for the use of the Department; for oversight, engineering, and architectural activities not charged to project costs; for repairing, altering, improving, or providing facilities in the several hospitals and homes under the jurisdiction of the Department, not otherwise provided for, either by contract or by the hire of temporary employees and purchase of materials; for leases of facilities; and for laundry services, $4,915,000,000, plus reimbursements, shall become available on October 1, 2015, and shall remain available until September 30, 2016.

MEDICAL AND PROSTHETIC RESEARCH

For necessary expenses in carrying out programs of medical and prosthetic research and development as authorized by chapter 73 of title 38, United States Code, $588,922,000, plus reimbursements, shall remain available until September 30, 2016.

NATIONAL CEMETERY ADMINISTRATION

For necessary expenses of the National Cemetery Administration for operations and maintenance, not otherwise provided for, including uniforms or allowances therefor; cemeterial expenses as authorized by law; purchase of one passenger motor vehicle for use in cemeterial operations; hire of passenger motor vehicles; and repair, alteration or improvement of facilities under the jurisdiction of the National Cemetery Administration, $256,800,000, of which not to exceed $25,600,000 shall remain available until September 30, 2016.

DEPARTMENTAL ADMINISTRATION

GENERAL ADMINISTRATION

(INCLUDING TRANSFER OF FUNDS)

For necessary operating expenses of the Department of Veterans Affairs, not otherwise provided for, including administrative expenses in support of Department-wide capital planning, management and policy activities, uniforms, or allowances therefor; not to exceed $25,000 for official reception and representation expenses; hire of passenger motor vehicles; and reimbursement of the General Services Administration for security guard services, $321,591,000, of which not to exceed $9,660,000 shall remain available until September 30, 2016: *Provided*, That funds provided under this heading may be transferred to ''General Operating Expenses, Veterans Benefits Administration''.

BOARD OF VETERANS APPEALS

For necessary operating expenses of the Board of Veterans Appeals, $99,294,000, of which not to exceed $9,429,000 shall remain available until September 30, 2016.

GENERAL OPERATING EXPENSES, VETERANS BENEFITS ADMINISTRATION

For necessary operating expenses of the Veterans Benefits Administration, not otherwise provided for, including hire of passenger motor vehicles, reimbursement of the General Services Administration for security guard services, and reimbursement of the Department of Defense for the cost of overseas employee mail, $2,534,254,000: *Provided*, That expenses for services and assistance authorized under paragraphs (1), (2), (5), and (11) of section 3104(a) of title 38, United States Code, that the Secretary of Veterans Affairs determines are necessary to enable entitled veterans: (1) to the maximum extent feasible, to become employable and to obtain and maintain suitable employment; or (2) to achieve maximum independence in daily living, shall be charged to this account: *Provided further*, That of the funds made available under this heading, not to exceed $124,000,000 shall remain available until September 30, 2016.

INFORMATION TECHNOLOGY SYSTEMS

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses for information technology systems and telecommunications support, including developmental information systems and operational information systems; for pay and associated costs; and for the capital asset acquisition of information technology systems, including management and related contractual costs of said acquisitions, including contractual costs associated with operations authorized by section 3109 of title 5, United States Code, $3,903,344,000, plus reimbursements: *Provided*, That $1,039,000,000 shall be for pay and associated costs, of which not to exceed $30,792,000 shall remain available until September 30, 2016: *Provided further*, That $2,316,009,000 shall be for operations and maintenance, of which not to exceed $160,000,000 shall remain available until September 30, 2016: *Provided further*, That $548,335,000 shall be for information technology systems development, modernization, and enhancement, and shall remain available until September 30, 2016: *Provided further*, That amounts made available for information technology systems development, modernization, and enhancement may not be obligated or expended until the Secretary of Veterans Affairs or the Chief Information Officer of the Department of Veterans Affairs submits to the Committees on Appropriations of both Houses of Congress a certification of the amounts, in parts or in full, to be obligated and expended for each development project: *Provided further*, That amounts made available for salaries and expenses, operations and maintenance, and information technology systems development, modernization, and enhancement may be transferred among the three subaccounts after the Secretary of Veterans Affairs requests from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and an approval is issued: *Provided further*, That amounts made available for the ''Information Technology Systems'' account for development, modernization, and enhancement may be transferred among projects or to newly defined projects: *Provided further*, That no project may be increased or decreased by more than $1,000,000 of cost prior to submitting a request to the Committees on Appropriations of both Houses of Congress to make the transfer and an approval is issued, or absent a response, a period of 30 days has elapsed: *Provided further*, That funds under this heading may be used by the Interagency Program Office through the Department of Veterans Affairs to develop a standard data reference terminology model: *Provided further*, That of the funds made available for information technology systems development, modernization, and enhancement for VistA Evolution, not more than 25 percent may be obligated or expended until the Secretary of Veterans Affairs submits to the Committees on Appropriations of both Houses of Congress, and such Committees approve, a report that describes: (1) the status of and changes to the VistA Evolution program plan (hereinafter referred to as the ''Plan''), VistA 4 product roadmap (''Roadmap''), or the VistA Evolution cost estimate, dated March 24, 2014; (2) any changes to the scope or functionality of projects within the VistA Evolution program as established in the Plan; (3) any refinements to the cost estimate presented in the Plan, including those based on actual costs incurred; (4) a Project Management Accountability System resourced schedule for every development project within the VistA Evolution program, including a testing methodology schedule; (5) progress toward developing and implementing all levels of interoperability, including semantic interoperability, between the electronic health record systems of the Department of Defense and the Department of Veterans Affairs; and (6) a detailed governance structure for the VistA Evolution program, including the establishment of a single program director and integrator who shall have responsibility for the entire program: *Provided further*, That the funds made available under this heading for information technology systems development, modernization, and enhancement, shall be for the projects, and in the amounts, specified under this heading in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General, to include information technology, in carrying out the provisions of the Inspector General Act of 1978 (5 U.S.C. App.), $126,411,000, of which $12,141,000 shall remain available until September 30, 2016.

CONSTRUCTION, MAJOR PROJECTS

For constructing, altering, extending, and improving any of the facilities, including parking projects, under the jurisdiction or for the use of the Department of Veterans Affairs, or for any of the purposes set forth in sections 316, 2404, 2406 and chapter 81 of title 38, United States Code, not otherwise provided for, including planning, architectural and engineering services, construction management services, maintenance or guarantee period services costs associated with equipment guarantees provided under the project, services of claims analysts, offsite utility and storm drainage system construction costs, and site acquisition, where the estimated cost of a project is more than the amount set forth in section 8104(a)(3)(A) of title 38, United States Code, or where funds for a project were made available in a previous major project appropriation, $561,800,000, of which $527,800,000 shall remain available until September 30, 2019, and of which $34,000,000 shall remain available until expended: *Provided*, That except for advance planning activities, including needs assessments which may or may not lead to capital investments, and other capital asset management related activities, including portfolio development and management activities, and investment strategy studies funded through the advance planning fund and the planning and design activities funded through the design fund, including needs assessments which may or may not lead to capital investments, and salaries and associated costs of the resident engineers who oversee those capital investments funded through this account, and funds provided for the purchase of land for the National Cemetery Administration through the land acquisition line item, none of the funds made available under this heading shall be used for any project which has not been approved by the Congress in the budgetary process: *Provided further*, That funds made available under this heading for fiscal year 2015, for each approved project shall be obligated: (1) by the awarding of a construction documents contract by September 30, 2015; and (2) by the awarding of a construction contract by September 30, 2016: *Provided further*, That the Secretary of Veterans Affairs shall promptly submit to the Committees on Appropriations of both Houses of Congress a written report on any approved major construction project

for which obligations are not incurred within the time limitations established above.

CONSTRUCTION, MINOR PROJECTS

For constructing, altering, extending, and improving any of the facilities, including parking projects, under the jurisdiction or for the use of the Department of Veterans Affairs, including planning and assessments of needs which may lead to capital investments, architectural and engineering services, maintenance or guarantee period services costs associated with equipment guarantees provided under the project, services of claims analysts, offsite utility and storm drainage system construction costs, and site acquisition, or for any of the purposes set forth in sections 316, 2404, 2406, and chapter 81 of title 38, United States Code, not otherwise provided for, where the estimated cost of a project is equal to or less than the amount set forth in section 8104(a)(3)(A) of title 38, United States Code, $495,200,000, to remain available until September 30, 2019, along with unobligated balances of previous ''Construction, Minor Projects'' appropriations which are hereby made available for any project where the estimated cost is equal to or less than the amount set forth in such section: *Provided*, That funds made available under this heading shall be for: (1) repairs to any of the nonmedical facilities under the jurisdiction or for the use of the Department which are necessary because of loss or damage caused by any natural disaster or catastrophe; and (2) temporary measures necessary to prevent or to minimize further loss by such causes.

GRANTS FOR CONSTRUCTION OF STATE EXTENDED CARE FACILITIES

For grants to assist States to acquire or construct State nursing home and domiciliary facilities and to remodel, modify, or alter existing hospital, nursing home, and domiciliary facilities in State homes, for furnishing care to veterans as authorized by sections 8131 through 8137 of title 38, United States Code, $90,000,000, to remain available until expended.

GRANTS FOR CONSTRUCTION OF VETERANS CEMETERIES

For grants to assist States and tribal organizations in establishing, expanding, or improving veterans cemeteries as authorized by section 2408 of title 38, United States Code, $46,000,000, to remain available until expended.

ADMINISTRATIVE PROVISIONS

(INCLUDING TRANSFER OF FUNDS)

SEC. 201. Any appropriation for fiscal year 2015 for ''Compensation and Pensions'', ''Readjustment Benefits'', and ''Veterans Insurance and Indemnities'' may be transferred as necessary to any other of the mentioned appropriations: *Provided*, That before a transfer may take place, the Secretary of Veterans Affairs shall request from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and such Committees issue an approval, or absent a response, a period of 30 days has elapsed.

(INCLUDING TRANSFER OF FUNDS)

SEC. 202. Amounts made available for the Department of Veterans Affairs for fiscal year 2015, in this or any other Act, under the ''Medical Services'', ''Medical Support and Compliance'', and ''Medical Facilities'' accounts may be transferred among the accounts: *Provided*, That any transfers between the ''Medical Services'' and ''Medical Support and Compliance'' accounts of 1 percent or less of the total amount appropriated to the account in this or any other Act may take place subject to notification from the Secretary of Veterans Affairs to the Committees on Appropriations of both Houses of Congress of the amount and purpose of the transfer: *Provided further*, That any transfers between the ''Medical Services'' and ''Medical Support and Compliance'' accounts in excess of 1 percent, or exceeding the cumulative 1 percent for the fiscal year, may take place only after the Secretary requests from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and an approval is issued: *Provided further*, That any transfers to or from the ''Medical Facilities'' account may take place only after the Secretary requests from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and an approval is issued.

SEC. 203. Appropriations available in this title for salaries and expenses shall be available for services authorized by section 3109 of title 5, United States Code; hire of passenger motor vehicles; lease of a facility or land or both; and uniforms or allowances therefore, as authorized by sections 5901 through 5902 of title 5, United States Code.

SEC. 204. No appropriations in this title (except the appropriations for ''Construction, Major Projects'', and ''Construction, Minor Projects'') shall be available for the purchase of any site for or toward the construction of any new hospital or home.

SEC. 205. No appropriations in this title shall be available for hospitalization or examination of any persons (except beneficiaries entitled to such hospitalization or examination under the laws providing such benefits to veterans, and persons receiving such treatment under sections 7901 through 7904 of title 5, United States Code, or the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5121 et seq.)), unless reimbursement of the cost of such hospitalization or examination is made to the ''Medical Services'' account at such rates as may be fixed by the Secretary of Veterans Affairs.

SEC. 206. Appropriations available in this title for ''Compensation and Pensions'', ''Readjustment Benefits'', and ''Veterans Insurance and Indemnities'' shall be available for payment of prior year accrued obligations required to be recorded by law against the corresponding prior year accounts within the last quarter of fiscal year 2014.

SEC. 207. Appropriations available in this title shall be available to pay prior year obligations of corresponding prior year appropriations accounts resulting from sections 3328(a), 3334, and 3712(a) of title 31, United States Code, except that if such obligations are from trust fund accounts they shall be payable only from ''Compensation and Pensions''.

(INCLUDING TRANSFER OF FUNDS)

SEC. 208. Notwithstanding any other provision of law, during fiscal year 2015, the Secretary of Veterans Affairs shall, from the National Service Life Insurance Fund under section 1920 of title 38, United States Code, the Veterans' Special Life Insurance Fund under section 1923 of title 38, United States Code, and the United States Government Life Insurance Fund under section 1955 of title 38, United States Code, reimburse the ''General Operating Expenses, Veterans Benefits Administration'' and ''Information Technology Systems'' accounts for the cost of administration of the insurance programs financed through those accounts: *Provided*, That reimbursement shall be made only from the surplus earnings accumulated in such an insurance program during fiscal year 2015 that are available for dividends in that program after claims have been paid and actuarially determined reserves have been set aside: *Provided further*, That if the cost of administration of such an insurance program exceeds the amount of surplus earnings accumulated in that program, reimbursement shall be made only to the extent of such surplus earnings: *Provided further*, That the Secretary shall determine the cost of administration for fiscal year 2015 which is properly allocable to the provision of each such insurance program and to the provision of any total disability income insurance included in that insurance program.

SEC. 209. Amounts deducted from enhanced-use lease proceeds to reimburse an account for expenses incurred by that account during a prior fiscal year for providing enhanced-use lease services, may be obligated during the fiscal year in which the proceeds are received.

(INCLUDING TRANSFER OF FUNDS)

SEC. 210. Funds available in this title or funds for salaries and other administrative expenses shall also be available to reimburse the Office of Resolution Management of the Department of Veterans Affairs and the Office of Employment Discrimination Complaint Adjudication under section 319 of title 38, United States Code, for all services provided at rates which will recover actual costs but not to exceed $42,904,000 for the Office of Resolution Management and $3,400,000 for the Office of Employment Discrimination Complaint Adjudication: *Provided*, That payments may be made in advance for services to be furnished based on estimated costs: *Provided further*, That amounts received shall be credited to the ''General Administration'' and ''Information Technology Systems'' accounts for use by the office that provided the service.

SEC. 211. No appropriations in this title shall be available to enter into any new lease of real property if the estimated annual rental cost is more than $1,000,000, unless the Secretary submits a report which the Committees on Appropriations of both Houses of Congress approve within 30 days following the date on which the report is received.

SEC. 212. No funds of the Department of Veterans Affairs shall be available for hospital care, nursing home care, or medical services provided to any person under chapter 17 of title 38, United States Code, for a non-service-connected disability described in section 1729(a)(2) of such title, unless that person has disclosed to the Secretary of Veterans Affairs, in such form as the Secretary may require, current, accurate third-party reimbursement information for purposes of section 1729 of such title: *Provided*, That the Secretary may recover, in the same manner as any other debt due the United States, the reasonable charges for such care or services from any person who does not make such disclosure as required: *Provided further*, That any amounts so recovered for care or services provided in a prior fiscal year may be obligated by the Secretary during the fiscal year in which amounts are received.

(INCLUDING TRANSFER OF FUNDS)

SEC. 213. Notwithstanding any other provision of law, proceeds or revenues derived from enhanced-use leasing activities (including disposal) may be deposited into the ''Construction, Major Projects'' and ''Construction, Minor Projects'' accounts and be used for construction (including site acquisition and disposition), alterations, and improvements of any medical facility under the jurisdiction or for the use of the Department of Veterans Affairs. Such sums as realized are in addition to the amount provided for in ''Construction, Major Projects'' and ''Construction, Minor Projects''.

SEC. 214. Amounts made available under ''Medical Services'' are available—

(1) for furnishing recreational facilities, supplies, and equipment; and

(2) for funeral expenses, burial expenses, and other expenses incidental to funerals and

burials for beneficiaries receiving care in the Department.

(INCLUDING TRANSFER OF FUNDS)

SEC. 215. Such sums as may be deposited to the Medical Care Collections Fund pursuant to section 1729A of title 38, United States Code, may be transferred to ''Medical Services'', to remain available until expended for the purposes of that account.

SEC. 216. The Secretary of Veterans Affairs may enter into agreements with Indian tribes and tribal organizations which are party to the Alaska Native Health Compact with the Indian Health Service, and Indian tribes and tribal organizations serving rural Alaska which have entered into contracts with the Indian Health Service under the Indian Self Determination and Educational Assistance Act, to provide healthcare, including behavioral health and dental care. The Secretary shall require participating veterans and facilities to comply with all appropriate rules and regulations, as established by the Secretary. The term ''rural Alaska'' shall mean those lands sited within the external boundaries of the Alaska Native regions specified in sections 7(a)(1)–(4) and (7)–(12) of the Alaska Native Claims Settlement Act, as amended (43 U.S.C. 1606), and those lands within the Alaska Native regions specified in sections 7(a)(5) and 7(a)(6) of the Alaska Native Claims Settlement Act, as amended (43 U.S.C. 1606), which are not within the boundaries of the municipality of Anchorage, the Fairbanks North Star Borough, the Kenai Peninsula Borough or the Matanuska Susitna Borough.

(INCLUDING TRANSFER OF FUNDS)

SEC. 217. Such sums as may be deposited to the Department of Veterans Affairs Capital Asset Fund pursuant to section 8118 of title 38, United States Code, may be transferred to the ''Construction, Major Projects'' and ''Construction, Minor Projects'' accounts, to remain available until expended for the purposes of these accounts.

SEC. 218. None of the funds made available in this title may be used to implement any policy prohibiting the Directors of the Veterans Integrated Services Networks from conducting outreach or marketing to enroll new veterans within their respective Networks.

SEC. 219. The Secretary of Veterans Affairs shall submit to the Committees on Appropriations of both Houses of Congress a quarterly report on the financial status of the Veterans Health Administration.

(INCLUDING TRANSFER OF FUNDS)

SEC. 220. Amounts made available under the ''Medical Services'', ''Medical Support and Compliance'', ''Medical Facilities'', ''General Operating Expenses, Veterans Benefits Administration'', ''General Administration'', and ''National Cemetery Administration'' accounts for fiscal year 2015 may be transferred to or from the ''Information Technology Systems'' account: *Provided*, That before a transfer may take place, the Secretary of Veterans Affairs shall request from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and an approval is issued.

SEC. 221. Of the amounts made available to the Department of Veterans Affairs for fiscal year 2015, in this or any other Act, under the ''Medical Facilities'' account for nonrecurring maintenance, not more than 20 percent of the funds made available shall be obligated during the last 2 months of that fiscal year: *Provided*, That the Secretary may waive this requirement after providing written notice to the Committees on Appropriations of both Houses of Congress.

(INCLUDING TRANSFER OF FUNDS)

SEC. 222. Of the amounts appropriated to the Department of Veterans Affairs for fiscal year 2015 for ''Medical Services'', ''Medical Support and Compliance'', ''Medical Facilities'', ''Construction, Minor Projects'', and ''Information Technology Systems'', up to $259,251,213, plus reimbursements, may be transferred to the Joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund, established by section 1704 of the National Defense Authorization Act for Fiscal Year 2010 (Public Law 111–84; 123 Stat. 3571) and may be used for operation of the facilities designated as combined Federal medical facilities as described by section 706 of the Duncan Hunter National Defense Authorization Act for Fiscal Year 2009 (Public Law 110–417; 122 Stat. 4500): *Provided*, That additional funds may be transferred from accounts designated in this section to the Joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund upon written notification by the Secretary of Veterans Affairs to the Committees on Appropriations of both Houses of Congress.

(INCLUDING TRANSFER OF FUNDS)

SEC. 223. Of the amounts appropriated to the Department of Veterans Affairs which become available on October 1, 2015, for ''Medical Services'', ''Medical Support and Compliance'', and ''Medical Facilities'', up to $245,398,000, plus reimbursements, may be transferred to the Joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund, established by section 1704 of the National Defense Authorization Act for Fiscal Year 2010 (Public Law 111–84; 123 Stat. 3571) and may be used for operation of the facilities designated as combined Federal medical facilities as described by section 706 of the Duncan Hunter National Defense Authorization Act for Fiscal Year 2009 (Public Law 110–417; 122 Stat. 4500): *Provided*, That additional funds may be transferred from accounts designated in this section to the Joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund upon written notification by the Secretary of Veterans Affairs to the Committees on Appropriations of both Houses of Congress.

(INCLUDING TRANSFER OF FUNDS)

SEC. 224. Such sums as may be deposited to the Medical Care Collections Fund pursuant to section 1729A of title 38, United States Code, for healthcare provided at facilities designated as combined Federal medical facilities as described by section 706 of the Duncan Hunter National Defense Authorization Act for Fiscal Year 2009 (Public Law 110–417; 122 Stat. 4500) shall also be available: (1) for transfer to the Joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund, established by section 1704 of the National Defense Authorization Act for Fiscal Year 2010 (Public Law 111–84; 123 Stat. 3571); and (2) for operations of the facilities designated as combined Federal medical facilities as described by section 706 of the Duncan Hunter National Defense Authorization Act for Fiscal Year 2009 (Public Law 110–417; 122 Stat. 4500).

(INCLUDING TRANSFER OF FUNDS)

SEC. 225. Of the amounts available in this title for ''Medical Services'', ''Medical Support and Compliance'', and ''Medical Facilities'', a minimum of $15,000,000 shall be transferred to the DOD–VA Health Care Sharing Incentive Fund, as authorized by section 8111(d) of title 38, United States Code, to remain available until expended, for any purpose authorized by section 8111 of title 38, United States Code.

(INCLUDING RESCISSIONS OF FUNDS)

SEC. 226. (a) Of the funds appropriated in title II of division J of Public Law 113–76, the following amounts which became available on October 1, 2014, are hereby rescinded from the following accounts in the amounts specified:

(1) ''Department of Veterans Affairs, Medical Services'', $1,400,000,000.

(2) ''Department of Veterans Affairs, Medical Support and Compliance'', $100,000,000.

(3) ''Department of Veterans Affairs, Medical Facilities'', $250,000,000.

(b) In addition to amounts provided elsewhere in this Act, an additional amount is appropriated to the following accounts in the amounts specified to remain available until September 30, 2016:

(1) ''Department of Veterans Affairs, Medical Services'', $1,400,000,000.

(2) ''Department of Veterans Affairs, Medical Support and Compliance'', $100,000,000.

(3) ''Department of Veterans Affairs, Medical Facilities'', $250,000,000.

SEC. 227. The Secretary of Veterans Affairs shall notify the Committees on Appropriations of both Houses of Congress of all bid savings in major construction projects that total at least $5,000,000, or 5 percent of the programmed amount of the project, whichever is less: *Provided*, That such notification shall occur within 14 days of a contract identifying the programmed amount: *Provided further*, That the Secretary shall notify the Committees on Appropriations of both Houses of Congress 14 days prior to the obligation of such bid savings and shall describe the anticipated use of such savings.

SEC. 228. The scope of work for a project included in ''Construction, Major Projects'' may not be increased above the scope specified for that project in the original justification data provided to the Congress as part of the request for appropriations.

SEC. 229. The Secretary of Veterans Affairs shall submit to the Committees on Appropriations of both Houses of Congress a quarterly report that contains the following information from each Veterans Benefits Administration Regional Office: (1) the average time to complete a disability compensation claim; (2) the number of claims pending more than 125 days; (3) error rates; (4) the number of claims personnel; (5) any corrective action taken within the quarter to address poor performance; (6) training programs undertaken; and (7) the number and results of Quality Review Team audits: *Provided*, That each quarterly report shall be submitted no later than 30 days after the end of the respective quarter.

SEC. 230. The Secretary shall submit to the Committees on Appropriations of both Houses of Congress a reprogramming request if at any point during fiscal year 2015, the funding allocated for a medical care initiative identified in the fiscal year 2015 expenditure plan is adjusted by more than $25,000,000 from the allocation shown in the corresponding congressional budget justification. Such a reprogramming request may go forward only if the Committees on Appropriations of both Houses of Congress approve the request or if a period of 14 days has elapsed.

SEC. 231. Of the funds provided to the Department of Veterans Affairs for fiscal year 2015 for ''Medical Services'' and ''Medical Support and Compliance'', a maximum of $8,371,000 may be obligated from the ''Medical Services'' account and a maximum of $114,703,000 may be obligated from the ''Medical Support and Compliance'' account for the VistA Evolution and electronic health record interoperability projects: *Provided*, That funds in addition to these amounts may be obligated for the VistA Evolution and electronic health record interoperability projects upon written notification by the Secretary of Veterans Affairs to the Committees on Appropriations of both Houses of Congress.

SEC. 232. The Secretary of Veterans Affairs shall provide written notification to the Committees on Appropriations of both Houses of Congress 15 days prior to organizational changes which result in the transfer of 25 or more full-time equivalents from one organizational unit of the Department of Veterans Affairs to another.

(INCLUDING RESCISSION OF FUNDS)

SEC. 233. (a) There is hereby rescinded an aggregate amount of $41,000,000 from the total budget authority provided for fiscal year 2015 for discretionary accounts of the Department of Veterans Affairs in—

(1) this Act; or

(2) any advance appropriation for fiscal year 2015 in prior appropriation Acts.

(b) The Secretary shall submit to the Committees on Appropriations of both Houses of Congress a report specifying the account and amount of each rescission not later than 20 days following enactment of this Act.

SEC. 234. The Secretary of Veterans Affairs shall provide on a quarterly basis to the Committees on Appropriations of both Houses of Congress notification of any single national outreach and awareness marketing campaign in which obligations exceed $2,000,000.

SEC. 235. None of the funds in this or any other Act may be used to close Department of Veterans Affairs (VA) hospitals, domiciliaries, or clinics, conduct an environmental assessment, or to diminish healthcare services at existing Veterans Health Administration medical facilities located in Veterans Integrated Service Network 23 as part of a planned realignment of VA services until the Secretary provides to the Committees on Appropriations of both Houses of Congress a report including the following elements: (1) a national realignment strategy that includes a detailed description of realignment plans within each Veterans Integrated Service Network (VISN), including an updated Long Range Capital Plan to implement realignment requirements; (2) an explanation of the process by which those plans were developed and coordinated within the VISN; (3) a cost vs. benefit analysis of each planned realignment, including the cost of replacing Veterans Health Administration services with contract care or other outsourced services; (4) an analysis of how any such planned realignment of services will impact access to care for veterans living in rural or highly rural areas, including travel distances and transportation costs to access a VA medical facility and availability of local specialty and primary care; (5) an inventory of VA buildings with historic designation and the methodology used to determine the buildings' condition and utilization; (6) a description of how any realignment will be consistent with requirements under the National Historic Preservation Act; and (7) consideration given for reuse of historic buildings within newly identified realignment requirements: *Provided*, That this provision shall not apply to capital projects in VISN 23, or any other VISN, which have been authorized or approved by Congress.

SEC. 236. None of the funds available to the Department of Veterans Affairs, in this or any other Act, may be used to replace the current system by which the Veterans Integrated Service Networks select and contract for diabetes monitoring supplies and equipment.

SEC. 237. None of the funds made available in this Act or prior Acts may be used by the Secretary of Veterans Affairs to expand the dialysis pilot program approved by the Under Secretary of Veterans Affairs for Health in August 2010 and by the Secretary of Veterans Affairs in September 2010 or to create any new dialysis capability provided by the Department of Veterans Affairs in any facility that is not an initial facility under the pilot program until the later of the following dates:

(1) September 30, 2015.

(2) The date on which an independent analysis of the dialysis pilot program has been conducted at each initial facility and has been submitted to the Committees on Appropriations and the Committees on Veterans' Affairs of both Houses of Congress.

(INCLUDING TRANSFER OF FUNDS)

SEC. 238. The Secretary of Veterans Affairs, upon determination that such action is necessary to address needs of the Veterans Health Administration, may transfer to the ''Medical Services'' account any discretionary appropriations made available for fiscal year 2015 in this title (except appropriations made to the ''General Operating Expenses, Veterans Benefits Administration'' account) or any discretionary unobligated balances within the Department of Veterans Affairs, including those appropriated for fiscal year 2015, that were provided in advance by appropriations Acts: *Provided*, That transfers shall be made only with the approval of the Office of Management and Budget: *Provided further*, That the transfer authority provided in this section is in addition to any other transfer authority provided by law: *Provided further*, That no amounts may be transferred from amounts that were designated by Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985: *Provided further*, That such authority to transfer may not be used unless for higher priority items, based on emergent healthcare requirements, than those for which originally appropriated and in no case where the item for which funds are requested has been denied by Congress: *Provided further*, That, upon determination that all or part of the funds transferred from an appropriation are not necessary, such amounts may be transferred back to that appropriation and shall be available for the same purposes as originally appropriated: *Provided further*, That before a transfer may take place, the Secretary of Veterans Affairs shall request from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and receive approval of that request.

(INCLUDING TRANSFER OF FUNDS)

SEC. 239. Amounts made available for the Department of Veterans Affairs for fiscal year 2015, under the ''Board of Veterans Appeals'' and the ''General Operating Expenses, Veterans Benefits Administration'' accounts may be transferred between such accounts: *Provided*, That before a transfer may take place, the Secretary of Veterans Affairs shall request from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and such Committees issue an approval.

(RESCISSION OF FUNDS)

SEC. 240. Of the unobligated balances available within the ''DOD–VA Health Care Sharing Incentive Fund'', $15,000,000 are hereby rescinded.

SEC. 241. Subsection (b) of section 504 of the Veterans' Benefits Improvements Act of 1996 (Public Law 104–275; 38 U.S.C. 5101 note) is amended to read as follows:

''(b) LIMITATION.—The Secretary may carry out the pilot program under this section as follows:

''(1) In fiscal years before fiscal year 2015, through not more than 10 regional offices of the Department of Veterans Affairs.

''(2) In fiscal year 2015, through not more than 12 regional offices of the Department.

''(3) In fiscal year 2016, through not more than 15 regional offices of the Department.

''(4) In fiscal year 2017 and each fiscal year thereafter, through such regional offices of the Department as the Secretary considers appropriate.''.

SEC. 242. Section 101(d)(2)(B)(ii) of the Veterans Access, Choice, and Accountability Act of 2014 (Public Law 113–146; 38 U.S.C. 1701 note) is amended by adding at the end the following new subclause:

''(III) OTHER EXCEPTIONS.—With respect to furnishing care or services under this section in Alaska, the Alaska Fee Schedule of the Department of Veterans Affairs will be followed, except for when another payment agreement, including a contract or provider agreement, is in place. With respect to care or services furnished under this section in a State with an All-Payer Model Agreement under the Social Security Act that became effective on January 1, 2014, the Medicare payment rates under clause (i) shall be calculated based on the payment rates under such agreement.''.

SEC. 243. Section 1710(e)(1)(F) of title 38, United States Code, is amended by striking ''January 1, 1957,'' and inserting ''August 1, 1953''.

ADVANCE APPROPRIATIONS FOR CERTAIN ACCOUNTS OF DEPARTMENT OF VETERANS AFFAIRS

SEC. 244. (a) IN GENERAL.—Section 117 of title 38, United States Code, is amended—

(1) by striking ''medical care accounts of the Department'' each place it appears and inserting ''covered accounts of the Department'';

(2) in subsection (a)—

(A) by striking ''beginning with fiscal year 2011,''; and

(B) by striking ''discretionary'' each place it appears;

(3) in subsection (c)—

(A) by striking ''medical care accounts of the Veterans Health Administration, Department of Veterans Affairs account'' and inserting ''accounts of the Department of Veterans Affairs account'';

(B) in paragraph (1), by inserting ''Veterans Health Administration,'' and after ''(1)'';

(C) in paragraph (2), by inserting ''Veterans Health Administration,'' after ''(2)'';

(D) in paragraph (3), by inserting ''Veterans Health Administration,'' after ''(3)'';

(E) by redesignating paragraphs (1) through (3) as paragraphs (4) through (6), respectively;

(F) by inserting before paragraph (4), as redesignated by subparagraph (E), the following new paragraphs:

''(1) Veterans Benefits Administration, Compensation and Pensions.

''(2) Veterans Benefits Administration, Readjustment Benefits.

''(3) Veterans Benefits Administration, Veterans Insurance and Indemnities.''; and

(G) in the subsection heading, by striking ''MEDICAL CARE ACCOUNTS'' and inserting ''COVERED ACCOUNTS OF THE DEPARTMENT''; and

(4) in the section heading, by striking ''**certain medical care accounts**'' and inserting ''**certain accounts**''.

(b) APPLICABILITY.—Section 117 of title 38, United States Code, shall apply as follows:

(1) With respect to an account described in paragraph (4), (5), or (6) of subsection (c) of such section, as redesignated by subsection (a) of this section, for each fiscal year beginning with fiscal year 2011.

(2) With respect to an account described in paragraph (1), (2), or (3) of such subsection (c), as added by subsection (a) of this section, for each fiscal year beginning with 2017.

(c) CLERICAL AMENDMENT.—The table of sections at the beginning of chapter 1 of title

38, United States Code, is amended by striking the item relating to section 117 and inserting the following new item:

''117. Advance appropriations for certain accounts.''.

(d) CONFORMING AND TECHNICAL AMENDMENTS.—Section 1105(a) of title 31, United States Code, is amended—

(1) by striking the first paragraph (37) and inserting the following new paragraph:

''(37) information on estimates of appropriations for the fiscal year following the fiscal year for which the budget is submitted for the following accounts of the Department of Veterans Affairs:

''(A) Veterans Benefits Administration, Compensation and Pensions.

''(B) Veterans Benefits Administration, Readjustment Benefits.

''(C) Veterans Benefits Administration, Veterans Insurance and Indemnities.

''(D) Veterans Health Administration, Medical Services.

''(E) Veterans Health Administration, Medical Support and Compliance.

''(F) Veterans Health Administration, Medical Facilities.''; and

(2) by redesignating the second paragraph (37), as added by section 11(a)(2) of the GPRA Modernization Act of 2010 (Public Law 111–352; 124 Stat. 3881), as paragraph (39).

TITLE III

RELATED AGENCIES

AMERICAN BATTLE MONUMENTS COMMISSION

SALARIES AND EXPENSES

For necessary expenses, not otherwise provided for, of the American Battle Monuments Commission, including the acquisition of land or interest in land in foreign countries; purchases and repair of uniforms for caretakers of national cemeteries and monuments outside of the United States and its territories and possessions; rent of office and garage space in foreign countries; purchase (one-for-one replacement basis only) and hire of passenger motor vehicles; not to exceed $7,500 for official reception and representation expenses; and insurance of official motor vehicles in foreign countries, when required by law of such countries, $74,100,000, to remain available until expended.

FOREIGN CURRENCY FLUCTUATIONS ACCOUNT

For necessary expenses, not otherwise provided for, of the American Battle Monuments Commission, such sums as may be necessary, to remain available until expended, for purposes authorized by section 2109 of title 36, United States Code.

UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS

SALARIES AND EXPENSES

For necessary expenses for the operation of the United States Court of Appeals for Veterans Claims as authorized by sections 7251 through 7298 of title 38, United States Code, $31,386,000: *Provided*, That $2,500,000 shall be available for the purpose of providing financial assistance as described, and in accordance with the process and reporting procedures set forth, under this heading in Public Law 102–229.

DEPARTMENT OF DEFENSE—CIVIL

CEMETERIAL EXPENSES, ARMY

SALARIES AND EXPENSES

For necessary expenses for maintenance, operation, and improvement of Arlington National Cemetery and Soldiers' and Airmen's Home National Cemetery, including the purchase or lease of passenger motor vehicles for replacement on a one-for-one basis only, and not to exceed $1,000 for official reception and representation expenses, $65,800,000, of which not to exceed $3,000,000 shall remain available until September 30, 2016. In addition, such sums as may be necessary for parking maintenance, repairs and replacement, to be derived from the ''Lease of Department of Defense Real Property for Defense Agencies'' account.

ARMED FORCES RETIREMENT HOME TRUST FUND

For expenses necessary for the Armed Forces Retirement Home to operate and maintain the Armed Forces Retirement Home—Washington, District of Columbia, and the Armed Forces Retirement Home—Gulfport, Mississippi, to be paid from funds available in the Armed Forces Retirement Home Trust Fund, $63,400,000, of which $1,000,000 shall remain available until expended for construction and renovation of the physical plants at the Armed Forces Retirement Home—Washington, District of Columbia, and the Armed Forces Retirement Home—Gulfport, Mississippi.

ADMINISTRATIVE PROVISION

SEC. 301. Funds appropriated in this Act under the heading ''Department of Defense—Civil, Cemeterial Expenses, Army'', may be provided to Arlington County, Virginia, for the relocation of the federally owned water main at Arlington National Cemetery, making additional land available for ground burials.

TITLE IV

OVERSEAS CONTINGENCY OPERATIONS

DEPARTMENT OF DEFENSE

MILITARY CONSTRUCTION, DEFENSE-WIDE

For an additional amount for ''Military Construction, Defense-Wide'', $46,000,000 to remain available until September 30, 2017, for a project outside of the United States: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

EUROPEAN REASSURANCE INITIATIVE MILITARY CONSTRUCTION

For an additional amount for ''Military Construction, Army'', ''Military Construction, Air Force'', and ''Military Construction, Defense-Wide'', $175,000,000 to remain available until September 30, 2017, for military construction (including planning and design) for projects associated with the European Reassurance Initiative: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985: *Provided further*, That none of the funds provided under this heading may be obligated or expended until the Secretary of Defense submits to the Committees on Appropriations of both Houses of Congress: (1) a final spending plan for the European Reassurance Initiative military construction projects, and (2) the relevant Department of Defense Form 1391 for each project prior to the execution of that project.

TITLE V

GENERAL PROVISIONS

SEC. 501. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

SEC. 502. None of the funds made available in this Act may be used for any program, project, or activity, when it is made known to the Federal entity or official to which the funds are made available that the program, project, or activity is not in compliance with any Federal law relating to risk assessment, the protection of private property rights, or unfunded mandates.

SEC. 503. All departments and agencies funded under this Act are encouraged, within the limits of the existing statutory authorities and funding, to expand their use of ''E-Commerce'' technologies and procedures in the conduct of their business practices and public service activities.

SEC. 504. Unless stated otherwise, all reports and notifications required by this Act shall be submitted to the Subcommittee on Military Construction and Veterans Affairs, and Related Agencies of the Committee on Appropriations of the House of Representatives and the Subcommittee on Military Construction and Veterans Affairs, and Related Agencies of the Committee on Appropriations of the Senate.

SEC. 505. None of the funds made available in this Act may be transferred to any department, agency, or instrumentality of the United States Government except pursuant to a transfer made by, or transfer authority provided in, this or any other appropriations Act.

SEC. 506. None of the funds made available in this Act may be used for a project or program named for an individual serving as a Member, Delegate, or Resident Commissioner of the United States House of Representatives.

SEC. 507. (a) Any agency receiving funds made available in this Act, shall, subject to subsections (b) and (c), post on the public Web site of that agency any report required to be submitted by the Congress in this or any other Act, upon the determination by the head of the agency that it shall serve the national interest.

(b) Subsection (a) shall not apply to a report if—

(1) the public posting of the report compromises national security; or

(2) the report contains confidential or proprietary information.

(c) The head of the agency posting such report shall do so only after such report has been made available to the requesting Committee or Committees of Congress for no less than 45 days.

SEC. 508. (a) None of the funds made available in this Act may be used to maintain or establish a computer network unless such network blocks the viewing, downloading, and exchanging of pornography.

(b) Nothing in subsection (a) shall limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities.

SEC. 509. None of the funds made available in this Act may be used by an agency of the executive branch to pay for first-class travel by an employee of the agency in contravention of sections 301–10.122 through 301–10.124 of title 41, Code of Federal Regulations.

SEC. 510. None of the funds made available in this Act may be used to execute a contract for goods or services, including construction services, where the contractor has not complied with Executive Order No. 12989.

SEC. 511. None of the funds made available by this Act may be used by the Department of Defense or the Department of Veterans Affairs to lease or purchase new light duty vehicles for any executive fleet, or for an agency's fleet inventory, except in accordance with Presidential Memorandum—Federal Fleet Performance, dated May 24, 2011.

SEC. 512. (a) IN GENERAL.—None of the funds appropriated or otherwise made available to the Department of Defense in this Act may be used to construct, renovate, or expand any facility in the United States, its territories, or possessions to house any individual detained at United States Naval Station, Guantánamo Bay, Cuba, for the purposes of detention or imprisonment in the

custody or under the control of the Department of Defense.

(b) The prohibition in subsection (a) shall not apply to any modification of facilities at United States Naval Station, Guantánamo Bay, Cuba.

(c) An individual described in this subsection is any individual who, as of June 24, 2009, is located at United States Naval Station, Guantánamo Bay, Cuba, and who—

(1) is not a citizen of the United States or a member of the Armed Forces of the United States; and

(2) is—

(A) in the custody or under the effective control of the Department of Defense; or

(B) otherwise under detention at United States Naval Station, Guantánamo Bay, Cuba.

This division may be cited as the ''Military Construction and Veterans Affairs, and Related Agencies Appropriations Act, 2015''.

DIVISION J—DEPARTMENT OF STATE, FOREIGN OPERATIONS, AND RELATED PROGRAMS APPROPRIATIONS ACT, 2015

TITLE I

DEPARTMENT OF STATE AND RELATED AGENCY

DEPARTMENT OF STATE

ADMINISTRATION OF FOREIGN AFFAIRS

DIPLOMATIC AND CONSULAR PROGRAMS

For necessary expenses of the Department of State and the Foreign Service not otherwise provided for, $6,460,639,000, of which up to $650,000,000 may remain available until September 30, 2016, and of which up to $2,128,115,000 may remain available until expended for Worldwide Security Protection: *Provided*, That funds made available under this heading shall be allocated in accordance with paragraphs (1) through (4) as follows:

(1) HUMAN RESOURCES.—For necessary expenses for training, human resources management, and salaries, including employment without regard to civil service and classification laws of persons on a temporary basis (not to exceed $700,000), as authorized by section 801 of the United States Information and Educational Exchange Act of 1948, $2,270,036,000, of which up to $331,885,000 is for Worldwide Security Protection.

(2) OVERSEAS PROGRAMS.—For necessary expenses for the regional bureaus of the Department of State and overseas activities as authorized by law, $1,595,805,000.

(3) DIPLOMATIC POLICY AND SUPPORT.—For necessary expenses for the functional bureaus of the Department of State, including representation to certain international organizations in which the United States participates pursuant to treaties ratified pursuant to the advice and consent of the Senate or specific Acts of Congress, general administration, and arms control, nonproliferation and disarmament activities as authorized, $780,860,000.

(4) SECURITY PROGRAMS.—For necessary expenses for security activities, $1,813,938,000, of which up to $1,796,230,000 is for Worldwide Security Protection.

(5) FEES AND PAYMENTS COLLECTED.—In addition to amounts otherwise made available under this heading—

(A) not to exceed $1,806,600 shall be derived from fees collected from other executive agencies for lease or use of facilities located at the International Center in accordance with section 4 of the International Center Act, and, in addition, as authorized by section 5 of such Act, $533,000, to be derived from the reserve authorized by that section, to be used for the purposes set out in that section;

(B) as authorized by section 810 of the United States Information and Educational Exchange Act, not to exceed $5,000,000, to remain available until expended, may be credited to this appropriation from fees or other payments received from English teaching, library, motion pictures, and publication programs and from fees from educational advising and counseling and exchange visitor programs; and

(C) not to exceed $15,000, which shall be derived from reimbursements, surcharges, and fees for use of Blair House facilities.

(6) TRANSFER, REPROGRAMMING, AND OTHER MATTERS.—

(A) Notwithstanding any provision of this Act, funds may be reprogrammed within and between paragraphs (1) through (4) under this heading subject to section 7015 of this Act.

(B) Of the amount made available under this heading, not to exceed $10,000,000 may be transferred to, and merged with, funds made available by this Act under the heading ''Emergencies in the Diplomatic and Consular Service'', to be available only for emergency evacuations and rewards, as authorized.

(C) Funds appropriated under this heading are available for acquisition by exchange or purchase of passenger motor vehicles as authorized by law and, pursuant to 31 U.S.C. 1108(g), for the field examination of programs and activities in the United States funded from any account contained in this title.

(D) Of the funds appropriated under this heading, up to $23,500,000, to remain available until expended, shall be for Conflict Stabilization Operations and for related reconstruction and stabilization assistance to prevent or respond to conflict or civil strife in foreign countries or regions, or to enable transition from such strife: *Provided*, That such funds may be transferred to, and merged with, funds previously made available under the heading ''Conflict Stabilization Operations'' in title I of prior acts making appropriations for the Department of State, foreign operations, and related programs.

(E) None of the funds appropriated under this heading may be used for the preservation of religious sites unless the Secretary of State determines and reports to the Committees on Appropriations that such sites are historically, artistically, or culturally significant, that the purpose of the project is neither to advance nor to inhibit the free exercise of religion, and that the project is in the national interest of the United States.

CAPITAL INVESTMENT FUND

For necessary expenses of the Capital Investment Fund, $56,400,000, to remain available until expended, as authorized.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General, $73,400,000, notwithstanding section 209(a)(1) of the Foreign Service Act of 1980 (Public Law 96–465), as it relates to post inspections: *Provided*, That of the funds appropriated under this heading, $11,000,000 may remain available until September 30, 2016.

EDUCATIONAL AND CULTURAL EXCHANGE PROGRAMS

For expenses of educational and cultural exchange programs, as authorized, $589,900,000, to remain available until expended, of which not less than $236,485,000 shall be for the Fulbright Program: *Provided*, That fees or other payments received from, or in connection with, English teaching, educational advising and counseling programs, and exchange visitor programs as authorized may be credited to this account, to remain available until expended: *Provided further*, That a portion of the Fulbright awards from the Eurasia and Central Asia regions shall be designated as Edmund S. Muskie Fellowships, following consultation with the Committees on Appropriations: *Provided further*, That not later than 45 days after enactment of this Act, the Secretary of State shall submit a report to the Committees on Appropriations detailing modifications made to existing educational and cultural exchange programs since calendar year 2013, including for special academic and special professional and cultural exchanges: *Provided further*, That any further substantive modifications to programs funded by this Act under this heading shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

REPRESENTATION EXPENSES

For representation expenses as authorized, $8,030,000.

PROTECTION OF FOREIGN MISSIONS AND OFFICIALS

For expenses, not otherwise provided, to enable the Secretary of State to provide for extraordinary protective services, as authorized, $30,036,000, to remain available until September 30, 2016.

EMBASSY SECURITY, CONSTRUCTION, AND MAINTENANCE

For necessary expenses for carrying out the Foreign Service Buildings Act of 1926 (22 U.S.C. 292–303), preserving, maintaining, repairing, and planning for buildings that are owned or directly leased by the Department of State, renovating, in addition to funds otherwise available, the Harry S Truman Building, and carrying out the Diplomatic Security Construction Program as authorized, $822,755,000, to remain available until expended as authorized, of which not to exceed $25,000 may be used for domestic and overseas representation expenses as authorized: *Provided*, That none of the funds appropriated in this paragraph shall be available for acquisition of furniture, furnishings, or generators for other departments and agencies.

In addition, for the costs of worldwide security upgrades, acquisition, and construction as authorized, $1,240,500,000, to remain available until expended: *Provided*, That not later than 45 days after enactment of this Act, the Secretary of State shall submit to the Committees on Appropriations the proposed allocation of funds made available under this heading and the actual and anticipated proceeds of sales for all projects in fiscal year 2015.

EMERGENCIES IN THE DIPLOMATIC AND CONSULAR SERVICE

For necessary expenses to enable the Secretary of State to meet unforeseen emergencies arising in the Diplomatic and Consular Service, $7,900,000, to remain available until expended as authorized, of which not to exceed $1,000,000 may be transferred to, and merged with, funds appropriated by this Act under the heading ''Repatriation Loans Program Account'', subject to the same terms and conditions.

REPATRIATION LOANS PROGRAM ACCOUNT

For the cost of direct loans, $1,300,000, as authorized: *Provided*, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That such funds are available to subsidize gross obligations for the principal amount of direct loans not to exceed $2,469,136.

PAYMENT TO THE AMERICAN INSTITUTE IN TAIWAN

For necessary expenses to carry out the Taiwan Relations Act (Public Law 96–8), $30,000,000.

PAYMENT TO THE FOREIGN SERVICE RETIREMENT AND DISABILITY FUND

For payment to the Foreign Service Retirement and Disability Fund, as authorized, $158,900,000.

INTERNATIONAL ORGANIZATIONS

CONTRIBUTIONS TO INTERNATIONAL ORGANIZATIONS

For necessary expenses, not otherwise provided for, to meet annual obligations of membership in international multilateral organizations, pursuant to treaties ratified pursuant to the advice and consent of the Senate, conventions or specific Acts of Congress, $1,399,151,000: *Provided*, That the Secretary of State shall, at the time of the submission of the President's budget to Congress under section 1105(a) of title 31, United States Code, transmit to the Committees on Appropriations the most recent biennial budget prepared by the United Nations for the operations of the United Nations: *Provided further*, That the Secretary of State shall notify the Committees on Appropriations at least 15 days in advance (or in an emergency, as far in advance as is practicable) of any United Nations action to increase funding for any United Nations program without identifying an offsetting decrease elsewhere in the United Nations budget: *Provided further*, That not later than May 1, 2015, and 30 days after the end of fiscal year 2015, the Secretary of State shall report to the Committees on Appropriations any credits available to the United States, including from the United Nations Tax Equalization Fund, and provide updated fiscal year 2015 and fiscal year 2016 assessment costs including offsets from available credits and updated foreign currency exchange rates: *Provided further*, That any such credits shall only be available for United States assessed contributions to the United Nations and the Committees on Appropriations shall be notified when such credits are applied to any assessed contribution, including any payment of arrearages: *Provided further*, That any notification regarding funds appropriated or otherwise made available under this heading in this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs submitted pursuant to section 7015 of this Act, section 34 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2706), or any operating plan submitted pursuant to section 7076 of this Act, shall include an estimate of all known credits currently available to the United States and provide updated assessment costs including offsets from available credits and updated foreign currency exchange rates: *Provided further*, That any payment of arrearages under this heading shall be directed to activities that are mutually agreed upon by the United States and the respective international organization and shall be subject to the regular notification procedures of the Committees on Appropriations: *Provided further*, That none of the funds appropriated under this heading shall be available for a United States contribution to an international organization for the United States share of interest costs made known to the United States Government by such organization for loans incurred on or after October 1, 1984, through external borrowings: *Provided further*, That the Secretary of State shall review the budgetary and personnel procedures of the United Nations and affiliated agencies funded under this heading and, not later than 180 days after enactment of this Act, submit a report to the Committees on Appropriations on steps taken at each agency to eliminate unnecessary administrative costs and duplicative activities and ensure that personnel practices are transparent and merit-based.

CONTRIBUTIONS FOR INTERNATIONAL PEACEKEEPING ACTIVITIES

For necessary expenses to pay assessed and other expenses of international peacekeeping activities directed to the maintenance or restoration of international peace and security, $2,118,891,000, of which 15 percent shall remain available until September 30, 2016: *Provided*, That none of the funds made available by this Act shall be obligated or expended for any new or expanded United Nations peacekeeping mission unless, at least 15 days in advance of voting for such mission in the United Nations Security Council (or in an emergency as far in advance as is practicable), the Committees on Appropriations are notified: (1) of the estimated cost and duration of the mission, the objectives of the mission, the national interest that will be served, and the exit strategy; (2) that the United Nations has in place measures to prevent United Nations employees, contractor personnel, and peacekeeping troops serving in the mission from trafficking in persons, exploiting victims of trafficking, or committing acts of illegal sexual exploitation or other violations of human rights, and to bring to justice individuals who engage in such acts while participating in the peacekeeping mission, including prosecution in their home countries of such individuals in connection with such acts, and to make information about such cases publicly available in the country where an alleged crime occurs and on the United Nations' Web site; and (3) the source of funds that will be used to pay the cost of the new or expanded mission, and the estimated cost in future fiscal years: *Provided further*, That funds shall be available for peacekeeping expenses unless the Secretary of State determines that American manufacturers and suppliers are not being given opportunities to provide equipment, services, and material for United Nations peacekeeping activities equal to those being given to foreign manufacturers and suppliers: *Provided further*, That the Secretary of State shall work with the United Nations and foreign governments contributing peacekeeping troops to implement effective vetting procedures to ensure that such troops have not violated human rights: *Provided further*, That none of the funds appropriated or otherwise made available under this heading may be used for any United Nations peacekeeping mission that will involve United States Armed Forces under the command or operational control of a foreign national, unless the President's military advisors have submitted to the President a recommendation that such involvement is in the national interest of the United States and the President has submitted to the Congress such a recommendation: *Provided further*, That not later than May 1, 2015, and 30 days after the end of fiscal year 2015, the Secretary of State shall report to the Committees on Appropriations any credits available to the United States, including those resulting from United Nations peacekeeping missions or the United Nations Tax Equalization Fund, and provide updated fiscal year 2015 and fiscal year 2016 assessment costs including offsets from available credits: *Provided further*, That any such credits shall only be available for United States assessed contributions to the United Nations, and the Committees on Appropriations shall be notified when such credits are applied to any assessed contribution, including any payment of arrearages: *Provided further*, That any notification regarding funds appropriated or otherwise made available under this heading in this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs submitted pursuant to section 7015 of this Act, section 34 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2706), or any operating plan submitted pursuant to section 7076 of this Act, shall include an estimate of all known credits currently available to the United States and provide updated assessment costs including offsets from available credits: *Provided further*, That notwithstanding any other provision of law, funds appropriated or otherwise made available under this heading shall be available for United States assessed contributions up to the amount specified in Annex IV accompanying United Nations General Assembly Resolution 64/220: *Provided further*, That such funds may be made available above the amount authorized in section 404(b)(2)(B) of the Foreign Relations Authorization Act, fiscal years 1994 and 1995 (22 U.S.C. 287e note) only if the Secretary of State determines and reports to the appropriate congressional committees that it is important to the national interest of the United States.

INTERNATIONAL COMMISSIONS

For necessary expenses, not otherwise provided for, to meet obligations of the United States arising under treaties, or specific Acts of Congress, as follows:

INTERNATIONAL BOUNDARY AND WATER COMMISSION, UNITED STATES AND MEXICO

For necessary expenses for the United States Section of the International Boundary and Water Commission, United States and Mexico, and to comply with laws applicable to the United States Section, including not to exceed $6,000 for representation expenses; as follows:

SALARIES AND EXPENSES

For salaries and expenses, not otherwise provided for, $44,707,000.

CONSTRUCTION

For detailed plan preparation and construction of authorized projects, $29,000,000, to remain available until expended, as authorized.

AMERICAN SECTIONS, INTERNATIONAL COMMISSIONS

For necessary expenses, not otherwise provided, for the International Joint Commission and the International Boundary Commission, United States and Canada, as authorized by treaties between the United States and Canada or Great Britain, and the Border Environment Cooperation Commission as authorized by Public Law 103–182, $12,561,000: *Provided*, That of the amount provided under this heading for the International Joint Commission, up to $500,000 may remain available until September 30, 2016, and $9,000 may be made available for representation expenses.

INTERNATIONAL FISHERIES COMMISSIONS

For necessary expenses for international fisheries commissions, not otherwise provided for, as authorized by law, $36,681,000: *Provided*, That the United States share of such expenses may be advanced to the respective commissions pursuant to 31 U.S.C. 3324.

RELATED AGENCY

BROADCASTING BOARD OF GOVERNORS

INTERNATIONAL BROADCASTING OPERATIONS

For necessary expenses to enable the Broadcasting Board of Governors (BBG), as authorized, to carry out international communication activities, and to make and supervise grants for radio and television broadcasting to the Middle East, $726,567,000: *Provided*, That in addition to amounts otherwise available for such purposes, up to $44,025,000 of the amount appropriated under this heading may remain available until expended for satellite transmissions and Internet freedom

programs, of which not less than $17,500,000 shall be for Internet freedom programs: *Provided further,* That of the total amount appropriated under this heading, not to exceed $35,000 may be used for representation expenses, of which $10,000 may be used for representation expenses within the United States as authorized, and not to exceed $30,000 may be used for representation expenses of Radio Free Europe/Radio Liberty: *Provided further*, That the authority provided by section 504(c) of the Foreign Relations Authorization Act, Fiscal Year 2003 (Public Law 107–228; 22 U.S.C. 6206 note) shall remain in effect through September 30, 2015: *Provided further,* That the BBG shall notify the Committees on Appropriations within 15 days of any determination by the Board that any of its broadcast entities, including its grantee organizations, provides an open platform for international terrorists or those who support international terrorism, or is in violation of the principles and standards set forth in subsections (a) and (b) of section 303 of the United States International Broadcasting Act of 1994 (22 U.S.C. 6202) or the entity's journalistic code of ethics: *Provided further*, That significant modifications to BBG broadcast hours previously justified to Congress, including changes to transmission platforms (shortwave, medium wave, satellite, Internet, and television), for all BBG language services shall be subject to the regular notification procedures of the Committees on Appropriations: *Provided further*, That in addition to funds made available under this heading, and notwithstanding any other provision of law, up to $5,000,000 in receipts from advertising and revenue from business ventures, up to $500,000 in receipts from cooperating international organizations, and up to $1,000,000 in receipts from privatization efforts of the Voice of America and the International Broadcasting Bureau, shall remain available until expended for carrying out authorized purposes.

BROADCASTING CAPITAL IMPROVEMENTS

For the purchase, rent, construction, repair, preservation, and improvement of facilities for radio, television, and digital transmission and reception; the purchase, rent, and installation of necessary equipment for radio, television, and digital transmission and reception, including to Cuba, as authorized; and physical security worldwide, in addition to amounts otherwise available for such purposes, $4,800,000, to remain available until expended, as authorized.

RELATED PROGRAMS

THE ASIA FOUNDATION

For a grant to The Asia Foundation, as authorized by The Asia Foundation Act (22 U.S.C. 4402), $17,000,000, to remain available until expended, as authorized.

UNITED STATES INSTITUTE OF PEACE

For necessary expenses of the United States Institute of Peace, as authorized by the United States Institute of Peace Act, $35,300,000, to remain available until September 30, 2016, which shall not be used for construction activities.

CENTER FOR MIDDLE EASTERN-WESTERN DIALOGUE TRUST FUND

For necessary expenses of the Center for Middle Eastern-Western Dialogue Trust Fund, as authorized by section 633 of the Departments of Commerce, Justice, and State, the Judiciary, and Related Agencies Appropriations Act, 2004 (22 U.S.C. 2078), the total amount of the interest and earnings accruing to such Fund on or before September 30, 2015, to remain available until expended.

EISENHOWER EXCHANGE FELLOWSHIP PROGRAM

For necessary expenses of Eisenhower Exchange Fellowships, Incorporated, as authorized by sections 4 and 5 of the Eisenhower Exchange Fellowship Act of 1990 (20 U.S.C. 5204–5205), all interest and earnings accruing to the Eisenhower Exchange Fellowship Program Trust Fund on or before September 30, 2015, to remain available until expended: *Provided*, That none of the funds appropriated herein shall be used to pay any salary or other compensation, or to enter into any contract providing for the payment thereof, in excess of the rate authorized by 5 U.S.C. 5376; or for purposes which are not in accordance with OMB Circulars A–110 (Uniform Administrative Requirements) and A–122 (Cost Principles for Non-profit Organizations), including the restrictions on compensation for personal services.

ISRAELI ARAB SCHOLARSHIP PROGRAM

For necessary expenses of the Israeli Arab Scholarship Program, as authorized by section 214 of the Foreign Relations Authorization Act, Fiscal Years 1992 and 1993 (22 U.S.C. 2452), all interest and earnings accruing to the Israeli Arab Scholarship Fund on or before September 30, 2015, to remain available until expended.

EAST-WEST CENTER

To enable the Secretary of State to provide for carrying out the provisions of the Center for Cultural and Technical Interchange Between East and West Act of 1960, by grant to the Center for Cultural and Technical Interchange Between East and West in the State of Hawaii, $16,700,000.

NATIONAL ENDOWMENT FOR DEMOCRACY

For grants made by the Department of State to the National Endowment for Democracy, as authorized by the National Endowment for Democracy Act, $135,000,000, to remain available until expended, of which $100,000,000 shall be allocated in the traditional and customary manner, including for the core institutes, and $35,000,000 shall be for democracy, human rights, and rule of law programs.

OTHER COMMISSIONS

COMMISSION FOR THE PRESERVATION OF AMERICA'S HERITAGE ABROAD

SALARIES AND EXPENSES

For necessary expenses for the Commission for the Preservation of America's Heritage Abroad, $644,000, as authorized by section 1303 of Public Law 99–83: *Provided*, That the Commission may procure temporary, intermittent, and other services notwithstanding paragraph (3) of section 1303(g) of Public Law 99–83 (16 U.S.C. 469j): *Provided further*, That such authority shall terminate on October 1, 2015: *Provided further*, That the Commission shall consult with the Committees on Appropriations prior to exercising such authority.

UNITED STATES COMMISSION ON INTERNATIONAL RELIGIOUS FREEDOM

SALARIES AND EXPENSES

For necessary expenses for the United States Commission on International Religious Freedom established in title II of the International Religious Freedom Act of 1998 (22 U.S.C. 6431 et seq.), $3,500,000, to remain available until September 30, 2016, including not more than $4,000 for representation expenses, subject to authorization.

COMMISSION ON SECURITY AND COOPERATION IN EUROPE

SALARIES AND EXPENSES

For necessary expenses of the Commission on Security and Cooperation in Europe, as authorized by Public Law 94–304, $2,579,000, including not more than $4,000 for representation expenses, to remain available until September 30, 2016.

CONGRESSIONAL-EXECUTIVE COMMISSION ON THE PEOPLE'S REPUBLIC OF CHINA

SALARIES AND EXPENSES

For necessary expenses of the Congressional-Executive Commission on the People's Republic of China, as authorized by title III of the U.S.-China Relations Act of 2000 (22 U.S.C. 6911–6919), $2,000,000, including not more than $3,000 for representation expenses, to remain available until September 30, 2016.

UNITED STATES-CHINA ECONOMIC AND SECURITY REVIEW COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the United States-China Economic and Security Review Commission, as authorized by section 1238 of the Floyd D. Spence National Defense Authorization Act for Fiscal Year 2001 (22 U.S.C. 7002), $3,500,000, including not more than $4,000 for representation expenses, to remain available until September 30, 2016: *Provided*, That the authorities, requirements, limitations, and conditions contained in the second through sixth provisos under this heading in division F of Public Law 111–117 shall continue in effect during fiscal year 2015 and shall apply to funds appropriated under this heading as if included in this Act.

TITLE II

UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT

FUNDS APPROPRIATED TO THE PRESIDENT

OPERATING EXPENSES

For necessary expenses to carry out the provisions of section 667 of the Foreign Assistance Act of 1961, $1,090,836,000, of which up to $163,625,000 may remain available until September 30, 2016: *Provided*, That none of the funds appropriated under this heading and under the heading ''Capital Investment Fund'' in this title may be made available to finance the construction (including architect and engineering services), purchase, or long-term lease of offices for use by the United States Agency for International Development (USAID), unless the USAID Administrator has identified such proposed use of funds in a report submitted to the Committees on Appropriations at least 15 days prior to the obligation of funds for such purposes: *Provided further*, That contracts or agreements entered into with funds appropriated under this heading may entail commitments for the expenditure of such funds through the following fiscal year: *Provided further*, That the authority of sections 610 and 109 of the Foreign Assistance Act of 1961 may be exercised by the Secretary of State to transfer funds appropriated to carry out chapter 1 of part I of such Act to ''Operating Expenses'' in accordance with the provisions of those sections: *Provided further*, That of the funds appropriated or made available under this heading, not to exceed $250,000 may be available for representation and entertainment expenses, of which not to exceed $5,000 may be available for entertainment expenses, for USAID during the current fiscal year.

CAPITAL INVESTMENT FUND

For necessary expenses for overseas construction and related costs, and for the procurement and enhancement of information technology and related capital investments, pursuant to section 667 of the Foreign Assistance Act of 1961, $130,815,000, to remain available until expended: *Provided*, That this amount is in addition to funds otherwise available for such purposes: *Provided further*, That funds appropriated under this heading shall be available for obligation only pursuant to the regular notification procedures of the Committees on Appropriations.

OFFICE OF INSPECTOR GENERAL

For necessary expenses to carry out the provisions of section 667 of the Foreign Assistance Act of 1961, $54,285,000, of which up to $8,143,000 may remain available until September 30, 2016, for the Office of Inspector General of the United States Agency for International Development.

TITLE III

BILATERAL ECONOMIC ASSISTANCE

FUNDS APPROPRIATED TO THE PRESIDENT

For necessary expenses to enable the President to carry out the provisions of the Foreign Assistance Act of 1961, and for other purposes, as follows:

GLOBAL HEALTH PROGRAMS

For necessary expenses to carry out the provisions of chapters 1 and 10 of part I of the Foreign Assistance Act of 1961, for global health activities, in addition to funds otherwise available for such purposes, $2,783,950,000, to remain available until September 30, 2016, and which shall be apportioned directly to the United States Agency for International Development (USAID): *Provided*, That this amount shall be made available for training, equipment, and technical assistance to build the capacity of public health institutions and organizations in developing countries, and for such activities as: (1) child survival and maternal health programs; (2) immunization and oral rehydration programs; (3) other health, nutrition, water and sanitation programs which directly address the needs of mothers and children, and related education programs; (4) assistance for children displaced or orphaned by causes other than AIDS; (5) programs for the prevention, treatment, control of, and research on HIV/AIDS, tuberculosis, polio, malaria, and other infectious diseases including neglected tropical diseases, and for assistance to communities severely affected by HIV/AIDS, including children infected or affected by AIDS; (6) disaster preparedness training for health crises; and (7) family planning/reproductive health: *Provided further*, That funds appropriated under this paragraph may be made available for a United States contribution to the GAVI Alliance: *Provided further*, That none of the funds made available in this Act nor any unobligated balances from prior appropriations Acts may be made available to any organization or program which, as determined by the President of the United States, supports or participates in the management of a program of coercive abortion or involuntary sterilization: *Provided further*, That any determination made under the previous proviso must be made not later than 6 months after the date of enactment of this Act, and must be accompanied by the evidence and criteria utilized to make the determination: *Provided further*, That none of the funds made available under this Act may be used to pay for the performance of abortion as a method of family planning or to motivate or coerce any person to practice abortions: *Provided further*, That nothing in this paragraph shall be construed to alter any existing statutory prohibitions against abortion under section 104 of the Foreign Assistance Act of 1961: *Provided further*, That none of the funds made available under this Act may be used to lobby for or against abortion: *Provided further*, That in order to reduce reliance on abortion in developing nations, funds shall be available only to voluntary family planning projects which offer, either directly or through referral to, or information about access to, a broad range of family planning methods and services, and that any such voluntary family planning project shall meet the following requirements: (1) service providers or referral agents in the project shall not implement or be subject to quotas, or other numerical targets, of total number of births, number of family planning acceptors, or acceptors of a particular method of family planning (this provision shall not be construed to include the use of quantitative estimates or indicators for budgeting and planning purposes); (2) the project shall not include payment of incentives, bribes, gratuities, or financial reward to: (A) an individual in exchange for becoming a family planning acceptor; or (B) program personnel for achieving a numerical target or quota of total number of births, number of family planning acceptors, or acceptors of a particular method of family planning; (3) the project shall not deny any right or benefit, including the right of access to participate in any program of general welfare or the right of access to health care, as a consequence of any individual's decision not to accept family planning services; (4) the project shall provide family planning acceptors comprehensible information on the health benefits and risks of the method chosen, including those conditions that might render the use of the method inadvisable and those adverse side effects known to be consequent to the use of the method; and (5) the project shall ensure that experimental contraceptive drugs and devices and medical procedures are provided only in the context of a scientific study in which participants are advised of potential risks and benefits; and, not less than 60 days after the date on which the USAID Administrator determines that there has been a violation of the requirements contained in paragraph (1), (2), (3), or (5) of this proviso, or a pattern or practice of violations of the requirements contained in paragraph (4) of this proviso, the Administrator shall submit to the Committees on Appropriations a report containing a description of such violation and the corrective action taken by the Agency: *Provided further*, That in awarding grants for natural family planning under section 104 of the Foreign Assistance Act of 1961 no applicant shall be discriminated against because of such applicant's religious or conscientious commitment to offer only natural family planning; and, additionally, all such applicants shall comply with the requirements of the previous proviso: *Provided further*, That for purposes of this or any other Act authorizing or appropriating funds for the Department of State, foreign operations, and related programs, the term ''motivate'', as it relates to family planning assistance, shall not be construed to prohibit the provision, consistent with local law, of information or counseling about all pregnancy options: *Provided further*, That information provided about the use of condoms as part of projects or activities that are funded from amounts appropriated by this Act shall be medically accurate and shall include the public health benefits and failure rates of such use.

In addition, for necessary expenses to carry out the provisions of the Foreign Assistance Act of 1961 for the prevention, treatment, and control of, and research on, HIV/AIDS, $5,670,000,000, to remain available until September 30, 2019, which shall be apportioned directly to the Department of State: *Provided*, That funds appropriated under this paragraph may be made available, notwithstanding any other provision of law, except for the United States Leadership Against HIV/AIDS, Tuberculosis, and Malaria Act of 2003 (Public Law 108–25), as amended, for a United States contribution to the Global Fund to Fight AIDS, Tuberculosis and Malaria (Global Fund), and shall be expended at the minimum rate necessary to make timely payment for projects and activities: *Provided further*, That the amount of such contribution should be $1,350,000,000: *Provided further*, That up to 5 percent of the aggregate amount of funds made available to the Global Fund in fiscal year 2015 may be made available to USAID for technical assistance related to the activities of the Global Fund: *Provided further*, That of the funds appropriated under this paragraph, up to $17,000,000 may be made available, in addition to amounts otherwise available for such purposes, for administrative expenses of the Office of the United States Global AIDS Coordinator.

DEVELOPMENT ASSISTANCE

For necessary expenses to carry out the provisions of sections 103, 105, 106, 214, and sections 251 through 255, and chapter 10 of part I of the Foreign Assistance Act of 1961, $2,507,001,000, to remain available until September 30, 2016: *Provided*, That of the funds appropriated under this heading, not less than $23,000,000 shall be made available for the American Schools and Hospitals Abroad program, and not less than $10,500,000 shall be made available for cooperative development programs of the United States Agency for International Development.

INTERNATIONAL DISASTER ASSISTANCE

For necessary expenses to carry out the provisions of section 491 of the Foreign Assistance Act of 1961 for international disaster relief, rehabilitation, and reconstruction assistance, $560,000,000, to remain available until expended.

TRANSITION INITIATIVES

For necessary expenses for international disaster rehabilitation and reconstruction assistance administered by the Office of Transition Initiatives, United States Agency for International Development (USAID), pursuant to section 491 of the Foreign Assistance Act of 1961, $47,000,000, to remain available until expended, to support transition to democracy and long-term development for countries in crisis: *Provided*, That such support may include assistance to develop, strengthen, or preserve democratic institutions and processes, revitalize basic infrastructure, and foster the peaceful resolution of conflict: *Provided further*, That the USAID Administrator shall submit a report to the Committees on Appropriations at least 5 days prior to beginning a new program of assistance: *Provided further*, That if the Secretary of State determines that it is important to the national interest of the United States to provide transition assistance in excess of the amount appropriated under this heading, up to $15,000,000 of the funds appropriated by this Act to carry out the provisions of part I of the Foreign Assistance Act of 1961 may be used for purposes of this heading and under the authorities applicable to funds appropriated under this heading: *Provided further*, That funds made available pursuant to the previous proviso shall be made available subject to prior consultation with the Committees on Appropriations.

COMPLEX CRISES FUND

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses to carry out the provisions of the Foreign Assistance Act of 1961 to support programs and activities to prevent or respond to emerging or unforeseen foreign challenges and complex crises overseas, $20,000,000, to remain available until expended: *Provided*, That funds appropriated under this heading may be made available on such terms and conditions as are appropriate and necessary for the purposes of preventing or responding to such challenges and crises, except that no funds shall be made available for lethal assistance or to respond to natural disasters: *Provided further*, That funds appropriated under this heading may be made available notwithstanding any other provision of law, except sections 7007, 7008, and 7018 of this Act and section 620M of the Foreign Assistance Act of 1961: *Provided further*, That funds appropriated under this heading may be used for administrative expenses, in addition to funds otherwise made available for such purposes, except that such expenses may not exceed 5

percent of the funds appropriated under this heading: *Provided further*, That funds appropriated under this heading shall be subject to the regular notification procedures of the Committees on Appropriations, except that such notifications shall be transmitted at least 5 days prior to the obligation of funds.

DEVELOPMENT CREDIT AUTHORITY

For the cost of direct loans and loan guarantees provided by the United States Agency for International Development (USAID), as authorized by sections 256 and 635 of the Foreign Assistance Act of 1961, up to $40,000,000 may be derived by transfer from funds appropriated by this Act to carry out part I of such Act: *Provided*, That funds provided under this paragraph and funds provided as a gift that are used for purposes of this paragraph pursuant to section 635(d) of the Foreign Assistance Act of 1961 shall be made available only for micro- and small enterprise programs, urban programs, and other programs which further the purposes of part I of such Act: *Provided further*, That such costs, including the cost of modifying such direct and guaranteed loans, shall be as defined in section 502 of the Congressional Budget Act of 1974, as amended: *Provided further*, That funds made available by this paragraph may be used for the cost of modifying any such guaranteed loans under this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs, and funds used for such costs shall be subject to the regular notification procedures of the Committees on Appropriations: *Provided further*, That the provisions of section 107A(d) (relating to general provisions applicable to the Development Credit Authority) of the Foreign Assistance Act of 1961, as contained in section 306 of H.R. 1486 as reported by the House Committee on International Relations on May 9, 1997, shall be applicable to direct loans and loan guarantees provided under this heading, except that the principal amount of loans made or guaranteed under this heading with respect to any single country shall not exceed $300,000,000: *Provided further*, That these funds are available to subsidize total loan principal, any portion of which is to be guaranteed, of up to $1,500,000,000.

In addition, for administrative expenses to carry out credit programs administered by USAID, $8,120,000, which may be transferred to, and merged with, funds made available under the heading ''Operating Expenses'' in title II of this Act: *Provided*, That funds made available under this heading shall remain available until September 30, 2017.

ECONOMIC SUPPORT FUND

For necessary expenses to carry out the provisions of chapter 4 of part II of the Foreign Assistance Act of 1961, $2,632,529,000, to remain available until September 30, 2016.

DEMOCRACY FUND

For necessary expenses to carry out the provisions of the Foreign Assistance Act of 1961 for the promotion of democracy globally, $130,500,000, to remain available until September 30, 2016, of which $75,500,000 shall be made available for the Human Rights and Democracy Fund of the Bureau of Democracy, Human Rights, and Labor, Department of State, and $55,000,000 shall be made available for the Bureau for Democracy, Conflict, and Humanitarian Assistance, United States Agency for International Development.

DEPARTMENT OF STATE

MIGRATION AND REFUGEE ASSISTANCE

For necessary expenses not otherwise provided for, to enable the Secretary of State to carry out the provisions of section 2(a) and (b) of the Migration and Refugee Assistance Act of 1962, and other activities to meet refugee and migration needs; salaries and expenses of personnel and dependents as authorized by the Foreign Service Act of 1980; allowances as authorized by sections 5921 through 5925 of title 5, United States Code; purchase and hire of passenger motor vehicles; and services as authorized by section 3109 of title 5, United States Code, $931,886,000, to remain available until expended, of which not less than $35,000,000 shall be made available to respond to small-scale emergency humanitarian requirements, and $10,000,000 shall be made available for refugees resettling in Israel.

UNITED STATES EMERGENCY REFUGEE AND MIGRATION ASSISTANCE FUND

For necessary expenses to carry out the provisions of section 2(c) of the Migration and Refugee Assistance Act of 1962, as amended (22 U.S.C. 2601(c)), $50,000,000, to remain available until expended.

INDEPENDENT AGENCIES

PEACE CORPS

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses to carry out the provisions of the Peace Corps Act (22 U.S.C. 2501–2523), including the purchase of not to exceed five passenger motor vehicles for administrative purposes for use outside of the United States, $379,500,000, of which $5,150,000 is for the Office of Inspector General, to remain available until September 30, 2016: *Provided*, That the Director of the Peace Corps may transfer to the Foreign Currency Fluctuations Account, as authorized by 22 U.S.C. 2515, an amount not to exceed $5,000,000: *Provided further*, That funds transferred pursuant to the previous proviso may not be derived from amounts made available for Peace Corps overseas operations: *Provided further*, That of the funds appropriated under this heading, not to exceed $104,000 may be available for representation expenses, of which not to exceed $4,000 may be made available for entertainment expenses: *Provided further*, That any decision to open, close, significantly reduce, or suspend a domestic or overseas office or country program shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations, except that prior consultation and regular notification procedures may be waived when there is a substantial security risk to volunteers or other Peace Corps personnel, pursuant to section 7015(e) of this Act: *Provided further*, That none of the funds appropriated under this heading shall be used to pay for abortions: *Provided further*, That notwithstanding the previous proviso, section 614 of division E of Public Law 113–76 shall apply to funds appropriated under this heading.

MILLENNIUM CHALLENGE CORPORATION

For necessary expenses to carry out the provisions of the Millennium Challenge Act of 2003 (MCA), $899,500,000, to remain available until expended: *Provided*, That of the funds appropriated under this heading, up to $105,000,000 may be available for administrative expenses of the Millennium Challenge Corporation (the Corporation): *Provided further*, That up to 5 percent of the funds appropriated under this heading may be made available to carry out the purposes of section 616 of the MCA for fiscal year 2015: *Provided further*, That section 605(e) of the MCA shall apply to funds appropriated under this heading: *Provided further*, That funds appropriated under this heading may be made available for a Millennium Challenge Compact entered into pursuant to section 609 of the MCA only if such Compact obligates, or contains a commitment to obligate subject to the availability of funds and the mutual agreement of the parties to the Compact to proceed, the entire amount of the United States Government funding anticipated for the duration of the Compact: *Provided further*, That the Chief Executive Officer of the Corporation shall notify the Committees on Appropriations not later than 15 days prior to commencing negotiations for any country compact or threshold country program; signing any such compact or threshold program; or terminating or suspending any such compact or threshold program: *Provided further*, That funds appropriated under this heading by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs that are available to implement section 609(g) of the MCA shall be subject to the regular notification procedures of the Committees on Appropriations: *Provided further*, That no country should be eligible for a threshold program after such country has completed a country compact: *Provided further*, That any funds that are deobligated from a Millennium Challenge Compact shall be subject to the regular notification procedures of the Committees on Appropriations prior to re-obligation: *Provided further*, That notwithstanding section 606(a)(2) of the MCA, a country shall be a candidate country for purposes of eligibility for assistance for the fiscal year if the country has a per capita income equal to or below the World Bank's lower middle income country threshold for the fiscal year and is among the 75 lowest per capita income countries as identified by the World Bank; and the country meets the requirements of section 606(a)(1)(B) of the MCA: *Provided further*, That notwithstanding section 606(b)(1) of the MCA, in addition to countries described in the preceding proviso, a country shall be a candidate country for purposes of eligibility for assistance for the fiscal year if the country has a per capita income equal to or below the World Bank's lower middle income country threshold for the fiscal year and is not among the 75 lowest per capita income countries as identified by the World Bank; and the country meets the requirements of section 606(a)(1)(B) of the MCA: *Provided further*, That any Millennium Challenge Corporation candidate country under section 606 of the MCA with a per capita income that changes in the fiscal year such that the country would be reclassified from a low income country to a lower middle income country or from a lower middle income country to a low income country shall retain its candidacy status in its former income classification for the fiscal year and the 2 subsequent fiscal years: *Provided further*, That publication in the Federal Register of a notice of availability of a copy of a Compact on the Millennium Challenge Corporation Web site shall be deemed to satisfy the requirements of section 610(b)(2) of the MCA for such Compact: *Provided further*, That none of the funds made available by this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs shall be available for a threshold program in a country that is not currently a candidate country: *Provided further*, That of the funds appropriated under this heading, not to exceed $100,000 may be available for representation and entertainment expenses, of which not to exceed $5,000 may be available for entertainment expenses.

INTER-AMERICAN FOUNDATION

For necessary expenses to carry out the functions of the Inter-American Foundation in accordance with the provisions of section 401 of the Foreign Assistance Act of 1969, $22,500,000, to remain available until September 30, 2016: *Provided*, That of the funds appropriated under this heading, not to exceed $2,000 may be available for representation expenses.

UNITED STATES AFRICAN DEVELOPMENT FOUNDATION

For necessary expenses to carry out title V of the International Security and Development Cooperation Act of 1980 (Public Law 96–533), $30,000,000, to remain available until September 30, 2016, of which not to exceed $2,000 may be available for representation expenses: *Provided*, That funds made available to grantees may be invested pending expenditure for project purposes when authorized by the Board of Directors of the United States African Development Foundation (USADF): *Provided further*, That interest earned shall be used only for the purposes for which the grant was made: *Provided further*, That notwithstanding section 505(a)(2) of the African Development Foundation Act, in exceptional circumstances the Board of Directors of the USADF may waive the $250,000 limitation contained in that section with respect to a project and a project may exceed the limitation by up to 10 percent if the increase is due solely to foreign currency fluctuation: *Provided further*, That the USADF shall submit a report to the Committees on Appropriations after each time such waiver authority is exercised: *Provided further*, That the USADF may make rent or lease payments in advance from appropriations available for such purpose for offices, buildings, grounds, and quarters in Africa as may be necessary to carry out its functions.

DEPARTMENT OF THE TREASURY

INTERNATIONAL AFFAIRS TECHNICAL ASSISTANCE

For necessary expenses to carry out the provisions of section 129 of the Foreign Assistance Act of 1961, $23,500,000, to remain available until September 30, 2017, which shall be available notwithstanding any other provision of law.

TITLE IV

INTERNATIONAL SECURITY ASSISTANCE

DEPARTMENT OF STATE

INTERNATIONAL NARCOTICS CONTROL AND LAW ENFORCEMENT

For necessary expenses to carry out section 481 of the Foreign Assistance Act of 1961, $853,055,000, to remain available until September 30, 2016: *Provided*, That the provision of assistance by any other United States Government department or agency which is comparable to assistance made available under this heading but which is provided under any other provision of law, shall be administered in accordance with the provisions of sections 481(b) and 622(c) of the Foreign Assistance Act of 1961: *Provided further*, That funds appropriated under this heading for counternarcotics programs should be used to support social, economic, and judicial reform programs that address the causes of illicit drug production, trafficking, addiction, and related violent crime and corruption: *Provided further*, That the reporting requirements contained in section 1404 of Public Law 110–252 shall apply to funds made available by this Act, including a description of modifications, if any, to the Palestinian Authority's security strategy: *Provided further*, That the Department of State may use the authority of section 608 of the Foreign Assistance Act of 1961, without regard to its restrictions, to receive excess property from an agency of the United States Government for the purpose of providing such property to a foreign country or international organization under chapter 8 of part I of that Act, subject to the regular notification procedures of the Committees on Appropriations: *Provided further*, That funds appropriated under this heading shall be made available to support training and technical assistance for foreign law enforcement, corrections, and other judicial authorities, utilizing regional partners: *Provided further*, That section 482(b) of the Foreign Assistance Act of 1961 shall not apply to funds appropriated under this heading, except that any funds made available notwithstanding such section shall be subject to the regular notification procedures of the Committees on Appropriations: *Provided further*, That not later than 90 days after enactment of this Act, the Secretary of State shall submit a report to the Committees on Appropriations on the feasibility and cost of establishing an aviation platform in Africa to conduct the activities described in House Report 113–499.

NONPROLIFERATION, ANTI-TERRORISM, DEMINING AND RELATED PROGRAMS

For necessary expenses for nonproliferation, anti-terrorism, demining and related programs and activities, $586,260,000, to remain available until September 30, 2016, to carry out the provisions of chapter 8 of part II of the Foreign Assistance Act of 1961 for anti-terrorism assistance, chapter 9 of part II of the Foreign Assistance Act of 1961, section 504 of the FREEDOM Support Act, section 23 of the Arms Export Control Act or the Foreign Assistance Act of 1961 for demining activities, the clearance of unexploded ordnance, the destruction of small arms, and related activities, notwithstanding any other provision of law, including activities implemented through nongovernmental and international organizations, and section 301 of the Foreign Assistance Act of 1961 for a voluntary contribution to the International Atomic Energy Agency (IAEA), and for a United States contribution to the Comprehensive Nuclear Test Ban Treaty Preparatory Commission: *Provided*, That for the clearance of unexploded ordnance, the Secretary of State should prioritize those areas where such ordnance was caused by the United States: *Provided further*, That funds made available under this heading for the Nonproliferation and Disarmament Fund shall be available notwithstanding any other provision of law and subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations, to promote bilateral and multilateral activities relating to nonproliferation, disarmament and weapons destruction, and shall remain available until expended: *Provided further*, That such funds may also be used for such countries other than the Independent States of the former Soviet Union and international organizations when it is in the national security interest of the United States to do so: *Provided further*, That funds appropriated under this heading may be made available for the IAEA unless the Secretary of State determines that Israel is being denied its right to participate in the activities of that Agency: *Provided further*, That funds made available for conventional weapons destruction programs, including demining and related activities, in addition to funds otherwise available for such purposes, may be used for administrative expenses related to the operation and management of such programs and activities.

PEACEKEEPING OPERATIONS

For necessary expenses to carry out the provisions of section 551 of the Foreign Assistance Act of 1961, $144,993,000: *Provided*, That funds appropriated under this heading may be used, notwithstanding section 660 of such Act, to provide assistance to enhance the capacity of foreign civilian security forces, including gendarmes, to participate in peacekeeping operations: *Provided further*, That of the funds appropriated under this heading, not less than $28,000,000 shall be made available for a United States contribution to the Multinational Force and Observers mission in the Sinai: *Provided further*, That funds appropriated under this Act should not be used to support any military training or operations that include child soldiers: *Provided further*, That none of the funds appropriated under this heading shall be obligated except as provided through the regular notification procedures of the Committees on Appropriations.

FUNDS APPROPRIATED TO THE PRESIDENT

INTERNATIONAL MILITARY EDUCATION AND TRAINING

For necessary expenses to carry out the provisions of section 541 of the Foreign Assistance Act of 1961, $106,074,000, of which up to $4,000,000 may remain available until September 30, 2016, and may only be provided through the regular notification procedures of the Committees on Appropriations: *Provided*, That the civilian personnel for whom military education and training may be provided under this heading may include civilians who are not members of a government whose participation would contribute to improved civil-military relations, civilian control of the military, or respect for human rights: *Provided further*, That of the funds appropriated under this heading, not to exceed $55,000 may be available for entertainment expenses.

FOREIGN MILITARY FINANCING PROGRAM

For necessary expenses for grants to enable the President to carry out the provisions of section 23 of the Arms Export Control Act, $5,014,109,000: *Provided*, That to expedite the provision of assistance to foreign countries and international organizations, the Secretary of State, following consultation with the Committees on Appropriations and subject to the regular notification procedures of such Committees, may use the funds appropriated under this heading to procure defense articles and services to enhance the capacity of foreign security forces: *Provided further*, That of the funds appropriated under this heading, not less than $3,100,000,000 shall be available for grants only for Israel, and funds are available for assistance for Jordan and Egypt subject to section 7041 of this Act: *Provided further*, That the funds appropriated under this heading for assistance for Israel shall be disbursed within 30 days of enactment of this Act: *Provided further*, That to the extent that the Government of Israel requests that funds be used for such purposes, grants made available for Israel under this heading shall, as agreed by the United States and Israel, be available for advanced weapons systems, of which not less than $815,300,000 shall be available for the procurement in Israel of defense articles and defense services, including research and development: *Provided further*, That none of the funds made available under this heading shall be made available to support or continue any program initially funded under the authority of section 1206 of the National Defense Authorization Act for Fiscal Year 2006 (Public Law 109–163; 119 Stat. 3456) (or any successor authority) unless the Secretary of State, in coordination with the Secretary of Defense, has justified such program to the Committees on Appropriations: *Provided further*, That funds appropriated or otherwise made available under this heading shall be nonrepayable notwithstanding any requirement in section 23 of the Arms Export Control Act: *Provided further*, That funds made available under this heading shall be obligated upon apportionment in accordance with paragraph (5)(C) of title 31, United States Code, section 1501(a).

None of the funds made available under this heading shall be available to finance the procurement of defense articles, defense services, or design and construction services

that are not sold by the United States Government under the Arms Export Control Act unless the foreign country proposing to make such procurement has first signed an agreement with the United States Government specifying the conditions under which such procurement may be financed with such funds: *Provided*, That all country and funding level increases in allocations shall be submitted through the regular notification procedures of section 7015 of this Act: *Provided further*, That funds made available under this heading may be used, notwithstanding any other provision of law, for demining, the clearance of unexploded ordnance, and related activities, and may include activities implemented through nongovernmental and international organizations: *Provided further*, That only those countries for which assistance was justified for the ''Foreign Military Sales Financing Program'' in the fiscal year 1989 congressional presentation for security assistance programs may utilize funds made available under this heading for procurement of defense articles, defense services or design and construction services that are not sold by the United States Government under the Arms Export Control Act: *Provided further*, That funds appropriated under this heading shall be expended at the minimum rate necessary to make timely payment for defense articles and services: *Provided further*, That not more than $63,945,000 of the funds appropriated under this heading may be obligated for necessary expenses, including the purchase of passenger motor vehicles for replacement only for use outside of the United States, for the general costs of administering military assistance and sales, except that this limitation may be exceeded only through the regular notification procedures of the Committees on Appropriations: *Provided further*, That of the funds made available under this heading for general costs of administering military assistance and sales, not to exceed $4,000 may be available for entertainment expenses and not to exceed $130,000 may be available for representation expenses: *Provided further*, That not more than $904,000,000 of funds realized pursuant to section 21(e)(1)(A) of the Arms Export Control Act may be obligated for expenses incurred by the Department of Defense during fiscal year 2015 pursuant to section 43(b) of the Arms Export Control Act, except that this limitation may be exceeded only through the regular notification procedures of the Committees on Appropriations.

TITLE V

MULTILATERAL ASSISTANCE

FUNDS APPROPRIATED TO THE PRESIDENT

INTERNATIONAL ORGANIZATIONS AND PROGRAMS

For necessary expenses to carry out the provisions of section 301 of the Foreign Assistance Act of 1961, and of section 2 of the United Nations Environment Program Participation Act of 1973, $344,170,000, of which up to $10,000,000 may be made available for the Intergovernmental Panel on Climate Change/United Nations Framework Convention on Climate Change: *Provided*, That section 307(a) of the Foreign Assistance Act of 1961 shall not apply to contributions to the United Nations Democracy Fund.

INTERNATIONAL FINANCIAL INSTITUTIONS

GLOBAL ENVIRONMENT FACILITY

For payment to the International Bank for Reconstruction and Development as trustee for the Global Environment Facility by the Secretary of the Treasury, $136,563,000, to remain available until expended.

CONTRIBUTION TO THE INTERNATIONAL DEVELOPMENT ASSOCIATION

For payment to the International Development Association by the Secretary of the Treasury, $1,287,800,000, to remain available until expended.

CONTRIBUTION TO THE INTERNATIONAL BANK FOR RECONSTRUCTION AND DEVELOPMENT

For payment to the International Bank for Reconstruction and Development by the Secretary of the Treasury for the United States share of the paid-in portion of the increases in capital stock, $186,957,000, to remain available until expended.

LIMITATION ON CALLABLE CAPITAL SUBSCRIPTIONS

The United States Governor of the International Bank for Reconstruction and Development may subscribe without fiscal year limitation to the callable capital portion of the United States share of increases in capital stock in an amount not to exceed $2,928,990,899.

CONTRIBUTION TO THE CLEAN TECHNOLOGY FUND

For payment to the International Bank for Reconstruction and Development as trustee for the Clean Technology Fund by the Secretary of the Treasury, $184,630,000, to remain available until expended.

CONTRIBUTION TO THE STRATEGIC CLIMATE FUND

For payment to the International Bank for Reconstruction and Development as trustee for the Strategic Climate Fund by the Secretary of the Treasury, $49,900,000, to remain available until expended.

CONTRIBUTION TO THE INTER-AMERICAN DEVELOPMENT BANK

For payment to the Inter-American Development Bank by the Secretary of the Treasury for the United States share of the paid-in portion of the increase in capital stock, $102,020,448, to remain available until expended.

LIMITATION ON CALLABLE CAPITAL SUBSCRIPTIONS

The United States Governor of the Inter-American Development Bank may subscribe without fiscal year limitation to the callable capital portion of the United States share of such capital stock in an amount not to exceed $4,098,794,833.

CONTRIBUTION TO THE ENTERPRISE FOR THE AMERICAS MULTILATERAL INVESTMENT FUND

For payment to the Enterprise for the Americas Multilateral Investment Fund by the Secretary of the Treasury, $3,378,000, to remain available until expended: *Provided*, That such payment shall be subject to prior consultation with the Committees on Appropriations.

CONTRIBUTION TO THE ASIAN DEVELOPMENT BANK

For payment to the Asian Development Bank by the Secretary of the Treasury for the United States share of the paid-in portion of increase in capital stock, $106,586,000, to remain available until expended.

LIMITATION ON CALLABLE CAPITAL SUBSCRIPTIONS

The United States Governor of the Asian Development Bank may subscribe without fiscal year limitation to the callable capital portion of the United States share of such capital stock in an amount not to exceed $2,558,048,769.

CONTRIBUTION TO THE ASIAN DEVELOPMENT FUND

For payment to the Asian Development Bank's Asian Development Fund by the Secretary of the Treasury, $104,977,000, to remain available until expended.

CONTRIBUTION TO THE AFRICAN DEVELOPMENT BANK

For payment to the African Development Bank by the Secretary of the Treasury for the United States share of the paid-in portion of the increase in capital stock, $32,418,000, to remain available until expended.

LIMITATION ON CALLABLE CAPITAL SUBSCRIPTIONS

The United States Governor of the African Development Bank may subscribe without fiscal year limitation to the callable capital portion of the United States share of such capital stock in an amount not to exceed $507,860,808.

CONTRIBUTION TO THE AFRICAN DEVELOPMENT FUND

For payment to the African Development Fund by the Secretary of the Treasury, $175,668,000, to remain available until expended.

CONTRIBUTION TO THE INTERNATIONAL FUND FOR AGRICULTURAL DEVELOPMENT

For payment to the International Fund for Agricultural Development by the Secretary of the Treasury, $30,000,000, to remain available until expended.

TITLE VI

EXPORT AND INVESTMENT ASSISTANCE

EXPORT-IMPORT BANK OF THE UNITED STATES

INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, as amended, $5,750,000, to remain available until September 30, 2016.

PROGRAM ACCOUNT

The Export-Import Bank (the Bank) of the United States is authorized to make such expenditures within the limits of funds and borrowing authority available to such corporation, and in accordance with law, and to make such contracts and commitments without regard to fiscal year limitations, as provided by section 104 of the Government Corporation Control Act, as may be necessary in carrying out the program for the current fiscal year for such corporation: *Provided*, That none of the funds available during the current fiscal year may be used to make expenditures, contracts, or commitments for the export of nuclear equipment, fuel, or technology to any country, other than a nuclear-weapon state as defined in Article IX of the Treaty on the Non-Proliferation of Nuclear Weapons eligible to receive economic or military assistance under this Act, that has detonated a nuclear explosive after the date of the enactment of this Act: *Provided further*, That not less than 20 percent of the aggregate loan, guarantee, and insurance authority available to the Bank under this Act should be used to finance exports directly by small business concerns (as defined under section 3 of the Small Business Act): *Provided further*, That not less than 10 percent of the aggregate loan, guarantee, and insurance authority available to the Bank under this Act should be used for renewable energy technologies or energy efficiency technologies: *Provided further*, That notwithstanding section 1(c) of Public Law 103–428, as amended, sections 1(a) and (b) of Public Law 103–428 shall remain in effect through October 1, 2015.

ADMINISTRATIVE EXPENSES

For administrative expenses to carry out the direct and guaranteed loan and insurance programs, including hire of passenger motor vehicles and services as authorized by 5 U.S.C. 3109, and not to exceed $30,000 for official reception and representation expenses for members of the Board of Directors, not to exceed $106,250,000: *Provided*, That the Export-Import Bank (the Bank) may accept, and use, payment or services provided by transaction participants for legal, financial,

or technical services in connection with any transaction for which an application for a loan, guarantee or insurance commitment has been made: *Provided further*, That notwithstanding subsection (b) of section 117 of the Export Enhancement Act of 1992, subsection (a) thereof shall remain in effect until September 30, 2015: *Provided further*, That the Bank shall charge fees for necessary expenses (including special services performed on a contract or fee basis, but not including other personal services) in connection with the collection of moneys owed the Bank, repossession or sale of pledged collateral or other assets acquired by the Bank in satisfaction of moneys owed the Bank, or the investigation or appraisal of any property, or the evaluation of the legal, financial, or technical aspects of any transaction for which an application for a loan, guarantee or insurance commitment has been made, or systems infrastructure directly supporting transactions: *Provided further*, That in addition to other funds appropriated for administrative expenses, such fees shall be credited to this account for such purposes, to remain available until expended.

RECEIPTS COLLECTED

Receipts collected pursuant to the Export-Import Bank Act of 1945, as amended, and the Federal Credit Reform Act of 1990, as amended, in an amount not to exceed the amount appropriated herein, shall be credited as offsetting collections to this account: *Provided*, That the sums herein appropriated from the General Fund shall be reduced on a dollar-for-dollar basis by such offsetting collections so as to result in a final fiscal year appropriation from the General Fund estimated at $0: *Provided further*, That amounts collected in fiscal year 2015 in excess of obligations, up to $10,000,000, shall become available on September 1, 2015, and shall remain available until September 30, 2018.

OVERSEAS PRIVATE INVESTMENT CORPORATION

NONCREDIT ACCOUNT

The Overseas Private Investment Corporation is authorized to make, without regard to fiscal year limitations, as provided by 31 U.S.C. 9104, such expenditures and commitments within the limits of funds available to it and in accordance with law as may be necessary: *Provided,* That the amount available for administrative expenses to carry out the credit and insurance programs (including an amount for official reception and representation expenses which shall not exceed $35,000) shall not exceed $62,787,000: *Provided further,* That project-specific transaction costs, including direct and indirect costs incurred in claims settlements, and other direct costs associated with services provided to specific investors or potential investors pursuant to section 234 of the Foreign Assistance Act of 1961, shall not be considered administrative expenses for the purposes of this heading.

PROGRAM ACCOUNT

For the cost of direct and guaranteed loans, $25,000,000, as authorized by section 234 of the Foreign Assistance Act of 1961, to be derived by transfer from the Overseas Private Investment Corporation Noncredit Account: *Provided,* That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further,* That such sums shall be available for direct loan obligations and loan guaranty commitments incurred or made during fiscal years 2015, 2016, and 2017: *Provided further,* That funds so obligated in fiscal year 2015 remain available for disbursement through 2023; funds obligated in fiscal year 2016 remain available for disbursement through 2024; and funds obligated in fiscal year 2017 remain available for disbursement through 2025: *Provided further,* That notwithstanding any other provision of law, the Overseas Private Investment Corporation is authorized to undertake any program authorized by title IV of chapter 2 of part I of the Foreign Assistance Act of 1961 in Iraq: *Provided further,* That funds made available pursuant to the authority of the previous proviso shall be subject to the regular notification procedures of the Committees on Appropriations.

In addition, such sums as may be necessary for administrative expenses to carry out the credit program may be derived from amounts available for administrative expenses to carry out the credit and insurance programs in the Overseas Private Investment Corporation Noncredit Account and merged with said account.

TRADE AND DEVELOPMENT AGENCY

For necessary expenses to carry out the provisions of section 661 of the Foreign Assistance Act of 1961, $60,000,000, to remain available until September 30, 2016: *Provided*, That of the amounts made available under this heading, up to $2,500,000 may be made available to provide comprehensive procurement advice to foreign governments to support local procurements funded by the United States Agency for International Development, the Millennium Challenge Corporation, and the Department of State: *Provided further*, That of the funds appropriated under this heading, not more than $4,000 may be available for representation and entertainment expenses.

TITLE VII

GENERAL PROVISIONS

ALLOWANCES AND DIFFERENTIALS

SEC. 7001. Funds appropriated under title I of this Act shall be available, except as otherwise provided, for allowances and differentials as authorized by subchapter 59 of title 5, United States Code; for services as authorized by 5 U.S.C. 3109; and for hire of passenger transportation pursuant to 31 U.S.C. 1343(b).

UNOBLIGATED BALANCES REPORT

SEC. 7002. Any department or agency of the United States Government to which funds are appropriated or otherwise made available by this Act shall provide to the Committees on Appropriations a quarterly accounting of cumulative unobligated balances and obligated, but unexpended, balances by program, project, and activity, and Treasury Account Fund Symbol of all funds received by such department or agency in fiscal year 2015 or any previous fiscal year, disaggregated by fiscal year: *Provided*, That the report required by this section should specify by account the amount of funds obligated pursuant to bilateral agreements which have not been further sub-obligated.

CONSULTING SERVICES

SEC. 7003. The expenditure of any appropriation under title I of this Act for any consulting service through procurement contract, pursuant to 5 U.S.C. 3109, shall be limited to those contracts where such expenditures are a matter of public record and available for public inspection, except where otherwise provided under existing law, or under existing Executive Order issued pursuant to existing law.

DIPLOMATIC FACILITIES

SEC. 7004. (a) Of funds provided under title I of this Act, except as provided in subsection (b), a project to construct a diplomatic facility of the United States may not include office space or other accommodations for an employee of a Federal agency or department if the Secretary of State determines that such department or agency has not provided to the Department of State the full amount of funding required by subsection (e) of section 604 of the Secure Embassy Construction and Counterterrorism Act of 1999 (as enacted into law by section 1000(a)(7) of Public Law 106–113 and contained in appendix G of that Act; 113 Stat. 1501A–453), as amended by section 629 of the Departments of Commerce, Justice, and State, the Judiciary, and Related Agencies Appropriations Act, 2005.

(b) Notwithstanding the prohibition in subsection (a), a project to construct a diplomatic facility of the United States may include office space or other accommodations for members of the United States Marine Corps.

(c) For the purposes of calculating the fiscal year 2015 costs of providing new United States diplomatic facilities in accordance with section 604(e) of the Secure Embassy Construction and Counterterrorism Act of 1999 (22 U.S.C. 4865 note), the Secretary of State, in consultation with the Director of the Office of Management and Budget, shall determine the annual program level and agency shares in a manner that is proportional to the Department of State's contribution for this purpose.

(d) Funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs, which may be made available for the acquisition of property or award of construction contracts for overseas diplomatic facilities during fiscal year 2015, shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations: *Provided*, That notifications pursuant to this subsection shall include the information enumerated under the heading ''Embassy Security, Construction, and Maintenance'' in House Report 113–499.

(e)(1) None of the funds appropriated under the heading ''Embassy Security, Construction, and Maintenance'' in this Act and in prior Acts making appropriations for the Department of State, foreign operations, and related programs, made available through Federal agency Capital Security Cost Sharing contributions and reimbursements, or generated from the proceeds of real property sales, other than from real property sales located in London, United Kingdom, may be made available for site acquisition and mitigation, planning, design, or construction of the New London Embassy: *Provided*, That the reporting requirement contained in section 7004(f)(2) of division I of Public Law 112–74 shall remain in effect during fiscal year 2015.

(2) Funds appropriated or otherwise made available by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs under the heading ''Embassy Security, Construction, and Maintenance'' may be obligated for the relocation of the United States Embassy to the Holy See only if the Secretary of State reports in writing to the Committees on Appropriations that such relocation continues to be consistent with the conditions of section 7004(e)(2) of division K of Public Law 113–76.

(f)(1) Funds appropriated by this Act under the heading ''Embassy Security, Construction, and Maintenance'' may be made available to address security vulnerabilities at expeditionary, interim, and temporary facilities abroad, including physical security upgrades and local guard staffing, except that the amount of funds made available for such purposes from this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs shall be a minimum of $25,000,000: *Provided*, That the uses of such funds should be the responsibility of the Assistant Secretary of State for the Bureau of Diplomatic Security and Foreign Missions, in consultation

with the Director of the Bureau of Overseas Buildings Operations: *Provided further*, That such funds shall be subject to prior consultation with the Committees on Appropriations.

(2) Not later than 90 days after enactment of this Act, the Secretary of State shall submit to the appropriate congressional committees a list of all expeditionary, interim, and temporary diplomatic facilities and the number of personnel and security costs for each such facility: *Provided*, That the report required by this paragraph may be submitted in classified form if necessary.

(3) Notwithstanding any other provision of law, the opening, closure, or any significant modification to an expeditionary, interim, or temporary diplomatic facility shall be subject to prior consultation with the appropriate congressional committees and the regular notification procedures of the Committees on Appropriations, except that such consultation and notification may be waived if there is a security risk to personnel.

(g) Funds appropriated under the heading ''Diplomatic and Consular Programs'', including for Worldwide Security Protection, and under the heading ''Embassy Security, Construction, and Maintenance'' in titles I and VIII of this Act may be transferred to, and merged with, funds appropriated by such titles under such headings if the Secretary of State determines and reports to the Committees on Appropriations that to do so is necessary to implement the recommendations of the Benghazi Accountability Review Board, or to prevent or respond to security situations and requirements, following consultation with, and subject to the regular notification procedures of, such Committees: *Provided*, That such transfer authority is in addition to any transfer authority otherwise available under any other provision of law.

PERSONNEL ACTIONS

SEC. 7005. Any costs incurred by a department or agency funded under title I of this Act resulting from personnel actions taken in response to funding reductions included in this Act shall be absorbed within the total budgetary resources available under title I to such department or agency: *Provided*, That the authority to transfer funds between appropriations accounts as may be necessary to carry out this section is provided in addition to authorities included elsewhere in this Act: *Provided further*, That use of funds to carry out this section shall be treated as a reprogramming of funds under section 7015 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section.

LOCAL GUARD CONTRACTS

SEC. 7006. In evaluating proposals for local guard contracts, the Secretary of State shall award contracts in accordance with section 136 of the Foreign Relations Authorization Act, Fiscal Years 1990 and 1991 (22 U.S.C. 4864), except that the Secretary may grant authorization to award such contracts on the basis of best value as determined by a cost-technical tradeoff analysis (as described in Federal Acquisition Regulation part 15.101), notwithstanding subsection (c)(3) of such section, for high risk, high threat posts: *Provided*, That the authority in this section shall apply to any options for renewal that may be exercised under such contracts that are awarded during the current fiscal year.

PROHIBITION AGAINST DIRECT FUNDING FOR CERTAIN COUNTRIES

SEC. 7007. None of the funds appropriated or otherwise made available pursuant to titles III through VI of this Act shall be obligated or expended to finance directly any assistance or reparations for the governments of Cuba, North Korea, Iran, or Syria: *Provided*, That for purposes of this section, the prohibition on obligations or expenditures shall include direct loans, credits, insurance and guarantees of the Export-Import Bank or its agents.

COUPS D'ÉTAT

SEC. 7008. None of the funds appropriated or otherwise made available pursuant to titles III through VI of this Act shall be obligated or expended to finance directly any assistance to the government of any country whose duly elected head of government is deposed by military coup d'état or decree or, after the date of enactment of this Act, a coup d'état or decree in which the military plays a decisive role: *Provided*, That assistance may be resumed to such government if the Secretary of State certifies and reports to the appropriate congressional committees that subsequent to the termination of assistance a democratically elected government has taken office: *Provided further*, That the provisions of this section shall not apply to assistance to promote democratic elections or public participation in democratic processes: *Provided further*, That funds made available pursuant to the previous provisos shall be subject to the regular notification procedures of the Committees on Appropriations.

TRANSFER AUTHORITY

SEC. 7009. (a) DEPARTMENT OF STATE AND BROADCASTING BOARD OF GOVERNORS.—

(1) Not to exceed 5 percent of any appropriation made available for the current fiscal year for the Department of State under title I of this Act may be transferred between, and merged with, such appropriations, but no such appropriation, except as otherwise specifically provided, shall be increased by more than 10 percent by any such transfers, and no such transfer may be made to increase the appropriation under the heading ''Representation Expenses''.

(2) Not to exceed 5 percent of any appropriation made available for the current fiscal year for the Broadcasting Board of Governors under title I of this Act may be transferred between, and merged with, such appropriations, but no such appropriation, except as otherwise specifically provided, shall be increased by more than 10 percent by any such transfers.

(3) Any transfer pursuant to this section shall be treated as a reprogramming of funds under section 7015(a) and (b) of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section.

(b) EXPORT FINANCING TRANSFER AUTHORITIES.—Not to exceed 5 percent of any appropriation other than for administrative expenses made available for fiscal year 2015, for programs under title VI of this Act may be transferred between such appropriations for use for any of the purposes, programs, and activities for which the funds in such receiving account may be used, but no such appropriation, except as otherwise specifically provided, shall be increased by more than 25 percent by any such transfer: *Provided*, That the exercise of such authority shall be subject to the regular notification procedures of the Committees on Appropriations.

(c) LIMITATION ON TRANSFERS BETWEEN AGENCIES.—

(1) None of the funds made available under titles II through V of this Act may be transferred to any department, agency, or instrumentality of the United States Government, except pursuant to a transfer made by, or transfer authority provided in, this Act or any other appropriations Act.

(2) Notwithstanding paragraph (1), in addition to transfers made by, or authorized elsewhere in, this Act, funds appropriated by this Act to carry out the purposes of the Foreign Assistance Act of 1961 may be allocated or transferred to agencies of the United States Government pursuant to the provisions of sections 109, 610, and 632 of the Foreign Assistance Act of 1961.

(3) Any agreement entered into by the United States Agency for International Development (USAID) or the Department of State with any department, agency, or instrumentality of the United States Government pursuant to section 632(b) of the Foreign Assistance Act of 1961 valued in excess of $1,000,000 and any agreement made pursuant to section 632(a) of such Act, with funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs under the headings ''Global Health Programs'', ''Development Assistance'', and ''Economic Support Fund'' shall be subject to the regular notification procedures of the Committees on Appropriations: *Provided*, That the requirement in the previous sentence shall not apply to agreements entered into between USAID and the Department of State.

(d) TRANSFERS BETWEEN ACCOUNTS.—None of the funds made available under titles II through V of this Act may be obligated under an appropriation account to which such funds were not appropriated, except for transfers specifically provided for in this Act, unless the President, not less than 5 days prior to the exercise of any authority contained in the Foreign Assistance Act of 1961 to transfer funds, consults with and provides a written policy justification to the Committees on Appropriations.

(e) AUDIT OF INTER-AGENCY TRANSFERS.—Any agreement for the transfer or allocation of funds appropriated by this Act, or prior Acts, entered into between the Department of State or USAID and another agency of the United States Government under the authority of section 632(a) of the Foreign Assistance Act of 1961 or any comparable provision of law, shall expressly provide that the Inspector General (IG) for the agency receiving the transfer or allocation of such funds, or other entity with audit responsibility if the receiving agency does not have an IG, shall perform periodic program and financial audits of the use of such funds: *Provided*, That such audits shall be transmitted to the Committees on Appropriations: *Provided further*, That funds transferred under such authority may be made available for the cost of such audits.

SECURITY ASSISTANCE REPORT

SEC. 7010. Not later than 120 days after enactment of this Act, the Secretary of State shall submit to the Committees on Appropriations a report on funds obligated and expended during fiscal year 2014 under the headings ''International Military Education and Training'', ''Peacekeeping Operations'', and ''Foreign Military Financing Program''.

AVAILABILITY OF FUNDS

SEC. 7011. No part of any appropriation contained in this Act shall remain available for obligation after the expiration of the current fiscal year unless expressly so provided in this Act: *Provided*, That funds appropriated for the purposes of chapters 1 and 8 of part I, section 661, chapters 4, 5, 6, 8, and 9 of part II of the Foreign Assistance Act of 1961, section 23 of the Arms Export Control Act, and funds provided under the heading ''Development Credit Authority'' shall remain available for an additional 4 years from the date on which the availability of such funds would otherwise have expired, if such funds are initially obligated before the expiration of their respective periods of availability contained in this Act: *Provided further*, That notwithstanding any other provision of this Act, any funds made available for the purposes of chapter 1 of part I and

chapter 4 of part II of the Foreign Assistance Act of 1961 which are allocated or obligated for cash disbursements in order to address balance of payments or economic policy reform objectives, shall remain available for an additional 4 years from the date on which the availability of such funds would otherwise have expired, if such funds are initially allocated or obligated before the expiration of their respective periods of availability contained in this Act: *Provided further*, That the Secretary of State shall provide a report to the Committees on Appropriations at the beginning of each fiscal year, detailing by account and source year, the use of this authority during the previous fiscal year.

LIMITATION ON ASSISTANCE TO COUNTRIES IN DEFAULT

SEC. 7012. No part of any appropriation provided under titles III through VI in this Act shall be used to furnish assistance to the government of any country which is in default during a period in excess of 1 calendar year in payment to the United States of principal or interest on any loan made to the government of such country by the United States pursuant to a program for which funds are appropriated under this Act unless the President determines, following consultations with the Committees on Appropriations, that assistance for such country is in the national interest of the United States.

PROHIBITION ON TAXATION OF UNITED STATES ASSISTANCE

SEC. 7013. (a) PROHIBITION ON TAXATION.—None of the funds appropriated under titles III through VI of this Act may be made available to provide assistance for a foreign country under a new bilateral agreement governing the terms and conditions under which such assistance is to be provided unless such agreement includes a provision stating that assistance provided by the United States shall be exempt from taxation, or reimbursed, by the foreign government, and the Secretary of State shall expeditiously seek to negotiate amendments to existing bilateral agreements, as necessary, to conform with this requirement.

(b) REIMBURSEMENT OF FOREIGN TAXES.—An amount equivalent to 200 percent of the total taxes assessed during fiscal year 2015 on funds appropriated by this Act by a foreign government or entity against United States assistance programs for which funds are appropriated by this Act, either directly or through grantees, contractors, and subcontractors shall be withheld from obligation from funds appropriated for assistance for fiscal year 2016 and allocated for the central government of such country and for the West Bank and Gaza program to the extent that the Secretary of State certifies and reports in writing to the Committees on Appropriations, not later than September 30, 2016, that such taxes have not been reimbursed to the Government of the United States.

(c) DE MINIMIS EXCEPTION.—Foreign taxes of a de minimis nature shall not be subject to the provisions of subsection (b).

(d) REPROGRAMMING OF FUNDS.—Funds withheld from obligation for each country or entity pursuant to subsection (b) shall be reprogrammed for assistance for countries which do not assess taxes on United States assistance or which have an effective arrangement that is providing substantial reimbursement of such taxes, and that can reasonably accommodate such assistance in a programmatically responsible manner.

(e) DETERMINATIONS.—

(1) The provisions of this section shall not apply to any country or entity the Secretary of State reports to the Committees on Appropriations—

(A) does not assess taxes on United States assistance or which has an effective arrangement that is providing substantial reimbursement of such taxes; or

(B) the foreign policy interests of the United States outweigh the purpose of this section to ensure that United States assistance is not subject to taxation.

(2) The Secretary of State shall consult with the Committees on Appropriations at least 15 days prior to exercising the authority of this subsection with regard to any country or entity.

(f) IMPLEMENTATION.—The Secretary of State shall issue rules, regulations, or policy guidance, as appropriate, to implement the prohibition against the taxation of assistance contained in this section.

(g) DEFINITIONS.—As used in this section—

(1) the term ''bilateral agreement'' refers to a framework bilateral agreement between the Government of the United States and the government of the country receiving assistance that describes the privileges and immunities applicable to United States foreign assistance for such country generally, or an individual agreement between the Government of the United States and such government that describes, among other things, the treatment for tax purposes that will be accorded the United States assistance provided under that agreement;

(2) the term ''taxes and taxation'' shall include value added taxes and customs duties but shall not include individual income taxes assessed to local staff.

(h) REPORT.—The Secretary of State, in consultation with the heads of other relevant departments or agencies, shall submit a report to the Committees on Appropriations, not later than 90 days after the enactment of this Act, detailing steps taken by such departments or agencies to comply with the requirements of this section.

RESERVATIONS OF FUNDS

SEC. 7014. (a) Funds appropriated under titles III through VI of this Act which are specifically designated may be reprogrammed for other programs within the same account notwithstanding the designation if compliance with the designation is made impossible by operation of any provision of this or any other Act: *Provided*, That any such reprogramming shall be subject to the regular notification procedures of the Committees on Appropriations: *Provided further*, That assistance that is reprogrammed pursuant to this subsection shall be made available under the same terms and conditions as originally provided.

(b) In addition to the authority contained in subsection (a), the original period of availability of funds appropriated by this Act and administered by the Department of State or the United States Agency for International Development (USAID) that are specifically designated for particular programs or activities by this or any other Act may be extended for an additional fiscal year if the Secretary of State or the USAID Administrator, as appropriate, determines and reports promptly to the Committees on Appropriations that the termination of assistance to a country or a significant change in circumstances makes it unlikely that such designated funds can be obligated during the original period of availability: *Provided*, That such designated funds that continue to be available for an additional fiscal year shall be obligated only for the purpose of such designation.

(c) Ceilings and specifically designated funding levels contained in this Act shall not be applicable to funds or authorities appropriated or otherwise made available by any subsequent Act unless such Act specifically so directs: *Provided*, That specifically designated funding levels or minimum funding requirements contained in any other Act shall not be applicable to funds appropriated by this Act.

NOTIFICATION REQUIREMENTS

SEC. 7015. (a) None of the funds made available in titles I and II of this Act, or in prior appropriations Acts to the agencies and departments funded by this Act that remain available for obligation or expenditure in fiscal year 2015, or provided from any accounts in the Treasury of the United States derived by the collection of fees or of currency reflows or other offsetting collections, or made available by transfer, to the agencies and departments funded by this Act, shall be available for obligation or expenditure through a reprogramming of funds that—

(1) creates new programs;

(2) eliminates a program, project, or activity;

(3) increases funds or personnel by any means for any project or activity for which funds have been denied or restricted;

(4) relocates an office or employees;

(5) closes or opens a mission or post;

(6) creates, closes, reorganizes, or renames bureaus, centers, or offices;

(7) reorganizes programs or activities; or

(8) contracts out or privatizes any functions or activities presently performed by Federal employees;

unless the Committees on Appropriations are notified 15 days in advance of such reprogramming of funds: *Provided*, That unless previously justified to the Committees on Appropriations, the requirements of this subsection shall apply to all obligations of funds appropriated under titles I and II of this Act for paragraphs (1), (2), (5), and (6) of this subsection.

(b) None of the funds provided under titles I and II of this Act, or provided under previous appropriations Acts to the agency or department funded under titles I and II of this Act that remain available for obligation or expenditure in fiscal year 2015, or provided from any accounts in the Treasury of the United States derived by the collection of fees available to the agency or department funded under title I of this Act, shall be available for obligation or expenditure for activities, programs, or projects through a reprogramming of funds in excess of $1,000,000 or 10 percent, whichever is less, that—

(1) augments existing programs, projects, or activities;

(2) reduces by 10 percent funding for any existing program, project, or activity, or numbers of personnel by 10 percent as approved by Congress; or

(3) results from any general savings, including savings from a reduction in personnel, which would result in a change in existing programs, activities, or projects as approved by Congress; unless the Committees on Appropriations are notified 15 days in advance of such reprogramming of funds.

(c) None of the funds made available by this Act under the headings ''Global Health Programs'', ''Development Assistance'', ''International Organizations and Programs'', ''Trade and Development Agency'', ''International Narcotics Control and Law Enforcement'', ''Economic Support Fund'', ''Democracy Fund'', ''Peacekeeping Operations'', ''Nonproliferation, Anti-terrorism, Demining and Related Programs'', ''Millennium Challenge Corporation'', ''Foreign Military Financing Program'', ''International Military Education and Training'', ''Conflict Stabilization Operations'', and ''Peace Corps'', shall be available for obligation for activities, programs, projects, type of materiel assistance, countries, or other operations not justified or in excess of the amount justified to the Committees on Appropriations for obligation under any of

these specific headings unless the Committees on Appropriations are notified 15 days in advance: *Provided*, That the President shall not enter into any commitment of funds appropriated for the purposes of section 23 of the Arms Export Control Act for the provision of major defense equipment, other than conventional ammunition, or other major defense items defined to be aircraft, ships, missiles, or combat vehicles, not previously justified to Congress or 20 percent in excess of the quantities justified to Congress unless the Committees on Appropriations are notified 15 days in advance of such commitment: *Provided further*, That requirements of this subsection or any similar provision of this or any other Act shall not apply to any reprogramming for an activity, program, or project for which funds are appropriated under titles III through VI of this Act of less than 10 percent of the amount previously justified to the Congress for obligation for such activity, program, or project for the current fiscal year: *Provided further*, That any notification submitted pursuant to subsection (f) of this section shall include information (if known on the date of transmittal of such notification) on the use of notwithstanding authority: *Provided further*, That if subsequent to the notification of assistance it becomes necessary to rely on notwithstanding authority, the Committees on Appropriations should be informed at the earliest opportunity and to the extent practicable.

(d) Notwithstanding any other provision of law, with the exception of funds transferred to, and merged with, funds appropriated under title I of this Act, funds transferred by the Department of Defense to the Department of State and the United States Agency for International Development for assistance for foreign countries and international organizations, and funds made available for programs authorized by section 1206 of the National Defense Authorization Act for Fiscal Year 2006 (Public Law 109–163) (or any successor authority), shall be subject to the regular notification procedures of the Committees on Appropriations.

(e) The requirements of this section or any similar provision of this Act or any other Act, including any prior Act requiring notification in accordance with the regular notification procedures of the Committees on Appropriations, may be waived if failure to do so would pose a substantial risk to human health or welfare: *Provided*, That in case of any such waiver, notification to the Committees on Appropriations shall be provided as early as practicable, but in no event later than 3 days after taking the action to which such notification requirement was applicable, in the context of the circumstances necessitating such waiver: *Provided further*, That any notification provided pursuant to such a waiver shall contain an explanation of the emergency circumstances.

(f) None of the funds appropriated under titles III through VI of this Act shall be obligated or expended for assistance for Afghanistan, Bahrain, Bolivia, Burma, Cambodia, Cuba, Ecuador, Egypt, Ethiopia, Guatemala, Haiti, Honduras, Iran, Iraq, Lebanon, Libya, Pakistan, the Russian Federation, Serbia, Somalia, South Sudan, Sri Lanka, Sudan, Syria, Uzbekistan, Venezuela, Yemen, and Zimbabwe except as provided through the regular notification procedures of the Committees on Appropriations.

NOTIFICATION ON EXCESS DEFENSE EQUIPMENT

SEC. 7016. Prior to providing excess Department of Defense articles in accordance with section 516(a) of the Foreign Assistance Act of 1961, the Department of Defense shall notify the Committees on Appropriations to the same extent and under the same conditions as other committees pursuant to subsection (f) of that section: *Provided*, That before issuing a letter of offer to sell excess defense articles under the Arms Export Control Act, the Department of Defense shall notify the Committees on Appropriations in accordance with the regular notification procedures of such Committees if such defense articles are significant military equipment (as defined in section 47(9) of the Arms Export Control Act) or are valued (in terms of original acquisition cost) at $7,000,000 or more, or if notification is required elsewhere in this Act for the use of appropriated funds for specific countries that would receive such excess defense articles: *Provided further*, That such Committees shall also be informed of the original acquisition cost of such defense articles.

LIMITATION ON AVAILABILITY OF FUNDS FOR INTERNATIONAL ORGANIZATIONS AND PROGRAMS

SEC. 7017. Subject to the regular notification procedures of the Committees on Appropriations, funds appropriated under titles I and III through V of this Act, which are returned or not made available for organizations and programs because of the implementation of section 307(a) of the Foreign Assistance Act of 1961 or section 7048(a) of this Act, shall remain available for obligation until September 30, 2017: *Provided*, That the requirement to withhold funds for programs in Burma under section 307(a) of the Foreign Assistance Act of 1961 shall not apply to funds appropriated by this Act.

PROHIBITION ON FUNDING FOR ABORTIONS AND INVOLUNTARY STERILIZATION

SEC. 7018. None of the funds made available to carry out part I of the Foreign Assistance Act of 1961, as amended, may be used to pay for the performance of abortions as a method of family planning or to motivate or coerce any person to practice abortions. None of the funds made available to carry out part I of the Foreign Assistance Act of 1961, as amended, may be used to pay for the performance of involuntary sterilization as a method of family planning or to coerce or provide any financial incentive to any person to undergo sterilizations. None of the funds made available to carry out part I of the Foreign Assistance Act of 1961, as amended, may be used to pay for any biomedical research which relates in whole or in part, to methods of, or the performance of, abortions or involuntary sterilization as a means of family planning. None of the funds made available to carry out part I of the Foreign Assistance Act of 1961, as amended, may be obligated or expended for any country or organization if the President certifies that the use of these funds by any such country or organization would violate any of the above provisions related to abortions and involuntary sterilizations.

ALLOCATIONS

SEC. 7019. (a) Funds provided by this Act shall be made available for programs and countries in the amounts specifically designated in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(b) For the purposes of implementing this section and only with respect to the amounts for programs and countries specifically designated in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act), the Secretary of State, the Administrator of the United States Agency for International Development, and the Broadcasting Board of Governors, as appropriate, may propose deviations to the amounts referenced in subsection (a), subject to the regular notification procedures of the Committees on Appropriations.

REPRESENTATION AND ENTERTAINMENT EXPENSES

SEC. 7020. (a) Each Federal department, agency, or entity funded in titles I or II of this Act, and the Department of the Treasury and independent agencies funded in titles III or VI of this Act, shall take steps to ensure that domestic and overseas representation and entertainment expenses further official agency business and United States foreign policy interests and are—

(1) primarily for fostering relations outside of the Executive Branch;

(2) principally for meals and events of a protocol nature;

(3) not for employee-only events; and

(4) do not include activities that are substantially of a recreational character.

(b) None of the funds appropriated or otherwise made available by this Act under the headings ''International Military Education and Training'' or ''Foreign Military Financing Program'' for Informational Program activities or under the headings ''Global Health Programs'', ''Development Assistance'', and ''Economic Support Fund'' may be obligated or expended to pay for—

(1) alcoholic beverages; or

(2) entertainment expenses for activities that are substantially of a recreational character, including but not limited to entrance fees at sporting events, theatrical and musical productions, and amusement parks.

PROHIBITION ON ASSISTANCE TO GOVERNMENTS SUPPORTING INTERNATIONAL TERRORISM

SEC. 7021. (a) LETHAL MILITARY EQUIPMENT EXPORTS.—

(1) None of the funds appropriated or otherwise made available by titles III through VI of this Act may be available to any foreign government which provides lethal military equipment to a country the government of which the Secretary of State has determined supports international terrorism for purposes of section 6(j) of the Export Administration Act of 1979 as continued in effect pursuant to the International Emergency Economic Powers Act: *Provided*, That the prohibition under this section with respect to a foreign government shall terminate 12 months after that government ceases to provide such military equipment: *Provided further*, That this section applies with respect to lethal military equipment provided under a contract entered into after October 1, 1997.

(2) Assistance restricted by paragraph (1) or any other similar provision of law, may be furnished if the President determines that to do so is important to the national interest of the United States.

(3) Whenever the President makes a determination pursuant to paragraph (2), the President shall submit to the Committees on Appropriations a report with respect to the furnishing of such assistance, including a detailed explanation of the assistance to be provided, the estimated dollar amount of such assistance, and an explanation of how the assistance furthers United States national interests.

(b) BILATERAL ASSISTANCE.—

(1) Funds appropriated for bilateral assistance in titles III through VI of this Act and funds appropriated under any such title in prior Acts making appropriations for the Department of State, foreign operations, and related programs, shall not be made available to any foreign government which the President determines—

(A) grants sanctuary from prosecution to any individual or group which has committed an act of international terrorism;

(B) otherwise supports international terrorism; or

(C) is controlled by an organization designated as a terrorist organization under section 219 of the Immigration and Nationality Act.

(2) The President may waive the application of paragraph (1) to a government if the President determines that national security or humanitarian reasons justify such waiver: *Provided*, That the President shall publish each such waiver in the Federal Register and, at least 15 days before the waiver takes effect, shall notify the Committees on Appropriations of the waiver (including the justification for the waiver) in accordance with the regular notification procedures of the Committees on Appropriations.

AUTHORIZATION REQUIREMENTS

SEC. 7022. Funds appropriated by this Act, except funds appropriated under the heading ''Trade and Development Agency'', may be obligated and expended notwithstanding section 10 of Public Law 91–672, section 15 of the State Department Basic Authorities Act of 1956, section 313 of the Foreign Relations Authorization Act, Fiscal Years 1994 and 1995 (Public Law 103–236), and section 504(a)(1) of the National Security Act of 1947 (50 U.S.C. 3094(a)(1)).

DEFINITION OF PROGRAM, PROJECT, AND ACTIVITY

SEC. 7023. For the purpose of titles II through VI of this Act ''program, project, and activity'' shall be defined at the appropriations Act account level and shall include all appropriations and authorizations Acts funding directives, ceilings, and limitations with the exception that for the following accounts: ''Economic Support Fund'' and ''Foreign Military Financing Program'', ''program, project, and activity'' shall also be considered to include country, regional, and central program level funding within each such account; and for the development assistance accounts of the United States Agency for International Development, ''program, project, and activity'' shall also be considered to include central, country, regional, and program level funding, either as—

(1) justified to the Congress; or

(2) allocated by the Executive Branch in accordance with a report, to be provided to the Committees on Appropriations within 30 days of the enactment of this Act, as required by section 653(a) of the Foreign Assistance Act of 1961.

AUTHORITIES FOR THE PEACE CORPS, INTER-AMERICAN FOUNDATION AND UNITED STATES AFRICAN DEVELOPMENT FOUNDATION

SEC. 7024. Unless expressly provided to the contrary, provisions of this or any other Act, including provisions contained in prior Acts authorizing or making appropriations for the Department of State, foreign operations, and related programs, shall not be construed to prohibit activities authorized by or conducted under the Peace Corps Act, the Inter-American Foundation Act or the African Development Foundation Act: *Provided*, That prior to conducting activities in a country for which assistance is prohibited, the agency shall consult with the Committees on Appropriations and report to such Committees within 15 days of taking such action.

COMMERCE, TRADE AND SURPLUS COMMODITIES

SEC. 7025. (a) None of the funds appropriated or made available pursuant to titles III through VI of this Act for direct assistance and none of the funds otherwise made available to the Export-Import Bank and the Overseas Private Investment Corporation shall be obligated or expended to finance any loan, any assistance or any other financial commitments for establishing or expanding production of any commodity for export by any country other than the United States, if the commodity is likely to be in surplus on world markets at the time the resulting productive capacity is expected to become operative and if the assistance will cause substantial injury to United States producers of the same, similar, or competing commodity: *Provided*, That such prohibition shall not apply to the Export-Import Bank if in the judgment of its Board of Directors the benefits to industry and employment in the United States are likely to outweigh the injury to United States producers of the same, similar, or competing commodity, and the Chairman of the Board so notifies the Committees on Appropriations: *Provided further*, That this subsection shall not prohibit—

(1) activities in a country that is eligible for assistance from the International Development Association, is not eligible for assistance from the International Bank for Reconstruction and Development, and does not export on a consistent basis the agricultural commodity with respect to which assistance is furnished; or

(2) activities in a country the President determines is recovering from widespread conflict, a humanitarian crisis, or a complex emergency.

(b) None of the funds appropriated by this or any other Act to carry out chapter 1 of part I of the Foreign Assistance Act of 1961 shall be available for any testing or breeding feasibility study, variety improvement or introduction, consultancy, publication, conference, or training in connection with the growth or production in a foreign country of an agricultural commodity for export which would compete with a similar commodity grown or produced in the United States: *Provided*, That this subsection shall not prohibit—

(1) activities designed to increase food security in developing countries where such activities will not have a significant impact on the export of agricultural commodities of the United States;

(2) research activities intended primarily to benefit American producers;

(3) activities in a country that is eligible for assistance from the International Development Association, is not eligible for assistance from the International Bank for Reconstruction and Development, and does not export on a consistent basis the agricultural commodity with respect to which assistance is furnished; or

(4) activities in a country the President determines is recovering from widespread conflict, a humanitarian crisis, or a complex emergency.

(c) The Secretary of the Treasury shall instruct the United States executive directors of the international financial institutions, as defined in section 7029(h) of this Act, to use the voice and vote of the United States to oppose any assistance by such institutions, using funds appropriated or made available by this Act, for the production or extraction of any commodity or mineral for export, if it is in surplus on world markets and if the assistance will cause substantial injury to United States producers of the same, similar, or competing commodity.

SEPARATE ACCOUNTS

SEC. 7026. (a) SEPARATE ACCOUNTS FOR LOCAL CURRENCIES.—

(1) If assistance is furnished to the government of a foreign country under chapters 1 and 10 of part I or chapter 4 of part II of the Foreign Assistance Act of 1961 under agreements which result in the generation of local currencies of that country, the Administrator of the United States Agency for International Development (USAID) shall—

(A) require that local currencies be deposited in a separate account established by that government;

(B) enter into an agreement with that government which sets forth—

(i) the amount of the local currencies to be generated; and

(ii) the terms and conditions under which the currencies so deposited may be utilized, consistent with this section; and

(C) establish by agreement with that government the responsibilities of USAID and that government to monitor and account for deposits into and disbursements from the separate account.

(2) USES OF LOCAL CURRENCIES.—As may be agreed upon with the foreign government, local currencies deposited in a separate account pursuant to subsection (a), or an equivalent amount of local currencies, shall be used only—

(A) to carry out chapter 1 or 10 of part I or chapter 4 of part II of the Foreign Assistance Act of 1961 (as the case may be), for such purposes as—

(i) project and sector assistance activities; or

(ii) debt and deficit financing; or

(B) for the administrative requirements of the United States Government.

(3) PROGRAMMING ACCOUNTABILITY.—USAID shall take all necessary steps to ensure that the equivalent of the local currencies disbursed pursuant to subsection (a)(2)(A) from the separate account established pursuant to subsection (a)(1) are used for the purposes agreed upon pursuant to subsection (a)(2).

(4) TERMINATION OF ASSISTANCE PROGRAMS.—Upon termination of assistance to a country under chapter 1 or 10 of part I or chapter 4 of part II of the Foreign Assistance Act of 1961 (as the case may be), any unencumbered balances of funds which remain in a separate account established pursuant to subsection (a) shall be disposed of for such purposes as may be agreed to by the government of that country and the United States Government.

(5) REPORTING REQUIREMENT.—The USAID Administrator shall report on an annual basis as part of the justification documents submitted to the Committees on Appropriations on the use of local currencies for the administrative requirements of the United States Government as authorized in subsection (a)(2)(B), and such report shall include the amount of local currency (and United States dollar equivalent) used or to be used for such purpose in each applicable country.

(b) SEPARATE ACCOUNTS FOR CASH TRANSFERS.—

(1) IN GENERAL.—If assistance is made available to the government of a foreign country, under chapter 1 or 10 of part I or chapter 4 of part II of the Foreign Assistance Act of 1961, as cash transfer assistance or as nonproject sector assistance, that country shall be required to maintain such funds in a separate account and not commingle them with any other funds.

(2) APPLICABILITY OF OTHER PROVISIONS OF LAW.—Such funds may be obligated and expended notwithstanding provisions of law which are inconsistent with the nature of this assistance including provisions which are referenced in the Joint Explanatory Statement of the Committee of Conference accompanying House Joint Resolution 648 (House Report No. 98–1159).

(3) NOTIFICATION.—At least 15 days prior to obligating any such cash transfer or nonproject sector assistance, the President shall submit a notification through the regular notification procedures of the Committees on Appropriations, which shall include a detailed description of how the funds proposed to be made available will be used, with a discussion of the United States interests that will be served by the assistance (including, as appropriate, a description of the economic policy reforms that will be promoted by such assistance).

(4) EXEMPTION.—Nonproject sector assistance funds may be exempt from the requirements of subsection (b)(1) only through the regular notification procedures of the Committees on Appropriations.

ELIGIBILITY FOR ASSISTANCE

SEC. 7027. (a) ASSISTANCE THROUGH NONGOVERNMENTAL ORGANIZATIONS.—Restrictions contained in this or any other Act with respect to assistance for a country shall not be construed to restrict assistance in support of programs of nongovernmental organizations from funds appropriated by this Act to carry out the provisions of chapters 1, 10, 11, and 12 of part I and chapter 4 of part II of the Foreign Assistance Act of 1961: *Provided*, That before using the authority of this subsection to furnish assistance in support of programs of nongovernmental organizations, the President shall notify the Committees on Appropriations pursuant to the regular notification procedures, including a description of the program to be assisted, the assistance to be provided, and the reasons for furnishing such assistance: *Provided further*, That nothing in this subsection shall be construed to alter any existing statutory prohibitions against abortion or involuntary sterilizations contained in this or any other Act.

(b) PUBLIC LAW 480.—During fiscal year 2015, restrictions contained in this or any other Act with respect to assistance for a country shall not be construed to restrict assistance under the Food for Peace Act (Public Law 83–480): *Provided*, That none of the funds appropriated to carry out title I of such Act and made available pursuant to this subsection may be obligated or expended except as provided through the regular notification procedures of the Committees on Appropriations.

(c) EXCEPTION.—This section shall not apply—

(1) with respect to section 620A of the Foreign Assistance Act of 1961 or any comparable provision of law prohibiting assistance to countries that support international terrorism; or

(2) with respect to section 116 of the Foreign Assistance Act of 1961 or any comparable provision of law prohibiting assistance to the government of a country that violates internationally recognized human rights.

LOCAL COMPETITION

SEC. 7028. (a) REQUIREMENTS FOR EXCEPTIONS TO COMPETITION FOR LOCAL ENTITIES.—Funds appropriated by this Act that are made available to the United States Agency for International Development (USAID) may only be made available for limited competitions through local entities if—

(1) prior to the determination to limit competition to local entities, USAID has—

(A) assessed the level of local capacity to effectively implement, manage, and account for programs included in such competition; and

(B) documented the written results of the assessment and decisions made; and

(2) prior to making an award after limiting competition to local entities—

(A) each successful local entity has been determined to be responsible in accordance with USAID guidelines; and

(B) effective monitoring and evaluation systems are in place to ensure that award funding is used for its intended purposes; and

(3) no level of acceptable fraud is assumed.

(b) In addition to the requirements of paragraph (1), the Administrator of USAID shall report, on a semi-annual basis, to the appropriate congressional committees on all awards subject to limited or no competition for local entities: *Provided*, That such report should be posted on the USAID Web site: *Provided further*, That the requirements of this subsection shall only apply to awards in excess of $3,000,000 and sole source awards to local entities in excess of $2,000,000.

(c) Section 7077 of division I of Public Law 112–74 shall continue in effect during fiscal year 2015, as amended by division K of Public Law 113–76.

INTERNATIONAL FINANCIAL INSTITUTIONS

SEC. 7029. (a) The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to seek to require that such institution adopts and implements a publicly available policy, including the strategic use of peer reviews and external experts, to conduct independent, in-depth evaluations of the effectiveness of at least 25 percent of all loans, grants, programs, and significant analytical non-lending activities in advancing the institution's goals of reducing poverty and promoting equitable economic growth, consistent with relevant safeguards, to ensure that decisions to support such loans, grants, programs, and activities are based on accurate data and objective analysis: *Provided*, That not later than 180 days after enactment of this Act, the Secretary shall submit a report to the Committees on Appropriations on steps taken by the United States executive directors and the international financial institutions consistent with this paragraph.

(b) The Secretary of the Treasury shall instruct the United States Executive Director of the International Bank for Reconstruction and Development and the International Development Association to vote against any loan, grant, policy, or strategy if such institution has adopted and is implementing any social or environmental safeguard relevant to such loan, grant, policy, or strategy that provides less protection than World Bank safeguards in effect on September 30, 2014.

(c) None of the funds appropriated under title V of this Act may be made as payment to any international financial institution while the United States executive director to such institution is compensated by the institution at a rate which, together with whatever compensation such executive director receives from the United States, is in excess of the rate provided for an individual occupying a position at level IV of the Executive Schedule under section 5315 of title 5, United States Code, or while any alternate United States executive director to such institution is compensated by the institution at a rate in excess of the rate provided for an individual occupying a position at level V of the Executive Schedule under section 5316 of title 5, United States Code.

(d) The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to seek to require that such institution conducts rigorous human rights due diligence and human rights risk management, as appropriate, in connection with any loan, grant, policy, or strategy of such institution: *Provided*, That prior to voting on any such loan, grant, policy, or strategy the executive director shall consult with the Assistant Secretary for Democracy, Human Rights, and Labor, Department of State, if the executive director has reason to believe that such loan, grant, policy, or strategy could result in forced displacement or other violation of human rights.

(e) The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to promote in loan, grant, and other financing agreements improvements in borrowing countries' financial management and judicial capacity to investigate, prosecute, and punish fraud and corruption.

(f) The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to seek to require that such institution collects, verifies, and publishes, to the maximum extent practicable, beneficial ownership information (excluding proprietary information) for any corporation or limited liability company, other than a publicly listed company, that receives funds appropriated by this Act that are provided as payment to such institution: *Provided*, That not later than 180 days after enactment of this Act, the Secretary shall submit a report to the Committees on Appropriations on steps taken by the United States executive directors and the international financial institutions consistent with this paragraph.

(g) The Secretary of the Treasury should support efforts by the Inter-American Development Bank (IDB) to promote economic cooperation and integration within the Caribbean region, consistent with the IDB's charter and United States policy.

(h) For the purposes of this Act ''international financial institutions'' shall mean the International Bank for Reconstruction and Development, the International Development Association, the International Finance Corporation, the Inter-American Development Bank, the International Monetary Fund, the Asian Development Bank, the Asian Development Fund, the Inter-American Investment Corporation, the North American Development Bank, the European Bank for Reconstruction and Development, the African Development Bank, the African Development Fund, and the Multilateral Investment Guarantee Agency.

DEBT-FOR-DEVELOPMENT

SEC. 7030. In order to enhance the continued participation of nongovernmental organizations in debt-for-development and debt-for-nature exchanges, a nongovernmental organization which is a grantee or contractor of the United States Agency for International Development may place in interest bearing accounts local currencies which accrue to that organization as a result of economic assistance provided under title III of this Act and, subject to the regular notification procedures of the Committees on Appropriations, any interest earned on such investment shall be used for the purpose for which the assistance was provided to that organization.

FINANCIAL MANAGEMENT AND BUDGET TRANSPARENCY

SEC. 7031. (a) LIMITATION ON DIRECT GOVERNMENT-TO-GOVERNMENT ASSISTANCE.—

(1) Funds appropriated by this Act may be made available for direct government-to-government assistance only if—

(A) each implementing agency or ministry to receive assistance has been assessed and is considered to have the systems required to manage such assistance and any identified vulnerabilities or weaknesses of such agency or ministry have been addressed; and

(i) the recipient agency or ministry employs and utilizes staff with the necessary technical, financial, and management capabilities;

(ii) the recipient agency or ministry has adopted competitive procurement policies and systems;

(iii) effective monitoring and evaluation systems are in place to ensure that such assistance is used for its intended purposes;

(iv) no level of acceptable fraud is assumed; and

(v) the government of the recipient country is taking steps to publicly disclose on an annual basis its national budget, to include income and expenditures;

(B) the recipient government is in compliance with the principles set forth in section 7013 of this Act;

(C) the recipient agency or ministry is not headed or controlled by an organization designated as a foreign terrorist organization under section 219 of the Immigration and Nationality Act;

(D) the Government of the United States and the government of the recipient country have agreed, in writing, on clear and achievable objectives for the use of such assistance, which should be made available on a cost-reimbursable basis; and

(E) the recipient government is taking steps to protect the rights of civil society, including freedoms of expression, association, and assembly.

(2) In addition to the requirements in subsection (a), no funds may be made available for direct government-to-government assistance without prior consultation with, and notification of, the Committees on Appropriations: *Provided*, That such notification shall contain an explanation of how the proposed activity meets the requirements of paragraph (1): *Provided further*, That the requirements of this paragraph shall only apply to direct government-to-government assistance in excess of $10,000,000 and all funds available for cash transfer, budget support, and cash payments to individuals.

(3) The Administrator of the United States Agency for International Development (USAID) or the Secretary of State, as appropriate, shall suspend any direct government-to-government assistance if the Administrator or the Secretary has credible information of material misuse of such assistance, unless the Administrator or the Secretary reports to the Committees on Appropriations that it is in the national interest of the United States to continue such assistance, including a justification, or that such misuse has been appropriately addressed.

(4) The Secretary of State shall submit to the Committees on Appropriations, concurrent with the fiscal year 2016 congressional budget justification materials, amounts planned for assistance described in subsection (a) by country, proposed funding amount, source of funds, and type of assistance.

(5) Not later than 90 days after the enactment of this Act and 6 months thereafter until September 30, 2015, the USAID Administrator shall submit to the Committees on Appropriations a report that—

(A) details all assistance described in subsection (a) provided during the previous 6-month period by country, funding amount, source of funds, and type of such assistance; and

(B) the type of procurement instrument or mechanism utilized and whether the assistance was provided on a reimbursable basis.

(6) None of the funds made available by this Act may be used for any foreign country for debt service payments owed by any country to any international financial institution: *Provided*, That for purposes of this subsection, the term ''international financial institution'' has the meaning given the term in section 7029(h) of this Act.

(b) NATIONAL BUDGET AND CONTRACT TRANSPARENCY.—

(1) MINIMUM REQUIREMENTS OF FISCAL TRANSPARENCY.—The Secretary of State shall continue to update and strengthen the ''minimum requirements of fiscal transparency'' for each government receiving assistance appropriated by this Act, as identified in the report required by section 7031(b) of division K of Public Law 113–76.

(2) DEFINITION.—For purposes of paragraph (1), ''minimum requirements of fiscal transparency'' are requirements consistent with those in subsection (a)(1), and the public disclosure of national budget documentation (to include receipts and expenditures by ministry) and government contracts and licenses for natural resource extraction (to include bidding and concession allocation practices).

(3) DETERMINATION AND REPORT.—For each government identified pursuant to paragraph (1), the Secretary of State, not later than 180 days after enactment of this Act, shall make or update any determination of ''significant progress'' or ''no significant progress'' in meeting the minimum requirements of fiscal transparency, and make such determinations publicly available in an annual ''Fiscal Transparency Report'' to be posted on the Department of State's Web site: *Provided*, That the Secretary shall identify the significant progress made by each such government to publicly disclose national budget documentation, contracts, and licenses which are additional to such information disclosed in previous fiscal years, and include specific recommendations of short- and long-term steps such government should take to improve fiscal transparency: *Provided further*, That the annual report shall include a detailed description of how funds appropriated by this Act are being used to improve fiscal transparency, and identify benchmarks for measuring progress.

(4) ASSISTANCE.—Funds appropriated under title III of this Act shall be made available for programs and activities to assist governments identified pursuant to paragraph (1) to improve budget transparency and to support civil society organizations in such countries that promote budget transparency: *Provided*, That such sums shall be in addition to funds otherwise made available for such purposes: *Provided further*, That a description of the uses of such funds shall be included in the annual ''Fiscal Transparency Report'' required by paragraph (3).

(c) ANTI-KLEPTOCRACY AND HUMAN RIGHTS.—

(1)(A) Officials of foreign governments and their immediate family members about whom the Secretary of State has credible information have been involved in significant corruption, including corruption related to the extraction of natural resources, or a gross violation of human rights shall be ineligible for entry into the United States.

(B) The Secretary may also publicly or privately designate or identify officials of foreign governments and their immediate family members about whom the Secretary has such credible information without regard to whether the individual has applied for a visa.

(2) Individuals shall not be ineligible if entry into the United States would further important United States law enforcement objectives or is necessary to permit the United States to fulfill its obligations under the United Nations Headquarters Agreement: *Provided*, That nothing in paragraph (1) shall be construed to derogate from United States Government obligations under applicable international agreements.

(3) The Secretary may waive the application of paragraph (1) if the Secretary determines that the waiver would serve a compelling national interest or that the circumstances which caused the individual to be ineligible have changed sufficiently.

(4) Not later than 6 months after enactment of this Act, the Secretary of State shall submit a report, including a classified annex if necessary, to the Committees on Appropriations and the Committees on the Judiciary describing the information related to corruption or violation of human rights concerning each of the individuals found ineligible in the previous 12 months pursuant to paragraph (1)(A) as well as the individuals who the Secretary designated or identified pursuant to paragraph (1)(B), or who would be ineligible but for the application of paragraph (2), a list of any waivers provided under paragraph (3), and the justification for each waiver.

(5) Any unclassified portion of the report required under paragraph (4) shall be posted on the Department of State's Web site.

(6) For purposes of paragraphs (1)(B), (4), and (5), the records of the Department of State and of diplomatic and consular offices of the United States pertaining to the issuance or refusal of visas or permits to enter the United States shall not be considered confidential.

(d) FOREIGN ASSISTANCE WEB SITE.—Funds appropriated by this Act under titles I and II, and funds made available for any independent agency in title III, as appropriate, shall be made available to support the provision of additional information on United States Government foreign assistance on the Department of State's foreign assistance Web site: *Provided*, That all Federal agencies funded under this Act shall provide such information on foreign assistance, upon request, to the Department of State.

DEMOCRACY PROGRAMS

SEC. 7032. (a) Of the funds appropriated by this Act, not less than $2,264,986,000 should be made available for democracy programs, as defined in subsection (c).

(b) Funds made available by this Act for democracy programs may be made available notwithstanding any other provision of law, and with regard to the National Endowment for Democracy (NED), any regulation.

(c) For purposes of funds appropriated by this Act, the term ''democracy programs'' means programs that support good governance, credible and competitive elections, freedom of expression, association, assembly, and religion, human rights, labor rights, independent media, and the rule of law, and that otherwise strengthen the capacity of democratic political parties, governments, nongovernmental organizations and institutions, and citizens to support the development of democratic states, and institutions that are responsive and accountable to citizens.

(d) Funds appropriated by this Act that are made available for governance programs should be made available to support institutions and individuals that demonstrate a commitment to democracy.

(e) With respect to the provision of assistance for democracy, human rights, and governance activities in this Act, the organizations implementing such assistance, the specific nature of that assistance, and the participants in such programs shall not be subject to the prior approval by the government of any foreign country: *Provided*, That the Secretary of State, in coordination with the Administrator of the United States Agency for International Development (USAID), shall report to the Committees on Appropriations, not later than 120 days after enactment of this Act, detailing steps taken by the Department of State and USAID to comply with the requirements of this subsection.

(f) Any funds made available by this Act for a business and human rights program in the People's Republic of China shall be made available on a cost-matching basis from sources other than the United States Government.

(g) The Bureau of Democracy, Human Rights, and Labor, Department of State (DRL) and the Bureau for Democracy, Conflict and Humanitarian Assistance, USAID, shall regularly communicate their planned programs to the NED.

(h) Funds appropriated by this Act under the heading ''Democracy Fund'' that are made available to DRL shall be made available to maintain a database of prisons and gulags in North Korea, in accordance with section 7032(i) of division K of Public Law 113–76.

(i) Funds appropriated by this Act that are made available for democracy programs

shall be made available to support freedom of religion, including in the Middle East and North Africa.

(j) Funds appropriated under title III of this Act shall be made available for democracy programs in countries in the Western Hemisphere above the total amount requested in the Congressional Budget Justification, Foreign Operations, Fiscal Year 2015: *Provided*, That the Department of State and USAID, as appropriate, shall consult with the Committees on Appropriations prior to the obligation of such funds.

(k) Funds made available by this Act for the Near East Regional Democracy program shall be the responsibility of the Assistant Secretary for Near Eastern Affairs, Department of State, in consultation with the Assistant Secretary for DRL: *Provided*, That such funds shall be made available for the activities described in section 1243 of Public Law 112–239, following consultation with the appropriate congressional committees.

MULTI-YEAR PLEDGES

SEC. 7033. None of the funds appropriated by this Act may be used to make any pledge for future year funding for any multilateral or bilateral program funded in titles III through VI of this Act unless such pledge was—

(1) previously justified, including the projected future year costs, in a congressional budget justification;

(2) included in an Act making appropriations for the Department of State, foreign operations, and related programs or previously authorized by an Act of Congress;

(3) notified in accordance with the regular notification procedures of the Committees on Appropriations, including the projected future year costs; or

(4) the subject of prior consultation with the Committees on Appropriations and such consultation was conducted at least 7 days in advance of the pledge.

SPECIAL PROVISIONS

SEC. 7034. (a) VICTIMS OF WAR, DISPLACED CHILDREN, AND DISPLACED BURMESE.—Funds appropriated in titles III and VI of this Act that are made available for victims of war, displaced children, displaced Burmese, and to combat trafficking in persons and assist victims of such trafficking, may be made available notwithstanding any other provision of law.

(b) RECONSTITUTING CIVILIAN POLICE AUTHORITY.—In providing assistance with funds appropriated by this Act under section 660(b)(6) of the Foreign Assistance Act of 1961, support for a nation emerging from instability may be deemed to mean support for regional, district, municipal, or other subnational entity emerging from instability, as well as a nation emerging from instability.

(c) WORLD FOOD PROGRAM.—Funds managed by the Bureau for Democracy, Conflict, and Humanitarian Assistance, United States Agency for International Development (USAID), from this or any other Act, may be made available as a general contribution to the World Food Program, notwithstanding any other provision of law.

(d) DISARMAMENT, DEMOBILIZATION AND REINTEGRATION.—Notwithstanding any other provision of law, regulation or Executive order, funds appropriated under titles III and IV of this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs under the headings ''Economic Support Fund'', ''Peacekeeping Operations'', ''International Disaster Assistance'', ''Complex Crises Fund'', and ''Transition Initiatives'' may be made available to support programs to disarm, demobilize, and reintegrate into civilian society former members of foreign terrorist organizations: *Provided*, That the Secretary of State shall consult with the Committees on Appropriations prior to the obligation of funds pursuant to this subsection: *Provided further*, That for the purposes of this subsection the term ''foreign terrorist organization'' means an organization designated as a terrorist organization under section 219 of the Immigration and Nationality Act.

(e) DIRECTIVES AND AUTHORITIES.—(1) Funds appropriated by this Act under the heading ''Economic Support Fund'' shall be made available to carry out the Program for Research and Training on Eastern Europe and the Independent States of the Former Soviet Union as authorized by the Soviet-Eastern European Research and Training Act of 1983 (22 U.S.C. 4501–4508).

(2) Funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs under the heading ''Economic Support Fund'' may be made available as a contribution to establish and maintain memorial sites of genocide, subject to the regular notification procedures of the Committees on Appropriations.

(3) Of the amounts made available by this Act under the heading ''Diplomatic and Consular Programs'' in title I, up to $500,000 may be made available for grants pursuant to section 504 of Public Law 95–426 (22 U.S.C. 2656d), including to facilitate collaboration with indigenous communities.

(f) PARTNER VETTING.—Funds appropriated by this Act or in titles I through IV of prior Acts making appropriations for the Department of State, foreign operations, and related programs shall be used by the Secretary of State and the USAID Administrator, as appropriate, to support the continued implementation of the Partner Vetting System (PVS) pilot program: *Provided*, That the Secretary of State and the USAID Administrator shall jointly submit a report to the Committees on Appropriations, not later than 30 days after completion of the pilot program, on the estimated timeline and criteria for evaluating the PVS pilot program for possible expansion: *Provided further*, That such report shall include the requirements in Senate Report 113–195 and House Report 113–499: *Provided further*, That such report may be delivered in classified form, if necessary.

(g) CONTINGENCIES.—During fiscal year 2015, the President may use up to $100,000,000 under the authority of section 451 of the Foreign Assistance Act of 1961, notwithstanding any other provision of law.

(h) INTERNATIONAL CHILD ABDUCTIONS.—The Secretary of State should withhold funds appropriated under title III of this Act for assistance for the central government of any country that is not taking appropriate steps to comply with the Convention on the Civil Aspects of International Child Abductions, done at the Hague on October 25, 1980: *Provided*, That the Secretary shall report to the Committees on Appropriations within 15 days of withholding funds under this subsection.

(i) REPORTS REPEALED.—Section 304(f) of Public Law 107–173; section 2104 of Public Law 109–13; and subsection 1405(c) of the Supplemental Appropriations Act of 2008 (Public Law 110–252), are hereby repealed.

(j) TRANSFERS FOR EXTRAORDINARY PROTECTION.—The Secretary of State may transfer to, and merge with, funds under the heading ''Protection of Foreign Missions and Officials'' unobligated balances of expired funds appropriated under the heading ''Diplomatic and Consular Programs'' for fiscal year 2015, except for funds designated for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985, at no later than the end of the fifth fiscal year after the last fiscal year for which such funds are available for the purposes for which appropriated: *Provided*, That not more than $50,000,000 may be transferred.

(k) PROTECTIONS AND REMEDIES FOR EMPLOYEES OF DIPLOMATIC MISSIONS AND INTERNATIONAL ORGANIZATIONS.—The Secretary of State shall implement section 203(a)(2) of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 (Public Law 110–457): *Provided*, That in determining whether to suspend the issuance of A–3 or G–5 visas under such section, the Secretary should consider the following as ''credible evidence'': (1) a final court judgment (including a default judgment) issued against a current or former employee of such mission or organization (for which the time period for appeal has expired); (2) the issuance of a T-visa to the victim; or (3) a request by the Department of State to the sending state that immunity of individual diplomats or family members be waived to permit criminal prosecution: *Provided further*, That the Secretary should assist in obtaining payment of final court judgments awarded to A–3 and G–5 visa holders, including encouraging the sending states to provide compensation directly to victims: *Provided further*, That the Secretary shall include in the Trafficking in Persons annual report a concise summary of each trafficking case involving an A–3 or G–5 visa holder which meets one or more of the items in the first proviso of this subsection.

(l) EXTENSION OF AUTHORITIES.—

(1) Section 1(b)(2) of the Passport Act of June 4, 1920 (22 U.S.C. 214(b)(2)) shall be applied by substituting ''September 30, 2015'' for ''September 30, 2010''.

(2) The authority provided by section 301(a)(3) of the Omnibus Diplomatic Security and Antiterrorism Act of 1986 (22 U.S.C. 4831(a)(3)) shall remain in effect for facilities in Afghanistan through September 30, 2015, except that the notification and reporting requirements contained in such section shall include the Committees on Appropriations.

(3) The authority contained in section 1115(d) of Public Law 111–32 shall remain in effect through September 30, 2015.

(4) Section 824(g) of the Foreign Service Act of 1980 (22 U.S.C. 4064(g)) shall be applied by substituting ''September 30, 2015'' for ''October 1, 2010'' in paragraph (2).

(5) Section 61(a) of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2733(a)) shall be applied by substituting ''September 30, 2015'' for ''October 1, 2010'' in paragraph (2).

(6) Section 625(j)(1) of the Foreign Assistance Act of 1961 (22 U.S.C. 2385(j)(1)) shall be applied by substituting ''September 30, 2015'' for ''October 1, 2010'' in subparagraph (B).

(7)(A) Subject to the limitation described in subparagraph (B), the authority provided by section 1113 of the Supplemental Appropriations Act, 2009 (Public Law 111–32; 123 Stat. 1904) shall remain in effect through September 30, 2015.

(B) The authority described in subparagraph (A) may not be used to pay an eligible member of the Foreign Service (as defined in section 1113(b) of the Supplemental Appropriations Act, 2009) a locality-based comparability payment (stated as a percentage) that exceeds two-thirds of the amount of the locality-based comparability payment (stated as a percentage) that would be payable to such member under section 5304 of title 5, United States Code, if such member's official duty station were in the District of Columbia.

(8) The Foreign Operations, Export Financing, and Related Programs Appropriations Act, 1990 (Public Law 101–167) is amended—

(A) In section 599D (8 U.S.C. 1157 note)—

(i) in subsection (b)(3), by striking ''and 2014'' and inserting ''2014, and 2015''; and

(ii) in subsection (e), by striking ''2014'' each place it appears and inserting ''2015''; and

(B) in section 599E (8 U.S.C. 1255 note) in subsection (b)(2), by striking ''2014'' and inserting ''2015''.

(9) The authorities provided in section 1015(b) of Public Law 111–212 shall remain in effect through September 30, 2015.

(m) CROWD CONTROL ITEMS.—Funds appropriated by this Act should not be used for tear gas, small arms, light weapons, ammunition, or other items for crowd control purposes for foreign security forces that use excessive force to repress peaceful expression, association, or assembly in countries undergoing democratic transition.

(n) DEPARTMENT OF STATE WORKING CAPITAL FUND.—Funds appropriated by this Act or otherwise made available to the Department of State for payments to the Working Capital Fund may only be used for the activities and in the amounts allowed in the President's fiscal year 2015 budget: *Provided*, That Federal agency components shall be charged only for their direct usage of each Working Capital Fund service: *Provided further*, That Federal agency components may only pay for Working Capital Fund services that are consistent with the component's purpose and authorities: *Provided further*, That the Working Capital Fund shall be paid in advance or reimbursed at rates which will return the full cost of each service.

(o) SECURITY FORCE ACCOUNTABILITY ASSISTANCE.—The Secretary of State shall submit a report to the Committees on Appropriations not later than 90 days after enactment of this Act on steps taken to implement section 620M(c) of the Foreign Assistance Act of 1961, including program details and sources of funding: *Provided*, That such report shall describe how funds appropriated by this Act are used to encourage, assist, and build the capacity of foreign governments to investigate, prosecute, and punish security force personnel who are credibly alleged to have committed gross violations of human rights, including by providing:

(1) technical assistance in support of such investigations and prosecutions;

(2) assistance to strengthen civilian-military cooperation on human rights and the rule of law;

(3) assistance to strengthen the internal accountability mechanisms and technical capacity of foreign governments to bring such personnel to justice; and

(4) support for nongovernmental organizations that monitor and document gross violations.

(p) HUMANITARIAN ASSISTANCE.—Funds appropriated by this Act that are available for monitoring and evaluation of assistance under the headings ''International Disaster Assistance'' and ''Migration and Refugee Assistance'' shall, as appropriate, be made available for the regular collection of feedback obtained directly from beneficiaries on the quality and relevance of such assistance: *Provided*, That the Department of State and USAID shall conduct regular oversight to ensure that such feedback is collected and used by grantees to maximize the cost-effectiveness and utility of such assistance, and require grantees that receive funds under such headings to establish procedures for collecting and responding to such feedback.

(q) HIV/AIDS WORKING CAPITAL FUND.—Funds available in the HIV/AIDS Working Capital Fund established pursuant to section 525(b)(1) of the Foreign Operations, Export Financing, and Related Programs Appropriations Act, 2005 (Public Law 108–477) may be made available for pharmaceuticals and other products for child survival, malaria, and tuberculosis to the same extent as HIV/AIDS pharmaceuticals and other products, subject to the terms and conditions in such section: *Provided*, That the authority in section 525(b)(5) of the Foreign Operations, Export Financing, and Related Programs Appropriations Act, 2005 (Public Law 108–477) shall be exercised by the Assistant Administrator for Global Health, USAID, with respect to funds deposited for such non-HIV/AIDS pharmaceuticals and other products, and shall be subject to the regular notification procedures of the Committees on Appropriations: *Provided further*, That the Secretary of State shall include in the congressional budget justification an accounting of budgetary resources, disbursements, balances, and reimbursements related to such fund.

(r) LOAN GUARANTEES AND ENTERPRISE FUNDS.—

(1) Funds appropriated under the heading ''Economic Support Fund'' only in title III of this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs may be made available for the costs, as defined in section 502 of the Congressional Budget Act of 1974, of loan guarantees for Jordan, Ukraine, and Tunisia, which are authorized to be provided: *Provided*, That amounts made available under this paragraph for the costs of such guarantees shall not be considered assistance for the purposes of provisions of law limiting assistance to a country.

(2) Funds appropriated under the heading ''Economic Support Fund'' in this Act may be made available to establish and operate one or more enterprise funds for Egypt and Tunisia: *Provided*, That the first, third and fifth provisos under section 7041(b) of division I of Public Law 112–74 shall apply to funds appropriated by this Act under the heading ''Economic Support Fund'' for an enterprise fund or funds to the same extent and in the same manner as such provision of law applied to funds made available under such section (except that the clause excluding subsection (d)(3) of section 201 of the SEED Act shall not apply): *Provided further*, That the authority of any such enterprise fund or funds to provide assistance shall cease to be effective on December 31, 2025.

(3) Funds made available by this subsection shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

(s) REPORT ON EXECUTIVE SALARIES.—Not later than 90 days after enactment of this Act, the head of any non-Federal or quasi-Federal organization that is provided a direct appropriation with funds made available by this Act under titles I or III shall submit a report to the Committees on Appropriations on executive salary and compensation: *Provided*, That the report shall include the information specified under this section in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(t) DEFINITIONS.—

(1) Unless otherwise defined in this Act, for purposes of this Act the term ''appropriate congressional committees'' shall mean the Committees on Appropriations and Foreign Relations of the Senate and the Committees on Appropriations and Foreign Affairs of the House of Representatives.

(2) Unless otherwise defined in this Act, for purposes of this Act the term ''funds appropriated in this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs'' shall mean funds that remain available for obligation, and have not expired.

(3) Any reference to Southern Kordofan in this or any other Act making appropriations for the Department of State, foreign operations, and related programs shall be deemed to include portions of Western Kordofan that were previously part of Southern Kordofan prior to the 2013 division of Southern Kordofan.

ARAB LEAGUE BOYCOTT OF ISRAEL

SEC. 7035. It is the sense of the Congress that—

(1) the Arab League boycott of Israel, and the secondary boycott of American firms that have commercial ties with Israel, is an impediment to peace in the region and to United States investment and trade in the Middle East and North Africa;

(2) the Arab League boycott, which was regrettably reinstated in 1997, should be immediately and publicly terminated, and the Central Office for the Boycott of Israel immediately disbanded;

(3) all Arab League states should normalize relations with their neighbor Israel;

(4) the President and the Secretary of State should continue to vigorously oppose the Arab League boycott of Israel and find concrete steps to demonstrate that opposition by, for example, taking into consideration the participation of any recipient country in the boycott when determining to sell weapons to said country; and

(5) the President should report to Congress annually on specific steps being taken by the United States to encourage Arab League states to normalize their relations with Israel to bring about the termination of the Arab League boycott of Israel, including those to encourage allies and trading partners of the United States to enact laws prohibiting businesses from complying with the boycott and penalizing businesses that do comply.

PALESTINIAN STATEHOOD

SEC. 7036. (a) LIMITATION ON ASSISTANCE.—None of the funds appropriated under titles III through VI of this Act may be provided to support a Palestinian state unless the Secretary of State determines and certifies to the appropriate congressional committees that—

(1) the governing entity of a new Palestinian state—

(A) has demonstrated a firm commitment to peaceful co-existence with the State of Israel; and

(B) is taking appropriate measures to counter terrorism and terrorist financing in the West Bank and Gaza, including the dismantling of terrorist infrastructures, and is cooperating with appropriate Israeli and other appropriate security organizations; and

(2) the Palestinian Authority (or the governing entity of a new Palestinian state) is working with other countries in the region to vigorously pursue efforts to establish a just, lasting, and comprehensive peace in the Middle East that will enable Israel and an independent Palestinian state to exist within the context of full and normal relationships, which should include—

(A) termination of all claims or states of belligerency;

(B) respect for and acknowledgment of the sovereignty, territorial integrity, and political independence of every state in the area through measures including the establishment of demilitarized zones;

(C) their right to live in peace within secure and recognized boundaries free from threats or acts of force;

(D) freedom of navigation through international waterways in the area; and

(E) a framework for achieving a just settlement of the refugee problem.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the governing entity should enact a constitution assuring the rule of law, an independent judiciary, and respect for

human rights for its citizens, and should enact other laws and regulations assuring transparent and accountable governance.

(c) WAIVER.—The President may waive subsection (a) if the President determines that it is important to the national security interest of the United States to do so.

(d) EXEMPTION.—The restriction in subsection (a) shall not apply to assistance intended to help reform the Palestinian Authority and affiliated institutions, or the governing entity, in order to help meet the requirements of subsection (a), consistent with the provisions of section 7040 of this Act (''Limitation on Assistance for the Palestinian Authority'').

RESTRICTIONS CONCERNING THE PALESTINIAN AUTHORITY

SEC. 7037. None of the funds appropriated under titles II through VI of this Act may be obligated or expended to create in any part of Jerusalem a new office of any department or agency of the United States Government for the purpose of conducting official United States Government business with the Palestinian Authority over Gaza and Jericho or any successor Palestinian governing entity provided for in the Israel-PLO Declaration of Principles: *Provided*, That this restriction shall not apply to the acquisition of additional space for the existing Consulate General in Jerusalem: *Provided further*, That meetings between officers and employees of the United States and officials of the Palestinian Authority, or any successor Palestinian governing entity provided for in the Israel-PLO Declaration of Principles, for the purpose of conducting official United States Government business with such authority should continue to take place in locations other than Jerusalem: *Provided further*, That as has been true in the past, officers and employees of the United States Government may continue to meet in Jerusalem on other subjects with Palestinians (including those who now occupy positions in the Palestinian Authority), have social contacts, and have incidental discussions.

PROHIBITION ON ASSISTANCE TO THE PALESTINIAN BROADCASTING CORPORATION

SEC. 7038. None of the funds appropriated or otherwise made available by this Act may be used to provide equipment, technical support, consulting services, or any other form of assistance to the Palestinian Broadcasting Corporation.

ASSISTANCE FOR THE WEST BANK AND GAZA

SEC. 7039. (a) OVERSIGHT.—For fiscal year 2015, 30 days prior to the initial obligation of funds for the bilateral West Bank and Gaza Program, the Secretary of State shall certify to the Committees on Appropriations that procedures have been established to assure the Comptroller General of the United States will have access to appropriate United States financial information in order to review the uses of United States assistance for the Program funded under the heading ''Economic Support Fund'' for the West Bank and Gaza.

(b) VETTING.—Prior to the obligation of funds appropriated by this Act under the heading ''Economic Support Fund'' for assistance for the West Bank and Gaza, the Secretary of State shall take all appropriate steps to ensure that such assistance is not provided to or through any individual, private or government entity, or educational institution that the Secretary knows or has reason to believe advocates, plans, sponsors, engages in, or has engaged in, terrorist activity nor, with respect to private entities or educational institutions, those that have as a principal officer of the entity's governing board or governing board of trustees any individual that has been determined to be involved in, or advocating terrorist activity or determined to be a member of a designated foreign terrorist organization: *Provided*, That the Secretary of State shall, as appropriate, establish procedures specifying the steps to be taken in carrying out this subsection and shall terminate assistance to any individual, entity, or educational institution which the Secretary has determined to be involved in or advocating terrorist activity.

(c) PROHIBITION.—

(1) None of the funds appropriated under titles III through VI of this Act for assistance under the West Bank and Gaza Program may be made available for the purpose of recognizing or otherwise honoring individuals who commit, or have committed acts of terrorism.

(2) Notwithstanding any other provision of law, none of the funds made available by this or prior appropriations Acts, including funds made available by transfer, may be made available for obligation for security assistance for the West Bank and Gaza until the Secretary of State reports to the Committees on Appropriations on the benchmarks that have been established for security assistance for the West Bank and Gaza and reports on the extent of Palestinian compliance with such benchmarks.

(d) AUDITS.—

(1) The Administrator of the United States Agency for International Development shall ensure that Federal or non-Federal audits of all contractors and grantees, and significant subcontractors and sub-grantees, under the West Bank and Gaza Program, are conducted at least on an annual basis to ensure, among other things, compliance with this section.

(2) Of the funds appropriated by this Act up to $500,000 may be used by the Office of Inspector General of the United States Agency for International Development for audits, inspections, and other activities in furtherance of the requirements of this subsection: *Provided*, That such funds are in addition to funds otherwise available for such purposes.

(e) Subsequent to the certification specified in subsection (a), the Comptroller General of the United States shall conduct an audit and an investigation of the treatment, handling, and uses of all funds for the bilateral West Bank and Gaza Program, including all funds provided as cash transfer assistance, in fiscal year 2015 under the heading ''Economic Support Fund'', and such audit shall address—

(1) the extent to which such Program complies with the requirements of subsections (b) and (c); and

(2) an examination of all programs, projects, and activities carried out under such Program, including both obligations and expenditures.

(f) Funds made available in this Act for West Bank and Gaza shall be subject to the regular notification procedures of the Committees on Appropriations.

(g) Not later than 180 days after enactment of this Act, the Secretary of State shall submit a report to the Committees on Appropriations updating the report contained in section 2106 of chapter 2 of title II of Public Law 109–13.

LIMITATION ON ASSISTANCE FOR THE PALESTINIAN AUTHORITY

SEC. 7040. (a) PROHIBITION OF FUNDS.—None of the funds appropriated by this Act to carry out the provisions of chapter 4 of part II of the Foreign Assistance Act of 1961 may be obligated or expended with respect to providing funds to the Palestinian Authority.

(b) WAIVER.—The prohibition included in subsection (a) shall not apply if the President certifies in writing to the Speaker of the House of Representatives, the President pro tempore of the Senate, and the Committees on Appropriations that waiving such prohibition is important to the national security interest of the United States.

(c) PERIOD OF APPLICATION OF WAIVER.—Any waiver pursuant to subsection (b) shall be effective for no more than a period of 6 months at a time and shall not apply beyond 12 months after the enactment of this Act.

(d) REPORT.—Whenever the waiver authority pursuant to subsection (b) is exercised, the President shall submit a report to the Committees on Appropriations detailing the justification for the waiver, the purposes for which the funds will be spent, and the accounting procedures in place to ensure that the funds are properly disbursed: *Provided*, That the report shall also detail the steps the Palestinian Authority has taken to arrest terrorists, confiscate weapons and dismantle the terrorist infrastructure.

(e) CERTIFICATION.—If the President exercises the waiver authority under subsection (b), the Secretary of State must certify and report to the Committees on Appropriations prior to the obligation of funds that the Palestinian Authority has established a single treasury account for all Palestinian Authority financing and all financing mechanisms flow through this account, no parallel financing mechanisms exist outside of the Palestinian Authority treasury account, and there is a single comprehensive civil service roster and payroll, and the Palestinian Authority is acting to counter incitement of violence against Israelis and is supporting activities aimed at promoting peace, coexistence, and security cooperation with Israel.

(f) PROHIBITION TO HAMAS AND THE PALESTINE LIBERATION ORGANIZATION.—

(1) None of the funds appropriated in titles III through VI of this Act may be obligated for salaries of personnel of the Palestinian Authority located in Gaza or may be obligated or expended for assistance to Hamas or any entity effectively controlled by Hamas, any power-sharing government of which Hamas is a member, or that results from an agreement with Hamas and over which Hamas exercises undue influence.

(2) Notwithstanding the limitation of paragraph (1), assistance may be provided to a power-sharing government only if the President certifies and reports to the Committees on Appropriations that such government, including all of its ministers or such equivalent, has publicly accepted and is complying with the principles contained in section 620K(b)(1) (A) and (B) of the Foreign Assistance Act of 1961, as amended.

(3) The President may exercise the authority in section 620K(e) of the Foreign Assistance Act of 1961, as added by the Palestinian Anti-Terrorism Act of 2006 (Public Law 109–446) with respect to this subsection.

(4) Whenever the certification pursuant to paragraph (2) is exercised, the Secretary of State shall submit a report to the Committees on Appropriations within 120 days of the certification and every quarter thereafter on whether such government, including all of its ministers or such equivalent are continuing to comply with the principles contained in section 620K(b)(1) (A) and (B) of the Foreign Assistance Act of 1961, as amended: *Provided*, That the report shall also detail the amount, purposes and delivery mechanisms for any assistance provided pursuant to the abovementioned certification and a full accounting of any direct support of such government.

(5) None of the funds appropriated under titles III through VI of this Act may be obligated for assistance for the Palestine Liberation Organization.

MIDDLE EAST AND NORTH AFRICA

SEC. 7041. (a) EGYPT.—

(1) IN GENERAL.—Funds appropriated by this Act that are available for assistance for

the Government of Egypt may only be made available if the Secretary of State certifies and reports to the Committees on Appropriations that such government is—

(A) sustaining the strategic relationship with the United States; and

(B) meeting its obligations under the 1979 Egypt-Israel Peace Treaty.

(2) ECONOMIC SUPPORT FUND.—

(A) Of the funds appropriated by this Act under the heading ''Economic Support Fund'', and subject to paragraph (6) of this subsection, up to $150,000,000 may be made available for assistance for Egypt, of which not less than $35,000,000 should be made available for higher education programs including not less than $10,000,000 for scholarships at not-for-profit institutions for Egyptian students with high financial need: *Provided*, That such funds may also be made available for democracy programs: *Provided further*, That such funds shall be made available for a demonstration project to combat hepatitis C, on a cost matching basis from sources other than the United States Government.

(B) Notwithstanding any provision of law restricting assistance for Egypt, including paragraph (6) of this subsection, funds made available under the heading ''Economic Support Fund'' in this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs for assistance for Egypt may be made available for education and economic growth programs, subject to prior consultation with the appropriate congressional committees: *Provided*, That such funds may not be made available for cash transfer assistance or budget support unless the Secretary of State certifies to the appropriate congressional committees that the Government of Egypt is taking consistent and effective steps to stabilize the economy and implement market-based economic reforms.

(C)(i) Of the funds appropriated by this Act under the heading ''Economic Support Fund'' that are available for assistance for Egypt, the Secretary of State shall withhold from obligation an amount that the Secretary determines to be equivalent to that expended by the United States Government for bail, and by nongovernmental organizations for legal and court fees, associated with democracy related trials in Egypt until the Secretary certifies and reports to the Committees on Appropriations that the Government of Egypt has dismissed the convictions issued by the Cairo Criminal Court on June 4, 2013, in ''Public Prosecution Case No. 1110 for the Year 2012''.

(ii) No conviction issued by the Cairo Criminal Court on June 4, 2013, in ''Public Prosecution Case No. 1110 for the Year 2012'', against a citizen or national of the United States or an alien lawfully admitted for permanent residence in the United States, shall be considered a conviction for purposes of United States law or for any activity undertaken within the jurisdiction of the United States.

(3) FOREIGN MILITARY FINANCING PROGRAM.—Of the funds appropriated by this Act under the heading ''Foreign Military Financing Program'', and subject to paragraph (6) of this subsection, up to $1,300,000,000, to remain available until September 30, 2016, may be made available for assistance for Egypt which may be transferred to an interest bearing account in the Federal Reserve Bank of New York, following consultation with the Committees on Appropriations: *Provided*, That if the Secretary of State is unable to make the certification in subparagraph (6)(A) or (B) of this subsection, such funds may be made available at the minimum rate necessary to continue existing programs, notwithstanding any provision of law restricting assistance for Egypt and following consultation with the Committees on Appropriations, except that defense articles and services from such programs shall not be delivered until the requirements in subparagraphs (6)(A), (B), or (C) of this subsection are met: *Provided further*, That not later than 30 days after enactment of this Act, the Secretary of State shall submit a report to the Committees on Appropriations describing any defense articles withheld from delivery to Egypt as of the date of enactment of this Act: *Provided further*, That not later than 90 days after enactment of this Act, the Secretary shall consult with the Committees on Appropriations on plans to restructure military assistance for Egypt, including cash flow financing.

(4) PRIOR YEAR FUNDS.—Funds appropriated under the headings ''Foreign Military Financing Program'' and ''International Military Education and Training'' in prior Acts making appropriations for the Department of State, foreign operations, and related programs may be made available notwithstanding any provision of law restricting assistance for Egypt, except that such funds under the heading ''Foreign Military Financing Program'' shall only be made available at the minimum rate necessary to continue existing programs and following consultation with the Committees on Appropriations, and the defense articles and services from such programs shall not be delivered until the requirements in subparagraphs (6)(A), (B), or (C) of this subsection are met.

(5) SECURITY EXEMPTIONS.—Notwithstanding any provision of law restricting assistance for Egypt, including paragraphs (3), (4), and (6) of this subsection, funds made available for assistance for Egypt in this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs may be made available for counterterrorism, border security, and nonproliferation programs in Egypt, and for development activities in the Sinai, if the Secretary of State certifies and reports to the appropriate congressional committees that to do so is important to the national security interest of the United States.

(6) FISCAL YEAR 2015 FUNDS.—Except as provided in paragraphs (2), (3) and (5) of this subsection, funds appropriated by this Act under the headings ''Economic Support Fund'', ''International Military Education and Training'', and ''Foreign Military Financing Program'' for assistance for the Government of Egypt may be made available notwithstanding any provision of law restricting assistance for Egypt as follows—

(A) up to $725,850,000 may be made available only if the Secretary of State certifies and reports to the Committees on Appropriations that the Government of Egypt—

(i) has held free and fair parliamentary elections;

(ii) is implementing laws or policies to govern democratically and protect the rights of individuals;

(iii) is implementing reforms that protect freedoms of expression, association, and peaceful assembly, including the ability of civil society organizations and the media to function without interference;

(iv) is taking consistent steps to protect and advance the rights of women and religious minorities;

(v) is providing detainees with due process of law;

(vi) is conducting credible investigations and prosecutions of the use of excessive force by security forces; and

(vii) has released American citizens who the Secretary of State determines to be political prisoners and dismissed charges against them; and

(B) not less than 180 days after a certification and report under subparagraph (6)(A), up to $725,850,000 may be made available only if the Secretary of State certifies and reports to the Committees on Appropriations that the requirements in subparagraph (6)(A) are being met.

(C) The Secretary of State may provide assistance, notwithstanding the certification requirements of subparagraphs 6(A) and (B) of this subsection or similar provisions of law in prior Acts making appropriations for the Department of State, foreign operations, and related programs, if the Secretary, after consultation with the Committees on Appropriations, certifies and reports to such Committees that it is important to the national security interest of the United States to provide such assistance: *Provided*, That such report, which may be in classified form if necessary, shall contain a detailed justification and the reasons why any of the requirements of subparagraphs 6(A) or (B) cannot be met.

(b) IRAN.—

(1) The terms and conditions of paragraphs (1) and (2) of section 7041(c) in division I of Public Law 112–74 shall continue in effect during fiscal year 2015 as if part of this Act.

(2)(A) The reporting requirements in section 7043(c) in division F of Public Law 111–117 shall continue in effect during fiscal year 2015 as if part of this Act: *Provided*, That the date in subsection (c)(1) shall be deemed to be ''September 30, 2015''.

(B) The Secretary of State shall submit to the appropriate congressional committees, not later than 30 days after enactment of this Act and at the end of each 30-day period thereafter until September 30, 2015, a report on the implementation of the Joint Plan of Action between the P5+1 and the Government of Iran concluded on November 24, 2013, and any extension of or successor to that agreement: *Provided*, That the report shall include the information required in House Report 113–499 and Senate Report 113–195, and may be submitted in classified form if necessary.

(c) IRAQ.—

(1) Funds appropriated by this Act may be made available for assistance for Iraq to promote governance, security, and internal and regional stability, including in Kurdistan and other areas impacted by the conflict in Syria, and among Iraq's religious and ethnic minority populations.

(2) None of the funds appropriated by this Act may be made available for construction of a permanent United States consulate in Iraq on property for which no land-use agreement has been entered into by the Governments of the United States and Iraq.

(3) Funds appropriated by this Act under the headings ''International Narcotics Control and Law Enforcement'' and ''Foreign Military Financing Program'' that are available for assistance for Iraq should be made available to enhance the capacity of Kurdistan Regional Government security services and for security programs in Kurdistan to address requirements arising from the violence in Syria and Iraq: *Provided*, That the Secretary of State shall consult with the Committees on Appropriations prior to obligating such funds.

(4) Not later than 90 days after enactment of this Act, the Secretary of State, in consultation with the heads of other relevant United States Government agencies, shall submit a report to the appropriate congressional committees detailing steps taken by the United States Government to address the plight, including resettlement needs, of Iranian dissidents located at Camp Liberty/Hurriya in Iraq.

(d) JORDAN.—Of the funds appropriated by this Act under the headings ''Economic Support Fund'' and ''Foreign Military Financing

Program'', not less than $1,000,000,000 shall be made available for assistance for Jordan.

(e) LEBANON.—

(1) None of the funds appropriated by this Act may be made available for the Lebanese Internal Security Forces (ISF) or the Lebanese Armed Forces (LAF) if the ISF or the LAF is controlled by a foreign terrorist organization, as designated pursuant to section 219 of the Immigration and Nationality Act.

(2) Funds appropriated by this Act under the headings ''International Narcotics Control and Law Enforcement'' and ''Foreign Military Financing Program'' that are available for assistance for Lebanon may be made available for programs and equipment for the ISF and the LAF to address security and stability requirements in areas affected by the conflict in Syria, following consultation with the appropriate congressional committees.

(3) Funds appropriated by this Act under the heading ''Economic Support Fund'' that are available for assistance for Lebanon may be made available notwithstanding section 1224 of Public Law 107–228.

(4) In addition to the activities described in paragraph (2), funds appropriated by this Act under the heading ''Foreign Military Financing Program'' for assistance for Lebanon may be made available only to professionalize the LAF and to strengthen border security and combat terrorism, including training and equipping the LAF to secure Lebanon's borders, interdicting arms shipments, preventing the use of Lebanon as a safe haven for terrorist groups, and to implement United Nations Security Council Resolution 1701: *Provided*, That funds may not be obligated for assistance for the LAF until the Secretary of State submits to the Committees on Appropriations a detailed spend plan, including actions to be taken to ensure equipment provided to the LAF is only used for the intended purposes, except such plan may not be considered as meeting the notification requirements under section 7015 of this Act or under section 634A of the Foreign Assistance Act of 1961, and shall be submitted not later than September 1, 2015: *Provided further*, That any notification submitted pursuant to such sections shall include any funds specifically intended for lethal military equipment.

(f) LIBYA.—

(1) None of the funds appropriated by this Act may be made available for assistance for the central Government of Libya unless the Secretary of State reports to the Committees on Appropriations that such government is cooperating with United States Government efforts to investigate and bring to justice those responsible for the attack on United States personnel and facilities in Benghazi, Libya in September 2012: *Provided*, That the limitation in this paragraph shall not apply to funds made available for the purpose of protecting United States Government personnel or facilities.

(2) Any notification required for assistance for Libya for funds appropriated under title IV of this Act shall include a detailed justification for such assistance, and a description of the vetting procedures used for any individual or unit receiving such assistance.

(3) The limitation on the uses of funds in section 7041(f)(2) of division K of Public Law 113–76 shall apply to funds appropriated by this Act that are made available for assistance for Libya: *Provided*, That prior to the obligation of such funds, the Secretary of State shall take all appropriate steps to ensure that mechanisms are in place for monitoring and control of assistance for Libya.

(4) Not later than 90 days after enactment of this Act, the Secretary of State shall submit a report to the appropriate congressional committees detailing—

(A) the number of claims against Libya filed with the Foreign Claims Settlement Commission pursuant to the Department of State's referral of claims of November 27, 2013 in connection with the Claims Settlement Agreement between the United States of America and the Great Socialist People's Libyan Arab Jamahiriya of August 14, 2008, as implemented pursuant to the Libyan Claims Resolution Act, Public Law 110–301 and Executive Order 13477 dated October 31, 2008;

(B) the amount of remaining balances of funds received by the United States, and held by the United States Treasury, for payment of awards rendered by the Foreign Claims Settlement Commission pursuant to the November 27, 2013 referral; and

(C) the process by which the claims are to be adjudicated.

(g) MOROCCO.—

(1) Funds appropriated under title III of this Act shall be made available for assistance for the Western Sahara: *Provided*, That not later than 90 days after enactment of this Act and prior to the obligation of such funds the Secretary of State, in consultation with the Administrator of the United States Agency for International Development, shall consult with the Committees on Appropriations on the proposed uses of such funds.

(2) Funds appropriated by this Act under the heading ''Foreign Military Financing Program'' that are available for assistance for Morocco may only be used for the purposes requested in the Congressional Budget Justification, Foreign Operations, Fiscal Year 2015.

(h) SYRIA.—

(1) Funds appropriated under title III of this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs may be made available notwithstanding any other provision of law for non-lethal assistance for programs to address the needs of civilians affected by conflict in Syria, and for programs that seek to—

(A) establish governance in Syria that is representative, inclusive, and accountable;

(B) expand the role of women in negotiations to end the violence and in any political transition in Syria;

(C) develop and implement political processes that are democratic, transparent, and adhere to the rule of law;

(D) further the legitimacy of the Syrian opposition through cross-border programs;

(E) develop civil society and an independent media in Syria;

(F) promote economic development in Syria;

(G) document, investigate, and prosecute human rights violations in Syria, including through transitional justice programs and support for nongovernmental organizations;

(H) counter extremist ideologies; and

(I) assist Syrian refugees whose education has been interrupted by the ongoing conflict to complete higher education requirements at regional academic institutions.

(2) Prior to the obligation of funds appropriated by this Act and made available for assistance for Syria, the Secretary of State shall take all practicable steps to ensure that mechanisms are in place for monitoring, oversight, and control of such assistance inside Syria: *Provided*, That the Secretary of State shall promptly inform the appropriate congressional committees of each significant instance in which assistance provided pursuant to the authority of this subsection has been compromised, to include the type and amount of assistance affected, a description of the incident and parties involved, and an explanation of the Department of State's response.

(3) Funds appropriated by this Act that are made available for assistance for Syria pursuant to the authority of this subsection may only be made available after the Secretary of State, in consultation with the heads of relevant United States Government agencies, submits, in classified form if necessary, an update to the comprehensive strategy required in section 7041(i)(3) of Public Law 113–76.

(4) Funds made available pursuant to this subsection may only be made available following consultation with the appropriate congressional committees, and shall be subject to the regular notification procedures of the Committees on Appropriations.

(i) WEST BANK AND GAZA.—

(1) REPORT ON ASSISTANCE.—Prior to the initial obligation of funds made available by this Act under the heading ''Economic Support Fund'' for assistance for the West Bank and Gaza, the Secretary of State shall report to the Committees on Appropriations that the purpose of such assistance is to—

(A) advance Middle East peace;

(B) improve security in the region;

(C) continue support for transparent and accountable government institutions;

(D) promote a private sector economy; or

(E) address urgent humanitarian needs.

(2) LIMITATIONS.—

(A)(i) None of the funds appropriated under the heading ''Economic Support Fund'' in this Act may be made available for assistance for the Palestinian Authority, if after the date of enactment of this Act—

(I) the Palestinians obtain the same standing as member states or full membership as a state in the United Nations or any specialized agency thereof outside an agreement negotiated between Israel and the Palestinians; or

(II) the Palestinians initiate an International Criminal Court judicially authorized investigation, or actively support such an investigation, that subjects Israeli nationals to an investigation for alleged crimes against Palestinians.

(ii) The Secretary of State may waive the restriction in paragraph (2)(A) resulting from the application of paragraph (2)(A)(i)(I) if the Secretary certifies to the Committees on Appropriations that to do so is in the national security interest of the United States, and submits a report to such Committees detailing how the waiver and the continuation of assistance would assist in furthering Middle East peace.

(B)(i) The President may waive the provisions of section 1003 of Public Law 100–204 if the President determines and certifies in writing to the Speaker of the House of Representatives, the President pro tempore of the Senate, and the Committees on Appropriations that the Palestinians have not, after the date of enactment of this Act, obtained in the United Nations or any specialized agency thereof the same standing as member states or full membership as a state outside an agreement negotiated between Israel and the Palestinians.

(ii) Not less than 90 days after the President is unable to make the certification and report pursuant to subparagraph (B)(i), the President may waive section 1003 of Public Law 100–204 if the President determines and certifies in writing to the Speaker of the House of Representatives, the President pro tempore of the Senate, and the Committees on Appropriations that the Palestinians have entered into direct and meaningful negotiations with Israel: *Provided*, That any waiver of the provisions of section 1003 of Public Law 100–204 under subparagraph (B)(i) of this paragraph or under previous provisions of law must expire before the waiver under the preceding sentence may be exercised.

(iii) Any waiver pursuant to this subparagraph shall be effective for no more than a period of 6 months at a time and shall not apply beyond 12 months after the enactment of this Act.

(3) REDUCTION.—The Secretary of State shall reduce the amount of assistance made available by this Act under the heading ''Economic Support Fund'' for the Palestinian Authority by an amount the Secretary determines is equivalent to the amount expended by the Palestinian Authority as payments for acts of terrorism by individuals who are imprisoned after being fairly tried and convicted for acts of terrorism and by individuals who died committing acts of terrorism during the previous calendar year: *Provided*, That the Secretary shall report to the Committees on Appropriations on the amount reduced for fiscal year 2015 prior to the obligation of funds for the Palestinian Authority.

(j) YEMEN.—None of the funds appropriated by this Act for assistance for Yemen may be made available for the Armed Forces of Yemen if such forces are controlled by a foreign terrorist organization, as designated pursuant to section 219 of the Immigration and Nationality Act.

AFRICA

SEC. 7042. (a) CENTRAL AFRICAN REPUBLIC.—Funds made available by this Act for assistance for the Central African Republic shall be made available for reconciliation and peacebuilding programs, including activities to promote inter-faith dialogue at the national and local levels, and for programs to prevent crimes against humanity.

(b) COUNTERTERRORISM PROGRAMS.—

(1) Of the funds appropriated by this Act, not less than $63,331,000 should be made available for the Trans-Sahara Counterterrorism Partnership program, and not less than $24,000,000 should be made available for the Partnership for Regional East Africa Counterterrorism program.

(2) Of the funds appropriated by this Act under the heading ''Economic Support Fund'', $10,000,000 shall be made available for programs to counter extremism in East Africa, in addition to such sums that may otherwise be made available for such purposes.

(c) CRISIS RESPONSE.—Notwithstanding any other provision of law, up to $10,000,000 of the funds appropriated by this Act under the heading ''Global Health Programs'' for HIV/AIDS activities may be transferred to, and merged with, funds appropriated under the headings ''Economic Support Fund'' and ''Transition Initiatives'' to respond to unanticipated crises in Africa, except that funds shall not be transferred unless the Secretary of State certifies to the Committees on Appropriations that no individual currently on anti-retroviral therapy supported by such funds shall be negatively impacted by the transfer of such funds: *Provided*, That the authority of this subsection shall be subject to prior consultation with the Committees on Appropriations.

(d) ETHIOPIA.—

(1) Funds appropriated by this Act that are available for assistance for Ethiopian military and police forces shall not be made available until the Secretary of State—

(A) certifies and reports to the Committees on Appropriations that the Government of Ethiopia is implementing policies to—

(i) protect judicial independence; freedom of expression, association, assembly, and religion; the right of political opposition parties, civil society organizations, and journalists to operate without harassment or interference; and due process of law; and

(ii) permit access for human rights and humanitarian organizations to the Somali region of Ethiopia; and

(B) submits a report to the Committees on Appropriations on the types and amounts of United States training and equipment proposed to be provided to the Ethiopian military and police, including steps to ensure that such assistance is not provided in contravention of section 620M of the Foreign Assistance Act of 1961.

(2) The restriction in paragraph (1) shall not apply to assistance made available under the heading ''International Military Education and Training'' (IMET) in this Act, assistance to Ethiopian military efforts in support of international peacekeeping operations, countering regional terrorism, and border security, and assistance for the Ethiopian Defense Command and Staff College.

(3) Funds appropriated by this Act under the headings ''Development Assistance'' and ''Economic Support Fund'' that are available for assistance in the lower Omo and Gambella regions of Ethiopia shall—

(A) not be used to support activities that directly or indirectly involve forced evictions;

(B) support initiatives of local communities to improve their livelihoods; and

(C) be subject to prior consultation with affected populations.

(4) The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to vote against financing for any activities that directly or indirectly involve forced evictions in Ethiopia.

(e) EXPANDED INTERNATIONAL MILITARY EDUCATION AND TRAINING.—

(1) Funds appropriated under the heading ''International Military Education and Training'' in this Act that are made available for assistance for Angola, Cameroon, Chad, Côte d'Ivoire, Guinea, and Zimbabwe may be made available only for training related to international peacekeeping operations, expanded IMET, and professional military education: *Provided*, That the limitation included in this paragraph shall not apply to courses that support training in maritime security.

(2) None of the funds appropriated under the heading ''International Military Education and Training'' in this Act should be made available for assistance for Equatorial Guinea.

(f) LORD'S RESISTANCE ARMY.—Funds appropriated by this Act shall be made available for programs and activities in areas affected by the Lord's Resistance Army (LRA) consistent with the goals of the Lord's Resistance Army Disarmament and Northern Uganda Recovery Act (Public Law 111–172), including to improve physical access, telecommunications infrastructure, and early-warning mechanisms and to support the disarmament, demobilization, and reintegration of former LRA combatants, especially child soldiers.

(g) NIGERIA.—Funds appropriated by this Act that are made available for assistance for Nigeria shall be made available for assistance for women and girls who are targeted by the terrorist organization Boko Haram, consistent with the provisions of section 7059 of this Act, and in consultation with the Government of Nigeria.

(h) PROGRAMS IN AFRICA.—

(1) Of the funds appropriated by this Act under the headings ''Global Health Programs'' and ''Economic Support Fund'', not less than $7,000,000 shall be made available for the purposes of section 7042(g)(1) of division K of Public Law 113–76.

(2) Of the funds appropriated by this Act under the headings ''Economic Support Fund'' and ''International Narcotics Control and Law Enforcement'', not less than $8,000,000 shall be made available for the purposes of section 7042(g)(2) of division K of Public Law 113–76.

(3) Funds made available under paragraphs (1) and (2) shall be programmed in a manner that leverages a United States Government-wide approach to addressing shared challenges and mutually beneficial opportunities, and shall be the responsibility of United States Chiefs of Mission in countries in Africa seeking enhanced partnerships with the United States in areas of trade, investment, development, health, and security.

(i) SOMALIA.—

(1) Funds appropriated by this Act under the heading ''Economic Support Fund'' that are made available for assistance for Somalia should be used to promote dialogue and reconciliation between the central government and Somali regions, and should be provided in an impartial manner that is based on need and institutional capacity: *Provided*, That such assistance should also be used to strengthen the rule of law and government institutions, support civil society organizations involved in peace building, and support other development priorities including education and employment opportunities.

(2) Funds appropriated in prior Acts making appropriations for the Department of State, foreign operations, and related programs may be made available for assistance for Somalia, notwithstanding section 7042(h)(2) of division K of Public Law 113–76, following consultation with, and the regular notification procedures of, the Committees on Appropriations.

(j) SOUTH SUDAN.—

(1) Funds appropriated by this Act that are made available for assistance for South Sudan should—

(A) be prioritized for programs that respond to humanitarian needs and the delivery of basic services and to mitigate conflict and promote stability, including to address protection needs and prevent and respond to gender-based violence;

(B) support programs that build resilience of communities to address food insecurity, maintain educational opportunities, and enhance local governance;

(C) be used to advance democracy, including support for civil society, independent media, and other means to strengthen the rule of law;

(D) support the transparent and sustainable management of natural resources by assisting the Government of South Sudan in conducting regular audits of financial accounts, including revenues from oil and gas, and the timely public disclosure of such audits; and

(E) support the professionalization of security forces, including human rights and accountability to civilian authorities.

(2) None of the funds appropriated by this Act that are available for assistance for the central Government of South Sudan may be made available until the Secretary of State certifies and reports to the Committees on Appropriations that such government is taking steps to—

(A) provide access for humanitarian organizations;

(B) end the use of child soldiers;

(C) support a cessation of hostilities agreement;

(D) protect freedoms of expression, association, and assembly;

(E) reduce corruption related to the extraction and sale of oil and gas; and

(F) establish democratic institutions, including accountable military and police forces under civilian authority.

(3) The limitation of paragraph (2) shall not apply to—

(A) humanitarian assistance;

(B) assistance to directly support South Sudan peace negotiations or to implement a peace agreement; and

(C) assistance to support implementation of outstanding issues of the Comprehensive Peace Agreement (CPA) and mutual arrangements related to the CPA.

(k) SUDAN.—

(1) Notwithstanding any other provision of law, none of the funds appropriated by this Act may be made available for assistance for the Government of Sudan.

(2) None of the funds appropriated by this Act may be made available for the cost, as defined in section 502 of the Congressional Budget Act of 1974, of modifying loans and loan guarantees held by the Government of Sudan, including the cost of selling, reducing, or canceling amounts owed to the United States, and modifying concessional loans, guarantees, and credit agreements.

(3) The limitations of paragraphs (1) and (2) shall not apply to—

(A) humanitarian assistance;

(B) assistance for the Darfur region, Southern Kordofan State, Blue Nile State, other marginalized areas and populations in Sudan, and Abyei; and

(C) assistance to support implementation of outstanding issues of the Comprehensive Peace Agreement (CPA), mutual arrangements related to post-referendum issues associated with the CPA, or any other internationally recognized viable peace agreement in Sudan.

(l) TRAFFICKING IN CONFLICT MINERALS, WILDLIFE, AND OTHER CONTRABAND.—

(1) None of the funds appropriated by this Act under the heading ''Foreign Military Financing Program'' may be made available for assistance for Rwanda unless the Secretary of State certifies to the Committees on Appropriations that the Government of Rwanda is implementing a policy to cease political, military and/or financial support to armed groups in the Democratic of the Congo (DRC) that have violated human rights or are involved in the illegal exportation of minerals, wildlife, or other contraband.

(2) The restriction in paragraph (1) shall not apply to assistance to improve border controls to prevent the illegal exportation of minerals, wildlife, and other contraband out of the DRC by such groups, to protect humanitarian relief efforts, to support the training and deployment of members of the Rwandan military in international peacekeeping operations, or to conduct operations against the Lord's Resistance Army.

(m) ZIMBABWE.—

(1) The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to vote against any extension by the respective institution of any loan or grant to the Government of Zimbabwe, except to meet basic human needs or to promote democracy, unless the Secretary of State certifies and reports to the Committees on Appropriations that the rule of law has been restored, including respect for ownership and title to property, and freedoms of expression, association, and assembly.

(2) None of the funds appropriated by this Act shall be made available for assistance for the central Government of Zimbabwe, except for health and education, unless the Secretary of State certifies and reports as required in paragraph (1), and funds may be made available for macroeconomic growth assistance if the Secretary reports to the Committees on Appropriations that such government is implementing transparent fiscal policies, including public disclosure of revenues from the extraction of natural resources.

EAST ASIA AND THE PACIFIC

SEC. 7043. (a) ASIA REBALANCING INITIATIVE.—

(1) ASIA MARITIME SECURITY.—

(A) Funds appropriated by this Act under the headings ''International Narcotics Control and Law Enforcement'' and ''Foreign Military Financing Program'' shall be made available for activities to strengthen maritime security in the Asia region: *Provided*, That prior to obligating such funds, the Secretary of State shall consult with the appropriate congressional committees on the uses of such funds on a country-by-country basis and on the specific regional strategic objectives supported by such funds: *Provided further*, That such funds may only be made available for programs for naval forces, coast guards, or other governmental maritime entities and nongovernmental organizations, as appropriate, directly engaged in maritime security issues, and shall be coordinated with other United States Government activities that seek to strengthen maritime security in such region.

(B) Funds appropriated by this Act under the heading ''International Military Education and Training'' shall be made available for activities to promote the professionalism and capabilities of naval forces, coast guard, or other governmental maritime entities directly engaged in maritime security issues in the Asia region, including to counter piracy and facilitate cooperation on disaster relief efforts.

(C) In addition to the consultation requirement in paragraph (1)(A), not later than 90 days after enactment of this Act, the Secretary of State, in coordination with the heads of other relevant United States Government agencies, shall submit to the appropriate congressional committees a multi-year strategy to increase cooperation on maritime security issues with countries in the Asia region, including a description of specific regional strategic objectives served by such funds: *Provided*, That such strategy shall include clear goals and objectives, and cost estimates for implementation on an annual, country-by-country and regional basis.

(D) None of the funds appropriated by this Act may be made available for equipment or training for the armed forces of the People's Republic of China.

(E) Funds appropriated under titles III and IV of this Act may be made available by the Secretary of State for the participation by the United States in the Information Sharing Centre located in Singapore, as established by the Regional Cooperation Agreement on Combating Piracy and Armed Robbery Against Ships in Asia.

(2) REGIONAL ALLIANCES AND PARTNERSHIPS.—Funds appropriated under title III of this Act that are made available for programs to strengthen regional alliances and partnerships among governments in the Asia region should be matched to the maximum extent practicable and as appropriate from sources other than the United States Government: *Provided*, That prior to the obligation of funds for such programs, the Secretary of State shall certify to the appropriate congressional committees that such regional alliance or partnership is in the national security interest of the United States, and that the program or programs supporting such alliance serve specific strategic objectives, including a description of such objectives and an explanation of how such programs are coordinated with other United States Government programs to rebalance policy toward Asia.

(3) ECONOMIC GROWTH AND TRADE.—

(A) Funds appropriated under title III of this Act that are made available for bilateral economic growth programs in the Asia region shall also be made available to increase United States trade in such region, and for assistance for capacity building activities relating to free trade agreements.

(B) Funds appropriated under title VI of this Act shall be made available to increase United States trade in the Asia region above amounts made available for such purposes in prior fiscal years.

(4) OPERATIONS AND ASSISTANCE CALCULATIONS.—Not later than 90 days after enactment of this Act, the Secretary of State shall submit a report to the appropriate congressional committees detailing the funds provided for the Asia Rebalancing Initiative for operations and assistance for each fiscal year beginning in fiscal year 2011: *Provided*, That such report shall include total amounts made available for such Initiative for each fiscal year, and shall specify the increased amounts for operations and assistance for the Asia region to support such Initiative.

(5) PUBLIC DIPLOMACY.—

(A) Funds appropriated by this Act under the headings ''Educational and Cultural Exchange Programs'' and ''Economic Support Fund'' shall be made available for exchange programs for the Asia region, including for the Young Southeast Asian Leaders Initiative, which should be matched to the maximum extent practicable and as appropriate from sources other than the United States Government: *Provided*, That such Initiative shall include the participation of representatives of democratic political parties and human rights organizations.

(B) Not later than 180 days after enactment of this Act, the Secretary of State, in consultation with the heads of other relevant United States Government agencies, shall submit to the appropriate congressional committees a report detailing a clear and comprehensive narrative on United States foreign policy for the Asia region, including a description of steps taken to disseminate such narrative among such agencies.

(C) Funds appropriated by this Act under the heading ''International Broadcasting Operations'' that are made available for the Asia region shall be made available to support the narrative required in subparagraph (B), as appropriate: *Provided*, That not later than 90 days after enactment of this Act, the Broadcasting Board of Governors shall submit a report to the Committees on Appropriations detailing the programs that are attributable to the Asia Rebalancing Initiative, including the costs of such programs.

(6) DEMOCRACY AND HUMAN RIGHTS.—

(A) Funds appropriated by title III of this Act for the Asia Rebalancing Initiative shall be made available to promote and protect democracy and human rights in the Asia region, including for political parties, civil society, and organizations and individuals seeking to advance transparency, accountability, and the rule of law: *Provided*, That such funds shall also be made available, through an open and competitive process, to nongovernmental networks and alliances that seek to promote democracy, human rights, and the rule of law in the Asia region: *Provided further*, That to the maximum extent practicable, such funds should be made available on a grant or cooperative agreement basis.

(B) Funds appropriated by this Act under the headings ''Global Health Programs'', ''Development Assistance'', ''Economic Support Fund'', and ''Migration and Refugee Assistance'' shall be made available for programs to promote and preserve Tibetan culture and the resilience of Tibetan communities in India and Nepal, and to assist in the education and development of the next generation of Tibetan leaders from such communities: *Provided*, That such funds are in addition to amounts made available for programs

inside Tibet in subsection (g)(2) of this section.

(7) CONFLICT RESOLUTION.—Funds appropriated under titles III and IV of this Act shall be made available to address and mitigate conflict in the Asia region arising from ethnic, religious, and territorial disputes.

(8) DEFINITION.—For purposes of this subsection, the Asia region means countries and territories in Oceania, Southeast Asia, and South Asia, and the Indian and Pacific Oceans bordering those countries and territories.

(b) BURMA.—

(1) Funds appropriated by this Act under the heading ''Economic Support Fund'' may be made available for assistance for Burma notwithstanding any other provision of law: *Provided*, That no such funds shall be made available to any successor or affiliated organization of the State Peace and Development Council (SPDC) controlled by former SPDC members that promotes the repressive policies of the SPDC, or to any individual or organization credibly alleged to have committed gross violations of human rights, including against Rohingyas and other minority groups: *Provided further*, That such funds may be made available for programs administered by the Office of Transition Initiatives, USAID, for ethnic groups and civil society in Burma to help sustain ceasefire agreements and further prospects for reconciliation and peace, which may include support to representatives of ethnic armed groups for this purpose.

(2) Funds appropriated under title III of this Act for assistance for Burma—

(A) may not be made available for budget support for the Government of Burma;

(B) shall be provided to strengthen civil society organizations in Burma, including as core support for such organizations;

(C) shall be made available for community-based organizations operating in Thailand to provide food, medical, and other humanitarian assistance to internally displaced persons in eastern Burma, in addition to assistance for Burmese refugees from funds appropriated by this Act under the heading ''Migration and Refugee Assistance'';

(D) shall be made available for parliamentary strengthening programs; and

(E) shall be made available for ethnic and religious reconciliation programs, including in ceasefire areas, as appropriate, and to address the Rohingya and Kachin crises.

(3) None of the funds appropriated by this Act under the headings ''International Military Education and Training'' and ''Foreign Military Financing Program'' may be made available for assistance for Burma: *Provided*, That the Department of State may continue consultations with the armed forces of Burma only on human rights and disaster response in a manner consistent with the prior fiscal year, and following consultation with the appropriate congressional committees.

(4) Funds made available by this Act for assistance for Burma shall be made available for the implementation of the democracy and human rights strategy required by section 7043(b)(3)(A) of division K of Public Law 113–76: *Provided*, That the United States Chief of Mission in Burma, in consultation with the Assistant Secretary for the Bureau of Democracy, Human Rights, and Labor, Department of State (DRL), shall be responsible for democracy and human rights programs in Burma: *Provided further*, That not less than 90 days after enactment of this Act, the Secretary of State shall submit a report to the appropriate congressional committees detailing steps taken by the United States and other international donors to protect human rights and address conflict in Rakhine State.

(5) Funds appropriated by this Act shall only be made available for assistance for the central Government of Burma if the Secretary of State certifies and reports to the appropriate congressional committees that such government has implemented reforms, in consultation with Burma's political opposition and ethnic groups, providing for free and fair presidential and parliamentary elections, to include participation of citizens as voters and candidates: *Provided*, That the Secretary of State may waive the requirements of this paragraph if the Secretary certifies and reports to the Committees on Appropriations that to do so is important to the democratic development of Burma, including a detailed justification for such waiver.

(6) Any new program or activity in Burma initiated in fiscal year 2015 shall be subject to prior consultation with the appropriate congressional committees.

(7) Notwithstanding any provision of law, the position established by section 7 of Public Law 110–286 shall remain vacant following the expiration of the current term.

(8)(A) Section 3(3) of Public Law 112–192 (October 5, 2012) is amended by inserting after ''Public Law 112–74'' the phrase ''and shall also include the Multilateral Investment Guarantee Agency''.

(B) The amendment made in subparagraph (A) shall only take effect if the Secretary of State certifies and reports to the Committees on Appropriations by September 30, 2015 that the Government of Burma has implemented reforms, in consultation with Burma's political opposition and ethnic groups, providing for free and fair presidential and parliamentary elections.

(c) CAMBODIA.—

(1) Funds appropriated under title III of this Act for assistance for Cambodia shall be made available for democracy and human rights programs: *Provided*, That such funds shall not include the costs associated with a United States contribution to a Khmer Rouge tribunal: *Provided further*, That decisions regarding the uses of such funds shall be the responsibility of the United States Chief of Mission in Cambodia, in consultation with the Assistant Secretary for DRL, and should include programs that seek to—

(A) strengthen Cambodian civil society;

(B) promote transparent and accountable parliamentary and electoral processes;

(C) provide access to justice for political prisoners and individuals whose land has been confiscated through extra-legal means;

(D) protect the rights, livelihood and traditions of minority groups in Cambodia;

(E) support research and documentation on the Khmer Rouge genocide, including in a regional context; and

(F) support efforts to educate the people of Cambodia on such genocide.

(2) Funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs under the heading ''Development Assistance'' shall be made available for basic education programs in Cambodia.

(3) Funds appropriated by this Act may not be made available for a United States contribution to a Khmer Rouge tribunal until the Secretary of State reports to the appropriate congressional committees on whether—

(A) international donors, in cooperation with the Government of Cambodia, have determined an estimate of costs and a timeline associated with the winding down of such tribunal;

(B) the workings of the tribunal are free of interference by the Government of Cambodia; and

(C) the Government of Cambodia is making financial contributions to such tribunal in a manner consistent with its pledges.

(4) The Secretary of State shall consult with international donors to the Khmer Rouge tribunal on a plan to reimburse the Documentation Center of Cambodia for costs incurred in support of the work of such tribunal: *Provided*, That not later than 90 days after enactment of this Act, the Secretary of State shall submit to the appropriate congressional committees a report detailing the steps taken to develop such plan.

(d) NORTH KOREA.—

(1) Funds made available under the heading ''International Broadcasting Operations'' in title I of this Act shall be made available to maintain broadcasts into North Korea.

(2) Funds appropriated by this Act under the heading ''Migration and Refugee Assistance'' shall be made available for assistance for refugees from North Korea, including for protection activities in the People's Republic of China.

(3) None of the funds made available by this Act under the heading ''Economic Support Fund'' may be made available for assistance for the government of North Korea.

(e) PEOPLE'S REPUBLIC OF CHINA.—

(1) None of the funds appropriated under the heading ''Diplomatic and Consular Programs'' in this Act may be obligated or expended for processing licenses for the export of satellites of United States origin (including commercial satellites and satellite components) to the People's Republic of China unless, at least 15 days in advance, the Committees on Appropriations are notified of such proposed action.

(2) The terms and requirements of section 620(h) of the Foreign Assistance Act of 1961 shall apply to foreign assistance projects or activities of the People's Liberation Army (PLA) of the People's Republic of China, to include such projects or activities by any entity that is owned or controlled by, or an affiliate of, the PLA: *Provided*, That none of the funds appropriated or otherwise made available pursuant to this Act may be used to finance any grant, contract, or cooperative agreement with the PLA, or any entity that the Secretary of State has reason to believe is owned or controlled by, or an affiliate of, the PLA.

(3) Funds appropriated by this Act for public diplomacy under title I and for assistance under titles III and IV shall be made available to counter the influence of the People's Republic of China, in accordance with the strategy required by section 7043(e)(3) of division K of Public Law 113–76, following consultation with the Committees on Appropriations.

(f) PHILIPPINES.—Funds appropriated by this Act under the heading ''Foreign Military Financing Program'' that are available for assistance for the Philippine army should only be made available in accordance with the conditions under this section in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(g) TIBET.—

(1) The Secretary of the Treasury should instruct the United States executive director of each international financial institution to use the voice and vote of the United States to support financing of projects in Tibet if such projects do not provide incentives for the migration and settlement of non-Tibetans into Tibet or facilitate the transfer of ownership of Tibetan land and natural resources to non-Tibetans, are based on a thorough needs-assessment, foster self-sufficiency of the Tibetan people and respect Tibetan culture and traditions, and are subject to effective monitoring.

(2) Notwithstanding any other provision of law, funds appropriated by this Act under the heading ''Economic Support Fund'' shall be made available to nongovernmental organizations to support activities which preserve cultural traditions and promote sustainable development, education, and environmental conservation in Tibetan communities in the Tibetan Autonomous Region and in other Tibetan communities in China.

(h) VIETNAM.—Funds appropriated by this Act under the heading ''Economic Support Fund'' shall be made available for remediation of dioxin contaminated sites in Vietnam and may be made available for assistance for the Government of Vietnam, including the military, for such purposes, and funds appropriated under the heading ''Development Assistance'' shall be made available for health/disability activities in areas sprayed with Agent Orange or otherwise contaminated with dioxin.

SOUTH AND CENTRAL ASIA

SEC. 7044. (a) AFGHANISTAN.—

(1) OPERATIONS AND REPORTS.—

(A) Funds appropriated by this Act under the headings ''Diplomatic and Consular Programs'', ''Embassy Security, Construction, and Maintenance'', and ''Operating Expenses'' that are available for the construction and renovation of United States Government facilities in Afghanistan may not be made available if the purpose is to accommodate Federal employee positions or to expand aviation facilities or assets above those notified by the Department of State and the United States Agency for International Development (USAID) to the Committees on Appropriations, or contractors in addition to those in place on the date of enactment of this Act: *Provided*, That the limitations in this paragraph shall not apply if funds are necessary to protect such facilities or the security, health, and welfare of United States personnel.

(B) Of the funds appropriated by this Act under the headings ''Diplomatic and Consular Programs'' and ''Operating Expenses'' that are made available for operations in Afghanistan, 15 percent shall be withheld from obligation until the Secretary of State, in consultation with the Secretary of Defense and the USAID Administrator, submits to the Committees on Appropriations, in classified form if necessary, an update of the report required by section 7044(a)(1)(B) of division K of Public Law 113–76.

(2) ASSISTANCE.—Funds appropriated by this Act under the headings ''Economic Support Fund'' and ''International Narcotics Control and Law Enforcement'' for assistance for Afghanistan—

(A) may not be used to support any program, project, or activity that—

(i) does not have regular oversight by the Department of State or USAID, as appropriate, to include site visits;

(ii) involves any individual or organization that the Secretary of State determines to be involved in corrupt practices; or

(iii) initiates new major infrastructure;

(B) shall only be made available for programs that the Government of Afghanistan or other Afghan entity is capable of sustaining, as appropriate and as determined by the United States Chief of Mission;

(C) shall be prioritized for programs that promote women's economic and political empowerment, strengthen and protect the rights of women and girls, and to implement the United States Embassy Kabul Gender Strategy; and

(D) shall be implemented in accordance with all applicable audit policies of the Department of State and USAID.

(3) NOTIFICATION AND CERTIFICATION REQUIREMENT.—Funds appropriated by this Act under the headings ''Economic Support Fund'' and ''International Narcotics Control and Law Enforcement'' for assistance for the central Government of Afghanistan shall be subject to the regular notification procedures of the Committees on Appropriations, and may not be obligated unless the Secretary of State certifies and reports to the Committees on Appropriations that the Government of Afghanistan is—

(A) implementing laws or policies to govern democratically and protect the rights of individuals and civil society;

(B) implementing the Bilateral Security Agreement with the United States;

(C) taking consistent steps to protect and advance the rights of women and girls in Afghanistan;

(D) implementing the necessary policies and procedures to comply with section 7013 of this Act; and

(E) reducing corruption and recovering stolen assets.

(4) WAIVER.—The Secretary of State, after consultation with the Secretary of Defense, may waive the certification requirement of paragraph (3) if the Secretary of State determines that to do so is important to the national security interest of the United States and the Secretary submits a report to the Committees on Appropriations, in classified form if necessary, on the justification for the waiver and the reasons why any part of the certification requirement of paragraph (3) has not been met.

(5) RULE OF LAW PROGRAMS.—Of the funds appropriated by this Act that are available for assistance for Afghanistan, not less than $50,000,000 shall be made available for rule of law programs: *Provided*, That decisions regarding the uses of such funds shall be the responsibility of the Coordinating Director, in consultation with other appropriate United States Government officials in Afghanistan, and such Director shall be consulted on the uses of all funds appropriated by this Act for rule of law programs in Afghanistan.

(6) FUNDING REDUCTION.—Funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs that are available for assistance for the Government of Afghanistan shall be reduced by $5 for every $1 that the Government of Afghanistan imposes in taxes, duties, penalties, or other fees on the transport of property of the United States Government (including the United States Armed Forces), entering or leaving Afghanistan.

(7) ENDOWMENT TO EMPOWER WOMEN AND GIRLS.—Funds appropriated under the heading ''Economic Support Fund'' in this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs may be made available for an endowment to empower women and girls in Afghanistan, following consultation with the appropriate congressional committees.

(8) AUTHORITIES.—

(A) Funds appropriated under titles III through VI of this Act that are made available for assistance for Afghanistan may be made available—

(i) notwithstanding section 7012 of this Act or any similar provision of law and section 660 of the Foreign Assistance Act of 1961; and

(ii) for reconciliation programs and disarmament, demobilization, and reintegration activities for former combatants who have renounced violence against the Government of Afghanistan in accordance with section 7046(a)(2)(B)(ii) of Public Law 112–74.

(B) Section 7046(a)(2)(A) of division I of Public Law 112–74 shall apply to funds appropriated by this Act for assistance for Afghanistan.

(9) AFGHANISTAN REGIONAL TRANSITION.—Funds made available by this Act for assistance for Afghanistan may be made available for programs in Central and South Asia relating to a transition in Afghanistan, including expanding Afghanistan linkages within the region: *Provided*, That such funds shall be the responsibility of the Assistant Secretary for the Bureau of South and Central Asian Affairs, Department of State, and the coordinator designated pursuant to section 601 of the Support for Eastern European Democracy (SEED) Act of 1989 (Public Law 101–179) and section 102 of the FREEDOM Support Act (Public Law 102–511): *Provided further*, That such funds shall be subject to the regular notification procedures of the Committees on Appropriations.

(10) BASE RIGHTS.—None of the funds made available by this Act may be used by the United States Government to enter into a permanent basing rights agreement between the United States and Afghanistan.

(b) BANGLADESH.—Funds appropriated by this Act under the heading ''Development Assistance'' that are made available for assistance for Bangladesh shall be made available for programs to improve labor conditions by strengthening the capacity of independent workers' organizations in Bangladesh's readymade garment, shrimp, and fish export sectors.

(c) NEPAL.—

(1) Funds appropriated by this Act under the heading ''Foreign Military Financing Program'' may be made available for assistance for Nepal only if the Secretary of State certifies and reports to the Committees on Appropriations that the Government of Nepal is investigating and prosecuting violations of human rights and the laws of war, and the Nepal army is cooperating fully with civilian judicial authorities, including providing investigators access to witnesses, documents, and other information.

(2) The conditions in paragraph (1) shall not apply to assistance for humanitarian relief and reconstruction activities in Nepal, or for training to participate in international peacekeeping missions.

(d) PAKISTAN.—

(1) CERTIFICATION REQUIREMENT.—None of the funds appropriated or otherwise made available by this Act under the headings ''Economic Support Fund'', ''International Narcotics Control and Law Enforcement'', and ''Foreign Military Financing Program'' for assistance for the Government of Pakistan may be made available unless the Secretary of State certifies and reports to the Committees on Appropriations that the Government of Pakistan is—

(A) cooperating with the United States in counterterrorism efforts against the Haqqani Network, the Quetta Shura Taliban, Lashkar e-Tayyiba, Jaish-e-Mohammed, Al-Qaeda, and other domestic and foreign terrorist organizations, including taking steps to end support for such groups and prevent them from basing and operating in Pakistan and carrying out cross border attacks into neighboring countries;

(B) not supporting terrorist activities against United States or coalition forces in Afghanistan, and Pakistan's military and intelligence agencies are not intervening extra-judicially into political and judicial processes in Pakistan;

(C) dismantling improvised explosive device (IED) networks and interdicting precursor chemicals used in the manufacture of IEDs;

(D) preventing the proliferation of nuclear-related material and expertise;

(E) issuing visas in a timely manner for United States visitors engaged in counterterrorism efforts and assistance programs in Pakistan; and

(F) providing humanitarian organizations access to detainees, internally displaced persons, and other Pakistani civilians affected by the conflict.

(2) WAIVER.—The Secretary of State, after consultation with the Secretary of Defense, may waive the certification requirement of paragraph (1) if the Secretary of State determines that to do so is important to the national security interest of the United States and the Secretary submits a report to the Committees on Appropriations, in classified form if necessary, on the justification for the waiver and the reasons why any part of the certification requirement of paragraph (1) has not been met.

(3) ASSISTANCE.—

(A) Funds appropriated by this Act under the heading ''Foreign Military Financing Program'' for assistance for Pakistan may be made available only to support counterterrorism and counterinsurgency capabilities in Pakistan, and are subject to section 620M of the Foreign Assistance Act of 1961.

(B) Funds appropriated by this Act under the headings ''Economic Support Fund'' and ''Nonproliferation, Anti-terrorism, Demining and Related Programs'' that are available for assistance for Pakistan shall be made available to interdict precursor materials from Pakistan to Afghanistan that are used to manufacture IEDs, including calcium ammonium nitrate; to support programs to train border and customs officials in Pakistan and Afghanistan; and for agricultural extension programs that encourage alternative fertilizer use among Pakistani farmers.

(C) Funds appropriated by this Act under the heading ''Economic Support Fund'' that are made available for assistance for infrastructure projects in Pakistan shall be implemented in a manner consistent with section 507(6) of the Trade Act of 1974 (19 U.S.C. 2467(6)).

(D) Funds appropriated by this Act under titles III and IV for assistance for Pakistan may be made available notwithstanding any other provision of law, except for this subsection.

(E) Of the funds appropriated under titles III and IV of this Act that are made available for assistance for Pakistan, $33,000,000 shall be withheld from obligation until the Secretary of State reports to the Committees on Appropriations that Dr. Shakil Afridi has been released from prison and cleared of all charges relating to the assistance provided to the United States in locating Osama bin Laden.

(4) SCHOLARSHIPS FOR WOMEN.—

(A) Funds appropriated by this Act under the heading ''Economic Support Fund'' that are made available for assistance for Pakistan shall be made available to increase the number of scholarships for women under the Merit and Needs-Based Scholarship Program during fiscal year 2015.

(B) The additional scholarships available pursuant to this subsection shall be awarded in accordance with other scholarship eligibility criteria already established by USAID.

(C) Additional scholarships funded pursuant to this subsection shall be awarded for a range of disciplines to improve the employability of graduates and to meet the needs of scholarship recipients.

(D) Not less than 50 percent of the scholarships available under such Program should be awarded to Pakistani women.

(5) REPORTS.—

(A)(i) The spend plan required by section 7076 of this Act for assistance for Pakistan shall include achievable and sustainable goals, benchmarks for measuring progress, and expected results regarding combating poverty and furthering development in Pakistan, countering extremism, and establishing conditions conducive to the rule of law and transparent and accountable governance: *Provided*, That such benchmarks may incorporate those required in title III of Public Law 111–73, as appropriate: *Provided further*, That not later than 6 months after submission of such spend plan, and each 6 months thereafter until September 30, 2016, the Secretary of State shall submit a report to the Committees on Appropriations on the status of achieving the goals and benchmarks in such plan.

(ii) The Secretary of State should suspend assistance for the Government of Pakistan if any report required by paragraph (A)(i) indicates that Pakistan is failing to make measurable progress in meeting such goals or benchmarks.

(B) Not later than 90 days after enactment of this Act, the Secretary of State shall submit a report to the Committees on Appropriations detailing the costs and objectives associated with significant infrastructure projects supported by the United States in Pakistan, and an assessment of the extent to which such projects achieve such objectives.

(e) SRI LANKA.—

(1) None of the funds appropriated by this Act under the heading ''Foreign Military Financing Program'' may be made available for assistance for Sri Lanka, no defense export license may be issued, and no military equipment or technology shall be sold or transferred to Sri Lanka pursuant to the authorities contained in this Act or any other Act, unless the Secretary of State certifies and reports to the Committees on Appropriations that the Government of Sri Lanka is meeting the conditions under this subsection in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(2) Paragraph (1) shall not apply to assistance for humanitarian demining, disaster relief, and aerial and maritime surveillance.

(3) If the Secretary makes the certification required in paragraph (1), funds appropriated under the heading ''Foreign Military Financing Program'' that are made available for assistance for Sri Lanka should be used to support the recruitment of Tamils into the Sri Lankan military in an inclusive and transparent manner, Tamil language training for Sinhalese military personnel, and human rights training for all military personnel.

(4) Funds appropriated under the heading ''International Military Education and Training'' (IMET) in this Act that are available for assistance for Sri Lanka, may be made available only for training related to international peacekeeping operations and expanded IMET: *Provided*, That the limitation in this paragraph shall not apply to maritime security.

(5) The Secretary of the Treasury shall instruct the United States executive directors of the international financial institutions to vote against any loan, agreement, or other financial support for Sri Lanka except to meet basic human needs, unless the Secretary of State makes the certification to the Committees on Appropriations required in paragraph (1).

(f) REGIONAL PROGRAMS.—

(1) Funds appropriated by this Act under the heading ''Economic Support Fund'' for assistance for Afghanistan and Pakistan may be provided, notwithstanding any other provision of law that restricts assistance to foreign countries, for cross border stabilization and development programs between Afghanistan and Pakistan, or between either country and the Central Asian countries.

(2) Funds appropriated by this Act under the heading ''International Narcotics Control and Law Enforcement'' that are available for assistance for countries in South and Central Asia should be made available to enhance the recruitment, retention, and professionalism of women in police and other security forces.

WESTERN HEMISPHERE

SEC. 7045. (a) CENTRAL AMERICAN MIGRATION PREVENTION AND RESPONSE.—

(1) STRATEGY.—Not later than 90 days after enactment of this Act, the Secretary of State, in consultation with the Administrator of the United States Agency for International Development (USAID), and after consultation with the heads of other relevant Federal agencies and the Committees on Appropriations, shall submit to such Committees a strategy to address the key factors in the countries in Central America contributing to the migration of unaccompanied, undocumented minors to the United States: *Provided*, That such strategy shall include a clear mission statement, achievable goals and objectives, benchmarks, timelines, and a spend plan: *Provided further*, That funds appropriated under titles III and IV of this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs shall be made available to implement such strategy, subject to the regular notification procedures of the Committees on Appropriations.

(2) BORDER SECURITY.—The strategy required by paragraph (1) shall address the need for greater border security for the countries in Central America and for Mexico, particularly the southern border of Mexico: *Provided*, That funds shall be made available by this Act to assist such countries to improve border security.

(3) ECONOMIC AND SOCIAL DEVELOPMENT.—The strategy required by paragraph (1) shall include economic and social development programs, with a focus on communities that are major contributors of unaccompanied migrants and where there is significant gang activity.

(4) JUDICIAL AND LAW ENFORCEMENT REFORM.—The strategy required by paragraph (1) shall include judicial and police reform and capacity building programs, with a focus on strengthening judicial independence and community policing.

(5) TRAFFICKING IN PERSONS.—The strategy required by paragraph (1) shall include activities to combat human trafficking in Central America, including through the use of forensic technology: *Provided*, That funds in this Act shall be made available to support a multi-faceted approach to combat human trafficking in Guatemala.

(6) REPATRIATION AND REINTEGRATION.—The strategy required by paragraph (1) shall address the need for the safe repatriation and reintegration of minors into families or family-like settings: *Provided*, That funds shall be made available to support repatriation facilities for the processing of undocumented migrants returning from the United States.

(7) Not later than 60 days after submission of the strategy required by paragraph (1), and every 120 days thereafter until September 30, 2016, the Secretary of State, in consultation with the USAID Administrator, shall submit a report to the Committees on Appropriations on progress toward achieving the goals and objectives contained in such strategy and an updated spend plan, as appropriate: *Provided*, That such report shall specify the amount of funds obligated and expended pursuant to this section by country and the steps taken by the government of each country to—

(A) improve border security;

(B) enforce laws and policies to reduce the flow of illegal migrants to the United States, including to increase penalties for human smuggling;

(C) conduct public outreach campaigns to explain the dangers of the journey to the

southwest border of the United States, and to inform potential migrants of relevant United States immigration laws; and

(D) cooperate with United States Federal agencies to facilitate and expedite the return, repatriation, and reintegration of illegal migrants arriving at the southwest border of the United States.

(8) SUSPENSION OF ASSISTANCE.—The Secretary of State shall suspend further obligation of funds provided pursuant to this subsection for assistance for the government of a country if the Secretary determines and reports to the appropriate congressional committees that such government is not taking the steps specified in subparagraphs (A) through (D) of paragraph (7).

(b) COLOMBIA.—

(1) Funds appropriated by this Act and made available to the Department of State for assistance for the Government of Colombia may be used to support a unified campaign against narcotics trafficking, organizations designated as Foreign Terrorist Organizations, and other criminal or illegal armed groups, and to take actions to protect human health and welfare in emergency circumstances, including undertaking rescue operations: *Provided*, That the first through fifth provisos of paragraph (1), and paragraph (3) of section 7045(a) of division I of Public Law 112–74 shall continue in effect during fiscal year 2015 and shall apply to funds appropriated by this Act and made available for assistance for Colombia as if included in this Act: *Provided further*, That 10 percent of the funds appropriated by this Act for the Colombian national police for aerial drug eradication programs may not be used for the aerial spraying of chemical herbicides unless the Secretary of State certifies to the Committees on Appropriations that the herbicides do not pose unreasonable risks or adverse effects to humans, including pregnant women and children, or the environment, including endemic species: *Provided further*, That any complaints of harm to health or licit crops caused by such aerial spraying shall be thoroughly investigated and evaluated, and fair compensation paid in a timely manner for meritorious claims: *Provided further*, That of the funds appropriated by this Act under the heading ''Economic Support Fund'', not less than $133,000,000 shall be apportioned directly to USAID for alternative development/institution building, local governance programs, and support for victims of the violence in Colombia.

(2) LIMITATION.—Of the funds appropriated by this Act under the heading ''Foreign Military Financing Program'' that are available for assistance for Colombia, 25 percent may be obligated only in accordance with the conditions under section 7045 in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(c) CUBA.—Funds appropriated by this Act under the heading ''Economic Support Fund'' should be made available for programs in Cuba.

(d) GUATEMALA.—Funds appropriated by this Act may be made available for assistance for the Guatemalan army only in accordance with the conditions under section 7045 in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(e) HAITI.—

(1) None of the funds appropriated by this Act may be made available for assistance for the central Government of Haiti until the Secretary of State certifies and reports to the Committees on Appropriations that the Government of Haiti—

(A) is taking steps to hold free and fair parliamentary elections and to seat a new Haitian Parliament;

(B) is selecting judges in a transparent manner and respecting the independence of the judiciary;

(C) is combating corruption, including implementing the anti-corruption law by prosecuting corrupt officials; and

(D) is improving governance and implementing financial transparency and accountability requirements for government institutions.

(2) The Government of Haiti shall be eligible to purchase defense articles and services under the Arms Export Control Act (22 U.S.C. 2751 et seq.) for the Coast Guard.

(f) HONDURAS.—

(1) Of the funds appropriated by this Act under the headings ''International Narcotics Control and Law Enforcement'' and ''Foreign Military Financing Program'' that are available for assistance for the Honduran army and police, 25 percent may be obligated only in accordance with the conditions under section 7045 in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(2) The restriction in paragraph (1) shall not apply to assistance to promote transparency, anti-corruption, border and maritime security, respect for the rule of law within the army and police, and to combat human trafficking.

(g) MEXICO.—

(1) Prior to the obligation of 15 percent of the funds appropriated by this Act under the headings ''International Narcotics Control and Law Enforcement'' and ''Foreign Military Financing Program'' that are available for assistance for the Mexican army and police, the Secretary of State shall report in writing to the Committees on Appropriations that the Government of Mexico is meeting the conditions under section 7045 in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(2) The restriction in paragraph (1) shall not apply to assistance to promote transparency, anti-corruption, border and maritime security, and respect for the rule of law within the army and police.

(3) Not later than 45 days after the enactment of this Act, the Secretary of State, in consultation with the Commissioner for the United States Section of the International Boundary and Water Commission (IBWC), shall report to the Committees on Appropriations on the efforts to work with the Mexico Section of the IBWC and the Government of Mexico to establish mechanisms to improve the transparency of data on, and predictability of, the water deliveries from Mexico to the United States to meet annual water apportionments to the Rio Grande, in accordance with the 1944 Treaty between the United States and Mexico Respecting Utilization of Waters of the Colorado and Tijuana Rivers and of the Rio Grande, and on actions taken to minimize or eliminate the water deficits owed to the United States in the current 5-year cycle by the end of such cycle: *Provided*, That such report shall include a projection of the balance of the water delivery deficit at the end of the current 5-year cycle, as well as the estimated impact to the United States of a negative delivery balance.

(h) AIRCRAFT OPERATIONS AND MAINTENANCE.—To the maximum extent practicable, the costs of operations and maintenance, including fuel, of aircraft funded by this Act should be borne by the recipient country.

(i) TRADE CAPACITY.—Funds appropriated by this Act under the headings ''Development Assistance'' and ''Economic Support Fund'' should be made available for labor and environmental capacity building activities relating to free trade agreements with countries of Central America, Colombia, Peru, and the Dominican Republic.

PROHIBITION OF PAYMENTS TO UNITED NATIONS MEMBERS

SEC. 7046. None of the funds appropriated or made available pursuant to titles III through VI of this Act for carrying out the Foreign Assistance Act of 1961, may be used to pay in whole or in part any assessments, arrearages, or dues of any member of the United Nations or, from funds appropriated by this Act to carry out chapter 1 of part I of the Foreign Assistance Act of 1961, the costs for participation of another country's delegation at international conferences held under the auspices of multilateral or international organizations.

WAR CRIMES TRIBUNALS

SEC. 7047. If the President determines that doing so will contribute to a just resolution of charges regarding genocide or other violations of international humanitarian law, the President may direct a drawdown pursuant to section 552(c) of the Foreign Assistance Act of 1961 of up to $30,000,000 of commodities and services for the United Nations War Crimes Tribunal established with regard to the former Yugoslavia by the United Nations Security Council or such other tribunals or commissions as the Council may establish or authorize to deal with such violations, without regard to the ceiling limitation contained in paragraph (2) thereof: *Provided*, That the determination required under this section shall be in lieu of any determinations otherwise required under section 552(c): *Provided further*, That funds made available pursuant to this section shall be made available subject to the regular notification procedures of the Committees on Appropriations.

UNITED NATIONS

SEC. 7048. (a) TRANSPARENCY AND ACCOUNTABILITY.—Of the funds appropriated under title I and under the heading ''International Organizations and Programs'' in title V of this Act that are available for contributions to the United Nations (including the Department of Peacekeeping Operations), any United Nations agency, or the Organization of American States, 15 percent may not be obligated for such organization, department, or agency until the Secretary of State reports to the Committees on Appropriations that the organization, department, or agency is—

(1) posting on a publicly available Web site, consistent with privacy regulations and due process, regular financial and programmatic audits of such organization, department, or agency, and providing the United States Government with necessary access to such financial and performance audits; and

(2) effectively implementing and enforcing policies and procedures which reflect best practices as defined in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act) for the protection of whistleblowers from retaliation, including best practices for—

(A) protection against retaliation for internal and lawful public disclosures;

(B) legal burdens of proof;

(C) statutes of limitation for reporting retaliation;

(D) access to independent adjudicative bodies, including external arbitration; and

(E) results that eliminate the effects of proven retaliation.

(b) RESTRICTIONS ON UNITED NATIONS DELEGATIONS AND ORGANIZATIONS.—

(1) None of the funds made available under title I of this Act may be used to pay expenses for any United States delegation to any specialized agency, body, or commission of the United Nations if such agency, body, or commission is chaired or presided over by

a country, the government of which the Secretary of State has determined, for purposes of section 6(j)(1) of the Export Administration Act of 1979 as continued in effect pursuant to the International Emergency Economic Powers Act (50 U.S.C. App. 2405(j)(1)), supports international terrorism.

(2) None of the funds made available under title I of this Act may be used by the Secretary of State as a contribution to any organization, agency, commission, or program within the United Nations system if such organization, agency, commission, or program is chaired or presided over by a country the government of which the Secretary of State has determined, for purposes of section 620A of the Foreign Assistance Act of 1961, section 40 of the Arms Export Control Act, section 6(j)(1) of the Export Administration Act of 1979, or any other provision of law, is a government that has repeatedly provided support for acts of international terrorism.

(3) The Secretary of State may waive the restriction in this subsection if the Secretary reports to the Committees on Appropriations that to do so is in the national interest of the United States.

(c) UNITED NATIONS HUMAN RIGHTS COUNCIL.—Funds appropriated by this Act may be made available to support the United Nations Human Rights Council only if the Secretary of State reports to the Committees on Appropriations that participation in the Council is in the national interest of the United States: *Provided*, That the Secretary of State shall report to the Committees on Appropriations not later than September 30, 2015, on the resolutions considered in the United Nations Human Rights Council during the previous 12 months, and on steps taken to remove Israel as a permanent agenda item.

(d) UNITED NATIONS RELIEF AND WORKS AGENCY.—The Secretary of State shall submit a report in writing to the Committees on Appropriations not less than 45 days after enactment of this Act on whether the United Nations Relief and Works Agency is—

(1) utilizing Operations Support Officers in the West Bank, Gaza, and other fields of operation to inspect UNRWA installations and reporting any inappropriate use;

(2) acting promptly to address any staff or beneficiary violation of its own policies (including the policies on neutrality and impartiality of employees) and the legal requirements under section 301(c) of the Foreign Assistance Act of 1961;

(3) implementing procedures to maintain the neutrality of its facilities, including implementing a no-weapons policy, and conducting regular inspections of its installations, to ensure they are only used for humanitarian or other appropriate purposes;

(4) taking necessary and appropriate measures to ensure it is operating in compliance with the conditions of section 301(c) of the Foreign Assistance Act of 1961 and continuing regular reporting to the Department of State on actions it has taken to ensure conformance with such conditions;

(5) taking steps to ensure the content of all educational materials currently taught in UNRWA-administered schools and summer camps is consistent with the values of human rights, dignity, and tolerance and does not induce incitement;

(6) not engaging in operations with financial institutions or related entities in violation of relevant United States law, and is taking steps to improve the financial transparency of the organization; and

(7) in compliance with the United Nations Board of Auditors' biennial audit requirements and is implementing in a timely fashion the Board's recommendations.

(e) UNITED NATIONS CAPITAL MASTER PLAN.—None of the funds made available in this Act may be used for the design, renovation, or construction of the United Nations Headquarters in New York.

(f) WAIVER.—The restrictions imposed by or pursuant to subsection (a) may be waived on a case-by-case basis by the Secretary of State if the Secretary determines and reports to the Committees on Appropriations that such waiver is necessary to avert or respond to a humanitarian crisis.

(g) REPORT.—Not later than 45 days after enactment of this Act, the Secretary of State shall submit a report to the Committees on Appropriations detailing the amount of funds available for obligation or expenditure in fiscal year 2015 for contributions to any organization, department, agency, or program within the United Nations system or any international program that are withheld from obligation or expenditure due to any provision of law: *Provided*, That the Secretary of State shall update such report each time additional funds are withheld by operation of any provision of law: *Provided further*, That the reprogramming of any withheld funds identified in such report, including updates thereof, shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

COMMUNITY-BASED POLICE ASSISTANCE

SEC. 7049. (a) AUTHORITY.—Funds made available by titles III and IV of this Act to carry out the provisions of chapter 1 of part I and chapters 4 and 6 of part II of the Foreign Assistance Act of 1961, may be used, notwithstanding section 660 of that Act, to enhance the effectiveness and accountability of civilian police authority through training and technical assistance in human rights, the rule of law, anti-corruption, strategic planning, and through assistance to foster civilian police roles that support democratic governance, including assistance for programs to prevent conflict, respond to disasters, address gender-based violence, and foster improved police relations with the communities they serve.

(b) NOTIFICATION.—Assistance provided under subsection (a) shall be subject to the regular notification procedures of the Committees on Appropriations.

PROHIBITION ON PROMOTION OF TOBACCO

SEC. 7050. None of the funds provided by this Act shall be available to promote the sale or export of tobacco or tobacco products, or to seek the reduction or removal by any foreign country of restrictions on the marketing of tobacco or tobacco products, except for restrictions which are not applied equally to all tobacco or tobacco products of the same type.

INTERNATIONAL CONFERENCES

SEC. 7051. None of the funds made available in this Act may be used to send or otherwise pay for the attendance of more than 50 employees of agencies or departments of the United States Government who are stationed in the United States, at any single international conference occurring outside the United States, unless the Secretary of State reports to the Committees on Appropriations at least 5 days in advance that such attendance is important to the national interest: *Provided*, That for purposes of this section the term ''international conference'' shall mean a conference attended by representatives of the United States Government and of foreign governments, international organizations, or nongovernmental organizations.

AIRCRAFT TRANSFER AND COORDINATION

SEC. 7052. (a) TRANSFER AUTHORITY.—Notwithstanding any other provision of law or regulation, aircraft procured with funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs under the headings ''Diplomatic and Consular Programs'', ''International Narcotics Control and Law Enforcement'', ''Andean Counterdrug Initiative'', and ''Andean Counterdrug Programs'' may be used for any other program and in any region, including for the transportation of active and standby Civilian Response Corps personnel and equipment during a deployment: *Provided*, That the responsibility for policy decisions and justification for the use of such transfer authority shall be the responsibility of the Secretary of State and the Deputy Secretary of State and this responsibility shall not be delegated.

(b) PROPERTY DISPOSAL.—The authority provided in subsection (a) shall apply only after the Secretary of State determines and reports to the Committees on Appropriations that the equipment is no longer required to meet programmatic purposes in the designated country or region: *Provided*, That any such transfer shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

(c) AIRCRAFT COORDINATION.—

(1) The uses of aircraft purchased or leased by the Department of State and the United States Agency for International Development (USAID) with funds made available in this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs shall be coordinated under the authority of the appropriate Chief of Mission: *Provided*, That such aircraft may be used to transport, on a reimbursable or non-reimbursable basis, Federal and non-Federal personnel supporting Department of State and USAID programs and activities: *Provided further*, That official travel for other agencies for other purposes may be supported on a reimbursable basis, or without reimbursement when traveling on a space available basis: *Provided further*, That funds received by the Department of State for the use of aircraft owned, leased, or chartered by the Department of State may be credited to the Department's Working Capital Fund and shall be available for expenses related to the purchase, lease, maintenance, chartering, or operation of such aircraft.

(2) The requirement and authorities of this subsection shall only apply to aircraft, the primary purpose of which is the transportation of personnel.

PARKING FINES AND REAL PROPERTY TAXES OWED BY FOREIGN GOVERNMENTS

SEC. 7053. The terms and conditions of section 7055 of division F of Public Law 111–117 shall apply to this Act: *Provided*, That the date ''September 30, 2009'' in subsection (f)(2)(B) shall be deemed to be ''September 30, 2014''.

LANDMINES AND CLUSTER MUNITIONS

SEC. 7054. (a) LANDMINES.—Notwithstanding any other provision of law, demining equipment available to the United States Agency for International Development and the Department of State and used in support of the clearance of landmines and unexploded ordnance for humanitarian purposes may be disposed of on a grant basis in foreign countries, subject to such terms and conditions as the Secretary of State may prescribe.

(b) CLUSTER MUNITIONS.—No military assistance shall be furnished for cluster munitions, no defense export license for cluster munitions may be issued, and no cluster munitions or cluster munitions technology shall be sold or transferred, unless—

(1) the submunitions of the cluster munitions, after arming, do not result in more than 1 percent unexploded ordnance across

the range of intended operational environments, and the agreement applicable to the assistance, transfer, or sale of such cluster munitions or cluster munitions technology specifies that the cluster munitions will only be used against clearly defined military targets and will not be used where civilians are known to be present or in areas normally inhabited by civilians; or

(2) such assistance, license, sale, or transfer is for the purpose of demilitarizing or permanently disposing of such cluster munitions.

PROHIBITION ON PUBLICITY OR PROPAGANDA

SEC. 7055. No part of any appropriation contained in this Act shall be used for publicity or propaganda purposes within the United States not authorized before the date of the enactment of this Act by the Congress: *Provided*, That not to exceed $25,000 may be made available to carry out the provisions of section 316 of Public Law 96–533.

LIMITATION ON RESIDENCE EXPENSES

SEC. 7056. Of the funds appropriated or made available pursuant to title II of this Act, not to exceed $100,500 shall be for official residence expenses of the United States Agency for International Development during the current fiscal year.

UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT MANAGEMENT

(INCLUDING TRANSFER OF FUNDS)

SEC. 7057. (a) AUTHORITY.—Up to $93,000,000 of the funds made available in title III of this Act pursuant to or to carry out the provisions of part I of the Foreign Assistance Act of 1961 may be used by the United States Agency for International Development (USAID) to hire and employ individuals in the United States and overseas on a limited appointment basis pursuant to the authority of sections 308 and 309 of the Foreign Service Act of 1980.

(b) RESTRICTIONS.—

(1) The number of individuals hired in any fiscal year pursuant to the authority contained in subsection (a) may not exceed 175.

(2) The authority to hire individuals contained in subsection (a) shall expire on September 30, 2016.

(c) CONDITIONS.—The authority of subsection (a) should only be used to the extent that an equivalent number of positions that are filled by personal services contractors or other non-direct hire employees of USAID, who are compensated with funds appropriated to carry out part I of the Foreign Assistance Act of 1961, are eliminated.

(d) PROGRAM ACCOUNT CHARGED.—The account charged for the cost of an individual hired and employed under the authority of this section shall be the account to which such individual's responsibilities primarily relate: *Provided*, That funds made available to carry out this section may be transferred to, and merged with, funds appropriated by this Act in title II under the heading ''Operating Expenses''.

(e) FOREIGN SERVICE LIMITED EXTENSIONS.—Individuals hired and employed by USAID, with funds made available in this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs, pursuant to the authority of section 309 of the Foreign Service Act of 1980, may be extended for a period of up to 4 years notwithstanding the limitation set forth in such section.

(f) DISASTER SURGE CAPACITY.—Funds appropriated under title III of this Act to carry out part I of the Foreign Assistance Act of 1961 may be used, in addition to funds otherwise available for such purposes, for the cost (including the support costs) of individuals detailed to or employed by USAID whose primary responsibility is to carry out programs in response to natural disasters, or manmade disasters subject to the regular notification procedures of the Committees on Appropriations.

(g) PERSONAL SERVICES CONTRACTORS.—Funds appropriated by this Act to carry out chapter 1 of part I, chapter 4 of part II, and section 667 of the Foreign Assistance Act of 1961, and title II of the Food for Peace Act (Public Law 83–480), may be used by USAID to employ up to 40 personal services contractors in the United States, notwithstanding any other provision of law, for the purpose of providing direct, interim support for new or expanded overseas programs and activities managed by the agency until permanent direct hire personnel are hired and trained: *Provided*, That not more than 15 of such contractors shall be assigned to any bureau or office: *Provided further*, That such funds appropriated to carry out title II of the Food for Peace Act (Public Law 83–480), may be made available only for personal services contractors assigned to the Office of Food for Peace.

(h) SMALL BUSINESS.—In entering into multiple award indefinite-quantity contracts with funds appropriated by this Act, USAID may provide an exception to the fair opportunity process for placing task orders under such contracts when the order is placed with any category of small or small disadvantaged business.

(i) SENIOR FOREIGN SERVICE LIMITED APPOINTMENTS.—Individuals hired pursuant to the authority provided by section 7059(o) of division F of Public Law 111–117 may be assigned to or support programs in Afghanistan or Pakistan with funds made available in this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs.

(j) LOCAL SUSTAINABLE DEVELOPMENT.—Not later than 180 days after enactment of this Act and after consultation with the appropriate congressional committees, the USAID Administrator shall submit to such committees a plan, including a timeline and resources required by fiscal year, to incorporate the following components into USAID Foreign Service training, assignment, and promotion practices in order to enable all Foreign Service Officers to effectively apply local sustainable development principles to USAID assistance programs:

(1) a time period for overseas assignments that facilitates sustainable development, and which includes the option of extending such assignments;

(2) sufficient foreign language training;

(3) expertise in one or more program areas;

(4) work objectives that give Foreign Service Officers primary responsibility for developing relationships with, and building the capacity of, local nongovernmental and governmental entities, and supporting grants to and cooperative agreements with such entities to design and implement small-scale, sustainable programs, projects, and activities across all development sectors;

(5) incentives, including training, compensation, and career development opportunities including promotions, to encourage such officers to carry out their responsibilities; and

(6) procedures to ensure that the responsibilities and assignments of relevant locally employed staff are fully integrated with the work of such officers.

GLOBAL HEALTH ACTIVITIES

SEC. 7058. (a) IN GENERAL.—Funds appropriated by titles III and IV of this Act that are made available for bilateral assistance for child survival activities or disease programs including activities relating to research on, and the prevention, treatment and control of, HIV/AIDS may be made available notwithstanding any other provision of law except for provisions under the heading ''Global Health Programs'' and the United States Leadership Against HIV/AIDS, Tuberculosis, and Malaria Act of 2003 (117 Stat. 711; 22 U.S.C. 7601 et seq.), as amended: *Provided*, That of the funds appropriated under title III of this Act, not less than $575,000,000 should be made available for family planning/reproductive health, including in areas where population growth threatens biodiversity or endangered species.

(b) GLOBAL FUND.—

(1) Of the funds appropriated by this Act that are available for a contribution to the Global Fund to Fight AIDS, Tuberculosis and Malaria (Global Fund), 10 percent should be withheld from obligation until the Secretary of State determines and reports to the Committees on Appropriations that—

(A) the Global Fund is maintaining and implementing a policy of transparency, including the authority of the Global Fund Office of the Inspector General (OIG) to publish OIG reports on a public Web site;

(B) the Global Fund is providing sufficient resources to maintain an independent OIG that—

(i) reports directly to the Board of the Global Fund;

(ii) maintains a mandate to conduct thorough investigations and programmatic audits, free from undue interference; and

(iii) compiles regular, publicly published audits and investigations of financial, programmatic, and reporting aspects of the Global Fund, its grantees, recipients, sub-recipients, and Local Fund Agents;

(C) the Global Fund maintains an effective whistleblower policy to protect whistleblowers from retaliation, including confidential procedures for reporting possible misconduct or irregularities; and

(D) the Global Fund is implementing the recommendations contained in the Consolidated Transformation Plan approved by the Board of the Global Fund on November 21, 2011.

(2) The withholding required by this subsection shall not be in addition to funds that are withheld from the Global Fund in fiscal year 2015 pursuant to the application of any other provision contained in this or any other Act.

(c) CONTAGIOUS INFECTIOUS DISEASE OUTBREAKS.—If the Secretary of State determines and reports to the Committees on Appropriations that an international infectious disease outbreak is sustained, severe, and is spreading internationally, or that it is in the national interest to respond to a Public Health Emergency of International Concern, funds made available under title III of this Act may be made available to combat such infectious disease or public health emergency: *Provided*, That funds made available pursuant to the authority of this subsection shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

GENDER EQUALITY

SEC. 7059. (a) GENDER EQUALITY.—Funds appropriated by this Act shall be made available to promote gender equality in United States Government diplomatic and development efforts by raising the status, increasing the participation, and protecting the rights of women and girls worldwide.

(b) WOMEN'S LEADERSHIP.—Of the funds appropriated by title III of this Act, not less than $50,000,000 shall be made available to increase leadership opportunities for women in countries where women and girls suffer discrimination due to law, policy, or practice, by strengthening protections for women's political status, expanding women's participation in political parties and elections, and

increasing women's opportunities for leadership positions in the public and private sectors at the local, provincial, and national levels.

(c) GENDER-BASED VIOLENCE.—

(1)(A) Of the funds appropriated by titles III and IV of this Act, not less than $150,000,000 shall be made available to implement a multi-year strategy to prevent and respond to gender-based violence in countries where it is common in conflict and nonconflict settings.

(B) Funds appropriated by titles III and IV of this Act that are available to train foreign police, judicial, and military personnel, including for international peacekeeping operations, shall address, where appropriate, prevention and response to gender-based violence and trafficking in persons, and shall promote the integration of women into the police and other security forces.

(2) Department of State and United States Agency for International Development gender programs shall incorporate coordinated efforts to combat a variety of forms of gender-based violence, including child marriage, rape, female genital cutting and mutilation, and domestic violence, among other forms of gender-based violence in conflict and nonconflict settings.

(d) WOMEN, PEACE, AND SECURITY.—Funds appropriated by this Act under the headings ''Development Assistance'', ''Economic Support Fund'', and ''International Narcotics Control and Law Enforcement'' should be made available to support a multi-year strategy to expand, and improve coordination of, United States Government efforts to empower women as equal partners in conflict prevention, peace building, transitional processes, and reconstruction efforts in countries affected by conflict or in political transition, and to ensure the equitable provision of relief and recovery assistance to women and girls.

SECTOR ALLOCATIONS

SEC. 7060. (a) EDUCATION.—

(1) BASIC EDUCATION.—

(A) Of the funds appropriated under title III of this Act, not less than $800,000,000 should be made available for assistance for basic education, and such funds may be made available notwithstanding any provision of law that restricts assistance to foreign countries, except for the conditions provided in this subsection: *Provided*, That not later than 60 days after enactment of this Act, the Administrator of the United States Agency for International Development (USAID) shall report to the Committees on Appropriations on the status of cumulative unobligated balances and obligated, but unexpended, balances in each country where USAID provides basic education assistance and such report shall also include details on the types of contracts and grants provided and the goals and objectives of such assistance: *Provided further*, That the Administrator shall update such report on a monthly basis thereafter until the unobligated and unexpended balances for such assistance are less than the amount made available by this paragraph for basic education assistance: *Provided further*, That the initial report shall also include a detailed plan, timeline, and the current status of assistance for basic education.

(B) USAID shall ensure that programs supported with funds appropriated for basic education in this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs are integrated, as appropriate, with health, agriculture, governance, and economic and social development activities to address the broader needs of target populations: *Provided*, That USAID shall work to achieve quality universal basic education by—

(i) assisting foreign governments, nongovernmental, and multilateral organizations working in developing countries to provide children with a quality basic education, including through strengthening host country educational systems; and

(ii) promoting basic education as the foundation for comprehensive community development programs.

(C) Of the funds appropriated by this Act under title III for basic education, not less than $45,000,000 shall be made available for a contribution to multilateral partnerships that support education.

(2) HIGHER EDUCATION.—Of the funds appropriated by title III of this Act, not less than $225,000,000 shall be made available for assistance for higher education, of which not less than $35,000,000 shall be to support such programs in Africa, including $17,500,000 for human and institutional capacity development partnerships between higher education institutions in Africa and the United States.

(3) DEFINITION.—For purposes of funds appropriated under title III of this Act, the term ''democracy programs'' in section 7032(c) of this Act shall also include programs to rescue scholars, and fellowships, scholarships, and exchanges in the Middle East and North Africa for academic professionals and university students from countries in such region, subject to the regular notification procedures of the Committees on Appropriations.

(b) COUNTERING VIOLENT EXTREMISM.—Funds appropriated by titles I, III, and IV of this Act may be made available for programs to reduce support for foreign terrorist organizations (FTOs), as designated pursuant to section 219 of the Immigration and Nationality Act, through messaging campaigns to damage their appeal; programs for potential supporters of violent extremism; counter radicalization and rehabilitation programs in prisons; job training and social reintegration for former supporters of FTOs; law enforcement training programs; and capacity building for civil society organizations to combat radicalization in local communities: *Provided*, That for purposes of this subsection the term ''countering violent extremism'' shall be defined as non-coercive interventions aimed directly at reducing public support for FTOs: *Provided further*, That not later than 180 days after enactment of this Act, the Secretary of State, in consultation with the heads of other relevant United States Government agencies, shall submit to the appropriate congressional committees a multi-year strategy to counter violent extremism, including a description of the objectives of such strategy, oversight mechanisms for programs to carry out such strategy, and multi-year cost estimates.

(c) ENVIRONMENT PROGRAMS.—

(1) IN GENERAL.—Of the funds appropriated by this Act, not less than $1,153,500,000 should be made available for environment programs.

(2) CLEAN ENERGY.—The limitation in section 7081(b) of division F of Public Law 111–117 shall continue in effect during fiscal year 2015 as if part of this Act: *Provided*, That the proviso contained in such section shall not apply.

(3) ADAPTATION AND MITIGATION.—Funds appropriated by this Act may be made available for United States contributions to multilateral environmental funds and facilities to support adaptation and mitigation programs only in accordance with the directives under this subsection in the joint explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(4) SUSTAINABLE LANDSCAPES AND BIODIVERSITY.—Of the funds appropriated under title III of this Act, not less than $123,500,000 shall be made available for sustainable landscapes programs and, in addition, not less than $250,000,000 shall be made available to protect biodiversity, and shall not be used to support or promote the expansion of industrial scale logging or any other industrial scale extractive activity into areas that were primary/intact tropical forest as of December 30, 2013: *Provided*, That of the funds made available for the Central African Regional Program for the Environment and other tropical forest programs in the Congo Basin, not less than $17,500,000 shall be apportioned directly to the United States Fish and Wildlife Service (USFWS): *Provided further*, That funds made available for the Department of the Interior (DOI) for programs in the Mayan Biosphere Reserve shall be apportioned directly to the DOI: *Provided further*, That such funds shall be made available to support other international conservation programs of the USFWS, programs of the United States Forest Service, and programs to protect great apes and other endangered species.

(5) WILDLIFE POACHING AND TRAFFICKING.—

(A) Not less than $55,000,000 of the funds appropriated under titles III and IV of this Act shall be made available to combat the transnational threat of wildlife poaching and trafficking, including not less than $10,000,000 for programs to combat rhinoceros poaching.

(B) None of the funds appropriated under title IV of this Act may be made available for training or other assistance for any military unit or personnel that the Secretary of State determines has been credibly alleged to have participated in wildlife poaching or trafficking, unless the Secretary reports to the Committees on Appropriations that to do so is in the national security interest of the United States.

(6) AUTHORITY.—Funds appropriated by this Act to carry out the provisions of sections 103 through 106, and chapter 4 of part II, of the Foreign Assistance Act of 1961 may be used, notwithstanding any other provision of law except for the provisions of this subsection and subject to the regular notification procedures of the Committees on Appropriations, to support environment programs.

(7) EXTRACTION OF NATURAL RESOURCES.—

(A) Funds appropriated by this Act shall be made available to promote and support transparency and accountability of expenditures and revenues related to the extraction of natural resources, including by strengthening implementation and monitoring of the Extractive Industries Transparency Initiative, implementing and enforcing section 8204 of Public Law 110–246 and to prevent the sale of conflict diamonds, and provide technical assistance to promote independent audit mechanisms and support civil society participation in natural resource management.

(B)(i) The Secretary of the Treasury shall inform the management of the international financial institutions and post on the Department of the Treasury's Web site that it is the policy of the United States to vote against any assistance by such institutions (including but not limited to any loan, credit, grant, or guarantee) for the extraction and export of a natural resource if the government of the country has in place laws, regulations, or procedures to prevent or limit the public disclosure of company payments as required by section 1504 of Public Law 111–203, and unless such government has adopted laws, regulations, or procedures in the sector in which assistance is being considered for—

(I) accurately accounting for and public disclosure of payments to the host government by companies involved in the extraction and export of natural resources;

(II) the independent auditing of accounts receiving such payments and public disclosure of the findings of such audits; and

(III) public disclosure of such documents as Host Government Agreements, Concession Agreements, and bidding documents, allowing in any such dissemination or disclosure for the redaction of, or exceptions for, information that is commercially proprietary or that would create competitive disadvantage.

(ii) The requirements of clause (i) shall not apply to assistance for the purpose of building the capacity of such government to meet the requirements of this subparagraph.

(C) The Secretary of the Treasury or the Secretary of State, as appropriate, shall instruct the United States executive director of each international financial institution and the United States representatives to all forest-related multilateral financing mechanisms and processes to vote against any financing to support or promote the expansion of industrial scale logging or any other industrial scale extractive activity into areas that were primary/intact tropical forest as of December 30, 2013.

(D) The Secretary of the Treasury shall instruct the United States executive director of each international financial institution that it is the policy of the United States to vote in relation to any loan, grant, strategy, or policy of such institution to support the construction of any large dam, only in accordance with the conditions under this section in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(E)(i) Not later than 120 days after enactment of this Act, the USAID Administrator shall designate sufficient personnel with the technical expertise to fulfill the agency's responsibilities under sections 1302, 1303, and 1307 of title XIII of the International Financial Institutions Act of 1977, as amended, including the ability for personnel with such expertise from other relevant United States Government agencies to be detailed to USAID, as needed, which may be on a non-reimbursable basis, to provide additional technical support and specific subject matter reviews as part of USAID's Title XIII analytical, investigative, and reporting responsibilities: *Provided*, That the responsibilities of such personnel shall include, but not be limited to—

(I) conducting independent, technical, and thorough reviews of proposed multilateral development bank (MDB) projects at the technical assessment/feasibility stage prior to the drafting of environmental impact assessments;

(II) conducting reviews, and coordinating and compiling the analyses by other relevant United States Government agencies with technical expertise of environmental impact assessments in support of the project review process, to assist in fulfilling USAID's responsibilities under section 1303(c) of the International Financial Institutions Act, as amended; and

(III) ongoing monitoring of MDB projects reviewed pursuant to USAID's Title XIII reporting responsibilities to determine the degree of incorporation and effectiveness of United States Government recommendations and the adequacy of safeguard policies.

(ii) Not later than 45 days after enactment of this Act, the USAID Administrator shall consult with the Committees on Appropriations on the implementation of this subsection.

(8) TRANSFER OF FUNDS.—Not later than 120 days after enactment of this Act, the Secretary of State, after consultation with the Secretary of the Treasury, shall transfer $29,907,000 of funds appropriated under the heading ''Economic Support Fund'' to funds appropriated by this Act under the headings ''Multilateral Assistance, International Financial Institutions'' for additional payments to trust funds enumerated under such headings: *Provided*, That prior to exercising such transfer authority the Secretary of State shall consult with the Committees on Appropriations.

(9) CONTINUATION OF PRIOR LAW.—Section 7081(g)(2) and (4) of division F of Public Law 111–117 shall continue in effect during fiscal year 2015 as if part of this Act.

(d) FOOD SECURITY AND AGRICULTURAL DEVELOPMENT.—

(1) Of the funds appropriated by title III of this Act, not less than $1,000,600,000 should be made available for food security and agricultural development programs, of which $32,000,000 shall be made available for the Feed the Future Collaborative Research Innovation Lab: *Provided*, That such funds may be made available notwithstanding any other provision of law to address food shortages, and for a United States contribution to the endowment of the Global Crop Diversity Trust.

(2) Funds appropriated under title III of this Act may be made available as a contribution to the Global Agriculture and Food Security Program if such contribution will not cause the United States to exceed 33 percent of the total amount of funds contributed to such Program.

(e) MICROENTERPRISE AND MICROFINANCE.—Of the funds appropriated by this Act, not less than $265,000,000 should be made available for microenterprise and microfinance development programs for the poor, especially women.

(f) RECONCILIATION PROGRAMS.—Of the funds appropriated by this Act under the headings ''Economic Support Fund'' and ''Development Assistance'', not less than $26,000,000 shall be made available to support people-to-people reconciliation programs which bring together individuals of different ethnic, religious, and political backgrounds from areas of civil strife and war: *Provided*, That the USAID Administrator shall consult with the Committees on Appropriations, prior to the initial obligation of funds, on the uses of such funds: *Provided further*, That to the maximum extent practicable, such funds shall be matched by sources other than the United States Government.

(g) TRAFFICKING IN PERSONS.—Of the funds appropriated by this Act under the headings ''Development Assistance'', ''Economic Support Fund'', and ''International Narcotics Control and Law Enforcement'', not less than $52,500,000 shall be made available for activities to combat trafficking in persons internationally.

(h) WATER AND SANITATION.—Of the funds appropriated by this Act, not less than $382,500,000 shall be made available for water and sanitation supply projects pursuant to the Senator Paul Simon Water for the Poor Act of 2005 (Public Law 109–121), of which not less than $145,000,000 should be for programs in sub-Saharan Africa, and of which not less than $12,500,000 shall be made available for programs to design and build safe, public latrines in Africa and Asia.

(i) NOTIFICATION REQUIREMENTS.—Authorized deviations from funding levels contained in this section shall be subject to the regular notification procedures of the Committees on Appropriations.

UZBEKISTAN

SEC. 7061. The terms and conditions of section 7076 of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2009 (division H of Public Law 111–8) shall apply to funds appropriated by this Act, except that the Secretary of State may waive the application of section 7076(a) for a period of not more than 6 months and every 6 months thereafter until September 30, 2016, if the Secretary certifies to the Committees on Appropriations that the waiver is in the national security interest and necessary to obtain access to and from Afghanistan for the United States, and the waiver includes an assessment of progress, if any, by the Government of Uzbekistan in meeting the requirements in section 7076(a): *Provided*, That the Secretary of State, in consultation with the Secretary of Defense, shall submit a report to the Committees on Appropriations not later than 12 months after enactment of this Act and 6 months thereafter, on all United States Government assistance provided to the Government of Uzbekistan and expenditures made in support of the Northern Distribution Network in Uzbekistan during the previous 12 months, including any credible information that such assistance or expenditures are being diverted for corrupt purposes: *Provided further*, That information provided in the assessment and report required by the previous provisos shall be unclassified but may be accompanied by a classified annex and such annex shall indicate the basis for such classification: *Provided further*, That for purposes of the application of section 7076(e) to this Act, the term ''assistance'' shall not include expanded international military education and training.

ARMS TRADE TREATY

SEC. 7062. None of the funds appropriated by this Act may be obligated or expended to implement the Arms Trade Treaty until the Senate approves a resolution of ratification for the Treaty.

UNITED NATIONS POPULATION FUND

SEC. 7063. (a) CONTRIBUTION.—Of the funds made available under the heading ''International Organizations and Programs'' in this Act for fiscal year 2015, $35,000,000 shall be made available for the United Nations Population Fund (UNFPA).

(b) AVAILABILITY OF FUNDS.—Funds appropriated by this Act for UNFPA, that are not made available for UNFPA because of the operation of any provision of law, shall be transferred to the ''Global Health Programs'' account and shall be made available for family planning, maternal, and reproductive health activities, subject to the regular notification procedures of the Committees on Appropriations.

(c) PROHIBITION ON USE OF FUNDS IN CHINA.—None of the funds made available by this Act may be used by UNFPA for a country program in the People's Republic of China.

(d) CONDITIONS ON AVAILABILITY OF FUNDS.—Funds made available by this Act for UNFPA may not be made available unless—

(1) UNFPA maintains funds made available by this Act in an account separate from other accounts of UNFPA and does not commingle such funds with other sums; and

(2) UNFPA does not fund abortions.

(e) REPORT TO CONGRESS AND DOLLAR-FOR-DOLLAR WITHHOLDING OF FUNDS.—

(1) Not later than 4 months after the date of enactment of this Act, the Secretary of State shall submit a report to the Committees on Appropriations indicating the amount of funds that UNFPA is budgeting for the year in which the report is submitted for a country program in the People's Republic of China.

(2) If a report under paragraph (1) indicates that UNFPA plans to spend funds for a country program in the People's Republic of China in the year covered by the report, then the amount of such funds UNFPA plans to spend in the People's Republic of China shall be deducted from the funds made available to UNFPA after March 1 for obligation for the remainder of the fiscal year in which the report is submitted.

REQUESTS FOR DOCUMENTS

SEC. 7064. None of the funds appropriated or made available pursuant to titles III through VI of this Act shall be available to a nongovernmental organization, including any contractor, which fails to provide upon timely request any document, file, or record necessary to the auditing requirements of the United States Agency for International Development.

INTERNATIONAL PRISON CONDITIONS

SEC. 7065. Funds appropriated under the headings ''Development Assistance'', ''Economic Support Fund'', and ''International Narcotics Control and Law Enforcement'' in this Act shall be made available, notwithstanding section 660 of the Foreign Assistance Act of 1961, for assistance to eliminate inhumane conditions in foreign prisons and other detention facilities: *Provided*, That decisions regarding the uses of such funds shall be the responsibility of the Assistant Secretary of State for Democracy, Human Rights, and Labor (DRL), in consultation with the Assistant Secretary of State for International Narcotics Control and Law Enforcement Affairs, and the Assistant Administrator for Democracy, Conflict, and Humanitarian Assistance, United States Agency for International Development, as appropriate: *Provided further*, That the Assistant Secretary of State for DRL shall consult with the Committees on Appropriations prior to the obligation of funds.

PROHIBITION ON USE OF TORTURE

SEC. 7066. (a) None of the funds made available in this Act may be used to support or justify the use of torture, cruel, or inhumane treatment by any official or contract employee of the United States Government.

(b) Funds appropriated under titles III and IV of this Act shall be made available, notwithstanding section 660 of the Foreign Assistance Act of 1961 and following consultation with the Committees on Appropriations, for assistance to eliminate torture by foreign police, military or other security forces in countries receiving assistance from funds appropriated by this Act.

EXTRADITION

SEC. 7067. (a) None of the funds appropriated in this Act may be used to provide assistance (other than funds provided under the headings ''International Disaster Assistance'', ''Complex Crises Fund'', ''International Narcotics Control and Law Enforcement'', ''Migration and Refugee Assistance'', ''United States Emergency Refugee and Migration Assistance Fund'', and ''Nonproliferation, Anti-terrorism, Demining and Related Assistance'') for the central government of a country which has notified the Department of State of its refusal to extradite to the United States any individual indicted for a criminal offense for which the maximum penalty is life imprisonment without the possibility of parole or for killing a law enforcement officer, as specified in a United States extradition request.

(b) Subsection (a) shall only apply to the central government of a country with which the United States maintains diplomatic relations and with which the United States has an extradition treaty and the government of that country is in violation of the terms and conditions of the treaty.

(c) The Secretary of State may waive the restriction in subsection (a) on a case-by-case basis if the Secretary certifies to the Committees on Appropriations that such waiver is important to the national interests of the United States.

COMMERCIAL LEASING OF DEFENSE ARTICLES

SEC. 7068. Notwithstanding any other provision of law, and subject to the regular notification procedures of the Committees on Appropriations, the authority of section 23(a) of the Arms Export Control Act may be used to provide financing to Israel, Egypt, and the North Atlantic Treaty Organization (NATO), and major non-NATO allies for the procurement by leasing (including leasing with an option to purchase) of defense articles from United States commercial suppliers, not including Major Defense Equipment (other than helicopters and other types of aircraft having possible civilian application), if the President determines that there are compelling foreign policy or national security reasons for those defense articles being provided by commercial lease rather than by government-to-government sale under such Act.

INDEPENDENT STATES OF THE FORMER SOVIET UNION

SEC. 7069. (a) None of the funds appropriated by this Act may be made available for assistance for a government of an Independent State of the former Soviet Union if that government directs any action in violation of the territorial integrity or national sovereignty of any other Independent State of the former Soviet Union, such as those violations included in the Helsinki Final Act: *Provided*, That except as otherwise provided in section 7070(a) of this Act, funds may be made available without regard to the restriction in this subsection if the President determines that to do so is in the national security interest of the United States: *Provided further*, That prior to executing the authority contained in this subsection the Department of State shall consult with the Committees on Appropriations on how such assistance supports the national interest of the United States.

(b) Funds appropriated by this Act under the heading ''Economic Support Fund'' may be made available, notwithstanding any other provision of law, except for the limitation contained in section 7070(a) of this Act, for assistance and related programs for the countries identified in section 3(c) of the Support for Eastern European Democracy (SEED) Act of 1989 (Public Law 101–179) and section 3 of the FREEDOM Support Act (Public Law 102–511) and may be used to carry out the provisions of those Acts: *Provided*, That such assistance and related programs from funds appropriated by this Act under the headings ''Global Health Programs'', ''Economic Support Fund'', and ''International Narcotics Control and Law Enforcement'' shall be administered in accordance with the responsibilities of the coordinator designated pursuant to section 601 of the Support for Eastern European Democracy (SEED) Act of 1989 (Public Law 101–179) and section 102 of the FREEDOM Support Act (Public Law 102–511).

(c) Section 907 of the FREEDOM Support Act shall not apply to—

(1) activities to support democracy or assistance under title V of the FREEDOM Support Act and section 1424 of Public Law 104–201 or non-proliferation assistance;

(2) any assistance provided by the Trade and Development Agency under section 661 of the Foreign Assistance Act of 1961 (22 U.S.C. 2421);

(3) any activity carried out by a member of the United States and Foreign Commercial Service while acting within his or her official capacity;

(4) any insurance, reinsurance, guarantee, or other assistance provided by the Overseas Private Investment Corporation under title IV of chapter 2 of part I of the Foreign Assistance Act of 1961 (22 U.S.C. 2191 et seq.);

(5) any financing provided under the Export-Import Bank Act of 1945; or

(6) humanitarian assistance.

RUSSIA

SEC. 7070. (a) None of the funds appropriated by this Act may be made available for assistance for the central Government of the Russian Federation.

(b)(1) None of the funds appropriated by this Act may be made available for assistance for the central government of a country that the Secretary of State determines and reports to the Committees on Appropriations has taken affirmative steps intended to support or be supportive of the Russian Federation annexation of Crimea: *Provided*, That except as otherwise provided in subsection (a), the Secretary may waive the restriction on assistance required by this paragraph if the Secretary certifies to such Committees that to do so is in the national interest of the United States, and includes a justification for such interest.

(2) None of the funds appropriated by this Act may be made available for—

(A) the implementation of any action or policy that recognizes the sovereignty of the Russian Federation over Crimea;

(B) the facilitation, financing, or guarantee of United States Government investments in Crimea, if such activity includes the participation of Russian Government officials, and Russian owned and controlled banks, or other Russian Government owned and controlled financial entities; or

(C) assistance for Crimea, if such assistance includes the participation of Russian Government officials, and Russian owned and controlled banks, and other Russian Government owned and controlled financial entities.

(3) The Secretary of the Treasury shall instruct the United States executive directors of each international financial institution to vote against any assistance by such institution (including but not limited to any loan, credit, or guarantee) for any program that violates the sovereignty or territorial integrity of Ukraine.

(4) The requirements of subsection (b) shall cease to be in effect if the Secretary of State certifies and reports to the Committees on Appropriations that the Government of Ukraine has reestablished sovereignty over Crimea.

(c) Funds appropriated by this Act under the heading ''Economic Support Fund'' in title III to counter Russian aggression and influence in Central and Eastern Europe and Central Asia may be transferred to, and merged with, funds appropriated under the headings ''International Narcotics Control and Law Enforcement'' and ''Foreign Military Financing Program'' in title IV: *Provided*, That such transfer authority is in addition to transfer authority otherwise available under any other provision of law: *Provided further*, That such transfer authority shall be subject to the regular notification procedures of the Committees on Appropriations.

(d) Funds appropriated by this Act for assistance for the Eastern Partnership countries shall be made available to advance the implementation of Association Agreements, trade agreements, and visa liberalization agreements with the European Union, and to reduce their vulnerability to external economic and political pressure from the Russian Federation.

(e) Funds appropriated by this Act shall be made available to support the advancement of democracy and the rule of law in the Russian Federation, including to promote Internet freedom, and shall also be made available to support the democracy and rule of law strategy required by section 7071(d) of division K of Public Law 113–76.

(f) Not later than 45 days after enactment of this Act, the Secretary of State shall update the reports required by section

7071(b)(2), (c), and (e) of division K of Public Law 113–76.

INTERNATIONAL MONETARY FUND

SEC. 7071. (a) The terms and conditions of sections 7086(b) (1) and (2) and 7090(a) of division F of Public Law 111–117 shall apply to this Act.

(b) The Secretary of the Treasury shall instruct the United States Executive Director of the International Monetary Fund (IMF) to seek to ensure that any loan will be repaid to the IMF before other private creditors.

(c) The Secretary of the Treasury shall seek to require that the IMF implements and enforces policies and procedures which reflect best practices as defined in the explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act) for the protection of whistleblowers from retaliation, including best practices for—

(1) protection against retaliation for internal and lawful public disclosures;

(2) legal burdens of proof;

(3) statutes of limitation for reporting retaliation;

(4) access to independent adjudicative bodies, including external arbitration; and

(5) results that eliminate the effects of proven retaliation.

PUBLIC POSTING OF REPORTS

SEC. 7072. (a) Any agency receiving funds made available by this Act shall, subject to subsections (b) and (c), post on the public Web site of such agency any report required by this Act to be submitted to the Committees on Appropriations, upon a determination by the head of such agency that to do so is in the national interest.

(b) Subsection (a) shall not apply to a report if—

(1) the public posting of such report would compromise national security, including the conduct of diplomacy; or

(2) the report contains proprietary, privileged, or sensitive information.

(c) The head of the agency posting such report shall do so only after such report has been made available to the Committees on Appropriations for not less than 45 days.

OVERSEAS PRIVATE INVESTMENT CORPORATION

SEC. 7073. (a) Whenever the President determines that it is in furtherance of the purposes of the Foreign Assistance Act of 1961, up to a total of $20,000,000 of the funds appropriated under title III of this Act may be transferred to, and merged with, funds appropriated by this Act for the Overseas Private Investment Corporation Program Account, to be subject to the terms and conditions of that account: *Provided*, That such funds shall not be available for administrative expenses of the Overseas Private Investment Corporation: *Provided further*, That designated funding levels in this Act shall not be transferred pursuant to this section: *Provided further*, That the exercise of such authority shall be subject to the regular notification procedures of the Committees on Appropriations.

(b) Notwithstanding section 235(a)(2) of the Foreign Assistance Act of 1961, the authority of subsections (a) through (c) of section 234 of such Act shall remain in effect until September 30, 2015.

SPECIAL DEFENSE ACQUISITION FUND

SEC. 7074. Not to exceed $100,000,000 may be obligated pursuant to section 51(c)(2) of the Arms Export Control Act for the purposes of the Special Defense Acquisition Fund (Fund), to remain available for obligation until September 30, 2017: *Provided*, That the provision of defense articles and defense services to foreign countries or international organizations from the Fund shall be subject to the concurrence of the Secretary of State.

ENTERPRISE FUNDS

SEC. 7075. (a) None of the funds made available under titles III through VI of this Act may be made available for Enterprise Funds unless the appropriate congressional committees are notified at least 15 days in advance.

(b) Prior to the distribution of any assets resulting from any liquidation, dissolution, or winding up of an Enterprise Fund, in whole or in part, the President shall submit to the appropriate congressional committees a plan for the distribution of the assets of the Enterprise Fund.

(c) Prior to a transition to and operation of any private equity fund or other parallel investment fund under an existing Enterprise Fund, the President shall submit such transition or operating plan to the appropriate congressional committees.

BUDGET DOCUMENTS

SEC. 7076. (a) OPERATING PLANS.—Not later than 45 days after the date of enactment of this Act, each department, agency, or organization funded in titles I, II, and VI of this Act, and the Department of the Treasury and Independent Agencies funded in title III of this Act, including the Inter-American Foundation and the United States African Development Foundation, shall submit to the Committees on Appropriations an operating plan for funds appropriated to such department, agency, or organization in such titles of this Act, or funds otherwise available for obligation in fiscal year 2015, that provides details of the uses of such funds at the program, project, and activity level: *Provided*, That such plans shall include, as applicable, a comparison between the most recent congressional directives or approved funding levels and the funding levels proposed by the department or agency; and a clear, concise, and informative description/justification: *Provided further*, That operating plans for funds for such department, agency, or organization in titles I, II, or III and title VIII, shall simultaneously submit the operating plans for, and integrated information on, enduring and Overseas Contingency Operations funds: *Provided further*, That operating plans that include changes in levels of funding specified in this Act or in the joint explanatory statement described in section 4 (in the matter preceding division A of this Consolidated Act) shall be subject to the regular notification procedures of the Committees on Appropriations.

(b) SPEND PLANS.—

(1) Prior to the initial obligation of funds, the Secretary of State shall submit to the Committees on Appropriations a detailed spend plan for funds made available by this Act, for—

(A) assistance for Afghanistan, Colombia, Egypt, Haiti, Iraq, Lebanon, Libya, Mexico, Pakistan, the West Bank and Gaza, and Yemen;

(B) the Caribbean Basin Security Initiative, the Central American Regional Security Initiative, the Trans-Sahara Counterterrorism Partnership program, and the Partnership for Regional East Africa Counterterrorism program; and

(C) democracy programs and each sector enumerated in section 7060 of this Act.

(2) Not later than 45 days after enactment of this Act, the Secretary of the Treasury shall submit to the Committees on Appropriations a detailed spend plan for funds made available by this Act under the headings ''Department of the Treasury'' in title III and ''International Financial Institutions'' in title V.

(c) SPENDING REPORT.—Not later than 45 days after enactment of this Act, the USAID Administrator shall submit to the Committees on Appropriations a detailed report on spending of funds made available during fiscal year 2014 under the heading ''Development Credit Authority''.

(d) NOTIFICATIONS.—The spend plans referenced in subsection (b) shall not be considered as meeting the notification requirements in this Act or under section 634A of the Foreign Assistance Act of 1961.

(e) CONGRESSIONAL BUDGET JUSTIFICATIONS.—

(1) The congressional budget justifications for Department of State operations and foreign operations shall be provided to the Committees on Appropriations concurrent with the date of submission of the President's budget for fiscal year 2016.

(2) The Secretary of State and the USAID Administrator shall include in the congressional budget justification a detailed justification for multi-year availability for any funds requested under the headings ''Diplomatic and Consular Programs'' and ''Operating Expenses''.

USE OF FUNDS IN CONTRAVENTION OF THIS ACT

SEC. 7077. If the President makes a determination not to comply with any provision of this Act on constitutional grounds, the head of the relevant Federal agency shall notify the Committees on Appropriations in writing within 5 days of such determination, the basis for such determination and any resulting changes to program and policy.

GLOBAL INTERNET FREEDOM

SEC. 7078. (a) Of the funds available for obligation during fiscal year 2015 under the headings ''International Broadcasting Operations'', ''Economic Support Fund'', and ''Democracy Fund'', not less than $50,500,000 shall be made available for programs to promote Internet freedom globally: *Provided*, That such programs shall be prioritized for countries whose governments restrict freedom of expression on the Internet, and that are important to the national interests of the United States: *Provided further*, That funds made available pursuant to this section shall be matched, to the maximum extent practicable, by sources other than the United States Government, including from the private sector.

(b) Funds made available pursuant to subsection (a) shall be—

(1) coordinated with other democracy, governance, and broadcasting programs funded by this Act under the headings ''International Broadcasting Operations'', ''Economic Support Fund'', ''Democracy Fund'', and ''Complex Crises Fund'', and shall be incorporated into country assistance, democracy promotion, and broadcasting strategies, as appropriate;

(2) made available to the Bureau of Democracy, Human Rights, and Labor, Department of State for programs to implement the May 2011, International Strategy for Cyberspace and the comprehensive strategy to promote Internet freedom and access to information in Iran, as required by section 414 of Public Law 112–158;

(3) made available to the Broadcasting Board of Governors (BBG) to provide tools and techniques to access the Internet Web sites of BBG broadcasters that are censored, and to work with such broadcasters to promote and distribute such tools and techniques, including digital security techniques;

(4) made available for programs that support the efforts of civil society to counter the development of repressive Internet-related laws and regulations, including countering threats to Internet freedom at international organizations; to combat violence against bloggers and other users; and to enhance digital security training and capacity building for democracy activists; and

(5) made available for research of key threats to Internet freedom; the continued

development of technologies that provide or enhance access to the Internet, including circumvention tools that bypass Internet blocking, filtering, and other censorship techniques used by authoritarian governments; and maintenance of the United States Government's technological advantage over such censorship techniques: *Provided*, That the Secretary of State, in consultation with the BBG, shall coordinate any such research and development programs with other relevant United States Government departments and agencies in order to share information, technologies, and best practices, and to assess the effectiveness of such technologies.

(c) After consultation among the relevant agency heads to coordinate and de-conflict planned activities, but not later than 90 days after enactment of this Act, the Secretary of State and the BBG Chairman shall submit to the Committees on Appropriations spend plans for funds made available by this Act for programs to promote Internet freedom globally, which shall include a description of safeguards established by relevant agencies to ensure that such programs are not used for illicit purposes.

(d) The Comptroller General of the United States shall conduct an audit of Internet freedom programs supported by funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs, and shall consult with the Committees on Appropriations on the scope and requirements of such audit.

DISABILITY PROGRAMS

SEC. 7079. (a) Funds appropriated by this Act under the heading ''Economic Support Fund'' shall be made available for programs and activities administered by the United States Agency for International Development (USAID) to address the needs and protect and promote the rights of people with disabilities in developing countries, including initiatives that focus on independent living, economic self-sufficiency, advocacy, education, employment, transportation, sports, and integration of individuals with disabilities, including for the cost of translation.

(b) Of the funds made available by this section, 5 percent may be used for USAID for management, oversight, and technical support.

SMALL GRANTS PROGRAM

SEC. 7080. (a) IN GENERAL.—A Small Grants Program (SGP) shall be established within the United States Agency for International Development (USAID) to provide small grants, cooperative agreements, and other assistance mechanisms and agreements of not more than $2,000,000 for the purpose of carrying out the provisions of chapters 1 and 10 of part I and chapter 4 of part II of the Foreign Assistance Act of 1961: *Provided*, That the SGP established pursuant to this section shall replace the function served previously by the Development Grants Program established under section 674 of division J, of Public Law 110–161, which is hereby abolished.

(b) ELIGIBILITY.—Grants from the SGP shall only be made to eligible entities as described in the joint explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(c) PROPOSALS.—Grants made pursuant to the authority of this section shall be provided through—

(1) unsolicited applications received and evaluated pursuant to USAID policy regarding such proposals; or

(2) an open and competitive process.

(d) FUNDING.—

(1) Of the funds appropriated by this Act to carry out chapter 1 of part I and chapter 4 of part II of the Foreign Assistance Act of 1961, not less than $45,000,000 shall be made available for the SGP within USAID's Local Sustainability Office of the Bureau for Economic Growth, Education and Environment to carry out this subsection.

(2) Other than to meet the requirements of this section, funds made available to carry out this section may not be allocated in the report required by section 653(a) of the Foreign Assistance Act of 1961 to meet any other specifically designated funding levels contained in this Act: *Provided*, That such funds may be attributed to any such specifically designated funding level after the award of funds under this section, if applicable.

(3) Funds made available under this section shall remain available for obligation until September 30, 2019.

(e) MANAGEMENT.—

(1) Not later than 120 days after enactment of this Act, the USAID Administrator shall issue guidance to implement this section: *Provided*, That such guidance shall include the requirements contained in the joint explanatory statement described in section 4 (in the matter preceding division A of this consolidated Act).

(2) Upon selection of a mission pursuant to the procedures required by paragraph (1), such selected mission may be allocated the full estimated cost of the multi-year program: *Provided*, That such allocations shall be subject to the regular notification procedures of the Committees on Appropriations.

(3) In addition to funds otherwise available for such purposes, up to 12 percent of the funds made available to carry out this section may be used by USAID for administrative and oversight expenses associated with managing relationships with entities under the SGP.

(f) REPORT.—Not later than 120 days after enactment of this Act and after consultation with the appropriate congressional committees, the Administrator shall submit a report to such committees describing the guidance to implement the SGP.

PROHIBITION ON FIRST-CLASS TRAVEL

SEC. 7081. None of the funds made available in this Act may be used for first-class travel by employees of agencies funded by this Act in contravention of sections 301–10.122 through 301–10.124 of title 41, Code of Federal Regulations.

REPORTING REQUIREMENTS CONCERNING INDIVIDUALS DETAINED AT NAVAL STATION, GUANTANAMO BAY, CUBA

SEC. 7082. Not later than 5 days after the conclusion of an agreement with a country, including a state with a compact of free association with the United States, to receive by transfer or release individuals detained at United States Naval Station, Guantanamo Bay, Cuba, the Secretary of State shall notify the Committees on Appropriations in writing of the terms of the agreement, including whether funds appropriated by this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs will be made available for assistance for such country pursuant to such agreement.

AUTHORITY FOR REPLENISHMENTS

SEC. 7083. (a) The Asian Development Bank Act, Public Law 89–369, as amended (22 U.S.C. 285 et seq.), is further amended by adding at the end thereof the following new section:

''SEC. 35. TENTH REPLENISHMENT.

''(a) The United States Governor of the Bank is authorized to contribute, on behalf of the United States, $359,600,000 to the tenth replenishment of the resources of the Fund, subject to obtaining the necessary appropriations.

''(b) In order to pay for the United States contribution provided for in subsection (a), there are authorized to be appropriated, without fiscal year limitation, $359,600,000 for payment by the Secretary of the Treasury.''.

(b) The International Development Association Act, Public Law 86–565, as amended (22 U.S.C. 284 et seq.), is further amended by adding at the end thereof the following new sections:

''SEC. 28. SEVENTEENTH REPLENISHMENT.

''(a) The United States Governor of the International Development Association is authorized to contribute on behalf of the United States $3,871,800,000 to the seventeenth replenishment of the resources of the Association, subject to obtaining the necessary appropriations.

''(b) In order to pay for the United States contribution provided for in subsection (a), there are authorized to be appropriated, without fiscal year limitation, $3,871,800,000 for payment by the Secretary of the Treasury.

''SEC. 29. MULTILATERAL DEBT RELIEF.

''(a) The Secretary of the Treasury is authorized to contribute, on behalf of the United States, not more than $565,020,000 to the International Development Association for the purpose of funding debt relief costs under the Multilateral Debt Relief Initiative incurred in the period governed by the seventeenth replenishment of resources of the International Development Association, subject to obtaining the necessary appropriations and without prejudice to any funding arrangements in existence on the date of the enactment of this section.

''(b) In order to pay for the United States contribution provided for in subsection (a), there are authorized to be appropriated, without fiscal year limitation, not more than $565,020,000 for payment by the Secretary of the Treasury.

''(c) In this section, the term 'Multilateral Debt Relief Initiative' means the proposal set out in the G8 Finance Ministers' Communique entitled 'Conclusions on Development,' done at London, June 11, 2005, and reaffirmed by G8 Heads of State at the Gleneagles Summit on July 8, 2005.''.

(c) The African Development Fund Act, Public Law 94–302, as amended (22 U.S.C. 290g et seq.), is further amended by adding at the end thereof the following new sections:

''SEC. 223. THIRTEENTH REPLENISHMENT.

''(a) The United States Governor of the Fund is authorized to contribute on behalf of the United States $585,000,000 to the thirteenth replenishment of the resources of the Fund, subject to obtaining the necessary appropriations.

''(b) In order to pay for the United States contribution provided for in subsection (a), there are authorized to be appropriated, without fiscal year limitation, $585,000,000 for payment by the Secretary of the Treasury.

''SEC. 224. MULTILATERAL DEBT RELIEF.

''(a) The Secretary of the Treasury is authorized to contribute, on behalf of the United States, not more than $54,620,000 to the African Development Fund for the purpose of funding debt relief costs under the Multilateral Debt Relief Initiative incurred in the period governed by the thirteenth replenishment of resources of the African Development Fund, subject to obtaining the necessary appropriations and without prejudice to any funding arrangements in existence on the date of the enactment of this section.

''(b) In order to pay for the United States contribution provided for in subsection (a), there are authorized to be appropriated, without fiscal year limitation, not more than $54,620,000 for payment by the Secretary of the Treasury.

''(c) In this section, the term 'Multilateral Debt Relief Initiative' means the proposal set out in the G8 Finance Ministers' Communique entitled 'Conclusions on Development,' done at London, June 11, 2005, and reaffirmed by G8 Heads of State at the Gleneagles Summit on July 8, 2005.''.

RESCISSION OF FUNDS

SEC. 7084. Of the unexpended balances available under the heading ''Export and Investment Assistance, Export-Import Bank of the United States, Subsidy Appropriation'' from prior Acts making appropriations for the Department of State, foreign operations, and related programs, $30,000,000 are rescinded.

MODIFICATIONS TO THE VIETNAM EDUCATION FOUNDATION ACT OF 2000

SEC. 7085. (a) EXPANDED USE OF VIETNAM DEBT REPAYMENT FUND.—Section 207(c)(3) of the Vietnam Education Foundation Act of 2000 (title II of division B of H.R. 5666, as enacted by section 1(a)(4) of Public Law 106–554 and contained in appendix D of that Act; 114 Stat. 2763A–257; 22 U.S.C. 2452 note) is amended to read as follows:

''(3) EXCESS FUNDS.—During each of the fiscal years 2015 through 2018, amounts deposited into the Fund, in excess of the amounts made available to the Foundation under paragraph (1), shall be made available by the Secretary of the Treasury, upon the request of the Secretary of State, for grants to support the establishment of an independent, not-for-profit academic institution in the Socialist Republic of Vietnam.''.

(b) ADMINISTRATIVE PROVISIONS.—Section 209(a) of the Vietnam Education Foundation Act of 2000 (title II of division B of H.R. 5666, as enacted by section 1(a)(4) of Public Law 106–554 and contained in appendix D of that Act; 114 Stat. 2763A–257; 22 U.S.C. 2452 note) is amended in the matter preceding paragraph (1) by inserting ''(other than section 211)'' after ''this title''.

(c) GRANTS AUTHORIZED.—The Vietnam Education Foundation Act of 2000 (title II of division B of H.R. 5666, as enacted by section 1(a)(4) of Public Law 106–554 and contained in appendix D of that Act; 114 Stat. 2763A–257; 22 U.S.C. 2452 note) is amended by adding at the end the following:

''SEC. 211. ESTABLISHMENT OF AN INDEPENDENT, NOT-FOR-PROFIT ACADEMIC INSTITUTION IN THE SOCIALIST REPUBLIC OF VIETNAM.

''(a) GRANTS AUTHORIZED.—The Secretary of State is authorized to award 1 or more grants which shall be used to support the establishment of an independent, not-for-profit academic institution in the Socialist Republic of Vietnam.

''(b) APPLICATION.—In order to receive a grant pursuant to subsection (a), a prospective grantee shall submit an application to the Secretary of State at such time, in such manner, and accompanied by such information as the Secretary may reasonably require.

''(c) MINIMUM STANDARDS.—As a condition of receiving a grant under subsection (a), a prospective grantee shall ensure that the independent, not-for-profit academic institution in the Socialist Republic of Vietnam described in subsection (a)—

''(1) achieves standards comparable to those required for accreditation in the United States;

''(2) offers graduate and undergraduate level teaching and research programs in a broad range of fields, including public policy, management, and engineering; and

''(3) establishes a policy of academic freedom and prohibits the censorship of dissenting or critical views.

''(d) ANNUAL REPORT.—

''(1) IN GENERAL.—Not later than 90 days after the last day of each fiscal year until 2020, the Secretary of State shall submit to the appropriate congressional committees a report that summarizes the activities carried out under this section during such fiscal year.

''(2) DEFINITION.—In this subsection, the term 'appropriate congressional committees' means—

''(A) the Committee on Appropriations and the Committee on Foreign Affairs of the House of Representatives; and

''(B) the Committee on Appropriations and the Committee on Foreign Relations of the Senate.''.

IMPACT ON JOBS IN THE UNITED STATES

SEC. 7086. None of the funds appropriated or otherwise made available under titles III through VI of this Act may be obligated or expended to provide—

(1) any financial incentive to a business enterprise currently located in the United States for the purpose of inducing such an enterprise to relocate outside the United States if such incentive or inducement is likely to reduce the number of employees of such business enterprise in the United States because United States production is being replaced by such enterprise outside the United States;

(2) assistance for any program, project, or activity that contributes to the violation of internationally recognized workers rights, as defined in section 507(4) of the Trade Act of 1974, of workers in the recipient country, including any designated zone or area in that country: *Provided*, That the application of section 507(4)(D) and (E) of such Act should be commensurate with the level of development of the recipient country and sector, and shall not preclude assistance for the informal sector in such country, micro and small-scale enterprise, and smallholder agriculture;

(3) any assistance to an entity outside the United States if such assistance is for the purpose of directly relocating or transferring jobs from the United States to other countries and adversely impacts the labor force in the United States; or

(4) for the enforcement of any rule, regulation, policy, or guidelines implemented pursuant to—

(A) the third proviso of subsection 7079(b) of the Consolidated Appropriations Act, 2010;

(B) the modification proposed by the Overseas Private Investment Corporation in November 2013 to the Corporation's Environmental and Social Policy Statement relating to coal; or

(C) the Supplemental Guidelines for High Carbon Intensity Projects approved by the Export-Import Bank of the United States on December 12, 2013,

when enforcement of such rule, regulation, policy, or guidelines would prohibit, or have the effect of prohibiting, any coal-fired or other power-generation project the purpose of which is to: (i) provide affordable electricity in International Development Association (IDA)-eligible countries and IDA-blend countries; and (ii) increase exports of goods and services from the United States or prevent the loss of jobs from the United States.

TITLE VIII

OVERSEAS CONTINGENCY OPERATIONS

DEPARTMENT OF STATE

ADMINISTRATION OF FOREIGN AFFAIRS

DIPLOMATIC AND CONSULAR PROGRAMS

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Diplomatic and Consular Programs'', $1,350,803,000, to remain available until September 30, 2016, of which $989,706,000 is for Worldwide Security Protection and shall remain available until expended: *Provided*, That the Secretary of State may transfer up to $35,000,000 of the total funds made available under this heading to any other appropriation of any department or agency of the United States, upon the concurrence of the head of such department or agency, to support operations in and assistance for Afghanistan and to carry out the provisions of the Foreign Assistance Act of 1961: *Provided further*, That any such transfer shall be treated as a reprogramming of funds under subsections (a) and (b) of section 7015 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section: *Provided further*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

CONFLICT STABILIZATION OPERATIONS

For an additional amount for ''Conflict Stabilization Operations'', $15,000,000, to remain available until expended: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF INSPECTOR GENERAL

For an additional amount for ''Office of Inspector General'', $56,900,000, to remain available until September 30, 2016, which shall be for the Special Inspector General for Afghanistan Reconstruction (SIGAR) for reconstruction oversight: *Provided*, That printing and reproduction costs shall not exceed amounts for such costs during fiscal year 2014: *Provided further*, That notwithstanding any other provision of law, any employee of SIGAR who completes at least 12 months of continuous service after the date of enactment of this Act or who is employed on the date on which SIGAR terminates, whichever occurs first, shall acquire competitive status for appointment to any position in the competitive service for which the employee possesses the required qualifications: *Provided further*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

EMBASSY SECURITY, CONSTRUCTION, AND MAINTENANCE

For an additional amount for ''Embassy Security, Construction, and Maintenance'', $260,800,000, to remain available until expended, of which $250,000,000 shall be for Worldwide Security Upgrades, acquisition, and construction as authorized: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

INTERNATIONAL ORGANIZATIONS

CONTRIBUTIONS TO INTERNATIONAL ORGANIZATIONS

For an additional amount for ''Contributions to International Organizations'', $74,400,000: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RELATED AGENCY

BROADCASTING BOARD OF GOVERNORS

INTERNATIONAL BROADCASTING OPERATIONS

For an additional amount for ''International Broadcasting Operations'', $10,700,000, to remain available until September 30, 2016: *Provided*, That such amount

is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT

FUNDS APPROPRIATED TO THE PRESIDENT

OPERATING EXPENSES

For an additional amount for ''Operating Expenses'', $125,464,000, to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

BILATERAL ECONOMIC ASSISTANCE

FUNDS APPROPRIATED TO THE PRESIDENT

INTERNATIONAL DISASTER ASSISTANCE

For an additional amount for ''International Disaster Assistance'', $1,335,000,000, to remain available until expended: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

TRANSITION INITIATIVES

For an additional amount for ''Transition Initiatives'', $20,000,000, to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

COMPLEX CRISES FUND

For an additional amount for ''Complex Crises Fund'', $30,000,000 to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ECONOMIC SUPPORT FUND

For an additional amount for ''Economic Support Fund'', $2,114,266,000, to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEPARTMENT OF STATE

MIGRATION AND REFUGEE ASSISTANCE

For an additional amount for ''Migration and Refugee Assistance'', $2,127,114,000, to remain available until expended: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

INTERNATIONAL SECURITY ASSISTANCE

DEPARTMENT OF STATE

INTERNATIONAL NARCOTICS CONTROL AND LAW ENFORCEMENT

For an additional amount for ''International Narcotics Control and Law Enforcement'', $443,195,000, to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NONPROLIFERATION, ANTI-TERRORISM, DEMINING AND RELATED PROGRAMS

For an additional amount for ''Nonproliferation, Anti-terrorism, Demining and Related Programs'', $99,240,000, to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

PEACEKEEPING OPERATIONS

For an additional amount for ''Peacekeeping Operations'', $328,698,000, to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985: *Provided further*, That funds may be used to pay assessed expenses of international peacekeeping activities in Somalia and other peacekeeping requirements, subject to the regular notification procedures of the Committees on Appropriations: *Provided further*, That the total amount of United States contributions to support an assessed peacekeeping operation shall not exceed the level described in the final proviso under the heading ''Contributions for International Peacekeeping Activities'' in title I of this Act.

FUNDS APPROPRIATED TO THE PRESIDENT

FOREIGN MILITARY FINANCING PROGRAM

For an additional amount for ''Foreign Military Financing Program'', $866,420,000, to remain available until September 30, 2016: *Provided*, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS

ADDITIONAL APPROPRIATIONS

SEC. 8001. Notwithstanding any other provision of law, funds appropriated in this title are in addition to amounts appropriated or otherwise made available in this Act for fiscal year 2015.

EXTENSION OF AUTHORITIES AND CONDITIONS

SEC. 8002. Unless otherwise provided for in this Act, the additional amounts appropriated by this title to appropriations accounts in this Act shall be available under the authorities and conditions applicable to such appropriations accounts.

TRANSFER AND ADDITIONAL AUTHORITY

SEC. 8003. (a) Funds appropriated by this title in this Act under the headings ''Transition Initiatives'', ''Complex Crises Fund'', ''Economic Support Fund'', ''International Narcotics Control and Law Enforcement'', ''Nonproliferation, Anti-terrorism, Demining and Related Programs'', ''Peacekeeping Operations'', and ''Foreign Military Financing Program'' may be transferred to, and merged with—

(1) funds appropriated by this title under such headings; and

(2) funds appropriated by this title under the headings ''International Disaster Assistance'' and ''Migration and Refugee Assistance''.

(b) Notwithstanding any other provision of this section, not to exceed $25,000,000 from funds appropriated under the headings ''International Narcotics Control and Law Enforcement'', ''Peacekeeping Operations'', and ''Foreign Military Financing Program'' by this title in this Act may be transferred to, and merged with, funds previously made available under the heading ''Global Security Contingency Fund'': *Provided*, That not later than 15 days prior to making any such transfer, the Secretary of State shall notify the Committees on Appropriations on a country basis, including the implementation plan and timeline for each proposed use of such funds.

(c) The transfer authority provided in subsections (a) and (b) may only be exercised to address unanticipated contingencies.

(d) Of the funds made available in this title under the heading ''Bilateral Economic Assistance'', up to $380,000,000 may be made available to support international peacekeeping requirements only if the Secretary of State submits a determination to the Committees on Appropriations that additional funds are necessary to support such requirements above the amounts provided under the heading ''Contributions for International Peacekeeping Activities'' in title I of this Act and under the heading ''Peacekeeping Operations'' in this title and title IV of this Act, and that it is in the national security interest of the United States to do so: *Provided*, That such funds may only be made available for the purposes described in the determination and shall be subject to the regular notification procedures of the Committees on Appropriations: *Provided further*, That funds made available pursuant to this subsection shall be used in accordance with the terms and conditions under the heading ''Peacekeeping Operations'' in this title.

(e) The transfer authority provided in subsections (a) and (b) shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations: *Provided*, That such transfer authority is in addition to any transfer authority otherwise available under any other provision of law, including section 610 of the Foreign Assistance Act of 1961 which may be exercised by the Secretary of State for the purposes of this title.

TITLE IX

EBOLA RESPONSE AND PREPAREDNESS

DEPARTMENT OF STATE

ADMINISTRATION OF FOREIGN AFFAIRS

DIPLOMATIC AND CONSULAR PROGRAMS

For an additional amount for ''Diplomatic and Consular Programs'', $36,420,000, to remain available until September 30, 2016, for necessary expenses to prevent, prepare for, and respond to the Ebola virus disease outbreak: *Provided*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT

FUNDS APPROPRIATED TO THE PRESIDENT

OPERATING EXPENSES

For an additional amount for ''Operating Expenses'', $19,037,000, to remain available until September 30, 2016, for necessary expenses to prevent, prepare for, and respond to the Ebola virus disease outbreak: *Provided*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF INSPECTOR GENERAL

For an additional amount for ''Office of Inspector General'', $5,626,000, to remain available until expended, for oversight of activities funded by this title and administered by the United States Agency for International Development: *Provided*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

BILATERAL ECONOMIC ASSISTANCE

FUNDS APPROPRIATED TO THE PRESIDENT

GLOBAL HEALTH PROGRAMS

For an additional amount for ''Global Health Programs'', $312,000,000, to remain available until expended, for necessary expenses to prevent, prepare for, and respond

to the Ebola virus disease outbreak in countries directly affected by, or at risk of being affected by, such outbreak: *Provided*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

INTERNATIONAL DISASTER ASSISTANCE

For an additional amount for ''International Disaster Assistance'', $1,436,273,000, to remain available until expended, for assistance for countries affected by, or at risk of being affected by, the Ebola virus disease outbreak: *Provided*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ECONOMIC SUPPORT FUND

For an additional amount for ''Economic Support Fund'', $711,725,000, to remain available until September 30, 2016, for necessary expenses to prevent, prepare for, and respond to the Ebola virus disease outbreak and to address economic and stabilization requirements resulting from such outbreak: *Provided*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

INTERNATIONAL SECURITY ASSISTANCE

DEPARTMENT OF STATE

NONPROLIFERATION, ANTI-TERRORISM, DEMINING AND RELATED PROGRAMS

For an additional amount for ''Nonproliferation, Anti-terrorism, Demining and Related Programs'', $5,300,000, to remain available until September 30, 2016, for necessary expenses to carry out the provisions of chapter 9 of Part II of the Foreign Assistance Act of 1961, for efforts to mitigate the risk of illicit acquisition of the Ebola virus and to promote biosecurity practices associated with Ebola virus disease outbreak response efforts: *Provided*, That such amount is designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS

TRANSFER AUTHORITY

SEC. 9001. (a) Funds appropriated by this title in this Act under the headings ''Global Health Programs'', ''International Disaster Assistance'', and ''Economic Support Fund'' may be transferred to, and merged with, funds appropriated by this title under such headings and under the headings ''International Narcotics Control and Law Enforcement'', ''Nonproliferation, Anti-terrorism, Demining and Related Programs'', and ''Peacekeeping Operations'' in this Act to carry out the purposes of this title: *Provided*, That the Secretary of State and the Administrator of the United States Agency for International Development (USAID), as appropriate, shall consult with the Committees on Appropriations prior to exercising the transfer authority provided by this subsection.

(b) Of the funds appropriated by this title under the heading ''Diplomatic and Consular Programs'', up to $1,000,000 may be transferred to, and merged with, funds appropriated under the heading ''Repatriation Loans Program Account'' in Acts making appropriations for the Department of State, foreign operations, and related programs for the cost of direct loans, which may remain available until expended: *Provided*, That such costs, including cost of modifying such loans, shall be defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That such funds are available to subsidize an additional amount of gross obligations for the principal amount of direct loans not to exceed $1,899,335.

(c) Of the funds appropriated by this title under the heading ''Global Health Programs'', up to $50,000,000 may be transferred to, and merged with, funds appropriated under the heading ''International Organizations and Programs'' to prevent, prepare for, and respond to the Ebola virus disease outbreak.

(d) Of the funds appropriated by this title under the heading ''International Disaster Assistance'', up to $35,300,000 may be transferred to, and merged with, funds appropriated under the headings ''International Organizations and Programs'' and ''Contributions to International Organizations'' to prevent, prepare for, and respond to the Ebola virus disease outbreak: *Provided*, That no such funds that are made available for a United States contribution to the United Nations Mission for Ebola Emergency Response may be obligated until the Secretary of State reports to the Committees on Appropriations that an assessment for such mission has been received and reviewed by the Department of State.

(e) The transfer authorities of this section are in addition to any other transfer authority provided by law.

(f) No funds shall be transferred pursuant to this section unless at least 15 days prior to making such transfer the Secretary of State or USAID Administrator, as appropriate, notifies the Committees on Appropriations in writing of the details of any such transfer.

(g) Upon a determination that all or part of the funds transferred pursuant to the authorities of this section are not necessary for such purposes, such amounts may be transferred back to such headings: *Provided*, That any transfer pursuant to this subsection shall be subject to subsection (f) of this section.

REIMBURSEMENT AUTHORITY

SEC. 9002. Funds appropriated by this title under the headings ''Global Health Programs'', ''International Disaster Assistance'', and ''Economic Support Fund'' may be used to reimburse accounts administered by the United States Agency for International Development and the Department of State for obligations incurred to prevent, prepare for, and respond to the Ebola virus disease outbreak prior to the enactment of this Act.

NOTIFICATION REQUIREMENT

SEC. 9003. Funds appropriated by this title shall not be available for obligation unless the Secretary of State or the Administrator of the United States Agency for International Development, as appropriate, notifies the appropriate congressional committees in writing at least 15 days in advance of such obligation: *Provided*, That the requirement of this section shall not apply to funds made available by this title under the heading ''International Disaster Assistance''.

REPORTING REQUIREMENT

SEC. 9004. The Secretary of State, in consultation with the Administrator of the United States Agency for International Development, shall submit to the Committees on Appropriations not later than 30 days after enactment of this Act a report on the proposed uses of funds on a country and project basis, for which the obligation of funds is anticipated: *Provided*, That such report shall be updated and submitted to the Committee on Appropriations every 30 days until September 30, 2016, and every 180 days thereafter until all funds have been fully expended, and shall include information detailing how the estimates and assumptions contained in the previous reports have changed, and obligations and expenditures on a country and project basis.

COMPTROLLER GENERAL OVERSIGHT

SEC. 9005. Of the funds appropriated by this title under the heading ''Economic Support Fund'', up to $500,000 may be made available to the Comptroller General of the United States, and shall remain available until expended, for oversight of activities supported and reimbursements made pursuant to section 9002 of this title with funds appropriated by this title: *Provided*, That the Secretary of State and the Comptroller General shall consult with the Committees on Appropriations prior to obligating such funds.

This division may be cited as the ''Department of State, Foreign Operations, and Related Programs Appropriations Act, 2015''.

DIVISION K—TRANSPORTATION, HOUSING AND URBAN DEVELOPMENT, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015

TITLE I

DEPARTMENT OF TRANSPORTATION

OFFICE OF THE SECRETARY

SALARIES AND EXPENSES

For necessary expenses of the Office of the Secretary, $105,000,000, of which not to exceed $2,696,000 shall be available for the immediate Office of the Secretary; not to exceed $1,011,000 shall be available for the immediate Office of the Deputy Secretary; not to exceed $19,900,000 shall be available for the Office of the General Counsel; not to exceed $9,800,000 shall be available for the Office of the Under Secretary of Transportation for Policy; not to exceed $12,500,000 shall be available for the Office of the Assistant Secretary for Budget and Programs; not to exceed $2,500,000 shall be available for the Office of the Assistant Secretary for Governmental Affairs; not to exceed $25,365,000 shall be available for the Office of the Assistant Secretary for Administration; not to exceed $2,000,000 shall be available for the Office of Public Affairs; not to exceed $1,714,000 shall be available for the Office of the Executive Secretariat; not to exceed $1,414,000 shall be available for the Office of Small and Disadvantaged Business Utilization; not to exceed $10,600,000 shall be available for the Office of Intelligence, Security, and Emergency Response; and not to exceed $15,500,000 shall be available for the Office of the Chief Information Officer: *Provided*, That the Secretary of Transportation is authorized to transfer funds appropriated for any office of the Office of the Secretary to any other office of the Office of the Secretary: *Provided further*, That no appropriation for any office shall be increased or decreased by more than 5 percent by all such transfers: *Provided further*, That notice of any change in funding greater than 5 percent shall be submitted for approval to the House and Senate Committees on Appropriations: *Provided further*, That not to exceed $60,000 shall be for allocation within the Department for official reception and representation expenses as the Secretary may determine: *Provided further*, That notwithstanding any other provision of law, excluding fees authorized in Public Law 107–71, there may be credited to this appropriation up to $2,500,000 in funds received in user fees: *Provided further*, That none of the funds provided in this Act shall be available for the position of Assistant Secretary for Public Affairs.

RESEARCH AND TECHNOLOGY

For necessary expenses related to the Office of the Assistant Secretary for Research and Technology, $13,000,000, of which $8,218,000 shall remain available until September 30, 2017: *Provided*, That there may be

credited to this appropriation, to be available until expended, funds received from States, counties, municipalities, other public authorities, and private sources for expenses incurred for training: *Provided further*, That any reference in law, regulation, judicial proceedings, or elsewhere to the Research and Innovative Technology Administration shall continue to be deemed to be a reference to the Office of the Assistant Secretary for Research and Technology of the Department of Transportation.

NATIONAL INFRASTRUCTURE INVESTMENTS

For capital investments in surface transportation infrastructure, $500,000,000, to remain available through September 30, 2017: *Provided*, That the Secretary of Transportation shall distribute funds provided under this heading as discretionary grants to be awarded to a State, local government, transit agency, or a collaboration among such entities on a competitive basis for projects that will have a significant impact on the Nation, a metropolitan area, or a region: *Provided further*, That projects eligible for funding provided under this heading shall include, but not be limited to, highway or bridge projects eligible under title 23, United States Code; public transportation projects eligible under chapter 53 of title 49, United States Code; passenger and freight rail transportation projects; and port infrastructure investments (including inland port infrastructure): *Provided further*, That the Secretary may use up to 20 percent of the funds made available under this heading for the purpose of paying the subsidy and administrative costs of projects eligible for Federal credit assistance under chapter 6 of title 23, United States Code, if the Secretary finds that such use of the funds would advance the purposes of this paragraph: *Provided further*, That in distributing funds provided under this heading, the Secretary shall take such measures so as to ensure an equitable geographic distribution of funds, an appropriate balance in addressing the needs of urban and rural areas, and the investment in a variety of transportation modes: *Provided further*, That a grant funded under this heading shall be not less than $10,000,000 and not greater than $200,000,000: *Provided further*, That not more than 25 percent of the funds made available under this heading may be awarded to projects in a single State: *Provided further*, That the Federal share of the costs for which an expenditure is made under this heading shall be, at the option of the recipient, up to 80 percent: *Provided further*, That the Secretary shall give priority to projects that require a contribution of Federal funds in order to complete an overall financing package: *Provided further*, That not less than 20 percent of the funds provided under this heading shall be for projects located in rural areas: *Provided further*, That for projects located in rural areas, the minimum grant size shall be $1,000,000 and the Secretary may increase the Federal share of costs above 80 percent: *Provided further*, That projects conducted using funds provided under this heading must comply with the requirements of subchapter IV of chapter 31 of title 40, United States Code: *Provided further*, That the Secretary shall conduct a new competition to select the grants and credit assistance awarded under this heading: *Provided further*, That the Secretary may retain up to $20,000,000 of the funds provided under this heading, and may transfer portions of those funds to the Administrators of the Federal Highway Administration, the Federal Transit Administration, the Federal Railroad Administration and the Federal Maritime Administration, to fund the award and oversight of grants and credit assistance made under the National Infrastructure Investments program.

FINANCIAL MANAGEMENT CAPITAL

For necessary expenses for upgrading and enhancing the Department of Transportation's financial systems and re-engineering business processes, $5,000,000, to remain available through September 30, 2016.

CYBER SECURITY INITIATIVES

For necessary expenses for cyber security initiatives, including necessary upgrades to wide area network and information technology infrastructure, improvement of network perimeter controls and identity management, testing and assessment of information technology against business, security, and other requirements, implementation of Federal cyber security initiatives and information infrastructure enhancements, implementation of enhanced security controls on network devices, and enhancement of cyber security workforce training tools, $5,000,000, to remain available through September 30, 2016.

OFFICE OF CIVIL RIGHTS

For necessary expenses of the Office of Civil Rights, $9,600,000.

TRANSPORTATION PLANNING, RESEARCH, AND DEVELOPMENT

For necessary expenses for conducting transportation planning, research, systems development, development activities, and making grants, to remain available until expended, $6,000,000.

WORKING CAPITAL FUND

For necessary expenses for operating costs and capital outlays of the Working Capital Fund, not to exceed $181,500,000 shall be paid from appropriations made available to the Department of Transportation: *Provided*, That such services shall be provided on a competitive basis to entities within the Department of Transportation: *Provided further*, That the above limitation on operating expenses shall not apply to non-DOT entities: *Provided further*, That no funds appropriated in this Act to an agency of the Department shall be transferred to the Working Capital Fund without majority approval of the Working Capital Fund Steering Committee and approval of the Secretary: *Provided further*, That no assessments may be levied against any program, budget activity, subactivity or project funded by this Act unless notice of such assessments and the basis therefor are presented to the House and Senate Committees on Appropriations and are approved by such Committees.

MINORITY BUSINESS RESOURCE CENTER PROGRAM

For the cost of guaranteed loans, $333,000, as authorized by 49 U.S.C. 332: *Provided*, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That these funds are available to subsidize total loan principal, any part of which is to be guaranteed, not to exceed $18,367,000.

In addition, for administrative expenses to carry out the guaranteed loan program, $592,000.

MINORITY BUSINESS OUTREACH

For necessary expenses of Minority Business Resource Center outreach activities, $3,099,000, to remain available until September 30, 2016: *Provided*, That notwithstanding 49 U.S.C. 332, these funds may be used for business opportunities related to any mode of transportation.

PAYMENTS TO AIR CARRIERS

(AIRPORT AND AIRWAY TRUST FUND)

In addition to funds made available from any other source to carry out the essential air service program under 49 U.S.C. 41731 through 41742, $155,000,000, to be derived from the Airport and Airway Trust Fund, to remain available until expended: *Provided*, That in determining between or among carriers competing to provide service to a community, the Secretary may consider the relative subsidy requirements of the carriers: *Provided further*, That basic essential air service minimum requirements shall not include the 15-passenger capacity requirement under subsection 41732(b)(3) of title 49, United States Code: *Provided further*, That none of the funds in this Act or any other Act shall be used to enter into a new contract with a community located less than 40 miles from the nearest small hub airport before the Secretary has negotiated with the community over a local cost share: *Provided further*, That amounts authorized to be distributed for the essential air service program under subsection 41742(b) of title 49, United States Code, shall be made available immediately from amounts otherwise provided to the Administrator of the Federal Aviation Administration: *Provided further*, That the Administrator may reimburse such amounts from fees credited to the account established under section 45303 of title 49, United States Code.

ADMINISTRATIVE PROVISIONS—OFFICE OF THE SECRETARY OF TRANSPORTATION

SEC. 101. None of the funds made available in this Act to the Department of Transportation may be obligated for the Office of the Secretary of Transportation to approve assessments or reimbursable agreements pertaining to funds appropriated to the modal administrations in this Act, except for activities underway on the date of enactment of this Act, unless such assessments or agreements have completed the normal reprogramming process for Congressional notification.

SEC. 102. The Secretary or his designee may engage in activities with States and State legislators to consider proposals related to the reduction of motorcycle fatalities.

SEC. 103. Notwithstanding section 3324 of title 31, United States Code, in addition to authority provided by section 327 of title 49, United States Code, the Department's Working Capital Fund is hereby authorized to provide payments in advance to vendors that are necessary to carry out the Federal transit pass transportation fringe benefit program under Executive Order 13150 and section 3049 of Public Law 109–59: *Provided*, That the Department shall include adequate safeguards in the contract with the vendors to ensure timely and high-quality performance under the contract.

SEC. 104. The Secretary shall post on the Web site of the Department of Transportation a schedule of all meetings of the Credit Council, including the agenda for each meeting, and require the Credit Council to record the decisions and actions of each meeting.

FEDERAL AVIATION ADMINISTRATION

OPERATIONS

(AIRPORT AND AIRWAY TRUST FUND)

For necessary expenses of the Federal Aviation Administration, not otherwise provided for, including operations and research activities related to commercial space transportation, administrative expenses for research and development, establishment of air navigation facilities, the operation (including leasing) and maintenance of aircraft, subsidizing the cost of aeronautical charts and maps sold to the public, lease or purchase of passenger motor vehicles for replacement only, in addition to amounts made available by Public Law 112–95, $9,740,700,000 of which $8,595,000,000 shall be derived from the Airport and Airway Trust

Fund, of which not to exceed $7,396,654,000 shall be available for air traffic organization activities; not to exceed $1,218,458,000 shall be available for aviation safety activities; not to exceed $16,605,000 shall be available for commercial space transportation activities; not to exceed $756,047,000 shall be available for finance and management activities; not to exceed $60,089,000 shall be available for NextGen and operations planning activities; and not to exceed $292,847,000 shall be available for staff offices: *Provided*, That not to exceed 2 percent of any budget activity, except for aviation safety budget activity, may be transferred to any budget activity under this heading: *Provided further*, That no transfer may increase or decrease any appropriation by more than 2 percent: *Provided further*, That any transfer in excess of 2 percent shall be treated as a reprogramming of funds under section 405 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section: *Provided further*, That not later than March 31 of each fiscal year hereafter, the Administrator of the Federal Aviation Administration shall transmit to Congress an annual update to the report submitted to Congress in December 2004 pursuant to section 221 of Public Law 108–176: *Provided further*, That the amount herein appropriated shall be reduced by $100,000 for each day after March 31 that such report has not been submitted to the Congress: *Provided further*, That not later than March 31 of each fiscal year hereafter, the Administrator shall transmit to Congress a companion report that describes a comprehensive strategy for staffing, hiring, and training flight standards and aircraft certification staff in a format similar to the one utilized for the controller staffing plan, including stated attrition estimates and numerical hiring goals by fiscal year: *Provided further*, That the amount herein appropriated shall be reduced by $100,000 per day for each day after March 31 that such report has not been submitted to Congress: *Provided further*, That funds may be used to enter into a grant agreement with a nonprofit standard-setting organization to assist in the development of aviation safety standards: *Provided further*, That none of the funds in this Act shall be available for new applicants for the second career training program: *Provided further*, That none of the funds in this Act shall be available for the Federal Aviation Administration to finalize or implement any regulation that would promulgate new aviation user fees not specifically authorized by law after the date of the enactment of this Act: *Provided further*, That there may be credited to this appropriation as offsetting collections funds received from States, counties, municipalities, foreign authorities, other public authorities, and private sources for expenses incurred in the provision of agency services, including receipts for the maintenance and operation of air navigation facilities, and for issuance, renewal or modification of certificates, including airman, aircraft, and repair station certificates, or for tests related thereto, or for processing major repair or alteration forms: *Provided further*, That of the funds appropriated under this heading, not less than $144,500,000 shall be for the contract tower program, of which not less than $9,500,000 is for the contract tower cost share program: *Provided further*, That none of the funds in this Act for aeronautical charting and cartography are available for activities conducted by, or coordinated through, the Working Capital Fund: *Provided further*, That none of the funds provided in this Act may be used for the Federal Aviation Administration to issue a job announcement for air traffic control specialists that renders ineligible by reason of age any applicant who had been included in the air traffic control specialist applicant inventory as of January 15, 2014, and who was born between February 9, 1983, and October 1, 1984.

FACILITIES AND EQUIPMENT

(AIRPORT AND AIRWAY TRUST FUND)

For necessary expenses, not otherwise provided for, for acquisition, establishment, technical support services, improvement by contract or purchase, and hire of national airspace systems and experimental facilities and equipment, as authorized under part A of subtitle VII of title 49, United States Code, including initial acquisition of necessary sites by lease or grant; engineering and service testing, including construction of test facilities and acquisition of necessary sites by lease or grant; construction and furnishing of quarters and related accommodations for officers and employees of the Federal Aviation Administration stationed at remote localities where such accommodations are not available; and the purchase, lease, or transfer of aircraft from funds available under this heading, including aircraft for aviation regulation and certification; to be derived from the Airport and Airway Trust Fund, $2,600,000,000, of which $460,000,000 shall remain available until September 30, 2015, and $2,140,000,000 shall remain available until September 30, 2017: *Provided*, That there may be credited to this appropriation funds received from States, counties, municipalities, other public authorities, and private sources, for expenses incurred in the establishment, improvement, and modernization of national airspace systems: *Provided further*, That upon initial submission to the Congress of the fiscal year 2016 President's budget, the Secretary of Transportation shall transmit to the Congress a comprehensive capital investment plan for the Federal Aviation Administration which includes funding for each budget line item for fiscal years 2016 through 2020, with total funding for each year of the plan constrained to the funding targets for those years as estimated and approved by the Office of Management and Budget: *Provided further*, That the amount herein appropriated shall be reduced by $100,000 per day for each day after the initial submission of the fiscal year 2016 President's budget that such report has not been submitted to Congress.

RESEARCH, ENGINEERING, AND DEVELOPMENT

(AIRPORT AND AIRWAY TRUST FUND)

For necessary expenses, not otherwise provided for, for research, engineering, and development, as authorized under part A of subtitle VII of title 49, United States Code, including construction of experimental facilities and acquisition of necessary sites by lease or grant, $156,750,000, to be derived from the Airport and Airway Trust Fund and to remain available until September 30, 2017: *Provided*, That there may be credited to this appropriation as offsetting collections, funds received from States, counties, municipalities, other public authorities, and private sources, which shall be available for expenses incurred for research, engineering, and development.

GRANTS-IN-AID FOR AIRPORTS

(LIQUIDATION OF CONTRACT AUTHORIZATION)

(LIMITATION ON OBLIGATIONS)

(AIRPORT AND AIRWAY TRUST FUND)

(INCLUDING TRANSFER OF FUNDS)

(INCLUDING RESCISSION)

For liquidation of obligations incurred for grants-in-aid for airport planning and development, and noise compatibility planning and programs as authorized under subchapter I of chapter 471 and subchapter I of chapter 475 of title 49, United States Code, and under other law authorizing such obligations; for procurement, installation, and commissioning of runway incursion prevention devices and systems at airports of such title; for grants authorized under section 41743 of title 49, United States Code; and for inspection activities and administration of airport safety programs, including those related to airport operating certificates under section 44706 of title 49, United States Code, $3,200,000,000, to be derived from the Airport and Airway Trust Fund and to remain available until expended: *Provided*, That none of the funds under this heading shall be available for the planning or execution of programs the obligations for which are in excess of $3,350,000,000 in fiscal year 2015, notwithstanding section 47117(g) of title 49, United States Code: *Provided further*, That none of the funds under this heading shall be available for the replacement of baggage conveyor systems, reconfiguration of terminal baggage areas, or other airport improvements that are necessary to install bulk explosive detection systems: *Provided further*, That notwithstanding section 47109(a) of title 49, United States Code, the Government's share of allowable project costs under paragraph (2) for subgrants or paragraph (3) of that section shall be 95 percent for a project at other than a large or medium hub airport that is a successive phase of a multiphased construction project for which the project sponsor received a grant in fiscal year 2011 for the construction project: *Provided further*, That notwithstanding any other provision of law, of funds limited under this heading, not more than $107,100,000 shall be obligated for administration, not less than $15,000,000 shall be available for the Airport Cooperative Research Program, not less than $29,750,000 shall be available for Airport Technology Research, and $5,500,000, to remain available until expended, shall be available and transferred to ''Office of the Secretary, Salaries and Expenses'' to carry out the Small Community Air Service Development Program.

(RESCISSION)

Of the amounts authorized for the fiscal year ending September 30, 2015, and prior years under section 48112 of title 49, United States Code, all unobligated balances are permanently rescinded.

ADMINISTRATIVE PROVISIONS—FEDERAL AVIATION ADMINISTRATION

SEC. 110. None of the funds in this Act may be used to compensate in excess of 600 technical staff-years under the federally funded research and development center contract between the Federal Aviation Administration and the Center for Advanced Aviation Systems Development during fiscal year 2015.

SEC. 111. None of the funds in this Act shall be used to pursue or adopt guidelines or regulations requiring airport sponsors to provide to the Federal Aviation Administration without cost building construction, maintenance, utilities and expenses, or space in airport sponsor-owned buildings for services relating to air traffic control, air navigation, or weather reporting: *Provided*, That the prohibition of funds in this section does not apply to negotiations between the agency and airport sponsors to achieve agreement on ''below-market'' rates for these items or to grant assurances that require airport sponsors to provide land without cost to the FAA for air traffic control facilities.

SEC. 112. The Administrator of the Federal Aviation Administration may reimburse amounts made available to satisfy 49 U.S.C. 41742(a)(1) from fees credited under 49 U.S.C. 45303 and any amount remaining in such account at the close of that fiscal year may be made available to satisfy section 41742(a)(1) for the subsequent fiscal year.

SEC. 113. Amounts collected under section 40113(e) of title 49, United States Code, shall be credited to the appropriation current at the time of collection, to be merged with and available for the same purposes of such appropriation.

SEC. 114. None of the funds in this Act shall be available for paying premium pay under subsection 5546(a) of title 5, United States Code, to any Federal Aviation Administration employee unless such employee actually performed work during the time corresponding to such premium pay.

SEC. 115. None of the funds in this Act may be obligated or expended for an employee of the Federal Aviation Administration to purchase a store gift card or gift certificate through use of a Government-issued credit card.

SEC. 116. The Secretary shall apportion to the sponsor of an airport that received scheduled or unscheduled air service from a large certified air carrier (as defined in part 241 of title 14 Code of Federal Regulations, or such other regulations as may be issued by the Secretary under the authority of section 41709) an amount equal to the minimum apportionment specified in 49 U.S.C. 47114(c), if the Secretary determines that airport had more than 10,000 passenger boardings in the preceding calendar year, based on data submitted to the Secretary under part 241 of title 14, Code of Federal Regulations.

SEC. 117. None of the funds in this Act may be obligated or expended for retention bonuses for an employee of the Federal Aviation Administration without the prior written approval of the Assistant Secretary for Administration of the Department of Transportation.

SEC. 118. Subparagraph (D) of section 47124(b)(3) of title 49, United States Code, is amended by striking ''benefit.'' and inserting ''benefit, with the maximum allowable local cost share capped at 20 percent.''.

SEC. 119. Notwithstanding any other provision of law, none of the funds made available under this Act or any prior Act may be used to implement or to continue to implement any limitation on the ability of any owner or operator of a private aircraft to obtain, upon a request to the Administrator of the Federal Aviation Administration, a blocking of that owner's or operator's aircraft registration number from any display of the Federal Aviation Administration's Aircraft Situational Display to Industry data that is made available to the public, except data made available to a Government agency, for the noncommercial flights of that owner or operator.

SEC. 119A. None of the funds in this Act shall be available for salaries and expenses of more than 9 political and Presidential appointees in the Federal Aviation Administration.

SEC. 119B. None of the funds made available under this Act may be used to increase fees pursuant to section 44721 of title 49, United States Code, until the FAA provides to the House and Senate Committees on Appropriations a report that justifies all fees related to aeronautical navigation products and explains how such fees are consistent with Executive Order 13642.

SEC. 119C. None of the funds appropriated or limited by this Act may be used to change weight restrictions or prior permission rules at Teterboro airport in Teterboro, New Jersey.

SEC. 119D. None of the funds in this Act may be used to close a regional operations center of the Federal Aviation Administration or reduce its services unless the Administrator notifies the House and Senate Committees on Appropriations not less than 90 full business days in advance.

SEC. 119E. Section 916 of Public Law 112–95 is amended by striking ''Advanced Materials in Transport Aircraft'' and inserting ''Joint Advanced Materials and Structures''.

SEC. 119F. Subsection 47109(c)(2) of title 49, United States Code, is amended by adding before the period '', except that at a primary non-hub airport located in a State as set forth in paragraph (1) of this subsection that is within 15 miles of another State as set forth in paragraph (1) of this subsection, the Government's share shall be an average of the Government share applicable to any project in each of the States''.

FEDERAL HIGHWAY ADMINISTRATION

LIMITATION ON ADMINISTRATIVE EXPENSES

(HIGHWAY TRUST FUND)

(INCLUDING TRANSFER OF FUNDS)

Not to exceed $426,100,000, together with advances and reimbursements received by the Federal Highway Administration, shall be obligated for necessary expenses for administration and operation of the Federal Highway Administration. In addition, not to exceed $3,248,000 shall be transferred to the Appalachian Regional Commission in accordance with section 104 of title 23, United States Code.

FEDERAL-AID HIGHWAYS

(LIMITATION ON OBLIGATIONS)

(HIGHWAY TRUST FUND)

Funds available for the implementation or execution of programs of Federal-aid Highways and highway safety construction programs authorized under titles 23 and 49, United States Code, and the provisions of Public Law 112–141 shall not exceed total obligations of $40,256,000,000 for fiscal year 2015: *Provided*, That the Secretary may collect and spend fees, as authorized by title 23, United States Code, to cover the costs of services of expert firms, including counsel, in the field of municipal and project finance to assist in the underwriting and servicing of Federal credit instruments and all or a portion of the costs to the Federal Government of servicing such credit instruments: *Provided further*, That such fees are available until expended to pay for such costs: *Provided further*, That such amounts are in addition to administrative expenses that are also available for such purpose, and are not subject to any obligation limitation or the limitation on administrative expenses under section 608 of title 23, United States Code.

(LIQUIDATION OF CONTRACT AUTHORIZATION)

(HIGHWAY TRUST FUND)

For the payment of obligations incurred in carrying out Federal-aid Highways and highway safety construction programs authorized under title 23, United States Code, $40,995,000,000 derived from the Highway Trust Fund (other than the Mass Transit Account), to remain available until expended.

ADMINISTRATIVE PROVISIONS—FEDERAL HIGHWAY ADMINISTRATION

SEC. 120. (a) For fiscal year 2015, the Secretary of Transportation shall—

(1) not distribute from the obligation limitation for Federal-aid Highways—

(A) amounts authorized for administrative expenses and programs by section 104(a) of title 23, United States Code; and

(B) amounts authorized for the Bureau of Transportation Statistics;

(2) not distribute an amount from the obligation limitation for Federal-aid Highways that is equal to the unobligated balance of amounts—

(A) made available from the Highway Trust Fund (other than the Mass Transit Account) for Federal-aid Highways and highway safety construction programs for previous fiscal years the funds for which are allocated by the Secretary (or apportioned by the Secretary under section 202 or 204 of title 23, United States Code); and

(B) for which obligation limitation was provided in a previous fiscal year;

(3) determine the proportion that—

(A) the obligation limitation for Federal-aid Highways, less the aggregate of amounts not distributed under paragraphs (1) and (2) of this subsection; bears to

(B) the total of the sums authorized to be appropriated for the Federal-aid Highways and highway safety construction programs (other than sums authorized to be appropriated for provisions of law described in paragraphs (1) through (12) of subsection (b) and sums authorized to be appropriated for section 119 of title 23, United States Code, equal to the amount referred to in subsection (b)(13) for such fiscal year), less the aggregate of the amounts not distributed under paragraphs (1) and (2) of this subsection;

(4) distribute the obligation limitation for Federal-aid Highways, less the aggregate amounts not distributed under paragraphs (1) and (2), for each of the programs (other than programs to which paragraph (1) applies) that are allocated by the Secretary under the Moving Ahead for Progress in the 21st Century Act and title 23, United States Code, or apportioned by the Secretary under sections 202 or 204 of that title, by multiplying—

(A) the proportion determined under paragraph (3); by

(B) the amounts authorized to be appropriated for each such program for such fiscal year; and

(5) distribute the obligation limitation for Federal-aid Highways, less the aggregate amounts not distributed under paragraphs (1) and (2) and the amounts distributed under paragraph (4), for Federal-aid Highways and highway safety construction programs that are apportioned by the Secretary under title 23, United States Code (other than the amounts apportioned for the National Highway Performance Program in section 119 of title 23, United States Code, that are exempt from the limitation under subsection (b)(13) and the amounts apportioned under sections 202 and 204 of that title) in the proportion that—

(A) amounts authorized to be appropriated for the programs that are apportioned under title 23, United States Code, to each State for such fiscal year; bears to

(B) the total of the amounts authorized to be appropriated for the programs that are apportioned under title 23, United States Code, to all States for such fiscal year.

(b) EXCEPTIONS FROM OBLIGATION LIMITATION.—The obligation limitation for Federal-aid Highways shall not apply to obligations under or for—

(1) section 125 of title 23, United States Code;

(2) section 147 of the Surface Transportation Assistance Act of 1978 (23 U.S.C. 144 note; 92 Stat. 2714);

(3) section 9 of the Federal-Aid Highway Act of 1981 (95 Stat. 1701);

(4) subsections (b) and (j) of section 131 of the Surface Transportation Assistance Act of 1982 (96 Stat. 2119);

(5) subsections (b) and (c) of section 149 of the Surface Transportation and Uniform Relocation Assistance Act of 1987 (101 Stat. 198);

(6) sections 1103 through 1108 of the Intermodal Surface Transportation Efficiency Act of 1991 (105 Stat. 2027);

(7) section 157 of title 23, United States Code (as in effect on June 8, 1998);

(8) section 105 of title 23, United States Code (as in effect for fiscal years 1998 through 2004, but only in an amount equal to $639,000,000 for each of those fiscal years);

(9) Federal-aid Highways programs for which obligation authority was made available under the Transportation Equity Act

for the 21st Century (112 Stat. 107) or subsequent Acts for multiple years or to remain available until expended, but only to the extent that the obligation authority has not lapsed or been used;

(10) section 105 of title 23, United States Code (as in effect for fiscal years 2005 through 2012, but only in an amount equal to $639,000,000 for each of those fiscal years);

(11) section 1603 of SAFETEA–LU (23 U.S.C. 118 note; 119 Stat. 1248), to the extent that funds obligated in accordance with that section were not subject to a limitation on obligations at the time at which the funds were initially made available for obligation; and

(12) section 119 of title 23, United States Code (as in effect for fiscal years 2013 and 2014, but only in an amount equal to $639,000,000 for each of those fiscal years); and

(13) section 119 of title 23, United States Code (but, for fiscal year 2015, only in an amount equal to $639,000,000).

(c) REDISTRIBUTION OF UNUSED OBLIGATION AUTHORITY.—Notwithstanding subsection (a), the Secretary shall, after August 1 of such fiscal year—

(1) revise a distribution of the obligation limitation made available under subsection (a) if an amount distributed cannot be obligated during that fiscal year; and

(2) redistribute sufficient amounts to those States able to obligate amounts in addition to those previously distributed during that fiscal year, giving priority to those States having large unobligated balances of funds apportioned under sections 144 (as in effect on the day before the date of enactment of Public Law 112–141) and 104 of title 23, United States Code.

(d) APPLICABILITY OF OBLIGATION LIMITATIONS TO TRANSPORTATION RESEARCH PROGRAMS.—

(1) IN GENERAL.—Except as provided in paragraph (2), the obligation limitation for Federal-aid Highways shall apply to contract authority for transportation research programs carried out under—

(A) chapter 5 of title 23, United States Code; and

(B) division E of the Moving Ahead for Progress in the 21st Century Act.

(2) EXCEPTION.—Obligation authority made available under paragraph (1) shall—

(A) remain available for a period of 4 fiscal years; and

(B) be in addition to the amount of any limitation imposed on obligations for Federal-aid Highways and highway safety construction programs for future fiscal years.

(e) REDISTRIBUTION OF CERTAIN AUTHORIZED FUNDS.—

(1) IN GENERAL.—Not later than 30 days after the date of distribution of obligation limitation under subsection (a), the Secretary shall distribute to the States any funds (excluding funds authorized for the program under section 202 of title 23, United States Code) that—

(A) are authorized to be appropriated for such fiscal year for Federal-aid Highways programs; and

(B) the Secretary determines will not be allocated to the States (or will not be apportioned to the States under section 204 of title 23, United States Code), and will not be available for obligation, for such fiscal year because of the imposition of any obligation limitation for such fiscal year.

(2) RATIO.—Funds shall be distributed under paragraph (1) in the same proportion as the distribution of obligation authority under subsection (a)(5).

(3) AVAILABILITY.—Funds distributed to each State under paragraph (1) shall be available for any purpose described in section 133(b) of title 23, United States Code.

SEC. 121. Notwithstanding 31 U.S.C. 3302, funds received by the Bureau of Transportation Statistics from the sale of data products, for necessary expenses incurred pursuant to chapter 63 of title 49, United States Code, may be credited to the Federal-aid Highways account for the purpose of reimbursing the Bureau for such expenses: *Provided*, That such funds shall be subject to the obligation limitation for Federal-aid Highways and highway safety construction programs.

SEC. 122. Not less than 15 days prior to waiving, under his or her statutory authority, any Buy America requirement for Federal-aid Highways projects, the Secretary of Transportation shall make an informal public notice and comment opportunity on the intent to issue such waiver and the reasons therefor: *Provided*, That the Secretary shall provide an annual report to the House and Senate Committees on Appropriations on any waivers granted under the Buy America requirements.

SEC. 123. (a) IN GENERAL.—Except as provided in subsection (b), none of the funds made available, limited, or otherwise affected by this Act shall be used to approve or otherwise authorize the imposition of any toll on any segment of highway located on the Federal-aid system in the State of Texas that—

(1) as of the date of enactment of this Act, is not tolled;

(2) is constructed with Federal assistance provided under title 23, United States Code; and

(3) is in actual operation as of the date of enactment of this Act.

(b) EXCEPTIONS.—

(1) NUMBER OF TOLL LANES.—Subsection (a) shall not apply to any segment of highway on the Federal-aid system described in that subsection that, as of the date on which a toll is imposed on the segment, will have the same number of nontoll lanes as were in existence prior to that date.

(2) HIGH-OCCUPANCY VEHICLE LANES.—A high-occupancy vehicle lane that is converted to a toll lane shall not be subject to this section, and shall not be considered to be a nontoll lane for purposes of determining whether a highway will have fewer nontoll lanes than prior to the date of imposition of the toll, if—

(A) high-occupancy vehicles occupied by the number of passengers specified by the entity operating the toll lane may use the toll lane without paying a toll, unless otherwise specified by the appropriate county, town, municipal or other local government entity, or public toll road or transit authority; or

(B) each high-occupancy vehicle lane that was converted to a toll lane was constructed as a temporary lane to be replaced by a toll lane under a plan approved by the appropriate county, town, municipal or other local government entity, or public toll road or transit authority.

SEC. 124. None of the funds in this Act to the Department of Transportation may be used to provide credit assistance unless not less than 3 days before any application approval to provide credit assistance under sections 603 and 604 of title 23, United States Code, the Secretary of Transportation provides notification in writing to the following committees: the House and Senate Committees on Appropriations; the Committee on Environment and Public Works and the Committee on Banking, Housing and Urban Affairs of the Senate; and the Committee on Transportation and Infrastructure of the House of Representatives: *Provided*, That such notification shall include, but not be limited to, the name of the project sponsor; a description of the project; whether credit assistance will be provided as a direct loan, loan guarantee, or line of credit; and the amount of credit assistance.

SEC. 125. Section 127 of title 23, United States Code, is amended by adding at the end the following:

''(j) OPERATION OF VEHICLES ON CERTAIN OTHER WISCONSIN HIGHWAYS.—If any segment of the United States Route 41 corridor, as described in section 1105(c)(57) of the Intermodal Surface Transportation Efficiency Act of 1991, is designated as a route on the Interstate System, a vehicle that could operate legally on that segment before the date of such designation may continue to operate on that segment, without regard to any requirement under subsection (a).

''(k) OPERATION OF VEHICLES ON CERTAIN MISSISSIPPI HIGHWAYS.—If any segment of United States Route 78 in Mississippi from mile marker 0 to mile marker 113 is designated as part of the Interstate System, no limit established under this section may apply to that segment with respect to the operation of any vehicle that could have legally operated on that segment before such designation.

''(l) OPERATION OF VEHICLES ON CERTAIN KENTUCKY HIGHWAYS.—

''(1) IN GENERAL.—If any segment of highway described in paragraph (2) is designated as a route on the Interstate System, a vehicle that could operate legally on that segment before the date of such designation may continue to operate on that segment, without regard to any requirement under subsection (a).

''(2) DESCRIPTION OF HIGHWAY SEGMENTS.—The highway segments referred to in paragraph (1) are as follows:

''(A) Interstate Route 69 in Kentucky (formerly the Wendell H. Ford (Western Kentucky) Parkway) from the Interstate Route 24 Interchange, near Eddyville, to the Edward T. Breathitt (Pennyrile) Parkway Interchange.

''(B) The Edward T. Breathitt (Pennyrile) Parkway (to be designated as Interstate Route 69) in Kentucky from the Wendell H. Ford (Western Kentucky) Parkway Interchange to near milepost 77, and on new alignment to an interchange on the Audubon Parkway, if the segment is designated as part of the Interstate System.''.

FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION

MOTOR CARRIER SAFETY OPERATIONS AND PROGRAMS

(LIQUIDATION OF CONTRACT AUTHORIZATION)

(LIMITATION ON OBLIGATIONS)

(HIGHWAY TRUST FUND)

For payment of obligations incurred in the implementation, execution and administration of motor carrier safety operations and programs pursuant to section 31104(i) of title 49, United States Code, and sections 4127 and 4134 of Public Law 109–59, as amended by Public Law 112–141, $271,000,000, to be derived from the Highway Trust Fund (other than the Mass Transit Account), together with advances and reimbursements received by the Federal Motor Carrier Safety Administration, the sum of which shall remain available until expended: *Provided*, That funds available for implementation, execution or administration of motor carrier safety operations and programs authorized under title 49, United States Code, shall not exceed total obligations of $271,000,000 for ''Motor Carrier Safety Operations and Programs'' for fiscal year 2015, of which $9,000,000, to remain available for obligation until September 30, 2017, is for the research and technology program, and of which $34,545,000, to remain available for obligation until September 30, 2017, is for information management: *Provided further*, That $2,300,000 shall be made available for

commercial motor vehicle operator grants to carry out section 4134 of Public Law 109–59, as amended by Public Law 112–141, of which $1,300,000 is to be made available from prior year unobligated contract authority provided in Public Law 112–141, or other appropriations or authorization acts: *Provided further*, That of unobligated contract authority provided in Public Law 112–141, or other appropriations or authorization acts for ''Motor Carrier Safety Operations and Programs'', $6,700,000 shall be made available for enforcement and investigation activities related to the safe transportation of energy products, information management and technology needs related to the monitoring of high-risk carriers and carriers operating under consent agreements, and the Capital Improvement Plan for border facilities and field offices, and an additional $4,000,000 shall be made available to administer the study required under section 133 of this Act, to remain available for obligation until September 30, 2017: *Provided further*, That the Secretary shall complete final regulatory action on the implementation of 49 United States Code 31137 no later than June 1, 2015.

MOTOR CARRIER SAFETY GRANTS

(LIQUIDATION OF CONTRACT AUTHORIZATION)

(LIMITATION ON OBLIGATIONS)

(HIGHWAY TRUST FUND)

For payment of obligations incurred in carrying out sections 31102, 31104(a), 31106, 31107, 31109, 31309, 31313 of title 49, United States Code, and sections 4126 and 4128 of Public Law 109–59, as amended by Public Law 112–141, $313,000,000, to be derived from the Highway Trust Fund (other than the Mass Transit Account) and to remain available until expended: *Provided*, That funds available for the implementation or execution of motor carrier safety programs shall not exceed total obligations of $313,000,000 in fiscal year 2015 for ''Motor Carrier Safety Grants''; of which $218,000,000 shall be available for the motor carrier safety assistance program, $30,000,000 shall be available for commercial driver's license program improvement grants, $32,000,000 shall be available for border enforcement grants, $5,000,000 shall be available for performance and registration information system management grants, $25,000,000 shall be available for the commercial vehicle information systems and networks deployment program, and $3,000,000 shall be available for safety data improvement grants: *Provided further*, That, of the funds made available herein for the motor carrier safety assistance program, $32,000,000 shall be available for audits of new entrant motor carriers.

ADMINISTRATIVE PROVISIONS—FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION

SEC. 130. Funds appropriated or limited in this Act shall be subject to the terms and conditions stipulated in section 350 of Public Law 107–87 and section 6901 of Public Law 110–28.

SEC. 131. The Federal Motor Carrier Safety Administration shall send notice of 49 CFR section 385.308 violations by certified mail, registered mail, or another manner of delivery, which records the receipt of the notice by the persons responsible for the violations.

SEC. 132. None of the funds limited or otherwise made available under this Act shall be used by the Secretary to enforce any regulation prohibiting a State from issuing a commercial learner's permit to individuals under the age of eighteen if the State had a law authorizing the issuance of commercial learner's permits to individuals under eighteen years of age as of May 9, 2011.

SEC. 133. (a) TEMPORARY SUSPENSION OF ENFORCEMENT.—None of the funds appropriated or otherwise made available by this Act or any other Act shall be used to enforce sections 395.3(c) and 395.3(d) of title 49, Code of Federal Regulations, and such sections shall have no force or effect from the date of enactment of this Act until the later of September 30, 2015, or upon submission of the final report issued by the Secretary under this section. The restart provisions in effect on June 30, 2013, shall be in effect during this period.

(b) PUBLIC NOTIFICATION.—As soon as possible after the date of the enactment of this Act, the Secretary of Transportation shall publish a Notice in the Federal Register and on the Federal Motor Carrier Safety Administration website announcing that the provisions in the rule referred to in subsection (a) shall have no force or effect from the date of enactment of this Act through September 30, 2015, and the restart rule in effect on June 30, 2013, shall immediately be in effect.

(c) COMMERCIAL MOTOR VEHICLE (CMV) DRIVER RESTART STUDY.—Within 90 days of the date of enactment of this Act, the Secretary shall initiate a naturalistic study of the operational, safety, health and fatigue impacts of the restart provisions in sections 395.3(c) and 395.3(d) of title 49, Code of Federal Regulations, on commercial motor vehicle drivers. The study required under this subsection shall—

(1) compare the work schedules and assess operator fatigue between the following two groups of commercial motor vehicle drivers, each large enough to produce statistically significant results:

(A) commercial motor vehicle drivers who operate under such provisions, in effect between July 1, 2013, and the day before the date of enactment of this Act, and

(B) commercial motor vehicle drivers who operate under the provisions in effect on June 30, 2013.

(2) compare, at a minimum, the 5-month work schedules, and assess safety critical events (crashes, near crashes and crash-relevant conflicts) and operator fatigue between the commercial motor vehicle drivers identified under subsection (c)(1) of this section from a statistically significant sample of drivers comprised of fleets of all sizes, including long-haul, regional and short-haul operations in various sectors of the industry, including flat-bed, refrigerated, tank, and dry-van, to the extent practicable;

(3) assess drivers' safety critical events, fatigue and levels of alertness, and driver health outcomes by using both electronic and captured record of duty status, including the Psychomotor Vigilance Test (PVT), e-logging data, actigraph watches and cameras or other on-board monitoring systems that record or measure safety critical events and driver alertness;

(4) utilize data from electronic logging devices, consistent to the extent practicable, with the anticipated requirements for such devices in section 31137(b) of title 49, United States Code, from motor carriers and drivers of commercial motor vehicles, notwithstanding any limitation on the use of such data under section 31137(e) of title 49, United States Code; and

(5) include the development of an initial study plan and final report, each of which shall be subject to an independent peer review by a panel of individuals with relevant medical and scientific expertise.

(d) DEPARTMENT OF TRANSPORTATION OFFICE OF INSPECTOR GENERAL REVIEW.—Prior to the study required under this subsection commencing and within 60 days of the date of enactment of this Act, the Secretary shall submit a plan outlining the scope and methodology for the study to the Department of Transportation Inspector General.

(1) Within 30 days of receiving the plan, the Office of Inspector General shall review and report whether it includes—

(A) a sufficient number of participating drivers to produce statistically significant results consistent with subsection (c)(2);

(B) the use of reliable technologies to assess the operational, safety and fatigue components of the study to produce consistent and valid results;

(C) appropriate performance measures to properly evaluate the study outcomes; and

(D) an appropriate selection of the independent review panel under subsection (c)(5).

(2) The Office of Inspector General shall report its findings, conclusions and any recommendations to the Secretary and to the House and Senate Committees on Appropriations within 30 days of receipt of the plan.

(e) REPORTING REQUIREMENTS.—The Secretary shall submit a final report on the findings and conclusions of the study and the Department's recommendations on whether the provisions in effect on July 1, 2013, provide a greater net benefit for the operational, safety, health and fatigue impacts of the restart provisions to the Inspector General within 210 days of receiving the Office of the Inspector General report required in subsection (d)(2).

(1) Within 60 days of receipt of the Secretary's findings and recommendations in subsection (e), the Inspector General shall report to the Secretary and the House and Senate Committees on Appropriations on the study's compliance with the requirements outlined under subsection (c).

(2) Upon submission of the Office of the Inspector General report in paragraph (1), the Secretary shall submit its report to the House and Senate Committees on Appropriations and make the report publically available on its website.

(f) CERTIFICATION.—The Secretary of Transportation shall certify in writing in a manner addressing the Inspector General's findings and recommendations in subsection (d)(1) and (e)(1) of this section that the Secretary has met the requirements as described in section (c) and (d).

(g) PAPERWORK REDUCTION ACT EXCEPTION.—The study and the Office of the Inspector General reviews shall not be subject to section 3506 or 3507 of title 44, United States Code.

SEC. 134. None of the funds limited or otherwise made available under the heading ''Motor Carrier Safety Operations and Programs'' may be used to deny an application to renew a Hazardous Materials Safety Program permit for a motor carrier based on that carrier's Hazardous Materials Out-of-Service rate, unless the carrier has the opportunity to submit a written description of corrective actions taken, and other documentation the carrier wishes the Secretary to consider, including submitting a corrective action plan, and the Secretary determines the actions or plan is insufficient to address the safety concerns that resulted in that Hazardous Materials Out-of-Service rate.

NATIONAL HIGHWAY TRAFFIC SAFETY ADMINISTRATION

OPERATIONS AND RESEARCH

For expenses necessary to discharge the functions of the Secretary, with respect to traffic and highway safety authorized under chapter 301 and part C of subtitle VI of title 49, United States Code, $130,000,000, of which $20,000,000 shall remain available through September 30, 2016.

OPERATIONS AND RESEARCH

(LIQUIDATION OF CONTRACT AUTHORIZATION)

(LIMITATION ON OBLIGATIONS)

(HIGHWAY TRUST FUND)

For payment of obligations incurred in carrying out the provisions of 23 U.S.C. 403, and chapter 303 of title 49, United States

Code, $138,500,000, to be derived from the Highway Trust Fund (other than the Mass Transit Account) and to remain available until expended: *Provided*, That none of the funds in this Act shall be available for the planning or execution of programs the total obligations for which, in fiscal year 2015, are in excess of $138,500,000, of which $133,500,000 shall be for programs authorized under 23 U.S.C. 403 and $5,000,000 shall be for the National Driver Register authorized under chapter 303 of title 49, United States Code: *Provided further*, That within the $133,500,000 obligation limitation for operations and research, $20,000,000 shall remain available until September 30, 2016, and shall be in addition to the amount of any limitation imposed on obligations for future years: *Provided further*, That $20,000,000 of the total obligation limitation for operations and research in fiscal year 2015 shall be applied toward unobligated balances of contract authority provided in prior Acts for carrying out the provisions of 23 U.S.C. 403, and chapter 303 of title 49, United States Code.

HIGHWAY TRAFFIC SAFETY GRANTS

(LIQUIDATION OF CONTRACT AUTHORIZATION)

(LIMITATION ON OBLIGATIONS)

(HIGHWAY TRUST FUND)

For payment of obligations incurred in carrying out provisions of 23 U.S.C. 402 and 405, section 2009 of Public Law 109–59, as amended by Public Law 112–141, and section 31101(a)(6) of Public Law 112–141, to remain available until expended, $561,500,000, to be derived from the Highway Trust Fund (other than the Mass Transit Account): *Provided*, That none of the funds in this Act shall be available for the planning or execution of programs the total obligations for which, in fiscal year 2015, are in excess of $561,500,000 for programs authorized under 23 U.S.C. 402 and 405, section 2009 of Public Law 109–59, as amended by Public Law 112–141, and section 31101(a)(6) of Public Law 112–141, of which $235,000,000 shall be for ''Highway Safety Programs'' under 23 U.S.C. 402; $272,000,000 shall be for ''National Priority Safety Programs'' under 23 U.S.C. 405; $29,000,000 shall be for ''High Visibility Enforcement Program'' under section 2009 of Public Law 109–59, as amended by Public Law 112–141; $25,500,000 shall be for ''Administrative Expenses'' under section 31101(a)(6) of Public Law 112–141: *Provided further*, That none of these funds shall be used for construction, rehabilitation, or remodeling costs, or for office furnishings and fixtures for State, local or private buildings or structures: *Provided further*, That not to exceed $500,000 of the funds made available for ''National Priority Safety Programs'' under 23 U.S.C. 405 for ''Impaired Driving Countermeasures'' (as described in subsection (d) of that section) shall be available for technical assistance to the States: *Provided further*, That with respect to the ''Transfers'' provision under 23 U.S.C. 405(a)(1)(G), any amounts transferred to increase the amounts made available under section 402 shall include the obligation authority for such amounts: *Provided further*, That the Administrator shall notify the House and Senate Committees on Appropriations of any exercise of the authority granted under the previous proviso or under 23 U.S.C. 405(a)(1)(G) within 60 days.

ADMINISTRATIVE PROVISIONS—NATIONAL HIGHWAY TRAFFIC SAFETY ADMINISTRATION

SEC. 140. An additional $130,000 shall be made available to the National Highway Traffic Safety Administration, out of the amount limited for section 402 of title 23, United States Code, to pay for travel and related expenses for State management reviews and to pay for core competency development training and related expenses for highway safety staff.

SEC. 141. The limitations on obligations for the programs of the National Highway Traffic Safety Administration set in this Act shall not apply to obligations for which obligation authority was made available in previous public laws but only to the extent that the obligation authority has not lapsed or been used.

SEC. 142. None of the funds in this Act shall be used to implement section 404 of title 23, United States Code.

FEDERAL RAILROAD ADMINISTRATION

SAFETY AND OPERATIONS

For necessary expenses of the Federal Railroad Administration, not otherwise provided for, $186,870,000, of which $15,400,000 shall remain available until expended.

RAILROAD RESEARCH AND DEVELOPMENT

For necessary expenses for railroad research and development, $39,100,000, to remain available until expended.

RAILROAD REHABILITATION AND IMPROVEMENT FINANCING PROGRAM

The Secretary of Transportation is authorized to issue direct loans and loan guarantees pursuant to sections 501 through 504 of the Railroad Revitalization and Regulatory Reform Act of 1976 (Public Law 94–210), as amended, such authority to exist as long as any such direct loan or loan guarantee is outstanding: *Provided*, That pursuant to section 502 of such Act, as amended, no new direct loans or loan guarantee commitments shall be made using Federal funds for the credit risk premium during fiscal year 2015: *Provided further*, That no new direct loans or loan guarantee commitments made under the Railroad Rehabilitation and Improvement Financing Program in fiscal year 2015 shall cause the total principal amount of direct loans and loan guarantees committed under the Railroad Rehabilitation and Improvement Financing Program to projects in a single state to exceed $5,600,000,000.

OPERATING GRANTS TO THE NATIONAL RAILROAD PASSENGER CORPORATION

To enable the Secretary of Transportation to make quarterly grants to the National Railroad Passenger Corporation, in amounts based on the Secretary's assessment of the Corporation's seasonal cash flow requirements, for the operation of intercity passenger rail, as authorized by section 101 of the Passenger Rail Investment and Improvement Act of 2008 (division B of Public Law 110–432), $250,000,000, to remain available until expended: *Provided*, That the amounts available under this paragraph shall be available for the Secretary to approve funding to cover operating losses for the Corporation only after receiving and reviewing a grant request for each specific train route: *Provided further*, That each such grant request shall be accompanied by a detailed financial analysis, revenue projection, and capital expenditure projection justifying the Federal support to the Secretary's satisfaction: *Provided further*, That not later than 60 days after enactment of this Act, the Corporation shall transmit, in electronic format, to the Secretary and the House and Senate Committees on Appropriations the annual budget, business plan, the 5-Year Financial Plan for fiscal year 2015 required under section 204 of the Passenger Rail Investment and Improvement Act of 2008 and the comprehensive fleet plan for all Amtrak rolling stock: *Provided further*, That the budget, business plan and the 5-Year Financial Plan shall include annual information on the maintenance, refurbishment, replacement, and expansion for all Amtrak rolling stock consistent with the comprehensive fleet plan: *Provided further*, That the Corporation shall provide monthly performance reports in an electronic format which shall describe the work completed to date, any changes to the business plan, and the reasons for such changes as well as progress against the milestones and target dates of the 2012 performance improvement plan: *Provided further*, That the Corporation's budget, business plan, 5-Year Financial Plan, semiannual reports, monthly reports, comprehensive fleet plan and all supplemental reports or plans comply with requirements in Public Law 112–55: *Provided further*, That none of the funds provided in this Act may be used to support any route on which Amtrak offers a discounted fare of more than 50 percent off the normal peak fare: *Provided further*, That the preceding proviso does not apply to routes where the operating loss as a result of the discount is covered by a State and the State participates in the setting of fares.

CAPITAL AND DEBT SERVICE GRANTS TO THE NATIONAL RAILROAD PASSENGER CORPORATION

To enable the Secretary of Transportation to make grants to the National Railroad Passenger Corporation for capital investments as authorized by sections 101(c), 102, and 219(b) of the Passenger Rail Investment and Improvement Act of 2008 (division B of Public Law 110–432), $1,140,000,000, to remain available until expended, of which not to exceed $175,000,000 shall be for debt service obligations as authorized by section 102 of such Act: *Provided*, That of the amounts made available under this heading, not less than $50,000,000 shall be made available to bring Amtrak-served facilities and stations into compliance with the Americans with Disabilities Act: *Provided further*, That after an initial distribution of up to $200,000,000, which shall be used by the Corporation as a working capital account, all remaining funds shall be provided to the Corporation only on a reimbursable basis: *Provided further*, That of the amounts made available under this heading, up to $50,000,000 may be used by the Secretary to subsidize operating losses of the Corporation should the funds provided under the heading ''Operating Grants to the National Railroad Passenger Corporation'' be insufficient to meet operational costs for fiscal year 2015: *Provided further*, That the Secretary may retain up to one-half of 1 percent of the funds provided under this heading to fund the costs of project management and oversight of activities authorized by subsections 101(a) and 101(c) of division B of Public Law 110–432: *Provided further*, That the Secretary shall approve funding for capital expenditures, including advance purchase orders of materials, for the Corporation only after receiving and reviewing a grant request for each specific capital project justifying the Federal support to the Secretary's satisfaction: *Provided further*, That except as otherwise provided herein, none of the funds under this heading may be used to subsidize operating losses of the Corporation: *Provided further*, That none of the funds under this heading may be used for capital projects not approved by the Secretary of Transportation or on the Corporation's fiscal year 2015 business plan: *Provided further*, That in addition to the project management oversight funds authorized under section 101(d) of division B of Public Law 110–432, the Secretary may retain up to an additional $5,000,000 of the funds provided under this heading to fund expenses associated with implementing section 212 of division B of Public Law 110–432, including the amendments made by section 212 to section 24905 of title 49, United States Code.

ADMINISTRATIVE PROVISIONS—FEDERAL RAILROAD ADMINISTRATION

SEC. 150. The Secretary of Transportation may receive and expend cash, or receive and utilize spare parts and similar items, from

non-United States Government sources to repair damages to or replace United States Government owned automated track inspection cars and equipment as a result of third-party liability for such damages, and any amounts collected under this section shall be credited directly to the Safety and Operations account of the Federal Railroad Administration, and shall remain available until expended for the repair, operation and maintenance of automated track inspection cars and equipment in connection with the automated track inspection program.

SEC. 151. Notwithstanding any other provision of law, rule or regulation, the Secretary of Transportation is authorized to allow the issuer of any preferred stock heretofore sold to the Department to redeem or repurchase such stock upon the payment to the Department of an amount to be determined by the Secretary.

SEC. 152. None of the funds provided to the National Railroad Passenger Corporation may be used to fund any overtime costs in excess of $35,000 for any individual employee: *Provided*, That the President of Amtrak may waive the cap set in the previous proviso for specific employees when the President of Amtrak determines such a cap poses a risk to the safety and operational efficiency of the system: *Provided further*, That the President of Amtrak shall report to the House and Senate Committees on Appropriations each quarter of the calendar year on waivers granted to employees and amounts paid above the cap for each month within such quarter and delineate the reasons each waiver was granted: *Provided further*, That the President of Amtrak shall report to the House and Senate Committees on Appropriations by March 1, 2015, a summary of all overtime payments incurred by the Corporation for 2014 and the three prior calendar years: *Provided further*, That such summary shall include the total number of employees that received waivers and the total overtime payments the Corporation paid to those employees receiving waivers for each month for 2014 and for the three prior calendar years.

SEC. 153. For an additional amount, $10,000,000 shall be made available until expended for the Secretary to make grants for grade crossing and track improvements on rail routes that transport energy products.

FEDERAL TRANSIT ADMINISTRATION

ADMINISTRATIVE EXPENSES

For necessary administrative expenses of the Federal Transit Administration's programs authorized by chapter 53 of title 49, United States Code, $105,933,000, of which not less than $4,500,000 shall be available to carry out the provisions of 49 U.S.C. 5329 and not less than $1,000,000 shall be available to carry out the provisions of 49 U.S.C. 5326: *Provided*, That none of the funds provided or limited in this Act may be used to create a permanent office of transit security under this heading: *Provided further*, That upon submission to the Congress of the fiscal year 2016 President's budget, the Secretary of Transportation shall transmit to Congress the annual report on New Starts, including proposed allocations for fiscal year 2016.

TRANSIT FORMULA GRANTS

(LIQUIDATION OF CONTRACT AUTHORIZATION)

(LIMITATION ON OBLIGATIONS)

(HIGHWAY TRUST FUND)

For payment of obligations incurred in the Federal Public Transportation Assistance Program in this account, and for payment of obligations incurred in carrying out the provisions of 49 U.S.C. 5305, 5307, 5310, 5311, 5318, 5322(d), 5329(e)(6), 5335, 5337, 5339, and 5340, as amended by Public Law 112–141, and section 20005(b) of Public Law 112–141, $9,500,000,000, to be derived from the Mass Transit Account of the Highway Trust Fund and to remain available until expended: *Provided*, That funds available for the implementation or execution of programs authorized under 49 U.S.C. 5305, 5307, 5310, 5311, 5318, 5322(d), 5329(e)(6), 5335, 5337, 5339, and 5340, as amended by Public Law 112–141, and section 20005(b) of Public Law 112–141, shall not exceed total obligations of $8,595,000,000 in fiscal year 2015.

TRANSIT RESEARCH

For necessary expenses to carry out 49 U.S.C. 5312 and 5313, $33,000,000, to remain available until expended: *Provided*, That $30,000,000 shall be for activities authorized under 49 U.S.C. 5312 and $3,000,000 shall be for activities authorized under 49 U.S.C. 5313.

TECHNICAL ASSISTANCE AND TRAINING

For necessary expenses to carry out 49 U.S.C. 5314 and 5322(a), (b) and (e), $4,500,000, to remain available until expended: *Provided*, That $4,000,000 shall be for activities authorized under 49 U.S.C. 5314 and $500,000 shall be for activities authorized under 49 U.S.C. 5322(a), (b) and (e).

CAPITAL INVESTMENT GRANTS

(INCLUDING RESCISSION OF FUNDS)

For necessary expenses to carry out 49 U.S.C. 5309, $2,120,000,000, to remain available until expended: *Provided*, That when distributing funds among Recommended New Starts Projects, the Administrator shall first fully fund those projects covered by a full funding grant agreement, then fully fund those projects whose section 5309 share is less than 40 percent, and then distribute the remaining funds so as to protect as much as possible the projects' budgets and schedules: *Provided further*, That of the unobligated amounts available for the Capital Investment Grants program, $121,546,138 is hereby rescinded.

GRANTS TO THE WASHINGTON METROPOLITAN AREA TRANSIT AUTHORITY

For grants to the Washington Metropolitan Area Transit Authority as authorized under section 601 of division B of Public Law 110–432, $150,000,000, to remain available until expended: *Provided*, That the Secretary shall approve grants for capital and preventive maintenance expenditures for the Washington Metropolitan Area Transit Authority only after receiving and reviewing a request for each specific project: *Provided further*, That prior to approving such grants, the Secretary shall certify that the Washington Metropolitan Area Transit Authority is making significant progress in eliminating the material weaknesses, significant deficiencies, and minor control deficiencies identified in the most recent Financial Management Oversight Review: *Provided further*, That the Secretary shall determine that the Washington Metropolitan Area Transit Authority has placed the highest priority on those investments that will improve the safety of the system before approving such grants: *Provided further*, That the Secretary, in order to ensure safety throughout the rail system, may waive the requirements of section 601(e)(1) of title VI of Public Law 110–432 (112 Stat. 4968).

ADMINISTRATIVE PROVISIONS—FEDERAL TRANSIT ADMINISTRATION

SEC. 160. The limitations on obligations for the programs of the Federal Transit Administration shall not apply to any authority under 49 U.S.C. 5338, previously made available for obligation, or to any other authority previously made available for obligation.

SEC. 161. Notwithstanding any other provision of law, funds appropriated or limited by this Act under the heading ''Fixed Guideway Capital Investment'' of the Federal Transit Administration for projects specified in this Act or identified in reports accompanying this Act not obligated by September 30, 2019, and other recoveries, shall be directed to projects eligible to use the funds for the purposes for which they were originally provided.

SEC. 162. Notwithstanding any other provision of law, any funds appropriated before October 1, 2014, under any section of chapter 53 of title 49, United States Code, that remain available for expenditure, may be transferred to and administered under the most recent appropriation heading for any such section.

SEC. 163. The Secretary may not enforce regulations related to charter bus service under part 604 of title 49, Code of Federal Regulations, for any transit agency that during fiscal year 2008 was both initially granted a 60-day period to come into compliance with part 604, and then was subsequently granted an exception from said part.

SEC. 164. For purposes of applying the project justification and local financial commitment criteria of 49 U.S.C. 5309(d) to a New Starts project, the Secretary may consider the costs and ridership of any connected project in an instance in which private parties are making significant financial contributions to the construction of the connected project; additionally, the Secretary may consider the significant financial contributions of private parties to the connected project in calculating the non-Federal share of net capital project costs for the New Starts project.

SEC. 165. Notwithstanding any other provision of law, none of the funds made available in this Act shall be used to enter into a full funding grant agreement for a project with a New Starts share greater than 60 percent.

SEC. 166. None of the funds in this or any other Act may be available to advance in any way a new light or heavy rail project towards a full funding grant agreement as defined by 49 U.S.C. 5309 for the Metropolitan Transit Authority of Harris County, Texas if the proposed capital project is constructed on or planned to be constructed on Richmond Avenue west of South Shepherd Drive or on Post Oak Boulevard north of Richmond Avenue in Houston, Texas.

SEC. 167. In developing guidance implementing 49 U.S.C. 5309(i) Program of Interrelated Projects, the Secretary shall consider projects eligible under section 5309(h) Small Starts Projects, including streetcars.

SEC. 168. Of the unobligated balance of amounts made available for fiscal year 2011 or prior fiscal years to carry out the discretionary bus and bus facilities program under 49 U.S.C. 5309, $27,989,839 shall be used for new bus rapid transit projects recommended, in the President's fiscal year 2015 budget request, to be funded under the heading ''Department of Transportation-Federal Transit Administration-Capital Investment Grants'': *Provided*, That all such projects shall remain subject to the requirements of 49 U.S.C. 5309 for New Starts, Small Starts, or Core Capacity projects, as applicable, under the Capital Investment Grants Program: *Provided further*, That such funds shall be in addition to the amounts otherwise made available by this Act for ''Department of Transportation-Federal Transit Administration-Capital Investment Grants''.

SAINT LAWRENCE SEAWAY DEVELOPMENT CORPORATION

The Saint Lawrence Seaway Development Corporation is hereby authorized to make such expenditures, within the limits of funds and borrowing authority available to the Corporation, and in accord with law, and to make such contracts and commitments without regard to fiscal year limitations as provided by section 104 of the Government Corporation Control Act, as amended, as may be

necessary in carrying out the programs set forth in the Corporation's budget for the current fiscal year.

OPERATIONS AND MAINTENANCE

(HARBOR MAINTENANCE TRUST FUND)

For necessary expenses to conduct the operations, maintenance, and capital asset renewal activities of those portions of the St. Lawrence Seaway owned, operated, and maintained by the Saint Lawrence Seaway Development Corporation, $32,042,000, to be derived from the Harbor Maintenance Trust Fund, pursuant to Public Law 99–662.

MARITIME ADMINISTRATION

MARITIME SECURITY PROGRAM

For necessary expenses to maintain and preserve a U.S.-flag merchant fleet to serve the national security needs of the United States, $186,000,000, to remain available until expended.

OPERATIONS AND TRAINING

For necessary expenses of operations and training activities authorized by law, $148,050,000, of which $11,300,000 shall remain available until expended for maintenance and repair of training ships at State Maritime Academies, and of which $2,400,000 shall remain available through September 30, 2016, for the Student Incentive Program at State Maritime Academies, and of which $1,200,000 shall remain available until expended for training ship fuel assistance payments, and of which $15,000,000 shall remain available until expended for facilities maintenance and repair, equipment, and capital improvements at the United States Merchant Marine Academy: *Provided*, That amounts apportioned for the United States Merchant Marine Academy shall be available only upon allotments made personally by the Secretary of Transportation or the Assistant Secretary for Budget and Programs: *Provided further*, That the Superintendent, Deputy Superintendent and the Director of the Office of Resource Management of the United States Merchant Marine Academy may not be allotment holders for the United States Merchant Marine Academy, and the Administrator of the Maritime Administration shall hold all allotments made by the Secretary of Transportation or the Assistant Secretary for Budget and Programs under the previous proviso: *Provided further*, That 50 percent of the funding made available for the United States Merchant Marine Academy under this heading shall be available only after the Secretary, in consultation with the Superintendent and the Maritime Administrator, completes a plan detailing by program or activity how such funding will be expended at the Academy, and this plan is submitted to the House and Senate Committees on Appropriations: *Provided further*, That not later than January 12, 2015, the Administrator of the Maritime Administration shall transmit to Congress the biennial survey and report on sexual assault and sexual harassment at the United States Merchant Marine Academy as required pursuant to section 3507 of Public Law 110–417.

SHIP DISPOSAL

For necessary expenses related to the disposal of obsolete vessels in the National Defense Reserve Fleet of the Maritime Administration, $4,000,000, to remain available until expended.

MARITIME GUARANTEED LOAN (TITLE XI)
PROGRAM ACCOUNT

(INCLUDING TRANSFER OF FUNDS)

For necessary administrative expenses of the maritime guaranteed loan program, $3,100,000 shall be paid to the appropriations for ''Maritime Administration–Operations and Training''.

ADMINISTRATIVE PROVISIONS—MARITIME ADMINISTRATION

SEC. 170. Notwithstanding any other provision of this Act, the Maritime Administration is authorized to furnish utilities and services and make necessary repairs in connection with any lease, contract, or occupancy involving Government property under control of the Maritime Administration: *Provided*, That payments received therefor shall be credited to the appropriation charged with the cost thereof and shall remain available until expended: *Provided further*, That rental payments under any such lease, contract, or occupancy for items other than such utilities, services, or repairs shall be covered into the Treasury as miscellaneous receipts.

SEC. 171. None of the funds available or appropriated in this Act shall be used by the United States Department of Transportation or the United States Maritime Administration to negotiate or otherwise execute, enter into, facilitate or perform fee-for-service contracts for vessel disposal, scrapping or recycling, unless there is no qualified domestic ship recycler that will pay any sum of money to purchase and scrap or recycle a vessel owned, operated or managed by the Maritime Administration or that is part of the National Defense Reserve Fleet: *Provided*, That such sales offers must be consistent with the solicitation and provide that the work will be performed in a timely manner at a facility qualified within the meaning of section 3502 of Public Law 106–398: *Provided further*, That nothing contained herein shall affect the Maritime Administration's authority to award contracts at least cost to the Federal Government and consistent with the requirements of 16 U.S.C. 5405(c), section 3502, or otherwise authorized under the Federal Acquisition Regulation.

PIPELINE AND HAZARDOUS MATERIALS SAFETY ADMINISTRATION

OPERATIONAL EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For necessary operational expenses of the Pipeline and Hazardous Materials Safety Administration, $22,225,000: *Provided*, That $1,500,000 shall be transferred to ''Pipeline Safety'' in order to fund ''Pipeline Safety Information Grants to Communities'' as authorized under section 60130 of title 49, United States Code.

HAZARDOUS MATERIALS SAFETY

For expenses necessary to discharge the hazardous materials safety functions of the Pipeline and Hazardous Materials Safety Administration, $52,000,000, of which $7,000,000 shall remain available until September 30, 2017: *Provided*, That up to $800,000 in fees collected under 49 U.S.C. 5108(g) shall be deposited in the general fund of the Treasury as offsetting receipts: *Provided further*, That there may be credited to this appropriation, to be available until expended, funds received from States, counties, municipalities, other public authorities, and private sources for expenses incurred for training, for reports publication and dissemination, and for travel expenses incurred in performance of hazardous materials exemptions and approvals functions.

PIPELINE SAFETY

(PIPELINE SAFETY FUND)

(OIL SPILL LIABILITY TRUST FUND)

(PIPELINE SAFETY DESIGN REVIEW FUND)

For expenses necessary to conduct the functions of the pipeline safety program, for grants-in-aid to carry out a pipeline safety program, as authorized by 49 U.S.C. 60107, and to discharge the pipeline program responsibilities of the Oil Pollution Act of 1990, $146,000,000, of which $19,500,000 shall be derived from the Oil Spill Liability Trust Fund and shall remain available until September 30, 2017; and of which $124,500,000 shall be derived from the Pipeline Safety Fund, of which $66,309,000 shall remain available until September 30, 2017; and of which $2,000,000, to remain available until expended, shall be derived from the Pipeline Safety Design Review Fund as authorized in 49 U.S.C. 60117(n): *Provided*, That not less than $1,058,000 of the funds provided under this heading shall be for the One-Call state grant program.

EMERGENCY PREPAREDNESS GRANTS

(EMERGENCY PREPAREDNESS FUND)

For necessary expenses to carryout 49 U.S.C. 5128(b), $188,000, to be derived from the Emergency Preparedness Fund, to remain available until September 30, 2016: *Provided*, That notwithstanding the fiscal year limitation specified in 49 U.S.C. 5116, not more than $28,318,000 shall be made available for obligation in fiscal year 2015 from amounts made available by 49 U.S.C. 5116(i), and 5128(b) and (c): *Provided further*, That notwithstanding 49 U.S.C. 5116(i)(4), not more than 4 percent of the amounts made available from this account shall be available to pay administrative costs: *Provided further*, That none of the funds made available by 49 U.S.C. 5116(i), 5128(b), or 5128(c) shall be made available for obligation by individuals other than the Secretary of Transportation, or his or her designee: *Provided further*, That notwithstanding 49 U.S.C. 5128(b) and (c) and the current year obligation limitation, prior year recoveries recognized in the current year shall be available to develop a hazardous materials response training curriculum for emergency responders, including response activities for the transportation of crude oil, ethanol and other flammable liquids by rail, consistent with National Fire Protection Association standards, and to make such training available through an electronic format: *Provided further*, That the prior year recoveries made available under this heading shall also be available to carry out 49 U.S.C. 5116(b) and (j).

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

For necessary expenses of the Office of the Inspector General to carry out the provisions of the Inspector General Act of 1978, as amended, $86,223,000: *Provided*, That the Inspector General shall have all necessary authority, in carrying out the duties specified in the Inspector General Act, as amended (5 U.S.C. App. 3), to investigate allegations of fraud, including false statements to the government (18 U.S.C. 1001), by any person or entity that is subject to regulation by the Department: *Provided further*, That the funds made available under this heading may be used to investigate, pursuant to section 41712 of title 49, United States Code: (1) unfair or deceptive practices and unfair methods of competition by domestic and foreign air carriers and ticket agents; and (2) the compliance of domestic and foreign air carriers with respect to item (1) of this proviso: *Provided further*, That hereafter funds transferred to the Office of the Inspector General through forfeiture proceedings or from the Department of Justice Assets Forfeiture Fund or the Department of the Treasury Forfeiture Fund, as a participating agency, as an equitable share from the forfeiture of property in investigations in which the Office of Inspector General participates, or through the granting of a Petition for Remission or Mitigation, shall be deposited to the credit of this account for law enforcement activities authorized under the Inspector General Act of 1978, as amended, to remain available until expended.

SURFACE TRANSPORTATION BOARD

SALARIES AND EXPENSES

For necessary expenses of the Surface Transportation Board, including services authorized by 5 U.S.C. 3109, $31,375,000: *Provided*, That notwithstanding any other provision of law, not to exceed $1,250,000 from fees established by the Chairman of the Surface Transportation Board shall be credited to this appropriation as offsetting collections and used for necessary and authorized expenses under this heading: *Provided further*, That the sum herein appropriated from the general fund shall be reduced on a dollar-for-dollar basis as such offsetting collections are received during fiscal year 2015, to result in a final appropriation from the general fund estimated at no more than $30,125,000.

GENERAL PROVISIONS—DEPARTMENT OF TRANSPORTATION

SEC. 180. During the current fiscal year, applicable appropriations to the Department of Transportation shall be available for maintenance and operation of aircraft; hire of passenger motor vehicles and aircraft; purchase of liability insurance for motor vehicles operating in foreign countries on official department business; and uniforms or allowances therefor, as authorized by law (5 U.S.C. 5901–5902).

SEC. 181. Appropriations contained in this Act for the Department of Transportation shall be available for services as authorized by 5 U.S.C. 3109, but at rates for individuals not to exceed the per diem rate equivalent to the rate for an Executive Level IV.

SEC. 182. None of the funds in this Act shall be available for salaries and expenses of more than 110 political and Presidential appointees in the Department of Transportation: *Provided*, That none of the personnel covered by this provision may be assigned on temporary detail outside the Department of Transportation.

SEC. 183. (a) No recipient of funds made available in this Act shall disseminate personal information (as defined in 18 U.S.C. 2725(3)) obtained by a State department of motor vehicles in connection with a motor vehicle record as defined in 18 U.S.C. 2725(1), except as provided in 18 U.S.C. 2721 for a use permitted under 18 U.S.C. 2721.

(b) Notwithstanding subsection (a), the Secretary shall not withhold funds provided in this Act for any grantee if a State is in noncompliance with this provision.

SEC. 184. Funds received by the Federal Highway Administration, Federal Transit Administration, and Federal Railroad Administration from States, counties, municipalities, other public authorities, and private sources for expenses incurred for training may be credited respectively to the Federal Highway Administration's ''Federal-Aid Highways'' account, the Federal Transit Administration's ''Technical Assistance and Training'' account, and to the Federal Railroad Administration's ''Safety and Operations'' account, except for State rail safety inspectors participating in training pursuant to 49 U.S.C. 20105.

SEC. 185. None of the funds in this Act to the Department of Transportation may be used to make a loan, loan guarantee, line of credit, or grant unless the Secretary of Transportation notifies the House and Senate Committees on Appropriations not less than 3 full business days before any project competitively selected to receive a discretionary grant award, any discretionary grant award, letter of intent, loan commitment, loan guarantee commitment, line of credit commitment, or full funding grant agreement is announced by the department or its modal administrations from:

(1) any discretionary grant or federal credit program of the Federal Highway Administration including the emergency relief program;

(2) the airport improvement program of the Federal Aviation Administration;

(3) any program of the Federal Railroad Administration;

(4) any program of the Federal Transit Administration other than the formula grants and fixed guideway modernization programs;

(5) any program of the Maritime Administration; or

(6) any funding provided under the headings ''National Infrastructure Investments'' in this Act: *Provided*, That the Secretary gives concurrent notification to the House and Senate Committees on Appropriations for any ''quick release'' of funds from the emergency relief program: *Provided further*, That no notification shall involve funds that are not available for obligation.

SEC. 186. Rebates, refunds, incentive payments, minor fees and other funds received by the Department of Transportation from travel management centers, charge card programs, the subleasing of building space, and miscellaneous sources are to be credited to appropriations of the Department of Transportation and allocated to elements of the Department of Transportation using fair and equitable criteria and such funds shall be available until expended.

SEC. 187. Amounts made available in this or any other Act that the Secretary determines represent improper payments by the Department of Transportation to a third-party contractor under a financial assistance award, which are recovered pursuant to law, shall be available—

(1) to reimburse the actual expenses incurred by the Department of Transportation in recovering improper payments; and

(2) to pay contractors for services provided in recovering improper payments or contractor support in the implementation of the Improper Payments Information Act of 2002: *Provided*, That amounts in excess of that required for paragraphs (1) and (2)—

(A) shall be credited to and merged with the appropriation from which the improper payments were made, and shall be available for the purposes and period for which such appropriations are available: *Provided further*, That where specific project or accounting information associated with the improper payment or payments is not readily available, the Secretary may credit an appropriate account, which shall be available for the purposes and period associated with the account so credited; or

(B) if no such appropriation remains available, shall be deposited in the Treasury as miscellaneous receipts: *Provided further*, That prior to the transfer of any such recovery to an appropriations account, the Secretary shall notify the House and Senate Committees on Appropriations of the amount and reasons for such transfer: *Provided further*, That for purposes of this section, the term ''improper payments'' has the same meaning as that provided in section 2(d)(2) of Public Law 107–300.

SEC. 188. Notwithstanding any other provision of law, if any funds provided in or limited by this Act are subject to a reprogramming action that requires notice to be provided to the House and Senate Committees on Appropriations, transmission of said reprogramming notice shall be provided solely to the Committees on Appropriations, and said reprogramming action shall be approved or denied solely by the Committees on Appropriations: *Provided*, That the Secretary may provide notice to other congressional committees of the action of the Committees on Appropriations on such reprogramming but not sooner than 30 days following the date on which the reprogramming action has been approved or denied by the House and Senate Committees on Appropriations.

SEC. 189. None of the funds appropriated or otherwise made available under this Act may be used by the Surface Transportation Board of the Department of Transportation to charge or collect any filing fee for rate or practice complaints filed with the Board in an amount in excess of the amount authorized for district court civil suit filing fees under section 1914 of title 28, United States Code.

SEC. 190. Funds appropriated in this Act to the modal administrations may be obligated for the Office of the Secretary for the costs related to assessments or reimbursable agreements only when such amounts are for the costs of goods and services that are purchased to provide a direct benefit to the applicable modal administration or administrations.

SEC. 191. The Secretary of Transportation is authorized to carry out a program that establishes uniform standards for developing and supporting agency transit pass and transit benefits authorized under section 7905 of title 5, United States Code, including distribution of transit benefits by various paper and electronic media.

This title may be cited as the ''Department of Transportation Appropriations Act, 2015''.

TITLE II

DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT

MANAGEMENT AND ADMINISTRATION

EXECUTIVE OFFICES

For necessary salaries and expenses for Executive Offices, which shall be comprised of the offices of the Secretary, Deputy Secretary, Adjudicatory Services, Congressional and Intergovernmental Relations, Public Affairs, Small and Disadvantaged Business Utilization, and the Center for Faith-Based and Neighborhood Partnerships, $14,500,000: *Provided*, That not to exceed $25,000 of the amount made available under this heading shall be available to the Secretary for official reception and representation expenses as the Secretary may determine.

ADMINISTRATIVE SUPPORT OFFICES

For necessary salaries and expenses for Administrative Support Offices, $518,100,000, of which not to exceed $47,000,000 shall be available for the Office of the Chief Financial Officer; not to exceed $94,000,000 shall be available for the Office of the General Counsel; not to exceed $200,000,000 shall be available for the Office of Administration; not to exceed $57,000,000 shall be available for the Office of the Chief Human Capital Officer; not to exceed $50,000,000 shall be available for the Office of Field Policy and Management; not to exceed $16,500,000 shall be available for the Office of the Chief Procurement Officer; not to exceed $3,200,000 shall be available for the Office of Departmental Equal Employment Opportunity; not to exceed $4,400,000 shall be available for the Office of Strategic Planning and Management; and not to exceed $46,000,000 shall be available for the Office of the Chief Information Officer: *Provided*, That funds provided under this heading may be used for necessary administrative and non-administrative expenses of the Department of Housing and Urban Development, not otherwise provided for, including purchase of uniforms, or allowances therefor, as authorized by 5 U.S.C. 5901–5902; hire of passenger motor vehicles; and services as authorized by 5 U.S.C. 3109: *Provided further*, That notwithstanding any other provision of law, funds appropriated under this heading may be used for advertising and promotional activities

that support the housing mission area: *Provided further*, That the Secretary shall provide the Committees on Appropriations quarterly written notification regarding the status of pending congressional reports: *Provided further*, That the Secretary shall provide in electronic form all signed reports required by Congress.

PROGRAM OFFICE SALARIES AND EXPENSES

PUBLIC AND INDIAN HOUSING

For necessary salaries and expenses of the Office of Public and Indian Housing, $203,000,000.

COMMUNITY PLANNING AND DEVELOPMENT

For necessary salaries and expenses of the Office of Community Planning and Development, $102,000,000.

HOUSING

For necessary salaries and expenses of the Office of Housing, $379,000,000, of which at least $9,000,000 shall be for the Office of Risk and Regulatory Affairs.

POLICY DEVELOPMENT AND RESEARCH

For necessary salaries and expenses of the Office of Policy Development and Research, $22,700,000.

FAIR HOUSING AND EQUAL OPPORTUNITY

For necessary salaries and expenses of the Office of Fair Housing and Equal Opportunity, $68,000,000.

OFFICE OF LEAD HAZARD CONTROL AND HEALTHY HOMES

For necessary salaries and expenses of the Office of Lead Hazard Control and Healthy Homes, $6,700,000.

PUBLIC AND INDIAN HOUSING

TENANT-BASED RENTAL ASSISTANCE

For activities and assistance for the provision of tenant-based rental assistance authorized under the United States Housing Act of 1937, as amended (42 U.S.C. 1437 et seq.) (''the Act'' herein), not otherwise provided for, $15,304,160,000, to remain available until expended, shall be available on October 1, 2014 (in addition to the $4,000,000,000 previously appropriated under this heading that became available on October 1, 2014), and $4,000,000,000, to remain available until expended, shall be available on October 1, 2015: *Provided*, That the amounts made available under this heading are provided as follows:

(1) $17,486,000,000 shall be available for renewals of expiring section 8 tenant-based annual contributions contracts (including renewals of enhanced vouchers under any provision of law authorizing such assistance under section 8(t) of the Act) and including renewal of other special purpose incremental vouchers: *Provided*, That notwithstanding any other provision of law, from amounts provided under this paragraph and any carryover, the Secretary for the calendar year 2015 funding cycle shall provide renewal funding for each public housing agency based on validated voucher management system (VMS) leasing and cost data for the prior calendar year and by applying an inflation factor as established by the Secretary, by notice published in the Federal Register, and by making any necessary adjustments for the costs associated with the first-time renewal of vouchers under this paragraph including tenant protection, HOPE VI, and Choice Neighborhoods vouchers: *Provided further*, That in determining calendar year 2015 funding allocations under this heading for public housing agencies, including agencies participating in the Moving To Work (MTW) demonstration, the Secretary may take into account the anticipated impact of changes in targeting and utility allowances, on public housing agencies' contract renewal needs: *Provided further*, That none of the funds provided under this paragraph may be used to fund a total number of unit months under lease which exceeds a public housing agency's authorized level of units under contract, except for public housing agencies participating in the MTW demonstration, which are instead governed by the terms and conditions of their MTW agreements: *Provided further*, That the Secretary shall, to the extent necessary to stay within the amount specified under this paragraph (except as otherwise modified under this paragraph), prorate each public housing agency's allocation otherwise established pursuant to this paragraph: *Provided further*, That except as provided in the following provisos, the entire amount specified under this paragraph (except as otherwise modified under this paragraph) shall be obligated to the public housing agencies based on the allocation and pro rata method described above, and the Secretary shall notify public housing agencies of their annual budget by the latter of 60 days after enactment of this Act or March 1, 2015: *Provided further*, That the Secretary may extend the notification period with the prior written approval of the House and Senate Committees on Appropriations: *Provided further*, That public housing agencies participating in the MTW demonstration shall be funded pursuant to their MTW agreements and shall be subject to the same pro rata adjustments under the previous provisos: *Provided further*, That the Secretary may offset public housing agencies' calendar year 2015 allocations based on the excess amounts of public housing agencies' net restricted assets accounts, including HUD held programmatic reserves (in accordance with VMS data in calendar year 2014 that is verifiable and complete), as determined by the Secretary: *Provided further*, That public housing agencies participating in the MTW demonstration shall also be subject to the offset, as determined by the Secretary, excluding amounts subject to the single fund budget authority provisions of their MTW agreements, from the agencies' calendar year 2015 MTW funding allocation: *Provided further*, That the Secretary shall use any offset referred to in the previous two provisos throughout the calendar year to prevent the termination of rental assistance for families as the result of insufficient funding, as determined by the Secretary, and to avoid or reduce the proration of renewal funding allocations: *Provided further*, That up to $120,000,000 shall be available only: (1) for adjustments in the allocations for public housing agencies, after application for an adjustment by a public housing agency that experienced a significant increase, as determined by the Secretary, in renewal costs of vouchers resulting from unforeseen circumstances or from portability under section 8(r) of the Act; (2) for vouchers that were not in use during the 12-month period in order to be available to meet a commitment pursuant to section 8(o)(13) of the Act; (3) for adjustments for costs associated with HUD-Veterans Affairs Supportive Housing (HUD–VASH) vouchers; (4) for adjustments for public housing agencies with voucher leasing rates at the end of the calendar year that exceed the average leasing for the 12-month period used to establish the allocation, and for additional leasing of vouchers that were issued but not leased prior to the end of such calendar year; and (5) for public housing agencies that despite taking reasonable cost savings measures, as determined by the Secretary, would otherwise be required to terminate rental assistance for families as a result of insufficient funding: *Provided further*, That the Secretary shall allocate amounts under the previous proviso based on need, as determined by the Secretary;

(2) $130,000,000 shall be for section 8 rental assistance for relocation and replacement of housing units that are demolished or disposed of pursuant to section 18 of the Act, conversion of section 23 projects to assistance under section 8, the family unification program under section 8(x) of the Act, relocation of witnesses in connection with efforts to combat crime in public and assisted housing pursuant to a request from a law enforcement or prosecution agency, enhanced vouchers under any provision of law authorizing such assistance under section 8(t) of the Act, HOPE VI and Choice Neighborhood vouchers, mandatory and voluntary conversions, and tenant protection assistance including replacement and relocation assistance or for project-based assistance to prevent the displacement of unassisted elderly tenants currently residing in section 202 properties financed between 1959 and 1974 that are refinanced pursuant to Public Law 106–569, as amended, or under the authority as provided under this Act: *Provided*, That when a public housing development is submitted for demolition or disposition under section 18 of the Act, the Secretary may provide section 8 rental assistance when the units pose an imminent health and safety risk to residents: *Provided further*, That the Secretary may only provide replacement vouchers for units that were occupied within the previous 24 months that cease to be available as assisted housing, subject only to the availability of funds: *Provided further*, That of the amounts made available under this paragraph, $5,000,000 may be available to provide tenant protection assistance, not otherwise provided under this paragraph, to residents residing in low vacancy areas and who may have to pay rents greater than 30 percent of household income, as the result of (1) the maturity of a HUD-insured, HUD-held or section 202 loan that requires the permission of the Secretary prior to loan prepayment; (2) the expiration of a rental assistance contract for which the tenants are not eligible for enhanced voucher or tenant protection assistance under existing law; or (3) the expiration of affordability restrictions accompanying a mortgage or preservation program administered by the Secretary: *Provided further*, That such tenant protection assistance made available under the previous proviso may be provided under the authority of section 8(t) or section 8(o)(13) of the United States Housing Act of 1937 (42 U.S.C. 1437f(t)): *Provided further*, That the Secretary shall issue guidance to implement the previous provisos, including, but not limited to, requirements for defining eligible at-risk households within 120 days of the enactment of this Act: *Provided further*, That any tenant protection voucher made available from amounts under this paragraph shall not be reissued by any public housing agency, except the replacement vouchers as defined by the Secretary by notice, when the initial family that received any such voucher no longer receives such voucher, and the authority for any public housing agency to issue any such voucher shall cease to exist: *Provided further*, That the Secretary, for the purpose under this paragraph, may use unobligated balances, including recaptures and carryovers, remaining from amounts appropriated in prior fiscal years under this heading for voucher assistance for nonelderly disabled families and for disaster assistance made available under Public Law 110–329;

(3) $1,530,000,000 shall be for administrative and other expenses of public housing agencies in administering the section 8 tenant-based rental assistance program, of which up to $10,000,000 shall be available to the Secretary to allocate to public housing agencies that need additional funds to administer their section 8 programs, including fees associated with section 8 tenant protection rental assistance, the administration of disaster

related vouchers, Veterans Affairs Supportive Housing vouchers, and other special purpose incremental vouchers: *Provided*, That no less than $1,520,000,000 of the amount provided in this paragraph shall be allocated to public housing agencies for the calendar year 2015 funding cycle based on section 8(q) of the Act (and related Appropriation Act provisions) as in effect immediately before the enactment of the Quality Housing and Work Responsibility Act of 1998 (Public Law 105–276): *Provided further*, That if the amounts made available under this paragraph are insufficient to pay the amounts determined under the previous proviso, the Secretary may decrease the amounts allocated to agencies by a uniform percentage applicable to all agencies receiving funding under this paragraph or may, to the extent necessary to provide full payment of amounts determined under the previous proviso, utilize unobligated balances, including recaptures and carryovers, remaining from funds appropriated to the Department of Housing and Urban Development under this heading from prior fiscal years, excluding special purpose vouchers, notwithstanding the purposes for which such amounts were appropriated: *Provided further*, That all public housing agencies participating in the MTW demonstration shall be funded pursuant to their MTW agreements, and shall be subject to the same uniform percentage decrease as under the previous proviso: *Provided further*, That amounts provided under this paragraph shall be only for activities related to the provision of tenant-based rental assistance authorized under section 8, including related development activities;

(4) $83,160,000 for the renewal of tenant-based assistance contracts under section 811 of the Cranston-Gonzalez National Affordable Housing Act (42 U.S.C. 8013), including necessary administrative expenses: *Provided*, That administrative and other expenses of public housing agencies in administering the special purpose vouchers in this paragraph shall be funded under the same terms and be subject to the same pro rata reduction as the percent decrease for administrative and other expenses to public housing agencies under paragraph (3) of this heading;

(5) $75,000,000 for incremental rental voucher assistance for use through a supported housing program administered in conjunction with the Department of Veterans Affairs as authorized under section 8(o)(19) of the United States Housing Act of 1937: *Provided*, That the Secretary of Housing and Urban Development shall make such funding available, notwithstanding section 204 (competition provision) of this title, to public housing agencies that partner with eligible VA Medical Centers or other entities as designated by the Secretary of the Department of Veterans Affairs, based on geographical need for such assistance as identified by the Secretary of the Department of Veterans Affairs, public housing agency administrative performance, and other factors as specified by the Secretary of Housing and Urban Development in consultation with the Secretary of the Department of Veterans Affairs: *Provided further*, That the Secretary of Housing and Urban Development may waive, or specify alternative requirements for (in consultation with the Secretary of the Department of Veterans Affairs), any provision of any statute or regulation that the Secretary of Housing and Urban Development administers in connection with the use of funds made available under this paragraph (except for requirements related to fair housing, nondiscrimination, labor standards, and the environment), upon a finding by the Secretary that any such waivers or alternative requirements are necessary for the effective delivery and administration of such voucher assistance: *Provided further*, That the Secretary shall set aside an amount provided under this paragraph for a rental assistance and supportive housing demonstration program for Native American veterans that are homeless or at-risk of homelessness living on or near a reservation or other Indian areas: *Provided further*, That such demonstration program shall be modeled after, with necessary and appropriate adjustments for Native American grant recipients and veterans, the rental assistance and supportive housing program funded under this paragraph, including administration in conjunction with the Department of Veterans Affairs and overall implementation of section 8(o)(19) of the Act: *Provided further*, That amounts for rental assistance and associated administrative costs shall be made available by grants to recipients eligible to receive block grants under the Native American Housing Assistance and Self-Determination Act of 1996 (25 U.S.C. section 4101 et seq.): *Provided further*, That funds shall be awarded based on need, administrative capacity, and any other funding criteria established by the Secretary in a Notice published in the Federal Register after coordination with the Secretary of the Department of Veterans Affairs within 180 days of enactment of this Act: *Provided further*, That such rental assistance shall be administered by block grant recipients in accordance with program requirements under the Native American Housing Assistance and Self-Determination Act of 1996: *Provided further*, That the first and second provisos under this paragraph shall apply to use of funds made available for this demonstration, as appropriate: *Provided further*, That the Secretary, in coordination with the Secretary of the Department of Veterans Affairs, shall coordinate with block grant recipients and any other appropriate tribal organizations on the design of such demonstration and shall ensure the effective delivery of supportive services to Native American veterans that are homeless or at-risk of homelessness eligible to receive assistance under this demonstration: *Provided further*, That grant recipients shall report to the Secretary, as prescribed by the Secretary, utilization of such rental assistance provided under this demonstration: *Provided further*, That assistance made available under this paragraph shall continue to remain available for homeless veterans upon turn-over; and

(6) The Secretary shall separately track all special purpose vouchers funded under this heading.

HOUSING CERTIFICATE FUND

(INCLUDING RESCISSIONS)

Unobligated balances, including recaptures and carryover, remaining from funds appropriated to the Department of Housing and Urban Development under this heading, the heading ''Annual Contributions for Assisted Housing'' and the heading ''Project-Based Rental Assistance'', for fiscal year 2015 and prior years may be used for renewal of or amendments to section 8 project-based contracts and for performance-based contract administrators, notwithstanding the purposes for which such funds were appropriated: *Provided*, That any obligated balances of contract authority from fiscal year 1974 and prior that have been terminated shall be rescinded: *Provided further*, That amounts heretofore recaptured, or recaptured during the current fiscal year, from section 8 project-based contracts from source years fiscal year 1975 through fiscal year 1987 are hereby rescinded, and an amount of additional new budget authority, equivalent to the amount rescinded is hereby appropriated, to remain available until expended, for the purposes set forth under this heading, in addition to amounts otherwise available.

PUBLIC HOUSING CAPITAL FUND

For the Public Housing Capital Fund Program to carry out capital and management activities for public housing agencies, as authorized under section 9 of the United States Housing Act of 1937 (42 U.S.C. 1437g) (the ''Act'') $1,875,000,000, to remain available until September 30, 2018: *Provided*, That notwithstanding any other provision of law or regulation, during fiscal year 2015 the Secretary of Housing and Urban Development may not delegate to any Department official other than the Deputy Secretary and the Assistant Secretary for Public and Indian Housing any authority under paragraph (2) of section 9(j) regarding the extension of the time periods under such section: *Provided further*, That for purposes of such section 9(j), the term ''obligate'' means, with respect to amounts, that the amounts are subject to a binding agreement that will result in outlays, immediately or in the future: *Provided further*, That up to $5,000,000 shall be to support ongoing Public Housing Financial and Physical Assessment activities: *Provided further*, That up to $3,000,000 shall be to support the costs of administrative and judicial receiverships: *Provided further*, That of the total amount provided under this heading, not to exceed $23,000,000 shall be available for the Secretary to make grants, notwithstanding section 204 of this Act, to public housing agencies for emergency capital needs including safety and security measures necessary to address crime and drug-related activity as well as needs resulting from unforeseen or unpreventable emergencies and natural disasters excluding Presidentially declared emergencies and natural disasters under the Robert T. Stafford Disaster Relief and Emergency Act (42 U.S.C. 5121 et seq.) occurring in fiscal year 2015: *Provided further*, That of the amount made available under the previous proviso, not less than $6,000,000 shall be for safety and security measures: *Provided further*, That of the total amount provided under this heading $45,000,000 shall be for supportive services, service coordinator and congregate services as authorized by section 34 of the Act (42 U.S.C. 1437z–6) and the Native American Housing Assistance and Self-Determination Act of 1996 (25 U.S.C. 4101 et seq.): *Provided further*, That of the total amount made available under this heading, up to $15,000,000 may be used for incentives as part of a Jobs-Plus Pilot initiative modeled after the Jobs-Plus demonstration: *Provided further*, That the funding provided under the previous proviso shall provide competitive grants to partnerships between public housing authorities, local workforce investment boards established under section 117 of the Workforce Investment Act of 1998, and other agencies and organizations that provide support to help public housing residents obtain employment and increase earnings: *Provided further*, That applicants must demonstrate the ability to provide services to residents, partner with workforce investment boards, and leverage service dollars: *Provided further*, That the Secretary may set aside a portion of the funds provided for the Resident Opportunity and Self-Sufficiency program to support the services element of the Jobs-Plus Pilot initiative: *Provided further*, That the Secretary may allow PHAs to request exemptions from rent and income limitation requirements under sections 3 and 6 of the United States Housing Act of 1937 as necessary to implement the Jobs-Plus program, on such terms and conditions as the Secretary may approve upon a finding by the Secretary that any such waivers or alternative requirements are necessary for the effective implementation of the Jobs-Plus Pilot initiative as a voluntary program for residents: *Provided further*, That the Secretary shall publish by notice in the Federal Register any waivers or

alternative requirements pursuant to the preceding proviso no later than 10 days before the effective date of such notice: *Provided further*, That for funds provided under this heading, the limitation in section 9(g)(1) of the Act shall be 25 percent: *Provided further*, That the Secretary may waive the limitation in the previous proviso to allow public housing agencies to fund activities authorized under section 9(e)(1)(C) of the Act: *Provided further*, That from the funds made available under this heading, the Secretary shall provide bonus awards in fiscal year 2015 to public housing agencies that are designated high performers: *Provided further*, That the Department shall notify public housing agencies of their formula allocation within 60 days of enactment of this Act.

PUBLIC HOUSING OPERATING FUND

For 2015 payments to public housing agencies for the operation and management of public housing, as authorized by section 9(e) of the United States Housing Act of 1937 (42 U.S.C. 1437g(e)), $4,440,000,000.

CHOICE NEIGHBORHOODS INITIATIVE

For competitive grants under the Choice Neighborhoods Initiative (subject to section 24 of the United States Housing Act of 1937 (42 U.S.C. 1437v), unless otherwise specified under this heading), for transformation, rehabilitation, and replacement housing needs of both public and HUD-assisted housing and to transform neighborhoods of poverty into functioning, sustainable mixed income neighborhoods with appropriate services, schools, public assets, transportation and access to jobs, $80,000,000, to remain available until September 30, 2017: *Provided*, That grant funds may be used for resident and community services, community development, and affordable housing needs in the community, and for conversion of vacant or foreclosed properties to affordable housing: *Provided further*, That the use of funds made available under this heading shall not be deemed to be public housing notwithstanding section 3(b)(1) of such Act: *Provided further*, That grantees shall commit to an additional period of affordability determined by the Secretary of not fewer than 20 years: *Provided further*, That grantees shall undertake comprehensive local planning with input from residents and the community, and that grantees shall provide a match in State, local, other Federal or private funds: *Provided further*, That grantees may include local governments, tribal entities, public housing authorities, and nonprofits: *Provided further*, That for-profit developers may apply jointly with a public entity: *Provided further*, That for purposes of environmental review, a grantee shall be treated as a public housing agency under section 26 of the United States Housing Act of 1937 (42 U.S.C. 1437x), and grants under this heading shall be subject to the regulations issued by the Secretary to implement such section: *Provided further*, That of the amount provided, not less than $50,000,000 shall be awarded to public housing authorities: *Provided further*, That such grantees shall create partnerships with other local organizations including assisted housing owners, service agencies, and resident organizations: *Provided further*, That the Secretary shall consult with the Secretaries of Education, Labor, Transportation, Health and Human Services, Agriculture, and Commerce, the Attorney General, and the Administrator of the Environmental Protection Agency to coordinate and leverage other appropriate Federal resources: *Provided further*, That no more than $5,000,000 of funds made available under this heading may be provided to assist communities in developing comprehensive strategies for implementing this program or implementing other revitalization efforts in conjunction with community notice and input: *Provided further*, That the Secretary shall develop and publish guidelines for the use of such competitive funds, including but not limited to eligible activities, program requirements, and performance metrics: *Provided further*, That unobligated balances, including recaptures, remaining from funds appropriated under the heading ''Revitalization of Severely Distressed Public Housing (HOPE VI)'' in fiscal year 2011 and prior fiscal years may be used for purposes under this heading, notwithstanding the purposes for which such amounts were appropriated.

FAMILY SELF-SUFFICIENCY

For the Family Self-Sufficiency program to support family self-sufficiency coordinators under section 23 of the United States Housing Act of 1937, to promote the development of local strategies to coordinate the use of assistance under sections 8(o) and 9 of such Act with public and private resources, and enable eligible families to achieve economic independence and self-sufficiency, $75,000,000, to remain available until September 30, 2016: *Provided*, That the Secretary may, by Federal Register notice, waive or specify alternative requirements under sections b(3), b(4), b(5), or c(1) of section 23 of such Act in order to facilitate the operation of a unified self-sufficiency program for individuals receiving assistance under different provisions of the Act, as determined by the Secretary: *Provided further*, That owners of a privately owned multifamily property with a section 8 contract may voluntarily make a Family Self-Sufficiency program available to the assisted tenants of such property in accordance with procedures established by the Secretary: *Provided further*, That such procedures established pursuant to the previous proviso shall permit participating tenants to accrue escrow funds in accordance with section 23(d)(2) and shall allow owners to use funding from residual receipt accounts to hire coordinators for their own Family Self-Sufficiency program: *Provided further*, That the Secretary may carry out a demonstration testing the effectiveness of combining vouchers for homeless youth under the Family Unification Program authorized under section 8(x) of the United States Housing Act of 1937 (42 U.S.C. 1437 et seq.) (''the Act'' herein) with assistance under the Family Self-Sufficiency program authorized under section 23 of the Act: *Provided further*, That the Secretary may establish alternative requirements to those contained in section 8(x) of the Act to facilitate such a demonstration: *Provided further*, That any public housing agency that has existing Family Unification Program vouchers and an established Family Self-Sufficiency program may participate in such demonstration provided that they can demonstrate (1) an agreement with the public child welfare agency or agencies to serve the target population; (2) capacity to serve the target population; (3) the success of the agency's existing Family Self-Sufficiency program in serving residents; (4) partnerships with local organizations that serve homeless youth; and (5) any other factors established by the Secretary: *Provided further*, That the Secretary shall monitor and evaluate the demonstration and report on whether the demonstration helped homeless youth achieve self-sufficiency.

NATIVE AMERICAN HOUSING BLOCK GRANTS

For the Native American Housing Block Grants program, as authorized under title I of the Native American Housing Assistance and Self-Determination Act of 1996 (NAHASDA) (25 U.S.C. 4111 et seq.), $650,000,000, to remain available until September 30, 2019: *Provided*, That, notwithstanding the Native American Housing Assistance and Self-Determination Act of 1996, to determine the amount of the allocation under title I of such Act for each Indian tribe, the Secretary shall apply the formula under section 302 of such Act with the need component based on single-race census data and with the need component based on multi-race census data, and the amount of the allocation for each Indian tribe shall be the greater of the two resulting allocation amounts: *Provided further*, That of the amounts made available under this heading, $3,500,000 shall be contracted for assistance for national or regional organizations representing Native American housing interests for providing training and technical assistance to Indian housing authorities and tribally designated housing entities as authorized under NAHASDA: *Provided further*, That of the funds made available under the previous proviso, not less than $2,000,000 shall be made available for a national organization as authorized under section 703 of NAHASDA (25 U.S.C. 4212): *Provided further*, That of the amounts made available under this heading, $2,000,000 shall be to support the inspection of Indian housing units, contract expertise, training, and technical assistance in the training, oversight, and management of such Indian housing and tenant-based assistance, including up to $300,000 for related travel: *Provided further*, That of the amount provided under this heading, $2,000,000 shall be made available for the cost of guaranteed notes and other obligations, as authorized by title VI of NAHASDA: *Provided further*, That such costs, including the costs of modifying such notes and other obligations, shall be as defined in section 502 of the Congressional Budget Act of 1974, as amended: *Provided further*, That these funds are available to subsidize the total principal amount of any notes and other obligations, any part of which is to be guaranteed, not to exceed $16,530,000: *Provided further*, That the Department will notify grantees of their formula allocation within 60 days of the date of enactment of this Act.

NATIVE HAWAIIAN HOUSING BLOCK GRANT

For the Native Hawaiian Housing Block Grant program, as authorized under title VIII of the Native American Housing Assistance and Self-Determination Act of 1996 (25 U.S.C. 4111 et seq.), $9,000,000, to remain available until September 30, 2019: *Provided*, That of this amount, $300,000 shall be for training and technical assistance activities, including up to $100,000 for related travel by Hawaii-based employees of the Department of Housing and Urban Development.

INDIAN HOUSING LOAN GUARANTEE FUND PROGRAM ACCOUNT

For the cost of guaranteed loans, as authorized by section 184 of the Housing and Community Development Act of 1992 (12 U.S.C. 1715z–13a), $7,000,000, to remain available until expended: *Provided*, That such costs, including the costs of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That these funds are available to subsidize total loan principal, any part of which is to be guaranteed, up to $744,047,000, to remain available until expended: *Provided further*, That up to $750,000 of this amount may be for administrative contract expenses including management processes and systems to carry out the loan guarantee program.

NATIVE HAWAIIAN HOUSING LOAN GUARANTEE FUND PROGRAM ACCOUNT

For the cost of guaranteed loans, as authorized by section 184A of the Housing and Community Development Act of 1992 (12 U.S.C. 1715z–13b) and for such costs for loans used for refinancing, $100,000, to remain

available until expended: *Provided*, That such costs, including the costs of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That these funds are available to subsidize total loan principal, any part of which is to be guaranteed, up to $16,130,000, to remain available until expended.

COMMUNITY PLANNING AND DEVELOPMENT

HOUSING OPPORTUNITIES FOR PERSONS WITH AIDS

For carrying out the Housing Opportunities for Persons with AIDS program, as authorized by the AIDS Housing Opportunity Act (42 U.S.C. 12901 et seq.), $330,000,000, to remain available until September 30, 2016, except that amounts allocated pursuant to section 854(c)(3) of such Act shall remain available until September 30, 2017: *Provided*, That the Secretary shall renew all expiring contracts for permanent supportive housing that initially were funded under section 854(c)(3) of such Act from funds made available under this heading in fiscal year 2010 and prior fiscal years that meet all program requirements before awarding funds for new contracts under such section: *Provided further*, That the Department shall notify grantees of their formula allocation within 60 days of enactment of this Act.

COMMUNITY DEVELOPMENT FUND

For assistance to units of State and local government, and to other entities, for economic and community development activities, and for other purposes, $3,066,000,000, to remain available until September 30, 2017, unless otherwise specified: *Provided*, That of the total amount provided, $3,000,000,000 is for carrying out the community development block grant program under title I of the Housing and Community Development Act of 1974, as amended (the ''Act'' herein) (42 U.S.C. 5301 et seq.): *Provided further*, That unless explicitly provided for under this heading, not to exceed 20 percent of any grant made with funds appropriated under this heading shall be expended for planning and management development and administration: *Provided further*, That a metropolitan city, urban county, unit of general local government, or Indian tribe, or insular area that directly or indirectly receives funds under this heading may not sell, trade, or otherwise transfer all or any portion of such funds to another such entity in exchange for any other funds, credits or non-Federal considerations, but must use such funds for activities eligible under title I of the Act: *Provided further*, That notwithstanding section 105(e)(1) of the Act, no funds provided under this heading may be provided to a for-profit entity for an economic development project under section 105(a)(17) unless such project has been evaluated and selected in accordance with guidelines required under subparagraph (e)(2): *Provided further*, That none of the funds made available under this heading may be used for grants for the Economic Development Initiative (''EDI'') or Neighborhood Initiatives activities, Rural Innovation Fund, or for grants pursuant to section 107 of the Housing and Community Development Act of 1974 (42 U.S.C. 5307): *Provided further*, That the Department shall notify grantees of their formula allocation within 60 days of enactment of this Act: *Provided further*, That $66,000,000 shall be for grants to Indian tribes notwithstanding section 106(a)(1) of such Act, of which, notwithstanding any other provision of law (including section 204 of this Act), up to $3,960,000 may be used for emergencies that constitute imminent threats to health and safety: *Provided further*, That of the amounts made available under the previous proviso, $6,000,000 shall be for grants for mold remediation and prevention that shall be awarded through one national competition to Native American tribes with the greatest need.

COMMUNITY DEVELOPMENT LOAN GUARANTEES PROGRAM ACCOUNT

Subject to section 502 of the Congressional Budget Act of 1974, during fiscal year 2015, commitments to guarantee loans under section 108 of the Housing and Community Development Act of 1974 (42 U.S.C. 5308), any part of which is guaranteed, shall not exceed a total principal amount of $500,000,000, notwithstanding any aggregate limitation on outstanding obligations guaranteed in subsection (k) of such section 108: *Provided*, That the Secretary shall collect fees from borrowers, notwithstanding subsection (m) of such section 108, to result in a credit subsidy cost of zero for guaranteeing such loans, and any such fees shall be collected in accordance with section 502(7) of the Congressional Budget Act of 1974.

HOME INVESTMENT PARTNERSHIPS PROGRAM

For the HOME investment partnerships program, as authorized under title II of the Cranston-Gonzalez National Affordable Housing Act, as amended, $900,000,000, to remain available until September 30, 2018: *Provided*, That notwithstanding the amount made available under this heading, the threshold reduction requirements in sections 216(10) and 217(b)(4) of such Act shall not apply to allocations of such amount: *Provided further*, That the requirements under provisos 2 through 6 under this heading for fiscal year 2012 and such requirements applicable pursuant to the ''Full-Year Continuing Appropriations Act, 2013'', shall not apply to any project to which funds were committed on or after August 23, 2013, but such projects shall instead be governed by the Final Rule titled ''Home Investment Partnerships Program; Improving Performance and Accountability; Updating Property Standards'' which became effective on such date: *Provided further*, That the Department shall notify grantees of their formula allocation within 60 days of enactment of this Act.

SELF-HELP AND ASSISTED HOMEOWNERSHIP OPPORTUNITY PROGRAM

For the Self-Help and Assisted Homeownership Opportunity Program, as authorized under section 11 of the Housing Opportunity Program Extension Act of 1996, as amended, $50,000,000, to remain available until September 30, 2017: *Provided*, That of the total amount provided under this heading, $10,000,000 shall be made available to the Self-Help and Assisted Homeownership Opportunity Program as authorized under section 11 of the Housing Opportunity Program Extension Act of 1996, as amended: *Provided further*, That $35,000,000 shall be made available for the second, third, and fourth capacity building activities authorized under section 4(a) of the HUD Demonstration Act of 1993 (42 U.S.C. 9816 note), of which not less than $5,000,000 shall be made available for rural capacity building activities: *Provided further*, That $5,000,000 shall be made available for capacity building by national rural housing organizations with experience assessing national rural conditions and providing financing, training, technical assistance, information, and research to local nonprofits, local governments and Indian Tribes serving high need rural communities.

HOMELESS ASSISTANCE GRANTS

For the emergency solutions grants program as authorized under subtitle B of title IV of the McKinney-Vento Homeless Assistance Act, as amended; the continuum of care program as authorized under subtitle C of title IV of such Act; and the rural housing stability assistance program as authorized under subtitle D of title IV of such Act, $2,135,000,000, to remain available until September 30, 2017: *Provided*, That any rental assistance amounts that are recaptured under such continuum of care program shall remain available until expended: *Provided further*, That not less than $250,000,000 of the funds appropriated under this heading shall be available for such emergency solutions grants program: *Provided further*, That not less than $1,862,000,000 of the funds appropriated under this heading shall be available for such continuum of care and rural housing stability assistance programs: *Provided further*, That up to $7,000,000 of the funds appropriated under this heading shall be available for the national homeless data analysis project: *Provided further*, That all funds awarded for supportive services under the continuum of care program and the rural housing stability assistance program shall be matched by not less than 25 percent in cash or in kind by each grantee: *Provided further*, That for all match requirements applicable to funds made available under this heading for this fiscal year and prior years, a grantee may use (or could have used) as a source of match funds other funds administered by the Secretary and other Federal agencies unless there is (or was) a specific statutory prohibition on any such use of any such funds: *Provided further*, That the Secretary may renew on an annual basis expiring contracts or amendments to contracts funded under the continuum of care program if the program is determined to be needed under the applicable continuum of care and meets appropriate program requirements, performance measures, and financial standards, as determined by the Secretary: *Provided further*, That all awards of assistance under this heading shall be required to coordinate and integrate homeless programs with other mainstream health, social services, and employment programs for which homeless populations may be eligible: *Provided further*, That with respect to funds provided under this heading for the continuum of care program for fiscal years 2012, 2013, 2014, and 2015 provision of permanent housing rental assistance may be administered by private nonprofit organizations: *Provided further*, That the Department shall notify grantees of their formula allocation from amounts allocated (which may represent initial or final amounts allocated) for the emergency solutions grant program within 60 days of enactment of this Act.

HOUSING PROGRAMS

PROJECT-BASED RENTAL ASSISTANCE

For activities and assistance for the provision of project-based subsidy contracts under the United States Housing Act of 1937 (42 U.S.C. 1437 et seq.) (''the Act''), not otherwise provided for, $9,330,000,000, to remain available until expended, shall be available on October 1, 2014 (in addition to the $400,000,000 previously appropriated under this heading that became available October 1, 2014), and $400,000,000, to remain available until expended, shall be available on October 1, 2015: *Provided*, That the amounts made available under this heading shall be available for expiring or terminating section 8 project-based subsidy contracts (including section 8 moderate rehabilitation contracts), for amendments to section 8 project-based subsidy contracts (including section 8 moderate rehabilitation contracts), for contracts entered into pursuant to section 441 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11401), for renewal of section 8 contracts for units in projects that are subject to approved plans of action under the Emergency Low Income Housing Preservation Act of 1987 or the Low-Income Housing Preservation and Resident Homeownership Act of

1990, and for administrative and other expenses associated with project-based activities and assistance funded under this paragraph: *Provided further*, That of the total amounts provided under this heading, not to exceed $210,000,000 shall be available for performance-based contract administrators for section 8 project-based assistance, for carrying out 42 U.S.C. 1437(f): *Provided further*, That the Secretary of Housing and Urban Development may also use such amounts in the previous proviso for performance-based contract administrators for the administration of: interest reduction payments pursuant to section 236(a) of the National Housing Act (12 U.S.C. 1715z–1(a)); rent supplement payments pursuant to section 101 of the Housing and Urban Development Act of 1965 (12 U.S.C. 1701s); section 236(f)(2) rental assistance payments (12 U.S.C. 1715z–1(f)(2)); project rental assistance contracts for the elderly under section 202(c)(2) of the Housing Act of 1959 (12 U.S.C. 1701q); project rental assistance contracts for supportive housing for persons with disabilities under section 811(d)(2) of the Cranston-Gonzalez National Affordable Housing Act (42 U.S.C. 8013(d)(2)); project assistance contracts pursuant to section 202(h) of the Housing Act of 1959 (Public Law 86–372; 73 Stat. 667); and loans under section 202 of the Housing Act of 1959 (Public Law 86–372; 73 Stat. 667): *Provided further*, That amounts recaptured under this heading, the heading ''Annual Contributions for Assisted Housing'', or the heading ''Housing Certificate Fund'', may be used for renewals of or amendments to section 8 project-based contracts or for performance-based contract administrators, notwithstanding the purposes for which such amounts were appropriated: *Provided further*, That, notwithstanding any other provision of law, upon the request of the Secretary of Housing and Urban Development, project funds that are held in residual receipts accounts for any project subject to a section 8 project-based Housing Assistance Payments contract that authorizes HUD or a Housing Finance Agency to require that surplus project funds be deposited in an interest-bearing residual receipts account and that are in excess of an amount to be determined by the Secretary, shall be remitted to the Department and deposited in this account, to be available until expended: *Provided further*, That amounts deposited pursuant to the previous proviso shall be available in addition to the amount otherwise provided by this heading for uses authorized under this heading.

HOUSING FOR THE ELDERLY

For amendments to capital advance contracts for housing for the elderly, as authorized by section 202 of the Housing Act of 1959, as amended, and for project rental assistance for the elderly under section 202(c)(2) of such Act, including amendments to contracts for such assistance and renewal of expiring contracts for such assistance for up to a 1-year term, and for senior preservation rental assistance contracts, including renewals, as authorized by section 811(e) of the American Housing and Economic Opportunity Act of 2000, as amended, and for supportive services associated with the housing, $420,000,000 to remain available until September 30, 2018: *Provided*, That of the amount provided under this heading, up to $70,000,000 shall be for service coordinators and the continuation of existing congregate service grants for residents of assisted housing projects: *Provided further*, That amounts under this heading shall be available for Real Estate Assessment Center inspections and inspection-related activities associated with section 202 projects: *Provided further*, That the Secretary may waive the provisions of section 202 governing the terms and conditions of project rental assistance, except that the initial contract term for such assistance shall not exceed 5 years in duration: *Provided further*, That upon request of the Secretary of Housing and Urban Development, project funds that are held in residual receipts accounts for any project subject to a section 202 project rental assistance contract, and that upon termination of such contract are in excess of an amount to be determined by the Secretary, up to $16,000,000 in any such excess amounts shall be remitted to the Department and deposited in this account, to be available until September 30, 2018, for purposes under this heading, and shall be in addition to the amounts otherwise provided under this heading for such purposes.

HOUSING FOR PERSONS WITH DISABILITIES

For amendments to capital advance contracts for supportive housing for persons with disabilities, as authorized by section 811 of the Cranston-Gonzalez National Affordable Housing Act (42 U.S.C. 8013), for project rental assistance for supportive housing for persons with disabilities under section 811(d)(2) of such Act and for project assistance contracts pursuant to section 202(h) of the Housing Act of 1959 (Public Law 86–372; 73 Stat. 667), including amendments to contracts for such assistance and renewal of expiring contracts for such assistance for up to a 1-year term, for project rental assistance to State housing finance agencies and other appropriate entities as authorized under section 811(b)(3) of the Cranston-Gonzalez National Housing Act, and for supportive services associated with the housing for persons with disabilities as authorized by section 811(b)(1) of such Act, $135,000,000, to remain available until September 30, 2018: *Provided*, That amounts made available under this heading shall be available for Real Estate Assessment Center inspections and inspection-related activities associated with section 811 projects: *Provided further*, That, in this fiscal year, upon the request of the Secretary of Housing and Urban Development, project funds that are held in residual receipts accounts for any project subject to a section 811 project rental assistance contract and that upon termination of such contract are in excess of an amount to be determined by the Secretary shall be remitted to the Department and deposited in this account, to be available until September 30, 2018: *Provided further*, That amounts deposited in this account pursuant to the previous proviso shall be available in addition to the amounts otherwise provided by this heading for the purposes authorized under this heading: *Provided further*, That unobligated balances, including recaptures and carryover, remaining from funds transferred to or appropriated under this heading may be used for the current purposes authorized under this heading notwithstanding the purposes for which such funds originally were appropriated.

HOUSING COUNSELING ASSISTANCE

For contracts, grants, and other assistance excluding loans, as authorized under section 106 of the Housing and Urban Development Act of 1968, as amended, $47,000,000, to remain available until September 30, 2016, including up to $4,500,000 for administrative contract services: *Provided*, That grants made available from amounts provided under this heading shall be awarded within 180 days of enactment of this Act: *Provided further*, That funds shall be used for providing counseling and advice to tenants and homeowners, both current and prospective, with respect to property maintenance, financial management/literacy, and such other matters as may be appropriate to assist them in improving their housing conditions, meeting their financial needs, and fulfilling the responsibilities of tenancy or homeownership; for program administration; and for housing counselor training: *Provided further*, That for purposes of providing such grants from amounts provided under this heading, the Secretary may enter into multiyear agreements as is appropriate, subject to the availability of annual appropriations.

RENTAL HOUSING ASSISTANCE

For amendments to contracts under section 101 of the Housing and Urban Development Act of 1965 (12 U.S.C. 1701s) and section 236(f)(2) of the National Housing Act (12 U.S.C. 1715z–1) in State-aided, noninsured rental housing projects, $18,000,000, to remain available until expended: *Provided*, That such amount, together with unobligated balances from recaptured amounts appropriated prior to fiscal year 2006 from terminated contracts under such sections of law, and any unobligated balances, including recaptures and carryover, remaining from funds appropriated under this heading after fiscal year 2005, shall also be available for extensions of up to one year for expiring contracts under such sections of law.

PAYMENT TO MANUFACTURED HOUSING FEES TRUST FUND

For necessary expenses as authorized by the National Manufactured Housing Construction and Safety Standards Act of 1974 (42 U.S.C. 5401 et seq.), up to $10,000,000, to remain available until expended, of which $10,000,000 is to be derived from the Manufactured Housing Fees Trust Fund: *Provided*, That not to exceed the total amount appropriated under this heading shall be available from the general fund of the Treasury to the extent necessary to incur obligations and make expenditures pending the receipt of collections to the Fund pursuant to section 620 of such Act: *Provided further*, That the amount made available under this heading from the general fund shall be reduced as such collections are received during fiscal year 2015 so as to result in a final fiscal year 2015 appropriation from the general fund estimated at zero, and fees pursuant to such section 620 shall be modified as necessary to ensure such a final fiscal year 2015 appropriation: *Provided further*, That for the dispute resolution and installation programs, the Secretary of Housing and Urban Development may assess and collect fees from any program participant: *Provided further*, That such collections shall be deposited into the Fund, and the Secretary, as provided herein, may use such collections, as well as fees collected under section 620, for necessary expenses of such Act: *Provided further*, That, notwithstanding the requirements of section 620 of such Act, the Secretary may carry out responsibilities of the Secretary under such Act through the use of approved service providers that are paid directly by the recipients of their services.

FEDERAL HOUSING ADMINISTRATION

MUTUAL MORTGAGE INSURANCE PROGRAM ACCOUNT

New commitments to guarantee single family loans insured under the Mutual Mortgage Insurance Fund shall not exceed $400,000,000,000, to remain available until September 30, 2016: *Provided*, That during fiscal year 2015, obligations to make direct loans to carry out the purposes of section 204(g) of the National Housing Act, as amended, shall not exceed $20,000,000: *Provided further*, That the foregoing amount in the previous proviso shall be for loans to nonprofit and governmental entities in connection with sales of single family real properties owned by the Secretary and formerly insured under the Mutual Mortgage Insurance Fund: *Provided further*, That for administrative contract expenses of the Federal Housing Administration, $130,000,000, to remain available until September 30, 2016: *Provided further*, That to the extent guaranteed

loan commitments exceed $200,000,000,000 on or before April 1, 2015, an additional $1,400 for administrative contract expenses shall be available for each $1,000,000 in additional guaranteed loan commitments (including a pro rata amount for any amount below $1,000,000), but in no case shall funds made available by this proviso exceed $30,000,000.

GENERAL AND SPECIAL RISK PROGRAM ACCOUNT

(INCLUDING RESCISSION)

New commitments to guarantee loans insured under the General and Special Risk Insurance Funds, as authorized by sections 238 and 519 of the National Housing Act (12 U.S.C. 1715z–3 and 1735c), shall not exceed $30,000,000,000 in total loan principal, any part of which is to be guaranteed, to remain available until September 30, 2016: *Provided,* That during fiscal year 2015, gross obligations for the principal amount of direct loans, as authorized by sections 204(g), 207(l), 238, and 519(a) of the National Housing Act, shall not exceed $20,000,000, which shall be for loans to nonprofit and governmental entities in connection with the sale of single family real properties owned by the Secretary and formerly insured under such Act: *Provided further*, That $10,000,000 previously provided under this heading is hereby permanently rescinded.

GOVERNMENT NATIONAL MORTGAGE ASSOCIATION

GUARANTEES OF MORTGAGE-BACKED SECURITIES LOAN GUARANTEE PROGRAM ACCOUNT

New commitments to issue guarantees to carry out the purposes of section 306 of the National Housing Act, as amended (12 U.S.C. 1721(g)), shall not exceed $500,000,000,000, to remain available until September 30, 2016: *Provided,* That $23,000,000 shall be available for necessary salaries and expenses of the Office of Government National Mortgage Association: *Provided further,* That to the extent that guaranteed loan commitments will and do exceed $155,000,000,000 on or before April 1, 2015, an additional $100 for necessary salaries and expenses shall be available until expended for each $1,000,000 in additional guaranteed loan commitments (including a pro rata amount for any amount below $1,000,000), but in no case shall funds made available by this proviso exceed $3,000,000: *Provided further,* That receipts from Commitment and Multiclass fees collected pursuant to title III of the National Housing Act, as amended, shall be credited as offsetting collections to this account.

POLICY DEVELOPMENT AND RESEARCH

RESEARCH AND TECHNOLOGY

For contracts, grants, and necessary expenses of programs of research and studies relating to housing and urban problems, not otherwise provided for, as authorized by title V of the Housing and Urban Development Act of 1970 (12 U.S.C. 1701z–1 et seq.), including carrying out the functions of the Secretary of Housing and Urban Development under section 1(a)(1)(i) of Reorganization Plan No. 2 of 1968, and for technical assistance, $72,000,000, to remain available until September 30, 2016, of which $22,000,000 shall be for technical assistance: *Provided*, That with respect to amounts made available under this heading, notwithstanding section 204 of this title, the Secretary may enter into cooperative agreements funded with philanthropic entities, other Federal agencies, or State or local governments and their agencies for research projects: *Provided further*, That with respect to the previous proviso, such partners to the cooperative agreements must contribute at least a 50 percent match toward the cost of the project: *Provided further*, That for non-competitive agreements entered into in accordance with the previous two provisos, the Secretary of Housing and Urban Development shall comply with section 2(b) of the Federal Funding Accountability and Transparency Act of 2006 (Public Law 109–282, 31 U.S.C. note) in lieu of compliance with section 102(a)(4)(C) with respect to documentation of award decisions: *Provided further*, That prior to obligation of technical assistance funding, the Secretary shall submit a plan, for approval, to the House and Senate Committees on Appropriations on how it will allocate funding for this activity.

FAIR HOUSING AND EQUAL OPPORTUNITY

FAIR HOUSING ACTIVITIES

For contracts, grants, and other assistance, not otherwise provided for, as authorized by title VIII of the Civil Rights Act of 1968, as amended by the Fair Housing Amendments Act of 1988, and section 561 of the Housing and Community Development Act of 1987, as amended, $65,300,000, to remain available until September 30, 2016, of which $40,100,000 shall be to carry out activities pursuant to such section 561: *Provided*, That notwithstanding 31 U.S.C. 3302, the Secretary may assess and collect fees to cover the costs of the Fair Housing Training Academy, and may use such funds to provide such training: *Provided further*, That no funds made available under this heading shall be used to lobby the executive or legislative branches of the Federal Government in connection with a specific contract, grant, or loan: *Provided further*, That of the funds made available under this heading, $300,000 shall be available to the Secretary of Housing and Urban Development for the creation and promotion of translated materials and other programs that support the assistance of persons with limited English proficiency in utilizing the services provided by the Department of Housing and Urban Development.

OFFICE OF LEAD HAZARD CONTROL AND HEALTHY HOMES

LEAD HAZARD REDUCTION

For the Lead Hazard Reduction Program, as authorized by section 1011 of the Residential Lead-Based Paint Hazard Reduction Act of 1992, $110,000,000, to remain available until September 30, 2016: *Provided,* That up to $15,000,000 of that amount shall be for the Healthy Homes Initiative, pursuant to sections 501 and 502 of the Housing and Urban Development Act of 1970 that shall include research, studies, testing, and demonstration efforts, including education and outreach concerning lead-based paint poisoning and other housing-related diseases and hazards: *Provided further*, That for purposes of environmental review, pursuant to the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) and other provisions of the law that further the purposes of such Act, a grant under the Healthy Homes Initiative, or the Lead Technical Studies program under this heading or under prior appropriations Acts for such purposes under this heading, shall be considered to be funds for a special project for purposes of section 305(c) of the Multifamily Housing Property Disposition Reform Act of 1994: *Provided further*, That of the total amount made available under this heading, $45,000,000 shall be made available on a competitive basis for areas with the highest lead paint abatement needs: *Provided further*, That each recipient of funds provided under the third proviso shall make a matching contribution in an amount not less than 25 percent: *Provided further*, That each applicant shall certify adequate capacity that is acceptable to the Secretary to carry out the proposed use of funds pursuant to a notice of funding availability: *Provided further*, That amounts made available under this heading in this or prior appropriations Acts, and that still remain available, may be used for any purpose under this heading notwithstanding the purpose for which such amounts were appropriated if a program competition is undersubscribed and there are other program competitions under this heading that are oversubscribed.

INFORMATION TECHNOLOGY FUND

For the development of, modifications to, and infrastructure for Department-wide and program-specific information technology systems, for the continuing operation and maintenance of both Department-wide and program-specific information systems, and for program-related maintenance activities, $250,000,000, which shall remain available until September 30, 2016: *Provided*, That any amounts transferred to this Fund under this Act shall remain available until expended: *Provided further*, That any amounts transferred to this Fund from amounts appropriated by previously enacted appropriations Acts may be used for the purposes specified under this Fund, in addition to any other information technology purposes for which such amounts were appropriated.

OFFICE OF INSPECTOR GENERAL

For necessary salaries and expenses of the Office of Inspector General in carrying out the Inspector General Act of 1978, as amended, $126,000,000: *Provided*, That the Inspector General shall have independent authority over all personnel issues within this office.

GENERAL PROVISIONS—DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT

(INCLUDING TRANSFER OF FUNDS)

(INCLUDING RESCISSIONS)

SEC. 201. Fifty percent of the amounts of budget authority, or in lieu thereof 50 percent of the cash amounts associated with such budget authority, that are recaptured from projects described in section 1012(a) of the Stewart B. McKinney Homeless Assistance Amendments Act of 1988 (42 U.S.C. 1437 note) shall be rescinded or in the case of cash, shall be remitted to the Treasury, and such amounts of budget authority or cash recaptured and not rescinded or remitted to the Treasury shall be used by State housing finance agencies or local governments or local housing agencies with projects approved by the Secretary of Housing and Urban Development for which settlement occurred after January 1, 1992, in accordance with such section. Notwithstanding the previous sentence, the Secretary may award up to 15 percent of the budget authority or cash recaptured and not rescinded or remitted to the Treasury to provide project owners with incentives to refinance their project at a lower interest rate.

SEC. 202. None of the amounts made available under this Act may be used during fiscal year 2015 to investigate or prosecute under the Fair Housing Act any otherwise lawful activity engaged in by one or more persons, including the filing or maintaining of a nonfrivolous legal action, that is engaged in solely for the purpose of achieving or preventing action by a Government official or entity, or a court of competent jurisdiction.

SEC. 203. Sections 203 and 209 of division C of Public Law 112–55 (125 Stat. 693–694) shall apply during fiscal year 2015 as if such sections were included in this title, except that during such fiscal year such sections shall be applied by substituting ''fiscal year 2015'' for ''fiscal year 2011'' and for ''fiscal year 2012'' each place such terms appear, and shall be amended to reflect revised delineations of statistical areas established by the Office of Management and Budget pursuant to 44 U.S.C. 3504(e)(3), 31 U.S.C. 1104(d), and Executive Order No. 10253.

SEC. 204. Except as explicitly provided in law, any grant, cooperative agreement or

other assistance made pursuant to title II of this Act shall be made on a competitive basis and in accordance with section 102 of the Department of Housing and Urban Development Reform Act of 1989 (42 U.S.C. 3545).

SEC. 205. Funds of the Department of Housing and Urban Development subject to the Government Corporation Control Act or section 402 of the Housing Act of 1950 shall be available, without regard to the limitations on administrative expenses, for legal services on a contract or fee basis, and for utilizing and making payment for services and facilities of the Federal National Mortgage Association, Government National Mortgage Association, Federal Home Loan Mortgage Corporation, Federal Financing Bank, Federal Reserve banks or any member thereof, Federal Home Loan banks, and any insured bank within the meaning of the Federal Deposit Insurance Corporation Act, as amended (12 U.S.C. 1811–1).

SEC. 206. Unless otherwise provided for in this Act or through a reprogramming of funds, no part of any appropriation for the Department of Housing and Urban Development shall be available for any program, project or activity in excess of amounts set forth in the budget estimates submitted to Congress.

SEC. 207. Corporations and agencies of the Department of Housing and Urban Development which are subject to the Government Corporation Control Act are hereby authorized to make such expenditures, within the limits of funds and borrowing authority available to each such corporation or agency and in accordance with law, and to make such contracts and commitments without regard to fiscal year limitations as provided by section 104 of such Act as may be necessary in carrying out the programs set forth in the budget for 2015 for such corporation or agency except as hereinafter provided: *Provided*, That collections of these corporations and agencies may be used for new loan or mortgage purchase commitments only to the extent expressly provided for in this Act (unless such loans are in support of other forms of assistance provided for in this or prior appropriations Acts), except that this proviso shall not apply to the mortgage insurance or guaranty operations of these corporations, or where loans or mortgage purchases are necessary to protect the financial interest of the United States Government.

SEC. 208. The Secretary of Housing and Urban Development shall provide quarterly reports to the House and Senate Committees on Appropriations regarding all uncommitted, unobligated, recaptured and excess funds in each program and activity within the jurisdiction of the Department and shall submit additional, updated budget information to these Committees upon request.

SEC. 209. The President's formal budget request for fiscal year 2016, as well as the Department of Housing and Urban Development's congressional budget justifications to be submitted to the Committees on Appropriations of the House of Representatives and the Senate, shall use the identical account and sub-account structure provided under this Act.

SEC. 210. A public housing agency or such other entity that administers Federal housing assistance for the Housing Authority of the county of Los Angeles, California, and the States of Alaska, Iowa, and Mississippi shall not be required to include a resident of public housing or a recipient of assistance provided under section 8 of the United States Housing Act of 1937 on the board of directors or a similar governing board of such agency or entity as required under section (2)(b) of such Act. Each public housing agency or other entity that administers Federal housing assistance under section 8 for the Housing Authority of the county of Los Angeles, California and the States of Alaska, Iowa and Mississippi that chooses not to include a resident of public housing or a recipient of section 8 assistance on the board of directors or a similar governing board shall establish an advisory board of not less than six residents of public housing or recipients of section 8 assistance to provide advice and comment to the public housing agency or other administering entity on issues related to public housing and section 8. Such advisory board shall meet not less than quarterly.

SEC. 211. No funds provided under this title may be used for an audit of the Government National Mortgage Association that makes applicable requirements under the Federal Credit Reform Act of 1990 (2 U.S.C. 661 et seq.).

SEC. 212. (a) Notwithstanding any other provision of law, subject to the conditions listed under this section, for fiscal years 2015 and 2016, the Secretary of Housing and Urban Development may authorize the transfer of some or all project-based assistance, debt held or insured by the Secretary and statutorily required low-income and very low-income use restrictions if any, associated with one or more multifamily housing project or projects to another multifamily housing project or projects.

(b) PHASED TRANSFERS.—Transfers of project-based assistance under this section may be done in phases to accommodate the financing and other requirements related to rehabilitating or constructing the project or projects to which the assistance is transferred, to ensure that such project or projects meet the standards under subsection (c).

(c) The transfer authorized in subsection (a) is subject to the following conditions:

(1) NUMBER AND BEDROOM SIZE OF UNITS.—

(A) For occupied units in the transferring project: the number of low-income and very low-income units and the configuration (i.e., bedroom size) provided by the transferring project shall be no less than when transferred to the receiving project or projects and the net dollar amount of Federal assistance provided to the transferring project shall remain the same in the receiving project or projects.

(B) For unoccupied units in the transferring project: the Secretary may authorize a reduction in the number of dwelling units in the receiving project or projects to allow for a reconfiguration of bedroom sizes to meet current market demands, as determined by the Secretary and provided there is no increase in the project-based assistance budget authority.

(2) The transferring project shall, as determined by the Secretary, be either physically obsolete or economically nonviable.

(3) The receiving project or projects shall meet or exceed applicable physical standards established by the Secretary.

(4) The owner or mortgagor of the transferring project shall notify and consult with the tenants residing in the transferring project and provide a certification of approval by all appropriate local governmental officials.

(5) The tenants of the transferring project who remain eligible for assistance to be provided by the receiving project or projects shall not be required to vacate their units in the transferring project or projects until new units in the receiving project are available for occupancy.

(6) The Secretary determines that this transfer is in the best interest of the tenants.

(7) If either the transferring project or the receiving project or projects meets the condition specified in subsection (d)(2)(A), any lien on the receiving project resulting from additional financing obtained by the owner shall be subordinate to any FHA-insured mortgage lien transferred to, or placed on, such project by the Secretary, except that the Secretary may waive this requirement upon determination that such a waiver is necessary to facilitate the financing of acquisition, construction, and/or rehabilitation of the receiving project or projects.

(8) If the transferring project meets the requirements of subsection (d)(2), the owner or mortgagor of the receiving project or projects shall execute and record either a continuation of the existing use agreement or a new use agreement for the project where, in either case, any use restrictions in such agreement are of no lesser duration than the existing use restrictions.

(9) The transfer does not increase the cost (as defined in section 502 of the Congressional Budget Act of 1974, as amended) of any FHA-insured mortgage, except to the extent that appropriations are provided in advance for the amount of any such increased cost.

(d) For purposes of this section—

(1) the terms ''low-income'' and ''very low-income'' shall have the meanings provided by the statute and/or regulations governing the program under which the project is insured or assisted;

(2) the term ''multifamily housing project'' means housing that meets one of the following conditions—

(A) housing that is subject to a mortgage insured under the National Housing Act;

(B) housing that has project-based assistance attached to the structure including projects undergoing mark to market debt restructuring under the Multifamily Assisted Housing Reform and Affordability Housing Act;

(C) housing that is assisted under section 202 of the Housing Act of 1959, as amended by section 801 of the Cranston-Gonzales National Affordable Housing Act;

(D) housing that is assisted under section 202 of the Housing Act of 1959, as such section existed before the enactment of the Cranston-Gonzales National Affordable Housing Act;

(E) housing that is assisted under section 811 of the Cranston-Gonzales National Affordable Housing Act; or

(F) housing or vacant land that is subject to a use agreement;

(3) the term ''project-based assistance'' means—

(A) assistance provided under section 8(b) of the United States Housing Act of 1937;

(B) assistance for housing constructed or substantially rehabilitated pursuant to assistance provided under section 8(b)(2) of such Act (as such section existed immediately before October 1, 1983);

(C) rent supplement payments under section 101 of the Housing and Urban Development Act of 1965;

(D) interest reduction payments under section 236 and/or additional assistance payments under section 236(f)(2) of the National Housing Act;

(E) assistance payments made under section 202(c)(2) of the Housing Act of 1959; and

(F) assistance payments made under section 811(d)(2) of the Cranston-Gonzalez National Affordable Housing Act;

(4) the term ''receiving project or projects'' means the multifamily housing project or projects to which some or all of the project-based assistance, debt, and statutorily required low-income and very low-income use restrictions are to be transferred;

(5) the term ''transferring project'' means the multifamily housing project which is transferring some or all of the project-based assistance, debt, and the statutorily required low-income and very low-income use restrictions to the receiving project or projects; and

(6) the term ''Secretary'' means the Secretary of Housing and Urban Development.

(e) PUBLIC NOTICE AND RESEARCH REPORT.—

(1) The Secretary shall publish by notice in the Federal Register the terms and conditions, including criteria for HUD approval, of transfers pursuant to this section no later than 30 days before the effective date of such notice.

(2) The Secretary shall conduct an evaluation of the transfer authority under this section, including the effect of such transfers on the operational efficiency, contract rents, physical and financial conditions, and long-term preservation of the affected properties.

SEC. 213. (a) No assistance shall be provided under section 8 of the United States Housing Act of 1937 (42 U.S.C. 1437f) to any individual who—

(1) is enrolled as a student at an institution of higher education (as defined under section 102 of the Higher Education Act of 1965 (20 U.S.C. 1002));

(2) is under 24 years of age;

(3) is not a veteran;

(4) is unmarried;

(5) does not have a dependent child;

(6) is not a person with disabilities, as such term is defined in section 3(b)(3)(E) of the United States Housing Act of 1937 (42 U.S.C. 1437a(b)(3)(E)) and was not receiving assistance under such section 8 as of November 30, 2005; and

(7) is not otherwise individually eligible, or has parents who, individually or jointly, are not eligible, to receive assistance under section 8 of the United States Housing Act of 1937 (42 U.S.C. 1437f).

(b) For purposes of determining the eligibility of a person to receive assistance under section 8 of the United States Housing Act of 1937 (42 U.S.C. 1437f), any financial assistance (in excess of amounts received for tuition and any other required fees and charges) that an individual receives under the Higher Education Act of 1965 (20 U.S.C. 1001 et seq.), from private sources, or an institution of higher education (as defined under the Higher Education Act of 1965 (20 U.S.C. 1002)), shall be considered income to that individual, except for a person over the age of 23 with dependent children.

SEC. 214. The funds made available for Native Alaskans under the heading ''Native American Housing Block Grants'' in title II of this Act shall be allocated to the same Native Alaskan housing block grant recipients that received funds in fiscal year 2005.

SEC. 215. Notwithstanding the limitation in the first sentence of section 255(g) of the National Housing Act (12 U.S.C. 1715z–20(g)), the Secretary of Housing and Urban Development may, until September 30, 2015, insure and enter into commitments to insure mortgages under such section 255.

SEC. 216. Notwithstanding any other provision of law, in fiscal year 2015, in managing and disposing of any multifamily property that is owned or has a mortgage held by the Secretary of Housing and Urban Development, and during the process of foreclosure on any property with a contract for rental assistance payments under section 8 of the United States Housing Act of 1937 or other Federal programs, the Secretary shall maintain any rental assistance payments under section 8 of the United States Housing Act of 1937 and other programs that are attached to any dwelling units in the property. To the extent the Secretary determines, in consultation with the tenants and the local government, that such a multifamily property owned or held by the Secretary is not feasible for continued rental assistance payments under such section 8 or other programs, based on consideration of (1) the costs of rehabilitating and operating the property and all available Federal, State, and local resources, including rent adjustments under section 524 of the Multifamily Assisted Housing Reform and Affordability Act of 1997 (''MAHRAA'') and (2) environmental conditions that cannot be remedied in a cost-effective fashion, the Secretary may, in consultation with the tenants of that property, contract for project-based rental assistance payments with an owner or owners of other existing housing properties, or provide other rental assistance. The Secretary shall also take appropriate steps to ensure that project-based contracts remain in effect prior to foreclosure, subject to the exercise of contractual abatement remedies to assist relocation of tenants for imminent major threats to health and safety after written notice to and informed consent of the affected tenants and use of other available remedies, such as partial abatements or receivership. After disposition of any multifamily property described under this section, the contract and allowable rent levels on such properties shall be subject to the requirements under section 524 of MAHRAA.

SEC. 217. The commitment authority funded by fees as provided under the heading ''Community Development Loan Guarantees Program Account'' may be used to guarantee, or make commitments to guarantee, notes, or other obligations issued by any State on behalf of non-entitlement communities in the State in accordance with the requirements of section 108 of the Housing and Community Development Act of 1974: *Provided*, That any State receiving such a guarantee or commitment shall distribute all funds subject to such guarantee to the units of general local government in non-entitlement areas that received the commitment.

SEC. 218. Public housing agencies that own and operate 400 or fewer public housing units may elect to be exempt from any asset management requirement imposed by the Secretary of Housing and Urban Development in connection with the operating fund rule: *Provided*, That an agency seeking a discontinuance of a reduction of subsidy under the operating fund formula shall not be exempt from asset management requirements.

SEC. 219. With respect to the use of amounts provided in this Act and in future Acts for the operation, capital improvement and management of public housing as authorized by sections 9(d) and 9(e) of the United States Housing Act of 1937 (42 U.S.C. 1437g(d) and (e)), the Secretary shall not impose any requirement or guideline relating to asset management that restricts or limits in any way the use of capital funds for central office costs pursuant to section 9(g)(1) or 9(g)(2) of the United States Housing Act of 1937 (42 U.S.C. 1437g(g)(1), (2)): *Provided*, That a public housing agency may not use capital funds authorized under section 9(d) for activities that are eligible under section 9(e) for assistance with amounts from the operating fund in excess of the amounts permitted under section 9(g)(1) or 9(g)(2).

SEC. 220. No official or employee of the Department of Housing and Urban Development shall be designated as an allotment holder unless the Office of the Chief Financial Officer has determined that such allotment holder has implemented an adequate system of funds control and has received training in funds control procedures and directives. The Chief Financial Officer shall ensure that there is a trained allotment holder for each HUD sub-office under the accounts ''Executive Offices'' and ''Administrative Support Offices,'' as well as each account receiving appropriations for ''Program Office Salaries and Expenses'', ''Government National Mortgage Association—Guarantees of Mortgage-Backed Securities Loan Guarantee Program Account'', and ''Office of Inspector General'' within the Department of Housing and Urban Development.

SEC. 221. The Secretary of Housing and Urban Development shall report annually to the House and Senate Committees on Appropriations on the status of all section 8 project-based housing, including the number of all project-based units by region as well as an analysis of all federally subsidized housing being refinanced under the Mark-to-Market program. The Secretary shall identify all existing units maintained by region as section 8 project-based units, all project-based units that have opted out or have otherwise been eliminated, and the reasons these units opted out or otherwise were lost as section 8 project-based units.

SEC. 222. The Secretary of the Department of Housing and Urban Development shall, for fiscal year 2015, notify the public through the Federal Register and other means, as determined appropriate, of the issuance of a notice of the availability of assistance or notice of funding availability (NOFA) for any program or discretionary fund administered by the Secretary that is to be competitively awarded. Notwithstanding any other provision of law, for fiscal year 2015, the Secretary may make the NOFA available only on the Internet at the appropriate Government Web site or through other electronic media, as determined by the Secretary.

SEC. 223. Payment of attorney fees in program-related litigation must be paid from the individual program office and Office of General Counsel personnel funding. The annual budget submissions for program offices and Office of General Counsel personnel funding must include program-related litigation costs for attorney fees as a separate line item request.

SEC. 224. The Secretary of the Department of Housing and Urban Development is authorized to transfer up to 5 percent or $5,000,000, whichever is less, of the funds appropriated for any office funded under the heading ''Administrative Support Offices'' to any other office funded under such heading: *Provided*, That no appropriation for any office funded under the heading ''Administrative Support Offices'' shall be increased or decreased by more than 5 percent or $5,000,000, whichever is less, without prior written approval of the House and Senate Committees on Appropriations: *Provided further*, That the Secretary is authorized to transfer up to 5 percent or $5,000,000, whichever is less, of the funds appropriated for any account funded under the general heading ''Program Office Salaries and Expenses'' to any other account funded under such heading: *Provided further*, That no appropriation for any account funded under the general heading ''Program Office Salaries and Expenses'' shall be increased or decreased by more than 5 percent or $5,000,000, whichever is less, without prior written approval of the House and Senate Committees on Appropriations: *Provided further*, That the Secretary may transfer funds made available for salaries and expenses between any office funded under the heading ''Administrative Support Offices'' and any account funded under the general heading ''Program Office Salaries and Expenses'', but only with the prior written approval of the House and Senate Committees on Appropriations.

SEC. 225. The Disaster Housing Assistance Programs, administered by the Department of Housing and Urban Development, shall be considered a ''program of the Department of Housing and Urban Development'' under section 904 of the McKinney Act for the purpose of income verifications and matching.

SEC. 226. (a) The Secretary of Housing and Urban Development shall take the required actions under subsection (b) when a multifamily housing project with a section 8 contract or contract for similar project-based assistance:

(1) receives a Real Estate Assessment Center (REAC) score of 30 or less; or

(2) receives a REAC score between 31 and 59 and:

(A) fails to certify in writing to HUD within 60 days that all deficiencies have been corrected; or

(B) receives consecutive scores of less than 60 on REAC inspections.

Such requirements shall apply to insured and noninsured projects with assistance attached to the units under section 8 of the United States Housing Act of 1937 (42 U.S.C. 1437f), but do not apply to such units assisted under section 8(o)(13) (42 U.S.C. 1437f(o)(13)) or to public housing units assisted with capital or operating funds under section 9 of the United States Housing Act of 1937 (42 U.S.C. 1437g).

(b) The Secretary shall take the following required actions as authorized under subsection (a)—

(1) The Secretary shall notify the owner and provide an opportunity for response within 30 days. If the violations remain, the Secretary shall develop a Compliance, Disposition and Enforcement Plan within 60 days, with a specified timetable for correcting all deficiencies. The Secretary shall provide notice of the Plan to the owner, tenants, the local government, any mortgagees, and any contract administrator.

(2) At the end of the term of the Compliance, Disposition and Enforcement Plan, if the owner fails to fully comply with such plan, the Secretary may require immediate replacement of project management with a management agent approved by the Secretary, and shall take one or more of the following actions, and provide additional notice of those actions to the owner and the parties specified above:

(A) impose civil money penalties;

(B) abate the section 8 contract, including partial abatement, as determined by the Secretary, until all deficiencies have been corrected;

(C) pursue transfer of the project to an owner, approved by the Secretary under established procedures, which will be obligated to promptly make all required repairs and to accept renewal of the assistance contract as long as such renewal is offered; or

(D) seek judicial appointment of a receiver to manage the property and cure all project deficiencies or seek a judicial order of specific performance requiring the owner to cure all project deficiencies.

(c) The Secretary shall also take appropriate steps to ensure that project-based contracts remain in effect, subject to the exercise of contractual abatement remedies to assist relocation of tenants for imminent major threats to health and safety after written notice to and informed consent of the affected tenants and use of other remedies set forth above. To the extent the Secretary determines, in consultation with the tenants and the local government, that the property is not feasible for continued rental assistance payments under such section 8 or other programs, based on consideration of (1) the costs of rehabilitating and operating the property and all available Federal, State, and local resources, including rent adjustments under section 524 of the Multifamily Assisted Housing Reform and Affordability Act of 1997 (''MAHRAA'') and (2) environmental conditions that cannot be remedied in a cost-effective fashion, the Secretary may, in consultation with the tenants of that property, contract for project-based rental assistance payments with an owner or owners of other existing housing properties, or provide other rental assistance. The Secretary shall report semi-annually on all properties covered by this section that are assessed through the Real Estate Assessment Center and have physical inspection scores of less than 30 or have consecutive physical inspection scores of less than 60. The report shall include:

(1) The enforcement actions being taken to address such conditions, including imposition of civil money penalties and termination of subsidies, and identify properties that have such conditions multiple times; and

(2) Actions that the Department of Housing and Urban Development is taking to protect tenants of such identified properties.

SEC. 227. None of the funds made available by this Act, or any other Act, for purposes authorized under section 8 (only with respect to the tenant-based rental assistance program) and section 9 of the United States Housing Act of 1937 (42 U.S.C. 1437 et seq.), may be used by any public housing agency for any amount of salary, including bonuses, for the chief executive officer of which, or any other official or employee of which, that exceeds the annual rate of basic pay payable for a position at level IV of the Executive Schedule at any time during any public housing agency fiscal year 2015.

SEC. 228. None of the funds in this Act may be available for the doctoral dissertation research grant program at the Department of Housing and Urban Development.

SEC. 229. Section 24 of the United States Housing Act of 1937 (42 U.S.C. 1437v) is amended—

(1) in subsection (m)(1), by striking ''fiscal year'' and all that follows through the period at the end and inserting ''fiscal year 2015.''; and

(2) in subsection (o), by striking ''September'' and all that follows through the period at the end and inserting ''September 30, 2015.''.

SEC. 230. None of the funds in this Act provided to the Department of Housing and Urban Development may be used to make a grant award unless the Secretary notifies the House and Senate Committees on Appropriations not less than 3 full business days before any project, State, locality, housing authority, tribe, nonprofit organization, or other entity selected to receive a grant award is announced by the Department or its offices.

SEC. 231. Of the amounts made available for salaries and expenses under all accounts under this title (except for the Office of Inspector General account), a total of up to $2,500,000 may be transferred to and merged with amounts made available in the ''Information Technology Fund'' account under this title.

SEC. 232. Section 579 of the Multifamily Assisted Housing Reform and Affordability Act (MAHRA) of 1997 (42 U.S.C. 1437f note) is amended by striking ''October 1, 2015'' each place it appears and inserting in lieu thereof ''October 1, 2017''.

SEC. 233. None of the funds made available by this Act may be used to require or enforce the Physical Needs Assessment (PNA).

SEC. 234. The language under the heading Rental Assistance Demonstration in the Department of Housing and Urban Development Appropriations Act, 2012 (Public Law 112–55), is amended—

(1) by striking ''(except for funds allocated under such section for single room occupancy dwellings as authorized by title IV of the McKinney-Vento Homeless Assistance Act)'' in both places it appears;

(2) in the second proviso, by striking ''2015'' and inserting ''2018'';

(3) in the third proviso, after ''associated with such conversion'', by inserting ''in excess of amounts made available under this heading'';

(4) in the fourth proviso, by striking ''60,000'' and inserting ''185,000'';

(5) in the penultimate proviso, by—

(A) striking ''for fiscal years 2012 through December 31, 2014'' ;

(B) striking ''and agreement of the administering public housing agency''; and

(C) inserting ''a long-term project-based subsidy contract under section 8 of the Act, which shall have a term of no less than 20 years, with rent adjustments only by an operating cost factor established by the Secretary, which shall be eligible for renewal under section 524 of the Multifamily Assisted Housing Reform and Affordability Act of 1997 (42 U.S.C. 1437f note), or, subject to agreement of the administering public housing agency, to assistance under'' following ''vouchers to assistance under'';

(6) by inserting the following provisos before the final proviso: ''*Provided further*, That amounts made available under the heading 'Rental Housing Assistance' during the period of conversion under the previous proviso, which may extend beyond fiscal year 2016 as necessary to allow processing of all timely applications, shall be available for project-based subsidy contracts entered into pursuant to the previous proviso: *Provided further*, That amounts, including contract authority, recaptured from contracts following a conversion under the previous two provisos are hereby rescinded and an amount of additional new budget authority, equivalent to the amount rescinded is hereby appropriated, to remain available until expended for such conversions: *Provided further*, That the Secretary may transfer amounts made available under the heading 'Rental Housing Assistance', amounts made available for tenant protection vouchers under the heading 'Tenant-Based Rental Assistance' and specifically associated with any such conversions, and amounts made available under the previous proviso as needed to the account under the 'Project-Based Rental Assistance' heading to facilitate conversion under the three previous provisos and any increase in cost for 'Project-Based Rental Assistance' associated with such conversion shall be equal to amounts so transferred:''; and

(7) in the final proviso, by—

(A) striking ''with respect to the previous proviso'' and inserting ''with respect to the previous four provisos''; and

(B) striking ''impact of the previous proviso'' and inserting ''impact of the fiscal year 2012 and 2013 conversion of tenant protection vouchers to assistance under section 8(o)(13) of the Act''.

SEC. 235. None of the funds made available by this Act nor any receipts or amounts collected under any Federal Housing Administration program may be used to implement the Homeowners Armed with Knowledge (HAWK) program.

SEC. 236. None of the funds made available in this Act shall be used by the Federal Housing Administration, the Government National Mortgage Administration, or the Department of Housing and Urban Development to insure, securitize, or establish a Federal guarantee of any mortgage or mortgage backed security that refinances or otherwise replaces a mortgage that has been subject to eminent domain condemnation or seizure, by a state, municipality, or any other political subdivision of a state.

SEC. 237. All unobligated balances, including recaptures and carryover, remaining from funds appropriated to the Department of Housing and Urban Development under the heading ''Brownfields Redevelopment'' are hereby permanently rescinded: *Provided*, That all unobligated balances, including recaptures and carryover, remaining from funds appropriated to the Department of Housing and Urban Development under the heading ''Drug Elimination Grants for Low

Income Housing'' are hereby permanently rescinded: *Provided further*, That all unobligated balances, including recaptures and carryover, remaining from funds appropriated to the Department of Housing and Urban Development for Youthbuild program activities authorized by subtitle D of title IV of the Cranston-Gonzalez National Affordable Housing Act are hereby permanently rescinded.

SEC. 238. Clause (i) of section 3(a)(2)(B) of the United States Housing Act of 1937 (42 U.S.C. 1437a(a)(2)(B)(i)), as amended by section 210 of the Transportation, Housing and Urban Development, and Related Agencies Appropriations Act, 2014 (division L of Public Law 113–76; 128 Stat. 625), is amended—

(1) by striking ''which shall not be lower'' in the matter preceding subclause (I) and all that follows through the end of subclause (I) and inserting the following: ''which—

''(I) shall not be lower than 80 percent of—

''(aa) the applicable fair market rental established under section 8(c) of this Act; or

''(bb) at the discretion of the Secretary, such other applicable fair market rental established by the Secretary that the Secretary determines more accurately reflects local market conditions and is based on an applicable market area that is geographically smaller than the applicable market area used for purposes of the applicable fair market rental under section 8(c);

except that a public housing agency may apply to the Secretary for exception allowing for a flat rental amount for a property that is lower than the amount otherwise determined pursuant to item (aa) or (bb) and the Secretary may grant such exception if the Secretary determines that the fair market rental for the applicable market area pursuant to item (aa) or (bb) does not reflect the market value of the property and the proposed lower flat rental amount is based on a market analysis of the applicable market and complies with subclause (II) and'';

(2) in subclause (II), by inserting ''shall'' before ''be designed''; and

(3) in the matter after and below subclause (II), by striking ''Public housing agencies must comply by June 1, 2014, with the requirement of this clause, except that if'' and inserting ''If''.

SEC. 239. None of the funds made available by this Act may be used to require the relocation, or to carry out any required relocation, of any asset management positions of the Office of Multifamily Housing of the Department of Housing and Urban Development in existence as of the date of the enactment of this Act.

SEC. 240. None of the funds made available by this Act may be used to terminate the status of a unit of general local government as a metropolitan city (as defined in section 102 of the Housing and Community Development Act of 1974 (42 U.S.C. 5302)) with respect to grants under section 106 of such Act (42 U.S.C. 5306).

SEC. 241. Section 184(h)(1)(B) of the Housing and Community Development Act of 1992 (12 U.S.C. 1715z–13a(h)(1)(B)) is amended by inserting after the first sentence the following: ''Exhausting all reasonable possibilities of collection by the holder of the guarantee shall include a good faith consideration of loan modification as well as meeting standards for servicing loans in default, as determined by the Secretary.''.

This title may be cited as the ''Department of Housing and Urban Development Appropriations Act, 2015''.

TITLE III
RELATED AGENCIES

ACCESS BOARD

SALARIES AND EXPENSES

For expenses necessary for the Access Board, as authorized by section 502 of the Rehabilitation Act of 1973, as amended, $7,548,000: *Provided*, That, notwithstanding any other provision of law, there may be credited to this appropriation funds received for publications and training expenses.

FEDERAL MARITIME COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the Federal Maritime Commission as authorized by section 201(d) of the Merchant Marine Act, 1936, as amended (46 U.S.C. 307), including services as authorized by 5 U.S.C. 3109; hire of passenger motor vehicles as authorized by 31 U.S.C. 1343(b); and uniforms or allowances therefore, as authorized by 5 U.S.C. 5901–5902, $25,660,000: *Provided*, That not to exceed $2,000 shall be available for official reception and representation expenses.

NATIONAL RAILROAD PASSENGER CORPORATION

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

For necessary expenses of the Office of Inspector General for the National Railroad Passenger Corporation to carry out the provisions of the Inspector General Act of 1978, as amended, $23,999,000: *Provided*, That the Inspector General shall have all necessary authority, in carrying out the duties specified in the Inspector General Act, as amended (5 U.S.C. App. 3), to investigate allegations of fraud, including false statements to the government (18 U.S.C. 1001), by any person or entity that is subject to regulation by the National Railroad Passenger Corporation: *Provided further*, That the Inspector General may enter into contracts and other arrangements for audits, studies, analyses, and other services with public agencies and with private persons, subject to the applicable laws and regulations that govern the obtaining of such services within the National Railroad Passenger Corporation: *Provided further*, That the Inspector General may select, appoint, and employ such officers and employees as may be necessary for carrying out the functions, powers, and duties of the Office of Inspector General, subject to the applicable laws and regulations that govern such selections, appointments, and employment within Amtrak: *Provided further*, That concurrent with the President's budget request for fiscal year 2016, the Inspector General shall submit to the House and Senate Committees on Appropriations a budget request for fiscal year 2016 in similar format and substance to those submitted by executive agencies of the Federal Government.

NATIONAL TRANSPORTATION SAFETY BOARD

SALARIES AND EXPENSES

For necessary expenses of the National Transportation Safety Board, including hire of passenger motor vehicles and aircraft; services as authorized by 5 U.S.C. 3109, but at rates for individuals not to exceed the per diem rate equivalent to the rate for a GS–15; uniforms, or allowances therefor, as authorized by law (5 U.S.C. 5901–5902), $103,981,000, of which not to exceed $2,000 may be used for official reception and representation expenses. The amounts made available to the National Transportation Safety Board in this Act include amounts necessary to make lease payments on an obligation incurred in fiscal year 2001 for a capital lease.

NEIGHBORHOOD REINVESTMENT CORPORATION

PAYMENT TO THE NEIGHBORHOOD REINVESTMENT CORPORATION

For payment to the Neighborhood Reinvestment Corporation for use in neighborhood reinvestment activities, as authorized by the Neighborhood Reinvestment Corporation Act (42 U.S.C. 8101–8107), $135,000,000, of which $5,000,000 shall be for a multi-family rental housing program: *Provided*, That in addition, $50,000,000 shall be made available until expended to the Neighborhood Reinvestment Corporation for mortgage foreclosure mitigation activities, under the following terms and conditions:

(1) The Neighborhood Reinvestment Corporation (''NRC'') shall make grants to counseling intermediaries approved by the Department of Housing and Urban Development (HUD) (with match to be determined by the NRC based on affordability and the economic conditions of an area; a match also may be waived by the NRC based on the aforementioned conditions) to provide mortgage foreclosure mitigation assistance primarily to States and areas with high rates of defaults and foreclosures to help eliminate the default and foreclosure of mortgages of owner-occupied single-family homes that are at risk of such foreclosure. Other than areas with high rates of defaults and foreclosures, grants may also be provided to approved counseling intermediaries based on a geographic analysis of the Nation by the NRC which determines where there is a prevalence of mortgages that are risky and likely to fail, including any trends for mortgages that are likely to default and face foreclosure. A State Housing Finance Agency may also be eligible where the State Housing Finance Agency meets all the requirements under this paragraph. A HUD-approved counseling intermediary shall meet certain mortgage foreclosure mitigation assistance counseling requirements, as determined by the NRC, and shall be approved by HUD or the NRC as meeting these requirements.

(2) Mortgage foreclosure mitigation assistance shall only be made available to homeowners of owner-occupied homes with mortgages in default or in danger of default. These mortgages shall likely be subject to a foreclosure action and homeowners will be provided such assistance that shall consist of activities that are likely to prevent foreclosures and result in the long-term affordability of the mortgage retained pursuant to such activity or another positive outcome for the homeowner. No funds made available under this paragraph may be provided directly to lenders or homeowners to discharge outstanding mortgage balances or for any other direct debt reduction payments.

(3) The use of mortgage foreclosure mitigation assistance by approved counseling intermediaries and State Housing Finance Agencies shall involve a reasonable analysis of the borrower's financial situation, an evaluation of the current value of the property that is subject to the mortgage, counseling regarding the assumption of the mortgage by another non-Federal party, counseling regarding the possible purchase of the mortgage by a non-Federal third party, counseling and advice of all likely restructuring and refinancing strategies or the approval of a work-out strategy by all interested parties.

(4) NRC may provide up to 15 percent of the total funds under this paragraph to its own charter members with expertise in foreclosure prevention counseling, subject to a certification by the NRC that the procedures for selection do not consist of any procedures or activities that could be construed as a conflict of interest or have the appearance of impropriety.

(5) HUD-approved counseling entities and State Housing Finance Agencies receiving funds under this paragraph shall have demonstrated experience in successfully working with financial institutions as well as borrowers facing default, delinquency and foreclosure as well as documented counseling capacity, outreach capacity, past successful performance and positive outcomes with documented counseling plans (including post mortgage foreclosure mitigation counseling),

loan workout agreements and loan modification agreements. NRC may use other criteria to demonstrate capacity in underserved areas.

(6) Of the total amount made available under this paragraph, up to $2,500,000 may be made available to build the mortgage foreclosure and default mitigation counseling capacity of counseling intermediaries through NRC training courses with HUD-approved counseling intermediaries and their partners, except that private financial institutions that participate in NRC training shall pay market rates for such training.

(7) Of the total amount made available under this paragraph, up to 5 percent may be used for associated administrative expenses for the NRC to carry out activities provided under this section.

(8) Of the total amount made available under this paragraph, up to $4,000,000 may be used for wind-down and closeout of the mortgage foreclosure mitigation activities program.

(9) Mortgage foreclosure mitigation assistance grants may include a budget for outreach and advertising, and training, as determined by the NRC.

(10) The NRC shall continue to report biannually to the House and Senate Committees on Appropriations as well as the Senate Banking Committee and House Financial Services Committee on its efforts to mitigate mortgage default.

UNITED STATES INTERAGENCY COUNCIL ON HOMELESSNESS

OPERATING EXPENSES

For necessary expenses (including payment of salaries, authorized travel, hire of passenger motor vehicles, the rental of conference rooms, and the employment of experts and consultants under section 3109 of title 5, United States Code) of the United States Interagency Council on Homelessness in carrying out the functions pursuant to title II of the McKinney-Vento Homeless Assistance Act, as amended, $3,530,000. Title II of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11319) is amended by striking ''October 1, 2016'' in section 209 and inserting ''October 1, 2017''.

TITLE IV

GENERAL PROVISIONS—THIS ACT

SEC. 401. None of the funds in this Act shall be used for the planning or execution of any program to pay the expenses of, or otherwise compensate, non-Federal parties intervening in regulatory or adjudicatory proceedings funded in this Act.

SEC. 402. None of the funds appropriated in this Act shall remain available for obligation beyond the current fiscal year, nor may any be transferred to other appropriations, unless expressly so provided herein.

SEC. 403. The expenditure of any appropriation under this Act for any consulting service through a procurement contract pursuant to section 3109 of title 5, United States Code, shall be limited to those contracts where such expenditures are a matter of public record and available for public inspection, except where otherwise provided under existing law, or under existing Executive order issued pursuant to existing law.

SEC. 404. (a) None of the funds made available in this Act may be obligated or expended for any employee training that—

(1) does not meet identified needs for knowledge, skills, and abilities bearing directly upon the performance of official duties;

(2) contains elements likely to induce high levels of emotional response or psychological stress in some participants;

(3) does not require prior employee notification of the content and methods to be used in the training and written end of course evaluation;

(4) contains any methods or content associated with religious or quasi-religious belief systems or ''new age'' belief systems as defined in Equal Employment Opportunity Commission Notice N–915.022, dated September 2, 1988; or

(5) is offensive to, or designed to change, participants' personal values or lifestyle outside the workplace.

(b) Nothing in this section shall prohibit, restrict, or otherwise preclude an agency from conducting training bearing directly upon the performance of official duties.

SEC. 405. Except as otherwise provided in this Act, none of the funds provided in this Act, provided by previous appropriations Acts to the agencies or entities funded in this Act that remain available for obligation or expenditure in fiscal year 2015, or provided from any accounts in the Treasury derived by the collection of fees and available to the agencies funded by this Act, shall be available for obligation or expenditure through a reprogramming of funds that:

(1) creates a new program;

(2) eliminates a program, project, or activity;

(3) increases funds or personnel for any program, project, or activity for which funds have been denied or restricted by the Congress;

(4) proposes to use funds directed for a specific activity by either the House or Senate Committees on Appropriations for a different purpose;

(5) augments existing programs, projects, or activities in excess of $5,000,000 or 10 percent, whichever is less;

(6) reduces existing programs, projects, or activities by $5,000,000 or 10 percent, whichever is less; or

(7) creates, reorganizes, or restructures a branch, division, office, bureau, board, commission, agency, administration, or department different from the budget justifications submitted to the Committees on Appropriations or the table accompanying the explanatory statement accompanying this Act, whichever is more detailed, unless prior approval is received from the House and Senate Committees on Appropriations: *Provided*, That not later than 60 days after the date of enactment of this Act, each agency funded by this Act shall submit a report to the Committees on Appropriations of the Senate and of the House of Representatives to establish the baseline for application of reprogramming and transfer authorities for the current fiscal year: *Provided further*, That the report shall include:

(A) a table for each appropriation with a separate column to display the prior year enacted level, the President's budget request, adjustments made by Congress, adjustments due to enacted rescissions, if appropriate, and the fiscal year enacted level;

(B) a delineation in the table for each appropriation and its respective prior year enacted level by object class and program, project, and activity as detailed in the budget appendix for the respective appropriation; and

(C) an identification of items of special congressional interest: *Provided further*, That the amount appropriated or limited for salaries and expenses for an agency shall be reduced by $100,000 per day for each day after the required date that the report has not been submitted to the Congress.

SEC. 406. Except as otherwise specifically provided by law, not to exceed 50 percent of unobligated balances remaining available at the end of fiscal year 2015 from appropriations made available for salaries and expenses for fiscal year 2015 in this Act, shall remain available through September 30, 2016, for each such account for the purposes authorized: *Provided*, That a request shall be submitted to the House and Senate Committees on Appropriations for approval prior to the expenditure of such funds: *Provided further*, That these requests shall be made in compliance with reprogramming guidelines under section 405 of this Act.

SEC. 407. No funds in this Act may be used to support any Federal, State, or local projects that seek to use the power of eminent domain, unless eminent domain is employed only for a public use: *Provided*, That for purposes of this section, public use shall not be construed to include economic development that primarily benefits private entities: *Provided further*, That any use of funds for mass transit, railroad, airport, seaport or highway projects, as well as utility projects which benefit or serve the general public (including energy-related, communication-related, water-related and wastewater-related infrastructure), other structures designated for use by the general public or which have other common-carrier or public-utility functions that serve the general public and are subject to regulation and oversight by the government, and projects for the removal of an immediate threat to public health and safety or brownsfields as defined in the Small Business Liability Relief and Brownsfield Revitalization Act (Public Law 107–118) shall be considered a public use for purposes of eminent domain.

SEC. 408. All Federal agencies and departments that are funded under this Act shall issue a report to the House and Senate Committees on Appropriations on all sole-source contracts by no later than July 30, 2015. Such report shall include the contractor, the amount of the contract and the rationale for using a sole-source contract.

SEC. 409. None of the funds made available in this Act may be transferred to any department, agency, or instrumentality of the United States Government, except pursuant to a transfer made by, or transfer authority provided in, this Act or any other appropriations Act.

SEC. 410. No part of any appropriation contained in this Act shall be available to pay the salary for any person filling a position, other than a temporary position, formerly held by an employee who has left to enter the Armed Forces of the United States and has satisfactorily completed his or her period of active military or naval service, and has within 90 days after his or her release from such service or from hospitalization continuing after discharge for a period of not more than 1 year, made application for restoration to his or her former position and has been certified by the Office of Personnel Management as still qualified to perform the duties of his or her former position and has not been restored thereto.

SEC. 411. No funds appropriated pursuant to this Act may be expended by an entity unless the entity agrees that in expending the assistance the entity will comply with sections 2 through 4 of the Act of March 3, 1933 (41 U.S.C. 10a–10c, popularly known as the ''Buy American Act'').

SEC. 412. No funds appropriated or otherwise made available under this Act shall be made available to any person or entity that has been convicted of violating the Buy American Act (41 U.S.C. 10a–10c).

SEC. 413. None of the funds made available in this Act may be used for first-class airline accommodations in contravention of sections 301–10.122 and 301–10.123 of title 41, Code of Federal Regulations.

SEC. 414. None of the funds made available by this Act may be used in contravention of the 5th or 14th Amendment to the Constitution or title VI of the Civil Rights Act of 1964.

SEC. 415. (a) None of the funds made available by this Act may be used to approve a new foreign air carrier permit under sections 41301 through 41305 of title 49, United States Code, or exemption application under section 40109 of that title of an air carrier already holding an air operators certificate issued by a country that is party to the U.S.–E.U.–Iceland–Norway Air Transport Agreement where such approval would contravene United States law or Article 17 bis of the U.S.–E.U.–Iceland–Norway Air Transport Agreement.

(b) Nothing in this section shall prohibit, restrict or otherwise preclude the Secretary of Transportation from granting a foreign air carrier permit or an exemption to such an air carrier where such authorization is consistent with the U.S.-E.U.-Iceland-Norway Air Transport Agreement and United States law.

SEC. 416. None of the funds made available by this Act may be used to obligate or award funds for the National Highway Traffic Safety Administration's National Roadside Survey.

SEC. 417. None of the funds made available by this Act may be used to mandate global positioning system (GPS) tracking in private passenger motor vehicles without providing full and appropriate consideration of privacy concerns under 5 U.S.C. chapter 5, subchapter II.

SEC. 418. None of the funds made available in this Act may be used by the Federal Transit Administration to implement, administer, or enforce section 18.36(c)(2) of title 49, Code of Federal Regulations, for construction hiring purposes.

SEC. 419. None of the funds made available by this Act may be used to lease or purchase new light duty vehicles for any executive fleet, or for an agency's fleet inventory, except in accordance with Presidential Memorandum—Federal Fleet Performance, dated May 24, 2011.

SEC. 420. It is the sense of the Congress that the Congress should not pass any legislation that authorizes spending cuts that would increase poverty in the United States.

SEC. 421. All agencies and departments funded by the Act shall send to Congress at the end of the fiscal year a report containing a complete inventory of the total number of vehicles owned, leased, permanently retired, and purchased during fiscal year 2015, as well as the total cost of the vehicle fleet, including maintenance, fuel, storage, purchasing, and leasing.

SEC. 422. None of the funds made available in this Act may be used to send or otherwise pay for the attendance of more than 50 employees of a single agency or department of the United States Government, who are stationed in the United States, at any single international conference unless the relevant Secretary reports to the Committees on Appropriations at least 5 days in advance that such attendance is important to the national interest: *Provided*, That for purposes of this section the term ''international conference'' shall mean a conference occurring outside of the United States attended by representatives of the United States Government and of foreign governments, international organizations, or nongovernmental organizations.

SEC. 423. (a) Any agency receiving funds made available in this Act, shall, subject to subsections (b) and (c), post on the public website of that agency any report required to be submitted by the Committee in this or any other Act, upon the determination by the head of the agency that it shall serve the national interest.

(b) Subsection (a) shall not apply to a report if--

(1) the public posting of the report compromises national security; or

(2) the report contains proprietary information.

(c) The head of the agency posting such report shall do so only after such report has been made available to the requesting Committee or Committees of Congress for no less than 45 days.

SEC. 424. Any Federal agency or department that is funded under this Act shall respond to any recommendation made to such agency or department by the Government Accountability Office in a timely manner.

This division may be cited as the ''Transportation, Housing and Urban Development, and Related Agencies Appropriations Act, 2015''.

DIVISION L—FURTHER CONTINUING APPROPRIATIONS, 2015

SEC. 101. The Continuing Appropriations Resolution, 2015 (Public Law 113–164) is amended by—

(1) striking the date specified in section 106(3) and inserting ''February 27, 2015'';

(2) striking ''the date specified in section 106(3) of this joint resolution'' in section 144 and inserting ''December 11, 2014''; and

(3) adding after section 149 the following new sections:

''SEC. 150. (a) Amounts made available by section 101 for 'Department of Homeland Security—United States Secret Service—Salaries and Expenses' shall be obligated at a rate for operations necessary for Presidential candidate nominee protection.

''(b) The Secretary of Homeland Security shall notify the Committees on Appropriations of the House of Representatives and the Senate on each use of the authority provided in this section.

''SEC. 151. The Department of Homeland Security shall continue preparations to award the construction contract for the National Bio- and Agro-defense Facility by May 1, 2015.''.

SEC. 102. (a) Section 44302(f) of title 49, United States Code, is amended by striking ''the date specified in section 106(3) of the Continuing Appropriations Resolution, 2015'' and inserting ''December 11, 2014''.

(b) Section 44303(b) of title 49, United States Code, is amended by striking ''the date specified in section 106(3) of the Continuing Appropriations Resolution, 2015'' and inserting ''December 11, 2014''.

(c) Section 44310(a) of title 49, United States Code, is amended by striking ''the date specified in section 106(3) of the Continuing Appropriations Resolution, 2015'' and inserting ''December 11, 2014''.

DIVISION M—EXPATRIATE HEALTH COVERAGE CLARIFICATION ACT OF 2014

SECTION 1. SHORT TITLE.

This division may be cited as the ''Expatriate Health Coverage Clarification Act of 2014''.

SEC. 2. SENSE OF CONGRESS.

It is the sense of Congress that—

(1) American expatriate health insurance companies should be permitted to compete on a level playing field in the global marketplace;

(2) the global competitiveness of American companies should be encouraged; and

(3) in implementing the health insurance provider fee under section 9010 of the Patient Protection and Affordable Care Act (Public Law 111–148; 26 U.S.C. 4001 note prec.) and other provisions of such Act and title I and subtitle B of title II of the Health Care and Education Reconciliation Act of 2010 (Public Law 111–152), the Secretary of the Treasury, Secretary of Health and Human Services, and Secretary of Labor should continue to recognize the unique and multinational features of expatriate health plans and the United States companies that operate such plans and the competitive pressures of such plans and companies.

SEC. 3. TREATMENT OF EXPATRIATE HEALTH PLANS UNDER ACA.

(a) IN GENERAL.—Subject to subsection (b), the provisions of (including any amendment made by) the Patient Protection and Affordable Care Act (Public Law 111–148) and of title I and subtitle B of title II of the Health Care and Education Reconciliation Act of 2010 (Public Law 111–152) shall not apply with respect to—

(1) expatriate health plans;

(2) employers with respect to such plans, solely in their capacity as plan sponsors for such plans; or

(3) expatriate health insurance issuers with respect to coverage offered by such issuers under such plans.

(b) MINIMUM ESSENTIAL COVERAGE AND REPORTING REQUIREMENTS.—

(1) IN GENERAL.—For the purpose of section 5000A(f) of the Internal Revenue Code of 1986, and any other section of the Internal Revenue Code of 1986 that incorporates the definition of minimum essential coverage under such section 5000A(f) by reference:

(A) An expatriate health plan offered to primary enrollees who are described in subsections (d)(3)(A) and (d)(3)(B) of this section shall be treated as an eligible employer sponsored plan under 5000A(f)(2) of such Code.

(B) An expatriate health plan offered to primary enrollees who are described in subsection (d)(3)(C) of this section shall be treated as a plan in the individual market under section 5000A(f)(1)(C) of such Code. This subparagraph shall apply solely for the purposes of sections 36B, 5000A, and 6055 of such Code.

(2) EXCEPTION.—Subsection (a) shall not apply with respect to section 6055 of the Internal Revenue Code of 1986, or sections 4980H and 6056 of such Code in the case of an applicable large employer (as defined in section 4980H of such Code), except that statements furnished to individuals may be provided through electronic media and the primary insured shall be deemed to have consented to receive the statements under such sections in electronic form, unless the individual explicitly refuses such consent. Notwithstanding subsection (a), section 4980I of the Internal Revenue Code of 1986 shall continue to apply with respect to applicable employer-sponsored coverage (as defined in such section) of a qualified expatriate described in section 3(d)(3)(A)(i) who is assigned (rather than transferred) to work in the United States.

(c) QUALIFIED EXPATRIATES, SPOUSES, AND DEPENDENTS NOT UNITED STATES HEALTH RISK.—

(1) IN GENERAL.—For purposes of section 9010 of the Patient Protection and Affordable Care Act (26 U.S.C. 4001 note prec.), for calendar years after 2015, a qualified expatriate (and any spouse, dependent, or any other individual enrolled in the plan) enrolled in an expatriate health plan shall not be considered a United States health risk.

(2) SPECIAL RULE.—Notwithstanding paragraph (1), the fee under section 9010 of such Act for each of calendar years 2014 and 2015 with respect to any expatriate health insurance issuer shall be the amount which bears the same ratio to the fee amount determined by the Secretary of the Treasury with respect to such issuer under such section for each such year (determined without regard to this paragraph) as—

(A) the amount of premiums taken into account under such section with respect to such issuer for each such year, less the amount of premiums for expatriate health

plans taken into account under such section with respect to such issuer for each such year, bears to

(B) the amount of premiums taken into account under such section with respect to such issuer for each such year.

(d) DEFINITIONS.—In this section:

(1) EXPATRIATE HEALTH INSURANCE ISSUER.—The term ''expatriate health insurance issuer'' means a health insurance issuer that issues expatriate health plans.

(2) EXPATRIATE HEALTH PLAN.—The term ''expatriate health plan'' means a group health plan, health insurance coverage offered in connection with a group health plan, or health insurance coverage offered to a group of individuals described in paragraph (3)(C) (which may include spouses, dependents, and other individuals enrolled in the plan) that meets each of the following standards:

(A) Substantially all of the primary enrollees in such plan or coverage are qualified expatriates with respect to such plan or coverage. In applying the previous sentence, an individual shall not be considered a primary enrollee if the individual is not a national of the United States and the individual resides in the country of which the individual is a citizen.

(B) Substantially all of the benefits provided under the plan or coverage are not excepted benefits described in section 9832(c) of the Internal Revenue Code of 1986.

(C) The plan or coverage provides coverage for inpatient hospital services, outpatient facility services, physician services, and emergency services (comparable to such emergency services coverage described in and offered under section 8903(1) of title 5, United States Code for plan year 2009)—

(i) in the case of individuals described in paragraph (3)(A), both in the United States and in the country or countries from which the individual was transferred or assigned (accounting for flexibility needed with existing coverage), and such other country or countries as the Secretary of Health and Human Services, in consultation with the Secretary of the Treasury and the Secretary of Labor, may designate (after taking into account the barriers and prohibitions to providing health care services in the countries as designated);

(ii) in the case of individuals described in paragraph (3)(B), in the country or countries in which the individual is present in connection with the individual's employment, and such other country or countries as the Secretary of Health and Human Services, in consultation with the Secretary of the Treasury and the Secretary of Labor, may designate; or

(iii) in the case of individuals described in paragraph (3)(C), in the country or countries as the Secretary of Health and Human Services, in consultation with the Secretary of the Treasury and the Secretary of Labor, may designate.

(D) The plan sponsor reasonably believes that the benefits provided by the expatriate health plan satisfy a standard at least actuarially equivalent to the level provided for in section 36B(c)(2)(C)(ii) of the Internal Revenue Code of 1986.

(E) If the plan or coverage provides dependent coverage of children, the plan or coverage makes such dependent coverage available for adult children until the adult child turns 26 years of age, unless such individual is the child of a child receiving dependent coverage.

(F) The plan or coverage—

(i) is issued by an expatriate health plan issuer, or administered by an administrator, that together with any other person in the expatriate health plan issuer's or administrator's controlled group (as described in section 9010 of the Patient Protection and Affordable Care Act (and the regulations promulgated thereunder)), has licenses to sell insurance in more than two countries, and, with respect to such plan, coverage, or company in the controlled group—

(I) maintains network provider agreements that provide for direct claims payments, directly or through third party contracts, with health care providers in eight or more countries;

(II) maintains call centers, directly or through third party contracts, in three or more countries and accepts calls from customers in eight or more languages;

(III) processes (in the aggregate together with other plans or coverage it issues or administers) at least $1,000,000 in claims in foreign currency equivalents each year;

(IV) makes available (directly or through third party contracts) global evacuation/repatriation coverage; and

(V) maintains legal and compliance resources in three or more countries; and

(ii) offers reimbursements for items or services under such plan or coverage in the local currency in eight or more countries.

(G) The plan or coverage, and the plan sponsor or expatriate health insurance issuer with respect to such plan or coverage, satisfies the provisions of title XXVII of the Public Health Service Act (42 U.S.C. 300gg et seq.), chapter 100 of the Internal Revenue Code of 1986, and part 7 of subtitle B of title I of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1181 et seq.), which would otherwise apply to such a plan or coverage, and sponsor or issuer, if not for the enactment of the Patient Protection and Affordable Care Act and title I and subtitle B of title II of the Health Care and Education Reconciliation Act of 2010.

(3) QUALIFIED EXPATRIATE.—The term ''qualified expatriate'' means a primary insured, or individual otherwise described in subparagraph (C)—

(A)(i) whose skills, qualifications, job duties, or expertise is of a type that has caused his or her employer to transfer or assign him or her to the United States for a specific and temporary purpose or assignment tied to his or her employment; and

(ii) in connection with such transfer or assignment, is reasonably determined by the plan sponsor to require access to health insurance and other related services and support in multiple countries, and is offered other multinational benefits on a periodic basis (such as tax equalization, compensation for cross border moving expenses, or compensation to enable the expatriate to return to their home country);

(B) who is working outside of the United States for a period of at least 180 days in a consecutive 12-month period that overlaps with the plan year; or

(C) who is a member of a group of similarly situated individuals—

(i) that is formed for the purpose of traveling or relocating internationally in service of one or more of the purposes listed in section 501(c)(3) or 501(c)(4) of the Internal Revenue Code of 1986, or similarly situated organizations or groups (such as students or religious missionaries);

(ii) that is not formed primarily for the sale of health insurance coverage; and

(iii) that the Secretary of Health and Human Services, in consultation with the Secretary of the Treasury and the Secretary of Labor, determines requires access to health insurance and other related services and support in multiple countries.

(4) UNITED STATES.—The term ''United States'' means the 50 States, the District of Columbia, and Puerto Rico.

(5) MISCELLANEOUS TERMS.—

(A) GROUP HEALTH PLAN; HEALTH INSURANCE COVERAGE; HEALTH INSURANCE ISSUER; PLAN SPONSOR.—The terms ''group health plan'', ''health insurance coverage'', ''health insurance issuer'', and ''plan sponsor'' have the meanings given those terms in section 2791 of the Public Health Service Act (42 U.S.C. 300gg–91).

(B) TRANSFER.—The term ''transfer'' means an employer has transferred an employee to perform services for a branch of the same employer or a parent, affiliate, franchise, or subsidiary thereof.

(e) REGULATIONS.—The Secretary of the Treasury, the Secretary of Health and Human Services, and the Secretary of Labor may promulgate regulations necessary to carry out this Act, including such rules as may be necessary to prevent inappropriate expansion of the application of the exclusions under this Act from applicable laws and regulations, and to amend existing annual reporting requirements or procedures to include applicable qualified expatriate health insurers' total number of expatriate plan enrollees.

(f) EFFECTIVE DATE.—Unless otherwise specified, this Act shall take effect on the date of enactment of this Act, and shall apply only to expatriate health plans issued or renewed on or after July 1, 2015.

DIVISION N—OTHER MATTERS

SEC. 101. SEPARATE CONTRIBUTION LIMITS FOR CONTRIBUTIONS MADE TO NATIONAL PARTIES TO SUPPORT PRESIDENTIAL NOMINATING CONVENTIONS, NATIONAL PARTY HEADQUARTERS BUILDINGS, AND RECOUNTS.

(a) SEPARATE LIMITS.—Section 315(a) of the Federal Election Campaign Act of 1971 (52 U.S.C. 30116(a)) is amended—

(1) in paragraph (1)(B), by striking the semicolon at the end and inserting the following: '', or, in the case of contributions made to any of the accounts described in paragraph (9), exceed 300 percent of the amount otherwise applicable under this subparagraph with respect to such calendar year;'';

(2) in paragraph (2)(B), by striking the semicolon at the end and inserting the following: '', or, in the case of contributions made to any of the accounts described in paragraph (9), exceed 300 percent of the amount otherwise applicable under this subparagraph with respect to such calendar year;''; and

(3) by adding at the end the following new paragraph:

''(9) An account described in this paragraph is any of the following accounts:

''(A) A separate, segregated account of a national committee of a political party (other than a national congressional campaign committee of a political party) which is used solely to defray expenses incurred with respect to a presidential nominating convention (including the payment of deposits) or to repay loans the proceeds of which were used to defray such expenses, or otherwise to restore funds used to defray such expenses, except that the aggregate amount of expenditures the national committee of a political party may make from such account may not exceed $20,000,000 with respect to any single convention.

''(B) A separate, segregated account of a national committee of a political party (including a national congressional campaign committee of a political party) which is used solely to defray expenses incurred with respect to the construction, purchase, renovation, operation, and furnishing of one or more headquarters buildings of the party or to repay loans the proceeds of which were

used to defray such expenses, or otherwise to restore funds used to defray such expenses (including expenses for obligations incurred during the 2-year period which ends on the date of the enactment of this paragraph).

''(C) A separate, segregated account of a national committee of a political party (including a national congressional campaign committee of a political party) which is used to defray expenses incurred with respect to the preparation for and the conduct of election recounts and contests and other legal proceedings.''.

(b) CONFORMING AMENDMENT RELATING TO DETERMINATION OF COORDINATED EXPENDITURE LIMITATIONS.—Section 315(d) of such Act (52 U.S.C. 30116(d)) is amended by adding at the end the following new paragraph:

''(5) The limitations contained in paragraphs (2), (3), and (4) of this subsection shall not apply to expenditures made from any of the accounts described in subsection (a)(9).''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to funds that are solicited, received, transferred, or spent on or after the date of the enactment of this section.

SEC. 102. MODIFICATION OF TREATMENT OF CERTAIN HEALTH ORGANIZATIONS.

(a) IN GENERAL.—Paragraph (5) of section 833(c) of the Internal Revenue Code of 1986 is amended—

(1) by striking ''this section'' and inserting ''paragraphs (2) and (3) of subsection (a)'', and

(2) by inserting ''and for activities that improve health care quality'' after ''clinical services''.

(b) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after December 31, 2009.

SEC. 103. BUDGETARY EFFECTS.

(a) STATUTORY PAY-AS-YOU-GO SCORECARDS.—The budgetary effects of division M and sections 101 and 102 of division N shall not be entered on either PAYGO scorecard maintained pursuant to section 4(d) of the Statutory Pay-As-You-Go Act of 2010.

(b) SENATE PAY-AS-YOU-GO SCORECARDS.—The budgetary effects of division M and sections 101 and 102 of division N shall not be entered on any PAYGO scorecard maintained for purposes of section 201 of S. Con. Res. 21 (110th Congress).

(c) CLASSIFICATION OF BUDGETARY EFFECTS.—Notwithstanding Rule 3 of the Budget Scorekeeping Guidelines set forth in the joint explanatory statement of the committee of conference accompanying Conference Report 105–217 and section 250(c)(8) of the Balanced Budget and Emergency Deficit Control Act of 1985, the budgetary effects of division M and sections 101 and 102 of division N shall not be estimated—

(1) for purposes of section 251 of such Act; and

(2) for purposes of paragraph 4(C) of section 3 of the Statutory Pay-As-You-Go Act of 2010 as being included in an appropriation Act.

DIVISION O—MULTIEMPLOYER PENSION REFORM

SECTION 1. SHORT TITLE.

This division may be cited as the ''Multiemployer Pension Reform Act of 2014''.

SEC. 2. TABLE OF CONTENTS.

The table of contents for this division is as follows:

Sec. 1. Short title.
Sec. 2. Table of Contents.

TITLE I—MODIFICATIONS TO MULTIEMPLOYER PLAN RULES

Subtitle A—Amendments to Pension Protection Act of 2006

Sec. 101. Repeal of sunset of PPA funding rules.
Sec. 102. Election to be in critical status.
Sec. 103. Clarification of rule for emergence from critical status.
Sec. 104. Endangered status not applicable if no additional action is required.
Sec. 105. Correct endangered status funding improvement plan target funded percentage.
Sec. 106. Conforming endangered status and critical status rules during funding improvement and rehabilitation plan adoption periods.
Sec. 107. Corrective plan schedules when parties fail to adopt in bargaining.
Sec. 108. Repeal of reorganization rules for multiemployer plans.
Sec. 109. Disregard of certain contribution increases for withdrawal liability purposes.
Sec. 110. Guarantee for pre-retirement survivor annuities under multiemployer pension plans.
Sec. 111. Required disclosure of multiemployer plan information.

Subtitle B—Multiemployer Plan Mergers and Partitions

Sec. 121. Mergers.
Sec. 122. Partitions of eligible multiemployer plans.

Subtitle C—Strengthening the Pension Benefit Guaranty Corporation

Sec. 131. Premium increases for multiemployer plans.

TITLE II—REMEDIATION MEASURES FOR DEEPLY TROUBLED PLANS

Sec. 201. Conditions, limitations, distribution and notice requirements, and approval process for benefit suspensions under multiemployer plans in critical and declining status.

TITLE I—MODIFICATIONS TO MULTIEMPLOYER PLAN RULES

Subtitle A—Amendments to Pension Protection Act of 2006

SEC. 101. REPEAL OF SUNSET OF PPA FUNDING RULES.

(a) IN GENERAL.—Subtitle C of title II of the Pension Protection Act of 2006 (26 U.S.C. 412 note) is repealed.

(b) CONFORMING AMENDMENTS.—

(1) AMENDMENT TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 304(d)(1) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1084) is amended by striking subparagraph (C).

(2) AMENDMENT TO INTERNAL REVENUE CODE.—Section 431(d)(1) of the Internal Revenue Code of 1986 is amended by striking subparagraph (C).

SEC. 102. ELECTION TO BE IN CRITICAL STATUS.

(a) AMENDMENTS TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—

(1) IN GENERAL.—Section 305(b) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(b)) is amended by adding at the end the following:

''(4) ELECTION TO BE IN CRITICAL STATUS.—Notwithstanding paragraph (2) and subject to paragraph (3)(B)(iv)—

''(A) the plan sponsor of a multiemployer plan that is not in critical status for a plan year but that is projected by the plan actuary, pursuant to the determination under paragraph (3), to be in critical status in any of the succeeding 5 plan years may, not later than 30 days after the date of the certification under paragraph (3)(A), elect to be in critical status effective for the current plan year,

''(B) the plan year in which the plan sponsor elects to be in critical status under subparagraph (A) shall be treated for purposes of this section as the first year in which the plan is in critical status, regardless of the date on which the plan first satisfies the criteria for critical status under paragraph (2), and

''(C) a plan that is in critical status under this paragraph shall not emerge from critical status except in accordance with subsection (e)(4)(B).''.

(2) ANNUAL CERTIFICATION.—

(A) IN GENERAL.—Section 305(b)(3)(A)(i) of such Act (29 U.S.C. 1085(b)(3)(A)(i)) is amended by striking '', and'' and inserting ''or for any of the succeeding 5 plan years, and''.

(B) ACTUARIAL PROJECTIONS.—Section 305(b)(3)(B) of such Act (29 U.S.C. 1085(b)(3)(B)) is amended—

(i) in clause (i), by striking ''In making the determinations'' and inserting ''Except as provided in clause (iv), in making the determinations''; and

(ii) by adding at the end the following:

''(iv) PROJECTIONS RELATING TO CRITICAL STATUS IN SUCCEEDING PLAN YEARS.—Clauses (i) and (ii) (other than the 2nd sentence of clause (i)) may be disregarded by a plan actuary in the case of any certification of whether a plan will be in critical status in a succeeding plan year, except that a plan sponsor may not elect to be in critical status for a plan year under paragraph (4) in any case in which the certification upon which such election would be based is made without regard to such clauses.''.

(3) NOTICE.—

(A) OF ELECTION TO BE IN CRITICAL STATUS.—Section 305(b)(3)(D)(i) of such Act (29 U.S.C. 1085(b)(3)(D)(i)) is amended—

(i) by inserting after ''for a plan year'' the following: ''or in which a plan sponsor elects to be in critical status for a plan year under paragraph (4)''; and

(ii) by adding at the end the following: ''In any case in which a plan sponsor elects to be in critical status for a plan year under paragraph (4), the plan sponsor shall notify the Secretary of the Treasury of such election not later than 30 days after the date of such certification or such other time as the Secretary of the Treasury may prescribe by regulations or other guidance.''

(B) OF PROJECTION TO BE IN CRITICAL STATUS IN A FUTURE PLAN YEAR.—Section 305(b)(3)(D) of such Act (29 U.S.C. 1085(b)(3)(D)) is amended by adding at the end the following:

''(iv) NOTICE OF PROJECTION TO BE IN CRITICAL STATUS IN A FUTURE PLAN YEAR.—In any case in which it is certified under subparagraph (A)(i) that a multiemployer plan will be in critical status for any of 5 succeeding plan years (but not for the current plan year) and the plan sponsor of such plan has not made an election to be in critical status for the plan year under paragraph (4), the plan sponsor shall, not later than 30 days after the date of the certification, provide notification of the projected critical status to the Pension Benefit Guaranty Corporation.''.

(b) AMENDMENTS TO INTERNAL REVENUE CODE.—

(1) IN GENERAL.—Section 432(b) of the Internal Revenue Code of 1986 is amended by adding at the end the following:

''(4) ELECTION TO BE IN CRITICAL STATUS.—Notwithstanding paragraph (2) and subject to paragraph (3)(B)(iv)—

''(A) the plan sponsor of a multiemployer plan that is not in critical status for a plan year but that is projected by the plan actuary, pursuant to the determination under paragraph (3), to be in critical status in any of the succeeding 5 plan years may, not later than 30 days after the date of the certification under paragraph (3)(A), elect to be in critical status effective for the current plan year,

''(B) the plan year in which the plan sponsor elects to be in critical status under subparagraph (A) shall be treated for purposes of this section as the first year in which the plan is in critical status, regardless of the date on which the plan first satisfies the criteria for critical status under paragraph (2), and

''(C) a plan that is in critical status under this paragraph shall not emerge from critical status except in accordance with subsection (e)(4)(B).''.

(2) ANNUAL CERTIFICATION.—

(A) IN GENERAL.—Section 432(b)(3)(A)(i) of such Code is amended by striking '', and'' and inserting ''or for any of the succeeding 5 plan years, and''.

(B) ACTUARIAL PROJECTIONS.—Section 432(b)(3)(B) of such Code is amended—

(i) in clause (i), by striking ''In making the determinations'' and inserting ''Except as provided in clause (iv), in making the determinations''; and

(ii) by adding at the end the following:

''(iv) PROJECTIONS RELATING TO CRITICAL STATUS IN SUCCEEDING PLAN YEARS.—Clauses (i) and (ii) (other than the 2nd sentence of clause (i)) may be disregarded by a plan actuary in the case of any certification of whether a plan will be in critical status in a succeeding plan year, except that a plan sponsor may not elect to be in critical status for a plan year under paragraph (4) in any case in which the certification upon which such election would be based is made without regard to such clauses.''.

(3) NOTICE.—

(A) OF ELECTION TO BE IN CRITICAL STATUS.—Section 432(b)(3)(D)(i) of such Code is amended—

(i) by inserting after ''for a plan year'' the following: ''or in which a plan sponsor elects to be in critical status for a plan year under paragraph (4)''; and

(ii) by adding at the end the following: ''In any case in which a plan sponsor elects to be in critical status for a plan year under paragraph (4), the plan sponsor shall notify the Secretary of such election not later than 30 days after the date of such certification or such other time as the Secretary may prescribe by regulations or other guidance.''.

(B) OF PROJECTION TO BE IN CRITICAL STATUS IN A FUTURE PLAN YEAR.—Section 432(b)(3)(D) of such Code is amended by adding at the end the following:

''(iv) NOTICE OF PROJECTION TO BE IN CRITICAL STATUS IN A FUTURE PLAN YEAR.—In any case in which it is certified under subparagraph (A)(i) that a multiemployer plan will be in critical status for any of 5 succeeding plan years (but not for the current plan year) and the plan sponsor of such plan has not made an election to be in critical status for the plan year under paragraph (4), the plan sponsor shall, not later than 30 days after the date of the certification, provide notification of the projected critical status to the Pension Benefit Guaranty Corporation.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to plan years beginning after December 31, 2014.

SEC. 103. CLARIFICATION OF RULE FOR EMERGENCE FROM CRITICAL STATUS.

(a) AMENDMENT TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 305(e)(4)(B) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(e)(4)(B)) is amended to read as follows:

''(B) EMERGENCE.—

''(i) IN GENERAL.—A plan in critical status shall remain in such status until a plan year for which the plan actuary certifies, in accordance with subsection (b)(3)(A), that—

''(I) the plan is not described in one or more of the subparagraphs in subsection (b)(2) as of the beginning of the plan year;

''(II) the plan is not projected to have an accumulated funding deficiency for the plan year or any of the 9 succeeding plan years, without regard to the use of the shortfall method but taking into account any extension of amortization periods under section 304(d)(2) or section 304 (as in effect prior to the enactment of the Pension Protection Act of 2006); and

''(III) the plan is not projected to become insolvent within the meaning of section 4245 for any of the 30 succeeding plan years.

''(ii) PLANS WITH CERTAIN AMORTIZATION EXTENSIONS.—

''(I) SPECIAL EMERGENCE RULE.—Notwithstanding clause (i), a plan in critical status that has an automatic extension of amortization periods under section 304(d)(1) shall no longer be in critical status if the plan actuary certifies for a plan year, in accordance with subsection (b)(3)(A), that—

''(aa) the plan is not projected to have an accumulated funding deficiency for the plan year or any of the 9 succeeding plan years, without regard to the use of the shortfall method but taking into account any extension of amortization periods under section 304(d)(1); and

''(bb) the plan is not projected to become insolvent within the meaning of section 4245 for any of the 30 succeeding plan years,

regardless of whether the plan is described in one or more of the subparagraphs in subsection (b)(2) as of the beginning of the plan year.

''(II) REENTRY INTO CRITICAL STATUS.—A plan that emerges from critical status under subclause (I) shall not reenter critical status for any subsequent plan year unless—

''(aa) the plan is projected to have an accumulated funding deficiency for the plan year or any of the 9 succeeding plan years, without regard to the use of the shortfall method but taking into account any extension of amortization periods under section 304(d); or

''(bb) the plan is projected to become insolvent within the meaning of section 4245 for any of the 30 succeeding plan years.''.

(b) AMENDMENT TO THE INTERNAL REVENUE CODE.—Section 432(e)(4)(B) of the Internal Revenue Code of 1986 is amended to read as follows:

''(B) EMERGENCE.—

''(i) IN GENERAL.—A plan in critical status shall remain in such status until a plan year for which the plan actuary certifies, in accordance with subsection (b)(3)(A), that—

''(I) the plan is not described in one or more of the subparagraphs in subsection (b)(2) as of the beginning of the plan year,

''(II) the plan is not projected to have an accumulated funding deficiency for the plan year or any of the 9 succeeding plan years, without regard to the use of the shortfall method but taking into account any extension of amortization periods under section 431(d)(2) or section 412(e) (as in effect prior to the enactment of the Pension Protection Act of 2006), and

''(III) the plan is not projected to become insolvent within the meaning of section 418E for any of the 30 succeeding plan years.

''(ii) PLANS WITH CERTAIN AMORTIZATION EXTENSIONS.—

''(I) SPECIAL EMERGENCE RULE.—Notwithstanding clause (i), a plan in critical status that has an automatic extension of amortization periods under section 431(d)(1) shall no longer be in critical status if the plan actuary certifies for a plan year, in accordance with subsection (b)(3)(A), that—

''(aa) the plan is not projected to have an accumulated funding deficiency for the plan year or any of the 9 succeeding plan years, without regard to the use of the shortfall method but taking into account any extension of amortization periods under section 431(d)(1), and

''(bb) the plan is not projected to become insolvent within the meaning of section 418E for any of the 30 succeeding plan years,

regardless of whether the plan is described in one or more of the subparagraphs in subsection (b)(2) as of the beginning of the plan year.

''(II) REENTRY INTO CRITICAL STATUS.—A plan that emerges from critical status under subclause (I) shall not reenter critical status for any subsequent plan year unless—

''(aa) the plan is projected to have an accumulated funding deficiency for the plan year or any of the 9 succeeding plan years, without regard to the use of the shortfall method but taking into account any extension of amortization periods under section 431(d), or

''(bb) the plan is projected to become insolvent within the meaning of section 418E for any of the 30 succeeding plan years.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to plan years beginning after December 31, 2014.

SEC. 104. ENDANGERED STATUS NOT APPLICABLE IF NO ADDITIONAL ACTION IS REQUIRED.

(a) AMENDMENTS TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—

(1) IN GENERAL.—Section 305(b) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(b)), as amended by section 102, is further amended—

(A) in paragraph (1), by striking ''the plan is not in critical status for the plan year'' and inserting ''the plan is not in critical status for the plan year and is not described in paragraph (5),''; and

(B) by adding at the end the following:

''(5) SPECIAL RULE.—A plan is described in this paragraph if—

''(A) as part of the actuarial certification of endangered status under paragraph (3)(A) for the plan year, the plan actuary certifies that the plan is projected to no longer be described in either paragraph (1)(A) or paragraph (1)(B) as of the end of the tenth plan year ending after the plan year to which the certification relates, and

''(B) the plan was not in critical or endangered status for the immediately preceding plan year.''.

(2) NOTICE.—Section 305(b)(3)(D) of such Act (29 U.S.C. 1085(b)(3)(D)) is amended—

(A) by redesignating clause (iii) and clause (iv) (as added by section 102(a)(3)(B)) as clauses (iv) and (v), respectively; and

(B) by inserting after clause (ii) the following:

''(iii) In the case of a multiemployer plan that would be in endangered status but for paragraph (5), the plan sponsor shall provide notice to the bargaining parties and the Pension Benefit Guaranty Corporation that the plan would be in endangered status but for such paragraph.''.

(C) in clause (iv) (as redesignated by subparagraph (A)), by striking ''clause (ii)'' and inserting ''clauses (ii) and (iii)''.

(3) CONFORMING AMENDMENT.—Section 305(b)(3)(A)(i) of such Act (29 U.S.C. 1085(b)(3)(A)(i)) is amended by inserting after ''endangered status for a plan year'' the following: '', or would be in endangered status for such plan year but for paragraph (5),''.

(b) AMENDMENTS TO INTERNAL REVENUE CODE OF 1986.—

(1) IN GENERAL.—Section 432(b) of the Internal Revenue Code of 1986, as amended by section 102, is further amended—

(A) in paragraph (1), by striking ''the plan is not in critical status for the plan year'' and inserting ''the plan is not in critical status for the plan year and is not described in paragraph (5),''; and

(B) by adding at the end the following:

''(5) SPECIAL RULE.—A plan is described in this paragraph if—

''(A) as part of the actuarial certification of endangered status under paragraph (3)(A) for the plan year, the plan actuary certifies that the plan is projected to no longer be described in either paragraph (1)(A) or paragraph (1)(B) as of the end of the tenth plan year ending after the plan year to which the certification relates, and

''(B) the plan was not in critical or endangered status for the immediately preceding plan year.''.

(2) NOTICE.—Section 432(b)(3)(D) of such Code is amended—

(A) by redesignating clause (iii) and clause (iv) (as added by section 102(b)(3)(B)) as clauses (iv) and (v), respectively; and

(B) by inserting after clause (ii) the following:

''(iii) In the case of a multiemployer plan that would be in endangered status but for paragraph (5), the plan sponsor shall provide notice to the bargaining parties and the Pension Benefit Guaranty Corporation that the plan would be in endangered status but for such paragraph.''.

(C) in clause (iv) (as redesignated by subparagraph (A)), by striking ''clause (ii)'' and inserting ''clauses (ii) and (iii)''.

(3) CONFORMING AMENDMENT.—Section 432(b)(3)(A)(i) of such Code is amended by inserting after ''endangered status for a plan year'' the following: '', or would be in endangered status for such plan year but for paragraph (5),''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to plan years beginning after December 31, 2014.

SEC. 105. CORRECT ENDANGERED STATUS FUNDING IMPROVEMENT PLAN TARGET FUNDED PERCENTAGE.

(a) AMENDMENT TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 305(c)(3)(A) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(c)(3)(A)) is amended—

(1) in clause (i)(I), by striking ''of such period'' and inserting ''of the first plan year for which the plan is certified to be in endangered status pursuant to paragraph (b)(3)''; and

(2) in clause (ii), by striking ''any plan year'' and inserting ''the last plan year''.

(b) AMENDMENT TO INTERNAL REVENUE CODE.—Section 432(c)(3)(A) of the Internal Revenue Code of 1986 is amended—

(1) in clause (i)(I), by striking ''of such period'' and inserting ''of the first plan year for which the plan is certified to be in endangered status pursuant to paragraph (b)(3)''; and

(2) in clause (ii), by striking ''any plan year'' and inserting ''the last plan year''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to plan years beginning after December 31, 2014.

SEC. 106. CONFORMING ENDANGERED STATUS AND CRITICAL STATUS RULES DURING FUNDING IMPROVEMENT AND REHABILITATION PLAN ADOPTION PERIODS.

(a) AMENDMENTS TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 305(d) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(d)) is amended to read as follows:

''(d) RULES FOR OPERATION OF PLAN DURING ADOPTION AND IMPROVEMENT PERIODS.—

''(1) COMPLIANCE WITH FUNDING IMPROVEMENT PLAN.—

''(A) IN GENERAL.—A plan may not be amended after the date of the adoption of a funding improvement plan under subsection (c) so as to be inconsistent with the funding improvement plan.

''(B) SPECIAL RULES FOR BENEFIT INCREASES.—A plan may not be amended after the date of the adoption of a funding improvement plan under subsection (c) so as to increase benefits, including future benefit accruals, unless the plan actuary certifies that such increase is paid for out of additional contributions not contemplated by the funding improvement plan, and, after taking into account the benefit increase, the multiemployer plan still is reasonably expected to meet the applicable benchmark on the schedule contemplated in the funding improvement plan.

''(2) SPECIAL RULES FOR PLAN ADOPTION PERIOD.—During the period beginning on the date of the certification under subsection (b)(3)(A) for the initial determination year and ending on the date of the adoption of a funding improvement plan—

''(A) the plan sponsor may not accept a collective bargaining agreement or participation agreement with respect to the multiemployer plan that provides for—

''(i) a reduction in the level of contributions for any participants,

''(ii) a suspension of contributions with respect to any period of service, or

''(iii) any new direct or indirect exclusion of younger or newly hired employees from plan participation, and

''(B) no amendment of the plan which increases the liabilities of the plan by reason of any increase in benefits, any change in the accrual of benefits, or any change in the rate at which benefits become nonforfeitable under the plan may be adopted unless the amendment is required as a condition of qualification under part I of subchapter D of chapter 1 of the Internal Revenue Code of 1986 or to comply with other applicable law.''.

(b) AMENDMENTS TO INTERNAL REVENUE CODE.—Section 432(d) of the Internal Revenue Code of 1986 is amended to read as follows:

''(d) RULES FOR OPERATION OF PLAN DURING ADOPTION AND IMPROVEMENT PERIODS.—

''(1) COMPLIANCE WITH FUNDING IMPROVEMENT PLAN.—

''(A) IN GENERAL.—A plan may not be amended after the date of the adoption of a funding improvement plan under subsection (c) so as to be inconsistent with the funding improvement plan.

''(B) SPECIAL RULES FOR BENEFIT INCREASES.—A plan may not be amended after the date of the adoption of a funding improvement plan under subsection (c) so as to increase benefits, including future benefit accruals, unless the plan actuary certifies that such increase is paid for out of additional contributions not contemplated by the funding improvement plan, and, after taking into account the benefit increase, the multiemployer plan still is reasonably expected to meet the applicable benchmark on the schedule contemplated in the funding improvement plan.

''(2) SPECIAL RULES FOR PLAN ADOPTION PERIOD.—During the period beginning on the date of the certification under subsection (b)(3)(A) for the initial determination year and ending on the date of the adoption of a funding improvement plan—

''(A) the plan sponsor may not accept a collective bargaining agreement or participation agreement with respect to the multiemployer plan that provides for—

''(i) a reduction in the level of contributions for any participants,

''(ii) a suspension of contributions with respect to any period of service, or

''(iii) any new direct or indirect exclusion of younger or newly hired employees from plan participation, and

''(B) no amendment of the plan which increases the liabilities of the plan by reason of any increase in benefits, any change in the accrual of benefits, or any change in the rate at which benefits become nonforfeitable under the plan may be adopted unless the amendment is required as a condition of qualification under part I of subchapter D of chapter 1 or to comply with other applicable law.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to plan years beginning after December 31, 2014.

SEC. 107. CORRECTIVE PLAN SCHEDULES WHEN PARTIES FAIL TO ADOPT IN BARGAINING.

(a) AMENDMENTS TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 305 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085) is amended—

(1) in subsection (c), by amending paragraph (7) to read as follows:

''(7) IMPOSITION OF SCHEDULE WHERE FAILURE TO ADOPT FUNDING IMPROVEMENT PLAN.—

''(A) INITIAL CONTRIBUTION SCHEDULE.—If—

''(i) a collective bargaining agreement providing for contributions under a multiemployer plan that was in effect at the time the plan entered endangered status expires, and

''(ii) after receiving one or more schedules from the plan sponsor under paragraph (1)(B), the bargaining parties with respect to such agreement fail to adopt a contribution schedule with terms consistent with the funding improvement plan and a schedule from the plan sponsor,

the plan sponsor shall implement the schedule described in paragraph (1)(B)(i)(I) beginning on the date specified in subparagraph (C).

''(B) SUBSEQUENT CONTRIBUTION SCHEDULE.—If—

''(i) a collective bargaining agreement providing for contributions under a multiemployer plan in accordance with a schedule provided by the plan sponsor pursuant to a funding improvement plan (or imposed under subparagraph (A)) expires while the plan is still in endangered status, and

''(ii) after receiving one or more updated schedules from the plan sponsor under paragraph (6)(B), the bargaining parties with respect to such agreement fail to adopt a contribution schedule with terms consistent with the updated funding improvement plan and a schedule from the plan sponsor,

then the contribution schedule applicable under the expired collective bargaining agreement, as updated and in effect on the date the collective bargaining agreement expires, shall be implemented by the plan sponsor beginning on the date specified in subparagraph (C).

''(C) DATE OF IMPLEMENTATION.—The date specified in this subparagraph is the date which is 180 days after the date on which the collective bargaining agreement described in subparagraph (A) or (B) expires.

''(D) FAILURE TO MAKE SCHEDULED CONTRIBUTIONS.—Any failure to make a contribution under a schedule of contribution rates provided under this paragraph shall be treated as a delinquent contribution under section 515 and shall be enforceable as such.'',

(2) in subsection (e)(3), by amending subparagraph (C) to read as follows:

''(C) IMPOSITION OF SCHEDULE WHERE FAILURE TO ADOPT REHABILITATION PLAN.—

''(i) INITIAL CONTRIBUTION SCHEDULE.—If—

''(I) a collective bargaining agreement providing for contributions under a multiemployer plan that was in effect at the time the plan entered critical status expires, and

''(II) after receiving one or more schedules from the plan sponsor under paragraph (1)(B), the bargaining parties with respect to such agreement fail to adopt a contribution schedule with terms consistent with the rehabilitation plan and a schedule from the plan sponsor under paragraph (1)(B)(i),

the plan sponsor shall implement the schedule described in the last sentence of paragraph (1) beginning on the date specified in clause (iii).

''(ii) SUBSEQUENT CONTRIBUTION SCHEDULE.—If—

''(I) a collective bargaining agreement providing for contributions under a multiemployer plan in accordance with a schedule provided by the plan sponsor pursuant to a rehabilitation plan (or imposed under subparagraph (C)(i)) expires while the plan is still in critical status, and

''(II) after receiving one or more updated schedules from the plan sponsor under subparagraph (B)(ii), the bargaining parties with respect to such agreement fail to adopt a contribution schedule with terms consistent with the updated rehabilitation plan and a schedule from the plan sponsor,

then the contribution schedule applicable under the expired collective bargaining agreement, as updated and in effect on the date the collective bargaining agreement expires, shall be implemented by the plan sponsor beginning on the date specified in clause (iii).

''(iii) DATE OF IMPLEMENTATION.—The date specified in this subparagraph is the date which is 180 days after the date on which the collective bargaining agreement described in clause (i) or (ii) expires.

''(iv) FAILURE TO MAKE SCHEDULED CONTRIBUTIONS.—Any failure to make a contribution under a schedule of contribution rates provided under this subsection shall be treated as a delinquent contribution under section 515 and shall be enforceable as such.''.

(b) AMENDMENTS TO THE INTERNAL REVENUE CODE.—Section 432 of the Internal Revenue Code of 1986 is amended—

(1) in subsection (c), by amending paragraph (7) to read as follows:

''(7) IMPOSITION OF SCHEDULE WHERE FAILURE TO ADOPT FUNDING IMPROVEMENT PLAN.—

''(A) INITIAL CONTRIBUTION SCHEDULE.—If—

''(i) a collective bargaining agreement providing for contributions under a multiemployer plan that was in effect at the time the plan entered endangered status expires, and

''(ii) after receiving one or more schedules from the plan sponsor under paragraph (1)(B), the bargaining parties with respect to such agreement fail to adopt a contribution schedule with terms consistent with the funding improvement plan and a schedule from the plan sponsor,

the plan sponsor shall implement the schedule described in paragraph (1)(B)(i)(I) beginning on the date specified in subparagraph (C).

''(B) SUBSEQUENT CONTRIBUTION SCHEDULE.—If—

''(i) a collective bargaining agreement providing for contributions under a multiemployer plan in accordance with a schedule provided by the plan sponsor pursuant to a funding improvement plan (or imposed under subparagraph (A)) expires while the plan is still in endangered status, and

''(ii) after receiving one or more updated schedules from the plan sponsor under paragraph (6)(B), the bargaining parties with respect to such agreement fail to adopt a contribution schedule with terms consistent with the updated funding improvement plan and a schedule from the plan sponsor,

then the contribution schedule applicable under the expired collective bargaining agreement, as updated and in effect on the date the collective bargaining agreement expires, shall be implemented by the plan sponsor beginning on the date specified in subparagraph (C).

''(C) DATE OF IMPLEMENTATION.—The date specified in this subparagraph is the date which is 180 days after the date on which the collective bargaining agreement described in subparagraph (A) or (B) expires.'', and

(2) in subsection (e)(3), by amending subparagraph (C) to read as follows:

''(C) IMPOSITION OF SCHEDULE WHERE FAILURE TO ADOPT REHABILITATION PLAN.—

''(i) INITIAL CONTRIBUTION SCHEDULE.—If—

''(I) a collective bargaining agreement providing for contributions under a multiemployer plan that was in effect at the time the plan entered critical status expires, and

''(II) after receiving one or more schedules from the plan sponsor under paragraph (1)(B), the bargaining parties with respect to such agreement fail to adopt a contribution schedule with terms consistent with the rehabilitation plan and a schedule from the plan sponsor under paragraph (1)(B)(i),

the plan sponsor shall implement the schedule described in the last sentence of paragraph (1) beginning on the date specified in clause (iii).

''(ii) SUBSEQUENT CONTRIBUTION SCHEDULE.—If—

''(I) a collective bargaining agreement providing for contributions under a multiemployer plan in accordance with a schedule provided by the plan sponsor pursuant to a rehabilitation plan (or imposed under subparagraph (C)(i)) expires while the plan is still in critical status, and

''(II) after receiving one or more updated schedules from the plan sponsor under subparagraph (B)(ii), the bargaining parties with respect to such agreement fail to adopt a contribution schedule with terms consistent with the updated rehabilitation plan and a schedule from the plan sponsor,

then the contribution schedule applicable under the expired collective bargaining agreement, as updated and in effect on the date the collective bargaining agreement expires, shall be implemented by the plan sponsor beginning on the date specified in clause (iii).

''(iii) DATE OF IMPLEMENTATION.—The date specified in this subparagraph is the date which is 180 days after the date on which the collective bargaining agreement described in clause (ii) or (iii) expires.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to plan years beginning after December 31, 2014.

SEC. 108. REPEAL OF REORGANIZATION RULES FOR MULTIEMPLOYER PLANS.

(a) AMENDMENTS TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—

(1) IN GENERAL.—Sections 4241, 4242, 4243, 4244, and 4244A of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1421; 1422; 1423; 1424; 1425) are repealed.

(2) MODIFICATION OF INSOLVENCY RULES.—Section 4245 of such Act (29 U.S.C. 1426) is amended—

(A) by striking ''reorganization'' each place it appears and inserting ''critical status, as described in subsection 305(b)(2),'';

(B) in subsection (c)(2)—

(i) by striking ''The suspension'' and inserting ''(A) The suspension'';

(ii) by striking ''(within the meaning of section 4241(b)(6))''; and

(iii) by adding at the end the following:

''(B) For purposes of this paragraph—

''(i) the term 'person in pay status' means—

''(I) a participant or beneficiary on the last day of the base plan year who, at any time during such year, was paid an early, late, normal, or disability retirement benefit (or a death benefit related to a retirement benefit), and

''(II) to the extent provided in regulations prescribed by the Secretary of the Treasury, any other person who is entitled to such a benefit under the plan.

''(ii) the base plan year for any plan year is—

''(I) if there is a relevant collective bargaining agreement, the last plan year ending at least 6 months before the relevant effective date, or

''(II) if there is no relevant collective bargaining agreement, the last plan year ending at least 12 months before the beginning of the plan year.

''(iii) a relevant collective bargaining agreement is a collective bargaining agreement—

''(I) which is in effect for at least 6 months during the plan year, and

''(II) which has not been in effect for more than 36 months as of the end of the plan year.

''(iv) the relevant effective date is the earliest of the effective dates for the relevant collective bargaining agreements.'';

(C) in subsection (d)—

(i) in paragraph (1), by striking ''(determined in accordance with section 4243(3)(B)(ii))''; and

(ii) by adding at the end the following:

''(4) For purposes of this subsection, the value of plan assets shall be the value of the available plan assets determined under regulations prescribed by the Secretary of the Treasury.'';

(D) in subsection (e)(1)—

(i) in subparagraph (A), by striking ''the corporation, the parties described in section 4242(a)(2), and the plan participants and beneficiaries'' and inserting ''the parties described in section 101(f)(1)''; and

(ii) in subparagraph (B), by striking ''section 4242(a)(2) and the plan participants and beneficiaries'' and inserting ''section 101(f)(1)''; and

(E) by adding at the end the following:

''(g) Subsections (a) and (c) shall not apply to a plan that, for the plan year, is operating under section 305(e)(9), regarding benefit suspensions by certain multiemployer plans in critical and declining status.''.

(3) CONFORMING AMENDMENTS.—

(A) DEFINITION OF REORGANIZATION INDEX.—Section 4001(a) of such Act (29 U.S.C. 1301(a)) is amended by striking paragraph (9).

(B) MINIMUM FUNDING STANDARDS.—Section 304(a) of such Act (29 U.S.C. 1084(a)) is amended to read as follows:

''(a) IN GENERAL.—For purposes of section 302, the accumulated funding deficiency of a multiemployer plan for any plan year is the amount, determined as of the end of the plan year, equal to the excess (if any) of the total charges to the funding standard account of the plan for all plan years (beginning with the first plan year for which this part applies to the plan) over the total credits to such account for such years.''.

(C) MODIFICATION OF PART HEADING.—Part 3 of subtitle D of title IV of such Act (29 U.S.C. 1421 et seq.) is amended by striking the heading and inserting ''**INSOLVENT PLANS**''.

(D) CONFORMING AMENDMENT TO TABLE OF CONTENTS.—The table of contents in section 1 of such Act (29 U.S.C. 1001 note) is amended by striking the items relating to sections 4241 through 4244A.

(b) AMENDMENTS TO THE INTERNAL REVENUE CODE.—

(1) IN GENERAL.—Sections 418, 418A, 418B, 418C, and 418D of the Internal Revenue Code of 1986 are repealed.

(2) MODIFICATION OF INSOLVENCY RULES.—Section 418E of such Code is amended—

(A) by striking ''reorganization'' each place it appears and inserting ''critical status, as described in subsection 432(b)(2),'';

(B) in subsection (c)(2)—

(i) by striking ''The suspension'' and inserting ''(A) The suspension'';

(ii) by striking ''(within the meaning of section 418(b)(6))''; and

(iii) by adding at the end the following:

''(B) For purposes of this paragraph—

''(i) the term 'person in pay status' means—

''(I) a participant or beneficiary on the last day of the base plan year who, at any time during such year, was paid an early, late, normal, or disability retirement benefit (or a death benefit related to a retirement benefit), and

''(II) to the extent provided in regulations prescribed by the Secretary of the Treasury, any other person who is entitled to such a benefit under the plan.

''(ii) the base plan year for any plan year is—

''(I) if there is a relevant collective bargaining agreement, the last plan year ending at least 6 months before the relevant effective date, or

''(II) if there is no relevant collective bargaining agreement, the last plan year ending at least 12 months before the beginning of the plan year.

''(iii) a relevant collective bargaining agreement is a collective bargaining agreement—

''(I) which is in effect for at least 6 months during the plan year, and

''(II) which has not been in effect for more than 36 months as of the end of the plan year.

''(iv) the relevant effective date is the earliest of the effective dates for the relevant collective bargaining agreements.'';

(C) in subsection (d)—

(i) in paragraph (1), by striking ''(determined in accordance with section 418B(3)(B)(ii))'';

(ii) by adding at the end the following:

''(4) For purposes of this subsection, the value of plan assets shall be the value of the available plan assets determined under regulations prescribed by the Secretary of the Treasury.'';

(D) in subsection (e)(1)—

(i) in subparagraph (A), by striking ''the corporation, the parties described in section 418A(a)(2), and the plan participants and beneficiaries'' and inserting ''the parties described in section 101(f)(1) of the Employee Retirement Income Security Act of 1974''; and

(ii) in subparagraph (B), by striking ''section 418A(a)(2) and the plan participants and beneficiaries'' and inserting ''section 101(f)(1) of the Employee Retirement Income Security Act of 1974''; and

(E) by adding at the end the following:

''(h) Subsections (a) and (c) shall not apply to a plan that, for the plan year, is operating under section 432(e)(9), regarding benefit suspensions by certain multiemployer plans in critical and declining status.''.

(3) CONFORMING AMENDMENTS.—

(A) MINIMUM FUNDING STANDARDS.—Section 431(a) of the Internal Revenue Code of 1986 is amended to read as follows:

''(a) IN GENERAL.—For purposes of section 412, the accumulated funding deficiency of a multiemployer plan for any plan year is the amount, determined as of the end of the plan year, equal to the excess (if any) of the total charges to the funding standard account of the plan for all plan years (beginning with the first plan year for which this part applies to the plan) over the total credits to such account for such years.''.

(B) MODIFICATION OF SUBPART HEADING.—Subpart C of part I of subchapter D of chapter 1 of such Code is amended by striking the heading and inserting ''**INSOLVENT PLANS**''.

(C) CONFORMING AMENDMENT TO TABLE OF CONTENTS.—The table of contents for such subpart C is amended by striking the items relating to sections 418 through 418D.

(D) CONFORMING AMENDMENT TO TABLE OF SUBPARTS.—The table of subparts for part I of subchapter D of chapter 1 of such Code is amended by striking the heading and inserting ''**INSOLVENT PLANS**''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to plan years beginning after December 31, 2014.

SEC. 109. DISREGARD OF CERTAIN CONTRIBUTION INCREASES FOR WITHDRAWAL LIABILITY PURPOSES.

(a) AMENDMENT TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 305 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085) is amended—

(1) in subsection (e), by striking paragraph (9);

(2) in subsection (f)—

(A) by striking paragraph (3) and redesignating paragraph (4) as paragraph (3); and

(B) in paragraph (3) (as redesignated by subparagraph (A)), by striking ''During the rehabilitation plan adoption period—'' and inserting ''During the period beginning on the date of the certification under subsection (b)(3)(A) for the initial critical year and ending on the date of the adoption of a rehabilitation plan—'';

(3) by redesignating subsections (g), (h), and (i) as subsections (h), (i), and (j), respectively; and

(4) by inserting after subsection (f) the following:

''(g) ADJUSTMENTS DISREGARDED IN WITHDRAWAL LIABILITY DETERMINATION.—

''(1) BENEFIT REDUCTION.—Any benefit reductions under subsection (e)(8) or (f) shall be disregarded in determining a plan's unfunded vested benefits for purposes of determining an employer's withdrawal liability under section 4201.

''(2) SURCHARGES.—Any surcharges under subsection (e)(7) shall be disregarded in determining the allocation of unfunded vested benefits to an employer under section 4211 and in determining the highest contribution rate under section 4219(c), except for purposes of determining the unfunded vested benefits attributable to an employer under section 4211(c)(4) or a comparable method approved under section 4211(c)(5).

''(3) CONTRIBUTION INCREASES REQUIRED BY FUNDING IMPROVEMENT OR REHABILITATION PLAN.—

''(A) IN GENERAL.—Any increase in the contribution rate (or other increase in contribution requirements unless due to increased levels of work, employment, or periods for which compensation is provided) that is required or made in order to enable the plan to meet the requirement of the funding improvement plan or rehabilitation plan shall be disregarded in determining the allocation of unfunded vested benefits to an employer under section 4211 and in determining the highest contribution rate under section 4219(c), except for purposes of determining the unfunded vested benefits attributable to an employer under section 4211(c)(4) or a comparable method approved under section 4211(c)(5).

''(B) SPECIAL RULES.—For purposes of this paragraph, any increase in the contribution rate (or other increase in contribution requirements) shall be deemed to be required or made in order to enable the plan to meet the requirement of the funding improvement plan or rehabilitation plan except for increases in contribution requirements due to increased levels of work, employment, or periods for which compensation is provided or additional contributions are used to provide an increase in benefits, including an increase in future benefit accruals, permitted by subsection (d)(1)(B) or (f)(1)(B).

''(4) EMERGENCE FROM ENDANGERED OR CRITICAL STATUS.—In the case of increases in the contribution rate (or other increases in contribution requirements unless due to increased levels of work, employment, or periods for which compensation is provided) disregarded pursuant to paragraph (3), this subsection shall cease to apply as of the expiration date of the collective bargaining agreement in effect when the plan emerges from endangered or critical status. Notwithstanding the preceding sentence, once the plan emerges from critical or endangered status, increases in the contribution rate disregarded pursuant to paragraph (3) shall continue to be disregarded in determining the highest contribution rate under section 4219(c) for plan years during which the plan was in endangered or critical status.

''(5) SIMPLIFIED CALCULATIONS.—The Pension Benefit Guaranty Corporation shall prescribe simplified methods for the application of this subsection in determining withdrawal liability and payment amounts under section 4219(c).''.

(b) AMENDMENTS TO INTERNAL REVENUE CODE.—Section 432 of the Internal Revenue Code of 1986 is amended—

(1) in subsection (e), by striking paragraph (9),

(2) in subsection (f)—

(A) by striking paragraph (3) and redesignating paragraph (4) as paragraph (3); and

(B) in paragraph (4) (as redesignated by subparagraph (A)), striking ''During the rehabilitation plan adoption period—'' and inserting ''During the period beginning on the date of the certification under subsection (b)(3)(A) for the initial critical year and ending on the date of the adoption of a rehabilitation plan—'';

(3) by redesignating subsections (g), (h), and (i) as subsections (h), (i), and (j), respectively; and

(4) by inserting after subsection (f) the following:

''(g) ADJUSTMENTS DISREGARDED IN WITHDRAWAL LIABILITY DETERMINATION.—

''(1) BENEFIT REDUCTION.—Any benefit reductions under subsection (e)(8) or (f) shall be disregarded in determining a plan's unfunded vested benefits for purposes of determining an employer's withdrawal liability under section 4201 of the Employee Retirement Income Security Act of 1974.

''(2) SURCHARGES.—Any surcharges under subsection (e)(7) shall be disregarded in determining the allocation of unfunded vested benefits to an employer under section 4211 of the Employee Retirement Income Security Act of 1974 and in determining the highest contribution rate under section 4219(c) of such Act, except for purposes of determining the unfunded vested benefits attributable to an employer under section 4211(c)(4) of such Act or a comparable method approved under section 4211(c)(5) of such Act.

''(3) CONTRIBUTION INCREASES REQUIRED BY FUNDING IMPROVEMENT OR REHABILITATION PLAN.—

''(A) IN GENERAL.—Any increase in the contribution rate (or other increase in contribution requirements unless due to increased levels of work, employment, or periods for which compensation is provided) that is required or made in order to enable the plan to meet the requirement of the funding improvement plan or rehabilitation plan shall be disregarded in determining the allocation of unfunded vested benefits to an employer under section 4211 of such Act and in determining the highest contribution rate under section 4219(c) of such Act, except for purposes of determining the unfunded vested benefits attributable to an employer under section 4211(c)(4) of such Act or a comparable method approved under section 4211(c)(5) of such Act.

''(B) SPECIAL RULES.—For purposes of this paragraph, any increase in the contribution rate (or other increase in contribution requirements) shall be deemed to be required

or made in order to enable the plan to meet the requirement of the funding improvement plan or rehabilitation plan except for increases in contribution requirements due to increased levels of work, employment, or periods for which compensation is provided or additional contributions are used to provide an increase in benefits, including an increase in future benefit accruals, permitted by subsection (d)(1)(B) or (f)(1)(B).

''(4) EMERGENCE FROM ENDANGERED OR CRITICAL STATUS.—In the case of increases in the contribution rate (or other increases in contribution requirements unless due to increased levels of work, employment, or periods for which compensation is provided) disregarded pursuant to paragraph (3), this subsection shall cease to apply as of the expiration date of the collective bargaining agreement in effect when the plan emerges from endangered or critical status. Notwithstanding the preceding sentence, once the plan emerges from critical or endangered status, increases in the contribution rate disregarded pursuant to paragraph (3) shall continue to be disregarded in determining the highest contribution rate under section 4219(c) of such Act for plan years during which the plan was in endangered or critical status.

''(5) SIMPLIFIED CALCULATIONS.—The Pension Benefit Guaranty Corporation shall prescribe simplified methods for the application of this subsection in determining withdrawal liability and payment amounts under section 4219(c) of such Act.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to benefit reductions and increases in the contribution rate or other required contribution increases that go into effect during plan years beginning after December 31, 2014 and to surcharges the obligation for which accrue on or after December 31, 2014.

SEC. 110. GUARANTEE FOR PRE-RETIREMENT SURVIVOR ANNUITIES UNDER MULTIEMPLOYER PENSION PLANS.

(a) IN GENERAL.—Section 4022A(c) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1322a(c)) is amended by adding at the end the following:

''(4) For purposes of subsection (a), in the case of a qualified preretirement survivor annuity (as defined in section 205(e)(1)) payable to the surviving spouse of a participant under a multiemployer plan which becomes insolvent under section 4245(b) or 4281(d)(2) or is terminated, such annuity shall not be treated as forfeitable solely because the participant has not died as of the date on which the plan became so insolvent or the termination date.''.

(b) RETROACTIVE APPLICATION.—The amendment made by this section shall apply with respect to multiemployer plan benefit payments becoming payable on or after January 1, 1985, except that the amendment shall not apply in any case where the surviving spouse has died before the date of the enactment of this Act.

SEC. 111. REQUIRED DISCLOSURE OF MULTIEMPLOYER PLAN INFORMATION.

(a) IN GENERAL.—Section 101(k)(1) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1021(k)(1)) is amended to read as follows:

''(1) IN GENERAL.—Each administrator of a defined benefit plan that is a multiemployer plan shall, upon written request, furnish to any plan participant or beneficiary, employee representative, or any employer that has an obligation to contribute to the plan a copy of—

''(A) the current plan document (including any amendments thereto),

''(B) the latest summary plan description of the plan,

''(C) the current trust agreement (including any amendments thereto), or any other instrument or agreement under which the plan is established or operated,

''(D) in the case of a request by an employer, any participation agreement with respect to the plan for such employer that relates to the employer's plan participation during the current or any of the 5 immediately preceding plan years,

''(E) the annual report filed under section 104 for any plan year,

''(F) the plan funding notice provided under subsection (f) for any plan year,

''(G) any periodic actuarial report (including any sensitivity testing) received by the plan for any plan year which has been in the plan's possession for at least 30 days,

''(H) any quarterly, semi-annual, or annual financial report prepared for the plan by any plan investment manager or advisor or other fiduciary which has been in the plan's possession for at least 30 days,

''(I) audited financial statements of the plan for any plan year,

''(J) any application filed with the Secretary of the Treasury requesting an extension under section 304(d) of this Act or section 431(d) of the Internal Revenue Code of 1986 and the determination of such Secretary pursuant to such application, and

''(K) in the case of a plan which was in critical or endangered status under section 305 for a plan year, the latest funding improvement or rehabilitation plan, and the contribution schedules applicable with respect to such funding improvement or rehabilitation plan (other than a contribution schedule applicable to a specific employer).''.

(b) LIMITATIONS ON DISCLOSURE.—Section 101(k)(3) of such Act (29 U.S.C. 1021(k)(3)) is amended by striking the 1st sentence and inserting the following: ''In no case shall a participant, beneficiary, employee representative, or employer be entitled under this subsection to receive more than one copy of any document described in paragraph (1) during any one 12-month period, or, in the case of any document described in subparagraph (E), (F), (G), (H) or (I) of paragraph (1), a copy of any such document that as of the date on which the request is received by the administrator, has been in the administrator's possession for 6 years or more. If the administrator provides a copy of a document described in paragraph (1) to any person upon request, the administrator shall be considered as having met any obligation the administrator may have under any other provision of this title to furnish a copy of the same document to such person upon request.''.

(c) RETENTION OF RECORDS.—Section 107 of such Act (29 U.S.C. 1027) is amended—

(1) by inserting ''(including the documents described in subparagraphs (E) through (I) of section 101(k))'' after ''file any report''; and

(2) by inserting ''a copy of such report and'' after ''shall maintain''.

(d) CIVIL ENFORCEMENT.—Section 502(a) of such Act (29 U.S.C. 1132(a)) is amended—

(1) in paragraph (9), by striking ''or'' at the end;

(2) in paragraph (10), by striking the period at the end and inserting ''; or''; and

(3) by adding at the end the following:

''(11) in the case of a multiemployer plan, by an employee representative, or any employer that has an obligation to contribute to the plan, (A) to enjoin any act or practice which violates subsection (k) of section 101 (or, in the case of an employer, subsection (l) of such section), or (B) to obtain appropriate equitable relief (i) to redress such violation or (ii) to enforce such subsection.''.

(e) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to plan years beginning after December 31, 2014.

Subtitle B—Multiemployer Plan Mergers and Partitions

SEC. 121. MERGERS.

(a) PBGC ASSISTANCE FOR MULTIEMPLOYER PLAN MERGERS.—Section 4231 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1411) is amended by adding at the end the following:

''(e) FACILITATED MERGERS.—

''(1) IN GENERAL.—When requested to do so by the plan sponsors, the corporation may take such actions as it deems appropriate to promote and facilitate the merger of two or more multiemployer plans if it determines, after consultation with the Participant and Plan Sponsor Advocate selected under section 4004, that the transaction is in the interests of the participants and beneficiaries of at least one of the plans and is not reasonably expected to be adverse to the overall interests of the participants and beneficiaries of any of the plans. Such facilitation may include training, technical assistance, mediation, communication with stakeholders, and support with related requests to other government agencies.

''(2) FINANCIAL ASSISTANCE.—In order to facilitate a merger which it determines is necessary to enable one or more of the plans involved to avoid or postpone insolvency, the corporation may provide financial assistance (within the meaning of section 4261) to the merged plan if—

''(A) one or more of the multiemployer plans participating in the merger is in critical and declining status (as defined in section 305(b)(4));

''(B) the corporation reasonably expects that—

''(i) such financial assistance will reduce the corporation's expected long-term loss with respect to the plans involved; and

''(ii) such financial assistance is necessary for the merged plan to become or remain solvent;

''(C) the corporation certifies that its ability to meet existing financial assistance obligations to other plans will not be impaired by such financial assistance; and

''(D) such financial assistance is paid exclusively from the fund for basic benefits guaranteed for multiemployer plans.

Not later than 14 days after the provision of such financial assistance, the corporation shall provide notice of such financial assistance to the Committee on Education and the Workforce of the House of Representatives, the Committee on Ways and Means of the House of Representatives, the Committee on Finance of the Senate, and the Committee on Health, Education, Labor, and Pensions of the Senate.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to plan years beginning after December 31, 2014.

SEC. 122. PARTITIONS OF ELIGIBLE MULTIEMPLOYER PLANS.

(a) IN GENERAL.—

(1) IN GENERAL.—Section 4233 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1413) is amended to read as follows:

''SEC. 4233. PARTITIONS OF ELIGIBLE MULTIEMPLOYER PLANS.

''(a)(1) Upon the application by the plan sponsor of an eligible multiemployer plan for a partition of the plan, the corporation may order a partition of the plan in accordance with this section. The corporation shall make a determination regarding the application not later than 270 days after the date such application was filed (or, if later, the date such application was completed) in accordance with regulations promulgated by the corporation.

''(2) Not later than 30 days after submitting an application for partition of a plan

under paragraph (1), the plan sponsor of the plan shall notify the participants and beneficiaries of such application, in the form and manner prescribed by regulations issued by the corporation.

''(b) For purposes of this section, a multiemployer plan is an eligible multiemployer plan if—

''(1) the plan is in critical and declining status (as defined in section 305(b)(4));

''(2) the corporation determines, after consultation with the Participant and Plan Sponsor Advocate selected under section 4004, that the plan sponsor has taken (or is taking concurrently with an application for partition) all reasonable measures to avoid insolvency, including the maximum benefit suspensions under section 305(e)(9), if applicable;

''(3) the corporation reasonably expects that—

''(A) a partition of the plan will reduce the corporation's expected long-term loss with respect to the plan; and

''(B) a partition of the plan is necessary for the plan to remain solvent;

''(4) the corporation certifies to Congress that its ability to meet existing financial assistance obligations to other plans (including any liabilities associated with multiemployer plans that are insolvent or that are projected to become insolvent within 10 years) will not be impaired by such partition; and

''(5) the cost to the corporation arising from such partition is paid exclusively from the fund for basic benefits guaranteed for multiemployer plans.

''(c) The corporation's partition order shall provide for a transfer to the plan referenced in subsection (d)(1) of the minimum amount of the plan's liabilities necessary for the plan to remain solvent.

''(d)(1) The plan created by the partition order is a successor plan to which section 4022A applies.

''(2) The plan sponsor of an eligible multiemployer plan prior to the partition and the administrator of such plan shall be the plan sponsor and the administrator, respectively, of the plan created by the partition order.

''(3) In the event an employer withdraws from the plan that was partitioned within ten years following the date of the partition order, withdrawal liability shall be computed under section 4201 with respect to both the plan that was partitioned and the plan created by the partition order. If the withdrawal occurs more than ten years after the date of the partition order, withdrawal liability shall be computed under section 4201 only with respect to the plan that was partitioned (and not with respect to the plan created by the partition order).

''(e)(1) For each participant or beneficiary of the plan whose benefit was transferred to the plan created by the partition order pursuant to a partition, the plan that was partitioned shall pay a monthly benefit to such participant or beneficiary for each month in which such benefit is in pay status following the effective date of such partition in an amount equal to the excess of—

''(A) the monthly benefit that would be paid to such participant or beneficiary for such month under the terms of the plan (taking into account benefit suspensions under section 305(e)(9) and any plan amendments following the effective date of such partition) if the partition had not occurred, over

''(B) the monthly benefit for such participant or beneficiary which is guaranteed under section 4022A.

''(2) In any case in which a plan provides a benefit improvement (as defined in section 305(e)(9)(E)(vi)) that takes effect after the effective date of the partition, the plan shall pay to the corporation for each year during the 10-year period following the partition effective date, an annual amount equal to the lesser of—

''(A) the total value of the increase in benefit payments for such year that is attributable to the benefit improvement, or

''(B) the total benefit payments from the plan created by the partition for such year.

Such payment shall be made at the time of, and in addition to, any other premium imposed by the corporation under this title.

''(3) The plan that was partitioned shall pay the premiums imposed by the corporation under this title with respect to participants whose benefits were transferred to the plan created by the partition order for each year during the 10-year period following the partition effective date.

''(f) Not later than 14 days after the partition order, the corporation shall provide notice of such order to the Committee on Education and the Workforce of the House of Representatives, the Committee on Ways and Means of the House of Representatives, the Committee on Finance of the Senate, the Committee on Health, Education, Labor, and Pensions of the Senate, and any affected participants or beneficiaries.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to plan years beginning after December 31, 2014.

Subtitle C—Strengthening the Pension Benefit Guaranty Corporation

SEC. 131. PREMIUM INCREASES FOR MULTIEMPLOYER PLANS.

(a) INCREASE IN PREMIUM RATE FOR MULTIEMPLOYER PLANS.—Section 4006(a)(3) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1306(a)(3)) is amended—

(1) in subparagraph (A)—

(A) in clause (iv), by striking ''or'' at the end;

(B) in clause (v)—

(i) by inserting ''and before January 1, 2015,'' after ''December 31, 2012,''; and

(ii) by striking the period at the end and inserting '', or''; and

(C) by adding at the end the following:

''(vi) in the case of a multiemployer plan, for plan years beginning after December 31, 2014, $26 for each individual who is a participant in such plan during the applicable plan year.''; and

(2) by adding at the end the following:

''(M) For each plan year beginning in a calendar year after 2015, there shall be substituted for the dollar amount specified in clause (vi) of subparagraph (A) an amount equal to the greater of—

''(i) the product derived by multiplying such dollar amount by the ratio of—

''(I) the national average wage index (as defined in section 209(k)(1) of the Social Security Act) for the first of the 2 calendar years preceding the calendar year in which such plan year begins, to

''(II) the national average wage index (as so defined) for 2013; and

''(ii) such dollar amount for plan years beginning in the preceding calendar year.

If the amount determined under this subparagraph is not a multiple of $1, such product shall be rounded to the nearest multiple of $1.''.

(b) TREATMENT OF CERTAIN FUNDS.—Section 4005(b)(3) of such Act (29 U.S.C. 1305(b)(3)) is amended—

(1) by striking ''Whenever'' and inserting ''(A) Whenever''; and

(2) by adding at the end the following:

''(B) Notwithstanding subparagraph (A)—

''(i) the amounts of premiums received under section 4006 with respect to the fund to be used for basic benefits under section 4022A in a fiscal year in the period beginning with fiscal year 2016 and ending with fiscal year 2020 shall be placed in a noninterest-bearing account within such fund in the following amounts:

''(I) for fiscal year 2016, $108,000,000;

''(II) for fiscal year 2017, $111,000,000;

''(III) for fiscal year 2018, $113,000,000;

''(IV) for fiscal year 2019, $149,000,000; and

''(V) for fiscal year 2020, $296,000,000;

''(ii) premiums received in fiscal years specified in subclauses (I) through (V) of clause (i) shall be allocated in order first to the noninterest-bearing account in the amount specified and second to any other accounts within such fund; and

''(iii) financial assistance, as provided under section 4261, shall be withdrawn proportionately from the noninterest-bearing and other accounts within the fund.''.

(c) REPORT.—In addition to any other report required by section 4022A(f), not later than June 1, 2016, the Pension Benefit Guaranty Corporation shall submit to Congress a report that includes—

(1) an analysis of whether the premium levels enacted under the amendment made by subsection (a) are sufficient for the Pension Benefit Guaranty Corporation to meet its projected mean stochastic basic benefit guarantee obligations for the ten- and twenty-year periods beginning with 2015, including an explanation of the assumptions underlying this analysis; and

(2) if the analysis under paragraph (1) concludes that the premium levels are insufficient to meet such obligations (or are in excess of the levels sufficient to meet such obligations), a proposed schedule of revised premiums sufficient to meet (but not exceed) such obligations.

(d) EFFECTIVE DATE.—The amendments made by subsection (a) shall apply with respect to plan years beginning after December 31, 2014.

TITLE II—REMEDIATION MEASURES FOR DEEPLY TROUBLED PLANS

SEC. 201. CONDITIONS, LIMITATIONS, DISTRIBUTION AND NOTICE REQUIREMENTS, AND APPROVAL PROCESS FOR BENEFIT SUSPENSIONS UNDER MULTIEMPLOYER PLANS IN CRITICAL AND DECLINING STATUS.

(a) AMENDMENTS TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—

(1) GENERAL RULE FOR PLAN IN CRITICAL AND DECLINING STATUS.—Section 305(a) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(a)) is amended—

(A) in paragraph (1)(B), by striking ''and'' at the end;

(B) in paragraph (2)(B), by striking the period at the end and inserting '', and''; and

(C) by adding at the end the following:

''(3) if the plan is in critical and declining status—

''(A) the requirements of paragraph (2) shall apply to the plan; and

''(B) the plan sponsor may, by plan amendment, suspend benefits in accordance with the requirements of subsection (e)(9).''.

(2) CRITICAL AND DECLINING STATUS DEFINED.—Section 305(b) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(b)), as amended by sections 102 and 104, is further amended by adding at the end the following:

''(6) CRITICAL AND DECLINING STATUS.—For purposes of this section, a plan in critical status shall be treated as in critical and declining status if the plan is described in one or more of subparagraphs (A), (B), (C), and (D) of paragraph (2) and the plan is projected to become insolvent within the meaning of section 4245 during the current plan year or any of the 14 succeeding plan years (19 succeeding plan years if the plan has a ratio of inactive participants to active participants that exceeds 2 to 1 or if the funded percentage of the plan is less than 80 percent).''.

(3) ANNUAL CERTIFICATION.—Section 305(b)(3)(A)(i) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(b)(3)(A)(i)) is amended—

(A) by striking ''and whether'' and inserting '', whether'', and

(B) by inserting '', and whether or not the plan is or will be in critical and declining status for such plan year'' before '', and'' at the end.

(4) ANNUAL FUNDING NOTICES.—Section 101(f)(2)(B) of such Act (29 U.S.C. 1021(f)(2)(B)) is amended—

(A) by redesignating clauses (vi) through (x) as clauses (vii) through (xi), respectively; and

(B) by inserting after clause (v) the following:

''(vi) in the case of a multiemployer plan, whether the plan was in critical and declining status under section 305 for such plan year and, if so—

''(I) the projected date of insolvency;

''(II) a clear statement that such insolvency may result in benefit reductions; and

''(III) a statement describing whether the plan sponsor has taken legally permitted actions to prevent insolvency.''.

(5) PROJECTIONS OF ASSETS AND LIABILITIES.—Section 305(b)(3)(B) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(b)(3)(B)) is amended by adding at the end the following:

''(iv) PROJECTIONS OF CRITICAL AND DECLINING STATUS.—In determining whether a plan is in critical and declining status as described in subsection (e)(9), clauses (i), (ii), and (iii) shall apply, except that—

''(I) if reasonable, the plan actuary shall assume that each contributing employer in compliance continues to comply through the end of the rehabilitation period or such later time as provided in subsection (e)(3)(A)(ii) with the terms of the rehabilitation plan that correspond to the schedule adopted or imposed under subsection (e), and

''(II) the plan actuary shall take into account any suspensions of benefits described in subsection (e)(9) adopted in a prior plan year that are still in effect.''.

(6) BENEFIT SUSPENSIONS FOR MULTIEMPLOYER PLANS IN CRITICAL AND DECLINING STATUS.—Section 305(e) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(e)) (as amended by section 109) is amended by inserting after paragraph (8) the following:

''(9) BENEFIT SUSPENSIONS FOR MULTIEMPLOYER PLANS IN CRITICAL AND DECLINING STATUS.—

''(A) IN GENERAL.—Notwithstanding section 204(g) and subject to subparagraphs (B) through (I), the plan sponsor of a plan in critical and declining status may, by plan amendment, suspend benefits which the sponsor deems appropriate.

''(B) SUSPENSION OF BENEFITS.—

''(i) SUSPENSION OF BENEFITS DEFINED.—For purposes of this subsection, the term 'suspension of benefits' means the temporary or permanent reduction of any current or future payment obligation of the plan to any participant or beneficiary under the plan, whether or not in pay status at the time of the suspension of benefits.

''(ii) LENGTH OF SUSPENSIONS.—Any suspension of benefits made under subparagraph (A) shall remain in effect until the earlier of when the plan sponsor provides benefit improvements in accordance with subparagraph (E) or the suspension of benefits expires by its own terms.

''(iii) NO LIABILITY.—The plan shall not be liable for any benefit payments not made as a result of a suspension of benefits under this paragraph.

''(iv) APPLICABILITY.—For purposes of this paragraph, all references to suspensions of benefits, increases in benefits, or resumptions of suspended benefits with respect to participants shall also apply with respect to benefits of beneficiaries or alternative payees of participants.

''(v) RETIREE REPRESENTATIVE.—

''(I) IN GENERAL.—In the case of a plan with 10,000 or more participants, not later than 60 days prior to the plan sponsor submitting an application to suspend benefits, the plan sponsor shall select a participant of the plan in pay status to act as a retiree representative. The retiree representative shall advocate for the interests of the retired and deferred vested participants and beneficiaries of the plan throughout the suspension approval process.

''(II) REASONABLE EXPENSES FROM PLAN.—The plan shall provide for reasonable expenses by the retiree representative, including reasonable legal and actuarial support, commensurate with the plan's size and funded status.

''(III) SPECIAL RULE RELATING TO FIDUCIARY STATUS.—Duties performed pursuant to subclause (I) shall not be subject to section 404(a). The preceding sentence shall not apply to those duties associated with an application to suspend benefits pursuant to subparagraph (G) that are performed by the retiree representative who is also a plan trustee.

''(C) CONDITIONS FOR SUSPENSIONS.—The plan sponsor of a plan in critical and declining status for a plan year may suspend benefits only if the following conditions are met:

''(i) Taking into account the proposed suspensions of benefits (and, if applicable, a proposed partition of the plan under section 4233), the plan actuary certifies that the plan is projected to avoid insolvency within the meaning of section 4245, assuming the suspensions of benefits continue until the suspensions of benefits expire by their own terms or if no such expiration date is set, indefinitely.

''(ii) The plan sponsor determines, in a written record to be maintained throughout the period of the benefit suspension, that the plan is still projected to become insolvent unless benefits are suspended under this paragraph, although all reasonable measures to avoid insolvency have been taken (and continue to be taken during the period of the benefit suspension). In its determination, the plan sponsor may take into account factors including the following:

''(I) Current and past contribution levels.

''(II) Levels of benefit accruals (including any prior reductions in the rate of benefit accruals).

''(III) Prior reductions (if any) of adjustable benefits.

''(IV) Prior suspensions (if any) of benefits under this subsection.

''(V) The impact on plan solvency of the subsidies and ancillary benefits available to active participants.

''(VI) Compensation levels of active participants relative to employees in the participants' industry generally.

''(VII) Competitive and other economic factors facing contributing employers.

''(VIII) The impact of benefit and contribution levels on retaining active participants and bargaining groups under the plan.

''(IX) The impact of past and anticipated contribution increases under the plan on employer attrition and retention levels.

''(X) Measures undertaken by the plan sponsor to retain or attract contributing employers.

''(D) LIMITATIONS ON SUSPENSIONS.—Any suspensions of benefits made by a plan sponsor pursuant to this paragraph shall be subject to the following limitations:

''(i) The monthly benefit of any participant or beneficiary may not be reduced below 110 percent of the monthly benefit which is guaranteed by the Pension Benefit Guaranty Corporation under section 4022A on the date of the suspension.

''(ii)(I) In the case of a participant or beneficiary who has attained 75 years of age as of the effective date of the suspension, not more than the applicable percentage of the maximum suspendable benefits of such participant or beneficiary may be suspended under this paragraph.

''(II) For purposes of subclause (I), the maximum suspendable benefits of a participant or beneficiary is the portion of the benefits of such participant or beneficiary that would be suspended pursuant to this paragraph without regard to this clause;

''(III) For purposes of subclause (I), the applicable percentage is a percentage equal to the quotient obtained by dividing—

''(aa) the number of months during the period beginning with the month after the month in which occurs the effective date of the suspension and ending with the month during which the participant or beneficiary attains the age of 80, by

''(bb) 60 months.

''(iii) No benefits based on disability (as defined under the plan) may be suspended under this paragraph.

''(iv) Any suspensions of benefits, in the aggregate (and, if applicable, considered in combination with a partition of the plan under section 4233), shall be reasonably estimated to achieve, but not materially exceed, the level that is necessary to avoid insolvency.

''(v) In any case in which a suspension of benefits with respect to a plan is made in combination with a partition of the plan under section 4233, the suspension of benefits may not take effect prior to the effective date of such partition.

''(vi) Any suspensions of benefits shall be equitably distributed across the participant and beneficiary population, taking into account factors, with respect to participants and beneficiaries and their benefits, that may include one or more of the following:

''(I) Age and life expectancy.

''(II) Length of time in pay status.

''(III) Amount of benefit.

''(IV) Type of benefit: survivor, normal retirement, early retirement.

''(V) Extent to which participant or beneficiary is receiving a subsidized benefit.

''(VI) Extent to which participant or beneficiary has received post-retirement benefit increases.

''(VII) History of benefit increases and reductions.

''(VIII) Years to retirement for active employees.

''(IX) Any discrepancies between active and retiree benefits.

''(X) Extent to which active participants are reasonably likely to withdraw support for the plan, accelerating employer withdrawals from the plan and increasing the risk of additional benefit reductions for participants in and out of pay status.

''(XI) Extent to which benefits are attributed to service with an employer that failed to pay its full withdrawal liability.

''(vii) In the case of a plan that includes the benefits described in clause (III), benefits suspended under this paragraph shall—

''(I) first, be applied to the maximum extent permissible to benefits attributable to a participant's service for an employer which withdrew from the plan and failed to pay (or is delinquent with respect to paying) the full amount of its withdrawal liability under section 4201(b)(1) or an agreement with the plan,

''(II) second, except as provided by subclause (III), be applied to all other benefits that may be suspended under this paragraph, and

''(III) third, be applied to benefits under a plan that are directly attributable to a participant's service with any employer which has, prior to the date of enactment of the Multiemployer Pension Reform Act of 2014—

''(aa) withdrawn from the plan in a complete withdrawal under section 4203 and has paid the full amount of the employer's withdrawal liability under section 4201(b)(1) or an agreement with the plan, and

''(bb) pursuant to a collective bargaining agreement, assumed liability for providing benefits to participants and beneficiaries of the plan under a separate, single-employer plan sponsored by the employer, in an amount equal to any amount of benefits for such participants and beneficiaries reduced as a result of the financial status of the plan.

''(E) BENEFIT IMPROVEMENTS.—

''(i) IN GENERAL.—The plan sponsor may, in its sole discretion, provide benefit improvements while any suspension of benefits under the plan remains in effect, except that the plan sponsor may not increase the liabilities of the plan by reason of any benefit improvement for any participant or beneficiary not in pay status by the first day of the plan year for which the benefit improvement takes effect, unless—

''(I) such action is accompanied by equitable benefit improvements in accordance with clause (ii) for all participants and beneficiaries whose benefit commencement dates were before the first day of the plan year for which the benefit improvement for such participant or beneficiary not in pay status took effect; and

''(II) the plan actuary certifies that after taking into account such benefits improvements the plan is projected to avoid insolvency indefinitely under section 4245.

''(ii) EQUITABLE DISTRIBUTION OF BENEFIT IMPROVEMENTS.—

''(I) LIMITATION.—The projected value of the total liabilities for benefit improvements for participants and beneficiaries not in pay status by the date of the first day of the plan year in which the benefit improvements are proposed to take effect, as determined as of such date, may not exceed the projected value of the liabilities arising from benefit improvements for participants and beneficiaries with benefit commencement dates prior to the first day of such plan year, as so determined.

''(II) EQUITABLE DISTRIBUTION OF BENEFITS.—The plan sponsor shall equitably distribute any increase in total liabilities for benefit improvements in clause (i) to some or all of the participants and beneficiaries whose benefit commencement date is before the date of the first day of the plan year in which the benefit improvements are proposed to take effect, taking into account the relevant factors described in subparagraph (D)(vi) and the extent to which the benefits of the participants and beneficiaries were suspended.

''(iii) SPECIAL RULE FOR RESUMPTIONS OF BENEFITS ONLY FOR PARTICIPANTS IN PAY STATUS.—The plan sponsor may increase liabilities of the plan through a resumption of benefits for participants and beneficiaries in pay status only if the plan sponsor equitably distributes the value of resumed benefits to some or all of the participants and beneficiaries in pay status, taking into account the relevant factors described in subparagraph (D)(vi).

''(iv) SPECIAL RULE FOR CERTAIN BENEFIT INCREASES.—This subparagraph shall not apply to a resumption of suspended benefits or plan amendment which increases liabilities with respect to participants and beneficiaries not in pay status by the first day of the plan year in which the benefit improvements took effect which—

''(I) the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, determines to be reasonable and which provides for only de minimis increases in the liabilities of the plan, or

''(II) is required as a condition of qualification under part I of subchapter D of chapter 1 of subtitle A of the Internal Revenue Code of 1986 or to comply with other applicable law, as determined by the Secretary of the Treasury.

''(v) ADDITIONAL LIMITATIONS.—Except for resumptions of suspended benefits described in clause (iii), the limitations on benefit improvements while a suspension of benefits is in effect under this paragraph shall be in addition to any other applicable limitations on increases in benefits imposed on a plan.

''(vi) DEFINITION OF BENEFIT IMPROVEMENT.—For purposes of this subparagraph, the term 'benefit improvement' means, with respect to a plan, a resumption of suspended benefits, an increase in benefits, an increase in the rate at which benefits accrue, or an increase in the rate at which benefits become nonforfeitable under the plan.

''(F) NOTICE REQUIREMENTS.—

''(i) IN GENERAL.—No suspension of benefits may be made pursuant to this paragraph unless notice of such proposed suspension has been given by the plan sponsor concurrently with an application for approval of such suspension submitted under subparagraph (G) to the Secretary of the Treasury to—

''(I) such plan participants and beneficiaries who may be contacted by reasonable efforts,

''(II) each employer who has an obligation to contribute (within the meaning of section 4212(a)) under the plan, and

''(III) each employee organization which, for purposes of collective bargaining, represents plan participants employed by such an employer.

''(ii) CONTENT OF NOTICE.—The notice under clause (i) shall contain—

''(I) sufficient information to enable participants and beneficiaries to understand the effect of any suspensions of benefits, including an individualized estimate (on an annual or monthly basis) of such effect on each participant or beneficiary,

''(II) a description of the factors considered by the plan sponsor in designing the benefit suspensions,

''(III) a statement that the application for approval of any suspension of benefits shall be available on the website of the Department of the Treasury and that comments on such application will be accepted,

''(IV) information as to the rights and remedies of plan participants and beneficiaries,

''(V) if applicable, a statement describing the appointment of a retiree representative, the date of appointment of such representative, identifying information about the retiree representative (including whether the representative is a plan trustee), and how to contact such representative, and

''(VI) information on how to contact the Department of the Treasury for further information and assistance where appropriate.

''(iii) FORM AND MANNER.—Any notice under clause (i)—

''(I) shall be provided in a form and manner prescribed in guidance by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, notwithstanding any other provision of law,

''(II) shall be written in a manner so as to be understood by the average plan participant, and

''(III) may be provided in written, electronic, or other appropriate form to the extent such form is reasonably accessible to persons to whom the notice is required to be provided.

''(iv) OTHER NOTICE REQUIREMENT.—Any notice provided under clause (i) shall fulfill the requirement for notice of a significant reduction in benefits described in section 204(h).

''(v) MODEL NOTICE.—The Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall in the guidance prescribed under clause (iii)(I) establish a model notice that a plan sponsor may use to meet the requirements of this subparagraph.

''(G) APPROVAL PROCESS BY THE SECRETARY OF THE TREASURY IN CONSULTATION WITH THE PENSION BENEFIT GUARANTY CORPORATION AND THE SECRETARY OF LABOR.—

''(i) IN GENERAL.—The plan sponsor of a plan in critical and declining status for a plan year that seeks to suspend benefits must submit an application to the Secretary of the Treasury for approval of the suspensions of benefits. If the plan sponsor submits an application for approval of the suspensions, the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall approve the application upon finding that the plan is eligible for the suspensions and has satisfied the criteria of subparagraphs (C), (D), (E), and (F).

''(ii) SOLICITATION OF COMMENTS.—Not later than 30 days after receipt of the application under clause (i), the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall publish a notice in the Federal Register soliciting comments from contributing employers, employee organizations, and participants and beneficiaries of the plan for which an application was made and other interested parties. The application for approval of the suspension of benefits shall be published on the website of the Secretary of the Treasury.

''(iii) REQUIRED ACTION; DEEMED APPROVAL.—The Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall approve or deny any application for suspensions of benefits under this paragraph within 225 days after the submission of such application. An application for suspension of benefits shall be deemed approved unless, within such 225 days, the Secretary of the Treasury notifies the plan sponsor that it has failed to satisfy one or more of the criteria described in this paragraph. If the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, rejects a plan sponsor's application, the Secretary of the Treasury shall provide notice to the plan sponsor detailing the specific reasons for the rejection, including reference to the specific requirement not satisfied. Approval or denial by the Secretary of the Treasury of an application shall be treated as a final agency action for purposes of section 704 of title 5, United States Code.

''(iv) AGENCY REVIEW.—In evaluating whether the plan sponsor has met the criteria specified in clause (ii) of subparagraph (C), the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall review the plan sponsor's consideration of factors under such clause.

''(v) STANDARD FOR ACCEPTING PLAN SPONSOR DETERMINATIONS.—In evaluating the plan sponsor's application, the Secretary of the Treasury shall accept the plan sponsor's determinations unless it concludes, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, that the plan sponsor's determinations were clearly erroneous.

''(H) PARTICIPANT RATIFICATION PROCESS.—

''(i) IN GENERAL.—No suspension of benefits may take effect pursuant to this paragraph prior to a vote of the participants of the plan with respect to the suspension.

''(ii) ADMINISTRATION OF VOTE.—Not later than 30 days after approval of the suspension by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, under subparagraph (G), the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall administer a vote of participants and beneficiaries of the plan. Except as provided in clause (v), the suspension shall go into effect following the vote unless a majority of all participants and beneficiaries of the plan vote to reject the suspension. The plan sponsor may submit a new suspension application to the Secretary of the Treasury for approval in any case in which a suspension is prohibited from taking effect pursuant to a vote under this subparagraph.

''(iii) BALLOTS.—The plan sponsor shall provide a ballot for the vote (subject to approval by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor) that includes the following:

''(I) A statement from the plan sponsor in support of the suspension.

''(II) A statement in opposition to the suspension compiled from comments received pursuant to subparagraph (G)(ii).

''(III) A statement that the suspension has been approved by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor.

''(IV) A statement that the plan sponsor has determined that the plan will become insolvent unless the suspension takes effect.

''(V) A statement that insolvency of the plan could result in benefits lower than benefits paid under the suspension.

''(VI) A statement that insolvency of the Pension Benefit Guaranty Corporation would result in benefits lower than benefits paid in the case of plan insolvency.

''(iv) COMMUNICATION BY PLAN SPONSOR.—It is the sense of Congress that, depending on the size and resources of the plan and geographic distribution of the plan's participants, the plan sponsor should take such steps as may be necessary to inform participants about proposed benefit suspensions through in-person meetings, telephone or internet-based communications, mailed information, or by other means.

''(v) SYSTEMICALLY IMPORTANT PLANS.—

''(I) IN GENERAL.—Not later than 14 days after a vote under this subparagraph rejecting a suspension, the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall determine whether the plan is a systemically important plan. If the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, determines that the plan is a systemically important plan, not later than the end of the 90-day period beginning on the date the results of the vote are certified, the Secretary of the Treasury shall, notwithstanding such adverse vote—

''(aa) permit the implementation of the suspension proposed by the plan sponsor; or

''(bb) permit the implementation of a modification by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, of such suspension (so long as the plan is projected to avoid insolvency within the meaning of section 4245 under such modification).

''(II) RECOMMENDATIONS.—Not later than 30 days after a determination by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, that the plan is systemically important, the Participant and Plan Sponsor Advocate selected under section 4004 may submit recommendations to the Secretary of the Treasury with respect to the suspension or any revisions to the suspension.

''(III) SYSTEMICALLY IMPORTANT PLAN DEFINED.—

''(aa) IN GENERAL.—For purposes of this subparagraph, a systemically important plan is a plan with respect to which the Pension Benefit Guaranty Corporation projects the present value of projected financial assistance payments exceeds $1,000,000,000 if suspensions are not implemented.

''(bb) INDEXING.—For calendar years beginning after 2015, there shall be substituted for the dollar amount specified in item (aa) an amount equal to the product of such dollar amount and a fraction, the numerator of which is the contribution and benefit base (determined under section 230 of the Social Security Act) for the preceding calendar year and the denominator of which is such contribution and benefit base for calendar year 2014. If the amount otherwise determined under this item is not a multiple of $1,000,000, such amount shall be rounded to the next lowest multiple of $1,000,000.

''(vi) FINAL AUTHORIZATION TO SUSPEND.—In any case in which a suspension goes into effect following a vote pursuant to clause (ii) (or following a determination under clause (v) that the plan is a systemically important plan), the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall issue a final authorization to suspend with respect to the suspension not later than 7 days after such vote (or, in the case of a suspension that goes into effect under clause (v), at a time sufficient to allow the implementation of the suspension prior to the end of the 90-day period described in clause (v)(I)).

''(I) JUDICIAL REVIEW.—

''(i) DENIAL OF APPLICATION.—An action by the plan sponsor challenging the denial of an application for suspension of benefits by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, may only be brought following such denial.

''(ii) APPROVAL OF SUSPENSION OF BENEFITS.—

''(I) TIMING OF ACTION.—An action challenging a suspension of benefits under this paragraph may only be brought following a final authorization to suspend by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, under subparagraph (H)(vi).

''(II) STANDARDS OF REVIEW.—

''(aa) IN GENERAL.—A court shall review an action challenging a suspension of benefits under this paragraph in accordance with section 706 of title 5, United States Code.

''(bb) TEMPORARY INJUNCTION.—A court reviewing an action challenging a suspension of benefits under this paragraph may not grant a temporary injunction with respect to such suspension unless the court finds a clear and convincing likelihood that the plaintiff will prevail on the merits of the case.

''(iii) RESTRICTED CAUSE OF ACTION.—A participant or beneficiary affected by a benefit suspension under this paragraph shall not have a cause of action under this title.

''(iv) LIMITATION ON ACTION TO SUSPEND BENEFITS.—No action challenging a suspension of benefits following the final authorization to suspend or the denial of an application for suspension of benefits pursuant to this paragraph may be brought after one year after the earliest date on which the plaintiff acquired or should have acquired actual knowledge of the existence of such cause of action.

''(J) SPECIAL RULE FOR EMERGENCE FROM CRITICAL STATUS.—A plan certified to be in critical and declining status pursuant to projections made under subsection (b)(3) for which a suspension of benefits has been made by the plan sponsor pursuant to this paragraph shall not emerge from critical status under paragraph (4)(B), until such time as—

''(i) the plan is no longer certified to be in critical or endangered status under paragraphs (1) and (2) of subsection (b), and

''(ii) the plan is projected to avoid insolvency under section 4245.''.

(7) RULES RELATING TO WITHDRAWAL LIABILITY.—

(A) BENEFIT SUSPENSIONS DISREGARDED.—Section 305(g)(1) of the Employee Retirement Income Security Act of 1974, as added by section 109, is further amended by inserting ''or benefit reductions or suspensions while in critical and declining status under subsection (e)(9)), unless the withdrawal occurs more than ten years after the effective date of a benefit suspension by a plan in critical and declining status,'' after ''benefit reductions under subsection (e)(8) or (f)''.

(B) AUTHORITY OF PLAN TO SUBORDINATE WITHDRAWAL LIABILITY CLAIMS.—Section 4219(d) of such Act (29 U.S.C. 1399(d)) is amended by striking the period at the end and inserting ''or to any arrangement relating to withdrawal liability involving the plan.''.

(C) CIVIL ACTIONS.—Section 4003(f)(1) of such Act (29 U.S.C. 1303)(f)(1)) is amended by inserting ''plan sponsor,'' before ''fiduciary''.

(8) GUIDANCE.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall publish appropriate guidance to implement section 305(e)(9) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(e)(9)).

(b) AMENDMENTS TO THE INTERNAL REVENUE CODE OF 1986.—

(1) GENERAL RULE FOR PLAN IN CRITICAL AND DECLINING STATUS.—Section 432(a) of the Internal Revenue Code of 1986 is amended—

(A) in paragraph (1)(B), by striking ''and'' at the end;

(B) in paragraph (2)(B), by striking the period at the end and inserting '', and''; and

(C) by adding at the end the following:

''(3) if the plan is in critical and declining status—

''(A) the requirements of paragraph (2) shall apply to the plan; and

''(B) the plan sponsor may, by plan amendment, suspend benefits in accordance with the requirements of subsection (e)(9).''.

(2) CRITICAL AND DECLINING STATUS DEFINED.—Section 432(b) of the Internal Revenue Code of 1986, as amended by sections 102 and 104, is further amended by adding at the end the following:

''(6) CRITICAL AND DECLINING STATUS.—For purposes of this section, a plan in critical status shall be treated as in critical and declining status if the plan is described in one or more of subparagraphs (A), (B), (C), and (D) of paragraph (2) and the plan is projected to become insolvent within the meaning of section 418E during the current plan year or any of the 14 succeeding plan years (19 succeeding plan years if the plan has a ratio of inactive participants to active participants that exceeds 2 to 1 or if the funded percentage of the plan is less than 80 percent).''.

(3) ANNUAL CERTIFICATION.—Section 432(b)(3)(A)(i) of the Internal Revenue Code of 1986 is amended—

(A) by striking ''and whether'' and inserting '', whether'', and

(B) by inserting '', and whether or not the plan is or will be in critical and declining status for such plan year'' before '', and'' at the end.

(4) PROJECTIONS OF ASSETS AND LIABILITIES.—Section 432(b)(3)(B) of the Internal Revenue Code of 1986 is amended by adding at the end the following:

''(iv) PROJECTIONS OF CRITICAL AND DECLINING STATUS.—In determining whether a plan is in critical and declining status as described in subsection (e)(9), clauses (i), (ii), and (iii) shall apply, except that—

''(I) if reasonable, the plan actuary shall assume that each contributing employer in compliance continues to comply through the end of the rehabilitation period or such later time as provided in subsection (e)(3)(A)(ii) with the terms of the rehabilitation plan that correspond to the schedule adopted or imposed under subsection (e), and

''(II) the plan actuary shall take into account any suspensions of benefits described in subsection (e)(9) adopted in a prior plan year that are still in effect.''.

(5) BENEFIT SUSPENSIONS FOR MULTIEMPLOYER PLANS IN CRITICAL AND DECLINING STATUS.—Section 432(e) of the Internal Revenue Code of 1986 (as amended by section 109) is amended by inserting after paragraph (8) the following:

''(9) BENEFIT SUSPENSIONS FOR MULTIEMPLOYER PLANS IN CRITICAL AND DECLINING STATUS.—

''(A) IN GENERAL.—Notwithstanding section 411(d)(6) and subject to subparagraphs (B) through (I), the plan sponsor of a plan in critical and declining status may, by plan amendment, suspend benefits which the sponsor deems appropriate.

''(B) SUSPENSION OF BENEFITS.—

''(i) SUSPENSION OF BENEFITS DEFINED.—For purposes of this subsection, the term 'suspension of benefits' means the temporary or permanent reduction of any current or future payment obligation of the plan to any participant or beneficiary under the plan, whether or not in pay status at the time of the suspension of benefits.

''(ii) LENGTH OF SUSPENSIONS.—Any suspension of benefits made under subparagraph (A) shall remain in effect until the earlier of when the plan sponsor provides benefit improvements in accordance with subparagraph (E) or the suspension of benefits expires by its own terms.

''(iii) NO LIABILITY.—The plan shall not be liable for any benefit payments not made as a result of a suspension of benefits under this paragraph.

''(iv) APPLICABILITY.—For purposes of this paragraph, all references to suspensions of benefits, increases in benefits, or resumptions of suspended benefits with respect to participants shall also apply with respect to benefits of beneficiaries or alternative payees of participants.

''(v) RETIREE REPRESENTATIVE.—

''(I) IN GENERAL.—In the case of a plan with 10,000 or more participants, not later than 60 days prior to the plan sponsor submitting an application to suspend benefits, the plan sponsor shall select a participant of the plan in pay status to act as a retiree representative. The retiree representative shall advocate for the interests of the retired and deferred vested participants and beneficiaries of the plan throughout the suspension approval process.

''(II) REASONABLE EXPENSES FROM PLAN.—The plan shall provide for reasonable expenses by the retiree representative, including reasonable legal and actuarial support, commensurate with the plan's size and funded status.

''(III) SPECIAL RULE RELATING TO FIDUCIARY STATUS.—Duties performed pursuant to subclause (I) shall not be subject to section 4975. The preceding sentence shall not apply to those duties associated with an application to suspend benefits pursuant to subparagraph (G) that are performed by the retiree representative who is also a plan trustee.

''(C) CONDITIONS FOR SUSPENSIONS.—The plan sponsor of a plan in critical and declining status for a plan year may suspend benefits only if the following conditions are met:

''(i) Taking into account the proposed suspensions of benefits (and, if applicable, a proposed partition of the plan under section 4233 of the Employee Retirement Income Security Act of 1974), the plan actuary certifies that the plan is projected to avoid insolvency within the meaning of section 418E, assuming the suspensions of benefits continue until the suspensions of benefits expire by their own terms or if no such expiration date is set, indefinitely.

''(ii) The plan sponsor determines, in a written record to be maintained throughout the period of the benefit suspension, that the plan is still projected to become insolvent unless benefits are suspended under this paragraph, although all reasonable measures to avoid insolvency have been taken (and continue to be taken during the period of the benefit suspension). In its determination, the plan sponsor may take into account factors including the following:

''(I) Current and past contribution levels.

''(II) Levels of benefit accruals (including any prior reductions in the rate of benefit accruals).

''(III) Prior reductions (if any) of adjustable benefits.

''(IV) Prior suspensions (if any) of benefits under this subsection.

''(V) The impact on plan solvency of the subsidies and ancillary benefits available to active participants.

''(VI) Compensation levels of active participants relative to employees in the participants' industry generally.

''(VII) Competitive and other economic factors facing contributing employers.

''(VIII) The impact of benefit and contribution levels on retaining active participants and bargaining groups under the plan.

''(IX) The impact of past and anticipated contribution increases under the plan on employer attrition and retention levels.

''(X) Measures undertaken by the plan sponsor to retain or attract contributing employers.

''(D) LIMITATIONS ON SUSPENSIONS.—Any suspensions of benefits made by a plan sponsor pursuant to this paragraph shall be subject to the following limitations:

''(i) The monthly benefit of any participant or beneficiary may not be reduced below 110 percent of the monthly benefit which is guaranteed by the Pension Benefit Guaranty Corporation under section 4022A of the Employee Retirement Income Security Act of 1974 on the date of the suspension.

''(ii)(I) In the case of a participant or beneficiary who has attained 75 years of age as of the effective date of the suspension, not more than the applicable percentage of the maximum suspendable benefits of such participant or beneficiary may be suspended under this paragraph.

''(II) For purposes of subclause (I), the maximum suspendable benefits of a participant or beneficiary is the portion of the benefits of such participant or beneficiary that would be suspended pursuant to this paragraph without regard to this clause;

''(III) For purposes of subclause (I), the applicable percentage is a percentage equal to the quotient obtained by dividing—

''(aa) the number of months during the period beginning with the month after the month in which occurs the effective date of the suspension and ending with the month during which the participant or beneficiary attains the age of 80, by

''(bb) 60 months.

''(iii) No benefits based on disability (as defined under the plan) may be suspended under this paragraph.

''(iv) Any suspensions of benefits, in the aggregate (and, if applicable, considered in combination with a partition of the plan under section 4233 of the Employee Retirement Income Security Act of 1974), shall be reasonably estimated to achieve, but not materially exceed, the level that is necessary to avoid insolvency.

''(v) In any case in which a suspension of benefits with respect to a plan is made in combination with a partition of the plan under section 4233 of the Employee Retirement Income Security Act of 1974, the suspension of benefits may not take effect prior to the effective date of such partition.

''(vi) Any suspensions of benefits shall be equitably distributed across the participant and beneficiary population, taking into account factors, with respect to participants and beneficiaries and their benefits, that may include one or more of the following:

''(I) Age and life expectancy.

''(II) Length of time in pay status.

''(III) Amount of benefit.

''(IV) Type of benefit: survivor, normal retirement, early retirement.

''(V) Extent to which participant or beneficiary is receiving a subsidized benefit.

''(VI) Extent to which participant or beneficiary has received post-retirement benefit increases.

''(VII) History of benefit increases and reductions.

''(VIII) Years to retirement for active employees.

''(IX) Any discrepancies between active and retiree benefits.

''(X) Extent to which active participants are reasonably likely to withdraw support for the plan, accelerating employer withdrawals from the plan and increasing the risk of additional benefit reductions for participants in and out of pay status.

''(XI) Extent to which benefits are attributed to service with an employer that failed to pay its full withdrawal liability.

''(vii) In the case of a plan that includes the benefits described in clause (III), benefits suspended under this paragraph shall—

''(I) first, be applied to the maximum extent permissible to benefits attributable to a participant's service for an employer which withdrew from the plan and failed to pay (or is delinquent with respect to paying) the full amount of its withdrawal liability under section 4201(b)(1) of the Employee Retirement Income Security Act of 1974 or an agreement with the plan,

''(II) second, except as provided by subclause (III), be applied to all other benefits that may be suspended under this paragraph, and

''(III) third, be applied to benefits under a plan that are directly attributable to a participant's service with any employer which has, prior to the date of enactment of the Multiemployer Pension Reform Act of 2014—

''(aa) withdrawn from the plan in a complete withdrawal under section 4203 of the Employee Retirement Income Security Act of 1974 and has paid the full amount of the employer's withdrawal liability under section 4201(b)(1) of such Act or an agreement with the plan, and

''(bb) pursuant to a collective bargaining agreement, assumed liability for providing benefits to participants and beneficiaries of the plan under a separate, single-employer plan sponsored by the employer, in an amount equal to any amount of benefits for

such participants and beneficiaries reduced as a result of the financial status of the plan.

''(E) BENEFIT IMPROVEMENTS.—

''(i) IN GENERAL.—The plan sponsor may, in its sole discretion, provide benefit improvements while any suspension of benefits under the plan remains in effect, except that the plan sponsor may not increase the liabilities of the plan by reason of any benefit improvement for any participant or beneficiary not in pay status by the first day of the plan year for which the benefit improvement takes effect, unless—

''(I) such action is accompanied by equitable benefit improvements in accordance with clause (ii) for all participants and beneficiaries whose benefit commencement dates were before the first day of the plan year for which the benefit improvement for such participant or beneficiary not in pay status took effect; and

''(II) the plan actuary certifies that after taking into account such benefits improvements the plan is projected to avoid insolvency indefinitely under section 418E.

''(ii) EQUITABLE DISTRIBUTION OF BENEFIT IMPROVEMENTS.—

''(I) LIMITATION.—The projected value of the total liabilities for benefit improvements for participants and beneficiaries not in pay status by the date of the first day of the plan year in which the benefit improvements are proposed to take effect, as determined as of such date, may not exceed the projected value of the liabilities arising from benefit improvements for participants and beneficiaries with benefit commencement dates prior to the first day of such plan year, as so determined.

''(II) EQUITABLE DISTRIBUTION OF BENEFITS.—The plan sponsor shall equitably distribute any increase in total liabilities for benefit improvements in clause (i) to some or all of the participants and beneficiaries whose benefit commencement date is before the date of the first day of the plan year in which the benefit improvements are proposed to take effect, taking into account the relevant factors described in subparagraph (D)(vi) and the extent to which the benefits of the participants and beneficiaries were suspended.

''(iii) SPECIAL RULE FOR RESUMPTIONS OF BENEFITS ONLY FOR PARTICIPANTS IN PAY STATUS.—The plan sponsor may increase liabilities of the plan through a resumption of benefits for participants and beneficiaries in pay status only if the plan sponsor equitably distributes the value of resumed benefits to some or all of the participants and beneficiaries in pay status, taking into account the relevant factors described in subparagraph (D)(vi).

''(iv) SPECIAL RULE FOR CERTAIN BENEFIT INCREASES.—This subparagraph shall not apply to a resumption of suspended benefits or plan amendment which increases liabilities with respect to participants and beneficiaries not in pay status by the first day of the plan year in which the benefit improvements took effect which—

''(I) the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, determines to be reasonable and which provides for only de minimis increases in the liabilities of the plan, or

''(II) is required as a condition of qualification under part I of subchapter D of chapter 1 of subtitle A or to comply with other applicable law, as determined by the Secretary of the Treasury.

''(v) ADDITIONAL LIMITATIONS.—Except for resumptions of suspended benefits described in clause (iii), the limitations on benefit improvements while a suspension of benefits is in effect under this paragraph shall be in addition to any other applicable limitations on increases in benefits imposed on a plan.

''(vi) DEFINITION OF BENEFIT IMPROVEMENT.—For purposes of this subparagraph, the term 'benefit improvement' means, with respect to a plan, a resumption of suspended benefits, an increase in benefits, an increase in the rate at which benefits accrue, or an increase in the rate at which benefits become nonforfeitable under the plan.

''(F) NOTICE REQUIREMENTS.—

''(i) IN GENERAL.—No suspension of benefits may be made pursuant to this paragraph unless notice of such proposed suspension has been given by the plan sponsor concurrently with an application for approval of such suspension submitted under subparagraph (G) to the Secretary of the Treasury to—

''(I) such plan participants and beneficiaries who may be contacted by reasonable efforts,

''(II) each employer who has an obligation to contribute (within the meaning of section 4212(a) of the Employee Retirement Income Security Act of 1974) under the plan, and

''(III) each employee organization which, for purposes of collective bargaining, represents plan participants employed by such an employer.

''(ii) CONTENT OF NOTICE.—The notice under clause (i) shall contain—

''(I) sufficient information to enable participants and beneficiaries to understand the effect of any suspensions of benefits, including an individualized estimate (on an annual or monthly basis) of such effect on each participant or beneficiary,

''(II) a description of the factors considered by the plan sponsor in designing the benefit suspensions,

''(III) a statement that the application for approval of any suspension of benefits shall be available on the website of the Department of the Treasury and that comments on such application will be accepted,

''(IV) information as to the rights and remedies of plan participants and beneficiaries,

''(V) if applicable, a statement describing the appointment of a retiree representative, the date of appointment of such representative, identifying information about the retiree representative (including whether the representative is a plan trustee), and how to contact such representative, and

''(VI) information on how to contact the Department of the Treasury for further information and assistance where appropriate.

''(iii) FORM AND MANNER.—Any notice under clause (i)—

''(I) shall be provided in a form and manner prescribed in guidance by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, notwithstanding any other provision of law,

''(II) shall be written in a manner so as to be understood by the average plan participant, and

''(III) may be provided in written, electronic, or other appropriate form to the extent such form is reasonably accessible to persons to whom the notice is required to be provided.

''(iv) OTHER NOTICE REQUIREMENT.—Any notice provided under clause (i) shall fulfill the requirement for notice of a significant reduction in benefits described in section 4980F.

''(v) MODEL NOTICE.—The Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall in the guidance prescribed under clause (iii)(I) establish a model notice that a plan sponsor may use to meet the requirements of this subparagraph.

''(G) APPROVAL PROCESS BY THE SECRETARY OF THE TREASURY IN CONSULTATION WITH THE PENSION BENEFIT GUARANTY CORPORATION AND THE SECRETARY OF LABOR.—

''(i) IN GENERAL.—The plan sponsor of a plan in critical and declining status for a plan year that seeks to suspend benefits must submit an application to the Secretary of the Treasury for approval of the suspensions of benefits. If the plan sponsor submits an application for approval of the suspensions, the Secretary of the Treasury shall approve, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, the application upon finding that the plan is eligible for the suspensions and has satisfied the criteria of subparagraphs (C), (D), (E), and (F).

''(ii) SOLICITATION OF COMMENTS.—Not later than 30 days after receipt of the application under clause (i), the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall publish a notice in the Federal Register soliciting comments from contributing employers, employee organizations, and participants and beneficiaries of the plan for which an application was made and other interested parties. The application for approval of the suspension of benefits shall be published on the website of the Department of the Treasury.

''(iii) REQUIRED ACTION; DEEMED APPROVAL.—The Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall approve or deny any application for suspensions of benefits under this paragraph within 225 days after the submission of such application. An application for suspension of benefits shall be deemed approved unless, within such 225 days, the Secretary of the Treasury notifies the plan sponsor that it has failed to satisfy one or more of the criteria described in this paragraph. If the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, rejects a plan sponsor's application, the Secretary of the Treasury shall provide notice to the plan sponsor detailing the specific reasons for the rejection, including reference to the specific requirement not satisfied. Approval or denial by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, of an application shall be treated as final agency action for purposes of section 704 of title 5, United States Code.

''(iv) AGENCY REVIEW.—In evaluating whether the plan sponsor has met the criteria specified in clause (ii) of subparagraph (C), the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall review the plan sponsor's consideration of factors under such clause.

''(v) STANDARD FOR ACCEPTING PLAN SPONSOR DETERMINATIONS.—In evaluating the plan sponsor's application, the Secretary of the Treasury shall accept the plan sponsor's determinations unless it concludes, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, that the plan sponsor's determinations were clearly erroneous.

''(H) PARTICIPANT RATIFICATION PROCESS.—

''(i) IN GENERAL.—No suspension of benefits may take effect pursuant to this paragraph prior to a vote of the participants of the plan with respect to the suspension.

''(ii) ADMINISTRATION OF VOTE.—Not later than 30 days after approval of the suspension by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, under subparagraph (G), the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall administer a vote of participants and beneficiaries of the plan.

Except as provided in clause (v), the suspension shall go into effect following the vote unless a majority of all participants and beneficiaries of the plan vote to reject the suspension. The plan sponsor may submit a new suspension application to the Secretary of the Treasury for approval in any case in which a suspension is prohibited from taking effect pursuant to a vote under this subparagraph.

''(iii) BALLOTS.—The plan sponsor shall provide a ballot for the vote (subject to approval by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor) that includes the following:

''(I) A statement from the plan sponsor in support of the suspension.

''(II) A statement in opposition to the suspension compiled from comments received pursuant to subparagraph (G)(ii).

''(III) A statement that the suspension has been approved by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor.

''(IV) A statement that the plan sponsor has determined that the plan will become insolvent unless the suspension takes effect.

''(V) A statement that insolvency of the plan could result in benefits lower than benefits paid under the suspension.

''(VI) A statement that insolvency of the Pension Benefit Guaranty Corporation would result in benefits lower than benefits paid in the case of plan insolvency.

''(iv) COMMUNICATION BY PLAN SPONSOR.—It is the sense of Congress that, depending on the size and resources of the plan and geographic distribution of the plan's participants, the plan sponsor should take such steps as may be necessary to inform participants about proposed benefit suspensions through in-person meetings, telephone or internet-based communications, mailed information, or by other means.

''(v) SYSTEMICALLY IMPORTANT PLANS.—

''(I) IN GENERAL.—Not later than 14 days after a vote under this subparagraph rejecting a suspension, the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall determine whether the plan is a systemically important plan. If the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, determines that the plan is a systemically important plan, not later than the end of the 90-day period beginning on the date the results of the vote are certified, the Secretary of the Treasury shall, notwithstanding such adverse vote—

''(aa) permit the implementation of the suspension proposed by the plan sponsor; or

''(bb) permit the implementation of a modification by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, of such suspension (so long as the plan is projected to avoid insolvency within the meaning of section 4245 of the Employee Retirement Income Security Act of 1974 under such modification).

''(II) RECOMMENDATIONS.—Not later than 30 days after a determination by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, that the plan is systemically important, the Participant and Plan Sponsor Advocate selected under section 4004 of the Employee Retirement Income Security Act of 1974 may submit recommendations to the Secretary of the Treasury with respect to the suspension or any revisions to the suspension.

''(III) SYSTEMICALLY IMPORTANT PLAN DEFINED.—

''(aa) IN GENERAL.—For purposes of this subparagraph, a systemically important plan is a plan with respect to which the Pension Benefit Guaranty Corporation projects the present value of projected financial assistance payments exceeds $1,000,000,000 if suspensions are not implemented.

''(bb) INDEXING.—For calendar years beginning after 2015, there shall be substituted for the dollar amount specified in item (aa) an amount equal to the product of such dollar amount and a fraction, the numerator of which is the contribution and benefit base (determined under section 230 of the Social Security Act) for the preceding calendar year and the denominator of which is such contribution and benefit base for calendar year 2014. If the amount otherwise determined under this item is not a multiple of $1,000,000, such amount shall be rounded to the next lowest multiple of $1,000,000.

''(vi) FINAL AUTHORIZATION TO SUSPEND.—In any case in which a suspension goes into effect following a vote pursuant to clause (ii) (or following a determination under clause (v) that the plan is a systemically important plan), the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall issue a final authorization to suspend with respect to the suspension not later than 7 days after such vote (or, in the case of a suspension that goes into effect under clause (v), at a time sufficient to allow the implementation of the suspension prior to the end of the 90-day period described in clause (v)(I)).

''(I) JUDICIAL REVIEW.—

''(i) DENIAL OF APPLICATION.—An action by the plan sponsor challenging the denial of an application for suspension of benefits by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, may only be brought following such denial.

''(ii) APPROVAL OF SUSPENSION OF BENEFITS.—

''(I) TIMING OF ACTION.—An action challenging a suspension of benefits under this paragraph may only be brought following a final authorization to suspend by the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, under subparagraph (H)(vi).

''(II) STANDARDS OF REVIEW.—

''(aa) IN GENERAL.—A court shall review an action challenging a suspension of benefits under this paragraph in accordance with section 706 of title 5, United States Code.

''(bb) TEMPORARY INJUNCTION.—A court reviewing an action challenging a suspension of benefits under this paragraph may not grant a temporary injunction with respect to such suspension unless the court finds a clear and convincing likelihood that the plaintiff will prevail on the merits of the case.

''(iii) RESTRICTED CAUSE OF ACTION.—A participant or beneficiary affected by a benefit suspension under this paragraph shall not have a cause of action under this title.

''(iv) LIMITATION ON ACTION TO SUSPEND BENEFITS.—No action challenging a suspension of benefits following the final authorization to suspend or the denial of an application for suspension of benefits pursuant to this paragraph may be brought after one year after the earliest date on which the plaintiff acquired or should have acquired actual knowledge of the existence of such cause of action.

''(J) SPECIAL RULE FOR EMERGENCE FROM CRITICAL STATUS.—A plan certified to be in critical and declining status pursuant to projections made under subsection (b)(3) for which a suspension of benefits has been made by the plan sponsor pursuant to this paragraph shall not emerge from critical status under paragraph (4)(B), until such time as—

''(i) the plan is no longer certified to be in critical or endangered status under paragraphs (1) and (2) of subsection (b), and

''(ii) the plan is projected to avoid insolvency under section 418E.''.

(6) RULE RELATING TO WITHDRAWAL LIABILITY.—Section 432(g)(1) of the Internal Revenue Code of 1986, as added by section 109, is further amended by inserting '', or benefit reductions or suspensions while in critical and declining status under subsection (e)(9)), unless the withdrawal occurs more than ten years after the effective date of a benefit suspension by a plan in critical and declining status,'' after ''benefit reductions under subsection (e)(8) or (f)''.

(7) GUIDANCE.—Not later than 180 days after the date of the enactment of this Act, the Secretary of the Treasury, in consultation with the Pension Benefit Guaranty Corporation and the Secretary of Labor, shall publish appropriate guidance to implement section 432(e)(9) of the Internal Revenue Code of 1986.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect on the date of the enactment of this Act.

DIVISION P—OTHER RETIREMENT-RELATED MODIFICATIONS

SECTION 1. SUBSTANTIAL CESSATION OF OPERATIONS.

(a) IN GENERAL.—Subsection (e) of section 4062 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1362) is amended to read as follows:

''(e) TREATMENT OF SUBSTANTIAL CESSATION OF OPERATIONS.—

''(1) GENERAL RULE.—Except as provided in paragraphs (3) and (4), if there is a substantial cessation of operations at a facility in any location, the employer shall be treated with respect to any single employer plan established and maintained by the employer covering participants at such facility as if the employer were a substantial employer under a plan under which more than one employer makes contributions and the provisions of sections 4063, 4064, and 4065 shall apply.

''(2) SUBSTANTIAL CESSATION OF OPERATIONS.—For purposes of this subsection:

''(A) IN GENERAL.—The term 'substantial cessation of operations' means a permanent cessation of operations at a facility which results in a workforce reduction of a number of eligible employees at the facility equivalent to more than 15 percent of the number of all eligible employees of the employer, determined immediately before the earlier of—

''(i) the date of the employer's decision to implement such cessation, or

''(ii) in the case of a workforce reduction which includes 1 or more eligible employees described in paragraph (6)(B), the earliest date on which any such eligible employee was separated from employment.

''(B) WORKFORCE REDUCTION.—Subject to subparagraphs (C) and (D), the term 'workforce reduction' means the number of eligible employees at a facility who are separated from employment by reason of the permanent cessation of operations of the employer at the facility.

''(C) RELOCATION OF WORKFORCE.—An eligible employee separated from employment at a facility shall not be taken into account in computing a workforce reduction if, within a reasonable period of time, the employee is replaced by the employer, at the same or another facility located in the United States, by an employee who is a citizen or resident of the United States.

''(D) DISPOSITIONS.—If, whether by reason of a sale or other disposition of the assets or stock of a contributing sponsor (or any member of the same controlled group as such a

sponsor) of the plan relating to operations at a facility or otherwise, an employer (the 'transferee employer') other than the employer which experiences the substantial cessation of operations (the 'transferor employer') conducts any portion of such operations, then—

''(i) an eligible employee separated from employment with the transferor employer at the facility shall not be taken into account in computing a workforce reduction if—

''(I) within a reasonable period of time, the employee is replaced by the transferee employer by an employee who is a citizen or resident of the United States; and

''(II) in the case of an eligible employee who is a participant in a single employer plan maintained by the transferor employer, the transferee employer, within a reasonable period of time, maintains a single employer plan which includes the assets and liabilities attributable to the accrued benefit of the eligible employee at the time of separation from employment with the transferor employer; and

''(ii) an eligible employee who continues to be employed at the facility by the transferee employer shall not be taken into account in computing a workforce reduction if—

''(I) the eligible employee is not a participant in a single employer plan maintained by the transferor employer, or

''(II) in any other case, the transferee employer, within a reasonable period of time, maintains a single employer plan which includes the assets and liabilities attributable to the accrued benefit of the eligible employee at the time of separation from employment with the transferor employer.

''(3) EXEMPTION FOR PLANS WITH LIMITED UNDERFUNDING.—Paragraph (1) shall not apply with respect to a single employer plan if, for the plan year preceding the plan year in which the cessation occurred—

''(A) there were fewer than 100 participants with accrued benefits under the plan as of the valuation date of the plan for the plan year (as determined under section 303(g)(2)); or

''(B) the ratio of the market value of the assets of the plan to the funding target of the plan for the plan year was 90 percent or greater.

''(4) ELECTION TO MAKE ADDITIONAL CONTRIBUTIONS TO SATISFY LIABILITY.—

''(A) IN GENERAL.—An employer may elect to satisfy the employer's liability with respect to a plan by reason of paragraph (1) by making additional contributions to the plan in the amount determined under subparagraph (B) for each plan year in the 7-plan-year period beginning with the plan year in which the cessation occurred. Any such additional contribution for a plan year shall be in addition to any minimum required contribution under section 303 for such plan year and shall be paid not later than the earlier of—

''(i) the due date for the minimum required contribution for such year under section 303(j); or

''(ii) in the case of the first such contribution, the date that is 1 year after the date on which the employer notifies the Corporation of the substantial cessation of operations or the date the Corporation determines a substantial cessation of operations has occurred, and in the case of subsequent contributions, the same date in each succeeding year.

''(B) AMOUNT DETERMINED.—

''(i) IN GENERAL.—Except as provided in clause (iii), the amount determined under this subparagraph with respect to each plan year in the 7-plan-year period is the product of—

''(I) 1/7 of the unfunded vested benefits determined under section 4006(a)(3)(E) as of the valuation date of the plan (as determined under section 303(g)(2)) for the plan year preceding the plan year in which the cessation occurred; and

''(II) the reduction fraction.

''(ii) REDUCTION FRACTION.—For purposes of clause (i), the reduction fraction of a single employer plan is equal to—

''(I) the number of participants with accrued benefits in the plan who were included in computing the workforce reduction under paragraph (2)(B) as a result of the cessation of operations at the facility; divided by

''(II) the number of eligible employees of the employer who are participants with accrued benefits in the plan, determined as of the same date the determination under paragraph (2)(A) is made.

''(iii) LIMITATION.—The additional contribution under this subparagraph for any plan year shall not exceed the excess, if any, of—

''(I) 25 percent of the difference between the market value of the assets of the plan and the funding target of the plan for the preceding plan year; over

''(II) the minimum required contribution under section 303 for the plan year.

''(C) PERMITTED CESSATION OF ANNUAL INSTALLMENTS WHEN PLAN BECOMES SUFFICIENTLY FUNDED.—An employer's obligation to make additional contributions under this paragraph shall not apply to—

''(i) the first plan year (beginning on or after the first day of the plan year in which the cessation occurs) for which the ratio of the market value of the assets of the plan to the funding target of the plan for the plan year is 90 percent or greater, or

''(ii) any plan year following such first plan year.

''(D) COORDINATION WITH FUNDING WAIVERS.—

''(i) IN GENERAL.—If the Secretary of the Treasury issues a funding waiver under section 302(c) with respect to the plan for a plan year in the 7-plan-year period under subparagraph (A), the additional contribution with respect to such plan year shall be permanently waived.

''(ii) NOTICE.—An employer maintaining a plan with respect to which such a funding waiver has been issued or a request for such a funding waiver is pending shall provide notice to the Secretary of the Treasury, in such form and at such time as the Secretary of the Treasury shall provide, of a cessation of operations to which paragraph (1) applies.

''(E) ENFORCEMENT.—

''(i) NOTICE.—An employer making the election under this paragraph shall provide notice to the Corporation, in accordance with rules prescribed by the Corporation, of—

''(I) such election, not later than 30 days after the earlier of the date the employer notifies the Corporation of the substantial cessation of operations or the date the Corporation determines a substantial cessation of operations has occurred;

''(II) the payment of each additional contribution, not later than 10 days after such payment;

''(III) any failure to pay the additional contribution in the full amount for any year in the 7-plan-year period, not later than 10 days after the due date for such payment;

''(IV) the waiver under subparagraph (D)(i) of the obligation to make an additional contribution for any year, not later than 30 days after the funding waiver described in such subparagraph is granted; and

''(V) the cessation of any obligation to make additional contributions under subparagraph (C), not later than 10 days after the due date for payment of the additional contribution for the first plan year to which such cessation applies.

''(ii) ACCELERATION OF LIABILITY TO THE PLAN FOR FAILURE TO PAY.—If an employer fails to pay the additional contribution in the full amount for any year in the 7-plan-year period by the due date for such payment, the employer shall, as of such date, be liable to the plan in an amount equal to the balance which remains unpaid as of such date of the aggregate amount of additional contributions required to be paid by the employer during such 7-year-plan period. The Corporation may waive or settle the liability described in the preceding sentence, at the discretion of the Corporation.

''(iii) CIVIL ACTION.—The Corporation may bring a civil action in the district courts of the United States in accordance with section 4003(e) to compel an employer making such election to pay the additional contributions required under this paragraph.

''(5) DEFINITIONS.—For purposes of this subsection:

''(A) ELIGIBLE EMPLOYEE.—The term 'eligible employee' means an employee who is eligible to participate in an employee pension benefit plan (as defined in section 3(2)) established and maintained by the employer.

''(B) FUNDING TARGET.—The term 'funding target' means, with respect to any plan year, the funding target as determined under section 4006(a)(3)(E)(iii)(I) for purposes of determining the premium paid to the Corporation under section 4007 for the plan year.

''(C) MARKET VALUE.—The market value of the assets of a plan shall be determined in the same manner as for purposes of section 4006(a)(3)(E).

''(6) SPECIAL RULES.—

''(A) CHANGE IN OPERATION OF CERTAIN FACILITIES AND PROPERTY.—For purposes of paragraphs (1) and (2), an employer shall not be treated as ceasing operations at a qualified lodging facility (as defined in section 856(d)(9)(D) of the Internal Revenue Code of 1986) if such operations are continued by an eligible independent contractor (as defined in section 856(d)(9)(A) of such Code) pursuant to an agreement with the employer.

''(B) AGGREGATION OF PRIOR SEPARATIONS.—The workforce reduction under paragraph (2) with respect to any cessation of operations shall be determined by taking into account any separation from employment of any eligible employee at the facility (other than a separation which is not taken into account as workforce reduction by reason of subparagraph (C) or (D) of paragraph (2)) which—

''(i) is related to the permanent cessation of operations of the employer at the facility, and

''(ii) occurs during the 3-year period preceding such cessation.

''(C) NO ADDITION TO PREFUNDING BALANCE.—For purposes of section 303(f)(6)(B) and section 430(f)(6)(B) of the Internal Revenue Code of 1986, any additional contribution made under paragraph (4) shall be treated in the same manner as a contribution an employer is required to make in order to avoid a benefit reduction under paragraph (1), (2), or (4) of section 206(g) or subsection (b), (c), or (e) of section 436 of the Internal Revenue Code of 1986 for the plan year.''.

(b) EFFECTIVE DATE.—

(1) IN GENERAL.—The amendment made by this section shall apply to a cessation of operations or other event at a facility occurring on or after the date of enactment of this Act.

(2) TRANSITION RULE.—An employer that had a cessation of operations before the date of enactment of this Act (as determined under subsection 4062(e) of the Employee Retirement Income Security Act of 1974 as in effect before the amendment made by this section), but did not enter into an arrangement with the Pension Benefit Guaranty Corporation to satisfy the requirements of

such subsection (as so in effect) before such date of enactment, shall be permitted to make the election under section 4062(e)(4) of such Act (as in effect after the amendment made by this section) as if such cessation had occurred on such date of enactment. Such election shall be made not later than 30 days after such Corporation issues, on or after such date of the enactment, a final administrative determination that a substantial cessation of operations has occurred.

(c) DIRECTION TO THE CORPORATION.—The Pension Benefit Guaranty Corporation shall not take any enforcement, administrative, or other action pursuant to section 4062(e) of the Employee Retirement Income Security Act of 1974, or in connection with an agreement settling liability arising under such section, that is inconsistent with the amendment made by this section, without regard to whether the action relates to a cessation or other event that occurs before, on, or after the date of the enactment of this Act, unless such action is in connection with a settlement agreement that is in place before June 1, 2014. The Pension Benefit Guaranty Corporation shall not initiate a new enforcement action with respect to section 4062(e) of such Act that is inconsistent with its enforcement policy in effect on June 1, 2014.

SEC. 2. CLARIFICATION OF THE NORMAL RETIREMENT AGE.

(a) AMENDMENTS TO THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 204 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1054) is amended by redesignating subsection (k) as subsection (l) and by inserting after subsection (j) the following new subsection:

''(k) SPECIAL RULE FOR DETERMINING NORMAL RETIREMENT AGE FOR CERTAIN EXISTING DEFINED BENEFIT PLANS.—

''(1) IN GENERAL.—Notwithstanding section 3(24), an applicable plan shall not be treated as failing to meet any requirement of this title, or as failing to have a uniform normal retirement age for purposes of this title, solely because the plan provides for a normal retirement age described in paragraph (2).

''(2) APPLICABLE PLAN.—For purposes of this subsection—

''(A) IN GENERAL.—The term 'applicable plan' means a defined benefit plan the terms of which, on or before December 8, 2014, provided for a normal retirement age which is the earlier of—

''(i) an age otherwise permitted under section 3(24), or

''(ii) the age at which a participant completes the number of years (not less than 30 years) of benefit accrual service specified by the plan.

A plan shall not fail to be treated as an applicable plan solely because the normal retirement age described in the preceding sentence only applied to certain participants or only applied to employees of certain employers in the case of a plan maintained by more than 1 employer.

''(B) EXPANDED APPLICATION.—Subject to subparagraph (C), if, after December 8, 2014, an applicable plan is amended to expand the application of the normal retirement age described in subparagraph (A) to additional participants or to employees of additional employers maintaining the plan, such plan shall also be treated as an applicable plan with respect to such participants or employees.

''(C) LIMITATION ON EXPANDED APPLICATION.—A defined benefit plan shall be an applicable plan only with respect to an individual who—

''(i) is a participant in the plan on or before January 1, 2017, or

''(ii) is an employee at any time on or before January 1, 2017, of any employer maintaining the plan, and who becomes a participant in such plan after such date.''.

(b) AMENDMENT TO THE INTERNAL REVENUE CODE OF 1986.—Section 411 of the Internal Revenue Code of 1986 is amended by adding at the end the following new subsection:

''(f) SPECIAL RULE FOR DETERMINING NORMAL RETIREMENT AGE FOR CERTAIN EXISTING DEFINED BENEFIT PLANS.—

''(1) IN GENERAL.—Notwithstanding subsection (a)(8), an applicable plan shall not be treated as failing to meet any requirement of this subchapter, or as failing to have a uniform normal retirement age for purposes of this subchapter, solely because the plan provides for a normal retirement age described in paragraph (2).

''(2) APPLICABLE PLAN.—For purposes of this subsection—

''(A) IN GENERAL.—The term 'applicable plan' means a defined benefit plan the terms of which, on or before December 8, 2014, provided for a normal retirement age which is the earlier of—

''(i) an age otherwise permitted under subsection (a)(8), or

''(ii) the age at which a participant completes the number of years (not less than 30 years) of benefit accrual service specified by the plan.

A plan shall not fail to be treated as an applicable plan solely because the normal retirement age described in the preceding sentence only applied to certain participants or only applied to employees of certain employers in the case of a plan maintained by more than 1 employer.

''(B) EXPANDED APPLICATION.—Subject to subparagraph (C), if, after December 8, 2014, an applicable plan is amended to expand the application of the normal retirement age described in subparagraph (A) to additional participants or to employees of additional employers maintaining the plan, such plan shall also be treated as an applicable plan with respect to such participants or employees.

''(C) LIMITATION ON EXPANDED APPLICATION.—A defined benefit plan shall be an applicable plan only with respect to an individual who—

''(i) is a participant in the plan on or before January 1, 2017, or

''(ii) is an employee at any time on or before January 1, 2017, of any employer maintaining the plan, and who becomes a participant in such plan after such date.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to all periods before, on, and after the date of enactment of this Act.

SEC. 3. APPLICATION OF COOPERATIVE AND SMALL EMPLOYER CHARITY PENSION PLAN RULES TO CERTAIN CHARITABLE EMPLOYERS WHOSE PRIMARY EXEMPT PURPOSE IS PROVIDING SERVICES WITH RESPECT TO CHILDREN.

(a) EMPLOYEE RETIREMENT INCOME AND SECURITY ACT OF 1974.—

(1) IN GENERAL.—Section 210(f)(1) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1060(f)(1)) is amended by striking ''or'' at the end of subparagraph (A), by striking the period at the end of subparagraph (B) and inserting ''; or'', and by inserting after subparagraph (B) the following new subparagraph:

''(C) that, as of June 25, 2010, was maintained by an employer—

''(i) described in section 501(c)(3) of such Code,

''(ii) chartered under part B of subtitle II of title 36, United States Code,

''(iii) with employees in at least 40 States, and

''(iv) whose primary exempt purpose is to provide services with respect to children.''.

(2) AGGREGATION RULES.—Section 210(f)(2) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1060(f)(2)) is amended by striking ''paragraph (1)(B)'' and inserting ''subparagraph (B) and (C) of paragraph (1)''.

(b) INTERNAL REVENUE CODE OF 1986.—

(1) IN GENERAL.—Section 414(y)(1) of the Internal Revenue Code of 1986 is amended by striking ''or'' at the end of subparagraph (A), by striking the period at the end of subparagraph (B) and inserting ''; or'', and by inserting after subparagraph (B) the following new subparagraph:

''(C) that, as of June 25, 2010, was maintained by an employer—

''(i) described in section 501(c)(3) of such Code,

''(ii) chartered under part B of subtitle II of title 36, United States Code,

''(iii) with employees in at least 40 States, and

''(iv) whose primary exempt purpose is to provide services with respect to children.''.

(2) AGGREGATION RULES.—Section 414(y)(2) of the Internal Revenue Code of 1986 is amended by striking ''paragraph (1)(B)'' and inserting ''subparagraph (B) and (C) of paragraph (1)''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the amendments made by the Cooperative and Small Employer Charity Pension Flexibility Act (29 U.S.C. 401 note).

DIVISION Q—BUDGETARY EFFECTS

SEC. 1. BUDGETARY EFFECTS.

(a) STATUTORY PAY-AS-YOU-GO SCORECARDS.—The budgetary effects of divisions O and P shall not be entered on either PAYGO scorecard maintained pursuant to section 4(d) of the Statutory Pay-As-You-Go Act of 2010.

(b) SENATE PAY-AS-YOU-GO SCORECARDS.—The budgetary effects of divisions O and P shall not be entered on any PAYGO scorecard maintained for purposes of section 201 of S. Con. Res. 21 (110th Congress).

(c) CLASSIFICATION OF BUDGETARY EFFECTS.—Notwithstanding Rule 3 of the Budget Scorekeeping Guidelines set forth in the joint explanatory statement of the committee of conference accompanying Conference Report 105-217 and section 250(c)(8) of the Balanced Budget and Emergency Deficit Control Act of 1985, the budgetary effects of divisions O and P shall not be estimated—

(1) for purposes of section 251 of the such Act; and

(2) for purposes of paragraph 4(C) of section 3 of the Statutory Pay-as-You-Go Act of 2010 as being included in an appropriation Act.

The SPEAKER pro tempore. Pursuant to House Resolution 776, the motion shall be debatable for 80 minutes, with 60 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations and 20 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Education and the Workforce.

The gentleman from Kentucky (Mr. ROGERS) and the gentlewoman from New York (Mrs. LOWEY) each will control 30 minutes. The gentleman from Minnesota (Mr. KLINE) and the gentleman from California (Mr. GEORGE MILLER) each will control 10 minutes.

The Chair recognizes the gentleman from Kentucky.

GENERAL LEAVE

Mr. ROGERS of Kentucky. Mr. Speaker, I ask unanimous consent that

all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.R. 83 and that I may include tabular material on the same.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Kentucky?

There was no objection.

Mr. ROGERS of Kentucky. Mr. Speaker, I yield myself such time as I may consume.

I rise today, as we face the expiration of the current continuing resolution, to present the House amendment to the Senate amendment on H.R. 83, legislation to fund the Federal Government for the rest of the current fiscal year.

This amendment prevents a costly and damaging government shutdown while making good government funding and policy decisions and reining in regulatory overreach. It is good for the continuity of vital Federal programs and services; it is good for our economy; and it is good for the American people. In total, this legislation provides $1.013 trillion for the operations of the Federal Government. This total is in line with the terms of the Ryan-Murray budget agreement.

It includes full-year appropriations legislation for 11 of the 12 annual appropriations bills, reflecting the most up-to-date budgetary needs of each agency and department. The Appropriations Committees in both the House and Senate went line by line through all of these bills, prioritizing funding for effective and vital programs, making the tough decisions to cut funding for lower priority programs.

In addition, the measure includes short-term funding for the Department of Homeland Security, holding the funding levels for those programs at current levels. This will ensure that efforts to secure our home front are maintained until February 27 of next year.

This legislation is a compromise—the product of hard-fought negotiations between the House and Senate, with give-and-take from both sides; but at the end of the day, Mr. Speaker, it reflects conservative priorities, keeps our spending in line, and reins in the regulatory overreach that has been hampering our economy.

As such, national security is a top priority in this bill. We provide a total of $554 billion for the Department of Defense, including $64 billion in overseas contingency operations funding to support our troops in the field, to combat ISIL, to train and equip our Iraqi allies, and to counter Russian aggression.

To further assist our economy, we include provisions that put the brakes on regulatory programs that are too intrusive and too burdensome on American businesses. For instance, the legislation prohibits funds for the Army Corps of Engineers to act on two potentially harmful regulations: changing the definition of ''fill material'' and regulating water in certain agricultural areas under the Clean Water Act.

The bill measure prevents the listing of the Sage Grouse on the endangered species list—a premature action that would have severe economic consequences on Western States, especially; and the bill protects job creators from onerous regulatory burdens by amending Dodd-Frank swaps push-out rules.

This bill also demonstrates, Mr. Speaker, fiscal restraint. It cuts $60 million from the EPA. It provides no funding for high-speed rail, the President's Race to the Top initiative, or UNESCO or IMF. No new funding is included for ObamaCare, and the bill holds the line on funding for the agency most responsible for implementing that law at Health and Human Services.

For the IRS, the bill cuts the agency $345 million below last year, and it includes language to put a stop to improper behavior by prohibiting the targeting of groups based on their political beliefs, prohibiting the White House from ordering the IRS to determine the tax-exempt status of an organization, and from funding inappropriate videos or conferences.

This legislation is the product of the bipartisan and bicameral cooperation that the American people called for at the voting booths last month. Passage of this bill will show our people that we can and will govern responsibly, rise above inaction, and work together on their behalf.

I would have preferred, as I am sure all of us would have, that we would be considering each of the 12 appropriations bills under regular order—the old-fashioned way. This is the way it should operate. In the House, as you know, our committee passed out 11 of the 12 bills. The floor passed seven of the bills, and it would have passed more, but we realized the Senate was not going to act on any of them and did not; so five of the bills were left in the lurch because the Senate would not consider any of the bills.

We face a very tight deadline now, and we have no choice but to try to put together an omnibus spending bill aggregating all 12 bills into one. I would have preferred separately, but the Senate blocked the way. If we do nothing, we will be turning our backs on our constitutional duty and on the American people.

Mr. Speaker, before I close, I want to take a moment to recognize some people who made today possible.

First of all, the staff. We have had about a month to put together this enormous bill—with thousands of items—in all 12 subcommittees. We had great negotiations then with the Senate, but it was the work of the staff, of course, that enables us to be here today. I want to thank the staff on both sides of the aisle, who worked so hard to make this happen. I would like to call names, but I am afraid I would leave out somebody important, so I want to thank the staff for all of their wonderful, laborious work.

I will single out Will Smith, the chief clerk of the committee, who has guided the staff through this enormous process, who, I think, did a wonderful, marvelous job. I want to thank Will Smith, especially, and all of the staff for their great work in leading up to today.

Now I want to thank the members of the committee. They have all had a part in making this bill up—each subcommittee, each chairman of the subcommittee, each of the members of the subcommittees, who fought long and hard to ensure that we had the best bill before us today that we could have.

Notably, the ranking member of the committee, Mrs. NITA LOWEY, with whom we share this responsibility, has been a tremendous asset to us in the procedure leading up to today. I want to thank her personally for the great work that she did.

I also want to acknowledge, Mr. Speaker, six members of the committee who are moving on to greener pastures, making new chapters in their lives. They have been enormous helpers on the committee. They have chaired subcommittees, and they have worked long and hard on every bill that we have produced. We certainly hate to see them go, but they are writing a new chapter. I want to recognize JACK KINGSTON for his service, FRANK WOLF, TOM LATHAM, JIM MORAN, ED PASTOR, and BILL OWENS. All of those six are moving on. I want to thank them for their service.

It is appropriate that their final vote on the House floor will be on an appropriate Appropriations Committee bill—funding the entire government. This Nation is a better place because of their service, and I want to thank all of them for their contributions to the committee and to the House and to the people of this country over their combined 120 years of service.

I now call on the Members of the House—Republicans and Democrats alike—to support this legislation. Keep the government open. It is a good bill. It is bipartisan; it is bicameral; it was negotiated in good faith on both sides of the Capitol and on both sides of the aisle. Most importantly, Mr. Speaker, this bill is necessary, so I urge the Members to vote ''yes.''

I reserve the balance of my time.

□ 1245

Mrs. LOWEY. Mr. Speaker, I yield myself such time as I may consume.

At the outset, I want to thank the gentleman from Kentucky, Chairman ROGERS, for the cooperative way he has guided this committee. It has truly been a pleasure for me to work with him and his staff.

As we all know, Mr. Speaker, funding to keep the government operating expires at midnight tonight. It is my sincere hope that we can avoid the antics of last year, when a vocal minority in this body was able to hold the entire government hostage for reasons they

couldn't articulate. It wasn't fair to the American people, and I hope we never have to go through it again.

Throughout this process, my goal has been to avoid another costly shutdown and make adequate investments to grow the economy, enhance our security, and protect the most vulnerable among us.

I remain disappointed, Mr. Speaker, that the House majority decided to leave out the agreement reached on the Department of Homeland Security. The decision reflects their political calculation on immigration policy.

I believe my chairman was right when he rebuffed efforts to restrict the President's executive orders on immigration on a must-pass appropriations bill. But forcing these important agencies—Customs and Border Protection, the U.S. Secret Service, the Federal Emergency Management Agency, the Transportation Security Administration—into a 2-month continuing resolution was unnecessary and unfortunate. The short-term CR creates uncertainty and will limit the Department's ability to make important decisions on procurements, hiring, and on new initiatives we all support.

I will now enter into the RECORD a letter from Homeland Security Secretary Johnson outlining the problems with funding the Department through a CR.

U.S. DEPARTMENT
OF HOMELAND SECURITY,
Washington, DC, December 5, 2014.

Hon. NITA LOWEY,
Ranking Member, Committee on Appropriations, House of Representatives, Washington, DC.

DEAR REPRESENTATIVE LOWEY: As the United States Congress addresses the FY 2015 appropriations for the Federal Government, I ask for your support for a full annual appropriation for the Department.

As you know, a Continuing Resolution is not the most effective way to fund the government. Short-term funding measures are disruptive, create uncertainty, and impede efficient resource planning and execution. They inherently slow down day-to-day operations, force leadership to make short-sighted versus long-term decisions, and adversely impact operations in a manner that is hard to overcome if full funding is provided later in the year. Additionally, the disruption to acquisitions, the slow-down of our business processes, such as contracting and hiring, and the effect of many other elements driven by short-term funding have a direct impact on effectiveness of the Department.

While a short-term Continuing Resolution has impacts across the Department, I wanted to highlight some specific areas that are most concerning.

Securing our Borders—Investments to strengthen border security with new border surveillance technology for the Rio Grande Valley would not be available.

Grants Funding—State and local municipalities would not receive key preparedness grant funding, such as the State Homeland Security Program and Urban Areas Security Initiative grants.

National Security Cutter—the U.S. Coast Guard will not have funding to award the contract for NSC #8, the centerpiece of the Coast Guard's Fleet, supporting the maritime homeland security and defense missions. This could result in the expiration of the agreed upon offer by the prime and subcontractors, subsequently leading to a delay of delivery of NSC #8 and most likely resulting in increased costs.

National Rio and Agro Defense Facility—Awarding the final segment of the construction contract for the National Bio and Agro Defense Facility could be problematic. Uncertainties in the appropriations process have introduced risks to Kansas providing the gift funds to support the May 2015 award date. Appropriation of the final $300 million is necessary for Kansas to provide the $202 million in gift funds.

In closing, I would like to thank the Congress for the continued support provided to the Department. However, I must also stress the need for an annual appropriation based on the FY 2015 President's Budget and the Committee markups accomplished earlier this summer.

Identical letters have been sent to the Chairman of the House Appropriations Committee, and to the Chairwoman and Ranking Member of the Senate Appropriations Committee. Should you require further information, please do not hesitate to contact me or the Department's Chief Financial Officer, Chip Fulghum.

Sincerely,

JEH CHARLES JOHNSON.

Mrs. LOWEY. My colleague from North Carolina, DAVID PRICE, the ranking member of the Homeland Security Appropriations Subcommittee, was unsuccessful in his attempt at the Rules Committee to restore full-year funding for this bill. I authored an amendment to strike two very controversial provisions—one to strike a rider related to swaps under the Dodd-Frank law, the other to strike a provision raising contribution limits to political parties. These provisions are divisive and unnecessary. They should be removed.

The 11 other spending bills included in this package are a mix of wins and losses. I was very pleased that most of the worst riders were dropped, including those on the Affordable Care Act, the Clean Air Act, and those preventing full implementation of new reforms to the Federal school lunch program.

Statutory budget caps essentially kept all discretionary programs at a hard freeze, but I am pleased we were able to prioritize a few key items, such as the National Institutes of Health and food safety at the Food and Drug Administration. Another very modest but very important increase is provided for afterschool programs, many of which suffered steep cuts under sequestration and have still not made up those shortfalls.

I am also pleased the final agreement provides $500 million for the Department of Transportation's TIGER program to fund major surface transportation projects, including bridges, transit, and passenger rail.

To keep firearms out of the hands of those who shouldn't possess them, the National Instant Criminal Background Check System will receive an increase of $14.5 million. This important investment was achieved because Members on both sides of the aisle recognize how crucial this money is for States to improve their submission of records into the background check system.

The appropriations package includes much of the administration's request to respond to the deadly Ebola crisis, $5.4 billion. We must ensure that all of those tasked with being on the front lines fighting this disease, from local hospitals to Federal agencies, have what they need. We all recognize how the ease of international travel has changed the way we must respond to contagious diseases. I have confidence in our health care system, the Centers for Disease Control, and the fantastic hospitals that stepped up to take and treat the patients with Ebola. But we should do whatever we can to stop the disease where it is the most deadly. The funding provided will allow research to ramp up to treat and hopefully develop a vaccine for Ebola.

Before I close, I would like to thank the committee staff for their tireless work, particularly David Pomerantz and Lesley Turner, who worked closely with Will and the entire Appropriations staff.

I am very pleased the Appropriations Committee was able to come together on a package to fund 11 of the 12 spending bills. But, again, I wish it had been on all 12 bills and only dealt with issues related to appropriations.

I will reiterate that the funding contains many things I wish had had a different outcome. I fought throughout the conference, for example, to get rid of the swaps language. It does not belong on an appropriations bill. The Reid-Boehner provision to increase by tenfold the limits on contributions to political parties is excessive and also does not belong on this bill.

Mr. Speaker, I reserve the balance of my time.

Mr. ROGERS of Kentucky. Mr. Speaker, I yield 3 minutes to the gentleman from New Jersey (Mr. FRELINGHUYSEN), the very distinguished and hardworking chairman of the Appropriations Defense Subcommittee.

Mr. FRELINGHUYSEN. Mr. Speaker, I thank the chairman for yielding. I thank him for his leadership, and I thank Ranking Member LOWEY as well. They both deserve credit for moving this bill.

As we begin consideration of this important legislation this afternoon, I want to pay tribute to the men and women of our Armed Forces, all volunteers. They deserve our heartfelt thanks for their dedicated service and sacrifice. That is also extended to the professionals in our intelligence community. These men and women—whether in uniform or not—deserve greater certainty, stability, and predictability in their lives, something that they have often lacked as a result of a flawed congressional budget process over the last several years, which we seek to reestablish today as regular order. And, frankly, so do the American people. They deserve better.

The centerpiece of this comprehensive package, the engine that drives this bill is our House defense bill, which passed in June with overwhelmingly bipartisan support. Like that

bill, this measure assures a strong national defense posture against terrorist groups like ISIL and al Qaeda, and challenges from nation-states like Russia, China, and Iran, and it addresses the Ebola epidemic.

This bill provides $554 billion in new spending authority for the Department of Defense and our intelligence community, and it includes $64 billion for overseas contingency operations. The base funding in this measure is $500 million below the President's fiscal year 2015 budget and is just $3.3 billion above the fiscal year 2014-enacted level.

Overall, the defense title of the omnibus appropriations package assures our commitment to the U.S. military's dominance over air, land, and sea; our commitment to our allies and partners; our commitment to our servicemembers and their families. At the same time, our committee clearly recognizes our Nation's debt crisis, and we have found areas and programs where reductions were possible without adversely impacting our Armed Forces or our defense industrial base, which is so vital to maintaining our military edge.

We make every dollar count in our portion of this bill without harming readiness or increasing risk for our warfighters.

National security is the priority job of the Federal Government. Our Constitution grants Congress the full range of authorities for defense of our Nation.

With our Armed Forces facing formidable enemies around the world and standing watch everywhere to protect our freedom, this bill cannot wait, and I urge its passage today.

In closing, I would like to thank the gentleman from Indiana, Ranking Member PETE VISCLOSKY. He has been a valuable partner and friend. And thanks to the incredible Defense Appropriations Subcommittee, members of the committee, and our professional staff, led by Tim Prince. They have done an incredible job. We should be enormously proud of them.

Mrs. LOWEY. Mr. Speaker, I am very pleased to yield 4 minutes to the distinguished gentleman from North Carolina (Mr. PRICE), the ranking member of the Homeland Security Appropriations Subcommittee.

Mr. PRICE of North Carolina. Mr. Speaker, I rise today in opposition to this misguided legislation.

First, however, I want to commend the bipartisan, bicameral leadership of our Appropriations Committee and its subcommittees for their efforts this year to restore the normal appropriations process, with careful scrutiny of executive budget requests and the cooperative crafting of bills that fund our agencies and chart their course for the coming year.

Their work is reflected in the 11 bills—out of 12—before us today: a significant achievement, despite the overall inadequacy of the underlying budget numbers. The budget allocations, unfortunately, still reflect the ill-advised Republican strategy of focusing deficit reduction almost exclusively on nondefense discretionary spending, on our critical domestic investments.

As ranking member of the Homeland Security Subcommittee, I particularly want to thank the gentleman from Texas, Chairman JOHN CARTER, for the collaborative process he has led throughout this year.

Our full-year Homeland Security appropriations bill has been finished for over a week now, making its exclusion from this omnibus all the more troubling.

So, Mr. Speaker, stitching together 11 of our appropriations bills is, indeed, a positive achievement, but it is greatly diminished by the subjection of Homeland Security funding to a short-term continuing resolution and by the inclusion of controversial legislative riders, of which two are particularly egregious.

The first amendment would blow a major hole in the Dodd-Frank bill, putting taxpayers on the hook for some of the riskiest behavior of Wall Street institutions.

The second amendment would blow another hole in our efforts to prevent big money from swamping our political system. The bill's campaign finance provisions are completely nongermane to appropriations and would provide outsized influence to the wealthiest Americans by allowing a couple to donate $1.5 million annually to party organizations. To my knowledge, these provisions have never had a single hearing in either the House or the Senate, and they have no place in an appropriations bill.

On top of these troubling provisions is the shortsighted, abusive treatment of Homeland Security. The bill before us would force the Department of Homeland Security to operate under a short-term continuing resolution until late February, creating a cloud of uncertainty, putting critical programs and acquisitions at risk, and raising the threat of a full agency shutdown early next year.

A short-term continuing resolution limits the Department's ability to make strategic decisions about carrying out its security missions and improving coordination among its components. It also limits the ability to move ahead with the Secretary's Southern Border and Approaches Campaign. It creates uncertainty regarding ICE's capability to detain and deport dangerous criminals and to transfer unaccompanied children to HHS for humane treatment. It could also delay needed procurements and necessary security upgrades at the White House complex to prevent fence-jumper intrusions.

Most confoundingly, the bill provides immigration enforcement agencies with hundreds of millions of dollars less than their known needs and what our bipartisan bill would have provided.

If the Republican majority is concerned about the effectiveness of our immigration policy, this is really a strange way to show it. To hold enforcement funding hostage is no way to bring about positive change. But we know this is all about political pique directed at the President.

□ 1300

This is an unfortunate end, Mr. Speaker, to what has been a cooperative, bipartisan Homeland Security appropriations cycle. It leaves me unable, in good conscience, to recommend a ''yea'' vote. We should reject this bill, put all of our 12 bills together, and proceed with an appropriations bill that can command wide agreement within this body.

Mr. ROGERS of Kentucky. Mr. Speaker, I yield 2 minutes to the gentleman from Iowa, Mr. TOM LATHAM, who is retiring.

He chairs the Transportation-HUD Appropriations Subcommittee and has been a stalwart help over the years on this committee and in the Congress in service to the country, so I guess for the last time he will be giving us a great oration.

Mr. LATHAM. Mr. Speaker, I thank the chairman for the kind words.

I rise today in strong support of this omnibus appropriations bill. I am particularly proud of the Transportation-Housing and Urban Development division which makes critical investments in our Nation's infrastructure, our air traffic control system, and housing for our neediest citizens.

The bill requires some tough choices, but it advances our common priorities of responsible government and fiscal restraint. We worked hard to ensure that this final bill includes funding and policy provisions that are a priority for this body.

We provide funds for the FAA to support the full operations of the air traffic control system and the FAA's investment in NextGen. We meet the MAP–21 extension authorized funding levels for highways and transit. We provide housing funds to assist families served by HUD's housing programs, plus 10,000 new veterans housing vouchers. We provide $3 billion for the Community Development Block Grant program which is a priority for Members of both sides of the aisle.

Mr. Speaker, I have been honored to serve as chairman of the T–HUD committee for the last 4 years and on the committee for the full 18 years. It has been an amazing experience to see each and every year how the work of this committee works for the people of America.

I would like to thank my ranking member, Mr. ED PASTOR, with whom it has been a real honor to serve. I wish him well in his retirement, and I know that this body will miss him as much as I will.

I would also like to thank the staff of the committee who put in countless hours to draft this compromise. I would also like to recognize and thank Doug Bobbitt from my staff for the

past 12 years and who has served this institution for nearly three decades.

Our chairman, HAL ROGERS, has demonstrated that you can stick to your principles and still come to a compromise that puts the American people first.

Mr. Chairman, it has been an honor to serve on this committee and under your leadership. I appreciate very, very much all the kindness and personal things that you and Cynthia have done for Kathy and me. I very much appreciate it.

I urge Members to support this bill.

Mrs. LOWEY. Mr. Speaker, I yield 2 minutes to the gentleman from New York (Mr. SERRANO), the distinguished ranking member of the Financial Services Subcommittee.

(Mr. SERRANO asked and was given permission to revise and extend his remarks.)

Mr. SERRANO. Mr. Speaker, I thank our ranking member for the time.

First, let me mention a few of the good things in the Financial Services bill. We were able to substantially increase funding for the Securities and Exchange Commission by $150 million above last year's level.

We were also able to increase funding for the Community Development Financial Institutions fund and to authorize the CDFI's fund bond guarantee program for another year.

We also increased robust funding for the SBA to help our Nation's small businesses, and we added additional dollars to the Consumer Products Safety Commission and the Commodity Futures Trading Commission. We removed numerous troubling riders that affected the Affordable Care Act, travel to Cuba, and the ability of the SEC to police our markets.

Unfortunately, several problems remain in the bill. The bill would essentially repeal an important provision of Dodd-Frank to prevent banks from engaging in risky swaps activities backed by their depositors and ultimately by the Federal Government.

The protections of Dodd-Frank were put in place to prevent a return to the risky transactions that led to the 2008 meltdown. We should not backtrack on those important reforms.

I am also very concerned about the cuts made to the IRS which will force the agency to operate at levels below that of sequestration. This would cause a serious strain on the agency.

There are several riders attached to the District of Columbia section of the bill, something that happens every year. Republicans have again limited the District's ability to use their own dollars to provide abortion services. This bill also seeks to stop the District from implementing a recent ballot initiative that legalizes recreational use of marijuana.

Thankfully, on this last provision, Republicans have simply missed the mark. The language of the rider only prevents the District from enacting laws, rules, or regulations regarding marijuana legalization, but it does not prevent already enacted efforts like the recent ballot initiative.

The President recently took executive action to end everyday tragedies that occur when families are separated and people are deported; unfortunately, rather than using this as a chance to finally engage in reform, we are now doing something to the DHS by putting them on a CR.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. LOWEY. I yield the gentleman an additional 30 seconds.

Mr. SERRANO. I would like to yield momentarily to the ranking member.

Mrs. LOWEY. Mr. Speaker, I thank the distinguished ranking member, and I want to make it clear that I agree with the gentleman from New York, the ranking member of the Financial Services Subcommittee, and our colleague, the Delegate from D.C., that the language in the bill does not block either decriminalization of marijuana or the referendum on legalization.

Mr. ROGERS of Kentucky. Mr. Speaker, I yield 3 minutes to the gentleman from Idaho (Mr. SIMPSON), the distinguished chairman of the Energy and Water Subcommittee on Appropriations.

Mr. SIMPSON. Mr. Speaker, I thank the chairman.

It should be noted also, Mr. Speaker, that this is the last time we expect to see you presiding before you retire also. You have done a marvelous job, and thank you for your service to this institution. I hope this vote doesn't go on for 3 hours and 45 minutes, but if there is anybody that can handle that, I am certain you have that experience.

I am pleased that after months of work, the committee has been able to bring this package together before the full House. I would like to thank my ranking member, Ms. KAPTUR, for her close collaboration throughout the entire process of putting together the Energy and Water sections of the omnibus.

I would also like to thank the hard work of our Senate counterparts, Senator FEINSTEIN and Senator ALEXANDER, for their hard work in bringing this package together.

Now, I want to be clear: I didn't get everything I wanted in this bill; none of us did. But we have worked hard to ensure that the bill clearly reflects the will of the American people.

The bill makes critical investments and makes important policy changes that we will continue to build on in coming years. For instance, I am pleased with how strongly it invests in our national defense and water infrastructure. Weapons activities receives the largest increase in this bill, $387 million over last year. Within this level is full funding for the critical warheads such as the B–61 and the long-range standoff.

Investment in naval reactor programs increases by $144 million, including the full request for the Ohio class replacement reactor. Funding for the Army Corps of Engineers is modestly increased from last year, including not less than $1.1 billion for the Harbor Maintenance Trust Fund activities. Last year, we directed no less than $1 billion.

We also include some policy changes critical to supporting our country's economic development in a responsible manner. New this year, we included provisions prohibiting the regulation of certain agricultural activities such as the construction and maintenance of farm ponds or irrigation ditches under the Clean Water Act.

This is a major victory for our country's farmers and ranchers who consistently tell many of us that they are concerned about the potential of the EPA and the Army Corps of Engineers' overreach into their operations.

We continue prohibitions from last year against changes to the definition of fill material under the Clean Water Act and the implementation of the new lightbulb efficiency standards. These are commonsense provisions that protect consumers' choice and responsible commercial operations.

I think every one of us in this body including myself can think of other things that they wanted to see in this package and things they would have liked taken out, but overall, this bill moves the country forward in a balanced way and allows the new Congress to proceed with its most important obligation, that of governing this country.

I want to echo the words of my chairman, Mr. ROGERS, how important the staff is in putting these bills together. Most people that don't serve on the committee don't know the time that they put in. They are here on Thanksgiving Day, trying to put together this package so that it will be ready for the floor, and they do incredible work, not only of the subcommittee that I am lucky enough to be the chairman of, but the staff of all the subcommittees, and they do a tremendous job, and we owe them a great deal of gratitude.

Mr. Speaker, this deserves our support.

Mrs. LOWEY. Mr. Speaker, I yield 2 minutes to the distinguished gentlelady from Ohio (Ms. KAPTUR), the ranking member of the Energy and Water Appropriations Subcommittee.

Ms. KAPTUR. Mr. Speaker, I thank the ranking member of the full committee, NITA LOWEY of New York, and the chairman, HAL ROGERS, for the perseverance they have shown throughout this process. I rise to address the bill before us to fund the departments of the government of the United States for the federal fiscal year 2015 which incidentally began over 2 months ago.

Though 2 months late and a Christmas tree bill at that, what is very troubling in this measure are dangerous and unwelcome nongermane riders—like opening the door to more Wall Street abuse and reckless behavior with swaps and derivatives. Haven't

those megabanks hurt America enough? What is this doing in this bill? This underhanded inclusion of authorizing language does not belong in this bill. This subterfuge reminds me of a similar effort in 2000 to bury language in a Continuing Appropriations bill to not regulate derivatives at all. Look what that did to our economy.

I recognize that not passing this bill can severely hamper our economic recovery and job creation. Many of us view these as the top priorities our constituents have sent us here to achieve. Job growth this past month increased again by 321,000, as the unemployment rate dropped to 5.8 percent nationwide.

We have gained 10 million private sector jobs since President Obama took office amid the deepest recession in modern history, but still, 9.1 million Americans remain unemployed. This bill will promote future economic growth which is in America's interests.

There should never be a question whether the government of the United States will remain open for business and honor its commitments and contracts.

Further, this appropriations bill is within budget limits. Indeed, our deficit has been going down year after year as employment increases and revenues with it.

The annual deficit has dropped from $1.3 trillion in 2010 to an estimated $469 billion for 2015, an enormous improvement made possible by steady economic growth. Our pace needs to continue.

The Energy and Water portion of this bill assures America will continue its decathlon toward energy independence and energy diversification, a major strategic objective for our Nation—some would argue the highest.

An all-of-the-above energy strategy is strengthening our Nation here at home financially and militarily as fewer imports are required and new energy jobs are created within the borders of the United States.

The energy trade deficit, by the way, for our Nation has been on a downward path.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mrs. LOWEY. I yield the gentlewoman an additional 15 seconds.

Ms. KAPTUR. Mr. Speaker, I thank the gentlelady.

The energy trade deficit for our Nation has been on a downward path from 4.7 billion barrels in 2008 to 3.6 billion barrels in 2013. That is real progress, and you can even see it in falling gasoline prices across this country.

Our bill will support thousands of jobs through the Army Corps of Engineers in developing infrastructure, and the bill provides $922 million above the request to meet an unmet enormous backlog.

This bill as a whole is far from perfect, yet our Congress must work toward keeping our economy and jobs growing through giving certainty to the public that Congress can operate our ship of state.

Mrs. LOWEY. Mr. Speaker, I yield myself 30 seconds.

Mr. Speaker, I am pleased that this package explicitly rejects attempts to prohibit clarifying the definition of navigable waters of the U.S.

However, the CR/Omnibus does contain language relating to core permitting for certain ranching, farming, and silviculture practices. To be clear, this provision does not change current law and preserves the current scope of agricultural exemptions.

If you needed a permit before, you will need to get a permit under this provision; if you didn't need one before, you won't under this provision. I am pleased again that as with most riders, this provision maintains status quo.

I reserve the balance of my time.

Mr. ROGERS of Kentucky. Mr. Speaker, may I inquire the time remaining?

The SPEAKER pro tempore. The gentleman from Kentucky has 12 minutes remaining, and the gentlewoman from New York has 13½ minutes remaining.

□ 1315

Mr. ROGERS of Kentucky. Mr. Speaker, I yield 2 minutes to the gentleman from Georgia (Mr. KINGston), the distinguished chairman of the Labor-HHS Subcommittee on Appropriations who is retiring, leaving this body. He has done remarkable work on this subcommittee. He chaired a very difficult subcommittee with great distinction.

Mr. KINGSTON. Mr. Chairman, I thank you for all of your leadership and friendship over the years, and your very capable staff as well.

Mr. Speaker, I congratulate you on your retirement as well and wish you the best.

You know, I came to Washington to cut spending and hold the line on spending, and that is why I am supporting this bill today. This spending level is below last year's. When you combine the emergency spending with outlays, this is lower than last year, and it is a lot lower than the year before. So if you want to hold the line on spending, this is a good vote for you.

But the second part is the cavalry is coming, and next year there may be more cuts, and there should be more cuts. This bill holds the line on ObamaCare, which is something that we all have fought for. Virtually all Republicans fought to repeal ObamaCare and to end the President's amnesty program. No one is backing away from those objectives. There may be a debate on the strategy, but this bill makes sure that those debates will happen and that those votes will happen, again, Mr. Speaker, when the cavalry arrives. This bill moves that debate forward. It is a good thing.

It stops risk orders, which keeps the Obama administration from raiding private insurance companies to subsidize ObamaCare. It really hits ObamaCare where it counts. If you do not like ObamaCare, this is a good bill for you to vote for.

This bill puts Dodd-Frank in check. If you are concerned about the overregulation of the financial services industry, this bill challenges Dodd-Frank.

This bill supports our troops. We still have troops in harm's way all over the world. This bill supports them and actually increases their pay along the way.

This bill puts the EPA in check. The EPA has tried a backdoor power grab on putting a ban on lead in ammunition and fishing tackle. That would increase the cost and make it tougher for the average person to enjoy the great outdoors. This bill puts that in check.

This is a good bill, and I urge my colleagues to support it.

Mrs. LOWEY. Mr. Speaker, I yield 2 minutes to the distinguished gentleman from Pennsylvania (Mr. FATTAH), the ranking member of the Commerce-Justice-Science Subcommittee.

Mr. FATTAH. Mr. Speaker, in each and every one of our districts throughout the country, in every one of the families situated, there is a concern around neurological-based diseases and disorders—from Alzheimer's to autism, schizophrenia. We could go through the list of 600. But the point is that this work in our committee, on a completely bipartisan basis, we are moving aggressively on neuroscience initiatives. I thank Chairman ROGERS for his support, and the ranking member from New York, and I want to thank my partner, Chairman FRANK WOLF, for his support on this effort. We launched an initiative to map the brain and do so much more.

I want to just talk about what is in this bill today. We have the framework for a global fund on Alzheimer's. We have the effort now to bring, for the first time, the national labs into an effort to build a national brain observatory, which is going to bring the scientific arsenal of our country to bear on this war on disease and a better understanding of the human brain.

We have, in this bill, language that would have the United States create an international conference to bring together the global initiatives in the European Union and Israel and China and other countries, to come together and work on these issues. And we have a new initiative on imaging.

So I want to just say that there is a lot I could talk about in the CJS portion of the bill, but I want to just say that this effort on the human brain, with some 50 million Americans suffering from brain-related diseases and illnesses, a billion people worldwide, this is something that this Congress can feel is a major achievement, for us to move in a direction and deal with these issues, from addiction to Alzheimer's and everything in between.

Mr. ROGERS of Kentucky. Mr. Speaker, I yield 2 minutes to the gentleman from Florida (Mr. CRENSHAW),

the chairman of the Financial Services Subcommittee on Appropriations.

Mr. CRENSHAW. Mr. Speaker, I thank Chairman ROGERS for yielding me this time, and I thank him for his leadership in this appropriations process.

As chairman of the Financial Services and General Government Subcommittee, let me highlight a few areas in our part of the bill.

Overall, we reduce spending by $246 million in an effort to rein in the out-of-control spending. Some areas are increased, some are decreased. For instance, law enforcement receives an increase. Drug abuse prevention receives an increase. Small business receives an increase, as does women's business centers. They help grow our economy and create jobs.

On the other hand, there are some agencies that don't do so well. They waste taxpayer dollars and become ineffective. I think a lot of people agree that the Internal Revenue Service has betrayed the trust of the American people. They have wasted taxpayer dollars. They have singled out individuals and groups of individuals based on their political philosophy, and they have not cooperated with congressional investigation. Therefore, their funding is reduced by $346 million.

All in all, it is a balanced approach. We spend less money than we spent last year. It is a good portion of the bill.

Let me take a moment to say thank you to RODNEY FRELINGHUYSEN, chairman of the Defense Subcommittee upon which I sit. I want to thank him for his tireless work in this area, for allowing members like me to help draft legislation that clearly puts our men and women in uniform first, clearly helps save lives by making sure that we have the best qualified, the best trained, the best equipped military, and it makes all Americans safer.

All in all, it is a great bill. I urge my colleagues to support it.

Mrs. LOWEY. Mr. Speaker, I am very pleased to yield 2 minutes to the distinguished gentleman from Arizona (Mr. PASTOR), the ranking member of the Transportation-HUD Subcommittee.

(Mr. PASTOR of Arizona asked and was given permission to revise and extend his remarks.)

Mr. PASTOR of Arizona. Mr. Speaker, first of all, congratulations on your retirement and the best of luck. I thank you for your friendship while I served in Congress.

I stand in support of this bill, and I want to congratulate both my dear friends, the ranking member, NITA LOWEY, and the chairman, HAROLD ROGERS, for working many hours on this bill. I am very happy that as we are about to close this session, that we are working on a bill that will keep our government funded and bring some tranquility to the economy of our country for the remainder of fiscal year 2015. I thank them for doing fine work.

Over the past 23 years that I have had the honor of being in Congress, for 21 of those years I served on the Appropriations Committee. It was a great opportunity for me and an honor for me to serve with various members on Appropriations to do the best we could to serve our country. Many of us would not have been able to produce the bills and provide for the services without the staff on both sides of the aisle that worked on these appropriations bills.

So today, I want to congratulate the current chairman, the ranking member, and thank Chairman TOM LATHAM for the work he did on the Transportation-HUD bill. And also, it is time for me to thank all of my colleagues for their help and service that they have given this country and the kindness they have shown to me.

Mr. ROGERS of Kentucky. Mr. Speaker, I yield 2 minutes to the gentleman from California (Mr. CALVERT), the distinguished chairman of the Interior Subcommittee on Appropriations.

Mr. CALVERT. Mr. Speaker, I rise today in strong support of the fiscal year 2015 omnibus appropriations bill. The Interior provision of the omnibus is well balanced and reflects what can be achieved when all sides work together to find common ground. This bill provides for fiscal year 2015 funding for fire operations at the 10-year average and provides additional resources to conduct critical hazardous fuels reduction work on the ground.

The bill takes positive steps in promoting domestic energy and mineral development both onshore and offshore.

The bill provides essential funding for the National Park Service, which will enhance day-to-day maintenance, visitor services, and responsible stewardship of more than 400 national park units. The bill also provides investments to our national park system as it begins its centennial celebration and prepares for the next 100 years.

This bill continues our efforts in meeting our moral and legal obligations in Indian country and honors longstanding commitments to American Indians and Alaska Natives; the bill promotes voluntary, nonregulatory fish and wildlife conservation programs in partnership with States and tribes; and this bill provides grant funding to States to promote jobs and economic growth.

I want to take a moment to pay tribute to my good friend and our subcommittee's ranking member and former chairman, JIM MORAN. This is Mr. MORAN's last appropriations bill. I am happy to know that my friend will be leaving this body that he loves on a high note, enthusiastically supporting the work of the Interior Subcommittee.

JIM, we are grateful to you for your service, and we salute you.

I also want to thank Chairman ROGERS for his incredible support, leadership, and his role in bringing this omnibus bill forward.

Lastly, I want to thank the scores of Appropriations Committee staff who have been working day and night and weekends on this package for many weeks. They even worked through their Thanksgiving holiday to produce this legislation. The staff of the Appropriations Committee deserves our appreciation and gratitude.

This is a good bill, Mr. Speaker. I urge Members on both sides of the aisle to support it.

With that, Merry Christmas.

Mrs. LOWEY. Mr. Speaker, I am very pleased to yield 1 minute to the gentlewoman from California (Ms. PELOSI), the minority leader of the House.

Ms. PELOSI. Mr. Speaker, I thank the gentlelady for yielding, and I commend her for her tremendous leadership. With great pride, we point to her as our ranking member on the Appropriations Committee.

I thank you for yielding and for your leadership.

Thank you, Mr. ROGERS, for your leadership.

As an appropriator for many years, I know the hard work that goes into putting an appropriations bill together. There was a day when we did them individually. It seems lately we just keep putting them on a bus, an omnibus. That is too bad. But in any event, I appreciate the work you have done to bring this bill to the floor. That is why I was so really heartbroken. I don't think I have ever said that word on the floor of the House. I was heartbroken to see the taint that was placed on this valuable appropriations bill from on high.

I am sorry that we cannot have a full homeland security bill, that is for sure. We knew that was possible. The Speaker says in January we will vote on a full homeland security bill. I hope that that is the case.

But the taint I refer to is what the President described in his letter today as a rider that would amend the Dodd-Frank Wall Street Reform and Consumer Protection Act and weaken a critical component of financial system reform aimed at reducing taxpayer risk.

So when people are talking to you about what is in the bill and this or that, I am going to say to you what you are putting your name next to if you choose to vote for this bill. And why I am so appalled—well, I will tell you why.

It was September 2008. Things were happening in the financial services industry. Lehman Brothers, down; Merrill Lynch, down; AIG, whatever. It all happened within a matter of days. I called the Secretary of the Treasury and I said: ''How can we be helpful? What is going on?''

He said: ''It is terrible.''

I said: ''Well, is one of the major financial institutions going down?''

He said: ''No, it is bigger than that. We are in a serious meltdown.''

''Why am I calling you, Mr. Secretary Paulson?''

''Well, the White House wasn't ready for Congress to know about this. But you are the Speaker.''

At the time I was.

''I am the Secretary of the Treasury. You are asking me; I am telling you. We are in a terrible situation.''

So they came to my office that night, the Speaker's Office, House and Senate, Democrats and Republicans. We came together and we heard an appalling meltdown of our financial institutions.

And I said to the Chairman of the Fed, Mr. Ben Bernanke, who was there: ''Mr. Bernanke, what do you think about what the Secretary said?''

He said: ''If we do not act immediately, we will not have an economy by Monday.''

We will not have an economy by Monday. By the policies that were in place at that time, we were taken to a place where we wouldn't have an economy. No commercial paper, no economy by Monday.

□ 1330

Here we are, 2014, going down the same path.

Earlier today, the Republicans put a bill on the floor that would make certain tax incentives permanent and unpaid for. We should be doing revenue reform, but not that way, because the revenue policy of the Bush administration contributed to the Great Recession, taking us close to a depression. So their tax policy jeopardized our economy.

Then, their laissez, laissez, laissez-faire attitudes of no regulation, that took us to a meltdown of our financial institutions to the point where we, the taxpayers, had to rescue the financial institutions to the tune of $700 billion. That is twice as much as in the domestic discretionary spending of the bills that will come before us—two-years' worth of non-defense discretionary domestic spending.

We put provisions in the bill that the American taxpayer would be paid back. But that wasn't enough for the Republicans to vote for it. They voted against it, by and large. It was the Democrats who voted for the TARP, the most difficult vote for Members to vote for and the most politically harmful to them.

So here we are in the House being blackmailed—being blackmailed—to vote for an appropriations bill. I am not asking anybody to vote one way or another. I am just telling you why I would not put the name of my constituents in my district next to a bill that does, as the President says, ''weaken a critical component of financial system reform aimed at reducing taxpayer risk.''

At that time, they accused us of bailing out Wall Street at the expense of Main Street. The public still doesn't understand fully why everybody would benefit from what we had to do. But we shouldn't have had to do that, $700 billion, because of laissez-faire attitudes and trickle-down tax policies of the Bush administration, which got us to that place. Because of initiatives taken by President Obama when he became President, working with the Democratic Congress, with our initial Recovery Act, we were able to reverse some of that, and pull ourselves out of the ditch Republicans took us in.

So here we are today. This should be a day where we say, isn't it too bad we can't do more for the American people, but in the interest of bipartisanship we have put together a bill on the Appropriations Committee that helps meet the needs of the American people. Wouldn't that have been just fine?

Except, popping out of the wilderness comes two things: one, this provision, this provision, as I described, that the President described, and then another one, to make matters worse—to make matters worse—a bill that lifts political contributions to such a height that it is really unimaginable as to why those who put this in there thought that that was a good idea. They told me it was $90,000 for the convention. It turned out to be millions of dollars from a donor or from a family in that regard. So they weren't even on the level of how it was portrayed.

But be that as it may, what is important is what is in the bill. As Congressman SARBANES said, it is ''quid pro quo.'' You have quid: give Wall Street what they want, relax the responsibility of that.

This is a moral hazard. We are being asked to vote for a moral hazard. Why is this in an appropriations bill? Because it was the price to pay to get an appropriations bill. I was told we couldn't get all these other things that have been described here so beautifully unless we gave Wall Street this gift. And, on top of that, that we gave their donors, high-end donors, all the opportunity in the world to pour money into the process.

Now, maybe the public is right about Washington, D.C. I heard this funny line about Lily Tomlin when she was Ernestine, the operator, when she said: ''Am I communicating with the people that I am speaking to?'' Are we communicating with the people we are speaking to when we say to them it is an important priority and we have to put it in our budget bill that we give donors the opportunity to spend endless money, undermining the confidence the American people have in our political system, at the same time—at the same time—as we say to Wall Street, you can engage in risky activity with your derivatives and the FDIC will ensure your action? That is just plain wrong.

Under the Dodd-Frank Act, if a bank wanted to engage in those risky activities they had to be pushed out to another entity, and that entity could engage in those activities, but they were not insured by the American taxpayer.

With this bill now we are saying the exposure, the recourse, is with the U.S. taxpayer. Just plain wrong—and what is it doing in an appropriations bill, except to have this bill be taken hostage? This is a ransom, this is blackmail. You don't get a bill unless Wall Street gets its taxpayer coverage.

So it is really so sad that something which I respect enormously, the appropriation process—because it is hard. There are so many competing calls on resources, so much that we have to try to invest in the American people, their health, their education, the economic stability of their families, the air they breathe, the water they drink, and how we fund all of that. I have some questions about some of that in this bill, but the fact is it is all a compromise, and it could have been a good compromise. So whatever Members choose to do.

I am enormously disappointed that the White House feels that the only way they can get a bill is to go along with this, and that would be the only reason I think they would say they would sign such a bill that would ''weaken a critical component of financial system reform aimed at reducing taxpayer risk.'' Those are the words in the administration's statement.

I feel sad for the American people today, because we are saying in order for us to invest in the education of our children and all of the responsibilities we have to the American people, we have to pay off Wall Street in addition to that. And I don't begrudge Wall Street, and I don't paint everybody there with the same brush. But what I am saying is the taxpayer should not assume the risk. It is back to the same old Republican formula: prioritize the gain, nationalize the risk. You succeed, it is in your pocket; you fail, the taxpayer pays the bill. It is just not right.

So I think we have a missed opportunity today to have some strong bipartisanship, and there will be bipartisan support for this bill. But the fact is, my colleagues, you are being asked to put your name next to privatizing the gain and nationalizing the risk. You are asked to put your name next to practically unlimited contributions to political campaigns just at a time when we are trying for reform to reduce the role of politics and money and increase the voice of the American people.

So, again, a missed opportunity. But I respect decisions that Members will make because there are equities to be weighed here. But the biggest equity we have is our responsibility to the American people to do the right thing. What was added to this bill, which may be a good bill, what was added to this bill is not the right thing. That is why it has bipartisanship, it has good things in it, but it will not have my support.

Mr. ROGERS of Kentucky. Mr. Speaker, I yield 2 minutes to the gentleman from Nebraska (Mr. FORTENBERRY), a member of our committee.

Mr. FORTENBERRY. Mr. Speaker, I thank our chairman, Mr. ROGERS, for his steadfast commitment and hard work on this important bill.

Mr. Speaker, as President Kennedy once said, ''To govern is to choose,'' and the key here is to try and choose wisely.

This bill is a result of a long and arduous and democratic process. It is a result of the extensive effort of the Appropriations Committee, with input from Members, to try and deliver effectively prioritized government services.

Now, Mr. Speaker, I don't agree with everything in the bill. I don't think anyone here does. But the question is, are we going to move forward and govern a bit more towards something a bit better? And what is good in this bill? First of all, it continues to prioritize the right type of budgeting and reduce spending. The spending levels in the bill are $176 billion below fiscal year 2010 funding levels. Although our deficit has come down significantly through a smarter budgeting process and some tax reform, nonetheless our deficit is still way too high. We have work to do in this regard, and this bill does make significant progress on that front.

There are also important reforms. Some big ones involve the IRS. Their problems that they imposed on the American people have begun to be curtailed here.

Second, the bill also addresses the sad and difficult issue of the emerging need to fight Ebola and its spread.

It positions the U.S. Congress, as well, to curtail the President's executive action on immigration moving forward, which represents a very serious overreach on the part of the administration and a threat to the separation of powers.

The bill provides a pay raise for our troops and important funding for our veterans programs.

Another fact, Mr. Speaker: I am on the agricultural subcommittee. We work very hard to continue our strong tradition of production agriculture while funding new emerging food systems that link the farmer to the family and help beginning and young farmers.

Mr. Speaker, I think we can do better in certain areas, such as providing the right type of development assistance, which truly protects women and children and doesn't entangle us with organizations such as the U.N. Population Fund.

But it is important to remember that in the volatile Middle East, the peace treaty between Israel and Egypt continues to hold with significant commitment from us, and that is an important part of this bill.

On balance, I will be supportive, and I want to thank Mr. ROGERS, our chairman, for his leadership.

Mrs. LOWEY. Mr. Speaker, I am very pleased to yield 2½ minutes to the distinguished gentlewoman from Connecticut (Ms. DELAURO), the ranking minority member of the Labor, Health and Human Services Appropriations Subcommittee.

Ms. DELAURO. Mr. Speaker, as ranking member of the Labor, Health and Human Services Subcommittee, I worked hard on this portion of the legislation, and there are some real bright spots.

But our problem is simple. The resources provided in this bill are not adequate to tackle the challenges middle class families face every day. The bill does not keep pace with inflation. It continues to underfund some of our Nation's highest priorities: education, health care, medical research, and job training.

However, there are many more troubling aspects of this bill. The Department of Homeland Security is only funded for 9 weeks. Why? Because the majority disagrees with the President on immigration. Holding up full-year funding for national security over an immigration disagreement is a game that poses a serious risk to our border, our Secret Service, and our ability to respond to natural disasters.

The bill gambles with our financial system. It would reverse Dodd-Frank safeguards, allow banks to engage in some of Wall Street's riskiest transactions, the same transactions that caused a crisis in which millions of hardworking Americans lost their jobs, their homes, and their savings. Why? Why would we want to put families at risk once again? Public funds should be used to protect our families, not to prop up casino banking.

This bill threatens injustice to millions of seniors. It allows pension funds to reduce benefits to current retirees.

□ 1345

They worked hard for their retirement. They earned it. Would we want to put their economic security in jeopardy?

Finally, the bill seeks to overturn some of the last remaining campaign finance laws, as if they were not generous enough. The American public is angry about a government that responds to the highest bidder.

The majority's dangerous games benefit big corporations and the wealthy at the expense of working families and seniors, and I urge my colleagues to vote against this bill.

Mr. ROGERS of Kentucky. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I reserve the balance of my time.

Mr. KLINE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in strong support of H.R. 83, the omnibus appropriations bill for 2015. I want to commend the members of the House Appropriations Committee, all of them, especially the committee's distinguished chairman, HAL ROGERS, for their hard work in writing a responsible proposal that will fund our national priorities and prevent a government shutdown. I am also pleased that the bill includes critical reforms that will help our country avert a looming pension crisis.

Today, Mr. Speaker, roughly 10 million Americans participate in a multiemployer pension plan, men and women who have and continue to move our country forward: builders, truck drives, carpenters, electricians, and store clerks, to name a few.

These people worked hard and earned the promise that a pension would provide financial security in retirement; yet for many, that promise is now in jeopardy. Pension plans are on the brink of bankruptcy. Employers, workers, and retirees are stretched thin, and a Federal insurance agency is on the path to insolvency.

The multiemployer pension system is a ticking time bomb. When the bomb goes off, businesses will close their doors, workers will be laid off, taxpayers will be on the hook for a multibillion-dollar bailout, and retirees will have their benefits cut or wiped out entirely.

A crisis is staring us in the face, and the question we have to answer is: Will we act? Will we do what is right and necessary to help fix this problem? Or will we simply kick the can down the road? I believe we have a public duty and a moral responsibility to act.

My Democratic colleague, GEORGE MILLER, and I have worked hard to craft a bipartisan legislative response to this looming disaster. With the help of our friend, Dr. PHIL ROE, and the work of many employers and union leaders, we have reached agreement on a series of reforms that offer the best chance we have to protect taxpayers, working families, and retirees.

Our bipartisan proposal includes tough medicine for a pension system in critical condition. It requires higher premiums so the Federal backstop can meet its obligations without taxpayer assistance. It also provides new tools to trustees to help plans avoid insolvency, including the ability to adjust benefits.

Let me be clear: if we reject this bill and continue the status quo, benefits will be cut. It is only a matter of time.

As plans go under, the Federal Government inflicts maximum pain on the maximum number of people, but if we offer trustees more flexibility, they can avoid insolvency and provide retirees greater financial security. We have a choice between an axe in the hand of a first-year med student or a scalpel in the hand of a trusted surgeon.

This isn't easy. No matter what happens, retirees will face some difficult hardships. That is why the proposal includes numerous protections, but most importantly, it ensures all retirees are better off than if we did nothing.

This isn't a perfect solution. I am disappointed we couldn't do more to provide workers more options to plan for their retirement. Make no mistake, this is the first step in addressing a tough problem, and it won't be the last.

Despite its shortcomings, this is a strong proposal that deserves our support. We cannot let this opportunity pass by. This problem will be harder to solve after the bomb goes off. I urge my

colleagues to do what is in the best interest of workers, employers, and retirees by supporting this bipartisan agreement.

Before I close, Mr. Speaker, I want to thank some members of the staff who worked day and night to make this happen, starting with my staff director, Juliane Sullivan, and workforce policy director, Ed Gilroy. I also want to thank Brian Kennedy, Megan O'Reilly, and Julia Krahe of Mr. MILLER's staff for all of their hard work.

Last, but certainly not least, I would like to offer my deep appreciation to a trusted member of my team, Andy Banducci. Andy has poured more time and energy into this effort than anyone else, and he has earned the right to a good night's sleep.

Finally, I would like to extend my sincere thanks to my colleague, GEORGE MILLER, who will leave this Chamber after 40 years of public service. Without his courage and determination to do what is right, this effort would not have been possible; through it all, he has been a trusted friend and ally.

GEORGE has long been a tireless advocate for working families from the start of his distinguished career down to these final moments in Congress. He will leave behind a lasting mark on the House and the Education and Workforce Committee.

We haven't agreed on every issue, but in the fine tradition of our committee, we have always found a way to disagree without being disagreeable. I have no doubt he will remain a powerful voice for students, teachers, and working families.

GEORGE, thank you for your service and your friendship. I wish you and your wife, Cynthia, and family all the best.

Mr. Speaker, I reserve the balance of my time.

Mr. GEORGE MILLER of California. Mr. Speaker, I yield myself such time as I may consume.

Chairman KLINE, I thank you so much for your very kind words, for your friendship, and for your willingness to work together.

You are right. We haven't always agreed, but we tried to honor that by not becoming disagreeable with one another. My service on the Education and Workforce Committee has been the joy of my life in the Congress of the United States. Thank you for steering the committee over these last several years.

I want to join you in thanking all of the hardworking staff not just on this piece of legislation, but year in and year out, hearing in and hearing out, amendments and changes, and all the things staff goes through. They have really acted in a very, very professional manner.

They too have been able to work back and forth across the aisle and across ideologies and all the rest of it and serve as a buffer every now and then when the Members get a little out of control. Thank you so very, very much.

This Kline-Miller multiemployer pension agreement that was added to the bill before us today is based upon a proposal developed nearly 2 years ago by labor unions and employers who wanted to find a path forward for severely distressed and failing pension plans.

This provision will give plan trustees—labor and management—the tools they need to avoid the impending collapse of many multiemployer plans. It will also provide new funds—with a premium increase—for the insurer charged with backing up these plans which is also facing bankruptcy.

The Kline-Miller provision is the only available option to save these failing plans, and it is the last chance that labor unions, their members, and employers have to gain some control over the future of their pensions.

Throughout my 40 years in Congress, I have worked to strengthen pension protections and to expand retirement security for all Americans. I have fought for workers, and I have fought for their benefits.

I have fought for their right to collectively bargain over retirement and from the hidden fees in their 401(k) plans. I fought to protect them from conflicted investment advice that could have put their retirement security at risk. It is my commitment to workers and their retirement security that brings me here today.

We have an obligation to reform the multiemployer system so that we can protect the retirement security of workers nationwide. The approach we have put forward, which is backed by business and labor leaders, will secure the multiemployer pension systems for millions of current and future retirees.

It includes important consumer safeguards that give participants in these plans a voice to protect the most vulnerable retirees. Most importantly, it gives employers and the employees the option—a choice, not a mandate. They get to choose. They get to decide that they want to design a plan that they think can rescue their currently failing pension system. That is an important right to grant them.

Many local unions have already made this decision with their members, but they can't do it. They can't cut their own benefits because they are prohibited from doing it by law.

Who are we to tell these workers that they can't take the opportunity to stretch their pool of pension money, their savings, so that it may cover more people for a longer period of time if they make these adjustments? They want to make these adjustments, but the law says they can't.

If we trust labor unions, if we trust the workers, if we believe in the dignity of the worker, we should give them the opportunity and the responsibility of trying to save their own pensions. This is all this bill does. It gives them the option. It gives them the opportunity.

It lets them take on the responsibility for trying to design a rescue plan that may increase the longevity of their plan. It may allow retirees a better pension than they would get if they just fell into the government rescue system. That is what they are asking us to let them do.

This is not a new idea. It has been here for 2 years of hearings. It has been under Chairman KLINE. We have had exhaustive hearings on this provision. We have heard from the employers. We have heard from a cross section of unions, some who agree with this plan and some who disagree.

That is why it is an option. For those who don't want to do it, those who have written you letters and said, ''Don't do this,'' what about the guys that want to do this? So this is an option. They will have to talk to their members, they will have to talk to the employers, they will have to talk to their trustees, and they will have to make a decision. If they can come up with that rescue plan, they ought to be allowed to do that.

The time has come to let them do this. These plans are losing altitude every day that they can't make these adjustments. Hopefully, a pickup in the economy, an increase in employment, an increase in enrollment will help them, but they still need the option to be able to make these judgments.

I would hope that my colleagues here in the Congress would trust these workers enough to give them this opportunity and this responsibility to make these decisions about their retirement, not our wish list of how we would like it to be, but their retirement today that is in threat of collapse.

I urge my colleagues to support this provision and support this legislation, and I reserve the balance of my time.

Mr. KLINE. Mr. Speaker, I am very, very pleased to yield 3 minutes to the gentleman from Tennessee, Dr. ROE, chairman of the Subcommittee on Health, Employment, Labor, and Pensions.

Mr. ROE of Tennessee. Mr. Speaker, I rise in strong support of the multiemployer pension reform act contained in the underlying bill. This bipartisan legislation will strengthen and, in some cases, save retirement benefits for more than 10 million Americans who are enrolled in a multiemployer pension plan. Let's say that again: this legislation will save retirement benefits.

While many multiemployer plans are in strong financial shape, the number of financially-distressed plans is a cause for great concern. Among these troubled plans is the Central States Pension Fund, covering 410,000 participants, which PBGC projects will become insolvent in the next 10 years.

PBGC's own finances are in dire straits. A report released by the PBGC just last month shows that its multiemployer program has a deficit of more than $42 billion, an alltime high. The

agency also believes that there is a 90 percent chance it becomes insolvent by 2025 without change.

Taken together, these financial challenges pose a clear and present danger to the retirement of those who receive those benefits from PBGC and those who expect the PBGC to serve as a backstop if their pension plan fails. It is not a question of if the worst will happen for some of these plans; it is only a question of when.

The proposal before us today is a product of six subcommittee hearings over 4 years, countless hours of discussion and debate between management and labor, and thoughtful negotiations between Republicans and Democrats.

This legislation will give pension plans the tools to save themselves without a taxpayer bailout. For those plans that are beyond repair, this proposal will strengthen the PBGC's finances to help ensure that retirees continue to receive a benefit.

What we are asking of these plans is hard. If there were some other way to resolve this problem without a taxpayer bailout, we would have pursued it, but there is not another way. We have to do what is necessary to protect the retirement benefits for those Americans who earned them.

Businesses and unions alike understand this. That is why the Kline-Miller proposal is supported by companies, including Kroger, Nestle USA, as well as labor unions, including the UFCW, SEIU, and North America's Building Trade Unions.

I commend Chairman KLINE and Ranking Member MILLER for their tireless efforts on this issue. They have shown all of us that bipartisan compromise for the greater good is possible.

□ 1400

I also want to thank Ed Gilroy and Andy Banducci and the rest of the staff on both sides of the aisle for the long, hard hours they have logged on this effort.

This desperately-needed pension reform is good for workers, it is good for retirees, it is good for business, and it is good for America.

I encourage my colleagues to strongly support this.

Mr. GEORGE MILLER of California. Mr. Speaker, I yield 3 minutes to the gentleman from New Jersey (Mr. NORCROSS).

Mr. NORCROSS. Mr. Speaker, it is ironic that we are having this discussion today.

First, I want to thank the ranking member for yielding me time.

I was sworn in just a few weeks ago. Prior to that, my entire career has been working in a system that supported a multiemployer plan.

I went home last night and opened my mail. I received my first pension check which happens to be from a multiemployer plan. I understand how it works, and I understand how it doesn't work, and that is what we are here to discuss today.

The fact of the matter is the multiemployer is a very different animal than what most people traditionally think of as a pension plan. Multiemployer is the employee groups, the unions working together with management to make these decisions.

In a perfect world—which I have been blessed with, with my plan—that check arrives on time, and it will be there, but there are other plans that are certainly not in that condition and have not been that way for a very long time.

We can continue to bury our heads in the sand and wait for that implosion—because it is going to happen—or we can do the right thing and give people their voice back.

Let those plans have the ability to ask their memberships what they want to do. They got there through that cooperation. It might not be their own fault that the plan is failing. There are many conditions that cause that.

But the way the rules are now, they have no voice. They are silent. I am just here to make sure that we have an absolute and clear understanding that this is about giving the employers and the employees their voice back.

Mr. KLINE. Mr. Speaker, I yield 1½ minutes to the gentlewoman from Indiana (Mrs. BROOKS), another member of the committee.

Mrs. BROOKS of Indiana. Mr. Speaker, first of all, I want to thank Chairman KLINE, Ranking Member MILLER, and Dr. ROE for working tirelessly on this incredibly difficult piece of legislation that I know impacts so many people.

As you have heard, on the Health Subcommittee, we had over six different hearings on this matter examining the difficulties facing troubled multiemployer plans and the looming insolvency of the Pension Benefit Guaranty Corporation that is tasked with backstopping pension plans.

During those hearings, I heard from the president of North America's Building Trades Unions that said ultimately: ''In order for individual pensioners to receive benefits from our plans, the plans themselves must be preserved.''

Mr. Speaker, without this Kline-Miller pension reform, the insolvency of these plans is exactly what will happen, ultimately hurting those most in need.

Just last month, PBGC released its annual report which showed the deficit in this insurance program has increased from $8.3 billion to $42.4 billion in just 1 year. At this rate, the PBGC anticipates the plans will become insolvent in the next decade. That means pensioners won't even be able to count on the minimum to backstop programs that are terminal.

We must act now to give the trustees of these plans the tools necessary to allow the unions and their members the opportunity to salvage the multiemployer pension model. The longer we wait, the more the problem grows, and the more painful it becomes for pensioners and employers alike.

Our constituents didn't send us here to take the easy path, but rather to do the hard work that must be done. That is why so much is at stake, and that is why this provision is so necessary.

I urge its passage.

Mr. GEORGE MILLER of California. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I would just like, so my colleagues fully understand this, to read the list of some of the unions that are supporting this legislation: North America's Building Trades Unions, International Council of Employers of Bricklayers and Allied Craftworkers, International Union of Operating Engineers, International Union of Painters and Allied Trades, United Association of Journeymen and Apprentices of the Plumbing and Pipefitting Industry, Service Employees International Union, the United Food and Commercial Workers International Union, United Brotherhood of Carpenters and Joiners of America, Actors' Equity Association, and the American Federation of Musicians—a very diverse group of American workers who are asking us to give them the option to make decisions about the future of their pension.

Some of these pensions are in better shape than others, but they are all asking for this right. For those who may be opposed to this legislation, don't like this legislation, they don't have to exercise their right; but we cannot deny these workers this opportunity to make this decision about their very hard-earned pensions.

As Mr. NORCROSS said, they made these decisions together where they are today, and they ought to be able to make the decisions together to change direction and to head off for an opportunity at greater solvency and longevity.

Mr. Speaker, I want to again thank Congressman KLINE and all of the staff and all of those who have cooperated and all of these organizations that have spent many years trying to investigate the best way to answer this nagging question of how to save these plans.

Mr. Speaker, I yield back the balance of my time.

Mr. KLINE. Mr. Speaker, I yield myself the balance of my time.

In closing, again, I want to thank the staff and Republicans and Democrats for working on this.

We have talked a lot about what this does for employees, for retirees. It also does an awful lot to strengthen the position of employers. You need strong employers. They need some relief from the crushing liability that is on them. You need strong employers and a strong plan in order to guarantee the pensions for all of these workers.

I have a long list here, which I will not read, of employers who are supporting this because they understand that they, like the employees and like the retirees, need relief from the broken system that we have today.

Mr. Speaker, I encourage all of my colleagues to support this legislation,

and I yield back the balance of my time.

The SPEAKER pro tempore. Pursuant to clause 1(c) of rule XIX, further consideration on this motion is postponed.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 2 o'clock and 7 minutes p.m.), the House stood in recess.

□ 2056

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. HASTINGS of Washington) at 8 o'clock and 56 minutes p.m.

INSULAR AREAS AND FREELY ASSOCIATED STATES ENERGY DEVELOPMENT

The SPEAKER pro tempore. Pursuant to clause 1(c) of rule XIX, further consideration of the bill (H.R. 83) to require the Secretary of the Interior to assemble a team of technical, policy, and financial experts to address the energy needs of the insular areas of the United States and the Freely Associated States through the development of energy action plans aimed at promoting access to affordable, reliable energy, including increasing use of indigenous clean-energy resources, and for other purposes, will now resume.

The Clerk read the title of the bill.

The SPEAKER pro tempore. When proceedings were postponed earlier today, 10½ minutes of debate remained on the bill.

The gentleman from Kentucky (Mr. ROGERS) has 4 minutes remaining, and the gentlewoman from New York (Mrs. LOWEY) has 6½ minutes remaining.

The Chair recognizes the gentleman from Kentucky (Mr. ROGERS).

Mr. ROGERS of Kentucky. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Virginia (Mr. MORAN), a very distinguished ranking member of the Appropriations Committee who is planning to retire. We will miss him greatly, and we wish him good luck in his future endeavors.

Mr. MORAN. Mr. Speaker, for roughly 200 years, this government has functioned on behalf of the American people. It has functioned through the art of compromise. Conservatives, liberals, Democrats, and Republicans have gotten together and decided what was in the best interest of this Nation.

Mr. Speaker, this appropriations bill is in the best interest of this Nation. It does reflect a compromise, but I would say to my colleagues on the Democratic side: this is a good bill, this reflects our priorities. It is our last chance to have those priorities reflected in an appropriations bill.

One of our staff told me that for 2½ weeks, she hasn't seen her children before they had to go to bed. The reason is that she has been working night after night, fighting for our priorities to be included in this bill, and she was successful. All of our staff was successful.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. LOWEY. Mr. Speaker, I yield the gentleman an additional 30 seconds.

Mr. MORAN. I want to give a shoutout to Dave Pomerantz, Lesley Turner, Will Smith, Jim Kulikowski, Rick Healy, Shalanda Young, and of all the people who made this a good bill on both sides of the aisle.

This is why our government functions: because we are willing to compromise and we are willing to look at what is in the best interest of all of our constituents, putting partisanship aside.

This is a bill we should vote for. This bill needs to pass. I thank the President and this body for supporting this bill because I trust we will, in the long run, do the right thing after we have exhausted all the other alternatives.

□ 2100

Mr. ROGERS of Kentucky. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentlewoman from California (Ms. WATERS).

Ms. WATERS. Mr. Speaker and Members, we are poised to vote on legislation to fund government. Nobody wants to shut down our government. Everybody here wants to have an answer, and we could have an answer. All the opposite side has to do is to stop supporting a bill that would allow the biggest banks in America to rip off the people one more time.

We bailed out the richest banks in America with the people's money. The people do not want that anymore, and so this provision that is in the bill that would allow them to basically put us all at risk because they want to trade these derivatives and be protected with our FDIC cannot go on.

So there are a lot of things in this bill that are unacceptable. I am the ranking member of the Financial Services Committee and I worked on Dodd-Frank. They are trying to undermine Dodd-Frank. They have been trying to get rid of Dodd-Frank piece by piece. We have to fight it every day.

I am not going to let the people down. Democrats are not going to let the people down. We are not going to vote for anything that is going to give the store to the biggest banks in America one more time.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentleman from Maryland (Mr. HOYER), the distinguished minority whip.

Mr. HOYER. Mr. Speaker and Members, ever since the conference report was reported out, Leader PELOSI and I have told everyone how objectionable the two provisions that have been discussed are on our side of the aisle. We think they should not be in an appropriations bill. We think that they should be considered on their merits or demerits. Unfortunately, they are in the bill.

I rise in support of the bill, notwithstanding my vigorous objection to these two provisions. I rise because I, frankly, think that pursuing CRs, continuing resolutions, on a continuing basis is harmful to our economy, harmful to the growth in jobs, harmful to our national security.

I regret that the Homeland Security bill has not been included for a year as well. We undermine national security by that limitation. But, nevertheless, in a world of alternatives, I have concluded that it is better for us to pass this CR/Omnibus, as it is euphemistically referred to, than it is to defeat it.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. LOWEY. I yield the gentleman an additional 1 minute.

Mr. HOYER. So I urge my Members to vote for this CR/Omnibus tonight.

Mrs. LOWEY. Mr. Speaker, may I ask how much time is remaining?

The SPEAKER pro tempore. The gentlewoman from New York has 3 minutes remaining, and the gentleman from Kentucky has 4 minutes remaining.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. FARR), a distinguished ranking member of the committee.

Mr. FARR. Mr. Speaker, I want to thank Mr. ROGERS, the chair of the committee, for bringing a bill to the floor. I wish it was the full bill and not most of the bill.

But I also want the world to note that, even though there are some poison pills in this issue, this is a very progressive appropriations bill, and it shows that when you do reach compromise—and I hope that the party that will be in the majority next year will understand that we wanted to do a full process. We want it to be vetted. We don't want poison pills. But in the end, get the bad language out, which you did, and you can have a bill that has bipartisan support. We don't want things to get worse in this country, we want it to get better, and a CR would be the worst thing that could happen.

But we also, as a body that believes in exposure and the public's right to know, we should never allow these poison pills to be in this bill. Hold your nose and make this a better world.

Mrs. LOWEY. Mr. Speaker, I yield 30 seconds to the distinguished gentleman from Texas (Mr. DOGGETT).

Mr. DOGGETT. Mr. Speaker, this bill puts a big bow on a holiday gift for the Wall Street contributors who get special treatment in the provisions of this

bill. Once again, here in the holiday season, it is all about stuffing the silk stockings.

These people want to gamble with our money. When these big banks win, they get to keep all the money; but when they lose, they look to the taxpayer to bail them out. It was wrong to do so before, and this bill removes key reforms that are vital to preserving our financial system and our economic security.

We ought not yield to the big bank contributors who, at the same time, this same bill frees up additional money for individuals to pour into campaigns and pollute our democracy.

Mrs. LOWEY. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, our most important responsibility is to fund government operations. This bill does that, but it also contains a number of objectionable items that have no place in a spending bill.

I would like to thank JIM MORAN, ED PASTOR, BILL OWENS, FRANK WOLF, TOM LATHAM, and JACK KINGSTON. Your friendship and expertise will be missed.

I am pleased that, after weeks of negotiations, we have a package that funds 11 of the 12 bills. I hope that in the next Congress we avoid such a contentious process and pass bills we are proud to support under regular order.

Mr. Speaker, I will insert the President's statement in support of this bill in the RECORD.

Mr. Speaker, I am voting for this bill, and I urge your support.

I yield back the balance of my time..

STATEMENT OF ADMINISTRATION POLICY

H.R. 83—CONSOLIDATED AND FURTHER CONTINUING APPROPRIATIONS ACT, 2015

(Rep. Rogers, R–KY, Dec. 11, 2014)

The Administration supports House passage of H.R. 83, making appropriations for fiscal year (FY) 2015, and for other purposes. The Administration appreciates the bipartisan effort to include full-year appropriations legislation for most Government functions that allows for planning and provides certainty, while making progress toward appropriately investing in economic growth and opportunity, and adequately funding national security requirements. The Administration also appreciates the authorities and funding provided to enhance the U.S. Government's response to the Ebola epidemic, and to implement the Administration's strategy to counter the Islamic State of Iraq and the Levant, as well as investments for the President's early education agenda, Pell Grants, the bipartisan, Manufacturing Institutes initiative, and extension of the Trade Adjustment Assistance program.

However, the Administration objects to the inclusion of ideological and special interest riders in the House bill. In particular, the Administration is opposed to the inclusion of a rider that would amend the Dodd-Frank Wall Street Reform and Consumer Protection Act and weaken a critical component of financial system reform aimed at reducing taxpayer risk. Additionally, the Administration is opposed to inclusion of a rider that would amend the Federal Election Campaign Act to allow individual donors to contribute to national political party committee accounts for conventions, buildings and recounts in amounts that are dramatically higher than what the law currently permits.

Furthermore, the Administration is disappointed that the bill would fund the Department of Homeland Security through February 27, 2015, at last year's levels. Short-term continuing resolution funding measures are disruptive, create uncertainty, and impede efficient resource planning and execution.

The Administration urges the Congress to enact comprehensive full-year appropriations legislation for all Government functions free of provisions that have no place in annual appropriations bills.

Mr. ROGERS of Kentucky. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I urge Members to vote for this bill and keep the government open. It is a good bill. Vote for it.

I yield back the balance of my time.

Mr. LANGEVIN. Mr. Speaker, I applaud the work Chairman ROGERS, Ranking Member LOWEY and their staffs put towards drafting legislation to fund the federal government. Sadly, I cannot support the finished product due to extraneous provisions that have no business being in an appropriations bill. These riders, included at the last minute with no debate and no input from Democratic members, circumvent the will of American voters, harm retirees, put taxpayer dollars at risk, and allow a privileged few to have even more influence over our elections.

These extraneous provisions have nothing to do with funding the government. Instead, they will cut benefits to seniors and roll back critical Dodd-Frank provisions to protect taxpayer dollars. They will also increase the amount of money that special interests, private corporations, and wealthy donors can spend on political conventions and other election activities, when we know that more money in politics is not the solution, it's the problem.

Rhode Islanders are still recovering from the financial crisis of 2008, and I cannot in vote for a return to the status quo, which helped bring about the crisis in the first place. The derivatives provision is a Christmas gift to big banks at the expense of American taxpayers. It would remove restrictions included in Dodd-Frank that prevent these banks from gambling with our constituents' money by using taxpayer-insured bank deposits in risky derivatives transactions.

I am greatly disappointed that I am not able to support what is in many other ways a solid bill. This legislation includes funding for important investments to our infrastructure, the National Institutes of Health, Ebola response efforts, spinal cord injury research, the peerless Virginia-class submarines, and so many other initiatives and programs that are critical to our national defense and our future as a nation—not to mention that it provides for the brave men and women in our armed services and intelligence community who are in harm's way even as we speak. Regrettably, these priorities were eclipsed by poisonous provisions that could greatly undermine the important work voters elected us to do—restore the economic certainty we need to keep our economy growing and our businesses hiring.

Mr. Speaker. I have supported numerous bipartisan efforts in the past to fund the government, and I know what can be accomplished when Democrats and Republicans sit down and negotiate in good faith. But the price Republicans are trying to exact this time is simply too high, and I will not sacrifice my principles and the interests of my constituents.

Ms. NORTON. Mr. Speaker, I urge the majority to live up to its professed support for the principles of federalism, limited government, and local control of local affairs by not interfering in the local laws of the District of Columbia. The bill limits the District's authority over its local marijuana laws, and prohibits D.C. from spending its local funds on abortion services for low-income women.

I am here to put on the record that the Republican-led House Appropriations Committee's stated view that the bill's D.C. marijuana rider blocks the D.C. marijuana legalization initiative from taking effect is not the view of the entire House, as well as to preserve the ability of the District and its lawyers to review, analyze and interpret the rider's effect for themselves.

Based on a plain reading of the bill and principles of statutory interpretation, it is arguable that the rider does not block D.C. from carrying out its marijuana legalization initiative. The House-passed D.C. marijuana rider, introduced by Representative ANDY HARRIS, and this bill's D.C. marijuana rider are not identical. Unlike the Harris rider, this bill's rider does not block D.C. from "carrying out" enacted marijuana policies. D.C.'s Initiative 71, it can be argued, was enacted when it was approved overwhelmingly by voters in November and is self-executing—i.e., it did not require enactment of any rules for its implementation. Therefore, it can be argued that the legalization of small amounts of marijuana in D.C. can proceed.

The District legalized marijuana primarily to combat racial injustice, after two independent studies, one by the American Civil Liberties Union of the Nation's Capital and the other by the Washington Lawyers' Committee for Civil Rights and Urban Affairs, found shocking racial disparities in the enforcement of marijuana laws in D.C. In D.C., Whites and Blacks use marijuana at the same rates, and Blacks compromise slightly less than 50% of the population, but Blacks are eight times more likely to be arrested for marijuana possession than non-Blacks, and 91% of all marijuana arrests are of Blacks. These disparities exist in urban areas throughout the country.

Arrests and convictions for marijuana possession ruin lives, especially those of Black males. An arrest or conviction for marijuana possession often condemns Blacks, particularly those from low-income neighborhoods, to joblessness. Losing the ability to find legitimate work can lead a person to the underground economy, even to selling drugs, rather than mere possession. The Black community itself pays the price because men without the prospect of employment often do not form stable families.

There may be some misconceptions about the District's legalization law. The District has the narrowest and strictest marijuana legalization law in the country. D.C. will not become a regional or national haven for marijuana use or transactions. Unlike D.C., the four states that have legalized marijuana permit the sale and purchase of marijuana. Under D.C.'s marijuana legalization law, possession and home cultivation are permitted, but all the following are not permitted: sales or purchase, retail stores, smoking in public, and possession by those under 21 years of age.

The bill also blocks the District from spending its local funds to provide abortion services for low-income women. We are talking about

100% local D.C. funds, not federal funds. D.C. raises almost $7 billion per year in local funds through taxes and fees. As with marijuana, the District is being singled out for unfair treatment. Seventeen states, including Arizona, Alaska, and West Virginia, spend their local funds on abortion services for low-income women. The bill does not block them from doing so. When the D.C. abortion rider was re-imposed in April 2011, many low-income D.C. women had to immediately cancel their scheduled appointments for reproductive health services, because, unlike wealthier D.C. women, they relied on D.C. to pay for their health care services.

I urge Congress to respect the local laws of the 650,000 American citizens who live in the District of Columbia.

Mr. BOEHNER. Mr. Speaker, the intent of Division N, Section 101 is to establish separate limits for funds raised into separate, segregated accounts established by national political party committees for certain specified purposes. All of these funds are ''hard money'' subject to all of the source limitations, prohibitions, and disclosure provisions of the Act.

The first account, described in section 315(a)(9)(A) of the Federal Election Campaign Act of 1971 (''FECA'') (as amended), is intended to allow a national committee of a political party (other than a national congressional campaign committee) to defray expenses related to a presidential nominating convention using funds raised under separate, increased limits. Section 315(a)(9)(A) also caps the aggregate amount of expenditures a national political party committee may make from such account with respect to any convention at $20,000,000. This section is intended to provide national political party committees with a means of acquiring additional resources to be used specifically in connection with the funding of presidential nominating conventions because such conventions may no longer be paid for with public funds. It is the intent to allow these funds to be used in the same manner as the former public funds could have been used, as well as to pay for the costs of fundraising for this segregated account.

The second account, described in section 315(a)(9)(B) of FECA (as amended), is intended to permit a national committee of a political party (including a national congressional campaign committee of a political party) to defray expenses incurred with respect to the construction, purchase, renovation, operation and furnishing of party headquarters buildings located throughout the United States, including the cost of fundraising for this segregated account, using funds raised under separate, increased limits. Funds in these accounts also may be used to repay loans and other obligations incurred for the purpose of defraying such building expenses, including loans and obligations incurred two years before the date of the enactment of this Act.

The third account, described in section 315(a)(9)(C) of FECA (as amended), is intended to permit a national committee of a political party (including a national congressional campaign committee of a political party) to defray expenses incurred with respect to the preparation for and the conduct of election recounts and contests and other legal proceedings, including the costs of fundraising for this segregated account, using funds raised under a separate limit Section 101 of Division N is not intended to modify Federal Election Commission precedent permitting the raising and spending of funds by campaign or state or national party committees. See FEC Advisory Opinions 2006–24, 2009–4. Section 101 is also intended to permit the national parties to use such funds for costs, fees, and disbursements associated with other legal proceedings.

Finally, under current law coordinated limits do not apply even absent these provisions to the existing accounts as described in section 315 of FECA and therefore it is the intent of the amendments contained herein that expenditures made from the accounts described in section 315(a)(9) of FECA, many of which (such as recount and legal proceeding expenses) are not for the purpose of influencing federal elections, do not count against the coordinated party expenditure limits described in section 315(d) of FECA.

Mr. KING of New York. Mr. Speaker, I would like to first thank the Chairman and Ranking Democrat of the House Education and Workforce Committee, Rep. JOHN KLINE and Rep. GEORGE MILLER, for their efforts to seek a bipartisan solution for the problems facing the nation's multiemployer pension plans. I am very familiar with those problems, having constituents who are both active workers and retirees who are participants in those multiemployer plans.

The legislation being advanced today will allow Plan Trustees of these troubled plans to have additional tools to maintain the solvency of the plans. Specifically, the legislation will allow trustees to better align benefit levels to available resources; it will clarify that the PBGC has the ability to assist plans well before they reach insolvency; and finally, to facilitate plan mergers. Taken together, these initiatives will assist troubled plans in avoiding insolvency.

However, I do have a concern regarding the timeline for implementation of the new legislation. Some of these troubled plans need to move on with the needed benefit adjustments, along with the authority to merger and receive financial assistance from the PBGC, sooner rather than later. I would strongly urge the Treasury Department, along with the Department of Labor and the Pension Benefit Guarantee Corporation, to move quickly on implementation of this legislation. For some plans, time is not on their side.

Ms. JACKSON LEE. Mr. Speaker, I submit the following for the RECORD:

OVERVIEW

The Consolidated and Further Continuing Appropriations Act, (''Cromnibus'') is comprised of: 1. 11 FY2015 Appropriations bills; and 2. Continuing Resolution maintaining the current rate of Homeland Security funding until February 27, 2015.

Discretionary budget authority: $1.014 Trillion.

Overseas Contingency Operations (Defense): $64 billion.

Overseas Contingency Operations (State): $9.258 billion.

Total OCO: $73.258 billion.

Emergency Ebola funding: $2.72 billion (L–HHS–Ed); $2.530 billion (SFOPS); $112 million (Defense).

Total emergency Ebola funding: $5.484 billion.

1. Agriculture Division of 2015 Omnibus Appropriations Act

2014 Total enacted level: $20.9 billion

2015 Committee mark: $20.9 billion

2015 Omnibus: $20.6 billion

HIGHLIGHTS AND KEY POINTS

$6.6 billion for Special Supplemental Nutrition Program for Women, Infants, and Children (WIC), which is sufficient to meet expected need in 2015.

$1.47 billion for Food for Peace (P.L. 480) grants, which is the same as the 2014 enacted level and $66 million above the request.

$2.6 billion for the Food and Drug Administration (FDA), which is $37 million more than the 2014 enacted level and $4 million more than the request.

$1.016 billion for the USDA food safety and inspection program, which is $6 million more than the 2014 enacted level and $15 million more than the request.

$1.51 billion for the Farm Service Agency, which is $22 million more than the 2014 enacted level and $61 million over the request.

$25 million for FDA in emergency spending, which fully funds the administration's Ebola request.

POLICY ISSUES

The agreement does not include a House policy rider allowing schools to receive waivers from complying with improved lunch and breakfast nutrition standards in the Healthy, Hunger-free Kids Act. The agreement allows states to grant exemptions from whole grain standards to schools that demonstrate hardship in procuring specific products, and requires further study on reduced sodium standards, similar to the Senate provisions.

The agreement does not include a House policy rider making potatoes unconditionally available in the WIC program. The agreement, while making potatoes available, requires that the ultimate decision on their availability be based on review by the Institute of Medicine (IOM) and USDA.

The agreement includes Democratic amendments to ban horse slaughter for human consumption, and prohibit funding for processed poultry products imported from China in the school lunch, breakfast, summer food service, and child and adult care food programs.

2. COMMERCE, JUSTICE, SCIENCE DIVISION OF 2015 OMNIBUS APPROPRIATIONS ACT

2014 enacted level: $51.6 billion.

2015 budget request: $51 billion.

2015 Omnibus: $50.1 billion.

HIGHLIGHTS AND KEY POINTS

$5.4 billion for the National Oceanic and Atmospheric Administration (NOAA), which is $126.4 million more than the 2014 enacted level.

$954.2 million for National Weather Service operations, which is $526,000 above the 2014 enacted level.

$1.1 billion for the Census Bureau, which is $143 million more than the FY 2014 enacted level and $123.4 million less than the budget request.

$3.5 billion for the U.S. Patent and Trademark Office (PTO), which is equal to CBO's projection of PTO's FY 2015 fee revenue collections, and $434 million above the 2014 enacted level.

$863.9 million for the National Institute of Standards and Technology (NIST), which is $13.9 million more than the 2014 enacted level.

$8.44 billion for the Federal Bureau of Investigation (FBI), which is $93.3 million more than the 2014 enacted level.

$2.03 billion for the Drug Enforcement Agency (DEA), which is $15.3 million more than the 2014 enacted level.

$1.2 billion for the Bureau of Alcohol, Tobacco, Firearms and Explosives, which is $22 million more than the 2014 enacted level.

$6.82 billion for the Bureau of Prisons, Salaries and Expenses account, which is $46 million more than the 2014 enacted level.

$376 million for Byrne-JAG grants, which is the same as the 2014 enacted level.

$208 million for the COPS program, which is $6 million less than the 2014 enacted level.

$430 million for Violence Against Women Prevention and Prosecution Programs, which is $13 million above the 2014 enacted level.

$18.01 billion for the National Aeronautics and Space Administration (NASA), which is $363.7 million more than the 2014 enacted level.

$7.34 billion for the National Science Foundation, which is $172.3 million above the 2014 enacted level.

$125 million for the ongoing DNA Initiative program which funds the testing of sexual assault kits, the same the FY 2014 level and $25 million above the request. In addition, $41 million is included for the new Community Sexual Assault Kit Backlog Reduction program.

$73 million for the National Instant Criminal Background Check System (NICS), which is $14.5 million more than the 2014 level and $18 million more than the request.

$375 million for the Legal Services Corporation, which is $10 million above the 2014 level.

POLICY ISSUES

The agreement rejects House policy riders to: 1) block reporting requirements on multiple sales of rifles/shotguns to the same person, and 2) make permanent two annual riders related to firearms.

The agreement rejects a House rider to defund certain NSF research related to climate change.

The agreement rejects House riders to prohibit entering into trade agreements establishing limits on greenhouse gas emissions, and includes a provision prohibiting implementation of the Arms Trade Treaty absent its ratification by the Senate.

The agreement rejects a House rider to defund grants to state or local law enforcement on the basis of local immigration policy.

The agreement rejects a House rider prohibiting the Department of Justice from enforcing certain parts of the Fair Housing Act.

Extends the authorization of the nonprofit, public-private Corporation for Travel Promotion, commonly known as Brand USA, through 2020, including its ability to finance its efforts to promote tourist travel to the United States through the collection of a modest fee on tourists from Visa Waiver Program countries;

Extends the authorization of the Economic Development Administration (EDA)'s Trade Adjustment Assistance for Firms program for an additional year, allowing the program to service both existing and new client companies in the U.S. that have been negatively impacted by trade agreements; and

Includes the text of the Revitalize American Manufacturing and Innovation Act, which (1) directs the Secretary of Commerce to establish a Network for Manufacturing Innovation Program to help improve the competitiveness of U.S. manufacturing and stimulate U.S. leadership in advanced manufacturing, research, innovation, and technology, and (2) extends through 2019 the authorization of the EDA's Regional Innovation Program, designed to encourage and support the development of regional innovation strategies, including region innovation clusters.

3. Defense Division of 2015 Omnibus Appropriations Act:

2014 total enacted level: $572 billion.

2015 total budget request: $554.3 billion.

2015 Omnibus: $554.1 billion.

HIGHLIGHTS AND KEY POINTS

$64 billion for Overseas Contingency Operations (OCO), which is $21.2 billion less than the 2014 enacted level.

$490.1 billion for the base portion of Department of Defense funding, which is $3.3 billion more than the 2014 enacted level.

$128 billion for Military Personnel, which is $800 million less than the 2014 enacted level.

$161.7 billion for Operation and Maintenance, which is $1.8 billion more than the 2014 enacted level.

$93.8 billion for Procurement, which is $1.0 billion more than the 2014 enacted level.

$63.7 billion for Research and Development, which is $700 million more than the 2014 enacted level.

Multiple provisions focused on eliminating sexual assault in the Department of Defense and supporting victims, including: Fully funds request of $275 million for Sexual Assault and Prevention Office (SAPRO) services; and $25 million above the request to continue implementation of a Sexual Assault Special Victims Program.

Several important health programs receive increases above the President's request, including increases of $281 million for cancer research, $125 million for traumatic brain injury and psychological health research, and $39 million for suicide prevention outreach programs.

To facilitate integration of electronic health records between DOD and VA the agreement restricts funding for the Defense Healthcare Management Systems Modernization (DHMSM) program pending a report on cost, schedule, and adherence to data standards and acquisition guidance.

Fully funds Peer Reviewed Medical Research Programs and includes $125 million above the request for Traumatic Brain Injury (TBI) and Psychological Health research and $4 million above the request for alcohol and substance abuse research.

$20 million above the request for suicide prevention and outreach.

$172 million above the request for Israeli Cooperative Missile Defense programs, and $175 million above the request for Iron Dome.

$225 million above the request for the Defense Rapid Innovation Program to incorporate small business developments into DOD programs.

$1.2 billion above the request to enhance National Guard and Reserve equipment.

$1 billion above the request for a San Antonio Class Amphibious Transport Dock (LPD–17) and $483.6 million for refueling overhaul for the USS *George Washington* (CVN–73) aircraft carrier.

The agreement supports the President's Budget Request for a 1% pay raise for military and civilian personnel.

The agreement also fully funds the Department of Defense portion of the emergency funding request for Ebola efforts at $112 million.

The agreement includes $810 million for the European Reassurance Initiative, of which $175 million is for support to the Baltics and Ukraine for training, equipment and associated support.

The agreement includes a provision as proposed by the House and funding as proposed by the Senate to continue operations of the A–10.

The agreement includes $3.4 billion for Department of Defense operations targeting ISIL, as well as funds to train and equip Iraqi security forces and the Syrian opposition.

The legislation prohibits funding for transfers of Guantanamo detainees to the U.S. or its territories, prohibits funding to modify any facility in the U.S. to house detainees, and places conditions on the release of detainees to other countries.

4. Energy & Water Division of 2015 Omnibus Appropriations Act

2014 Total enacted level: $34.1 billion.

2015 Committee mark: $34.0 billion.

2015 Omnibus: $34.2 billion.

HIGHLIGHTS AND KEY POINTS

$1.937 billion for Energy Efficiency & Renewable Energy, which is $25 million more than the 2014 enacted level.

$5.071 billion for the Department of Energy Office of Science, which is the same as the 2014 enacted level.

$280 million for the Advanced Research Projects Agency—Energy (ARPA-E), which is the same as the 2014 enacted level.

$5.9 billion for environmental cleanup activities, which is $51 million more than the 2014 enacted level.

$8.2 billion for National Nuclear Security Administration (NNSA) Weapons Activities, which is $387 million more than the 2014 enacted level and $83 million less than the President's budget request.

$1.6 billion for Nuclear Nonproliferation, which is $313 million less than the 2014 enacted level and $86 million more than the President's budget request.

$1.239 billion for Naval Reactors, which is $144 million more than the 2014 enacted level and $139 million less than the President's budget request.

$5.455 billion for the Army Corps of Engineers, which is $13 million less than the 2014 enacted level, and $922 million more than the President's budget request.

$1.14 billion for water resources projects within the Department of Interior, which is $27 million more than the 2014 enacted level.

POLICY ISSUES

The agreement does not include a House policy rider prohibiting the Army Corps of Engineers from clarifying which waters are protected by the Clean Water Act.

The agreement does not include a House policy rider prohibiting restrictions against firearms on land owned by the Army Corps of Engineers.

The agreement does not include prohibitions on funding for loan guarantees for the Cape Wind offshore wind project, National Ocean Policy, Social Cost of Carbon and ceiling fan standards.

The agreement continues a House policy rider prohibiting the Army Corps of Engineers from changing regulations pertaining to the definitions of the terms ''fill material'' or ''discharge of fill material'' under the Clean Water Act for this fiscal year.

The agreement includes a House policy rider prohibiting funds to require permits for certain agricultural activities under the Clean Water Act for this fiscal year.

The agreement includes a policy rider requiring the withdrawal of the EPA and Corps of Engineers interpretive rule regarding regulation agricultural activities.

5. Financial Services Division of 2015 Appropriations Act:

2014 Total enacted level: $22.07 billion.

2015 Committee mark: $20.35 billion.

2015 Omnibus: $21.82 billion.

HIGHLIGHTS AND KEY POINTS

$11.5 billion for the Department of the Treasury, which is $373 million less than the 2014 enacted level.

$10.95 billion for the Internal Revenue Service (IRS), which is $346 million less than the 2014 enacted level.

$6.7 billion for the Judiciary, which is $182 million more than the 2014 enacted level.

$679.6 million for the District of Columbia, which is $6.4 million more than the 2014 enacted level.

$1.5 billion for the Securities and Exchange Commission (SEC), which is $150 million more than the 2014 enacted level.

$887.6 million for the Small Business Administration (SBA), which is $41 million less than the 2014 enacted level as a result of reduced loan subsidy costs.

$688.3 million for the Executive Office of the President, which is $18.9 million more than the 2014 enacted level.

$9.24 billion for the General Services Administration (GSA) Federal Buildings Fund (FBF), which is $132 million less than the 2014 enacted level.

$10 million for the Election Assistance Commission (EAC), which is the same level as the 2014 enacted level.

$250 million for the Commodity Futures Trading Commission (CFTC), which is $35 million more than the 2014 enacted level and $30 million less than the request.

POLICY ISSUES

The agreement *does not* include the following House policy riders:

1. Prohibiting funds to subsidize abortion services in connection with a multi-state plan offered under the Affordable Care Act exchanges negotiated by OPM.

2. Prohibiting transfers from HHS to IRS.

3. Prohibiting implementation of individual mandate.

4. Preventing IRS from clarifying standards for determining the tax exempt status of 501(c)4 organizations; and preventing SEC from requiring disclosure of political contributions, contributions to tax-exempt organizations, or dues paid to trade associations.

5. Prohibiting travel to Cuba for educational exchanges not involving academic study pursuant to a degree program.

6. Prohibiting funds to implement guidance issued by the U.S. Department of the Treasury regarding coal-fired power plants.

7. Impeding the President from fulfilling executive functions.

8. Blocking the District of Columbia from enforcing its own firearms laws.

The agreement does not include a House policy rider prohibiting decriminalization of possession of small amounts of marijuana. The agreement prohibits use of federal and local funds from being used to implement the recent referendum legalizing recreational use of marijuana in DC.

The agreement includes a House provision amending Dodd-Frank with respect to the prohibition against certain federal assistance to swaps entities, namely the use of any advances from specified Federal Reserve credit facilities or discount windows, or Federal Deposit Insurance Corporation (FDIC) insurance or guarantees.

6. Homeland Security Continuing Resolution in 2015 Omnibus Appropriations Act: The agreement includes a Continuing Resolution until February 27th for agencies within the Homeland Security Subcommittee. The agreement maintains the Fiscal Year 2014 spend rate of $39.270 billion.

Additional Provisions in the current CR and carried forward under the new CR:

Extends the authorization for the Chemical Facility Antiterrorism Standards (CFATS) program;

Extends the authority for the Science & Technology Directorate to enter into Other Transaction Agreements (OTA);

Provides authority for ICE and CBP to obligate funding at rates necessary to sustain staffing, border security and immigration enforcement operations, and Air and Marine operations, and requires compliance with the 34,000 detention bed mandate.

Additional provisions included under the new CR:

Provides authority for the Secret Service to obligate funding at a rate necessary for Presidential candidate nominee protection (hiring and training agents);

Directs DHS to continue preparations to award a construction contract for the National Bio- and Agro-Defense Facility by May 1, 2015.

7. Interior & Environment Division of 2015 Appropriations Act:

2014 enacted level: $30.058 billion.

2015 budget request: $30.620 billion.

2015 Omnibus: $30.044 billion.

HIGHLIGHTS AND KEY POINTS

$3.554 billion for wildland fire, which fully funds the 10-year average for fire costs.

$4.642 billion for the Indian Health Service, which is $207 million more than the 2014 enacted level.

$2.601 billion for the Bureau of Indian Affairs, which is $70 million more than the 2014 enacted level.

$8.140 billion for the Environmental Protection Agency (EPA), which is $60 million less than the 2014 enacted level.

$2.615 billion for the National Park Service, which is $55 million more than the 2014 enacted level.

$1.086 billion for the Bureau of Land Management (BLM), which is $13 million more than the FY 2014 enacted level.

$1.440 billion for the U.S. Fish and Wildlife Service, which is $13 million more than the 2014 enacted level.

$2.402 billion for the U.S. Forest Service (non-fire), which is equal to the 2014 enacted level.

$146 million each for the National Endowment for the Arts and the National Endowment for the Humanities, which is equal to their 2014 enacted levels.

POLICY ISSUES

The agreement does not include a House policy rider prohibiting EPA's Clean Power Plan Proposed Rule.

The agreement does not include a House policy rider prohibiting EPA's rule clarifying which waters are protected by the Clean Water Act.

The agreement does not include a House policy rider prohibiting EPA from changing the way discharge of fill material is regulated.

The agreement includes a House policy rider prohibiting regulation of lead in ammunition.

The agreement includes a House policy rider prohibiting the issuance of final and proposed rules related to Sage Grouse.

The agreement does not include a House policy rider prohibiting EPA from ensuring mining companies are financially capable of cleaning up pollution rather than taxpayers, but includes report language on the matter.

The agreement does not include a House policy rider prohibiting EPA from enforcing a rule on safe removal and renovation of lead paint, but includes report language on the matter.

The agreement does not include a House policy rider prohibiting funding for the development or revisions of regulations regarding imported ivory.

8. Labor, Health and Human Services, Education Division of 2015 Omnibus Appropriations Act:

2014 enacted level: $156.8 billion.

2015 Request: $158.1 billion.

2015 Omnibus: $156.8 billion.

2015 emergency funding for Ebola: $2.7 billion.

HIGHLIGHTS AND KEY POINTS

$2.7 billion for emergency funding related to the Ebola outbreak.

$30.1 billion for the National Institutes of Health, which is $150 million more than the 2014 enacted level.

$6.9 billion for the Centers for Disease Control and Prevention (CDC), which is $21 million more than the 2014 enacted level.

$2.6 billion for job training through WIA Training and Employment Formula Grant program, which is $36 million more than the 2014 enacted level, and boosts the Governor's set aside to ten percent.

$1.6 billion for worker protection agencies at the Department of Labor, which is $9 million more than the FY 2014 level.

$2.4 billion for Child Care Block Grants, which is $75 million more than the 2014 enacted level.

$8.6 billion for Head Start, which is the same as the 2014 enacted level.

$14.4 billion for Title I Grants to school districts, which is $25 million more than the 2014 enacted level.

$11.5 billion for Special Education state grants (IDEA), which is $25 million more than the 2014 enacted level.

$1.3 billion for Impact Aid, which is equal to the FY 2014 level and $67 million more than the President's budget request.

$250 million for Preschool Development Grants, which is equal to the FY 2014 enacted level.

$445 million for the Corporation for Public Broadcasting (CPB), which is the same funding level as was provided in the FY 2014 bill.

$815 million for Seniors' Nutrition programs, which is the same as the 2014 enacted level.

$948 million for the Unaccompanied Minor Children program at HHS, which is $80 million more than the FY 2014 enacted level.

$3.4 billion for the Low-Income Home Energy Assistance Program (LIHEAP), which is equal to the comparable FY 2014 operating level.

$1.1 billion for Mental Health programs, which is $10 million less than the 2014 enacted level and $27 million more than the Administration's request.

$672 million for program integrity efforts in the Medicare and Medicaid programs, which is $378 million more than the FY 2014 level.

$1.1 billion for the Corporation for National and Community Service, which is $5 million more than the FY 2014 level.

The agreement maintains the discretionary portion of the maximum Pell grant award level at $4,860 for the 2015–2016 school year. After addition of the mandatory supplement, the maximum award is projected to increase by $100 to $5,830.

The agreement maintains level-funding for the Affordable Care Act.

The agreement includes a new provision expanding the eligibility of students enrolled in career pathways programs to qualify for financial aid.

The agreement includes a new provision to exempt disaster claims adjustors from elements of the Fair Labor Standards Act following the response to a natural disaster.

The agreement extends Trade Adjustment Act (TAA) assistance to dislocated workers through fiscal year 2015, including workers who are certified for TAA after December 31, 2014.

9. Legislative Branch Division of 2015 Omnibus Appropriations Act:

2014 enacted level: $4.26 billion.

2015 budget request: $4.47 billion.

2015 Omnibus: $4.30 billion.

HIGHLIGHTS AND KEY POINTS

$1.181 billion for the House of Representatives, which is equal to the 2014 enacted level and $19.8 million less than the request.

$10.1 million for the Joint Committee on Taxation, which is $91,000 more than the 2014 enacted level but $54,000 less than the request. Cost-of-living increases are provided for in order to maintain current services.

$348 million for the Capitol Police, which is $9.5 million more than the 2014 enacted level and $7.7 million less than the request.

$45.7 million for the Congressional Budget Office (CBO), which is equal to the 2014 enacted level and $378,000 less than the request.

$522.0 million for the Government Accountability Office (GAO), which is $16.6 million more than the 2014 enacted level and $3.12 million less than the request.

$600.3 million for the Architect of the Capitol (AOC), which is $1.8 million less than the

2014 enacted level and $76.4 million less than the request.

$590.9 million for the Library of Congress, which is $11.9 million more than the 2014 enacted level and $2.1 million less than the request.

$120 million for the Government Printing Office (GPO), which is $693,000 less than the 2014 enacted level and $8.9 million less than the request.

POLICY ISSUES

The agreement changes the name of the Government Printing Office to the Government Publishing Office.

The agreement includes report language requiring the House Chief Administrative Officer develop and disseminate online sexual harassment training.

The agreement gives the Botanic Garden authority to work with nonprofits on special exhibits and programming.

The agreement establishes a Center for Audit Excellence at GAO.

The agreement allows the Office of Compliance to email, rather than mail, certain notifications to employees.

The agreement restricts incentives and award payments to AOC contractors if their work is behind schedule or over budget.

The agreement restricts participation in the Open World Leadership exchange program for Russian participants to allow only those who are engaging in free market development, humanitarian activities, and civic engagement. They also cannot be officials of the central government.

10. MILCON/VA Division of 2015 Omnibus Appropriations Act:

2014 enacted level: $73.2 billion.

2015 base budget request: $71.9 billion.

2015 Omnibus base: $71.8 billion.

2015 OCO: $221 million.

HIGHLIGHTS AND KEY POINTS

$6.5 billion for Military Construction projects, which is $3.2 billion less than the 2014 enacted level, including:

1. $1.1 billion for Family Housing construction, which is $325 million less than the 2014 enacted level.

2. $315 million for the Base Realignment and Closure (BRAC) account, which is $45 million more than the fiscal year 2015 budget request.

3. $205.2 million in rescissions from prior Appropriations Acts due to savings on projects.

4. $221 million for Overseas Contingency Operations (OCO) and the European Reassurance Initiative (ERI).

$65 billion in discretionary funding for Veterans Affairs, which is $1.7 billion more than the 2014 enacted level, including:

1. As authorized by Congress in 2009, VA medical services accounts are provided funding one year in advance. The agreement includes the budget request for fiscal year 2016 advance funding of $58.6 billion.

2. The agreement includes an additional $40 million, above the budget request, to hire additional claims and support personnel at the regional offices; to expand the Veterans Claims Intake Program records scanning system; and to implement the centralized mail initiative.

3. $3.9 billion for information technology systems, which is $200 million more than the 2014 enacted level.

4. $588.9 million for prosthetic research, which is $3.2 million above the 2014 enacted level.

POLICY ISSUES

The agreement creates the authority to provide advance appropriations for three mandatory VA programs within the Veterans Benefits Administration: (1) Compensation and Pensions; (2) Readjustment Benefits; and (3) Veterans Insurance and Indemnities.

The agreement continues to provide tools and resources to address the backlog of veterans disability claims by increasing personnel, enhancing training and quality oversight, and strengthening accountability.

The agreement continues the requirement first enacted for fiscal year 2014 to provide rigorous, publicly available Web-based monthly reports to the Committees on performance measures for each regional office, including the number of backlogged claims, the average number of days to complete a claim, and error rates.

The agreement continues the practice of restricting VA's obligation of information technology funds until the VA reports detailed plans on budget, timeline, and testing to ensure reliable interoperability between current and future Electronic Health Records (EHR) systems between the Department of Veterans Affairs and the Department of Defense.

The agreement clarifies that the payment rates used by the VA for VA medical care in the State of Alaska and in those States with an all-payer model agreement under the Social Security Act that became effective on January 1, 2014, should also be used in implementation of the Veterans Access, Choice, and Accountability Act of 2014.

11. State and Foreign Operations Division of 2015 Omnibus Appropriations Act:

2014 Total enacted level: $49.0 billion.

2015 Committee mark: $48.29 billion.

2015 Omnibus: $49.27 billion (not including $2.526 billion in emergency funds for Ebola).

HIGHLIGHTS AND KEY POINTS

$9.258 billion for Overseas Contingency Operations (OCO), which is $2.738 billion more than the 2014 enacted level.

$7.8 billion for Diplomatic and Consular Programs which is $185 million less than the 2014 enacted level and the same as the Administration's request.

$5.4 billion for the protection of diplomatic missions, embassies, and personnel, which is $1 million more than the 2014 level and $46 million more than the Administration's request.

$2.32 billion for Embassy Security, Construction and Maintenance, which is $46 million more than the Administration's request and $350 million less than the 2014 enacted level.

$8.45 billion for Global Health, which is $15 million more than the 2014 enacted level and $404 million more than the Administration's request.

$2.51 billion for Development Assistance, which is the same as the 2014 enacted level but $113 million less than the Administration's request.

$4.75 billion for Economic Support Fund (ESF), which is $108 million more than the 2014 enacted level and $430 million less than the Administration's request.

$5.9 billion for Foreign Military Financing (FMF), which is $39 million less than the 2014 enacted level and $92 million less than the Administration's request.

$1.2 billion in base funding for USAID Operating Expenses, which is $76 million more than the 2014 enacted level and $168 million less than the Administration's request.

$899.5 million for the Millennium Challenge Corporation (MCC), which is $1.3 million more than the 2014 enacted level and $110.5 million below the Administration's request.

$5 billion in total funding for humanitarian assistance accounts, which is $94 million more than the 2014 enacted level and $1.52 billion more than the Administration's request.

$575 million for bilateral family planning, which is equal to the 2014 enacted level.

$379.5 million for Peace Corps, which is roughly equal to the 2014 enacted level and the Administration's request.

$2.526 billion for emergency international response to fight Ebola, which is $370 million less than the Administration's request.

POLICY ISSUES

The Omnibus does not include a House policy rider codifying the ''Global Gag Rule,'' which prohibits non-governmental organizations (NGOs) receiving federal funds from providing women information about the full range of health services.

The Omnibus does not include a House policy rider prohibiting U.S. contributions to the UN Population Fund (UNFPA) and the Intergovernmental Panel on Climate Change (IPCC).

The Omnibus includes health care equity for Peace Corps volunteers.

The Omnibus does not lift the cap on U.S. assessments for international peacekeeping missions, and does not include IMF quota reform.

The Omnibus includes prohibitions on OPIC and the Export-Import Bank from fully implementing their clean energy policies.

12. Transportation and Housing and Urban Development Division of 2015 Omnibus Appropriations Act:

2014 Omnibus: $50.9 billion.

2015 Request: $59.9 billion.

2015 Omnibus: $53.8 billion.

HIGHLIGHTS AND KEY POINTS

$9.74 billion for Federal Aviation Administration (FAA) Operations, which is $90 million more than the 2014 enacted level and $9.3 million less than the President's budget request.

$500 million for National Infrastructure Investments (TIGER), which is $100 million less than the 2014 enacted level and $750 million less than the President's budget request.

$2.1 billion for Capital Investment Grants, which is $177 million more than the 2014 enacted level and $380 million less than the President's budget request.

$1.39 billion for Amtrak capital and operating expenses, which freezes funding at the 2014 enacted level and $1.06 billion less than the President's budget request.

$830 million for the National Highway Traffic Safety Administration (NHTSA), which is $11 million more than the 2014 enacted level and $21 million below the President's budget request.

$30 million for initiatives to increase the safety and oversight of the transport of energy products, including $10 million for grade crossing and track improvement grants on rail routes that carry energy products.

$17.5 billion for Section 8 Tenant Based Rental Assistance renewals, which would meet projected need.

$9.52 billion for Section 8 Project Based Rental Assistance renewals, which would meet projected need.

$75 million for HUD-Veterans Affairs Supportive Housing (HUD-VASH), which is the same as the 2014 enacted level and the President's budget request.

$4.44 billion for Public Housing Operating Fund, which is $40 million more than the 2014 enacted level and $160 million below the President's budget request.

$1.9 billion for Public Housing Capital Fund, which is the same as the 2014 enacted level and $50 million below the President's budget request.

$3 billion for Community Development Block Grants (CDBG), which is $30 million less than the 2014 enacted level but $200 million more than the President's budget request.

$900 million for HOME Investment Partnerships, which is $100 million less than the 2014 enacted level and $50 million less than the President's budget request.

$330 million for Housing Opportunities for People with AIDS, which is the same as the 2014 enacted level and $2 million less than the President's budget request.

$110 million for Healthy Homes and Lead Hazard Control, which is the same as the 2014 enacted level and $10 million less than the President's budget request.

The Omnibus includes provision (Section 166) inserted by Congressman Culberson (R-TX) providing that ''None of the funds in this or any other Act 20 may be available to advance in any way a new light or heavy rail project towards a full funding grant agreement as defined by 49 U.S.C. 5309 for the Metropolitan Transit Authority of Harris County, Texas if the proposed capital project is constructed on or planned to be constructed on Richmond Avenue west of South Shepherd Drive or on Post Oak Boulevard north of Richmond Avenue in Houston, Texas.

The Omnibus does not include Jackson Lee Amendment negating provision (Section 166) inserted by Congressman Culberson (R-TX).

POLICY ISSUES

The Omnibus includes House policy riders to create exemptions from truck weight standards for Wisconsin, Kentucky, and Mississippi, but rejects an exemption for Idaho.

The Omnibus suspends a portion of regulations requiring a minimum number of hours of rest for truck drivers.

The Omnibus does not include House policy riders to prohibit funding for California high speed rail.

The Omnibus does not include a House policy rider prohibiting transit and passenger rail from eligibility for TIGER grants.

The Omnibus does not include a House policy rider prohibiting implementation, issuance, or enforcement of an ''Affirmatively Furthering Fair Housing'' rule.

The Omnibus does not include a House policy rider prohibiting DOT from issuing rules to increase minimum insurance requirements for motor carriers.

The agreement expands HUD-VASH to Native Americans living on tribal lands.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 776, the previous question is ordered.

The question is on the motion by the gentleman from Kentucky (Mr. ROGERS).

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. ROGERS of Kentucky. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, this 15-minute vote on the motion to concur will be followed by a 5-minute vote on the motion to suspend the rules on H.R. 5699.

The vote was taken by electronic device, and there were—yeas 219, nays 206, not voting 10, as follows:

[Roll No. 563]

YEAS—219

Aderholt	Bishop (NY)	Bustos
Amodei	Bishop (UT)	Byrne
Bachus	Black	Calvert
Barber	Boehner	Camp
Barletta	Boustany	Capito
Barr	Brady (PA)	Carney
Barrow (GA)	Brady (TX)	Carter
Benishek	Brooks (IN)	Cassidy
Bera (CA)	Brownley (CA)	Chabot
Bilirakis	Buchanan	Chaffetz
Bishop (GA)	Bucshon	Clay
Clyburn	Issa	Reichert
Coble	Jenkins	Renacci
Coffman	Johnson (OH)	Ribble
Cole	Jolly	Richmond
Collins (GA)	Joyce	Rigell
Collins (NY)	Kaptur	Roby
Connolly	Kelly (PA)	Roe (TN)
Cook	Kind	Rogers (KY)
Costa	King (NY)	Rogers (MI)
Cramer	Kingston	Rokita
Crenshaw	Kinzinger (IL)	Rooney
Crowley	Kline	Ros-Lehtinen
Cuellar	Kuster	Roskam
Culberson	Lance	Ross
Daines	Latham	Rothfus
Davis (CA)	Latta	Royce
Davis, Rodney	Lipinski	Ruiz
Delaney	LoBiondo	Runyan
Denham	Long	Ruppersberger
Dent	Lowey	Ryan (WI)
Diaz-Balart	Lucas	Scalise
Dingell	Luetkemeyer	Schneider
Duffy	Maffei	Schock
Ellmers	Maloney, Sean	Schwartz
Farr	Marino	Scott, David
Fattah	Matheson	Sessions
Fincher	McCarthy (CA)	Sewell (AL)
Fitzpatrick	McCarthy (NY)	Sherman
Fleischmann	McCaul	Shimkus
Forbes	McHenry	Shuster
Fortenberry	McKeon	Simpson
Foster	McMorris Rodgers	Sinema
Foxx	Meehan	Smith (MO)
Frelinghuysen	Meeks	Smith (NE)
Gallego	Messer	Southerland
Garamendi	Mica	Stewart
Gardner	Miller (MI)	Stivers
Gerlach	Miller, George	Terry
Gibbs	Moran	Thompson (PA)
Gibson	Mullin	Thornberry
Gingrey (GA)	Murphy (FL)	Tiberi
Goodlatte	Murphy (PA)	Tipton
Granger	Noem	Turner
Graves (GA)	Norcross	Upton
Graves (MO)	Nugent	Valadao
Griffin (AR)	Nunes	Wagner
Grimm	Nunnelee	Walberg
Guthrie	Owens	Walden
Hanna	Palazzo	Walorski
Harper	Pastor (AZ)	Wasserman Schultz
Harris	Paulsen	Wenstrup
Hartzler	Pearce	Westmoreland
Hastings (WA)	Perlmutter	Whitfield
Heck (NV)	Peters (CA)	Wilson (SC)
Herrera Beutler	Peters (MI)	Wolf
Himes	Petri	Womack
Holding	Pittenger	Woodall
Horsford	Pitts	Yoder
Hoyer	Price (GA)	Yoho
Hudson	Price (NC)	Young (AK)
Huizenga (MI)	Quigley	Young (IN)
Hultgren	Reed	
Hunter		

NAYS—206

Adams	Cotton	Grayson
Amash	Courtney	Green, Al
Bachmann	Crawford	Green, Gene
Barton	Cummings	Griffith (VA)
Bass	Davis, Danny	Grijalva
Beatty	DeFazio	Gutiérrez
Becerra	DeGette	Hahn
Bentivolio	DeLauro	Hanabusa
Blackburn	DelBene	Hastings (FL)
Blumenauer	DeSantis	Heck (WA)
Bonamici	DesJarlais	Higgins
Braley (IA)	Deutch	Hinojosa
Brat	Doggett	Holt
Bridenstine	Doyle	Honda
Brooks (AL)	Duncan (SC)	Huelskamp
Broun (GA)	Duncan (TN)	Huffman
Brown (FL)	Edwards	Hurt
Burgess	Ellison	Israel
Butterfield	Engel	Jackson Lee
Capps	Enyart	Jeffries
Cárdenas	Eshoo	Johnson (GA)
Carson (IN)	Esty	Johnson, E. B.
Cartwright	Farenthold	Johnson, Sam
Castor (FL)	Fleming	Jones
Castro (TX)	Flores	Jordan
Chu	Frankel (FL)	Keating
Cicilline	Franks (AZ)	Kelly (IL)
Clark (MA)	Fudge	Kennedy
Clarke (NY)	Gabbard	Kildee
Clawson (FL)	Garcia	Kilmer
Cohen	Garrett	King (IA)
Conaway	Gohmert	Kirkpatrick
Conyers	Gosar	Labrador
Cooper	Gowdy	LaMalfa
Lamborn	Nadler	Schweikert
Langevin	Napolitano	Scott (VA)
Lankford	Neal	Scott, Austin
Larsen (WA)	Neugebauer	Sensenbrenner
Larson (CT)	Nolan	Serrano
Lee (CA)	O'Rourke	Shea-Porter
Levin	Olson	Sires
Lewis	Pallone	Slaughter
Loebsack	Pascrell	Smith (NJ)
Lofgren	Payne	Smith (TX)
Lowenthal	Pelosi	Speier
Lujan Grisham (NM)	Perry	Stutzman
Luján, Ben Ray (NM)	Peterson	Swalwell (CA)
Lummis	Pingree (ME)	Takano
Lynch	Pocan	Thompson (CA)
Maloney, Carolyn	Poe (TX)	Thompson (MS)
Marchant	Polis	Tierney
Massie	Pompeo	Titus
Matsui	Posey	Tonko
McAllister	Rahall	Tsongas
McClintock	Rangel	Van Hollen
McCollum	Rice (SC)	Vargas
McDermott	Rogers (AL)	Veasey
McGovern	Rohrabacher	Vela
McIntyre	Roybal-Allard	Velázquez
McKinley	Rush	Visclosky
McNerney	Ryan (OH)	Walz
Meadows	Salmon	Waters
Meng	Sánchez, Linda T.	Waxman
Michaud	Sanchez, Loretta	Weber (TX)
Miller (FL)	Sanford	Webster (FL)
Moore	Sarbanes	Welch
Mulvaney	Schakowsky	Williams
	Schiff	Wilson (FL)
	Schrader	Wittman
		Yarmuth

NOT VOTING—10

Campbell	Hall	Smith (WA)
Capuano	Hensarling	Stockman
Cleaver	Miller, Gary	
Duckworth	Negrete McLeod	

□ 2137

Messrs. LANKFORD and WAXMAN changed their vote from ''aye'' to ''no.''

So the Senate amendment was concurred in.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

CONGRESSMAN JOHN DINGELL'S LAST VOTE IN THE HOUSE

(Mr. HOYER asked and was given permission to address the House for 1 minute.)

Mr. HOYER. Mr. Speaker, we have one more vote. That will be the last time that the gentleman from Michigan, JOHN DINGELL, votes in this House after 59 years. He is a great servant of our country.

I am pleased to yield to the gentleman from Ohio, Speaker BOEHNER.

Mr. BOEHNER. I thank my colleague for yielding.

Let me add my words of congratulations to our good friend from Michigan, JOHN DINGELL, who has been a mentor to Members on both sides of the aisle and has carried more institutional history than anyone here. My job tonight is to say thank you and merry Christmas.

JOHN MUIR NATIONAL HISTORIC SITE EXPANSION ACT

The SPEAKER pro tempore. Without objection, 5-minute voting will continue.

There was no objection.

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the

bill (H.R. 5699) to authorize the Secretary of the Interior to acquire approximately 44 acres of land in Martinez, California, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Washington (Mr. HASTINGS) that the House suspend the rules and pass the bill, as amended.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 361, nays 39, not voting 34, as follows:

[Roll No. 564]

YEAS—361

Aderholt
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Bass
Becerra
Benishek
Bera (CA)
Bilirakis
Bishop (GA)
Bishop (NY)
Bishop (UT)
Blumenauer
Bonamici
Boustany
Brady (PA)
Brady (TX)
Braley (IA)
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Bucshon
Bustos
Butterfield
Byrne
Calvert
Camp
Capito
Capps
Cárdenas
Carney
Carson (IN)
Carter
Cartwright
Cassidy
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Cotton
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Daines
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Dent
Deutch
Diaz-Balart
Dingell
Doggett
Doyle
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers
Engel
Enyart
Eshoo
Esty
Farenthold
Farr
Fattah
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garcia
Gardner
Garrett
Gerlach
Gibson
Gingrey (GA)
Goodlatte
Gosar
Gowdy
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffin (AR)
Grijalva
Grimm
Guthrie
Hahn
Hanabusa
Hanna
Harper
Hartzler
Hastings (WA)
Heck (NV)
Heck (WA)
Herrera Beutler
Higgins
Himes
Hinojosa
Holt
Horsford
Hoyer
Huffman
Huizenga (MI)
Hultgren
Israel
Issa
Jackson Lee
Jenkins
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jordan
Joyce
Kaptur
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kirkpatrick
Kline
Kuster
Lamborn
Lance
Langevin
Lankford
Larsen (WA)
Larson (CT)
Latham
Latta
Lee (CA)
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Marino
Matheson
Matsui
McAllister
McCarthy (CA)
McCarthy (NY)
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
McNerney
Meadows
Meehan
Meeks
Meng
Messer
Mica
Michaud
Miller (FL)
Miller (MI)
Miller, George
Moore
Moran
Mulvaney
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
Nunnelee
O'Rourke
Olson
Owens
Pallone
Pascrell
Pastor (AZ)
Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters (CA)
Peters (MI)
Peterson
Petri
Pingree (ME)
Pittenger
Pitts
Pocan
Polis
Pompeo
Posey
Price (NC)
Quigley
Rahall
Rangel
Reed
Reichert
Renacci
Ribble
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rooney
Ros-Lehtinen
Roskam
Rothfus
Roybal-Allard
Royce
Ruiz
Runyan
Ruppersberger
Ryan (OH)
Ryan (WI)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schneider
Schock
Schwartz
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Shea-Porter
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Speier
Stutzman
Swalwell (CA)
Takano
Terry
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tierney
Tipton
Titus
Tonko
Tsongas
Turner
Upton
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walorski
Walz
Wasserman Schultz
Waters
Waxman
Webster (FL)
Welch
Westmoreland
Whitfield
Wilson (FL)
Wilson (SC)
Wittman
Wolf
Womack
Yarmuth
Yoder
Yoho
Young (AK)
Young (IN)

NAYS—39

Amash
Bentivolio
Bridenstine
Broun (GA)
Burgess
Clawson (FL)
Davis, Rodney
Denham
DeSantis
DesJarlais
Gibbs
Gohmert
Graves (GA)
Griffith (VA)
Harris
Holding
Hudson
Huelskamp
Hunter
Jones
Labrador
LaMalfa
Lummis
Massie
Neugebauer
Nugent
Nunes
Palazzo
Poe (TX)
Price (GA)
Rice (SC)
Ross
Rush
Smith (MO)
Valadao
Weber (TX)
Wenstrup
Williams
Woodall

NOT VOTING—34

Adams
Beatty
Black
Blackburn
Brat
Buchanan
Campbell
Capuano
Cleaver
Coble
Duckworth
Granger
Gutiérrez
Hall
Hastings (FL)
Hensarling
Honda
Hurt
Jeffries
Keating
Maloney, Sean
Marchant
Miller, Gary
Mullin
Murphy (PA)
Negrete McLeod
Noem
Rokita
Schrader
Smith (WA)
Stewart
Stivers
Stockman
Tiberi

□ 2149

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

The SPEAKER pro tempore. Pursuant to House Resolution 776, the House is considered to have adopted House Concurrent Resolution 122.

The text of House Concurrent Resolution 122 is as follows:

H. CON. RES. 122

Resolved by the House of Representatives (the Senate concurring), That in the enrollment of the bill H.R. 83, the Clerk of the House of Representatives shall amend the long title so as to read: ''Making consolidated appropriations for the fiscal year ending September 30, 2015, and for other purposes.''.

MAKING FURTHER CONTINUING APPROPRIATIONS, 2015

Mr. ROGERS of Kentucky. Madam Speaker, I ask unanimous consent that the Committee on Appropriations be discharged from further consideration of the joint resolution (H.J. Res. 130) making further continuing appropriations for fiscal year 2015, and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore (Mrs. WAGNER). Is there objection to the request of the gentleman from Kentucky?

There was no objection.

The text of the joint resolution is as follows:

H.J. RES. 130

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That the Continuing Appropriations Resolution, 2015 (Public Law 113–164) is amended by striking the date specified in section 106(3) and inserting ''December 13, 2014''.

The joint resolution was ordered to be engrossed and read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, December 11, 2014.

Hon. JOHN A. BOEHNER,
The Speaker, U.S. Capitol, House of Representatives,
WASHINGTON, DC.

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on December 11, 2014 at 2:53 p.m.:

That the Senate passed S. 2785.

That the Senate passed without amendment H.R. 3044.

That the Senate passed without amendment H.R. 3468.

That the Senate passed with an amendment H.R. 3329.

That the Senate passed S. 2828.

With best wishes, I am

Sincerely,

KAREN L. HAAS.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, December 11, 2014.

Hon. JOHN A. BOEHNER,
The Speaker, U.S. Capitol, House of Representatives,
Washington, DC.

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on December 11, 2014 at 4:12 p.m.:

That the Senate passed with an amendment H.R. 2640.

With best wishes, I am

Sincerely,

KAREN L. HAAS.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, December 11, 2014.

Hon. JOHN A. BOEHNER,
The Speaker, House of Representatives,
Washington, DC.

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on December 11, 2014 at 6:32 p.m.:

That the Senate passed S. 1535.

With best wishes, I am

Sincerely,

KAREN L. HAAS.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to House Resolution 676, the Chair announces that a civil action was initiated on November 21, 2014, in the United States District Court for the District of Columbia relating to the Patient Protection and Affordable Care Act.

STUDY OF ELECTRIC RATES IN THE INSULAR AREAS

Mr. WHITFIELD. Madam Speaker, I ask unanimous consent that the Committee on Energy and Commerce be discharged from further consideration of the bill (H.R. 5803) to require the Secretary of the Interior to assemble a team of technical, policy, and financial experts to address the energy needs of the insular areas of the United States and the Freely Associated States through the development of energy action plans aimed at promoting access to affordable, reliable energy, including increasing use of indigenous clean-energy resources, and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Kentucky?

There was no objection.

The text of the bill is as follows:

H.R. 5803

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. STUDY OF ELECTRIC RATES IN THE INSULAR AREAS.

(a) DEFINITIONS.—In this section:

(1) COMPREHENSIVE ENERGY PLAN.—The term ''comprehensive energy plan'' means a comprehensive energy plan prepared and updated under subsections (c) and (e) of section 604 of the Act entitled ''An Act to authorize appropriations for certain insular areas of the United States, and for other purposes'', approved December 24, 1980 (48 U.S.C. 1492).

(2) ENERGY ACTION PLAN.—The term ''energy action plan'' means the plan required by subsection (d).

(3) FREELY ASSOCIATED STATES.—The term ''Freely Associated States'' means the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau.

(4) INSULAR AREAS.—The term ''insular areas'' means American Samoa, the Commonwealth of the Northern Mariana Islands, Puerto Rico, Guam, and the Virgin Islands.

(5) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(6) TEAM.—The term ''team'' means the team established by the Secretary under subsection (b).

(b) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall, within the Empowering Insular Communities activity, establish a team of technical, policy, and financial experts—

(1) to develop an energy action plan addressing the energy needs of each of the insular areas and Freely Associated States; and

(2) to assist each of the insular areas and Freely Associated States in implementing such plan.

(c) PARTICIPATION OF REGIONAL UTILITY ORGANIZATIONS.—In establishing the team, the Secretary shall consider including regional utility organizations.

(d) ENERGY ACTION PLAN.—In accordance with subsection (b), the energy action plan shall include—

(1) recommendations, based on the comprehensive energy plan where applicable, to—

(A) reduce reliance and expenditures on fuel shipped to the insular areas and Freely Associated States from ports outside the United States;

(B) develop and utilize domestic fuel energy sources; and

(C) improve performance of energy infrastructure and overall energy efficiency;

(2) a schedule for implementation of such recommendations and identification and prioritization of specific projects;

(3) a financial and engineering plan for implementing and sustaining projects; and

(4) benchmarks for measuring progress toward implementation.

(e) REPORTS TO SECRETARY.—Not later than 1 year after the date on which the Secretary establishes the team and annually thereafter, the team shall submit to the Secretary a report detailing progress made in fulfilling its charge and in implementing the energy action plan.

(f) ANNUAL REPORTS TO CONGRESS.—Not later than 30 days after the date on which the Secretary receives a report submitted by the team under subsection (e), the Secretary shall submit to the appropriate committees of Congress a summary of the report of the team.

(g) APPROVAL OF SECRETARY REQUIRED.—The energy action plan shall not be implemented until the Secretary approves the energy action plan.

SEC. 2. AMENDMENTS TO THE CONSOLIDATED NATURAL RESOURCES ACT.

Section 6 of Public Law 94–241 (90 Stat. 263; 122 Stat. 854) is amended—

(1) in subsection (a)(2), by striking ''December 31, 2014, except as provided in subsections (b) and (d)'' and inserting ''December 31, 2019''; and

(2) in subsection (d)—

(A) in the third sentence of paragraph (2), by striking ''not to extend beyond December 31, 2014, unless extended pursuant to paragraph 5 of this subsection'' and inserting ''ending on December 31, 2019'';

(B) by striking paragraph (5); and

(C) by redesignating paragraph (6) as paragraph (5).

The bill was ordered to be engrossed and read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

FAA MODERNIZATION AND REFORM ACT OF 2012 AMENDMENT

Mr. BRADY of Texas. Madam Speaker, I ask unanimous consent that the Committee on Ways and Means be discharged from further consideration of the bill (H.R. 2591) to amend certain provisions of the FAA Modernization and Reform Act of 2012, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

The text of the bill is as follows:

H.R. 2591

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. ROLLOVER OF AMOUNTS RECEIVED IN AIRLINE CARRIER BANKRUPTCY.

(a) EXTENSION OF TIME TO FILE CLAIM FOR REFUND.—Section 1106(a)(3) of the FAA Modernization and Reform Act of 2012 (26 U.S.C. 408 note) is amended by striking ''2013'' and inserting ''2015''.

(b) DEFINITIONS AND SPECIAL RULES.—Section 1106(c) of such Act is amended—

(1) in paragraph (1)(A)(i) by inserting ''or filed on November 29, 2011,'' after ''2007,''; and

(2) in paragraph (2)(B)—

(A) by striking ''terminated or'' and inserting ''terminated,''; and

(B) by inserting '', or was frozen effective November 1, 2012'' after ''Pension Protection Act of 2006''.

The bill was ordered to be engrossed and read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

CENTRAL OREGON JOBS AND WATER SECURITY ACT

Mr. WALDEN. Madam Speaker, I ask unanimous consent to take from the Speaker's table the bill (H.R. 2640) to amend the Wild and Scenic Rivers Act to adjust the Crooked River boundary, to provide water certainty for the City of Prineville, Oregon, and for other purposes, with the Senate amendment thereto, and concur in the Senate amendment.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The Clerk will report the Senate amendment.

The Clerk read as follows:

Senate amendment:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Crooked River Collaborative Water Security and Jobs Act of 2014''.

SEC. 2. WILD AND SCENIC RIVER; CROOKED, OREGON.

Section 3(a) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) is amended by striking paragraph (72) and inserting the following:

''(72) CROOKED, OREGON.—

''(A) IN GENERAL.—The 14.75-mile segment from the National Grassland boundary to Dry Creek, to be administered by the Secretary of the Interior in the following classes:

''(i) The 7-mile segment from the National Grassland boundary to River Mile 8 south of Opal Spring, as a recreational river.

''(ii) The 7.75-mile segment from a point ¼-mile downstream from the center crest of Bowman Dam, as a recreational river.

''(B) HYDROPOWER.—In any license or lease of power privilege application relating to non-Federal hydropower development (including turbines and appurtenant facilities) at Bowman Dam, the applicant, in consultation with the Director of the Bureau of Land Management, shall—

''(i) analyze any impacts to the scenic, recreational, and fishery resource values of the Crooked River from the center crest of Bowman Dam to a point ¼-mile downstream that may be caused by the proposed hydropower development, including the future need to undertake routine and emergency repairs;

''(ii) propose measures to minimize and mitigate any impacts analyzed under clause (i); and

''(iii) propose designs and measures to ensure that any access facilities associated with hydropower development at Bowman Dam shall not impede the free-flowing nature of the Crooked River below Bowman Dam.''.

SEC. 3. CITY OF PRINEVILLE WATER SUPPLY.

Section 4 of the Act of August 6, 1956 (70 Stat. 1058; 73 Stat. 554; 78 Stat. 954) is amended—

*(1) by striking ''***SEC. 4.** *In order'' and inserting the following:*

''SEC. 4. CITY OF PRINEVILLE WATER SUPPLY.

''(a) IN GENERAL.—In order'';

(2) in subsection (a) (as so designated), by striking ''during those months'' and all that follows through ''purpose of the project''; and

(3) by adding at the end the following:

''(b) ANNUAL RELEASE.—

''(1) IN GENERAL.—Without further action by the Secretary of the Interior, beginning on the date of enactment of the Crooked River Collaborative Water Security and Jobs Act of 2014, 5,100 acre-feet of water shall be annually released from the project to serve as mitigation for City of Prineville groundwater pumping, pursuant to and in a manner consistent with Oregon State law, including any shaping of the release of the water.

''(2) PAYMENTS.—The City of Prineville shall make payments to the Secretary of the Interior for the water released under paragraph (1), in accordance with applicable Bureau of Reclamation policies, directives, and standards.

''(c) ADDITIONAL QUANTITIES.—Consistent with the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.), the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.), and other applicable Federal laws, the Secretary of the Interior may contract exclusively with the City of Prineville for additional quantities of water, at the request of the City of Prineville.''.

SEC. 4. ADDITIONAL PROVISIONS.

The Act of August 6, 1956 (70 Stat. 1058; 73 Stat. 554; 78 Stat. 954), is amended by adding at the end the following:

''SEC. 6. FIRST FILL STORAGE AND RELEASE.

''(a) IN GENERAL.—Other than the 10 cubic feet per second release provided for in section 4, and subject to compliance with the flood curve requirements of the Corps of Engineers, the Secretary shall, on a 'first fill' priority basis, store in and when called for in any year release from Prineville Reservoir, whether from carryover, infill, or a combination of both, the following:

''(1) Not more than 68,273 acre-feet of water annually to fulfill all 16 Bureau of Reclamation contracts existing as of January 1, 2011.

''(2) Not more than 2,740 acre-feet of water annually to supply the McKay Creek land, in accordance with section 5 of the Crooked River Collaborative Water Security and Jobs Act of 2014.

''(3) Not more than 10,000 acre-feet of water annually, to be made available first to the North Unit Irrigation District, and subsequently to any other holders of Reclamation contracts existing as of January 1, 2011 (in that order) pursuant to Temporary Water Service Contracts, on the request of the North Unit Irrigation District or the contract holders, consistent with the same terms and conditions as prior such contracts between the Bureau of Reclamation and District or contract holders, as applicable.

''(4) Not more than 5,100 acre-feet of water annually to mitigate the City of Prineville groundwater pumping under section 4, with the release of this water to occur not based on an annual call, but instead pursuant to section 4 and the release schedule developed pursuant to section 7(b).

''(b) CARRYOVER.—Except for water that may be called for and released after the end of the irrigation season (either as City of Prineville groundwater pumping mitigation or as a voluntary release, in accordance with section 4 of this Act and section 6(c) of the Crooked River Collaborative Water Security and Jobs Act of 2014, respectively), any water stored under this section that is not called for and released by the end of the irrigation season in a given year shall be—

''(1) carried over to the subsequent water year, which, for accounting purposes, shall be considered to be the 1-year period beginning October 1 and ending September 30, consistent with Oregon State law; and

''(2) accounted for as part of the 'first fill' storage quantities of the subsequent water year, but not to exceed the maximum 'first fill' storage quantities described in subsection (a).

''SEC. 7. STORAGE AND RELEASE OF REMAINING STORED WATER QUANTITIES.

''(a) AUTHORIZATION.—

''(1) IN GENERAL.—The Secretary shall store in and release from Prineville Reservoir sufficient quantities of remaining stored quantities to be released pursuant to the annual release schedule under subsection (b) and to provide instream flows consistent, to the maximum extent practicable, with the recommendations for in-channel strategies in the plan prepared by the Northwest Power and Conservation Council entitled 'Deschutes Subbasin Plan' and dated March 24, 2005, for flow between Bowman Dam and Lake Billy Chinook.

''(2) REQUIREMENTS.—In calculating the quantity of released water under paragraph (1), the Secretary shall—

''(A) comply with the flood curve requirements of the Corps of Engineers; and

''(B) credit toward the requirements of paragraph (1) the instream flow benefits provided by—

''(i) the quantities released under section 4;

''(ii) the 'first fill' quantities released under section 6; and

''(iii) any quantities released to comply with the flood curve requirements of the Corps of Engineers.

''(3) USE OF UNCONTRACTED WATER.—If a consultation conducted under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) or an order of a court in a proceeding under that Act requires releases of stored water from Prineville Reservoir for fish and wildlife downstream of Bowman Dam, the Secretary shall use uncontracted water under paragraph (1).

''(4) STATE WATER LAW.—All releases and downstream uses authorized under paragraph (1) shall be in accordance with Oregon State water law.

''(b) ANNUAL RELEASE SCHEDULE.—The Commissioner of Reclamation, in consultation with the Assistant Administrator of Fisheries of the National Marine Fisheries Service and the Director of the United States Fish and Wildlife Service, shall develop annual release schedules for the remaining stored water quantities (including the quantities described in subsection (a) and the water serving as mitigation for City of Prineville groundwater pumping pursuant to section 4) that maximizes, to the maximum extent practicable, benefits to downstream fish and wildlife.

''(c) CARRYOVER.—Any water stored under subsection (a) in 1 water year that is not released during the water year—

''(1) shall be carried over to the subsequent water year; and

''(2)(A) may be released for downstream fish and wildlife resources, consistent with subsection (b), until the reservoir reaches maximum capacity in the subsequent water year; and

''(B) once the reservoir reaches maximum capacity under subparagraph (A), shall be credited to the 'first fill' storage quantities, but not to exceed the maximum 'first fill' storage quantities described in section 6(a).

''(d) EFFECT.—Nothing in this section affects the authority of the Commissioner of Reclamation to perform all other traditional and routine activities associated with the Crooked River Project.

''SEC. 8. RESERVOIR LEVELS.

''The Commissioner of Reclamation shall—

''(1) project reservoir water levels over the course of the year; and

''(2) make the projections under paragraph (1) available to—

''(A) the public (including fisheries groups, recreation interests, and municipal and irrigation stakeholders);

''(B) the Assistant Administrator of Fisheries of the National Marine Fisheries Service; and

''(C) the Director of the United States Fish and Wildlife Service.

''SEC. 9. EFFECT.

''Except as otherwise provided in this Act, nothing in this Act—

''(1) modifies contractual rights that may exist between contractors and the United States under Reclamation contracts;

''(2) amends or reopens contracts referred to in paragraph (1); or

''(3) modifies any rights, obligations, or requirements that may be provided or governed by Federal or Oregon State law.''.

SEC. 5. OCHOCO IRRIGATION DISTRICT.

(a) EARLY REPAYMENT.—

(1) IN GENERAL.—Notwithstanding section 213 of the Reclamation Reform Act of 1982 (43 U.S.C. 390mm), any landowner within Ochoco Irrigation District, Oregon (referred to in this section as the ''district''), may repay, at any time, the construction costs of the project facilities allocated to the land of the landowner within the district.

(2) EXEMPTION FROM LIMITATIONS.—Upon discharge, in full, of the obligation for repayment of the construction costs allocated to all land of the landowner in the district, the land shall not be subject to the ownership and full-cost pricing limitations of Federal reclamation law (the Act of June 17, 1902 (32 Stat. 388, chapter 1093), and Acts supplemental to and amendatory of that Act (43 U.S.C. 371 et seq.)).

(b) CERTIFICATION.—Upon the request of a landowner who has repaid, in full, the construction costs of the project facilities allocated to the land of the landowner within the district, the Secretary of the Interior shall provide the certification described in section 213(b)(1) of the Reclamation Reform Act of 1982 (43 U.S.C. 390mm(b)(1)).

(c) CONTRACT AMENDMENT.—On approval of the district directors and notwithstanding project authorizing authority to the contrary, the Reclamation contracts of the district are modified, without further action by the Secretary of the Interior—

(1) to authorize the use of water for instream purposes, including fish or wildlife purposes, in order for the district to engage in, or take advantage of, conserved water projects and temporary instream leasing as authorized by Oregon State law;

(2) to include within the district boundary approximately 2,742 acres in the vicinity of McKay Creek, resulting in a total of approximately 44,937 acres within the district boundary;

(3) to classify as irrigable approximately 685 acres within the approximately 2,742 acres of included land in the vicinity of McKay Creek, with those approximately 685 acres authorized to receive irrigation water pursuant to water rights issued by the State of Oregon if the acres have in the past received water pursuant to State water rights; and

(4) to provide the district with stored water from Prineville Reservoir for purposes of supplying up to the approximately 685 acres of land added within the district boundary and classified as irrigable under paragraphs (2) and (3), with the stored water to be supplied on an acre-per-acre basis contingent on the transfer of existing appurtenant McKay Creek water rights to instream use and the issuance of water rights by the State of Oregon for the use of stored water.

(d) LIMITATION.—Except as otherwise provided in subsections (a) and (c), nothing in this section—

(1) modifies contractual rights that may exist between the district and the United States under the Reclamation contracts of the district;

(2) amends or reopens the contracts referred to in paragraph (1); or

(3) modifies any rights, obligations, or relationships that may exist between the district and any owner of land within the district, as may be provided or governed by Federal or Oregon State law.

SEC. 6. DRY-YEAR MANAGEMENT PLANNING AND VOLUNTARY RELEASES.

(a) PARTICIPATION IN DRY-YEAR MANAGEMENT PLANNING MEETINGS.—The Bureau of Reclamation shall participate in dry-year management planning meetings with the State of Oregon, the Confederated Tribes of the Warm Springs Reservation of Oregon, municipal, agricultural, conservation, recreation, and other interested stakeholders to plan for dry-year conditions.

(b) DRY-YEAR MANAGEMENT PLAN.—

(1) IN GENERAL.—Not later than 3 years after the date of enactment of this Act, the Bureau of Reclamation shall develop a dry-year management plan in coordination with the participants referred to in subsection (a).

(2) REQUIREMENTS.—The plan developed under paragraph (1) shall only recommend strategies, measures, and actions that the irrigation districts and other Bureau of Reclamation contract holders voluntarily agree to implement.

(3) LIMITATIONS.—Nothing in the plan developed under paragraph (1) shall be mandatory or self-implementing.

(c) VOLUNTARY RELEASE.—In any year, if North Unit Irrigation District or other eligible Bureau of Reclamation contract holders have not initiated contracting with the Bureau of Reclamation for any quantity of the 10,000 acre feet of water described in subsection (a)(3) of section 6 of the Act of August 6, 1956 (70 Stat. 1058) (as added by section 4), by June 1 of any calendar year, with the voluntary agreement of North Unit Irrigation District and other Bureau of Reclamation contract holders referred to in that paragraph, the Secretary may release that quantity of water for the benefit of downstream fish and wildlife as described in section 7 of that Act.

SEC. 7. HYDROPOWER DECISION.

Not later than 3 years after the date of enactment of this Act, the Commissioner of Reclamation shall determine the applicability of the jurisdiction of the Commissioner of Reclamation to non-Federal hydropower development pursuant to—

(1) the Memorandum of Understanding between the Federal Energy Regulatory Commission and the Bureau of Reclamation, Department of the Interior, entitled ''Establishment of Processes for the Early Resolution of Issues Related to the Timely Development of Non-Federal Hydroelectric power at the Bureau of Reclamation Facilities'' and signed November 6, 1992 (58 Fed. Reg. 3269); or

(2) any memorandum of understanding that is subsequent or related to the memorandum of understanding described in paragraph (1).

SEC. 8. RELATION TO EXISTING LAWS AND STATUTORY OBLIGATIONS.

Nothing in this Act (or an amendment made by this Act)—

(1) provides to the Secretary the authority to store and release the ''first fill'' quantities provided for in section 6 of the Act of August 6, 1956 (70 Stat. 1058) (as added by section 4) for any purposes other than the purposes provided for in that section, except for—

(A) the potential instream use resulting from conserved water projects and temporary instream leasing as provided for in section 5(c)(1);

(B) the potential release of additional amounts that may result from voluntary actions agreed to through the dry-year management plan developed under section 6(b); and

(C) the potential release of the 10,000 acre feet for downstream fish and wildlife as provided for in section 6(c); or

(2) alters any responsibilities under Oregon State law or Federal law, including section 7 of the Endangered Species Act (16 U.S.C. 1536).

Mr. WALDEN (during the reading). Madam Speaker, I ask unanimous consent that the amendment be considered as read.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Oregon?

There was no objection.

The SPEAKER pro tempore. Is there objection to the original request of the gentleman from Oregon?

There was no objection.

A motion to reconsider was laid on the table.

FURTHER MESSAGE FROM THE SENATE

A further message from the Senate by Ms. Curtis, on of its clerks, announced that the Senate has passed a bill of the following title in which the concurrence of the House is requested:

S. 1353. An act to provide for an ongoing, voluntary public-private partnership to improve cybersecurity, and to strengthen cybersecurity research and development, workforce development and education, and public awareness and preparedness, and for other purposes.

□ 2200

VIOLENCE AGAINST WOMEN REAUTHORIZATION ACT OF 2013 AMENDMENT

Mr. GOODLATTE. Madam Speaker, I ask unanimous consent to take from the Speaker's table the bill (S. 1474) to amend the Violence Against Women Reauthorization Act of 2013 to repeal a special rule for the State of Alaska, and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

The text of the bill is as follows:

S. 1474

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

REPEAL OF SPECIAL RULE FOR STATE OF ALASKA.

Section 910 of the Violence Against Women Reauthorization Act of 2013 (18 U.S.C. 2265 note; Public Law 113–4) is repealed.

The bill was ordered to be read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

CYBERSECURITY ENHANCEMENT ACT OF 2014

Mr. MCCAUL. Madam Speaker, I ask unanimous consent to take from the Speaker's table the bill (S. 1353) to provide for an ongoing, voluntary public-private partnership to improve cybersecurity, and to strengthen cybersecurity research and development, workforce development and education, and public awareness and preparedness, and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

The text of the bill is as follows:

S. 1353

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Cybersecurity Enhancement Act of 2014''.

(b) TABLE OF CONTENTS.—The table of contents of this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Definitions.
Sec. 3. No regulatory authority.
Sec. 4. No additional funds authorized.

TITLE I—PUBLIC-PRIVATE COLLABORATION ON CYBERSECURITY

Sec. 101. Public-private collaboration on cybersecurity.

TITLE II—CYBERSECURITY RESEARCH AND DEVELOPMENT

Sec. 201. Federal cybersecurity research and development.
Sec. 202. Computer and network security research centers.
Sec. 203. Cybersecurity automation and checklists for government systems.
Sec. 204. National Institute of Standards and Technology cybersecurity research and development.

TITLE III—EDUCATION AND WORKFORCE DEVELOPMENT

Sec. 301. Cybersecurity competitions and challenges.
Sec. 302. Federal cyber scholarship-for-service program.

TITLE IV—CYBERSECURITY AWARENESS AND PREPAREDNESS

Sec. 401. National cybersecurity awareness and education program.

TITLE V—ADVANCEMENT OF CYBERSECURITY TECHNICAL STANDARDS

Sec. 501. Definitions.
Sec. 502. International cybersecurity technical standards.
Sec. 503. Cloud computing strategy.
Sec. 504. Identity management research and development.

SEC. 2. DEFINITIONS.

In this Act:

(1) CYBERSECURITY MISSION.—The term ''cybersecurity mission'' means activities that encompass the full range of threat reduction, vulnerability reduction, deterrence, international engagement, incident response, resiliency, and recovery policies and activities, including computer network operations, information assurance, law enforcement, diplomacy, military, and intelligence missions as such activities relate to the security and stability of cyberspace.

(2) INFORMATION SYSTEM.—The term ''information system'' has the meaning given that term in section 3502 of title 44, United States Code.

SEC. 3. NO REGULATORY AUTHORITY.

Nothing in this Act shall be construed to confer any regulatory authority on any Federal, State, tribal, or local department or agency.

SEC. 4. NO ADDITIONAL FUNDS AUTHORIZED.

No additional funds are authorized to carry out this Act, and the amendments made by this Act. This Act, and the amendments made by this Act, shall be carried out using amounts otherwise authorized or appropriated.

TITLE I—PUBLIC-PRIVATE COLLABORATION ON CYBERSECURITY

SEC. 101. PUBLIC-PRIVATE COLLABORATION ON CYBERSECURITY.

(a) CYBERSECURITY.—Section 2(c) of the National Institute of Standards and Technology Act (15 U.S.C. 272(c)) is amended—

(1) by redesignating paragraphs (15) through (22) as paragraphs (16) through (23), respectively; and

(2) by inserting after paragraph (14) the following:

''(15) on an ongoing basis, facilitate and support the development of a voluntary, consensus-based, industry-led set of standards, guidelines, best practices, methodologies, procedures, and processes to cost-effectively reduce cyber risks to critical infrastructure (as defined under subsection (e));''.

(b) SCOPE AND LIMITATIONS.—Section 2 of the National Institute of Standards and Technology Act (15 U.S.C. 272) is amended by adding at the end the following:

''(e) CYBER RISKS.—

''(1) IN GENERAL.—In carrying out the activities under subsection (c)(15), the Director—

''(A) shall—

''(i) coordinate closely and regularly with relevant private sector personnel and entities, critical infrastructure owners and operators, and other relevant industry organizations, including Sector Coordinating Councils and Information Sharing and Analysis Centers, and incorporate industry expertise;

''(ii) consult with the heads of agencies with national security responsibilities, sector-specific agencies and other appropriate agencies, State and local governments, the governments of other nations, and international organizations;

''(iii) identify a prioritized, flexible, repeatable, performance-based, and cost-effective approach, including information security measures and controls, that may be voluntarily adopted by owners and operators of critical infrastructure to help them identify, assess, and manage cyber risks;

''(iv) include methodologies—

''(I) to identify and mitigate impacts of the cybersecurity measures or controls on business confidentiality; and

''(II) to protect individual privacy and civil liberties;

''(v) incorporate voluntary consensus standards and industry best practices;

''(vi) align with voluntary international standards to the fullest extent possible;

''(vii) prevent duplication of regulatory processes and prevent conflict with or superseding of regulatory requirements, mandatory standards, and related processes; and

''(viii) include such other similar and consistent elements as the Director considers necessary; and

''(B) shall not prescribe or otherwise require—

''(i) the use of specific solutions;

''(ii) the use of specific information or communications technology products or services; or

''(iii) that information or communications technology products or services be designed, developed, or manufactured in a particular manner.

''(2) LIMITATION.—Information shared with or provided to the Institute for the purpose of the activities described under subsection (c)(15) shall not be used by any Federal, State, tribal, or local department or agency to regulate the activity of any entity. Nothing in this paragraph shall be construed to modify any regulatory requirement to report or submit information to a Federal, State, tribal, or local department or agency.

''(3) DEFINITIONS.—In this subsection:

''(A) CRITICAL INFRASTRUCTURE.—The term 'critical infrastructure' has the meaning given the term in section 1016(e) of the USA PATRIOT Act of 2001 (42 U.S.C. 5195c(e)).

''(B) SECTOR-SPECIFIC AGENCY.—The term 'sector-specific agency' means the Federal department or agency responsible for providing institutional knowledge and specialized expertise as well as leading, facilitating, or supporting the security and resilience programs and associated activities of its designated critical infrastructure sector in the all-hazards environment.''.

(c) STUDY AND REPORTS.—

(1) STUDY.—The Comptroller General of the United States shall conduct a study that assesses—

(A) the progress made by the Director of the National Institute of Standards and Technology in facilitating the development of standards and procedures to reduce cyber risks to critical infrastructure in accordance with section 2(c)(15) of the National Institute of Standards and Technology Act, as added by this section;

(B) the extent to which the Director's facilitation efforts are consistent with the directive in such section that the development of such standards and procedures be voluntary and led by industry representatives;

(C) the extent to which other Federal agencies have promoted and sectors of critical infrastructure (as defined in section 1016(e) of the USA PATRIOT Act of 2001 (42 U.S.C. 5195c(e))) have adopted a voluntary, industry-led set of standards, guidelines, best practices, methodologies, procedures, and processes to reduce cyber risks to critical infrastructure in accordance with such section 2(c)(15);

(D) the reasons behind the decisions of sectors of critical infrastructure (as defined in subparagraph (C)) to adopt or to not adopt the voluntary standards described in subparagraph (C); and

(E) the extent to which such voluntary standards have proved successful in protecting critical infrastructure from cyber threats.

(2) REPORTS.—Not later than 1 year after the date of the enactment of this Act, and every 2 years thereafter for the following 6 years, the Comptroller General shall submit a report, which summarizes the findings of the study conducted under paragraph (1), to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Science, Space, and Technology of the House of Representatives.

TITLE II—CYBERSECURITY RESEARCH AND DEVELOPMENT

SEC. 201. FEDERAL CYBERSECURITY RESEARCH AND DEVELOPMENT.

(a) FUNDAMENTAL CYBERSECURITY RESEARCH.—

(1) FEDERAL CYBERSECURITY RESEARCH AND DEVELOPMENT STRATEGIC PLAN.—The heads of the applicable agencies and departments, working through the National Science and Technology Council and the Networking and Information Technology Research and Development Program, shall develop and update every 4 years a Federal cybersecurity research and development strategic plan (referred to in this subsection as the ''strategic plan'') based on an assessment of cybersecurity risk to guide the overall direction of Federal cybersecurity and information assurance research and development for information technology and networking systems. The heads of the applicable agencies and departments shall build upon existing programs and plans to develop the strategic plan to meet objectives in cybersecurity, such as—

(A) how to design and build complex software-intensive systems that are secure and reliable when first deployed;

(B) how to test and verify that software and hardware, whether developed locally or obtained from a third party, is free of significant known security flaws;

(C) how to test and verify that software and hardware obtained from a third party correctly implements stated functionality, and only that functionality;

(D) how to guarantee the privacy of an individual, including that individual's identity, information, and lawful transactions when stored in distributed systems or transmitted over networks;

(E) how to build new protocols to enable the Internet to have robust security as one of the key capabilities of the Internet;

(F) how to determine the origin of a message transmitted over the Internet;

(G) how to support privacy in conjunction with improved security;

(H) how to address the problem of insider threats;

(I) how improved consumer education and digital literacy initiatives can address human factors that contribute to cybersecurity;

(J) how to protect information processed, transmitted, or stored using cloud computing or transmitted through wireless services; and

(K) any additional objectives the heads of the applicable agencies and departments, in coordination with the head of any relevant Federal agency and with input from stakeholders, including appropriate national laboratories, industry, and academia, determine appropriate.

(2) REQUIREMENTS.—

(A) CONTENTS OF PLAN.—The strategic plan shall—

(i) specify and prioritize near-term, mid-term, and long-term research objectives, including objectives associated with the research identified in section 4(a)(1) of the Cyber Security Research and Development Act (15 U.S.C. 7403(a)(1));

(ii) specify how the near-term objectives described in clause (i) complement research and development areas in which the private sector is actively engaged;

(iii) describe how the heads of the applicable agencies and departments will focus on innovative, transformational technologies with the potential to enhance the security, reliability, resilience, and trustworthiness of the digital infrastructure, and to protect consumer privacy;

(iv) describe how the heads of the applicable agencies and departments will foster the rapid transfer of research and development results into new cybersecurity technologies and applications for the timely benefit of society and the national interest, including through the dissemination of best practices and other outreach activities;

(v) describe how the heads of the applicable agencies and departments will establish and maintain a national research infrastructure for creating, testing, and evaluating the next generation of secure networking and information technology systems; and

(vi) describe how the heads of the applicable agencies and departments will facilitate access by academic researchers to the infrastructure described in clause (v), as well as to relevant data, including event data.

(B) PRIVATE SECTOR EFFORTS.—In developing, implementing, and updating the strategic plan, the heads of the applicable agencies and departments, working through the National Science and Technology Council and Networking and Information Technology Research and Development Program, shall work in close cooperation with industry, academia, and other interested stakeholders to ensure, to the extent possible, that Federal cybersecurity research and development is not duplicative of private sector efforts.

(C) RECOMMENDATIONS.—In developing and updating the strategic plan the heads of the applicable agencies and departments shall solicit recommendations and advice from—

(i) the advisory committee established under section 101(b)(1) of the High-Performance Computing Act of 1991 (15 U.S.C. 5511(b)(1)); and

(ii) a wide range of stakeholders, including industry, academia, including representatives of minority serving institutions and community colleges, National Laboratories, and other relevant organizations and institutions.

(D) IMPLEMENTATION ROADMAP.—The heads of the applicable agencies and departments, working through the National Science and Technology Council and Networking and Information Technology Research and Development Program, shall develop and annually update an implementation roadmap for the strategic plan. The implementation roadmap shall—

(i) specify the role of each Federal agency in carrying out or sponsoring research and development to meet the research objectives of the strategic plan, including a description of how progress toward the research objectives will be evaluated;

(ii) specify the funding allocated to each major research objective of the strategic plan and the source of funding by agency for the current fiscal year;

(iii) estimate the funding required for each major research objective of the strategic plan for the following 3 fiscal years; and

(iv) track ongoing and completed Federal cybersecurity research and development projects.

(3) REPORTS TO CONGRESS.—The heads of the applicable agencies and departments, working through the National Science and Technology Council and Networking and Information Technology Research and Development Program, shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Science, Space, and Technology of the House of Representatives—

(A) the strategic plan not later than 1 year after the date of enactment of this Act;

(B) each quadrennial update to the strategic plan; and

(C) the implementation roadmap under subparagraph (D), and its annual updates, which shall be appended to the annual report required under section 101(a)(2)(D) of the High-Performance Computing Act of 1991 (15 U.S.C. 5511(a)(2)(D)).

(4) DEFINITION OF APPLICABLE AGENCIES AND DEPARTMENTS.—In this subsection, the term ''applicable agencies and departments'' means the agencies and departments identified in clauses (i) through (x) of section 101(a)(3)(B) of the High-Performance Computing Act of 1991 (15 U.S.C. 5511(a)(3)(B)) or designated under clause (xi) of that section.

(b) CYBERSECURITY PRACTICES RESEARCH.—The Director of the National Science Foundation shall support research that—

(1) develops, evaluates, disseminates, and integrates new cybersecurity practices and concepts into the core curriculum of computer science programs and of other programs where graduates of such programs have a substantial probability of developing software after graduation, including new practices and concepts relating to secure coding education and improvement programs; and

(2) develops new models for professional development of faculty in cybersecurity education, including secure coding development.

(c) CYBERSECURITY MODELING AND TEST BEDS.—

(1) REVIEW.—Not later than 1 year after the date of enactment of this Act, the Director of the National Science Foundation, in coordination with the Director of the Office of Science and Technology Policy, shall conduct a review of cybersecurity test beds in existence on the date of enactment of this Act to inform the grants under paragraph (2). The review shall include an assessment of whether a sufficient number of cybersecurity test beds are available to meet the research needs under the Federal cybersecurity research and development strategic plan. Upon completion, the Director shall submit the review to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Science, Space, and Technology of the House of Representatives.

(2) ADDITIONAL CYBERSECURITY MODELING AND TEST BEDS.—

(A) IN GENERAL.—If the Director of the National Science Foundation, after the review under paragraph (1), determines that the research needs under the Federal cybersecurity research and development strategic plan require the establishment of additional cybersecurity test beds, the Director of the National Science Foundation, in coordination with the Secretary of Commerce and the Secretary of Homeland Security, may award grants to institutions of higher education or research and development non-profit institutions to establish cybersecurity test beds.

(B) REQUIREMENT.—The cybersecurity test beds under subparagraph (A) shall be sufficiently robust in order to model the scale and complexity of real-time cyber attacks and defenses on real world networks and environments.

(C) ASSESSMENT REQUIRED.—The Director of the National Science Foundation, in coordination with the Secretary of Commerce and the Secretary of Homeland Security, shall evaluate the effectiveness of any grants awarded under this subsection in meeting the objectives of the Federal cybersecurity research and development strategic plan not later than 2 years after the review under paragraph (1) of this subsection, and periodically thereafter.

(d) COORDINATION WITH OTHER RESEARCH INITIATIVES.—In accordance with the responsibilities under section 101 of the High-Performance Computing Act of 1991 (15 U.S.C. 5511), the Director of the Office of Science and Technology Policy shall coordinate, to the extent practicable, Federal research and development activities under this section with other ongoing research and development security-related initiatives, including research being conducted by—

(1) the National Science Foundation;

(2) the National Institute of Standards and Technology;

(3) the Department of Homeland Security;

(4) other Federal agencies;

(5) other Federal and private research laboratories, research entities, and universities;

(6) institutions of higher education;

(7) relevant nonprofit organizations; and

(8) international partners of the United States.

(e) NATIONAL SCIENCE FOUNDATION COMPUTER AND NETWORK SECURITY RESEARCH GRANT AREAS.—Section 4(a)(1) of the Cyber Security Research and Development Act (15 U.S.C. 7403(a)(1)) is amended—

(1) in subparagraph (H), by striking ''and'' at the end;

(2) in subparagraph (I), by striking the period at the end and inserting a semicolon; and

(3) by adding at the end the following:

''(J) secure fundamental protocols that are integral to inter-network communications and data exchange;

''(K) secure software engineering and software assurance, including—

''(i) programming languages and systems that include fundamental security features;

''(ii) portable or reusable code that remains secure when deployed in various environments;

''(iii) verification and validation technologies to ensure that requirements and specifications have been implemented; and

''(iv) models for comparison and metrics to assure that required standards have been met;

''(L) holistic system security that—

''(i) addresses the building of secure systems from trusted and untrusted components;

''(ii) proactively reduces vulnerabilities;

''(iii) addresses insider threats; and

''(iv) supports privacy in conjunction with improved security;

''(M) monitoring and detection;

''(N) mitigation and rapid recovery methods;

''(O) security of wireless networks and mobile devices; and

''(P) security of cloud infrastructure and services.''.

(f) RESEARCH ON THE SCIENCE OF CYBERSECURITY.—The head of each agency and department identified under section 101(a)(3)(B) of the High-Performance Computing Act of 1991 (15 U.S.C. 5511(a)(3)(B)), through existing programs and activities, shall support research that will lead to the development of a scientific foundation for the field of cybersecurity, including research that increases understanding of the underlying principles of securing complex networked systems, enables repeatable experimentation, and creates quantifiable security metrics.

SEC. 202. COMPUTER AND NETWORK SECURITY RESEARCH CENTERS.

Section 4(b) of the Cyber Security Research and Development Act (15 U.S.C. 7403(b)) is amended—

(1) in paragraph (3), by striking ''the research areas'' and inserting the following: ''improving the security and resiliency of information technology, reducing cyber vulnerabilities, and anticipating and mitigating consequences of cyber attacks on critical infrastructure, by conducting research in the areas'';

(2) by striking ''the center'' in paragraph (4)(D) and inserting ''the Center''; and

(3) in paragraph (5)—

(A) by striking ''and'' at the end of subparagraph (C);

(B) by striking the period at the end of subparagraph (D) and inserting a semicolon; and

(C) by adding at the end the following:

''(E) the demonstrated capability of the applicant to conduct high performance computation integral to complex computer and network security research, through on-site or off-site computing;

''(F) the applicant's affiliation with private sector entities involved with industrial research described in subsection (a)(1);

''(G) the capability of the applicant to conduct research in a secure environment;

''(H) the applicant's affiliation with existing research programs of the Federal Government;

''(I) the applicant's experience managing public-private partnerships to transition new technologies into a commercial setting or the government user community;

''(J) the capability of the applicant to conduct interdisciplinary cybersecurity research, basic and applied, such as in law, economics, or behavioral sciences; and

''(K) the capability of the applicant to conduct research in areas such as systems security, wireless security, networking and protocols, formal methods and high-performance computing, nanotechnology, or industrial control systems.''.

SEC. 203. CYBERSECURITY AUTOMATION AND CHECKLISTS FOR GOVERNMENT SYSTEMS.

Section 8(c) of the Cyber Security Research and Development Act (15 U.S.C. 7406(c)) is amended to read as follows:

''(c) SECURITY AUTOMATION AND CHECKLISTS FOR GOVERNMENT SYSTEMS.—

''(1) IN GENERAL.—The Director of the National Institute of Standards and Technology shall, as necessary, develop and revise security automation standards, associated reference materials (including protocols), and checklists providing settings and option selections that minimize the security risks associated with each information technology hardware or software system and security tool that is, or is likely to become, widely used within the Federal Government, thereby enabling standardized and interoperable technologies, architectures, and frameworks for continuous monitoring of information security within the Federal Government.

''(2) PRIORITIES FOR DEVELOPMENT.—The Director of the National Institute of Standards and Technology shall establish priorities for the development of standards, reference materials, and checklists under this subsection on the basis of—

''(A) the security risks associated with the use of the system;

''(B) the number of agencies that use a particular system or security tool;

''(C) the usefulness of the standards, reference materials, or checklists to Federal agencies that are users or potential users of the system;

''(D) the effectiveness of the associated standard, reference material, or checklist in creating or enabling continuous monitoring of information security; or

''(E) such other factors as the Director of the National Institute of Standards and Technology determines to be appropriate.

''(3) EXCLUDED SYSTEMS.—The Director of the National Institute of Standards and Technology may exclude from the application of paragraph (1) any information technology hardware or software system or security tool for which such Director determines that the development of a standard, reference material, or checklist is inappropriate because of the infrequency of use of the system, the obsolescence of the system, or the lack of utility or impracticability of developing a standard, reference material, or checklist for the system.

''(4) DISSEMINATION OF STANDARDS AND RELATED MATERIALS.—The Director of the National Institute of Standards and Technology shall ensure that Federal agencies are informed of the availability of any standard, reference material, checklist, or other item developed under this subsection.

''(5) AGENCY USE REQUIREMENTS.—The development of standards, reference materials, and checklists under paragraph (1) for an information technology hardware or software system or tool does not—

''(A) require any Federal agency to select the specific settings or options recommended by the standard, reference material, or checklist for the system;

''(B) establish conditions or prerequisites for Federal agency procurement or deployment of any such system;

''(C) imply an endorsement of any such system by the Director of the National Institute of Standards and Technology; or

''(D) preclude any Federal agency from procuring or deploying other information technology hardware or software systems for which no such standard, reference material, or checklist has been developed or identified under paragraph (1).''.

SEC. 204. NATIONAL INSTITUTE OF STANDARDS AND TECHNOLOGY CYBERSECURITY RESEARCH AND DEVELOPMENT.

Section 20 of the National Institute of Standards and Technology Act (15 U.S.C. 278g–3) is amended—

(1) by redesignating subsection (e) as subsection (f); and

(2) by inserting after subsection (d) the following:

''(e) INTRAMURAL SECURITY RESEARCH.—As part of the research activities conducted in accordance with subsection (d)(3), the Institute shall, to the extent practicable and appropriate—

''(1) conduct a research program to develop a unifying and standardized identity, privilege, and access control management framework for the execution of a wide variety of resource protection policies and that is amenable to implementation within a wide variety of existing and emerging computing environments;

''(2) carry out research associated with improving the security of information systems and networks;

''(3) carry out research associated with improving the testing, measurement, usability, and assurance of information systems and networks;

''(4) carry out research associated with improving security of industrial control systems;

''(5) carry out research associated with improving the security and integrity of the information technology supply chain; and

''(6) carry out any additional research the Institute determines appropriate.''.

TITLE III—EDUCATION AND WORKFORCE DEVELOPMENT

SEC. 301. CYBERSECURITY COMPETITIONS AND CHALLENGES.

(a) IN GENERAL.—The Secretary of Commerce, Director of the National Science Foundation, and Secretary of Homeland Security, in consultation with the Director of the Office of Personnel Management, shall—

(1) support competitions and challenges under section 24 of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3719) (as amended by section 105 of the America COMPETES Reauthorization Act of 2010 (124 Stat. 3989)) or any other provision of law, as appropriate—

(A) to identify, develop, and recruit talented individuals to perform duties relating to the security of information technology in Federal, State, local, and tribal government agencies, and the private sector; or

(B) to stimulate innovation in basic and applied cybersecurity research, technology development, and prototype demonstration that has the potential for application to the information technology activities of the Federal Government; and

(2) ensure the effective operation of the competitions and challenges under this section.

(b) PARTICIPATION.—Participants in the competitions and challenges under subsection (a)(1) may include—

(1) students enrolled in grades 9 through 12;

(2) students enrolled in a postsecondary program of study leading to a baccalaureate degree at an institution of higher education;

(3) students enrolled in a postbaccalaureate program of study at an institution of higher education;

(4) institutions of higher education and research institutions;

(5) veterans; and

(6) other groups or individuals that the Secretary of Commerce, Director of the National Science Foundation, and Secretary of Homeland Security determine appropriate.

(c) AFFILIATION AND COOPERATIVE AGREEMENTS.—Competitions and challenges under this section may be carried out through affiliation and cooperative agreements with—

(1) Federal agencies;

(2) regional, State, or school programs supporting the development of cyber professionals;

(3) State, local, and tribal governments; or

(4) other private sector organizations.

(d) AREAS OF SKILL.—Competitions and challenges under subsection (a)(1)(A) shall be designed to identify, develop, and recruit exceptional talent relating to—

(1) ethical hacking;

(2) penetration testing;

(3) vulnerability assessment;

(4) continuity of system operations;

(5) security in design;

(6) cyber forensics;

(7) offensive and defensive cyber operations; and

(8) other areas the Secretary of Commerce, Director of the National Science Foundation, and Secretary of Homeland Security consider necessary to fulfill the cybersecurity mission.

(e) TOPICS.—In selecting topics for competitions and challenges under subsection (a)(1), the Secretary of Commerce, Director of the National Science Foundation, and Secretary of Homeland Security—

(1) shall consult widely both within and outside the Federal Government; and

(2) may empanel advisory committees.

(f) INTERNSHIPS.—The Director of the Office of Personnel Management may support, as appropriate, internships or other work experience in the Federal Government to the winners of the competitions and challenges under this section.

SEC. 302. FEDERAL CYBER SCHOLARSHIP-FOR-SERVICE PROGRAM.

(a) IN GENERAL.—The Director of the National Science Foundation, in coordination with the Director of the Office of Personnel Management and Secretary of Homeland Security, shall continue a Federal cyber scholarship-for-service program to recruit and train the next generation of information technology professionals, industrial control system security professionals, and security managers to meet the needs of the cybersecurity mission for Federal, State, local, and tribal governments.

(b) PROGRAM DESCRIPTION AND COMPONENTS.—The Federal Cyber Scholarship-for-Service Program shall—

(1) provide scholarships through qualified institutions of higher education, including community colleges, to students who are enrolled in programs of study at institutions of higher education leading to degrees or specialized program certifications in the cybersecurity field;

(2) provide the scholarship recipients with summer internship opportunities or other meaningful temporary appointments in the Federal information technology workforce; and

(3) prioritize the employment placement of scholarship recipients in the Federal Government.

(c) SCHOLARSHIP AMOUNTS.—Each scholarship under subsection (b) shall be in an amount that covers the student's tuition and fees at the institution under subsection (b)(1) for not more than 3 years and provides the student with an additional stipend.

(d) POST-AWARD EMPLOYMENT OBLIGATIONS.—Each scholarship recipient, as a condition of receiving a scholarship under the program, shall enter into an agreement under which the recipient agrees to work in the cybersecurity mission of a Federal, State, local, or tribal agency for a period equal to the length of the scholarship following receipt of the student's degree.

(e) HIRING AUTHORITY.—

(1) APPOINTMENT IN EXCEPTED SERVICE.—Notwithstanding any provision of chapter 33 of title 5, United States Code, governing appointments in the competitive service, an agency shall appoint in the excepted service an individual who has completed the eligible degree program for which a scholarship was awarded.

(2) NONCOMPETITIVE CONVERSION.—Except as provided in paragraph (4), upon fulfillment of the service term, an employee appointed under paragraph (1) may be converted noncompetitively to term, career-conditional or career appointment.

(3) TIMING OF CONVERSION.—An agency may noncompetitively convert a term employee appointed under paragraph (2) to a career-conditional or career appointment before the term appointment expires.

(4) AUTHORITY TO DECLINE CONVERSION.—An agency may decline to make the noncompetitive conversion or appointment under paragraph (2) for cause.

(f) ELIGIBILITY.—To be eligible to receive a scholarship under this section, an individual shall—

(1) be a citizen or lawful permanent resident of the United States;

(2) demonstrate a commitment to a career in improving the security of information technology;

(3) have demonstrated a high level of proficiency in mathematics, engineering, or computer sciences;

(4) be a full-time student in an eligible degree program at a qualified institution of higher education, as determined by the Director of the National Science Foundation; and

(5) accept the terms of a scholarship under this section.

(g) CONDITIONS OF SUPPORT.—

(1) IN GENERAL.—As a condition of receiving a scholarship under this section, a recipient shall agree to provide the qualified institution of higher education with annual verifiable documentation of post-award employment and up-to-date contact information.

(2) TERMS.—A scholarship recipient under this section shall be liable to the United States as provided in subsection (i) if the individual—

(A) fails to maintain an acceptable level of academic standing at the applicable institution of higher education, as determined by the Director of the National Science Foundation;

(B) is dismissed from the applicable institution of higher education for disciplinary reasons;

(C) withdraws from the eligible degree program before completing the program;

(D) declares that the individual does not intend to fulfill the post-award employment obligation under this section; or

(E) fails to fulfill the post-award employment obligation of the individual under this section.

(h) MONITORING COMPLIANCE.—As a condition of participating in the program, a qualified institution of higher education shall—

(1) enter into an agreement with the Director of the National Science Foundation, to monitor the compliance of scholarship recipients with respect to their post-award employment obligations; and

(2) provide to the Director of the National Science Foundation, on an annual basis, the post-award employment documentation required under subsection (g)(1) for scholarship recipients through the completion of their post-award employment obligations.

(i) AMOUNT OF REPAYMENT.—

(1) LESS THAN 1 YEAR OF SERVICE.—If a circumstance described in subsection (g)(2) occurs before the completion of 1 year of a post-award employment obligation under this section, the total amount of scholarship awards received by the individual under this section shall—

(A) be repaid; or

(B) be treated as a loan to be repaid in accordance with subsection (j).

(2) 1 OR MORE YEARS OF SERVICE.—If a circumstance described in subparagraph (D) or (E) of subsection (g)(2) occurs after the completion of 1 or more years of a post-award employment obligation under this section, the total amount of scholarship awards received by the individual under this section, reduced by the ratio of the number of years of service completed divided by the number of years of service required, shall—

(A) be repaid; or

(B) be treated as a loan to be repaid in accordance with subsection (j).

(j) REPAYMENTS.—A loan described subsection (i) shall—

(1) be treated as a Federal Direct Unsubsidized Stafford Loan under part D of title IV of the Higher Education Act of 1965 (20 U.S.C. 1087a et seq.); and

(2) be subject to repayment, together with interest thereon accruing from the date of the scholarship award, in accordance with terms and conditions specified by the Director of the National Science Foundation (in consultation with the Secretary of Education) in regulations promulgated to carry out this subsection.

(k) COLLECTION OF REPAYMENT.—

(1) IN GENERAL.—In the event that a scholarship recipient is required to repay the scholarship award under this section, the qualified institution of higher education providing the scholarship shall—

(A) determine the repayment amounts and notify the recipient and the Director of the National Science Foundation of the amounts owed; and

(B) collect the repayment amounts within a period of time as determined by the Director of the National Science Foundation, or the repayment amounts shall be treated as a loan in accordance with subsection (j).

(2) RETURNED TO TREASURY.—Except as provided in paragraph (3), any repayment under this subsection shall be returned to the Treasury of the United States.

(3) RETAIN PERCENTAGE.—A qualified institution of higher education may retain a percentage of any repayment the institution collects under this subsection to defray administrative costs associated with the collection. The Director of the National Science Foundation shall establish a single, fixed percentage that will apply to all eligible entities.

(l) EXCEPTIONS.—The Director of the National Science Foundation may provide for the partial or total waiver or suspension of any service or payment obligation by an individual under this section whenever compliance by the individual with the obligation is impossible or would involve extreme hardship to the individual, or if enforcement of such obligation with respect to the individual would be unconscionable.

(m) EVALUATION AND REPORT.—The Director of the National Science Foundation shall evaluate and report periodically to Congress on the success of recruiting individuals for scholarships under this section and on hiring and retaining those individuals in the public sector workforce.

TITLE IV—CYBERSECURITY AWARENESS AND PREPAREDNESS

SEC. 401. NATIONAL CYBERSECURITY AWARENESS AND EDUCATION PROGRAM.

(a) NATIONAL CYBERSECURITY AWARENESS AND EDUCATION PROGRAM.—The Director of the National Institute of Standards and Technology (referred to in this section as the ''Director''), in consultation with appropriate Federal agencies, industry, educational institutions, National Laboratories, the Networking and Information Technology Research and Development program, and other organizations shall continue to coordinate a national cybersecurity awareness and education program, that includes activities such as—

(1) the widespread dissemination of cybersecurity technical standards and best practices identified by the Director;

(2) efforts to make cybersecurity best practices usable by individuals, small to medium-sized businesses, educational institutions, and State, local, and tribal governments;

(3) increasing public awareness of cybersecurity, cyber safety, and cyber ethics;

(4) increasing the understanding of State, local, and tribal governments, institutions of higher education, and private sector entities of—

(A) the benefits of ensuring effective risk management of information technology versus the costs of failure to do so; and

(B) the methods to mitigate and remediate vulnerabilities;

(5) supporting formal cybersecurity education programs at all education levels to prepare and improve a skilled cybersecurity and computer science workforce for the private sector and Federal, State, local, and tribal government; and

(6) promoting initiatives to evaluate and forecast future cybersecurity workforce needs of the Federal Government and develop strategies for recruitment, training, and retention.

(b) CONSIDERATIONS.—In carrying out the authority described in subsection (a), the Director, in consultation with appropriate Federal agencies, shall leverage existing programs designed to inform the public of safety and security of products or services, including self-certifications and independently verified assessments regarding the quantification and valuation of information security risk.

(c) STRATEGIC PLAN.—The Director, in cooperation with relevant Federal agencies and other stakeholders, shall build upon programs and plans in effect as of the date of enactment of this Act to develop and implement a strategic plan to guide Federal programs and activities in support of the national cybersecurity awareness and education program under subsection (a).

(d) REPORT.—Not later than 1 year after the date of enactment of this Act, and every 5 years thereafter, the Director shall transmit the strategic plan under subsection (c) to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Science, Space, and Technology of the House of Representatives.

TITLE V—ADVANCEMENT OF CYBERSECURITY TECHNICAL STANDARDS

SEC. 501. DEFINITIONS.

In this title:

(1) DIRECTOR.—The term ''Director'' means the Director of the National Institute of Standards and Technology.

(2) INSTITUTE.—The term ''Institute'' means the National Institute of Standards and Technology.

SEC. 502. INTERNATIONAL CYBERSECURITY TECHNICAL STANDARDS.

(a) IN GENERAL.—The Director, in coordination with appropriate Federal authorities, shall—

(1) as appropriate, ensure coordination of Federal agencies engaged in the development of international technical standards related to information system security; and

(2) not later than 1 year after the date of enactment of this Act, develop and transmit to Congress a plan for ensuring such Federal agency coordination.

(b) CONSULTATION WITH THE PRIVATE SECTOR.—In carrying out the activities specified in subsection (a)(1), the Director shall ensure consultation with appropriate private sector stakeholders.

SEC. 503. CLOUD COMPUTING STRATEGY.

(a) IN GENERAL.—The Director, in coordination with the Office of Management and Budget, in collaboration with the Federal Chief Information Officers Council, and in consultation with other relevant Federal agencies and stakeholders from the private sector, shall continue to develop and encourage the implementation of a comprehensive strategy for the use and adoption of cloud computing services by the Federal Government.

(b) ACTIVITIES.—In carrying out the strategy described under subsection (a), the Director shall give consideration to activities that—

(1) accelerate the development, in collaboration with the private sector, of standards that address interoperability and portability of cloud computing services;

(2) advance the development of conformance testing performed by the private sector in support of cloud computing standardization; and

(3) support, in coordination with the Office of Management and Budget, and in consultation with the private sector, the development of appropriate security frameworks and reference materials, and the identification of best practices, for use by Federal agencies to address security and privacy requirements to enable the use and adoption of cloud computing services, including activities—

(A) to ensure the physical security of cloud computing data centers and the data stored in such centers;

(B) to ensure secure access to the data stored in cloud computing data centers;

(C) to develop security standards as required under section 20 of the National Institute of Standards and Technology Act (15 U.S.C. 278g–3); and

(D) to support the development of the automation of continuous monitoring systems.

SEC. 504. IDENTITY MANAGEMENT RESEARCH AND DEVELOPMENT.

The Director shall continue a program to support the development of voluntary and cost-effective technical standards, metrology, testbeds, and conformance criteria, taking into account appropriate user concerns—

(1) to improve interoperability among identity management technologies;

(2) to strengthen authentication methods of identity management systems;

(3) to improve privacy protection in identity management systems, including health information technology systems, through authentication and security protocols; and

(4) to improve the usability of identity management systems.

The bill was ordered to be read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

HOUR OF MEETING ON TOMORROW

Mr. WALDEN. Madam Speaker, I ask unanimous consent that when the House adjourns today, that it adjourn to meet at 3 p.m. tomorrow.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Oregon?

There was no objection.

NOTICE

Incomplete record of House proceedings. Except for concluding business which follows, today's House proceedings will be continued in Book II.

ADJOURNMENT

Mr. GERLACH. Madam Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 10 o'clock and 27 minutes p.m.), under its previous order, the House adjourned until tomorrow, Friday, December 12, 2014, at 3 p.m.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

8233. A letter from the Associate Administrator, Fruit and Vegetable Program Promotion and Economics Division, Department of Agriculture, transmitting the Department's final rule — Mango Promotion, Research, and Information Order; Section 610 Review [Document Number: AMS-FV-14-0047] received December 3, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Agriculture.

8234. A letter from the Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting the Department's final rule — National Poultry Improvement Plan and Auxiliary Provisions; Technical Amendment [Docket No.: APHIS-2011-0101] (RIN: 0579-AD83) received December 4, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Agriculture.

8235. A letter from the Under Secretary, Acquisition, Technology, and Logistics, Department of Defense, transmitting the Report on Efficient Utilization of Department of Defense Real Property, pursuant to Public Law 113-66, section 2814(a); (127 Stat. 1014); to the Committee on Armed Services.

8236. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement; Forward Pricing Rate Proposal Adequacy Checklist (DFARS Case 2012-D035) (RIN: 0750-AH86) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Armed Services.

8237. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement: Animal Welfare (DFARS Case 2013-D038) (RIN: 0750-AI22) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Armed Services.

8238. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement: Elimination of Quarterly Reporting of Actual Performance Outside the United States (DFARS Case 2015-D001) (RIN: 0750-AI47) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Armed Services.

8239. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement: Update Contractor and Government Entity (CAGE) Code Information (DFARS Case 2014-D013) (RIN: 0750-AI44) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Armed Services.

8240. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement: State Sponsors of Terrorism (DFARS Case 2014-D014) (RIN: 0750-AI34) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Armed Services.

8241. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement: Foreign Commercial Satellite Services (DFARS Case 2014-D010) (RIN: 0750-AI32) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Armed Services.

8242. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement: Deletion of Certification Requirement Regarding Separation of Duties of Senior Leaders (DFARS Case 2015-D003) (RIN: 0750-AI48) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Armed Services.

8243. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement: Use of Military Construction Funds in Countries Bordering the Arabian Sea (DFARS Case 2014-D016) (RIN: 0750-AI33) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Armed Services.

8244. A letter from the Chief Counsel, FEMA, Department of Homeland Security, transmitting the Department's final rule — Suspension of Community Eligibility (City of Chesapeake, VA, et al.); [Docket ID: FEMA-2014-0002] [Internal Agency Docket No. FEMA-8359] received December 3, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Financial Services.

8245. A letter from the Chairman, Federal Deposit Insurance Corporation, transmitting a report entitled ''Merger Decisions 2013'', in accordance with Section 18(c)(9) of the Federal Deposit Insurance Act; to the Committee on Financial Services.

8246. A letter from the General Counsel, National Credit Union Administration, transmitting the Administration's final rule — Unfair or Deceptive Acts or Practices; Technical Amendments (RIN: 3133-AE42) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Financial Services.

8247. A letter from the Secretary, Department of Energy, transmitting the Strategic Petroleum Reserve Test Sale 2014 report to Congress, pursuant to Public Law 94-163, section 161(g)(2); to the Committee on Energy and Commerce.

8248. A letter from the Director, Regulations Policy and Management Staff, Department of Health and Human Services, transmitting the Department's final rule — Content and Format of Labeling for Human Prescription Drug and Biological Products; Requirements for Pregnancy and Lactation Labeling [Docket No.: FDA-2006-N-0515 (formerly Docket No.: 2006N-0467)] (RIN: 0910-AF11) received December 8, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

8249. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; Pennsylvania; Redesignation of the Harrisburg-Lebanon-Carlisle-York Nonattainment Areas to Attainment for the 1997 Annual and the 2006 24-Hour Fine Particulate Matter Standard [EPA-R03-OAR-2014-0525; FRL-9920-17-Region 3] received December 3, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

8250. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; Washington; Update to Materials Incorporated by Reference [EPA-R10-OAR-2014-0790; FRL-9918-76-Region-10] received December 3, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

8251. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Greenhouse Gas Reporting Program: Addition of Global Warming Potentials to the General Provisions and Amendments and Confidentiality Determinations for Fluorinated Gas Production [EPA-HQ-OAR-2009-0927; FRL-9919-70-OAR] (RIN: 2060-AR78) received December 3, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

8252. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Oxirane, Phenyl, polymer with oxirane, monoctyl ether; Tolerance Exemption [EPA-HQ-OPP-2014-0682; FRL-9918-41] received December 3, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

8253. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Redesignation Request and Maintenance Plan for PM2.5; Yuba City-Marysville; California [EPA-R09-OAR-2012-0781; FRL-9920-18-Region 9] received December 3, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

8254. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — 2,5-Furandione, polymer with methoxyethene, butyl ethyl ester, sodium salt; Tolerance Exemption [EPA-HQ-OPP-2014-0668; FRL-9918-42] received December 3, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

8255. A letter from the Chief of Staff, Media Bureau, Federal Communications Commission, transmitting the Commission's final rule — Amendment of Section 73.202(b), Table of Allotments, FM Broadcast Stations. (Rough Rock, Arizona) [MB Docket No.: 14-46] (RM-11717) received December 4, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

8256. A letter from the Senior Council, Wireless Telecommunications Commission, Federal Communications Commission, transmitting the Commission's final rule — 2004 and 2006 Biennial Regulatory Reviews —— Streamlining and Other Revisions of Parts 1 and 17 of the Commission's Rules Governing Construction, Marking and Lighting of Antenna Structures; Amendments to Modernize and Clarify Part 17 of the Commission's Rules Concerning Construction, Marking and Lighting of Antenna Structures [WT Docket No.: 10-88] (RM 11349) received December 8, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

8257. A letter from the Secretary, Federal Trade Commission, transmitting the Commission's final rule — Mail or Telephone Order Merchandise Rule (RIN: 3084-AB07) received December 3, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

8258. A letter from the Secretary, Department of Commerce, transmitting a certification of export to the People's Republic of China, pursuant to Public Law 105-261, section 1512; to the Committee on Foreign Affairs.

8259. A letter from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting the Department's final rule — Updated Statements of Legal Authority for the Export Administration Regulations [Docket No.: 141114962-4962-01] (RIN: 0694-AG39) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Foreign Affairs.

8260. A letter from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting the Department's final rule — Amendments to Existing Validated End-User Authorization in the People's Republic of China: Lam Research Service Co., Ltd. [Docket No.: 141114969-4969-01] (RIN: 0694-AG36) received December 4, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Foreign Affairs.

8261. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting a letter regarding commitments in the Joint Plan of Action; to the Committee on Foreign Affairs.

8262. A letter from the Assistant Legal Adviser, Office of Treaty Affairs, Department of State, transmitting a report prepared by the Department of State concerning international agreements, other than treaties entered into by the United States, to be transmitted to the Congress within the sixty-day period specified in the Case-Zablocki Act, pursuant to 1 U.S.C. 112b; to the Committee on Foreign Affairs.

8263. A letter from the Assistant Director, Senior Executive Management Office, Department of Defense, transmitting a report pursuant to the Federal Vacancies Reform Act of 1998; to the Committee on Oversight and Government Reform.

8264. A letter from the Assistant Director, Senior Executive Management Office, Department of Defense, transmitting a report pursuant to the Federal Vacancies Reform Act of 1998; to the Committee on Oversight and Government Reform.

8265. A letter from the Assistant Director, Senior Executive Management Office, Department of Defense, transmitting a report pursuant to the Federal Vacancies Reform Act of 1998; to the Committee on Oversight and Government Reform.

8266. A letter from the Assistant Director, Senior Executive Management Office, Department of Defense, transmitting a report pursuant to the Federal Vacancies Reform Act of 1998; to the Committee on Oversight and Government Reform.

8267. A letter from the Secretary, Department of Education, transmitting the Department's fifty-first Semiannual Report to Congress on Audit Follow-up, covering the six-month period ending September 30, 2014, pursuant to 5 U.S.C. app. (Insp. Gen. Act) section 5(b); to the Committee on Oversight and Government Reform.

8268. A letter from the Secretary, Department of Labor, transmitting the Semiannual Report to Congress from the Office of Inspector General for the period April 1, 2014, through September 30, 2014, pursuant to 5 U.S.C. app. (Insp. Gen. Act), section 5(b); to the Committee on Oversight and Government Reform.

8269. A letter from the Chairman, Federal Maritime Commission, transmitting the semiannual report to the Congress on the activities of the Office of Inspector General for the period April 1, 2014, through September 30, 2014, pursuant to 5 U.S.C. app. (Insp. Gen. Act), section 5(b); Public Law 95-452, section 5(b); to the Committee on Oversight and Government Reform.

8270. A letter from the Chief Financial Officer, National Labor Relations Board, transmitting the Board's Performance and Accountability Report for Fiscal Year 2014; to the Committee on Oversight and Government Reform.

8271. A letter from the Deputy Assistant to the President and Director, Office of Administration, transmitting an accounting of the transactions from the Unanticipated Needs Account for fiscal year 2014, pursuant to 3 U.S.C. 108; to the Committee on Oversight and Government Reform.

8272. A letter from the Director, Office of Surface Mining, Department of the Interior, transmitting the Department's final rule — North Dakota Regulatory Program [SATS No.: ND-052-FOR; Docket ID No.: OSM-2012-0021] received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

8273. A letter from the Deputy Assistant Administrator for Regulatory Programs, NMFS, National Oceanic and Atmospheric Administration, transmitting the Department's final rule — Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Coastal Migratory Pelagic Resources in the Gulf of Mexico and Atlantic Region; Framework Action [Docket No.: 130805680-4915-02]

(RIN: 0648-BD58) received December 8, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

8274. A letter from the Attorney General, Department of Justice, transmitting the Department's decision not to seek any immediate appellate relief from the June 24, 2014, decision of the United States District Court for the District of Oregon in Ayman Latif et al. v. Eric H. Holder, Jr., et al., No. 10-750 (D. Or.); to the Committee on the Judiciary.

8275. A letter from the Attorney Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's final rule — Security Zone; USCGC Hamilton Commissioning Ceremony, Charleston Harbor, Charleston, SC [Docket No.: USCG-2014-0698] (RIN: 1625-AA87) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8276. A letter from the Attorney Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Salvage Operations, Lake Michigan, Navy Pier, Chicago, IL [Docket No.: USCG-2014-0980] (RIN: 1625-AA00) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8277. A letter from the Attorney Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Upper Mississippi River between mile 44 and 46; Thebes, IL [Docket No.: USCG-2014-0878] (RIN: 1625-AA00) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8278. A letter from the Attorney Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Pier Removal, WI Central Railroad Bridge, Fox River, Green Bay, WI [Docket No.: USCG-2014-0902] (RIN: 1625-AA00) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8279. A letter from the Attorney Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Safety Zone, Elizabeth River; Portsmouth,VA [Docket No.: USCG-2014-0693] (RIN: 1625-AA00) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8280. A letter from the Attorney Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's interim rule — Safety Zones; Upper Mississippi River between mile 38.0 and 46.0, Thebes, IL; and between mile 78.0 and 81.0, Grand Tower, IL [Docket No.: USCG-2013-0907] (RIN: 1625-AA00) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8281. A letter from the Attorney Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; University of Cincinnati Bearcats Football Fireworks; Ohio River, Mile 470.4 — 470.8; Cincinnati, OH [Docket No.: USCG-2014-0419] (RIN: 1625-AA00) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8282. A letter from the Attorney Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Natchez Specialties New Year's Eve Firework Display, Lower Mississippi River, Mile Marker 363.5 to 364.5 [Docket No.: USCG-2014-0784] (RIN: 1625-AA00) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8283. A letter from the Attorney Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Salvage Operations, Chicago River, Chicago, IL [Docket No.: USCG-2014-0951] (RIN: 1625-AA00) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8284. A letter from the Attorney Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's final rule — Safety Zone: Carquinez Strait Cable Repair Operation, Martinez, CA [Docket No.: USCG-2014-0950] (RIN: 1625-AA00) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8285. A letter from the Attorney Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's final rule — Drawbridge Operation Regulation; Darby Creek, Essington, PA [Docket No.: USCG-2014-0367] (RIN: 1625-AA09) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8286. A letter from the Attorney Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Regulated Navigation Area, Lake Michigan; Chicago Harbor Lock, Chicago, IL to Calumet Harbor, Chicago, IL [Docket No.: USCG-2014-0592] (RIN: 1625-AA11) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8287. A letter from the Attorney Advisor, Coast Guard, Department of Homeland Security, transmitting the Department's final rule — Changes to the Inland Navigation Rules, Technical, Organizational, and Conforming Amendments [Docket No. USCG-2012-0102] (RIN: 1625-AB88) received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

8288. A letter from the Assistant Secretary of the Army, Civil Works, Department of Defense, transmitting Lynnhaven River Basin Ecosystem Restoration Project Final Feasibility Report and Integrated Environmental Assessment; (H. Doc. No. 113—176); to the Committee on Transportation and Infrastructure and ordered to be printed.

8289. A letter from the Deputy General Counsel, Office of Investment and Innovation, Small Business Administration, transmitting the Administration's final rule — Small Business Investment Companies —— Investments in Passive Businesses (RIN: 3245-AG57) received December 3, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Small Business.

8290. A letter from the Secretary, Department of Veterans Affairs, transmitting a letter reporting the FY 2014 expenditures from the Pershing Hall Revolving Fund for projects, activities, and facilities that support the mission of the Department of Veterans Affairs, pursuant to Public Law 102-86, section 403(d)(6)(A)(B); to the Committee on Veterans' Affairs.

8291. A letter from the Senior Counsel, Bureau of the Fiscal Service, Department of the Treasury, transmitting the Department's final rule — Regulations Governing Retirement Savings Bonds received December 10, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

8292. A letter from the Attorney Advisor, Bureau of the Fiscal Service, Department of the Treasury, transmitting the Department's final rule — Government Securities Act Regulations: Large Position Reporting Rules [Docket No.: Treas-DO-2014-0002] received December 11, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

8293. A letter from the Trade Representative, Executive Office of the President, transmitting a report on the pending accession to the World Trade Organization of the Republic of Seychelles, pursuant to Section 122 of the Uruguay Round Agreements Act; to the Committee on Ways and Means.

8294. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Realignment of Technical Work between the TaxExempt and Government Entities Division and Office of Associate Chief Counsel (Tax Exempt and Government Entities) (Announcement 2014-34) received December 4, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

8295. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's final rule — Publication of the Tier 2 Tax Rates received December 4, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

8296. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Rulings and determination letters (Rev. Proc. 2015-7) received December 4, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

8297. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Safe Harbor Explanations — Eligible Rollover Distributions [Notice 2014-74] received December 4, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

8298. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Special Rules for Certain Transactions Where Stated Principal Amount Does Not Exceed $2,800,000 (Rev. Rul. 2014-30) received December 4, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

8299. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Application of One-Per-Year Limit on IRA Rollovers [Announcement 2014-32] received December 8, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

8300. A letter from the Chief, Publications and Regulations, Internal Revenue Service, transmitting the Service's IRB only rule — Eligibility for Minimum Essential Coverage Under Pregnancy-Based Medicaid and CHIP Programs [Notice 2014-71] received December 8, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

8301. A letter from the Administrator, TSA, Department of Homeland Security, transmitting the Administration's certification that the level of screening services and protection provided at Sarasota-Bradenton International Airport (SRQ) will be equal to or greater than the level that would be provided at the airport by TSA Transportation Security Officers, pursuant to 49 U.S.C. 44920(d); to the Committee on Homeland Security.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. SHUSTER: Committee on Transportation and Infrastructure. H.R. 2612. A bill to amend title 40, United States Code, to improve the functioning and management of

the Public Buildings Service (Rept. 113–656). Referred to the Committee of the Whole House on the state of the Union.

Mr. GOODLATTE: Committee on the Judiciary. H.R. 5233. A bill to amend chapter 90 of title 18, United States Code, to provide Federal jurisdiction for the theft of trade secrets, and for other purposes; with an amendment (Rept. 113–657). Referred to the Committee of the Whole House on the state of the Union.

Mr. GOODLATTE: Committee on the Judiciary. H.R. 5402. A bill to amend the Clayton Act and the Federal Trade Commission Act to provide that the Federal Trade Commission shall exercise authority with respect to mergers only under the Clayton Act and only in the same procedural manner as Attorney General exercises such authority (Rept. 113–658). Referred to the Committee of the Whole House on the state of the Union.

Mr. MILLER of Florida: Committee on Veterans' Affairs. Second Annual Report of the Activities of the Committee on Veterans' Affairs of the House of Representatives During the One Hundred Thirteenth Congress (Rept. 113–659). Referred to the Committee of the Whole House on the state of the Union.

Mr. GRAVES of Missouri: Committee on Small Business. H.R. 2751. A bill to amend the Small Business Act to prohibit the use of reverse auctions for design and construction services procurements (Rept. 113–660). Referred to the Committee of the Whole House on the state of the Union.

Mr. GRAVES of Missouri: Committee on Small Business. H.R. 2452. A bill to amend the Small Business Act with respect to the procurement program for women-owned small business concerns, and for other purposes (Rept. 113–661). Referred to the Committee of the Whole House on the state of the Union.

Mr. GRAVES of Missouri: Committee on Small Business. H.R. 2882. A bill to amend the Small Business Act and title 38, United States Code to provide for a consolidated definition of a small business concern owned and controlled by veterans, and for other purposes; with an amendment (Rept. 113–662, Pt. 1). Ordered to be printed.

Mr. CONAWAY: Committee on Ethics. In the Matter of Allegations Relating to Representative Alcee L. Hastings (Rept. 113–663). Referred to the House Calendar.

Mr. CONAWAY: Committee on Ethics. In the Matter of Allegations Relating to Representative Phil Gingrey (Rept. 113–664). Referred to the House Calendar.

Mr. CONAWAY: Committee on Ethics. In the Matter of Allegations Relating to Representative Judy Chu (Rept. 113–665). Referred to the House Calendar.

Mr. CONAWAY: Committee on Ethics. In the Matter of Allegations Relating to Representative Tom Petri (Rept. 113–666). Referred to the House Calendar.

DISCHARGE OF COMMITTEE

Pursuant to clause 2 of rule XIII, the committee on Rules discharged from further consideration. H.R. 1869 referred to the Committee of the Whole House on the state of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. CARTWRIGHT (for himself and Mr. NOLAN):

H.R. 5848. A bill to enhance the early warning reporting requirements for motor vehicle manufacturers; to the Committee on Energy and Commerce.

By Mr. GRAYSON:

H.R. 5849. A bill to provide employees with 1 hour of paid sick leave for every 30 hours worked; to the Committee on Education and the Workforce, and in addition to the Committees on Oversight and Government Reform, House Administration, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GRAYSON:

H.R. 5850. A bill to exclude Social Security benefits from taxable income; to the Committee on Ways and Means.

By Mr. GRAYSON:

H.R. 5851. A bill to designate Veterans Day as the Tuesday after the first Monday in November; to the Committee on Oversight and Government Reform.

By Mr. GRAYSON:

H.R. 5852. A bill to amend the Internal Revenue Code of 1986 to eliminate the $117,000 cap on income subject to Social Security payroll taxes; to the Committee on Ways and Means.

By Mr. GRAYSON:

H.R. 5853. A bill to expand Medicare coverage to eyeglasses, hearing aids, and dental care; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GRAYSON:

H.R. 5854. A bill to allow the importation, distribution, and sale of investigational drugs and devices intended for use by terminally ill patients who execute an informed consent document; to the Committee on Energy and Commerce.

By Mr. GRAYSON:

H.R. 5855. A bill to require a report on procurement supply chain vulnerabilities within the Department of Defense; to the Committee on Armed Services.

By Mr. GRAYSON:

H.R. 5856. A bill to prohibit the United States Department of Homeland Security from purchasing, operating, or maintaining armed unmanned aerial vehicles; to the Committee on Homeland Security.

By Mr. DELANEY:

H.R. 5857. A bill to eliminate the incentive for corporations to continue to hold accumulated earnings offshore, to invest in domestic infrastructure, to provide for international tax reform, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE:

H.R. 5858. A bill to provide for a reduction in the amount that may be awarded to a unit of local government under subpart 1 of part E of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3750 et seq.) for a unit of local government that funds an amount that is greater than 18 percent of its operating budget using revenue generated from collecting fines and other fees related to violations of traffic laws, and for other purposes; to the Committee on the Judiciary.

By Mr. GERLACH (for himself and Ms. KAPTUR):

H.R. 5859. A bill to impose sanctions with respect to the Russian Federation, to provide additional assistance to Ukraine, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committees on Financial Services, Oversight and Government Reform, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned. considered and passed.

By Mr. BOUSTANY (for himself and Mr. THOMPSON of California):

H.R. 5860. A bill to amend the Internal Revenue Code of 1986 to allow small businesses to use pre-tax dollars for assistance to employees purchasing policies in the individual market and except certain health reimbursement arrangements from group health plan requirements, and for other purposes; to the Committee on Ways and Means.

By Mr. CAMP (for himself, Ms. SLAUGHTER, Mrs. MILLER of Michigan, Mr. WALBERG, Mr. DINGELL, Mr. UPTON, Mr. HUIZENGA of Michigan, Mr. BENISHEK, Mr. KELLY of Pennsylvania, Mr. HIGGINS, Mr. THOMPSON of Pennsylvania, and Mr. PETERS of Michigan):

H.R. 5861. A bill to control the spread of aquatic invasive species between the Great Lakes basin and the Mississippi River basin, and for other purposes; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. CAPPS:

H.R. 5862. A bill to provide assistance to improve maternal and newborn health in developing countries, and for other purposes; to the Committee on Foreign Affairs.

By Mr. CARSON of Indiana:

H.R. 5863. A bill to amend title 5, United States Code, to apply certain annuity benefits to Federal Protective Service law enforcement officers, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. CARSON of Indiana:

H.R. 5864. A bill to protect Federal employees and visitors, improve the security of Federal facilities, authorize and modernize the Federal Protective Service, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. CLEAVER:

H.R. 5865. A bill to establish a grant program providing for the acquisition, operation, and maintenance of body-worn cameras for law enforcement officers; to the Committee on the Judiciary, and in addition to the Committee on Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. COHEN (for himself, Mr. GRIJALVA, Mr. CICILLINE, Mr. POCAN, Mr. CUMMINGS, Mr. TAKANO, and Mr. GRAYSON):

H.R. 5866. A bill to require the Attorney General to issue rules pertaining to the collection and compilation of data on the use of deadly force by law enforcement officers; to the Committee on the Judiciary.

By Mr. DAINES:

H.R. 5867. A bill to extend the deadline for commencement of construction of a hydroelectric project involving the Gibson Dam; to the Committee on Energy and Commerce.

By Mr. ELLISON:

H.R. 5868. A bill to provide for a study by the Transportation Research Board of the National Academies on the impact of diverting certain freight rail traffic to avoid urban areas, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. GRAYSON:
H.R. 5869. A bill to make an interstate act to conceal a homicide a federal offense; to the Committee on the Judiciary.

By Mr. GRAYSON:
H.R. 5870. A bill to prohibit the negotiation of trade agreements that include waivers of the 'Buy American Act'; to the Committee on Ways and Means.

By Mr. GRAYSON:
H.R. 5871. A bill to tax capital gains at the same rate as ordinary income; to the Committee on Ways and Means.

By Mr. HARRIS:
H.R. 5872. A bill to amend the Internal Revenue Code of 1986 to allow an annual elective surcharge in lieu of estate tax, and for other purposes; to the Committee on Ways and Means.

By Mr. HUFFMAN:
H.R. 5873. A bill to amend the Internal Revenue Code of 1986 to provide for repealing the gas tax and establishing a carbon tax on highway fuels, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. ISRAEL:
H.R. 5874. A bill to amend the Federal Food, Drug, and Cosmetic Act to increase criminal penalties for the sale or trade of prescription drugs knowingly caused to be adulterated or misbranded, to establish recall authority regarding drugs, and for other purposes; to the Committee on Energy and Commerce.

By Mr. KIND (for himself and Mr. REICHERT):
H.R. 5875. A bill to amend the Internal Revenue Code of 1986 to encourage retirement savings by modifying requirements with respect to employer-established IRAs, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MEEKS:
H.R. 5876. A bill to amend the FAA Modernization and Reform Act of 2012 to prohibit the flying of unmanned recreational aircraft near commercial airports; to the Committee on Transportation and Infrastructure.

By Mr. MEEKS (for himself and Ms. WATERS):
H.R. 5877. A bill to amend the Employee Retirement Income Security Act of 1974 and title 5, United States Code, to require plans to establish policies addressing firm-specific risks in asset management services, greater diversification in investment strategies, and the inclusion of diverse asset managers and minority brokerage firms, and for other purposes; to the Committee on Oversight and Government Reform, and in addition to the Committee on Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. PITTS (for himself and Ms. ESHOO):
H.R. 5878. A bill to amend the International Religious Freedom Act of 1998 to further express United States foreign policy with respect to, and to strengthen United States advocacy on behalf of, freedom of religion or belief abroad and individuals persecuted in foreign countries on account of religion or belief, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committees on Financial Services, and Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. ROYBAL-ALLARD:
H.R. 5879. A bill to provide protection for children affected by the immigration laws of the United States, and for other purposes; to the Committee on the Judiciary.

By Mr. SHERMAN (for himself, Mr. BRADY of Pennsylvania, Mr. CLEAVER, Mr. GRIJALVA, Mr. NADLER, Mr. CONYERS, Mr. DINGELL, Ms. HAHN, Ms. KAPTUR, Mr. RANGEL, Ms. SCHAKOWSKY, Mr. FARR, Mr. LOWENTHAL, Mr. CÁRDENAS, Ms. EDDIE BERNICE JOHNSON of Texas, Ms. MOORE, Mr. ENGEL, Mr. GUTIÉRREZ, Mr. LYNCH, Mr. SWALWELL of California, Ms. LORETTA SANCHEZ of California, Mr. POCAN, Mr. JOHNSON of Georgia, Ms. CHU, Ms. ROYBAL-ALLARD, Ms. BASS, Mr. TIERNEY, Mr. FATTAH, and Ms. JACKSON LEE):
H.R. 5880. A bill to repeal a limitation in the Labor-Management Relations Act regarding requirements for labor organization membership as a condition of employment; to the Committee on Education and the Workforce.

By Mr. STIVERS (for himself and Ms. BASS):
H.R. 5881. A bill to require the Comptroller General of the United States to submit to the Congress a report on adoption disruption and dissolution in the United States; to the Committee on Education and the Workforce.

By Mr. STOCKMAN:
H.R. 5882. A bill to make an Income Tax that is a flat 15 percent for all American citizens; to the Committee on Ways and Means.

By Mr. STOCKMAN:
H.R. 5883. A bill to lower the federal tax on the earnings of American companies with foreign operations; to the Committee on Ways and Means.

By Mr. STOCKMAN:
H.R. 5884. A bill to prohibit the replacement of the gasoline excise tax with a GPS, location or distance-based tax and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Ways and Means, and Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. YOUNG of Alaska:
H.R. 5885. A bill to amend the Pribilof Islands Transition Act to require the Secretary of Commerce to provide notice of certification that no further corrective action is required at sites and operable units covered by the Pribilof Islands Environmental Restoration agreement, and for other purposes; to the Committee on Natural Resources.

By Mr. YOUNG of Alaska (for himself and Mr. PETERSON):
H.R. 5886. A bill to amend the African Elephant Conservation Act of 1988 to conserve elephants while appropriately regulating ivory in the United States; to the Committee on Natural Resources.

By Mr. BENTIVOLIO:
H. Res. 779. A resolution to establish prospective standards effective January 20, 2017 defining impeachable ''high crimes and misdemeanors'' within the meaning of Article II, section 4 as applied to the President of the United States to provide fair warning and evenhandedness in the administration of the impeachment power of the House of Representatives; to the Committee on the Judiciary.

By Mr. CONYERS:
H. Res. 780. A resolution honoring the life, accomplishments, and legacy of Chokwe Lumumba; to the Committee on Oversight and Government Reform.

By Mr. CROWLEY:
H. Res. 781. A resolution commemorating the 100th Anniversary of the World War I Christmas Truce of 1914; to the Committee on Foreign Affairs.

MEMORIALS

Under clause 3 of rule XII, memorials were presented and referred as follows:

335. The SPEAKER presented a memorial of the Senate of the State of Michigan, relative to Senate Resolution No. 189, urging congressional intervention to stop the proposal to close or consolidate the Lansing mail processing and distribution center; to the Committee on Oversight and Government Reform.

336. Also, a memorial of the House of Representatives of the State of Michigan, relative to House Resolution No. 395, urging the Congress to direct the Comptroller General to complete a full audit of the Board of Governors of the Federal Reserve System and the Federal Reserve banks; jointly to the Committees on Oversight and Government Reform and Financial Services.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. CARTWRIGHT:
H.R. 5848.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3 (relating to the power of Congress to regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.)

By Mr. GRAYSON:
H.R. 5849.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the U.S. Constitution.

By Mr. GRAYSON:
H.R. 5850.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the U.S. Constitution.

By Mr. GRAYSON:
H.R. 5851.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the U.S. Constitution.

By Mr. GRAYSON:
H.R. 5852.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the U.S. Constitution.

By Mr. GRAYSON:
H.R. 5853.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the U.S. Constitution.

By Mr. GRAYSON:
H.R. 5854.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the U.S. Constitution.

By Mr. GRAYSON:
H.R. 5855.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution.

By Mr. GRAYSON:

H.R. 5856.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution.

By Mr. DELANEY:

H.R. 5857.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution

By Ms. JACKSON LEE:

H.R. 5858.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1, 3, and 18 of the United States Constitution.

By Mr. GERLACH:

H.R. 5859.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, clause 3.

By Mr. BOUSTANY:

H.R. 5860.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3—Business/Labor Regulation—The Congress shall have Power * * * To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. CAMP:

H.R. 5861.

Congress has the power to enact this legislation pursuant to the following:

According to Article I, Section 8, Clause 3 of the Constitution: The Congress shall have the power to regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes

By Mrs. CAPPS:

H.R. 5862.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18 of the United States Constitution, which reads: ''The Congress shall have Power . . . To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States or in any Department or Officer thereof''

By Mr. CARSON of Indiana:

H.R. 5863.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 of section 8 of Article I of the Constitution.

By Mr. CARSON of Indiana:

H.R. 5864.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 of section 8 of Article I of the Constitution.

By Mr. CLEAVER:

H.R. 5865.

Congress has the power to enact this legislation pursuant to the following:

Article 1 of the United States Constitution

By Mr. COHEN:

H.R. 5866.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 and 3 of Article I, Section 8 of the United States Constitution

By Mr. DAINES:

H.R. 5867.

Congress has the power to enact this legislation pursuant to the following:

Article 1 section 8 of the United States Constitution.

By Mr. ELLISON:

H.R. 5868.

Congress has the power to enact this legislation pursuant to the following:

The Congress shall have power to lay and collect taxes, duties, imposts and excises, to pay the debts and provide for the common defense and general welfare of the United States; but all duties, imposts and excises shall be uniform throughout the United States . . . To regulate commerce with foreign nations, and among the several states . . .

By Mr. GRAYSON:

H.R. 5869.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution.

By Mr. GRAYSON:

H.R. 5870.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution.

By Mr. GRAYSON:

H.R. 5871.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution.

By Mr. HARRIS:

H.R. 5872.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 1 of the United States Constitution which reads: ''The Congress shall have Power to lay and collect Taxes, Duties, Imposts, and Excises, to pay the Debts, and provide for the common Defense and General Welfare of the United States; but all Duties and Imposts and Excises shall be uniform throughout the United States.''

By Mr. HUFFMAN:

H.R. 5873.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1: The Congress shall have Power to lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States.

By Mr. ISRAEL:

H.R. 5874.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the United States Constitution

By Mr. KIND:

H.R. 5875.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8.

By Mr. MEEKS:

H.R. 5876.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 of the Constitution

By Mr. MEEKS:

H.R. 5877.

Congress has the power to enact this legislation pursuant to the following:

Article One Section 8 of the U.S. Constitution provides the legislative authority of Congress.

By Mr. PITTS:

H.R. 5878.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the power of Congress ''To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes:'' as enumerated in Article 1, Section 8 of the United States Constitution.

By Ms. ROYBAL-ALLARD:

H.R. 5879.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

By Mr. SHERMAN:

H.R. 5880.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

By Mr. STIVERS:

H.R. 5881.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 (General Welfare of the United States)

The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;

By Mr. STOCKMAN:

H.R. 5882.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1.

''The Congress shall have Power To lay and collect Taxes''

By Mr. STOCKMAN:

H.R. 5883.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1.

''The Congress shall have Power To lay and collect Taxes''

By Mr. STOCKMAN:

H.R. 5884.

Congress has the power to enact this legislation pursuant to the following:

Amendment IV of the United States Constitution states ''The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no warrants shall issue, but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

By Mr. YOUNG of Alaska:

H.R. 5885.

Congress has the power to enact this legislation pursuant to the following:

Article 4, Section 3, Clause 2

By Mr. YOUNG of Alaska:

H.R. 5886.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 139: Mr. PETERS of California.

H.R. 140: Mr. FLEMING.

H.R. 292: Ms. ADAMS, Ms. WASSERMAN SCHULTZ, and Mr. MORAN.

H.R. 463: Mr. FLEMING.

H.R. 1015: Mr. HARPER.

H.R. 1070: Mr. TIPTON.

H.R. 1074: Ms. WILSON of Florida, Mr. RUIZ, and Mr. ROTHFUS.

H.R. 1102: Mr. PETERSON.

H.R. 1141: Ms. WILSON of Florida.

H.R. 1229: Ms. MENG.

H.R. 1292: Mr. FLEMING.

H.R. 1317: Mr. WELCH and Mr. ISRAEL.

H.R. 1429: Ms. BROWNLEY of California.

H.R. 1666: Mr. LEWIS.

H.R. 1783: Mr. RYAN of Ohio.

H.R. 1838: Mr. AMODEI.

H.R. 2224: Mr. ISRAEL and Mrs. NAPOLITANO.

H.R. 2368: Mr. ISRAEL.
H.R. 2468: Mr. VAN HOLLEN.
H.R. 2506: Mr. BUCSHON.
H.R. 2509: Mr. MCDERMOTT.
H.R. 2602: Mr. FLEMING.
H.R. 2682: Mr. CLAWSON of Florida and Mr. NUGENT.
H.R. 2702: Mr. ISRAEL.
H.R. 2750: Ms. WILSON of Florida.
H.R. 2767: Mr. CLAWSON of Florida.
H.R. 3039: Mr. ISRAEL.
H.R. 3069: Ms. LEE of California.
H.R. 3116: Mr. RUPPERSBERGER and Mr. CLAY.
H.R. 3297: Ms. MENG.
H.R. 3418: Ms. MICHELLE LUJAN GRISHAM of New Mexico.
H.R. 3426: Mr. QUIGLEY.
H.R. 3461: Mr. GUTIÉRREZ.
H.R. 3465: Ms. WILSON of Florida.
H.R. 3485: Mr. CLAWSON of FLORIDA.
H.R. 3620: Ms. WILSON of Florida.
H.R. 3672: Mrs. KIRKPATRICK and Mr. O'ROURKE.
H.R. 3708: Ms. NORTON.
H.R. 3750: Mr. KILMER.
H.R. 3782: Mr. HUFFMAN.
H.R. 3877: Mr. ISRAEL, Mr. MARINO, and Mr. NEAL.
H.R. 4124: Ms. MENG.
H.R. 4227: Ms. MENG.
H.R. 4351: Mr. VAN HOLLEN.
H.R. 4525: Ms. DELAURO.
H.R. 4577: Ms. SCHAKOWSKY.
H.R. 4628: Mrs. NAPOLITANO.
H.R. 4665: Mr. GRIMM.
H.R. 4672: Ms. SEWELL of ALABAMA and Mr. LANGEVIN.
H.R. 4717: Mr. ISRAEL.
H.R. 4793: Ms. MICHELLE LUJAN GRISHAM of NEW MEXICO, Mr. GARCIA, Ms. KUSTER, and Mr. CÁRDENAS.
H.R. 4816: Mr. POLIS.
H.R. 4837: Mr. YODER.
H.R. 4857: Mr. FLORES.
H.R. 4879: Ms. WATERS.
H.R. 4916: Mr. CONNOLLY, Ms. PINGREE of MAINE, Ms. SHEA-PORTER, and Mr. KIND.
H.R. 4920: Mr. CICILLINE.
H.R. 4930: Mr. HUFFMAN and Ms. TSONGAS.
H.R. 4960: Ms. BONAMICI and Ms. BASS.
H.R. 4966: Ms. LOFGREN.
H.R. 4969: Ms. MENG.
H.R. 5159: Mr. RUSH.
H.R. 5182: Ms. WILSON of FLORIDA.
H.R. 5186: Ms. WILSON of FLORIDA.
H.R. 5239: Mr. MCDERMOTT.
H.R. 5264: Ms. FUDGE.
H.R. 5324: Mr. COHEN and Mr. LYNCH.
H.R. 5353: Mr. HASTINGS of FLORIDA.
H.R. 5363: Mr. O'ROURKE.
H.R. 5391: Ms. TSONGAS, Ms. JACKSON LEE, and Mr. KING of NEW YORK.
H.R. 5403: Mr. PASCRELL.
H.R. 5474: Mr. BISHOP of NEW YORK.
H.R. 5478: Ms. ROYBAL-ALLARD.
H.R. 5484: Mr. QUIGLEY.
H.R. 5539: Mr. BENISHEK and Ms. CASTOR of Florida.
H.R. 5589: Mr. MCKINLEY, Mr. NUGENT, Ms. MICHELLE LUJAN GRISHAM of New Mexico, and Mr. BOUSTANY.
H.R. 6611: Mrs. MCCARTHY of New York.
H.R. 5615: Mr. TIBERI.
H.R. 5644: Mr. QUIGLEY, Mr. FOSTER, and Mr. FLORES.
H.R. 5650: Ms. FRANKEL of Florida.
H.R. 5675: Mr. BISHOP of New York and Mrs. HARTZLER.
H.R. 5697: Ms. TSONGAS and Mr. POE of Texas.
H.R. 5762: Mr. LOWENTHAL, Ms. NORTON, Mr. PERLMUTTER, and Mr. WELCH.
H.R. 5766: Mr. BARBER and Mr. GRIJALVA.
H.R. 5782: Mr. ROSKAM.
H.R. 5789: Mr. SWALWELL of California.
H.R. 5791: Mr. SMITH of Missouri and Mrs. NOEM.
H.R. 5813: Ms. BROWN of Florida.
H.R. 5830: Ms. WATERS, Mr. THOMPSON of Mississippi, and Ms. SCHAKOWSKY.
H.R. 5831: Ms. LEE of California.
H.R. 5832: Mr. NUGENT, Mr. WEBER of Texas, and Mrs. WALORSKI.
H.R. 5837: Mr. LEWIS and Mr. JOHNSON of Georgia.
H.R. 5838: Mr. SCOTT of Virginia and Mr. RUSH.
H.R. 5845: Mr. CHABOT.
H. Con. Res. 91: Ms. BASS.
H. Res. 208: Ms. DELAURO and Mr. CLEAVER.
H. Res. 326: Mr. FLEMING.
H. Res. 448: Ms. FOXX, Mr. WEBER of Texas, and Mr. YOHO.
H. Res. 688: Mr. PETERS of Michigan, Ms. MENG, Ms. BONAMICI, Mr. HONDA, Mr. VAN HOLLEN, and Mr. O'ROURKE.
H. Res. 711: Mrs. CAROLYN B. MALONEY of New York.
H. Res. 749: Mr. BERA of California.
H. Res. 750: Mr. CONYERS.
H. Res. 768: Mrs. MCCARTHY of New York.
H. Res. 771: Mr. MEEHAN.
H. Res. 772: Mr. NUNNELEE.
H. Res. 777: Mr. HUFFMAN.

PETITIONS, ETC.

Under clause 3 of rule XII, petitions and papers were laid on the clerk's desk and referred as follows:

114. The SPEAKER presented a petition of the City of Appleton, Wisconsin, relative to a resolution calling for the reclaiming of democracy from the expansion of corporate personhood rights and the corrupting influence of unregulated political contributions and spending; to the Committee on the Judiciary.

115. Also, a petition of the City of Ripon, Wisconsin, relative to Resolution No. 2014-12, calling for the reclaiming of democracy from the expansion of corporate personhood rights and the corrupting influence of unregulated political contributions and spending; to the Committee on the Judiciary.

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Congressional Record

PROCEEDINGS AND DEBATES OF THE 113th CONGRESS, SECOND SESSION

Vol. 160 WASHINGTON, THURSDAY, DECEMBER 11, 2014 *No. 151*

Senate

The Senate met at 9:30 a.m. and was called to order by the President pro tempore (Mr. LEAHY).

PRAYER

The PRESIDENT pro tempore. Today's opening prayer will be offered by our guest Chaplain, a guest of Senator MARK WARNER, Rabbi Israel Zoberman, Founding Rabbi of Congregation Beth Chaverim in Virginia Beach, VA.

The guest Chaplain offered the following prayer:

Our one God of life's blessings, Who brings us together to be one family, gratefully united though gloriously diverse through the Divine commandments of loving-kindness. May the awesome Author of an enchanting yet endangered universe uplift our honored Senators with the essential twin gifts of freedom and responsibility, ever fulfilling the demanding American dream. At these crossroads of compelling challenge, may the Senators be reassured that each human life is a singular journey of promising purpose, that the Creator's divinity and human dignity are inseparably linked. May the Most High bless the Senators, the Nation, and humanity with Shalom's sacred healing, hope, and harmony.

Recalling my early childhood in a Displaced Persons Camp in Germany's American Zone, and on my 40th anniversary in the rabbinic ministry in the most ecumenical Nation under Heaven, I am grateful. Amen.

NOTICE

If the 113th Congress, 2nd Session, adjourns sine die on or before December 24, 2014, a final issue of the *Congressional Record* for the 113th Congress, 2nd Session, will be published on Wednesday, December 31, 2014, to permit Members to insert statements.

All material for insertion must be signed by the Member and delivered to the respective offices of the Official Reporters of Debates (Room HT–59 or S–123 of the Capitol), Monday through Friday, between the hours of 10:00 a.m. and 3:00 p.m. through Tuesday, December 30. The final issue will be dated Wednesday, December 31, 2014, and will be delivered on Monday, January 5, 2015.

None of the material printed in the final issue of the *Congressional Record* may contain subject matter, or relate to any event, that occurred after the sine die date.

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By order of the Joint Committee on Printing.

CHARLES E. SCHUMER, *Chairman.*

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDENT pro tempore. The majority leader is recognized.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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SCHEDULE

Mr. REID. Mr. President, following my remarks and those of the Republican leader, the Senate will resume consideration of the motion to concur in the House amendment to the Senate amendment to H.R. 3979, the defense authorization bill.

At 10:30 a.m., there will be a cloture vote on the motion to concur on the defense authorization bill.

Mr. President, the work we are going to do on this defense authorization bill is extremely important for our country. I will have more to say about that in just a minute.

TRIBUTE TO JAMES FRANSEN

Mr. REID. Today's generation goes to Google for answers to questions they have about geography, about politics, famous people, or any subject. Any subject, you name it, and we all go to Google as quickly as we can. But long before Google, we had to use books, encyclopedias, volumes of books containing all sorts of facts on topics, and they were all in alphabetic order. For almost the last 40 years—39 to be exact—the Senate has had its own encyclopedia—legislative counsel Jim Fransen.

Jim began his Senate career in 1975, just after graduating from law school—from the University of Wisconsin—where he also studied as an undergraduate. That year he joined the Office of Legislative Counsel as assistant counsel. Over the years, Jim Fransen gradually moved up the ranks until he was named legislative counsel, a position he has held for 15 years.

He is a noted expert on a lot of things, but especially the United States Tax Code. We have heard speeches on this floor about the complexity of the Tax Code. That is a monumental assignment, to understand the Tax Code. Jim certainly does, perhaps better than anyone in Washington. Jim actually wrote the Tax Reform Act of 1986. That was the famous Bradley-Gephardt legislation.

For four decades, he has played a role in every important piece of tax legislation that has become law in our country. The Office of Legislative Counsel does the work for the Senate—not Democrats, not Republicans, but all of us, including our staffs. They write bills to create programs while also drafting amendments that will have some effect on these programs, sometimes wiping out these programs. This impartiality is the key to the success of the Senate and something we don't often consider—how we get to the point where we are.

This massive bill we are going to deal with today has legislative counsel's imprint on it. The same can be said of the bill they are going to work on today in the House, the omnibus; the tax extenders, the same thing. These are the must-do's we have to do before we leave here.

Another key to the success of Jim Fransen is the excellent team he has put together in the Office of Legislative Counsel. The staff, under his watchful eye, receives about 15,000 legislative inquiries every year—15,000—well more than 1,000 a month, and they are responsible for drafting 98 percent of all the legislation we do.

(Mr. WALSH assumed the Chair.)

It is rare to find someone like former Senator Jim Webb, who was a freshman Senator who came in and drafted his own bill that would give educational benefits to the military. Senator Webb came to me and said: I am going to write my own bill. Now that doesn't happen very often, but it was extremely important to him that he did that, and it had to be done because it was a significant piece to the new GI bill of rights, which the Presiding Officer—the General—would certainly understand. But 98 percent of the work we do here is not stamped by Jim Webb. We depend upon Jim Fransen's office to do this. So his job is not an easy job, but he has excelled because of his knowledge of the law, his experience of the legislative process, his patience, and his impeccable character.

Jim Fransen is a man of integrity and one who considers everyone's views, whether he personally agrees with them or not. It is no wonder Jim is the second longest serving legislative counsel in the history of the Senate. One of his admirers once told me: Jim always plays it way up here, while the rest of us are down here. His phone rings at all hours of the day and night with random requests, and Jim handles it all with class and dignity.

Jim is retiring from the Senate at the end of this month. He will be missed, and that is an understatement, but he leaves with us an Office of Legislative Counsel that has never performed better. I thank him for his service, and I do this on behalf of the entire Senate family. I thank his family for the untold hours he has spent away from home. I appreciate the work his wife Margaret Ann has done in supporting him, and, of course, he will spend more time with his three daughters and two grandsons. So thanks very much for sharing this good man with us.

I wish Jim the very best in his retirement, and I repeat, I thank him on behalf of the Senate family for all the work he has done.

DEFENSE AUTHORIZATION BILL

Mr. REID. Mr. President, as I indicated, we are going to move to the defense bill, but we are going to also, as part of that bill, do something that is at least 10 years overdue. For the last 10 years, we have been struggling to get bills out of the energy committee. We are fortunate enough to get them out once in a while, but they are stymied here on the floor. That has been going on for 10 years. There has been a permanent wrecking crew, led by one person, to do this.

Before Nevada was settled by pioneers, its mountains were home to thousands of bighorn sheep—we still have lots of them—and pronghorn antelope—we have the largest antelope herd in the entire world in northern Nevada—and Nevada's streams and lakes at one time were full of Lahontan and cutthroat trout. That is not the case anymore.

Because of the growth in the State of Nevada there has been a tremendous impact on the environment. We had in Nevada salmon in our rivers, but not anymore. We are trying to replenish fish so that we will have more of what we did have before, including salmon. Like every State across the Nation, Nevada's natural and cultural heritage has come under immense pressure as our cities and populations have swelled.

About 80 percent of the people now live in one of our 17 counties. Clark County is where Las Vegas is. The other 16 counties make up about 20 percent of the population. So the pressure, especially because of what has happened in southern Nevada, has been very difficult on the environment.

The other thing people have to understand is that 87 percent of the State of Nevada is owned by the Federal Government. That creates a lot of issues—some positive, some negative. But with the population having swelled, some of the issues we are now experiencing are certainly to be expected. As our society continues to expand, the stresses on our land, our wildlife, and water resources will continue.

That is why the package of land bills in this National Defense Authorization Act is vitally important to our country. The package is a compromise that protects our Nation's wild and scenic places, our Nation's unique history, and opens up other lands for development.

Are there provisions in this bill that I don't care a great deal about in a positive fashion? Yes. There are things in this bill I don't like. But there are things in here I do like. Are there things in this bill the majority of Republicans probably don't like? The answer is yes. So this is what legislation is all about. It is about compromise. It is about working together to have an end product, and that is what we have here.

This compromise is a chance for the Senate to get something done. Compromise has been wanting in this body, especially regarding matters of the Energy and Natural Resources Committee. Hundreds of bills for the last 10 years have been stopped.

I am only offering my opinion, but one of the finest public servants I have ever served with is Jeff Bingaman from New Mexico. Jeff is an absolutely brilliant man, a hard worker. I would bet—and I don't bet very often, and I am sure no one will take me up on this—but I think one reason Jeff Bingaman left the Senate was because of the work he was unable to get done in his committee. What a good chairman he was,

but he was stymied time and time again from getting anything out of that committee. So for the last 10 years that committee has worked really hard, very hard, but they haven't had much to show for that work.

This package protects more than 1 million acres of landscapes. I was waiting in my office and Senator BENNET from Colorado came to my office. He had a great big poster with him. I asked: What is that? It was upside down. You could see immediately what it was when it was right side up. He was looking for time on the floor to show America what was in this bill for the State of Colorado. This beautiful vista he was showing me—and he showed the whole world last night—is something that is in this bill. It will be protected—a stunningly beautiful forest area in Colorado.

One million acres of landscape will be protected. Watersheds will be protected. Historic treasures will be protected. This protects over 140 miles of wild and scenic rivers throughout our country. These bills will create nearly 250,000 acres of wilderness in five States: Colorado, Montana, Nevada, New Mexico, and Washington.

Additionally, the packages convey more than 100,000 acres to local communities for economic development. My friend the Presiding Officer understands how important that is, being able to convey to the private sector the ability to develop Federal lands. It has to be done carefully. It can't be done on a massive scale. If we did that, the rich people would wind up owning all the nice places. These are places I think should be shared by the American people. But 100,000 acres go to local communities for economic development.

The legislation continues our country's rich history, establishing national parks. It designates a number of new areas—for example, the Harriet Tubman Historic Park.

I read in a period of a month two books on Harriet Tubman. They both came out at about the same time. I can't imagine why a movie hasn't been made about this dynamic little 5-foot woman who did such remarkable things. What a story of this woman—this slave. She was a slave—bringing people out of the South into freedom in the North. She took them as far as Canada. She did it alone. So I hope some day someone will make a movie of this stunningly powerful woman. We are recognizing an area that will be named on her behalf.

The bundle of lands bills is good for America. It stretches literally from the shores of Alaska to the coast of Maine. It is especially important to Nevada, my State. It protects over 75,000 acres of wilderness in Humboldt and Lyon Counties in northern Nevada, the first new wilderness protections in the State since 2006.

One of those areas is named after a famous Indian, Wovoka. There was a man who was a famous Indian. He established a dance that really brought Native Americans together. Even though it started in Nevada, it swept the country. This is going to be in Lyon County, it contains sage-grouse, bighorn sheep habitats, and some of the best fly fishing opportunities in Nevada and the Nation.

Now there is a pine forest wilderness in Humboldt County which has been championed by the local community. They have been working on this for years. We couldn't get it out of the House of Representatives. Over here, of course, it was a lost cause, and don't even think about getting it out of the energy committee.

Environmentalists, ranchers, hunters, anglers, and off-road vehicle enthusiasts came together to protect 20,000 acres of scenic lakes, amazing rock formations, and prime sage habitat.

But it also allows a mine there to have some more land from the Federal Government which they need from enlarging that land. It is a copper mine. It is extremely important that we develop copper and don't have to import it from South America and Russia.

Southern Nevada established the Tule Springs Fossil Beds National Monument on the edge of North Las Vegas. This area is the largest deposit of ice age mammals in the United States. Imagine that basically in the middle of thousands of homes. People couldn't understand what they were digging up out there, ice age mammals that are so unbelievably large and preserved over these thousands of years. When the resources are developed, catalogued, and better understood, it will likely be the largest deposit in the entire country.

The package sells 10,000 acres of land to the city of Yerington. Lyon County was a county that probably suffered more from the economic shutdown. They had huge problems of unemployment, and now we have that mine there that will help. This will allow them to make even more jobs there.

The agreement also provides lands to the cities of Las Vegas, North Las Vegas, Fernley, Carlin, allocates tracts for three universities and college campuses, and expands Nellis Air Force Base and the Fallon Naval Air Station.

This is good for Nevada. It is good for the country. This legislation promotes jobs, protects the environment, helps our Armed Forces, and gives Americans the opportunity to enjoy the beautiful landscapes this country has to offer.

It is not perfect legislation. No legislation is. But this is really good legislation. So I urge my colleagues to join me in supporting these critical lands bills which are part of the defense authorization bill.

RESERVATION OF LEADER TIME

Mr. REID. Mr. President, what is the business now?

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

PROTECTING VOLUNTEER FIREFIGHTERS AND EMERGENCY RESPONDERS ACT OF 2014

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of the message to accompany H.R. 3979, which the clerk will report.

The assistant legislative clerk read as follows:

Motion to concur in the House amendment to the Senate amendment to H.R. 3979, a bill to amend the Internal Revenue Code of 1986 to ensure that emergency services volunteers are not taken into account as employees under the shared responsibility requirements contained in the Patient Protection and Affordable Care Act.

Pending:

Reid motion to concur in the amendment of the House to the amendment of the Senate to the bill.

Reid motion to concur in the amendment of the House to the amendment of the Senate to the bill, with Reid amendment No. 3984 (to the amendment of the House to the amendment of the Senate to the bill), to change the enactment date.

Reid amendment No. 3985 (to amendment No. 3984), of a perfecting nature.

Reid motion to refer the message of the House on the bill to the Committee on Armed Services, with instructions, Reid Amendment No. 3986, to change the enactment date.

Reid amendment No. 3987 (to (the instructions) amendment No. 3986), of a perfecting nature.

Reid amendment No. 3988 (to Amendment No. 3987), of a perfecting nature.

The PRESIDING OFFICER. The Senator from South Dakota.

FAREWELL TO THE SENATE

Mr. JOHNSON of South Dakota. Mr. President, in 1986 the people of South Dakota elected me to serve them in the 100th Session of the Congress in the House of Representatives. In 1996 they gave me the honor and privilege of being their junior Senator.

When I ran for the House in 1986, I told the people of South Dakota that neither party has all the answers, and that both parties have good ideas, as well as men and women of good will. My job, as I understood it, would be to work in a bipartisan manner, listening to all parties and reaching a good fit—also known as a compromise. That is what I still believe.

However, in each year of my 28 years of service this has become more difficult to achieve. Each party, rather than working cooperatively for the American people, is more and more focused on winning the next election. Today, days after the 2014 election, you can walk into the call center for either party and find Members dialing for dollars for 2016. Tonight there will be fundraisers across DC where Members will discuss policy not with their constituents but with organizations that contribute to their campaigns. We have lost our way.

My thoughts are not original. My colleague and dear friend from South Dakota, Senator Tom Daschle, in his farewell called for finding common ground that ''will not be found on the

far right or on the far left. That is not where most Americans live. We will only find it in the firm middle ground based on common sense and shared values.''

Ohio's Senator Voinovich in his 2010 farewell speech said that his greatest frustration was the difficulty in finding common ground on significant issues, saying that ''it doesn't happen enough.''

In fact, the need for bipartisanship and the lack of it in the Senate is a hallmark of Senate farewell speeches. Rather than expounding on this topic, I would like to share the instances where I have experienced it.

I found it working with my colleague Senator JOHN THUNE, as we put aside our political differences and worked as our constituents expected two Norwegians to work. We worked side by side as we pushed for farm bills, highway funding, emergency relief from droughts and from floods. We successfully fought the proposed BRAC closing of Ellsworth Air Force Base. However, honoring our Norweigian heritage, we never hugged.

I found it on the banking committee, working closely with Ranking Member CRAPO. Together, we reached middle ground on reforms in which both parties gave up significant priorities, compromising, finding the middle ground to pass bills out of committee.

My best and most enduring memory of this magnificent body occurred during my 9-month absence following my AVM, a long and humbling journey. During this journey my committee assignments were respected and my friend from Rhode Island Senator JACK REED graciously accepted extra responsibilities until my return. Senator HARRY REID told me that during my long absence my colleagues on the other side of the aisle never once tried to take advantage of my absence. More importantly, in so many ways the kind words and prayers from you and your spouses, on both sides of the aisle, supported both Barbara and me and gave us strength during my long and continuing recovery.

I was grateful and humbled by your support on September 9, 2007, the day I returned to the Senate when almost every chair in this Chamber was filled. Senator REID and Senator MCCONNELL, I thank you for your welcome back to the Senate family.

In the years ahead, I will miss this family—not the bickering that I mentioned earlier, but the blessings that you have all been to Barbara and me.

I would also like to thank another family that has been critical to my work for South Dakota—a family that goes by the name ''Team Johnson.'' This team is composed of highly talented and caring individuals. They have worked tirelessly in the halls of Congress, in South Dakota, and on campaigns to make our State and our country a better place to live.

I wish I could thank each one of you for your service. Please know how much I appreciated the long hours and late nights that you put in. In the years ahead I hope we will continue to celebrate the friendships we have forged.

To my friend and chief of staff for 30 years, Drey Samuelson, thank you for joining my fledgling, uphill race for Congress in 1986 and for staying with me until we close the Senate office in a few days. Few Members of Congress have been as fortunate as I have been to have the loyalty, friendship, and thoughtful guidance that you have given me.

My legislative directors have all been remarkable, but time limits me to noting the services of two individuals who have served the longest. Dwight Fettig started with us in the House as a young man fresh from his internship with Senator Byron Dorgan of North Dakota. Dwight rose through the ranks to legislative director and then became my first director on the banking committee. Todd Stubbendieck is my current LD, and his legislative guidance for over 10 years has guided the staff in moving critical legislation through the Senate. Todd and Dwight have worked on legislation for projects that now deliver water to hundreds of thousands of people across South Dakota, country of origin labeling bills, farm bills, national historic sites for Lewis and Clark and the Minute Man Missile, numerous projects for Ellsworth Air Force Base and the South Dakota National Guard with efficiency and collegiality. To Todd and Dwight, thank you for your outstanding legislative teams.

Our No. 1 researcher, humorist, historian, and go-to person, Luci Weigel, has been with us since we opened the first offices. Thank you, Luci.

To my South Dakota State director, Sharon Boysen, thank you for leading the three State offices, for ensuring that we were responsive to South Dakotans, and for coordinating with the DC office.

Sharon Stroschein, who directed the Aberdeen office, and Darrell Shoemaker, who managed the Raid City office, have been outstanding leaders for 28 years. You and all the State staff have been great advocates for South Dakota. You made sure that I always knew what was on the minds of South Dakotans, that I visited crisis situations, nonprofits, local and tribal governments, promising businesses, schools, and much more. Thank you.

Linda Robison, thank you for your dedication, willingness to go the extra mile, and your outreach to and service for our State's veterans for 28 years.

The Senate office only needed one office manager for the last 18 years. Nancy Swenson is the most efficient, precise, and insightful person I know. The University of South Dakota will be forever grateful when they receive the archives Nancy assembled. Thank you.

To the Senate standing committees on banking and MILCON, you have served our Nation well, and I know you will continue to do so in the future. Thank you for your leadership on important issues.

I am looking forward to the years ahead and the time we will share.

To my wife Barbara and our three children—Brooks, Brendan, and Kelsey—thank you for your unwavering support, for putting up with late-night dinners, for accepting that my work demanded that I be away so many weekends, and for working side by side with me on challenging campaigns. Without your understanding, love, and support, I could not have done the work I love.

Finally, to the people of South Dakota, thank you for the honor and privilege of serving you in our State legislature, the House of Representatives, and the United States Senate. Thank you for working side by side with me to improve the lives of South Dakotans and our Nation.

Pilamayaye.

Mr. President, I yield the floor.

(Applause, Senators rising.)

The PRESIDING OFFICER. The Senator from South Dakota.

TRIBUTE TO TIM JOHNSON

Mr. THUNE. Mr. President, I rise today to bid farewell to my colleague and friend Senator TIM JOHNSON.

TIM has deep roots in South Dakota and in the towns of Canton and Vermillion in particular. He has served our State for more than 35 years, first in the State legislature and then, after winning a highly competitive primary against two well-known Democratic opponents, in the Halls of Congress. In 1996, after a decade in the U.S. House of Representatives, TIM won his first of three terms in the U.S. Senate. I am well acquainted with his second election because I came out on the short end of that stick. But I have had the privilege of serving with TIM now in the South Dakota delegation for over 16 years, and the last 10 have been here in the Senate. Today I want to pay tribute to his many years of public service and all he has done for our home State.

I would also like to take a moment to thank Senator JOHNSON's staff for their dedicated work. They have worked closely with my staff for many years, and I am grateful for their efforts.

Like many South Dakotans, I will always remember TIM as a fighter. South Dakotans are tough, rugged folks, and TIM has exemplified that spirit every day in the Senate. A big part of his legacy as a public servant will be his tenacity, his work ethic, and his unwavering focus on the policies he believed to be in the best interest of South Dakota.

TIM and I haven't always seen eye to eye on every issue, but we have always been able to come together and work with South Dakotans in times of crisis. From drought relief, to flood and tornado responses, to protecting the Black Hills from wildfires, Senator JOHNSON and I have always been able to quickly

respond to the needs of our State regardless of party differences or past disagreements.

Mr. President, when you represent a State like South Dakota—what some people like to call a flyover State, a State some of our colleagues here in the Senate occasionally mix up with North Dakota—there are days when it can seem as though the concerns of rural Americans aren't given fair consideration and the needs of rural America are not being heard by the administration or the more densely populated areas of our country.

I have had the great pleasure of working with TIM to bring a voice to the concerns of rural America and those of us who hail from the middle of the country. To highlight just one of the many examples I could bring up, since his first term in Congress TIM has fought tirelessly for water infrastructure to deliver clean drinking water to families in South Dakota and throughout the Great Plains. Water is a vital resource in the rural expanses of South Dakota, and TIM's efforts have helped meet this basic need in underserved Indian reservations, small towns, and rural areas across the State. These investments will pay dividends well beyond his tenure in the Senate.

Throughout TIM's long career in public service—from his beginnings in the legislature to his ascension to the chairmanship of the Senate banking committee—he has had a hand in numerous efforts that will help South Dakotans and Americans alike for generations to come.

I know I speak for all South Dakotans when I say thank you, TIM, for your dedication and your service to our great State. It has been an honor to serve with you here in the United States Senate. Thank you for your example, your efforts on behalf of our beloved South Dakota, and most of all for your friendship. On behalf of my wife Kimberly and me, I wish you, Barbara, and your family the very best as you begin your retirement.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from New York.

UNANIMOUS CONSENT REQUEST—S. 2992

Mrs. GILLIBRAND. The DOD just reported that in 2014 almost the same number of servicemembers—19,000—reported unwanted sexual contact as in 2010. Still, fewer than 3 out of 10 are willing to report. The overall percentage of those who are reporting openly and seeking justice is declining, and a striking 62 percent retaliation rate went unchanged from 2012. Despite retaliation having been made a crime in last year's NDAA, the Pentagon reports no indication of progress on that front. Despite the Pentagon's spin, these numbers do not show an increased trust in a system that simply isn't working for the men and women in uniform.

I wish to draw attention to comments made earlier this year by the Chairman of the Joint Chiefs of Staff, GEN Martin Dempsey. He said:

> We are currently on the clock, if you will . . . the President of the United States said to us in December, you know what, you've got about a year to review this thing and show me you can make a difference . . . we understand that just because Senator GILLIBRAND's vote was defeated yesterday doesn't mean that a year from now it may not be reintroduced, and if we haven't been able to demonstrate making a difference, you know, then we deserve to be held to the scrutiny and standard.

There is no other mission in the world for our military where this much failure would be allowed. Based on General Dempsey's own timeline, our men and women in uniform deserve a vote on this broadly bipartisan reform because the military has not been able to demonstrate that they have made a difference; therefore, they should be held to the scrutiny this year.

Throughout last year we continued to see the evidence of how much further we have to go to solve the problem of sexual assaults in our military. We saw BG Jeffrey Sinclair—one of the highest ranking officers ever charged with sexual assault—walk away with a slap on the wrist, reportedly over fears that the commanding officer had rejected a plea deal on lesser charges for political reasons despite stated concerns over evidence.

That case brings up the very important issue of undue command influence—another reason why an independent justice system is needed. We should all be able to agree that our brave men and women in uniform deserve blind justice. The scale should not be tipped in either direction—in favor of a victim or an accused. Why should our servicemembers enjoy a lesser standard of justice and fairness than you and I, whose freedoms they risk everything to protect?

According to a recent story in the New York Times, an attendee of a sexual assault prevention seminar was asked if things were improving. She said:

> We all laughed. Sinclair was happening then. He proved that it was a joke.

The Times also chronicled the story of a survivor they called Kris, from Ellsworth Air Force Base. On April 12, 2013, about two dozen male officers of the 37th Bomb Squadron gathered at a strip club at the beginning of a pub crawl—including her commander. She was assaulted later that night. According to the Times:

> What Kris encountered since reporting the assault was the same kind of cold-shouldered skepticism on the part of her commander that Christensen had seen in a vast majority of sexual assault cases—behavior that was supposed to have changed with the military's recent vows to support those who reported sex crimes.

Further, she was retaliated against, which is now supposed to be a crime, and was told by a commander, ''It's illogical for you to think that there won't be negative consequences to your reporting.''

She said: ''I was put on a shelf.''

Why in the world would we want this commander who takes his team to a strip club and retaliates against a sexual assault victim to have the authority to decide if a crime was committed? It is insane, and it is beneath our military members.

I could read many more troubling cases, but perhaps the most eye-opening instance showing the ongoing lack of accountability was revealed in testimony by a witness at a court-martial on September 24, 2014—just 2 months ago. In this case, former Fort Leonard Wood drill sergeant Angel Sanchez was found guilty on multiple accounts of sexually assaulting female trainees. According to the witness, the command sergeant major at Fort Leonard Woods said—and remember this was just 2 months ago—''If any more sexual assault cases come forward'' the whole company of soldiers won't graduate—not ''I don't want to see any more sexual assaults''; rather, ''I don't want to see any more reports.''

Here is how we really know the system is broken: When a cadet is instrumental in obtaining the first sexual assault convictions in over a decade at the Air Force Academy, he is expelled. When a chief prosecutor is too good at his job and briefs Members of Congress, he is retaliated against and forced out. When a survivor comes forward, she is put on a shelf.

Time is short, but there is more than enough left for this Congress to actually do its job. We should not have more calls for just a little more time. The DOD has failed on this issue for over 20 years now, and the scandals of the last 12 months and the latest data show they still don't get it.

As USA Today said:

> Over the decades, sexual scandals have spurred cycles of Pentagon apologies, congressional handwringing, half-baked attempts at action and nibble-around-the-edges changes. Isn't it time that women and men who serve their country so nobly have a justice system that will serve them when they are victims of crime?

I agree. Congress should vote to remove the chain of command from these crises before year's end. Our servicemembers deserve no less.

Mr. President, I ask unanimous consent that at a time to be determined by the majority leader, after consultation with the Republican leader, the Senate proceed to the consideration of Calendar No. 644, S. 2992, the Military Justice Improvement Act, that there be up to 1 hour equally divided between the proponents and opponents of the bill prior to a vote on passage of the bill; that the vote on passage be subject to a 60-affirmative vote threshold; finally, that there be no amendments, points of order, or motions in order to the bill.

The PRESIDING OFFICER. Is there objection?

Mr. INHOFE. I object.

The PRESIDING OFFICER. Objection is heard.

Mr. INHOFE. Mr. President, I think it might be appropriate for the ranking member of the appropriate personnel subcommittee to be heard on this. In

my opinion, he is the most knowledgeable person on this subject at this time, and that would be Senator GRAHAM.

The PRESIDING OFFICER. The Senator from South Carolina.

Mr. GRAHAM. I join in the objection with Senator INHOFE. I appreciate what Senators INHOFE and LEVIN have done over the last couple of years, working in a bipartisan fashion, to make sure we deal with a problem in the military that is a problem in society, sexual assault, sexual harassment, and to set a zero-tolerance policy, but at the same time keep the military in a position to defend this country.

What can we say about our military? We heard Senator GILLIBRAND's view. My view is that this is the finest military in the world—great people. But within that construct, you have people doing things that are criminal, wrong. But is it any different in the military than it is anywhere else?

My argument is this is a societal problem, and in the military it is a problem that is being addressed in, I think, a very aggressive fashion. Contrary to what the Senator from New York offers the Senate, I like where we are headed.

In March, we rejected her approach. Her approach was to fire every commander and replace the commander with a bunch of military lawyers to make decisions not just about sexual assault but about aspects of military life far beyond that.

I know the Presiding Officer has been a military commander, and barracks theft is a very big deal in the military. When you are in the military and you find out someone has stolen from another member of the unit, and you are all living together on top of each other, side by side, that is a very big deal, and the commander responsible for that unit needs to make sure something happens fairly.

The last matter I will ever agree to is the following: Sir, or ma'am—this is the first sergeant going to the commander—last night we think there may have been a rape in the barracks, and the commander says, well, that is no longer my problem, send that over to the lawyers. What a terrible thing to do to a military unit. The commander needs more accountability, not less. The commander is the person whom we choose to send people to war.

It is odd, to me, that we will give the commanders of the American military the power of life-and-death decisions, but somehow they are so morally corrupt or incapable of rendering justice in a situation such as this.

All I can say is that I respect the passion of the people who are behind this to a point, but you are going too far. Members on the other side of the aisle have been threatened with money being cut off if they vote against this idea. This is no longer about reforming a system, this is a political cause going out of control.

In my view, the good thing about the Armed Services Committee is that we have always been able, for the most part, to work out problems that affect our military.

And I say to Senator LEVIN, through the Chair, above all others, I appreciate my colleague's maturity and leadership to make sure we get the right answer. The right answer is to purge the military of the heinous crime of sexual assault, sexual harassment, clean up this mess, but do not destroy the structure that makes it the finest military on the planet, and we are well on our way.

Senator GILLIBRAND's bill last year did not make it through the Senate, but another bill did. Senator AYOTTE, Senator MCCASKILL, Senator FISCHER, along with the chairman, and others, came up with a reform package that I think was passed unanimously last March.

What do we now know from the recent report? You would have to have such a bias about your view to believe that this report doesn't show progress. By any objective measurement, the reforms we have been working on in a bipartisan fashion are beginning to bear fruit.

I will give an example of some of those reforms. Every victim of a sexual assault or of sexual harassment allegations in the military is to be assigned an individual lawyer—a judge advocate—to represent their interests.

I don't know about other States, but in South Carolina, we are miles away from that. The goal of the Senators that I have just mentioned, and myself, is to make sure that the military is the most victim-friendly legal system in America, but a person can still get a fair trial. That should be the goal of all of us, to ensure that every victim has a lawyer.

I have been a judge advocate for 32 years now. I have thought long and hard of the times that I have known a lawyer in the legal community recommend to the commander: Go forward on a sexual assault case, and the commander says no. There is literally a handful, or less, that I can think of. However, I do know that there are a lot more cases where the lawyer says: Sir, or ma'am, we don't think we have enough here to prove this beyond a reasonable doubt, and the commander will say: Go for it anyway. I want to make sure we air this out. That is the most common use of a commander's discretion vis-à-vis their lawyer.

But to those who are worried about making sure the commanders and lawyers understand where we are coming from, we made a wholesale change of how they report and dispose of these cases. If a judge advocate recommends to the military commander in question to go forward and the commander says no, that commander's decision to say no is reviewed by the Secretary of the Service. In my case, it is the Secretary of the Air Force. If an Air Force commander is given legal advice by their JAG, informing us that we have a good case in the area of sexual assault, and the commander says no, it goes all the way up to the Secretary of the Air Force. As anybody who has ever been in the military knows, that is a very big deal. That is the ultimate sign that we expect people to treat these allegations seriously.

If the JAG and the commander say no to the prosecution, it goes to the next step in the chain of command. What did this report say—and I will let Senator LEVIN detail some of the results. The big takeaway is that more people are coming forward, which is a good thing. More people are telling us they feel better able to come forward because the system is more understanding. The lawyer who has been provided to the victim has been received very well.

The number of reports, restricted reports—where a victim says, I am going to tell you about what happened to me, but I don't want to go through the process of prosecuting somebody because I don't want to go through that process myself—that are now unrestricted has gone up fairly dramatically, meaning that the victim believes there will be somebody there helping them through the system.

Retaliation is a problem all over society. I don't know of any law in South Carolina that makes it a specific crime in the eyes of the victim to retaliate against bringing an allegation forward.

Under the Uniform Code of Military Justice, it is a crime to retaliate against someone making an assault complaint. The retaliation portion of the report—where 62 percent felt retaliation—mostly came from peer, lower level members of the unit, not the commander.

Here is what I would say: Once the commander goes forward and gives his blessing to the allegation, retaliation is going to be less likely because it was the commander who made the decision in that unit and not a far-off lawyer.

I will now turn this over to Senators INHOFE and LEVIN.

There are so many more reforms that are paying dividends. So many of them have not even started yet.

I have to say we are on the right track. Let's give this a chance. We are taking this seriously. The military is responding in a positive fashion and now is not the time to retreat from these reforms. I do believe what we have done today will help us tomorrow, and our goal is common—to eliminate the scourge of sexual assault and sexual harassment, but keep the military command structure the way it is because it is necessary to hold our commanders more accountable.

I will end with this thought. There is no problem in the military that can be solved without commander buy-in. That is the role of the commander. To everybody who wonders about what is going on in the military legal community, this colonel who feels put upon—if I am the head of the subcommittee—will get a chance to come to our committee with Senator GILLIBRAND and

myself, if I am there, to give an accounting of what they think went wrong with the system and how they were treated, and the Air Force will be required to respond.

Every judge advocate of every branch of the service opposes the Gillibrand approach. Every commander and every member of the Joint Chiefs of Staff oppose what Senator GILLIBRAND is proposing, for very good reason. Give these reforms a chance.

To all of those who worked on this, congratulations. We are moving in the right direction, but we have a long way to go.

I yield the floor.

The PRESIDING OFFICER. The Senator from Michigan.

Mr. LEVIN. We are going to vote soon on cloture on—by the way, I understand there was an objection to the unanimous consent request by Senator GILLIBRAND.

The PRESIDING OFFICER. That is correct.

Mr. LEVIN. It is an objection which I join. I understand she wishes to respond for 1 minute. I have no objection, as long as we can really do it in 1 minute because I would like to close the debate prior to the vote on cloture. My friend from Oklahoma, the ranking member, also wants to make a comment.

Mrs. GILLIBRAND. I ask for 1 minute.

Mr. LEVIN. I will yield for 1 minute.

The PRESIDING OFFICER. The Senator from New York.

Mrs. GILLIBRAND. I wish to clarify a few things that are very misleading about this debate.

First of all, we are not making commanders less responsible. They are the only ones who can prevent retaliation from happening, whether it is by them or lower ranks, and they are failing in that right now. The only difference this bill makes is that 3 percent of commanders—the highest ranking commanders, generals—will no longer make this decision, but instead trained military prosecutors should make that decision. Ninety-seven percent of commanders' jobs do not change. They have to train their forces, bring them into battle, instill order and discipline, and make sure these victims are not retaliated against, and that is where they are failing. We are making commanders more responsible, not less responsible.

What I want is not the most victim-friendly place in the world. I want no victims, and that is where we are failing.

I yield the floor.

The PRESIDING OFFICER. The Senator from Michigan.

Mr. LEVIN. We are going to vote on cloture on H.R. 3979 soon, which represents the agreement between the Armed Services Committees of the Senate and the House on the National Defense Authorization Act for Fiscal Year 2015.

I urge my colleagues—I know my good friend from Oklahoma, the ranking member, joins in this urging—to support cloture so we can enact this important bill into law.

The Armed Services Committee approved the defense authorization bill by a 25-to-1 vote in May.

In June, Senator INHOFE and I came to the Senate floor to urge Senators to begin to file amendments to the bill so we could work on a package of cleared amendments and try to identify relevant amendments that would need votes. We made the same request in July.

When our efforts failed to bring about a unanimous consent to bring the committee-reported bill to the floor with an opportunity to offer relevant amendments, we began to meet with the House Armed Services Committee in an effort to reach a bipartisan agreement that could be presented to the two Houses for approval in the form of a new bill.

We also established an informal clearing process pursuant to which we were able to clear 44 Senate amendments—roughly an equal number of Democratic and Republican amendments—which are included in the bill that is now before us. The process is far from ideal, but it was the best we could do under the circumstances.

We now have before us a bill that is the product of a bipartisan, bicameral agreement between the Armed Services Committees of the Senate and the House of Representatives.

The House has already passed this bill by a vote of 300 to 119.

This bill includes hundreds of important provisions to authorize the activities of the Department of Defense and provide for the well-being of our men and women in uniform and their families. The bill will enable the military services to continue paying special pays and bonuses needed for recruitment and retention of key personnel. It strengthens survivor benefits for disabled children of servicemembers and retirees. It includes provisions addressing the employment of military spouses, job placement for veterans, and military child custody disputes. It addresses military hazing, military suicides, post-traumatic stress disorder, and mental health problems in the military. It provides continued impact aid to support military families and local school districts.

The bill includes 20 provisions to continue to build on the progress we are starting to make in addressing the scourge of sexual assault in the military. It provides continued funding and authorities for ongoing operations in Afghanistan and for our forces conducting operations against the Islamic State in Iraq and Syria—ISIS. It takes important steps to respond to Russian aggression in Ukraine. It adds hundreds of millions of dollars in funding to begin to restore the readiness of our Armed Forces. And it begins to make some of the structural changes that are needed to enable DOD to perform its essential missions in an era of tight budgets.

The process may have been flawed, but we have done everything we could to overcome those flaws and produce a defense bill that does the right thing for the national defense and for our troops.

I urge my colleagues to vote for cloture on the National Defense Authorization Act for Fiscal Year 2015.

We have produced a defense bill that does the right thing for our national defense and for our troops. I hope our colleagues will vote for cloture. I hope I have a minute left to yield to the ranking member.

The PRESIDING OFFICER. The Senator from Oklahoma.

Mr. INHOFE. I know we are out of time. The vote is going to take place in 1 minute and we all appreciate that.

I will repeat what I think is most significant: We have to pass this bill. The House is going to go home. There is no way of making any changes at this point. It has to pass. If it doesn't pass, when December 31 gets here, there will be 1.8 million enlisted personnel throughout the country at all of our establishments who are going to lose their benefits. I am talking about pilots' pay, flight pay. I am talking about the SEALS who have extraordinary duties and all the rest of them. These benefits will be taken away from our enlisted personnel if we don't pass this bill. In order to pass this bill, we have to pass this procedural vote that will take place right now.

So I encourage everyone to keep in mind, if my colleagues truly want to help our enlisted personnel, they have to have this bill and this bill has to pass now.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, hereby move to bring to a close debate on the motion to concur in the House amendment to the Senate amendment to H.R. 3979.

Harry Reid, Carl Levin, Brian Schatz, Martin Heinrich, John E. Walsh, Patty Murray, Jack Reed, Tom Udall, Sheldon Whitehouse, Amy Klobuchar, Christopher A. Coons, Debbie Stabenow, Robert Menendez, Tom Harkin, Richard J. Durbin, Charles E. Schumer, Robert P. Casey, Jr.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the motion to concur in the House amendment to the Senate amendment to H.R. 3979 shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from Iowa (Mr. HARKIN) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 85, nays 14, as follows:

[Rollcall Vote No. 322 Leg.]

YEAS—85

Alexander	Graham	Murphy
Ayotte	Grassley	Murray
Baldwin	Hagan	Nelson
Barrasso	Hatch	Portman
Begich	Heinrich	Pryor
Bennet	Heitkamp	Reed
Blumenthal	Heller	Reid
Blunt	Hirono	Roberts
Booker	Hoeven	Rockefeller
Boozman	Inhofe	Schatz
Boxer	Isakson	Schumer
Brown	Johanns	Scott
Burr	Johnson (SD)	Sessions
Cantwell	Johnson (WI)	Shaheen
Cardin	Kaine	Shelby
Carper	King	Stabenow
Casey	Kirk	Tester
Chambliss	Klobuchar	Thune
Coats	Landrieu	Toomey
Cochran	Leahy	Udall (CO)
Collins	Levin	Udall (NM)
Coons	Manchin	Vitter
Donnelly	Markey	Walsh
Durbin	McCain	Warner
Enzi	McCaskill	Warren
Feinstein	McConnell	Whitehouse
Fischer	Menendez	Wicker
Flake	Mikulski	
Franken	Murkowski	

NAYS—14

Coburn	Gillibrand	Risch
Corker	Lee	Rubio
Cornyn	Merkley	Sanders
Crapo	Moran	Wyden
Cruz	Paul	

NOT VOTING—1

Harkin

The PRESIDING OFFICER. On this vote, the yeas are 85, the nays are 14.

Three-fifths of the Senators duly chosen and sworn having voted in the affirmative, the motion is agreed to.

Cloture having been invoked, the motion to refer falls as being inconsistent with cloture.

Mr. REID. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. COBURN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

FAREWELL TO THE SENATE

Mr. COBURN. Mr. President, following in the traditions of the Senate, I come to the floor to speak about my experience in the Senate. Unfortunately, this will not be the last time I speak, much to the chagrin of many of you, as I have some adamant opposition to some of the things we are doing.

But I nevertheless will try to put in context some of my feelings and thoughts about the great privilege that has been granted to me by the people of Oklahoma. We hear a lot of speeches in this place. As Members who are elected, it gets reflected on us, but nothing could be further from the truth. Because the things that really make this place operate are the people who work with us, the people who support us, the people who help guide us, the people behind the scenes who are both brilliant and committed and dedicated to the founding principles of this country.

We all have them working for us. Yet they are rarely recognized. So whether our accomplishments are big or small, those accomplishments come through the work, efforts, and labors of those who join with us as we come here to try to make a difference. So I first wanted to say there are a lot of people I need to say thank you to; from our Parliamentarian Elizabeth to all of the staff who work in the Senate, to the people who work at GAO, wonderful people, CRS, the IGs, legislative counsel—they have written thousands, I mean literally thousands of amendments for me. They probably are going to have some real mixed feelings about my departure. Then I have personal staff, one of whom—all tremendous—but one of whom I found to be a phenomenal, brilliant person. His name is Roland Foster. There is not anything he has ever forgotten. You can ask him anything. He will find it. He knows it. So I mention him. I have hundreds of others whom I could equally speak about, from my former chief of staff Mike Schwartz, who passed away from Lou Gehrig's disease, to those in my office and staff who each knows what a difference they make—they did—the cloakroom staff and the help we get from Laura Dove and David Schiappa and Mr. Duncan on our side—same on the opposite side. We are only able to function because of all of the people who enable us to do that. So with those thank-yous, I actually wanted to move to a different topic. The topic is believing in our country. I tell people wherever I go: We do not have one problem we cannot solve. There is nothing too big for us. They are all solvable.

To prove that is my chairman, TOM CARPER, on homeland security. He has been a phenomenal chairman. He is not in my party. We do not agree on everything, but the one thing we agreed on was that we were going to work together to solve problems. We have. We did not solve them all, but I would suggest if we look at what has come through this place, even in this dysfunctional place at this time, we will see more coming out under his leadership than any other pieces of legislation. Why is that? It is because the focus was not about him, it was not about me, it was about solving the problems of our country.

To those of you through the years whom I have offended, I truly apologize. I think none of that was intended because I actually see things differently. You see, I believe our Founders were absolutely brilliant, far smarter than we are. I believe the enumerated powers meant something. They were meant to protect us against what history says always happens to a Republic. They have all died. They have all died.

So the question is, What will happen with us? Can we cheat history? Can we do something better than was done in the past? I honestly believe we can, but I do not believe we can if we continue to ignore the wisdom of our founding documents. So when I have offended, I believe it has been on the basis of my belief in article I, section 8. I think we can stuff that genie back into the bottle.

E pluribus unum. ''Out of many, one.'' But you do not have one unless you have guaranteed the liberty of the many. When we ignore what the Constitution gave us as a guideline, to protect the individual liberties, to limit the size and scope of the Federal Government so the benefits of freedom and liberty can be expressed all across this land, that is when we get back to solving our problems.

I think about my father—he had a fifth-grade education—a great believer in our country. He would not recognize it today. The loss of freedom we have imposed by the arrogance of an all-too-powerful Federal Government, ignoring the wisdom and writing of our Founders that said: Above all, we must protect the liberty of the individual and recognize that liberty is given as a God-given right.

So my criticism isn't directed personally, it is because I truly believe that freedom gains us more than anything we can plan here. I know not everybody agrees with me, but the one thing I do know is that our Founders agreed with me.

They had studied this process before. They know what happens when you dominate from a central government. This didn't mean intentions are bad; the intentions are great. The motivations of people in this body are wonderful, but the perspective on how we do it and what the long-term consequences are of how we do it really do matter.

We see ourselves today with a President whom we need to be supporting and praying for, with an economy that is not doing what it could be doing, and we need to be asking the question, Why? Is there a fundamental reason? And there is.

We are too much involved in the decisionmaking in the economy in this country that inhibits the flow of capital to the best return, which inhibits the growth of wealth, which leaves us at a standard of living the same as what we had in 1988. That is where we are, yet it doesn't have to be that way.

I am going to read some words we have all heard before, but they are worth rereading.

WE hold these Truths to be self-evident, that all Men are created equal, that they are endowed by their Creator with certain unalienable Rights . . .

All of us.

. . . that among these are Life, Liberty, and the pursuit of Happiness—

I look at legislation and say how does that have an impact on those two things, and too often it has a negative impact.

. . . That to secure these Rights, Governments are instituted among Men, deriving

their just Powers from the Consent of the Governed, that whenever any Form of Government becomes destructive of these Ends, it is the right of the People to alter or abolish it.

I don't know where we are on that continuum, but I know we are not where we were intended to be in the vision of our Founders, and we are suffering, no matter where you are in the country, as a consequence.

We established the Constitution to try to protect those rights and to delineate those rights. We put in the limitation of the government and outlined the rights of each individual citizen upon which the government shall not infringe. Yet what comes out of this body and this Congress every day, to my chagrin, infringes those guaranteed rights.

Every Member of the Senate takes the same oath and this is where I differ with a lot of colleagues. Let me read the oath, because I think it is part of the problem.

I do solemnly swear (or affirm) that I will support and defend the Constitution of the United States against all enemies, foreign and domestic; that I will bear true faith and allegiance to the same; that I take this obligation freely, without any mental reservation or purpose of evasion; and that I will well and faithfully discharge the duties of the office on which I am about to enter: So help me God.

Your State isn't mentioned one time in that oath. Your whole goal is to protect the United States of America, its Constitution and its liberties. It is not to provide benefits for your State. That is where we differ. That is where my conflict with my colleagues has come. It is nice to be able to do things for your State, but that isn't our charge. Our charge is to protect the future of our country by upholding the Constitution and ensuring the liberty that is guaranteed there is protected and preserved.

The magic number in the Senate is not 60, the number of Senators needed to end debate, and it is not 51, a majority. The most important number in the Senate is one—one Senator. That is how it was set up. That is how our Founders designed it, and with that comes tremendous amounts of responsibility, because the Senate has a set of rules or at least that gives each individual Member the power needed to advance, change, or stop legislation. That is a tool that has to be mentored and refined and wise in its application.

Most of the bills that pass the Senate never receive a vote. We all know that. It is a vast majority of the bills. They are approved by unanimous consent. It only takes a single Senator to withhold consent to stop most legislation.

There are many other rules and procedures a Member can use. They are often referred to as arcane, but that is only because they are rarely used. They are not arcane. They were designed to protect liberty, to secure liberty, to make sure that we don't all follow history and fail.

Every Senator has the power to introduce legislation and, until recently, offer amendments.

No single Senator should be allowed to decide what the rights of another Senator should be. That is tyranny. It has nothing to do with the history and classics of the Senate.

To exercise the rights we have been entrusted with, we must respect the rights of others. That is the true power of our Constitution. That is also the true power of the Senate. It is what binds our Nation together, and it is what is needed to make the Senate work properly again.

The Senate was designed uniquely to force compromise, not to force gridlock—to force compromise. One Senator had the power to stop everything for the first 100 years, but it didn't because compromise was the goal.

Our Founders understood there were many differences between the States—in size, geography, economy, and opinions. They united the States as one country based upon the premise that the many are more powerful than the one. As Senators, we have to follow this example. I have not always done that; I admit that freely to you. I should have. As Senators, we must follow the example, stand for our principles, but working to find those areas of agreement where compromise can be found to unite and move our country forward. My colleague Senator CARPER has my admiration because he has worked tirelessly the past 2 years to try to accomplish that.

Not all of the powers of the Senators are exercised on the Senate floor. Each Member of the Senate has a unique role to participate and practice oversight, to hold the government accountable, and that is part of our duties, except most often that is the part of our duties that is most ignored.

To know how to reach a destination, you must first know where you are, and without oversight—effective, vigorous oversight—you will never solve anything. You cannot write a bill to fix an agency unless you have an understanding of the problem, and you can only know this by conducting oversight, asking the tough questions, holding the bureaucrats accountable, find out what works and what doesn't, and know what has already been done.

Effective oversight is an effective tool to expose government overreach and wasteful spending, but it also markedly exposes where we lose our liberty and our essential freedoms.

I have had some fun through the years, taken some criticism for the waste vote—and it is opinion, I agree. Everybody who has seen the waste book has a great defense of why it is there. But the real question is will we become efficient at how we spend the money of the American people? This is a big enterprise. There is no other enterprise anywhere close to it in size in the world. It is not manageable unless we all try to agree to manage it and have the knowledge of it.

I think there ought to be 535 Wastebooks every year, and then we ought to have the debate about where we are not spending money wisely and have the information at our fingertips so we make great decisions because, quite frankly, we don't make great decisions because we don't have the knowledge. Then what knowledge we do have we transfer to a bureaucracy to make decisions about it when we should have been guiding those things.

True debates about national priorities would come about if we did effective oversight. It is the Senate, once hailed as the world's greatest deliberative body, where these differences should be argued. Our differences should be resolved through civil discourse so they are not settled in the street.

Just as the Constitution provides for majority rule and our democracy while protecting the rights of the individual, the Senate must return to the principles to bring trust of the electorate, and it can. Our Founders believed that protecting the minority views and minority rights in the Senate was essential to having a bicameral legislature that would give us balance and not move too quickly against the very fundamental principles upon which this country was based—and not out of guessing, but out of thorough knowledge of what had happened in the past. We have to be very careful to guard both minority rights and the rule of law.

There is no one who works in the Senate who is insignificant, whether it is the people who serve us when we have lunch, to the highest of the high. They all deserve our ear. Each of us has value.

I would end with one final comment. The greatest power I have not used as a Senator, which I would encourage you to use in the future, is the power of convening. You have tremendous power to pull people together because of your position.

To convene the opposite opinions—CHUCK SCHUMER has been great at that for me. When we have a difference, he wants to get together, convene, and see how we work. That power is the power that causes us to compromise, to come together, to reach consensus. So my encouragement to you is to rethink the utilization of the power of convening. People will come to you if you ask them to come.

Again, I end by saying a great thank you to my family for their sacrifice, a great thank you to the wonderful staff I have, and a thank you to each of you for the privilege of having been able to work for a better country for us all.

I yield the floor.

(Applause, Senators rising.)

TRIBUTES TO TOM COBURN

The PRESIDING OFFICER (Mr. BOOKER). The Senator from Georgia.

Mr. CHAMBLISS. Mr. President, we have all just heard a very moving, a very inspirational and what I considered a motivational speech from our dear friend TOM COBURN.

Twenty years ago, in 1994, there were a bunch of wild and crazy folks who got elected to the U.S. House of Representatives. The Republicans took the majority for the first time in 42 years. They ran on a Contract with America and were led by a group of firebrand leaders. TOM COBURN was in that group of folks who got elected in 1994 to the U.S. House. I was in that group. Senator GRAHAM was in that group. Senator BURR was in that group. Senator WICKER was in that group.

There were a few Members of that class who became known as real bomb throwers. TOM COBURN was a bomb thrower. TOM COBURN would object for the sake of objecting to anything that was going on. It didn't make any difference which side of the aisle it was coming from. But let me tell you, TOM COBURN matured into a class act, No. 1, which he always was; and No. 2, he matured into a legislator second to none.

TOM did not hesitate to object to any spending bill that came from either party if TOM COBURN believed that was not provided for in the Constitution and was something the U.S. taxpayer should not be paying for. There is nobody who has guarded the pocketbook of the taxpayers of the United States like TOM COBURN.

It is remarkable that those of us who were elected with TOM have had the opportunity to see him over the last 20 years take on major subjects that most veterans said, you know, in the end, we are going to prevail. But guess what. They never did. TOM COBURN, even though he may have lost a vote from time to time, in the end, TOM COBURN prevailed.

TOM is one tough guy too. He has been through a lot physically and, boy, what a survivor. I mean we think we have issues to deal with. None of us can imagine what TOM has gone through. When somebody comes up to me as I am walking through an airport—and they will have seen TOM COBURN on TV—and they say: What about this guy COBURN, there are two things that immediately come to mind when I think of TOM COBURN, family and faith.

First, family. TOM and Carolyn have had such a solid marriage. He tried to date her as an eighth grader and she wouldn't go out with him. But he kept pestering her long enough that she finally did and what a great marriage they have had. They have three beautiful daughters and a household of grandchildren whom he absolutely loves to death and likes to spend time with, as opposed to being here.

Secondly, TOM's faith. There is nobody I have ever met who has a stronger faith than TOM COBURN. He exhibits it on the floor, he exhibits it one-on-one, he exhibits it in the Prayer Breakfast every Wednesday morning. He is one person who has probably counseled more people in this body, on both sides of the aisle, than anybody other than the Chaplain.

On top of that, he is just a class act. He has been a dear friend. We have spent many hours on the road together, many hours on the golf course together and socializing together. There is no finer individual who ever served in the Senate than TOM COBURN. He is one of the things I am truly going to miss about leaving here. But actually, as we have already talked, we will probably now spend more time together than ever since both of us are retiring.

But, TOM, to you, I thank you for that great friendship but also thank you for what you have done for my children and my grandchildren. You are a great American and you have served this country well.

God bless you.

The PRESIDING OFFICER. The minority leader.

Mr. MCCONNELL. Mr. President, along with many of my other colleagues, I pay tribute to one of the most decent and principled men I have ever met, Senator TOM COBURN.

Washington is going to miss TOM, but the irony of that is TOM really can't stand Washington. When he first got here, the feeling appeared to be mutual. Some just didn't know what to make of this doctor from Oklahoma—so frequently on the losing end of lopsided votes, so often pressing ahead on his own and never giving up. That was apparent from his days in the House, when we hear he led the only ''filibuster'' in the House anybody can ever remember. He may have placed more holds than any equivalent Senator in history. He apparently held his own bill once.

Fast forward to today. The pundit class has declared TOM COBURN a card-carrying member of the establishment. The rebel who once described himself as a kamikaze pilot has now been branded, incredibly, with a scarlet ''E'' right on his forehead. It may seem contradictory, but TOM always fought smart battles—the kind you might lose today but win later—and he forged an amazing bond with the people he represents. For TOM that meant spending as much time away from Washington as possible and making himself available when he was home.

TOM published his address, and Oklahomans were never shy about coming over to share their opinions. TOM was never shy about sharing how he felt either. He believed his constituents deserved the truth. He gave it to them absolutely unvarnished, but he did it in a respectful way.

It reminds me of the two posters he has framed on either side of his desk. One says: ''NO,'' N–O. The other says ''KNOW,'' K-N-O-W. That is TOM in a nutshell. It is why TOM has made so many friends on both sides of the aisle. It is why you can't flip on MSNBC most mornings without seeing him.

I think TOM actually prefers these settings. It is a challenge he relishes. Not only is TOM confident enough to tangle with anyone, he usually wins, and he rarely—rarely—makes lasting enemies. It is a trait that has served him well, particularly at the beginning of his career.

TOM first came to Washington representing a district that was heavily Democratic. He won a close race that year. I am told he also gained a friend, and that friend was the Democrat he defeated. His opponent's grandson actually ended up joining TOM's staff, which obviously is a great honor.

But it is no picnic being on TOM's staff. TOM works his staff hard. It is difficult even to take a sick day over there. TOM has always got the stethoscope nearby. If the doctor is in, so are you. Yet the people on TOM's team seem to love him. ''Once a member of COBURN's family, always a member.'' That is their motto.

It doesn't mean they love everything about him. Take his handwriting; it is just what you would expect from a guy named Dr. COBURN. It is absolutely awful—a mix of chicken scratch, hieroglyphics, and vocab from the extra credit section of an MCAT.

Back in the 1990s one staffer made the mistake of letting TOM take a yellow highlighter back to Oklahoma. TOM spent the entire weekend marking up a massive bill. There were handwritten notes and questions in nearly every margin. It took literally days to decipher any of it. It was like something out of a Dan Brown novel. Needless to say, an office ban on yellow highlighters was quickly implemented.

So the legacy of TOM's former profession gets him in trouble sometimes, but it remains the job he enjoyed most: helping to deliver new lives into the world. It brings a unique perspective to TOM's work in the Senate. It instilled a lasting appreciation for life too.

Even though TOM has stopped delivering babies these days, he still travels back to Oklahoma a lot. There is nowhere he would rather be than his hometown of Muskogee, and there is almost nothing he would rather be doing there than mowing his lawn or eating a sandwich at his favorite barbecue joint or sipping a cold Coors with olives. He prefers these things over almost anything else, except spending time with his grandkids and of course his wife Carolyn.

TOM has known Carolyn since grade school. She has always been the one to keep him balanced and grounded. She doesn't care that he is a Senator. She frequently reminds him of that too.

Carolyn is also the reason TOM is such good friends with President Obama. Both men came to the Senate the same year. At freshman orientation, Carolyn spotted Michelle Obama from across the room. ''She looks like fun,'' Carolyn said. ''Let's sit next to her.'' The rest, as they say, is history, and it is also remarkable. Because when TOM announced his retirement, warm sentiments poured in from across the political spectrum. It was a day—listen to this—when Barack Obama and Jim DeMint found something to agree on. It must have brought some joy to TOM at such a difficult time.

As he departs the Senate, TOM will leave one battle behind to confront another. We are sending him every best

wish in that fight. We are keeping him in our prayers. We know he will prevail, but he is really going to be missed around here. He is just the type of citizen legislator our Founders envisioned.

TOM has poured over more oversight documents than anyone cares to imagine. His ''Wastebook'' has become an annual phenomenon. It helps drive the conversation on spending. He has led on issues like HIV and malaria.

The Senate will lose a critical leader on intelligence oversight when he leaves. TOM played an invaluable role on the Intelligence Committee, where he brought a unique blend of integrity, analytical rigor, and dogged determination. He served our Nation selflessly, toiling for hours every week in a secure hearing room, learning many sensitive matters he could not discuss with others.

He worked closely with another extraordinary departing colleague, Vice Chair SAXBY CHAMBLISS, to ensure that our Nation's intelligence community retains the tools necessary to defend our country.

If anyone thinks our Nation's classified programs aren't overseen rigorously, they certainly haven't met TOM COBURN. He brought a skeptic's eye and a professional determination to the task. His probing lines of questioning earned the respect of his colleagues and helped the intelligence community craft stronger programs, while also reminding us of the value of many other intelligence activities.

Now, TOM has obviously done a lot to earn his reputation as a hawk on the budget, too. His interest there was never about the baubles of office. It is about solutions. That is why TOM actually volunteered for Simpson-Bowles. That is why he lobbied me to actually take him off—believe it or not—of the Finance Committee.

You always know where TOM stands. I am told he was overseas with a couple of other Senators when a government minister launched into a finger-wagging harangue about our country. TOM couldn't take it after he listened for a few minutes. He cut him off, told the minister what he thought of him, and caught the next flight home. So TOM is literally one of a kind. We are not likely to see another one like this guy.

Here is what former Senator Kyl had to say about him:

> Tom's like your conscience. You can try to ignore him, but you know he's right even when you wish he weren't.

Some people may think TOM is a member of the establishment now, but the truth is TOM never changed. Washington changed. America changed.

People recognize the wisdom of his ideas—about leaving a better country to the next generation, about giving Americans the freedom and the opportunity to achieve real meaning and lasting happiness in their lives.

We are going to miss the Senator who actually likes to get his hands dirty, who actually likes to legislate. We are going to miss the Senator who is so devoted to procedure that he sleeps next to Marty Gold's book, and we are going to miss a friend who understands that honest compromise is necessary to achieve anything in a pluralistic society. We are all going to miss TOM a lot. But he can retire with pride, and he should know that we are sending him our best wishes for a speedy recovery and a joyful retirement.

The PRESIDING OFFICER. The Senator from Maine.

Ms. COLLINS. Mr. President, I was not at all surprised as I listened to the words of our colleague Senator TOM COBURN that he quoted extensively from the Declaration of Independence and he referred to our Constitution—the founding documents of our great country.

When America's Founders conceived of a nation of citizen legislators, they had leaders like Senator TOM COBURN in mind. Indeed, throughout his service in Congress, he has remained a compassionate physician, a devoted husband and father, a fierce defender of the rights enshrined in our Constitution, and an unwavering opponent of excessive spending.

Senator COBURN may be best known as our most diligent fiscal watchdog, relentlessly hounding wasteful spending. His annual ''Wastebook'' report is a call for transparency and accountability in the Federal Government that has guided oversight investigations and policy debates.

The aspect of his service in the Senate that deserves just as much acclaim is his work on the Senate Homeland Security and Governmental Affairs Committee and the Select Committee on Intelligence. Serving with Senator COBURN on both of those committees for many years, I have seen firsthand his brilliance, his tenacity, and his determination to strengthen our Nation and the safety of our people. He has a keen understanding of the grave and ever-evolving threats that our Nation faces.

As a citizen legislator, Senator COBURN leads by example and with compassion. With his expertise as a physician, he has been a leader in promoting wellness, disease prevention, combatting HIV/AIDS, and advancing biomedical research. When it comes to fiscal responsibility, he walks the walk, having returned more than $1 million from his Senate office budget to the American taxpayers.

We have heard many descriptions of TOM COBURN today, but the word I most associate with him is ''integrity.'' He is a man of the utmost integrity, who always stands tall for his principles and for what he believes in. He sets an example for all of us who seek to serve the public.

On a personal note, I want to thank Senator COBURN for hounding me into joining a women's prayer breakfast that meets each week and has introduced me to a number of wonderful women from the House of Representatives who have become my close friends as well as colleagues. And I use the word ''hound'' appropriately. He mentioned it to me so many times that eventually I gave in and went to one of those breakfasts, and, indeed, it has been a spiritually enriching experience that I never would have had but for TOM continuing to press me to attend.

This past January Senator COBURN announced his intention to leave the Senate, due in part to his deepening health problems—problems he has faced with extraordinary courage. This somber news was counterbalanced by his overarching concern, not for himself, but for his family and for the people of his State and our Nation.

As he now returns to the life of a private citizen, I wish him every success in combatting his illness, and I thank him for his truly extraordinary service to our country. To quote from Scripture, I think everyone would agree with these words when it comes to TOM COBURN: ''Well done, good and faithful servant.''

The PRESIDING OFFICER. The Senator from Delaware.

Mr. CARPER. Mr. President, I have no prepared remarks. I am trying to speak right from my heart, and my heart is full.

I want to start off by thanking TOM for the very kind comments he made about serving with me. We met 10 years ago. He was that bomb thrower—still is a little bit—that SAXBY talked about when they were elected 20 years ago. I was one of the people who came up, along with LAMAR ALEXANDER, George Voinovich, and MARK PRYOR, for an orientation for new Senators so that when they got here we could actually spend some time and teach the new guys and gals the ropes.

I remember the first day we convened and put them all in a big circle in Ted Stevens' office, a beautiful office here in the Capitol, and out of those 3 days TOM and Carolyn and Michelle and Barack began to bond and became friends. I didn't know how close friends they were until about 4 or 5 years ago. Barack Obama had given the State of the Union address. I was sitting on the Republican side. There was a time when we actually went back and forth to try to mix things up. The President finished his speech, and there is no rope line at those speeches. The President came along to shake hands with people. I was sitting next to TOM, and we walked down so we could say hi to the President.

I will never forget what the President said to him. In just the quiet between the two of them—they embraced, and the President said to him: Are you still praying for me? And very quietly, TOM COBURN said: Every night.

Just like that—they didn't agree on everything, but they were friends. They are friends, and they will always be friends. I hope TOM and I will be as well.

I remember sitting up there where CORY BOOKER, our new Senator from

New Jersey, is sitting now, listening to MIKE ENZI talking about how he worked so well with Ted Kennedy—Ted Kennedy, one of the most liberal Democrats in the Senate, and MIKE ENZI, one of the most conservative—and how they got extraordinary amounts of stuff done.

I just want to say that the legislation coming out of our committee—and Senator COLLINS has led that committee before—is moving through this body and the House—it is really pretty amazing—to strengthen our cyber defenses, to take the chemical facility antiterrorism law that SUSAN COLLINS authored and to make it better and make it real, to better protect our Nation's information from attacks from all over the world, to try to make our Postal Service not just relevant and not just hanging on but actually vibrant and real.

But that day, MIKE ENZI talked about the 80/20 rule with Ted Kennedy. He said: Ted Kennedy and I agree on about 80 percent of the stuff, and we disagree on 20 percent. He and I decided to focus on the 80 percent we agreed on and set aside the 20 percent we didn't agree on to another day.

I call that the ''Enzi Rule,'' and that has helped guide me here in the Senate, and it certainly has helped to guide me in the work I have been privileged to do with Dr. COBURN.

When I became chairman of the committee about 2 years ago and Dr. COBURN was going to be the ranking member of the committee, somebody asked me what it was going to be like. How are you going to work with this guy?

I said: It is going to be a little like a marriage. You have to work at it every day. Everybody has to give and meet somewhere in the middle.

I love to ask people who have been married a long time what the secret is for being married a long time. Some of you have maybe heard me talk about this. I get some really hilarious answers but also some really terrific and insightful answers.

I think the best one I have ever gotten when I asked what is the secret for being married 40, 50, 60, 70 years is the two c's. It is not COBURN and CARPER. It is the two c's: communicate and compromise. That is not only the secret for a vibrant, long marriage for two people; it is a secret for a vibrant democracy.

I believe the reason why TOM and I have had this partnership that I think has been productive is, one, we surround ourselves with people—certainly for me—smarter than us. The second thing is we believe in communicating, we believe in compromising, and we believe in collaborating. I think the American people are the beneficiaries of that.

We have a reception later today for TOM, and I hope he comes. We will have the opportunity to say some more things, as well. He is not the kind of person who likes to be praised, so this is probably punishment. There is a verse in the Scriptures talking about heaping with praise, pouring praise all over. This is probably a little like that. But I want to close with this. His words on the Bowles-Simpson Commission are for the ages, and I hope we will never walk away from the lessons he showed us with his courage in supporting that work and helping to craft that work.

There are words in the Scriptures, in Matthew 25, that talk about the least of these in our society. When I was sick, when I was hungry, when I was thirsty, when I was naked, when I was in prison—those are the questions. The answer: If you have done it to the least of these, you have done it also to Me.

Senator COBURN believes we have a moral responsibility, a moral obligation to the least of these in our society. He also believes we have a fiscal obligation, a fiscal imperative to meet that moral obligation in a fiscally responsible way. And I think those two ideas guide him in his work, and, frankly, it is an inspiration to me.

Last word. Leaders should be humble, not haughty. Leaders should lead by our example, not ''do as I say'' but ''do as I do.'' Leaders should have the heart of a servant. Leaders should have the courage to stay out of step when everyone else is marching to the wrong tune. Leaders ought to be committed to doing what is right, not what is easy. Leaders should treat other people the way they want to be treated. TOM has offended just about everybody in this body, but he always comes back and apologizes, and he has already done it here today. Leaders should focus on excellence in everything they do. If it isn't perfect, make it better. It is in the preamble of the Constitution—''in order to form a more perfect Union.'' That defines him. Finally, if you think you are right and you know you are right, never give up. That is what a leader should be about.

For the years he served here and for a long time before that and for a long time to come, he has been that leader, and I feel lucky to say he is my friend.

God bless you.

The PRESIDING OFFICER. The Senator from North Carolina.

Mr. BURR. Mr. President, I feel surrounded by friends and colleagues who are getting ready to leave, and being part of that original class 20 years ago, there is one thing that I have learned is extremely unique in Washington. I am next to two people who are voluntarily leaving. The toughest decision a Member of Congress ever makes is to leave this institution voluntarily. And I know that for my two friends and my third one, MIKE JOHANNS, this was not easy. It is not easy to stand here and know that in January they are not going to be here any longer, because they are truly friends, and that is tough.

To say that TOM COBURN can be intimidating I think is an understatement, and I think that comes because his breadth of knowledge based upon his experiences in life enable him to be an expert on a lot of issues.

With that in mind, I remember the day TOM sat down—we were leaving that week, and I said: What are you going to do this weekend? And he said: Well, Sarah's future fiance is coming to sit down with me to find out whether he can marry my daughter. And I looked at him and thought, I would hate to be that young man.

Well, the truth is that TOM is a very intimidating guy. He plays hard, and he plays to win.

There is not an individual I know who is more fair and more compassionate than TOM COBURN. I remember the day the Bush administration wanted to extend the PEPFAR Program—the AIDS in Africa program—and when TOM found out that they were going to relax the requirement on how many people were treated and that more money would go to education than to actually saving lives, he grabbed me and he said, ''We can't let this stand. We've got to fight it. We've got to change it.'' And it was TOM COBURN who blocked the reauthorization of President Bush's PEPFAR plan for 6 months—a Republican President, a Republican Senator. Why? On principle.

TOM COBURN, if you didn't know it before this speech today, has never done anything in this institution or in life that wasn't based upon principle. No Member of Congress should ever question whether he thinks he is right because if he didn't think he was right, he wouldn't fight so hard.

It is particularly difficult for me to say goodbye to TOM. We truly are legislative partners. We fought a lot of battles for a long time, and inherently we have a level of trust in each other that I would actually sign on to legislation that I had no idea what it did; I just knew that in that foxhole he needed somebody he could count on, and I knew when he signed on to something that I needed, that there was always somebody there to cover my back.

The institution is losing something significant when we no longer have that legislative expertise TOM COBURN represents.

There are a lot of descriptions that people have used today and that people will use in the future to describe TOM COBURN, but I would boil it down to two words that I think best describe him: TOM COBURN is a good man. In every sense of the word, he is a good man. This institution will lose a great leader when TOM COBURN retires.

Godspeed, TOM.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. I will be very brief. I know people are waiting to speak.

I guess it would surprise the world in general to know that TOM COBURN and I are true friends, but we are. He is a man of integrity above all.

You don't have to agree with someone—we probably disagree on 90 percent of all the issues—to trust someone's integrity, to trust someone's

handshake, to trust someone that if you make a good argument, understanding their values, they will come along. That is just what TOM COBURN has done time and time again with this Senator from New York and countless others on the other side of the aisle.

On so many issues where TOM was opposed, I said: Let's just sit down and let me give you the logic and then you will make your own judgment. And I knew that would be good enough. Sometimes it didn't work. Sometimes he disagreed. But he always sat and listened. He always asked perceptive questions, not ''gotcha'' questions. He was trying to figure it out.

Of course the most well known was when we negotiated on the Zadroga bill. Thousands of New Yorkers had rushed to the towers and gotten poison in their lungs and their gastrointestinal systems, and we wanted to help them. We thought they were just like our veterans. TOM knew it was a big expense. He sat with us, listened, made suggestions to make it leaner and trimmer, and then supported the bill. So right now there are people alive throughout the New York area, heroes, because of the integrity of that man from Oklahoma.

TOM, I will miss you. This body will miss you. Regardless of our ideological views and perceptions, we will miss you. You are a great American.

I yield the floor.

The PRESIDING OFFICER. The Senator from West Virginia.

Mr. MANCHIN. First of all, there is not a whole lot that needs to be said that hasn't been said, but one thing I want to say to my dear friend TOM COBURN is that he made Washington happen for me, if you will. He made it more tolerable. I had a hard time in transitioning. TOM reached out. He saw that. We talked about this before, but TOM made this place more palatable.

TOM, you have expanded my area of friendships with more people than you know and the right type of people, and I appreciate it I think more than you even know.

I will end with this, and I don't mean to say a lot. I have been asked about TOM COBURN. How would I explain him? TOM COBURN's got soul. TOM COBURN's got soul. And I mean that from the bottom of my heart, brother. You have soul, and I thank you for what soul you brought to this place.

God bless.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. FLAKE. Fourteen years ago I entered the House of Representatives. I had been elected, but before I took office, I traveled to Washington, and MATT SALMON, the Congressman I was replacing, said: Is there anybody you want to meet? And I said: TOM COBURN. I had watched from afar what he had done on the Appropriations Committee and the stands he had taken, and I admired him. I went and visited with him in his office while he was packing up his stuff. I will never forget that. And I have to say that today I admire him even more than I did then, having watched him go back into the private sector and then enter the Senate.

Columnist George Will said TOM COBURN was the most dangerous creature that could come into the Senate. Why? Because he is simply uninterested in being popular. I think that is certainly true. But if he didn't care about it, it happened anyway. I have news for TOM. As you can see around, he has become popular. But one thing he never managed to achieve, if he sought it, was becoming partisan. When you hear those across the aisle lavish praise on this man, realize that was never one of his goals and never happened, much to his credit.

I thank you and your staff for your generosity over the years to me and my staff and for what you have done for this institution, for your colleagues, and for me personally.

I yield back.

The PRESIDING OFFICER. The Senator from Maine.

Mr. KING. Mr. President, I probably have known TOM for the least length of time of anybody in this Chamber, and I want to offer some comments from the perspective of only 2 years and really more like a year and a half since we became friends and colleagues.

I have seen Senator COBURN in two contexts—one is intelligence and the other is faith. He and I serve on the Intelligence Committee. We sit directly across from each other. That committee is generally a non partisan one, but it is also one where all the meetings generally are closed. There is no press. You can really take the measure of someone when they ask questions and participate in a debate in that forum.

His questions always struck me as the questions I wished I had asked, and they struck me as the questions I am sure the people of America would have wanted asked. They were penetrating, they cut through obfuscation, and they were always meaningful and helped us move toward the important work that committee has to accomplish.

I have also become acquainted with him through our faith and participation in the Wednesday Prayer Breakfasts, and more recently, for reasons that I am not entirely sure, he has invited me to join him on Tuesday evenings for dinners on the other side of the Capitol that have been very meaningful.

For the 9 years before I came here, I taught a course called ''Leaders and Leadership,'' and I taught it at a couple of colleges in Maine. I taught it really as much for myself as for my students because I wanted to try to understand what leadership was, and I thought if I signed on to teach it, I would have to learn something about it. Every year what we did was go through and discuss the stories of great leaders throughout history, some well known and some not so well known. We always started with Ernest Shackleton. We talked about Eleanor Roosevelt and Margaret Thatcher and Martin Luther King and Lincoln and Churchill. We always tried to define the qualities that make a leader, and there are lots of them—perseverance, communication, vision, team work, trust—but the last one on the list and the one that brings me back to TOM is always character. It is an indefinable quality. You cannot really put a specific definition to it, but people like Lincoln had it, Ernest Shackleton had it, Joshua Lawrence Chamberlain from Maine had it, Eleanor Roosevelt had it. It involves a combination of qualities that TOM embodies, and almost all of them have been mentioned here today—integrity, intelligence, honesty, faith, belief in principle, and daring to stand for principle. It is the hardest thing to teach, but it is the easiest thing to see. And the reason I felt so privileged to get to know this man for such a short period of time is that he has shown me what character is all about.

TOM, it is one of the great joys of my life to have had these 2 years to get to know you, if only slightly. It is one of the great sadnesses of my life that it has only been 2 years.

Godspeed, TOM. You have made a difference for this country that we all love and honor and respect. Thank you for your service and for sharing your great character with all of us.

I yield the floor.

The PRESIDING OFFICER. The Senator from Georgia.

Mr. ISAKSON. I was elected in a special election 16 years ago. I was No. 435 in the House of Representatives, so I did what my father told me to do when I went into business. He said: Son, sit in the back of the room, listen to people who are smart, pay attention to them, and do what the smart people do.

After 2 weeks of listening to TOM COBURN, I said no human being could know as much about everything as this guy named COBURN. In 16 years, I have come to believe, yes, there is one who knows about everything he speaks of, and that is TOM COBURN.

Senator COBURN has been a great role model for me. The Senator from Oklahoma has taught me many great lessons, and I have learned a lot from him.

The greatest evangelists in life are those who witness their faith, and TOM COBURN is a true witness for his faith and has changed the lives of many people. I have enjoyed, as much as anything, our walk with faith at the Prayer Breakfasts, in private meetings, and what we have shared together.

Lastly, every Christmas I try to give my grandchildren who can read something to read as a little treasury to put in their book to save so that when they grow up, they can refer to great things and great historical statements that have been made. I doubt if there has ever been a better statement made on the floor of the Senate about our heritage, our country, our future, and our

hopes than TOM COBURN has said today. It will be required reading for my grandchildren this Christmas, and I can assure you that I am a better man for having served with TOM COBURN, the great Senator from the State of Oklahoma.

God bless you, TOM.

The PRESIDING OFFICER. The Senator from Oklahoma.

Mr. INHOFE. The other Senator from Oklahoma.

I wish to make some unscripted comments, but sincere and from the heart. I hope I am accurate when I say this, that I think in some respect I discovered TOM COBURN. I suspect that TOM and I are the only two who have ever been to Adair, OK. I remember hearing that there was a conservative doctor from Muskogee. I remember calling him up at that time and asking him to run for the House of Representatives, which he did. He kept his commitments and did everything he was supposed to do. I always remember that day.

As Senator COBURN knows, we have a place my wife and I built on a big lake in Oklahoma back in 1962—a long time ago. When I drive up there, I go through Adair, and I go by that little sheltered area that is half torn down now. They tore down the biggest bank in town. Every time I go by there, I have to say I recall meeting for the first time with a young doctor named TOM COBURN.

I regret to say there are times in our service together when we have not been in agreement on specific issues, and I think we have a characteristic in common. I think we are both kind of bullheaded, which has created some temporary hard feelings, but there is one thing that overshadows that. Jesus has a family, and His family has a lot of people in it. Some are here in this room. TOM COBURN and I are brothers.

In the 20 years I have been here in the Senate, I don't believe I heard a speech that was as touching and sincere as the speech I heard from my junior Senator a few minutes ago.

I really believe that in spite of all the things that have happened—and there were some differences, but they were minor—that he never ceased to be my brother, and I want to ask the Senator right now to forgive me for the times I have perhaps said something unintentionally that was not always right and was not always from the heart. But I want my junior Senator to know that I sincerely love him and am going to be hurting with him with the troubles he has right now, or might have in the future, and will sorely miss him in this body.

I ask that the RECORD show that I sincerely love my brother, Senator COBURN.

I yield the floor.

The PRESIDING OFFICER. The Senator from Indiana.

Mr. COATS. I have been sitting here listening to the respect and the emotion of people recognizing the service of TOM COBURN. I don't have a prepared speech, but I second everything that has been said about TOM.

My emotions well up in me when I think about TOM. TOM exhibits the conviction that I wish I had more of, TOM exhibits the commitment I wish I had more of, and he exhibits the courage I wish I had more of.

I remember my very dear friend Chuck Olson made this statement: Lord, show me the kind of person You would like me to be and give me the strength to be that person.

I feel like God has given a gift to the Senate, and certainly a gift to me, by simply saying, take a look at TOM COBURN. Look at the qualities he exhibits and his commitment to faith. He is a pretty good model to follow.

Thank you, TOM.

The PRESIDING OFFICER. The Senator from Alaska.

Mr. BEGICH. I came down to give my farewell remarks, but before I do, I have to make a comment about Senator COBURN. Senator COBURN is absolutely what many people said about his word. Yesterday was an example of that when he resolved an issue.

There is always activity after the Senate, and I wish my friend from Oklahoma the best.

FAREWELL TO THE SENATE

I thank the Presiding Officer for allowing me to speak on my 6 years of serving in this body. It has been a true honor to serve with the Presiding Officer in the short time he has been here and to serve with all of my colleagues, but it has been an even bigger honor to serve my fellow Alaskans.

Alaska is a huge State—660,000 square miles. More than—to my friends from Texas and California, please don't take this personally—double and triple the size of States such as Texas and California.

But Alaska is a very small place in many ways. People make personal connections with their elected official. At the end of the day, we pretty much know everybody one way or another. Alaskans will more than likely will see me at a checkout stand at Andy's Hardware or Home Depot or hanging Christmas lights at my wife's store or doing errands with my son Jacob that at times he is not very anxious to do. It is a small State, and they will more likely see me doing that than on the floor making speeches or on C–SPAN.

When Alaskans contacted me with an idea or complaint or problem, we made sure we responded. After 6 years in the Senate, I am most proud of the work with helping Alaskans and their families. My office responded to more than 360,000 individual letters and emails and phone calls from Alaskans. To put it in perspective, 360,000 is roughly half the population of the State.

Much of my staff is here with me on the floor today. I thank them for their unwavering service to their fellow Alaskans. Truly I have the best of the best. Some of them worked with me when I was mayor and are now working for me as a Senator. Many will go on and continue to do incredible work not only for Alaskans but for this country. I thank them.

We took on 3,000 individual casework cases to help Alaskans navigate the Federal Government. We helped them get their Social Security checks, made sure the local post office actually delivers the mail, and in Alaska that is important. We fought for benefits for individual veterans.

I am also proud of the great policy work we did. When I say we, it is because sometimes ideas came from Alaskans, sometimes they came from this body, sometimes I would have a crazy idea I would write down on a sheet of paper, but at the end of the day it was my staff that did the work.

Opening Alaska's arctic lands and waters to responsible resource development—NPR–A, CD–5, Beaufort and Chukchi. We also helped to convince the EPA to free up permits for Kensington and Greens Creek mines.

The Arctic. When I first came to the office, I have to say that not everybody knew where the Arctic was. Some didn't even know it was an ocean, to be frank with you, but that is not the case today. Some of my colleagues probably got tired of hearing me always talk about Alaska no matter what they were discussing.

I see my friend AL FRANKEN is here, and I know he remembers this story. He draws incredible maps of the United States, and he does it all freehand. I remember him drawing a map one day, and I said: You missed two things, Alaska and Hawaii.

He said: Well, when I drove around the country with my parents, they were not States, they were just territories, and the maps they bought were maps of the lower 48. So I sent him a dot-to-dot of Alaska, and he sent me back a nice letter with a map of Alaska he had drawn.

No matter what conversation my colleagues might be having on an issue, I would manage to weave in Alaska.

The Arctic has unbelievable potential. We just touched the tip of the iceberg and there is more work to be done.

Working on defense is important to Alaska. It is important that we keep our military bases secure by saving F–16s at Eielson and getting F–35s next. We need to make sure that the benefits for those who are serving continue to be there for them.

It is incredible to hear stories from veterans when they talk about the new model of care we developed over 2½, 3 years ago. Our State has 77,000 veterans. When I was campaigning in 2008, I had an idea that I called the Hero's Health Card, and I remember when I got into office, people said it will never happen. People who know me know that when you say never or no, that means yes, they just didn't spell it properly, and I have to figure out what to do.

Today in Alaska, it doesn't matter if you are a veteran in the smallest rural communities or the biggest cities, you

will get health care and access to it through our tribal health care delivery system—the first in the Nation.

One time when I was in Bethel, this gentleman who was a veteran came up to me when I was in the VFW Hall. A lot of us have been in VFW halls, and you know that when someone comes at you at an aggressive pace, it is probably not a positive situation, but you have to engage them in a conversation. He held his hand out and showed me his scars, and he said that he had to go to Anchorage to get this taken care of, and you told me I could go down to my clinic and get it taken care of, but it didn't happen. I was about to say something, but before I could get a word out, he said: Do you know what I get to do because of what you did? Every single week now when I need therapy, I can go down the street in Bethel instead of flying to Anchorage to get it done. That is a model of how to do the right thing.

Alaska is well known for fisheries. I don't mean to pick on Senator FRANKEN, but I remember him coming up to me because we coined a phrase on modified engineered fish which we called the ''Frankenfish.'' It was not about the Senator, but it was about this fish that was chemically enhanced and would really destroy the fisheries in Alaska and would be bad for the market and bad for consumers. We fought over that issue because Alaskans brought it to our attention every single day.

I just mentioned some of the things we did for native rural health care, which was not just about Alaska. When we discussed an issue in our office, we asked: Can we do it for Alaska, and does it have an international impact? Will it impact the rest of the United States in a positive way?

I remember hearing and reading about the money the Federal Government owed to our tribes which had not been paid for two decades. It was money for clinical services they produced. We did some things, and the net result was Alaska received over $500 million in settlements over the last year. On top of that, many tribes across the country now have almost three-quarters of a billion dollars, money owed by the government for services delivered to individuals. And earlier this week we were able to pass another piece taking away the restriction on our tribes in Alaska so they can now, under the Violence Against Women Act—and we hope the House passes it—to be able to dispense and do tribal government in the sense of our justice system improving the situation on the ground when it comes to sexual assault, domestic violence, and substance abuse.

There are a lot of examples. It is hard when we talk about these because there are a lot of great things that have been done, not just individually but collectively. But in this place we spend a lot of time talking about doom and gloom and how the sky is falling and always the worst-case scenario.

We have come a long way in the last 6 years. The people who know me know I don't care how bad the situation is, I am positive about it because there is always another day to solve these problems and make things happen.

I think about where we were when I came to the Senate. I remember coming on this floor as a freshman in 2009, and the chaos of this economy was unbelievable. We were losing 600,000 jobs a month—equal to the whole population of my State—unemployed, boom, gone. Unemployment was around 10 percent. The stock market was at 6,500. Two of the largest automobile companies in this country were flat on their backs. No housing starts were happening. The market was crashing. The deficit was $1.4 trillion per year. As a new Member, I wasn't sure what I had gotten myself into, to be frank. Some of the Members who came with me were trying to figure out, What did we get? But we didn't sit around.

I know we always hear this doom and gloom out there. When we look back over 6 years, we remember we had some battles here, and most people think we don't do anything. But where are we today? We are 17,000-plus in the stock market today.

I can tell my colleagues that Alaskans saw this because every year—I know I hear from other Members who ask me this question all the time—we get a permanent fund check. It is based on investments we make, and it is based on revenues we receive from oil and gas. That permanent fund check doubled this year from $800 to over $1,900. Why did it double? Because it is based on the stock market average of the last 5 years. We dropped off 2009, so the market was doing better. Every Alaskan felt what this economy has done. So when the naysayers are out there speaking, it is just not accurate.

GM and Ford and Chrysler have added over half a million good-paying jobs. Unemployment is at 5.8 percent—almost a 50-percent drop. Over 10 million new jobs and the longest stretch of private sector growth on record—56 months. Just last week—I know we always hear it is not good enough. Of course, but it is a heck of a lot better.

I remember the chaos on this floor during those 3 or 4 months and as a new Member what we had to go through.

The deficit has dropped by $1 trillion a year. We are down to about $480 billion now. We have sliced off $1 trillion a year from the deficit.

In Alaska we have seen some incredible things. Anchorage unemployment is at 4.9 percent. There are more jobs in mining and timber than ever before. Tourism has risen to nearly 1 million visitors. There are 78,000 people in the fishery industry.

It is important to remember that this is just a moment in time of challenges we have as a body and as a country. It is important to remember that there is a lot of work ahead of us. But we have accomplished a lot. But we spend a lot of time on this floor debating what is bad about this country.

A lot of us are coming to the floor and giving our farewell speeches and talking about good things. There are a lot of good things we should be proud of as a country. I am proud of what we have done over the last 6 years. This country is back on track. We have more work to do to make sure people's incomes rise, but that is starting to happen now.

The challenge for my colleagues who are still here and for this country is—it has been an incredible honor to be in this body, but what do we do to make sure we move forward so we don't have this as a platform of negative attitudes and views but about opportunity and possibilities; not about things that we sit here and try to figure out how to kill but what we try to do to improve and give new ideas a chance.

I said it earlier: I am a very optimistic person. I believe what is possible today can be even better tomorrow. But it is incumbent on people to believe it, to want to do it, to put aside their differences where we can. I will tell my colleagues, that is why fewer Alaskans are party registered and more are nonparty registered in our State than in most States—because our view is that we don't care about the party; what we care about is getting things done. We are trying to find the answer to yes rather than trying to find the way to no.

My staff has always, and it is a struggle sometimes—and I have a great staff, as I said earlier, some from Alaska, some from here, and some from across the country, people who I don't understand why they continue to subject themselves to working for me after the mayor's office, and then they came here. I always told them that what mattered was not who sponsored the bill but whether it is a good idea. If it is a good idea, then let's move forward, try to find an answer, try to solve the problem.

The positive attitude we have to have is not only important for this body, but it is important for this country. In a weird way, they love us and they hate us. The poll numbers show they don't love us too much—13 percent. But on the flip side, they look to us. They look to us for certainty and guidance and where we might take them. The pundits are different, but the people look to us. I see it when I go to stores, when I am out and about. People may be angry with us, but they want to know what we are going to do to solve these incredible problems, and it will be incumbent upon the next Congress to sit down and work together. It is going to be tough because the politics of the day are about the moment in time, not about the long term. This is an incredible challenge that has to be dealt with in some way.

I have spent a lot of time trying to, as I said, do what I can; it didn't matter whose idea it was. I listened to Senator COBURN speak. I remember one

day we were working on an issue—essential air service. Some of us have that in our States. Senator COBURN was against it. I remember having a conversation with him and trying to explain that between one airport and the next is 1,200 miles. There is no road. There is no way to get to it. At the end of the day we were able to resolve that issue and move forward.

I think of all the things that have been accomplished in this body but how little people know about it. In an odd way, over these last few days more of the positive issues are out there. I hope the press covers them. We will see. But we live in a world where it is better to talk about the negative because that seems to be what thrives. I hope that changes.

Let me end by sharing a couple of other quick thoughts. There are a lot of great stories about being here in the Senate. Someone asked me one day: Do you write these down? And I said no.

I remember I was in Sitka, AK, and I was headed to the airport. I got to the airport, and the attendant there was checking my ticket, and he said: Oh, wait, Mr. BEGICH. We have something for you.

It was a wrapped gift at the airport. I said: Great.

Now, people who care about the TSA, please ignore what I am about to say. They just handed it to me. I took it. I opened it, and it was one of those empty books that say: Please write down your thoughts and your notes. They are incredible thoughts.

I remember I was coming through—people will remember when it snowed like crazy. Well, people from DC thought it snowed like crazy. I did not. I knew one thing, and that is about how the plows work, being a former mayor. I thought to myself, I can't leave my car on the street because they will plow me in, especially in this place, or they will attempt to. So I and my son Jacob—we got our snow shovels, did our shoveling, and then drove the car to another area. Then I realized—we were dressed in what I call Alaska good garb. And then I realized that I had to get back to the house because I had this snow shovel and he had a snow shovel. It was on the other side of the Capitol. So what did we do? People who know me know I don't really follow all the rules around this place. We started walking through the Capitol with our snow shovels over our shoulders. The place was empty. I realized what an incredible place this is. First, we were allowed to walk through with snow shovels. It was dead silent. If my colleagues have never done that, they should. You walk through the Capitol and you just see the history, and in a small way, we were a part of it.

I did break another rule. This is confession time. I am a Catholic, I can do that. We came into this Chamber. I had the corner desk over here. Why did I pick that desk? A lot of people don't know this story. Why did I do that? One, I was a junior Member, but No. 2, I wanted that desk because that is where the candy box was, and I knew every Member would have to go there sooner or later, and I thought I could spend some time talking to them. And maybe I would have a candy box, which I did. I had special candies from my wife's store.

One day I came in here late at night with my son, and we sat right there. I know the security guards probably didn't see us. We took a photo. Yes, I broke the rules. I took a photo of my son sitting there, and I will cherish that photo forever.

As my son once said—and I said it on this floor one time—about how important it is to get things done and the battle we were having—I remember I actually quoted my son on the floor, and I think I shocked somebody. I was talking to him about something, and he said: Dad, just suck it up. I thought, only from a young kid do you hear what you have to do sometimes.

Now, I didn't forget her; I just wanted to wait until the end. I know I am breaking the rules, but my wife is right up there. I am pointing to her. Yes, I am, Sergeant at Arms. Too bad. I am acknowledging her. She has been incredible. She has allowed me to do my public service, to fly those 20 hours every weekend to and from Alaska. She has taken care of Jacob when I couldn't. I love her dearly. Thank you.

To end, I will just say this: It has been a true honor to serve in the U.S. Senate, to serve the people of Alaska, and to know every day we—me, my staff, and my colleagues who work with me—contributed a little bit to making life better for Alaska, for Alaskans, and for this country. There is no experience like serving in this body and doing what I could to make a difference.

Mr. President, I yield the floor.

(Applause, Senators rising.)

The PRESIDING OFFICER (Mr. WALSH). The Senator from Virginia.

Mr. WARNER. Mr. President, I know a number of my colleagues are going to want to talk about our friend MARK BEGICH. When we came to the Senate—I see a number of folks here—we came in 2008. I see a lot of other Members who are newer Members as well. I think when you come in with a class, you get kind of confused about what is going on and you form a bond.

I remember my first—our first—Senator FRANKEN wasn't here yet, but Senator MERKLEY, Senator HAGAN, Senator BENNET, and a number of others. And we were in Senator DURBIN's office. There was still a question about what was going to happen in the election because there were thousands of votes out. So being giddy new Members, we got on the phone to call Senator BEGICH to say we wish him well and we are counting on him. He said: Hey, Jacob and I are leaving on vacation because I already know where the votes are coming from. I am going to be there.

He knew his State that well.

As someone who is a former chief executive and as some others here who are former chief executives, I remember him coming here, and many of us new Members were kind of scratching our heads about the notion of how this institution would work or didn't work sometimes. But, as Senator BEGICH mentioned and as Senator MURRAY mentioned at our dinner the other night, there are a lot of people in this body who are chronic optimists. I am blessed to have an optimist in my colleague Senator KAINE. I don't always fit in that category. But Senator BEGICH, week in and week out, would always try to remind us that it is not quite as bleak as it might seem at the moment, that there was good news and there was progress being made.

I think, looking back, I am not sure some of us fully realized, particularly that first year and a half or two when so many things happened—controversial things and things that are still being relitigated in many ways but that have allowed this country to make progress, and Senator BEGICH was an incredibly important part of that.

He was also, as one of the newer Members, liaison to management. So whenever anything didn't happen right with leadership, it was always the fault of Senator BEGICH.

But I just want to say—and I know Senator HAGAN was here a little bit earlier—I fear at times that our elections are almost becoming like parliamentary elections in the other countries where people are voting for or against a leader not based upon what a leader has done individually—such as Senator LANDRIEU and all the things she has done for Louisiana, Lord knows—but, as Senator BEGICH just mentioned, there was not a bill or an issue where he didn't find an Alaska connection and where he didn't make a difference for the people of his great State.

So I know I am just the first of many who want to say to my colleague, to my friend, to a great Senator, Godspeed.

The PRESIDING OFFICER. The Senator from Minnesota.

Mr. FRANKEN. Mr. President, I was a part of that class. I was a little late getting here, my colleagues will recall. But I was part of that class and campaigned with the class, and I remember being with MARK UDALL and TOM UDALL and MARK BEGICH at a campaign event, and they kind of looked at me and said: So your dad wasn't like a public servant.

I said: No.

And they said: Well, that is unusual. No, no, that is fine.

What a lot of people don't know about MARK is his father died very famously in a plane crash.

MARK is the only Member of this body, I believe, who did not graduate from college, did not go to college.

There are a lot of things about MARK—and MARK WARNER just referred to it—he was a chief executive.

We need more mayors here. Sometimes we say we need more diversity. Sometimes we say we need more women. God knows we need more satirists—but mayors, wow. Having that mayor's perspective—CORY BOOKER looking a little smug—is very useful.

MIKE ENZI, a mayor—am I forgetting a mayor?

Mr. BEGICH. TIM KAINE, Richmond.

Mr. FRANKEN. BOB CORKER.

Whom are you pointing at? TIM, were you a mayor?

Mr. KAINE. Richmond.

Mr. FRANKEN. Oh, Richmond, you just kept saying Richmond. I don't know anybody named ''Richmond.''

Mr. WARNER. He was also a lieutenant governor.

Mr. FRANKEN. So he was a lieutenant governor too—OK. So he is the most qualified.

This is what it is like when we are together. Being a Senator, a lot of people ask: Is being a Senator as much fun as working on ''Saturday Night Live?'' The answer of course is no. It is not close, but it is the best job I have ever had.

It means so much to us what we can do for our State, and no one knows more about his State—and I know MARY LANDRIEU is sitting here, no one knows more than MARY and MARK—and that it is an incredibly long flight he took every weekend to go back to Alaska.

Minnesota had a happy warrior, one of the great, great Senators who has ever served this body, Hubert Humphrey. We may have noticed during MARK's speech he teared up a few times, the most when he was talking about his wife.

That is good for you. That works out well.

But Hubert Humphrey said: ''A man who has no tears has no heart.''

This man has a tremendous heart. Humphrey was a happy warrior, and this guy is a happy warrior—and you brought joy, humor, and optimism to this body, and I thank you, my friend, for that.

The PRESIDING OFFICER. The Senator from Louisiana.

Ms. LANDRIEU. I rise to say a word about my dear friend MARK BEGICH and to add some words on behalf of him.

We saw, when he presented himself in his final remarks to this body, his compassion, his heart, and his emotions were clear in relation to his family, his son, and to us—because he was truly an amazing friend to many. He is always in a good humor, always upbeat.

As the Senator from Virginia said, we could never quite understand it, but he was—and still is—an amazingly optimistic and positive person.

Having served as mayor, as a small business owner, as a passionate champion for Alaska, what he didn't mention—I thought I might because it might be too hard for him to remember today—but I want this body to remember that MARK comes from a distinguished line of public service.

A lot of us say that, but in MARK's case his father literally gave his life to Alaska. His plane went down on October 16, 1972. The plane has never been found.

So when MARK walked in the first day I met him, I don't know what I was expecting, but I was expecting someone to have a heavy burden on his shoulders because of that. As the eldest daughter of nine children, I take responsibility so much for my brothers and sisters, and I don't know how I could have gotten where I have gotten without both parents literally lifting me up every day.

So as I have sat across from MARK all these years in very close leadership meetings on Tuesday mornings—and he has walked in with such optimism, such extraordinary confidence in himself, in what he is doing, and in encouraging us—I was always just so struck by the fact that he grew up with a large family, six children. His mother was widowed at a young age. He took on so much responsibility, and yet he came to the Senate ready to serve.

I know his father is truly honored that he didn't get bitter, he wasn't angry. He grew up to be a man who accepted that as God's will, which is a hard thing to accept.

He did so much for the community that his father loved and the State that his father loved. I wanted to add that to the RECORD because a lot of people watching us think we are one-dimensional robots and that there are no other dimensions to our lives and our family.

But it always struck me, MARK, that you have been such a man of courage, such a great inspiration to your family, and truly an inspiration to all of us.

I know your parents are very proud, both of them.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. I wish to add a word to honor my good friend Senator MARK BEGICH. I think there is a special connection with those of us who were elected on the same day.

We share something else in common, which is on that election day in November 2008 neither one of us knew if we had won. We both had to wait some length of time—in my case 2 days and in Senator BEGICH's case a couple of weeks—but it kind of makes us ponder the future: Are you going to serve or are you not going to serve and how will you utilize that opportunity.

There is another connection that comes from being western Senators. When we talk about salmon—and MARK BEGICH mentioned a while ago ''Frankenfish.'' Well, we are very concerned. We have a collective concern about the health of our salmon runs.

It is not just a fishing economy, although that is very much a part of the economy of our States, it is about the soul of our States, the traditions of our State, the natural resources of our States.

When we talk about timber, we have a connection. Sitka was mentioned. Sitka spruce is a common tree in our State of Oregon.

When we get concerned about the rescues off the Oregon coast because the water is so cold one can't be in it for very long without dying—which makes it much more important to have advanced helicopters, and just last night we were able to keep a key helicopter on the coast due to Senator MARK BEGICH's considerable involvement and advocacy. Thank you so much for doing that.

Why is our water so cold off the coast of Oregon? Because it is coming down with the currents from Alaska. In so many ways our States are tied together.

As I have served this first 6 years, I have turned to my friend from Alaska for advice and counsel time after time. His seasoned policy judgment and his core political instincts are on a par with any other Senator in this Chamber and certainly far in advance of my own.

I say to the Senator, I appreciate your friendship. I appreciate you sharing your judgment, and I appreciate your buoyant spirit that reminds us, when we are discouraged, that so much can be accomplished. What an honor it is to have a seat in the Chamber of just 100 Senators, where we can add our voice to a conversation about truly how to make this a better world.

Thank you, my friend, for your service. We will miss you greatly.

The PRESIDING OFFICER (Mr. KING). The Senator from Michigan.

Ms. STABENOW. Mr. President, I just want to add my words to what my other colleagues have said about someone I am going to miss dearly. Senator MARK BEGICH and I worked together on many things. When I passed the reins from the steering and outreach committee and suggested to our leader that he should seriously consider Senator BEGICH for that responsibility, he made us all proud as part of the leadership in presenting a very important perspective every single day.

I have frequently referenced an energy committee trip I took to Alaska with Senator BEGICH where—I thought Michigan was big. Michigan is big. But we not only had to travel a long way to get to Alaska, once we were in Alaska we had to travel a long way from one end to another.

I remember I ran into a number of people from Michigan because in our Upper Peninsula we also have a lot of snow, and we have a lot of people who were working there. But everywhere we went—and we traveled to Native American villages. We flew to Barrow. We were in every part of the State. Some areas you could only get into by helicopter.

We would get there—we went to a Native village that needed a new post office. Senator BEGICH took me out. We had boots on because there was water coming up. We looked at this little,

tiny post office that was maybe a little bigger than a closet, not much. We came out. The whole community was there to urge us to support this post office.

To see not only the information, the depth that Senator BEGICH had about that before we got there, but the way he interacted, his commitment to them—everywhere we went he knew about that community, the leaders in the community. He had a relationship with them.

This is somebody who loves Alaska. In his bones, in your DNA, MARK, is your State. I love seeing that. It was so inspirational to see that. I know the Senator has wonderful family support at home. It has been my pleasure to be at your home for dinner and to watch your son. He is growing up. I know we have a lot more that we will benefit from, from your leadership. I know you have a lot more to contribute to Alaska, to our country.

Just know you are leaving with incredible respect from colleagues and love and affection. We wish you every Godspeed.

The PRESIDING OFFICER. The Senator from New Jersey.

Mr. BOOKER. Mr. President, I rise to add my sense of gratitude and appreciation to someone who has become a dear friend. I am his newest colleague and have had the privilege of working with him for these past 13 months. I just want him to know and state very publicly that he was one of the anchors to me as I was getting to know a very different place from being a mayor of a big city.

Your sense of fierce pragmatism was a light to me, coming down into a place known for partisanship and gridlock, and demonstrated to me your ability to bring people together and get things done, but even more than that, being a model for me, a role model for me in the early stage of my career in the Senate.

I have to confess, and do it with pride, that I love this country with the depth and the core of my being. My parents taught me that sense of pride. But you expanded that, incredibly, by bringing me out to Alaska. Of all my experiences in these 13 months, that was one of the highlights. It taught me a lot when I saw that a Senator still had such a powerful touch and connection and knowledge and love of the people of that State. You have made me love Alaska even more and know Alaska in my heart.

What was extraordinary to me, in knowing you in your short career, was how much you got accomplished, how steadfast you were in pursuing the interests of your State and this Nation. One thing I have to say, I felt uncomfortable as I saw you—I will never forget being at Bartlett High School, with the Bears, and seeing your love and connection to those kids. It made me feel very uncomfortable, the negativity that was being hoisted upon you during a campaign.

It made me think of something as I was out there, and I thought about it again as you talked of history. There is a very famous poet named Maya Angelou, who said these words:

You may write me down in history
With your bitter, twisted lies,
You may trod me in the very dirt
But still, like dust, I rise.

The truth is, you are one of those people who are at your ascendency. You have risen above it all. You have risen above the things in Washington that try the spirits, not just of those of us here but of the Nation. You have risen to a level of accomplishment in your life that is extraordinary and as awesome as some of the vistas I saw in the State of Alaska.

The beauty I have right now, the confidence and the joy I have right now, is the simple fact that I know that God ain't finished with you yet.

Thank you. I yield the floor.

The PRESIDING OFFICER. The Senator from New Mexico.

Mr. UDALL of New Mexico. Mr. President, I just want to rise, similar to others in our class, and many other Senators have risen, to talk a little bit about MARK BEGICH and his service to Alaska and praise him for his service, because I think he has been—since I have been here, the 6 years I have served with him; he was in my class—I have seen a remarkable Senator who truly cares about his State and has been an incredible advocate for his State.

I was not here for his entire speech, but I turned it on. The good thing about our offices is you can tune it in. I caught the point where he got a little bit choked up about Deborah and Jacob. I got choked up, too, in the office. I can cry but not in public. In any event, the first thing I know about MARK is how much he cares about his family and how much the toll of serving in the Senate takes on that family.

His travel—I am a westerner, and I have to travel out 5 hours, 6 hours, 8 hours to get home. His flight is always—we heard the description the other day from Senator MURRAY. He flies all the way out to Seattle at the end of the day. It is 12:30 our time when he arrives there. Then he gets on another flight for another 4½ hours up to Anchorage, just to get home. It is not a very long weekend. Then he has to get on a flight and come back.

His family is so important. I have seen him with his son Jacob. We live just across the alley from each other. I can look out my back window and look down and see the light—just four houses down—and know whether MARK and Deborah and Jacob are in town. We have spent many good times in his house there. That is the first thing I would like to say.

The second is—I have seen this over and over again with Senators. You are one of the best at it—taking the issues that are involved with Alaska and that Alaskans care about and that you knew so well when you were a mayor and fitting them into this vast Federal landscape and making sure Alaskans are heard. I think you are one of the best at doing that. You stepped out on so many different issues. I remember the Native American corporations and how you would reach out in a number of areas with Senators throughout the Senate and try to reach some compromise there.

I have a large Native American community. We, too, have the same kinds of issues on that front that you do. We also share many Native American tribes. As the Senator knows well, it was my father and my uncle who stood up in the 1960s and 1970s to make sure the Natives got a fair shake in Alaska. MARK—that is the way he serves when it comes to Native Americans, caring about them, caring about their issues, going up to the North Slope where it is cold.

My understanding is that during this campaign he got frostbite on one occasion, being out in that terribly tough environment. Thank you for that and for working with me and working with everyone else who tries to make sure Native people get justice. They look to Washington for justice. They look for justice at the Supreme Court. They are not getting much of it over there at the Supreme Court any more. We are the last refuge. We served together on the Indian Affairs Committee.

One final thing to talk about. I have been working on an issue, it is the chemical substances act, for the last couple of years with Senator VITTER. We have tried to do everything we can to bring people—extraordinary piece of legislation—12 Republicans, 12 Democrats on this piece of legislation.

We have been working to make it better. We have had Senators start joining us on both sides of the aisle. MARK, you were one of the key people to work on that. As Senator WARNER said earlier, you were our liaison to the leadership. You were in all of those leadership meetings. Whenever I told you there was a problem, you would surface it, whether or not it was going to blow up the meeting. You stuck in there when it came to truly caring about issues and caring about getting things done.

I think if anything is your hallmark, it is wanting to put aside the partisanship and try to get things done. So that is something that you should be tremendously proud of.

Just as a final word, I love your State of Alaska. I have climbed your highest mountain. My cousin, MARK UDALL, has also done the same thing, climbed Mount McKinley, which has now returned to its Native name, called Denali. I remember going up to your State as a State attorney general. It was the only State in the Nation that put in money for our conference of attorneys general and put us on an 8-hour train across Alaska so we could see all of Alaska.

Alaska is a terrific State. You and I have some disagreements on what we

protect in Alaska, but the wonderful thing is we understand each other's position. We are still very good friends. It has been a real honor to serve with you. I wish you and Deborah and Jacob the very best. Wherever you land—I hope to see you in Alaska again because I know I am going to come up there. But wherever you land, our door will always be open to you.

Thank you and God bless you.

The PRESIDING OFFICER. The Senator from Minnesota.

Ms. KLOBUCHAR. Mr. President, we have heard a lot of people honoring our wonderful colleague Senator BEGICH today. We are all going to miss him dearly. We are especially going to miss him in Minnesota. I have heard many positive statements about Alaska today, but no one can come from a State where they can say they have one of the main streets in Anchorage named after them; that is, Minnesota Street in Anchorage.

That is because there are many Minnesotans. Believe it or not, it was not cold enough in Minnesota so they moved to Alaska. One of those people who moved to Alaska was MARK's dad. MARK's dad actually grew up about 30 miles away from my dad. It is rough-and-tumble country up in the Iron Range of Minnesota. MARK still has relatives in northern Minnesota, and particularly he has an uncle named Uncle Joe—Joe Begich—who served in the legislature for many years and also is a Korean War vet and was truly the heart and soul of the Iron Range delegation in the Minnesota State legislature.

For any of our colleagues who think MARK BEGICH is a character, they should meet his Uncle Joe. I know Uncle Joe. I hope he is watching because nothing made him happier than the day MARK BEGICH got elected to the Senate. And when MARK once came up there with me and we were greeted by Uncle Joe, it was like a hero's welcome when MARK BEGICH appeared on the Iron Range of Minnesota. People came out, and we did an event with veterans. Then, of course, the problem was we went to a bar, and we could get no pictures that didn't have a Budweiser sign on them.

But MARK is a hero up there, and he is a hero across our State just for the work he has done for rural communities. When I say we have rural communities in Minnesota, he always says we have extreme rural communities in Alaska.

He has done work in conservation, which we care about so much. He has done work on tourism. We are cochairs of the tourism caucus, and I still remember the hearing we had right in the middle of the downturn, where every Senator came to talk about all of the things that were happening in their States with tourism. MARK was actually able to cite the price of cruises you could take in Alaska. It was written up in the Washington Post about all the Senators hawking their States, but no one was prouder to hawk Alaska.

The other thing about MARK, which I know was mentioned, is he doesn't believe politics is about standing in the opposite corner of the boxing ring. He believes politics is about working together in the middle and trying to find common ground.

The last thing I will say is how much we love Deborah and Jacob, and we know we will see them around and they are not going to go away.

One time Deborah, Jacob, and MARK came over to our house for brunch. My daughter is about 6 years older now. She was about 13. Jacob and my daughter were playing a game in the other room, and the adults were talking over breakfast. I will never forget Jacob Begich. From the other room, he heard his dad talking about him and, as any politician's kid would do, he said: Stop talking about me, dad. So that kid has inherited that MARK BEGICH sense of fierce independence. When he left, my daughter said: I love that kid, mom. He knows how hard it is to be a politician's kid.

So MARK has left here the legacy of Alaska, the legacy of good work, the legacy of a great staff, and the legacy of a great family. So we will see you around, and thank you for your service.

Mr. BEGICH. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. BOOZMAN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRIBUTE TO MARK PRYOR

Mr. BOOZMAN. Mr. President, I am honored to stand here and recognize my colleague and friend, Arkansas's senior Senator MARK PRYOR, for his service to our State, his contributions to our country, and his work across the aisle.

I have worked with Senator PRYOR during his entire service in the Senate, both as a Member of the House and as a colleague in the Senate. While we don't always agree on policy, we always agree that we need to do what is best for Arkansas and what is best for our Nation.

MARK is always ready to step forward, find a solution, and resolve an issue. He is always ready to extend a hand to the other side of the aisle to get support, and he always has Arkansas on his mind.

Over the last 4 years, we have introduced several pieces of legislation together, and you will find our names as cosponsors of several other pieces of legislation that all have one goal—helping the people of Arkansas and helping the people of our country.

There is a longstanding tradition of collaboration in the Arkansas delegation. When I was elected to the House in 2001, long-time Arkansas Congressman John Paul Hammerschmidt gave me some advice I have tried to live by since coming to Washington. He said: JOHN, always remember that once the election is over, it is time to put away the political differences and focus on helping the people of Arkansas. That is how the delegation worked during John Paul's 26 years of congressional service, which included service with MARK's dad, Senator David Pryor, and that is how MARK and I operated as well.

I appreciate the welcome MARK gave to me and the help his office offered to my staff when I moved over here to the Senate in 2011. I value his friendship, thank him for his service, and appreciate all he has done for the people of Arkansas. I wish him well in the next chapter of his life.

I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. Will the Senator withhold his request?

Mr. BOOZMAN. I will.

The PRESIDING OFFICER. The Senator from Massachusetts.

BAILOUT PROVISION IN OMNIBUS

Ms. WARREN. Mr. President, yesterday I came to the floor to call on House Democrats to withhold their support from the omnibus spending bill until one provision is removed. The provision was slipped in at the last minute to benefit Wall Street. In fact, it was written by lobbyists for Citicorp. That provision means big money for a few big banks. It would let derivatives traders on Wall Street gamble with taxpayer money—and when it all blows up, require the government to bail them out.

Just to be clear, I want to read the title of the part of the law that will be repealed if this provision is not stripped out of the omnibus. The title is ''Prohibition Against Federal Government Bailouts of Swaps Entities.'' That is what is on the table to be taken out of the law.

Now, I am here today to ask my Republican colleagues who don't want to see another Wall Street bailout to join in our effort to strip this Wall Street giveaway from the bill. This is not about partisanship. This is about fairness. This is about accountability and responsibility. This is about preventing another financial collapse that could again wipe out millions of jobs and take down our whole economy.

If big Wall Street banks want to gamble with their own money, so be it. Let them take their risks with their own money, and let them live with the consequences of those risks. That is how markets are supposed to work. But they shouldn't get to gamble with government-insured money, and they shouldn't get to run to the government when the deal goes sour.

Opposition to government bailouts of Wall Street is not a liberal or a conservative issue. The current law, the one about to be repealed, was put in place years ago because after the 2008 financial collapse, people of all political persuasions were disgusted by the

prospect of ever having to use taxpayer dollars to rescue big banks from their own bad decisions.

This morning, Senators from both parties—SHERROD BROWN, a Democrat from Ohio, and DAVID VITTER, a Republican from Louisiana—called for this provision to be taken out of the spending bill. Here is what they said:

If Wall Street banks want to gamble, Congress should force them to pay for their losses, not put taxpayers on the hook for another bailout. Congress should not gamble on a possible government shutdown by attempting to tuck this controversial provision into a spending bill without having been considered by the committees of jurisdiction, where it can be subject to a transparent and rigorous debate.

Senators BROWN and VITTER are exactly right. This provision has no place in a must-pass spending bill.

Conservative activists have jumped in as well. They are raising their voices today to say that this provision has no place in a must-pass spending bill. Here is what one front-page contributor on the conservative blog RedState said this morning:

I have no way to refute the basic point that Democrats are making about the CRomnibus fight right now. In fact, I might even go so far as to say they are right. . . . what possible good faith reason can Republicans have for threatening to gum up the whole works over doing a favor to Wall Street? . . . generally speaking, if Nancy Pelosi is opposed to something then instinctively I know I should be for it. Beyond that I haven't the slightest clue why the proposed tweak to Dodd-Frank ought to be anything resembling a hill the Republicans should die for.

These conservative activists are right. If you believe in smaller government, how can you support a provision that would expand a government insurance program and put taxpayers on the hook for the riskiest private activities? If you thought the Ex-Im Bank exposed taxpayers to risk—even though it has never cost the taxpayers a dime—how can you support a provision to prevent another calamity such as the one that cost taxpayers billions of dollars just 6 years ago?

House Republican leaders are moving quickly to try to jam this bill through today before their own Members have had a chance to digest this Wall Street bailout provision. The fact sheet that Republican appropriators sent around to their Members explaining the provision doesn't even describe it accurately. According to the fact sheet, the provision in question would ''protect farmers and other commodity producers from having to put down excessive collateral to get a loan, expand their businesses, and hedge their production.'' Whatever you think about the bill, that description is flatly wrong. In fact, that description applies to yet another Wall Street reform rollback that the Republicans are pushing right now, which is attached to a completely different bill.

Now, I don't know if Republican leaders in the House are deliberately trying to confuse their Members into voting for a government bailout program or whether they just can't keep straight all their efforts to gut financial reform. Republican leaders are about to bring this bill up for a vote. So here is the bottom line. A vote for this bill is a vote for future taxpayer bailouts of Wall Street. When the next bailout comes, a lot of people will look back to this vote to see who was responsible for putting the government back on the hook to bail out Wall Street.

To Republican leaders in the House, I would ask this. You say you are against bailouts on Wall Street. I have heard you say it again and again for 5 years. So why in the world are you spending your time and your energy fighting for a provision written by Citigroup lobbyists that would increase the chance of future bailouts? Why, in the last minute as you head out the door and a spending bill must be passed, are you making it a priority to do Wall Street's bidding? Whom do you work for—Wall Street or the American people?

This fight isn't about conservatives or liberals. It is not about Democrats or Republicans. It is about money, and it is about power right here in Washington. This legal change could trigger more taxpayer bailouts and could ultimately threaten our entire economy, but it will also make a lot of money for Wall Street banks. According to Americans for Financial Reform, this change will be a huge boon to just a handful of our biggest banks: Citigroup, JPMorgan, Bank of America.

People are frustrated with Congress. Part of the reason, of course, is gridlock. But mostly it is because they see a Congress that works just fine for the big guys but won't lift a finger to help them. If big companies can deploy their armies of lobbyists and lawyers to get Congress to vote for special deals that benefit themselves, then we will simply confirm the view of the American people that the system is rigged.

This is a democracy. The American people sent us here—Republicans, Democrats and Independents. They sent us here to stand up for them, to stand up for taxpayers, to protect the economy. Nobody sent us here to stand up for Citigroup.

I urge my Republican colleagues in the House to withhold their support from this package until this risky giveaway is removed from the legislation. It is time for all of us to stand up and fight.

Mr. President, I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. DURBIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

UKRAINE FREEDOM SUPPORT ACT OF 2014

Mr. DURBIN. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 573, S. 2828.

The PRESIDING OFFICER. The clerk will report the bill by title.

The assistant legislative clerk read as follows:

A bill (S. 2828) to impose sanctions with respect to the Russian Federation, to provide additional assistance to Ukraine, and for other purposes.

There being no objection, the Senate proceeded to consider the bill, which had been reported from the Committee on Foreign Relations, with amendments, as follows:

(The parts of the bill intended to be stricken are shown in boldface brackets and the parts of the bill intended to be inserted are shown in italics.)

S. 2828

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Ukraine Freedom Support Act of 2014''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Definitions.
Sec. 3. Statement of policy regarding Ukraine.
Sec. 4. Sanctions relating to the defense and energy sectors of the Russian Federation.
Sec. 5. Sanctions on Russian and other foreign financial institutions.
Sec. 6. Codification of executive orders addressing the crisis in Ukraine.
Sec. 7. Major non-NATO ally status for Ukraine, Georgia, and Moldova.
Sec. 8. Increased military assistance for the Government of Ukraine.
Sec. 9. Expanded nonmilitary assistance for Ukraine.
Sec. 10. Expanded broadcasting in countries of the former Soviet Union.
Sec. 11. Support for Russian democracy and civil society organizations.
Sec. 12. Report on non-compliance by the Russian Federation of its obligations under the INF Treaty.

SEC. 2. DEFINITIONS.

In this Act:

(1) ACCOUNT; CORRESPONDENT ACCOUNT; PAYABLE-THROUGH ACCOUNT.—The terms ''account'', ''correspondent account'', and ''payable-through account'' have the meanings given those terms in section 5318A of title 31, United States Code.

(2) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Relations and the Committee on Banking, Housing, and Urban Affairs of the Senate; and

(B) the Committee on Foreign Affairs and the Committee on Financial Services of the House of Representatives.

(3) CONTROL.—The term ''control'' means—

(A) in the case of a corporation, to hold at least 50 percent (by vote or value) of the capital structure of the corporation; or

(B) in the case of any other entity, to hold interests representing at least 50 percent of the capital structure of the entity.

(4) DEFENSE ARTICLE; DEFENSE SERVICE; TRAINING.—The terms ''defense article'', ''defense service'', and ''training'' have the

meanings given those terms in section 47 of the Arms Export Control Act (22 U.S.C. 2794).

(5) FINANCIAL INSTITUTION.—The term ''financial institution'' means a financial institution specified in subparagraph (A), (B), (C), (D), (E), (F), (G), (H), (I), (J), (M), or (Y) of section 5312(a)(2) of title 31, United States Code.

(6) FOREIGN FINANCIAL INSTITUTION.—The term ''foreign financial institution'' has the meaning given that term in section 561.308 of title 31, Code of Federal Regulations (or any corresponding similar regulation or ruling).

(7) KNOWINGLY.—The term ''knowingly'', with respect to conduct, a circumstance, or a result, means that a person has actual knowledge, or should have known, of the conduct, the circumstance, or the result.

(8) NATIONAL.—The term ''national'' has the meaning given that term in section 101(a) of the Immigration and Nationality Act (8 U.S.C. 1101(a)).

(9) PERSON.—The term ''person'' means—

(A) an individual;

(B) a corporation, business association, partnership, society, trust, any other nongovernmental entity, organization, or group, or any governmental entity operating as a business enterprise; or

(C) any successor to any entity described in subparagraph (B).

(10) RUSSIAN PERSON.—The term ''Russian person'' means—

(A) an individual who is a citizen or national of the Russian Federation; or

(B) an entity organized under the laws of the Russian Federation.

(11) SPECIAL RUSSIAN CRUDE OIL PROJECT.—The term ''special Russian crude oil project'' means a project intended to extract crude oil from—

(A) the exclusive economic zone of the Russian Federation in waters more than 500 feet deep;

(B) Russian Arctic offshore locations; or

(C) shale formations located in the Russian Federation.

(12) UNITED STATES PERSON.—The term ''United States person'' means—

(A) a United States citizen or an alien lawfully admitted for permanent residence to the United States; or

(B) an entity organized under the laws of the United States or of any jurisdiction within the United States, including a foreign branch of such an entity.

SEC. 3. STATEMENT OF POLICY REGARDING UKRAINE.

It is the policy of the United States to further assist the Government of Ukraine in restoring its sovereignty and territorial integrity to deter the Government of the Russian Federation from further destabilizing and invading Ukraine and other independent countries in Eastern Europe and Central Asia. That policy shall be carried into effect, among other things, through a comprehensive effort, in coordination with allies and partners of the United States where appropriate, that includes economic sanctions, diplomacy, assistance for the people of Ukraine, and the provision of military capabilities to the Government of Ukraine that will enhance the ability of that Government to defend itself and to restore its sovereignty and territorial integrity in the face of unlawful actions by the Government of the Russian Federation.

SEC. 4. SANCTIONS RELATING TO THE DEFENSE AND ENERGY SECTORS OF THE RUSSIAN FEDERATION.

(a) SANCTIONS RELATING TO THE DEFENSE SECTOR.—

(1) ROSOBORONEXPORT.—Except as provided in subsection (d), not later than 30 days after the date of the enactment of this Act, the President shall impose 3 or more of the sanctions described in subsection (c) with respect to Rosoboronexport.

(2) RUSSIAN PRODUCERS, TRANSFERORS, OR BROKERS OF DEFENSE ARTICLES.—Except as provided in subsection (d), not later than 45 days after the date of the enactment of this Act, the President shall impose 3 or more of the sanctions described in subsection (c) with respect to a person the President determines—

(A) is an entity—

(i) owned by the Government of the Russian Federation or controlled by nationals of the Russian Federation; and

(ii) that—

(I) manufactures or sells defense articles transferred into Syria or into the territory of a specified country without the consent of the internationally recognized government of that country;

(II) transfers defense articles into Syria or into the territory of a specified country without the consent of the internationally recognized government of that country; or

(III) brokers or otherwise assists in the transfer of defense articles into Syria or into the territory of a specified country without the consent of the internationally recognized government of that country; or

(B) knowingly, on or after the date of the enactment of this Act, assists, sponsors, or provides financial, material, or technological support for, or goods or services to or in support of, an entity described in subparagraph (A) with respect to an activity described in clause (ii) of that subparagraph.

(3) SPECIFIED COUNTRY DEFINED.—

(A) IN GENERAL.—In this subsection, the term ''specified country'' means—

(i) Ukraine, Georgia, and Moldova; and

(ii) any other country designated by the President as a country of significant concern for purposes of this subsection, such as Poland, Lithuania, Latvia, Estonia, and the Central Asia republics.

(B) NOTICE TO CONGRESS.—The President shall notify the appropriate congressional committees in writing not later than 15 days before—

(i) designating a country as a country of significant concern under subparagraph (A)(ii); or

(ii) terminating a designation under that subparagraph, including the termination of any such designation pursuant to ⟦subsection (g)⟧ *subsection (h)*.

(b) SANCTIONS RELATED TO THE ENERGY SECTOR.—

(1) DEVELOPMENT OF SPECIAL RUSSIAN CRUDE OIL PROJECTS.—Except as provided in subsection (d), not later than 45 days after the date of the enactment of this Act, the President shall impose 3 or more of the sanctions described in subsection (c) with respect to a person if the President determines that the person knowingly makes a significant investment in a special Russian crude oil project.

(2) AUTHORIZATION FOR EXTENSION OF LICENSING LIMITATIONS ON CERTAIN EQUIPMENT.—The President, through the Bureau of Industry and Security of the Department of Commerce or the Office of Foreign Assets Control of the Department of the Treasury, as appropriate, may impose additional licensing requirements for or other restrictions on the export or reexport of items for use in the energy sector of the Russian Federation, including equipment used for tertiary oil recovery.

(3) CONTINGENT SANCTION RELATING TO GAZPROM.—If the President determines that Gazprom is withholding significant natural gas supplies from member countries of the North Atlantic Treaty Organization, or further withholds significant natural gas supplies from countries such as Ukraine, Georgia, or Moldova, the President shall, not later than 45 days after making that determination, impose the sanction described in subsection (c)(7) and at least one additional sanction described in subsection (c) with respect to Gazprom.

(c) SANCTIONS DESCRIBED.—The sanctions the President may impose with respect to a foreign person under subsection (a) or (b) are the following:

(1) EXPORT-IMPORT BANK ASSISTANCE.—The President may direct the Export-Import Bank of the United States not to approve the issuance of any guarantee, insurance, extension of credit, or participation in the extension of credit in connection with the export of any goods or services to the foreign person.

(2) PROCUREMENT SANCTION.—The President may prohibit the head of any executive agency (as defined in section 133 of title 41, United States Code) from entering into any contract for the procurement of any goods or services from the foreign person.

(3) ARMS EXPORT PROHIBITION.—The President may prohibit the exportation or provision by sale, lease or loan, grant, or other means, directly or indirectly, of any defense article or defense service to the foreign person and the issuance of any license or other approval to the foreign person under section 38 of the Arms Export Control Act (22 U.S.C. 2778).

(4) DUAL-USE EXPORT PROHIBITION.—The President may prohibit the issuance of any license and suspend any license for the transfer to the foreign person of any item the export of which is controlled under the Export Administration Act of 1979 (50 U.S.C. App. 2401 et seq.) (as in effect pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.)) or the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations.

(5) PROPERTY TRANSACTIONS.—The President may, pursuant to such regulations as the President may prescribe, prohibit any person from—

(A) acquiring, holding, withholding, using, transferring, withdrawing, transporting, or exporting any property that is subject to the jurisdiction of the United States and with respect to which the foreign person has any interest;

(B) dealing in or exercising any right, power, or privilege with respect to such property; or

(C) conducting any transaction involving such property.

(6) BANKING TRANSACTIONS.—The President may, pursuant to such regulations as the President may prescribe, prohibit any transfers of credit or payments between financial institutions or by, through, or to any financial institution, to the extent that such transfers or payments are subject to the jurisdiction of the United States and involve any interest of the foreign person.

(7) PROHIBITION ON INVESTMENT IN EQUITY OR DEBT OF SANCTIONED PERSON.—The President may, pursuant to such regulations as the President may prescribe, prohibit any United States person from investing in or purchasing significant amounts of equity or debt instruments of the foreign person.

(8) EXCLUSION FROM THE UNITED STATES AND REVOCATION OF VISA OR OTHER DOCUMENTATION.—In the case of a foreign person who is an individual, the President may direct the Secretary of State to deny a visa to, and the Secretary of Homeland Security to exclude from the United States, the foreign person, subject to regulatory exceptions to permit the United States to comply with the Agreement regarding the Headquarters of the United Nations, signed at Lake Success June 26, 1947, and entered into force November 21, 1947, between the United Nations and the

United States, or other applicable international obligations.

(9) SANCTIONS ON PRINCIPAL EXECUTIVE OFFICERS.—In the case of a foreign person that is an entity, the President may impose on the principal executive officer or officers of the foreign person, or on individuals performing similar functions and with similar authorities as such officer or officers, any of the sanctions described in this subsection applicable to individuals.

(d) EXCEPTIONS.—

(1) IMPORTATION OF GOODS.—

(A) IN GENERAL.—The authority to block and prohibit all transactions in all property and interests in property under subsection (c)(5) shall not include the authority to impose sanctions on the importation of goods.

(B) GOOD DEFINED.—In this paragraph, the term ''good'' has the meaning given that term in section 16 of the Export Administration Act of 1979 (50 U.S.C. App. 2415) (as continued in effect pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.)).

(2) ADDITIONAL EXCEPTIONS.—The President shall not be required to apply or maintain the sanctions under subsection (a) or (b)—

(A) in the case of procurement of defense articles or defense services—

(i) under existing contracts or subcontracts, including the exercise of options for production quantities to satisfy requirements essential to the national security of the United States;

(ii) if the President determines in writing that—

(I) the person to which the sanctions would otherwise be applied is a sole source supplier of the defense articles or services;

(II) the defense articles or services are essential;

(III) alternative sources are not readily or reasonably available; and

(IV) the national interests of the United States would be adversely affected by the application or maintenance of such sanctions; or

(iii) if the President determines in writing that—

(I) such articles or services are essential to the national security under defense coproduction agreements; and

(II) the national interests of the United States would be adversely affected by the application or maintenance of such sanctions;

(B) in the case of procurement, to eligible products, as defined in section 308(4) of the Trade Agreements Act of 1979 (19 U.S.C. 2518(4)), of any foreign country or instrumentality designated under section 301(b)(1) of that Act (19 U.S.C. 2511(b)(1));

(C) to products, technology, or services provided under contracts entered into before the date on which the President publishes in the Federal Register the name of the person with respect to which the sanctions are to be imposed;

(D) to—

(i) spare parts that are essential to United States products or production;

(ii) component parts, but not finished products, essential to United States products or production; or

(iii) routine servicing and maintenance of United States products, to the extent that alternative sources are not readily or reasonably available;

(E) to information and technology essential to United States products or production; or

(F) to food, medicine, medical devices, or agricultural commodities (as those terms are defined in section 101 of the Comprehensive Iran Sanctions, Accountability, and Divestment Act of 2010 (22 U.S.C. 8511)).

(e) NATIONAL SECURITY WAIVER.—

(1) IN GENERAL.—The President may waive the application of sanctions under subsection (a) or (b) with respect to a person if the President—

(A) determines that the waiver is in the national security interest of the United States; and

(B) submits to the appropriate congressional committees a report on the determination and the reasons for the determination.

(2) FORM OF REPORT.—The report required by paragraph (1)(B) shall be submitted in unclassified form, but may include a classified annex.

(f) TRANSACTION-SPECIFIC NATIONAL SECURITY WAIVER.—

(1) IN GENERAL.—The President may waive the application of sanctions under subsection (a) or (b) with respect to a specific transaction if the President—

(A) determines that the transaction is in the national security interest of the United States; and

(B) submits to the appropriate congressional committees a detailed report on the determination and the specific reasons for the determination that a waiver with respect to the transaction is necessary and appropriate.

(2) FORM OF REPORT.—The report required by paragraph (1)(B) shall be submitted in unclassified form, but may include a classified annex.

(g) PENALTIES.—The penalties provided for in subsections (b) and (c) of section 206 of the International Emergency Economic Powers Act (50 U.S.C. 1705) shall apply to a person that violates, attempts to violate, or conspires to violate, or causes a violation of, subsection (a) or (b) of this section, or an order or regulation prescribed under either such subsection, to the same extent that such penalties apply to a person that commits an unlawful act described in section 206(a) of the International Emergency Economic Powers Act.

[(h) TERMINATION.—This section, and sanctions imposed under this section, shall terminate on the date on which the President submits to the appropriate congressional committees a certification that the Government of the Russian Federation has ceased ordering, controlling, or otherwise directing, supporting, or financing, significant acts intended to undermine the peace, security, stability, sovereignty, or territorial integrity of Ukraine, Georgia, and Moldova.**]**

(h) TERMINATION.—This section, and sanctions imposed under this section, shall terminate on the date on which the President submits to the appropriate congressional committees a certification that the Government of the Russian Federation has ceased ordering, controlling, or otherwise directing, supporting, or financing, significant acts intended to undermine the peace, security, stability, sovereignty, or territorial integrity of Ukraine, Georgia, and Moldova, including through an agreement between the appropriate parties.

SEC. 5. SANCTIONS ON RUSSIAN AND OTHER FOREIGN FINANCIAL INSTITUTIONS.

(a) FACILITATION OF CERTAIN DEFENSE- AND ENERGY-RELATED TRANSACTIONS.—The President may impose the sanction described in subsection (c) with respect to a foreign financial institution that the President determines engages, on or after the date of the enactment of this Act, in significant transactions involving—

(1) persons with respect to which sanctions are imposed under section 4; and

(2) activities described in subsection (a) or (b) of that section.

(b) FACILITATION OF FINANCIAL TRANSACTIONS ON BEHALF OF SPECIALLY DESIGNATED NATIONALS.—The President may impose the sanction described in subsection (c) with respect to a foreign financial institution if the President determines that the foreign financial institution has, on or after the date that is 180 days after the date of the enactment of this Act, knowingly facilitated a significant financial transaction on behalf of any Russian person included on the list of specially designated nationals and blocked persons maintained by the Office of Foreign Assets Control of the Department of the Treasury, pursuant to—

(1) this Act;

(2) Executive Order 13660 (79 Fed. Reg. 13,493), 13661 (79 Fed. Reg. 15,535), or 13662 (79 Fed. Reg. 16,169); or

(3) any other executive order addressing the crisis in Ukraine.

(c) SANCTION DESCRIBED.—The sanction described in this subsection is, with respect to a foreign financial institution, a prohibition on the opening, and a prohibition or the imposition of strict conditions on the maintaining, in the United States of a correspondent account or a payable-through account by the foreign financial institution.

(d) NATIONAL SECURITY WAIVER.—The President may waive the application of sanctions under this section with respect to a foreign financial institution if the President—

(1) determines that the waiver is in the national security interest of the United States; and

(2) submits to the appropriate congressional committees a report on the determination and the reasons for the determination.

(e) TERMINATION.—This section, and sanctions imposed under this section, shall terminate on the date on which the President submits to the appropriate congressional committees the certification described in section 4(h).

SEC. 6. CODIFICATION OF EXECUTIVE ORDERS ADDRESSING THE CRISIS IN UKRAINE.

*(a) IN GENERAL.—United States***[**United States**]** sanctions with respect to the Russian Federation provided for in Executive Orders 13660 (79 Fed. Reg. 13,493), 13661 (79 Fed. Reg. 15,535), and 13662 (79 Fed. Reg. 16,169), as in effect on the day before the date of the enactment of this Act, shall remain in effect until the date on which the President submits to the appropriate congressional committees the certification described in section 4(h).

(b) EXCEPTIONS AND WAIVERS.—Sanctions referred to in subsection (a) shall, as appropriate, be subject to the exceptions and waivers provided for in subsections (d), (e), and (f) of section 4.

SEC. 7. MAJOR NON-NATO ALLY STATUS FOR UKRAINE, GEORGIA, AND MOLDOVA.

Section 517 of the Foreign Assistance Act of 1961 (22 U.S.C. 2321k) is amended by adding at the end the following:

''(c) ADDITIONAL DESIGNATIONS.—

''(1) IN GENERAL.—Effective on the date of the enactment of the Ukraine Freedom Support Act of 2014, Ukraine, Georgia, and Moldova are each designated as a major non-NATO ally for purposes of this Act and the Arms Export Control Act (22 U.S.C. 2751 et seq.).

''(2) NOTICE OF TERMINATION OF DESIGNATION.—The President shall notify Congress in accordance with subsection (a)(2) before terminating the designation of a country specified in paragraph (1).''.

SEC. 8. INCREASED MILITARY ASSISTANCE FOR THE GOVERNMENT OF UKRAINE.

(a) IN GENERAL.—The President is authorized to provide defense articles, defense services, and training to the Government of Ukraine for the purpose of countering offensive weapons and reestablishing the sovereignty and territorial integrity of Ukraine,

including anti-tank and anti-armor weapons, crew weapons and ammunition, counter-artillery radars to identify and target artillery batteries, fire control, range finder, and optical and guidance and control equipment, tactical troop-operated surveillance drones, and secure command and communications equipment, pursuant to the provisions of the Arms Export Control Act (22 U.S.C. 2751 et seq.), the Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.), and other relevant provisions of law.

(b) REPORT REQUIRED.—Not later than 60 days after the date of the enactment of this Act, the President shall submit a report detailing the anticipated defense articles, defense services, and training to be provided pursuant to this section and a timeline for the provision of such defense articles, defense services, and training, to—

(1) the Committee on Foreign Relations, the Committee on Appropriations, and the Committee on Armed Services of the Senate; and

(2) the Committee on Foreign Affairs, the Committee on Appropriations, and the Committee on Armed Services of the House of Representatives.

(c) AUTHORIZATION OF APPROPRIATIONS.—

(1) IN GENERAL.—There are authorized to be appropriated to the Secretary of State $350,000,000 for fiscal year 2015 to carry out activities under this section.

(2) AVAILABILITY OF AMOUNTS.—Amounts authorized to be appropriated pursuant to paragraph (1) shall remain available for obligation and expenditure through the end of fiscal year 2017.

(d) AUTHORITY FOR THE USE OF FUNDS.—The funds made available pursuant to subsection (c) for provision of defense articles, defense services, and training may be used to procure such articles, services, and training from the United States Government or other appropriate sources.

SEC. 9. EXPANDED NONMILITARY ASSISTANCE FOR UKRAINE.

(a) ASSISTANCE TO INTERNALLY DISPLACED PEOPLE IN UKRAINE.—

(1) IN GENERAL.—Not later than 30 days after the date of the enactment of this Act, the Secretary of State shall submit a plan, including actions by the United States Government, other governments, and international organizations, to meet the need for protection of and assistance for internally displaced persons in Ukraine, to—

(A) the Committee on Foreign Relations, the Committee on Appropriations, and the Committee on Energy and Natural Resources of the Senate; and

(B) the Committee on Foreign Affairs, the Committee on Appropriations, and the Committee on Energy and Commerce of the House of Representatives.

(2) ELEMENTS.—The plan required by paragraph (1) should include, as appropriate, activities in support of—

(A) helping to establish a functional and adequately resourced central registration system in Ukraine that can ensure coordination of efforts to provide assistance to internally displaced persons in different regions;

(B) encouraging adoption of legislation in Ukraine that protects internally displaced persons from discrimination based on their status and provides simplified procedures for obtaining the new residency registration or other official documentation that is a prerequisite to receiving appropriate social payments under the laws of Ukraine, such as pensions, and disability, child, and unemployment benefits; and

(C) helping to ensure that information is available to internally displaced persons about—

(i) government agencies and independent groups that can provide assistance to such persons in various regions; and

(ii) evacuation assistance available to persons seeking to flee armed conflict areas.

(3) ASSISTANCE THROUGH INTERNATIONAL ORGANIZATIONS.—The President shall instruct the United States permanent representative or executive director, as the case may be, to the relevant United Nations voluntary agencies, including the United Nations High Commissioner for Refugees and the United Nations Office for the Coordination of Humanitarian Affairs, and other appropriate international organizations, to use the voice and vote of the United States to support appropriate assistance for internally displaced persons in Ukraine.

(b) ASSISTANCE TO THE DEFENSE SECTOR OF UKRAINE.—The Secretary of State and the Secretary of Defense should assist entities in the defense sector of Ukraine to reorient exports away from customers in the Russian Federation and to find appropriate alternative markets for those entities in the defense sector of Ukraine that have already significantly reduced exports to and cooperation with entities in the defense sector of the Russian Federation.

(c) ASSISTANCE TO ADDRESS THE ENERGY CRISIS IN UKRAINE.—

(1) EMERGENCY ENERGY ASSISTANCE.—

(A) PLAN REQUIRED.—The Secretary of State and the Secretary of Energy, in collaboration with the Administrator of the United States Agency for International Development and the Administrator of the Federal Emergency Management Agency, shall work with officials of the Government of Ukraine to develop a short-term emergency energy assistance plan designed to help Ukraine address the potentially severe short-term, heating fuel and electricity shortages facing Ukraine in 2014 and 2015.

(B) ELEMENTS.—The plan required by subparagraph (A) should include strategies to address heating fuel and electricity shortages in Ukraine, including, as appropriate—

(i) the acquisition of short-term, emergency fuel supplies;

(ii) the repair or replacement of infrastructure that could impede the transmission of electricity or transportation of fuel;

(iii) the prioritization of the transportation of fuel supplies to the areas where such supplies are needed most;

(iv) streamlining emergency communications throughout national, regional, and local governments to manage the potential energy crisis resulting from heating fuel and electricity shortages;

(v) forming a crisis management team within the Government of Ukraine to specifically address the potential crisis, including ensuring coordination of the team's efforts with the efforts of outside governmental and nongovernmental entities providing assistance to address the potential crisis; and

(vi) developing a public outreach strategy to facilitate preparation by the population and communication with the population in the event of a crisis.

(C) ASSISTANCE.—The Secretary of State, the Secretary of Energy, and the Administrator of the United States Agency for International Development are authorized to provide assistance in support of, and to invest in short-term solutions for, enabling Ukraine to secure the energy safety of the people of Ukraine during 2014 and 2015, including through—

(i) procurement and transport of emergency fuel supplies, including reverse pipeline flows from Europe;

(ii) provision of technical assistance for crisis planning, crisis response, and public outreach;

(iii) repair of infrastructure to enable the transport of fuel supplies;

(iv) repair of power generating or power transmission equipment or facilities;

(v) procurement and installation of compressors or other appropriate equipment to enhance short-term natural gas production;

(vi) procurement of mobile electricity generation units; [and]

(vii) conversion of natural gas heating facilities to run on other fuels, including alternative energy sources[.]*; and*

(viii) provision of emergency weatherization and winterization materials and supplies.

(D) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to the Secretary of State, the Secretary of Energy, and the Administrator of the United States Agency for International Development $50,000,000 in the aggregate for fiscal year 2015 to carry out activities under this paragraph.

(2) REDUCTION OF UKRAINE'S RELIANCE ON ENERGY IMPORTS.—

(A) PLANS REQUIRED.—The Secretary of State, in collaboration with the Secretary of Energy and the Administrator of the United States Agency for International Development, shall work with officials of the Government of Ukraine to develop medium- and long-term plans to increase energy production and efficiency to increase energy security by helping Ukraine reduce its dependence on natural gas imported from the Russian Federation.

(B) ELEMENTS.—The medium- and long-term plans required by subparagraph (A) should include strategies, as appropriate, to—

(i) improve corporate governance and unbundling of state-owned oil and gas sector firms;

(ii) increase production from natural gas fields and from other sources, including renewable energy;

(iii) license new oil and gas blocks transparently and competitively;

(iv) modernize oil and gas upstream infrastructure; and

(v) improve energy efficiency.

(C) PRIORITIZATION.—The Secretary of State, the Administrator of the United States Agency for International Development, and the Secretary of Energy should, during fiscal years 2015 through 2017, work with other donors, including multilateral agencies and nongovernmental organizations, to prioritize, to the extent practicable and as appropriate, the provision of assistance from such donors to help Ukraine to improve energy efficiency, increase energy supplies produced in Ukraine, and reduce reliance on energy imports from the Russian Federation, including natural gas.

(D) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated $50,000,000 in the aggregate for fiscal years 2015 through 2017 to carry out activities under this paragraph.

(3) SUPPORT FROM THE OVERSEAS PRIVATE INVESTMENT CORPORATION.—The Overseas Private Investment Corporation shall—

(A) prioritize, to the extent practicable, support for investments to help increase energy efficiency, develop domestic oil and natural gas reserves, improve and repair electricity infrastructure, and develop renewable and other sources of energy in Ukraine; and

(B) implement procedures for expedited review and, as appropriate, approval, of applications by eligible investors (as defined in section 238 of the Foreign Assistance Act of 1961 (22 U.S.C. 2198)) for loans, loan guarantees, and insurance for such investments.

(4) SUPPORT BY THE WORLD BANK GROUP AND THE EUROPEAN BANK FOR RECONSTRUCTION AND DEVELOPMENT.—The President shall, to the

extent practicable and as appropriate, direct the United States Executive Directors of the World Bank Group and the European Bank for Reconstruction and Development to use the voice, vote, and influence of the United States to encourage the World Bank Group and the European Bank for Reconstruction and Development and other international financial institutions—

(A) to invest in, and increase their efforts to promote investment in, projects to improve energy efficiency, improve and repair electricity infrastructure, develop domestic oil and natural gas reserves, and develop renewable and other sources of energy in Ukraine; and

(B) to stimulate private investment in such projects.

(d) ASSISTANCE TO CIVIL SOCIETY IN UKRAINE.—

(1) IN GENERAL.—The Secretary of State and the Administrator of the United States Agency for International Development shall, directly or through nongovernmental or international [organizations] *organizations, such as the Organization for Security and Cooperation in Europe, the National Endowment for Democracy, and related organizations*—

(A) strengthen the organizational and operational capacity of democratic civil society in Ukraine;

(B) support the efforts of independent media outlets to broadcast, distribute, and share information in all regions of Ukraine;

(C) counter corruption and improve transparency and accountability of institutions that are part of the Government of Ukraine; and

(D) provide support for democratic organizing and election monitoring in Ukraine.

(2) STRATEGY REQUIRED.—Not later than 60 days after the date of the enactment of this Act, the President shall submit a strategy to carry out the activities described in paragraph (1) [to the committees specified in subsection (a)(1).] *to*—

(A) the Committee on Foreign Relations and the Committee on Appropriations of the Senate; and

(B) the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives.

(3) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to the Secretary of State $20,000,000 for fiscal year 2015 to carry out this subsection.

(4) TRANSPARENCY REQUIREMENTS.—Any assistance provided pursuant to this subsection shall be conducted in as transparent of a manner as possible, consistent with the nature and goals of this subsection. The President shall provide a briefing on the activities funded by this subsection at the request of the committees specified in paragraph (2).

SEC. 10. EXPANDED BROADCASTING IN COUNTRIES OF THE FORMER SOVIET UNION.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Chairman of the Broadcasting Board of Governors shall submit to Congress a plan, including a cost estimate, for immediately and substantially increasing, and maintaining through fiscal year 2017, the quantity of Russian-language broadcasting into the countries of the former Soviet Union funded by the United States in order to counter Russian Federation propaganda.

(b) PRIORITIZATION OF BROADCASTING INTO UKRAINE, GEORGIA, AND MOLDOVA.—The plan required by subsection (a) shall prioritize broadcasting into Ukraine, Georgia, and Moldova by the Voice of America and Radio Free Europe/Radio Liberty.

(c) ADDITIONAL PRIORITIES.—In developing the plan required by subsection (a), the Chairman shall consider—

(1) near-term increases in Russian-language broadcasting for countries of the former Soviet Union (other than the countries specified in subsection (b)), including Latvia, Lithuania, and Estonia; and

(2) increases in broadcasting in other critical languages, including Ukrainian and Romanian languages.

(d) BROADCASTING DEFINED.—In this section, the term ''broadcasting'' means the distribution of media content via radio broadcasting, television broadcasting, and Internet-based platforms, among other platforms.

(e) AUTHORIZATION OF APPROPRIATIONS.—

(1) IN GENERAL.—There are authorized to be appropriated *to the Broadcasting Board of Governors* $10,000,000 for each of fiscal years 2015 through 2017 to carry out activities under this section.

(2) SUPPLEMENT NOT SUPPLANT.—Amounts authorized to be appropriated pursuant to paragraph (1) shall supplement and not supplant other amounts made available for activities described in this section.

SEC. 11. SUPPORT FOR RUSSIAN DEMOCRACY AND CIVIL SOCIETY ORGANIZATIONS.

(a) IN GENERAL.—The Secretary of State shall, directly or through nongovernmental or international organizations, such as the Organization for Security and Co-operation in Europe, the National Endowment for Democracy, and related organizations—

(1) improve democratic governance, transparency, accountability, rule of law, and anti-corruption efforts in the Russian Federation;

(2) strengthen democratic institutions and political and civil society organizations in the Russian Federation;

(3) expand uncensored Internet access in the Russian Federation; and

(4) expand free and unfettered access to independent media of all kinds in the Russian Federation, including through increasing United States Government-supported broadcasting activities, and assist with the protection of journalists and civil society activists who have been targeted for free speech activities.

(b) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to the Secretary of State $20,000,000 for each of fiscal years 2015 through 2017 to carry out the activities set forth in subsection (a).

(c) STRATEGY REQUIREMENT.—Not later than 60 days after the date of the enactment of this Act, the President shall submit a strategy to carry out the activities set forth in subsection (a) to—

(1) the Committee on Foreign Relations and the Committee on Appropriations of the Senate; and

(2) the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives.

(d) TRANSPARENCY REQUIREMENTS.—Any assistance provided pursuant to this section shall be conducted in as transparent of a manner as possible, consistent with the nature and goals of this section. The President shall provide a briefing on the activities funded by this section at the request of the committees specified in subsection (c).

SEC. 12. REPORT ON NON-COMPLIANCE BY THE RUSSIAN FEDERATION OF ITS OBLIGATIONS UNDER THE INF TREATY.

(a) FINDINGS.—Congress makes the following findings:

(1) The Russian Federation is in violation of its obligations under the Treaty between the United States of America and the Union of Soviet Socialist Republics on the Elimination of Their Intermediate-Range and Shorter-Range Missiles, signed at Washington December 8, 1987, and entered into force June 1, 1988 (commonly referred to as the ''Intermediate-Range Nuclear Forces Treaty'' or ''INF Treaty'').

(2) This behavior poses a threat to the United States, its deployed forces, and its allies.

(b) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the President should hold the Russian Federation accountable for being in violation of its obligations under the INF Treaty; and

(2) the President should demand the Russian Federation completely and verifiably eliminate the military systems that constitute the violation of its obligations under the INF Treaty.

(c) REPORT.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, and every 90 days thereafter, the President shall submit to the committees specified in subsection (d) a report that includes the following elements:

(A) A description of the status of the President's efforts, in cooperation with United States allies, to hold the Russian Federation accountable for being in violation of its obligations under the INF Treaty and obtain the complete and verifiable elimination of its military systems that constitute the violation of its obligations under the INF Treaty.

(B) The President's assessment as to whether it remains in the national security interests of the United States to remain a party to the INF Treaty, and other related treaties and agreements, while the Russian Federation is in violation of its obligations under the INF Treaty.

(C) Notification of any deployment by the Russian Federation of a ground launched ballistic or cruise missile system with a range of between 500 and 5,500 kilometers.

(D) A plan developed by the Secretary of State, in consultation with the Director of National Intelligence and the Defense Threat Reduction Agency (DTRA), to verify that the Russian Federation has fully and completely dismantled any ground launched cruise missiles or ballistic missiles with a range of between 500 and 5,500 kilometers, including details on facilities that inspectors need access to, people inspectors need to talk with, how often inspectors need the accesses for, and how much the verification regime would cost.

(2) FORM.—The report required under paragraph (1) shall be submitted in unclassified form but may contain a classified annex.

(d) COMMITTEES SPECIFIED.—The committees specified in this subsection are—

(1) the Committee on Foreign Relations, the Committee on Armed Services, and the Select Committee on Intelligence of the Senate; and

(2) the Committee on Foreign Affairs, the Committee on Armed Services, and the Permanent Select Committee on Intelligence of the House of Representatives.

Mr. JOHNSON of South Dakota. Mr. President, the Banking Committee has jurisdiction over economic, trade, banking, and financial sanctions. During the last year, I have worked with my colleagues in Congress to authorize the President to impose tough sanctions targeting President Putin and his cronies, and he has enlisted our allies in that effort. We all agree that if Putin continues to intimidate the people of Ukraine he must face intensifying economic and political isolation.

But unlike with the sanctions bill enacted earlier this year, the Foreign Relations Committee did not consult the Banking Committee on this bill prior to its markup. Even so, my staff has worked cooperatively with Foreign Relations staff in recent weeks to fix many of the most significant textual problems which would have made its implementation unworkable. Those negotiations have now progressed to a point where I have been satisfied with the changes included in the substitute amendment. While it is still not perfect and contains some provisions

which in my view are unnecessary, we have made substantial progress.

The President has worked to impose punishing sanctions on Russia, maximizing their effect on Russia while minimizing their effect on the U.S. and Western allies. I heard personally from Secretary Lew the administration's concern that the mandatory global energy sanctions in a prior version of this bill could have driven a wedge between the U.S. and our allies. They could have ensnared potentially hundreds of our allies' businesses—including firms whose governments in Europe and elsewhere may otherwise be working with us to isolate Russia. That problem has now been resolved, and the substitute now gives the President discretion to target firms involved in these activities should he so choose. I am confident he will now be able to implement these measures in a way which is sensitive to the concerns of our allies, and which can protect innocent U.S. investors in pension funds, mutual funds, and emerging market funds which hold stock in European, Asian or other firms subject to potential sanction under the bill.

Sanctions should offer the President flexibility to continue to work with allies to maximize pressure on Russia as its economy reels under the stress of sanctions, falling world oil prices, and a falling ruble. I support the aid to Ukraine authorized in this bill, and I support further sanctions on Russia that will not drive a wedge between the U.S. and our allies, that will protect innocent U.S. investors, and that can be implemented with minimal confusion or delay. I am glad we were able finally to reach agreement on the bill and appreciate the cooperation of my colleagues in this effort.

Mr. DURBIN. I further ask unanimous consent that the committee-reported amendments be withdrawn; the Menendez-Corker substitute amendment, which is at the desk, be agreed to; the bill, as amended, be read a third time; and the Senate proceed to vote on passage of the bill, as amended.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The committee-reported amendments were withdrawn.

The amendment (No. 4092) in the nature of a substitute was agreed to.

(The amendment is printed in today's RECORD under ''Text of Amendments.'')

The bill was ordered to be engrossed for a third reading and was read the third time.

The PRESIDING OFFICER. If there is no further debate, the bill having been read the third time, the question is, Shall it pass?

The bill (S. 2828), as amended, was passed.

Mr. DURBIN. Mr. President, I ask unanimous consent that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

APPROVING THE TRANSFER OF YELLOW CREEK PORT PROPERTIES IN IUKA, MISSISSIPPI

SAFE AND SECURE DRINKING WATER PROTECTION ACT OF 2014

Mr. DURBIN. Mr. President, I ask unanimous consent that the Committee on Environment and Public Works be discharged from further consideration of H.R. 3044 and S. 2785 and the Senate proceed to their immediate consideration en bloc.

The PRESIDING OFFICER. Without objection, it is so ordered.

There being no objection, the Senate proceeded to consider the bills en bloc.

Mr. DURBIN. I ask unanimous consent that the bills be read a third time and passed and the motions to reconsider be considered made and laid upon the table en bloc.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (H.R. 3044) was ordered to a third reading, was read the third time, and passed.

The bill (S. 2785) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 2785

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Safe and Secure Drinking Water Protection Act of 2014''.

SEC. 2. MICROCYSTINS IN DRINKING WATER.

(a) HEALTH ADVISORY.—Not later than 180 days after the date of enactment of this Act, the Administrator of the Environmental Protection Agency (referred to in this Act as the ''Administrator'') shall develop and publish a health advisory including recommendations on—

(1)(A) the level of microcystins in drinking water below which the water is expected to be safe for human consumption; and

(B) feasible treatment techniques and other means for achieving that level; and

(2) standardized procedures for testing for microcystins in drinking water.

(b) REPORTS.—Not later than 180 days after the date of enactment of this Act, and each year thereafter, the Administrator shall submit to Congress a report that includes—

(1) a description of the status of the efforts of the Administrator to determine whether to regulate drinking water with respect to the level of microcystins;

(2) a description of the steps taken by the Administrator to promote testing of drinking water for microcystins in areas that have been affected by harmful algal blooms; and

(3) an analysis of available treatment techniques and other means for addressing microcystins in drinking water.

ENHANCING THE ABILITY OF COMMUNITY FINANCIAL INSTITUTIONS TO FOSTER ECONOMIC GROWTH AND SERVE THEIR COMMUNITIES

Mr. DURBIN. Mr. President, I ask unanimous consent that the Banking, Housing, and Urban Affairs Committee be discharged from further consideration of H.R. 3329 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The assistant legislative clerk read as follows:

A bill (H.R. 3329) to enhance the ability of community financial institutions to foster economic growth and serve their communities, boost small businesses, increase individual savings, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. DURBIN. I further ask unanimous consent that the King substitute amendment, which is at the desk, be agreed to; the bill, as amended, be read a third time and passed; and the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (No. 4093) in the nature of a substitute was agreed to, as follows:

(Purpose: In the nature of a substitute)

Strike all after the enacting clause and insert the following:

SECTION 1. CHANGES REQUIRED TO SMALL BANK HOLDING COMPANY POLICY STATEMENT ON ASSESSMENT OF FINANCIAL AND MANAGERIAL FACTORS.

(a) IN GENERAL.—Before the end of the 6-month period beginning on the date of the enactment of this Act, the Board of Governors of the Federal Reserve System (hereafter in this Act referred to as the ''Board'') shall publish in the Federal Register proposed revisions to the Small Bank Holding Company Policy Statement on Assessment of Financial and Managerial Factors (12 C.F.R. part 225 appendix C) that provide that the policy shall apply to bank holding companies and savings and loan holding companies which have pro forma consolidated assets of less than $1,000,000,000 and that—

(1) are not engaged in significant nonbanking activities either directly or through a nonbank subsidiary;

(2) do not conduct significant off-balance sheet activities (including securitization and asset management or administration) either directly or through a nonbank subsidiary; and

(3) do not have a material amount of debt or equity securities outstanding (other than trust preferred securities) that are registered with the Securities and Exchange Commission.

(b) EXCLUSIONS.—The Board may exclude any bank holding company or savings and loan holding company, regardless of asset size, from the policy statement under subsection (a) if the Board determines that such action is warranted for supervisory purposes.

SEC. 2. CONFORMING AMENDMENT.

(a) IN GENERAL.—Subparagraph (C) of section 171(b)(5) of the Dodd-Frank Wall Street Reform and Consumer Protection Act (12 U.S.C. 5371(b)(5)) is amended to read as follows:

''(C) any bank holding company or savings and loan holding company having less than $1,000,000,000 in total consolidated assets that complies with the requirements of the Small Bank Holding Company Policy Statement on Assessment of Financial and Managerial Factors of the Board of Governors (12 C.F.R. part 225 appendix C), as the requirements of such Policy Statement are amended pursuant to section 1 of an Act entitled 'To enhance the ability of community financial institutions to foster economic growth and

serve their communities, boost small businesses, increase individual savings, and for other purposes'.''.

(b) TRANSITION PERIOD.—Any small bank holding company that was excepted from the provisions of section 171 of the Dodd-Frank Wall Street Reform and Consumer Protection Act pursuant to subparagraph (C) of section 171(b)(5) (as such subparagraph was in effect on the day before the date of enactment of this Act), and any small savings and loan holding company that would have been excepted from the provisions of section 171 pursuant to subparagraph (C) (as such subparagraph was in effect on the day before the date of enactment of this Act) if it had been a small bank holding company, shall be excepted from the provisions of section 171 until the effective date of the Small Bank Holding Company Policy Statement issued by the Board as required by section 1 of this Act.

SEC. 3. DEFINITIONS.

For the purposes of this Act:

(a) BANK HOLDING COMPANY.—The term ''bank holding company'' has the same meaning as in section 2 of the Bank Holding Company Act of 1956 (12 U.S.C. 1841).

(b) SAVINGS AND LOAN HOLDING COMPANY.—The term ''savings and loan holding company'' has the same meaning as in section 10(a) of the Home Owners' Loan Act (12 U.S.C. 1467a(a)).

The amendment was ordered to be engrossed, and the bill to be read a third time.

The bill was read the third time.

The bill (H.R. 3329), as amended, was passed.

CREDIT UNION SHARE INSURANCE FUND PARITY ACT

Mr. DURBIN. Mr. President, I ask unanimous consent that the Banking, Housing, and Urban Affairs Committee be discharged from further consideration of H.R. 3468 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The assistant legislative clerk read as follows:

A bill (H.R. 3468) to amend the Federal Credit Union Act to extend insurance coverage to amounts held in a member account on behalf of another person, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. DURBIN. I further ask unanimous consent that the bill be read a third time and passed and the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The bill (H.R. 3468) was ordered to a third reading, was read the third time, and passed.

PROTECTING VOLUNTEER FIREFIGHTERS AND EMERGENCY RESPONDERS ACT OF 2014—Continued

Mr. DURBIN. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. LEE. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Ms. BALDWIN). Without objection, it is so ordered.

EXECUTIVE ACTION ON IMMIGRATION

Mr. LEE. As we all know, President Obama recently announced Executive action on immigration, what he refers to as deferred action, for millions of aliens who are here illegally but who have children who were born in the United States and by virtue of their birth in the United States are U.S. citizens.

Now the President has repeatedly assured the American people that he is not creating a pathway to citizenship for those individuals, but that isn't true. He and his administration have cleared the pathway to citizenship for millions of people who have crossed into our borders illegally. They know that is what they have done, and it is illegal. Immigration law is quite complicated, but here is the bottom line on this issue: If you are the parent of a U.S. citizen, when that child reaches the age of 21, assuming you haven't committed certain crimes or done other things that might exclude you from what the law generally allows, you can get a green card and eventually you can get citizenship. But there is a catch. If you are in an illegal status inside the United States because you crossed into our borders illegally and that is how you became an illegal alien—that is, you entered without inspection, as that term is known in immigration circles—then in order to get back on the path to citizenship you are first required under existing law to leave the country and then to come back across the border into the country legally. Because you broke immigration laws before you came into the country, the law says you have to wait either 3 years or 10 years to return, depending on how long you were inside the country illegally before you left.

When we talk about clearing the path to citizenship for this set of immigrants—that is those who are close relatives of U.S. citizens—that is what we are talking about: getting around the rule that those who cross our border in secret must leave the country, wait a period of years outside the country because they broke our laws, and then return.

So when the President says he isn't clearing such a path to citizenship, that is Washington shorthand for, don't worry, I am not circumventing the law.

What stands between these people and citizenship is the need to enter the country lawfully, which they cannot do until they leave, wait a period of time that Congress has set by law, and then and only then come back. The President claims he is not touching this rule, but that is exactly what he is doing and exactly what he has done, and he is doing it through a program called advance parole. Advance parole is essentially a form of permission for an undocumented immigrant to travel outside the country and then return. When he gets back to the country and approaches the border, he presents an advance travel document to border officials and they will parole him into the country.

What is more, the President has announced if you leave the country under a grant of advance parole, the administration will treat you as though you never left at all, waiving the 3-year to 10-year wait mandated by Congress for people who have come here unlawfully and then left the country.

When that is done, as it turns out, the illegal immigrant will become eligible to take advantage of a different way to become a citizen: getting what is known as adjustment of status. Adjustment of status, which gives you a green card without having to leave the country, is available to parents of U.S. citizens so long as they crossed our border lawfully, which advanced parole lets them do.

So how hard will it be to get advance parole, which leads to a green card, which in turn leads to citizenship? Well, it is supposed to be very hard. Parole is kind of a temporary emergency pass that lets someone into the country for an extremely urgent reason, even though the law says that an immigrant in that circumstance cannot be admitted for one reason or another.

In fact, there is a Federal statute passed by Congress that restricts the power of the executive branch of the Federal Government to use parole to a very narrow, very confined set of circumstances. That law, INA section 212(d)(5)(a), says that the executive branch may parole individuals into the United States ''only on a case-by-case basis for urgent humanitarian reasons or significant public benefit.''

That term ''urgent humanitarian reasons'' means conditions such as getting medical treatment or perhaps attending a funeral of a close family member. ''Significant public benefit'' usually means circumstances such as one being a witness in a crime and as such needing to come into the country to testify at trial.

To be clear, it is illegal—illegal—to parole people into the country who don't meet that standard. But for deferred action recipients, here is the standard the President is using: A person warranting advance parole, which again also eventually leads to citizenship, must file a form I–131 with USCIS. The instructions for this form explain that deferred action recipients can get parole for ''educational purposes, employment purposes or humanitarian purposes . . . ''

I continue:

Educational purposes include but are not limited to semester abroad programs or academic research;

Employment purposes include but are not limited to overseas assignments, interviews, conferences, training or meetings with clients. . . .

In no universe is a meeting with a client or a conference an urgent humanitarian reason. Nowhere in the universe are those circumstances for a significant benefit to the American public.

Imagine this scenario. Imagine that a foreign national approaches our border. The border officials ask the individual for a visa, and he says, oh, I don't have a visa, but I do have a business meeting in Denver. Can I come in, even though I don't have a visa? There is no doubt he would be turned away promptly. But for the new deferred action recipients under the President's Executive action plan, so long as you have a business meeting in Toronto or an overseas assignment in Buenos Aires, you can get permission to leave and be paroled back into the country immediately upon your return, along with the government's promise to ignore the 3-year or 10-year bar that is supposed to keep you out of the country. And once you do that, you can adjust your status and get a green card and eventually citizenship.

How do I know this? Well, in 2010 the American Spectator published a leaked Department of Homeland Security memo, a version of which purportedly reached the Secretary of Homeland Security—then-Secretary Janet Napolitano—exploring the administration's options on immigration. That memo explicitly contemplated using parole as a way to sidestep Congress and give citizenship to illegal immigrants who are relatives to U.S. citizens.

It says ''individuals could . . . be paroled into the U.S. for purposes of applying for adjustment of status to render immediate relatives of U.S. citizens eligible for parole, DHS could issue guidance establishing that family reunification constitutes a significant public benefit.''

So let me be clear. Advance parole leads to citizenship for parents of U.S. citizens. The administration knows that, and they are giving advance parole for reasons such as client meetings that clearly violate Federal law.

This is the danger of unilateral Executive action, drafted in secret and announced to the American people as a fait accompli. In our system, policies are debated in the legislature and their consequences need to be explored through debate. Here, the President's action has avoided that constitutional lawmaking process, but it has also broken existing laws passed by Congress.

Thank you, Madam President.

The PRESIDING OFFICER. The Senator from Vermont.

SERVING AS PRESIDENT PRO TEMPORE

Mr. LEAHY. Madam President, I have been in the Senate just a few weeks shy of 40 years. For the past 2 years I have had the distinct honor of serving this Chamber as the President pro tempore. Just four Senators from Vermont have held this title. I am the first in more than a century.

It has been among my greatest privileges to represent Vermont in the U.S. Senate, something I dreamed about as a child, and it has been day after day after day a privilege to represent my very special State of Vermont in this body.

It has also been an honor and privilege to serve as the President pro tempore in this institution, the U.S. Senate. This is an institution for which I will always have the greatest respect and affection.

When I assumed the position of President pro tempore, something I had not realized would happen, Marcelle and I welcomed into our family over time nearly 20 invaluable members of the U.S. Capitol Police. As President pro tempore and third in the line of succession, the office comes with a security detail. It is not something I had asked for. In fact, I said, well, I don't really need that, and they said: You don't get any choice in the matter.

I got to know them well. I had a background in law enforcement before I came to the Senate, but I have never served with such professionals as those who comprise this team. They sacrifice time at home. They sacrifice time with their families and weekends and holidays. I could not be more grateful for their dedication to public service and for their professionalism and good nature. They are an example of what the best in law enforcement should be.

The U.S. Capitol should be very proud of our U.S. Capitol Police and especially of those who are in this unique dignitary protection division. Those who serve on such details are trained to blend into the background. You might forget they are there, but they are, and they miss nothing. When I try to give them credit for the work they do, they say: Well, that is just our job. It is a lot more than their job. It is true professionalism and it is something that makes everybody in law enforcement and should make everybody in the U.S. Senate proud.

I want to recognize their commitment and acknowledge their service. The members of this detail include Sergeant David Ribb, Thomas Andriko, Henry Smith, Shane Powell, Eric Boggs, Robert Schultz, Antonio Carofano, Amy McDaniel, John Jastrzebski, Ryan Rayball, Ryan Andrews, Jay Schmid, Austin Reinshuttle, Sean Keating, Anthony Ravenel, Gideon Maran, John Brito, Luis Pimentel, Jose Ramirez, Jr., Robert Leh, James Melenson, Edward Wojciechowski, and Marc DesJames, who recently retired.

Next year when Congress reconvenes, we will elect a new President pro tempore, my friend Senator ORRIN HATCH. I will continue as dean of the Senate, and a future President pro tempore emeritus. I wish ORRIN HATCH the best, and I know he is going to be in safe hands with the dedicated members of the President pro tempore's security detail.

Again, having served in law enforcement, having considered that a very significant part of my career, I have never seen more professional police officers than these men and women. Every one of us as Senators should be glad they are there.

Madam President, on another matter, after 9 months of hearings and briefings, many long days and nights of negotiations, this past weekend the Appropriations Committee completed work on the fiscal year 2015 Consolidated and Further Continuing Appropriations Act.

Earlier this year many of us came to the floor and praised Chairwoman MIKULSKI for her heroic efforts to pass the fiscal year 2014 omnibus. While many in Washington thought that feat could not be repeated 2 years in a row, as the most senior Member of the Appropriations Committee I knew she would prove them wrong, and she did. Chairwoman MIKULSKI rallied her 12 subcommittees and reached across the aisle to negotiate this omnibus and avoid another shutdown. Without her, this would not have been possible.

Similar to Chairwoman MIKULSKI, my friend Senator SHELBY from Alabama, the committee's vice chairman, also deserves a great deal of praise for the role he played. Without Senator SHELBY's recognition of the importance of passing appropriations bills rather than continuing to fund the government on autopilot, we would not have reached this point.

As chairman of the Department of State, Foreign Operations, and Related Programs Subcommittee, I also wish to thank the ranking member, LINDSEY GRAHAM, chairwoman KAY GRANGER, and ranking member NITA LOWEY in the other body. They were always able partners, whose wealth of experience—I will emphasize that—wealth of experience is invaluable to the subcommittee's work, and it is reflected throughout the final agreement.

I look forward to working with the incoming subcommittee chairman LINDSEY GRAHAM next year to continue to fund the diplomacy and foreign aid programs that are essential to protecting U.S. interests around the world in a manner that reflects American values.

The State, Foreign Operations portion of this omnibus was negotiated with the full participation of representatives of both parties in both Houses of Congress as a balanced, bipartisan bill. Every word was discussed and agreed to by Republicans and Democrats, and our respective subcommittee bills have been publicly available since they were reported out of committee in June.

My Democratic clerk of the subcommittee, Tim Rieser, made sure everybody in both parties were kept apprised of everything we did. I want to thank him, Janet Stormes and Alex Carnes of the Democratic staff, as well as Paul Grove, the Republican clerk, and Adam Yezerski of the Republican staff. They all played an essential role.

Others who were indispensable and deserve our thanks are Valerie Hutton, Celina Inman, Elmer Barnes, and

Penny Myles of the editorial and printing office, who worked long hours to produce draft after draft of the bill. They do an outstanding job.

Division J of this omnibus for the Department of State and Foreign Operations provides a total of $51.8 billion in discretionary budget authority to protect U.S. security, humanitarian, and economic interests around the world.

Anybody who doubts that these funds are important should think about the devastation being wrought by ISIL in Syria and Iraq and its impact on neighboring Lebanon and Jordan, in addition to what is happening in the Central African Republic, South Sudan, and other areas where hundreds of thousands of people have been displaced by ethnic and tribal violence. Part of this funding will support aid for refugees and other victims of disasters, and we provide $1.5 billion above the budget request. The bill also includes additional funds to help Ukraine and other former Soviet republics counter Russian aggression.

It provides $2.5 billion in emergency funding to respond to the Ebola epidemic, which reminds us all that a deadly virus is often only one airplane trip away from our shores.

The bill includes full funding for diplomatic security, which unfortunately we need today.

As far as U.N. peacekeeping, the bill provides funding and authorities to fully meet our commitments.

It includes an increase above the budget request for PEPFAR and other global health programs, which I was very pleased about considering that those increases did not require cuts to other critical programs.

The bill includes additional funding for educational and cultural exchanges. It provides funding to address the gang violence and poverty that contribute to the migration of unaccompanied children from Central America. That problem ebbs and flows but cannot be ignored. We have seen the flood of young children across our southern border, risking their lives rather than staying and being attacked and raped in their own country, or forced into gangs and made to shoot and kill and rob.

I am very pleased we were able to include the amounts requested for programs to protect biodiversity and tropical forests, support clean energy and reduce global warming, combat wildlife poaching and trafficking. These are important national security issues.

I am also pleased that provisions relating to our commitments to the international financial institutions, particularly relating to evaluations, beneficial ownership, human rights, industrial-scale logging, and financing for large dams, were included. I look forward to discussing them with the Treasury Department, State, and USAID.

The provisions relating to a Small Grants Program to provide small, multi-year USAID grants to small entities, timely feedback from beneficiaries of humanitarian assistance, and reforms to provide incentives for Foreign Service Officers to support sustainable, locally-driven development, are also important.

There is a lot more in this bill to support friends and allies so they can combat disease, hunger, poverty, strengthen the rule of law, and protect human rights. These are all programs that are directly linked to our national security. They fulfill our moral obligation as Americans, as members of the wealthiest, most powerful Nation on Earth.

There are some things that I wish were not included, particularly a House provision carried from last year that would weaken limits on carbon emissions from projects financed by the Export-Import Bank and Overseas Private Investment Corporation. Our European partners are wisely ending public subsidies for coal in favor of cleaner, healthier, renewable energy, but the House continues to block such progress here.

I am very disappointed the Senate provision to bring the United States into compliance with the Vienna Convention on Consular Relations was rejected again this year by the House. The Bush administration spoke of the necessity of this, as has the Obama administration.

Mr. President, no bill is perfect, and this one is no exception. But the State, Foreign Operations portion of the omnibus is a whole lot better than a continuing resolution that ignores the changing global realities and challenges we face.

It was a collaborative effort from beginning to end with Republicans and Democrats alike, and it should be supported overwhelmingly.

I see my friend, the distinguished senior Senator from Texas on the floor seeking recognition, so I will yield the floor.

The PRESIDING OFFICER. The Republican whip.

Mr. CORNYN. It is good to see the senior Senator from Vermont back and in good health. I know he has been struggling a little bit with this crazy weather we are having, and we are glad to see him back.

On November 5, 2009, a radical jihadist, by the name of Nidal Hasan, who happened to also be a major in the U.S. Army, opened fire at Fort Hood, TX, claiming the lives of 12 U.S. soldiers, one civilian, one unborn child, and wounded more than 30 other people. It was a shocking tragedy and event.

Shortly after the attack, it became clear that Hasan was motivated by the same poisonous ideology that spurred the attacks on September 11, 2001; in other words, this was an act of domestic terrorism. Yet due to the narrow and outdated definition of ''international terrorism,'' the Fort Hood victims have not been awarded the same medals and recognition as other military victims of terrorism.

Furthermore, the Obama administration took the position of claiming that the 2009 Fort Hood victims were not eligible for Purple Hearts because this was workplace violence—believe it or not. They further said they didn't think Hasan was acting under the explicit direction of a foreign terrorist group, so they were not qualified for these Purple Hearts and this recognition.

When our men and women in uniform come under hostile fire from a terrorist, they and their families should receive the full honors and full recognition and benefits that accompany such courageous service. That is why I have authored legislation in the Senate making these victims of the November 2009 attack at Fort Hood eligible to receive the Purple Heart or the civilian equivalent.

Last week I was pleased that the House of Representatives passed the Defense authorization bill, which includes the legislation I authored awarding Purple Hearts to victims of this terrorist attack.

I wish to thank my good friends Congressmen WILLIAMS and CARTER for their steadfast dedication to seeing this to conclusion and to fruition.

While long overdue, this is welcome news to the wounded, the families of the fallen, and the entire Fort Hood community, because even after 5 years, the wounds from this horrific attack are still there, especially for the families of people such as Michael Cahill, a civilian physician's assistant and retired soldier, and Army CPT John Gaffaney, both of whom charged the shooter and sacrificed their lives to save others around them.

The close-knit community at Fort Hood has endured great loss in recent years, and I am pleased we are now just one step closer to delivering this important piece of justice to the victims and their families. It is my hope that once the Defense authorization bill clears this Chamber, that the President will act quickly in signing this legislation into law because any further delay is a continuing injustice to all of the victims from that day and indeed all of the good people at Fort Hood.

I yield the floor.

The PRESIDING OFFICER. The Senator from North Carolina.

FAREWELL TO THE SENATE

Mrs. HAGAN. Madam President, it is with great honor and gratitude that I rise to reflect on the last 6 years, which have been some of the most rewarding and transformative of my life, and to thank the people who have been by my side as we worked to make our great State and this great country even better.

First and foremost, I wish to thank the people of North Carolina for allowing me to serve them in the Senate. Six years ago you sent me to Washington to fight for the priorities that make our State great, and I have put North Carolina first every single day. I have

been honored to stand up for our teachers, our students, to fight for our seniors, to help create a business climate that promotes job growth, to build an economy that works for everyone, and to make sure we keep our promises to our servicemembers and to our veterans.

I am extremely proud of what we have been able to accomplish, and I am forever humbled and grateful for the opportunity to serve.

I also wish to thank my family; my husband Chip, who is my rock, and my three children, Jeanette, Tilden, and Carrie, and my two great sons-in-law, Will and Martin.

These past 6 years have been extremely full of exciting milestones for the Hagan family. Since my term began, my two daughters have both gotten married and they both had babies. I have a 1-year-old grandson Harrison and a 1-week-old granddaughter Christine. So when I said earlier that these past 6 years have been transformative, I wasn't kidding.

I also wish to thank my dad Joe Ruthven, who is one of my most trusted advisers and a constant source of inspiration for me, as is his wife Judy, my stepmom, for all of her love and support.

I wish to thank the Capitol Police here in Washington. I don't think we recognize these people enough for the incredible work they do to keep us safe.

And, of course, I wish to thank my unbelievably hard-working staff whom I consider to be a part of the official Hagan family. These folks are top-notch. Their commitment to our State and the people we serve is unmatched. They are passionate and compassionate, and I am so grateful to have had them by my side over these last 6 years. I ask unanimous consent that a list of their names be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

STAFF OF SENATOR KAY R. HAGAN

Michelle Adams, Ayo Adeyeye, Tyler Aiken, Natalia Aldana, Stephanie Allen, Patrick Ayers, Devan Barber, Micah Beasley, Caroline Brantley, Patrick Brennan, Nancy Brenner, Emorie Broemel, Christopher Cannon, Angelo Caravano, Bess Caughran, Marshall Cesena, Justin Clayton, Molly Conti, Carrie Cook, Perrin Cooke, Travis Cooke, Ashley Copeland, Kathryn Davidson, Curtis Davis, Andrew Devlin, Sage Dunston, Ashley Eden, Brittany Ellis, Karen Evans.

John Fain, Elizabeth Farrar, Sharon Fisher, Colleen Flanagan, Margaret Freshwater, Amanda Gabriel, Tiffany Germain, Jennifer Gradnigo, Mary Hanley, Simone Hardeman-Jones, Mike Harney, Freddie Harrill, Jenny Hartsock, David Hartzler, Christopher Hayden, Christina Henderson, David Hoffman, Julie Holzhueter, Cristina Jacome, Jennifer Johnson, Michael Jones, Rosemary Kennedy, Meenal Khajuria, Crystal King, Catherine Kuerbitz.

John Labban, Tasmaya Lagoo, Stephen Lassiter, Samuel Lau, Margaret Lawrynowicz, Caitlin Legacki, Jason Lindsay, Travis Manigan, Elizabeth Margolis, Shaniqua McClendon, Patrick McHugh, Will Medley, Kathryn Merrill, Forest Michaels, Melissa Midgett, John Minor, Joyce Mitchell, Amber Moon, Christopher Moyer, Sara Mursky-Fuller, Brian Nagle, Adeline Noger, Thomas O'Donnell, Emily Osterhus, Elizabeth Outten, Allison Parker, Tyler Patrick, Joseph Peele, Roger Pena, John Pfeiffer, Benjamin Piven, Stanley Purple.

Cierra Raleigh, Rikkia Ramsey, Hanna Raskin, Jean Reaves, Ryan Regan, Matthew Rumley, Leo Schmid, Tatyana Semyrog, Christopher Sgro, Lindsay Siler, Valarie Simpson, Leland Slade, Hannah Smith, Tremayne Smith, Aaron Suntag, Joshua Teitelbaum, Clayton Thomas, John Tillman, Karen Wade, Brittany Wakefield, Muthoni Wambu, Brandy Warwick, Timothy Webster, Alissa Sadie Weiner, Mesha White, Andrew Wilkins, Johnnie Williams, Sue Wink, Margaret Winslow, Abigail Youngken, Tracy Zvenyach.

Mrs. HAGAN. My staff knew how important it was to me that my office be as open and as accessible as possible to the people of North Carolina, and my team worked every single day to help us reach that goal. Over the last 6 years, we held a townhall in every 100 counties across North Carolina. In DC, we have held a Carolina Coffee every Wednesday and we welcomed thousands of North Carolinians to come visit us. We have also resolved more than 36,000 constituent cases for the people of North Carolina, from helping veterans access their benefits with the VA to helping families struggling with high mortgage rates to be able to stay in their homes, to helping small businesses cut through the bureaucratic redtape.

While my North Carolina staff was there for the folks in our State day in and day out, my DC team was helping me fight for North Carolinians in Washington.

North Carolina is proud to be the most military-friendly State in the Nation. As a member of a military family, it is important to me to work every single day to keep our State the most military-friendly State. My husband is a Vietnam veteran. My dad and my brother served in the Navy. My father-in-law was a major general in the Marine Corps. I have two nephews on active duty. One is an F–15 fighter pilot and the other one is a Navy Seal. So when I say one of my top priorities was ensuring Federal policies worked for our veterans in active-duty military, they are not just words, it is truly a personal obligation.

That is why nearly 6 years ago, when Jerry Ensminger, a retired marine, shared with me the story of his daughter Janey, my heart broke for him. Janey died of leukemia at the age of 9 because of contaminated water on the base at Camp Lejeune. He dedicated his life to seeking justice for his daughter and other Camp Lejeune victims. I found it absolutely unconscionable that the Federal Government had denied this man, who served our country, the answers he needed after all he had been through. I wanted to do whatever I could to help, and it was one of the greatest honors of my life to work alongside my North Carolina colleague Senator BURR to pass the Janey Ensminger Act, to help Jerry and the servicemembers and families affected by water contamination at Camp Lejeune and to give them the answers and the health care they deserved.

It was also important to me that all Americans remembered and understood the sacrifices made by our military and their families. During my time in the Senate, I had the opportunity to speak on this very floor about some of the brave servicemembers from North Carolina, many of whom made the ultimate sacrifice, and many of whom lost their lives while trying to make the world a better place and safer for the rest of us. I had the opportunity to speak with many of their families and their stories were both moving and heartbreaking.

I spoke with Terry Marquez, whose son Justin died from small-arms fire wounds he received while on foot patrol in the Wardak Province in Afghanistan just 1 month after he arrived in theater. He was only 25 years old when he died.

According to Justin's mom Terry, as Justin grew up in the Army, he was like a fine wine, he just kept getting better with age. He believed in protecting others. He believed in making the world a better place. He believed in standing up so that others might not have to. Justin embodied the selflessness and courage that defines the men and women of our armed services.

Shortly after sharing Justin's story on the Senate floor, I invited his mother to be my guest at the State of the Union Address. Her presence reminded not just me but so many of the Senators that she met that night—and she knew them all—how important it is that we uphold our promises to the men and women who put their lives on the line for each and every one of us. It has been an honor to help be one of those voices for our servicemembers, veterans, and their families in Washington.

As one of 20 women in the Senate, I have also enjoyed being a voice for women and children. As women Senators, we bring a unique perspective to the policymaking dialog. We understand the issues facing women and families because we have been there. Some of us are moms and some are grandmoms. We know what it is like to balance that family checkbook and simultaneously run the business and a carpool, and to want the best possible future not only for our children but for all the children throughout the United States.

More important than that, the women of the Senate know how to bridge the partisan divide to get the job done. Together we passed the Lilly Ledbetter Fair Pay Act, the first bill I cosponsored as a U.S. Senator. We kept student loan rates from doubling. We pushed for initiatives such as my newborn screening bill to ensure that every child has a healthy start in life. I am proud of the work we have done together to support our families and to

set this country on a path to a brighter future.

But the fact is we need a lot more of that in Washington. If we are going to address the biggest challenges facing our country, we have to break through the political gridlock and confront these issues together—head on, united; not as Republicans and Democrats, but working together on behalf of the American people. We need to work together to tackle the rising cost of college that is putting higher education out of reach for too many students and then burdening them with unsustainable debt. We need to reform our education system to ensure that every child has the tools and the technology we have to have today and that we have to understand and be an expert in that technology in order to be successful in this competitive environment.

The economy is improving, but wages are stagnant. We must find ways to ensure that Americans working full time are not living in poverty.

We need to help middle-class families get ahead and ensure that working women are receiving the support they need, whether it is fair pay, affordable childcare, or time to care for new babies or seriously ill family members. There is so much work to be done. It is my hope these issues can be addressed in the 114th Congress, but doing so is going to take cooperation from all 100 Members of this body.

The men and women I have worked with during my time are some of the most dedicated, passionate people I have ever met. And there are so many, I am only going to name a few.

BARBARA MIKULSKI was my first mentor, the dean of the women. She waltzed me down the aisle to get sworn in. She is one of the greatest advocates for women and for families. And I know that PATTY MURRAY, the mom in tennis shoes, is a dynamite negotiator. MARK WARNER, one of my 2008 classmates, is a leader in seeking bipartisan solutions. SUSAN COLLINS is a great friend and a proven consensus builder. CHUCK SCHUMER is a trusted adviser who embodies what it means to be a fighter.

There are so many to name, and I love them all. But I know the Members of the Senate can make progress on these issues that matter so long as we put politics aside and work together.

One of my guiding principles is ''to whom much is given, much is expected.'' Six years ago, North Carolinians gave me an opportunity to be a voice in Washington, and I have put North Carolinians first every single day. I urge my colleagues to do the same—to remember who they are fighting for, not who they are fighting against, to see past the deed, to see past the d or the r, to work together in a bipartisan fashion as I have tried to do to move this country forward.

Working with all of my colleagues and serving North Carolina in the U.S. Senate is a huge honor.

God bless you all, and God bless the U.S. Senate. Thank you.

I yield the floor.

(Applause, Senators rising.)

The PRESIDING OFFICER. The Senator from Illinois.

TRIBUTE TO KAY HAGAN

Mr. DURBIN. Madam President, first let me commend my colleague from North Carolina, KAY HAGAN, who has been an extraordinary asset in the U.S. Senate. She has shown political bravery to the highest degree over and over again, taking what she knew were the right votes even when they were politically tough votes. I just listened to her farewell address and I couldn't agree with her more, that she put the people of North Carolina ahead of everything else in terms of her service in the U.S. Senate. It has been an honor to serve with her, to get to know her husband Chip and her family, and I wish her only the best for whatever her future undertakings may be.

DEATH IN CUSTODY REPORTING ACT

Mr. DURBIN. Madam President, on Tuesday I was pleased to chair an important hearing in the Judiciary Subcommittee on the Constitution, Civil Rights and Human Rights that took a look at the state of civil rights in America today.

We heard compelling testimony from our colleagues, including Senator CORY BOOKER of New Jersey, Congressman LUIS GUTIÉRREZ of Illinois, and Congressman KEITH ELLISON of Minnesota. We also heard from civil rights leaders Wade Henderson and Laura Murphy, and from Dr. Cedric Alexander of the National Organization of Black Law Enforcement Executives.

It was a powerful hearing. We talked about Michael Brown of Ferguson Missouri, Eric Garner of Staten Island, and the growing sentiment across our Nation that the criminal justice system needs to be improved.

In particular, we talked about challenges that our Nation faces when it comes to restoring the trust of the minority communities in our government. Every witness, every Senator at the hearing agreed. We need to do more—not just wring our hands but to hold hands together and find solutions.

One issue we discussed at the hearing was the need for law enforcement to be more transparent. We discussed important legislation—called the Death in Custody Reporting Act—that would mark a significant step forward when it comes to transparency. The Death in Custody Reporting Act would take the simple step of requiring States and Federal law enforcement agencies to report to the Department of Justice basic statistical information regarding deaths that occur in law enforcement custody. This would include information about the name of the deceased, when the death occurred, how it occurred, and which agency was involved. It would apply when a person is being arrested or detained by local, State, or Federal law enforcement and when a person is incarcerated. The bill also directs the Attorney General to study this information and provide recommendations on how these deaths can be reduced.

It seems like such a simple matter to require accurate information to be collected. In fact, Congress used to require that information, but it expired in 2006. As a result, we have not had accurate national statistics regarding deaths in incarceration and custody.

Last week the Wall Street Journal reported that it surveyed police departments about deaths that occurred in police custody between 2007 and 2012 and found that more than 550 deaths occurred during that time and were not included in national statistics.

As we engage in a national conversation about reforming police tactics, we need accurate data in order to make the right reforms. At our hearing, our witnesses from the civil rights and law enforcement community agreed it was time to start gathering this information.

I am pleased that last night at the end of the session, the Senate passed the Death in Custody Reporting Act by unanimous consent. It is an important step forward toward transparency, accountability, and restoring confidence.

Let me give credit where it is due. For years this legislation has been championed by my friend Congressman BOBBY SCOTT of Virginia. I commend him for his dedicated efforts. I also commend my colleague Senator RICHARD BLUMENTHAL of Connecticut, who has strongly advocated for this bill in the Senate, including in our hearing on Tuesday.

Let me also give thanks to PATRICK LEAHY, chairman of the Senate Judiciary Committee, and House Judiciary Committee ranking member JOHN CONYERS for their support of this legislation.

This is not a partisan bill. It passed the House last year by a voice vote. Now it has cleared the Senate and is on its way to the President. The passage of this legislation shows that we can work together across the aisle and make progress. Make no mistake—we have a lot of work to do to improve the state of civil rights in America. There are many more steps we must take to restore the confidence of all Americans in our criminal justice system. The passage of this legislation by Congress is an important step in the right direction.

I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. BENNET. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRIBUTES TO MARK UDALL

Mr. BENNET. Madam President, I wish to take a moment today to speak about my friend MARK UDALL, who is

soon going to be finishing his term. MARK's sister Doty describes him as an OK politician but an extraordinary public servant. I think it is fair to say that MARK could never reduce his role as a representative of the people of Colorado to just politics. It is not in his DNA.

It is with a very heavy heart that I see him leave the Senate, because he is my friend. But it is especially sad at a time when MARK's kind of leadership and constructive engagement is exactly what this place needs.

''UDALL'' is a name that is synonymous with the West, and MARK and the collective service of the Udall family have come to represent the very best of our western way of life. They have embodied that pioneering and entrepreneurial spirit dating back to the days when Americans were building entirely new lives on the frontier. They have a historic love for the beauty and majesty of the West. They have spent lifetimes protecting it.

Mo and Stu Udall, MARK's uncle and father, both served our country during World War II. Stu was elected to serve the Second District of Arizona. When President Kennedy asked Stu to serve as the Secretary of Interior, Mo won Stu's seat in Congress.

Unlike his son MARK, Mo never ran for the Senate. He explained why. He said:

> I told the Arizona Press Club with [Barry] Goldwater present that there were three reasons I was not running for the Senate: 1. I love the House. 2. My wife and family are against it. And 3, I have taken a poll and you are going to beat the hell out of me.

Although, he did run for President. The New Republic reported on that:

> The Arizona Congressman, Morris Udall liked to tell a story about a response he got at a barber shop in Maine: He looked in at the door and, meaning to introduce himself, said ''Mo Udall, running for president.'' ''Yeah,'' the barber said, ''we were just laughing about it this morning.''

It is not hard to know where MARK acquired his self-deprecating approach to the world, just as it not hard to know where he inherited his commitment to civil rights, to conservation, and to good government.

MARK has said it was during this time that his political views were formed. He himself went on to seek office.

In 2008, when MARK was elected to represent Colorado in the Senate, his cousin TOM—Stu's son—was elected to serve the State of New Mexico and is one of our colleagues today.

MARK UDALL's connection to the West and to public service comes from both sides of his family. Mo Udall, a man of many talents, met Patricia Emory, MARK's mother, while playing baseball in Colorado. Patricia or ''Sam'' Udall was a sharpshooter, pilot, Peace Corps volunteer at the age of 56. She was a native Coloradan and the person MARK credits most for his passion for the outdoors, for backpacking and climbing.

Today in the 21st century we face a profound set of challenges and a dramatic test of our democratic institution. Can what MARK UDALL often calls this glorious experiment in self-government continue to thrive into the next century and beyond?

MARK has carried the tradition of his family by serving as a moral forward-pointing compass. Throughout his career he has defended personal freedom and liberty, and he has built a legacy of conservation and preservation. As a member of the Colorado General Assembly representing Longmont and parts of Boulder County, MARK toughened the laws against poaching big game as trophy animals. As a Member of the House of Representatives, he worked across the aisle to establish the Rocky Flats Wildlife Refuge, cleaning up the former nuclear site and preserving 4,000 acres of wild land near Denver. He established the James Peak Wilderness Area, protecting 14,000 acres of some of our most scenic land in Gilpin and Grand Counties. He passed the Rocky Mountain National Park Wilderness Act to designate nearly 250,000 acres within the park as wilderness, including Longs Peak, which is actually a 14er that I have climbed. MARK UDALL has climbed all of them in Colorado, every single 14er we have, because they are included in the tallest 100 mountains that we have, each one of which has been summited by MARK UDALL. These are lands that will be protected long after any of our political careers are over and long after they remember who it was who protected those lands to begin with. But if anybody cares to check, they are going to know that it was MARK UDALL.

MARK has been vocal, active, and effective in his fight against climate change and in his promotion of renewable energy. He was the statewide co-chair of the successful 2004 campaign to pass Colorado's amendment 37. This measure required Colorado's power companies to generate most of their electricity from renewable sources. Colorado was the first State in the Union to take the issue to the voters. Amendment 37 passed. MARK UDALL was the driving force behind that effort. After his victory in the State, MARK took this issue to the House of Representatives. The House has twice passed the national renewable electricity standard championed by MARK.

During his time in the Senate, he has continued to push for a national policy, and his doggedness in standing up for Colorado's wind energy production saved thousands of good-paying jobs across the State and ensured that we will continue to lead the Nation in developing our clean energy economy.

The same is true for our ski areas, which have expanded recreation activities and summertime job opportunities thanks to a law MARK passed in this Senate.

Colorado's aerospace industry is thriving in part thanks to MARK UDALL. His work on space policy also dates back to his time in the House of Representatives as ranking member on the Space Subcommittee. MARK helped revitalize aeronautics and aviation research and development at NASA and ensure that the Hubble space telescope received service and funding.

In the Senate, MARK helped lead the Colorado delegation opposition to a proposal that would have canceled the Orion Program, costing the State 1,000 jobs. The administration backed off. Last week, with a shuttle and rocket—both built by companies based in Colorado—NASA launched a successful test flight of the Orion vehicle. We will again carry astronauts into space, traveling deeper than ever before and eventually maybe even visit Mars.

As everybody in this Chamber knows, MARK has been a staunch defender of the rights and freedoms we cherish as westerners. As a member of the Senate Armed Services and Intelligence Committees, MARK fought every single day he was here to protect the security of the American people and the Bill of Rights. He has taken on NSA and CIA when they violated our constitutional values.

In 2011 he worked on a classified level to pressure intelligence officials to dismantle a massive email collection program that affected American privacy. Administration officials were unable to provide evidence that the program was effective. It was shut down. It only became public information when the New York Times reported on it in July of 2013.

Well before Edward Snowden made headlines in 2013, MARK warned of the NSA's overreach. In 2012, on this Senate floor, he warned the American people that they would be shocked to learn about what the NSA was doing in secret. He introduced landmark, bipartisan surveillance reform legislation with Senators RON WYDEN, RICHARD BLUMENTHAL, and RAND PAUL. It became the basis for the USA FREEDOM Act, which received 58 votes just a few weeks ago. There was a time, before the relentless use of the filibuster, when a majority of votes in the Senate would have been enough to ensure passage of that bill.

Earlier this week the Intelligence Committee released the executive summary of the Senate Intelligence Committee's study of the CIA's detention and interrogation program. Nobody in this place fought harder than MARK UDALL to shed light on these tactics. His goal from day one has been holding the CIA accountable, shedding light on this dark chapter of our history, and ensuring that the neither the CIA nor any other agency or future administration would make the grievous mistakes that were made here. He accomplished his goals with respect to the process without leaking classified information but by applying pressure both politically and privately until the report was finally released. He has been effective because he has stood on consistent principle on every issue we have faced.

He voted against the PATRIOT Act. He opposed the war in Iraq. He helped

lead the fight to end don't ask, don't tell.

MARK truly is the very best of what it means to be a public servant: independent, responsible, tough, focused on the future, and possessing an abiding can-do spirit. His calm presence, his unassuming nature, and his ability to see pure good in those around him are exactly what we so desperately need in our process today.

Simply put, MARK UDALL has fought for Colorado families in the most constructive way possible—by pushing thoughtful commonsense solutions—but has never ever fought to achieve a partisan political fleece.

When Colorado was struck with a series of natural disasters, from wildfires to floods, MARK was at his very best, standing up for our State and our families to lead the efforts to ensure that our communities had the support they needed to recover and better prepare for the threats we faced next. He has strengthened the way we respond to the growing threat of wildfire by emphasizing preservation efforts that will save lives, property, and tax dollars. We would expect nothing else from a man who has dedicated himself and his career to standing up for Colorado families, the middle class, and the values of the American West.

As a Senator, a Representative, a State legislator, director of the Colorado Outward Bound school, MARK has been a model public servant. He has lived up to and exceeded the high standards his family has set for more than a century. Throughout all of his work, MARK has always fought against the dysfunction that persists in Washington.

It is true, however, that MARK cannot take full credit for the work. His wife and partner Maggie Fox shares his commitment to leaving more opportunity for the next generation. She has worked as a teacher and community organizer on the Navajo and Hopi reservations of Arizona, New Mexico, and for the Colorado, North Carolina, and Northwest Outward Bound schools. She has become a leading voice in many efforts to protect our land, our air, and our water. Their partnership is a genuine one. It has made MARK's work possible.

MARK's staff has been among the finest, most professional, and most effective in the Senate. It has been a pleasure for me and for my staff to work alongside them on behalf of the people of Colorado.

Over the past few years I have learned that really there are two broad categories of people in Washington: There are those who embrace and add to the dysfunction because it serves their ideological convictions or gives them an opportunity to star on the cable news or both. Then there are the people who are actually trying to save the place. They are looking for areas of compromise to break the gridlock and to move us forward.

MARK is one of the good ones, and I have no doubt he will continue to make profound contributions to Colorado and to our Nation in a variety of ways, but we are diminished by his loss. Every one of us, for the sake of this institution, would do well to live up to the example MARK UDALL has set.

I yield the floor.

The PRESIDING OFFICER. The Senator from New Mexico.

Mr. UDALL of New Mexico. Madam President, I thank Senator GRASSLEY for allowing me this time to talk about my cousin, MARK UDALL. First, let me say to Senator BENNET, I know that MARK feels he could not have had a better partner, a better friend, and someone to work with on Colorado issues and the great national issues than Senator BENNET.

Senator BENNET spoke eloquently of MARK's incredible record in public service. Two years in the Colorado legislature, 10 years in the House of Representatives, and 6 years here in the U.S. Senate. I served with MARK in the House, and here in the Senate. He is not only my cousin. He is not only an extraordinary public servant. He has been a great ally, as we have worked on the issues together.

MARK has been—and will continue to be—a champion, for the environment, for civil liberties, and for a government that is as open and good as the people we are privileged to represent.

MARK has been a courageous and outspoken leader in the fight against climate change. He knows that global warming is not just a threat to our environment, but to our national security and our economy. He and I have worked on this issue throughout our time in public service, pushing to expand clean energy production and for common sense steps to reduce pollution. He and I introduced, and got passed, a renewable electricity standard when we were both in the House to increase the use of renewable energy and create jobs across the country. When the Senate passes a similar RES, which I believe it eventually will, MARK you will share in that victory, for all your determination and hard work to make it happen.

Our dads loved the land. They taught us to love it as well. MARK doesn't just climb mountains. He protects them, so that generations to come will enjoy this legacy of natural treasures. Together we have fought for full funding for the Land and Water Conservation Fund and for wilderness preservation. He has accomplished so much that will live on, long after we all are gone.

MARK has also been a true leader on the Senate Intelligence Committee and the Armed Services Committee. He is absolutely fearless, and undaunted, in defense of our Nation, and in defense of our liberties. We both opposed the original Patriot Act, as well as its reauthorization. MARK has been eloquent and tenacious in warning of over-reaching surveillance, and secret interrogations. The Intelligence Committee released its study of the C.I.A.'s secret program this week. No one fought harder to hold our government to account, in insisting that we must not only be secure, but we must honor the values that define us. We can and must do both. History will remember his invaluable role in making it possible for the American people to have this great and necessary debate.

Madam President, my dad once said that, in the end, it is not the awards you receive, it is not the trophies in the garage, or the honors on the shelf, it is what the people who know you best really think of you. To those of us who know MARK—in our family, here in Washington, and in his beloved State of Colorado—he is the real deal.

I remember when MARK's dad, Mo, ran for President in 1976. Mo lost the nomination to Jimmy Carter. In his concession speech, he recalled the words of Will Rogers, ''Live your life so that whenever you lose, you are ahead.'' Mo went on to say:

> And I am ahead. I'm ahead in staff people who love me and believed in me. And I'm ahead because I have love, respect and admiration for all of you in this room.

That was true of Mo. It is equally true of MARK. In his years of public service, and in the years to come, that will always be said of MARK. Whatever the task, whatever the challenge, he meets it head on. In the Congress, and in his day to day life, he is practical, independent, and always generous of himself.

MARK, wherever you go, wherever you are, win or lose, you are ahead—and we all are ahead whenever you are in the room. Or I might say whenever you are on the trail, or the mountainside. We find you out on the trail as likely as anywhere else.

But, then, that has always been the case with MARK, and with all our family. If you are a Udall, you spend a lot of time outdoors, and gladly so. And we never know when we will run into each other. A number of years ago, I was hiking up a mountain in Argentina. All of a sudden, there on the trail at 16,000 feet, was MARK, coming back from the summit. So, I never know when I'm going to run into him, but Madam President, let me say, I am always glad when I do.

MARK, for me, you have always set an example. You have always been true to the legacy of our family. I know that will never change, whatever your endeavors. So, to you, and Maggie, and Jed and Tess, Jill and I wish you all the best, in this new chapter in your lives.

I thank Senator GRASSLEY for allowing me this courtesy. It is always wonderful to work with CHUCK. He is a first-class Senator.

The PRESIDING OFFICER. The Senator from Iowa.

GREENHOUSE GASES

Mr. GRASSLEY. Madam President, I have said before on the Senate floor that the proposed Environmental Protection Agency regulations to limit carbon dioxide are an example among far too many of Executive overreach by this administration.

Anyone who knows the history of the Clean Air Act—and I was here for the last major revision in 1990—or who has read the text of that law knows it was never intended to address greenhouse gases or climate change.

The Clean Air Act is designed to address traditional pollutants that have a direct impact on human health and the environment. However, when Congress declined to pass legislation supported by President Obama that would have created a cap-and-trade system targeted at greenhouse gases, the President gave a speech saying he would act on his own. In trying to regulate greenhouse gases under the Clean Air Act, which was not designed for that purpose, the EPA had to fit a square peg in a round hole.

As a result, when a number of key provisions in the Clean Air Act didn't say what the EPA would like them to say, the EPA simply reinterpreted those provisions to say something different or ignored them. In effect, the EPA was unconstitutionally rewriting a law passed by the Congress.

We all know what article I, section 1 of the U.S. Constitution says: ''All legislative Powers herein granted shall be vested in a Congress of the United States . . . ''

Regardless of where you stand on climate change, we ought to be able to agree that it is not appropriate for the EPA or, for that matter, any administrative agency to twist the law passed by Congress to mean something other than what it says. This isn't a partisan position, and you don't have to take my word for it. Just listen to what President Obama's Harvard professor, renowned liberal constitutional scholar Lawrence Tribe, has written:

The defects in the Proposed Rule transcend political affiliation and policy positions and cut across partisan lines . . .

Continuing:

The central principle at stake is a rule of law—the basic premise that EPA must comply with fundamental statutory and constitutional requirements in carrying out its mission.

The Proposed Rule should be withdrawn. It is a remarkable example of executive overreach and an administrative agency's assertion of power beyond its statutory authority.

Indeed, the Proposed Rule raises serious constitutional questions.

In addition to his reputation as one of the country's most prominent constitutional scholars, Professor Tribe is also a long-time Democratic Party activist. In fact, he served as a judicial adviser to President Obama's 2008 Presidential campaign, briefly worked in his administration, and has been a very vocal supporter of the President. When Professor Tribe says the Obama administration has exceeded its authority, you can take it to the bank.

I should also add, in response to concerns that the EPA regulations are not a legitimate or appropriate response to climate change, I often hear that at least EPA is doing something. Well, aside from the fact that regulatory approach is not legally justified, it is also ineffective.

As Professor Tribe points out on his treatise in this matter:

The Regulatory Impact Analysis (RIA) for the Proposed Rule states that the impact of ''reduced climate effects'' has been ''monetized'' but not ''quantified.'' In other words, EPA does not claim that the Proposed Rule would affect the climate. The mismatch and lack of social benefit distinguish the Proposed Rule from other actions by EPA under the Clean Air Act.

This isn't news. President Obama's first EPA Administrator, Lisa Jackson, confirmed in testimony before a Senate committee that: ''U.S. action alone will not impact world CO_2 levels.''

So these regulations will have no measurable environmental benefit, but will have tremendous costs, particularly for the Midwest, given our energy mix.

The EPA rules are all pain and no gain.

This is not an argument about environmental policy. I am proud to be a leading advocate for renewable energy, and I believe there is room for some bipartisan agreement about diversifying our Nation's energy sources.

However, I want you all to know that I agree with Professor Tribe that regardless of the underlying policy goals, the rule of law must be respected and the proposed rule should be withdrawn. I hope President Obama will learn from his former Harvard professor and end with the President of the United States doing the right thing.

I yield the floor.

The PRESIDING OFFICER. The Senator from Michigan.

PREWAR IRAQ INTELLIGENCE

Mr. LEVIN. Madam President, I wish to speak for a few moments about one of the most significant events in my 36 years as a U.S. Senator, the war in Iraq. I want to speak about important historical records crucial to our understanding of why we went to war against Iraq in 2003, I want to enter into the public record recent revelations not yet made public, and I make one more public call for a key document to be made fully public.

I will begin by renewing a request to the Director of the Central Intelligence Agency, John Brennan. It is a request I have also made to his predecessors: I ask Director Brennan to declassify fully a March 13, 2003 CIA cable debunking the contention that 9/11 hijacker Mohammad Atta had met in Prague with an Iraqi intelligence official named Ahmad al-Ani.

Earlier this year, Director Brennan wrote to me, refusing, as did his predecessors, to fully declassify the CIA cable. But in his letter to me he makes public for the first time a few lines from that document. While this is a significant addition to the public record, and I will discuss that in a moment, it is still not the full cable, and I am calling on him to declassify and release the full cable.

In order to understand why I am making that request, we need to return to early 2003.

On March 6, 2003, just two weeks before U.S. troops would cross the Iraqi border, President Bush held a primetime televised press conference. In that press conference he mentioned the Sept. 11, 2001, terror attacks eight times, often in the same breath as Iraqi dictator Saddam Hussein. There was a concerted campaign on the part of the Bush administration to connect Iraq in the public mind with the horror of the Sept. 11 attacks. That campaign succeeded. According to public polls in the week before the Iraq war, half or more of Americans believed Saddam was directly involved in the attacks. One poll taken in September 2003, 6 months after we invaded Iraq, found that nearly 70 percent of Americans believed it likely that Saddam Hussein was personally involved in the Sept. 11 attacks. Americans who believed in a link between Iraq and 9/11 overwhelmingly supported the idea of invading Iraq. Of course, connections between Saddam and 9/11 or al Qaeda were fiction.

America's intelligence community was pressed to participate in the administration's media campaign. Just a week after the President's prime-time press conference, on March 13, 2003, CIA field staff sent a cable to CIA headquarters, responding to a request for information about a report that Mohammad Atta, the leader of the Sept. 11 hijackings, had met in 2001 with an Iraqi intelligence official in the Czech capital of Prague. In stark terms, this CIA cable from the field warned against U.S. government officials citing the report of the alleged Prague meeting.

Yet the notion of such a meeting was a centerpiece of the administration's campaign to create an impression in the public mind that Saddam was in league with the al Qaeda terrorists who attacked us on 9/11. On multiple occasions, including national television appearances, Vice President Dick Cheney cited reports of the meeting, at one point calling it ''pretty well confirmed.'' Officials from Donald Rumsfeld's Pentagon, who set up a sort of rogue intelligence analysis operation, briefed senior officials with a presentation citing the Prague meeting as a ''known contact'' between Iraq and al Qaida.

Why am I bringing up a CIA cable from more than a decade ago? Isn't this old, well-covered terrain? No, it isn't. This is about giving the American people a full account of the march to war as new information becomes available. It is about trying to hold leaders who misled the public accountable. It is about warning future leaders of this nation that they must not commit our sons and daughters to battle on the basis of false statements.

There is no more grave decision for a nation to make than the decision to go to war, and there is no more important issue for every member of Congress than the decision to authorize the use of military force—A decision to authorize force is a decision to unleash the

might of our Armed Forces, the strongest military on the planet. It commits the men and women of our Armed Forces to fight, and perhaps to die, on the battlefield. The decision to go to war must be careful, considered, and based on the facts.

Such careful consideration was tragically absent in the march to war in Iraq.

Here is what the Vice President said on December 9, 2001, in an interview on ''Meet the Press'': ''It's been pretty well confirmed that he [Atta] did go to Prague and he did meet with a senior official of the Iraqi intelligence service in Czechoslovakia last April, several months before the attack.''

Far from ''pretty well confirmed,'' there was almost no evidence that such a meeting took place. Just a single unsubstantiated report, from a single source, and a mountain of information indicating there was no such meeting, including the fact that travel and other records indicated that Atta was almost certainly in the United States at the time of the purported meeting in Prague.

It was highly irresponsible for the Vice President to make that claim. Calling a single, unconfirmed report from a single source ''pretty well confirmed,'' as he did on Dec. 9, 2001, was a reckless statement to make on such a grave topic as war, in the face of overwhelming doubt that such a meeting occurred.

Yet Vice President Cheney's reckless statements continued, even as evidence mounted that there was no Prague meeting. In September 2002, he said Atta ''did apparently travel to Prague on a number of occasions. And on at least one occasion, we have reporting that places him in Prague with a senior Iraqi intelligence official.''

The Vice President made those statements in the face of a then-classified June 2002 CIA assessment that said the alleged meeting was ''not verified,'' called the information about it ''contradictory,'' and described assessments of Iraqi cooperation with al Qaida terror plots as ''speculative.'' The Vice President made those statements in the face of a July 2002 Defense Intelligence Agency analysis, which reported that there was no evidence that Atta was in the Czech Republic at the time. He made those statements despite a Defense Intelligence Agency memorandum in August 2002 rejecting the claims by a rogue intelligence analysis shop at the Pentagon that the meeting was an example of a ''known contact'' between Iraq and al Qaida.

That brings us to the March 13, 2003 cable. It is unfortunate that I cannot fully lay out the contents of that cable, because much of it remains classified. But as the Senate Intelligence Committee's 2006 ''Phase II'' report indicates, it appears that the cable was sent in response to a request from headquarters at Langley for comment on the claim that Atta and al-Ani had met in Prague because the White House was considering a reference to a Prague meeting in a speech. At that time, according to then-CIA Director George Tenet's memoir, the CIA had been given a draft of a speech by Vice President Cheney containing assertions about connections between Iraq and al Qaida. Tenet writes in his memoir that he had to object to the President that the speech went ''way beyond what the intelligence shows. We cannot support the speech and it should not be given.''

The text of this cable and the information surrounding it was almost entirely redacted by the CIA from the Intelligence Committee's 2006 Phase II report. A number of us objected to that redaction at the time the report was made public; indeed, the Majority Leader introduced legislation which I cosponsored that would have declassified the cable, legislation Republicans blocked. At the time of the report's release, I joined several members of the Intelligence Committee, including Ranking Member ROCKEFELLER, Senators FEINSTEIN, WYDEN, Bayh, MIKULSKI and Feingold, in concluding that the administration's decision to keep the contents of the cable classified ''represents an improper use of classification authority by the intelligence community to shield the White House.''

In the years since I have sought declassification of the March 2003 CIA cable on numerous occasions. Twice, in 2011 and 2012, I wrote to then-CIA Director Petraeus asking him to declassify the cable. Then in February 2013, I asked Director Brennan during his confirmation hearing whether he would contact the Czech government to ask if they would object to declassification of the cable, and he responded, ''Absolutely, Senator, I will.''

Despite his commitment, I heard nothing from Director Brennan for some time. Finally, in March of this year, more than a year after his public commitment to me, I received a letter from Director Brennan.

Madam President, I ask unanimous consent that Director Brennan's March 13, 2014, letter to me be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

THE DIRECTOR,
CENTRAL INTELLIGENCE AGENCY,
Washingon, DC, March 13, 2014.

Hon. CARL LEVIN,
Chairman, Committee on Armed Services, U.S. Senate, Washington, DC.

DEAR MR. CHAIRMAN: At my confirmation hearing you requested that I pursue declassification of a 2003 communication related to an alleged meeting between Mohammed Atta and an Iraqi intelligence officer, which was referenced in the Senate Select Committee on Intelligence's September 2006 report entitled Postwar Findings about Iraq's WMD Programs and Links to Terrorism and How They Compare with Prewar Assessments.

I understand that your principal concern is that the historical record be as complete as possible regarding this period in our history, and on this point we are in agreement. The American people deserve as full an understanding as possible of these historical events, consistent with the national security interests of the United States. Consequently, having worked with our declassification review experts, I can confirm the following information, which describes the substance of what the communication relayed with respect to the meeting at issue, without compromising national security:

On 13 March 2003, CIA headquarters received a communication from the field responding to a request that the field look into a single-source intelligence report indicating that Muhammed Atta met with former Iraqi intelligence officer al-Ani in Prague in April 2001. In that communication, the field expressed significant concern regarding the possibility of an official public statement by the United States Government indicating that such a meeting took place. The communication noted that information received after the single-source report raised serious doubts about that report's accuracy.

In particular, the field noted that while it remained possible that a meeting between Atta and al-Ani took place, investigative records subsequently placed Atta in the United States just before and just after the date on which the single-source report said the meeting was to have occurred, making it unlikely that Atta was in Prague at the time of the alleged meeting. The field also warned that both FBI and CIA had previously told foreign intelligence officials that they were skeptical that Atta was in Prague. Finally, the field observed that ''identifications'' like the one that was made by the source of the earlier report, during a period of high emotion four months after the September 11 attacks, could be faulty and would require further evidence. The field added that, to its knowledge, ''there is not one USG [counterterrorism] or FBI expert that . . . has said they have evidence or 'know' that [Atta] was indeed [in Prague]. In fact, the analysis has been quite the opposite.''

I hope this letter answers any outstanding questions about the correspondence in question and addresses our shared interest in creating an accurate and complete historical record.

Sincerely,

JOHN O. BRENNAN.

Mr. LEVIN. The letter contains no indication that he had asked the Czech government for its view, as he committed to do. But Director Brennan's letter includes, and therefore finally declassifies, this very clear statement from the cable: ''[T]here is not one USG [counterterrorism] or FBI expert that . . . has said they have evidence or 'know' that [Atta] was indeed [in Prague]. In fact, the analysis has been quite the opposite.''

Again, that cable was sent to CIA headquarters on March 13, 2003—a week before our invasion of Iraq. But the Vice President of the United States, Dick Cheney, continued to suggest the meeting may have taken place. He said the following about the meeting on ''Meet the Press'' on September 14, 2003—6 months after CIA received that cable: ''We've never been able to develop any more of that yet either in terms of confirming it or discrediting it. We just don't know.'' Here is what he told the Denver Post newspaper on January 9, 2004: ''We've never been able to collect any more information on that. That was the one that possibly tied the two together to 9/11.'' Here is what he told CNN on June 17, 2004: ''We

have never been able to confirm that, nor have we been able to knock it down. We just don't know.''

Mr. President, those statements were simply not true. We did know. We did know that there was no evidence that such a meeting had taken place. We did know there was ample evidence it did not take place. We did know that there was, as the CIA cable says, ''not one'' government expert who said there was evidence that Atta met with Iraqi intelligence in Prague. The Vice President recklessly disregarded the truth, and he did so in a way calculated to maintain support for the administration's decision to go to war in Iraq.

There is a second recent revelation about how the ''Prague meeting'' progressed from unsubstantiated report to justification for war. It comes from Jiri Ruzek, who headed the Czech counterintelligence service on and after 9/11. Mr. Ruzek published a memoir earlier this year, which we have had translated from Czech. It recounts the days after the terror attack, including how his nation's intelligence services first reported a single-source rumor of a Prague meeting between Atta and al-Ani, how CIA officials under pressure from CIA headquarters in turn pressured him to substantiate the rumor, and how U.S. officials pressured the Czech government when Czech intelligence officials failed to produce the confirmation that the Bush administration sought.

Mr. Ruzek writes:

> It was becoming more and more clear that we had not met expectations and did not provide the 'right' intelligence output.

Mr. Ruzek continues:

> The Americans showed me that anything can be violated, including the rules that they themselves taught us. Without any regard to us, they used our intelligence information for propaganda press leaks. They wanted to mine certainty from unconfirmed suspicion and use it as an excuse for military action. We were supposed to play the role of useful idiot thanks to whose initiative a war would be started.

That is chilling. We have a senior intelligence official of a friendly nation describing the pressure that he and other Czech officials were under to give the Bush administration material it could use to justify a war.

When it came to the most serious decision a government can make—the decision to commit our sons and daughters to battle—the Bush administration was playing games with intelligence. The full, still classified cable includes critically important, relevant information, and it has been redacted and denied to the public in order to protect those in the Bush White House who are responsible.

The March 13, 2003, cable is an invaluable record in helping the American people understand how their elected officials conducted themselves in going to war. Continuing to cloak this document with a veil of secrecy, revealing a few sentences at a time, allows those who misled the American people to continue escaping the full verdict of history. It deprives the American people of a complete understanding of how we came to invade Iraq. In his letter to me, Director Brennan writes, ''I understand that your principal concern is that the historical record be as complete as possible regarding this period in our history, and on this point we are in agreement.'' But Director Brennan's apparent refusal to do what he has committed to do—to ask the Czech government if it objects to release of the cable—now takes on the character of a continuing cover-up.

I believe decisionmakers should have to face the full, unadulterated, unredacted truth about their decisions. The American people should know the full story, not just so we can understand the decisions in 2002 and 2003 that took us to war, but as a warning to future leaders against the misuse of intelligence and the abuse of power.

Very briefly, what I am doing in this statement, which is now in the record, is I am asking CIA Director Brennan to fully declassify a March 13, 2003 cable from CIA field officers to headquarters. This cable provides information about the Bush administration's campaign to build public support for the Iraq invasion.

One part of that campaign was the repeated misleading suggestion that Mohammed Atta, leader of the 9/11 hijackers, had met with an Iraqi intelligence official in Prague.

I received a letter from Director Brennan making public for the first time some of the cable's contents. He quotes the cable as saying:

> There is not one USG [counterterrorism] or FBI expert that . . . has said they have evidence or ''know'' that [Atta] was indeed [in Prague]. In fact, the analysis has been quite the opposite.

In my statement just entered into the RECORD, I also discussed recent revelations by the former head of the Czech intelligence agency about U.S. pressure to confirm the report of that meeting.

The American people deserve to know the full truth about this episode and particularly in light of the new revelations from a top Czech official.

I have renewed my request to Director Brennan to declassify the entire cable.

I yield the floor.

The PRESIDING OFFICER. The Senator from Louisiana.

FAREWELL TO THE SENATE

Ms. LANDRIEU. Madam President, it is my pleasure to take a few minutes on the floor to give a farewell message, and I thank you for your courtesies. I begin with a Scripture, Philippians 4:7, New American Standard Bible, that reads: ''And the peace of God, which surpasses all comprehension, will guard your hearts and your minds in Christ Jesus.''

Truly for the first time in my adult life I have felt that extraordinary peace about something that was unexpected, but is certainly something that I accept. It has really been amazing as a Christian, as an adult, and as a leader to find myself in this place in a time that should be a time of sadness, but all I can feel is actual joy. It is quite amazing.

It has never happened to me before, so I thought it would be wonderful to share—with so many of my friends, supporters, family, staff, and colleagues listening in—for a few minutes to say that it is absolutely true, and I am a testimony to this extraordinary peace since just a few days before the election and since then. I think it is because I feel and know that God has called me to another place.

Before being a Senator, a wife, and a daughter, I am a Christian, and my faith really is central to my life. My parents always taught me to put my faith where it belongs—in God himself. So it is really with that sense of gratitude and joy that I have been given an opportunity to serve my State, my region, and my country for now almost 34 years—which is quite amazing—having started at a very young age and still being relatively young.

So let me just share some remarks about that time, and particularly the time here in the Senate. I want to begin by thanking my family, and particularly my extraordinary husband Frank, who has been a partner and, as I said on election night, not only an encouraging and supportive partner but one who has literally egged me on. When I wanted to quit, he would say: No, you have to continue to serve. He is not only an accomplished lawyer and professional, but also an elected official in his own right, he came from a family that was dedicated to public service, having both of his parents being very active in party politics—first the Republican Party and then the Democratic Party. But that is a whole other story. They are both strong civil rights leaders—my husband as well—and always encouraging me and being willing to share the burdens of public life as well as sharing in the great joy.

Our son Connor is now 23 years old, and our daughter Mary Shannon is now 17. The reason I mention that is because Connor was 5 when we were elected to the Senate. Mary Shannon was adopted the first year we were here. On election night, she looked at me—and she is just so beautiful at 17—and she said: Mom, it is going to be a little strange. I have only known you as a Senator. So I warned her that now that I am going to be a full-time mom this is going to be a real problem for her. She is not looking forward to it.

To our new daughter-in-law Emily, and especially to our precious little Maddox Parker Snellings, who many people saw on election night—now, Maddox gets the distinction. He is 10 months old, but he gives me the most joy, and I used to keep a picture of him during all my debates. There were only three, as you all will remember, but I would keep a picture of him because

my staff kept telling me: You have to smile more. I kept saying: But I can't, because I am really aggravated. They said: No, you have to smile. So my solution was to put a picture of Maddox on my podium and, of course, I then smiled through the whole debate. That is a trick for those who will be continuing to debate.

To my mother and father, who are the light of not only our family but the light of our community, the light of the Nation in many ways—they had 9 children, 37 grandchildren, and now 6 great grandchildren. They are in wonderful health, they are watching right now, and I can only say they are two of the most extraordinary individuals I have ever known. Our family is truly blessed by their sacrificial leadership.

Let me also mention my eight siblings—eight brothers and sisters: Mark, Melanie, Michelle, Mitchell, Madeleine, Martin, Melinda, and Maurice, Jr.—all m's. That is another story. There are all of our spouses, my nieces and nephews, who campaigned with me up until the last day. My godchild Sasha literally knocked on doors with me. I was teaching her how to knock on doors before the campaign was over so the tradition could carry on in our own neighborhood where we have lived since I was 5 years old—Broadmoor in New Orleans.

When I first got here 18 years ago, I literally could not find the side door. I didn't know anything. I wasn't even expecting to be here. It was kind of like a dream that I got here, because I had run for Governor, wanted to be the Governor, and served 16 years in my State. I knew that was what I was being called to do—and I see LAMAR ALEXANDER—to change our education system, to do some coastal work, and then I landed here. But I literally knew nothing of how to be a Senator.

I stumbled a great deal in my first years. But I want to thank my chiefs of staff, Norma Jane Sabiston, Ron Faucheux, Jason Matthews, Jane Campbell, and Don Cravins. I had five of the most remarkable chiefs of staff, who, with me, learned how to do this job and to do it well. We never forget where we came from, and they are still—all of them—with me, and all of us are still working to make our State the very best that it can be and to make our country the very best that it can be.

To three staffers who have been with me for almost 20 years—Alicia Williams is the longest serving office manager, I think, in the Senate. She was here when I arrived and stayed with me. She was with Bennett Johnston. T. Bradley Keith has been with me for 22 years as a former staffer in a former life, before I was a Senator, and now as my long-time State director. And Shannon Langlois has been, I think, with the Senate for almost 30 years. She is a caseworker. She was, again, with Bennett Johnston and stayed with me. She has literally given her life to thousands, hundreds of thousands of cases in Louisiana and trained every caseworker that I had for 18 years, and they just did phenomenal work.

I ask unanimous consent to have printed in the RECORD my current staff, all of whom are here—my personal staff, my energy staff, and my homeland security staff.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

PERSONAL STAFF OF MARY LANDRIEU

Alexander Damato, Alex Sewell, Alicia Williams, Alyson Azodeh, Andrew Holleman, Ashley Scott, Christina Jones, Christopher Etienne, DerKirra Wilkerson, Don Cravins, Eva Kemp-Melder, Jaren Hill, James ''Wes'' Kungel, Jim Simpson, Katie Lewallen, Lauren Spangler, Leslie Leavoy, Libby Whitbeck, Matthew Lehner, Marianna Knister, Megan Blanco.

Rob Sawicki, Ross Nodurft, Will Harris, Whitney Reitz, Zach Butterworth, Zephranie Buetow, Kelsey Teo, Meghann Morin, Shannon Langlois, T. Bradley Keith, Terrence Lockett, Sherae' Hunter, Laverne Saulny, Cathleen Berthelot, Zach Monroe, Tani Bradford, LeNelle Williford, Michael Jackson, Mark Herbert, Darlene Manuel.

ENERGY COMMITTEE STAFF

Elizabeth ''Liz'' Craddock, Afton Zaunbrecher, Aisha Johnson, Allen Paul Stayman, Bryan Petit, Caroline Bruckner, Clayton Allen, Dan Adamson, Darla Ripchensky, David Brooks, David Gillers, Dominic Taylor, Elizabeth Weiner, Fayenisha Matthews, Herman Bubba Gesser, III, Jan Brunner, Jonathon Burpee, Kristen Granier, Lindsay McDonough, Mark Tiner, Megan Brewster, Meghan Conklin, Paul Davis, Renae Black, Sallie Derr, Sam Edward Fowler, Sa'Rah Hamm, Will Dempster.

HOMELAND APPROPS STAFF

Stephanie Gupta, Drenan Dudley, Scott Nance, Chip Walgren, Colin MacDermott, Eric Bader.

Ms. LANDRIEU. Madam President, I want to thank Don Cravins, again, as my chief of staff; Liz Craddock, Staff Director of my energy committee; and Stephanie Gupta, head of homeland security. I know I am leaving them in good hands with what they are going to be doing in the future and with the great leadership that remains here.

I only have a few minutes, so I will just run through a couple of the highlights of some of the accomplishments that I am most proud of and really take this opportunity to thank so many who helped, because the one thing I have learned that most certainly is true, is that if you want to accomplish really big things here—really great things, generational things—you most certainly cannot do that alone. So the first thing you need to do is look for a really good partner—and I mean a partner that will be with you through thick and thin. Sometimes you are lucky enough to find those kinds of partners, and I found them on both sides of the aisle.

The first major piece of legislation I introduced was something that was in my heart for so long, and that was the Conservation and Reinvestment Act. The cosponsors of that bill, amazingly, were Frank Murkowski from Alaska, Trent Lott from Mississippi, John Breaux from Louisiana, and Senator DIANNE FEINSTEIN from California. Chris Dodd joined me a few days later after we introduced it—and RON WYDEN, Chris Bond, John Warner, and THAD COCHRAN, just to name a few.

At the end of this effort—although this particular bill didn't pass; we missed it literally by inches, and I will describe what that was in a minute—we had 4,500 organizations throughout the country, from the Sierra Club to the U.S. Chamber of Commerce and everyone in between in a broad coalition to fund the Land and Water Conservation Fund—and LAMAR ALEXANDER knows more about this than I could ever know, and he will tell you one day the details about the Land and Water Conservation Fund. The Udalls and the Udalls' fathers were very instrumental in the creation of the Land and Water Conservation Fund. It was a promise made but never kept—that this country would set aside about $900 million a year to purchase land, to build our parks, and to secure recreational opportunities. This country is so blessed—more than any on Earth—with the amount of natural resources we have, and we have not lived up to that promise.

So I introduced this bill as a young legislator. John Breaux said you don't even know what you are doing; how are you introducing a bill like this? I said: I don't know, but I am just going for it because I believe in it. So we never passed it, but it has been in part of almost every piece of energy legislation—in pieces and parts since that day we introduced that. I am very hopeful that war will go on under Senator MURKOWSKI, the daughter of Frank Murkowski, and MARIA CANTWELL, who in many ways got to the Senate because she defeated one of the gentlemen who opposed us on this bill and used it as a platform to get here. So I know she will be committed to finishing the work.

The bill did three things. It fully funded the Land and Water Conservation Fund, a trust fund that will go on for generations. It would fully fund coastal restoration, which is so important not just to Louisiana, because we are literally falling away into the Gulf of Mexico, but it will help SHELDON WHITEHOUSE in his work. It will help DICK DURBIN along the Great Lakes, and it will help CORY BOOKER in New Jersey. If you allocate the funding correctly, it will be grants that these coastal communities can use until we figure out how to clean our atmosphere and how to stop the tremendous pressures that are coming on our coast. Louisiana knows this. We have experienced the worst disasters literally in the history of our country, and they are only getting worse. I will talk about that more in a minute.

But it was because we had laid the groundwork for CARA, Pete Domenici literally felt so sorry for me—he knew how hard we had worked and the coalition was so disappointed when we

lost—that he directed, literally with the stroke of a pen, $1 billion to the gulf coast in the energy bill for 2005. That money was divided 50 percent to Louisiana and 50 percent to the other States.

Now, I can promise everyone here that for the $500 million that went to Louisiana, we can account for every penny of it. We know exactly where it went, and we put that down as a downpayment to restoring our coast, which doesn't just belong to us—it belongs to the whole Nation. This is the greatest, the seventh largest delta on the planet. It is what Thomas Jefferson leveraged the whole entire Treasury of the United States to purchase. It is something worth fighting for. We would not be a country without the Mississippi Delta, and we could never have found our way west if we couldn't have supplied the great center of this Nation with the commerce they needed.

Every State along this river—19 of them—use this river and understand what I am talking about. AMY KLOBUCHAR understands this. She is at the top of this river, and I am at the bottom, and we have talked a lot about how important that corridor is. That needs to continue.

Then there was the Gulf of Mexico Energy Security Act, which I finally passed with Pete Domenici's help, who was my dear friend and one of the most wonderful leaders I have ever worked with. He came from a family with eight children. We had nine, and we are both Catholic and came from the same sort of background. He served with such passion. So he joined with me in passing the Gulf of Mexico Energy Security Act, which finally secured a permanent stream of revenue for coastal restoration and protection.

But as LAMAR ALEXANDER knows, it left out the land and water, and it left out wildlife. We just couldn't lift it all, so that needs to be corrected.

Finally, there is the RESTORE Act, which I worked on with my colleagues when the BP oil spill killed 11 people in the gulf and spilled 5 million barrels of oil in the gulf. Thanks go to BARBARA BOXER, this extraordinary woman who has been a partner with me. We think very differently about the world. We see things very differently. California is very different from Louisiana. But I will say one thing about BARBARA BOXER. If I had to be in a foxhole with someone, I would want to be with her because she never stops fighting. She and I are very much alike in that regard. Once we set our minds to something there is no dividing us.

People asked why did I send her money for her reelection? Why did I raise so much money from Louisiana? I said that I would do it again because when no one would stand up—well, not no one, but if she hadn't stood up when that BP oil spill went down, and said, I am chair of this committee and I believe the gulf coast deserves this funding, we just wouldn't have had it. It is as simple as that. People do not know how powerful a chairman is here. When a chairman makes up their mind and they say this is what we are going to do, the rest of the committee, for the most part, goes along. And so BARBARA said that.

With Senator VITTER, of course, who is the ranking member on that committee put his shoulder to the wheel, and we were able to get—well, it is still in court, but we think—a serious downpayment to recover from one of the great ecological disasters of our State, of our country, which is the loss of the gulf coast. This just isn't in Louisiana. This is Texas and Mississippi, and it is going to affect parts of the whole country. But we are on the mend.

I came here to do that work. I came to find money. I found it, and we are going to continue that work. I am thrilled to work with so many of you to get that done.

On education—LAMAR has to leave, but I am glad he is here because I found a great soulmate in LAMAR ALEXANDER—former Secretary of Education, former Governor, a Presidential candidate, and absolutely extraordinarily committed to finding a better way for our children in America to be educated. As proud as we are of the public school system, at the turn of the century, when people in the world were wondering how to build the middle class in the world and lots of countries were struggling with how to do that, America knew. America knew that if you educated your citizens—women, boys, and girls; not just boys, which is what half the world still does, which is a tragedy—if we open up our schools for universal, free education, along with other things, it would lift your country to greatness unsurpassed in the history of the world.

What breaks my heart is to walk into schools today—and MARK WARNER knows this because he was Governor of Virginia—and see children's eyes just completely dulled, sitting there completely bored, teachers who are just sort of going through the motions. It breaks my heart because I know that not only does it limit their lives but it limits the potential of our Nation.

With LAMAR ALEXANDER and a handful of Democrats, I was proud to work with Presidents Bill Clinton and George Bush to pass a series of laws. Evan Bayh comes to mind, Joe Lieberman, John Breaux, and a group of us stood up and said: It is time to stop sending money to the States without accountability. If we need to send money, we need to hold States accountable, and we need to give opportunities for choice to parents and public charter schools.

I am reluctant to go too far on vouchers. You have heard my speech on that. You heard Senator FEINSTEIN's speech on that. But both of us have agreed to support some kinds of strategic vouchers that help poor kids get out of failing schools until we can fix them.

Most importantly, I support high-performing public charter schools, and I will continue to fight that for the rest of my days. I thank all of you who helped on that and particularly TOM CARPER on the Democratic side and LAMAR ALEXANDER. CORY BOOKER has been an amazing leader and will hopefully continue on that. I thank DICK DURBIN, who is on Appropriations. I had to twist his arm a little bit on some of it, but he ended up coming around and has been an amazing fighter for the right kinds of public schools that serve the children first and the bureaucracy and administration second. I respect teachers. I respect administrators. But our schools should work for the children and their families who so desperately want them to have a great education.

The third issue I wish to speak about, which is a legacy issue, is adoption. I hope I can get through this without tearing up. I don't know why I have always had such passion for this issue.

My mother had nine children without one single problem. As a young child, I remember my aunt adopted two children. I think it might have been that; I can't remember exactly. I started to think about all the children in the world who don't have parents. Maybe I was just always so proud when I filled out those forms in Catholic school. I can remember sitting there filling them out: Are your parents divorced or married? I loved checking ''married.'' How many siblings do you have? I loved putting ''eight.'' I was always so proud of my family.

I thought, what do children without parents do? I just could not imagine. So I got very passionate about it. I ended up, of all things, marrying an orphan. My husband was adopted out of an orphanage. So I thought, yes, this is going in the right direction. I thought I would adopt children. I thought he could not say no since he himself was adopted, and so this would work out. Sure enough, we ended up adopting two children.

But this was my passion before I met my husband and before I even thought about adopting. It was as if God put this in my heart, so I have taken it and carried it.

I thank DAVE CAMP; Jim Oberstar, who is deceased; Tom Bliley from Virginia, who is a great leader among us; Larry Craig, who is no longer here, who served as my cochair; and Senator Jesse Helms. Amazingly, I didn't know to be afraid of Jesse Helms; I thought he was a really nice guy. Later, everybody had to tell me how hard he was to get along with. But I went up to him, and I thought he would surely want to help because he had adopted a child. I don't think a lot of people realize that. Sure enough he did, and we passed a great treaty together that serves as the model for international adoption today. JOE BIDEN was the ranking member on the committee. With Jesse Helms's and JOE BIDEN's support, we passed a great treaty years ago, and we are still in the process of making that possible and working it through.

The accomplishments are really quite long, so I am going to submit them for the RECORD. I will only say that the adoption tax credit which BOB CASEY worked on and took up that cause when he got here—I am thrilled and hope we can keep it. I would like to say to AMY KLOBUCHAR how much I appreciate her agreeing to step in and take over the leadership of the adoption caucus on this side and ROY BLUNT, who I think will take it up on the Republican side and continue this great work.

There are over 100,000 children who are waiting for families in the United States. There are over 500,000 children in foster care. These children think it is their fault they are there, and it is not. It is not their fault that their family disintegrated around them. It is not their fault that they got pregnant at 11 and were kicked out of their house. Instead of the family wrapping that child in their arms and helping them to grow, they just kicked them out on the street. It is not their fault.

We need to realize that God does not make trash. He never has, and he never will. Everybody he has made has a purpose and dignity, and we need to honor that and do better work. I have spent a lot of time here on it. I am going to continue to do so. I will never stop working on it. I am very proud of the work we have done.

I will put the rest into the RECORD.

On energy very quickly and then finally disaster recovery, I couldn't have been prouder when I became the chair of this committee. It was quite a miracle. I didn't expect it. I never thought I would last long enough to become the chair because there were so many people ahead of me. It kind of worked out when Max Baucus left to go to China and TIM JOHNSON was retiring that it fell to me. It has been my great joy for 9 months to serve as chair, with LISA MURKOWSKI as my ranking member. Of course, I worked with her father. I didn't sit next to him because I was a junior member, but I worked with him closely, and it has been wonderful working with her. I am so proud that MARIA CANTWELL will step up and take that leadership. I know the two of them work beautifully together. They do see the world differently, but they are two women who know how to compromise and who will be respectful of each other and find a way for our country to move forward.

I can tell you all that in my whole life—which isn't that long, but it has been a pretty good run in public office—there has never been a time when America has been closer to energy independence. What that means to our country is beyond description. We don't have to listen to parts of the world that don't hold our values. We can lift up our country. We can move forward. And it has to be with a combination of fossil fuels, weaning our way to a greener, cleaner environment, and manufacturing right here in America.

I hope you all will put down the swords and pick up the plow and really plow together because this is an amazing opportunity for our country. I sure hope we don't miss it. It is going to benefit and make the whole country, not just our part of the country, more prosperous.

People desperately want to move up into the middle class and stay there and not feel so fragile and feel as if they can have the manufacturing jobs and good energy jobs and really eliminate some of the geopolitical nightmares we have been in, fighting wars for oil. It has to come to an end.

Finally, I will say a word about disaster recovery. When I got to the Senate, my husband and I were looking at each other saying: How did we even end up here? We had no idea. When Katrina hit, it became very clear that this is why I needed to be here.

I had been an appropriator since I was 23 years old. I knew a little bit about budgets. I knew a little bit about how the system worked. I knew how the State and local governments depended on the Federal Government so much funding. I understood the power of HUD and the power of housing and the power of building schools and levees and the Corps of Engineers. So I was perfectly positioned to be able to lead the effort for my State, and they desperately needed a leader. I wasn't perfect. I made lots of mistakes. But I wasn't afraid to try because that is all you can do.

The devastation was so great and it was so unbelievable. Eighty percent of the east bank of the city and much of Jefferson Parish—not quite as bad as New Orleans—and all of St. Bernard—67,000 people in St. Bernard lost everything. Everyone in the Lower Ninth Ward lost everything, which is like a small city unto itself. In New Orleans east, which is like a small city unto itself, 60,000 people lost every school, every house. It was unbelievable.

I say to my colleagues: Thank you for being there for us. I know I aggravated you to death. I know I never stopped asking. But you were the only hope because there was just no way these communities could recover. New Orleans has been there for 300 years. You have heard me say this: We didn't move down there recently to go sunbathing or to build condos; we have been down there for 300 years. The city is going to stay there. The region is going to stay there. And had this government just invested a little bit of the money back that we have given it over time—from our energy resources, from our manufacturing, from the wealth we have created along that great mouth of the river—if the country had just given us a little bit of money—$500 million here, $500 million there—and built levees that wouldn't have broken in 52 places, we wouldn't have had $140 billion in damage.

So when I came to Robert Byrd because President Bush was not that forward-leaning—I will just leave it at that. There will be a lot more in my book about it, but I will just leave it at that, not very forward-leaning. The person I went to was Robert Byrd. In his old age, he was so wise. He just looked at me. He didn't say much at that time, but he just took my hand and he said: I will be there with you.

He was the chair of the Appropriations Committee, so that meant something. Boy, he was. He helped me write things in a bill that could probably never be possible today. That was when chairmen understood the power to help people to heal wounds and to bring hope and to be compassionate. That is what government is there to do. If government is not there when you have lost everything, then what in the heck is the use of having it?

So we hope we will be able to repay this country for the investments that have been made, and we will. We will do our best. With all of the people who come to New Orleans and all the conventions that come—and we hope we bring joy and happiness when people come—we hope to pay our way and to pay this back over time for what you have done to help us. We are doing a good job of helping ourselves by planning better, doing more smart-growth, sustainable development, building our levees to the point where they won't break again, and we will continue to do that.

So those are some of the legacy pieces I have worked on. It is kind of amazing that these were the things that were in my heart when I was a little girl. I didn't learn this when I was a Senator. I can remember taking a bus when I was in the eighth grade down to the coast and looking at LaFourche Parish for the first time, and for a girl from the poor part of uptown, I kept looking at the nuns who took me, and I said: What world is this? I had no idea about Bayou LaFourche.

When I got to be a Senator, I remembered LaFourche, the bayou, and I remembered how fragile it looked to me even as a child, and I thought, if I can do anything to save this place, I will. I have spent a lot of my time saving it, and it is stronger now. It is still not completely safe, but it is much stronger now.

I tutored in public school. My passion started when the nuns of Ursuline sent me to tutor in a public school, and the little girl whom I tutored, who was my age, couldn't read. I can remember going home to my mother and saying: This is the strangest thing. I just met a little girl. She is my age, and she can't read. Mama, is that possible, that children don't know how to read?

I can remember her sitting me down and explaining to me why some children couldn't read, and I said: That doesn't seem right to me. I made up my mind then that I would work.

The reason I say this is because there are a lot of young people listening to this, and I just want you to know, just listen to your heart because God puts these things in your heart at very

young ages. If you don't block it out, if you are not cynical and if you hope and live openly, those dreams can come true. Then you can make a profound difference in rebuilding a school system, which I am continuing to work on, or make sure every orphan in the world knows that they are loved and that we are going to work hard to find them a family; to build this great gulf coast, where I spent my life growing up as a child and knowing that it is worth saving. It may not be as sexy as the west coast or as prosperous as the east coast, but the gulf coast is really worth fighting for. It is a very special place in our country. I learned to love it as a child, and I will fight for it as an adult.

Finally, let me just say a few thank-yous in closing. A thank-you to my mentor Lindy Boggs, who coached me every step of the way; to my mentor John Breaux, who got me into this gig in the first place.

I thank Bennett Johnston, who taught me about being a proud member of the Energy Committee; Senator Tom Daschle, who saved my skin more times than I can tell you; Kent Conrad, who taught me about the budget; Chris John and Jim McCrery and Richard Baker in my delegation, who were Democrats and Republicans—we worked together to do amazing things. I also thank CEDRIC RICHMOND, who still works closely with me, and CHARLES BOUSTANY, whom I admire a lot. I thank other Members who are no longer here: Olympia Snowe—we were the first two women to chair a major committee—well, actually a minor committee, the small business committee; and Lisa and I were the first to chair and be a ranking member of a major committee. I couldn't have worked with two more remarkable women. I thank Senator Joe Lieberman, who was a leader of the DLC and a great mentor of mine on foreign policy issues; Senator Ted Stevens, who was as grumpy as could be but really did take me under his wing and teach me a lot; Senator Danny Inouye; Senator Robert Byrd. And I am going to put others into the RECORD: Senators MIKULSKI, CARPER, HEITKAMP, MANCHIN, CANTWELL, BEGICH, PRYOR, and HAGAN.

I want to say a special word to the Black Caucus. I represent 30 percent African Americans in my State. You know, all groups of people are hard to represent, and my State is so diverse, and I have tried so hard to be respectful of all the different groups in my State.

I thank the Black Caucus—both the local elected officials and the National Black Caucus—for being such a great partner with me and helping me to understand about compassion, forgiveness, faithfulness, and for trust. Their spiritual strength is so amazing. I thank them very much for coming down to help me.

I thank labor, who brought me here. They encouraged me to run when I was 23 years old, and I tried to never leave them. Only 8 percent of my State is now organized. I have never left them. I think you should leave with the people who brought you to the dance, and they most certainly did.

I thank HARRY REID, who has been an amazing friend to me and who, most importantly, has been a great friend to my family. He has honored us in so many small ways, and I just love him for his tenacity and his leadership.

I thank you all. I hope I didn't leave anyone out. It has been a joy, but I know God is calling me to a different place. I am not the least bit sad and I am not the least bit afraid because it has been a remarkable opportunity to serve with all of you, and I thank you very much.

(Applause, Senators rising.)

The PRESIDING OFFICER (Mr. WALSH). The Senator from Louisiana.

TRIBUTE TO MARY LANDRIEU

Mr. VITTER. Mr. President, I rise to thank Senator LANDRIEU for her tireless service in the U.S. Senate to our State and to the country. I have had the pleasure of knowing MARY for a long time. She was in her second year of service in the Senate when I first came to Washington to the U.S. House, but it is far longer than that, probably longer than anyone in this Chamber realizes. Both sets of my grandparents live all of 3 blocks from where MARY grew up, and I grew up all of 10 blocks from there. MARY and my brother Jeff were grammar school classmates starting at kindergarten.

Of course, here in the Senate I had the honor of working with MARY on so many important issues and challenges. From the moment we worked together on key Louisiana issues, we determined on those issues to put aside any partisan concerns when those crucial priorities were at stake.

As she alluded to, the most challenging and trying time in all of that experience was just a few months after I first came to the Senate when Hurricanes Katrina and Rita struck. Neither of us could have ever imagined facing the challenges our State and Mississippi and others faced and facing the challenges we faced in the Senate trying to respond in a robust and full and responsible way. I am sure it was the most trying work for both of us in our careers.

Louisiana faced unprecedented disaster and desperation, and that brought us together all the more to work for those crucial Louisiana needs and priorities. We traveled together, of course, to see the damage and meet with our neighbors and local leaders all around the State. Her staff and mine worked directly together around-the-clock, really, for months, sometimes in my office, sometimes in hers, always with the same goal of doing everything possible to help our neighbors and Louisiana citizens get through that disaster and get through to a full recovery.

Those trials, of course, didn't end with Katrina and Rita. There were other similar challenges which brought us together and on which MARY was a distinguished leader. She was always a champion for domestic energy production, and Louisiana will enjoy a far fairer share of oil and gas revenue under the legislation commonly referred to as Domenici-Landrieu.

After the infamous BP oilspill in 2010, MARY pushed for the RESTORE Act legislation to dedicate revenue from the fines to oilspill recovery in the affected areas.

As Louisiana fights continually against the loss of coastal wetlands, major restoration work is moving forward because of MARY's years of hard work directly related to that.

Due to MARY's strong support of our Nation's military, our fighting men and women are better off. The bases in Louisiana, which are important to our communities and to the Nation's defense, continue to have what they need for their vital mission. Our veterans face challenges and most recently faced the crying need for new health care clinics in Louisiana, and MARY helped make those finally happen, finally move forward, including pushing the case fervently and directly to administration officials.

In a very personal and dramatic way, MARY is enthusiastic in promoting children's welfare and supporting adoption. Her dedication internationally was recognized when Russia banned her travel after her direct and well-founded criticism of Russia's action to curb adoption by Americans.

In all of this work, one thing is always crystal clear—certainly crystal clear to me—with Senator LANDRIEU: Louisiana has always been first in her heart and her top motivation, and she has had a distinguished career of service in the Senate on all of those issues I mentioned and many more. All of us in Louisiana gives her our sincere thanks for that.

Thank you, Mr. President. I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. Thank you, Mr. President.

With Senator MARY LANDRIEU's permission, I want to do a quick interlude to send a bill over to the House.

CENTRAL OREGON JOBS AND WATER SECURITY ACT

Mr. MERKLEY. I ask unanimous consent that the energy committee be discharged from further consideration of H.R. 2640 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The assistant legislative clerk read as follows:

A bill (H.R. 2640) to amend the Wild and Scenic Rivers Act to adjust the Crooked River boundary, to provide water certainty for the City of Prineville, Oregon, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. MERKLEY. Mr. President, I ask unanimous consent that the substitute amendment, which is at the desk, be agreed to; the bill, as amended, be read a third time and passed; and the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (No. 4094) in the nature of a substitute was agreed to.

(The amendment is printed in today's RECORD under ''Text of Amendments.'')

The amendment was ordered to be engrossed, and the bill to be read a third time.

The bill was read the third time.

The bill (H.R. 2640), as amended, was passed.

MESSAGES FROM THE HOUSE

At 11:32 a.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bill, with an amendment, in which it requests the concurrence of the Senate:

S. 2244. An act to extend the termination date of the Terrorism Insurance Program established under the Terrorism Risk Insurance Act of 2002, and for other purposes.

The message also announced that the House agrees to the amendment of the Senate to the bill (H.R. 1204) to amend title 49, United States Code, to direct the Assistant Secretary of Homeland Security (Transportation Security Administration) to establish an Aviation Security Advisory Committee, and for other purposes.

The message further announced that the House agrees to the amendment of the Senate to the bill (H.R. 2719) to require the Transportation Security Administration to implement best practices and improve transparency with regard to technology acquisition programs, and for other purposes.

The message also announced that the House agrees to the amendment of the Senate to the bill (H.R. 4681) to authorize appropriations for fiscal years 2014 and 2015 for intelligence and intelligence-related activities of the United States Government, the Community Management Account, and the Central Intelligence Agency Retirement and Disability System, and for other purposes.

The message further announced that the House agrees to the amendment of the Senate to the preamble of the resolution (H. Con. Res. 107) denouncing the use of civilians as human shields by Hamas and other terrorist organizations in violation of international humanitarian law, also, that the House agrees to the amendment of the Senate to the text of the concurrent resolution, further, that the House agrees to the amendment of the Senate to the title of the concurrent resolution.

The message also announced that the House has passed the following bills, without amendment:

S. 1000. An act to require the Director of the Office of Management and Budget to prepare a crosscut budget for restoration activities in the Chesapeake Bay watershed, and for other purposes.

S. 1683. An act to provide for the transfer of naval vessels to certain foreign recipients, and for other purposes.

S. 1691. An act to amend title 5, United States Code, to improve the security of the United States border and to provide for reforms and rate of pay for border patrol agents.

S. 2142. An act to impose targeted sanctions on persons responsible for violations of human rights of antigovernment protesters in Venezuela, to strengthen civil society in Venezuela, and for other purposes.

S. 2270. An act to clarify the application of certain leverage and risk-based requirements under the Dodd-Frank Wall Street Reform and Consumer Protection Act.

S. 2444. An act to authorize appropriations for the Coast Guard for fiscal year 2015, and for other purposes.

S. 2521. An act to amend chapter 35 of title 44, United States Code, to provide for reform to Federal information security.

S. 2651. An act to repeal certain mandates of the Department of Homeland Security Office of Inspector General.

The message further announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 5656. An act to authorize a comprehensive strategic approach for United States foreign assistance to developing countries to reduce global poverty and hunger, achieve food security and improved nutrition, promote sustainable agricultural-led economic growth, improve nutritional outcomes, especially for women and children, build resilience among vulnerable populations, and for other purposes.

H.R. 5810. An act to amend the United States Cotton Futures Act to exclude certain cotton futures contracts from coverage under such Act.

H.R. 5816. An act to extend the authorization for the United States Commission on International Religious Freedom.

The message also announced that the House has agreed to the following concurrent resolutions, in which it requests the concurrence of the Senate:

H. Con. Res. 123. Concurrent resolution directing the Clerk of the House of Representatives to make a correction in the enrollment of the bill H.R. 3979.

H. Con. Res. 124. Concurrent resolution providing for a correction in the enrollment of H.R. 5771.

The message further announced that pursuant to section 306(k) of the Public Health Service Act (42 U.S.C. 242k), and the order of the House of January 3, 2013, the Speaker reappoints the following individual on the part of the House of Representatives to the National Committee on Vital and Health Statistics for a term of 4 years: Dr. Vickie M. Mays of Los Angeles, California.

At 2:30 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bill, without amendment:

S. 2519. An act to codify an existing operations center for cybersecurity.

The message further announced that the House has passed the following bill, in which it requests the concurrence of the Senate:

H.R. 5742. An act to provide to the Secretary of the Interior a mechanism to cancel contracts for the sale of materials CA–20139 and CA–22901, and for other purposes.

The message also announced that the House agrees to the amendment of the Senate to the bill (H.R. 1281) to amend the Public Health Service Act to reauthorize programs under part A of title XI of such Act.

At 10:21 p.m., a message from the House of Representatives, delivered by Ms. Chiappardi, one of its reading clerks, announced that the House has passed the following joint resolution, in which it requests the concurrence of the Senate:

H.J. Res. 130. Joint resolution making further continuing appropriations for fiscal year 2015, and for other purposes.

The message further announced that the House has agreed to the following concurrent resolution, in which it requests the concurrence of the Senate:

H. Con. Res. 122. Concurrent resolution providing for a correction in the enrollment of H.R. 83.

The message also announced that the House agrees to the amendment of the Senate to the bill (H.R. 83) to require the Secretary of the Interior to assemble a team of technical, policy, and financial experts to address the energy needs of the insular areas of the United States and the Freely Associated States through the development of energy action plans aimed at promoting access to affordable, reliable energy, including increasing use of indigenous clean-energy resources, and for other purposes, with an amendment, in which it requests the concurrence of the Senate.

ENROLLED BILLS SIGNED

At 10:46 p.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the Speaker has signed the following enrolled bills:

S. 1000. An act to require the Director of the Office of Management and Budget to prepare a crosscut budget for restoration activities in the Chesapeake Bay watershed, and for other purposes.

S. 1683. An act to provide for the transfer of naval vessels to certain foreign recipients, and for other purposes.

S. 1691. An act to amend title 5, United States Code, to improve the security of the United States border and to provide for reforms and rate of pay for border patrol agents.

S. 2142. An act to impose targeted sanctions on persons responsible for violations of human rights of antigovernment protesters in Venezuela, to strengthen civil society in Venezuela, and for other purposes.

S. 2270. An act to clarify the application of certain leverage and risk-based requirements under the Dodd-Frank Wall Street Reform and Consumer Protection Act.

S. 2444. An act to authorize appropriations for the Coast Guard for fiscal year 2015, and for other purposes.

S. 2519. An act to codify an existing operations center for cybersecurity.

S. 2521. An act to amend chapter 35 of title 44, United States Code, to provide for reform to Federal information security.

S. 2651. An act to repeal certain mandates of the Department of Homeland Security Office of Inspector General.

S. 2759. An act to release the City of St. Clair, Missouri, from all restrictions, conditions, and limitations on the use, encumbrance, conveyance, and closure of the St. Clair Regional Airport.

H.R. 1067. An act to make revisions in title 36, United States Code, as necessary to keep the title current and make technical corrections and improvements.

H.R. 1204. An act to amend title 49, United States Code, to direct the Assistant Secretary of Homeland Security (Transportation Security Administration) to establish an Aviation Security Advisory Committee, and for other purposes.

H.R. 1281. An act to amend the Public Health Service Act to reauthorize programs under part A of title XI of such Act.

H.R. 1447. An act to encourage States to report to the Attorney General certain information regarding the deaths of individuals in the custody of law enforcement agencies, and for other purposes.

H.R. 2719. An act to require the Transportation Security Administration to implement best practices and improve transparency with regard to technology acquisition programs, and for other purposes.

H.R. 2952. An act to require the Secretary of Homeland Security to assess the cybersecurity workforce of the Department of Homeland Security and develop a comprehensive workforce strategy, and for other purposes.

H.R. 3044. An act to approve the transfer of Yellow Creek Port properties in luka, Mississippi.

H.R. 3374. An act to provide for the use of savings promotion raffle products by financial institutions to encourage savings, and for other purposes.

H.R. 3468. An act to amend the Federal Credit Union Act to extend insurance coverage to amounts held in a member account on behalf of another person, and for other purposes.

H.R. 4007. An act to recodify and reauthorize the Chemical Facility Anti-Terrorism Standards Program.

H.R. 4193. An act to amend title 5, United States Code, to change the default investment fund under the Thrift Savings Plan, and for other purposes.

H.R. 4199. An act to name the Department of Veterans Affairs medical center in Waco, Texas, as the ''Doris Miller Department of Veterans Affairs Medical Center''.

H.R. 4681. An act to authorize appropriations for fiscal years 2014 and 2015 for intelligence and intelligence-related activities of the United States Government, the Community Management Account, and the Central Intelligence Agency Retirement and Disability System, and for other purposes.

H.R. 4926. An act to designate a segment of Interstate Route 35 in the State of Minnesota as the ''James L. Oberstar Memorial Highway''.

H.R. 5705. An act to modify certain provisions relating to the Propane Education and Research Council.

ENROLLED JOINT RESOLUTION SIGNED

At 11:26 p.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the Speaker has signed the following enrolled joint resolution:

H.J. Res. 130. Joint resolution making further continuing appropriations for fiscal year 2015, and for other purposes.

The enrolled joint resolution was subsequently signed by the Acting President pro tempore (Mr. PRYOR).

MEASURES REFERRED

The following bill was read the first and the second times by unanimous consent, and referred as indicated:

H.R. 4573. An act to protect children from exploitation, especially sex trafficking in tourism, by providing advance notice of intended travel by registered child-sex offenders outside the United States to the government of the country of destination, requesting foreign governments to notify the United States when a known child-sex offender is seeking to enter the United States, and for other purposes; to the Committee on Foreign Relations.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–8083. A communication from the Under Secretary of Defense (Comptroller), transmitting, pursuant to law, the Department of Defense Response to the Government Accountability Office B–321387 relative to Antideficiency Act violations; to the Committee on Appropriations.

EC–8084. A communication from the Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''National Poultry Improvement Plan and Auxiliary Provisions; Technical Amendment'' ((RIN0579–AD83) (Docket No. APHIS–2011–0101)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Agriculture, Nutrition, and Forestry.

EC–8085. A communication from the Assistant Director, Senior Executive Management Office, Department of Defense, transmitting, pursuant to law, a report relative to a vacancy in the position of Assistant to the Secretary of Defense (Nuclear, Chemical, and Biological Defense Programs), Department of Defense, received in the Office of the President of the Senate on December 4, 2014; to the Committee on Armed Services.

EC–8086. A communication from the Assistant Director, Senior Executive Management Office, Department of Defense, transmitting, pursuant to law, a report relative to a vacancy in the position of Assistant Secretary of the Army (Financial Management), Department of the Army, received in the Office of the President of the Senate on December 4, 2014; to the Committee on Armed Services.

EC–8087. A communication from the Under Secretary of Defense (Personnel and Readiness), transmitting the report of an officer authorized to wear the insignia of the grade of rear admiral in accordance with title 10, United States Code, section 777; to the Committee on Armed Services.

EC–8088. A communication from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Updated Statements of Legal Authority for the Export Administration Regulations'' (RIN0694–AG39) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Banking, Housing, and Urban Affairs.

EC–8089. A communication from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Amendments to Existing Validated End-User Authorization in the People's Republic of China: Lam Research Service Co., Ltd.'' (RIN0694–AG36) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Banking, Housing, and Urban Affairs.

EC–8090. A communication from the General Counsel of the National Credit Union Administration, transmitting, pursuant to law, the report of a rule entitled ''Unfair or Deceptive Acts or Practices; Technical Amendments'' (RIN3133–AE42) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Banking, Housing, and Urban Affairs.

EC–8091. A communication from the Director, Office of Financial Research, Department of the Treasury, transmitting, pursuant to law, the Office of Financial Research's 2014 Annual Report to Congress; to the Committee on Banking, Housing, and Urban Affairs.

EC–8092. A communication from the Director, Fish and Wildlife Service, Department of the Interior, transmitting, pursuant to law, a report entitled ''Report to Congress on the Recovery of Threatened and Endangered Species Fiscal Years 2011–2012''; to the Committee on Environment and Public Works.

EC–8093. A communication from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Office of Energy Efficiency and Renewable Energy, Department of Energy, transmitting, pursuant to law, the report of a rule entitled ''Energy Conservation Program: Test Procedures for Commercial Clothes Washers'' ((RIN1904–AC93) (Docket No. EERE–2013–BT–TP–0002)) received in the Office of the President of the Senate on December 3, 2014; to the Committee on Energy and Natural Resources.

EC–8094. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Safe Harbor Explanations—Eligible Rollover Distributions'' (Notice 2014–74) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Finance.

EC–8095. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Rulings and Determination Letters'' (Rev. Proc. 2015–7) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Finance.

EC–8096. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Notice: Tier 2 Tax Rates 2015'' received in the Office of the President of the Senate on December 4, 2014; to the Committee on Finance.

EC–8097. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Realignment of Technical Work between the Tax Exempt and the Government Entities Division of Associate Chief Counsel (Tax Exempt and Government Entities)'' (Announcement 2014–34) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Finance.

EC–8098. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''2015 Section 1274A CPI Adjustments'' (Rev. Rul. 2014–30) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Finance.

EC–8099. A communication from the Assistant Legal Adviser for Treaty Affairs, Department of State, transmitting, pursuant to the Case-Zablocki Act, 1 U.S.C. 112b, as amended, the report of the texts and background statements of international agreements, other than treaties (List 2014–0162—2014–0176); to the Committee on Foreign Relations.

EC–8100. A communication from the Director of Regulations and Policy Management Staff, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Content and Format of Labeling for Human Prescription Drug and Biological Products; Requirements for Pregnancy and Lactation Labeling'' ((RIN0910–AF11) (Docket No. FDA–2006–N–0515; formerly Docket No. 2006N–0467)) received in the Office of the President of the Senate on December 8, 2014; to the Committee on Health, Education, Labor, and Pensions.

EC–8101. A communication from the Acting District of Columbia Auditor, transmitting, pursuant to law, a report entitled ''Certification of Fiscal Year 2015 Total Local Source General Fund Revenue Estimate (Net of Dedicated Taxes) in Support of the District's Issuance of General Obligation Bonds (Series 2014C and 2014D)''; to the Committee on Homeland Security and Governmental Affairs.

EC–8102. A communication from the Chairman of the Broadcasting Board of Governors, transmitting, pursuant to law, the Board's Performance and Accountability Report for fiscal year 2014; to the Committee on Homeland Security and Governmental Affairs.

EC–8103. A communication from the Chief Financial Officer, National Labor Relations Board, transmitting, pursuant to law, a report entitled ''Performance and Accountability Report for Fiscal Year 2014''; to the Committee on Homeland Security and Governmental Affairs.

EC–8104. A communication from the Board Members, Railroad Retirement Board, transmitting, pursuant to law, the Railroad Retirement Board's Performance and Accountability Report for Fiscal Year 2014, including the Office of Inspector General's Auditor's Report; to the Committee on Homeland Security and Governmental Affairs.

EC–8105. A communication from the Secretary of Education, transmitting, pursuant to law, the Department's Semiannual Report to Congress on Audit Follow-up for the period of April 1, 2014 through September 30, 2014; to the Committee on Homeland Security and Governmental Affairs.

EC–8106. A communication from the Chairman of the Broadcasting Board of Governors, transmitting, pursuant to law, the Office of Inspector General's Semiannual Report for the period of April 1, 2014 through September 30, 2014; to the Committee on Homeland Security and Governmental Affairs.

EC–8107. A communication from the Chief Executive Officer, Corporation for National and Community Service, transmitting, pursuant to law, the Semiannual Report of the Inspector General and the Corporation for National and Community Service's Response and Report on Final Action for the period from April 1, 2014 through September 30, 2014; to the Committee on Homeland Security and Governmental Affairs.

EC–8108. A joint communication from the Chairman and the General Counsel, National Labor Relations Board, transmitting, pursuant to law, the Office of Inspector General Semiannual Report for the period of April 1, 2014 through September 30, 2014; to the Committee on Homeland Security and Governmental Affairs.

EC–8109. A communication from the Chairman, Federal Maritime Commission, transmitting, pursuant to law, the Commission's Semiannual Report of the Inspector General for the period from April 1, 2014 through September 30, 2014; to the Committee on Homeland Security and Governmental Affairs.

EC–8110. A communication from the Special Counsel, United States Office of the Special Counsel, transmitting, pursuant to law, the Office of Special Counsel's Performance and Accountability Report for fiscal year 2014; to the Committee on Homeland Security and Governmental Affairs.

EC–8111. A communication from the Chief of Staff, Media Bureau, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Section 73.202(b), Table of Allotments, FM Broadcast Stations. (Rough Rock, Arizona)'' ((MB Docket No. 14–46) (DA 14–1334)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8112. A communication from the Departmental Freedom of Information and Privacy Act Officer, Office of the Secretary, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Public Information, Freedom of Information Act and Privacy Act Regulations; Correction'' (RIN0605–AA33) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8113. A communication from the Departmental Freedom of Information and Privacy Act Officer, Office of the Secretary, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Public Information, Freedom of Information Act and Privacy Act Regulations'' (RIN0605–AA33) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8114. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Elizabeth River; Portsmouth, VA'' ((RIN1625–AA00) (Docket No. USCG–2014–0693)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8115. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; University of Cincinnati Bearcats Football Fireworks; Ohio River, Mile 470.4–470.8; Cincinnati, OH'' ((RIN1625–AA00) (Docket No. USCG–2014–0419)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8116. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Natchez Specialties New Year's Eve Firework Display, Lower Mississippi River, Mile Marker, (MM) 363.5 to 364.5'' ((RIN1625–AA00) (Docket No. USCG–2014–0242)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8117. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Carquinez Strait Cable Repair Operation, Martinez, CA'' ((RIN1625–AA00) (Docket No. USCG–2014–0950)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8118. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Regulated Navigation Area, Lake Michigan; Chicago Harbor Lock, Chicago, IL to Calumet Harbor, Chicago, IL'' ((RIN1625–AA11) (Docket No. USCG–2014–0592)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8119. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Drawbridge Operation Regulation; Darby Creek, Essington, PA'' ((RIN1625–AA09) (Docket No. USCG–2014–0367)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8120. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Changes to the Inland Navigation Rules, Technical, Organizational, and Conforming Amendments'' ((RIN1625–AB88) (Docket No. USCG–2012–0102)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8121. A communication from the Senior Counsel, Wireless Telecommunications Commission, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''2004 and 2006 Biennial Regulatory Reviews—Streamlining and Other Revisions of Parts 1 and 17 of the Commission's Rules Governing Construction, Marking and Lighting of Antenna Structures; Amendments to Modernize and Clarify Part 17 of the Commission's Rules Concerning Construction, Marking and Lighting of Antenna Structures'' ((WT Docket No. 10–88; RM 11349) (FCC 14–117)) received during adjournment of the Senate in the Office of the President of the Senate on December 5, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8122. A communication from the Administrator, Transportation Security Administration, Department of Homeland Security, transmitting, pursuant to law, a report relative to the Administration's decision to enter into a contract with a private security screening company to provide screening services at Sarasota-Bradenton International Airport (SRQ); to the Committee on Commerce, Science, and Transportation.

EC–8123. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Pier Removal, WI Central Railroad Bridge, Fox River, Green Bay, WI'' ((RIN1625–AA00) (Docket No. USCG–2014–0902)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8124. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Salvage Operations, Lake Michigan, Navy Pier, Chicago, IL'' ((RIN1625–AA00) (Docket No. USCG–2014–0980)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8125. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Upper Mississippi River between mile 44 and 46; Thebes, IL'' ((RIN1625–AA00) (Docket No. USCG–2014–0878)) received

in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8126. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Upper Mississippi River between mile 38.0 and 46.0, Thebes IL; and between mile 78.0 and 81.0, Grand Tower, IL'' ((RIN1625–AA00) (Docket No. USCG–2014–0907)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8127. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Salvage Operations, Chicago River, Chicago, IL'' ((RIN1625–AA00) (Docket No. USCG–2014–0951)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8128. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Security Zone; USCGC Hamilton Commissioning Ceremony, Charleston Harbor, Charleston, SC'' ((RIN1625–AA87) (Docket No. USCG–2014–0698)) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8129. A communication from the Deputy Assistant Administrator for Regulatory Programs, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Coastal Migratory Pelagic Resources in the Gulf of Mexico and Atlantic Region; Framework Amendment 1'' (RIN0648–BE31) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8130. A communication from the Deputy Assistant Administrator for Regulatory Programs, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Coastal Migratory Pelagic Resources in the Gulf of Mexico and Atlantic Region; Framework Action'' (RIN0648–BD58) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8131. A communication from the Deputy Assistant Administrator for Regulatory Programs, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''International Fisheries; Western and Central Pacific Fisheries for Highly Migratory Species; Fishing Effort Limits in Purse Seine Fisheries for 2014'' (RIN0648–BD94) received in the Office of the President of the Senate on December 4, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8132. A communication from the Acting Director of the Regulation Policy and Management Office of the General Counsel, Veterans Health Administration, Department of Veterans Affairs, transmitting, pursuant to law, the report of a rule entitled ''Home Improvements and Structural Alterations (HISA) Benefits Program'' (RIN2900–AO17) received in the Office of the President of the Senate on December 3, 2014; to the Committee on Veterans' Affairs.

EC–8133. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Hexythiazox; Pesticide Tolerance for Emergency Exemptions'' (FRL No. 9919–69) received in the Office of the President of the Senate on December 9, 2014; to the Committee on Agriculture, Nutrition, and Forestry.

EC–8134. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''C.I. Pigment Yellow 1; Exemption from the Requirement of a Tolerance'' (FRL No. 9919–40) received in the Office of the President of the Senate on December 9, 2014; to the Committee on Agriculture, Nutrition, and Forestry.

EC–8135. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Diisopropanolamine; Exemption from the Requirement of a Tolerance'' (FRL No. 9919–34) received in the Office of the President of the Senate on December 9, 2014; to the Committee on Agriculture, Nutrition, and Forestry.

EC–8136. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Alpha-cypermethrin; Pesticide Tolerances'' (FRL No. 9919–88) received in the Office of the President of the Senate on December 9, 2014; to the Committee on Agriculture, Nutrition, and Forestry.

EC–8137. A communication from the Director of Defense Procurement and Acquisition Policy, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: Deletion of Certification Requirement Regarding Separation of Duties of Senior Leaders'' ((RIN0750–AI48) (DFARS Case 2015–D003)) received in the Office of the President of the Senate on December 10, 2014; to the Committee on Armed Services.

EC–8138. A communication from the Director of Defense Procurement and Acquisition Policy, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: Foreign Commercial Satellite Services'' ((RIN0750–AI32) (DFARS Case 2014–D010)) received in the Office of the President of the Senate on December 10, 2014; to the Committee on Armed Services.

EC–8139. A communication from the Director of Defense Procurement and Acquisition Policy, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: State Sponsors of Terrorism'' ((RIN0750–AI34) (DFARS Case 2015–D014)) received in the Office of the President of the Senate on December 10, 2014; to the Committee on Armed Services.

EC–8140. A communication from the Director of Defense Procurement and Acquisition Policy, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: Update Contractor and Government Entity (CAGE) Code Information'' ((RIN0750–AI44) (DFARS Case 2014–D013)) received in the Office of the President of the Senate on December 10, 2014; to the Committee on Armed Services.

EC–8141. A communication from the Director of Defense Procurement and Acquisition Policy, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: Elimination of Quarterly Reporting of Actual Performance Outside the United States'' ((RIN0750–AI47) (DFARS Case 2015–D001)) received in the Office of the President of the Senate on December 10, 2014; to the Committee on Armed Services.

EC–8142. A communication from the Director of Defense Procurement and Acquisition Policy, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: Animal Welfare'' ((RIN0750–AI22) (DFARS Case 2015–D038)) received in the Office of the President of the Senate on December 10, 2014; to the Committee on Armed Services.

EC–8143. A communication from the Director of Defense Procurement and Acquisition Policy, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: Use of Military Construction Funds in Countries Bordering the Arabian Sea'' ((RIN0750–AI33) (DFARS Case 2015–D016)) received in the Office of the President of the Senate on December 10, 2014; to the Committee on Armed Services.

EC–8144. A communication from the Director of Defense Procurement and Acquisition Policy, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: Forward Pricing Rate Proposal Adequacy Checklist'' ((RIN0750–AH86) (DFARS Case 2015–D035)) received in the Office of the President of the Senate on December 10, 2014; to the Committee on Armed Services.

EC–8145. A communication from the Under Secretary for Industry and Security, Department of Commerce, transmitting, pursuant to law, a Foreign Policy Report entitled ''Report to the Congress: Expansion of the Microprocessor Military End Use and End User Control''; to the Committee on Banking, Housing, and Urban Affairs.

EC–8146. A communication from the Senior Counsel, Bureau of the Fiscal Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Regulations Governing Retirement Savings Bonds'' (31 CFR Part 347) received in the Office of the President of the Senate on December 10, 2014; to the Committee on Banking, Housing, and Urban Affairs.

EC–8147. A communication from the Secretary of Commerce, transmitting, pursuant to law, a report relative to the export to the People's Republic of China of items not detrimental to the U.S. space launch industry; to the Committee on Banking, Housing, and Urban Affairs.

EC–8148. A communication from the Attorney-Advisor, Office of the General Counsel, Department of Transportation, transmitting, pursuant to law, a report relative to a vacancy in the position of Administrator, National Highway Traffic Safety Administration, Department of Transportation, received in the Office of the President of the Senate on December 9, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8149. A communication from the Federal Register Officer, Bureau of Ocean Energy Management, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''Consumer Price Index Adjustments of the Oil Pollution Act of 1990 Limit of Liability for Offshore Facilities'' (RIN1010–AD87) received in the Office of the President of the Senate on December 9, 2014; to the Committee on Commerce, Science, and Transportation.

EC–8150. A communication from the Director, Office of Surface Mining, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''North Dakota Regulatory Program'' ((SATS No. ND–052–FOR) (Docket No. OSM–2012–0021)) received in the Office of the President of the Senate on December 10, 2014; to the Committee on Energy and Natural Resources.

EC–8151. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; Wisconsin; Nitrogen Oxide Combustion Turbine Alternative Control Requirements for the Milwaukee-Racine Former Nonattainment Area'' (FRL No. 9920–20–Region 5) received in the Office of the President of the Senate on December 9, 2014; to the Committee on Environment and Public Works.

EC–8152. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Revisions to the California State Implementation Plan, Antelope Valley Air Quality Management District and South Coast Air Quality Management District'' (FRL No. 9919–76–Region 9) received in the Office of the President of the Senate on December 9, 2014; to the Committee on Environment and Public Works.

EC–8153. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; Indiana; Open Burning Rule'' (FRL No. 9920–15–Region 5) received in the Office of the President of the Senate on December 9, 2014; to the Committee on Environment and Public Works.

EC–8154. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans and Designation of Areas for Air Quality Planning Purposes; Indiana; Redesignation of Lake and Porter Counties to Attainment of the 2008 Eight-Hour Ozone Standard'' (FRL No. 9920–14–Region 5) received in the Office of the President of the Senate on December 9, 2014; to the Committee on Environment and Public Works.

EC–8155. A communication from the Secretary of Labor, transmitting, pursuant to law, the Department of Labor's Semiannual Report of the Inspector General for the period from April 1, 2014 through September 30, 2014; to the Committee on Homeland Security and Governmental Affairs.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. NELSON, from the Special Committee on Aging:

Special Report entitled ''Fighting Fraud: Lessons Learned from the Senate Aging Committee's Consumer Hotline'' (Rept. No. 113–305).

By Mr. NELSON, from the Special Committee on Aging:

Special Report entitled ''Medicare Part D Prescription Drug Benefit: Increasing Use and Access of Affordable Prescription Drugs'' (Rept. No. 113–306).

By Ms. LANDRIEU, from the Committee on Energy and Natural Resources, with an amendment in the nature of a substitute:

S. 1784. A bill to improve timber management on Oregon and California Railroad and Coos Bay Wagon Road grant land, and for other purposes (Rept. No. 113–307).

By Mrs. BOXER, from the Committee on Environment and Public Works, without amendment:

S. 1463. A bill to amend the Lacey Act Amendments of 1981 to prohibit importation, exportation, transportation, sale, receipt, acquisition, and purchase in interstate or foreign commerce, or in a manner substantially affecting interstate or foreign commerce, of any live animal of any prohibited wildlife species (Rept. No. 113–308).

By Mr. MENENDEZ, from the Committee on Foreign Relations, without amendment:

H.R. 4573. A bill to protect children from exploitation, especially sex trafficking in tourism, by providing advance notice of intended travel by registered child-sex offenders outside the United States to the government of the country of destination, requesting foreign governments to notify the United States when a known child-sex offender is seeking to enter the United States, and for other purposes.

By Mr. MENENDEZ, from the Committee on Foreign Relations, with an amendment in the nature of a substitute and with an amended preamble:

S. Res. 595. A resolution recognizing Nobel Laureates Kailash Satyarthi and Malala Yousafzai for their efforts to end the financial exploitation of children and to ensure the right of all children to an education.

By Mr. MENENDEZ, from the Committee on Foreign Relations, without amendment and with a preamble:

S. Res. 597. A resolution commemorating and supporting the goals of World AIDS day.

By Mr. MENENDEZ, from the Committee on Foreign Relations, with an amendment:

S. 2922. A bill to reinstate reporting requirements related to United States-Hong Kong relations.

By Mr. MENENDEZ, from the Committee on Foreign Relations, with an amendment in the nature of a substitute:

S. Con. Res. 38. A concurrent resolution expressing the sense of Congress that Warren Weinstein should be returned home to his family.

EXECUTIVE REPORTS OF COMMITTEES

The following executive reports of nominations were submitted:

By Ms. LANDRIEU for the Committee on Energy and Natural Resources.

*Colette Dodson Honorable, of Arkansas, to be a Member of the Federal Energy Regulatory Commission for the remainder of the term expiring June 30, 2017.

By Mr. MENENDEZ for the Committee on Foreign Relations.

Leslie Berger Kiernan, of Maryland, as an Alternate Representative of the United States of America, to the Sixty-ninth Session of the General Assembly of the United Nations.

Antony Blinken, of New York, to be Deputy Secretary of State.

Mr. MENENDEZ. Mr. President, for the Committee on Foreign Relations I report favorably the following nomination list which was printed in the RECORD on the date indicated, and ask unanimous consent, to save the expense of reprinting on the Executive Calendar that this nomination lie at the Secretary's desk for the information of Senators.

The PRESIDING OFFICER. Without objection, it is so ordered.

Foreign Service nominations beginning with Melinda Masonis and ending with Jeffrey R. Zihlman, which nominations were received by the Senate and appeared in the Congressional Record on April 10, 2014.

By Mr. LEAHY for the Committee on the Judiciary.

Joan Marie Azrack, of New York, to be United States District Judge for the Eastern District of New York.

Elizabeth K. Dillon, of Virginia, to be United States District Judge for the Western District of Virginia.

Loretta Copeland Biggs, of North Carolina, to be United States District Judge for the Middle District of North Carolina.

Michael P. Botticelli, of the District of Columbia, to be Director of National Drug Control Policy.

*Nomination was reported with recommendation that it be confirmed subject to the nominee's commitment to respond to requests to appear and testify before any duly constituted committee of the Senate.

(Nominations without an asterisk were reported with the recommendation that they be confirmed.)

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. VITTER:

S. 2998. A bill to allow for the portability of funds under title I of the Elementary and Secondary Education Act of 1965; to the Committee on Health, Education, Labor, and Pensions.

By Mr. WHITEHOUSE (for himself and Mr. GRASSLEY):

S. 2999. A bill to reauthorize and improve the Juvenile Justice and Delinquency Prevention Act of 1974, and for other purposes; to the Committee on the Judiciary.

By Mr. HATCH:

S. 3000. A bill to establish the Hurricane Sand Dunes National Recreation Area in the State of Utah, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. TESTER (for himself and Mr. MORAN):

S. 3001. A bill to amend title 5, United States Code, to provide leave to any new Federal employee who is a veteran with a service-connected disability rated at 30 percent or more for purposes of undergoing medical treatment for such disability, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Ms. STABENOW (for herself, Mr. LEVIN, Mr. BROWN, and Ms. BALDWIN):

S. 3002. A bill to control the spread of aquatic invasive species between the Great Lakes basin and the Mississippi River basin, and for other purposes; to the Committee on Environment and Public Works.

By Mr. COBURN:

S. 3003. A bill to protect the Social Security Disability Insurance program and provide other support for working disabled Americans, and for other purposes; to the Committee on Finance.

By Mr. HATCH (for himself and Mr. BENNET):

S. 3004. A bill to promote the development of meaningful treatments for patients; to the Committee on Health, Education, Labor, and Pensions.

By Mr. CARDIN:

S. 3005. A bill to amend the Internal Revenue Code of 1986 to provide for a progressive consumption tax and to reform the income tax, and for other purposes; to the Committee on Finance.

By Mr. MORAN:

S. 3006. A bill to require the Secretary of Veterans Affairs to use existing authorities to furnish health care at non-Department of Veterans Affairs facilities to veterans who live more than 40 miles driving distance

from the closest medical facility of the Department that furnishes the care sought by the veteran; to the Committee on Veterans' Affairs.

By Ms. KLOBUCHAR (for herself and Mr. HEINRICH):

S. 3007. A bill to amend title XIX of the Social Security act to extend the application of the Medicare payment rate floor to primary care services furnished under Medicaid and to apply the rate floor to additional providers of primary services; to the Committee on Finance.

By Mr. WHITEHOUSE:

S. 3008. A bill to extend temporarily the extended period of protection for members of uniformed services relating to mortgages, mortgage foreclosure, and eviction, and for other purposes; considered and passed.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. TOOMEY (for himself and Mr. CASEY):

S. Res. 599. A resolution recognizing the 100-year anniversary of Big Brothers Big Sisters Southeastern Pennsylvania; considered and agreed to.

ADDITIONAL COSPONSORS

S. 313

At the request of Mr. CASEY, the name of the Senator from Colorado (Mr. BENNET) was added as a cosponsor of S. 313, a bill to amend the Internal Revenue Code of 1986 to provide for the tax treatment of ABLE accounts established under State programs for the care of family members with disabilities, and for other purposes.

S. 1445

At the request of Mr. PRYOR, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of S. 1445, a bill to amend the Public Health Service Act to provide for the participation of optometrists in the National Health Service Corps scholarship and loan repayment programs, and for other purposes.

S. 1695

At the request of Ms. CANTWELL, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 1695, a bill to designate a portion of the Arctic National Wildlife Refuge as wilderness.

S. 2301

At the request of Mr. HATCH, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 2301, a bill to amend section 2259 of title 18, United States Code, and for other purposes.

S. 2828

At the request of Mr. MENENDEZ, the names of the Senator from Ohio (Mr. BROWN) and the Senator from Oregon (Mr. MERKLEY) were added as cosponsors of S. 2828, a bill to impose sanctions with respect to the Russian Federation, to provide additional assistance to Ukraine, and for other purposes.

S. 2930

At the request of Mr. MCCAIN, the names of the Senator from Alabama (Mr. SESSIONS), the Senator from Texas (Mr. CORNYN), the Senator from Arizona (Mr. FLAKE) and the Senator from Minnesota (Ms. KLOBUCHAR) were added as cosponsors of S. 2930, a bill to direct the Secretary of Defense and the Secretary of Veterans Affairs to provide for the conduct of an evaluation of mental health care and suicide prevention programs of the Department of Defense and the Department of Veterans Affairs, to require a pilot program on loan repayment for psychiatrists who agree to serve in the Veterans Health Administration of the Department of Veterans Affairs, and for other purposes.

S. 2941

At the request of Mrs. FEINSTEIN, the name of the Senator from Illinois (Mr. KIRK) was added as a cosponsor of S. 2941, a bill to combat human trafficking.

S. 2990

At the request of Ms. CANTWELL, the name of the Senator from Rhode Island (Mr. REED) was added as a cosponsor of S. 2990, a bill to establish a State Trade and Export Promotion Grant Program.

S. RES. 595

At the request of Mr. HARKIN, the name of the Senator from Illinois (Mr. DURBIN) was added as a cosponsor of S. Res. 595, a resolution recognizing Nobel Laureates Kailash Satyarthi and Malala Yousafzai for their efforts to end the financial exploitation of children and to ensure the right of all children to an education.

S. RES. 597

At the request of Mr. COONS, the names of the Senator from Illinois (Mr. DURBIN) and the Senator from Georgia (Mr. ISAKSON) were added as cosponsors of S. Res. 597, a resolution commemorating and supporting the goals of World AIDS day.

AMENDMENT NO. 4091

At the request of Mr. SCHATZ, the names of the Senator from Ohio (Mr. BROWN) and the Senator from West Virginia (Mr. MANCHIN) were added as cosponsors of amendment No. 4091 intended to be proposed to H.R. 3979, a bill to amend the Internal Revenue Code of 1986 to ensure that emergency services volunteers are not taken into account as employees under the shared responsibility requirements contained in the Patient Protection and Affordable Care Act.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. COBURN:

S. 3003. A bill to protect the Social Security Disability Insurance program and provide other support for working disabled Americans, and for other purposes; to the Committee on Finance.

Mr. COBURN. Mr. President, as a father, grandfather, and doctor, there are few issues that are more important to me than making sure Social Security benefits are protected for both current and future generations. While both the Social Security Disability Insurance program and the Social Security Insurance program will be exhausted during my kids' lifetime, the disability program's finances are particularly dire.

Since 2005, the disability trust fund has paid out more in benefits each year than taxpayers pay back in. Last year alone the shortfall was $32 billion. As a result, the trust fund will run out of money by 2016, after which the Social Security Administration, the ''Agency,'' will only be able to pay 81 percent of disability benefits to the 11 million Americans currently dependent on them. This outcome is unacceptable.

Faced with the impending insolvency of the disability program, politicians have debated the principal causes of the trust fund's rapidly expanding shortfall. Some argue the program does not need reform, believing that the increase in the disability rolls is due to factors beyond our control. Citing aging baby-boomers and the rise of women in the workplace, opponents of reform argue that dramatically rising disability spending was and is unavoidable.

That is simply wrong. Since 1989, the percentage of working-age Americans receiving disability benefits has more than doubled, while the percentage of Americans reporting a work limitation has remained fairly stable. A paper published by the Center for American Progress and the Brookings Institution noted that even among middle-aged men, the fraction receiving disability benefits has risen by 45 percent since 1988.

A significant driver of the program's increased cost is fraud, waste, and abuse. Over the past 4 years, the U.S. Senate Committee on Homeland Security and Governmental Affairs, the ''committee'', and the U.S. Senate Permanent Subcommittee on Investigations, the ''subcommittee'' have conducted several bipartisan investigations into aspects of the Agency's disability programs and uncovered significant problems with the program that Congress and the Agency need to correct.

In 2012, the subcommittee looked at a random sample of 300 disability cases and found that one-quarter of the decisions made by the Agency were not supported by the medical record. Much of this was the result of the Agency's poor supervision of its 1,500 Administrative Law Judges ''ALJs''. This was not just the subcommittee's judgment; the Agency agreed. After conducting its own study, SSA similarly found that 23 percent of ALJ decisions nationally were not supported by the record.

In 2013, the Committee issued a report showing how the disability programs could be gamed by attorneys, doctors, and ALJs. The report detailed how attorney Eric C. Conn, ALJ David

Daugherty, and several doctors conspired to manufacture fraudulent medical evidence to award benefits. Mr. Conn got rich and also paid a few doctors millions of dollars to sign fraudulent medical evidence, which Judge Daugherty then used to approve claims without a hearing. The result of their plan was millions in potentially fraudulent disability awards. Mr. Conn became the third highest-paid disability attorney in the country, and we found a number of large, unexplained cash deposits in Judge Daugherty's bank accounts that were not reported on his taxes or his public disclosures.

Both reports highlighted how the Agency's push to reduce the hearings backlog came with significant costs: the Agency paid little regard to the quality of decisions being made by ALJs, and focused only on encouraging ALJs to decide as many cases as possible.

The Agency's Office of Inspector General recently issued a report estimating that a group of high-approving judges granted at least $2 billion in improper benefits. As a result, the Agency will pay out another $273 million in improper benefits each year.

This is only a sample of the work the Committee and Subcommittee have done in the last few years, and it does not crack the surface of the excellent work done by the Agency's Office of Inspector General, including uncovering huge fraud schemes in New York and Puerto Rico.

The program's antiquated, subjective, and ambiguous rules make it easier for lawyers, doctors and claimants to game the system.

Changes in program criteria used to determine eligibility for benefits has made determinations less objective. Researchers at the National Bureau of Economic Research attributed 53 percent of growth for men and 38 percent of growth for women not to age, workforce participation, or economic factors, but to weakened eligibility criteria.

Since changes by Congress in 1984, the Social Security Administration no longer makes benefit decisions based strictly on medical evidence, but instead determines whether vocational factors such as age, education, and skills prevent an individual from working ''any job in the national economy,'' a standard that should be hard to meet. But the number of applicants approved based on this standard has more than doubled.

Eligibility criteria are not the only rules that can be gamed. Most recently, I examined how some claimant representatives systematically withhold medical evidence from the Agency to help their clients win benefits and engage in other misconduct to pad their pockets and clog the disability program.

What I found is a program that offers backward incentives for everyone from the applicant and representatives to the beneficiaries. Because the program accepts applicants only after they quit their job, and provides them with rehabilitation services only after they start receiving benefits, applicants must leave their job and often go years before they receive services they need. Because beneficiaries will lose their benefits if they make too much money, there are discouraged from working to their abilities. Because the program rewards representatives only if they win, and awards greater fees the longer the case sits, representatives hide bad evidence, delay decisions, and provide poor representation to disabled Americans.

For most Americans, disability benefits should not continue indefinitely for their lifetime. Yet only one-half of 1 percent of individuals on disability rolls leave because they have returned to work and earned over the amount allowable by the Agency.

Additionally, scholars believe 23 percent of applicants are on the margin of program entry—that is, whether they are awarded benefits depends on who reviews their case. Accordingly, there is a relatively high percentage of beneficiaries that can work, but choose not to, either because they do not want to lose their benefits, both monetary and Medicare, or because they need supports that are not currently offered to them.

Our Federal laws, including the Americans with Disabilities Act and dozens of Federal work programs, are designed to assist disabled Americans in leading integrated, self-sufficient lives. Yet we have failed to target and coordinate the resources they need before they have to leave their jobs. The Social Security Advisory Board, SSAB attributes Ticket to Work's low success rate to the fact that intervention ''comes too late in the process—after the individual's connection to employment has been severed and frequently after the individual has undergone a lengthy process of proving inability to work.''

According to the SSAB, ''focusing all of the return-to-work efforts inside the structure of the disability program seems to be too late for many individuals. In order for the intervention to be effective, it needs to occur before the individual comes to SSA, before he applies for SSDI or SSI, and before the attachment to the workforce is lost.'' The SSAB has advocated for comprehensive front-end services, arguing they are ''a real chance to access tailored services that can enhance return to work efforts.''

When the trust fund is exhausted in 2016, many Members of Congress will say we just need to move funds from the Social Security retirement program

Let me be clear: this is not a solution; it is a Band-Aid, a temporary fix that takes money away from seniors and will eventually hurt taxpayers when both funds go broke in 2033.

I hope there will be a rigorous debate in the next year about how we can better serve disabled Americans with a program that gives them the resources they need to work to the extent they are able and protects benefits for those who are forced to rely on them. The disability program is an important safety net, but it does not serve the disabled or the taxpayers to treat it like an early retirement program or long-term unemployment.

This is a conversation that will take place after I have left the Senate. Accordingly, after 4 years of research, investigations, and thoughtful meetings with other interested, engaged parties, today I am offering a bill I believe can be used as a blueprint to shore up the fund before its exhaustion in 2016, fix systemic problems with the program, and provide targeted resources for the millions of disabled Americans who want to work to the best of their abilities.

The Protecting Social Security Disability Act of 2014 was drafted with three goals in mind: first, to make systemic changes to the program that preserve it for future generations; second, to ensure benefits are adequate and quickly available for those who need them by adding program integrity measures that root out fraud, waste and abuse; and third, to provide resources and incentives to those disabled Americans who want to work and have the ability to do so.

Mr. President, I ask unanimous consent that the section-by-section summary of the bill be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

II. SECTION-BY-SECTION SUMMARY OF THE BILL

Title: To protect the Social Security Disability Insurance program and provide other support for working disabled Americans, and for other purposes.

Short Title: Protecting Social Security Disability Act of 2014

TITLE I—ENSURING THE LONG-TERM SOLVENCY OF THE DISABILITY INSURANCE TRUST FUND

Sec. 101. Application of actuarial reduction for disabled beneficiaries who attain early retirement age.

Requires that disabled worker beneficiaries be converted to retired worker status at the Earliest Eligibility Age.

Any individuals who are categorized as Medical Improvement Not Expected (see below) are exempt.

Sec. 102. Reviews and time-limiting of disability benefits.

Disability Classifications. Mandates that all beneficiaries be classified as follows when they are admitted on to the rolls:

Medical Improvement Expected (MIE, improvement within 1–2 years);

Medical Improvement Likely (MIL, improvement within 3–5 years);

Medical Improvement Possible (MIP, improvement not likely to be within 5 years, but improvement is possible); and

Medical Improvement Not Expected (MINE, there is no known effective treatment). Age may not be used as a factor to categorize someone in the MINE category who otherwise would not be.

Continuing Disability Reviews.

MILs and MIPs will have mandatory full medical continuing disability reviews during

the 5th year and 7th year of benefits, respectively.

Any individual may be subject to an earlier review if the Commissioner of Social Security has reason to believe the individual is not under a disability, but such a review cannot be initiated on the basis of income earned under Section 301 (below).

Reviews under this paragraph are in addition to, and do not substitute for, other reviews required by the Social Security Act.

The standard of review will be the same as conducted for an initial determination, rather than the medical improvement standard, except that any income the individual is now earning under Section 301 (below) will not be considered.

Time-limiting Disability Benefits for MIE Individuals.

Benefits will be time-limited to 3 years for MIEs.

MIEs may file a timely reapplication for benefits during the last twelve to fourteen months of their benefit period.

Notwithstanding the above, a reapplication may be deemed timely if the individual can show good cause for failure to submit during the period described above and it is submitted no later than 6 months before the end of the termination month applicable.

There will be no waiting period for benefits/Medicare if an individual's timely reapplication is approved.

If an initial decision has not been made on a timely reapplication when the individual's benefit term ends, the individual's benefits will continue until an initial determination is made.

If an final decision has not been made on a timely reapplication when the individual's benefit term ends, and the individual requests a hearing to review an unfavorable initial decision, the individual may request to have benefits extended until a hearing decision is made. If the individual is determined not to be disabled, any benefits paid after benefit term has ceased will be considered overpayments.

A previous award of benefits shall have no bearing on the reapplication, and the continuing disability review rules do not apply.

Sec. 103. Adjustment of age criteria for social security disability insurance medical-vocational guidelines.

Age cannot be considered as a factor using the grids for any individual aged less than the Normal Retirement Age minus 12 years. This means every time the Normal Retirement Age is increased, so too will the age for disability purposes.

SSA must consider the share and ages of individuals currently participating in the labor force and the number and types of jobs available in the current economy when considering vocational factors.

Starting in two years, and every year thereafter, SSA must keep a current jobs list so examiners are considering the current economy when determining whether an individual can work any job in the national economy.

Sec. 104. Mandatory collection of negotiated civil monetary penalties.

Mandates SSA collect the penalties negotiated by the Inspector General in cases of fraud by beneficiaries.

Sec. 105. Required electronic filing of wage withholding returns.

Requires that all W–2s be submitted electronically but provides a hardship exemption for small businesses with 25 employees or less for the first five years, and then moving to 5 employees or less after that.

TITLE II—PROGRAM INTEGRITY: REFORMING STANDARDS AND PROCEDURES FOR DISABILITY HEARINGS, MEDICAL EVIDENCE, AND CLAIMANT REPRESENTATIVES

Sec. 201. Elimination of reconsideration review level for an initial adverse determination of an application for disability insurance benefits.

Removes the reconsideration review in the remaining states that still have it so cases can move quickly to a hearing before an ALJ.

Sec. 202. Deadline for submission of medical evidence; exclusion of certain medical evidence.

Closing the Record. Prevents SSA from considering evidence submitted less than 5 days before a hearing with an ALJ and provides a ''good cause'' standard for failing to meet that deadline that is the same as used in federal court. In no case can evidence be submitted if it was obtained after the ALJ's decision or submitted 1 year after an ALJ's decision.

Applicants, their representative, or a disability hearing attorney (defined in section 203 below) may request that a hearing be postponed to complete the record for no more than 30 days if it is made at least 7 days prior to the hearing date and if the party shows good cause.

Exclusion of Medical Evidence. Makes it clear that claimants and their representatives must submit all known, relevant medical evidence to SSA, whether the evidence is favorable or unfavorable, and requires that claimants certify to the ALJ at a hearing that they have done so. Evidence may not be considered otherwise. There is an exception for attorney-client privileged communications. It also provides clear civil and criminal penalties for the failure to follow these rules.

Prohibits SSA from considering evidence furnished by a physician who is not licensed, has been sanctioned, or is under investigation for ethical misconduct.

Sec. 203. Non-adversarial disability hearing attorneys.

Creates a disability hearing attorney position to develop the record, represent the government in hearings where the claimant has representation, recommend on the record decisions where clearly warranted, and to refer cases to the Appeals Council if they disagree with the ALJ's grant of benefits.

Requires the Agency to properly vet and train the staff.

Sec. 204. Procedural rules for hearings.

Requires SSA to create and publish procedural rules for hearings.

Allows ALJs to impose certain fines and other sanctions for failure to follow these rules.

Sec. 205. Prohibits attorneys who have relinquished a license to practice in the face of an ethics investigation from serving as a claimant representative.

Any representative seeking payment for their services has an affirmative burden of certifying to SSA they meet the rules.

Attorneys must certify to SSA they have never been disbarred or suspended from any court or relinquished a license to practice in the face of a misconduct investigation.

Sec. 206. Applying judicial code of conduct to administrative law judges.

This makes ALJs subject to the Judicial Code of Conduct.

Sec. 207. Evaluating medical evidence.

Removes the controlling weight standard given to opinion evidence provided by treating physicians.

For any healthcare providers filling out a Residual Functional Capacity form, the claimant has to provide them with a Medical Consultant Acknowledgement Form (created by SSA) that discloses how medical evidence will be used by SSA, instructions on filling out RFC forms, and information on the legal and ethical obligations of a practitioner providing such an assessment. The practitioner must sign and certify they read and understand the contents of the form and include it with the RFC or the evidence cannot be considered by SSA. This also provides penalties for forging the certification.

Allows ALJs to request and use Symptom Validity Tests and social media and requires SSA provide training on how to weigh such evidence.

Sec. 208. Reforming fees paid to attorneys and other claimant representatives.

Representatives must account for work performed on a case even if there is a valid fee agreement.

SSA can no longer reimburse representatives for travel expenses.

The IG must perform annual reviews of the highest-earning claimant representatives that look for repetitive language in their evidence, any licensing problems, and whether there is a disproportionate number of the representatives' cases being determined by a particular ALJ.

Representatives cannot receive fees from the Equal Access to Justice Act for: (1) hearings before an ALJ; and (2) if they submitted new evidence after the hearing.

Sec. 209. Strengthening the administrative law judge quality review process.

The Division of Quality shall conduct an annual review on a sample of cases by ''outlier'' ALJs (those with 85% or higher approvals and 700 or more cases that year) and report to SSA on its findings.

Any cases determined to be granted in error must have a continuing disability review within six months.

Sec. 210. Permitting data matching by the Inspector General of the Social Security Administration.

Exempts Inspectors General from the applicable Computer Matching and Privacy Protection Act of 1988 restrictions, which mandate cumbersome rules to approve agreements with other agencies to share records for investigations.

Sec. 211. Accounting for Social Security Program Integrity Spending.

Amounts made available for program integrity spending shall be in a separate account within the federal budget and funded in a separate account in the appropriations bill.

Sec. 212. Use of the National Directory of New Hires.

Mandates that SSA consult the National Directory of New Hires when determining whether an individual is making above the substantial gainful activity limits.

TITLE III—PROVIDING SUPPORT FOR WORKING, DISABLED AMERICANS

Sec. 301. Encouraging work through the Work Incentive Benefit System

Removes Ticket to Work.

Implements the Work Incentive Benefit Program created by Dr. Jagadeesh Gokhale, member of the Social Security Advisory Board. The program incentivizes disability beneficiaries to go back to work to the extent they are able by allowing them to keep more of what they earn while receiving diminished benefits. The program is different from the Benefit Offset National Demonstration (BOND) in that it uses a sliding scale (similar to the Earned Income Tax Credit) to encourage beneficiaries to maximize their earnings.

Puts in place a reimbursement structure for state vocational rehabilitation agencies that shares the savings accrued when a beneficiary returns to work under the Work Incentive Benefit Program and thus receives a lower benefit. The share of these savings state VR agencies are entitled to will increase based on the severity of the disability, to ensure VR agencies are targeting those who need the most help.

Sec. 302. Early-intervention demonstration project and study. Requires SSA to implement two projects to:

Identify disability applicants who have not yet entered the program but who are highly likely to be approved, yet who would have some work capacity if given the appropriate supports. Directs the Commissioner to provide targeted vocational rehabilitation, as well as the possibility of health benefits and cash stipends, to selected individuals who voluntarily suspend their disability application in exchange for these supports; and

Study the feasibility of incentives for employers to provide private disability insurance and other support services by reimbursing a portion of payroll taxes when employers can reduce their disability rates (voluntary experience rating).

By Mr. CARDIN:

S. 3005. A bill to amend the Internal Revenue Code of 1986 to provide for a progressive consumption tax and to reform the income tax, and for other purposes; to the Committee on Finance.

Mr. CARDIN. Mr. President, I am pleased to introduce the Progressive Consumption Tax Act of 2014.

We need a tax code that is fair for American employers and fair for American families. We need a tax code that makes our U.S.-based businesses more competitive. Finally, we need a tax code that allows us to responsibly and reliably collect reasonable revenues.

I applaud the contributions of my colleagues in both the Senate and the House for their efforts in also trying to achieve these goals in tax reform. However, I am adding this bill to the tax reform debate, because I think we need to seriously reconsider the framework for that debate.

Today, we seem to be stuck on 1986-style tax reform—lower the income tax rate, and broaden the base by eliminating tax preferences.

The 1986 reform was a tremendous effort. But, I would argue that that reform lasted less than one year before Congress began tinkering with our income taxes once again. Since then, innumerable changes have made our tax code more and more complicated and, for many taxpayers, less and less fair.

Another issue with reform efforts focusing on our current tax system is this—the extent to which we rely on income taxes is very out of step with the rest of the world.

Compared to other countries that are in the OECD—developed countries with advanced economies, countries that we want to be competitive with—all taxes as a percentage of GDP in the United States are low.

But, the U.S. is not a low income tax country. Our income tax revenues as a percentage of GDP are higher than the OECD countries. As many of my colleagues have pointed out, we have some of the highest statutory income tax rates in the world.

What accounts for the difference is that all OECD countries except the U.S. have a consumption tax. In fact, about 150 countries now have a consumption tax, many of which were enacted decades ago.

Unlike the U.S., these countries can tax imports and subsidize exports by rebating their consumption taxes for exports—without violating current World Trade Organization, WTO, rules. As important, these countries can sustain reductions in their corporate income tax rates, because they have an alternative and more pro-growth revenue source—a consumption tax.

The Progressive Consumption Tax Act puts this country on a level playing field by providing for a broad-based progressive consumption tax, or PCT, at a rate of 10 percent. The PCT would generate revenue by taxing goods and services, rather than income.

This is not simply an add-on tax. The revenues generated by the Act would be used to eliminate an income tax liability for a significant number of households. Those who do still have an income tax liability would see a much simplified income tax with their marginal rates reduced—the top marginal individual income tax rate, applying to taxable income over $500,000 for joint filers, would be 28 percent. The current top marginal rate, applying to taxable income over approximately $450,000 for joint filers, is 39.6 percent.

The act would also slice our corporate rate by more than half, to 17 percent.

Finally, the act would provide rebates to lower- and moderate-income families to counteract heir consumption tax burden and to replace essential support programs like the Earned Income Tax Credit and Child Tax Credit. Like the EITC and CTC, Individuals and families who do not have an income tax liability would still be able to receive these rebates.

A key part of the act is progressivity. By eliminating an income tax liability for a significant number of households and providing rebates, the Act is meant to be at least as progressive as the current system.

The act is also meant to responsibly produce reasonable revenues. I know that some have concerns that the act would just provide a new lever for the government to raise funds. That is why the act contains a revenue ''circuit breaker'' mechanism that returns excess PCT revenues to taxpayers if a certain threshold is met.

Overall, the Progressive Consumption Tax Act has many advantages compared to our current reform efforts.

First, it encourages saving. Under current law, families and individuals are taxed on income, which includes savings. Under the act, most households would be exempt from the income tax, and thus would be able to save tax free.

The act enhances U.S. economic competitiveness. The U.S. corporate income tax rate would be lowered to 17 percent, encouraging multinational corporations to locate here, not abroad. OECD countries currently attracting U.S. multinationals often impose higher consumption or corporate tax rates than those envisioned by the act.

For instance, this year, we heard of many companies that were considering relocating to the U.K. That country's corporate income tax rate is 21 percent and its general consumption tax rate is 20 percent. Under the Act, the U.S. corporate tax rate would become 17 percent and the consumption tax rate would be only 10 percent.

In fact, if the Progressive Consumption Tax Act became law, every top statutory rate in the United States—our individual income tax rate, our corporate tax rate, our consumption tax rate—would be at least five percentage points lower than the OECD average.

The act encourages economic growth. In study that examined 35 years of data on 21 OECD countries, consumption taxes were found to be more growth-friendly than both personal income taxes and corporate income taxes. Corporate income taxes, especially, appear to have the most negative effect on GDP per capita. Growth-oriented tax reform should move away from income tax revenues and towards consumption tax revenues, as the act does.

The act also enhances U.S. trade competitiveness. Countries with consumption taxes can adjust their taxes at the border by rebating exports. That means that these countries can agree to reduced tariffs under trade agreements, can still tax imports with their consumption taxes, and can export their own goods without a full tax load. Because the PCT is border-adjusted, the U.S. would be able to maintain export and import tax parity in the same way as these other countries.

The act reduces income tax compliance costs. Most households would not have an income tax liability under the act—although they would need to provide key pieces of information to the IRS in order to obtain their rebates.

Finally, the act protects low- and middle-income families from an unfair tax burden. Through the income tax exemption and rebate feature, the Progressive Consumption Tax Act aims to ensure that this new tax system is at least as progressive as the current income tax system.

When my colleagues and others talk to me about comprehensive, responsible, pro-growth tax reform, this to me is what we need to do.

That's why I am pleased to introduce Progressive Consumption Tax Act in this Congress. The Act is meant as an opening for serious discussion on this type of reform. We can't just stand by, fight the same tax reform fights we did

nearly 30 years ago, and in the meantime watch American jobs move overseas and our income tax system become further riddled with loopholes. I hope we will stand for what is right in our tax code, and enact the type of reform that allows our country to have among the lowest tax rates in the industrialized world, and the fairest system for all Americans.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 599—RECOGNIZING THE 100-YEAR ANNIVERSARY OF BIG BROTHERS BIG SISTERS SOUTHEASTERN PENNSYLVANIA

Mr. TOOMEY (for himself and Mr. CASEY) submitted the following resolution; which was considered and agreed to:

S. RES. 599

Whereas Big Brothers Big Sisters Southeastern Pennsylvania is a nonprofit organization that provides children facing adversity with strong, enduring, and professionally supported one-to-one mentor relationships;

Whereas Big Brothers Big Sisters Southeastern Pennsylvania serves children who are—

(1) living in areas with a high poverty rate, areas with a high incidence of juvenile arrests, or single-parent households;

(2) impacted by homelessness or familial incarceration; or

(3) attending a struggling school;

Whereas mentors serving as advisors, role models, or friends can diminish risk factors, enhance protective factors, and make a lasting impact on the lives of children;

Whereas Big Brothers Big Sisters Southeastern Pennsylvania supports and enriches the lives of children and promotes and reinforces positive activities, behaviors, and attitudes by working with donors, partners, family members, volunteers, and advocates;

Whereas the Big Brothers Big Sisters Southeastern Pennsylvania mentor program is proven to help at-risk children reach their potential;

Whereas the Center for the Study and Prevention of Violence at the University of Colorado classifies the Big Brothers Big Sisters Southeastern Pennsylvania mentor program as a ''blueprint'' model intervention program for effectively reducing adolescent violent crime, aggression, delinquency, and substance abuse;

Whereas ''blueprint'' programs have the highest standards and meet the most rigorous tests of effectiveness and replicability in the field of helping at-risk children;

Whereas children who participate in the Big Brothers Big Sisters Southeastern Pennsylvania mentor program perform better in school and develop better relationships with their families and peers;

Whereas Big Brothers Big Sisters Southeastern Pennsylvania makes meaningful, monitored matches between adult volunteers, known as ''Bigs'', and at-risk children, known as ''Littles'', throughout Chester County, Delaware County, Montgomery County, and Philadelphia County;

Whereas Big Brothers Big Sisters Southeastern Pennsylvania supports nearly 3,000 mentor matches each year;

Whereas an estimated 250,000 underserved children in southeastern Pennsylvania remain at risk for academic failure; and

Whereas Big Brothers Big Sisters Southeastern Pennsylvania is committed to bringing life-changing work to the children in the region who need it the most: Now, therefore, be it

Resolved, That the Senate recognizes the 100-year anniversary of Big Brothers Big Sisters Southeastern Pennsylvania.

AMENDMENTS SUBMITTED AND PROPOSED

SA 4092. Mr. DURBIN (for Mr. MENENDEZ (for himself and Mr. CORKER)) proposed an amendment to the bill S. 2828, to impose sanctions with respect to the Russian Federation, to provide additional assistance to Ukraine, and for other purposes.

SA 4093. Mr. DURBIN (for Mr. KING (for himself, Mr. MORAN, and Mr. WARNER)) proposed an amendment to the bill H.R. 3329, to enhance the ability of community financial institutions to foster economic growth and serve their communities, boost small businesses, increase individual savings, and for other purposes.

SA 4094. Mr. MERKLEY proposed an amendment to the bill H.R. 2640, to amend the Wild and Scenic Rivers Act to adjust the Crooked River boundary, to provide water certainty for the City of Prineville, Oregon, and for other purposes.

SA 4095. Ms. WARREN submitted an amendment intended to be proposed by her to the bill H.R. 3979, to amend the Internal Revenue Code of 1986 to ensure that emergency services volunteers are not taken into account as employees under the shared responsibility requirements contained in the Patient Protection and Affordable Care Act; which was ordered to lie on the table.

SA 4096. Mr. SCHUMER (for himself and Mr. CORNYN) proposed an amendment to the bill S. 1535, to deter terrorism, provide justice for victims, and for other purposes.

SA 4097. Mr. KING (for Mr. ROCKEFELLER (for himself and Mr. THUNE)) proposed an amendment to the bill S. 1353, to provide for an ongoing, voluntary public-private partnership to improve cybersecurity, and to strengthen cybersecurity research and development, workforce development and education, and public awareness and preparedness, and for other purposes.

SA 4098. Mr. COBURN submitted an amendment intended to be proposed by him to the bill H.R. 3979, to amend the Internal Revenue Code of 1986 to ensure that emergency services volunteers are not taken into account as employees under the shared responsibility requirements contained in the Patient Protection and Affordable Care Act; which was ordered to lie on the table.

SA 4099. Mr. VITTER submitted an amendment intended to be proposed by him to the bill H.R. 83, to require the Secretary of the Interior to assemble a team of technical, policy, and financial experts to address the energy needs of the insular areas of the United States and the Freely Associated States through the development of energy action plans aimed at promoting access to affordable, reliable energy, including increasing use of indigenous clean-energy resources, and for other purposes; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 4092. Mr. DURBIN (for Mr. MENENDEZ (for himself and Mr. CORKER)) proposed an amendment to the bill S. 2828, to impose sanctions with respect to the Russian Federation, to provide additional assistance to Ukraine, and for other purposes; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Ukraine Freedom Support Act of 2014''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Definitions.
Sec. 3. Statement of policy regarding Ukraine.
Sec. 4. Sanctions relating to the defense and energy sectors of the Russian Federation.
Sec. 5. Sanctions on Russian and other foreign financial institutions.
Sec. 6. Major non-NATO ally status for Ukraine, Georgia, and Moldova.
Sec. 7. Increased military assistance for the Government of Ukraine.
Sec. 8. Expanded nonmilitary assistance for Ukraine.
Sec. 9. Expanded broadcasting in countries of the former Soviet Union.
Sec. 10. Support for Russian democracy and civil society organizations.
Sec. 11. Report on non-compliance by the Russian Federation of its obligations under the INF Treaty.
Sec. 12. Rule of construction.

SEC. 2. DEFINITIONS.

In this Act:

(1) ACCOUNT; CORRESPONDENT ACCOUNT; PAYABLE-THROUGH ACCOUNT.—The terms ''account'', ''correspondent account'', and ''payable-through account'' have the meanings given those terms in section 5318A of title 31, United States Code.

(2) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Relations and the Committee on Banking, Housing, and Urban Affairs of the Senate; and

(B) the Committee on Foreign Affairs and the Committee on Financial Services of the House of Representatives.

(3) DEFENSE ARTICLE; DEFENSE SERVICE; TRAINING.—The terms ''defense article'', ''defense service'', and ''training'' have the meanings given those terms in section 47 of the Arms Export Control Act (22 U.S.C. 2794).

(4) FINANCIAL INSTITUTION.—The term ''financial institution'' means a financial institution specified in subparagraph (A), (B), (C), (D), (E), (F), (G), (H), (I), (J), (M), or (Y) of section 5312(a)(2) of title 31, United States Code.

(5) FOREIGN FINANCIAL INSTITUTION.—The term ''foreign financial institution'' has the meaning given that term in section 561.308 of title 31, Code of Federal Regulations (or any corresponding similar regulation or ruling).

(6) FOREIGN PERSON.—The term ''foreign person'' means any individual or entity that is not a United States citizen, a permanent resident alien, or an entity organized under the laws of the United States or any jurisdiction within the United States.

(7) KNOWINGLY.—The term ''knowingly'', with respect to conduct, a circumstance, or a result, means that a person has actual knowledge, or should have known, of the conduct, the circumstance, or the result.

(8) RUSSIAN PERSON.—The term ''Russian person'' means—

(A) an individual who is a citizen or national of the Russian Federation; or

(B) an entity organized under the laws of the Russian Federation.

(9) SPECIAL RUSSIAN CRUDE OIL PROJECT.—The term ''special Russian crude oil project'' means a project intended to extract crude oil from—

(A) the exclusive economic zone of the Russian Federation in waters more than 500 feet deep;

(B) Russian Arctic offshore locations; or

(C) shale formations located in the Russian Federation.

SEC. 3. STATEMENT OF POLICY REGARDING UKRAINE.

It is the policy of the United States to further assist the Government of Ukraine in restoring its sovereignty and territorial integrity to deter the Government of the Russian Federation from further destabilizing and invading Ukraine and other independent countries in Central and Eastern Europe, the Caucasus, and Central Asia. That policy shall be carried into effect, among other things, through a comprehensive effort, in coordination with allies and partners of the United States where appropriate, that includes economic sanctions, diplomacy, assistance for the people of Ukraine, and the provision of military capabilities to the Government of Ukraine that will enhance the ability of that Government to defend itself and to restore its sovereignty and territorial integrity in the face of unlawful actions by the Government of the Russian Federation.

SEC. 4. SANCTIONS RELATING TO THE DEFENSE AND ENERGY SECTORS OF THE RUSSIAN FEDERATION.

(a) SANCTIONS RELATING TO THE DEFENSE SECTOR.—

(1) ROSOBORONEXPORT.—Except as provided in subsection (d), not later than 30 days after the date of the enactment of this Act, the President shall impose 3 or more of the sanctions described in subsection (c) with respect to Rosoboronexport.

(2) RUSSIAN PRODUCERS, TRANSFERORS, OR BROKERS OF DEFENSE ARTICLES.—Except as provided in subsection (d), on and after the date that is 45 days after the date of the enactment of this Act, the President shall impose 3 or more of the sanctions described in subsection (c) with respect to a foreign person the President determines—

(A) is an entity—

(i) owned or controlled by the Government of the Russian Federation or owned or controlled by nationals of the Russian Federation; and

(ii) that—

(I) knowingly manufactures or sells defense articles transferred into Syria or into the territory of a specified country without the consent of the internationally recognized government of that country;

(II) transfers defense articles into Syria or into the territory of a specified country without the consent of the internationally recognized government of that country; or

(III) brokers or otherwise assists in the transfer of defense articles into Syria or into the territory of a specified country without the consent of the internationally recognized government of that country; or

(B) knowingly, on or after the date of the enactment of this Act, assists, sponsors, or provides financial, material, or technological support for, or goods or services to or in support of, an entity described in subparagraph (A) with respect to an activity described in clause (ii) of that subparagraph.

(3) SPECIFIED COUNTRY DEFINED.—

(A) IN GENERAL.—In this subsection, the term ''specified country'' means—

(i) Ukraine, Georgia, and Moldova; and

(ii) any other country designated by the President as a country of significant concern for purposes of this subsection, such as Poland, Lithuania, Latvia, Estonia, and the Central Asia republics.

(B) NOTICE TO CONGRESS.—The President shall notify the appropriate congressional committees in writing not later than 15 days before—

(i) designating a country as a country of significant concern under subparagraph (A)(ii); or

(ii) terminating a designation under that subparagraph, including the termination of any such designation pursuant to subsection (h).

(b) SANCTIONS RELATED TO THE ENERGY SECTOR.—

(1) DEVELOPMENT OF SPECIAL RUSSIAN CRUDE OIL PROJECTS.—Except as provided in subsection (d), on and after the date that is 45 days after the date of the enactment of this Act, the President may impose 3 or more of the sanctions described in subsection (c) with respect to a foreign person if the President determines that the foreign person knowingly makes a significant investment in a special Russian crude oil project.

(2) AUTHORIZATION FOR EXTENSION OF LICENSING LIMITATIONS ON CERTAIN EQUIPMENT.—The President, through the Bureau of Industry and Security of the Department of Commerce or the Office of Foreign Assets Control of the Department of the Treasury, as appropriate, may impose additional licensing requirements for or other restrictions on the export or reexport of items for use in the energy sector of the Russian Federation, including equipment used for tertiary oil recovery.

(3) CONTINGENT SANCTION RELATING TO GAZPROM.—If the President determines that Gazprom is withholding significant natural gas supplies from member countries of the North Atlantic Treaty Organization, or further withholds significant natural gas supplies from countries such as Ukraine, Georgia, or Moldova, the President shall, not later than 45 days after making that determination, impose the sanction described in subsection (c)(7) and at least one additional sanction described in subsection (c) with respect to Gazprom.

(c) SANCTIONS DESCRIBED.—The sanctions the President may impose with respect to a foreign person under subsection (a) or (b) are the following:

(1) EXPORT-IMPORT BANK ASSISTANCE.—The President may direct the Export-Import Bank of the United States not to approve the issuance of any guarantee, insurance, extension of credit, or participation in the extension of credit in connection with the export of any goods or services to the foreign person.

(2) PROCUREMENT SANCTION.—The President may prohibit the head of any executive agency (as defined in section 133 of title 41, United States Code) from entering into any contract for the procurement of any goods or services from the foreign person.

(3) ARMS EXPORT PROHIBITION.—The President may prohibit the exportation or provision by sale, lease or loan, grant, or other means, directly or indirectly, of any defense article or defense service to the foreign person and the issuance of any license or other approval to the foreign person under section 38 of the Arms Export Control Act (22 U.S.C. 2778).

(4) DUAL-USE EXPORT PROHIBITION.—The President may prohibit the issuance of any license and suspend any license for the transfer to the foreign person of any item the export of which is controlled under the Export Administration Act of 1979 (50 U.S.C. App. 2401 et seq.) (as in effect pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.)) or the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations.

(5) PROPERTY TRANSACTIONS.—The President may, pursuant to such regulations as the President may prescribe, prohibit any person from—

(A) acquiring, holding, withholding, using, transferring, withdrawing, transporting, or exporting any property that is subject to the jurisdiction of the United States and with respect to which the foreign person has any interest;

(B) dealing in or exercising any right, power, or privilege with respect to such property; or

(C) conducting any transaction involving such property.

(6) BANKING TRANSACTIONS.—The President may, pursuant to such regulations as the President may prescribe, prohibit any transfers of credit or payments between financial institutions or by, through, or to any financial institution, to the extent that such transfers or payments are subject to the jurisdiction of the United States and involve any interest of the foreign person.

(7) PROHIBITION ON INVESTMENT IN EQUITY OR DEBT OF SANCTIONED PERSON.—The President may, pursuant to such regulations as the President may prescribe, prohibit any United States person from transacting in, providing financing for, or otherwise dealing in—

(A) debt—

(i) of longer than 30 days' maturity of a foreign person with respect to which sanctions are imposed under subsection (a) or of longer than 90 days' maturity of a foreign person with respect to which sanctions are imposed under subsection (b); and

(ii) issued on or after the date on which such sanctions are imposed with respect to the foreign person; or

(B) equity of the foreign person issued on or after that date.

(8) EXCLUSION FROM THE UNITED STATES AND REVOCATION OF VISA OR OTHER DOCUMENTATION.—In the case of a foreign person who is an individual, the President may direct the Secretary of State to deny a visa to, and the Secretary of Homeland Security to exclude from the United States, the foreign person, subject to regulatory exceptions to permit the United States to comply with the Agreement regarding the Headquarters of the United Nations, signed at Lake Success June 26, 1947, and entered into force November 21, 1947, between the United Nations and the United States, or other applicable international obligations.

(9) SANCTIONS ON PRINCIPAL EXECUTIVE OFFICERS.—In the case of a foreign person that is an entity, the President may impose on the principal executive officer or officers of the foreign person, or on individuals performing similar functions and with similar authorities as such officer or officers, any of the sanctions described in this subsection applicable to individuals.

(d) EXCEPTIONS.—

(1) IMPORTATION OF GOODS.—

(A) IN GENERAL.—The authority to block and prohibit all transactions in all property and interests in property under subsection (c)(5) shall not include the authority to impose sanctions on the importation of goods.

(B) GOOD DEFINED.—In this paragraph, the term ''good'' has the meaning given that term in section 16 of the Export Administration Act of 1979 (50 U.S.C. App. 2415) (as continued in effect pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.)).

(2) ADDITIONAL EXCEPTIONS.—The President shall not be required to apply or maintain the sanctions under subsection (a) or (b)—

(A) in the case of procurement of defense articles or defense services under existing contracts, subcontracts, or other business agreements, including ancillary or incidental contracts for goods, or for services or

funding (including necessary financial services) associated with such goods, as necessary to give effect to such contracts, subcontracts, or other business agreements, and the exercise of options for production quantities to satisfy requirements essential to the national security of the United States—

(i) if the President determines in writing that—

(I) the foreign person to which the sanctions would otherwise be applied is a sole source supplier of the defense articles or services;

(II) the defense articles or services are essential;

(III) alternative sources are not readily or reasonably available; and

(IV) the national interests of the United States would be adversely affected by the application or maintenance of such sanctions; or

(ii) if the President determines in writing that—

(I) such articles or services are essential to the national security under defense coproduction agreements; and

(II) the national interests of the United States would be adversely affected by the application or maintenance of such sanctions;

(B) in the case of procurement, to eligible products, as defined in section 308(4) of the Trade Agreements Act of 1979 (19 U.S.C. 2518(4)), of any foreign country or instrumentality designated under section 301(b)(1) of that Act (19 U.S.C. 2511(b)(1));

(C) to products, technology, or services provided under contracts, subcontracts, or other business agreements (including ancillary or incidental contracts for goods, or for services or funding (including necessary financial services) associated with such goods, as necessary to give effect to such contracts, subcontracts, or other business agreements) entered into before the date on which the President publishes in the Federal Register the name of the foreign person with respect to which the sanctions are to be imposed;

(D) to—

(i) spare parts that are essential to United States products or production;

(ii) component parts, but not finished products, essential to United States products or production; or

(iii) routine servicing and maintenance of United States products, to the extent that alternative sources are not readily or reasonably available;

(E) to information and technology essential to United States products or production; or

(F) to food, medicine, medical devices, or agricultural commodities (as those terms are defined in section 101 of the Comprehensive Iran Sanctions, Accountability, and Divestment Act of 2010 (22 U.S.C. 8511)).

(e) NATIONAL SECURITY WAIVER.—

(1) IN GENERAL.—The President may waive the application of sanctions under subsection (a) or (b) with respect to a foreign person if the President—

(A) determines that the waiver is in the national security interest of the United States; and

(B) submits to the appropriate congressional committees a report on the determination and the reasons for the determination.

(2) FORM OF REPORT.—The report required by paragraph (1)(B) shall be submitted in unclassified form, but may include a classified annex.

(f) TRANSACTION-SPECIFIC NATIONAL SECURITY WAIVER.—

(1) IN GENERAL.—The President may waive the application of sanctions under subsection (a) or (b) with respect to a specific transaction if the President—

(A) determines that the transaction is in the national security interest of the United States; and

(B) submits to the appropriate congressional committees a detailed report on the determination and the specific reasons for the determination that a waiver with respect to the transaction is necessary and appropriate.

(2) FORM OF REPORT.—The report required by paragraph (1)(B) shall be submitted in unclassified form, but may include a classified annex.

(g) IMPLEMENTATION; PENALTIES.—

(1) IMPLEMENTATION.—The President may exercise all authorities provided under sections 203 and 205 of the International Emergency Economic Powers Act (50 U.S.C. 1702 and 1704) to carry out the purposes of this section.

(2) PENALTIES.—The penalties provided for in subsections (b) and (c) of section 206 of the International Emergency Economic Powers Act (50 U.S.C. 1705) shall apply to a person that violates, attempts to violate, or conspires to violate, or causes a violation of, subsection (a) or (b) of this section, or an order or regulation prescribed under either such subsection, to the same extent that such penalties apply to a person that commits an unlawful act described in section 206(a) of the International Emergency Economic Powers Act.

(h) TERMINATION.—

(1) IN GENERAL.—Except as provided in paragraph (2), this section, and sanctions imposed under this section, shall terminate on the date on which the President submits to the appropriate congressional committees a certification that the Government of the Russian Federation has ceased ordering, controlling, or otherwise directing, supporting, or financing, significant acts intended to undermine the peace, security, stability, sovereignty, or territorial integrity of Ukraine, including through an agreement between the appropriate parties.

(2) APPLICABILITY WITH RESPECT TO SYRIA.—The termination date under paragraph (1) shall not apply with respect to the provisions of subsection (a) relating to the transfer of defense articles into Syria or sanctions imposed pursuant to such provisions.

SEC. 5. SANCTIONS ON RUSSIAN AND OTHER FOREIGN FINANCIAL INSTITUTIONS.

(a) FACILITATION OF CERTAIN DEFENSE- AND ENERGY-RELATED TRANSACTIONS.—The President may impose the sanction described in subsection (c) with respect to a foreign financial institution that the President determines knowingly engages, on or after the date of the enactment of this Act, in significant transactions involving activities described in subparagraph (A)(ii) or (B) of section 4(a)(2) or paragraph (1) or (3) of section 4(b) for persons with respect to which sanctions are imposed under section 4.

(b) FACILITATION OF FINANCIAL TRANSACTIONS ON BEHALF OF SPECIALLY DESIGNATED NATIONALS.—The President may impose the sanction described in subsection (c) with respect to a foreign financial institution if the President determines that the foreign financial institution has, on or after the date that is 180 days after the date of the enactment of this Act, knowingly facilitated a significant financial transaction on behalf of any Russian person included on the list of specially designated nationals and blocked persons maintained by the Office of Foreign Assets Control of the Department of the Treasury, pursuant to—

(1) this Act;

(2) Executive Order 13660 (79 Fed. Reg. 13,493), 13661 (79 Fed. Reg. 15,535), or 13662 (79 Fed. Reg. 16,169); or

(3) any other executive order addressing the crisis in Ukraine.

(c) SANCTION DESCRIBED.—The sanction described in this subsection is, with respect to a foreign financial institution, a prohibition on the opening, and a prohibition or the imposition of strict conditions on the maintaining, in the United States of a correspondent account or a payable-through account by the foreign financial institution.

(d) NATIONAL SECURITY WAIVER.—The President may waive the application of sanctions under this section with respect to a foreign financial institution if the President—

(1) determines that the waiver is in the national security interest of the United States; and

(2) submits to the appropriate congressional committees a report on the determination and the reasons for the determination.

(e) IMPLEMENTATION; PENALTIES.—

(1) IMPLEMENTATION.—The President may exercise all authorities provided under sections 203 and 205 of the International Emergency Economic Powers Act (50 U.S.C. 1702 and 1704) to carry out the purposes of this section.

(2) PENALTIES.—The penalties provided for in subsections (b) and (c) of section 206 of the International Emergency Economic Powers Act (50 U.S.C. 1705) shall apply to a person that violates, attempts to violate, or conspires to violate, or causes a violation of, subsection (a) or (b) of this section, or an order or regulation prescribed under either such subsection, to the same extent that such penalties apply to a person that commits an unlawful act described in section 206(a) of the International Emergency Economic Powers Act.

(f) TERMINATION.—This section, and sanctions imposed under this section, shall terminate on the date on which the President submits to the appropriate congressional committees the certification described in section 4(h).

SEC. 7. INCREASED MILITARY ASSISTANCE FOR THE GOVERNMENT OF UKRAINE.

(a) IN GENERAL.—The President is authorized to provide defense articles, defense services, and training to the Government of Ukraine for the purpose of countering offensive weapons and reestablishing the sovereignty and territorial integrity of Ukraine, including anti-tank and anti-armor weapons, crew weapons and ammunition, counter-artillery radars to identify and target artillery batteries, fire control, range finder, and optical and guidance and control equipment, tactical troop-operated surveillance drones, and secure command and communications equipment, pursuant to the provisions of the Arms Export Control Act (22 U.S.C. 2751 et seq.), the Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.), and other relevant provisions of law.

(b) REPORT REQUIRED.—Not later than 60 days after the date of the enactment of this Act, the President shall submit a report detailing the anticipated defense articles, defense services, and training to be provided pursuant to this section and a timeline for the provision of such defense articles, defense services, and training, to—

(1) the Committee on Foreign Relations, the Committee on Appropriations, and the Committee on Armed Services of the Senate; and

(2) the Committee on Foreign Affairs, the Committee on Appropriations, and the Committee on Armed Services of the House of Representatives.

(c) AUTHORIZATION OF APPROPRIATIONS.—

(1) IN GENERAL.—There are authorized to be appropriated to the Secretary of State $100,000,000 for fiscal year 2015, $125,000,000 for fiscal year 2016, and $125,000,000 for fiscal year 2017 to carry out activities under this section.

(2) AVAILABILITY OF AMOUNTS.—Amounts authorized to be appropriated pursuant to paragraph (1) shall remain available for obligation and expenditure through the end of fiscal year 2018.

(d) AUTHORITY FOR THE USE OF FUNDS.—The funds made available pursuant to subsection (c) for provision of defense articles, defense services, and training may be used to procure such articles, services, and training from the United States Government or other appropriate sources.

(e) PROTECTION OF CIVILIANS.—It is the sense of Congress that the Government of Ukraine should take all appropriate steps to protect civilians.

SEC. 8. EXPANDED NONMILITARY ASSISTANCE FOR UKRAINE.

(a) ASSISTANCE TO INTERNALLY DISPLACED PEOPLE IN UKRAINE.—

(1) IN GENERAL.—Not later than 30 days after the date of the enactment of this Act, the Secretary of State shall submit a plan, including actions by the United States Government, other governments, and international organizations, to meet the need for protection of and assistance for internally displaced persons in Ukraine, to—

(A) the Committee on Foreign Relations, the Committee on Appropriations, and the Committee on Energy and Natural Resources of the Senate; and

(B) the Committee on Foreign Affairs, the Committee on Appropriations, and the Committee on Energy and Commerce of the House of Representatives.

(2) ELEMENTS.—The plan required by paragraph (1) should include, as appropriate, activities in support of—

(A) helping to establish a functional and adequately resourced central registration system in Ukraine that can ensure coordination of efforts to provide assistance to internally displaced persons in different regions;

(B) encouraging adoption of legislation in Ukraine that protects internally displaced persons from discrimination based on their status and provides simplified procedures for obtaining the new residency registration or other official documentation that is a prerequisite to receiving appropriate social payments under the laws of Ukraine, such as pensions and disability, child, and unemployment benefits; and

(C) helping to ensure that information is available to internally displaced persons about—

(i) government agencies and independent groups that can provide assistance to such persons in various regions; and

(ii) evacuation assistance available to persons seeking to flee armed conflict areas.

(3) ASSISTANCE THROUGH INTERNATIONAL ORGANIZATIONS.—The President shall instruct the United States permanent representative or executive director, as the case may be, to the relevant United Nations voluntary agencies, including the United Nations High Commissioner for Refugees and the United Nations Office for the Coordination of Humanitarian Affairs, and other appropriate international organizations, to use the voice and vote of the United States to support appropriate assistance for internally displaced persons in Ukraine.

(b) ASSISTANCE TO THE DEFENSE SECTOR OF UKRAINE.—The Secretary of State and the Secretary of Defense should assist entities in the defense sector of Ukraine to reorient exports away from customers in the Russian Federation and to find appropriate alternative markets for those entities in the defense sector of Ukraine that have already significantly reduced exports to and cooperation with entities in the defense sector of the Russian Federation.

(c) ASSISTANCE TO ADDRESS THE ENERGY CRISIS IN UKRAINE.—

(1) EMERGENCY ENERGY ASSISTANCE.—

(A) PLAN REQUIRED.—The Secretary of State and the Secretary of Energy, in collaboration with the Administrator of the United States Agency for International Development and the Administrator of the Federal Emergency Management Agency, shall work with officials of the Government of Ukraine to develop a short-term emergency energy assistance plan designed to help Ukraine address the potentially severe short-term heating fuel and electricity shortages facing Ukraine in 2014 and 2015.

(B) ELEMENTS.—The plan required by subparagraph (A) should include strategies to address heating fuel and electricity shortages in Ukraine, including, as appropriate—

(i) the acquisition of short-term, emergency fuel supplies;

(ii) the repair or replacement of infrastructure that could impede the transmission of electricity or transportation of fuel;

(iii) the prioritization of the transportation of fuel supplies to the areas where such supplies are needed most;

(iv) streamlining emergency communications throughout national, regional, and local governments to manage the potential energy crisis resulting from heating fuel and electricity shortages;

(v) forming a crisis management team within the Government of Ukraine to specifically address the potential crisis, including ensuring coordination of the team's efforts with the efforts of outside governmental and nongovernmental entities providing assistance to address the potential crisis; and

(vi) developing a public outreach strategy to facilitate preparation by the population and communication with the population in the event of a crisis.

(C) ASSISTANCE.—The Secretary of State, the Secretary of Energy, and the Administrator of the United States Agency for International Development are authorized to provide assistance in support of, and to invest in short-term solutions for, enabling Ukraine to secure the energy safety of the people of Ukraine during 2014 and 2015, including through—

(i) procurement and transport of emergency fuel supplies, including reverse pipeline flows from Europe;

(ii) provision of technical assistance for crisis planning, crisis response, and public outreach;

(iii) repair of infrastructure to enable the transport of fuel supplies;

(iv) repair of power generating or power transmission equipment or facilities;

(v) procurement and installation of compressors or other appropriate equipment to enhance short-term natural gas production;

(vi) procurement of mobile electricity generation units;

(vii) conversion of natural gas heating facilities to run on other fuels, including alternative energy sources; and

(viii) provision of emergency weatherization and winterization materials and supplies.

(2) REDUCTION OF UKRAINE'S RELIANCE ON ENERGY IMPORTS.—

(A) PLANS REQUIRED.—The Secretary of State, in collaboration with the Secretary of Energy and the Administrator of the United States Agency for International Development, shall work with officials of the Government of Ukraine to develop medium- and long-term plans to increase energy production and efficiency to increase energy security by helping Ukraine reduce its dependence on natural gas imported from the Russian Federation.

(B) ELEMENTS.—The medium- and long-term plans required by subparagraph (A) should include strategies, as appropriate, to—

(i) improve corporate governance and unbundling of state-owned oil and gas sector firms;

(ii) increase production from natural gas fields and from other sources, including renewable energy;

(iii) license new oil and gas blocks transparently and competitively;

(iv) modernize oil and gas upstream infrastructure; and

(v) improve energy efficiency.

(C) PRIORITIZATION.—The Secretary of State, the Administrator of the United States Agency for International Development, and the Secretary of Energy should, during fiscal years 2015 through 2018, work with other donors, including multilateral agencies and nongovernmental organizations, to prioritize, to the extent practicable and as appropriate, the provision of assistance from such donors to help Ukraine to improve energy efficiency, increase energy supplies produced in Ukraine, and reduce reliance on energy imports from the Russian Federation, including natural gas.

(D) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated $50,000,000 in the aggregate for fiscal years 2016 through 2018 to carry out activities under this paragraph.

(3) SUPPORT FROM THE OVERSEAS PRIVATE INVESTMENT CORPORATION.—The Overseas Private Investment Corporation shall—

(A) prioritize, to the extent practicable, support for investments to help increase energy efficiency, develop domestic oil and natural gas reserves, improve and repair electricity infrastructure, and develop renewable and other sources of energy in Ukraine; and

(B) implement procedures for expedited review and, as appropriate, approval, of applications by eligible investors (as defined in section 238 of the Foreign Assistance Act of 1961 (22 U.S.C. 2198)) for loans, loan guarantees, and insurance for such investments.

(4) SUPPORT BY THE WORLD BANK GROUP AND THE EUROPEAN BANK FOR RECONSTRUCTION AND DEVELOPMENT.—The President shall, to the extent practicable and as appropriate, direct the United States Executive Directors of the World Bank Group and the European Bank for Reconstruction and Development to use the voice, vote, and influence of the United States to encourage the World Bank Group and the European Bank for Reconstruction and Development and other international financial institutions—

(A) to invest in, and increase their efforts to promote investment in, projects to improve energy efficiency, improve and repair electricity infrastructure, develop domestic oil and natural gas reserves, and develop renewable and other sources of energy in Ukraine; and

(B) to stimulate private investment in such projects.

(d) ASSISTANCE TO CIVIL SOCIETY IN UKRAINE.—

(1) IN GENERAL.—The Secretary of State and the Administrator of the United States Agency for International Development shall, directly or through nongovernmental or international organizations, such as the Organization for Security and Co-operation in Europe, the National Endowment for Democracy, and related organizations—

(A) strengthen the organizational and operational capacity of democratic civil society in Ukraine;

(B) support the efforts of independent media outlets to broadcast, distribute, and share information in all regions of Ukraine;

(C) counter corruption and improve transparency and accountability of institutions that are part of the Government of Ukraine; and

(D) provide support for democratic organizing and election monitoring in Ukraine.

(2) STRATEGY REQUIRED.—Not later than 60 days after the date of the enactment of this Act, the President shall submit a strategy to carry out the activities described in paragraph (1) to—

(A) the Committee on Foreign Relations and the Committee on Appropriations of the Senate; and

(B) the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives.

(3) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to the Secretary of State $20,000,000 for fiscal year 2016 to carry out this subsection.

(4) TRANSPARENCY REQUIREMENTS.—Any assistance provided pursuant to this subsection shall be conducted in as transparent of a manner as possible, consistent with the nature and goals of this subsection. The President shall provide a briefing on the activities funded by this subsection at the request of the committees specified in paragraph (2).

SEC. 9. EXPANDED BROADCASTING IN COUNTRIES OF THE FORMER SOVIET UNION.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Chairman of the Broadcasting Board of Governors shall submit to Congress a plan, including a cost estimate, for immediately and substantially increasing, and maintaining through fiscal year 2017, the quantity of Russian-language broadcasting into the countries of the former Soviet Union funded by the United States in order to counter Russian Federation propaganda.

(b) PRIORITIZATION OF BROADCASTING INTO UKRAINE, GEORGIA, AND MOLDOVA.—The plan required by subsection (a) shall prioritize broadcasting into Ukraine, Georgia, and Moldova by the Voice of America and Radio Free Europe/Radio Liberty.

(c) ADDITIONAL PRIORITIES.—In developing the plan required by subsection (a), the Chairman shall consider—

(1) near-term increases in Russian-language broadcasting for countries of the former Soviet Union (other than the countries specified in subsection (b)), including Latvia, Lithuania, and Estonia; and

(2) increases in broadcasting in other critical languages, including Ukrainian and Romanian languages.

(d) BROADCASTING DEFINED.—In this section, the term ''broadcasting'' means the distribution of media content via radio broadcasting, television broadcasting, and Internet-based platforms, among other platforms.

(e) AUTHORIZATION OF APPROPRIATIONS.—

(1) IN GENERAL.—There are authorized to be appropriated to the Broadcasting Board of Governors $10,000,000 for each of fiscal years 2016 through 2018 to carry out activities under this section.

(2) SUPPLEMENT NOT SUPPLANT.—Amounts authorized to be appropriated pursuant to paragraph (1) shall supplement and not supplant other amounts made available for activities described in this section.

SEC. 10. SUPPORT FOR RUSSIAN DEMOCRACY AND CIVIL SOCIETY ORGANIZATIONS.

(a) IN GENERAL.—The Secretary of State shall, directly or through nongovernmental or international organizations, such as the Organization for Security and Co-operation in Europe, the National Endowment for Democracy, and related organizations—

(1) improve democratic governance, transparency, accountability, rule of law, and anti-corruption efforts in the Russian Federation;

(2) strengthen democratic institutions and political and civil society organizations in the Russian Federation;

(3) expand uncensored Internet access in the Russian Federation; and

(4) expand free and unfettered access to independent media of all kinds in the Russian Federation, including through increasing United States Government-supported broadcasting activities, and assist with the protection of journalists and civil society activists who have been targeted for free speech activities.

(b) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to the Secretary of State $20,000,000 for each of fiscal years 2016 through 2018 to carry out the activities set forth in subsection (a).

(c) STRATEGY REQUIREMENT.—Not later than 60 days after the date of the enactment of this Act, the President shall submit a strategy to carry out the activities set forth in subsection (a) to—

(1) the Committee on Foreign Relations and the Committee on Appropriations of the Senate; and

(2) the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives.

(d) TRANSPARENCY REQUIREMENTS.—Any assistance provided pursuant to this section shall be conducted in as transparent of a manner as possible, consistent with the nature and goals of this section. The President shall provide a briefing on the activities funded by this section at the request of the committees specified in subsection (c).

SEC. 11. REPORT ON NON-COMPLIANCE BY THE RUSSIAN FEDERATION OF ITS OBLIGATIONS UNDER THE INF TREATY.

(a) FINDINGS.—Congress makes the following findings:

(1) The Russian Federation is in violation of its obligations under the Treaty between the United States of America and the Union of Soviet Socialist Republics on the Elimination of Their Intermediate-Range and Shorter-Range Missiles, signed at Washington December 8, 1987, and entered into force June 1, 1988 (commonly referred to as the ''Intermediate-Range Nuclear Forces Treaty'' or ''INF Treaty'').

(2) This behavior poses a threat to the United States, its deployed forces, and its allies.

(b) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the President should hold the Russian Federation accountable for being in violation of its obligations under the INF Treaty; and

(2) the President should demand the Russian Federation completely and verifiably eliminate the military systems that constitute the violation of its obligations under the INF Treaty.

(c) REPORT.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, and every 90 days thereafter, the President shall submit to the committees specified in subsection (d) a report that includes the following elements:

(A) A description of the status of the President's efforts, in cooperation with United States allies, to hold the Russian Federation accountable for being in violation of its obligations under the INF Treaty and obtain the complete and verifiable elimination of its military systems that constitute the violation of its obligations under the INF Treaty.

(B) The President's assessment as to whether it remains in the national security interests of the United States to remain a party to the INF Treaty, and other related treaties and agreements, while the Russian Federation is in violation of its obligations under the INF Treaty.

(C) Notification of any deployment by the Russian Federation of a ground launched ballistic or cruise missile system with a range of between 500 and 5,500 kilometers.

(D) A plan developed by the Secretary of State, in consultation with the Director of National Intelligence and the Defense Threat Reduction Agency (DTRA), to verify that the Russian Federation has fully and completely dismantled any ground launched cruise missiles or ballistic missiles with a range of between 500 and 5,500 kilometers, including details on facilities that inspectors need access to, people inspectors need to talk with, how often inspectors need the accesses for, and how much the verification regime would cost.

(2) FORM.—The report required under paragraph (1) shall be submitted in unclassified form but may contain a classified annex.

(d) COMMITTEES SPECIFIED.—The committees specified in this subsection are—

(1) the Committee on Foreign Relations, the Committee on Armed Services, and the Select Committee on Intelligence of the Senate; and

(2) the Committee on Foreign Affairs, the Committee on Armed Services, and the Permanent Select Committee on Intelligence of the House of Representatives.

SEC. 12. RULE OF CONSTRUCTION.

Nothing in this Act or an amendment made by this Act shall be construed as an authorization for the use of military force.

SA 4093. Mr. DURBIN (for Mr. KING (for himself, Mr. MORAN, and Mr. WARNER)) proposed an amendment to the bill H.R. 3329, to enhance the ability of community financial institutions to foster economic growth and serve their communities, boost small businesses, increase individual savings, and for other purposes; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. CHANGES REQUIRED TO SMALL BANK HOLDING COMPANY POLICY STATEMENT ON ASSESSMENT OF FINANCIAL AND MANAGERIAL FACTORS.

(a) IN GENERAL.—Before the end of the 6-month period beginning on the date of the enactment of this Act, the Board of Governors of the Federal Reserve System (hereafter in this Act referred to as the ''Board'') shall publish in the Federal Register proposed revisions to the Small Bank Holding Company Policy Statement on Assessment of Financial and Managerial Factors (12 C.F.R. part 225 appendix C) that provide that the policy shall apply to bank holding companies and savings and loan holding companies which have pro forma consolidated assets of less than $1,000,000,000 and that—

(1) are not engaged in significant nonbanking activities either directly or through a nonbank subsidiary;

(2) do not conduct significant off-balance sheet activities (including securitization and asset management or administration) either directly or through a nonbank subsidiary; and

(3) do not have a material amount of debt or equity securities outstanding (other than trust preferred securities) that are registered with the Securities and Exchange Commission.

(b) EXCLUSIONS.—The Board may exclude any bank holding company or savings and loan holding company, regardless of asset size, from the policy statement under subsection (a) if the Board determines that such action is warranted for supervisory purposes.

SEC. 2. CONFORMING AMENDMENT.

(a) IN GENERAL.—Subparagraph (C) of section 171(b)(5) of the Dodd-Frank Wall Street Reform and Consumer Protection Act (12 U.S.C. 5371(b)(5)) is amended to read as follows:

''(C) any bank holding company or savings and loan holding company having less than $1,000,000,000 in total consolidated assets that complies with the requirements of the Small Bank Holding Company Policy Statement on Assessment of Financial and Managerial Factors of the Board of Governors (12 C.F.R. part 225 appendix C), as the requirements of such Policy Statement are amended pursuant to section 1 of an Act entitled 'To enhance the ability of community financial institutions to foster economic growth and serve their communities, boost small businesses, increase individual savings, and for other purposes'.''.

(b) TRANSITION PERIOD.—Any small bank holding company that was excepted from the provisions of section 171 of the Dodd-Frank Wall Street Reform and Consumer Protection Act pursuant to subparagraph (C) of section 171(b)(5) (as such subparagraph was in effect on the day before the date of enactment of this Act), and any small savings and loan holding company that would have been excepted from the provisions of section 171 pursuant to subparagraph (C) (as such subparagraph was in effect on the day before the date of enactment of this Act) if it had been a small bank holding company, shall be excepted from the provisions of section 171 until the effective date of the Small Bank Holding Company Policy Statement issued by the Board as required by section 1 of this Act.

SEC. 3. DEFINITIONS.

For the purposes of this Act:

(a) BANK HOLDING COMPANY.—The term ''bank holding company'' has the same meaning as in section 2 of the Bank Holding Company Act of 1956 (12 U.S.C. 1841).

(b) SAVINGS AND LOAN HOLDING COMPANY.—The term ''savings and loan holding company'' has the same meaning as in section 10(a) of the Home Owners' Loan Act (12 U.S.C. 1467a(a)).

SA 4094. Mr. MERKLEY proposed an amendment to the bill H.R. 2640, to amend the Wild and Scenic Rivers Act to adjust the Crooked River boundary, to provide water certainty for the City of Prineville, Oregon, and for other purposes; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Crooked River Collaborative Water Security and Jobs Act of 2014''.

SEC. 2. WILD AND SCENIC RIVER; CROOKED, OREGON.

Section 3(a) of the Wild and Scenic Rivers Act (16 U.S.C. 1274(a)) is amended by striking paragraph (72) and inserting the following:

''(72) CROOKED, OREGON.—

''(A) IN GENERAL.—The 14.75-mile segment from the National Grassland boundary to Dry Creek, to be administered by the Secretary of the Interior in the following classes:

''(i) The 7-mile segment from the National Grassland boundary to River Mile 8 south of Opal Spring, as a recreational river.

''(ii) The 7.75-mile segment from a point ¼-mile downstream from the center crest of Bowman Dam, as a recreational river.

''(B) HYDROPOWER.—In any license or lease of power privilege application relating to non-Federal hydropower development (including turbines and appurtenant facilities) at Bowman Dam, the applicant, in consultation with the Director of the Bureau of Land Management, shall—

''(i) analyze any impacts to the scenic, recreational, and fishery resource values of the Crooked River from the center crest of Bowman Dam to a point ¼-mile downstream that may be caused by the proposed hydropower development, including the future need to undertake routine and emergency repairs;

''(ii) propose measures to minimize and mitigate any impacts analyzed under clause (i); and

''(iii) propose designs and measures to ensure that any access facilities associated with hydropower development at Bowman Dam shall not impede the free-flowing nature of the Crooked River below Bowman Dam.''.

SEC. 3. CITY OF PRINEVILLE WATER SUPPLY.

Section 4 of the Act of August 6, 1956 (70 Stat. 1058; 73 Stat. 554; 78 Stat. 954) is amended—

(1) by striking ''**SEC. 4.** In order'' and inserting the following:

''SEC. 4. CITY OF PRINEVILLE WATER SUPPLY.

''(a) IN GENERAL.—In order'';

(2) in subsection (a) (as so designated), by striking ''during those months'' and all that follows through ''purpose of the project''; and

(3) by adding at the end the following:

''(b) ANNUAL RELEASE.—

''(1) IN GENERAL.—Without further action by the Secretary of the Interior, beginning on the date of enactment of the Crooked River Collaborative Water Security and Jobs Act of 2014, 5,100 acre-feet of water shall be annually released from the project to serve as mitigation for City of Prineville groundwater pumping, pursuant to and in a manner consistent with Oregon State law, including any shaping of the release of the water.

''(2) PAYMENTS.—The City of Prineville shall make payments to the Secretary of the Interior for the water released under paragraph (1), in accordance with applicable Bureau of Reclamation policies, directives, and standards.

''(c) ADDITIONAL QUANTITIES.—Consistent with the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.), the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.), and other applicable Federal laws, the Secretary of the Interior may contract exclusively with the City of Prineville for additional quantities of water, at the request of the City of Prineville.''.

SEC. 4. ADDITIONAL PROVISIONS.

The Act of August 6, 1956 (70 Stat. 1058; 73 Stat. 554; 78 Stat. 954), is amended by adding at the end the following:

''SEC. 6. FIRST FILL STORAGE AND RELEASE.

''(a) IN GENERAL.—Other than the 10 cubic feet per second release provided for in section 4, and subject to compliance with the flood curve requirements of the Corps of Engineers, the Secretary shall, on a 'first fill' priority basis, store in and when called for in any year release from Prineville Reservoir, whether from carryover, infill, or a combination of both, the following:

''(1) Not more than 68,273 acre-feet of water annually to fulfill all 16 Bureau of Reclamation contracts existing as of January 1, 2011.

''(2) Not more than 2,740 acre-feet of water annually to supply the McKay Creek land, in accordance with section 5 of the Crooked River Collaborative Water Security and Jobs Act of 2014.

''(3) Not more than 10,000 acre-feet of water annually, to be made available first to the North Unit Irrigation District, and subsequently to any other holders of Reclamation contracts existing as of January 1, 2011 (in that order) pursuant to Temporary Water Service Contracts, on the request of the North Unit Irrigation District or the contract holders, consistent with the same terms and conditions as prior such contracts between the Bureau of Reclamation and District or contract holders, as applicable.

''(4) Not more than 5,100 acre-feet of water annually to mitigate the City of Prineville groundwater pumping under section 4, with the release of this water to occur not based on an annual call, but instead pursuant to section 4 and the release schedule developed pursuant to section 7(b).

''(b) CARRYOVER.—Except for water that may be called for and released after the end of the irrigation season (either as City of Prineville groundwater pumping mitigation or as a voluntary release, in accordance with section 4 of this Act and section 6(c) of the Crooked River Collaborative Water Security and Jobs Act of 2014, respectively), any water stored under this section that is not called for and released by the end of the irrigation season in a given year shall be—

''(1) carried over to the subsequent water year, which, for accounting purposes, shall be considered to be the 1-year period beginning October 1 and ending September 30, consistent with Oregon State law; and

''(2) accounted for as part of the 'first fill' storage quantities of the subsequent water year, but not to exceed the maximum 'first fill' storage quantities described in subsection (a).

''SEC. 7. STORAGE AND RELEASE OF REMAINING STORED WATER QUANTITIES.

''(a) AUTHORIZATION.—

''(1) IN GENERAL.—The Secretary shall store in and release from Prineville Reservoir sufficient quantities of remaining stored quantities to be released pursuant to the annual release schedule under subsection (b) and to provide instream flows consistent, to the maximum extent practicable, with the recommendations for in-channel strategies in the plan prepared by the Northwest Power and Conservation Council entitled 'Deschutes Subbasin Plan' and dated March 24, 2005, for flow between Bowman Dam and Lake Billy Chinook.

''(2) REQUIREMENTS.—In calculating the quantity of released water under paragraph (1), the Secretary shall—

''(A) comply with the flood curve requirements of the Corps of Engineers; and

''(B) credit toward the requirements of paragraph (1) the instream flow benefits provided by—

''(i) the quantities released under section 4;

''(ii) the 'first fill' quantities released under section 6; and

''(iii) any quantities released to comply with the flood curve requirements of the Corps of Engineers.

''(3) USE OF UNCONTRACTED WATER.—If a consultation conducted under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) or an order of a court in a proceeding under that Act requires releases of stored water from Prineville Reservoir for fish and wildlife downstream of Bowman Dam, the Secretary shall use uncontracted water under paragraph (1).

''(4) STATE WATER LAW.—All releases and downstream uses authorized under paragraph (1) shall be in accordance with Oregon State water law.

''(b) ANNUAL RELEASE SCHEDULE.—The Commissioner of Reclamation, in consultation with the Assistant Administrator of Fisheries of the National Marine Fisheries Service and the Director of the United States Fish and Wildlife Service, shall develop annual release schedules for the remaining stored water quantities (including the quantities described in subsection (a) and the water serving as mitigation for City of Prineville groundwater pumping pursuant to section 4) that maximizes, to the maximum extent practicable, benefits to downstream fish and wildlife.

''(c) CARRYOVER.—Any water stored under subsection (a) in 1 water year that is not released during the water year—

''(1) shall be carried over to the subsequent water year; and

''(2)(A) may be released for downstream fish and wildlife resources, consistent with subsection (b), until the reservoir reaches maximum capacity in the subsequent water year; and

''(B) once the reservoir reaches maximum capacity under subparagraph (A), shall be credited to the 'first fill' storage quantities, but not to exceed the maximum 'first fill' storage quantities described in section 6(a).

''(d) EFFECT.—Nothing in this section affects the authority of the Commissioner of Reclamation to perform all other traditional and routine activities associated with the Crooked River Project.

''SEC. 8. RESERVOIR LEVELS.

''The Commissioner of Reclamation shall—

''(1) project reservoir water levels over the course of the year; and

''(2) make the projections under paragraph (1) available to—

''(A) the public (including fisheries groups, recreation interests, and municipal and irrigation stakeholders);

''(B) the Assistant Administrator of Fisheries of the National Marine Fisheries Service; and

''(C) the Director of the United States Fish and Wildlife Service.

''SEC. 9. EFFECT.

''Except as otherwise provided in this Act, nothing in this Act—

''(1) modifies contractual rights that may exist between contractors and the United States under Reclamation contracts;

''(2) amends or reopens contracts referred to in paragraph (1); or

''(3) modifies any rights, obligations, or requirements that may be provided or governed by Federal or Oregon State law.''.

SEC. 5. OCHOCO IRRIGATION DISTRICT.

(a) EARLY REPAYMENT.—

(1) IN GENERAL.—Notwithstanding section 213 of the Reclamation Reform Act of 1982 (43 U.S.C. 390mm), any landowner within Ochoco Irrigation District, Oregon (referred to in this section as the ''district''), may repay, at any time, the construction costs of the project facilities allocated to the land of the landowner within the district.

(2) EXEMPTION FROM LIMITATIONS.—Upon discharge, in full, of the obligation for repayment of the construction costs allocated to all land of the landowner in the district, the land shall not be subject to the ownership and full-cost pricing limitations of Federal reclamation law (the Act of June 17, 1902 (32 Stat. 388, chapter 1093), and Acts supplemental to and amendatory of that Act (43 U.S.C. 371 et seq.)).

(b) CERTIFICATION.—Upon the request of a landowner who has repaid, in full, the construction costs of the project facilities allocated to the land of the landowner within the district, the Secretary of the Interior shall provide the certification described in section 213(b)(1) of the Reclamation Reform Act of 1982 (43 U.S.C. 390mm(b)(1)).

(c) CONTRACT AMENDMENT.—On approval of the district directors and notwithstanding project authorizing authority to the contrary, the Reclamation contracts of the district are modified, without further action by the Secretary of the Interior—

(1) to authorize the use of water for instream purposes, including fish or wildlife purposes, in order for the district to engage in, or take advantage of, conserved water projects and temporary instream leasing as authorized by Oregon State law;

(2) to include within the district boundary approximately 2,742 acres in the vicinity of McKay Creek, resulting in a total of approximately 44,937 acres within the district boundary;

(3) to classify as irrigable approximately 685 acres within the approximately 2,742 acres of included land in the vicinity of McKay Creek, with those approximately 685 acres authorized to receive irrigation water pursuant to water rights issued by the State of Oregon if the acres have in the past received water pursuant to State water rights; and

(4) to provide the district with stored water from Prineville Reservoir for purposes of supplying up to the approximately 685 acres of land added within the district boundary and classified as irrigable under paragraphs (2) and (3), with the stored water to be supplied on an acre-per-acre basis contingent on the transfer of existing appurtenant McKay Creek water rights to instream use and the issuance of water rights by the State of Oregon for the use of stored water.

(d) LIMITATION.—Except as otherwise provided in subsections (a) and (c), nothing in this section—

(1) modifies contractual rights that may exist between the district and the United States under the Reclamation contracts of the district;

(2) amends or reopens the contracts referred to in paragraph (1); or

(3) modifies any rights, obligations, or relationships that may exist between the district and any owner of land within the district, as may be provided or governed by Federal or Oregon State law.

SEC. 6. DRY-YEAR MANAGEMENT PLANNING AND VOLUNTARY RELEASES.

(a) PARTICIPATION IN DRY-YEAR MANAGEMENT PLANNING MEETINGS.—The Bureau of Reclamation shall participate in dry-year management planning meetings with the State of Oregon, the Confederated Tribes of the Warm Springs Reservation of Oregon, municipal, agricultural, conservation, recreation, and other interested stakeholders to plan for dry-year conditions.

(b) DRY-YEAR MANAGEMENT PLAN.—

(1) IN GENERAL.—Not later than 3 years after the date of enactment of this Act, the Bureau of Reclamation shall develop a dry-year management plan in coordination with the participants referred to in subsection (a).

(2) REQUIREMENTS.—The plan developed under paragraph (1) shall only recommend strategies, measures, and actions that the irrigation districts and other Bureau of Reclamation contract holders voluntarily agree to implement.

(3) LIMITATIONS.—Nothing in the plan developed under paragraph (1) shall be mandatory or self-implementing.

(c) VOLUNTARY RELEASE.—In any year, if North Unit Irrigation District or other eligible Bureau of Reclamation contract holders have not initiated contracting with the Bureau of Reclamation for any quantity of the 10,000 acre feet of water described in subsection (a)(3) of section 6 of the Act of August 6, 1956 (70 Stat. 1058) (as added by section 4), by June 1 of any calendar year, with the voluntary agreement of North Unit Irrigation District and other Bureau of Reclamation contract holders referred to in that paragraph, the Secretary may release that quantity of water for the benefit of downstream fish and wildlife as described in section 7 of that Act.

SEC. 7. HYDROPOWER DECISION.

Not later than 3 years after the date of enactment of this Act, the Commissioner of Reclamation shall determine the applicability of the jurisdiction of the Commissioner of Reclamation to non-Federal hydropower development pursuant to—

(1) the Memorandum of Understanding between the Federal Energy Regulatory Commission and the Bureau of Reclamation, Department of the Interior, entitled ''Establishment of Processes for the Early Resolution of Issues Related to the Timely Development of Non-Federal Hydroelectric power at the Bureau of Reclamation Facilities'' and signed November 6, 1992 (58 Fed. Reg. 3269); or

(2) any memorandum of understanding that is subsequent or related to the memorandum of understanding described in paragraph (1).

SEC. 8. RELATION TO EXISTING LAWS AND STATUTORY OBLIGATIONS.

Nothing in this Act (or an amendment made by this Act)—

(1) provides to the Secretary the authority to store and release the ''first fill'' quantities provided for in section 6 of the Act of August 6, 1956 (70 Stat. 1058) (as added by section 4) for any purposes other than the purposes provided for in that section, except for—

(A) the potential instream use resulting from conserved water projects and temporary instream leasing as provided for in section 5(c)(1);

(B) the potential release of additional amounts that may result from voluntary actions agreed to through the dry-year management plan developed under section 6(b); and

(C) the potential release of the 10,000 acre feet for downstream fish and wildlife as provided for in section 6(c); or

(2) alters any responsibilities under Oregon State law or Federal law, including section 7 of the Endangered Species Act (16 U.S.C. 1536).

SA 4095. Ms. WARREN submitted an amendment intended to be proposed by her to the bill H.R. 3979, to amend the Internal Revenue Code of 1986 to ensure that emergency services volunteers are not taken into account as employees under the shared responsibility requirements contained in the Patient Protection and Affordable Care Act; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 1080. PREVENTION AND TREATMENT OF PROBLEM GAMBLING BEHAVIOR.

(a) FINDINGS.—Congress makes the following findings:

(1) Gambling addiction is a public health disorder characterized by increasing preoccupation with gambling, loss of control, restlessness, or irritability when attempting to stop gambling, and continuation of the gambling behavior in spite of mounting serious, negative consequences.

(2) Over 6,000,000 adults met criteria for a gambling problem in 2013.

(3) According to the National Council on Problem Gambling, it is estimated that between 36,000 and 48,000 active duty military members meet criteria for a gambling problem.

(4) The Department of Defense operates an estimated 3,000 slot machines at military installations overseas that are available to members of the Armed Forces and their families.

(5) It is estimated that these slot machines generate over $100,000,000 in revenue for the Department of Defense, which is used for further recreational activities for service members.

(6) The United States Army operates bingo games on military installations in the United States, which generate millions of dollars per year.

(7) The Department of Defense does not currently have treatment programs for service members with problem gambling behaviors, while it does operate treatment programs for alcohol abuse, illegal substance abuse, and tobacco addiction.

(8) Individuals with problem gambling behavior have higher incidences of bankruptcy, domestic abuse, and suicide.

(9) People who engage in problem gambling have high rates of co-occurring substance abuse and mental health disorders.

(10) The Diagnostic and Statistical Manual of Mental Disorders (Fifth Edition, published in May 2013) includes gambling addiction as a behavioral addiction. This reflects research findings that gambling disorders are similar to substance-related disorders in clinical expression, brain origin, comorbidity, physiology, and treatment.

(b) POLICY AND PROGRAMS TO PREVENT AND TREAT GAMBLING PROBLEMS.—

(1) IN GENERAL.—The Secretary of Defense shall develop a policy and programs on prevention, education, and treatment of problem gambling, including the following elements:

(A) Prevention programs for members of the Armed Forces and their dependents.

(B) Responsible gaming education for all members of the Armed Forces and their dependents.

(C) Establishment of a center of excellence for the residential treatment of the most severe cases of gambling addiction among members of the Armed Forces.

(D) Policy and programs to integrate gambling addiction into existing mental health and substance abuse programs in order to—

(i) prevent problem gambling behavior among members of the Armed Forces and their families;

(ii) provide responsible gaming educational materials to members of the Armed Forces and their family members who gamble; and

(iii) train existing substance abuse and mental health counselors to provide gambling addiction treatment within current mental health and substance abuse treatment programs for members of the Armed Forces and veterans.

(E) Assessment of gambling problems and factors related to the development of such problems (including co-occurring disorders such as substance use, post-traumatic stress disorder, traumatic brain injury, stress, and sensation seeking), and the social, health, and financial impacts of gambling on members of the Armed Forces by incorporating questions on problem gambling behavior into ongoing research efforts as appropriate, including restoring them into the Health Related Behaviors Survey of Active Duty Military Personnel.

(2) CONSULTATION.—The Secretary of Defense shall develop the policies described in paragraph (1) in coordination with the Interagency Task Force on Military and Veterans Mental Health.

(3) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on efforts undertaken pursuant to paragraph (1).

(c) COMPTROLLER GENERAL STUDY ON GAMBLING AND PROBLEM GAMBLING IN THE ARMED FORCES.—Not later than one year after the date of the enactment of this Act, the Comptroller General of the United States shall conduct and submit to the congressional defense committees a study on the number, type, and location of gambling installations (including bingo) operated by each branch of the Armed Forces, the total amount of cash flow through the gambling installations, the amount of revenue generated, and how the revenue is spent. In addition, the study shall include an assessment of the prevalence of problem gambling in the Armed Forces, including recommendations for military policy and programs to address it.

SA 4096. Mr. SCHUMER (for himself and Mr. CORNYN) proposed an amendment to the bill S. 1535, to deter terrorism, provide justice for victims, and for other purposes; as follows:

In lieu of the matter proposed to be inserted, insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Justice Against Sponsors of Terrorism Act''.

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) International terrorism is a serious and deadly problem that threatens the vital interests of the United States.

(2) The Constitution confers upon Congress the power to punish crimes against the law of nations and therefore Congress may by law impose penalties on those who provide material support to foreign organizations engaged in terrorist activity, and allow for victims of international terrorism to recover damages from those who have harmed them.

(3) International terrorism affects the interstate and foreign commerce of the United States by harming international trade and market stability, and limiting international travel by United States citizens as well as foreign visitors to the United States.

(4) Some foreign terrorist organizations, acting through affiliated groups or individuals, raise significant funds outside of the United States for conduct directed and targeted at the United States.

(5) It is necessary to recognize the substantive causes of action for aiding and abetting and conspiracy liability under the Anti-Terrorism Act of 1987 (22 U.S.C. 5201 et seq.).

(6) The decision of the United States Court of Appeals for the District of Columbia in Halberstam v. Welch, 705 F.2d 472 (D.C. Cir. 1983), which has been widely recognized as the leading case regarding Federal civil aiding and abetting and conspiracy liability, including by the Supreme Court of the United States, provides the proper legal framework for how such liability should function in the context of the Anti-Terrorism Act of 1987 (22 U.S.C. 5201 et seq.).

(7) The United Nations Security Council declared in Resolution 1373, adopted on September 28, 2001, that all countries have an affirmative obligation to ''[r]efrain from providing any form of support, active or passive, to entities or persons involved in terrorist acts,'' and to ''[e]nsure that any person who participates in the financing, planning, preparation or perpetration of terrorist acts or in supporting terrorist acts is brought to justice''.

(8) Consistent with these declarations, no country has the discretion to engage knowingly in the financing or sponsorship of terrorism, whether directly or indirectly.

(9) Persons, entities, or countries that knowingly or recklessly contribute material support or resources, directly or indirectly, to persons or organizations that pose a significant risk of committing acts of terrorism that threaten the security of nationals of the United States or the national security, foreign policy, or economy of the United States, necessarily direct their conduct at the United States, and should reasonably anticipate being brought to court in the United States to answer for such activities.

(10) The United States has a vital interest in providing persons and entities injured as a result of terrorist attacks committed within the United States with full access to the court system in order to pursue civil claims against persons, entities, or countries that have knowingly or recklessly provided material support or resources, directly or indirectly, to the persons or organizations responsible for their injuries.

(b) PURPOSE.—The purpose of this Act is to provide civil litigants with the broadest possible basis, consistent with the Constitution of the United States, to seek relief against persons, entities, and foreign countries, wherever acting and wherever they may be found, that have provided material support, directly or indirectly, to foreign organizations or persons that engage in terrorist activities against the United States.

SEC. 3. FOREIGN SOVEREIGN IMMUNITY.

Section 1605(a) of title 28, United States Code, is amended—

(1) by amending paragraph (5) to read as follows:

''(5) not otherwise encompassed in paragraph (2), in which money damages are sought against a foreign state arising out of physical injury or death, or damage to or loss of property, occurring in the United States and caused by the tortious act or omission of that foreign state or of any official or employee of that foreign state while acting within the scope of the office or employment of the official or employee (regardless of where the underlying tortious act or omission occurs), including any statutory or common law tort claim arising out of an act of extrajudicial killing, aircraft sabotage, hostage taking, terrorism, or the provision of material support or resources for such an act, or any claim for contribution or indemnity relating to a claim arising out of such an act, except this paragraph shall not apply to—

''(A) any claim based upon the exercise or performance of, or the failure to exercise or perform, a discretionary function, regardless of whether the discretion is abused; or

''(B) any claim arising out of malicious prosecution, abuse of process, libel, slander, misrepresentation, deceit, interference with contract rights, or any claim for emotional distress or derivative injury suffered as a result of an event or injury to another person that occurs outside of the United States; or''; and

(2) by inserting after subsection (d) the following:

''(e) DEFINITIONS.—For purposes of subsection (a)(5)—

''(1) the terms 'aircraft sabotage', 'extrajudicial killing', 'hostage taking', and 'material support or resources' have the meanings given those terms in section 1605A(h); and

''(2) the term 'terrorism' means international terrorism and domestic terrorism, as those terms are defined in section 2331 of title 18.''.

SEC. 4. AIDING AND ABETTING LIABILITY FOR CIVIL ACTIONS REGARDING TERRORIST ACTS.

(a) IN GENERAL.—Section 2333 of title 18, United States Code, is amended by adding at the end the following:

''(d) LIABILITY.—In an action under subsection (a) for an injury arising from an act of international terrorism committed, planned, or authorized by an organization that had been designated as a foreign terrorist organization under section 219 of the Immigration and Nationality Act (8 U.S.C. 1189), as of the date on which such act of international terrorism was committed, planned, or authorized, or that was so designated as a result of such act of international terrorism, liability may be asserted as to any person who aided, abetted, or conspired with the person who committed such an act of international terrorism.''.

(b) EFFECT ON FOREIGN SOVEREIGN IMMUNITIES ACT.—Nothing in the amendments made by this section affects immunity of a foreign state, as that term is defined in section 1603 of title 28, United States Code, from jurisdiction under other law.

SEC. 5. PERSONAL JURISDICTION FOR CIVIL ACTIONS REGARDING TERRORIST ACTS.

Section 2334 of title 18, United States Code, is amended by inserting at the end the following:

''(e) PERSONAL JURISDICTION.—The district courts shall have personal jurisdiction, to the maximum extent permissible under the 5th Amendment to the Constitution of the United States, over any person who commits or aids and abets an act of international terrorism or otherwise sponsors such act or the person who committed such act, for acts of international terrorism in which any national of the United States suffers injury in his or her person, property, or business by reason of such an act in violation of section 2333.''.

SEC. 6. LIABILITY FOR GOVERNMENT OFFICIALS IN CIVIL ACTIONS REGARDING TERRORIST ACTS.

Section 2337 of title 18, United States Code, is amended to read as follows:

''§ 2337. Suits against Government officials

''No action may be maintained under section 2333 against—

''(1) the United States;

''(2) an agency of the United States; or

''(3) an officer or employee of the United States or any agency of the United States acting within the official capacity of the officer or employee or under color of legal authority.''.

SEC. 7. SEVERABILITY.

If any provision of this Act or any amendment made by this Act, or the application of a provision or amendment to any person or circumstance, is held to be invalid, the remainder of this Act and the amendments made by this Act, and the application of the provisions and amendments to any other person not similarly situated or to other circumstances, shall not be affected by the holding.

SEC. 8. EFFECTIVE DATE.

The amendments made by this Act shall apply to any civil action—

(1) pending on, or commenced on or after, the date of enactment of this Act; and

(2) arising out of an injury to a person, property, or business on or after September 11, 2001.

SA 4097. Mr. KING (for Mr. ROCKEFELLER (for himself and Mr. THUNE)) proposed an amendment to the bill S. 1353, to provide for an ongoing, voluntary public-private partnership to improve cybersecurity, and to strengthen cybersecurity research and development, workforce development and education, and public awareness and preparedness, and for other purposes; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Cybersecurity Enhancement Act of 2014''.

(b) TABLE OF CONTENTS.—The table of contents of this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Definitions.
Sec. 3. No regulatory authority.
Sec. 4. No additional funds authorized.
TITLE I—PUBLIC-PRIVATE COLLABORATION ON CYBERSECURITY
Sec. 101. Public-private collaboration on cybersecurity.
TITLE II—CYBERSECURITY RESEARCH AND DEVELOPMENT
Sec. 201. Federal cybersecurity research and development.
Sec. 202. Computer and network security research centers.
Sec. 203. Cybersecurity automation and checklists for government systems.
Sec. 204. National Institute of Standards and Technology cybersecurity research and development.
TITLE III—EDUCATION AND WORKFORCE DEVELOPMENT
Sec. 301. Cybersecurity competitions and challenges.
Sec. 302. Federal cyber scholarship-for-service program.
TITLE IV—CYBERSECURITY AWARENESS AND PREPAREDNESS
Sec. 401. National cybersecurity awareness and education program.
TITLE V—ADVANCEMENT OF CYBERSECURITY TECHNICAL STANDARDS
Sec. 501. Definitions.
Sec. 502. International cybersecurity technical standards.
Sec. 503. Cloud computing strategy.
Sec. 504. Identity management research and development.

SEC. 2. DEFINITIONS.

In this Act:

(1) CYBERSECURITY MISSION.—The term ''cybersecurity mission'' means activities that encompass the full range of threat reduction, vulnerability reduction, deterrence, international engagement, incident response, resiliency, and recovery policies and activities, including computer network operations, information assurance, law enforcement, diplomacy, military, and intelligence missions as such activities relate to the security and stability of cyberspace.

(2) INFORMATION SYSTEM.—The term ''information system'' has the meaning given that term in section 3502 of title 44, United States Code.

SEC. 3. NO REGULATORY AUTHORITY.

Nothing in this Act shall be construed to confer any regulatory authority on any Federal, State, tribal, or local department or agency.

SEC. 4. NO ADDITIONAL FUNDS AUTHORIZED.

No additional funds are authorized to carry out this Act, and the amendments made by this Act. This Act, and the amendments made by this Act, shall be carried out using amounts otherwise authorized or appropriated.

TITLE I—PUBLIC-PRIVATE COLLABORATION ON CYBERSECURITY

SEC. 101. PUBLIC-PRIVATE COLLABORATION ON CYBERSECURITY.

(a) CYBERSECURITY.—Section 2(c) of the National Institute of Standards and Technology Act (15 U.S.C. 272(c)) is amended—

(1) by redesignating paragraphs (15) through (22) as paragraphs (16) through (23), respectively; and

(2) by inserting after paragraph (14) the following:

''(15) on an ongoing basis, facilitate and support the development of a voluntary, consensus-based, industry-led set of standards, guidelines, best practices, methodologies, procedures, and processes to cost-effectively reduce cyber risks to critical infrastructure (as defined under subsection (e));''.

(b) SCOPE AND LIMITATIONS.—Section 2 of the National Institute of Standards and Technology Act (15 U.S.C. 272) is amended by adding at the end the following:

''(e) CYBER RISKS.—

''(1) IN GENERAL.—In carrying out the activities under subsection (c)(15), the Director—

''(A) shall—

''(i) coordinate closely and regularly with relevant private sector personnel and entities, critical infrastructure owners and operators, and other relevant industry organizations, including Sector Coordinating Councils and Information Sharing and Analysis Centers, and incorporate industry expertise;

''(ii) consult with the heads of agencies with national security responsibilities, sector-specific agencies and other appropriate agencies, State and local governments, the governments of other nations, and international organizations;

''(iii) identify a prioritized, flexible, repeatable, performance-based, and cost-effective approach, including information security measures and controls, that may be voluntarily adopted by owners and operators of critical infrastructure to help them identify, assess, and manage cyber risks;

''(iv) include methodologies—

''(I) to identify and mitigate impacts of the cybersecurity measures or controls on business confidentiality; and

''(II) to protect individual privacy and civil liberties;

''(v) incorporate voluntary consensus standards and industry best practices;

''(vi) align with voluntary international standards to the fullest extent possible;

''(vii) prevent duplication of regulatory processes and prevent conflict with or superseding of regulatory requirements, mandatory standards, and related processes; and

''(viii) include such other similar and consistent elements as the Director considers necessary; and

''(B) shall not prescribe or otherwise require—

''(i) the use of specific solutions;

''(ii) the use of specific information or communications technology products or services; or

''(iii) that information or communications technology products or services be designed, developed, or manufactured in a particular manner.

''(2) LIMITATION.—Information shared with or provided to the Institute for the purpose of the activities described under subsection (c)(15) shall not be used by any Federal, State, tribal, or local department or agency to regulate the activity of any entity. Nothing in this paragraph shall be construed to modify any regulatory requirement to report or submit information to a Federal, State, tribal, or local department or agency.

''(3) DEFINITIONS.—In this subsection:

''(A) CRITICAL INFRASTRUCTURE.—The term 'critical infrastructure' has the meaning given the term in section 1016(e) of the USA PATRIOT Act of 2001 (42 U.S.C. 5195c(e)).

''(B) SECTOR-SPECIFIC AGENCY.—The term 'sector-specific agency' means the Federal department or agency responsible for providing institutional knowledge and specialized expertise as well as leading, facilitating, or supporting the security and resilience programs and associated activities of its designated critical infrastructure sector in the all-hazards environment.''.

(c) STUDY AND REPORTS.—

(1) STUDY.—The Comptroller General of the United States shall conduct a study that assesses—

(A) the progress made by the Director of the National Institute of Standards and Technology in facilitating the development of standards and procedures to reduce cyber risks to critical infrastructure in accordance with section 2(c)(15) of the National Institute of Standards and Technology Act, as added by this section;

(B) the extent to which the Director's facilitation efforts are consistent with the directive in such section that the development of such standards and procedures be voluntary and led by industry representatives;

(C) the extent to which other Federal agencies have promoted and sectors of critical infrastructure (as defined in section 1016(e) of the USA PATRIOT Act of 2001 (42 U.S.C. 5195c(e))) have adopted a voluntary, industry-led set of standards, guidelines, best practices, methodologies, procedures, and processes to reduce cyber risks to critical infrastructure in accordance with such section 2(c)(15);

(D) the reasons behind the decisions of sectors of critical infrastructure (as defined in subparagraph (C)) to adopt or to not adopt the voluntary standards described in subparagraph (C); and

(E) the extent to which such voluntary standards have proved successful in protecting critical infrastructure from cyber threats.

(2) REPORTS.—Not later than 1 year after the date of the enactment of this Act, and every 2 years thereafter for the following 6 years, the Comptroller General shall submit a report, which summarizes the findings of the study conducted under paragraph (1), to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Science, Space, and Technology of the House of Representatives.

TITLE II—CYBERSECURITY RESEARCH AND DEVELOPMENT

SEC. 201. FEDERAL CYBERSECURITY RESEARCH AND DEVELOPMENT.

(a) FUNDAMENTAL CYBERSECURITY RESEARCH.—

(1) FEDERAL CYBERSECURITY RESEARCH AND DEVELOPMENT STRATEGIC PLAN.—The heads of the applicable agencies and departments, working through the National Science and Technology Council and the Networking and Information Technology Research and Development Program, shall develop and update every 4 years a Federal cybersecurity research and development strategic plan (referred to in this subsection as the ''strategic plan'') based on an assessment of cybersecurity risk to guide the overall direction of Federal cybersecurity and information assurance research and development for information technology and networking systems. The heads of the applicable agencies and departments shall build upon existing programs and plans to develop the strategic plan to meet objectives in cybersecurity, such as—

(A) how to design and build complex software-intensive systems that are secure and reliable when first deployed;

(B) how to test and verify that software and hardware, whether developed locally or obtained from a third party, is free of significant known security flaws;

(C) how to test and verify that software and hardware obtained from a third party correctly implements stated functionality, and only that functionality;

(D) how to guarantee the privacy of an individual, including that individual's identity, information, and lawful transactions when stored in distributed systems or transmitted over networks;

(E) how to build new protocols to enable the Internet to have robust security as one of the key capabilities of the Internet;

(F) how to determine the origin of a message transmitted over the Internet;

(G) how to support privacy in conjunction with improved security;

(H) how to address the problem of insider threats;

(I) how improved consumer education and digital literacy initiatives can address human factors that contribute to cybersecurity;

(J) how to protect information processed, transmitted, or stored using cloud computing or transmitted through wireless services; and

(K) any additional objectives the heads of the applicable agencies and departments, in coordination with the head of any relevant Federal agency and with input from stakeholders, including appropriate national laboratories, industry, and academia, determine appropriate.

(2) REQUIREMENTS.—

(A) CONTENTS OF PLAN.—The strategic plan shall—

(i) specify and prioritize near-term, mid-term, and long-term research objectives, including objectives associated with the research identified in section 4(a)(1) of the Cyber Security Research and Development Act (15 U.S.C. 7403(a)(1));

(ii) specify how the near-term objectives described in clause (i) complement research and development areas in which the private sector is actively engaged;

(iii) describe how the heads of the applicable agencies and departments will focus on innovative, transformational technologies with the potential to enhance the security, reliability, resilience, and trustworthiness of the digital infrastructure, and to protect consumer privacy;

(iv) describe how the heads of the applicable agencies and departments will foster the rapid transfer of research and development results into new cybersecurity technologies and applications for the timely benefit of society and the national interest, including through the dissemination of best practices and other outreach activities;

(v) describe how the heads of the applicable agencies and departments will establish and maintain a national research infrastructure for creating, testing, and evaluating the next generation of secure networking and information technology systems; and

(vi) describe how the heads of the applicable agencies and departments will facilitate access by academic researchers to the infrastructure described in clause (v), as well as to relevant data, including event data.

(B) PRIVATE SECTOR EFFORTS.—In developing, implementing, and updating the strategic plan, the heads of the applicable agencies and departments, working through the National Science and Technology Council and Networking and Information Technology Research and Development Program, shall work in close cooperation with industry, academia, and other interested stakeholders to ensure, to the extent possible, that Federal cybersecurity research and development is not duplicative of private sector efforts.

(C) RECOMMENDATIONS.—In developing and updating the strategic plan the heads of the applicable agencies and departments shall solicit recommendations and advice from—

(i) the advisory committee established under section 101(b)(1) of the High-Performance Computing Act of 1991 (15 U.S.C. 5511(b)(1)); and

(ii) a wide range of stakeholders, including industry, academia, including representatives of minority serving institutions and community colleges, National Laboratories, and other relevant organizations and institutions.

(D) IMPLEMENTATION ROADMAP.—The heads of the applicable agencies and departments, working through the National Science and Technology Council and Networking and Information Technology Research and Development Program, shall develop and annually update an implementation roadmap for the strategic plan. The implementation roadmap shall—

(i) specify the role of each Federal agency in carrying out or sponsoring research and development to meet the research objectives of the strategic plan, including a description of how progress toward the research objectives will be evaluated;

(ii) specify the funding allocated to each major research objective of the strategic plan and the source of funding by agency for the current fiscal year;

(iii) estimate the funding required for each major research objective of the strategic plan for the following 3 fiscal years; and

(iv) track ongoing and completed Federal cybersecurity research and development projects.

(3) REPORTS TO CONGRESS.—The heads of the applicable agencies and departments, working through the National Science and Technology Council and Networking and Information Technology Research and Development Program, shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Science, Space, and Technology of the House of Representatives—

(A) the strategic plan not later than 1 year after the date of enactment of this Act;

(B) each quadrennial update to the strategic plan; and

(C) the implementation roadmap under subparagraph (D), and its annual updates, which shall be appended to the annual report required under section 101(a)(2)(D) of the High-Performance Computing Act of 1991 (15 U.S.C. 5511(a)(2)(D)).

(4) DEFINITION OF APPLICABLE AGENCIES AND DEPARTMENTS.—In this subsection, the term ''applicable agencies and departments'' means the agencies and departments identified in clauses (i) through (x) of section 101(a)(3)(B) of the High-Performance Computing Act of 1991 (15 U.S.C. 5511(a)(3)(B)) or designated under clause (xi) of that section.

(b) CYBERSECURITY PRACTICES RESEARCH.—The Director of the National Science Foundation shall support research that—

(1) develops, evaluates, disseminates, and integrates new cybersecurity practices and concepts into the core curriculum of computer science programs and of other programs where graduates of such programs have a substantial probability of developing software after graduation, including new practices and concepts relating to secure coding education and improvement programs; and

(2) develops new models for professional development of faculty in cybersecurity education, including secure coding development.

(c) CYBERSECURITY MODELING AND TEST BEDS.—

(1) REVIEW.—Not later than 1 year after the date of enactment of this Act, the Director the National Science Foundation, in coordination with the Director of the Office of Science and Technology Policy, shall conduct a review of cybersecurity test beds in existence on the date of enactment of this Act to inform the grants under paragraph (2). The review shall include an assessment of whether a sufficient number of cybersecurity test beds are available to meet the research needs under the Federal cybersecurity research and development strategic plan. Upon completion, the Director shall submit the review to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Science, Space, and Technology of the House of Representatives.

(2) ADDITIONAL CYBERSECURITY MODELING AND TEST BEDS.—

(A) IN GENERAL.—If the Director of the National Science Foundation, after the review under paragraph (1), determines that the research needs under the Federal cybersecurity research and development strategic plan require the establishment of additional cybersecurity test beds, the Director of the National Science Foundation, in coordination with the Secretary of Commerce and the Secretary of Homeland Security, may award grants to institutions of higher education or

research and development non-profit institutions to establish cybersecurity test beds.

(B) REQUIREMENT.—The cybersecurity test beds under subparagraph (A) shall be sufficiently robust in order to model the scale and complexity of real-time cyber attacks and defenses on real world networks and environments.

(C) ASSESSMENT REQUIRED.—The Director of the National Science Foundation, in coordination with the Secretary of Commerce and the Secretary of Homeland Security, shall evaluate the effectiveness of any grants awarded under this subsection in meeting the objectives of the Federal cybersecurity research and development strategic plan not later than 2 years after the review under paragraph (1) of this subsection, and periodically thereafter.

(d) COORDINATION WITH OTHER RESEARCH INITIATIVES.—In accordance with the responsibilities under section 101 of the High-Performance Computing Act of 1991 (15 U.S.C. 5511), the Director the Office of Science and Technology Policy shall coordinate, to the extent practicable, Federal research and development activities under this section with other ongoing research and development security-related initiatives, including research being conducted by—

(1) the National Science Foundation;

(2) the National Institute of Standards and Technology;

(3) the Department of Homeland Security;

(4) other Federal agencies;

(5) other Federal and private research laboratories, research entities, and universities;

(6) institutions of higher education;

(7) relevant nonprofit organizations; and

(8) international partners of the United States.

(e) NATIONAL SCIENCE FOUNDATION COMPUTER AND NETWORK SECURITY RESEARCH GRANT AREAS.—Section 4(a)(1) of the Cyber Security Research and Development Act (15 U.S.C. 7403(a)(1)) is amended—

(1) in subparagraph (H), by striking ''and'' at the end;

(2) in subparagraph (I), by striking the period at the end and inserting a semicolon; and

(3) by adding at the end the following:

''(J) secure fundamental protocols that are integral to inter-network communications and data exchange;

''(K) secure software engineering and software assurance, including—

''(i) programming languages and systems that include fundamental security features;

''(ii) portable or reusable code that remains secure when deployed in various environments;

''(iii) verification and validation technologies to ensure that requirements and specifications have been implemented; and

''(iv) models for comparison and metrics to assure that required standards have been met;

''(L) holistic system security that—

''(i) addresses the building of secure systems from trusted and untrusted components;

''(ii) proactively reduces vulnerabilities;

''(iii) addresses insider threats; and

''(iv) supports privacy in conjunction with improved security;

''(M) monitoring and detection;

''(N) mitigation and rapid recovery methods;

''(O) security of wireless networks and mobile devices; and

''(P) security of cloud infrastructure and services.''.

(f) RESEARCH ON THE SCIENCE OF CYBERSECURITY.—The head of each agency and department identified under section 101(a)(3)(B) of the High-Performance Computing Act of 1991 (15 U.S.C. 5511(a)(3)(B)), through existing programs and activities, shall support research that will lead to the development of a scientific foundation for the field of cybersecurity, including research that increases understanding of the underlying principles of securing complex networked systems, enables repeatable experimentation, and creates quantifiable security metrics.

SEC. 202. COMPUTER AND NETWORK SECURITY RESEARCH CENTERS.

Section 4(b) of the Cyber Security Research and Development Act (15 U.S.C. 7403(b)) is amended—

(1) in paragraph (3), by striking ''the research areas'' and inserting the following: ''improving the security and resiliency of information technology, reducing cyber vulnerabilities, and anticipating and mitigating consequences of cyber attacks on critical infrastructure, by conducting research in the areas'';

(2) by striking ''the center'' in paragraph (4)(D) and inserting ''the Center''; and

(3) in paragraph (5)—

(A) by striking ''and'' at the end of subparagraph (C);

(B) by striking the period at the end of subparagraph (D) and inserting a semicolon; and

(C) by adding at the end the following:

''(E) the demonstrated capability of the applicant to conduct high performance computation integral to complex computer and network security research, through on-site or off-site computing;

''(F) the applicant's affiliation with private sector entities involved with industrial research described in subsection (a)(1);

''(G) the capability of the applicant to conduct research in a secure environment;

''(H) the applicant's affiliation with existing research programs of the Federal Government;

''(I) the applicant's experience managing public-private partnerships to transition new technologies into a commercial setting or the government user community;

''(J) the capability of the applicant to conduct interdisciplinary cybersecurity research, basic and applied, such as in law, economics, or behavioral sciences; and

''(K) the capability of the applicant to conduct research in areas such as systems security, wireless security, networking and protocols, formal methods and high-performance computing, nanotechnology, or industrial control systems.''.

SEC. 203. CYBERSECURITY AUTOMATION AND CHECKLISTS FOR GOVERNMENT SYSTEMS.

Section 8(c) of the Cyber Security Research and Development Act (15 U.S.C. 7406(c)) is amended to read as follows:

''(c) SECURITY AUTOMATION AND CHECKLISTS FOR GOVERNMENT SYSTEMS.—

''(1) IN GENERAL.—The Director of the National Institute of Standards and Technology shall, as necessary, develop and revise security automation standards, associated reference materials (including protocols), and checklists providing settings and option selections that minimize the security risks associated with each information technology hardware or software system and security tool that is, or is likely to become, widely used within the Federal Government, thereby enabling standardized and interoperable technologies, architectures, and frameworks for continuous monitoring of information security within the Federal Government.

''(2) PRIORITIES FOR DEVELOPMENT.—The Director of the National Institute of Standards and Technology shall establish priorities for the development of standards, reference materials, and checklists under this subsection on the basis of—

''(A) the security risks associated with the use of the system;

''(B) the number of agencies that use a particular system or security tool;

''(C) the usefulness of the standards, reference materials, or checklists to Federal agencies that are users or potential users of the system;

''(D) the effectiveness of the associated standard, reference material, or checklist in creating or enabling continuous monitoring of information security; or

''(E) such other factors as the Director of the National Institute of Standards and Technology determines to be appropriate.

''(3) EXCLUDED SYSTEMS.—The Director of the National Institute of Standards and Technology may exclude from the application of paragraph (1) any information technology hardware or software system or security tool for which such Director determines that the development of a standard, reference material, or checklist is inappropriate because of the infrequency of use of the system, the obsolescence of the system, or the lack of utility or impracticability of developing a standard, reference material, or checklist for the system.

''(4) DISSEMINATION OF STANDARDS AND RELATED MATERIALS.—The Director of the National Institute of Standards and Technology shall ensure that Federal agencies are informed of the availability of any standard, reference material, checklist, or other item developed under this subsection.

''(5) AGENCY USE REQUIREMENTS.—The development of standards, reference materials, and checklists under paragraph (1) for an information technology hardware or software system or tool does not—

''(A) require any Federal agency to select the specific settings or options recommended by the standard, reference material, or checklist for the system;

''(B) establish conditions or prerequisites for Federal agency procurement or deployment of any such system;

''(C) imply an endorsement of any such system by the Director of the National Institute of Standards and Technology; or

''(D) preclude any Federal agency from procuring or deploying other information technology hardware or software systems for which no such standard, reference material, or checklist has been developed or identified under paragraph (1).''.

SEC. 204. NATIONAL INSTITUTE OF STANDARDS AND TECHNOLOGY CYBERSECURITY RESEARCH AND DEVELOPMENT.

Section 20 of the National Institute of Standards and Technology Act (15 U.S.C. 278g-3) is amended—

(1) by redesignating subsection (e) as subsection (f); and

(2) by inserting after subsection (d) the following:

''(e) INTRAMURAL SECURITY RESEARCH.—As part of the research activities conducted in accordance with subsection (d)(3), the Institute shall, to the extent practicable and appropriate—

''(1) conduct a research program to develop a unifying and standardized identity, privilege, and access control management framework for the execution of a wide variety of resource protection policies and that is amenable to implementation within a wide variety of existing and emerging computing environments;

''(2) carry out research associated with improving the security of information systems and networks;

''(3) carry out research associated with improving the testing, measurement, usability, and assurance of information systems and networks;

''(4) carry out research associated with improving security of industrial control systems;

''(5) carry out research associated with improving the security and integrity of the information technology supply chain; and

''(6) carry out any additional research the Institute determines appropriate.''.

TITLE III—EDUCATION AND WORKFORCE DEVELOPMENT

SEC. 301. CYBERSECURITY COMPETITIONS AND CHALLENGES.

(a) IN GENERAL.—The Secretary of Commerce, Director of the National Science Foundation, and Secretary of Homeland Security, in consultation with the Director of the Office of Personnel Management, shall—

(1) support competitions and challenges under section 24 of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3719) (as amended by section 105 of the America COMPETES Reauthorization Act of 2010 (124 Stat. 3989)) or any other provision of law, as appropriate—

(A) to identify, develop, and recruit talented individuals to perform duties relating to the security of information technology in Federal, State, local, and tribal government agencies, and the private sector; or

(B) to stimulate innovation in basic and applied cybersecurity research, technology development, and prototype demonstration that has the potential for application to the information technology activities of the Federal Government; and

(2) ensure the effective operation of the competitions and challenges under this section.

(b) PARTICIPATION.—Participants in the competitions and challenges under subsection (a)(1) may include—

(1) students enrolled in grades 9 through 12;

(2) students enrolled in a postsecondary program of study leading to a baccalaureate degree at an institution of higher education;

(3) students enrolled in a postbaccalaureate program of study at an institution of higher education;

(4) institutions of higher education and research institutions;

(5) veterans; and

(6) other groups or individuals that the Secretary of Commerce, Director of the National Science Foundation, and Secretary of Homeland Security determine appropriate.

(c) AFFILIATION AND COOPERATIVE AGREEMENTS.—Competitions and challenges under this section may be carried out through affiliation and cooperative agreements with—

(1) Federal agencies;

(2) regional, State, or school programs supporting the development of cyber professionals;

(3) State, local, and tribal governments; or

(4) other private sector organizations.

(d) AREAS OF SKILL.—Competitions and challenges under subsection (a)(1)(A) shall be designed to identify, develop, and recruit exceptional talent relating to—

(1) ethical hacking;

(2) penetration testing;

(3) vulnerability assessment;

(4) continuity of system operations;

(5) security in design;

(6) cyber forensics;

(7) offensive and defensive cyber operations; and

(8) other areas the Secretary of Commerce, Director of the National Science Foundation, and Secretary of Homeland Security consider necessary to fulfill the cybersecurity mission.

(e) TOPICS.—In selecting topics for competitions and challenges under subsection (a)(1), the Secretary of Commerce, Director of the National Science Foundation, and Secretary of Homeland Security—

(1) shall consult widely both within and outside the Federal Government; and

(2) may empanel advisory committees.

(f) INTERNSHIPS.—The Director of the Office of Personnel Management may support, as appropriate, internships or other work experience in the Federal Government to the winners of the competitions and challenges under this section.

SEC. 302. FEDERAL CYBER SCHOLARSHIP-FOR-SERVICE PROGRAM.

(a) IN GENERAL.—The Director of the National Science Foundation, in coordination with the Director of the Office of Personnel Management and Secretary of Homeland Security, shall continue a Federal cyber scholarship-for-service program to recruit and train the next generation of information technology professionals, industrial control system security professionals, and security managers to meet the needs of the cybersecurity mission for Federal, State, local, and tribal governments.

(b) PROGRAM DESCRIPTION AND COMPONENTS.—The Federal Cyber Scholarship-for-Service Program shall—

(1) provide scholarships through qualified institutions of higher education, including community colleges, to students who are enrolled in programs of study at institutions of higher education leading to degrees or specialized program certifications in the cybersecurity field;

(2) provide the scholarship recipients with summer internship opportunities or other meaningful temporary appointments in the Federal information technology workforce; and

(3) prioritize the employment placement of scholarship recipients in the Federal Government.

(c) SCHOLARSHIP AMOUNTS.—Each scholarship under subsection (b) shall be in an amount that covers the student's tuition and fees at the institution under subsection (b)(1) for not more than 3 years and provides the student with an additional stipend.

(d) POST-AWARD EMPLOYMENT OBLIGATIONS.—Each scholarship recipient, as a condition of receiving a scholarship under the program, shall enter into an agreement under which the recipient agrees to work in the cybersecurity mission of a Federal, State, local, or tribal agency for a period equal to the length of the scholarship following receipt of the student's degree.

(e) HIRING AUTHORITY.—

(1) APPOINTMENT IN EXCEPTED SERVICE.—Notwithstanding any provision of chapter 33 of title 5, United States Code, governing appointments in the competitive service, an agency shall appoint in the excepted service an individual who has completed the eligible degree program for which a scholarship was awarded.

(2) NONCOMPETITIVE CONVERSION.—Except as provided in paragraph (4), upon fulfillment of the service term, an employee appointed under paragraph (1) may be converted noncompetitively to term, career-conditional or career appointment.

(3) TIMING OF CONVERSION.—An agency may noncompetitively convert a term employee appointed under paragraph (2) to a career-conditional or career appointment before the term appointment expires.

(4) AUTHORITY TO DECLINE CONVERSION.—An agency may decline to make the noncompetitive conversion or appointment under paragraph (2) for cause.

(f) ELIGIBILITY.—To be eligible to receive a scholarship under this section, an individual shall—

(1) be a citizen or lawful permanent resident of the United States;

(2) demonstrate a commitment to a career in improving the security of information technology;

(3) have demonstrated a high level of proficiency in mathematics, engineering, or computer sciences;

(4) be a full-time student in an eligible degree program at a qualified institution of higher education, as determined by the Director of the National Science Foundation; and

(5) accept the terms of a scholarship under this section.

(g) CONDITIONS OF SUPPORT.—

(1) IN GENERAL.—As a condition of receiving a scholarship under this section, a recipient shall agree to provide the qualified institution of higher education with annual verifiable documentation of post-award employment and up-to-date contact information.

(2) TERMS.—A scholarship recipient under this section shall be liable to the United States as provided in subsection (i) if the individual—

(A) fails to maintain an acceptable level of academic standing at the applicable institution of higher education, as determined by the Director of the National Science Foundation;

(B) is dismissed from the applicable institution of higher education for disciplinary reasons;

(C) withdraws from the eligible degree program before completing the program;

(D) declares that the individual does not intend to fulfill the post-award employment obligation under this section; or

(E) fails to fulfill the post-award employment obligation of the individual under this section.

(h) MONITORING COMPLIANCE.—As a condition of participating in the program, a qualified institution of higher education shall—

(1) enter into an agreement with the Director of the National Science Foundation, to monitor the compliance of scholarship recipients with respect to their post-award employment obligations; and

(2) provide to the Director of the National Science Foundation, on an annual basis, the post-award employment documentation required under subsection (g)(1) for scholarship recipients through the completion of their post-award employment obligations.

(i) AMOUNT OF REPAYMENT.—

(1) LESS THAN 1 YEAR OF SERVICE.—If a circumstance described in subsection (g)(2) occurs before the completion of 1 year of a post-award employment obligation under this section, the total amount of scholarship awards received by the individual under this section shall—

(A) be repaid; or

(B) be treated as a loan to be repaid in accordance with subsection (j).

(2) 1 OR MORE YEARS OF SERVICE.—If a circumstance described in subparagraph (D) or (E) of subsection (g)(2) occurs after the completion of 1 or more years of a post-award employment obligation under this section, the total amount of scholarship awards received by the individual under this section, reduced by the ratio of the number of years of service completed divided by the number of years of service required, shall—

(A) be repaid; or

(B) be treated as a loan to be repaid in accordance with subsection (j).

(j) REPAYMENTS.—A loan described subsection (i) shall—

(1) be treated as a Federal Direct Unsubsidized Stafford Loan under part D of title IV of the Higher Education Act of 1965 (20 U.S.C. 1087a et seq.); and

(2) be subject to repayment, together with interest thereon accruing from the date of the scholarship award, in accordance with terms and conditions specified by the Director of the National Science Foundation (in consultation with the Secretary of Education) in regulations promulgated to carry out this subsection.

(k) COLLECTION OF REPAYMENT.—

(1) IN GENERAL.—In the event that a scholarship recipient is required to repay the scholarship award under this section, the qualified institution of higher education providing the scholarship shall—

(A) determine the repayment amounts and notify the recipient and the Director of the National Science Foundation of the amounts owed; and

(B) collect the repayment amounts within a period of time as determined by the Director of the National Science Foundation, or the repayment amounts shall be treated as a loan in accordance with subsection (j).

(2) RETURNED TO TREASURY.—Except as provided in paragraph (3), any repayment under this subsection shall be returned to the Treasury of the United States.

(3) RETAIN PERCENTAGE.—A qualified institution of higher education may retain a percentage of any repayment the institution collects under this subsection to defray administrative costs associated with the collection. The Director of the National Science Foundation shall establish a single, fixed percentage that will apply to all eligible entities.

(l) EXCEPTIONS.—The Director of the National Science Foundation may provide for the partial or total waiver or suspension of any service or payment obligation by an individual under this section whenever compliance by the individual with the obligation is impossible or would involve extreme hardship to the individual, or if enforcement of such obligation with respect to the individual would be unconscionable.

(m) EVALUATION AND REPORT.—The Director of the National Science Foundation shall evaluate and report periodically to Congress on the success of recruiting individuals for scholarships under this section and on hiring and retaining those individuals in the public sector workforce.

TITLE IV—CYBERSECURITY AWARENESS AND PREPAREDNESS

SEC. 401. NATIONAL CYBERSECURITY AWARENESS AND EDUCATION PROGRAM.

(a) NATIONAL CYBERSECURITY AWARENESS AND EDUCATION PROGRAM.—The Director of the National Institute of Standards and Technology (referred to in this section as the ''Director''), in consultation with appropriate Federal agencies, industry, educational institutions, National Laboratories, the Networking and Information Technology Research and Development program, and other organizations shall continue to coordinate a national cybersecurity awareness and education program, that includes activities such as—

(1) the widespread dissemination of cybersecurity technical standards and best practices identified by the Director;

(2) efforts to make cybersecurity best practices usable by individuals, small to medium-sized businesses, educational institutions, and State, local, and tribal governments;

(3) increasing public awareness of cybersecurity, cyber safety, and cyber ethics;

(4) increasing the understanding of State, local, and tribal governments, institutions of higher education, and private sector entities of—

(A) the benefits of ensuring effective risk management of information technology versus the costs of failure to do so; and

(B) the methods to mitigate and remediate vulnerabilities;

(5) supporting formal cybersecurity education programs at all education levels to prepare and improve a skilled cybersecurity and computer science workforce for the private sector and Federal, State, local, and tribal government; and

(6) promoting initiatives to evaluate and forecast future cybersecurity workforce needs of the Federal Government and develop strategies for recruitment, training, and retention.

(b) CONSIDERATIONS.—In carrying out the authority described in subsection (a), the Director, in consultation with appropriate Federal agencies, shall leverage existing programs designed to inform the public of safety and security of products or services, including self-certifications and independently verified assessments regarding the quantification and valuation of information security risk.

(c) STRATEGIC PLAN.—The Director, in cooperation with relevant Federal agencies and other stakeholders, shall build upon programs and plans in effect as of the date of enactment of this Act to develop and implement a strategic plan to guide Federal programs and activities in support of the national cybersecurity awareness and education program under subsection (a).

(d) REPORT.—Not later than 1 year after the date of enactment of this Act, and every 5 years thereafter, the Director shall transmit the strategic plan under subsection (c) to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Science, Space, and Technology of the House of Representatives.

TITLE V—ADVANCEMENT OF CYBERSECURITY TECHNICAL STANDARDS

SEC. 501. DEFINITIONS.

In this title:

(1) DIRECTOR.—The term ''Director'' means the Director of the National Institute of Standards and Technology.

(2) INSTITUTE.—The term ''Institute'' means the National Institute of Standards and Technology.

SEC. 502. INTERNATIONAL CYBERSECURITY TECHNICAL STANDARDS.

(a) IN GENERAL.—The Director, in coordination with appropriate Federal authorities, shall—

(1) as appropriate, ensure coordination of Federal agencies engaged in the development of international technical standards related to information system security; and

(2) not later than 1 year after the date of enactment of this Act, develop and transmit to Congress a plan for ensuring such Federal agency coordination.

(b) CONSULTATION WITH THE PRIVATE SECTOR.—In carrying out the activities specified in subsection (a)(1), the Director shall ensure consultation with appropriate private sector stakeholders.

SEC. 503. CLOUD COMPUTING STRATEGY.

(a) IN GENERAL.—The Director, in coordination with the Office of Management and Budget, in collaboration with the Federal Chief Information Officers Council, and in consultation with other relevant Federal agencies and stakeholders from the private sector, shall continue to develop and encourage the implementation of a comprehensive strategy for the use and adoption of cloud computing services by the Federal Government.

(b) ACTIVITIES.—In carrying out the strategy described under subsection (a), the Director shall give consideration to activities that—

(1) accelerate the development, in collaboration with the private sector, of standards that address interoperability and portability of cloud computing services;

(2) advance the development of conformance testing performed by the private sector in support of cloud computing standardization; and

(3) support, in coordination with the Office of Management and Budget, and in consultation with the private sector, the development of appropriate security frameworks and reference materials, and the identification of best practices, for use by Federal agencies to address security and privacy requirements to enable the use and adoption of cloud computing services, including activities—

(A) to ensure the physical security of cloud computing data centers and the data stored in such centers;

(B) to ensure secure access to the data stored in cloud computing data centers;

(C) to develop security standards as required under section 20 of the National Institute of Standards and Technology Act (15 U.S.C. 278g-3); and

(D) to support the development of the automation of continuous monitoring systems.

SEC. 504. IDENTITY MANAGEMENT RESEARCH AND DEVELOPMENT.

The Director shall continue a program to support the development of voluntary and cost-effective technical standards, metrology, testbeds, and conformance criteria, taking into account appropriate user concerns—

(1) to improve interoperability among identity management technologies;

(2) to strengthen authentication methods of identity management systems;

(3) to improve privacy protection in identity management systems, including health information technology systems, through authentication and security protocols; and

(4) to improve the usability of identity management systems.

SA 4098. Mr. COBURN submitted an amendment intended to be proposed by him to the bill H.R. 3979, to amend the Internal Revenue Code of 1986 to ensure that emergency services volunteers are not taken into account as employees under the shared responsibility requirements contained in the Patient Protection and Affordable Care Act; which was ordered to lie on the table; as follows:

At the end, add the following:

DIVISION E—EFFECT OF CERTAIN PROVISIONS

SEC. 5001. SEALASKA LAND ENTITLEMENT FINALIZATION.

Notwithstanding any other provision of this Act, section 3002 shall have no force or effect.

SEC. 5002. BLACKSTONE RIVER VALLEY NATIONAL HISTORICAL PARK.

Notwithstanding any other provision of this Act, section 3031 shall have no force or effect.

SEC. 5003. COLTSVILLE NATIONAL HISTORICAL PARK.

Notwithstanding any other provision of this Act, section 3032 shall have no force or effect.

SEC. 5004. FIRST STATE NATIONAL HISTORICAL PARK.

Notwithstanding any other provision of this Act, section 3033 shall have no force or effect.

SEC. 5005. HINCHLIFFE STADIUM ADDITION TO PATERSON GREAT FALLS NATIONAL HISTORICAL PARK.

Notwithstanding any other provision of this Act, section 3037 shall have no force or effect.

SEC. 5006. MANHATTAN PROJECT NATIONAL HISTORICAL PARK.

Notwithstanding any other provision of this Act, section 3039 shall have no force or effect.

SEC. 5007. VALLES CALDERA NATIONAL PRESERVE, NEW MEXICO.

Notwithstanding any other provision of this Act, section 3043 shall have no force or effect.

SEC. 5008. VICKSBURG NATIONAL MILITARY PARK.

Notwithstanding any other provision of this Act, section 3044 shall have no force or effect.

SEC. 5009. REVOLUTIONARY WAR AND WAR OF 1812 AMERICAN BATTLEFIELD PROTECTION PROGRAM.

Notwithstanding any other provision of this Act, section 3050 shall have no force or effect.

SEC. 5010. SPECIAL RESOURCE STUDIES.

Notwithstanding any other provision of this Act, section 3051 shall have no force or effect.

SEC. 5011. NATIONAL HERITAGE AREAS AND CORRIDORS.

Notwithstanding any other provision of this Act, section 3052 shall have no force or effect.

SEC. 5012. COMMISSION TO STUDY THE POTENTIAL CREATION OF A NATIONAL WOMEN'S HISTORY MUSEUM.

Notwithstanding any other provision of this Act, section 3056 shall have no force or effect.

SEC. 5013. ALPINE LAKES WILDERNESS ADDITIONS AND PRATT AND MIDDLE FORK SNOQUALMIE RIVERS PROTECTION.

Notwithstanding any other provision of this Act, section 3060 shall have no force or effect.

SEC. 5014. COLUMBINE-HONDO WILDERNESS.

Notwithstanding any other provision of this Act, section 3061 shall have no force or effect.

SEC. 5015. HERMOSA CREEK WATERSHED PROTECTION.

Notwithstanding any other provision of this Act, section 3062 shall have no force or effect.

SEC. 5016. NORTH FORK FEDERAL LANDS WITHDRAWAL AREA.

Notwithstanding any other provision of this Act, section 3063 shall have no force or effect.

SEC. 5017. PINE FOREST RANGE WILDERNESS.

Notwithstanding any other provision of this Act, section 3064 shall have no force or effect.

SEC. 5018. ROCKY MOUNTAIN FRONT CONSERVATION MANAGEMENT AREA AND WILDERNESS ADDITIONS.

Notwithstanding any other provision of this Act, section 3065 shall have no force or effect.

SEC. 5019. WOVOKA WILDERNESS.

Notwithstanding any other provision of this Act, section 3066 shall have no force or effect.

SEC. 5020. WITHDRAWAL AREA RELATED TO WOVOKA WILDERNESS.

Notwithstanding any other provision of this Act, section 3067 shall have no force or effect.

SEC. 5021. ILLABOT CREEK, WASHINGTON, WILD AND SCENIC RIVER.

Notwithstanding any other provision of this Act, section 3071 shall have no force or effect.

SEC. 5022. MISSISQUOI AND TROUT WILD AND SCENIC RIVERS, VERMONT.

Notwithstanding any other provision of this Act, section 3072 shall have no force or effect.

SEC. 5023. WHITE CLAY CREEK WILD AND SCENIC RIVER EXPANSION.

Notwithstanding any other provision of this Act, section 3073 shall have no force or effect.

SEC. 5024. STUDIES OF WILD AND SCENIC RIVERS.

Notwithstanding any other provision of this Act, section 3074 shall have no force or effect.

SEC. 5025. MISCELLANEOUS ISSUES RELATED TO LAS VEGAS VALLEY PUBLIC LAND AND TULE SPRINGS FOSSIL BEDS NATIONAL MONUMENT.

Notwithstanding any other provision of this Act, section 3092 shall have no force or effect.

SEC. 5026. REFINANCING OF PACIFIC COAST GROUNDFISH FISHING CAPACITY REDUCTION LOAN.

Notwithstanding any other provision of this Act, section 3095 shall have no force or effect.

SEC. 5027. PAYMENTS IN LIEU OF TAXES.

Notwithstanding any other provision of this Act, section 3096 shall have no force or effect.

SA 4099. Mr. VITTER submitted an amendment intended to be proposed by him to the bill H.R. 83, to require the Secretary of the Interior to assemble a team of technical, policy, and financial experts to address the energy needs of the insular areas of the United States and the Freely Associated States through the development of energy action plans aimed at promoting access to affordable, reliable energy, including increasing use of indigenous clean-energy resources, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. LOCAL CONTROL OF EDUCATION.

(a) SHORT TITLE.—This section may be cited as the ''Local Control of Education Act''.

(b) GENERAL ESEA PROHIBITION.—

(1) IN GENERAL.—Section 9527 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7907) is amended by adding at the end the following:

''(e) PROHIBITION OF FEDERAL GOVERNMENT MANDATING COMMON STANDARDS, PROGRAMS OF INSTRUCTION, CURRICULA, ASSESSMENTS, OR ACADEMIC STANDARDS.—An officer or employee of the Federal Government shall not directly or indirectly, through grants, contracts, or other cooperative agreements under this Act (including waivers under section 9401)—

''(1) mandate, direct, or control a State, local educational agency, or school's specific instructional content or any specific academic standard, assessment, curriculum, or program of instruction, including through any requirement, direction, condition, or mandate to adopt—

''(A) the Common Core State Standards developed under the Common Core State Standards Initiative, any other academic standards common to a number of States, or any specific statewide or nationally recognized content standards; or

''(B) any assessment, instructional content, or curriculum aligned to, or based on, specific academic standards, including any of the standards described in subparagraph (A);

''(2) incentivize a State, local educational agency, or school to adopt any specific instructional content, academic standard, assessment, curriculum, commonality of standards or assessments, or program of instruction described in paragraph (1), which shall include providing any priority, preference, or special consideration during the application process based on any specific content, standard, assessment, curriculum, commonality, or program; or

''(3) make financial support available in a manner that is conditioned upon a State, local educational agency, or school's adoption of any specific instructional content, academic standard, assessment, curriculum, commonality of standards or assessments, or program of instruction described in paragraph (1), even if such requirements are specified in section 14006 or 14007 of the American Recovery and Reinvestment Act of 2009 (Public Law 111–5; 123 Stat. 281) or any other Act.''.

(2) CONFORMING AMENDMENT.—Section 9527(a) of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7907(a)) is amended by striking ''curriculum, program of instruction, or''.

(c) PROHIBITION ON REQUIRING ADOPTION OF COMMON STANDARDS WITH RESPECT TO WAIVERS.—Section 9401 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7861) is amended by adding at the end the following:

''(h) PROHIBITION ON REQUIRING CERTAIN STANDARDS FOR WAIVERS.—

''(1) IN GENERAL.—The Secretary shall not require that a State, local educational agency, Indian tribe, or school adopt, as a prerequisite or condition for any waiver under this section, any specific instructional content, academic standard, assessment, curriculum, or program of instruction, including—

''(A) the Common Core State Standards developed under the Common Core State Standards Initiative, any other academic standards common to a number of States, or any specific statewide or nationally recognized content standards; or

''(B) any assessment, instructional content, or curriculum aligned to, or based on, any specific academic standards, including any of the standards described in subparagraph (A).

''(2) EFFECT ON PREVIOUSLY ISSUED WAIVERS.—

''(A) IN GENERAL.—Any requirement described in paragraph (1) that was required for a waiver provided to a State, local educational agency, Indian tribe, or school under this section before the date of enactment of the Local Control of Education Act shall be void and have no force of law.

''(B) PROHIBITED ACTIONS.—The Secretary shall not—

''(i) enforce any requirement that is void pursuant to subparagraph (A); and

''(ii) require the State, local educational agency, Indian tribe, or school to reapply for a waiver, or to agree to any other conditions to replace any requirements that is void pursuant to subparagraph (A), until the end of the period of time specified under the waiver.

''(C) NO EFFECT ON OTHER PROVISIONS.—Any other provisions or requirements of a waiver provided under this section before the date of enactment of the Local Control of Education Act that are not affected by subparagraph (A) shall remain in effect for the period of time specified under the waiver.''.

(d) PROHIBITION IN RACE TO THE TOP FUNDING.—Title XIV of division A of the American Recovery and Reinvestment Act of 2009 (Public Law 111–5) is amended by inserting after section 14007 the following:

''SEC. 14007A. PROHIBITION ON REQUIRING OR PREFERRING COMMON STANDARDS.

''The prohibitions of section 9527(e) of the Elementary and Secondary Education Act of 1965 shall apply to each grant awarded under section 14006 or 14007 in the same manner as such prohibitions apply to a grant awarded under such Act.''.

NOTICES OF INTENT TO SUSPEND THE RULES

Mr. COBURN. Mr. President, I submit the following notice in writing: In accordance with Rule V of the Standing Rules of the Senate, I hereby give

notice in writing that it is my intention to move to suspend Rule XXII, for the purpose of proposing and considering the following amendment No. 4003 to bill H.R. 3979, as follows:

At the end of subtitle J of title XXX of division B, add the following:

SEC. 30___. DEFERRED MAINTENANCE BACKLOG ON FEDERAL LAND.

Section 7(a) of the Land and Water Conservation Fund Act of 1965 (16 U.S.C. 460*l*–9(a)) is amended by adding at the end the following:

''(4) To address the maintenance backlog on Federal land.''.

Mr. COBURN. Mr. President, I submit the following notice in writing: In accordance with Rule V of the Standing Rules of the Senate, I hereby give notice in writing that it is my intention to move to suspend Rule XXII, for the purpose of proposing and considering the following amendment No. 4098 to bill H.R. 3979, as follows:

At the end, add the following:

DIVISION E—EFFECT OF CERTAIN PROVISIONS

SEC. 5001. SEALASKA LAND ENTITLEMENT FINALIZATION.

Notwithstanding any other provision of this Act, section 3002 shall have no force or effect.

SEC. 5002. BLACKSTONE RIVER VALLEY NATIONAL HISTORICAL PARK.

Notwithstanding any other provision of this Act, section 3031 shall have no force or effect.

SEC. 5003. COLTSVILLE NATIONAL HISTORICAL PARK.

Notwithstanding any other provision of this Act, section 3032 shall have no force or effect.

SEC. 5004. FIRST STATE NATIONAL HISTORICAL PARK.

Notwithstanding any other provision of this Act, section 3033 shall have no force or effect.

SEC. 5005. HINCHLIFFE STADIUM ADDITION TO PATERSON GREAT FALLS NATIONAL HISTORICAL PARK.

Notwithstanding any other provision of this Act, section 3037 shall have no force or effect.

SEC. 5006. MANHATTAN PROJECT NATIONAL HISTORICAL PARK.

Notwithstanding any other provision of this Act, section 3039 shall have no force or effect.

SEC. 5007. VALLES CALDERA NATIONAL PRESERVE, NEW MEXICO.

Notwithstanding any other provision of this Act, section 3043 shall have no force or effect.

SEC. 5008. VICKSBURG NATIONAL MILITARY PARK.

Notwithstanding any other provision of this Act, section 3044 shall have no force or effect.

SEC. 5009. REVOLUTIONARY WAR AND WAR OF 1812 AMERICAN BATTLEFIELD PROTECTION PROGRAM.

Notwithstanding any other provision of this Act, section 3050 shall have no force or effect.

SEC. 5010. SPECIAL RESOURCE STUDIES.

Notwithstanding any other provision of this Act, section 3051 shall have no force or effect.

SEC. 5011. NATIONAL HERITAGE AREAS AND CORRIDORS.

Notwithstanding any other provision of this Act, section 3052 shall have no force or effect.

SEC. 5012. COMMISSION TO STUDY THE POTENTIAL CREATION OF A NATIONAL WOMEN'S HISTORY MUSEUM.

Notwithstanding any other provision of this Act, section 3056 shall have no force or effect.

SEC. 5013. ALPINE LAKES WILDERNESS ADDITIONS AND PRATT AND MIDDLE FORK SNOQUALMIE RIVERS PROTECTION.

Notwithstanding any other provision of this Act, section 3060 shall have no force or effect.

SEC. 5014. COLUMBINE-HONDO WILDERNESS.

Notwithstanding any other provision of this Act, section 3061 shall have no force or effect.

SEC. 5015. HERMOSA CREEK WATERSHED PROTECTION.

Notwithstanding any other provision of this Act, section 3062 shall have no force or effect.

SEC. 5016. NORTH FORK FEDERAL LANDS WITHDRAWAL AREA.

Notwithstanding any other provision of this Act, section 3063 shall have no force or effect.

SEC. 5017. PINE FOREST RANGE WILDERNESS.

Notwithstanding any other provision of this Act, section 3064 shall have no force or effect.

SEC. 5018. ROCKY MOUNTAIN FRONT CONSERVATION MANAGEMENT AREA AND WILDERNESS ADDITIONS.

Notwithstanding any other provision of this Act, section 3065 shall have no force or effect.

SEC. 5019. WOVOKA WILDERNESS.

Notwithstanding any other provision of this Act, section 3066 shall have no force or effect.

SEC. 5020. WITHDRAWAL AREA RELATED TO WOVOKA WILDERNESS.

Notwithstanding any other provision of this Act, section 3067 shall have no force or effect.

SEC. 5021. ILLABOT CREEK, WASHINGTON, WILD AND SCENIC RIVER.

Notwithstanding any other provision of this Act, section 3071 shall have no force or effect.

SEC. 5022. MISSISQUOI AND TROUT WILD AND SCENIC RIVERS, VERMONT.

Notwithstanding any other provision of this Act, section 3072 shall have no force or effect.

SEC. 5023. WHITE CLAY CREEK WILD AND SCENIC RIVER EXPANSION.

Notwithstanding any other provision of this Act, section 3073 shall have no force or effect.

SEC. 5024. STUDIES OF WILD AND SCENIC RIVERS.

Notwithstanding any other provision of this Act, section 3074 shall have no force or effect.

SEC. 5025. MISCELLANEOUS ISSUES RELATED TO LAS VEGAS VALLEY PUBLIC LAND AND TULE SPRINGS FOSSIL BEDS NATIONAL MONUMENT.

Notwithstanding any other provision of this Act, section 3092 shall have no force or effect.

SEC. 5026. REFINANCING OF PACIFIC COAST GROUNDFISH FISHING CAPACITY REDUCTION LOAN.

Notwithstanding any other provision of this Act, section 3095 shall have no force or effect.

SEC. 5027. PAYMENTS IN LIEU OF TAXES.

Notwithstanding any other provision of this Act, section 3096 shall have no force or effect.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. DURBIN. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be authorized to meet during the session of the Senate on December 11, 2014, in room S–219 of the Capitol Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON ENVIRONMENT AND PUBLIC WORKS AND COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. DURBIN. Mr. President, I ask unanimous consent that the Committee on Environment and Public Works and the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate on December 11, 2014, at 9:30 a.m., in room SD–406 of the Dirksen Senate Office Building, to hold a joint hearing entitled, ''Oversight of the Implementation of the President's Executive Order on Improving Chemical Facility Safety and Security.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. DURBIN. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on December 11, 2014, at 10 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Mr. DURBIN. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate, on December 11, 2014, at 10 a.m., in room SD–226 of the Dirksen Senate Office Building, to conduct an executive business meeting.

The PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Mr. CHAMBLISS. Mr. President, I ask unanimous consent that Lewis Sorvillo, my defense legislative fellow, be granted floor privileges for the duration of the consideration of the NDAA and/or the 113th Congress.

Mr. CARDIN. Mr. President, I ask unanimous consent that floor privileges be granted to Kelly McKellogg Swaine, the Deputy Director of the Office of Public Affairs at the State Department's Bureau of East Asian and Pacific Affairs, who is currently serving on my staff as a Brookings LEGIS fellow, for the duration of today's session of the Senate.

SIGNING AUTHORITY

Mr. PRYOR. Madam President, I ask unanimous consent that from Thursday December 11 through Friday December 12, Senator PRYOR be authorized to sign duly-enrolled bills or joint resolutions.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDERS FOR FRIDAY, DECEMBER 12, 2014

Mr. PRYOR. Madam President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 10 a.m. on Friday, December 12, 2014; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following any leader remarks, the Senate resume consideration of the motion to concur in the House amendment to the Senate amendment to accompany H.R. 3979 postcloture.

The PRESIDING OFFICER. Without objection, it is so ordered.

N O T I C E

Incomplete record of Senate proceedings. Except for concluding business which follows, today's Senate proceedings will be continued in Book II.

PROGRAM

Mr. PRYOR. For the information of all Senators, if all debate time is used, there will be up to four rollcall votes in relation to the Defense authorization bill and the Saperstein nomination at 3 p.m. We hope to yield back some of the debate time.

ADJOURNMENT UNTIL 10 A.M. TOMORROW

Mr. PRYOR. Madam President, if there is no further business to come before the Senate, I ask unanimous consent that it adjourn under the previous order.

There being no objection, the Senate, at 11:30 p.m., adjourned until Friday, December 12, 2014, at 10 a.m.

CONFIRMATIONS

Executive nominations confirmed by the Senate December 11, 2014:

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be major general

BRIG. GEN. MARGARET C. WILMOTH

IN THE MARINE CORPS

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES MARINE CORPS TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. JAMES B. LASTER

IN THE NAVY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be vice admiral

REAR ADM. JAMES G. FOGGO III

IN THE AIR FORCE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE RESERVE OF THE AIR FORCE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be major general

BRIG. GEN. DEREK P. RYDHOLM

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. LARRY D. WYCHE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be brigadier general

COL. LAWRENCE F. THOMS

IN THE NAVY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be admiral

ADM. HARRY B. HARRIS, JR.

IN THE AIR FORCE

THE FOLLOWING AIR NATIONAL GUARD OF THE UNITED STATES OFFICER FOR APPOINTMENT IN THE RESERVE OF THE AIR FORCE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12212:

To be brigadier general

COL. SHELLEY R. CAMPBELL

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES AIR FORCE TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. MARK C. NOWLAND

IN THE ARMY

THE FOLLOWING ARMY NATIONAL GUARD OF THE UNITED STATES OFFICERS FOR APPOINTMENT IN THE RESERVE OF THE ARMY IN THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be brigadier general

COLONEL MICHAEL G. AMUNDSON
COLONEL CHARLES K. ARIS
COLONEL TOMMY H. BAKER
COLONEL JOE G. BARNARD, JR.
COLONEL BRIAN B. BARRONTINE
COLONEL BARRY K. BEACH
COLONEL MICHAEL R. BERRY
COLONEL THOMAS H. BLACKSTOCK, JR.
COLONEL WILLIAM B. BLAYLOCK II
COLONEL DANIEL J. BOCHICCHIO
COLONEL CHRISTOPHER P. CALLAHAN
COLONEL LLOYD P. CAVINESS, JR.
COLONEL FRED M. CHESBRO
COLONEL DAVID L.G. COLLINS
COLONEL JAMES D. CRAIG
COLONEL THOMAS G. CROYMANS
COLONEL ZACHARY F. DOSER
COLONEL GORDON L. ELLIS
COLONEL WILLIAM J. FREIDEL
COLONEL DANIEL J. FUHR
COLONEL TROY D. GALLOWAY
COLONEL JEFFREY L. GAYLORD
COLONEL DAVID E. GRAETZ
COLONEL MATTHEW J. HEARON
COLONEL WILLIAM J. HERSH
COLONEL THOMAS F. HESLIN, JR.
COLONEL MICHAEL T. HESTON
COLONEL MARK C. JACKSON
COLONEL BERT S. KOZEN
COLONEL CHRISTOPHER F. LAWSON
COLONEL TIM C. LAWSON
COLONEL COLLIER H. LIPPLE
COLONEL JOANE K. MATHEWS
COLONEL KENNETH L. MCCREARY
COLONEL ANTHONY V. MOHATT
COLONEL ADRIAN B. NETTLES
COLONEL TRACY R. NORRIS
COLONEL STEPHEN B. OWENS
COLONEL LAWRENCE R. POWELL
COLONEL JOHN M. PRINE
COLONEL HELEN E. ROGERS
COLONEL PAUL D. ROGERS
COLONEL ROBERT A. SPARING
COLONEL MARK C. STRONG
COLONEL BRIAN R. TRENDA
COLONEL BRYAN A. TUTKO
COLONEL WILLIAM J. WALKER
COLONEL STEVEN H. WARNSTADT
COLONEL RONALD A. WESTFALL
COLONEL CLIFFORD W. WILKINS

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY UNDER TITLE 10, U.S.C., SECTION 624:

To be major general

BRIG. GEN. DARSIE D. ROGERS, JR.

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. FREDERICK S. RUDESHEIM

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be brigadier general

COL. STEPHEN J. HAGER

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be brigadier general

COL. EUGENE J. LEBOEUF

THE FOLLOWING ARMY NATIONAL GUARD OF THE UNITED STATES OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be major general

BRIG. GEN. JOHN C. HARRIS

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be major general

BRIG. GEN. LEWIS G. IRWIN

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. DAVID E. QUANTOCK

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. ANTHONY R. IERARDI

IN THE MARINE CORPS

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES MARINE CORPS TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. VINCENT R. STEWART

IN THE AIR FORCE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES AIR FORCE TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

LT. GEN. ANDREW E. BUSCH

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY UNDER TITLE 10, U.S.C., SECTION 624:

To be major general

BRIG. GEN. RICHARD D. CLARKE, JR.

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

LT. GEN. JOHN F. MULHOLLAND, JR.

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be brigadier general

COL. AARON T. WALTER

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be brigadier general

COL. DAVID W. LING

IN THE NAVY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be vice admiral

REAR ADM. TROY M. SHOEMAKER

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be admiral

VICE ADM. SCOTT H. SWIFT

IN THE AIR FORCE

AIR FORCE NOMINATIONS BEGINNING WITH TAFT OWEN AUJERO AND ENDING WITH JEFFERY LYNN RICHARD, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MAY 15, 2014.

AIR FORCE NOMINATIONS BEGINNING WITH PETER BRIAN ABERCROMBIE II AND ENDING WITH JASON C. ZUMWALT, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JULY 31, 2014.

AIR FORCE NOMINATIONS BEGINNING WITH GEORGE W. CLIFFORD III AND ENDING WITH YOUNG J. JUN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 15, 2014.

AIR FORCE NOMINATIONS BEGINNING WITH TRAVIS K. ACHESON AND ENDING WITH PAUL C. ZURKOWSKI, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 13, 2014.

AIR FORCE NOMINATION OF JENNIFER C. ALEXANDER, TO BE COLONEL.

AIR FORCE NOMINATION OF JOYCE P. FIEDLER, TO BE COLONEL.

AIR FORCE NOMINATIONS BEGINNING WITH ROBERT B. O. ALLEN AND ENDING WITH KEITH M. VOLLENWEIDER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

AIR FORCE NOMINATIONS BEGINNING WITH RICHARD Y. BAIRD AND ENDING WITH JEROME L. VINLUAN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

AIR FORCE NOMINATIONS BEGINNING WITH RICHARD M. BURGON AND ENDING WITH JOSHUA N. SCOTT, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

AIR FORCE NOMINATION OF ALLYSON M. YAMAKI, TO BE MAJOR.

AIR FORCE NOMINATIONS BEGINNING WITH AARON J. AGIRRE AND ENDING WITH GREGORY S. ZILINSKI, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

AIR FORCE NOMINATIONS BEGINNING WITH ERIKA S. ABRAHAM AND ENDING WITH FEI ZHANG, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

AIR FORCE NOMINATIONS BEGINNING WITH RHETT B. CASPER AND ENDING WITH STACEY ELIZABETH ZAIKOSKI, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

AIR FORCE NOMINATIONS BEGINNING WITH JOSE C. AGUIRRE AND ENDING WITH SANDY K. YIP, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

AIR FORCE NOMINATIONS BEGINNING WITH JASON D. EITUTIS AND ENDING WITH BRIAN K. WYRICK, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

AIR FORCE NOMINATIONS BEGINNING WITH SARAHANN BEAL AND ENDING WITH CAROL C. WALTERS, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

AIR FORCE NOMINATIONS BEGINNING WITH DAVID P. ABBOTT AND ENDING WITH KEVIN D. UNDERWOOD, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

AIR FORCE NOMINATIONS BEGINNING WITH MOHAMMED H. ALJALLAD AND ENDING WITH ANITA M. YATES, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

IN THE ARMY

ARMY NOMINATION OF KIMBERELY DEROUENSLAVEN, TO BE COLONEL.

ARMY NOMINATION OF BARRY C. BUSBY, TO BE MAJOR.

ARMY NOMINATIONS BEGINNING WITH LAMAR D. ADAMS AND ENDING WITH G001317, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 15, 2014.

ARMY NOMINATIONS BEGINNING WITH ERIC C. ANDERSON AND ENDING WITH D011466, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 15, 2014.

ARMY NOMINATIONS BEGINNING WITH RANDY L. BRANDT AND ENDING WITH KENNETH R. WILLIAMS, JR., WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 15, 2014.

ARMY NOMINATIONS BEGINNING WITH MICHAEL D. ACORD AND ENDING WITH D006516, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 15, 2014.

ARMY NOMINATION OF DARRELL R. V. TRAN, TO BE MAJOR.

ARMY NOMINATIONS BEGINNING WITH GEORGE W. MASON III AND ENDING WITH ALVIN D. WILSON, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 15, 2014.

ARMY NOMINATIONS BEGINNING WITH JOHN W. BOZICEVIC AND ENDING WITH JAMES E. SCALF, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 15, 2014.

ARMY NOMINATION OF PATRICK M. MCGRATH, TO BE MAJOR.

ARMY NOMINATIONS BEGINNING WITH PEGGY E. D. MCGILL AND ENDING WITH ELENA M. SCARBROUGH, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATIONS BEGINNING WITH DELROY A. BROWN AND ENDING WITH RICHARD G. SCHMID, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATIONS BEGINNING WITH BRIAN R. COLEMAN AND ENDING WITH ROBERT W. THOMPSON, JR., WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATIONS BEGINNING WITH VANCE J. ARGO AND ENDING WITH GREGORY W. TEISAN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATIONS BEGINNING WITH SCOTT A. ARCAND AND ENDING WITH WILLIAM D. WEAVER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATIONS BEGINNING WITH DAWN M. FLYNN AND ENDING WITH SANDRA J. HETZEL, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATIONS BEGINNING WITH SCOTT B. BYERS AND ENDING WITH CHARLENE A. WEINGARTEN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATIONS BEGINNING WITH DONNA K. AYERS AND ENDING WITH MARY E. WOODARD, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATIONS BEGINNING WITH FELIX J. E. ANDUJAR AND ENDING WITH TERENCE R. WOODS, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATIONS BEGINNING WITH BRYAN D. BROWN AND ENDING WITH NICHOLAS D. YOUNG, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATIONS BEGINNING WITH ANTHONY J. LABADIA AND ENDING WITH JOSEPH F. TOMMASINO, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATIONS BEGINNING WITH MARTA E. ACHA AND ENDING WITH RICORD W. TORGERSON, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATIONS BEGINNING WITH ZENAIDA M. COFIE AND ENDING WITH TODD L. STEWART, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON SEPTEMBER 17, 2014.

ARMY NOMINATION OF JOSEPH T. MORRIS, TO BE COLONEL.

ARMY NOMINATION OF RICHARD T. KNOWLTON, TO BE COLONEL.

ARMY NOMINATIONS BEGINNING WITH ROBERT A. BORCHERDING AND ENDING WITH DEAN L. WHITFORD, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 13, 2014.

ARMY NOMINATION OF STEVEN E. BAKER, TO BE MAJOR.

ARMY NOMINATION OF ARUN SHARMA, TO BE MAJOR.

ARMY NOMINATION OF JAMES M. BRUMIT, TO BE LIEUTENANT COLONEL.

ARMY NOMINATIONS BEGINNING WITH SAMUEL AGOSTOSANTIAGO AND ENDING WITH JOHN R. WILT, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 13, 2014.

ARMY NOMINATIONS BEGINNING WITH EDWIN B. BALES AND ENDING WITH RYAN M. ZIPF, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 13, 2014.

ARMY NOMINATIONS BEGINNING WITH PAUL P. MCBRIDE AND ENDING WITH PAUL E. REYNOLDS, JR., WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 13, 2014.

ARMY NOMINATION OF JOHN E. ATWOOD, TO BE COLONEL.

ARMY NOMINATIONS BEGINNING WITH DANIEL H. ALDANA AND ENDING WITH DAVID R. NAVORSKA, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 13, 2014.

ARMY NOMINATION OF ERIC GRAHAM, TO BE LIEUTENANT COLONEL.

ARMY NOMINATIONS BEGINNING WITH SUSAN DAVIS AND ENDING WITH MATTHEW G. STLAURENT, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 13, 2014.

ARMY NOMINATIONS BEGINNING WITH SHELLEY P. HONNOLD AND ENDING WITH NEAL E. WOOLLEN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 13, 2014.

ARMY NOMINATIONS BEGINNING WITH SUSAN J. ARGUETA AND ENDING WITH JASON S. WINDSOR, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 13, 2014.

ARMY NOMINATIONS BEGINNING WITH JOHN R. BAILEY AND ENDING WITH D004653, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 13, 2014.

ARMY NOMINATIONS BEGINNING WITH GARY L. GROSS AND ENDING WITH CRAIG D. SHRIVER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 13, 2014.

ARMY NOMINATIONS BEGINNING WITH MELISSA R. BEAUMAN AND ENDING WITH MICHAEL W. STEPHENS, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 13, 2014.

ARMY NOMINATION OF RICHARD M. HESTER, TO BE LIEUTENANT COLONEL.

ARMY NOMINATION OF JAY E. CLASING, TO BE LIEUTENANT COLONEL.

ARMY NOMINATIONS BEGINNING WITH SCOTT J. ANDERSON AND ENDING WITH STEFANIA V. WILCOX, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

ARMY NOMINATIONS BEGINNING WITH RACHEL R. ANTHONY AND ENDING WITH D011532, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

ARMY NOMINATIONS BEGINNING WITH NADINE M. ALONZO AND ENDING WITH D012299, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

ARMY NOMINATIONS BEGINNING WITH MARK ACOPAN AND ENDING WITH TIMOTHY R. YOURK, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

ARMY NOMINATIONS BEGINNING WITH KATHARINE M. E. ADAMS AND ENDING WITH HANS P. ZELLER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

ARMY NOMINATIONS BEGINNING WITH ROBERT J. ABBOTT AND ENDING WITH D011857, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON DECEMBER 3, 2014.

IN THE MARINE CORPS

MARINE CORPS NOMINATION OF TIMOTHY E. ROBERTSON, TO BE LIEUTENANT COLONEL.

MARINE CORPS NOMINATION OF CHRISTOPHER E. HALL, TO BE MAJOR.

IN THE NAVY

NAVY NOMINATION OF ANGELA M. ROWELL, TO BE LIEUTENANT COMMANDER.

NAVY NOMINATION OF GREGORY L. KOONTZ, TO BE LIEUTENANT COMMANDER.

NAVY NOMINATION OF TIMOTHY S. ROUSH, TO BE CAPTAIN.

NAVY NOMINATION OF KIMBERLY M. FREITAS, TO BE LIEUTENANT COMMANDER.

NAVY NOMINATION OF ADAM B. YOST, TO BE LIEUTENANT COMMANDER.

NAVY NOMINATION OF CHARLES S. EISENBERG, TO BE LIEUTENANT COMMANDER .

NAVY NOMINATION OF JACK W.L. TSAO, TO BE CAPTAIN.

NAVY NOMINATION OF JAMES M. ROSS, TO BE LIEUTENANT COMMANDER.

NAVY NOMINATION OF LAKEEVA B. GUNDERSON, TO BE LIEUTENANT COMMANDER .

NAVY NOMINATIONS BEGINNING WITH TRAVIS S. ANDERSON AND ENDING WITH JULIAN G. WILSON III, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON NOVEMBER 17, 2014.

Daily Digest

HIGHLIGHTS

House agreed to the Senate amendment with an amendment to H.R. 83, Consolidated and Further Continuing Appropriations Act, 2015.

Senate

Chamber Action

Routine Proceedings, pages S6583–S6647

Measures Introduced: Eleven bills and one resolution were introduced, as follows: S. 2998–3008, and S. Res. 599. **Pages S6626–27**

Measures Reported:

Special Report entitled ''Fighting Fraud: Lessons Learned from the Senate Aging Committee's Consumer Hotline''. (S. Rept. No. 113–305)

Special Report entitled ''Medicare Part D Prescription Drug Benefit: Increasing Use and Access of Affordable Prescription Drugs''. (S. Rept. No. 113–306)

S. 1784, to improve timber management on Oregon and California Railroad and Coos Bay Wagon Road grant land, with an amendment in the nature of a substitute. (S. Rept. No. 113–307)

S. 1463, to amend the Lacey Act Amendments of 1981 to prohibit importation, exportation, transportation, sale, receipt, acquisition, and purchase in interstate or foreign commerce, or in a manner substantially affecting interstate or foreign commerce, of any live animal of any prohibited wildlife species. (S. Rept. No. 113–308)

H.R. 4573, to protect children from exploitation, especially sex trafficking in tourism, by providing advance notice of intended travel by registered child-sex offenders outside the United States to the government of the country of destination, requesting foreign governments to notify the United States when a known child-sex offender is seeking to enter the United States.

S. Res. 595, recognizing Nobel Laureates Kailash Satyarthi and Malala Yousafzai for their efforts to end the financial exploitation of children and to ensure the right of all children to an education, with an amendment in the nature of a substitute and with an amended preamble.

S. Res. 597, commemorating and supporting the goals of World AIDS day.

S. 2922, to reinstate reporting requirements related to United States-Hong Kong relations, with an amendment.

S. Con. Res. 38, expressing the sense of Congress that Warren Weinstein should be returned home to his family, with an amendment in the nature of a substitute. **Page S6626**

Measures Passed:

Ukraine Freedom Support Act: Senate passed S. 2828, to impose sanctions with respect to the Russian Federation, to provide additional assistance to Ukraine, after withdrawing the committee amendments, and agreeing to the following amendment proposed thereto: **Pages S6602–07**

Durbin (for Menendez/Corker) Amendment No. 4092, in the nature of a substitute. **Page S6607**

Transfer of Yellow Creek Port Properties: Committee on Environment and Public Works was discharged from further consideration of H.R. 3044, to approve the transfer of Yellow Creek Port properties in Iuka, Mississippi, and the bill was then passed. **Page S6607**

Safe and Secure Drinking Water Protection Act: Committee on Environment and Public Works was discharged from further consideration of S. 2785, to direct the Administrator of the Environmental Protection Agency to publish a health advisory and submit reports with respect to microcystins in drinking water, and the bill was then passed. **Page S6607**

Community Financial Institutions: Committee on Banking, Housing, and Urban Affairs was discharged from further consideration of H.R. 3329, to enhance the ability of community financial institutions to foster economic growth and serve their communities, boost small businesses, increase individual

savings, and the bill was then passed, after agreeing to the following amendment proposed thereto:

Pages S6607–08

Durbin (for King) Amendment No. 4093, in the nature of a substitute. **Page S6608**

Credit Union Share Insurance Fund Parity Act: Committee on Banking, Housing, and Urban Affairs was discharged from further consideration of H.R. 3468, to amend the Federal Credit Union Act to extend insurance coverage to amounts held in a member account on behalf of another person, and the bill was then passed. **Page S6608**

Central Oregon Jobs and Water Security Act: Committee on Energy and Natural Resources was discharged from further consideration of H.R. 2640, to amend the Wild and Scenic Rivers Act to adjust the Crooked River boundary, to provide water certainty for the City of Prineville, Oregon, and the bill was then passed, after agreeing to the following amendment proposed thereto: **Pages S6621–22**

Merkley Amendment No. 4094, in the nature of a substitute. **Page S6622**

Justice Against Sponsors of Terrorism Act: Senate passed S. 1535, to deter terrorism, provide justice for victims, after agreeing to the committee amendment in the nature of a substitute, and the following amendment proposed thereto:

(See Next Issue.)

Schumer/Cornyn Amendment No. 4096, in the nature of substitute. **(See Next Issue.)**

Cybersecurity Act: Senate passed S. 1353, to provide for an ongoing, voluntary public-private partnership to improve cybersecurity, and to strengthen cybersecurity research and development, workforce development and education, and public awareness and preparedness, after agreeing to the committee amendment in the nature of a substitute, and the following amendment proposed thereto:

(See Next Issue.)

King (for Rockefeller/Thune) Amendment No. 4097, in the nature of a substitute. **(See Next Issue.)**

Continuing Resolution: Senate passed H.J. Res. 130, making further continuing appropriations for fiscal year 2015. **(See Next Issue.)**

Michael D. Resnick Terrorist Screening Center: Committee on Environment and Public Works was discharged from further consideration of H.R. 3096, to designate the building occupied by the Federal Bureau of Investigation located at 801 Follin Lane, Vienna, Virginia, as the ''Michael D. Resnick Terrorist Screening Center'', and the bill was then passed. **(See Next Issue.)**

Designer Anabolic Steroid Control Act: Committee on the Judiciary was discharged from further consideration of H.R. 4771, to amend the Controlled Substances Act to more effectively regulate anabolic steroids, and the bill was then passed.

(See Next Issue.)

EPS Service Parts Act: Committee on Energy and Natural Resources was discharged from further consideration of H.R. 5057, to amend the Energy Policy and Conservation Act to permit exemptions for external power supplies from certain efficiency standards, and the bill was then passed. **(See Next Issue.)**

Mortgages, Mortgage Foreclosure, and Eviction: Senate passed S. 3008, to extend temporarily the extended period of protection for members of uniformed services relating to mortgages, mortgage foreclosure, and eviction. **(See Next Issue.)**

United States Anti-Doping Agency Reauthorization Act: Senate passed S. 2338, to reauthorize the United States Anti-Doping Agency. **(See Next Issue.)**

Melville Hall of United States Merchant Marine Academy: Committee on Commerce, Science, and Transportation was discharged from further consideration of S. 2983, to allow for a contract for operation of Melville Hall of United States Merchant Marine Academy after gift by United States Merchant Marine Academy Alumni Association and Foundation, Inc., for renovation of such hall, and the bill was then passed. **(See Next Issue.)**

100-Year Anniversary of Big Brothers Big Sisters Southeastern Pennsylvania: Senate agreed to S. Res. 599, recognizing the 100-year anniversary of Big Brothers Big Sisters Southeastern Pennsylvania.

(See Next Issue.)

House Messages:

Carl Levin and Howard P. "Buck" McKeon National Defense Authorization Act—Agreement: Senate continued consideration of the amendment of the House of Representatives to the amendment of the Senate to H.R. 3979, to amend the Internal Revenue Code of 1986 to ensure that emergency services volunteers are not taken into account as employees under the shared responsibility requirements contained in the Patient Protection and Affordable Care Act, taking action on the following motions and amendments proposed thereto:

Pages S6585–S6602, S6608–21

Pending:

Reid motion to concur in the amendment of the House to the amendment of the Senate to the bill. **Page S6585**

Reid motion to concur in the amendment of the House to the amendment of the Senate to the bill,

with Reid Amendment No. 3984 (to the amendment of the House to the amendment of the Senate to the bill), to change the enactment date.

Page S6585

Reid Amendment No. 3985 (to Amendment No. 3984), of a perfecting nature. **Page S6585**

During consideration of this measure today, Senate also took the following action:

By 85 yeas to 14 nays (Vote No. 322), three-fifths of those Senators duly chosen and sworn, having voted in the affirmative, Senate agreed to the motion to close further debate on the motion to concur in the amendment of the House to the amendment of the Senate to the bill. **Page S6590**

Reid motion to refer the message of the House on the bill to the Committee on Armed Services, with instructions, Reid Amendment No. 3986, to change the enactment date, fell when cloture was invoked on the motion to concur in the amendment of the House to the amendment of the Senate to the bill. **Page S6585**

Reid Amendment No. 3987 (to (the instructions) Amendment No. 3986), of a perfecting nature, fell when Reid motion to refer the message of the House on the bill to the Committee on Armed Services, with instructions, Reid Amendment No. 3986 fell. **Page S6585**

Reid Amendment No. 3988 (to Amendment No. 3987), of a perfecting nature, fell when Reid Amendment No. 3987 (to (the instructions) Amendment No. 3986), of a perfecting nature fell. **Page S6585**

A unanimous-consent-time agreement was reached providing that at 12 noon, on Friday, December 12, 2014, all post-cloture time on the motion to concur in the House amendment to the Senate amendment to the bill be considered expired; that it be in order, notwithstanding cloture having been invoked for Senator Coburn to offer a motion to refer the House Message; that there be three hours of debate, one hour each for Senators Coburn and Reid, or their designees, and 30 minutes each for Senators Murkowski and Inhofe, or their designees, prior to a vote on or in relation to the motion to refer; that the Coburn motion to refer be subject to a 60-affirmative vote threshold; that if the Coburn motion to refer is not agreed to, Senator Coburn be recognized for the purposes of making a motion; that following disposition of the Coburn motion, the pending motion to concur with a further amendment be withdrawn; that the Senate vote on the motion to concur; that no motions other than the Coburn motions, motions to waive or motions to table be in order; that the vote on the motion to concur be subject to a 60-affirmative vote threshold; that if the motion to concur is agreed to, Senate begin consideration of the following concurrent resolutions, en bloc: H. Con. Res. 21, providing for a correction in the enrollment of the bill H.R. 3979; and H. Con. Res. 123, directing the Clerk of the House of Representatives to make a correction in the enrollment of the bill H.R. 3979; and that the concurrent resolutions be agreed to. **(See Next Issue.)**

A unanimous-consent agreement was reached providing for further consideration of the motion to concur in the amendment of the House to the amendment of the Senate to the bill, at approximately 10 a.m., on Friday, December 12, 2014. **(See Next Issue.)**

Appointments:

National Committee on Vital and Health Statistics: The Chair announced, on behalf of the Majority Leader, pursuant to the provisions of Public Law 104–191, the reappointment of the following individual to the National Committee on Vital and Health Statistics: Dr. Raj Chanderraj of Nevada for a term of four years. **(See Next Issue.)**

Public Safety Officer Medal of Valor Review Board: The Chair announced, on behalf of the Majority Leader, pursuant to the provisions of Public Law 107–12, the appointment of the following individual to serve as a member of the Public Safety Officer Medal of Valor Review Board: Michael Halley of Nevada vice Al Gillespie of Nevada. **(See Next Issue.)**

Signing Authority—Agreement: A unanimous-consent agreement was reached providing that from Thursday, December 11, 2014, through Friday, December 12, 2014, Senator Pryor be authorized to sign duly enrolled bills or joint resolutions. **(See Next Issue.)**

Nominations—Agreement: A unanimous-consent-time agreement was reached providing that following disposition of the House Message with respect to H.R. 3979, to amend the Internal Revenue Code of 1986 to ensure that emergency services volunteers are not taken into account as employees under the shared responsibility requirements contained in the Patient Protection and Affordable Care Act, Senate begin consideration of the nominations of Mark Gilbert, of Florida, to be Ambassador to New Zealand, and to serve concurrently and without additional compensation as Ambassador to the Independent State of Samoa; Robert C. Barber, of Massachusetts, to be Ambassador to the Republic of Iceland; David Nathan Saperstein, of the District of Columbia, to be Ambassador at Large for International Religious Freedom; Amy Jane Hyatt, of California, to be Ambassador to the Republic of Palau; Arnold A. Chacon, of Virginia, to be Director General of the

Foreign Service; Virginia E. Palmer, of Virginia, to be Ambassador to the Republic of Malawi; Donald L. Heflin, of Virginia, to be Ambassador to the Republic of Cabo Verde; Michael W. Kempner, of New Jersey, to be a Member of the Broadcasting Board of Governors for a term expiring August 13, 2015; and Leon Aron, of Virginia, to be a Member of the Broadcasting Board of Governors for a term expiring August 13, 2016; that there be two minutes for debate, equally divided between the two Leaders, or their designees, prior to each vote; that upon the use or yielding back of time, Senate vote, without intervening action or debate, on confirmation of the nominations in the order listed; that any roll call votes, following the first in the series, be 10 minutes in length; and that no further motions be in order to the nominations. **(See Next Issue.)**

Nominations Confirmed: Senate confirmed the following nominations:

4 Air Force nominations in the rank of general.

65 Army nominations in the rank of general.

2 Marine Corps nominations in the rank of general.

4 Navy nominations in the rank of admiral.

Routine lists in the Air Force, Army, Marine Corps, and Navy. **Pages S6646–47**

Messages from the House: **Pages S6622–23**

Measures Referred: **Page S6623**

Executive Communications: **Pages S6623–26**

Executive Reports of Committees: **Page S6626**

Additional Cosponsors: **Page S6627**

Statements on Introduced Bills/Resolutions: **Pages S6627–31**

Additional Statements

Amendments Submitted: **Page S6645**

Notices of Intent

Authorities for Committees to Meet: **Page S6645**

Privileges of the Floor: **Page S6645**

Record Votes: One record vote was taken today. (Total—322) **Page S6590**

Adjournment: Senate convened at 9:30 a.m. and adjourned at 11:30 p.m., until 10:00 a.m. on Friday, December 12, 2014. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S6646.)

Committee Meetings

(Committees not listed did not meet)

IMPROVING CHEMICAL FACILITY SAFETY AND SECURITY

Committee on Environment and Public Works: Committee concluded a joint oversight hearing with the Committee on Health, Education, Labor, and Pensions to examine the implementation of the President's executive order on Improving Chemical Facility Safety and Security, after receiving testimony from David Michaels, Assistant Secretary of Labor for Occupational Safety and Health Administration; and Mathy Stanislaus, Assistant Administrator, Office of Solid Waste and Emergency Response, Environmental Protection Agency.

BUSINESS MEETING

Committee on Foreign Relations: Committee ordered favorably reported the following business items:

An original resolution to authorize the limited use of the United States Armed Forces against the Islamic State of Iraq and the Levant;

S. Con. Res. 38, expressing the sense of Congress that Warren Weinstein should be returned home to his family, with an amendment in the nature of a substitute;

S. Res. 595, recognizing Nobel Laureates Kailash Satyarthi and Malala Yousafzai for their efforts to end the financial exploitation of children and to ensure the right of all children to an education, with an amendment in the nature of a substitute;

S. Res. 597, commemorating and supporting the goals of World AIDS Day;

H.R. 4573, to protect children from exploitation, especially sex trafficking in tourism, by providing advance notice of intended travel by registered child-sex offenders outside the United States to the government of the country of destination, requesting foreign governments to notify the United States when a known child-sex offender is seeking to enter the United States;

S. 2922, to reinstate reporting requirements related to United States-Hong Kong relations, with an amendment; and

The nominations of Antony Blinken, of New York, to be Deputy Secretary of State, Leslie Berger Kiernan, of Maryland, as an Alternate Representative of the United States of America, to the Sixty-ninth Session of the General Assembly of the United Nations, and a list in the Foreign Service.

BUSINESS MEETING

Committee on the Judiciary: Committee ordered favorably reported the nominations of Joan Marie Azrack,

to be United States District Judge for the Eastern District of New York, Loretta Copeland Biggs, to be United States District Judge for the Middle District of North Carolina, Elizabeth K. Dillon, to be United States District Judge for the Western District of Virginia, and Michael P. Botticelli, of the District of Columbia, to be Director of National Drug Control Policy.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 39 public bills, H.R. 5848–5886; and 3 resolutions, H. Res. 779–781 were introduced. **Pages H9302–04**

Additional Cosponsors: **Pages H9304–05**

Reports Filed: Reports were filed today as follows:

H.R. 2612, to amend title 40, United States Code, to improve the functioning and management of the Public Buildings Service (H. Rept. 113–656);

H.R. 5233, to amend chapter 90 of title 18, United States Code, to provide Federal jurisdiction for the theft of trade secrets, and for other purposes, with an amendment (H. Rept. 113–657);

H.R. 5402, to amend the Clayton Act and the Federal Trade Commission Act to provide that the Federal Trade Commission shall exercise authority with respect to mergers only under the Clayton Act and only in the same procedural manner as Attorney General exercises such authority (H. Rept. 113–658);

Second Annual Report of the Activities of the Committee on Veterans' Affairs of the House of Representatives During the One Hundred Thirteenth Congress (H. Rept 113–659);

H.R. 2751, to amend the Small Business Act to prohibit the use of reverse auctions for design and construction services procurements (H. Rept 113–660);

H.R. 2452, to amend the Small Business Act with respect to the procurement program for women-owned small business concerns, and for other purposes (H. Rept 113–661);

H.R. 2882, to amend the Small Business Act and title 38, United States Code to provide for a consolidated definition of a small business concern owned and controlled by veterans, and for other purposes, with an amendment (H. Rept. 113–662, Part 1);

In the Matter of Allegations Relating to Representative Alcee L. Hastings (H. Rept. 113–663);

In the Matter of Allegations Relating to Representative Phil Gingrey (H. Rept. 113–664);

In the Matter of Allegations Relating to Representative Judy Chu (H. Rept. 113–665); and

In the Matter of Allegations Relating to Representative Tom Petri (H. Rept. 113–666).

Pages H9301–02

Speaker: Read a letter from the Speaker wherein he appointed Representative Kingston to act as Speaker pro tempore for today. **Page H9047**

Journal: The House agreed to the Speaker's approval of the Journal by a voice vote. **Page H9048**

Filing Authority: Agreed by unanimous consent that all committees have until 5 p.m. on December 30, 2014, to file reports to accompany measures. **Pages H9049–50**

Suspensions: The House agreed to suspend the rules and pass the following measures:

Soledad Canyon Settlement Act: H.R. 5742, to provide to the Secretary of the Interior a mechanism to cancel contracts for the sale of materials CA–20139 and CA–22901; **Pages H9050–53**

Protecting and Securing Chemical Facilities from Terrorist Attacks Act of 2014: Concurred in the Senate amendment to H.R. 4007, to recodify and reauthorize the Chemical Facility Anti-Terrorism Standards Program; **Pages H9053–60**

Critical Infrastructure Research and Development Advancement Act of 2014: Concurred in the Senate amendments to H.R. 2952, to amend the Homeland Security Act of 2002 to make certain improvements in the laws relating to the advancement of security technologies for critical infrastructure protection; and **Pages H9060–62**

National Cybersecurity and Communications Integration Center Act of 2014: S. 2519, to codify an existing operations center for cybersecurity. **Pages H9062–65**

Suspension—Proceedings Failed: The House failed to agree to suspend the rules and pass the following measure which was debated on Wednesday, December 10th:

Supporting America's Charities Act: H.R. 5806, to amend the Internal Revenue Code of 1986 to

modify and make permanent certain expiring provisions related to charitable contributions, by a ⅔ yea-and-nay vote of 275 yeas to 149 nays, Roll No. 562. **Page H9075**

Recess: The House recessed at 2:07 p.m. and reconvened at 8:56 p.m. **Page H9284**

Consolidated and Further Continuing Appropriations Act, 2015: The House agreed to the motion to concur in the Senate amendment with an amendment consisting of the text of Rules Committee Print 113–59, modified by the amendment printed in H. Rept. 113–655, to H.R. 83, to require the Secretary of the Interior to assemble a team of technical, policy, and financial experts to address the energy needs of the insular areas of the United States and the Freely Associated States through the development of action plans aimed at reducing reliance on imported fossil fuels and increasing use of indigenous clean-energy resource, by a yea-and-nay vote of 219 yeas to 206 nays, Roll No. 563. **Pages H9065–75, H9076–90**

H. Res. 776, the rule providing for consideration of the Senate amendment to the bill (H.R. 83), was agreed to by a yea-and-nay vote of 214 yeas to 212 nays, Roll No. 561, after the previous question was ordered. **Pages H9074–75**

Pursuant to H. Res. 776, H. Con. Res. 122 was adopted. **Page H9291**

Suspension—Proceedings Resumed: The House agreed to suspend the rules and pass the following measure which was debated on Tuesday, December 9th:

John Muir National Historic Site Expansion Act: H.R. 5699, amended, to authorize the Secretary of the Interior to acquire approximately 44 acres of land in Martinez, California, by a ⅔ yea-and-nay vote of 361 yeas to 39 nays, Roll No. 564. **Pages H9290–91**

Making further continuing appropriations for fiscal year 2015: The House agreed to discharge from committee and pass H.J. Res. 130, making further continuing appropriations for fiscal year 2015. **Page H9291**

Announcement from the Chair: Pursuant to House Resolution 676, the Chair announced that a civil action was initiated on November 21, 2014, in the United States District Court for the District of Columbia relating to the Patient Protection and Affordable Care Act. **Page H9292**

Requiring the Secretary of the Interior to assemble a team of technical, policy, and financial experts to address the energy needs of the insular areas of the United States: The House agreed to discharge from committee and pass H.R. 5803, to require the Secretary of the Interior to assemble a team of technical, policy, and financial experts to address the energy needs of the insular areas of the United States and the Freely Associated States through the development of energy action plans aimed at promoting access to affordable, reliable energy, including increasing use of indigenous clean-energy resources. **Page H9292**

Amending certain provisions of the FAA Modernization and Reform Act of 2012: The House agreed to discharge from committee and pass H.R. 2591, to amend certain provisions of the FAA Modernization and Reform Act of 2012. **Page H9292**

Central Oregon Jobs and Water Security Act: The House agreed to take from the Speaker's table and concur in the Senate amendment to H.R. 2640, to amend the Wild and Scenic Rivers Act to adjust the Crooked River boundary, to provide water certainty for the City of Prineville, Oregon. **Pages H9292–93**

Alaska Safe Families and Villages Act of 2014: The House agreed to take from the Speaker's table and pass S. 1474, to amend the Juvenile Justice and Delinquency Prevention Act of 1974 to eliminate the use of valid court orders to secure lockup of status offenders. **Page H9294**

Cybersecurity Act: The House agreed to take from the Speaker's table and pass S. 1353, to provide for an ongoing, voluntary public-private partnership to improve cybersecurity and to strengthen cybersecurity research and development, workforce development and education, and public awareness and preparedness. **Pages H9294–99**

Enhancing the ability of community financial institutions to foster economic growth: The House agreed to take from the Speaker's table and concur in the Senate amendment to H.R.3329, to enhance the ability of community financial institutions to foster economic growth and serve their communities, boost small businesses, and increase individual savings. **(See Next Issue.)**

Imposing sanctions with respect to the Russian Federation and providing additional assistance to Ukraine: The House agreed to discharge from committee and pass H.R. 5859, to impose sanctions with respect to the Russian Federation and to provide additional assistance to Ukraine. **(See Next Issue.)**

Meeting Hour: Agreed by unanimous consent that when the House adjourns today, it adjourn to meet at 3 p.m. tomorrow, December 12. **Page H9299**

Senate Messages: Messages received from the Senate by the Clerk and subsequently presented to the House today and messages received from the Senate

today appear on pages H9075–76, H9291–92, H9294.

Senate Referrals: S. 2822, S. 2785, S. 2828, and S. 1535 were held at the desk. **Pages H9076, H9291–92**

Quorum Calls—Votes: Four yea-and-nay votes developed during the proceedings of today and appear on pages H9074–75, H9075, H9290 and H9291. There were no quorum calls.

Adjournment: The House met at 9 a.m. and adjourned at 10:27 p.m.

Committee Meetings

THE ENERGY POLICY AND CONSERVATION ACT OF 1975: ARE WE POSITIONING AMERICA FOR SUCCESS IN AN ERA OF ENERGY ABUNDANCE?

Committee on Energy and Commerce: Subcommittee on Energy and Power held a hearing entitled ''The Energy Policy and Conservation Act of 1975: Are We Positioning America for Success in an Era of Energy Abundance?''. Testimony was heard from Adam Sieminski, Administrator, U.S. Energy Information Administration; and public witnesses.

THE FUTURE OF NUCLEAR ENERGY

Committee on Science, Space, and Technology: Subcommittee on Energy held a hearing entitled ''The Future of Nuclear Energy''. Testimony was heard from Peter Lyons, Assistant Secretary, Office of Nuclear Energy, Department of Energy; and public witnesses.

BUSINESS MEETING; EVALUATING FEDERAL AND COMMUNITY EFFORTS TO ELIMINATE VETERAN HOMELESSNESS

Committee on Veterans' Affairs: Full Committee held a business meeting to approve the second annual activities report for the 113th Congress and a hearing entitled ''Evaluating Federal and Community Efforts to Eliminate Veteran Homelessness''. The second annual activities report for the 113th Congress was adopted. Testimony was heard from Lisa Pape, Executive Director, Homeless Programs, Veterans Health Administration, Department of Veterans Affairs; Jennifer Ho, Senior Advisor on Housing and Services to the Secretary, Department of Housing and Urban Development; Keith Kelly, Assistant Secretary of Labor, Veterans' Employment and Training Service, Department of Labor; and public witnesses.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR FRIDAY, DECEMBER 12, 2014

(Committee meetings are open unless otherwise indicated)

Senate

No meetings/hearings scheduled.

House

No hearings are scheduled.

Next Meeting of the SENATE

10 a.m., Friday, December 12

Senate Chamber

Program for Friday: Senate will continue consideration of the motion to concur in the amendment of the House to the amendment of the Senate to H.R. 3979, Carl Levin and Howard P. ''Buck'' McKeon National Defense Authorization Act, post-cloture.

If all debate time is used, there will be up to four roll call votes on or in relation to H.R. 3979, Carl Levin and Howard P. ''Buck'' McKeon National Defense Authorization Act, and confirmation of the nomination of David Nathan Saperstein, of the District of Columbia, to be Ambassador at Large for International Religious Freedom, at approximately 3 p.m.

Next Meeting of the HOUSE OF REPRESENTATIVES

3 p.m., Friday, December 12

House Chamber

Program for Friday: House will meet in Pro Forma session at 3 p.m.

(Senate and House proceedings for today will be continued in the next issue of the Record.)

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